PALGRAVE HANDBOOKS



THE PALGRAVE HANDBOOK OF AUSTRALIAN AND NEW ZEALAND CRIMINOLOGY, CRIME AND JUSTICE

Edited by
Antje Deckert and Rick Sarre

The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice

"The *Australian and New Zealand Handbook of Criminology, Crime and Justice* is an ambitious project and a monumental accomplishment. Its 56 chapters showcase the diversity and depth of scholarship the two countries have achieved in 50 years of criminal justice research. Covering a wide range of topics including patterns of crime, state and non-state responses, theories of criminality and crime prevention policies, the *Handbook* features both established and emerging researchers, with a unique section written exclusively by Indigenous scholars. This *Handbook* is both a valuable resource and a testament to the vibrant state of Australian and New Zealand criminology."

—Professor Janet Chan, *University of New South Wales, Law School, Australia*

"This Handbook provides a timely–and indeed long overdue–overview of academic criminology in Australia and New Zealand from both an historical and contemporary perspective. The 56 chapters demonstrate the great depth of criminological research in our region and the contribution it has made to our understanding of crime and criminal justice policy. It will be not only an indispensable reference point for scholars and policy makers nationally but also of interest to international scholars in the field."

—Dr. Warren Young, *Former Deputy Secretary for Justice and Deputy President of the New Zealand Law Commission*

Antje Deckert · Rick Sarre
Editors

The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice

palgrave
macmillan

Editors
Antje Deckert
Auckland University of Technology
Auckland
New Zealand

Rick Sarre
University of South Australia
Adelaide, SA
Australia

ISBN 978-3-319-55746-5 ISBN 978-3-319-55747-2 (eBook)
DOI 10.1007/978-3-319-55747-2

Library of Congress Control Number: 2017938294

© The Editor(s) (if applicable) and The Author(s) 2017
This work is subject to copyright. All rights are solely and exclusively licensed by the Publisher, whether the whole or part of the material is concerned, specifically the rights of translation, reprinting, reuse of illustrations, recitation, broadcasting, reproduction on microfilms or in any other physical way, and transmission or information storage and retrieval, electronic adaptation, computer software, or by similar or dissimilar methodology now known or hereafter developed.
The use of general descriptive names, registered names, trademarks, service marks, etc. in this publication does not imply, even in the absence of a specific statement, that such names are exempt from the relevant protective laws and regulations and therefore free for general use.
The publisher, the authors and the editors are safe to assume that the advice and information in this book are believed to be true and accurate at the date of publication. Neither the publisher nor the authors or the editors give a warranty, express or implied, with respect to the material contained herein or for any errors or omissions that may have been made. The publisher remains neutral with regard to jurisdictional claims in published maps and institutional affiliations.

Cover credit: © imageBROKER/Alamy Stock Photo

Printed on acid-free paper

This Palgrave Macmillan imprint is published by Springer Nature
The registered company is Springer International Publishing AG
The registered company address is: Gewerbestrasse 11, 6330 Cham, Switzerland

Preface

The *Australian and New Zealand Handbook of Criminology, Crime and Justice* covers key debates in academic criminology since the formal establishment of the Australian and New Zealand Society of Criminology (ANZSOC) in Melbourne, Australia in 1967. In six parts, containing 56 original chapters, leading researchers and practitioners outline the crime and justice landscapes of Australia and New Zealand, explore patterns of crime, discuss how state and non-state agencies have sought to address criminal offending within and outside the criminal justice system, examine crime and criminality through different theoretical and policy lenses, contemplate emerging and developing research areas, and critically discuss how and why Australia and New Zealand continue to excessively arrest, convict, and incarcerate Indigenous men and women of all ages. In 2014, the UN Human Rights Panel urged that the governments of Australia and New Zealand address this social crisis (UN Human Rights Panel 2014a, 2014b). Trans-Tasman criminologists have been conscious of the problem for many decades and have repeatedly highlighted its importance for research and policy. A little dig into the digitised archives of the *Australian and New Zealand Journal of Criminology*—the academic journal published by ANZSOC—unearths that David Biles pointed out in 1969 that "it is well known that aborigines are grossly over-represented in the prison populations of all [Australian] States" (Biles 1969, 225), and, two years later, New Zealander John L. Robson similarly argued that "Maori offenders constituted the heart of our penal problem … [and that] there was a call for social action on a national scale" (Robson 1971, 198). This topic has remained current ever since, which is indicated by the fact that the terms overrepresentation, (de)colonisation, and bias feature frequently throughout this volume.

A unique feature of this edited collection is Part V, which contains *Indigenous Perspectives on Crime and Criminal Justice* that are underrepresented in many mainstream academic publications (Deckert 2014, 2016). Linda Tuhiwai Smith, one of New Zealand's most cited Māori scholars, has repeatedly problematised research "as a significant site of struggle between the interest and knowing of the West and the interest and knowing of [Indigenous peoples]" (Smith 1999, 2). She and many other Indigenous and non-Indigenous scholars have noted a "counterproductive tendency in intellectual and scholarly circles to denigrate, dismiss, and attempt to quash alternative theories, perspectives, and methodologies" (Chilisa 2012, 55; see also Agozino, 2010; Cunneen and Tauri 2016; Tauri 2012). The editors have sought to ensure that such criticisms do not extend to this Handbook by championing a content design that includes an Indigenous *perspectives* part—as compared to a more generic Indigenous *issues* part—in which all of its eight chapters are either sole- or co-authored by Indigenous scholars.[1]

Of the total 56 chapters, 22 were co-authored, and although only four chapters are cross-Tasman collaborations (Chaps. 2, 8, 11, and 41), most chapters condense existing research from both Australia and New Zealand and position trans-Tasman developments in an international context. While the crime and justice landscapes of Australia and New Zealand demonstrate many commonalities, their distinct histories and geographies have had—and continue to have—a significant impact on how these landscapes are shaped, leading to some unique features and divergent policy outcomes. Hence, some of the 12 chapters that solely concentrate on crime and justice in New Zealand feature topics that have less relevance in Australia. For example, Samoan youth crime (Chap. 12) is more relevant to New Zealand, where the world's second largest Samoan diaspora resides.[2] Also, Rangatahi courts (Chap. 47) have only been established in New Zealand because they are youth sentencing courts that practise and function on the basis of kaupapa Māori. On the other hand, some topics are exclusively Australian—such as Koori courts (Chap. 25) and Australian gun laws (Chap. 52)—or are more pertinent to Australia than New Zealand, for example, border policing (Chap. 20), because of a much higher number of irregular boat arrivals along Australian coasts than New Zealand coasts. Also, rural crime (Chap. 19) and responses to it are of greater concern for Australia with its vast outback, compared to New Zealand with its relative geographic density. Nevertheless, urban-centric responses to crime continue to prevail in both countries (Barclay 2007; Hogg and Carrington 2006).

Six parts structure this volume. Part I, *The Crime and Justice Landscape*, introduces the historical formation of criminology in Australia and New Zealand. It provides an overview of the different legal frameworks and key

institutions in the two countries (Chaps. 1–4), outlines available sources of data on crime and criminal justice (Chap. 5), analyses mainstream media representations of crime (Chap. 6), and highlights some of the key law reforms that have impacted the criminological research agenda in Australia (Chap. 7). From this part, we see the first significant difference between Australian and New Zealand criminology, that is, in the entities dedicated to criminological research. The Australian government has established specialised agencies such as the Criminology Research Council (CRC)—which provides "funding for criminological research which is relevant to public policy" (CRC 2016)—and the Australian Institute of Criminology (AIC) and the Australian Criminal Intelligence Commission (ACIC), which undertake criminological research and provide and intelligence resource for the criminal justice sector. Moreover, NSW and South Australia have established their own research agencies, respectively, the Bureau of Crime Statistics and Research (BOCSAR) and the Office of Crime Statistics and Research (OCSAR). Parallel to criminologists in these governmental bodies, university-based academics undertake independent criminological research, but can also compete for funding provided by the aforementioned agencies. Hence, it can be said that a proportion of Australian research funding is ring-fenced for criminologists. New Zealand, on the other hand, has not established such specialised research and research funding agencies (yet), despite the fact that it continues to pursue highly punitive penal policies with a continuously growing prison-industrial complex (see Chap. 23 and our conclusion). Hence, New Zealand criminologists tend to compete with researchers from other social sciences for the small pots of designated—and by and large government-funded—broader social sciences research funds.

Part II, *Patterns of Crime*, considers traditional and developing types of offending and victimisation and explores how Australian and New Zealand criminology has contributed to comprehending their nature, extent, and impact. The first chapter in this part (Chap. 8) attempts to map common crimes, and in doing so, we learn that although New Zealand's official criminal statistics often portray property, dishonesty, and drug offences as the most common types of crime, results from the New Zealand Crime and Safety Survey indicate that, in fact, violent interpersonal offences seems to be the most common offence type. In line with this reasoning, the following two chapters explore violent crime (Chap. 9) and commercial armed robbery (Chap. 10). This provides a segue into two chapters that, *inter alia*, discuss violent offending by outlaw motorcycle gangs (Chap. 11) and violence perpetrated by Samoan youth in New Zealand (Chap. 12). We learn that the latter can be gang-related, but is often learned in the home. This notion paves the way for chapters on domestic violence, violence in close relationships, and

violence against women (Chap. 13), and on sexual violence and harassment in the digital era (Chap. 14). Through the latter, we enter the virtual world and are thus prepared for a more in-depth examination of cybercrime (Chap. 15). We come to know that, contrary to persistent, media-generated images of the enigmatic 'hacker' as the archetypical cybercriminal (Wall 2008), cybercrime is, in fact, no longer a rare, high-value crime committed by a few specialists but has developed into a high-volume, low-value crime industry that assembles computer viruses and ransomware on its virtual conveyer belts. Chapter 15 reminds us to be aware of how the rapidly developing cyberworld affects other areas of criminological research. Indeed, the immediately following chapters on patterns of white collar crime, corruption, and fraud (Chaps. 16–18) demonstrate the increasing influence of the cyberworld in enabling money transfers to offshore accounts in so-called tax havens as well as phishing and romance scams. Part IV concludes with two chapters that focus on real, as opposed to virtual, spaces. Chapter 19 examines rural crime in Australia. It covers not only changes in farm-related offending over the past two decades, but it also explains how geographic remoteness adversely affects criminal justice responses by the police, judiciary, and correctional services and thus disproportionately impacts members of Indigenous communities. Chapter 20 examines transnational organised crime and border policing. Demonstrating the continuing relevance of this research topic, Australian Prime Minister Malcolm Turnbull recently announced that his government proposes a law that bans boat asylum-seekers from Australia permanently, regardless of future visa type (News Corp Australia 2016) only shortly after the relevant chapter was submitted by its author.

Part III, *State and Non-State Responses*, examines the institutional and theoretical context of criminology by exploring how responses to crime and their consequences have developed in Australia and New Zealand. Beginning on the international stage, Australian peacekeeping (Chap. 21) and anti-terrorism laws (Chap. 22) are critically discussed. Thereafter, scholars examine penal policies in New Zealand (Chap. 23), sentencing trends including mandatory minimum and three strikes laws (Chap. 24), Indigenous sentencing courts in Australia (Chap. 25), restorative justice and the particular difficulties youth offenders experience within restorative justice (Chaps. 26 and 27), child witnesses in criminal courts (Chap. 28), children of prisoners (Chap. 29), and redress for historical institutional abuse of children (Chap. 30). Chapters 28 and 29 show us that crime and criminal justice issues not only affect victims and offenders, but can also have significant adverse effects on 'innocent bystanders', causing them to suffer from anxiety, insecurity, and anger. For children of incarcerated parents, this can lead to

poor mental health outcomes, educational underachievement, and a significant increase in the likelihood of future offending (Burgess-Proctor et al. 2016). With a combined total of 30,000–40,000 children experiencing parental incarceration in Australia and New Zealand every year, one cannot help but wonder to what extent the criminal justice system has become a perpetual motion machine that rejuvenates its population of imprisoned bodies by causing arguably unintended, yet inevitable 'collateral damage'. Government responsibility comes under further scrutiny in Chaps. 31–33, wherein their authors discuss neoliberal tendencies to outsource criminal justice functions—that have traditionally fallen under state authority—to the private or third sector. After Chap. 33 reveals that New Zealand policing relies heavily on the private security industry and a nationwide network of volunteer community patrols, we turn our attention to the public police in the final chapters of this part. While Chap. 34 asks how much influence police organisations exert over the development of crime policy, Chap. 35 critically discusses what makes police oversight authorities truly independent.

Part IV, *Crime and Justice through Different Theoretical Lenses*, demonstrates how problems in crime and criminal justice shift in their definition and meaning depending on the theoretical lenses that scholars and practitioners (figuratively) wear. Contributors cover well-established strands of criminology such as Green Criminology (Chap. 41) and Feminist Criminology (Chap. 39) and explore recent frontiers within the discipline such as Convict Criminology (Chap. 40) and Narrative Criminology (Chap. 42).

Part V, *Indigenous Perspectives on Crime and Criminal Justice*, demonstrates how the excessive contact between criminal justice and Indigenous peoples continues to confront trans-Tasman criminologists with the legacies and new forms of European colonisation. In this part, Indigenous scholars—some jointly with non-Indigenous colleagues—critically discuss how Indigenous experiences of colonisation have shaped the interactions between Eurocentric criminal justice and Indigenous peoples, and how colonial law (see Chap. 46 in particular) and settler-dominated discourses have affected current police, court, and correctional practices, which have resulted in the "mass incarceration" (Chaps. 45 and 48) of Indigenous peoples in Australia and New Zealand. The part concludes with reflections on the role of criminology and criminologists in maintaining the status quo and contemplates the possibility of an Indigenous criminology.

The final part, *Crime Prevention Policies*, examines the relationship between criminological research and policy. The authors discuss evidenced-based, prevention-focussed crime policies relating to gun licensing (Chap. 52),

restrictions on alcohol availability and alcohol consumption (Chap. 53), and prison-based rehabilitation programmes (Chap. 55), as well as advances in developmental prevention programmes (Chap. 54) and criminal profiling (Chap. 56). We learn that, in some instances, governments seem to have considered the research findings of those who have examined the respective topic thoroughly, and acted accordingly.

The *Handbook* shows that the Australian and New Zealand crime and justice landscape has experienced a number of significant changes at the institutional, theoretical, and policy level since its formal establishment 50 years ago. Some of these changes may give the observer cause for celebration, such as the significant drop in gun-related deaths in Australia, and the advances that have been made in the conception and implementation of restorative justice and Indigenous sentencing courts on both sides of the Tasman. However, other changes may give rise to contemplation, even consternation, and conceptual reconsideration, such as the fact that, despite 50 years of criminological research, the imprisonment rates keep increasing in both countries, which continues to disproportionately affect the lives of Indigenous men and women of all ages.

As the overall scope and thematic diversity of this *Handbook* evidences, Australian and New Zealand criminology is thriving and it is bound to gain even more ground on the international stage as globalisation processes lead the way through the twenty-first century. Thus, the *Australian and New Zealand Handbook of Criminology, Crime and Justice* provides an extensive resource for academics and public policy analysts in Australia and New Zealand, and for students undertaking undergraduate and postgraduate studies in criminology and related disciplines. The volume should be of interest to international academics and postgraduate students as well as government researchers who wish to include Australia and New Zealand in their comparative studies, because contributors not only address key theoretical and practical debates and explain implications of past developments and recent trends in official data collection, policy development, and academic investigation, but they also identify under-researched and emerging problem areas for future research.

Auckland, New Zealand — Antje Deckert
Adelaide, Australia — Rick Sarre

Notes

1. Only exception is Harry Blagg's chapter "Doing Research with the Indigenous Domain as a Non-Indigenous Criminologist" (Chap. 50), who clearly writes from a non-Indigenous perspective. This chapter was peer-reviewed by an Indigenous scholar.
2. The largest Samoan diaspora resides in the US with around 185,000 people. New Zealand's population encompasses around 131,000 Samoans, while the Australian-based Samoan diaspora only counts around 56,000. These numbers compare to around 194,000 Samoans residing in Samoa.

References

Agozino, Biko. 2003. *Counter-colonial criminology: a critique of imperialist reason*. London: Pluto Press.

Bagele, Chilisa. 2012. *Indigenous research methodologies*. Thousand Oaks, CA: Sage.

Barclay, Elaine, ed. 2007. *Crime in rural Australia*. Sydney: Federation Press.

Burgess-Proctor, Amanda, Beth M. Huebner, and Joseph M. Durso. 2016. Comparing the effects of maternal and paternal incarceration on adult daughters' and sons' criminal justice system involvement: a gendered pathways analysis. *Criminal Justice and Behavior* 43(8): 1034–1055.

CRC. 2016. Criminology research grants program. http://crg.aic.gov.au/. Accessed 31 October.

Cunneen, Chris, and Juan Tauri. 2016. *Indigenous criminology*. Bristol: Policy Press.

Deckert, Antje. 2014. Neo-colonial criminology: quantifying silence. *African Journal of Criminology and Justice Studies* 8(1): 39–60.

Deckert, Antje. 2016. Criminologists, duct tape, and indigenous people: quantifying the use of silencing research methods. *International Journal of Comparative and Applied Criminal Justice* 40(1): 43–62.

Hogg, Russell, and Kerry Carrington. 2006. *Policing the rural crisis*. Sydney: Federation Press.

News Corp Australia. 2016. Turnbull to propose law that bans boat asylum seekers from Australia permanently. News.com.au, Accessed 31 October.

Tauri, Juan. 2012. Indigenous critique of authoritarian criminology. In *Crime, justice and social democracy: international perspectives*, ed. Kerry Carrington, Matt Ball, Erin O'Brien, and Juan Tauri, 217–233. London: Palgrave Macmillan.

Wall, David S. 2008. Cybercrime, media and insecurity: the shaping of public perceptions of cybercrime. *International Review of Law, Computers and Technology* 22(1/2): 45–63.

Acknowledgements

Like any big project, this volume would not have come together without the encouragement and support of a number of people. Most of our gratitude we owe to all the contributors for responding to our invitation, for making time to produce excellent work, and especially for writing and revising within very tight deadlines so that this volume could be published in time for the 50th anniversary of the Australian and New Zealand Society of Criminology (ANZSOC) in October 2017. The idea for the handbook emerged from the ANZSOC subcommittee that was formed to consider ideas for the marking of the 50th anniversary. That sub-committee comprised the two of us, plus Tara McGee, Russell Smith, Kathy Daly, Philip Stenning, and later Cassandra Cross and Li Eriksson. Kathy and Russell were indispensable in the preparation of the book proposal. Kathy was also wonderful for finding a logical order in which to present the chapters, and for assisting in imagining and re-imagining chapter titles.

Our especial thanks go to Julia Willan and the three anonymous book proposal reviewers for believing in the project, and to Stephanie Carey and the skilled team at Palgrave Macmillan for seeing us through to publication.

We are additionally indebted to Trevor Bradley, Chris Cunneen, Jan Jordan, Tim Prenzler, and Juan Tauri for peer-reviewing a number of chapters for which we needed the proverbial extra pair of eyes, and to Ella Henry, Senior Lecturer in the faculty of Te Ara Poutama at AUT, for reviewing the translations and explanation of Māori language words that are commonly used in New Zealand. Thanks go also to James Rodgers and Ally Tregunna for tutoring Antje's criminology courses and marking all related assignments in order to free up time for her.

Finally, we offer our thanks to the Committee of Management of ANZSOC for funding these support activities and supporting this project from its inception.

Auckland, New Zealand — Antje Deckert
Adelaide, Australia — Rick Sarre

Contents

Part I The Crime and Justice Landscape

1 Fifty Years of Australian Criminology 3
Duncan Chappell

2 A Short History of New Zealand Criminology 17
James Rodgers and Philip Stenning

3 Public Sector Criminological Research 33
Russell G. Smith

4 The Asian and Pacific Conference of Correctional Administrators 51
David Biles

5 Crime and Justice Data 65
Fiona Dowsley and Timothy C. Hart

6 Crime, News, and the Media 81
Judy McGregor

7 Law Reform Targeting Crime and Disorder 95
Lorana Bartels and Rick Sarre

Part II Patterns of Crime

8 Mapping Common Crime 113
Jason L. Payne and Fiona Hutton

9 Violent Crime 131
Stuart Ross and Ken Polk

10 Commercial Armed Robbery 147
Emmeline Taylor

11 Outlaw Motorcycle Gangs 159
Mark Lauchs and Jarrod Gilbert

12 Samoan Youth Crime 175
Laumua Tunufa'i

13 Domestic Violence, Violence in Close Relationships, and Violence Against Women 191
Samantha Jeffries and Sharon Hayes

14 Sexual Violence and Harassment in the Digital Era 205
Anastasia Powell and Nicola Henry

15 Cybercrime in Australia 221
Roderic Broadhurst

16 Corporate and White Collar Crime 237
Fiona Haines

17 Corruption 251
Adam Graycar

18 Fraud Victimisation and Prevention 269
Tim Prenzler

19 Rural Crime 285
Elaine M. Barclay

20 Transnational Organised Crime, Border Policing, and Refugees 299
Michael Grewcock

Part III State and Non-state Responses

21 A Gallipoli Trope on Australian Peacekeeping 317
John Braithwaite

22 Terrorism and Anti-terrorism Laws 331
Selda Dagistanli and Scott Poynting

23 New Zealand Penal Policy in the Twenty-first Century 347
John Pratt

24 Sentencing Theories, Practices, and Trends 363
James C. Oleson

25 Indigenous Sentencing Courts in Australia 379
Elena Marchetti

26 Restorative Justice 393
Masahiro Suzuki and William Wood

27 Emotion and Language in Restorative Youth Justice 407
Hennessey Hayes

28 Child Witnesses in the Criminal Courts 421
Kirsten Hanna and Emily Henderson

29 Children of Prisoners 437
Catherine Flynn and Anna Eriksson

30 Redress for Historical Institutional Abuse of Children 449
Kathleen Daly

31 Privatisation of Criminal Justice 467
Alice Mills

32 Third Sector Involvement in Criminal Justice 483
Janet Ransley and Lorraine Mazerolle

33 The Pluralisation of Policing 497
Trevor Bradley

34 Policing and Crime Policy 511
Andrew Goldsmith

35 The Police Complaints Process 525
John W. Buttle and Antje Deckert

Part IV Crime and Justice Through Different Theoretical Lenses

36 Strain Theory and Crime 543
Li Eriksson and Lisa Broidy

37 Developmental and Life-Course Criminology 557
Paul Mazerolle and Tara Renae McGee

38 Left Realist Criminology 571
David Brown

39 Feminist Criminology 587
Kathryn Henne

40 Convict Criminology 603
Greg Newbold

41 Green Criminology 617
Rob White and Sarah Wright Monod

42 Narrative Criminology 633
Mark Halsey

43 Victims, Legal Consciousness, and Legal Mobilisation 649
Robyn L. Holder

Part V Indigenous Perspectives on Crime and Justice

44 Indigenous Peoples and Criminal Justice in Australia 667
Chris Cunneen and Amanda Porter

45 Māori Experiences of Colonisation and Māori Criminology 683
Robert Webb

46 Colonial Law, Dominant Discourses, and Intergenerational Trauma 697
Rawiri Waretini-Karena

47 Rangatahi Courts 711
Khylee Quince

48 Māori and Prison 725
Tracey McIntosh and Kim Workman

49 Crime and Māori in the Media 737
Simone Bull

50 Doing Research With The Aboriginal Domain as a Non-indigenous Criminologist 753
Harry Blagg

51 Imagining an Indigenous Criminological Future 769
Juan Marcellus Tauri

Part VI Crime Prevention Policies

52 Australian Gun Laws 787
Philip Alpers

53 Alcohol Policies 801
Joseph M. Boden

54 Developmental Prevention 815
Ross Homel and Kate Freiberg

55 Rehabilitation Programmes in Australian Prisons 831
Karen Heseltine and Andrew Day

56 Criminal Profiling 847
Geoff Dean and Sarah Yule

Conclusion 863

Explanation of commonly used Māori language terms 873

Index 877

Editors and Contributors

About the Editors

Dr. Antje Deckert is a Senior Lecturer in criminology at AUT. Her research concerns desistance narratives and criminological discourse, particularly its interactions with Indigenous peoples and epistemologies. She is currently serving her second term as NZ Vice President of ANZSOC, and was Visiting International Professor at Brock University, Canada in 2017.

Dr. Rick Sarre is Professor of Law and Criminal Justice at the University of South Australia's Law School. He served four years as ANZSOC president (2012–2016), and continues to serve on the Board of the International Police Executive Symposium. In 2015, he received an honorary doctorate from the Law School, Umeå University, Sweden.

Contributors

Philip Alpers University of Sydney, Sydney, Australia

Elaine M. Barclay University of New England, Armidale, Australia

Lorana Bartels University of Canberra, Canberra, Australia

David Biles Consultant criminologist, Canberra, Australia

Harry Blagg University of Western Australia, Perth, Australia

Joseph M. Boden University of Otago, Christchurch, New Zealand

Trevor Bradley Victoria University of Wellington, Wellington, New Zealand

John Braithwaite Australian National University, Canberra, Australia

Roderic Broadhurst Australian National University, Canberra, Australia

Lisa Broidy The University of New Mexico, Albuquerque, New Mexico, USA

David Brown Law University of New South Wales, Sydney, Australia

Simone Bull NZ Police, Wellington, New Zealand

John W. Buttle Auckland University of Technology, Auckland, New Zealand

Duncan Chappell University of Sydney, New South Wales, Australia

Chris Cunneen University of NSW, Sydney, New South Wales, Australia

Selda Dagistanli Western Sydney University, Sydney, Australia

Kathleen Daly Griffith University, Brisbane, Australia

Andrew Day James Cook University, Townsville, Queensland, Australia

Geoff Dean Griffith University, Queensland, Australia

Antje Deckert Auckland University of Technology, Auckland, New Zealand

Fiona Dowsley Crime Statistics Agency, Melbourne, Australia

Anna Eriksson Monash University, Melbourne, Australia

Li Eriksson Griffith University, Queensland, Australia

Catherine Flynn Monash University, Melbourne, Australia

Kate Freiberg Griffith University, Queensland, Australia

Jarrod Gilbert University of Canterbury, Christchurch, New Zealand

Andrew Goldsmith Flinders University, Bedford Park, Australia

Adam Graycar Flinders University, Adelaide, Australia

Michael Grewcock University of New South Wales, Sydney, Australia

Fiona Haines University of Melbourne, Melbourne, Australia

Mark Halsey Flinders University, Adelaide, Australia

Kirsten Hanna Auckland University of Technology, Auckland, New Zealand

Timothy C. Hart Griffith University, Brisbane, Australia

Hennessey Hayes Griffith University, Brisbane, Australia

Sharon Hayes University of Newcastle, Callaghan, Australia

Emily Henderson Henderson Reeves Lawyers, Whangarei, New Zealand

Kathryn Henne Australian National University, Canberra, Australia

Nicola Henry RMIT University, Melbourne, Australia

Karen Heseltine Forensic and Clinical Psychologist, Adelaide, South Australia, Australia

Robyn L. Holder Griffith University, Queensland, Australia

Ross Homel Griffith University, Queensland, Australia

Fiona Hutton Victoria University of Wellington, Wellington, New Zealand

Samantha Jeffries Griffith University, Brisbane, Australia

Mark Lauchs Queensland University of Technology, Brisbane, Australia

Elena Marchetti Griffith University, Brisbane, Australia

Lorraine Mazerolle The University of Queensland, Queensland, Australia

Paul Mazerolle Griffith University, Brisbane, Queensland, Australia

Tara Renae McGee Griffith University, Brisbane, Queensland, Australia

Judy McGregor Auckland University of Technology, Auckland, New Zealand

Tracey McIntosh University of Auckland, Auckland, New Zealand

Alice Mills University of Auckland, Auckland, New Zealand

Sarah Wright Monod Victoria University of Wellington, Wellington, New Zealand

Greg Newbold The University of Canterbury, Canterbury, New Zealand

James C. Oleson University of Auckland, Auckland, New Zealand

Jason L. Payne Australian National University, Canberra, Australia

Ken Polk University of Melbourne, Melbourne, Australia

Amanda Porter University of Technology Sydney, New South Wales, Australia

Anastasia Powell RMIT University, Melbourne, Australia

Scott Poynting Western Sydney University, Sydney, Australia

John Pratt Victoria University of Wellington, Wellington, New Zealand

Tim Prenzler University of the Sunshine Coast, Queensland, Australia

Khylee Quince Auckland University of Technology, Auckland, New Zealand

Janet Ransley Griffith University, Brisbane, Australia

James Rodgers University of Auckland, Auckland, New Zealand

Stuart Ross University of Melbourne, Melbourne, Australia

Rick Sarre University of South Australia, Adelaide, Australia

Russell G. Smith Australian Institute of Criminology, Canberra, Australia

Philip Stenning Griffith Criminology Institute, Queensland, Australia

Masahiro Suzuki Griffith University, Brisbane, Australia

Juan Marcellus Tauri University of Wollongong, Wollongong, Australia

Emmeline Taylor University of Surrey, Guildford, UK

Laumua Tunufa'i Auckland University of Technology, Auckland, New Zealand

Rawiri Waretini-Karena Waikato Institute of Technology, Hamilton, New Zealand

Robert Webb University of Auckland, Auckland, New Zealand

Rob White The University of Tasmania, Hobart, Australia

William Wood Griffith University, Brisbane, Australia

Kim Workman Victoria University of Wellington, Wellington, New Zealand

Sarah Yule Criminal Psychology Unit, New South Wales Police Force, Sydney, Australia

Acronyms

a.k.a.	Also known as
ABC	Australian Broadcasting Corporation
ABS	Australian Bureau of Statistics
ACC	Australian Crime Commission
ACCC	Australian Competition and Consumer Commission
ACT	The Australian Capital Territory
AFP	Australian Federal Police
AIC	Australian Institute of Criminology
AIHW	Australian Institute of Health and Welfare
ALP	Australian Labor Party
ALRC	Australian Law Reform Commission
ANU	Australian National University
ANZSOC	Australian and New Zealand Society of Criminology
ARC	Australian Research Council
ASC	American Society of Criminology
AUT	Auckland University of Technology
BA	Bachelor of Arts
BJS	US Bureau of Justice Statistics
BOCSAR	Bureau of Crime Statistics and Research
BS	Bachelor of Science
BSC	British Society of Criminology
CDPP	Commonwealth Director of Public Prosecutions
Cth	Meaning 'Commonwealth', cited after laws that are binding all Australian jurisdictions
DECRA	Discovery Early Career Research Award
EU	European Union
Europol	European Union's law enforcement agency
flax-roots	In New Zealand often used instead of the term grass-roots

HCA	High Court Australia
ILO	International Labour Organisation
INTERPOL	International Criminal Police Organisation
LCA	Law Council of Australia
LGBTQI	Lesbian, gay, bisexual, transgender, queer, intersexed
LLB	Bachelor of Laws
NCCJS	Australian National Centre for Crime and Justice Statistics
NDARC	National Drug & Alcohol Research Centre, Australia
NSW	New South Wales
NT	The Northern Territory (used in conjunction with agency names)
NZ	New Zealand (used in conjunction with agency names)
OBE	Officer of the Most Excellent Order of the British Pacific Islanders
OC spray	Oleoresin capsicum spray, also known as pepper spray
QC	Queen's Council
QLD	Queensland (used in conjunction with agency names)
QUT	Queensland University of Technology
RCIADC	Royal Commission into Aboriginal Deaths in Custody
SA	South Australia (used in conjunction with agency names)
UC	University of California
UK	United Kingdom of Great Britain
UN	United Nations
UNSW	University of New South Wales
USA	United States of America
VUW	Victoria University of Wellington
WA	Western Australia (used in conjunction with agency names)
WHO	World Health Organisation
WWI	First World War
WWII	Second World War

List of Figures and Images

Fig. 3.1	Primary institutional and occupational affiliation of ANZSOC members in 1970, 2003, and 2016	36
Fig. 3.2	Revenue and expenses of the AIC, 1972/1973–2015/2016 (AUD)	39
Fig. 3.3	Operating revenue and government appropriation of the AIC, 1972/1972–2015/2016 as a percentage of national GDP	40
Fig. 3.4	CRC income and grants funding provided, 1972/1973–2015/2016 (AUD)	41
Fig. 3.5	Total AIC staff numbers and academic research staff, 1972/1973–2015/2016 (headcount at 30 June)	43
Fig. 3.6	Principal categories of research examined in *Trends and Issues in Crime and Criminal Justice*, 1986–2016	44
Fig. 8.1	Unique offenders (number) by offence type (Australia, 2014/2015)	115
Fig. 8.2	Offenders proceeded against (number) by offence type (Australia, 2014/2015)	116
Fig. 8.3	Victims of crime (number) by offence type (Australia, 2014/2015)	116
Fig. 9.1	Police recorded violent crimes, Australia, 2000–2014	133
Fig. 9.2	Homicide rate by year, 1989/1990 to 2011/2012	135
Fig. 9.3	Violent crime victimisation rates	136
Fig. 9.4	Physical assault victimisation rates for men and women	137
Fig. 9.5	Physical assault victimisation rates for age cohorts	139
Fig. 15.1	Case example: 'The classic' advanced fee fraud	229
Fig. 17.1	CMC (Queensland) allegations 2011/2012 (N = 12,559)	263
Fig. 17.2	CCC (Western Australia) allegations 2011/2012 (N = 5912)	263
Fig. 17.3	ICAC (NSW) responses to complaints received 2011/2012 (N = 2978)	264

Fig. 20.1 Boat arrivals by calendar year 1976–2014 and financial year 1989/1990–2014/2015 306
Fig. 23.1 Prison population rate for England and Wales, New Zealand, and Australia, 1970–2015, per 100,000 total national population 348
Fig. 23.2 New Zealand crime rate 1970–2014, per 100,000 total national population 348
Fig. 23.3 Prison rate for New Zealand and Finland, 1970–2015, per 100,000 total national population 357
Fig. 23.4 Crime rate for New Zealand and Finland, 1970–2014, per 100,000 total national population 357
Fig. 27.1 Restorative Justice and Reoffending Project Case 005a 415
Fig. 27.2 Restorative Justice and Reoffending Project Case 005b 416
Fig. 42.1 Interview excerpt, flexibility 640
Fig. 42.2 Interview excerpt, maintaining narrative flow 641
Fig. 42.3 Interview excerpt, recognising a 'dead end' 642
Fig. 42.4 Interview excerpt, the co-production of interview narrative 643
Fig. 52.1 Australia: Rate of all gun deaths per 100,000 people 795
Fig. 55.1 The compulsory drug treatment correctional Centre (CDTCC) 841
Fig. 56.1 Historical timeline of 'criminal profiling' researchers in Australia 852

Image 3.1 AIC staff, 1973. Back from left: Bill Miller, Harold Weir, Diana Solman, Pat Riley (Library), Peggy Walsh, Jean Willoughby, Adam Browne (Publications), Peter Kay. Front from left: Joan Swan, Anne Wright, Judge Muirhead, Robyn Zebo, Mary McLean (Training) 42

List of Tables

Table 5.1	Key administrative crime and justice sources in Australia and New Zealand	70
Table 5.2	Key surveys relating to crime and justice in Australia and New Zealand	73
Table 7.1	One-punch death legislation in Australia	100
Table 8.1	Recorded offences New Zealand 2012–2014	117
Table 17.1	Perception of corruption in Australia overall	253
Table 17.2	Perceptions of corruption in Australia by institution	254
Table 17.3	Examples of types, activities, sectors and places (TASP) of corruption	254
Table 17.4	Overview of anti-corruption agencies	260
Table 17.5	Suspected and observed corruption within current organisation, Victoria, as percentage of respondents (N = 893)	265
Table 18.1	Recorded fraud cases Australia and New Zealand, 1995/1996 to 2014/2015	273
Table 18.2	ACCC, complaint actions, 2014/2015	278
Table 30.1	Australian and New Zealand redress schemes	458
Table 33.1	Private security growth, 1976–2015	499
Table 33.2	CPNZ annual patrol statistics, 2015	505
Table 43.1	Law in social context	652
Table 43.2	Theories of legal mobilisation	656
Table 55.1	Prisoners in Australia, profile June 2015	833
Table 55.2	Prisoners in Australia by offence types	835

Part I

The Crime and Justice Landscape

1

Fifty Years of Australian Criminology

Duncan Chappell

In 2016, we celebrated the fiftieth anniversary of the foundation of the University of Sydney's Institute of Criminology—the Sydney Institute of Criminology—Australia's oldest surviving independent centre of criminological teaching and research. In 2017, we acknowledge 50 years since the establishment of ANZSOC. Having participated in both of these historic events (in 1966 and 1967, respectively), I include in this chapter some of my personal reflections about their importance and significance, considering criminology's development over succeeding decades in our region of the world. In offering these reflections, I must admit to feeling a little like one of those now frail and rapidly diminishing number of veterans of the Second World War who are still able to gather each year to commemorate past conflicts and compatriots. Most of those who were foundation members of both the Sydney Institute of Criminology and ANZSOC are no longer alive. However, through the extensive scholarly writings of Mark Finnane, the preeminent historian of Australian criminology, we do have a fulsome picture of the events that led up to these seminal developments and the individuals involved (see Finnane 2006, 2007, 2008, 2012). I do not intend to repeat or summarise these fine historical analyses here. I must also admit that—while I do describe and consider myself to be a criminologist, although trained principally as a lawyer—the route I traversed to acquire this occupational

D. Chappell (✉)
University of Sydney, New South Wales, Australia
e-mail: duncan.chappell@sydney.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_1

status was largely accidental. I shall say more about this route shortly, but first I shall outline how to present these reflections.

At the beginning, I think it is important to set out how I became a criminologist if only to assure those who aspire to such an occupational label that there is still no predetermined pathway to be trodden and no official accreditation process to fulfil. This personal account occupies the time period from the 1950s to 1965, when I graduated from the University of Cambridge with a PhD in criminal law and criminology and took up an appointment as a law lecturer at the University of Sydney. Following this, I relate my reflections upon five decades of criminological history since then, up to the publication dates of *The Australian Criminal Justice System* (ACJS), a textbook I co-edited with Paul Wilson. Six editions of the ACJS appeared over the time frame under review, the first in 1972 and the last in 2005 (see Chappell and Wilson 1972, 1977, 1986, 1994, 2000, 2005). No other Australian criminology textbook covers such an extensive period or range of issues, thus making the ACJS a valuable 'time capsule' with which to explore developing patterns and trends in the world of Australian crime and justice.

Becoming a Criminologist (1956–1965)

I am convinced that my eventual choice to become a criminologist was influenced, at least subconsciously, by growing up in Tasmania amidst the surrounds of its penological past. As Koch (1985, 25), one of our finest novelists and a fellow Tasmanian, wrote: "Sometimes it seemed to me that the fusty odour of fear, the stench of the prison ships, was still in Hobart; and a tragic, heavy air, an air of unbearable sorrow, even in sunshine, hung over the ruined, sandstone penitentiary and the dark blue bay of Port Arthur, south of Hobart, where the tourists went".

I went to school and then university in Hobart during the 1950s, a time when there were still many architectural remnants and other reminders of the work performed by convicts during the period of their transportation. Of the 164,000 men and women who arrived in Australia as convicts between 1788 and 1868, four out of 10 were sent to what was then called Van Diemen's Land (Hughes 1988). Despite these numbers, this aspect of Tasmanian history was in my experience rarely mentioned in school history lessons, or in polite society. To quote Koch (1985, 25) again: "A certain look of distaste came into Tasmanian faces when you mentioned the convicts; the look of respectability threatened. It was similar to fear, and even the jokes had fear in

them. No one wanted to admit having a convict ancestor; because the truth was that long ago was not long ago; not long enough."

Five decades later, most Tasmanians whom I know, who can claim convict ancestry, do so with enthusiasm and even pride. I cannot make any such claim, having been transported from England at an early age to Tasmania by my English father and Scottish mother. My father, a school teacher, was headmaster at a number of Tasmanian schools before becoming a member of the education faculty at the University of Tasmania in Hobart in the early 1950s. My mother worked as a personal assistant in the university's science faculty.

When it became time for me to commence my tertiary education in 1956, I was persuaded—largely by my father—to undertake a joint arts and law degree, a six-year endeavour that I completed in 1961 with a BA majoring in Politics and a first class honours degree in Law. At no stage did I have the opportunity to study criminology, since it did not exist as a subject in either the arts or law faculties at the University of Tasmania. Only the University of Melbourne, which had established the first Australian Department of Criminology in 1951, would have offered such an opportunity. The establishment of the University of Melbourne's criminology programme was largely the work of pioneering criminal lawyer and criminologist Norval Morris, encouraged and supported by Victorian Supreme Court Justice Sir John Barry (Finnane 2007, 2012).

While I was still a law student and an articled clerk at a Hobart law firm, Norval Morris and Sir John Barry jointly visited the University of Tasmania to give several public lectures on aspects of criminal law and criminology. Sir John's biography of Alexander Maconochie, the early nineteenth-century Norfolk Island penal reformer, had only recently been published (see Barry 1958). I attended these lectures, and while I cannot recall them in any detail now, I was fascinated and interested to learn more about our past penological history and to obtain a better grasp of criminology.

When I had to decide on possible further postgraduate study overseas, criminology was not on my list of priorities. The then Dean of the University of Tasmania Law School encouraged me to study international law with a possible subsequent career in the foreign service, or as a law teacher. My first published work had in fact been a comment—presented in the then newly created *University of Tasmania Law Review*—on the ongoing negotiations regarding the establishment of a "Convention on the Law of the Sea" (Chappell 1959). With the Dean's advice in mind, I accepted a Commonwealth Scholarship to study for a further LLB at the University of Cambridge, specialising in international law.

Shortly after arriving in Cambridge in 1962, I had the opportunity to review my future potential career opportunities with Mr Gooderson, my college tutor, supervisor, and a highly regarded criminal lawyer and expert on the law of evidence. He told me about the work of the Cambridge Institute of Criminology, which was established within the law faculty under the leadership of Professor Leon Radzinowicz in 1959. He also explained that it had recently initiated a doctoral programme and was looking for potential recruits for this new venture. Mr Gooderson suggested that I should meet with Professor Radzinowicz and some of his staff to explore the possibility of joining the programme. The result was a career-determining shift from international law to criminal law and criminology. My appointed doctoral supervisor was F.H. McClintock, a London School of Economics graduate in sociology and economics, whose strong commitment to empirical research regarding criminal justice issues had already resulted in a number of pioneering books on sexual offences, robbery, and various correctional measures (Garland 1995). Mr McClintock, subsequently a friend and mentor, was a wonderful supervisor, who instilled in me a strong belief in the importance of obtaining and evaluating data wherever possible when considering criminal law and policy. With his guidance and support, I devoted my doctoral research to the study of the development and administration of the English law of burglary, a study which included extensive and unique field work in several local law enforcement jurisdictions examining how offences of breaking and entering were actually dealt with from the point of reporting, to possible detection, prosecution, and conviction of an offender.

During my final year of doctoral work at Cambridge, a further quirk of fate occurred, setting out my future career path as a criminologist. An Australian visitor arrived at the Institute, Professor Kenneth Shatwell, the then Dean of the University of Sydney Law School (UOSLS). Professor Shatwell was in the midst of a tour of Europe and North America to gather information about the latest developments in the field of criminology with the ultimate objective of establishing an Institute of Criminology within the UOSLS. He had been very impressed by the model adopted at Cambridge with its strong multidisciplinary focus, association with a law faculty, and commitment to empirical research. I was invited to meet with Professor Shatwell. We discussed my career plans, which were still very vague at that stage but did involve a return to Australia as it was one of the expectations of the Commonwealth Scholarship scheme.

Shortly after this meeting, I was offered a tenured position as a Lecturer in Law at the UOSLS, commencing as soon as I completed my PhD. I was expected to teach both criminal law and criminology and undertake

appropriate research. I had little hesitation accepting this offer, but—looking back at this decision 50 years later—I realise that my entire initiation into the arena of criminology was largely fortuitous. Perhaps that is the way many career decisions are made. I was also fortunate to enter the field at an early stage of criminology's academic development and within the framework of a law faculty. At the end of 1965, when I completed my PhD and set sail for the University of Sydney, I suspect that I was one of the very few lawyers who also possessed such a qualification. Certainly, at that time, I was only the second person to graduate from the Cambridge Institute's doctoral programme, being preceded by Roger Hood who ultimately became a Professor of Criminology at the University of Oxford.

I came to the University of Sydney thoroughly imbued with what Roger Hood has described as the Cambridge 'Sir Leon brand of criminology'. Professor Hood (1997, ii) described this brand during a 1997 tribute to Sir Leon to mark his ninetieth birthday as follows: "He has insisted that there must be a connection between criminology and criminal policy and that the study of criminology, shorn of the study of law and policy, is both arid and dangerous, and particularly dangerous when it ignores the wider questions of social and political values, especially the liberty of the citizen." It was this brand of criminology that Professor Shatwell had also adopted for the newly founded Sydney Institute of Criminology.

Towards an Australian Brand of Criminology (1966–1972)

In 1966, criminology at UOSLS was taught as part of the compulsory criminal law course component of the LLB programme. One full term out of three was devoted to the subject. Most regrettably, in my view, that situation no longer prevails at the UOSLS. Fifty years later, criminology is only an elective subject taken by a quite small number of students (Bartels et al. 2014). This seems to reflect a general shift in focus within Australian law schools over recent decades, a shift away from subjects that are considered peripheral to the so-called core professional ones which directly affect legal practice. This view seems somewhat narrow-minded and regressive, considering that so much of daily legal practice involves dealing with the ailments of society arising from crime, poverty, and deprivation, topics which form the gist of criminology.

These regrets apart, one of the first things I realised in 1966 upon commencing teaching criminology was the almost total absence of any Australian criminological literature, research, or allied material with which to illustrate

lectures. The texts we were using were largely British with a smattering of North American, as were the products of any research. Local crime and related statistics were either non-existent or barely comprehensible. Together with my new colleague Gordon Hawkins, I railed against these deficiencies in a journal article (Hawkins and Chappell 1967). The remedies for these ills would take considerable time.

Both Hawkins and I were enthusiastic supporters of the establishment of the *Australian and New Zealand Journal of Criminology* in 1968, following the foundation meeting of ANZSOC at the University of Melbourne in October 1967 (Finnane 2007; Sallmann 1988). I was one of 47 people who attended this meeting. Both Hawkins and I also served subsequent periods as assistant editor to Dr Allan Bartholomew, the foundation editor of the journal.

In 1972, the first edition of the ACJS book series appeared in print. The gestation period for the book had been lengthy and challenging. As the list of contributors shows, nearly 50 people represented a very wide array of academic and practitioner positions. In our preface to the book, Paul Wilson and I (Chappell and Wilson 1972, v–vi) stated the following about our rationale in compiling the ACJS.

> As a first step towards improving our knowledge of the crime problem, and designing programs to cope with that problem, it appears most desirable to draw together in systematic fashion existing information about crime and the system of criminal justice. Having gathered and digested this material in a form readily obtainable to those seeking information on this subject, attention and research can be directed towards those areas in which the most gaps appear. This Reader is an attempt to move forward this preliminary step…Teachers of courses in this field, whether they be in schools of law, sociology, psychology, government or related disciplines, must at present rely primarily upon English and American texts. This lack of a single Australian orientated text results in emphasis and focus upon overseas data which may often have little if any relevance to local conditions.

In our current digital age, I imagine that it will be difficult for many contemporary readers to appreciate how profoundly opaque so many aspects of criminal justice policy and practice still remained in Australia in 1972. But, fortunately, change was on its way. In May 1969, the then Commonwealth Attorney-General, Nigel Bowen, announced that—after extensive discussion and negotiations with the states and territories—the federal government planned to establish the AIC. Legislation to give effect to this plan, guided by Bowen's successor in the office of Commonwealth Attorney-General, Tom Hughes, eventually made its way through Parliament in 1971 (Finnane

2007). In the ACJS preface, we (Chappell and Wilson 1972, v) acknowledged this landmark event and other important related developments in Australian criminology in the following way: "With the assistance and cooperation of the States, the Commonwealth has recently established an Australian Institute of Criminology, a Criminology Research Council and a Criminology Research Fund. In NSW a Bureau of Crime Statistics and Research has been formed. Within universities throughout Australia increasing attention is being given in law and other social science departments to the study of crime and its allied problems." With these new research bodies in place, and the expanding academic interest in criminology, the future of Australian criminology at large seemed much brighter.

A Period of Expanding Research and Reform (1973–1977)

Five years elapsed before the second edition of the ACJS emerged. During this entire period, I was living and working in the USA and thus missed experiencing directly one of the most intense and turbulent periods of social and allied reform in the history of the Australian nation. After more than two decades in the political wilderness, the Australian Labor Party under Gough Whitlam swept to power in late 1972 (National Museum of Australia 2016). Among the many reforms initiated by the Whitlam Government was the implementation of the already extant legislation creating the AIC and its associated research structure, as well as the formation of the Australian Law Reform Commission (ALRC) in 1973 (ALRC 2016).

Early in 1973, while still a faculty member at the School of Criminal Justice at the State University of New York at Albany (SUNY Albany), I received an unanticipated invitation to meet with Lionel Murphy, the Commonwealth Attorney-General in the Whitlam Government, in Washington, DC. I accepted the invitation and spent a full day alone with him. We had a very pleasant lunch at a country inn in Virginia and then drove around the wintery countryside in a chauffeured limousine discussing a range of issues associated with criminal justice and criminal law reform both in the USA and Australia. At the end of the day, Mr Murphy asked me if I would be interested in returning to Australia to work as one of his personal advisors to give effect to the Whitlam Government's criminal justice reform programme. I was sorely tempted to say yes but after some deliberation declined the invitation, largely because I had only recently moved my young family to my tenured position in New York. As an accidental

criminologist, I still wonder where a different choice would have taken me, but such are the vagaries of life.

By November 1976, when Paul Wilson and I had finalised our preparation of the second edition of the ACJS, I had already moved from the East to the West Coast of the USA, where I directed an international law and justice research centre in Seattle for a number of years. The impact of my North American experience can be observed in the second edition. As noted in the preface, we were critical of the absence of any comprehensive Australian review of the state of crime and the measures that might be put in place to diminish criminality. We also drew attention to the dominance of lawyers in the Australian royal commissions and committees of inquiry set up on an ad hoc basis to investigate discrete rather than systemic issues. We observed that "unlike North America, Australian social scientists have played a subsidiary role to lawyers in addressing major issues of criminal justice reform" (Chappell and Wilson 1977, xi). We also drew attention to the massive flow of empirical research regarding crime and justice issues emanating from US bodies such as the Law Enforcement Assistance Administration or the Ford Foundation.

The second edition of the ACJS also allowed us to remedy one serious omission of the first edition, that is, to mention the status and plight of Indigenous Australians in their contact with the criminal justice system. A substantial section in the second edition was devoted to minority groups including migrants and Indigenous citizens. Also included was a chapter contributed by the late William Clifford, who had been appointed as the first full-time AIC director in 1974. Mr Clifford, who had previously been head of the UN Crime Prevention and Criminal Justice Programme, brought a refreshing international context and perspective that was to develop further in succeeding years. However, while the AIC acquired an outwards-looking focus from its earliest days—to the Asia-Pacific region in particular—a similar trend was not evident among university-based criminologists who "became focused on education and research opportunities located largely within their national or even more local jurisdictions" (Finnane 2008, 210).

Australian Crime and Criminology Coming of Age (1978–1986)

Nearly a decade passed before the third edition of the ACJS was published in 1986. By this time, I had moved to a position at the School of Criminology at Simon Fraser University in Vancouver, Canada, following a period as a

visiting professor at the Department of Legal Studies at Latrobe University in Melbourne and a term as a Law Reform Commissioner at the ALRC under the dynamic leadership of Justice Michael Kirby. At the ALRC, and as the commissioner in charge of a reference on federal sentencing, I was able to apply the philosophy and spirit of the Cambridge brand of criminology by incorporating social science research into the law reform mix. The ALRC was imbued with not only a reforming zeal but a commitment to such research and also the need to consult widely with the community about reform proposals. With the full support and encouragement of Justice Kirby, we were able to conduct the first and—as far as I am aware—hitherto only national survey in Australia of judicial officers regarding their views on sentencing (ALRC 1980). This research was conducted with the invaluable support of the NSW Law and Justice Foundation, which had become a new and important participant in the law reform field (Law and Justice Foundation NSW 2016).

In planning the third edition, we recognised that our editorial efforts so far had resulted in the production of a series of largely independent criminal justice information sourcebooks rather than a text that required periodical updating. Thus, in this new edition, we asked our contributors to write new and unique chapters providing an overview of quite broad subject areas. We were also conscious of the fact that our ACJS was no longer without rivals as the discipline of criminology grew in popularity, influence, and reach in academic, practitioner, and public circles. In our introduction to this edition, Paul Wilson and I observed that—as we approached the 1988 bicentennial celebration of the nation—we experienced unprecedented levels of concern about the state of crime and the criminal justice system. While criminology might have come of age, so too had the criminals. A succession of royal commissions and other official inquiries into a broad range of well-organised and lucrative criminal activities had severely shaken public confidence in the administration of justice, as had a number of scandals "which have resulted in the prosecution of many prominent persons including senior police officials; judicial officers ranging from a former chief stipendiary magistrate to a justice of the High Court of Australia; and politicians concerned with the administration of justice" (Chappell 1986, 1–2).[1]

The steadily expanding importance, influence, and reach of the AIC were becoming apparent in the burgeoning array of published research and allied criminological literature it was producing and was reflected in the cohort of contributors to the third edition. My co-editor had by now become the Assistant Director (Research) at the AIC, while other contributing senior AIC

staff were Satyanshu Mukherjee (Australian crime trends), Peter Grabosky (corporate crime), Grant Wardlaw (terrorism), and David Biles (corrections).

Gender and race issues also gained more recognition and prominence in the third edition with powerful contributions by Ngaire Naffine (women and crime), Jocelynne Scutt (sexual assault), and Christine Stafford (institutionalised racism and violence in the Australian criminal justice system). Victims of crime were also not forgotten. The chapter on victim issues was contributed by the late Ray Whitrod, an active international advocate of victims' rights.

The ACJS Fourth Edition (1986–1994)

The fourth edition of the ACJS was published in 1994. By this time, both Paul Wilson and I had moved to new positions. Paul had become the Dean of Humanities and Social Science at Bond University in Queensland, while I had been appointed to Director of the AIC in Canberra in 1987. Unlike earlier editions, this ACJS contained no editorial introduction reviewing trends and issues in Australian crime and criminal justice. This serious omission was largely the result of my absence, having been on a UN-led peacekeeping mission in South Africa for much of the edition's gestation period.

The list of contributors points to the very significant domestic growth in the number of tertiary education programmes with their academic staff interested in crime and criminal justice issues. While the two eldest criminology programmes at Melbourne and Sydney were well represented among the contributors, so too were academics from the Australian National University, University of NSW, LaTrobe University, University of Canberra, University of Adelaide, University of South Australia, and QUT.

The period also witnessed the birth of a new local journal at the Sydney Institute of Criminology, which was to compete with the *Australian and New Zealand Journal of Criminology*, and the establishment of a new book collection on criminological topics titled the *Sydney Institute of Criminology Series.* The Sydney Institute of Criminology has continued to publish its journal, *Current Issues in Criminal Justice*, since 1989 while more than 30 volumes have appeared in its book series.

The AIC was closely involved in the work of the National Committee on Violence (1990) and the RCIADC (Nagle and Summerrell 2002). During this time, the AIC also established a more formal association with the UN. Through a memorandum of understanding, signed in 1988, the AIC became recognised by the then Crime Prevention and Criminal Justice Branch of the

UN Center for Social Development and Humanitarian Affairs as one of the institutions cooperating in the implementation of the UN programme in the field of crime prevention and criminal justice (Criminology Australia 1989). The AIC was the first national institution of its kind to enter into such an arrangement, one that continues to the present day and has led to numerous international collaborative projects.

A New Millennium (1995–2000)

The fifth edition of the ACJS was published in 2000. Appearing at the beginning of a new millennium, we decided to ask our contributors, within their area of interest and expertise, "to assess the state of health of our still quite youthful criminal justice system, and to reflect upon its future well-being" (Chappell and Wilson 2000, xi), which they did, with current outcomes and future outlooks that were often far from positive. In particular, Mark Findlay, the then Director of the Sydney Institute of Criminology, emphasised in his chapter how globalisation was a key to understanding the likely impact of crime in the future. He predicted that, in the next century, Australian criminal justice would become more interconnected with globalised crime control agencies and that the "essential interaction between local and global crime concerns will be the predominant feature of Australian criminal justice" (Chappell 2000, xx). Nothing that has occurred since Professor Findlay made this prediction has proved him wrong. We now struggle with crime in a digital age and global terrorist threats that affect international stability and safety.

The Latest Edition (2001–2005)

The sixth edition of the ACJS was published in 2005. In the introduction, I pay tribute to three individuals who had recently died and whom, I felt, had made outstanding contributions to the development of Australian criminology during the five decades covered here (Chappell and Wilson 2005). The three were Gordon Hawkins, Ray Whitrod, and Allan Bartholomew, each of whom contributed to the first edition of the ACJS. All of these pioneers were also good friends of mine.

During the period covered by this edition, I had become a full-time practitioner working first for the UN Interregional Crime Research Institute (UNICRI) based in Rome (1994–1995), then—in quasi-judicial posts—at

the Commonwealth Administrative Appeals Tribunal (1996–2001), and the NSW Mental Health Review Tribunal (2001–2006). This experience gave me a much keener awareness and understanding of the human rights component of criminal and civil justice, and the constant struggle to balance and protect the interests and rights of individuals with those of the community at large. These posts also demanded public accountability through the publishing of reasons for all substantive decisions made. These reasons were open to further potential scrutiny by an appeal court. Neither law school, nor criminological studies quite prepare you for such a role.

My practitioner experience influenced the decision to include a new component in the sixth edition in the form of a chapter series devoted to what we termed 'forensic criminology'. This label implied a strengthening linkage between academic and practitioner criminal justice. We commented that "to an increasing degree, criminologists from diverse disciplinary backgrounds are now becoming involved in the daily administration of criminal justice in a way scarcely envisaged just a few years ago" (Chappell and Wilson 2005, xxv).

Conclusion

My own involvement in the administration of criminal and civil justice has now come to an end, and I have returned to the UOSLS and its Institute of Criminology where I began my original journey as a criminologist more than 50 years ago. I hope that these personal reflections upon my journey since that time—linked, as they have been, to the accompanying appearance of the various editions of the ACJS—do, at the very least, convey a small sense of how, over this period, Australian criminology has taken its modern shape. I suspect, regrettably, that there will not be a seventh edition of the ACJS to continue with the journey.

Notes

1. I should note here that the "former chief stipendiary magistrate" referred to was a former student of mine during the late 1960s in the postgraduate criminology programme at UOSLS, while the justice of the High Court was the former Commonwealth Attorney-General I referred to earlier, Lionel Murphy. Lionel Murphy was ultimately acquitted of all charges brought against him (see Parliament of Australia 2016), but the former chief magistrate, Murray Farquhar, was convicted and sentenced to four years imprisonment for attempting to pervert the course of justice (National Centre of Biography 2016).

References

AIC. 1989. UN Environmental Crimes Proposal. *Criminology Australia* 1 (2): 8–9.

ALRC. 1980. *Sentencing of Federal Offenders: Interim Report ALRC 15*. Canberra: Australian Government Printing Service.

ALRC. 2016. About the ALRC. https://www.alrc.gov.au/about. Accessed 23 July.

Barry, John V. 1958. *Alexander Maconochie of Norfolk Island: A Case Study of the Pioneer in Penal Reform*. Melbourne: Oxford University Press.

Bartels, Lorana, Alyce McGovern, and Kelly Richards. 2014. Degrees of Difference? A Preliminary Study of Criminology Degrees at Australian Universities. *Australian and New Zealand Journal of Criminology* 48 (1): 119–146.

Chappell, Duncan. 1959. Conference on the Law of the Sea. *Tasmanian University Law Review* 1: 323–333.

Chappell, Duncan. Forthcoming. Shooting, Spanking, Punching and Other Matters: Reflections on the Work and Impact of the National Committee on Violence. In *Australian Violence*, ed. Julie Stubbs and Stephen Tomsen. Sydney: Federation Press.

Chappell, Duncan, and Paul Wilson (eds.). 1972. *The Australian Criminal Justice System*. Sydney: Butterworths.

Chappell, Duncan, and Paul Wilson (eds.). 1977. *The Australian Criminal Justice System*. Sydney: Butterworths.

Chappell, Duncan, and Paul Wilson (eds.). 1986. *The Australian Criminal Justice System*. Sydney: Butterworths.

Chappell, Duncan, and Paul Wilson (eds.). 1994. *The Criminal Justice System. The Mid 1990's*. Sydney: Butterworths.

Chappell, Duncan, and Paul Wilson (eds.). 2000. *Crime and the Criminal Justice System in Australia: 2000 and beyond*. Sydney: Butterworths.

Chappell, Duncan, and Paul Wilson (eds.). 2005. *Issues in Australian Crime and Criminal Justice*. Sydney: LexisNexisButterworths.

Findlay, Mark. 2000. Crime and Globalisation: An Australian Organised Crime? In *Crime and the Criminal Justice System in Australia: 2000 and beyond*, ed. Duncan Chappell, and Paul Wilson, 273–287. Sydney: Butterworths.

Finnane, Mark. 2006. The ABC of Criminology: Anita Muhl, J.V. Barry, Norval Morris and the Making of a Discipline in Australia. *British Journal of Criminology* 46: 399–422.

Finnane, Mark. 2008. Promoting the Theory and Practice of Criminology: The Australian and New Zealand Society of Criminology and Its Founding Moment. *Australian and New Zealand Journal of Criminology* 41 (2): 199–215.

Finnane, Mark. 2012. The Origins of Criminology in Australia. *Australian and New Zealand Journal of Criminology* 45 (2): 157–178.

Finnane, Mark, with the assistance of John Myrtle. 2007. *J V Barry: A Life*. Sydney: University of NSW Press.
Garland, David. 1995. Obituary F. H. McClintock. *British Journal of Criminology* 35 (1): 134–137.
Hawkins, Gordon, and Duncan Chappell. 1967. The Need for Criminology in Australia. *Australian Law Journal* 40: 307–314.
Hughes, Robert. 1988. *The Fatal Shore: A History of the Transportation of Convicts to Australia 1787–1868*. London: Pan Books.
Koch, Christopher. 1985. *The Doubleman*. London: Chatto & Windus.
Law and Justice Foundation NSW. 2016. About the Law and Justice Foundation. http://www.lawfoundation.net.au/about#goals. Accessed July 23.
Nagle, Peter, and Richard Summerrell. 2002. *Aboriginal Deaths in Custody: The Royal Commission and Its Records, 1987–1997*. Canberra: National Archives of Australia.
National Centre of Biography. 2016. Farquhar, Murray Frederick (1918–1993). http://oa.anu.edu.au/obituary/farquhar-murray-frederick-18242. Accessed 23 July.
National Committee on Violence. 1990. *Violence: Directions for Australia*. Canberra: AIC.
National Museum of Australia. 2016. Prime Ministers of Australia. Gough Whitlam. http://www.nma.gov.au/primeministers/gough_whitlam. Accessed 23 July.
Parliament of Australia. 2016. Murphy, Lionel Keith (1922–1986).http://biography.senate.gov.au/index.php/murphy-lionel-keith/. Accessed 23 July.
Roger, Hood. 1997. Professor Sir Leon Radzinowicz, LL.D, FBA: A Tribute to Mark His 90th Birthday. *British Journal of Criminology* 37 (1): i–iv.
Sallmann, Peter. 1988. Cautionary and Congratulatory Tales of the Criminological Enterprise. *Australian and New Zealand Journal of Criminology* 21 (2): 195–201.

Author Biography

Duncan Chappell is a lawyer and criminologist, Honorary Professor at the University of Sydney, past president of various tribunals, former director of the AIC, and past member of the Australian and NSW Law Reform Commissions. He has held senior academic posts in Australia, Canada, and the USA and has been a consultant to the UN and the ILO.

2

A Short History of New Zealand Criminology

James Rodgers and Philip Stenning

Criminology in New Zealand has seen continual growth since the 1960s and has contributed to public debate and academic publications, along with the development of criminal justice policy and legislation. The introduction of a dedicated Institute of Criminology at Victoria University of Wellington (VUW) was the result of a perceived need for evidence-based research focussing on crime and criminal justice in New Zealand. The institute has been the centre of criminological research for much of the past 35 years. However, the expansion of criminology teaching and research around the country has seen an influx of local and international scholars contributing to the study of crime in New Zealand. Following the establishment and growth of criminology in Wellington, programmes were developed at universities in Auckland, Christchurch, and Dunedin throughout the 1970s and 1980s. These universities continue to offer dedicated undergraduate and postgraduate degrees in criminology or criminal justice. The uptake of criminology has coincided with the increased popularity of law and order politics, as well as a louder call among academics for a public voice that emphasises evidence-based policies for the future.[1]

J. Rodgers (✉)
University of Auckland, Auckland, New Zealand
e-mail: j.rodgers@auckland.ac.nz

P. Stenning
Griffith Criminology Institute, Griffith University, Queensland, Australia
e-mail: p.stenning@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_2

Justice Sector Research and Reform

In 1961, John Robson—then Secretary for Justice—and Ralph Hanan—then Minister for Justice—played a crucial role in implementing progressive criminal justice legislation. Despite opposition from the public and government members, they encouraged Parliament to repeal capital punishment. During their tenure, the pair worked to introduce alternatives to imprisonment, with one of the most notable advancements being the introduction of periodic detention in 1962. A year later, New Zealand introduced the world's first criminal injuries compensation legislation (Cameron 1963), further emphasising the progressive and reformist efforts of Robson and Hanan. These ideals and an emphasis on evidence-based policy formed the foundation of the Institute of Criminology at VUW.

Within the justice sector, Kim Workman (Ngāti Kahungunu and Rangitāne) has been a long-standing member in a variety of roles. In 1972, he studied undergraduate criminology papers at Victoria University of Wellington under John Robson, who encouraged further engagement with criminology and emphasised reform. In 1976, Workman moved to the New Zealand Office of the Ombudsman. In 1989, he was appointed Assistant Secretary (Penal Institutions) at the Department of Justice and oversaw major penal reforms during his tenure. In 1995, Workman joined the Board of Prison Fellowship New Zealand, and in 2000, the board appointed him to the position of National Director. During this time, he continued to advocate for penal reform and campaigned for less punitive penal policies and an increased focus on restorative justice and prisoner reintegration (Workman 2008, 2011a, 2011b). He is an Honorary Adjunct Senior Research Fellow at the institute, and he was awarded an honorary degree of Doctor of Literature from VUW in May 2016.

Moana Jackson (Ngāti Kahungunu and Ngāti Porou) has been a significant contributor in the area of Māori and the criminal justice system. His seminal report *He Whaipaanga Hou: The Māori and the Criminal Justice System*—published in 1987—highlighted the failings of the New Zealand justice system with respect to Māori and offered solutions that could reduce the disproportionate rates of Māori entering the justice system, as well as their unfair treatment by the police, courts, and corrections. Jackson has also worked internationally regarding Indigenous issues, including the drafting of the UN Declaration on the Rights of Indigenous Peoples.

Te Puni Kōkiri, the Ministry of Māori Development, leads Māori public policy and advises on policy affecting Māori well-being. In 1992, it replaced

the Ministry of Māori Affairs (Manatū Māori) and the IwiTransition Agency (Te Tira Ahu Iwi). It contributes evidence-based research that informs both the public and government and monitors the adequacy of the state sector's services to Māori. Te Puni Kōkiri has produced a number of reports related to Māori and the justice system, including *Addressing the Drivers of Crime for Māori*; *A Study of the Children of Prisoners: Findings from Māori data*; and *Māori Designed, Developed and Delivered Initiatives to Reduce Māori Offending and Re-offending.* The policy analysis of Te Puni Kōkiri was strengthened by Juan Tauri, Simone Bull, and Harry Tam using criminological theory and methods. Juan Tauri worked at VUW from 1996 to 1999, moved on to AUT where he worked from 2009 to 2010 and has been Australia-based since 2011. Dr Tauri has been critical of the lack of empirical research and commentary by New Zealand criminology on Māori issues. He continues to highlight this critique and works to provide a more informed perspective of research involving Māori and New Zealand's justice system.

The Growth of Criminology in Auckland

Criminology in New Zealand was first taught at the University of Auckland (UoA) which ran a Diploma in Criminology from 1965 to 1995. Allan Nixon from the law faculty at UoA was a significant contributor to the teaching of this diploma. Nixon wanted to challenge conventional thinking about crime, namely that crime be recognised as a normal part of everyday life and wanting the understanding of who was criminal to be broadened to recognise middle-class crimes such as tax fraud. His book, *A Child's Guide to Crime* (1974), was provocative, especially when tackling the area of women and crime. Other influential teachers in UoA's criminology programme in the late 1960s and early 1970s included Bernard Brown, who later supervised Greg Newbold's PhD, and David Williams, who made a clear point about the racist justice system by handing himself over to the police for stealing a pen from UoA. He said his crime was intentional and premeditated, and he had no intention of returning the pen and should be charged with theft from his employer. This was in response to a young Pasifika male factory worker being arrested for "stealing" a plastic comb from the rejects bin at the factory where he worked.

In 2008, the area of criminology was revived at UoA with the introduction of a criminology undergraduate programme taught from within the Department of Sociology by both sociologists and criminologists (Crothers et al. 2014). The BA major in criminology was extended to include an Honours year and a Masters programme in 2011; and a still developing

PhD programme. By 2000, Dr Tracey McIntosh (Tuhoe) had joined the Department of Sociology and contributed to the academic study of Māori and the criminal justice system, and inequality and marginalisation within New Zealand. In 2009, Dr William Wood joined the department providing a focus on restorative justice, prisons, and youth crime until he accepted a position at Griffith University in Australia in 2012. In 2010, Dr James Oleson was hired to lead the criminology programme at UoA. His research focusses on psychological criminology, including high-IQ criminals, and sentencing including New Zealand's implementation of the controversial "three strikes" legislation. Professor Alan France was also appointed in 2010 and has researched extensively on youth and the life course including youth crime and youth subcultures. The year 2011 saw Dr Alice Mills and Dr David Mayeda join the department. Dr Mills focusses her attention on family reintegration, mental health in prisons, the criminal justice system, and the role of NGOs within it. Dr Mayeda's research centres on youth violence. Dr Ronald Kramer joined in 2013, researching social structures, punishment, and the construction of deviance. In the same year, Dr Robert Webb (Ngāpuhi) moved from Auckland University of Technology (AUT) to UoA, continuing his research into the experiences of Indigenous people with the justice system, crime and justice, and bio-identity and organ transplants. Dr Webb has collaborated widely regarding the involvement of Māori in the justice system, has been a co-editor of the *New Zealand Sociology* journal and an associate editor of *Kōtuitui,* and has served on the editorial board of the *MAI Journal*. In 2014, Scott Poynting was appointed professor, contributing to research on Islamophobic hate crime and state crime.[2] Finally, Dr Claire Meehan was hired in 2015 continuing with her research on the criminological aspects of sex and drugs.

The law faculty at UoA also contributed towards the study of risk with Kris Gledhill and Warren Brookbanks, and the study of Rangatahi Courts with Khylee Quince. All three have recently moved to AUT. Julia Tolmie has contributed to the research areas of criminal law, family law, and women and the law. She has been serving as chair of the Family Violence Death Review Committee since December 2011 and served as a member of the New Zealand Government's Expert Advisory Group on Family Violence in 2013.

Continuing the revival of criminology in Auckland, UoA and AUT co-hosted the 2012 ANZSOC conference with the theme "Public Criminologies: Crime, Power, and Marginalisation". This was the first significant criminology conference to be held in Auckland. It was attended by approximately 300 domestic and international academics, government employees, and community organisation members. The conference was successful in raising the profile of

New Zealand criminology, with keynote plenaries by Professor Meda Chesney-Lind, Professor John Braithwaite, and Moana Jackson.

In 2014, AUT—co-sponsored by ANZSOC—hosted the inaugural New Zealand Criminology Symposium. This event provided a forum for New Zealand researchers, practitioners, policy makers, and non-governmental organisations to discuss local criminological issues. The 2015 edition of the symposium was again held at AUT, and in 2016, the event was hosted by UoA.

At AUT, the BA major in Criminology was spearheaded by the efforts of Dr Robert Webb, who joined AUT in 2000, and Dr John Buttle, who joined in 2006. The AUT criminology curriculum bridges the gap between critical thinking about the criminal justice system and an industry focus in order to equip students for the future challenges in crime policy and justice practice. It includes an emphasis on restorative justice and features a comprehensive work placement component for final year undergraduate students. Dr Buttle has continued his work on the police use of force and police reform and has extended his research to include both the New Zealand and Indonesian context. He is often engaged with the media and the public regarding debates around the police, most recently regarding the potential to regularly arm police in New Zealand. Dr Antje Deckert joined AUT in 2009, expanding the number of criminologists within the School of Social Sciences and Public Policy. Dr Deckert's research offers a counter-colonial critique on criminology's contribution to the marginalisation and mass incarceration of Indigenous peoples. Dr Deckert initiated and convened the first New Zealand Criminology Symposium at AUT and is currently serving her second term as ANZSOC's New Zealand Vice President. Critical reflections on practices regarding child witnesses in the criminal courts and evidence-based proposals for improving court processes are a core research focus for Dr Kirsten Hanna. Dr Laumua Tunufa'i warns about the consequences of publicly demonising or ridiculing Samoan youth gangs and maps out the impending growth of New Zealand's Samoan population and how this will affect the criminal justice landscape. Researchers at AUT engage closely with flax-roots organisations that pursue social justice on their own terms.

Criminology at Victoria University of Wellington

VUW initiated its criminology teaching programme in 1968. In September 1969, Neil Cameron wrote to the *Australian and New Zealand Journal of Criminology* (Cameron 1969) to inform readers that a position had been created to teach criminology.

In 1970, Dr John Robson was appointed as a Visiting Fellow at VUW with overall responsibility for the criminology programme. Dr Robson was known for his progressive views towards criminal justice and penal policy. With strong support from Professor John Edwards, who had become the Founding Director of the Centre for Criminology at the University of Toronto in Canada in 1963, Dr Robson became a tireless advocate for ensuring that criminal justice policy was based on sound research rather than political ideology or popular clamour (Robson 1987). During his first 5 years as a Visiting Fellow, he urged VUW to establish a criminology research institute. The upshot was a decision in 1974 to establish the Institute of Criminology at VUW with Robson as its first director. As was later described in the institute's thirtieth-anniversary publication (Institute of Criminology 2005, 6):

> Three fundamental principles guided the Institute's conception and development: it had to be palpably independent from government; it was to give as much, if not more, priority to research as to teaching; and it was to be an institution through which scholarship from many disciplines were brought to bear on criminological issues and problems (social statistics, sociology, psychology and criminal law were specifically mentioned at that time).

With Dr Robson's assistance and the support of the Minister of Justice, the Commissioner of Police, and the Director General of Social Welfare, the Vice Chancellor secured government commitment to fund the institute, which officially opened its doors on 1 January 1975. The institute's staff consisted of Dr Robson as director, one senior lecturer, and two research officers.

Dr Robson was director of the institute for its first 5 years and oversaw the teaching of the criminology programme in the BA degree, as well as the development of a substantial programme of research, which included research on the news media and criminal justice (Robson 1976), values and criminal justice (Robson 1977a), the prerogative of mercy (Burnett 1977), the role of the New Zealand Ombudsman (Robson 1977b), and the history of penal transportation in New Zealand (Burnett 1978).

Dr Robson was succeeded as director by Professor Warren Young, who served in that position from 1980 to 1993. Professor Young described his term as the institute's director as building upon the foundation laid by Dr Robson, including the establishment of a major in criminology within the BA degree, the enrolment of the first postgraduate students, and an expanded research scope (Institute of Criminology 2005, 7). Professor Young noted the important balance of applied research and links with government agencies that had been strengthened during his time as director.

Significant scholars who joined the institute during Professor Young's term as director and became leading criminologists in New Zealand included Allison Morris, Jan Jordan, and John Pratt. Between 1980 and 1993, the institute published 14 books and major research reports on topics such as gangs, rape, the role of alcohol in violence, the prosecution process, policing, criminal justice policy, juvenile justice, the social effects of imprisonment on prisoners and their children, art in prison, crime surveys, prostitution, adult pre-trial diversion, and the history of punishment.[3]

On the teaching side, the institute established a Certificate in Criminology programme for practitioners in criminal justice and in related departments and agencies in 1982. Its first Masters student was enrolled in 1984 and its first PhD student in 1988. In 1992, the institute introduced an undergraduate major in criminology.

In 1993, Professor Young resigned from the directorship to take up the position of Deputy Secretary for Justice in the New Zealand government. He served as the Deputy President of the NZ Law Commission from 2004 to 2011 and was awarded the Insignia of a Companion of the Queen's Service Order for services to the law in 2015.

Professor Young was succeeded as director by Professor Allison Morris, who served in that position until 2002. The institute's research and teaching programmes—especially its postgraduate programmes—expanded significantly during her tenure. Its first PhD student graduated in 1996. On the research side, the most significant development was the establishment of the Crime and Justice Research Centre (CJRC) in 2002. As an applied, policy-focussed research centre, it undertook contract research for government and non-government clients. Its first director was Dr Gabrielle Maxwell, who had previously been a member of the research team in the Office of the Commissioner for Children in the Department of Justice and had joined the institute to head up its contract research group in 1996. The centre's second full-time member was Dr Venezia Kingi, who had also worked at the Office of the Commissioner for Children, joined the institute staff in 1999, and graduated with a PhD 1 year later.

Professor Morris and Dr Maxwell pursued a long and successful research collaboration during the 1990s and early 2000s, focussing on developments in youth justice and restorative justice in particular. They soon became recognised as world-class scholars in this field of research and policy. Equally importantly, they undertook the first national victimisation survey in New Zealand in 1996. The second such survey was conducted in 2001.

In 1996, VUW hosted the eleventh Annual Conference of the Australian and New Zealand Society of Criminology for the first time. The following

year, Dr John Pratt was appointed as editor of the *Australian and New Zealand Journal of Criminology*, a position which he held for the next 7 years. In the same year, he became the first criminologist in New Zealand to be awarded one of the prestigious Royal Society of New Zealand's Marsden Fund Research Grants. In 2003, he was appointed to a Personal Chair in criminology at VUW.

On the teaching side, the institute introduced its Honours programme in 1995 with the expectation that this would be a pipeline into the PhD programme. In 2001, following negotiations with the government and NZ Police, the institute introduced its first undergraduate distance learning course as a component of its Certificate in Community Policing programme under the Victoria Police Education Programme (VPEP), through which serving police officers could gain a tertiary education qualification.

In 2002, Professor Morris resigned as the director of the institute and was succeeded by Professor Philip Stenning from Canada. In 2003, Dr Maxwell resigned as Director of the CJRC, and Ms Judy Paulin, who had been the Director of the Ministry of Justice's Research and Evaluation Unit since 1988, was appointed as acting director. The following year, Ms Pat MayhewOBE, formerly the Programme Director in the Research, Statistics and Development Directorate at the Home Office in Britain, was appointed as the second permanent Director of the CJRC. She led the third National Survey of Crime Victims in 2005.

The institute's research and teaching programmes continued to grow in the mid-2000s, despite an economic environment in which cutbacks were the order of the day. By 2005, the institute had a full-time staff of seven, and the CJRC a full-time staff of five, as well as a number of associates in other institutions and the private sector who participated in its contract research. By the end of 2005, when Professor Stenning resigned to take up a chair at Keele University in the UK, the institute had graduated 11 PhD students, thus developing a critical mass of criminological scholars in New Zealand, with the institute as the lead institution in the field. Also in 2005, the institute hosted —for the second time—the Annual Conference of the Australian and New Zealand Society of Criminology, at which one of its lecturers, Dr Elizabeth Stanley, was awarded ANZSOC's Young Scholar Prize. In 2006, Dr Mike Rowe from the UK took over as director of the institute. He held this position for 3 years, after which Associate Professor Jan Jordan took over for 1 year in 2010.

Dr Michael Roguski (Te Atiawa and Tūwharetoa) became Director of the CJRC in 2010, but the following year the centre was disestablished despite some opposition within the university and the public and private sectors.

In the same year, the Victoria Police Education Programme was also closed down. In 2012, Dr Julian Buchanan was appointed as the seventh director of the institute, a position which he held for 2 years until succeeded by Professor John Pratt. Meanwhile, Associate Professor Jan Jordan was appointed to the new position of Programme Director, to oversee the teaching programme. Reader in Criminology Elizabeth Stanley succeeded Professor Pratt as the institute's director in 2016.

In recent years, several of the institute's staff have been recipients of prestigious research grant awards. In 2009, in collaboration with Dr Antonia Lyons and Associate Professor Timothy McCreanor at Massey University, Dr Fiona Hutton was the recipient of a Marsden Fund Award to pursue research on young adult drinking and celebrity culture. In 2013, Reader Elizabeth Stanley was the recipient of a Rutherford Discovery Fellowship to pursue her research on the observance and curtailment of human rights in New Zealand, and Associate Professor Jan Jordan won a Marsden Fund Award in 2014 to pursue her research on an exploration of how the processes of silencing and objectification serve as barriers to change. The following year, Professor Pratt received another Marsden Fund Award, this time, to study "The Search for Security in an Age of Anxiety".

Between 2006 and 2016, eight PhD students and 22 MA students graduated from the institute, and the institute expanded its teaching programme with a first-year course, which led to an increase in the number of students enrolled in the degree programme. Recent growth at the institute has seen Dr Sarah Wright, Dr Lynzi Armstrong, Dr Liam Martin, and Professor Simon Mackenzie join its staff between 2014 and 2016, bringing its current staff complement to ten.

Criminology at the University of Canterbury

In 1971, the law faculty at the University of Canterbury (UC) offered a criminology paper that was marked as "may not be taught" until it became a permanent offering in 1975, and was taught until the 1990s. In 1976, a paper on the sociology of deviance was taught for a single year and was revived in 1983 taught by Robert Gidlow and later by Richard Thompson. In 1988, Greg Newbold accepted a position at UC and began teaching papers focussing on criminology, the criminal justice system, and penal history in New Zealand. This was the foundation of a larger criminology programme and aligned with Newbold's work outside the university as a consultant for the government on criminal justice policy and voluntary work with prisoners.

Professor Newbold has remained at UC since 1988 and has helped to develop the Bachelor of Criminal Justice there. His books *Punishment and Politics*, *Crime and Deviance*, *Crime in New Zealand*, *The Problem of Prisons*, and *Crime, Law and Justice in New Zealand* mark important contributions to the study of criminology in New Zealand.

UC introduced a Bachelor of Criminal Justice (BCJ) in 2014, which has proven to be popular and has helped to revive student numbers at UC following the devastating earthquakes in 2010 and 2011.[4] A recent addition to criminology at UC is Jarrod Gilbert, who spent many years studying gangs in New Zealand and released an important text titled *Patched: The History of Gangs in New Zealand*. Dr. Gilbert joined UC in 2015 to teach part of the BCJ, which is taught out of different disciplinary areas reflecting a desire to introduce a practical degree for students who wish to have a career in criminal justice. Dr Gilbert's research into gangs in New Zealand was inhibited by the NZ Police in 2015, who had determined him to be unfit to access basic police data because of his association with gangs (Gilbert 2015).

Criminology at Massey University

For 26 consecutive years, Massey University offered a Diploma in Police Studies. This was first offered in 1981 under the stewardship of David Burns and continued for full-time, part-time, and extramural students until 2007. There was a significant relationship between Massey and the NZ Police in relation to the diploma, with intentions to offer an applied perspective on policing in New Zealand, as well as drawing upon international trends and examples of best practice.

Dr Shirley Julich, a senior lecturer at Massey University, has made significant contributions to the study of restorative justice in New Zealand in particular through her involvement with Project Restore. This service "aims to provide victim-survivors with an experience of a sense of justice, support offenders to understand the impacts of their behaviour and to facilitate the development of an action plan" (Julich et al. 2011, 223). This work highlights positive partnerships and collaboration between academic research and applied social services related to restorative justice.

Longitudinal Studies, Antisocial Behaviour, and Human Development

The study of antisocial behaviour and its link to mental health in New Zealand was furthered by Professor Terri Moffitt, who serves as the Associate Director to the Dunedin Study, as well as being Professor of Psychology and Neuroscience at Duke University. Professor Moffitt joined the Dunedin Study in 1985 to obtain a clearer picture of offending by young people by administering self-report surveys. This work was well received by the Institute of Criminology at VUW, as well as the NZ Police. Professor Moffitt's work has highlighted the links between environment, genetics, and antisocial behaviour, and has contributed to the field of developmental criminology within New Zealand.

In a similar area, Emeritus Professor David Fergusson from the University of Otago founded the Christchurch Health and Development Study, a 35-year study of a birth cohort of 1265 children born in the Christchurch region in mid-1977. This study produced numerous findings related to antisocial behaviour, crime, sociology, and human development (Fergusson et al. 2015). Professor Fergusson is also known for his research on domestic violence in New Zealand (Marie et al. 2008). He retired from the University of Otago in 2015 but has since been working as a consultant for the Ministry of Social Development.

Public Criminology and Populist Rhetoric

During the shift towards neoliberalism and market reform in the 1980s, the state called less and less upon the expertise of criminologists. The government would respond to popular opinion with legislation rather than consult evidence-based research. At that time, New Zealand was following the trend of other Western countries of ratcheting up law and order politics. This was described by Pratt and Clark (2005, 304) as follows:

> Indeed, rather than trying to find resonance with the public mood when it suits them, politicians may be led by extraparliamentary forces which claim to speak on behalf of the public at large. In these respects, various lobby and pressure groups, usually coalescing around single issue politics and drawing on grass roots support, while deliberately eschewing advice from academics or penal officials, represent something more substantive than mere ethereal sentiment or mood:

> they can become, under certain circumstances, part of the democratic process itself, ensuring that law and order issues become central to political agendas.

The populist rhetoric around law and order that started in the 1980s continued through to the early 2000s. One of its consequences was the formation of the Sensible Sentencing Trust (SST), New Zealand's largest justice reform and victim advocacy group. Formed in 2001 by Garth McVicar, the SST takes a conservative and populist approach to issues within the criminal justice system advocating for tougher bail conditions, longer prison sentences, and increased surveillance of violent and sexual offenders. In an effort to respond to the populist lobbying of groups such as the SST, Kim Workman and Campbell Roberts formed Rethinking Crime and Punishment (RCP) in 2006. The intention of this initiative was to give a greater voice to criminological research in New Zealand. It was supported by the Robson Hanan Trust, named after John Robson and Ralph Hanan. JustSpeak—an offshoot of RCP—was formed in 2011 to focus on youth issues in the criminal justice system. In December 2015, it was announced that Rethinking Crime and Punishment would be dissolved into JustSpeak with Kim Workman continuing his support as a board member and a strategic advisor (JustSpeak 2015).

The Australian and New Zealand Society of Criminology

ANZSOC has played an important role in bringing together researchers and criminal justice practitioners from Australia and New Zealand. Their key publications—the *Australian and New Zealand Journal of Criminology* and the *PacifiCrim* newsletter—continue to provide international exposure to the research being conducted by New Zealand scholars. ANZSOC has contributed to the growth of criminology within New Zealand by funding postgraduate students to attend the annual conference through the New Zealand Student Award for Best Abstract and by encouraging New Zealand universities to host the ANZSOC conference approximately every 6 years.

Conclusion

Criminology in New Zealand has grown into a vibrant and productive area within the academic landscape. Important contributions by established faculty have been made, both domestically and abroad, that advance the academic understanding of criminology, as well as informing policy decisions that have real policy impact. Criminology in New Zealand has shown continual involvement with both local and international scholarship, providing a broad range of perspectives and insights, particularly in the areas of restorative justice, victim studies, Indigenous justice, and developmental criminology. The pipeline of postgraduate students from a variety of different universities testifies to the quality of programmes and supervision. The continuation of events such as the New Zealand Criminology Symposium has increased opportunities for collaboration between academic departments and those organisations who operate outside of the academy. From the early beginnings with John Robson, the history of New Zealand criminology has demonstrated a strong emphasis on public criminology and an engagement by the experts on crime and criminal justice to highlight how evidence-based research can inform and contribute to the wider public discourse. Continuing with this focus and noting the impressive growth of criminology in New Zealand during the last half century, the future of the discipline within New Zealand appears stable and bright.

Notes

1. This chapter outlines a brief history of New Zealand criminology. The limitations of a book chapter mean that not all individuals involved with New Zealand criminology have been mentioned; however, the importance of their contributions to the field is gratefully acknowledged. The information gathered for this article was sourced primarily from current and former faculty members of their respective universities. In addition, key figures identified from their contributions towards the study of crime and justice in New Zealand also provided insight into the history of criminology in New Zealand. Best efforts were made to corroborate dates with appropriate university documents such as historical academic calendars.
2. Professor Poynting resigned from UoA in 2016.
3. A full list of the institute's key publications during its first 30 years can be found in *Institute of Criminology/Te Pou Haratūtanga*, 2005, 22–24.
4. On 4 September 2010, Christchurch was struck by a magnitude 7.1 earthquake, which caused significant liquefaction and damage. This was

followed by a magnitude 6.3 earthquake on 22 February 2011. The second earthquake caused further significant damage across Christchurch, killing 185 people. It was New Zealand's third deadliest natural disaster. One result of these earthquakes was significant population movement away from Christchurch, which affected businesses, schools, and the University of Canterbury.

References

Burnett, Robert. 1977. *Executive Discretion & Criminal Justice: The Prerogative of Mercy: New Zealand 1840–1853*. Wellington: VUW.

Burnett, Robert. 1978. *Penal Transportation: An Episode in New Zealand History*. Wellington: VUW.

Cameron, Bruce J. 1963. Compensation for Victims of Crime: The New Zealand Experiment. *Journal of Public Law* 12: 367–368.

Cameron, Neil. 1969. Notes. *Australian and New Zealand Journal of Criminology* 2 (3): 192.

Crothers, Charles, Cluny Macpherson, and Steve Matthewman. 2014. History of Auckland Sociology Department (together with AUT). *New Zealand Sociology* 29 (4): 3–26.

Fergusson, David M., Joseph M. Boden, and L. John Horwood. 2015. From Evidence to Policy: Findings from the Christchurch Health and Development Study. *Australian and New Zealand Journal of Criminology* 48 (3): 386–408.

Gilbert, Jarrod. 2015. The Police Have Deemed Me Unfit to Undertake Crime Research Because I Know Criminals. *New Zealand Herald*, November 25.

Institute of Criminology. 2005. *The Face of Criminology in New Zealand: Thirty Years 1975–2005*. Wellington: VUW.

Julich, Shirley, Kim McGregor, Jennifer Annan, and Fiona Landon. 2011. Yes, There Is Another Way. *Canterbury Law Review* 17: 222.

JustSpeak. 2015. *Christmas Newsletter 2015*. Wellington: JustSpeak.

Marie, Dannette, David M. Fergusson, and Joseph M. Boden. 2008. Ethnic Identity and Intimate Partner Violence in a New Zealand Birth Cohort. *Social Policy Journal of New Zealand* 33: 126–145.

Nixon, Allen J. 1974. *A Child's Guide to Crime: New Perspectives on Criminology*. Sydney: Angus and Robertson.

Pratt, John, and Marie Clark. 2005. Penal Populism in New Zealand. *Punishment and Society* 7 (3): 303–322.

Robson, John. 1976. *The News Media and Criminal Justice*. Wellington: VUW.

Robson, John. 1977a. *Values and Criminal Justice*. Wellington: VUW.

Robson, John. 1977b. *Law and Administration*. Wellington: VUW.

Robson, John. 1987. *Sacred Cows and Rogue Elephants: Policy Development in the New Zealand Justice Department*. Wellington: Government Printing Office.
Workman, Kim. 2008. The Future of Restorative Justice: Control, Co-option and Cooperation. Paper presented at Restorative Justice Annual Conference, September 11, in Hamilton.
Workman, Kim. 2011a. *Māori Offenders, Whānau and Prisoner Reintegration*. Wellington: Robson Hanan Trust.
Workman, Kim. 2011b. Prisoner Reintegration in New Zealand—The Past and a Possible Future. Paper presented at The 5th Restorative Justice Aotearoa Conference and the 3rd Restorative Practices International Annual Conference, November 23–27, in Wellington.

Author Biographies

Dr. James Rodgers is a Professional Teaching Fellow at the University of Auckland. His research investigates the role of prison museums as educators of prisons and punishment, what narratives these sites present, and whether they have any humanising effect on the tourists who visit them.

Philip Stenning is an adjunct professor with the Griffith Criminology Institute, Griffith University, Queensland and Honorary Professor, School of Applied Human Sciences, University of KwaZulu-Natal, Durban, South Africa. From January 2003 to December 2005 he was Director of the Institute of Criminology at VUW. His main research interests are in the areas of policing, prosecution processes, and Indigenous justice issues. In 2008 he published *The Modern Prosecution Process in New Zealand* (VUW Press).

3

Public Sector Criminological Research

Russell G. Smith

Although criminology is popularly perceived to be an academic discipline devoted to understand the causes and prevention of crime, its roots lie in work carried out by public servants in nineteenth-century Europe. In 1827, criminal statistics began to appear in France. These were then analysed in great detail in order to discover relationships between crime and variables such as age, gender, education, occupation, race, and even climate and seasons of the year (Martin et al. 1990). The desire to undertake research of this kind required access to groups of potential subjects who could be studied using these new methods, and those working in government were ideally placed to study prisoners, soldiers, and others under public sector control. For example, Lombroso (1911), an Italian army physician in the 1860s, was able to study a large cohort of soldiers, leading to the development of his atavistic understanding of criminality. More recently, so-called administrative criminology—that was often descriptive and sometimes methodologically flawed—displayed some of the hallmarks of Lombroso's work. Nonetheless, it occupied public servants for a century and a half, however, not without criticism. Goring (1913, 15) said of Lombroso's research in 1913 that "it is an organised system of self-evident confusion whose parallel is only to be found in the astrology, alchemy and other credulities of the Middle Ages". Positivism is also problematic because it fits well into totalitarian patterns of government and could be used to justify racism and to engender inequities based on evolutionary principles.

R.G. Smith (✉)
Australian Institute of Criminology, Canberra, ACT, Australia
e-mail: Russell.Smith@aic.gov.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_3

This chapter seeks to explore how criminological research in the public sector developed in Australia during the last half century, what benefits it has provided, and whether the community has received value for the funds expended. The AIC will be used as a case study to illustrate the pressures facing those who have sought to carry out crime and justice research in the public sector, whether or not there remains a need for criminologists to be employed by the government, and what 50 years of work have achieved.

The Reach of Criminological Research in the Public Sector

How have public servants in more recent times—and in Australia in particular—fared in conducting criminological research? Have they fallen into the pitfalls that plagued the work of the early biological determinists and their followers? The work undertaken by criminologists in government has continued to attract criticism (see Carson and O'Malley 1989). In the UK, Morgan and Hough (2007, 54) described most Home Office-funded criminological research as being "almost entirely atheoretical *fact gathering* … [it] is *narrowly focussed*—generally on a recent spending or administrative initiative or piece of legislation; and is designed to be, and in its final product invariably is, *policy-friendly*". Patricia Mayhew mounted a robust defence to these charges. When she received the Stockholm Prize in Criminology together with Ronald V. Clarke in 2015, she concluded that "administrative criminologists working *with* government may have a more effective voice than those who simply choose to shout at the side lines" (Mayhew 2016, 9).

In order to understand the reach of criminological research in the public sector, we need to begin by considering its definition and scope. The *Criminology Research Act 1971 (Cth)*—the legislation that established the AIC—defines criminological research as "research in connexion with: the causes, correction and prevention of criminal behaviour; and any related matter". The more recent *Australian Crime Commission Amendment (Criminology Research) Bill 2016 (Cth)*—that sought to repeal the 1971 Act—revised the definition of criminological research to "research in connection with: the causes, consequences, correction and prevention of criminal behaviour; and any related matter". This provided a wide ambit for research to be conducted by government-employed criminologists.

Prior to the establishment of the AIC, individuals with an interest in conducting criminological research found employment in a wide range of government entities. This was, in part, due to the interdisciplinary nature of criminology. In Australia, criminology is not a statutorily regulated profession, meaning that anyone is at liberty to engage in criminological research and can call themselves a "criminologist" without having to demonstrate prescribed standards of education and ethical conduct. As such, it is possible to find individuals engaging in criminological research in many areas of both the public and private sectors.

In the public sector, the principal workplaces for criminologists are in dedicated criminological research agencies such as the AIC; criminal justice entities such as law enforcement, prosecution, judicial and correctional agencies; and in departments with specific interests in crime-related issues such as those administering law, finance, revenue, Indigenous policy, welfare policy, gender equality issues, education, and youth affairs. Criminologists have also found opportunities working in anti-corruption commissions, law reform commissions, legal aid offices, parliamentary committees, and regulatory agencies.

In the private sector, criminologists may be found working for charitable organisations; policy think tanks; political parties; the media; union administration; the legal and accounting professions; and increasingly in business consultancy and market research organisations that engage in risk assessments, policy reviews, evaluations, and survey research.

At the intersection of public and private sectors, sit universities and other tertiary educational institutions that receive funding from both government and non-government sources such as student fees, research grants, and other entrepreneurial activities. Universities provide a base for most criminologists today.

ANZSOC Membership

One way to determine where criminologists work is to examine the membership records of ANZSOC. The society was formed in 1967, and its membership includes individuals with a demonstrated commitment to criminology in their working lives. In the early years of the society—before undergraduate academic programmes in criminology were prevalent—criminologists were, on the whole, those with a professional interest in crime and justice issues from a medico-legal stance, or those working in criminal justice

agencies. Over time, scholarly interest in the fledgeling discipline grew among both academics and university students.

An indication of this growth can be found by examining the membership records of ANZSOC. The membership lists for 1970, 2003, and 2016 are used to determine the type of institutions or agencies to which members were attached. Of course, others who have chosen not to become ANZSOC members could well describe themselves as criminologists. Hence, the data cannot claim to be fully representative of the discipline at the dates chosen.

The primary institutional and occupational affiliation of ANZSOC members is shown in Fig. 3.1. In 2016, the vast majority was in the tertiary education sector with 44.3% academics and 26% students.

Figure 3.1 records each ANZSOC member's primary institutional and occupational affiliation in terms of where they spent the majority of their working time. In terms of change over time, the most obvious increase has been in academics and students, predominantly due to the tertiary education sector now offering dedicated courses in criminology. Between 1970 and 2016, there was also a substantial decline in members from correctional and probation services, the legal profession, and policing; fields of endeavour that were all keenly involved in creating the discipline and ANZSOC in the mid-1960s.

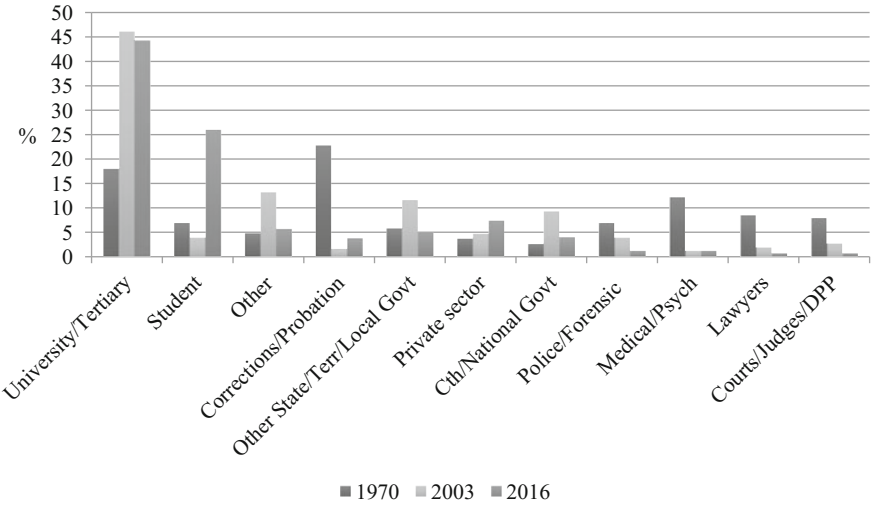


Fig. 3.1 Primary institutional and occupational affiliation of ANZSOC members in 1970, 2003, and 2016. *Source* ANZSOC membership records

In terms of representation among Commonwealth and overseas national agencies, this increased gradually between 1970 and 2003, then declined to its current level of 17 members who mainly work at the AIC and Australian Federal Police (AFP) in Canberra. In the states and territories, most members work with justice agencies such as BOCSAR, police, and correctional agencies.

Criminological Research Institutions

Throughout the last half century, governments have determined to foster and support criminological research by creating a number of dedicated agencies. Their aims and antecedents have been diverse. Some arose from internal political pressures, some from the efforts of individuals and groups with a particular interest, and others were created in order to ensure that research could focus on their own specific geographical crime problems.

The first government-funded, dedicated criminological research agency in Australia was BOCSAR, established in Sydney in 1969. It was created to identify factors that affect the distribution and frequency of crime in NSW; to identify factors that affect the effectiveness, efficiency, or equity of the NSW criminal justice system; and to ensure that information on these factors and on crime and justice trends is available and accessible to its clients (BOCSAR 2016).

In South Australia, OCSAR was established within the Attorney-General's Department in 1978. It is responsible for research into and the monitoring of crime trends and the criminal justice system within South Australia. Like BOCSAR, it seeks to provide timely, accurate, and comprehensive statistical information on crime and criminal justice; to conduct research into crime and criminal justice issues; and to disseminate information on crime and criminal justice to the government, members of parliament, relevant agencies, and the community (OCSAR 2016).

In Victoria, criminological research has been conducted in a variety of state agencies including the Department of Justice, police, and—more recently—the newly established CSA, created by the *Crime Statistics Act 2014 (Vic)*. In addition, Parliamentary Committees dealing with law reform, road safety, drug control, and crime prevention have engaged in research in connection with a diverse range of matters referred by Parliament for inquiry.

The Commonwealth government has also shown a willingness to establish dedicated research institutions that deal with criminal justice questions. In addition to the AIC, the AIHW was established as a statutory authority in

1987 to report to the nation on the state of its health. In 1992, its role and functions were expanded to include welfare-related information and statistics. Over time, the institute has examined a range of crime-related topics including drug abuse, child protection, homelessness, Indigenous disadvantage, and youth justice issues.

The other principal Commonwealth research agency with functions relevant to crime and justice is the Australian Institute of Family Studies (AIFS). It seeks to increase understanding of factors that affect how Australian families function. Established in February 1980, some of AIFS's criminological research has related to child protection, family and sexual violence prevention, and gambling addiction.

Anti-corruption Agencies

Considerable policy-focussed research has also been conducted by anti-corruption commissions. Created in 1989, the ICAC was the first anti-corruption agency in Australia. In addition to investigating alleged corruption, it has employed criminologists to conduct research into the nature, extent, and prevention of corruption. All other states have followed suit and established anti-corruption commissions with varying jurisdictional scope. There are also dedicated police anti-corruption agencies such as the NSW Police Integrity Commission. The latter was established in 1996 on the recommendation of the Royal Commission into the NSW Police Service, and the South Australian Office for Public Integrity that commenced in 2013. At the Commonwealth level, anti-corruption research and research into misconduct in the public sector have also been carried out by the office of the Integrity Commissioner, the Australian Commission for Law Enforcement Integrity, the Australian Public Service Commission, the Commonwealth Ombudsman, the AFP, and—of course—the AIC and the Australian Criminal Intelligence Commission (ACIC).

Other criminologists are spread throughout the public sector, being located in departments with relevant functions including welfare, Indigenous policy, counterterrorism, financial intelligence, and revenue collection.

The AIC and the Challenges of Public Sector Criminology

In the mid-1960s, Sir John Barry—a Justice of the Supreme Court of Victoria and prominent supporter of penal and criminal justice reform—recommended that the Commonwealth government establishes an Australian Institute of Criminal and Penal Science to be funded and maintained by the Commonwealth (Loof 1979). After a period of intense lobbying and negotiation, the government eventually heeded the concerns of bureaucrats, academics, and criminal justice policymakers regarding the paucity of national crime statistics and research, and introduced legislation to establish the AIC in 1971.

Funding

On 6 April 1971, the *Criminology Research Act 1971 (Cth)* received royal assent, and the AIC began life as a statutory authority of the Commonwealth with a Board of Management composed of three members appointed by the Commonwealth Attorney-General and three members representing the states. Initial funding of AUD 40,000 was provided by an Australian government grant for the first year of operations.

One of the enduring issues concerning the AIC has been the level of funding provided by the government and whether this was sufficient to enable

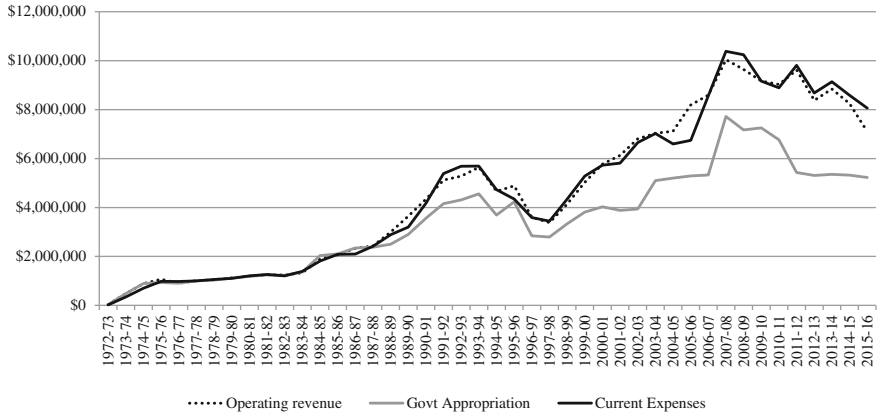


Fig. 3.2 Revenue and expenses of the AIC, 1972/1973–2015/2016 (AUD). *Source* AIC *Annual Reports* AIC 1973–2016

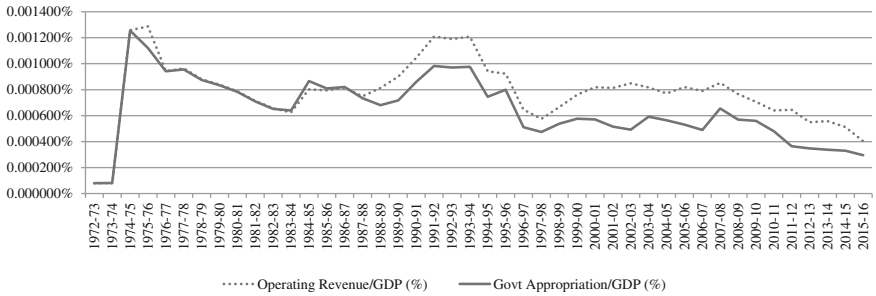


Fig. 3.3 Operating revenue and government appropriation of the AIC, 1972/1972–2015/2016 as a percentage of national GDP. *Source* AIC *Annual Reports* 1973–2016

it to fulfil its objectives. As a small statutory authority, the AIC's core funding had to provide for infrastructure such as rental and information technology, personnel costs, and the costs of undertaking and disseminating research. During the first decade, the Commonwealth provided funds that largely met all these expenses, as shown in Fig. 3.2.

From the late 1980s, however, expenditure began to exceed government appropriation, with the shortfall being largely met from fee-for-service consulting work undertaken for other government entities and the private sector. In some years, a substantial deficit was recorded, such as in 2008–2009 when current expenses exceeded operating revenue by almost AUD 600,000. In 2005–2006, however, a surplus of more than AUD 1.4 million was recorded. The reasons for these variations were due to changes in staffing as well as infrastructure costs such as the overly expensive premises rented prior to 1995 (Tanzer et al. 1994).

In terms of the value of funds provided by the government and from consultancies, there was an overall decline in funding available as a percentage of national GDP throughout the AIC's history as is apparent from Fig. 3.3.

Revenue as a percentage of GDP declined during the first decade and then increased gradually to peak in 1993–1994. The AIC then experienced a substantial decline in government appropriation following a review of its operations (Geis 1994; James and Sutton 1994) with funding never returning to the same level as a percentage of GDP. Nonetheless, the institute continued to expand due to a large increase in fee-for-service revenue. However, this, too, began to decline in 2007–2008. In 2015–2016, both government appropriation and total operating revenue as a percentage of GDP were the lowest they have ever been. Between 1972/1973 and 2015/2016, total government appropriation amounted to AUD 151 million, with an additional

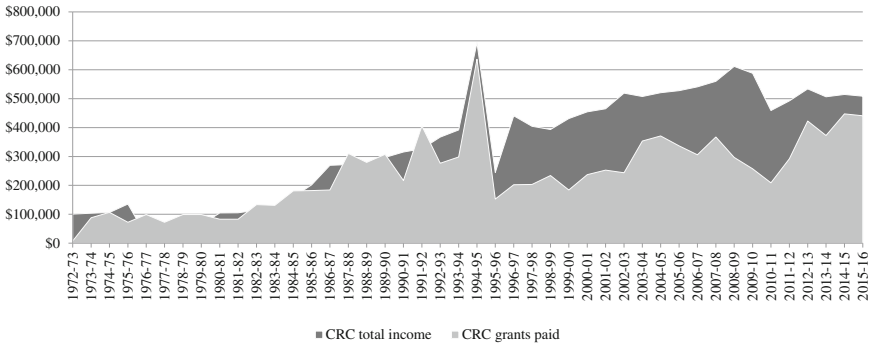


Fig. 3.4 CRC income and grants funding provided, 1972/1973–2015/2016 (AUD). *Source* CRC *Annual Reports* 1973–2016

AUD 51.4 million provided from fee-for-service and other sources, making a total of more than AUD 203 million.

The *Criminology Research Act 1971 (Cth)* also established the CRC that was charged with administering a research fund made up of contributions from all jurisdictions. The aim was for the AIC to conduct criminological research and training and for the CRC to provide funds by way of a grants programme for academics and others to undertake research of national policy relevance for Australia as a whole. CRC net government funding increased from an initial annual amount of AUD 100,000 to over AUD 400,000 in 2015/2016. In 1994/1995—at a time when the AIC budget had been reduced substantially—the largest amount of CRC research funding (AUD 663,000) was provided. Additional funding was secured from investment returns and other sources. Figure 3.4 shows the total income received by the CRC and the amounts provided for research grants each year.

Following the large reduction in funding for both the AIC and CRC in 1995/1996, the gap between total income and funds provided for research grants widened. This was due to an increase in CRC administrative costs and also reflected the fact that some funds were provided out of the fund for research consultancies conducted by AIC staff. Total CRC income between 1972/1973 and 2015/2016 amounted to AUD 15.4 million, with AUD 11 million in grants provided to research applicants, mostly based in universities. In total, therefore, AUD 218 million was available to both the AIC and CRC to fund their operational, personnel, and research costs.



Image. 3.1 AIC staff, 1973. Back from left: Bill Miller, Harold Weir, Diana Solman, Pat Riley (Library), Peggy Walsh, Jean Willoughby, Adam Browne (Publications), Peter Kay. Front from left: Joan Swan, Anne Wright, Judge Muirhead, Robyn Zebo, Mary McLean (Training). *Source* AIC Archives, Canberra

Staffing

On 1 February 1973, Judge J H Muirhead, then of the Adelaide Local and District Criminal Court, was appointed acting director of the AIC. Judge Muirhead started work at an office in Canberra in 1973, and oversaw some of the early research conducted by the small staff of three senior criminologists, Harold Weir, David Biles, and Mary Daunton-Fear (See Image 3.1).

Since its establishment, total AIC staff numbers increased gradually, peaking in 2008/2009 when 64 staff were employed, of whom 39 were engaged in criminological research. Staffing numbers generally followed the fiscal fortunes of the institute, with a dramatic decline in the mid-1990s, which left eight research staff employed as of 30 June 1997. As is apparent from Fig. 3.5, the number of research staff comprised approximately one-third of all staff, with others having executive, administrative, financial, library, and publishing functions. The output of these researchers was, on the

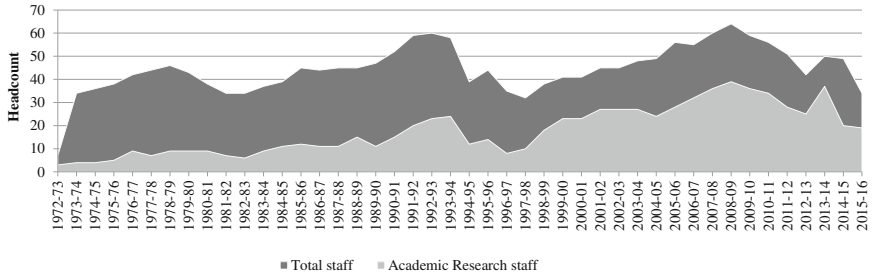


Fig. 3.5 Total AIC staff numbers and academic research staff, 1972/1973–2015/2016 (headcount at 30 June). *Source* AIC *Annual Reports* 1973–2016, Canberra.*Note* Estimated numbers for total staff in 1974–1979 and academic research staff in 2005–2008 and 2009–2010

whole, substantial each year. Throughout its history, over 1000 research reports and papers were published. In addition, AIC staff collaborated with university academics and industry analysts to publish numerous commercial criminology texts as well as journal articles and consultancy reports.

Attracting qualified and experienced researchers to work at the AIC has always been difficult, with many potential candidates being unable to move to Canberra from other cities, and some being unwilling to leave the "freedom" of the academy for the "confines" of the public sector. Nonetheless, the AIC attracted and retained a number of highly qualified scholars, many of whom left to take up professorial positions in universities. The AIC has also been a training ground for younger criminologists, with junior staff receiving practical training in data and policy analysis that equipped them for other positions in government, teaching, or industry. On a regular basis, the institute organised major conferences as well as numerous smaller round-table discussions and fora for senior policy advisers, students, and early career scholars. It conducted formal training programmes in such diverse topics as new correctional programmes, white-collar crime, identity fraud, and programme evaluation. Institute staff were also willing to speak to the media and to answer queries from students and the public on a range of criminal justice topics.

Topics for Research

The AIC's research focus was eclectic, with some academics subsequently lamenting its positivist emphasis on the collection of data (Carson and O'Malley 1989), while others in Canberra criticised some of its work as not

being of primary interest to the Commonwealth. In reviewing the establishment of the AIC in 1979, Loof (1979, 2) noted that "from the outset an emphasis was placed on the need for applied research—the need for practical solutions to practical problems and the need to develop priorities for research designed to bring practical results in areas of greatest need". With this in mind, the AIC conducted research and policy analysis on an extensive range of criminological topics over its 44-year history including monitoring trends in violent crimes such as homicide, firearms offences, sexual violence, and human trafficking; investigating white-collar crime, fraud, and crime involving new technologies; evaluating the effectiveness of crime control measures such as closed-circuit television, electronic monitoring of offenders, restorative justice, anti-money laundering controls, and capital punishment; conducting assessments of boutique criminal justice topics including fisheries crime, farm and rural crime, ATM robberies, cloud computing, and carbon

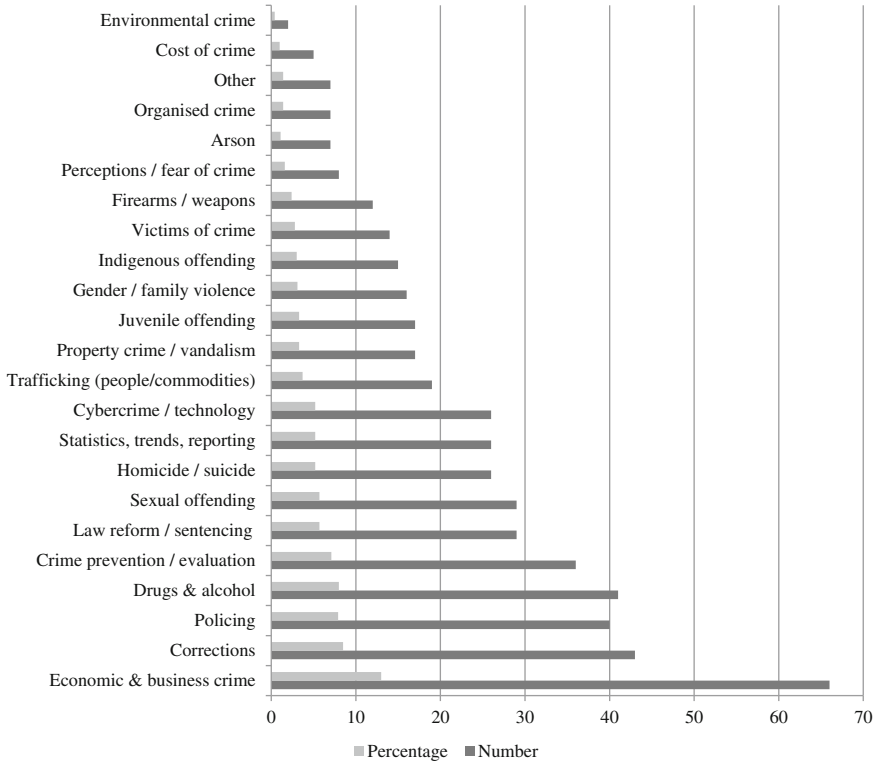


Fig. 3.6 Principal categories of research examined in *Trends and Issues in Crime and Criminal Justice*, 1986–2016. *Source* AIC publications listing, www.aic.gov.au/publications/current%20series/tandi.html

trading; and examining support for victims of both violent crimes and federal offences, and avenues to enhance the rehabilitation of offenders.

One measure of the range of research undertaken by the AIC is the scope of the material contained in its publication series *Trends and Issues in Crime and Criminal Justice*. These short policy-focussed papers were developed in 1986 as a concise summary of contemporary crime and justice topics in which new data or policy developments could be canvassed. They were written in clear language and were of a length suitable for reading by politicians on a flight between Canberra and Melbourne. For the purposes of analysis, the principal topic examined in each publication was determined, and these were grouped into 23 categories to show the range of topics covered (see Fig. 3.6).

The topics that were chosen for publication in the *Trends and Issues in Crime and Criminal Justice* series largely arose from research projects undertaken by the AIC and CRC grant recipients, while others arose from the research interests of individual staff members. The area of economic and business crime, which accounted for the largest number of publications, was driven not only by the availability of research funds in this area but also by the research interests of a number of senior staff. Other specific topics, such as quantification of the costs of crime, were also able to be examined owing to suitably qualified staff being involved. During some periods, the AIC employed a number of staff members with legal qualifications, which enabled research to be conducted into sentencing laws, evidentiary issues such as DNA and money laundering, along with law reform generally. The AIC directors also used their own professional backgrounds to shape the research agendas of the institute that included work on correctional management; art and antiquity theft; drug offences; crimes against older persons; and child abuse and neglect. As staff and directors came and went, research topics changed. The various reviews conducted into the work of the AIC, particularly those in 1993/1994 (Australia and Coad 1994; Tanzer et al. 1994), also sought to change the focus of research away from state and territory criminal justice concerns to those of the Commonwealth (see James and Sutton 1994). Of course, the bulk of crime is constitutionally a state and territory concern, and accordingly, state and territory interests always remained important.

Tensions Within Public Sector Criminological Research

As a public sector research agency, the AIC had to navigate a difficult course between conventional academic research undertaken in universities, and research that could inform and provide an evidence-base for government

policymaking. At the heart of this arose difficult questions of human research ethics, confidentiality, and publicity of research findings that might not always accord with government policy agendas. As Geis (1994, 282) observed:

> The [AIC] provides a quintessential illustration of a government agency structurally and functionally caught between a rock and a hard place. The AIC is funded by the Commonwealth government and operates under the aegis of the Attorney-General. It is charged with conducting research on the socially and politically sensitive topics and crime and criminal justice. If the results of this research… produce distress and discontent in those who fund its fate, they can either grin and bear it with as much grace as they can muster or they can retaliate. The history of the AIC demonstrates the constant tension that this arrangement has created, and recent developments show how vulnerable the Institute can be unless it toes the government line.

These issues continue to resonate today. They are not unique to the AIC and have been faced by the UK Home Office (Mayhew 2016) and by research agencies in the USA and Europe (Tonry 2010).

In keeping with the best traditions of academic criminology, the AIC has—since 1992—ensured that all proposals for human research involving interviewing, surveying, and analysis of personal datasets are approved by an Institutional Human Research Ethics Committee, constituted in accordance with National Health and Medical Research Council (2015) requirements. This is somewhat unusual outside the academy, as most public sector research is undertaken without such scrutiny. One exception is Victoria Police, which has maintained a Human Research Ethics Committee since 2005. Other police and intelligence agencies gather information from so-called assets in much more invasive ways and, although they are required to comply with extensive statutory obligations before doing so, they do not perceive their tasks as involving research that would require ethical approval. Other government entities and consultancies in the private sector rely on their own professional standards when engaging in research that involves human participants, such as conducting surveys and interviews.

The other difference between academic research and that engaged in by government criminologists is the necessity for ministerial approval for the release of research reports. Although some university consultancy reports may never be published owing to the terms of funding contracts, there is an ever-present possibility that research conducted within government will not be publicly available owing to its sensitivities. This has happened to AIC

research reports on a number of occasions, including instances in which, objectively, the reported findings were innocuous, simply presenting information already available to the public. Until recently, the fact that the AIC was an independent statutory authority carried with it the expectation that the bulk of its research would be available for public scrutiny, but now that the institute is more embedded in the Commonwealth public sector, this might not continue to be the case.

Two other limitations on research in the public sector relate to the level of funding available and the timelines during which research must be conducted. Although criminological research conducted in universities and by consultancy practices is also subject to these constraints, the demands of government are sometimes extreme, with major research activities being required within months as opposed to years, and for tens of thousands of dollars rather than hundreds of thousands. Public sector criminologists, as government employees, are invariably required to adhere to these requirements, occasionally resulting in research outputs being of limited sophistication and scale; thus justifying some of the criticisms from academics levelled against administrative criminology (Mayhew 2016).

Finally, the demands of government often require public sector criminological research to be conducted on new and developing crime problems. Often, such topics are so new that little is known about them, no statistics are available to assess their extent, and no jurisprudence has developed to support legal analysis. Research into cybercrime, environmental crime, human trafficking, and terrorism are cases in point in which research reports are sometimes purely descriptive of the nature and extent of the emerging problems, while solutions are occasionally tentative.

Conclusion

What does the future hold for public sector criminology? Regardless of the precise location of public sector criminologists, whether in dedicated research bodies, intelligence agencies or policy departments, there is much work they can do to inform both policy and the community as to the nature and extent of contemporary crime problems, and solutions to them. The model previously adopted by the AIC generally worked well, straddling academic work and government policymaking, while maintaining adherence to principles of independent ethical research and allowing completed studies to be made publicly available.

In 1987, a review of research projects funded by the CRC (1987, 4) concluded that "evidence supplied by the researchers showed that well over one-third of the completed projects clearly had had either a direct or indirect impact on criminal justice practice or policy. In addition, most other projects had either been cited in court cases or had been used by practitioners. Furthermore, in a significant number of cases, it could be shown that Council-funded projects had been influential in promoting legislative changes".

The future is likely to see no diminution of the need for independent and methodologically robust criminological research by and for governments. However, the question remains: who is best able to produce this in a timely and cost-efficient way? On the one hand, university academics could continue to undertake consultancies that seek to satisfy the needs of government. They would, however, not have access to classified and other material that government-based researchers can make use of. Moreover, some academic work, although important in developing theoretical conceptions of the causes of crime, might not satisfy current policy needs in a more applied sense.

Alternatively, governments could look to private sector consultants to undertake the work required, although often the criminological skill base within this sector is lacking, and costs tend to be much higher than for similar work undertaken in-house. The final approach is to continue to rely on criminologists employed within government agencies but to ensure that their work remains independent of political and financial constraints and is able to be undertaken using realistic time-frames and staffing levels. It remains to be seen which balance of these approaches will be adopted by future Australian governments and how effective the chosen approach will be in producing and disseminating the required crime and justice research needed for the remainder of the twenty-first century and beyond.

References

AIC. 1973–2016. *Annual Reports*. Canberra: AIC.

Australia (Review of Commonwealth Law Enforcement Arrangements) and Bill Coad. 1994. *Report of the Review of Commonwealth Law Enforcement Arrangements*. Canberra: Australian Government Publishing Service.

BOCSAR. 2016. About Us. http://www.bocsar.nsw.gov.au/Pages/bocsar_aboutus.aspx. Accessed June 15.

Carson, Kit, and Pat O'Malley. 1989. The Institutional Foundations of Contemporary Australian Criminology. *Australian and New Zealand Journal of Sociology* 25 (3): 333–355.
CRC. 1987. *Annual Report 1986/1987*. Canberra: AIC.
Geis, Gilbert. 1994. 'This Sort of Thing Isn't Helpful': The Dilemmas of the Australian Institute of Criminology. *Australian and New Zealand Journal of Criminology* 27 (3): 282–298.
Goring, Charles. 1913. *The English Convict: A Statistical Study*. London: HMSO.
James, Steve, and Adam Sutton. 1994. Criminology and Crime Control in Australia. *Australian and New Zealand Journal of Criminology* 27 (3): 299–308.
Lombroso, Cesare. 1911. *Crime: Its Causes and Remedies,* trans. Henry P. Horton. Boston: Little, Brown.
Loof, Peter R. 1979. *Establishment of the Australian Institute of Criminology and the Criminology Research Council: Proposals, Criteria and Negotiations Associated with the Establishment of the Institute and the Council*. Canberra: Attorney-General's Department.
Martin, Randy, Robert J. Mutchnick, and W.Timothy Austin. 1990. *Criminological Thought: Pioneers Past and Present*. New York: Macmillan.
Mayhew, Patricia. 2016. In Defence of Administrative Criminology. *Crime Science* 5 (7): 1–10.
Morgan, Rod, and Mike Hough. 2007. The Politics of Criminological Research. In *Doing Research on Crime and Justice*, ed. Roy King, and Emma Wincup, 45–74. Oxford: Oxford University Press.
National Health and Medical Research Council. 2015. *National Statement on Ethical Conduct in Human Research*. Canberra: National Health and Medical Research Council.
OCSAR. 2016. About Us. http://www.ocsar.sa.gov.au/. Accessed 15 June.
Tanzer, Noel, Des Hill, and Grant Wardlaw. 1994. *Review of the Australian Institute of Criminology: Report*. Canberra: AIC.
Tonry, Michael. 2010. 'Public Criminology' and Evidence-Based Policy. *Criminology and Public Policy* 9 (4): 783–797.

Author Biography

Russell G. Smith has worked at the AIC for over 20 years, researching fraud, cybercrime, and professional regulation. He holds qualifications in law, psychology, and criminology and has a Ph.D. from King's College London. He practised as a solicitor; taught criminology at the University of Melbourne; and was ANZSOC's president from 2009 to 2012.

4

The Asian and Pacific Conference of Correctional Administrators

David Biles

Criminologists in general, but especially those in the Asia and Pacific region, should be aware and appreciative of the work of an organisation in which academic criminologists and the people in charge of correctional systems have been able to work together to their mutual benefit. This chapter will explore some of the facts that enabled this cooperation to develop over the past few decades.

The first meeting of the Asian and Pacific Conference of Correctional Administrators, generally referred to as APCCA, was held in 1980 in Hong Kong. That was 13 years after the foundation of ANZSOC. However, since 1980, a small number of local criminologists have devoted considerable time and effort to ensure that APCCA was a success.

This chapter outlines how the APCCA has changed over the three and a half decades that it has been in existence and how it slowly developed its practices. In the first few years, its conferences were relatively formal with nearly all speakers endeavouring to present their correctional practices in the best possible light. After a few years, speakers increasingly admitted that they faced

I would like to acknowledge the very helpful advice given to me in the preparation of this chapter by Professor Richard Harding and Professor Neil Morgan. Ms Jane Snelling, the librarian of the AIC, which is now part of the Australian Criminal Intelligence Commission, also deserves thanks for locating copies of some of the early APCCA conference reports that were not in my possession. I would also like to thank both of the editors of this volume for their encouragement and understanding at a time of personal stress.

D. Biles (✉)
Late of Canberra, Australia

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_4

some problems, and welcomed discussion about how they might be resolved. Later still, the conferences became even more professional with most delegates indicating that they were all happy to learn from each other. The notion of learning from each other within the context of APCCA is much more nuanced and subtle than the economically advanced nations simply giving advice and ideas to less advanced nations. On the contrary, in many cases, it is the poorer nations who can provide ideas to those that have more money. This is particularly the case with issues like the acceptance of mothers and their babies in prisons, and inter-personal relations between staff and prisoners.

APCCA Membership

The APCCA (2016) website lists 31 nations, states, or provinces within nations that are responsible for their own correctional systems. The current official membership list reads as follows: Australian Capital Territory (Australia), New South Wales (Australia), Northern Territory (Australia), Queensland (Australia), South Australia (Australia), Tasmania (Australia), Victoria (Australia), Western Australia (Australia), Brunei Darussalam, Cambodia, Canada, China, Hong Kong (China), Macao (China), Fiji, India, Indonesia, Japan, Kiribati, Republic of Korea, Malaysia, Mongolia, New Zealand, Papua New Guinea, Philippines, Singapore, Solomon Islands, Sri Lanka, Thailand, Tonga, and Vietnam.

This list is impressive, but it could be even longer if eight other nations that have attended at least one APCCA conference in the past had been included. The nations who have apparently ceased membership are Bangladesh, Cook Islands, Laos, Nepal, Pakistan, People's Democratic Republic of Korea (generally referred to as North Korea), Tuvalu, and Western Samoa.

It is clear from the current membership list that each Australian state and territory has full membership status but, in the actual conferences, the members from Australian jurisdictions choose one of their groups to act as the leader so that Australia is seen as one nation. However, Hong Kong and Macao, even though they are both now a part of China and are seated in conferences next to China, are generally reported as separate entities. Canada was apparently invited to attend the first conference even though it is not a part of Asia and the Pacific. In practice, it is only the province of British Columbia that is relevant, but it is the federal, rather than the provincial, correctional systems, which attend, and frequently host, the annual conferences.

The First Conference

The criminologists who had the experience of organising conferences or writing conference reports in the early years were mainly, but nor exclusively, associated with the AIC. The first of these was Bill Clifford, who was also the first permanent director of the institute. Clifford had previously held senior positions in the UN, including 2 years as a senior adviser to the UN Asia and Far East Institute for the Prevention of Crime and the Treatment of Offenders (UNAFEI). To some extent, one can still see the influence of the UN on the work of the APCCA, with regard to the manner in which conferences are conducted and the type of language used.

Bill Clifford, together with the then Commissioner for Prisons in Hong Kong, Tom Garner, were the key organisers of the first APCCA conference which was a remarkable success. Delegations from no fewer than 14 nations participated, with 25 actual delegates. They were from Australia, Canada, Hong Kong, Indonesia, Japan, Macao, Malaysia, Papua New Guinea, Philippines, Western Samoa, Singapore, Sri Lanka, Thailand, and Tonga.

At that time, Hong Kong was still a colony of Great Britain, and the conference was honoured by the Chief Justice of the Supreme Court of Hong Kong, Sir Denys Roberts, presenting an address and participating in other conference activities. The agenda for the conference set the pattern for future conferences by addressing four substantive topics. These were trends and problems; alternatives to imprisonment; management services; and the UN Sixth Congress on the Prevention of Crime and the Treatment of Offenders. In addition to the discussion of the agenda items, the programme included visits to a number of local correctional institutions, a practice which has been followed in all subsequent conferences and which is greatly appreciated by the delegates.

The practice of preparing a draft report for delegates to take away with them when they departed was set by Mr Clifford and followed by all future conferences until 2003 when computer discs or memory sticks replaced hard copies. The final report of the first conference was edited by publications staff from the Institute of Criminology in Canberra. It was close to 270 pages in length and contained summaries of the discussions of the agenda items prepared by Mr Clifford as well as the complete documentation prepared by the delegates from the 14 Nations which included considerable statistical material. The tradition of producing lengthy reports was clearly established from the very beginning.

APCCA Symbols

APCCA has three symbols which are said to reflect its enduring values and traditions. The first of these is a Fijian war club which was donated during the sixth annual conference in 1985. It was explained at the time of presentation that, even though associated with aggression and violence, when surrendered to another person it was a symbol of peace, harmony, and civilisation. The second symbol is an Indian brass lamp donated by India in 1988 and is seen as a symbol of learning and enlightenment. The third symbol is a flag prepared and donated by the Corrections Bureau of Korea in 2005 that symbolises the long life and strength of APCCA. The three symbols are held in safekeeping by the leader of the relevant host nation who also has the responsibility of transporting them to the next conference the following year, where they will be presented to the new host. They will be displayed for the duration of the conference, in much the same way as a mace is displayed in the parliaments of democratic nations.

There is also an APCCA song—*Togetherness in Unity*—which was composed by the Prisons Department of Malaysia in 2008.

APCCA History

Between 1980 and 2016, conferences have been held in every year except 1990—when political problems caused the cancellation on the conference by the host—in 13 different nations. Over this period of time, six of the conferences have been held in Australia, all in different Australian jurisdictions. Five were held in China including three in Hong Kong. Three were held in each of Canada, Japan, Malaysia, New Zealand, and Thailand. The conference was held on two occasions in India and the Republic of Korea. Finally, Brunei Darussalam, Fiji, Singapore, Tonga, and Vietnam each hosted the conference on one occasion. It can be seen from this list that just over half of the 31 members listed above have hosted conferences on at least one occasion.

A study of the conference reports makes it possible to identify tentatively four stages or periods in the development of the conference and also to name the criminologists who had particular responsibilities at each stage.

The first stage from the first to the sixth conference (1980–1985) could confidently be named as the 'Bill Clifford period'. As outlined above in relation to the first conference, Clifford, as the Executive Director of the conference, sets the tone for future conferences in terms of organisational

structure, manner or reporting, style of language used, and UN awareness. As the then director of the AIC, he was able to use the staff of the institute in the preparation of background papers and for the editing and publishing of conference reports. Two members of the research division of the institute, Dr John Braithwaite and Mr Ivan Potas, made presentations at APCCA conferences.

The second stage from the seventh to the ninth conference (1986–1989) could be named the 'Richard Harding/Dennis Challinger period'. After the departure of Bill Clifford, Professor Richard Harding, from the Law School of the University of Western Australia, became the director of the AIC and also executive director of the conference. At that time Mr Challinger, who was previously a senior lecturer in criminology at the University of Melbourne, was assistant director of the AIC and later became executive director of the conference. In this role, Challinger had responsibility for organising APCCA conferences and preparing the reports, but Harding continued his close interest and participation in the conferences. It is noticeable that the conference reports were considerably shorter during this period.

The third stage was from the 10th to the 21st conference (1991–2003) and could be named the 'David Biles/Richard Harding period' as I was asked to take over from Mr Challinger as far as APCCA was concerned. Professor Duncan Chappell, from the Law School of the University of Sydney, was then director of the AIC. He chaired one of the APCCA conferences but left the organising to me, and Professor Harding was happy to continue as a conference rapporteur even though he had left the institute. He also introduced me to Neil Morgan, also a member of the Law School of the University of Western Australia who also became a rapporteur for APCCA in 1997 and continued to undertake this work until the present. Harding later became the first Inspector of Custodial Services in Western Australia, and he was followed in this role by Neil Morgan. It is a matter for other people to form a judgement of my competence or otherwise as the coordinator and rapporteur during this period, but it was certainly a very busy period for me as I always had other professional duties to the Institute of Criminology and, for 3 years, to the RCADC. After retiring from the institute in 1994, I continued my work for APCCA in a private capacity as well as working on many other consultancy projects.

During this period, I used the title of Coordinator and Rapporteur to indicate my responsibilities. I did this to replace the term executive director, which did not seem appropriate for an organisation that was essentially controlled by the members, especially the hosts of the conferences. Also during this period, the practice developed of the hosts inviting me to visit the

conference location some months before the actual conference in order to ensure that the preparations were proceeding satisfactorily. This, of course, greatly increased the amount of international travel needed each year. Furthermore, several delegations invited me to visit their countries to give advice or general assistance, which led to even more international travel. This practice continued for several years after my departure from APCCA.

The fourth and final stage (2004–present) could be named as the 'Neil and Irene Morgan/Secretariat period'. From 2003, the APCCA Secretariat jointly located in Singapore and Hong Kong was given responsibility for the administration of APCCA including the administrative aspects of the conferences, thus relieving the AIC of these responsibilities. Professors Neil Morgan and Ms Irene Morgan have been the rapporteurs since 2003. They jointly prepare the discussion guide for each conference as well as the substantive reports on the conferences and perform a number of other core functions. Before becoming Inspector of Custodial Services, Neil was a Professor of Law at the University of Western Australia. He has written widely on criminal justice and criminal law in Malaysia, Singapore, Myanmar, and Australia. As the first woman in this role and as the first Australian citizen born in Malaysia, Irene plays a key role in APCCA. She has held academic positions at the University of Western Australia and also senior law and policy roles with the WA Police, the Department of Health, the Parole Board, and the Mentally Impaired Review Board.

This final period was associated with more challenging and sophisticated discussions and a greater use of modern technology. While the APCCA traditions, such as displaying the APCCA symbols, were always respected, many of the speakers used PowerPoint presentations, which were especially appreciated by delegates for whom English was a second language. Also during this period, the appendices to the reports of conference discussions were prepared by the APCCA Secretariat and—on some occasions—were published separately. Whether as a single report or as two reports, all are available on the APCCA website until the 35th report in 2015.

Also during this period, specialist workshops were introduced for the consideration of particular issues as a supplement to the substantive agenda items. Some of the specialist workshop topics are listed below with the most common agenda items. Finally, during this period developed a form of words for all the contributors to the conference reports. They would say that the report was prepared by 'Neil Morgan and Irene Morgan in collaboration with … Prison Department and the APCCA Secretariat'. This, in my view, was a gracious and appropriate way for all relevant contributors to be recognised.

The Languages Used by APCCA

The populations of the 31 APCCA members listed above speak a wide variety of different languages, but the predominant language spoken at conferences and other meetings is English. However, there are some exceptions. When the conferences were held in China and Japan, the hosts made arrangements for simultaneous translation into Mandarin or Japanese. Furthermore, a few nations have generally included an interpreter in their delegation who would provide a 'whispering translation' to his or her colleagues. Vietnam has generally done this. Also, when the host nations have been Malaysia or Indonesia, some parts of the opening and closing ceremonies have been presented in Bahasa, the official language of both Indonesia and Malaysia, but an English version is always also included.

APCCA Products

The APCCA continues to produce a number of publications—conference reports, newsletters, discussion guides, national reports, regional correctional statistics, and the APCCA website—which are discussed in this section.

Conference Reports

The reports of the conferences are, not surprisingly, the most significant publications of APCCA. In recent years, the reports have been close to 100 pages in length, but occasionally up to nearly 300 pages. After the descriptions of the opening ceremonies and general background information, a summary is given of the most substantive topics, or agenda items, that were discussed in each conference. These summaries are prepared by the rapporteurs and generally comprise around 25–30 pages of each report. These summaries are initially published in draft form and are subject to amendment by the delegates before a final report is published. These summaries are followed by items covering conference business and a description of the closing ceremony. The bulk of each report comprises a series of appendices covering a list of all the delegates at the conference, the conference programme, a copy of the discussion guide, a list of agenda items discussed at previous conferences, reports relating the APCCA committees, and correctional statistics for the region.

Newsletters

Since its establishment in 2003, the joint APCCA Secretariat has produced newsletters of remarkably high quality. The most recent newsletter at the time of writing was No 40 published in April 2016. It is 24 pages in length and contains text and numerous high-quality photographs illustrating new developments in correctional services in the region, including developments in Melbourne, South Australia, and ACT.

Discussion Guides

An important key to the success of the APCCA conferences is the preparation of discussion guides by the rapporteurs. After the four or five specific agenda items for the next conference have been determined, the rapporteurs prepare detailed guides indicating the potential scope of the discussion that might be explored for each substantive topic. The guides are distributed to all member nations or states several months before the next conferences with a request that all participating nations prepare written responses for each topic at least a month before the conference to be published as national reports.

National Reports

The national reports vary widely in length and in quality, but they are all published and circulated by the Secretariat to all expected delegates with a request that they are studied before the conference. This is to encourage free-flowing discussion at the conference rather than reading the national statements. A number of member nations have suggested that the conference reports, newsletters, and the national reports have been widely used as study material for correctional officers seeking promotion.

Regional Correctional Statistics

The correctional statistics, which are published as an appendix to the annual conference report, are prepared by the correctional authorities who are APCCA members. As such, they should be interpreted with caution, as not all contributors may use the terminology in exactly the same way. Furthermore, it should be noted that imprisonment rates are calculated on a different basis in Australia and New Zealand than is the case for APCCA or most other data

collections elsewhere in the world. The traditional approach is to define the imprisonment rate of a nation or state as the daily average number of prisoners per 100,000 people in the *total* community, while in Australia and New Zealand imprisonment rates are calculated on the basis of 100,000 people in the *adult* community. This means that the rates that are published in Australia and New Zealand are significantly higher than those determined by the traditional method. The rates in the APCCA report appendix all use the traditional method.

With these two cautions in mind, the data published by APCCA contain, in five or six tables, an invaluable introduction to understanding the differing systems in the region and profound differences between nations. For example, the 2014 data show that the highest imprisonment rate in the region is 271 for Mongolia, while the lowest is 22 for India. Also, the staff-to-prisoner ratios vary with one institutional staff member per 23.2 prisoners in the Philippines, and 1–1.1 in both Canada and Tonga. Similar extreme differences can be found for the remand prisoner proportion of the total prison population and in the rates of the use of community-based correctional orders in different nations.

APCCA Website

The APCCA Secretariat manages an attractive website under the address www.apcca.org that, in addition to a number of photographs, contains many of the basic facts about the organisation and its achievements. Non-member users of the website, however, are not allowed access to details such as the names and contact details of the members for security reasons. Nevertheless, non-members, who are sufficiently diligent in their searching, can gain access to all recent conference reports without being required to enter a password.

APCCA Finances

Many of the early reports of APCCA conferences suggest that the conferences are relatively inexpensive as far as governments are concerned, as all the delegates pay for their own travel and living expenses, and the conference hosts are only expected to provide the conference location and the costs of a welcome reception. In practice, however, the conferences have become increasingly expensive, especially for the hosts who like to be seen as generous

and hospitable and also like to follow the Asian practice of providing gifts to delegates, which in some cases may be products made by prisoners.

After the first few conferences, the hosts invited private companies, especially those providing goods or services to prisons, to defray conference costs by paying a fee for being given the opportunity to display their products or occasionally to address the conference.

In late 1997, the financial side of the organisation was placed on a more formal footing by establishing an APCCA Fund to which all delegations were asked to contribute. This money was used to pay for various administrative services as well as a small fee and expenses for rapporteurs. The fund is administered by Hong Kong and audited by a small committee from Thailand and Australia.

Assistance with Staff Training

Mention has been made above to the use of APCCA publications to assist in the training of middle-level to senior prison staff. This has undoubtedly happened, but the commitment to improve the selection, initial training, and career development of corrections staff goes much further than that. Apart from discussing these issues at many conferences, many of the APCCA members have made arrangements between themselves for their junior or middle-level staff to travel to other nations for specific training purposes. A particularly relevant development has been the establishment of the Malaysian Correctional Academy at Langkawi in Malaysia in 2007. This institution was encouraged by APCCA members and has provided higher-level training to middle- and senior-level correction officers from a number of nations in the Asia and Pacific region. Also, several APCCA members have accepted invitations from the UNAFEI in Japan to participate in training courses that they have provided for criminal justice practitioners throughout the region.

The Governance of APCCA

Early in the third phase in the development of APCCA, a small advisory group of six or seven delegates was elected to assist the conference organisers to decide which of the proposed substantive items should be chosen for the next conference and to assist in the resolution of any organisational problems

that might arise. This was a relatively informal group and only met once or twice in breaks from the conference activities.

In late 2002, representatives of 18 nations or jurisdictions met in Bali to prepare the APCCA Joint Declaration that, among many other matters, created a Governing Board of 14 members comprising the current conference host who became Board Chair by default, four elected members, three hosts of the most recent three conferences, three rotating members, a representative of the Secretariat, and the person who is to be the host of the next conference. The Governing Board has many tasks including the appointment of rapporteurs, the APCCA Fund Administrator, etc. Clearly, a more formal structure has replaced the informality of the past.

Substantive Subjects Considered in APCCA Conferences

The report of the 21st APCCA conference, held in Thailand in 2001, includes an appendix which lists the substantive agenda items that have been discussed and summarised. Most conferences listed only four substantive agenda items, but on some occasions, there were five or six items. What follows is a sample list of subjects that have been considered on more than one occasion:

- prison industries including partnerships with outside industries;
- alternatives to imprisonment;
- non-convicted prisoners or 'remandees';
- young offenders and their management;
- women prisoners and their children;
- international transfer of foreign prisoners;
- the well-being of correctional staff;
- drugs in prisons;
- prison health issues,
- including mental health;
- prison staff training and development;
- UN Standard Minimum Rules for the Treatment of Prisoners;
- community support or interest in corrections;
- management of intractable and protection prisoners;
- national reports on contemporary issues in corrections;
- discipline and grievance procedures in prisons;
- international cooperation in corrections;

- human rights of prisoners and prison staff;
- inter-agency cooperation within criminal justice systems;
- prison overcrowding and possible solutions;
- responding to changing prisoner profiles; and
- crisis management in prisons: causes and responses.

In the fourth phase of the APCCA history, these topics were accompanied by specialist workshops covering:

- training and succession planning for senior correctional managers;
- innovation within the correctional setting;
- measuring the success of prisoner treatment programmes;
- preparing and helping inmates to adapt to society on release;
- practices in dealing with diverse cultural and spiritual needs of inmates;
- communication and public relations;
- fairness and efficiency in handling prisoner complaints; and
- effective drug and substance abuse treatment.

A quick glance at this list clearly establishes the serious nature of the conference discussions. All of the topics address issues that are topical. Many are practical, while others are much more philosophical. Some of the topics could notionally form the basis of doctoral dissertations, while others could find a place in training manuals or textbooks.

General Observations

It is apparent that a number of the substantive agenda items that have been discussed, often many times, at APCCA conferences have not resulted in any agreement or consensus of opinion. One of these topics is that of the international transfer of foreign prisoners. This is sometimes mistakenly referred to as the exchange of prisoners. A number of APCCA members are firmly opposed to international transfers, perhaps because they believe that they may be required to take back a number of their own citizens who are serving prison sentences in other nations. This is an unnecessary concern, as all of the treaties that govern this procedure require both the sending and receiving country as well as the individual prisoner to agree with the proposed transfer. As a matter of general interest, the latest figures for Australia show that it has benefitted financially from the scheme as many more foreign

prisoners in Australia have accepted transfers to their own nations—often developing nations—than the number of Australian prisoners in foreign prisons who have returned home.

Another topic, and one that has not actually been included in the named substantive items but which has been mentioned many times, is that of the acceptance or rejection of private prisons. Discussion of this topic has revealed that some nations are reasonably happy with some of their prisoners serving their sentences in private prisons. This is the case in Australia which has a higher proportion of its prisoners in private prisons than any other country in the world (Biles 2011). It seems to be the case, however, that about half of the APCCA membership take the view that private prisons are not acceptable under any circumstances. In my opinion, it is a desirable thing that contentious subjects like this can be discussed in a mutually respectful manner. It is to the credit of APCCA members that this happens. In this case, however, it does prompt subsidiary questions of whether representatives of private prison companies should be allowed to attend conferences in any capacity. Ultimately, it is the conference hosts who have the authority to invite whomever they choose.

Another observation that may be of interest is the fact that even though many of the APCCA conferences have discussed the subject of alternatives to prison or community-based corrections. Virtually, all of the attendees at APCCA conferences are custodial correctional administrators rather than administrators of community-based correctional programmes. In some cases, of course, the person who comes to the conferences is in charge of or has a senior position in a department which is responsible for both custodial and non-custodial corrections, but in other nations the administration of community-based corrections may be the responsibility of a quite separate department. Some nations, no doubt largely due to APCCA discussions, have changed the names of their Prisons Department to Corrections Departments to reflect wider responsibilities.

Conclusion

There can be no argument with the proposition that the APCCA is now a very significant organisation that has done a great deal to improve both the theory and practice of correctional management in the Asian and Pacific region. It has shown remarkable longevity, and its voluminous publications have also certainly been influential in clarifying the thinking of corrections practitioners beyond Asia and the Pacific. It is also becoming increasingly

influential in other international forums. This should not be surprising, as the nations covered by APCCA contain well over half of all of the people in the world.

It also seems reasonable to conclude that the close relationship that develops between academic criminologists, who act as rapporteurs or co-rapporteurs, and senior correctional practitioners is an exemplar of how scholars and administrators can work together to their mutual benefit. In far too many cases, the opposite situation applies where—usually relatively junior—criminologists suggest to prison administrators that they would like to undertake a research programme with prisoners, but are aggrieved when their suggestions or applications are refused. Even requests to allow criminology students to visit prisons are sometimes refused on the grounds that such visits may weaken security or would require additional staff to supervise the visitors.

It is arguable that correctional administrators who have been involved with APCCA for some time would be more likely to be co-operative in these situations, and on the other hand, criminologists who have had direct experience with APCCA would be more appreciative of the complexities of managing prisons and would be less likely to seek entry privileges to prisons that may result in difficulties for the managers. The experience of APCCA suggests that both theorists and practitioners benefit from working together.

References

APCCA. 2016. APCCA History & Tradition. http://apcca.org/about.php. Accessed June 1.

Biles, David. 2011. Are Private Prisons a Cause for Pride or Shame? *Canberra Times,* December 18.

Author Biography

The late David Biles OAM was a Distinguished Fellow of ANZSOC. For over 60 years, he was involved in criminal justice practice as a prison education officer, a lecturer in psychology, a senior lecturer in criminology, and in senior positions in the AIC. In retirement, he became a consultant criminologist and a semi-regular writer for *The Canberra Times*.

5

Crime and Justice Data

Fiona Dowsley and Timothy C. Hart

Crime remains one of the most challenging social constructs to measure. It is elusive. It wishes to remain hidden. It is in the interest of the offender, in most instances, for their crime to remain undiscovered. A victim may also have many reasons for not wishing to disclose that a crime has occurred. Such reasons include fear, guilt, embarrassment, fear of other interventions, and lack of faith in authorities. As a result, it is impossible for criminologists and policy makers to answer accurately seemingly fundamental questions about how much crime occurs; how many victims of crime there are; and how many offenders commit crimes within our society.

The criminal justice system has extensive powers to surveil, detain, adjudicate, imprison, and curtail the liberties of the citizenry. Many programmes are implemented to improve community safety. Comprehensive information about the operations and impacts of the criminal justice system, however, can also be challenging to obtain. Data may be sought to illustrate the individual's experience of the criminal justice system, which is not collected routinely by institutions or cannot be easily compiled. Gaining access to information about individuals can further involve clearing significant hurdles in the form of ethics and authorisation processes and privacy frameworks, which can differ across jurisdictions. The emergence of new areas of criminological focus and

F. Dowsley (✉)
Crime Statistics Agency, Melbourne, Australia
e-mail: fiona.dowsley@crimestatistics.vic.gov.au

T.C. Hart
Griffith Criminology Institute, Brisbane, Australia
e-mail: t.hart@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_5

the expansion of criminal and regulatory activities can also create demands for additional data and information about new crimes and criminal justice processes.

Despite these challenges, there are various aspects of crime and criminal justice administration that can be observed through a range of sources. Knowing which sources exist, are available to use, when they can be most relevant, and the questions they can best answer is crucial for researchers and policy makers alike. This chapter describes the main forms of crime and criminal justice system data available in Australia and New Zealand, the strengths and limitations of some of these sources. It explores the future challenges and opportunities for advancing the development of crime and justice data.

Crime and Justice Statistical System

Viewed in a global context, Australia and New Zealand's crime and justice statistical systems have good coverage across the UN's model criminal justice statistics system (UN Department of Economic and Social Affairs 2003). In both countries, quantitative information about the prevalence of crime, characteristics of victims and offenders, and the basic function of the criminal justice system is accessible. National statistical collections have often been administered by the ABS and Statistics New Zealand, meaning the collections tend to be produced regularly and are inexpensive to access. Furthermore, oversight by national statistical agencies reflects a commitment to integrity and objective data administration. Modern statistical systems are complex. An increasing number of entities collect, produce, and disseminate data relating to crime and justice institutions and related fields that can be used in criminological research. Such institutions include justice system entities; health and social services institutions; specialised data and research centres such as the AIHW, AIC, and the Centre for Social Research & Evaluation in New Zealand; various state-based entities in Australia; academic institutions and partnerships; not for profit entities; and service providers. In a dispersed statistical system, researchers can struggle to identify all extant, relevant data sources.

History of Official Crime and Justice Data Sources

Crime and justice statistics were collected from the establishment of the Australian colonies (Forster and Hazelhurst 1988). Despite data collection since European settlement,[1] neither Australia nor New Zealand's data support

comparisons over time. Too many changes to legislation and justice system business processes, along with technology, terminology, and counting rule changes, have transpired to make this possible (Graycar and Grabosky 2002).

Australia

Since federation, government statisticians who attempt to compile national data have bemoaned the lack of uniformity and comparability between states and territories (ABS 1908). As the states and territories have developed different legal systems and institutions, collating a complete and comparable national view of crime and justice remains an aspiration. Serious efforts at compiling uniform Australian crime statistics have been undertaken since the 1960s (Wyman 1970), with both ABS and AIC compiling selected offence data from states and territories, albeit without achieving comparability (Mukherjee et al. 1987).

Development of contemporary Australian recorded crime statistics began in the late 1980s when the National Uniform Crime Statistics Committee (1989, 1) reported that "Australian national crime statistics lag far behind statistics available in other areas of social concern … and compare unfavourably with other developed countries".[2] To address these challenges, joint initiatives between the ABS and the Commonwealth, states, and territories were established. These joint initiatives include the National Crime Statistics Unit (NCSU) established in 1990, the National Criminal Courts Statistics Unit (NCCSU) established in 1994, and the National Corrective Services Statistics Unit (NCSSU) also established in 1994 (ABS 1994). The NCSU and NCCSU established the current national statistical collections, while the NCSSU adopted the publication of two statistical collections, which had previously been produced by the AIC, that is, the annual prisoner census and the quarterly corrective services collections. Development of statistical infrastructure, including standard offence classifications from the early 1980s to the current Australian and New Zealand Standard Offence Classification (ABS 2011a), and national counting rules such as the National Crime Recording Standard for police statistics, has supported comparability efforts. Despite this, comparability issues still exist within the national police-recorded crime collections, in particular.[3]

The AIC has established a number of statistical programmes between 1981 and 2007. This includes data on juveniles in detention; the aforementioned prisoner census and corrective services series; and national monitoring programmes such as those relating to homicide, deaths in custody, firearm theft,

armed robbery, fraud against the Commonwealth, and human trafficking. Other evolving national collections include the AIHW Juvenile Justice National Minimum Dataset, which was developed in 2000.

New Zealand

In 1978, the NZ Police commenced electronic recording of crime using the Law Enforcement System (LES), which has also been used by criminal courts and the NZ Department of Corrections since 2003 and 2005, respectively. This enabled the production of modern crime statistics. Despite intervening system and legislative changes over the years, recorded crime statistics generated from 1978 to 2014 remained largely comparable (Knight et al. 2016). Statistics New Zealand has published data relating to courts from 1980 in the current time series, despite changes in the source used to generate these data. It changed from LES to the Ministry of Justice's Case Management System from 2004 and from the Department of Corrections' Integrated Offender Management System from 1999 (Statistics New Zealand 2016).

NZ Police, in collaboration with Statistics New Zealand, have recently undertaken a significant overhaul of the nation's official recorded crime statistics. The redevelopment has included adopting a National Recording Standard for Crime, based on the Australian National Crime Recording Standard. It also involved undertaking a quality improvement project from 2009, redeveloping underlying data warehousing, revising the nation's key official crime statistics to expand information relating to victims, and moving towards greater alignment to Australian counting rules (Knight et al. 2016). Similarly, the Ministry of Justice's redevelopment of criminal court and prison information has moved New Zealand towards an integrated justice sector data warehouse, allowing exploration of system-wide justice data (Statistics New Zealand 2013a). The Australia and New Zealand Standard Offence Classification developed by ABS has been adopted by New Zealand, as have the counting rules used in generating recorded crime statistics (Statistics New Zealand 2015a, b). Unfettered by the challenges of comparability arising in Australia from the federated model where states and territories have different justice systems, New Zealand as a single jurisdiction has been able to focus efforts into data improvement. Cross-government partnerships and the Integrated Data Infrastructure and Information Sharing Project are unlocking opportunities for sophisticated analysis between justice and other key government datasets.

Key Contemporary Data Sources

There are two primary types of crime and justice data generally available to both criminologists and policy makers, namely administrative by-product data and survey-generated information. While project-specific or one-off data collections can also be undertaken, this chapter focusses on major data sources available for use by criminologists.

Administrative Data Sources

Administrative by-product data are generated as part of the daily business practices and transactions of an institution or entity. In the criminal justice system, information collection may serve an evidentiary or justice administration process; support operations; drive planning and effective management of the justice system; or acquit reporting requirements to an oversight mechanism. Administrative by-product data represent a low-cost source of information. Furthermore, it is highly relevant to the justice process and comprises a census of all documented activities within it. However, depending on the level of rigour applied during collection, data quality may vary considerably. Moreover, the scope of data collection can be restricted to include only that which is required for the business of justice to take place. Both of these challenges represent noteworthy limitations to administrative by-product data.

A seamless view of the criminal justice system cannot be generated. Transitions between institutions of the justice system are challenging to observe in data collections. For example, police-recorded crime and court data may not align due to alterations during the intervening prosecution stage for which data are not published. Most states and territories in Australia struggle to track individuals or business entities throughout the justice system, requiring statistical linkage techniques to integrate data from disparate information systems. New Zealand's more comprehensive unique identifiers—primarily the Personal Record Number as established through the *Justice Sector Unique Identification Code 1998*—may assist in criminal justice system analyses. Where datasets remain consistent over time and contain personal identifiers, administrative data can support longitudinal analysis. The longitudinal analysis supports exploration of criminal trajectories, pathways through the justice system, and desistance, especially when augmented with other data sources (Stewart et al. 2015).

Criminal justice agencies release data directly to researchers and the public. They also provide information to national data collections about crime recorded by states and territories,[4] about criminal court finalisations, and about people in the custody or under the supervision of corrective services. These collections are primarily published by the ABS, AIHW, AIC, or Statistics New Zealand. Information about operations—such as costs or personnel numbers—are published to a limited extent by the Productivity Commission in their Report on Government Services in Australia, and need to be sourced directly from agencies, or become available through annual reporting obligations. Statistics New Zealand publishes a range of Tier 1 statistics—designated as the most important statistics to inform decision-making—from data provided by the criminal justice system (Statistics New Zealand 2013b).

Table 5.1 Key administrative crime and justice sources in Australia and New Zealand

Collection type	Examples of topics covered	Australian examples	NZ examples
Police recorded crime	Offences; incidents; offenders; victims	• Recorded crime, victims (ABS cat. no. 4510.0) • Recorded crime, offenders (ABS cat. no. 4519.0)	• Crime and justice statistics (Statistics NZ) • Integrated data infrastructure (Statistics NZ)
Criminal courts	Defendants; cases; adjudication; sentencing	• Criminal courts (ABS cat. no. 4513.0) • Federal defendants (ABS cat. no. 4515.0)	
Corrective services	Prisoners; people under supervision; remand prisoners; expected time to serve; prior imprisonment; breaches and escapes	• Prisoners in Australia (ABS cat. no. 4517.0) • Corrective services (ABS cat. no. 4515.0) • Juveniles in detention (AIC) • National juvenile justice national minimum dataset (AIHW) • Deaths in custody (AIC)	

(continued)

Table 5.1 (continued)

Collection type	Examples of topics covered	Australian examples	NZ examples
Coronial	Homicide victims; alleged Perpetrators; circumstances of death	National coronial information system • Causes of death (ABS cat. no. 3303.0) • National homicide monitoring program (AIC)	• Mortality data (Ministry of Health) • deaths (Statistic NZ)
Hospital and emergency admissions	Injuries and poisonings with external cause	National hospital morbidity database (AIHW)	Various Ministry of Health data
Injury	Attendances; injury; overdose	State and territory data sources	Serious injury outcome indicators (Statistics NZ)
Child protection	Characteristics; notifications; substantiations	Child protection national minimum dataset (AIHW)	• Integrated data infrastructure (Statistics NZ) • Substantiated abuse findings (Child, Youth and Family)

Coronial court data and causes of death data collections are vital sources for homicide researchers and include rich details of individuals and events. Non-criminal justice datasets of interest include those generated by emergency services and health institutions. These datasets can support exploration of injury arising from violence, which may be unreported to criminal justice authorities or drug-related harm information. Table 5.1 summarises key contemporary administrative crime and justice datasets.

Survey Data Sources

Survey data collected by institutions, commercial research companies, or researchers directly from respondents can provide insights into experiences with crime and into attitudes of the general community or specific sub-populations to safety, crime, and justice. There are several key advantages of survey data. It can produce estimates of crime prevalence in the community and the proportion of crime reported to justice authorities. Respondents can disclose experiences in a confidential survey setting without fear of

consequences. Surveys can collect more detailed information about experiences with and perceptions of crime, impacts on victims, and responses to crime by authorities. Interactions between feelings of safety, trust in institutions, and experiences with crime and other factors in a person's life can be explored. Surveys can reach those who are less likely to access the justice system, and surveys of offenders, in particular, can provide unique understandings of their experience of the justice system and factors contributing to offending.

Key limitations in survey data include issues around recall, fatigue, honesty, and the simplification of complex concepts to enable data collection. Moreover, surveys are limited to offences that an individual or entity has knowingly experienced. It can be challenging to obtain sufficiently large samples through survey methodologies to provide reliable estimates for small groups or sub-populations and for rare crimes. Finally, surveys can be expensive to conduct, and response rates are in decline.

Household victimisation surveys collect respondents' experiences of selected crimes against the persons and households. They are crucial for determining the reporting rate for key offences—the proportion of crime that becomes known to police—and for validating police-recorded crime statistics (ABS 2011b). Such surveys can produce attitudinal measures such as feelings of safety, perceptions of social disorder, trust in the justice system, as well as self-protection and security measures. Similar surveys can also be conducted with businesses and other entities as respondents. Self-report surveys ask respondents to disclose antisocial or criminal behaviours. They have a long history in criminology, particularly to explore more low-level delinquent offending and to gather information about patterns of respondents' illicit drug usage.

In recent decades, Australia has run a higher number of national victimisation surveys than other comparable countries (UN Office on Drugs and Crime 2010). This is, arguably, a sensible course of action given the ongoing lack of comparability in administrative crime data. Table 5.2 summarises key crime and justice surveys.

Australia has been a world leader in the collection of high-quality data about the sensitive topics of intimate partner and family violence and sexual violence through the development of the Personal Safety Survey (PSS). The precursor survey, the Women's Safety Survey (WSS), was run by the ABS in 1996, followed by the 2005, 2012, and 2016 PSS, which added men to the survey sample. The PSS surveys maintained significant continuity, allowing exploration of an underreported and often overlooked area of victimisation over time. The strength of this survey comes from the methodology employed. Face-to-face interviews are conducted in a private setting by experienced interviewers. The International Violence against Women Survey

Table 5.2 Key surveys relating to crime and justice in Australia and New Zealand

Type of survey	Examples of topics covered	Australian examples	NZ examples
Victimisation (household)	• prevalence of crimes within the community • Crimes reported to police • Number of victimisations • Actions taken by victim • Socio-demographic characteristics of victims of crime	• Crime victimisation (ABS cat. no. 4530.0) • General social survey (ABS cat. no. 4159.0) • National Aboriginal and Torres Strait Islander social survey (ABS cat. no. 4714.0) • Personal safety survey (ABS cat. no. 4906.0) • Personal fraud survey (ABS cat. no 4528.0)	NZ crime and safety survey (NZCASS) (Ministry of Justice 2014)
Victimisation (business)	• Prevalence of crimes within industry • Crimes reported to police or regulators • Number of victimisations experienced • Actions taken by organisation in response • Industry and organisation characteristics	• Crimes against business survey (Walker 1994) • Retail crime and safety survey (Crime Prevention Unit 1998) • Crimes against small business survey (Perrone 2000) Various private sector surveys whose availability is unknown	Retail theft and security survey (Guthrie 1999)
Self-report	• Delinquent and antisocial behaviours • Illicit drug use	• Drug use monitoring (AIC) • Illicit drug reporting system (IDRS) (NDARC) • National drug strategy household survey (AIHW)	Cannabis use survey (Ministry of Health 2015)
Attitudes and perceptions	• Feelings of safety in specific locations and at specific times • Perceptions of social disorder • Perceptions of and trust in institutions of the criminal justice system	• Crime victimisation (ABS cat. no. 4530.0) • General social survey (ABS cat. no. 4159.0) • Personal safety survey (ABS cat. no. 4906.0) • National community attitudes to violence against women survey (NCAS) (VicHealth)	NZ crime and safety survey (NZCASS) (Ministry of Justice 2014)
Self-protection	• Personal, household, or business security measures taken • Costs incurred	Home safety and security survey, WA (ABS cat. no. 4526.5.55.001)	

conducted by AIC in 2002/2003 allowed some international comparisons on this topic, albeit through a different telephone-based interview methodology.

Other regular victimisation surveys have included the ABS Crime and Safety Survey, which ran irregularly from the 1970s and evolved into the annual Crime Victimisation Survey, which has been conducted since 2008/2009. The Crime Victimisation Survey format has allowed exploration of additional modules exploring social disorder and feelings of safety, for example. Regular national survey data in New Zealand are available from the Crime and Safety Survey conducted by Statistics New Zealand. Australia and New Zealand both participated in several waves of the International Crime Victimisation Survey in the past, allowing some international comparisons: Australia in 1989, 1992, 2000/2001, and 2004/2005 and New Zealand in 1992 and 2004/2005.

Surveys of crime against businesses are more often conducted by private companies and professional services firms, and an exception was an AIC small business criminal victimisation survey in the 1990s.

Major self-report studies include the AIC's Drug Use Monitoring in Australia (DUMA) survey, querying respondents in police custody about illicit drug use and its relationship to criminal activities combined with urinalysis components since 1999 (Coghlan et al. 2015). The AIHW National Drug Strategy Household Survey is another example (AIHW 2014), producing crucial estimates of illicit drug usage and harms across the community. In New Zealand, similar data are collected through the NZ Ministry of Health (2010, 2015).

Gaps in Core Crime and Justice Data Collections

ABS and Statistics New Zealand undertook consultations in the 2000s to identify the key data development requirements in the national crime and justice collections. The ABS published its findings and future directions in the National Information Development Plan for Crime and Justice Statistics (2005). Statistics New Zealand published its findings in the Review of Crime and Justice Statistics (2009). Key gaps and areas of deficiency require data development activity and investment to meet the needs of researchers and policy makers. This includes: (1) more comprehensive and complete crime and justice data relating to Aboriginal and Torres Strait Islander peoples, particularly given the historical lack of inclusion of Aboriginal and Torres Strait Islanders in justice statistics until the latter part of the twentieth century (Graycar and Grabosky 2002), and growing overrepresentation as both victims and offenders; (2) data relating to the experience of specific groups, such as

culturally and linguistically diverse communities or people with disability as offenders and victims; (3) data relating to stages of the justice system not currently included in the national statistical collections, such as prosecution processes and post-corrective services release activities; (4) measures of family violence—beyond surveys providing community prevalence and incidence estimates—which effectively demonstrate engagement with justice institutions, government social service systems, and third sector service providers; (5) technologically enabled cybercrime or electronic crime as well as many related variants of transnational crime; (6) terrorism-related offences and other Commonwealth offences that are only visible from courts system onwards in many cases; (7) any crime groupings which are based not upon offence type, but upon the context in which the crime occurs, for example, crimes related to organised crime which can only be determined sometimes after the fact, or gang-related activity; and (8) drug-related crime and the involvement of drugs and alcohol in criminal offending and victimisation. It should be noted that many of these shortcomings in existing national data collections remain exceptionally difficult to overcome, due to conceptual difficulties and limitations inherent in the jurisdiction of different justice institutions.

Challenges for Researchers

This chapter has outlined a number of data challenges for criminologists, such as gaps and limitations in quality, quantity, breadth, depth, and coverage on specific topics of interest. Further challenges for researchers working in Australasia may include the cost of accessing information; the cost of data production; gaining approval to access data sources, particularly for researchers who seek to negotiate with institutions whose main remit is not the release of data; and issues around ethics, confidentiality and privacy (Israel 2004). The latter may prove particularly challenging for researchers who look to work across different institutions and jurisdictions, where procedures, policies, and practices may vary.

Future Opportunities

While limitations exist, there are emerging opportunities for data-driven criminologists to explore which will lead to new perspectives on observable crime and justice issues. The increasingly affordable range of analytical tools

available—combined with pushes towards open data releases by governments—will transform quantitative research opportunities.

Location-related data are playing an increasingly important role in criminology. A growing number of spatially referenced datasets are becoming available and at no cost. Street network and address point data, administrative boundary files, and location-based socio-demographic information are now easily accessible. The backbone of this work finds itself in initiatives such as the Geo-Coded National Address File (G-NAF) that provides accessible and comprehensive address and boundary data on state, suburb, street, number, and geographic coordinates for street addresses. Similarly, the Administrative Boundaries dataset—which the government released via PSMA Limited in 2015—contains ABS boundaries, electoral boundaries, state and territory boundaries, local government areas, suburbs, wards, and town points. Every year, Statistics New Zealand releases geographic data that can be linked to boundaries files; that can be used to define mesh-blocks, area units, wards, or regional council areas; and that can be joined with other spatial or non-spatial data. These regularly updated resources, combined with crime data, support place-based criminological studies.

Data linkage techniques have been used in the social sciences for some time. Crime and justice research in Australia and New Zealand has been slow to take advantage of emerging techniques, which have, for example, flourished more readily in the health fields (Ferrante 2009). Given the disconnected information systems proliferating across criminal justice in Australia and New Zealand, data linkage provides the only readily available method for conducting research about the pathways individuals take through the criminal justice system, enabling sophisticated studies of recidivism, criminal careers, and trajectory studies. Due to the granular level of data required for linkage, agencies located within or adjacent to criminal justice agencies have a particular advantage in developing data linkage studies. Collaborative arrangements between the academy and government entities will open up greater opportunities to produce knowledge.

Developments in big data analysis are yet to fully impact upon criminology. Crime and justice data have traditionally been contained to datasets generated through set research activities such as surveys or has been created as citizens interact with the criminal justice system. As we are unquestionably moving into the so-called big data information age, opportunities will emerge for criminologists and data scientists—or indeed, quantitative criminologists—to reimagine the current methods and uses of criminal justice data. These new approaches may assist us to overcome some inherent limitations in current data, and create new ways of studying crime, perceptions of crime, and impacts

on individuals and the community. As the increasingly digital interactions that individuals have with the world create new data sources, such as social media data or sensor information, new prospects for analysis emerge. Many of the techniques that were historically the purview of intelligence analysts may now increasingly be useful to researchers. Through the application of big data tools and techniques, researchers are able to identify patterns, trends, and relationships in large, unstructured datasets. As new digital landscapes open up to both criminality and the practice of justice and regulation, so criminologists must follow, taking advantage of new tools and techniques.

Conclusion

Today, Australian and New Zealand researchers and policy makers have access to more administrative crime and justice data than ever before. Detailed information about crime victims, offenders, and offences can be gleaned from crimes recorded by police. Similarly, criminal court data provide insight into the adjudication of criminal cases and the sentencing of those convicted. Finally, corrective services data contain details of prisoners and those under correctional supervision. Other administrative data such as hospital and emergency admissions are also available and can be used to develop a more comprehensive picture of crime and justice in Australia and New Zealand.

A growing number of survey datasets have also emerged over the years. For example, victimisation data, as well as data on attitudes and perceptions of crime, are available from national surveys such as Australia's General Social Survey and New Zealand's Crime and Safety Survey. Other self-reported survey data are available from the Drug Use Monitoring in Australia (DUMA) Survey and the National Drug Strategy Household Survey.

Despite existing administrative and survey datasets in Australia and New Zealand, there are clear deficiencies in some areas. For example, more information about cybercrime and terrorism-related offences is needed, and the interconnectivity of extant datasets also needs to increase. Whether these needs will be met in the future is uncertain, but what is clear is that as new sources of data emerge in Australia and New Zealand, so does the opportunity to discover and develop new ideas and ways of thinking about crime and crime-related issues.

Notes

1. See historical *Year Books* published by ABS and Statistics New Zealand for crime, criminal courts, and prison statistics dating back to the nineteenth century.
2. For a detailed account of 1960–1980 attempts at national uniform crime statistics, see Mukherjee et al. (1987).
3. See ABS (2011b) and National Crime Statistics Unit (ABS 2005) for further details of comparability challenges within the national recorded crime collections.
4. The national recorded crime collection excludes matters dealt with AFP and Commonwealth law enforcement agencies.

References

ABS. 1908. *Year Book Australia 1908*. Canberra: ABS.

ABS. 1994. *National Crime Statistics, January–December 1993*. Cat. no. 4510.0. Canberra: ABS.

ABS. 2005. *Differences in Recorded Crime Statistics*. Canberra: ABS.

ABS. 2011a. *Australian and New Zealand Standard Offence Classification (ANZSOC)*. Cat. no. 1234.0. Canberra: ABS.

ABS. 2011b. *Measuring Victims of Crime: A Guide to Using Administrative and Survey Data*. Cat. no. 4500.0.55.001. Canberra: ABS.

AIHW. 2014. *National Drug Strategy Household Survey*. Canberra: AIHW.

Coghlan, Sarah, Alexandra Gannoni, Susan Goldsmid, Eileen Patterson, and Matthew Willis. 2015. *Drug Use Monitoring in Australia: 2013–14, Report on Drug Use Among Police Detainees*. Canberra: AIC.

Crime Prevention Unit. 1998. *Retail Crime and Safety Survey*. Adelaide: Attorney-General's Department South Australia.

Ferrante, Anna. 2009. The Use of Data-Linkage Methods in Criminal Justice Research: A Commentary on Progress, Problems and Future Possibilities. *Current Issues in Criminal Justice* 20: 378–392.

Forster, Colin, and Cameron Hazelhurst. 1988. Australian Statisticians and the Development of Official Statistics. In *ABS Year Book Australia, 1988*. Cat. no. 1301.0. Canberra: ABS.

Graycar, Adam, and Peter Grabosky. 2002. Trends in Australian Crime and Criminal Justice. In *The Cambridge Handbook of Australian Criminology*, ed. Adam Graycar, and Peter Grabosky, 7–26. Port Melbourne: Cambridge University Press.

Guthrie, John C. 1999. *New Zealand Survey of Retail Theft and Security*. Dunedin: University of Otago.

Israel, Mark. 2004. *Ethics and the Governance of Criminological Research in Australia*. Sydney: BOCSAR.

Knight, Gavin, Anand Krishnan, and Ange Bissielo. 2016. *The Transformation of NZ Police Crime Statistics: New Measures and Trends*. Wellington: NZ Police.

Ministry of Justice. 2014. *New Zealand Crime and Safety Survey (NZCASS)*. Wellington: Ministry of Justice.

Mukherjee, Satyanshu K., John R. Walker, Trish Psaila, Anita Scandia, and Dianne Dagger. 1987. *The Size of the Crime Problem in Australia*. Canberra: AIC.

National Uniform Crime Statistics Committee. 1989. *Measuring Crime. Report of the National Uniform Crime Statistics Committee Australia*. Canberra: National Uniform Crime Statistics Committee.

NZ Ministry of Health. 2010. *Drug Use in New Zealand: Key Results of the 2007/2008 New Zealand Alcohol and Drug Use Survey*. Wellington: NZ Ministry of Health.

NZ Ministry of Health. 2015. *Cannabis Use 2012/13: New Zealand Health Survey*. Wellington: NZ Ministry of Health.

Perrone, Santina. 2000. *Crimes Against Small Business in Australia: A Preliminary Analysis*. Canberra: AIC.

Statistics New Zealand. 2009. *Review of Crime and Criminal Justice Statistics Report 2009*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2013a. *Progress Report for 2009 Review of Crime and Criminal Justice Statistics*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2013b. *Tier 1 Statistics 2012*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2015a. *IDI Data Dictionary: Child, Youth and Family Data*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2015b. *IDI Data Dictionary: Recorded Crime Offenders Data*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2016. NZ.Stat. Get Data on Demand. http://nzdotstat.stats.govt.nz/wbos/Index.aspx. Accessed 15 May.

Stewart, Anna, Susan Dennison, Toy Allard, Carleen Thompson, Lisa Broidy, and April Chrzanowski. 2015. Administrative Data Linkage as a Tool for Developmental and Life-Course Criminology: The Queensland Linkage Project. *Australian and New Zealand Journal of Criminology* 48: 409–428.

UN Department of Economic and Social Affairs. 2003. *Manual for the Development of a System of Criminal Justice Statistics*. New York, NY: UN Department of Economic and Social Affairs.

UN Office on Drugs and Crime. 2010. *Manual on Victimisation Surveys*. Geneva: UN Office on Drugs and Crime.

Walker, John. 1994. *First Australian National Survey of Crimes Against Businesses*. Canberra: Australian Institute of Criminology.

Wyman, Kim. 1970. The Dilemma of Crime Statistics in Australia: Atrophy or Growth? *Australian and New Zealand Journal of Criminology* 3: 45–49.

Author Biographies

Fiona Dowsley is founding Chief Statistician of the Victorian Crime Statistics Agency, a Director of the Victoria Sentencing Advisory Council, and former Director of the ABS NCCJS. She led the measurement of national progress and social trends analysis and contributed to the global UNODC task force on the development of an international classification of crime.

Timothy C. Hart is a Senior Lecturer at Griffith University. He received his PhD in criminology from the University of South Florida. His research focusses on applied statistics, survey methodologies, and geographic information systems. Tim has worked for the BJS and the DEA. He is the co-author of *Space, Time and Crime* and *The Mismeasure of Crime*.

6

Crime, News, and the Media

Judy McGregor

The saturation of the media with crime news has been apparent for over 500 years since the first publication about a murder (Shaaber 1934). But the way in which crimes news is being told and read, heard, seen, and received by the public raises new issues about "tabloid justice" (Fox et al. 2007). Anxieties about the news media's reporting of crime have traditionally centred on questions such as how much is too much, which crime is reported and why, and what influence does all of this have on policing, law and order policy, and the criminal justice system. These remain important questions.

This chapter explores several traditional and new themes relating to the nexus between the media and crime with reference to international and Australian and New Zealand examples. It examines the overrepresentation of crime in the news media with reference to new empirical data from New Zealand and why this matters and looks at the concentration on violence and sensationalism. The chapter also examines the concept of moral panic referencing some examples. Who speaks about crime and the sources of crime news are discussed, and both the gendered nature of the news and the issue of indigeneity and crime news are referred to.

The rapid transformation in how citizens generate, disseminate, and receive crime news through digital platforms also poses new challenges to criminological thinking. Newer trends relating to social media, new media, and crime news raise questions about whether crime news scholarship is at a turning point.

J. McGregor (✉)
Auckland University of Technology, Auckland, New Zealand
e-mail: jmcgregor@aut.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_6

Overrepresentation

A pervasive concern of crime media scholars concerns the overrepresentation of crime news. Muncie (1999) says that since at least the mid-1880s, crime news has been a staple diet of the popular press. International research (Reiner 2002; Roshier 1973) and domestic studies (McGregor 1993, 2002) have focussed on both quantitative and qualitative data to show there is too much crime in the news compared with its statistical prevalence.

In new empirical data collected for this chapter, research was undertaken of the percentage of crime news in New Zealand's largest daily newspaper, the *New Zealand Herald*. Crime news included news about crime incidents, specific police operations and police activities, legislative activities about crime and policing, and court reporting. The results were remarkable. The research covered 30 days in March 2016. Of the 233, 232 square centimetres of hard news published during the period, a total of 72,503 square centimetres, or 31%, was related to crime. On 2 days of the month, more than 70% of news was crime-related with coverage of a police shooting incident in the Bay of Plenty, an investigation into burglaries and the next day with follow-ups on both subjects. On only 9 days of the month did coverage fall below 20% crime news.

These figures are significantly higher than recorded in previous New Zealand research using the same methodology. In 1992, a study of five newspapers showed that crime news amounted to only 16% of total hard news reported in the month of May with the *New Zealand Herald* at 21%. The same study repeated in 2001 (McGregor 2002) showed an increase of crime news as a percentage of hard news to 20% with the *New Zealand Herald* at 24%. In this study, the most crime-saturated day say crime news reach 55% in the *Herald.* The 1992 study showed that the *New Zealand Herald* had the highest daily content of crime news representing 31% of crimes news as a proportion of the total hard news space measured in square centimetres.

Not only has crime coverage in newspapers increased, it has also markedly changed in its origin, content, and sourcing. In the 1993 study, court reporting was approximately 45% of crime news and the New Zealand Press Association (NZPA) was a significant source. Dwindling newsroom resources means that there are no longer specialist reporters rostered on a daily basis covering criminal courts, and NZPA no longer exists as a cooperative agency. Instead, new elements have appeared in crime coverage such as terrorism and "victims as celebrities". Often single source stories convey in direct speech

heightened emotion and include calls for retribution. Another feature that reflects inadequate journalistic resources is the greater number of news backgrounders, news manufactured from statistics, files, the Internet, or previous stories; all of which do not require travel, interviews, or the spirit of detailed journalistic inquiry.

Violence and Sensationalism

The overrepresentation of violence including violent death in media representations remains a familiar theme in analysis of crime news. AIC (2016) statistics show that the rate of homicide victimisation has never exceeded two per 100,000 in the 17 years for which data sets have been available and victimisation has stayed at one per 100,000 since 2007. In 2013, New Zealand recorded the lowest overall crimes figures in 29 years with a 4.1% drop over a year (Tait 2016).

Despite these trends, violence including violent death continues to dominate headlines and media representation of crime. As Jewkes (2011) states, it remains a staple of media reporting, despite research that consistently establishes its overrepresentation in the news by comparison with its actual occurrence.

Why is the amount of crimes news and the type of crime covered important? The AIC states that the public perception of crime and criminal justice can have an important influence on policy decisions relating to operational activity in frontline law enforcement and in judicial sentencing. However, there is often a discrepancy between the perception of the likelihood of crime victimisation and the actual risk of victimisation (Davis and Dossetor 2010). The gap is commonly attributed to the expansive media coverage of crime, especially violent and sensational crime (Duffy et al. 2008). Members of the public usually have limited personal experience with crime (Surette 2007) and rely on television, radio, print media, and the Internet as dominant media constructions of crime. Television, in particular, is associated with a greater misperception of the crime rate (Davis and Dossetor 2010).

The media's atomistic coverage of individual and sensational acts of crime means limited media coverage and low visibility of systemic criminal justice trends such as the chronic overincarceration of Indigenous populations (Cunneen 2006) and the consequences on record-high prison musters as a result of punitive law and order policies (Ellingham 2016).

The role of talkback radio "shock jocks" and the tabloid media is examined in an analysis of the reversal of bail reform in NSW (Brown and Quilter

2014). Bail reform promoter and former NSW Attorney-General, Greg Smith, was pictured on the front page of the *Daily Telegraph* with a banner headline that read "How DPP Greg Smith went from Rambo to cream puff with stance on sentencing in NSW". The research notes that influential right-wing shock jock Ray Hadley of 2GB Radio repeatedly said Greg Smith was "soft on crime" and a "lunatic" until Smith was dismissed.

In the New Zealand context, a Sensible Sentencing Trust (SST) campaign aimed at judges and the *Bail Act 2000* exploited the family of 18-year-old Christie Marceau, who had been killed by Akshay Chand while he was on bail for kidnapping and assaulting her and who was later found criminally insane (Johnston 2012). Exploiting social media and mainstream press, the SST used the family to launch a "Christie's Law" campaign selling t-shirts and hats. Trust critics said the campaign was aimed at influencing the public and political opinion about the need for harsher penal policies because of what the SST described as "bail fail" (Johnston 2012).

Who Speaks About Crime?

The current lack of investment in the reportorial functions of journalism across print, radio, and television is a consequence of the decline of a public service ethic, the conglomeration of ownership and the convergence of platforms, among other factors. It has radically altered who speaks about crime and under what circumstances. The balance between reporter, police media spokespeople, victims, and criminal justice officials has altered, shifting power away from journalists. The rise and control of police spin doctors as an organised force in the making of crime news mean that the public often receives the crime news the police want them to receive. Police spin doctors are additional to the traditionally strong voice in the news media of police unions which are generally protective of police image. Finnane (2000, 16) notes that the "media became at some point a captive of police union viewpoints".

What was previously described as a symbiotic and reciprocal relationship between the news media and the police, with the police needing to extract information from the public via the news media and the press providing a conduit for police propaganda (McGregor 1993), needs to be reconceptualised. Unequal relationships between sources of crime news and journalists are now the norm with an increasing reliance by journalists on police media units. Australian researchers, McGovern and Lee (2010, 444–445) examined the NSW Police Media Unit (PMU) to assess the journalistic deployment of

information from police media units and said: "The almost mundane reproduction of police press releases in the mainstream media … is perhaps for the most part innocuous. However, upon closer analysis, the breadth of such reproduction also provides us with a telling picture of just how, and by whom, stories regarding law, order and criminal justice are framed".

They reported that the NSW unit is a round-the-clock operation staffed by a significant number of experienced journalists, public relations experts, and police officers and "we believe PMUs demonstrate something of a broader shift in both governing rationalities and technical capacities" (456). While earlier Australian research (Grabosky and Wilson 1989) had indicated that police used to be the starting point for a story, "our data suggests it is now much more than this. In many cases, the PMU story *is* the news story" (McGovern and Lee 2010, 456).

The police have always been in a privileged position in relation to the ownership and dissemination of crime information (Cooke and Sturges 2009) and have traditionally employed divide-and-rule tactics of favouritism preferring compliant "understanding" journalists over the more "difficult" and questioning reporters. But the new dynamics of police–public relations means an overreliance on and dominance of police as sources of crime news, which challenges journalistic integrity. Additionally, McGovern and Lee (2010) identify new forms of media instrumentalism and of the "culture of control" by police.

Control has certainly been a recent feature of the New Zealand police force's interaction with criminologists who have a media profile. University of Canterbury sociologist and gang researcher, Dr. Jarrod Gilbert, hit the headlines with a column in the *New Zealand Herald* protesting that the police had deemed him unfit to undertake crime research because he knew criminals. He said he was banned from accessing basic and uncontroversial police data. He wrote that for "an academic who studies crime this is rather crippling. It is also a staggering abuse of power" (Gilbert 2015). He claimed researchers were being asked to sign legal contracts for research and submit draft reports to the police. If the results were "negative," then researchers were being told to "improve the outcomes". Five days later, after a public and political debate by the media and bloggers relating to freedom of expression and researcher access, NZ Police apologised to Dr Gilbert for the ban (Schoultz 2015). Given the small number of criminologists who are regular media commentators on crime and policy, new forms of "control" by the police further inhibit the media's ability to widen the diversity of sources of news and information.

The narrowness of voice has been noted by Maxwell (2009, 8), who said it was not only the amount of crime covered but also the type of coverage that was a problem, criticising the media's choice of commentators. "Using self-styled sensible sentencers and the police union rather than knowledgeable and unbiased experts increases the negativity of tone. The outcome is to distort our perception of crime, unwarrantedly increases fearfulness about personal safety and undermine public confidence in those who are responding to it".

The type of crime news the public receives is therefore impacted by the withdrawal of daily criminal court coverage, the absence of white collar crime coverage at a time of significant global financial malfeasance, the rise of "victim self-expression" and the reliance of the news media on the readily accessible voice of right-wing lobbyists interested in punitive sentencing regimes.

Indigeneity and Crime News

Researchers, some of them Indigenous, have widely condemned the news media's portrayal of Māori and Aboriginal people in crime news coverage in both print media and broadcast genres (Fox 1992; McGregor and Comrie 1995). The late Māori academic Ranginui Walker (2002) described in his Foucauldian analysis entitled "Māori News is Bad News" the ideological function of the press in supporting the hierarchy of Pākehā domination and Māori subordination in the colonial and post-modern era. Matheson (2007, 93) states there is little evidence of biculturalism in news agendas but rather a consistent focus on what he called "Māori as problems, criminal, radical, dangerous, exotic, deviant". Analysing the Redfern riots in Australia, Gargett (2005, 4) argued that mass media representations of Indigenous peoples, especially in the news, is about power relations and the construction and maintenance of social norms. "The violence of colonialism is repeated over and over again as the media continue to write Indigeneity as deviant".

Nairn et al. (2012) found that stories linking Māori to child abuse and other violence dominated the Māori news in English-language TV bulletins. By contrast, Māori language bulletins carried less than half the stories. The researchers suggested that those responsible for English-language bulletins unreflectively followed normal practice and chose to present Māori stories that, in effect, "directed viewers to think about events and situations in which Māori people are most dangerous and unattractive" (43).

Moral Panic

The demonisation of Indigenous peoples, in both the New Zealand and Australian context, is linked to the concept of moral panic. Young (1971) referred to the media's role in manufacturing news through the labelling of non-conformist groups, and Cohen (1972) published his account of the media's coverage of the Mods and Rockers called *Folk Devils and Moral Panics: The Creation of the Mods and Rockers*. Jewkes (2011, 77) lists the five defining features of the moral panic model as follows: (1) "Moral panics occur when the mass media take a reasonably ordinary event and present it as an extraordinary occurrence". (2) This sets off "a 'deviance amplification spiral' in which moral discourse is [fuelled] by journalists and [elite voices], who collectively demonise the wrong-doers as sources of moral decline and social disintegration". (3) "Moral panics clarify the moral boundaries of the society in which they occur, creating consensus and concern". (4) They "occur during periods of rapid social change, and … crystallize wider social anxieties about risk". (5) Often, "young people … are targeted, as … their behaviour is … a barometer with which to test the health or sickness of a society".

A further refinement comes from Garland (2008) who states that moral panics involve some sort of reverberation or projection from collective moral concerns and that they can be defined by an excessive state response that is disproportionate.

Collins' (2005) paper examined moral panic about ethnic crime in Australia with a focus on Middle Eastern crime in Sydney. He argued that there was a moral panic about ethnic crime in Sydney that was embedded in sensationalist reporting and opportunistic political responses that had exaggerated the criminality of ethnic minorities. He said it was causing distress for many Australians of minority immigrant background who were now tarred with the brush of criminality and, for some, terrorism, particularly in the aftermath of 9/11 and the Bali and London bombings. He said: "This moral panic has reinforced negative stereotypes about minority communities, is reinvigorating racism and prejudice and, as a consequence, is threatening the social cohesion in one of the world's most successful multicultural societies. Moreover, the moral panic about ethnic crime has diverted attention away from the meaningful policy responses that are needed to address matters of crime in particular, and cosmopolitan societies in general" (3).

Academics who examined "bikie" gang wars in Sydney used the moral panic model to make sense of the short-term outpourings of public and media concern (Morgan et al. 2010). They argue that the dynamics of moral panics have shifted in the twenty-first century as the boundaries between general

policing and counterterrorism are being erased. Further, they state that there was an "orchestrating role played by senior police officers in the racialisation of the bikie moral panic in the Australian state of New South Wales as a strategy for increasing their powers" (582). The study analysed among other events the 2009 clash between two rival gangs, the Hells Angels, and the Comancheros, who were coincidentally booked on interstate flights into Sydney at much the same time. An ensuing airport terminal brawl involving Middle Eastern men led to the death of Anthony Zervas, who was associated with the Hells Angels and bludgeoned to death with a metal stanchion. Politicians and the media then raised—in connection with the incident—the threat of airport terrorism and a "reign of terror" (Morgan et al. 2010).

In the New Zealand context, the moral panic model has similarly been applied to "bikie" gangs as folk devils (Kelsey and Young 1982) and to the case of two missing Swedish tourists and the subsequent arrest for the double murder of the brother of a prominent Māori politician (McGregor 1990).

Gender, Media, and Crime

Feminist scholars have identified gender issues in crime news. Professor Chesney-Lind told a 2012 criminology conference that a moral panic about violent girls was seeing more of them arrested and jailed, even though evidence suggests that they were actually becoming less violent (Collins 2012). Marginalised women are often blamed for their victimisation while privileged male offenders, especially if they are prominent sportspeople, are excused. Media descriptions of the remorseful and tearful All Blacks winger, Julian Savea, after his Wellington court appearance in 2013 on common assault charges against his female partner, are a relatively familiar media motif.

The gendered nature of news content and how it has changed is documented every 5 years in the Global Media Monitoring Project. In 2015, it analysed data from 114 countries across more than 22,000 stories published, broadcast, or tweeted. It reports that "crime and violence" was the most prominent topic with an increased percentage of stories (up 7%) with women as a central focus. The percentage of crime and violence stories had also increased (up 4%). The Global Media Monitoring Project (2015, 2) stated that:"During the period 2005–2015 the only category in which portrayals of women as survivors has risen-by more than four times-is as survivors of domestic violence. Women are more than four times more likely to be depicted as survivors of domestic violence (27 percent) than they were 10 years ago when the statistic was 6 percent".

Academic scholars have also characterised the way "fallen women" are depicted in crime media narratives. A detailed study of a century of press coverage of infanticide in Australia and the UK (Goc 2013, 1) talks of the news stories of mothers who have killed their new-born babies and states that the infanticidal woman is either "demonized or pathologised, but rarely understood,because how do you make sense of such a brutal act". Standard narratives are used by the media to describe women who commit significant crimes. These narratives include "bad wives", "bad mothers", "mythical monsters", "mad cows", and "evil manipulators" along with "sexual deviants" (Jewkes 2011). In the New Zealand context, a familiar construction is the "bad teen mother" who is a "benefit no-hoper" linking gender, age, and socio-economic status as markers of deviance.

Social Media, New Media, and Crime News

The exponential expansion of the Internet has fuelled computer-assisted crimes such as hate speech, child pornography, and cyber-fraud. All of these have captured the attention of researchers. However, this chapter concentrates on examples that show how the Internet is now shaping the media agenda; how its ubiquity exacerbates "trial by media"; and how Internet accessibility has the potential to de-professionalise journalism.

Garland and Sparks (2000) have noted that contemporary criminology inhabits a rapidly changing world, a more interconnected world transformed by globalisation, the exponential use of the Internet, and new forms of cultural life and expression online that were previously unanticipated in scope, reach, magnitude, and diversity. Social media is a manifestation of this and has become a significant factor in how the media constructs and represents crime. The representation of crime in social media formats confirms many aspects of traditionally established crime media research such as saturation coverage. It also emphasises elements such as intermedia agenda-setting, for example, the degree to which a social media post drives mainstream coverage.

Analysing the kidnapping, rape, and murder of Melbourne woman, Jill Meagher, Australian researchers argue that her death highlighted a range of issues in relation to criminalisation, crime prevention, and policing strategies on social media that criminologists should be engaging with (Milivojevic and McGovern 2014). In particular, they focussed on the agenda-building process of social networking platforms. The researchers joined—as passive participant-researchers—the Facebook groups associated with the "Help Us Find Jill Meagher" page, later renamed "R.I.P Jill Meagher". There was unprecedented, frenzied social media traffic on these pages with the *Herald*

Sun newspaper reporting that the social media campaign was up and running prior to Victorian Police confirmation of her disappearance. Ainsworth and Casey (2012) reported that there were 33 million Twitter feeds and 114,000 "likes" on Jill Meagher's missing persons Facebook page. CCTV footage of the missing woman's last movements published on YouTube was distributed by both the police and Facebook pages to millions of people. They calculated that the footage and two missing person posters were seen by more than 966,000 Facebook users.

The staggering scale of the social media's fascination for the case almost inevitably extended to trial by social media. Milivojevic and McGovern (2014) quote reports that after her killer Adrian Bayley was arrested, Meagher's name was mentioned on Facebook, and Twitter every 11 s on the morning of the arrest, while the CCTV footage was watched a further 7500 times within 2 h. Hate groups, hateful postings, and tweets about the accused were also featured. His photo was posted on social media under a "Publicly hang Adrian Ernest Bayley" message (Milivojevic and McGovern 2014). The potentially negative impact of inflammatory social media posts on criminal investigations and on court cases go to the heart of the integrity of the justice system.

The ubiquity of the Internet adds problematic dimensions to news gathering techniques and publishing in a digital age. These include the probability that crime news will more regularly be broadcast by untrained journalists. A 9-year-old American girl, Hilde Kate Lysiak, used her "Orange Street News" website to file a video from a murder scene, beating local journalists to the story (Smith been elevated to a new genre. 2016). Negative feedback posted on YouTube included disgust that this "cute little girl thinks she is a real journalist". Hilde said she was able to "inform the people that there was a terrible murder hours before my competition even got to the scene". Her father told the *Washington Post* she "doesn't have a lot of fear. She just wants to get the stories out. And she really wants to report real news". The absence of her journalistic training was not debated. Any individual can record real-time crime on a mobile phone and post content without ethical or privacy considerations, and without any form of traditional journalistic mediation or professional judgement.

The practice of re-publishing material on social media has significant privacy effects, especially if it intrudes on the privacy of a deceased person, vulnerable groups, or grieving relatives. The practice was condemned by the outgoing chair of the Australian Press Council, Professor Julian Disney (Osborne 2015). He said the practice of re-publishing material posted on social media was becoming a significant problem for Australian media outlets and was often a breach of privacy. The power of new media to dictate news

choice by the old media, or what has been called intermedia agenda-setting (Golan 2006) warrants more investigation by crime news researchers.

However, others see greater public accessibility to better investigative journalism in a digital age. Greive (2015) claims that Netflix's 10-part documentary *Making a Murderer*, which covers the life and trials of Wisconsin man Steven Avery, was part of a "holy grail of TV now: talkable television that markets itself through social media". The documentary is almost entirely made up of contemporary footage: interviews, courtroom film, prison phone calls, and defendant conversations. The filmmakers had "embedded" themselves with family members. Grieve noted the irony that New Zealand's major networks had, in the previous year, "divested themselves of the people best equipped to create New Zealand's version of the most exciting new genre around: investigative journalists".

Conclusion

This chapter outlines scholarship which suggests that the media does a poor job of reporting crime given the news media's elevated status as a democratic force. Chagnon (2015), in his reconsideration of the ideological influence in crime news production, suggests that there have been three approaches evident. First, he references the classic conceptualisation of crime news as a product of dominant ideologies and elite, hierarchical power. Second, there is crime news seen as a result of journalistic routines and news values, such as the ascendancy of personification by which the emotional invocation of victims has been elevated to a new genre. This is coupled with the reflexive agency of journalists. More recently, the third approach of hybridised perspectives, such as the approach taken in this chapter, has been popular.

Is crime news scholarship at a turning point? Content analysis of print, radio, and television news has shown at least two essential features in the last 20 years; an increase in the amount of crime news reported and its general stability as prime news even as there are shifting power dynamics between sources of the news. The unpredictability, the reverberation, the reach, the scope, and the influence of social media and the Internet on other media, the public, and politicians, means that we must now test and refine our theories about crime news manufacture. For example, no one could have anticipated the degree of "virality" evident in the Meagher case, nor could they have imagined the speed of public inflammation it evoked. We need to better understand what such phenomena mean for the criminal justice system and the law and order policies that emanate from it.

References

AIC. 2016. Victims of Violent Crime (Rate per 100,000). http://aic.gov.au/dataTools/facts/vicViolentRate.html. Accessed 9 Sept 2016.

Ainsworth, Michelle, and Casey Brendan. 2012. Worldwide Outpouring of Grief over Man Arrested for Jill Meagher's Disappearance. *Herald Sun,* September 28.

Brown, David, and Julia Quilter. 2014. Speaking Too Soon: The Sabotage of Bail Reform in New South Wales. *International Journal for Crime, Justice and Social Democracy* 3 (3): 73–97.

Chagnon, Nick. 2015. Reverberate, Resonate, Reproduce: A Reconsideration of Ideological Influence in Crime News Production. *Critical Criminology* 23: 105–123.

Cohen, Stanley. 1972. *Folk Devils and Moral Panics: The Creation of the Mods and Rockers*. London: Routledge.

Collins, Jock. 2005. Ethnic Minorities and Crime in Australia: Moral Panic or Meaningful Policy Responses. Paper presented at Public Seminar, Office of Multicultural Interest Western Australia, November 8, in Perth.

Collins, Simon. 2012. Expert Disputes Girls' Crime Wave. *The New Zealand Herald,* November 29.

Cooke, Louise, and Paul Sturges. 2009. Police and Media Relations in an Era of Freedom of Information. *Policing and Society* 19 (4): 406–424.

Cunneen, Chris. 2006. Racism, Discrimination and Over-Representation of Indigenous People in the Criminal Justice System: Some Conceptual and Explanatory Issues. *Current Issues in Criminal Justice* 17 (3): 329–346.

Davis, Brent, and Kym Dossetor. 2010. *(Mis)perceptions of Crime in Australia*. Canberra: AIC.

Duffy, Bobby, Rhonda Wake, Tamara Burrows, and Pamela Bremner. 2008. Closing the Gap: Crime and Public Perceptions. *International Review of Law, Computers and Technology* 22: 17–44.

Ellingham, Jimmy. 2016. NZ's Prison Muster at Record Level. *The New Zealand Herald,* May 19.

Finnane, Mark. 2000. Police Unions in Australia: A History of the Present. *Current Issues in Criminal Justice* 12 (1): 5–19.

Fox, Derek. 1992. The Māori Perspective of the News. In *Whose News?* ed. Margie Comrie and Judy McGregor, 170–180. Palmerston North: Dunmore Press.

Fox, Richard L., Robert W. Van Sickel, and Thomas L. Steiger. 2007. *Tabloid Justice: Criminal Justice in an Age of Media Frenzy*. Boulder, CO: Lynne Rienner.

Gargett, Andy. 2005. A Critical Media Analysis of the Redfern Riot. *Indigenous Law Bulletin* 18: 1–7.

Garland, David. 2008. In the Concept of Moral Panic. *Crime, Media and Culture* 4 (1): 9–30.

Garland, David, and Richard Sparks. 2000. Criminology, Social Theory and the Challenge of Our Times. *British Journal of Sociology* 40: 189–204.

Gilbert, Jarrod. 2015. Jarrod Gilbert: The Police Have Deemed Me Unfit to Undertake Crime Research Because I Know Criminals. *New Zealand Herald*, November 25.

Global Media Monitoring Project. 2015. *Gender Inequality in the News 1995–2015: Highlights of Findings*. Toronto: World Association for Christian Communication.

Goc, Nicola. 2013. *Women, Infanticide and the Press, 1922–1922: News Narratives in England and Australia*. Surrey: Ashgate.

Golan, Guy. 2006. Inter-Media Agenda Setting and Global News Coverage: Assessing the Influence of the New York Times on three Network Television News Programs. *Journalism Studies* 7 (2): 323–333.

Grabosky, Peter N., and Paul Wilson. 1989. *Journalism and Justice: How Crime Is Reported*. Leichhardt: Pluto Press.

Greive, Duncan. 2015. Real Crime Reporting Grips Us All. *The New Zealand Heral,* January 13.

Jewkes, Yvonne. 2011. *Media and Crime*. London: Sage.

Johnston, Kirsty. 2012. Does Sentencing Trust Cross a Line? *Stuff*, November 11.

Kelsey, Jane, and Warren Young. 1982. *The Gangs: Moral Panic as Social Control*. Wellington: VUW.

Matheson, Donald. 2007. The Interpretative Resources of Aotearoa New Zealand Journalists Reporting on Māori. *New Zealand Journal of Media Studies* 10 (2): 91–105.

Maxwell, Gabrielle. 2009. Changing Crime Rates 1998–2007. Paper presented at 'Addressing the Causes of Offending' IPS Forum, February, in Wellington.

McGovern, Alyce, and Lee Murray. 2010. 'Copy[ing] It Sweet': Police Media Units and the Making of News. *The Australian and New Zealand Journal of Criminology* 43 (3): 444–464.

McGregor, Judy. 1990. Moral Panic and Over-Reporting: The Case of the Missing Swedes. Unpublished Research Report. University of Auckland.

McGregor, Judy. 1993. *Crime News as Prime News in New Zealand's Metropolitan Press*. Auckland: Legal Research Foundation.

McGregor, Judy. 2002. Crime News: The Cutting Edge. In *What's News?*, ed. Judy McGregor, and Margie Comrie, 81–95. Palmerston North: Dunmore Press.

McGregor, Judy, and Margie Comrie. 1995. *Balance and Fairness in Broadcasting News, 1985–1994*. Palmerston North: Massey University.

Milivojevic, Sanja, and Alyce McGovern. 2014. The Death of Jill Meagher: Crime and Punishment on Social Media. *International Journal for Crime, Justice and Social Democracy* 3 (3): 22–39.

Morgan, George, Selda Dagistanli, and Greg Martin. 2010. Global Fears, Local Anxiety: Policing, Counterterrorism and Moral Panic over 'Bikie Gang Wars in New South Wales. *The Australian and New Zealand Journal of Criminology* 43 (3): 580–599.

Muncie, John. 1999. Exorcising Demons: Media Politics and Criminal Justice. In *Social Policy, the Media and Misrepresentation*, ed. Bob Franklin, 174–190. London: Routledge.

Nairn, Ray Barnes, Angela Moewaka, Belinda Borell, Jenny Rankine, Amanda Gregory, and Tim McCreanor. 2012. Māori News is Bad News: That's Certainly So on Television. *MAI Journal* 1 (1): 39–49.

Osborne, Tegan. 2015. Outgoing Australian Press Council Chair Julian Disney Levels Criticism at Media Practices in the Digital Age. *ABC News,* February 5.

Reiner, Robert. 2002. Media Made Criminality: The Representation of Crime in the Mass Media. In *The Oxford Handbook of Criminology*, ed. Robert Reiner, Mike Maguire, and Rod Morgan, 302–340. Oxford: Oxford University Press.

Roshier, Bob. 1973. The Selection of Crime News by the Press. In *The Manufacture of the News: Deviance, Social Problems and the Mass Media*, ed. Stanley Cohen, and Jock Young, 40–51. London: Constable.

Schoultz, Regan. 2015. Police Apologise to Leading Academic Researcher Dr Jarrod Gilbert after Banning Him from Accessing Police Data. *New Zealand Herald,* November 30.

Shaaber, Matthias. 1934. Forerunners of the Newspaper in America. *Journalism Quarterly* 11: 339–349.

Smith, Rohan. 2016. Girl Trolled after Breaking Murder Story. *The New Zealand Herald,* April 7.

Surette, Ray. 2007. *Media, Crime and Criminal Justice: Image and Realities*. Belmont, CA: Wadsworth.

Tait, Morgan. 2016. A Neighbourhood of Victims: Inside New Zealand's Most Burgled Residential Area. *The New Zealand Herald*, March 7.

Young, Jock. 1971. *The Drug Takers: The Social Meaning of Drug Use*. London: MacGibbon.

Walker, Ranginui. 2002. Māori News is Bad News. In *What's News?* ed. Judy McGregor and Margie Comrie, 215–232. Palmerston North: Dunmore Press.

Author Biography

Judy McGregor is Head of School of Social Sciences and Public Policy at AUT. She is a former newspaper editor, human rights commissioner, and a trained lawyer. She has published on aspects of crime news and moral panic. Her latest book *Human Rights in New Zealand: Emerging Faultlines* was published in 2016.

7

Law Reform Targeting Crime and Disorder

Lorana Bartels and Rick Sarre

This chapter presents a brief overview of some key law reform developments and other legislative initiatives in Australia that have helped inform the work of criminologists in the recent past. Specifically, we consider significant changes to the law on bail, evidentiary rules, sentencing laws, legislation targeting one-punch deaths, and cybercrime laws. We also examine laws designed to limit the activities of outlaw motorcycle gangs and suspected terrorists.

We recognise that this is necessarily a highly selective exercise. For example, we have not considered such worthy topics as changes to the laws relating to abortion, the defence of provocation, the empowerment of quasipolice, and the proscription of pre-crime activities, sexting, and cyber-bullying, to name but a few. Nevertheless, we believe the topics selected give a flavour of the tenor and direction of recent law reform activities across Australia.

L. Bartels (✉)
University of Canberra, Canberra, Australia
e-mail: Lorana.Bartels@canberra.edu.au

R. Sarre
Law School, University of South Australia, Adelaide, Australia
e-mail: rick.sarre@unisa.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_7

Bail

Between the December quarters in 2005 and 2015 (ABS 2006, 2016), the number of remand prisoners in Australia increased by 108% to 10,605 prisoners, while the number of sentenced prisoners increased over the same period by 36% to 26,308.

Laws that influence the granting or denial of bail usually provoke much public and academic interest (King et al. 2009). Nowhere have changes to bail been more extensive—or extensively examined—than in NSW. Indeed, Brown et al. (2015, 311) described bail as "one of the main sites where the politics of law and order have played out in NSW". Between 1992 and 2008, there were 23 changes to the *Bail Act 1978 (NSW)*, all of a punitive nature, compared with one to nine such changes in other jurisdictions (Cunneen et al. 2013).

In 2011, a Liberal Government came to power in NSW. The new Attorney-General, Greg Smith SC, took the "laudable step of reforming bail laws" (Brown and Quilter 2014, 74). The government referred the issue to the NSW Law Reform Commission (NSWLRC), which finalised an extensive report in 2012. The NSWLRC described the 1978 Act as "unduly complex and restrictive" (2012, xx) and recommended, inter alia, a presumption in favour of bail for all offences. In spite of criticism from the media and NSW Police (Cunneen et al. 2013), the *Bail Act 2013 (NSW)* was passed with the support of both major parties and the Greens. This Act emphasised the presumption of innocence and "generally favour[ed] bail" (Brown et al. 2015, 318).

Unfortunately, this approach was short-lived. The 2013 Act had been in force for just over a month when three high-profile defendants were granted bail, prompting "a media storm" (Brown and Quilter 2014, 74). By this stage, Mr Smith had been replaced by a new Attorney-General, Brad Hazzard, who announced that a former Labor Attorney-General, John Hatzistergos—who had shepherded in a number of the changes to the previous Act—would oversee a review of the new legislation. This decision was criticised as premature by the former NSW Director of Public Prosecutions, Nicholas Cowdery QC, and the NSW Bar Association (Whitbourn 2014).

Mr Hatzistergos (2014) made 12 recommendations, all of which the government hastily adopted in the *Bail Amendment Act 2014 (NSW)*. These changes reversed the presumption of innocence for a number of offences and circumstances and introduced a category of serious offences for which accused persons would have to show cause why their detention would *not* be justified. The work of the NSWLRC was rendered nugatory.

In 1982, only 12% of the NSW prison population was on remand (Cunneen et al. 2013), compared with 22% in 2005 and 29% in the December 2015 quarter. In August 2015, Weatherburn and Fitzgerald (2015, 1) found that the 2013 and 2014 amendments did "not appear at this stage to have increased the percentage of persons refused bail or the size of the remand population". However, this analysis covered only 4 months from the commencement of the 2014 Act in January 2015. As the authors acknowledged, further analysis is necessary to determine the long-term impact of these changes to the NSW bail laws (see, for example, Thorburn 2016).

Fresh Evidence and Double Jeopardy

In April 1973, the dead body of toddler Deidre Kennedy was discovered in Ipswich, Queensland. Distinctive bite marks were found on her legs. A decade later, Raymond Carroll was charged with her murder. In February 1985, a jury found him guilty of that crime, and he was imprisoned. However, the conviction was quashed on appeal because the Court of Appeal found that the prosecution had led no evidence to disprove Carroll's alibi. Moreover, the Court of Appeal determined that the evidence relating to the accused's propensity to bite children's legs was inadmissible.

Fifteen years later, a witness came forward and placed Carroll in Ipswich at the time of the killing. Another person claimed Carroll had admitted to him in prison that he had killed the toddler. However, Carroll could not be charged again for murder because the rule against double jeopardy demands that no person be retried for the same offence after an acquittal for that offence. This principle of justice is enshrined in the charters of rights of many countries.

Instead, Carroll was charged with perjury, as he had sworn on oath at the 1985 trial that he had not killed the girl. He was convicted, but he subsequently appealed successfully against this conviction. It was simply not possible to evade the rule against double jeopardy, said the Court of Appeal, by artificially constructing an alternative charge. The High Court backed this decision when the prosecution appealed again (*R v Carroll* [2002] HCA 55).

Carroll walked free. There was, however, widespread anger towards a legal system that seemed out of kilter with public expectations. Australia-wide, Attorneys-General began to canvass the possibility of a legislative change. The Model Criminal Code Officers Committee—which provided advice to all Australian Attorneys-General—was asked to prepare a discussion paper. In March 2004, it recommended modifying the rule in two situations, namely

where new and compelling evidence existed or where there was evidence of a "tainted" acquittal, for example, where an accused had intimidated witnesses into silence (Burton 2004; Prakash 2003).

The NSW government was the first to respond (in September 2006), by adopting the change. Thereafter, every other Australian jurisdiction followed suit, although it was not until 2016 that the ACT finally amended its legislation. The important point to note is that the rule against double jeopardy still applies. Only in the above exceptional circumstances can it be overridden.

There have been no notable cases that have tested the effect of these amendments. One can speculate that it will be exceedingly rare that a case as compelling as Carroll's will ever occur again, particularly now that forensic procedures are so tightly controlled. What is worrying, however, is that the presumption of innocence in such matters is now entirely ephemeral (Australian Lawyers Alliance 2007). One could easily speculate that a conviction upon a new trial is now virtually guaranteed. What juror, knowing that an appeal court judge has been satisfied that the new evidence is "new" and "compelling" would ever vote to acquit?

Mandatory Sentencing

Three Australian jurisdictions—Queensland, South Australia, and the Northern Territory—have a mandatory life sentence for murder, generally with a non-parole period (NPP) of 15–20 years. In 1996, Western Australia introduced mandatory sentencing laws for offenders convicted of a third or subsequent home burglary offence, with a minimum term of 12 months imprisonment or detention for adults and juveniles, respectively. This law remains in effect. By contrast, a similar, albeit more lenient, model—introduced in the Northern Territory in 1997—was abolished in 2001, following national and international criticism, especially in relation to the disproportionate impact of these laws on Indigenous offenders. For example, in one case a 15-year-old boy received a 20-day sentence for stealing stationery worth less than AUD100. Tragically, he died while in custody (Law Council Australia 2016).

Currently, the key mandatory sentencing laws relate to specified forms of assault (Victoria, Western Australia, Northern Territory); driving offences (Western Australia); drug offences (Queensland, Western Australia, Northern Territory); firearm offences (Queensland, South Australia); sex offences (Queensland, Western Australia, Northern Territory); homicide (NSW,

Victoria, Queensland); and offences committed by someone associated with a declared criminal association (Queensland, Western Australia, South Australia).[1]

In 2001, the Commonwealth introduced mandatory sentencing provisions for various aggravated people smuggling offences under the *Migration Act 1958 (Cth)*, each carrying minimum penalties of 5 or 8 years, with minimum NPPs of 3 or 5 years respectively. These laws were upheld by the High Court in *Magaming v The Queen* [2013] HCA 40.

The principal arguments put forward for mandatory sentencing laws (Law Council Australia 2014a; Roth 2014) are that they help to ensure that sentences reflect community standards; are not unduly lenient, that is, they are retributive; and reduce crime, that is, that they act as a deterrent and promote incapacitation, denunciation, and consistency.

Arguments against such laws (Cowdery 2014; Law Council Australia 2014a; Roth 2014) include the following: judicial officers, when presented with prescribed mandatory sentences, are unable to apply the generally accepted sentencing principles of proportionality, parsimony, and totality. Accordingly, judicial discretion and independence, the separation of powers, and the rule of law are undermined. Discretion is also transferred to other, less transparent, parts of the criminal justice system. At the same time, there is little incentive for defendants to cooperate with police, or to plead guilty, thereby increasing workloads, delays, costs, and adverse experiences for victims. In court, juries may be reluctant to convict knowing the minimum sentence. That is, they may be unwilling to be a party to a guaranteed outcome. In addition, these laws arguably violate international law. In *Ferguson v Setter and Gokel* (1997) 7 NTLR 118, Justice Kearney of the Northern Territory Supreme Court stated that the then applicable provisions were "directly contrary to Article 37(b) of the Convention on the Rights of the Child, to which Australia is a signatory". The Law Council of Australia (2014a) has also suggested that such laws may breach the prohibition against arbitrary detention under Article 9 of the International Covenant on Civil and Political Rights (ICCPR), as well as the right to a fair trial, and the provision that prison sentences must, in effect, be subject to appeal (Article 14 ICCPR). The ICCPR entered into force for Australia in August 1980.

It has also been suggested that these laws impact disproportionately on juveniles, women, and Indigenous peoples. For example, the UN Committee Against Torture has expressed concern about the disproportionate impact of these laws on Indigenous peoples and recommended that the laws be abolished, while the UN Committee on the Rights of the Child expressed similar concerns in respect of juvenile offenders (see Law Council Australia 2014a,

25–31). These particular groups are already more vulnerable than non-Indigenous adult male offenders—who comprise the majority of offenders—and mandatory sentencing laws preclude consideration of relevant mitigating factors.

Furthermore, they are regarded as ineffective as a crime prevention tool, while other, less costly, options can achieve the same objectives. Specifically, such laws are designed to get "tough on crime", notwithstanding that prison is vastly more expensive than community-based sentencing options. The Productivity Commission (2016) estimated the 2014/2015 daily total cost of imprisonment at AUD 301 per prisoner, compared with AUD 24 for community corrections. There is also evidence that prison is no more effective than non-custodial alternatives in terms of deterrence (see Ritchie 2011; Trevena and Weatherburn 2015).

Whatever one thinks of the efficacy of mandatory sentencing, it is worth remembering the words of the Law Council of Australia (2014a, 47): "Achieving a just outcome in the particular circumstances of a case, while maintaining consistency across similar cases and with Australia's human rights obligations, is…paramount".

One-Punch Deaths

There has been a proliferation of law reform in recent years in response to so-called one-punch, king-hit, or coward's punch deaths. As set out in Table 7.1, the first jurisdiction to change its law was Western Australia, which created a new offence of unlawful assault causing death in 2008. The Northern Territory followed suit, introducing a strict liability offence for one-punch offences in 2012.

Table 7.1 One-punch death legislation in Australia

Jurisdiction	Year introduced	Maximum penalty
Western Australia	2008	10 years
Northern Territory	2012	16 years
NSW	2014	20 years or 25 years if the offender is aged 18 or over and intoxicated, with a minimum NPP of 8 years.
Queensland	2014	Life. If prison sentence is imposed, NPP must be at least 80 per cent of the prison term or 15 years, whichever is lesser.
Victoria	2014	20 years. A custodial sentence must be imposed, with minimum NPP of 10 years.

These provisions were regarded as filling a gap in the law, because the defence of "accident" is available to defendants in "code jurisdictions",[2] namely Western Australia, Queensland, Tasmania, and the Northern Territory. This allows an accused person a defence to murder where the victim's death is unintended and unforeseen, and would not reasonably have been foreseen by an ordinary person.

For the purposes of the criminal law, NSW is a common law jurisdiction, not a code jurisdiction. Its approach to one-punch attacks, following the high-profile deaths of Thomas Kelly in 2012 and Daniel Christie in 2013, was to introduce the offence of assault causing death in January 2014, with a mandatory minimum NPP of 8 years for intoxicated offenders.

Queensland and Victoria introduced new one-punch offences in August and September 2014, respectively, and followed NSW in adopting mandatory minimum NPPs. Although Queensland has the longest NPP, its courts retain the right to impose a suspended sentence or an intensive corrections order. By contrast, there is no discretion to impose a community-based order in NSW or Victoria.

This issue has been considered at length by Quilter (2014a, b, c, 2015), who has identified the following concerns regarding one-punch laws generally. There is no need, she says, to prove a fault element, only that the assault caused death. Moreover, these laws "*enact* a form of populist outrage into the criminal statute books for short-term political advantage but with insufficient attention to longer term effects" (Quilter 2015, 92).These laws also fail to consider where such offences fit in the hierarchy of homicide offences in comparison with murder or manslaughter. Finally, mandatory sentencing provisions derogate from fundamental common law principles, as discussed above. In addition, Quilter has argued that the NSW provisions are confusing and complex. For example, they arbitrarily confine the assault component to intentionally hitting. Moreover, the provisions create legal and operational difficulties in relation to the role of alcohol. In all, she concludes that they are unnecessary. Unlike in the code jurisdictions, there was no gap in the law in NSW, and, indeed, manslaughter convictions were secured in practice. One may conclude that this is an example of legislators acting hastily to resolve a perceived problem, rather than reflecting in a considered way about the desirability—or otherwise—of legislative change (Ayling 2013; Sarre 2011).

It is too early to tell what the practical impact of these laws will be. By 2014, twelve people had been convicted under the Western Australian provision. Bizarrely, however, only four cases involved a one-punch assault, and none occurred in the circumstances for which the laws were introduced, namely, public violence (Quilter 2014c). None of the laws in other

jurisdictions has yet resulted in a conviction, although charges have been laid in NSW (Carter 2014; Fife-Yeomans 2016) and Queensland (Stephens 2016). We await developments.

Computer Crime

The range of twenty-first-century cyber-enabled crimes is, sadly, myriad. They include fraudulent financial transactions, identity theft, and the theft of electronic information for commercial gain. Moreover, abuse of the Internet enables drug trafficking (Martin 2014), aberrant voyeuristic activities (Crofts et al. 2015), and stalking (Langos 2012). The Internet also helps facilitate espionage and terrorism (Smith et al. 2010). While these sorts of behaviours have always been classified as criminal activities, they are now so much easier with a computer.

Cyber-dependent crime is another manifestation of computer crime. It was acutely felt across the world in May 2015 when Cryptowall 3.0 Ransomware began attacking businesses. It has been estimated that these attacks infected hundreds of thousands of computers across the world, causing significant financial loss (Sarre 2016a).

The borderless nature of the Internet means that Australians can be targeted from anywhere in the world, making law enforcement not only challenging, but, in some instances, almost impossible. Indeed, according to the Australian Cyber Security Centre, a government agency opened in 2014 to counter the threat of cybercrime, the number of cyber-attacks in this country continues to rise, the types are proliferating, and the level of sophistication grows. Moreover, the Australian Competition and Consumer Commission (ACCC) has estimated that Australians lost AUD 75,000 each day in 2014 to romance scams alone (ACCC 2015). The federal parliament has outlawed these types of activities by means of the *Cybercrime Act 2001 (Cth)*, but to little avail. For the most part, perpetrators reside outside of the purview of Australian police and outside the jurisdiction of Australian courts.

Surveillance by government agencies, such as police, criminal intelligence units, and national security agencies, can be an effective deterrent at some level. But, in the short term, any criminal justice response is usually a case of "too little, too late". It is often the case that police, even with the best intelligence in the world, are unable to thwart computer crime ahead of time. Nevertheless, the Australian government (2016) recently released its Cyber Security Strategy, and one might suggest that Australians will be in a stronger position to thwart the activities of the masterminds of this modern

phenomenon not only with specific legislation but hardware and software that is less susceptible to attack.

Outlaw Motorcycle Gangs

Governments around Australia have imposed serious constraints on freedom of association in recent years as part of a general crackdown on members of so-called outlaw motorcycle gangs (see Bartels 2010; Lauchs 2013; Sarre 2016b). In 2008, South Australia passed the *Serious and Organised Crime (Control) Act 2008 (SA)*, which made it an offence for any person to associate with a member of a declared organisation on more than six occasions over a 12-month period. Part of this Act was declared invalid by the High Court in *South Australia v Totani* [2010] HCA 39, which the South Australian government remedied with further legislation in 2012 (Law Council of Australia 2014b) and again in 2015 (MacLennan 2015).

In March 2009, a Hells Angels member was killed by Comanchero rivals at Sydney Airport. The NSW government responded by passing the *Crimes (Criminal Organisations Control) Act 2009*, modelled on South Australia's law. Part of this legislation was also declared invalid by the High Court (*Wainohu v NSW* [2011] HCA 24) and was later replaced by the *Crimes (Criminal Organisations Control) Act 2012 (NSW)*.

A hasty game of "follow-the-leader" ensued, with most jurisdictions—except Tasmania and the ACT—adopting similar legislation, in spite of the lack of clear evidence of the effectiveness of this approach. In addition, all jurisdictions except ACT passed complementary laws to do with consorting (NSW, Victoria, South Australia, Northern Territory); fortification of club premises (NSW, Victoria, South Australia, Western Australia, Tasmania, Northern Territory); tattoo parlours (NSW, Queensland, South Australia); and access to licensed premises (NSW, Queensland, Northern Territory).

In 2013, Queensland passed the "colourfully named" (Sarre 2016b, 153) *Vicious Lawless Association Disestablishment (VLAD) Act 2013 (Qld)*, which deems individuals to be a vicious lawless associate if they commit a serious offence while participating in the affairs of a criminal association (see Law Council of Australia 2014b). This would lead to a mandatory 15- or 25-year sentence in addition to the sentence for the original offence. In *Kuczborski v Queensland* [2014] HCA 46, the High Court decided that it could not consider the validity of the *VLAD* Act, given that it was being challenged by a person who had not been charged under it. By December 2015, only one conviction—relating to drug trafficking—had been secured under these laws

(Willacy and Solomons 2015). According to Goldsworthy (2015) "bikie gangs have limited involvement in organised crime and … [only] make a small contribution to general crime". Indeed, Goldsworthy (2016) has suggested that organised-crime-type offences had risen since the laws' introduction.

In March 2016, a retired Supreme Court judge completed a review of the Queensland laws, calling the mandatory sentencing provisions "excessively harsh" (Wilson 2016, 240). The government has indicated it will replace the provisions with "a new regime of laws to tackle serious organised crime" including new consorting provisions (Palaszczuk et al. 2016). Queensland would do well to heed the unfortunate experience of NSW, where police were found to have given incorrect official warnings to at least 100 people in the first 12 months of the operation of new consorting provisions introduced in 2012 (see Law Council of Australia 2014b). One might surmise that there is little evidence that "legislation of this nature actually work[s] to reduce the … nefarious deeds of 'controlled' criminal organisations … [It] may serve some political purposes in the short term, but, one might conclude, do little else" (Sarre 2016b, 153).

Anti-Terrorism Legislation

In September 2014, the Australian Parliament passed the *National Security Legislation Amendment Act (No 1) 2014 (Cth)*, designed specifically to penalise anyone seeking to report special anti-terrorism measures. The legislation amended the *Australian Security and Intelligence Organisation Act 1979 (Cth)* by adding a new section to extend legislative prohibitions on the disclosure of information regarding policing for anti-terrorist purposes. The amendment introduced substantial prison terms of up to 5 years for anyone who discloses information relating to a special intelligence operation. There was no provision made for a public interest defence.

Laws designed to limit the reporting of such matters are not new. In the last decade, each Australian jurisdiction has passed a raft of legislation designed to limit the publication of information that deals with anti-terrorism orders or other relevant operations (McCulloch and Wilson 2016). What is new here is that the prohibition on reporting applies across Australia without the need for a court order (Sarre 2016b).

The difficulty for any government that invokes a cloak of secrecy under the claim of national security is that it invites suspicion that the real agenda is to conceal a blunder, to justify a violation of the law, or to pursue a political end.

By virtue of this legislation, no one is able to assess whether the official claims are valid or whether the operations are a legitimate use of state power.

Although there is no evidence that it has happened yet, it is only a matter of time before someone is charged with violating the prohibition. Can lawyers acting for such persons argue a general defence of freedom of speech? The legislation, unfortunately, does not provide them with any assistance. Indeed, in *R v Lohdi* [2006] NSWSC 571 and *Lohdi v R* [2007] NSWCCA 360, the NSW Supreme Court, in rejecting a challenge to proceedings being brought under the *National Security Information (Criminal and Civil Proceedings) Act 2004 (Cth)*, held that denying the right of citizens to speak under a claim of national security does not unconstitutionally restrict freedom of speech. What about the right of freedom of association? There is not much joy for defence lawyers here either. Parliaments can, without fear of legal challenge, outlaw liaisons between certain people even in the absence of evidence that they are meeting for improper purposes (see *Wainohu v NSW* [2011] HCA 24).

Even if this issue is no longer laced with legal uncertainty, it is burdened with criminological uncertainty. This is because it relies on an assumption that stopping people from meeting with each other will lead to the demise of their organisation. One would have thought that it was incumbent on the framers of the legislation to show one comparable modern Western society where targeting and penalising those who associate with criminals had been effective in kerbing their illegal activities. It is difficult to find one. Evidence in the academic literature which suggests that limiting the freedom of association will spell the end of dangerous liaisons is scant indeed (Mann and Ayling 2012).

Conclusion

The above snapshot of legal initiatives across Australia is designed to provide readers with a few examples of the way in which governments seek to assuage public anxiety about crime and criminality by passing legislation. However, in most instances, the changes did not bring about the desired end. Either very little changes or, indeed, the activities that have been targeted grow or adapt. As Ayling (2013, 13) reminds us: "Scant attention is paid to the likely impacts of the proposed laws, on human rights, on police resources … on victims and offenders, as well as any potential unintended consequences … Overall, the result can be unnecessary, ineffective, invalid or in some cases harmful criminal laws".

The lesson from this is that criminologists should be quick to analyse any new measures with a view to providing an evaluation of the likely results. We

should be providing legislators with constant counsel and praise or, more frequently, with admonition where and when necessary.

Notes

1. Information on these organisations is contained in the Criminal Code (Criminal Organisations) Regulation 2013 (Qld) and Liquor Licensing (Declared Criminal Organisations) Regulations 2015 (SA). At the time of writing, there do not appear to be any declared criminal organisations in Western Australia.
2. 'Code jurisdictions' are those where the criminal law has been wholly codified; in the other jurisdictions, known as "common law" jurisdictions, some of the law has been codified, but most remains based on case law developed by judicial precedent.

References

ABS. 2006. *Corrective Services Australia, December Quarter 2005.* Cat. no. 4512.0. Canberra: Australian Bureau of Statistics.

ABS. 2016. *Corrective Services Australia, December Quarter 2015.* Cat. no. 4512.0. Canberra: Australian Bureau of Statistics.

ACCC. 2015. Australians Lose $75,000 Every Day to Romance Scams. *ACCC Media Releases*, February 13. Australian Competition and Consumer Commission.

Australian Government. 2016. *Australia's Cyber Security Strategy*. Canberra: Commonwealth of Australia.

Australian Lawyers Alliance. 2007. *Position Paper: Double Jeopardy*. Sydney: Australian Lawyers Alliance.

Ayling, Julie. 2013. Haste Makes Waste: Deliberative Improvements for Serious Crime Legislation. *Australian and New Zealand Journal of Criminology* 46: 12–31.

Bartels, Lorana. 2010. *The Status of Laws on Outlaw Motorcycle Gangs in Australia*. Canberra: AIC.

Brown, David, and Julia Quilter. 2014. Speaking Too Soon: The Sabotage of Bail Reform in New South Wales. *International Journal for Crime, Justice and Social Democracy* 3: 73–97.

Brown, David, David Farrier, Luke McNamara, Alex Steel, Michael Grewcock, Julia Quilter, and Melanie Schwartz. 2015. *Criminal Laws: Materials and Commentary on New South Wales*. Sydney: Federation Press.

Burton, Kelly. 2004. Reform of the Double Jeopardy Rule on the Basis of Fresh and Compelling Evidence in New South Wales and Queensland. *James Cook University Law Review* 11: 84–107.

Carter, Lucy. 2014. Charges Upgraded for Man Accused of Deadly One-Punch Assault at Rooty Hill Birthday Party. *ABC News,* May 7.
Cowdery, Nick. 2014. Mandatory Sentencing. Paper presented at Sydney Law School Distinguished Speakers Program, Sydney, May 15.
Crofts, Thomas, Murray Lee, Alyce McGovern, and Sanja Milivojevic. 2015. *Sexting and Young People*. Hampshire: Palgrave Macmillan.
Cunneen, Chris, Eileen Baldry, David Brown, Mark Brown, Melanie Schwartz, and Alex Steel. 2013. *Penal Culture and Hyperincarceration: The Revival of the Prison*. Farnham: Ashgate.
Fife-Yeomans, Janet. 2016. One-Punch Laws: Has Tougher Legislation Curbed Coward-Punch Epidemic? *Daily Telegraph,* January 9.
Goldsworthy, Terry. 2015. Why Australia's War on Bikies Will Inevitably End in Failure. *The Conversation,* July 29.
Goldsworthy, Terry. 2016. Criminalising Conversations: Australia's Damaging Love Affair with Consorting Laws. *The Conversation,* February 9.
Hatzistergos, John. 2014. *Review of the Bail Act 2013*. Sydney: NSW Sentencing Council.
King, Sue, David Bamford, and Rick Sarre. 2009. Discretionary Decision-Making in a Dynamic Context: The Influences on Remand Decision-Makers in Two Australian Jurisdictions. *Current Issues in Criminal Justice* 21: 25–40.
Langos, Colette. 2012. Cyberbullying: The Challenge to Define. *Cyberpsychology, Behavior, and Social Networking* 15: 285–289.
Lauchs, Mark. 2013. The Great Bikie Beat-Up: Why We Shouldn't Confuse Crime Lords with Boofheads on Bikes. *The Conversation,* October 5.
Law Council of Australia. 2014a. *Mandatory Sentencing Policy Discussion Paper*. Canberra: Law Council of Australia.
Law Council of Australia. 2014b. *Briefing Note: 'Anti-Bikie' Laws, Recent Developments*. Canberra: Law Council of Australia.
Law Council of Australia. 2016. The Mandatory Sentencing Debate. http://www.lawcouncil.asn.au/lawcouncil/index.php/law-council-media/news/352-mandatory-sentencing-debate. Accessed 25 May.
MacLennan, Leah. 2015. Comanchero, Rebels Club Rooms Closed as Anti-Bikie Laws Come into Effect in SA. *ABC News,* September 11.
Mann, Monique, and Julie Ayling. 2012. *Capturing 'Organised Crime' in Australian Law*. Brisbane: Australian Research Council Centre of Excellence in Policing and Security.
Martin, James. 2014. *Drugs on the Dark Net: How Cryptomarkets are Transforming the Global Trade in Illicit Drugs*. Hampshire: Palgrave Macmillan.
McCulloch, Jude, and Dean Wilson. 2016. *Pre-Crime: Pre-emption, Precaution and the Future*. Abingdon: Routledge.
NSWLRC. 2012. *Bail*. Sydney: NSWLRC.
Palaszczuk, Anna, Yvette D'Ath, and Bill Byrne. 2016. Government Strengthens and Expands Serious Organised Crime Laws in Queensland. *Queensland Government Media Statements,* April 4.

Prakash, Niti. 2003. R v Carroll: Double Jeopardy Under Fire. *University of Queensland Law Journal* 22: 267–271.

Commission, Productivity. 2016. *Report on Government Services 2014/15*. Melbourne: Productivity Commission.

Quilter, Julia. 2014a. Law Reform: More Law and Order on the Run. *Alternative Law Journal* 39: 50–51.

Quilter, Julia. 2014b. One-Punch Laws, Mandatory Minimums and 'Alcohol-Fuelled' as an Aggravating Factor: Implications for NSW Criminal Law. *International Journal for Crime, Justice and Social Democracy* 3: 81–106.

Quilter, Julia. 2014c. The Thomas Kelly Case: Why a 'One Punch' Law is Not the Answer. *Criminal Law Journal* 38: 16–37.

Quilter, Julia. 2015. Criminalisation of Alcohol-Fuelled Violence: One-Punch Laws. In *Criminalisation and Criminal Responsibility in Australia*, ed. Thomas Crofts, and Arlie Loughnan, 82–104. Melbourne: Oxford University Press.

Ritchie, Donald. 2011. *Does Imprisonment Deter? A Review of the Evidence*. Melbourne: Victorian Sentencing Advisory Council.

Roth, Lenny. 2014. *Mandatory Sentencing Laws*. Sydney: NSW Parliamentary Research Service.

Sarre, Rick. 2011. We Get the Crime We Deserve: Exploring the Political Disconnect in Crime Policy. *James Cook University Law Journal* 18: 144–161.

Sarre, Rick. 2016a. Hacked. *UniSA Business* 8: 20–23.

Sarre, Rick. 2016b. Recent Legal Developments in Australia. *Australian and New Zealand Journal of Criminology* 49: 152–156.

Smith, Russell, Rob McCusker, and Julie Walters. 2010. *Financing of Terrorism: Risks for Australia*. Canberra: AIC.

Stephens, Kim. 2016. Charges Upgraded after Cole Miller Dies following Fortitude Valley Attack. *Brisbane Times,* January 4.

Thornburn, Hamish. 2016. *A Follow-Up on the Impact of the Bail Act 2013 (NSW) on Trends in Bail*. Sydney: BOCSAR.

Trevena, Judy, and Don Weatherburn. 2015. *Does the First Prison Sentence Reduce the Risk of Further Offending?* Sydney: BOCSAR.

Weatherburn, Don, and Jacqueline Fitzgerald. 2015. *The Impact of the NSW Bail Act (2013) on Trends in Bail and Remand in NSW*. Sydney: BOCSAR.

Whitbourn, Michaela. 2014. Former DPP Boss Nicholas Cowdery Slams Baird Government over Bail Act Review. *Sydney Morning Herald,* July 1.

Willacy, Mark, and Mark Solomons. 2015. VLAD Laws: First Child Exploitation Case Prosecuted under Anti-Bikie Laws in QLD. *ABC News,* December 1.

Wilson, Alan. 2016. *Taskforce on Organised Crime Legislation Report*. Brisbane: Queensland Government.

Author Biographies

Lorana Bartels is the Head of the School of Law and Justice at the University of Canberra and Adjunct Associate Professor, Faculty of Law, University of Tasmania. She teaches and researches in a wide range of criminal justice areas, with a particular focus on sentencing, corrections, and the treatment of women and Indigenous peoples in the justice system.

Rick Sarre is Professor of Law and Criminal Justice at the University of South Australia's Law School. He served four years as ANZSOC president (2012–2016) and continues to serve on the Board of the International Police Executive Symposium. In 2015, he received an honorary doctorate from the Law School, Umeå University, Sweden.

Part II

Patterns of Crime

8

Mapping Common Crime

Jason L. Payne and Fiona Hutton

Public perceptions of crime and safety are shaped by a number of factors, not least the extent to which crime statistics are publicised across a range of media formats. In a national survey, more than 8 in every 10 Australian adults rated television and newspapers as very or fairly important sources of their information about crime (Roberts and Indermaur 2009), while in a more recent New Zealand survey, an equivalent proportion of respondents also considered TV news and hard copy or online newspapers to be reliable sources of information about crime (Colmar Brunton 2014). Although there remains some debate about whether traditional and social media actually portray an accurate picture of crime, there nevertheless exists some compelling evidence of disproportionate, inaccurate, and often sensationalised media coverage of atypical crimes, including offences such as homicide or acts of sexual violence carried out by strangers in public places (Duffy et al. 2008; Garvey 2003).

Coupled with a reliance on the media as a principal source of information about crime, the potential misuse and misinterpretation of official crime statistics can have significant consequences. As Davis and Dossetor (2010) argue, the inaccurate reporting of specific criminal incidents or crime statistics

Jason L. Payne (✉)
Australian National University, Canberra, Australia
e-mail: jason.payne@anu.edu.au

F. Hutton
Victoria University of Wellington, Wellington, New Zealand
e-mail: fiona.hutton@vuw.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_8

can play an important role in shaping community misperceptions about crime. Their study shows that the overwhelming majority of Australians held incorrect views about national crime trends, with 9 in 10 respondents convinced that crime was increasing or stable over a period of time when crime was actually in considerable decline. In New Zealand, similar issues have been noted. Nearly three-quarters of respondents believed that violent crime and youth crime had increased (Colmar Brunton 2014; see also Paulin et al. 2003) despite youth crime being at its lowest level for 20 years (Ministry of Justice 2013), and the fact that overall recorded crime rates have decreased since 1996 from 477,596 recorded offences in 1996 to 350,389 in 2014 (NZ Police 2015). This overestimation of crime is also somewhat at odds with the fact that most New Zealand residents considered the crime problem of their *local* community to be less concerning than the *national* crime problem (Bradley et al. 2010). In the 2014 New Zealand Crime and Safety Survey (NZCASS), 69% of respondents did not think that crime was a problem in their own neighbourhood (Ministry of Justice 2015).

With the general public holding distorted perceptions about crime, there is a real risk of inappropriate policy prioritisation and the misguided targeting of resources. Fear of crime has the potential to be as big a threat as crime itself, with public (mis)perceptions fuelling fears about particular types of crimes and offenders (Sparks 1992). Underpinning these complex debates is a series of important questions about the nature and scope of crime reporting, in particular, the preparation, publication, and presentation of crime statistics, and the stories they tell about common and infrequent crimes. Through a critical lens, this chapter explores those crimes depicted in Australia and New Zealand as the most common in officially recorded police statistics. Using illustrative examples and case studies, it is suggested that greater caution is needed to ward against an overreliance on official crime estimates as the principal vehicle for public and policy debate in both countries.

Common Crimes

Although there is no universally agreed definition of common crimes, information about crimes which are apparently common has never been more accessible to the general public. With widespread access to the Internet, a simple search for crime statistics will identify a source for the most recent, publicly available information. In New Zealand, national data are available through both the NZ Police and Statistics New Zealand. In Australia, the complexities of federation mean that while state—and territory-specific data may be reported by the relevant police agencies, the compilation of national

crime data is solely undertaken by the ABS. In both countries, these data are reported either as a unique count of offenders or of victims of crime. Both data sources are needed, since not all crimes involve personal victimisation—for example, drug offences—and not all incidents of victimisation result in the identification and apprehension of an offender.

Australia

For offender counts, two data sources are available. The first counts the number of unique offenders according to the most serious or principal offence for which they were apprehended. There were 411,686 unique offenders in the financial year 2014–2015. The four crime types for which there was the highest number of unique offenders were illicit drug offences, acts intended to cause injury, public order offences, and theft offences (ABS 2015a) (Fig. 8.1).

Rather than counting unique offenders, the second data source presents a count of the number of times each unique offender is proceeded against, either through court or non-court action such as diversion. This data set is only compiled for six of the eight states and territories, excluding the Northern Territory and Western Australia. In the financial year 2014–2015,

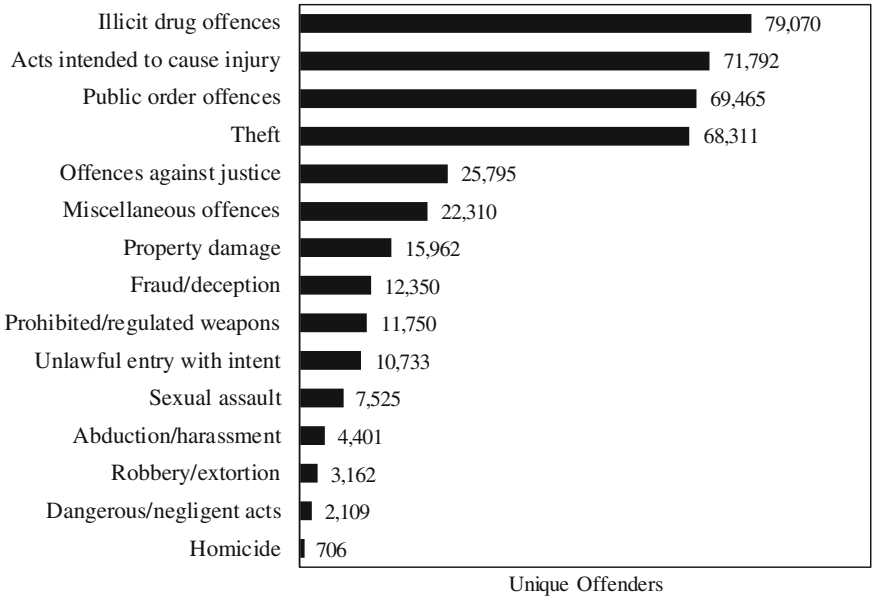


Fig. 8.1 Unique offenders (number) by offence type (Australia, 2014/2015). *Source* Adapted from Recorded Crime: Offenders, Australia (ABS 2015a)

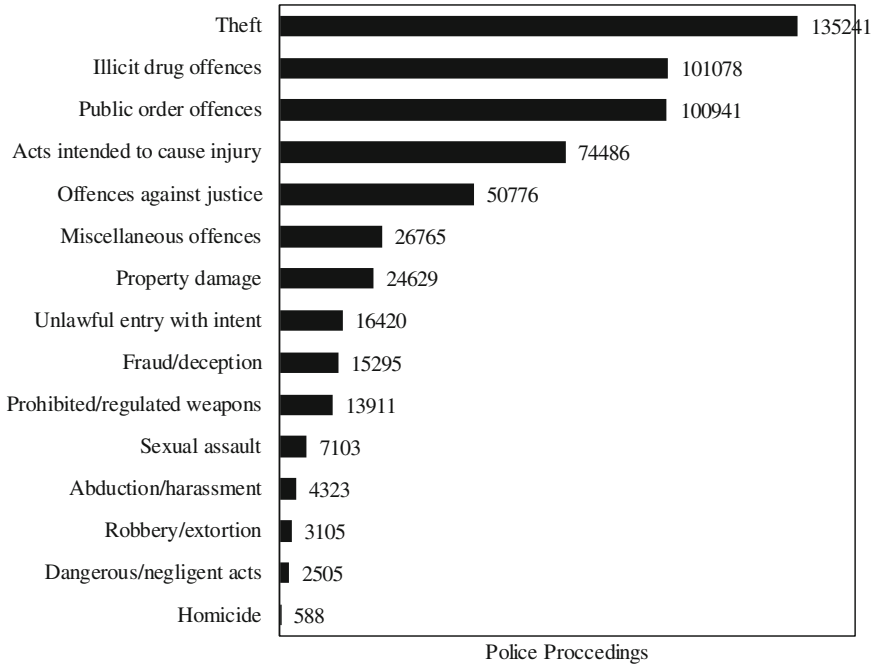


Fig. 8.2 Offenders proceeded against (number) by offence type (Australia, 2014/2015). *Note* Data excludes Western Australia and the Northern Territory*Source* Adapted from Recorded Crime: Offenders, Australia (ABS 2015a)

a total of 585,453 offenders were proceeded against by police, and the three most common offence types were theft, illicit drug, and public order offences (ABS 2015a) (Fig. 8.2).

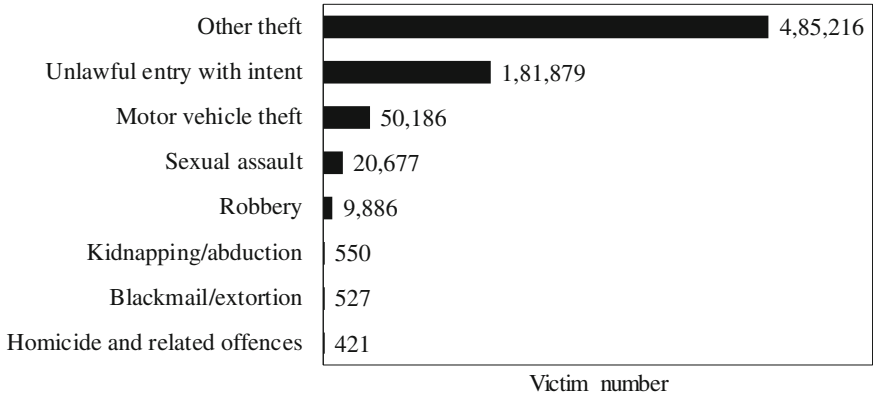


Fig. 8.3 Victims of crime (number) by offence type (Australia, 2014/2015). *Source* Adapted from Recorded Crime: Victims, Australia (ABS 2015b)

As indicated earlier, victim data provide a rich and alternative insight into the nature and extent of crime in both countries. Unlike offender counts, victim data exclude offences for which there was no victim but include those crimes for which there was a victim report of victimisation. An incident of victimisation may be counted for any person, premises, organisation, or motor vehicle against which an offence was committed and reported. In 2014, there were a total of 717,281 victimisations, with theft far outnumbering the victims of sexual assault and robbery (ABS 2015b). Of the theft victims, the largest subgroup was the victims of 'other theft', followed by burglary (Fig. 8.3).[1]

New Zealand

In New Zealand, the way common crimes are counted has recently changed. Until 2014, national police statistics were reported twice a year. These statistics reported on recorded offences, that is, matters reported to or discovered by police where it was believed an offence was likely to have taken place (NZ Police 2015). The most common crimes under this system are noted in Table 8.1.

There are some interesting issues to note about the crimes that make up these most common categories of offending recorded by NZ Police. The category *theft and related offences* includes a large number—approximately 50,000 offences—of motor vehicle thefts. The *property damage and environmental pollution* category is almost exclusively made up of property damage offences such as vandalism and graffiti with only few offences relating to environmental pollution. *The illicit drugs offences* category is largely made up of possession offences. All of the crimes recorded in this category are what is referred to as 'drug defined crimes': crimes that are committed because the use, possession, manufacture, cultivation, dealing, and trafficking of some drugs are

Table 8.1 Recorded offences New Zealand 2012–2014

ASOC division Description	Recorded 2012	Recorded 2013	Recorded 2014
Theft and related offences	119,476	121,035	119,323
Unlawful entry with intent/burglary, break and enter	52,937	52,247	53,265
Property damage and environmental pollution	48,901	45,577	40,358
Acts intended to cause injury	40,851	39,447	39,944
Public order offences	42,522	35,850	26,751
Illicit drugs offences	20,792	16,069	16,543

Source Adapted from NZ Police (2015, 5)

illegal under the law (Coomber et al. 2013). Furthermore, proactive policing campaigns focussing on particular crimes can affect the official statistics with a larger number of crimes than usual being recorded. For example, in 2008, New Zealand introduced the STOP (stop tagging our place) strategy with both media and police focussing on graffiti and tagging offences.

From 2014, NZ Police changed the way they recorded offences. Under this system, Recorded Offender Statistics (RCOS) count how many times police take action against offenders, that is, charges, warnings, court action, etc. Each separate occasion that the police proceed against an offender is recorded in the RCOS. The most common crimes under this new system were traffic —and vehicle-related offences, acts intended to cause injury, and theft and related offences (Statistics New Zealand 2016).

In 2014, NZ Police also introduced a new method of counting victims of crime, using Recorded Crime Victim Statistics (RCVS), which are based on the Australian system. However, the recent introduction of RCVS makes it difficult to compare data from previous years. RCVS exclude those offences that police record for charging purposes. For example, in a murder case where only one victim was killed, two offenders could be charged with different offences: murder with a firearm and murder with a knife. The new RCVS system counts '1' for each broad offence type so that victims are counted only once, regardless of the number of offenders (NZ Police 2016). Under this new system, the most common victimisations were theft and related offences; unlawful entry with intent, burglary, and break and enter; and assault (Statistics New Zealand 2016). In the RCOS, however, traffic and related offences are the most common with theft and related offences counted as the third most common. Therefore, depending on what set of statistics are used, a different count of common crimes is arrived at. Gaining an accurate picture of the most common crimes is a complex undertaking. It could be argued, however, that separating out victims and offenders in this way can give a more accurate picture of crime and victimisation.

It is also important to note that the RCVS exclude 'victimless' crimes such as drug and public order offences (NZ Police 2016), while these offences are still included in the RCOS. Excluding these offences from the RCVS is said to make crime counts and crime trend analyses more reliable. This is because statistics on drug and public order offences were mostly affected by proactive policing operations, rather than representing an actual increase in reporting (NZ Police 2016). Therefore, trends in policing may determine any increase or decrease of certain crime types. Due to the numerous complexities and difficulties in counting common crimes, the picture painted by official statistics in terms of common offences is often partial and incomplete.

The Complexity of Crime and the Problem of Official 'Bias'

Although accessing official data about common crimes in both countries has never been easier, what remains is the often complex and difficult challenge of understanding what the data represent about individuals who commit crime and the communities in which these crimes occur. First, it must be acknowledged that there is no single or simple definition of crime. For some scholars, crime ought to be unproblematic, best defined as acts which constitute a direct contravention of existing criminal laws and codes. For others, crime is an elusive concept often used as a catch-all term to describe a broader continuum of acts, of which only some are legally defined as crimes. As Sampson and Laub (2003) note, the key challenge for criminology is not the counting of crime but rather in deciding what ought to be counted, when, and how best to interpret this data in the absence of any clear definition of crime and criminality. Labelling theorists such as Becker ([1963] 1973, 8–9) also note that crime and deviance were not fixed categories, and that these labels are socially constructed: 'Social groups create deviance by making rules whose infraction creates deviance, and by applying those rules to particular people and labeling them as outsiders. From this point of view, deviance is not a quality of the act the person commits, but rather a consequence of the application by other of rules and sanctions to an "offender". The deviant is one to whom that label has been successfully applied; deviant behavior is behavior that people so label'. What counts as crime is, therefore, not as straightforward as it might first appear, and these scholarly contributions act as important and timely reminders that crime is, at the very least, socially undesirable behaviour for which there is no perfect method of quantification.

Those who commit crime—however defined—typically spend much of their time trying to avoid formal detection and official apprehension. At best, therefore, official records likely represent only a very small and skewed subset of all crimes that are actually committed (Sampson and Laub 2003). Alternative methods, such as self-report surveys of offenders, might appear to offer a promising alternative with a range of new insights, but even these methods are themselves plagued by significant limitations (see Payne and Piquero 2016). What is important, therefore, is to recognise that those crimes identified as 'common' in official statistics are biased in a number of ways.

Underreporting of Crime

Commonly recorded crimes in official data are heavily biased towards those crimes that are frequently reported to police. Only a small fraction of all crimes are happened upon by police during their general duties. Consequently, underreported crimes may never appear as common as they might actually be. Family, domestic, and sexual assault, for example, are notoriously underreported by their victims (Carbone-Lopez et al. 2016; Moore and Baker 2016); often out of fear of retribution by the perpetrator or because such matters are deemed too private, trivial, or unable to be acted upon by police (Ministry of Justice 2015). Crime that is reported to the police is often referred to as the 'tip of the iceberg', with the majority of crime unreported and hidden from view. This is commonly referred to as the *dark figure of crime* (Radzinowicz and King 1977).

Weighed against this apparent underreporting of sexual and other interpersonal crimes are the comparatively high rates of reporting for property crimes such as home burglary and motor vehicle theft. Unashamed of their status as a victim of property crime (Bowles et al. 2009) and often motivated by insurance companies' requirement to file a police report for financial compensation (Myers 1980), victims of property crime are far more likely to report their experience to the police and have their experience as victims counted in official statistics. This is not to say that all victims of property crime report to police, only that these crimes are disproportionately reported. Hence, they might appear more common relative to other unreported crime types. For example, the 2013 NZCASS noted that 68% of crime was not reported to the police and 41% of incidents were not considered crimes by the victim (Ministry of Justice 2015). So, whatever the crime type, understanding of what is common and what is not is limited to that which is reported to police. Without doubt, most crimes, but in particular interpersonal crimes, are more common than indicated by official statistics.

Operational and Administrative Issues

Official data are collected from the administrative systems of police and other criminal justice agencies. These systems are designed to meet operational needs above all others, to facilitate and streamline police activity. Crime statistics extracted from these systems inherit some degree of operational bias. Here, the term 'operational bias' is used to describe the many ways in which officially recorded data reflect the operational imperatives and decisions of

their collection practitioners. This includes priorities and directives of Police Commissioners and on-the-spot decision-making by frontline officers about where to police, what to target, and whom to apprehend. At a very rudimentary level, crimes are typically recorded and counted with reference to the date on which each matter was reported or processed, not necessarily the date on which the actual crime occurred. In the vast majority of crimes, these dates are not the same, and for some crime types, such as sexual assault, the date of reporting and processing can be many years apart. At the more complex end, there are those policing strategies, such as 'hot spot' targeting, which also have the potential to influence what is counted as common, especially when comparing specific geographical locations and policing areas. Proactive efforts to target specific crime types or offenders will likely increase the apparent frequency of specific crimes or the apprehension of specific types of offenders, such as happened during the 'war on drugs' in the USA (Stevens 2008).

In Australia, the implications of these operational practices have been most consequential for the measurement of physical assault. At the time of writing, national victimisation statistics still exclude crime counts for common or aggravated assault. This is largely due to the significant operational differences which prevent compilation across different data sets and limit reliable inter-jurisdictional analysis. Specifically, in Victoria, a victim report is usually only recorded where an investigation has been conducted and where it has been determined that a crime was committed. Similarly, in Queensland, assaults are not recorded unless the victim consents to the matter being investigated, whereas in most other jurisdictions, victimisation records are created for every victim report, irrespective of the eventual outcome.

The important issue of Indigenous overrepresentation in the justice system sits as yet another reminder of the potential for operational bias to influence who and what gets counted in official crime statistics. In New Zealand, Māori make up approximately 15% of the general population, but over 50% of the prison population (Department of Corrections 2009). For particular offence categories, this overrepresentation is glaring with Māori being three times more likely to be arrested and convicted for cannabis use than non-Māori (Fergusson et al. 2003), as well as being more likely to be prosecuted and convicted of possession or use of an illicit drug or drug utensil. Racial and ethnic disparities are a common theme in the crime statistics of many countries (Eastwood et al. 2013; Human Rights Watch 2008). For the specific case of New Zealand, the UN has urged the government to address this human rights violation it regards as arbitrary detention (UN News Centre 2014). Māori are also more likely to be imprisoned than receive a community sentence and also receive longer prison sentences for similar offences

committed by non-Māori (Quince 2007). Most scholars agree that these apparent differences result, in part, from the way in which certain minority populations are policed (Cunneen and White 2007). This is a significant issue that should be noted when considering the processes involved in counting crime, particularly in settler-colonial jurisdictions such as New Zealand and Australia.

Counting Issues

Apart from recording biases that concern data input, data output biases can also affect our understanding of common crimes. Data output bias concerns the methods and techniques used by analysts to extract and make sense of data. Such techniques are often described as counting rules and represent a set of standardised parameters designed to maximise the degree of consistency between multiple data recording systems. In Australia, recorded crime data sets are collated individually from each of the eight states and territories and combined into a single system for analysis. This 'bringing together' of different data systems—each developed for distinct operational environments, and subject to different organisational practices—necessarily requires a process of standardisation, and the application of consistent counting rules. With a single police service in New Zealand, the complexities of amalgamating statistics from different jurisdictions are less apparent, and as a non-federal state, New Zealand does not face the same issues noted in the Australian context.

The consequences of this standardisation process are many and varied, often described in technical appendices and notes, and not easily digested by the lay reader. In Australia, each offender is counted only once per annual period, meaning that where a single offender is responsible for multiple crimes in any one year, only the principal crime is recorded, which is determined according to the severity scale of the Australian National Offence Index (NOI).[2] The most serious crime of each year is recorded even if such behaviour is infrequent in an offender's overall offending pattern. Consequently, crimes committed by repeat offenders are significantly undercounted, while their seriousness is overstated. Further, crimes committed by co-offenders are counted once for each co-offender. Consequently, some incidents—such as a home burglary committed by three co-offenders—may be double or triple counted. This potentially leads to the overrepresentation of crime types where co-offending is typical.

For victimisation data, a different set of counting rules applies. Unlike offender data, victimisation data are counted for each unique crime category and for each instance of victimisation throughout the year. This means that each unique victimisation is recorded, even if the same individual is victimised multiple times, but it also means that a single crime may be double counted in situations where a single incident involves more than one offence category or more than one victim. For example, a victim of kidnapping who was later physically and sexually assaulted would be counted three times—one each for kidnapping, assault, and sexual assault—even though the three offences were essentially the product of the same criminal incident at the hands of the one individual.

Finally, what counts as an incident of victimisation will largely depend on how the matter is reported and subsequently recorded by police. This relates to the so-called *grey figure of crime*, that is, crime which is reported to the police but either not recorded or recorded inaccurately. Whether an incident is recorded as one crime or multiple crimes depends on the victim recalling and reporting each specific victimisation. For example, for victims to properly enumerate cases of sexual assault over many months or years would require them to recall and report each single event. More commonly, such series of victimisations are reported as a single overall experience and are thus often counted as one crime.

Further Debates

As previously noted, there is no single definition of crime, and there is no single appropriate method to quantify crime and crime types. At best, the systems used to identify the most common crimes can only approximate the real rate of crime and—despite best efforts of national statistical agencies—these data systems remain challenged by various biases that have significant consequences for interpretation and use. Consequently, what is presented as 'common' might not readily forewarn of the most pressing concerns, but instead reflect issues of current—and perhaps misplaced—interest. Prioritisations in policy and policing activities have the potential to skew crime counts in favour of those crime types for which there is some pre-existing concern. The targeting of specific offence types potentially increases their apparent prevalence. This justifies not only the initial targeting but also warrants future targeting and expenditure to combat what is now characterised as an emerging problem. Hence, common crimes are not only those that are the most numerous, but

also reflect those that have attracted some operational prioritisation. Common crimes not only demand increased attention from government and police, but they are also officially noted as crimes as a result of any increased resourcing and attention that is given to 'common' offending behaviours.

Of course, not all new policing priorities result in more frequent crime recording and, perhaps, the single largest contemporary concern for national crime data compilation is the rigidity and insensitivity of data input systems to emerge areas of criminological interest. In particular, there is reason to believe that earlier efforts to standardise both the input and output of recorded crime data have rendered those same systems inflexible to more nuanced context-specific characteristics of crime for which additional and detailed reporting is sorely needed. As has been the case in Australia recently, the quantification of family and domestic violence as a specific subset of other interpersonal violence demonstrates this problem. Physical assault, for example, is singularly recorded as either 'common' or 'aggravated' irrespective of the circumstances. Domestic violence assaults—a crime type considered by many to be both common and warranting independent quantification—are therefore unable to be meaningfully identified as a distinct subset, despite a growing public concern about the scourge of domestic violence, and despite significant financial and political investment in prevention programmes.

Crimes not Reported

Perhaps the most significant criticism of the statistical collecting of crime concerns the undercounting of crimes that are committed but never come to the attention of recording authorities. The rate of underreporting is higher for some crime types than others, in particular, personal crimes such as assault and sexual assault. For this reason, both Australia and New Zealand have continued to invest in victimisation surveys in an effort to shed some light on these hidden experiences.

In Australia, the Crime Victimisation Survey was last conducted in 2014–2015 by the ABS, implemented as an addendum to the telephone-administered Multi-Purpose Household Survey (ABS 2016). The limited capacity of the survey restricted its breadth to three personal crimes (assault, sexual assault, and robbery) and five household crimes (break and enter, motor vehicle theft, theft from a motor vehicle, other theft, and malicious property damage). Data are reported as estimates of population prevalence; for example, the proportion of the population that has experienced motor vehicle theft in the last 12 months. Nationally, the crime type

with the highest victimisation rate was assault with an estimated 840,500 victims, which is 4.5% of the population. Of these, 2.9% experienced threatened assault and 2.1% suffered physical assault. Of household crimes, malicious property damage was the most common, with 511,400 households or 5.7% of all households experiencing victimisation, followed by 'other' theft, theft from a motor vehicle, and burglary. Due to the different counting units of persons and households, a direct comparison of crime types is impractical. However, there are more individuals who experience assault (both physical and threatened) than are recorded in official statistics, and there are considerably more assault victims than there are households that experience any single form of property crime.

Attempting to access the dark figure of crime, New Zealand has undertaken the NZCASS in 2006, 2009, and 2014. The survey is conducted face-to-face with a sample of 7000 randomly selected residents. A diverse range of crime types is explored, including six household and nine personal crime types. Of the personal crimes, physical assault was recorded as having both the highest prevalence and the highest incidence with 196,000 victims and 512,000 incidents; followed by threats of violence or force with 175,000 victims and 401,000 incidents; and sexual offences with 74,000 victims and 186,000 incidents. Of the household crimes, the most common was burglary with 136,000 households and 203,000 incidents; followed by household damage with 78,000 households and 119,000 incidents; and vehicular damage with 58,000 households and 74,000 incidents. Hence, the NZCASS reports the *opposite* of the official police statistics, meaning that crimes of violence—particularly sexual violence—are the most common. Police statistics report theft and property offences as the most common. In the 2014 NZCASS, 68% of crime was not reported to the police. Victims reported that they did not report crimes because they felt the crime was 'too trivial' (49%), it was a 'private' matter (24%), or that the police could not have done anything in response (22%) (Ministry of Justice 2015). This illustrates the problems in counting common crimes and trying to estimate with any degree of accuracy the amount of crime in any given country. What constitutes 'common crimes' depends very much on who is asked and in what context.

Notwithstanding, the differences in methodology and measurement, both the Australian and New Zealand victimisation surveys are generally consistent in their identification of both physical and threatened assault as the most common of all personal crimes, while property damage emerges as the most common of the property crimes experienced by households. That said, both surveys also offer an important and unique insight into why this data differ from that collected from administrative sources. In particular, crime

victimisation surveys offer a rare glimpse into the dark figure of crime by estimating the prevalence of underreporting of different offence types. In both Australia and New Zealand, only a small fraction of victims report their most recent crime experience to the police. In New Zealand, for example, only 38% of household crimes and 24% of personal crimes are reported to the police. The crime types least likely to be reported to police in both countries were personal crimes such as assault and sexual assault. NZCASS noted that a large majority of respondents did not experience any crime (76% in 2013, and 63% in 2008), but also noted that particular groups such as young people and Māori are more likely to be the victims of crime, as are those who are unemployed and those who live in state housing. Moreover, the NZCASS demonstrates that the large majority of people do not worry about crime, but that particular groups such as women and ethnic groups fear crime the most; 43% of Asian people, 41% of Pacific peoples, and 17% of Māori worry about being harassed, intimidated, or assaulted because of their ethnicity/indigeneity (Ministry of Justice 2015). This leads us to consider the consequences of the recognised over-policing of Indigenous and ethnic groups, and the under-policing of the same groups as victims of crime (Cunneen and White 2007). Note also that a small number of people experience most of the crime. Some 3% of people experience 53% of all crime (Ministry of Justice 2015), demonstrating that victimisation is uneven and often concentrated amongst the most vulnerable, disadvantaged populations.

Conclusion

Crime statistics are an important tool for monitoring the nature and type of offending that occurs. They make possible the ranking of different offence types by frequency, allowing the most common crimes to be identified and responded to by policy makers and law enforcement practitioners. Yet, for the many reasons highlighted throughout this chapter, an overreliance on officially recorded statistics could have unintended consequences, focussing attention on crimes that appear common only because their victims are more likely to report, or because they are crimes that are administratively or operationally more likely to be identified. The clear conclusion is that public discourse about crime, and thus the decisions made by governments, must be informed by multiple data sources, using a triangulation of mixed methods data collection, for what is common in officially recorded crime statistics will potentially mask some more important social problems.

Notes

1. It is important to note here that due to a range of data comparability issues, the ABS does not yet report victimisation rates for common assault.
2. Knowledge of the NOI and its compilation is important for interpretation, as it relates to the counting preferences attributed to specific offence types. The offence of drug dealing or trafficking of non-commercial quantities, a charge often imposed for the possession of quantities greater than for personal use, is ranked 21 of 157 on the NOI—higher than aggravated robbery (NOI 24), common assault (NOI 28), and the trafficking of regulated weapons or explosives (NOI 47).

References

ABS. 2015a. *Recorded Crime—Offenders, Australia*, *2014*. Cat. no. 4519.0. Canberra: ABS.

ABS. 2015b. *Recorded Crime—Victims, Australia*, *2014*. Cat. no. 4510.0. Canberra: ABS.

ABS. 2016. *Crime Victimisation, Australia*, *2014/15*. Cat no. 4530.0. Canberra: ABS.

Becker, Howard. 1963/1973. *Outsiders.* New York, NY: Free Press.

Bowles, Roger, Maria Garcia Reyes, and Nuno Garoupa. 2009. Crime Reporting Decisions and the Costs of Crime. *European Journal of Crime Policy Research* 15: 365–377.

Bradley, Trevor, Michael Rowe, and Charles Sedgwick. 2010. Not in My Backyard? Crime in the Neighbourhood. *The Howard Journal of Criminal Justice* 50 (1): 34–51.

Brunton, Colmar. 2014. *Public Perceptions of Crime and the Criminal Justice System Survey: 2014 Results*. Wellington: Ministry of Justice.

Carbone-Lopez, Kristin, Lee Ann Slocum, and Candace Kruttschnitt. 2016. 'Police Wouldn't Give You No Help': Female Offenders on Reporting Sexual Assault to Police. *Violence Against Women* 22 (3): 366–396.

Coomber, Ross, Karen McElrath, Fiona Measham, and Karenza Moore. 2013. *Key Concepts in Drugs and Society*. London: Sage.

Cunneen, Chris, and Rob White. 2007. *Youth and Crime in Australia*. Oxford: Oxford University Press.

Davis, Brent, and Kym Dossetor. 2010. *(Mis)Perceptions of Crime in Australia*. Canberra: AIC.

Department of Corrections. 2009. *Annual Report*. Wellington: Department of Corrections.

Duffy, Bobby, Rhonda Wake, Tamara Burrows, and Pamela Bremner. 2008. Closing the Gaps—Crime and Public Perceptions. *Computers and Technology* 22: 17–44.

Eastwood, Niamh, Michael Shiner, and Daniel Bear. 2013. *The Numbers in Black and White: Disparities in Policing and Prosecution of Drugs Offences*. London: Release.

Fergusson, David, Nicola Swain-Campbell, and L. John Horwood. 2003. Arrests and Convictions for Cannabis Related Offences in a New Zealand Birth Cohort. *Drug and Alcohol Dependence* 70 (1): 53–63.

Garvey, Stephen. 2003. *Beyond Repair? America's Death Penalty*. Durham, NC: Duke University Press.

Human Rights Watch. 2008. *Targeting Blacks: Drug Law Enforcement in the US*. New York, NY: Human Rights Watch.

Ministry of Justice. 2013. *Youth Crime Action Plan 2013–2023*. Wellington: Ministry of Justice.

Ministry of Justice. 2015. *2014 New Zealand Crime and Safety Survey: Main Findings*. Wellington: Ministry of Justice.

Moore, Briana M., and Thomas Baker. 2016. An Exploratory Examination of College Students' Likelihood of Reporting Sexual Assault to Police and University Officials Results of a Self-Report Survey. *Journal of Interpersonal Violence*. doi:10.1177/0886260516632357.

Myers, Samuel. 1980. Why Are Crimes Underreported? What Is the Crime Rate? Does It Really Matter? *Social Science Quarterly* 61: 23–43.

Paulin, Judy, Wendy Searle, and Trish Knaggs. 2003. *Attitudes to Crime and Punishment: A New Zealand Study*. Wellington: Ministry of Justice.

Payne, Jason L., and Alex R. Piquero. 2016. The Concordance of Self-Reported and Officially Recorded Lifetime Offending Histories: Results from a Sample of Australian Prisoners. *Journal of Criminal Justice* 46: 184–195.

Police, N.Z. 2015. *A Summary of Recorded and Resolved Offence Statistics*. Wellington: NZ Police.

Police, N.Z. 2016. *The Transformation of NZ Police Crime Statistics: New Measures and Trends*. Wellington: NZ Police.

Quince, Khylee. 2007. Maori and the Criminal Justice System in New Zealand. In *Criminal Justice in New Zealand*, ed. Julia Tolmie and Warren Brookbanks, 333–359. Wellington: LexisNexis.

Radzinowicz, Leon, and Joan F.S. King. 1977. *The Growth of Crime: The International Experience*. New York, NY: Basic Books.

Roberts, Lynne, and David Indermaur. 2009. *What Australians Think about Crime and Justice: Results from the 2007 Survey of Social Attitudes*. Canberra: AIC.

Sampson, Robert J., and John H. Laub. 2003. Life-Course Desisters? Trajectories of Crime among Delinquent Boys Followed to Age 70. *Criminology* 41: 319–339.

Sparks, Richard. 1992. *Television and the Drama of Crime*. Cambridge: Open University Press.

Statistics New Zealand. 2016. *Recorded Crime Statistics*. Wellington: Statistics NZ.

Stevens, Alex. 2008. Weighing Up Crime: The Overestimation of Drug-Related Crime. *Journal of Contemporary Drug Problems* 35: 291–320.
UN News Centre. 2014. High Rate of Māori in Prison Among Concerns as UN Experts Wrap Up New Zealand Visit. *UN News Centre*, April 8.

Author Biographies

Jason L. Payne is a Senior Lecturer in criminology at the ANU. His research focusses on drugs and crime, developmental criminology, and quantitative evaluation methods. In his former role as research manager of the AIC's Violent and Serious Crime Monitoring programme, he was responsible for a wide range of research programmes such as the DUMA programme.

Fiona Hutton is a Senior Lecturer in criminology at the Institute of Criminology, VUW. Her research focusses on young people, gender, social networking sites and alcohol, alcohol and drug use, and harm reduction. She is author of *Risky Pleasures? Club Cultures and Feminine Identities*, and is currently critically exploring NZ's drug policy, with a focus on legal highs.

9

Violent Crime

Stuart Ross and Ken Polk

Violence is a topic of perennial concern to both laymen and criminal justice professionals. The frequency of coverage of violent crime in the news media (Jewkes 2015); the high level of public anxiety about street crime (Farral et al. 2009); and the succession of governmental inquiries into various forms of violence such as street violence, domestic violence, drug-related violence, and child sexual abuse are testimony to the salience of violence as a public policy problem. In response, politicians, governments, and justice agencies have felt the need to enter the debate about "what needs to be done" about violence with legislative and policy reforms that tackle specific forms of violence such as one-punch attacks, domestic and family violence, violence by recidivist or dangerous offenders, and "bikie" gang violence, or that address the underlying causes of violence such as gender inequality, binge drinking, and access to firearms.

In apparent contrast to this constant fascination with violence, the last two decades have witnessed a dramatic fall in the level of violent crime. For the 40 years after the WWII, crime rates in developed countries rose steadily, driven by a combination of changes in demography, economic opportunity, social and family structures, and criminal justice responses (Cohen et al. 1980;

S. Ross (✉)
Department of Criminology, University of Melbourne, Melbourne, Australia
e-mail: rosssr1@unimelb.edu.au

K. Polk
Social and Political Sciences, University of Melbourne, Melbourne, Australia
e-mail: kennethpolk2001@gmail.com

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_9

Dhiri et al. 1999; Walker and Henderson 1991). However, more recently the trend in crime rates has reversed, with falls in virtually all forms of crime apparent in the USA, the UK, Canada, and almost all Western European countries (Tonry 2014; Van Dijk et al. 2012).

In this chapter, we use these victimisation survey data together with the longer running time series from the National Homicide Monitoring Program (Bryant and Cussen 2015) to examine whether the phenomenon of falling rates of violent crime is also apparent in Australia, and the explanations that might be advanced to account for these trends. We reflect on important empirical facts before assessing the theoretical notions that have been proposed to account for declines in crime. These empirical facts include who is being victimised and who is not, under what circumstances, and what happens in response to these crimes.

The Evidence for Declining Rates of Violence in Australia

In his review of crime trends, Tonry (2014) notes that the rise in personal and property crime that began around 1960 represented an aberration from the long-term downward trend in crime that had been evident ever since institutionalised systems of official data were established in the nineteenth century. After rising steadily for three decades, the crime rate in almost all Western countries began to decline again. This downward trend encompasses violent and property crimes and is apparent in both victimisation survey and police data. The only area of significant uncertainty is in non-lethal violent crime where in some countries—especially in Scandinavia—robbery and assault rates appear to be continuing to increase.[1]

Australia came late to the development of reliable national data on crime (Carcach 2005). As a result, Tonry's (2014) analysis of Australian crime trends only covers a narrow span from 1993 to 2010 and relies on police recorded crime statistics. However, more recently our capacity to understand Australian crime trends has changed with the commencement of a series of annual crime victimisation surveys in 2008/2009 (ABS 2016). These surveys provide a consistent time series of property and violent crime victimisation in Australia. In search of evidence for declining rates of violence, a number of recording practices are consulted. These include offences recorded by police, the National Homicide Monitoring Program, Crime Victimisation Surveys, and Personal Safety Surveys.

Offences Recorded by Police

The number of crimes recorded by police has been a traditional benchmark for the level of crime, and consequently the focus of episodic public and media attention. Nationally comparable crime statistics for Australia have only been available since 1993, and our attention is directed only to those published after 2000 when the downward trend was clearly established (see Fig. 9.1). It is clear that in all of the major categories of violent crime except one, the victimisation rate has fallen significantly, with rates in 2014 between 35 and 70% below the level in 2000. Even robbery offences—for which the ABS stopped publishing population rates for technical reasons[2] in 2010—showed a 43% drop over the 9 years to 2010. The exception to this general pattern is sexual assault, for which rates have stayed essentially unchanged.

While these counts of crimes recorded by police provide a consistent picture of declining levels of all forms of violent crime except sexual assault, there are two important gaps in the picture they provide. The first is that non-sexual assaults are not represented in the national statistics at all due to significant variations between the states and territories in the threshold for recording them. Problems with measuring assault rates from police records

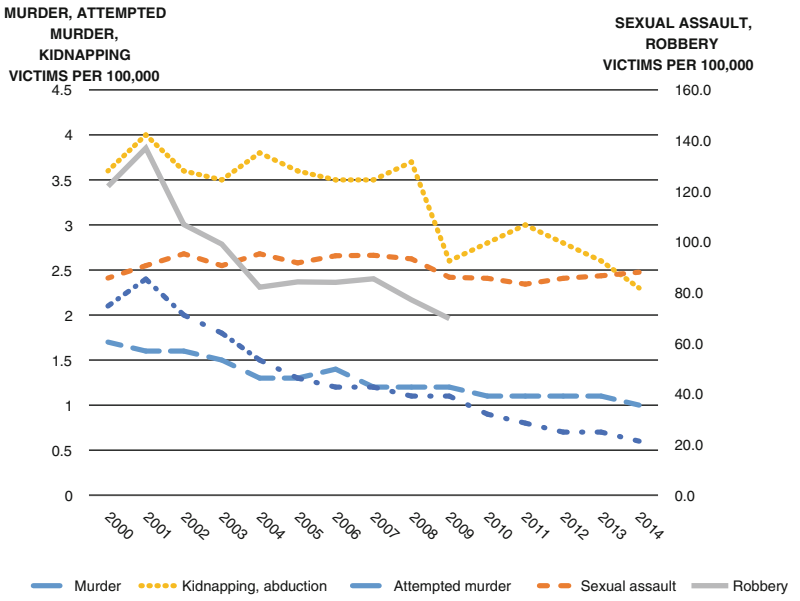


Fig. 9.1 Police recorded violent crimes, Australia, 2000–2014. *Source* Recorded Crime Australia, ABS Cat. no. 4519.0

are, however, not a particularly Australian problem (Tarling and Morris 2010). Establishing an understanding of changes in the rate of assault has been further complicated over the last decade because of the shift that has taken place in the policing of domestic violence, from a state where such events were rarely recorded as crimes (Buzawa 2012) to one where in 2014 around 40% of assaults recorded by police were identified as involving domestic violence (ABS 2015). The second gap is that police data only count crimes that victims bring to police attention and that satisfy legal and evidentiary criteria. This is known to represent only a fraction of all violent crime (Van Dijk 2015). Thus, if we want to understand fully the nature of these changes we need to go to other sources of data on the level of violent offending.

National Homicide Monitoring Program (NHMP)

The homicide rate—or more specifically, murder, manslaughter, and infanticide—has long been a yardstick for understanding the level of violence in a society because homicides can be defined in a consistent fashion—as the unlawful killing of a person—and homicide rates are not significantly affected by reporting or recording biases. Reliable national data on Australian homicides begin with the establishment of the NHMP in 1989, and these data show a steady fall in the homicide rate from around two to just over one per 100,000 persons in 2011/2012. The fall in the homicide rate has been evident for both males and females, in all Australian states and territories, and across all the major forms of homicide, that is, domestic, stranger, and acquaintance (Fig. 9.2).

Prior to the NHMP, state and national estimates for homicide were compiled by aggregating data from a variety of sources (Krupinski and Emmerson 1977; Mukherjee 1981), and, as a result, there are substantial problems in comparing them with later measures. Mukherjee (1981) reported Australian homicide rates of around six per 100,000 in 1900, declining to around four in 1920, then three in 1930, before rising again in the post-war years to around six per 100,000 in the mid-1970s. These counts were based on persons charged rather than victims or incidents. Not all homicides result in criminal charges—for example, when crimes are unsolved, or when the perpetrator also dies—but when they do, there is often more than one offender for each victim (Willow and Cussen 2015). As a result, Mukherjee's estimates are likely to be inflated relative to the NHMP estimates. Nevertheless, it is clear that homicide rates in Australia have declined both in

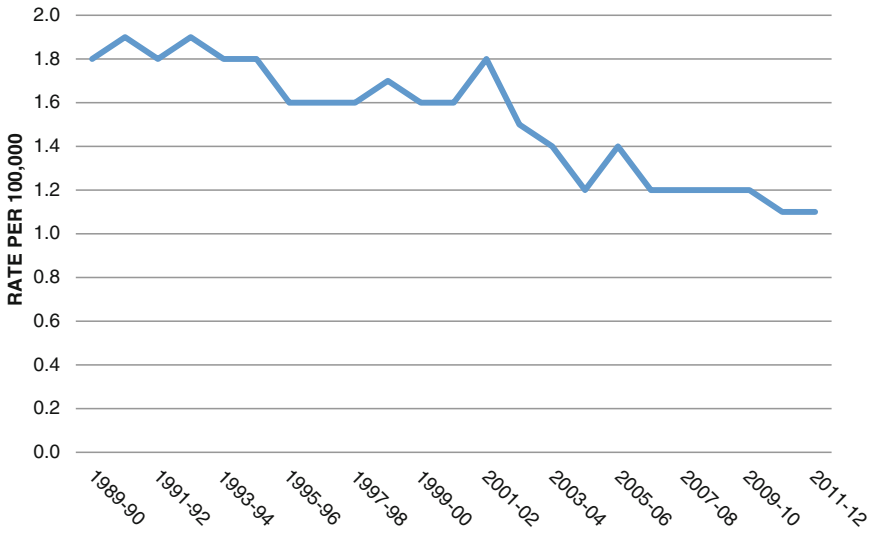


Fig. 9.2 Homicide rate by year, 1989/1990 to 2011/2012. *Source* National Homicide Monitoring Program (Bryant and Cussen 2015, 4)

the last two decades and over the period since 1900, albeit with an apparent reversal of this long-term trend in the 1960s and 1970s.

Crime Victimisation Survey

The crime victimisation survey (CVS) provides a different approach to measuring the level of crime in that crimes are defined in terms of the behaviours involved and are counted whether or not any evidentiary standard is satisfied or whether any formal report of the crime was made to police. Victimisation rates are calculated based on crimes occurring in the last 12 months. As a result, the CVS can provide a more stable measure of the assault rate (including distinguishing between physical and threatened assaults), sexual assault rate, and robbery rate. The current series of the CVS shows downward trends in the victimisation rate for physical and threatened assault and robbery. The rate of physical assault has fallen from 3.1% of respondents[3] in 2008/2009 to 2.1% in 2014/2015, threatened assault from 3.9 to 2.6%, and robbery from 0.6 to 0.3%. Again, sexual assault is the exception to this pattern, with the victimisation rate remaining almost unchanged at 0.3% throughout the survey series (Fig. 9.3).

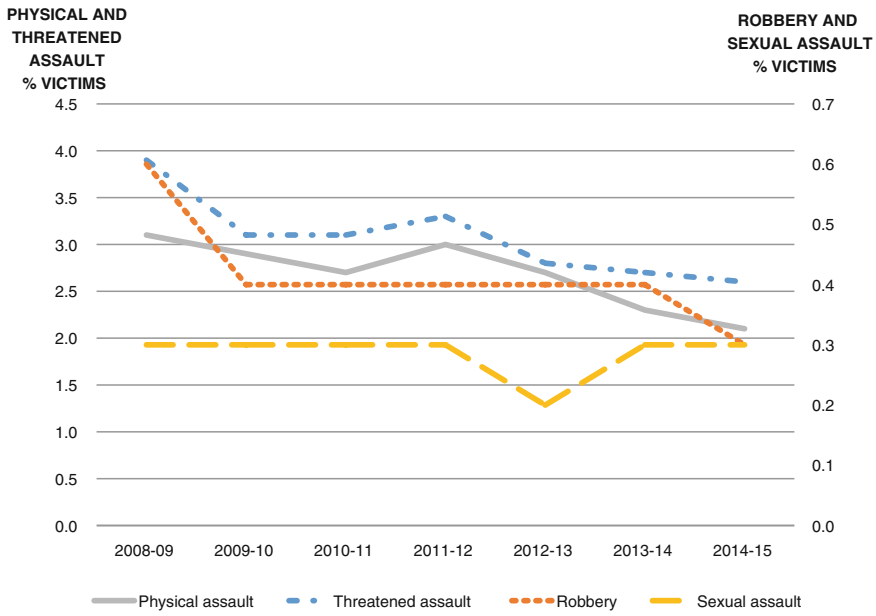


Fig. 9.3 Violent crime victimisation rates. *Source* Crime Victimisation Survey, ABS Cat. no. 4530.0

Personal Safety Survey

The Personal Safety Survey (PSS) (ABS 2013) is also a victimisation survey, but one that uses a different methodology to measure experiences of violence. The PSS was conducted in 2005 and 2012. It also showed significant falls in the level of violence experienced by respondents. In 2005, an estimated 10.8% of all men had experienced violence in the 12 months prior to the interview, compared to 8.7% in 2012. For women, the prevalence estimates were 5.8% of all women in 2005, compared to 5.3% in 2012.

Unlike in the UK and US, there have been few attempts to align Australian crime rate estimates derived from victimisation surveys and police sources. A recent report by BOCSAR (Nelson 2015) concluded that the trend in violent victimisation in the CVS aligned closely with NSW police data while noting that alongside the fall in the prevalence of assault there had been an increase in the level of repeat victimisation.

Thus, both police data and the two victimisation surveys show a consistent picture of falling rates of violent crime. While the time scales and the magnitude of the estimates are different, the same general trends are evident of declining rates of both serious and less serious assaultive and robbery crimes,

but no change in sexual assault crimes. However, these overall trends tell us little about why these changes are taking place. To begin answering this question, we need to ask, who is being victimised?

The Demography of Violence

In this section, we look at the age and sex of victims of violent crime, and how this has changed over the period of declining crime rates. Our analysis focuses mainly on assault victimisation as measured by the CVS, but where appropriate we reference other forms of crime.

The first point to note is that the fall in assault measured by the victimisation survey has been primarily the result of falling victimisation rates amongst men. Since 2008/2009, the physical assault rate for men has dropped by around 40%—from 3.9 to 2.3%—while for women the rate has only fallen by around half that amount, from 2.4 to 2%. Another way to view this is that men in 2008/2009 were 60% more likely to report being a victim of physical assault than women, but by 2014/2015 they were only 15% more likely. Note that these differences are consistent with those reported in the PSS, where male rates of violent victimisation fell by 20% between 2005 and 2012, while female rates only fell by 10% (Fig. 9.4).

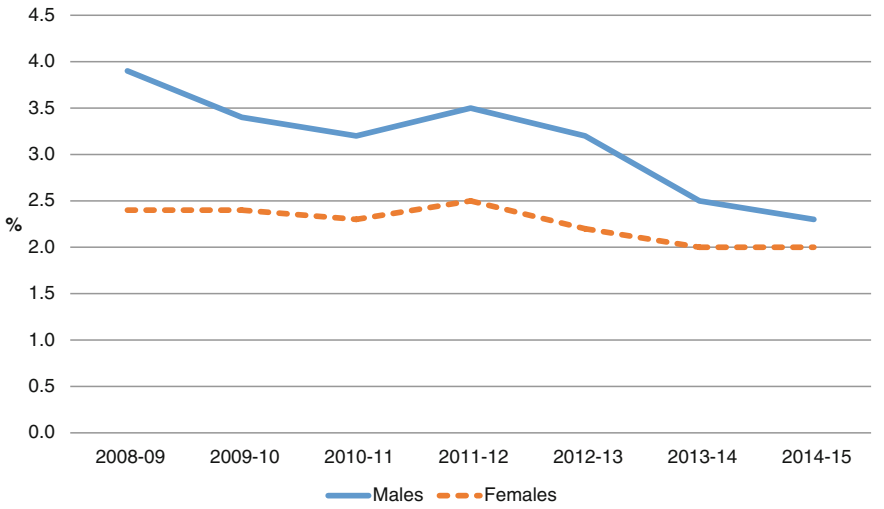


Fig. 9.4 Physical assault victimisation rates for men and women. *Source* Crime Victimisation Survey, ABS Cat. no. 4530.0

The same gendered pattern is evident for robbery, where male rates in the crime victimisation survey have fallen by two-thirds, while female robbery rates remain largely unchanged. It is worth noting that these gender-specific patterns are not evident in police crime statistics, where male and female robbery rates have fallen by about the same amount, from 125 to 50 per 100,000 for men—which is a 60% fall—and from 49 to 19 per 100,000 for women; which is also a 60% fall. However, the much higher initial robbery rate for men means that most of the fall in robbery volumes has involved crimes against male victims. Viewed in combination with the absence of change in sexual assault rates, these crime trends show rates of violent crime victimisation involving men falling much faster than those involving women.

If we examine the age structure of violent victimisation, it is evident that the decline in violent crime is concentrated in younger age cohorts. The assault victimisation rate of those aged 15–19 dropped by two-thirds, from 8.7 in 2008/2009 to 3.0 per 100,000 in 2014/2015. In the next two age categories—20 to 24 and 25 to 34—the assault victimisation rate fell by one-third and, in the older age groups, there was little or no change at all (Fig. 9.5). The same pattern is evident in robbery victimisation, where most of the decline in rates is accounted for by victims aged under 25 years. This age-structured trend is also apparent in police crime statistics which show robbery victimisation involving victims aged 15–24 falling by two-thirds, but much smaller changes in older age categories.

This data analysis shows that the fall in violent crime rates since 2000 is primarily driven by falling rates of victimisation of young males. At the same time, rates of crime victimisation of women have remained more or less unchanged. These two contrasting trends have meant that the long-standing overrepresentation of men relative to women as victims of violence has been reduced to a relatively narrow margin.

Policy Responses to Violent Crime

The suppression of violence and disorder and the minimising of public anxieties about crime are enduring concerns of contemporary governments. Public concern about crime has a very long history. Fear of crime—as the subject of academic inquiry—surfaced as a well-defined focus of policy attention in the 1960s, at around the time that crimes rates commenced their upward trajectory (Farrall et al. 2009). In the last decades of the twentieth century, the "emotional tone" of crime policy became increasingly dominated by concerns about the interests and feelings of victims, and by an emphasis on

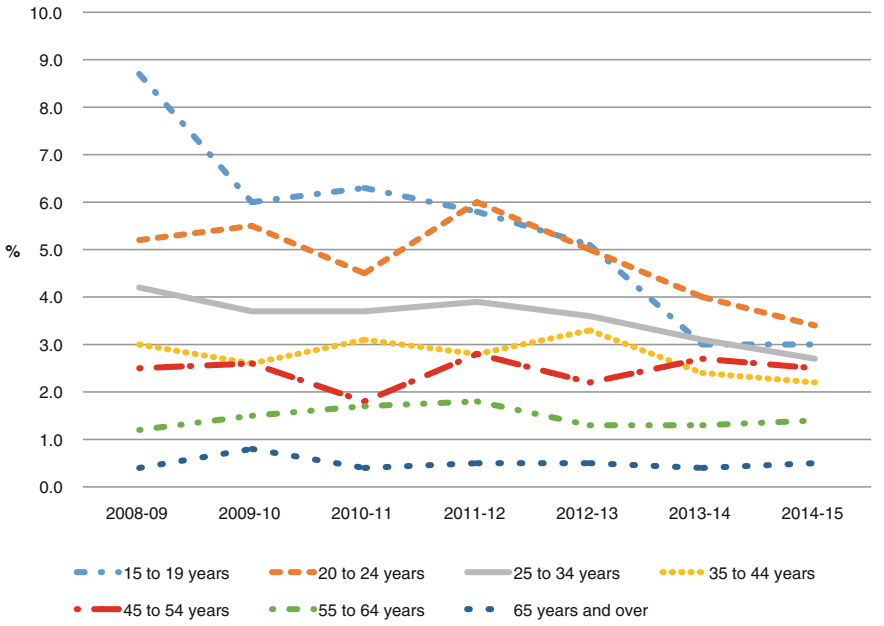


Fig. 9.5 Physical assault victimisation rates for age cohorts. *Source* Crime Victimisation Survey, ABS Cat. no. 4530.0

the protection of public safety through the identification and control of the risks and threats posed by crime (Garland 1999). In this section, we examine two ways that contemporary Australian governments have attempted to manage the social and political problems posed by violent crime: public inquiries into violence and justice system responses intended to prevent and punish violent crime.

Public debate about violence often takes the form of discourses focussed on specific incidents or forms of violence. Recent years have seen concentrated media, public, and political attention paid to issues such as attacks on Indian students; one-punch and alcohol-fuelled assaults; the sexual abuse of minors by priests; and attacks committed by offenders on parole. A common governmental response has been to commission some form of inquiry with the aim of collecting information about the nature and extent of the problem, giving victims an opportunity to have their experiences acknowledged, and identifying potential solutions. Inquiries may be conducted by one or more expert consultants, statutory authorities, parliamentary committees, or by a Royal Commission that is equipped with extensive investigative powers. A non-exhaustive list of recent inquiries includes the review of the parole

system in Victoria, which was triggered by violent offences committed by parolees and was conducted by former High Court Judge Ian Callinan QC (2013); the Human Rights and Equal Opportunity Commission Inquiry into Racist Violence (HREOC 1991); the NSW Ombudsman's review of police powers to control public disorder in the aftermath of the Cronulla riots (NSW Ombudsman 2007); parliamentary committee inquiries into alcohol-related violence in the Senate (Legal and Constitutional Affairs References Committee 2016), NSW (Law and Safety Committee NSW 2014), Queensland (Law Justice and Safety Committee Queensland 2010), and Victoria (Drugs and Crime Prevention Committee Victoria 2010); parliamentary committee inquiries into youth violence (Standing Committee on Family, Community, Housing, and Youth 2010) and domestic violence (Finance and Public Administration References Committee 2015); the recently completed Royal Commission into Family Violence (2016); and the Royal Commission into Institutional Responses to Child Sexual Abuse.

Inquiries provide governments with an inquisitorial mechanism to examine complex social problems and a way to engage the community in the policy processes required to respond to them. At the same time, inquiries are often tasked in ways that define the problems to be examined in narrow terms, take place in a context of scandal and blame attribution, and can be seen as exercises in deflecting public anxiety rather than as vehicles for substantial reform (Butler and Drakeford 2003; Humphreys et al. 2014). While it is possible to point to some substantial policy reforms arising out of the plethora of governmental inquiries into violence, the most significant change in the "policy settings" associated with violence has been an increasing reliance on punitive sanctions.

This punitive trend is most obvious in the changing offence profile of sentenced prisoners. In 2000, prisoners sentenced for violent offences—homicide, assault, and sexual assault—made up 34% of the total custodial population but by 2015 this group had grown to nearly 44% of the total. In the 15 years since 2000, the national sentenced prison population has grown from around 18,000 to just over 26,000 persons, and over 60% of this growth—that is 5100 out of the 8300 additional prisoners—is attributable to persons sentenced for violent offences. The primary driver of growth is the increase in the number of males sentenced to imprisonment for violent crimes. The number of women imprisoned for violent crimes has grown, but only at the same rate as the total female prison population. In addition, the number of prisoners on remand has grown even more rapidly, from 3800 in 2000 to 9900 in 2015. Again, violent offences comprise an increasing share of

this growing population, rising from 29% of remand prisoners in 2000 to 44% in 2015.

The changes in the prison population over the past 15 years provide a very limited perspective on the shifts in justice policy in relation to violent offending and leave as many questions unanswered as they answer. Is this growth driven by increasing sentencing severity, or by an increase in the number of persons sentenced to prison for violent offences? How are these trends related to changing policing strategies or the waves of legislative reform to sentencing? To what extent do they reflect the policy and procedural reforms directed at the problem of domestic violence? While there are partial answers to some of these questions for some Australian jurisdictions (see especially the work of BOCSAR, the Victoria Crime Statistics agency, and the NSW and Victoria Sentencing Councils), for the most part, we simply do not know.

Explaining Recent Trends in Violent Crime

In this chapter, we have delineated some of the features of the fall in violent crime that has taken place in Australia over the last two decades, and, in particular, the way that this has been driven mainly by declining victimisation rates of young men. While a falling rate of violent crime is unquestionably a desirable trend, there remain important questions to be answered if we are to reinforce the factors that are responsible for the decline and address the notable exceptions to the trend, particularly the absence of change in the violent victimisation of women. More specifically, we do not know whether any or all of the reforms that have taken place in the recent past—firearms control, reforms to the criminal law and sentencing, investment in domestic violence responses—have made any contribution to the decline in violence.

A key problem is that these changes have been largely unstudied. There have been a variety of studies of specific policy responses to violence. Notable contributions include research on the consequences of Australia's firearm reforms that document the dramatic fall in firearm homicides and suicides since 1990 (Baker and McPhedran 2007; Chapman et al. 2006; Peters 2013); research on the impact of alcohol marketing and availability on domestic and other forms of violence (Livingston 2008, 2011; Livingston et al. 2007); research on the "late-night economy" (Leung et al. 2015); and research on the effectiveness of family violence reforms (Diemer et al. 2017; Young et al. 2000). However, while studies of this nature can illuminate parts of the puzzle of falling violent crime rates, they are of limited value in understanding

the large-scale and sustained nature of the fall in violent crime, and in explaining its apparently restricted impact on young male victims.

At the other extreme, there have been a number of attempts to explain the fall in violent crime in terms of justice sector changes like increased incarceration or police effectiveness, or the use of the death penalty, or fundamental economic forces like unemployment, inflation rates, consumer confidence, or social and environmental factors like population ageing, changing alcohol and drug use patterns, or the abolition of lead in petrol (Roeder et al. 2015). Tonry (2014) argues that the near universal fall in both property and violent crime rates—and the close coupling of the timing of these falls in Western countries—invalidates any attempt to account for the decline by reference to changes in policy, economy, or demography. Tonry's view is that the recent fall in crime rates represents a reversion to a long-term trend that was interrupted by an anomalous period from 1960 through to 1990. He argues that "crime rates move to deep and broad social forces" (54) and that explanations need to be grounded in "broad-based theories of social control and self-control" (53). Thus, it is Tonry's view that the recent downward trend can be explained as part of the general civilising process (Elias 1978). This resonates with Pinker's (2011) argument that the long-term decline of all kinds of violence is the result of *The Better Angels of our Nature*; that historical trends demonstrate increasing levels of empathy, self-control, moral sensibilities, and reason.

The "crime drop" paradigm has been challenged from several directions, including the argument that the pattern is not as universal as it appears (Killias and Lanfranconi 2012), and that the aggregate trend in crimes obscures important exceptions like e-crime (Farrell 2013).

Conclusion

In this chapter, we have outlined three significant trends in violence and the responses to violence that have been apparent since the turn of the century. Firstly, there have been falling rates of violent victimisation; albeit confined to non-sexual violence and younger male victims. Secondly, there has been a high level of government attention to violence in the form of inquiries, with ensuing legislative and policy reforms. Lastly, there has been a substantial increase in the punitive treatment of violent offenders. These are all highly significant shifts with substantial impact on budgetary costs. The annual cost of violence against women—including physical, sexual, and emotional violence, and stalking—has been estimated at AUD 21.6 billion, with direct

costs to government of AUD 7.8 billion per year (PriceWaterhouseCoopers 2015). The annual *incremental* cost of imprisoning violent offenders relative to 15 years ago is over AUD 0.5 billion[4], and the total cost is well over AUD 1.0 billion. Thus, understanding the links between the three themes in this chapter—victimisation, governmental responses, and policy outcomes—is of critical importance in making wise choices about what we do in the future.

Our concern is that appeals to broad-based changes in human behaviour are of limited value in accounting for the specific features of the changes we have identified here. In particular, they fail to explain why falling rates of victimisation are concentrated in young men, and why women and older people generally have not experienced lower rates of violent victimisation. Indeed, we propose that the recent changes in the nature of violent crime pose significant challenges for traditional criminological theories about gender, masculinity, violence, and risk.

Notes

1. Killias and Lanfranconi (2012) have argued that Switzerland also represents an exception to the general pattern.
2. The technical reason was that some recorded robbery offences had a business victim, not a person victim. Hence, the ABS considered reporting robbery as a population rate was an invalid practice because it implied that all robbery victims were person.
3. Victimisation surveys measure rates in percentages, while police recorded crime rates are measured in victims per 100,000. To compare them, multiply victimisation survey rates by 100.
4. Based on the Report on Government Services 2015 (Productivity Commission 2015) estimate of AUD 292 per prisoner per day.

References

ABS. 2013. *Personal Safety: Australia 2012. Cat. no. 4906.0*. Canberra: ABS.

ABS. 2015. *Recorded Crime, Victims: Australia 2014*. Cat no. 4510.0. Canberra: ABS.

ABS. 2016. *Crime Victimisation: Australia 2014–15*. Cat no. 4530.0. Canberra: ABS.

Baker, Jeanine, and Samara McPhedran. 2007. Gun Laws and Sudden Death: Did the Australian Firearms Legislation of 1996 Make a Difference? *British Journal of Criminology* 47: 455–469.

Bryant, Willow, and Tracey Cussen. 2015. *Homicide in Australia: 2010/11 to 2011/12: National Homicide Monitoring Program Report*. Canberra: AIC.

Butler, Ian, and Mark Drakeford. 2003. *Social Policy, Social Welfare and Scandal: How British Public Policy is Made*. London: Palgrave.

Buzawa, Eve S. 2012. The Evolving Police Response to Domestic Violence. *Journal of Police Crisis Negotiations* 12: 82–86.

Callinan, Ian. 2013. *Review of the Parole System in Victoria*. Melbourne: Corrections Victoria.

Carcach, Carlos. 2005. Crime and Punishment in Australia, 1980–2000. *Crime and Justice* 33: 295–330.

Chapman, Simon, Philip Alpers, Kingsley Agho, and Mike Jones. 2006. Australia's 1996 Gun Law Reforms: Faster Falls in Firearm Deaths, Firearm Suicides, and a Decade without Mass Shootings. *Injury Prevention* 12: 365–372.

Cohen, Lawrence E., Marcus Felson, and Kenneth C. Land. 1980. Property Crime Rates in the United States: A Macrodynamic Analysis, 1947–1977; with ex ante Forecasts for the mid-1980s. *American Journal of Sociology* 86: 90–118.

Dhiri, Sanjay, Sam Brand, Richard Harries, and Richard Price. 1999. *Modelling and Predicting Property Crime Trends in England and Wales*. London: Home Office.

Diemer, Kristin, Cathy Humphreys, Stuart Ross, Lucy Healey. 2017. A Double-Edged Sword: Compulsion and Discretion in Policing Domestic Violence. *Police Practice and Research* 18: 339–351.

Drugs and Crime Prevention Committee. 2010. *Inquiry into Strategies to Reduce Assaults in Public Places in Victoria*. Melbourne: Parliament of Victoria.

Elias, Norbert. 1978. *The Civilizing Process, trans.* Edmund Jephcott with some notes and revisions by the author. Oxford: Blackwell.

Farrall, Stephen, Jonathan Jackson, and Emily Gray. 2009. *Social Order and the Fear of Crime in Contemporary Times*. Oxford: Oxford University Press.

Farrell, Graham. 2013. Five Tests for a Theory of the Crime Drop. *Crime Science*. doi:10.1186/2193-7680-2-5.

Finance and Public Administration References Committee. 2015. *Domestic Violence in Australia*. Canberra: Parliament of Australia.

Garland, David. 1999. *The Culture of Control: Crime and Social Order in Contemporary Society*. Oxford: Oxford University Press.

HREOC. 1991. *Racist Violence: Report of the National Inquiry into Racist Violence in Australia*. Canberra: AGPS.

Humphreys, Cathy, Marilyn Webster, and Julian Pocock. 2014. The Role of Inquiries in Shaping Child Care Practice: Is there a Role for Evidence to Inform Policy? *Evidence and Policy* 10: 497–512.

Jewkes, Yvonne. 2015. *Media and Crime*. Thousand Oaks, CA: Sage.

Killias, Martin, and Bruno Lanfranconi. 2012. The Crime Drop Discourse: Or the Illusion of Uniform Continental Trends. In *The International Crime Drop*, ed. Jan van Dijk, Andromachi Tseloni, and Graham Farrell, 268–278. Basingstoke: Palgrave Macmillan.

Krupinski, Jerzy, and Roma Emmerson. 1977. Violence: Occurrence and Reporting. A Century of Study of Crimes of Violence in Victoria 1875–1975. *Australian and New Zealand Journal of Criminology* 10: 244–252.

Law and Safety Committee. 2014. *Measures to Reduce Alcohol and Drug-Related Violence (Inquiry)*. Sydney: Parliament of NSW.

Law Justice and Safety Committee. 2010. *Inquiry into Alcohol Related Violence in Queensland*. Brisbane: Parliament of Queensland.

Legal and Constitutional Affairs References Committee. 2016. *Need for a Nationally-Consistent Approach to Alcohol-Fuelled Violence*. Canberra: Parliament of Australia.

Leung, Kit, Clare Ringland, Allison Salmon, Julia Chessman, and David Muscatello. 2015. *That's Entertainment: Trends in Late Night Assaults and Acute Alcohol Illness in Sydney's Entertainment Precinct*. Sydney: BOCSAR.

Livingston, Michael. 2008. Recent Trends in Risky Alcohol Related Consumption and Related Harm among Young People in Victoria, Australia. *Australian and New Zealand Journal of Public Health* 32: 266–271.

Livingston, Michael. 2011. A Longitudinal Analysis of Alcohol Outlet Density and Domestic Violence. *Addiction* 106: 919–925.

Livingston, Michael, Tanya Chikritzhs, and Robin Room. 2007. Changing the Density of Alcohol Outlets to Reduce Alcohol-Related Problems. *Drug and Alcohol Review* 26: 553–562.

Mukherjee, Satyanshu K. 1981. *Crime Trends in Twentieth Century Australia*. Sydney: AIC.

Nelson, Paul. 2015. *Violent and Property Crime Trends: Local and International Comparisons*. Sydney: BOCSAR.

Ombudsman, N.S.W. 2007. *Review of Emergency Powers to Prevent or Control Public Disorder*. Sydney: NSW Ombudsman.

Peters, Rebecca. 2013. Rational Firearm Regulation: Evidence Based Gun Laws in Australia. In *Reducing Gun Violence in America: Informing Policy with Evidence and Analysis*, ed. Daniel W. Webster, and Jon S. Vernick, 195–204. Baltimore, ML: Johns Hopkins University Press.

Pinker, Stephen. 2011. *The Better Angels of Our Nature: Why Violence Has Declined*. New York: Viking Penguin.

PricewaterhouseCoopers. 2015. *A High Price to Pay: The Economic Case for Preventing Violence Against Women*. Melbourne: PricewaterhouseCoopers.

Productivity Commission. 2015. *Report on Government Services, Volume C: Justice*. Canberra: Productivity Commission.

Roeder, Oliver, Lauren-Brooke Eisen, and Julia Bowling. 2015. *What Caused the Crime Decline?*. New York: Brennan Center for Justice.

Royal Commission into Family Violence. 2016. *Summary and Recommendations*. Melbourne: Victorian Government Printer.

Standing Committee on Family, Community, Housing and Youth. 2010. *Avoid the Harm—Stay Calm. Report on the Inquiry into the Impact of Violence on Young Australians*. Canberra: Commonwealth of Australia.

Tarling, Roger, and Katie Morris. 2010. Reporting Crime to the Police. *British Journal of Criminology* 50: 474–490.

Tonry, Michael. 2014. Why Crime Rates are Falling throughout the Western World. *Crime and Justice* 43: 1–63.

Van Dijk, Jan. 2015. The Case for Survey-Based Comparative Measures of Crime. *European Journal of Criminology* 12: 437–456.

Van Dijk, Jan, Andromachi Tseloni, and Graham Farrell. 2012. *The International Crime Drop: New Directions in Research*. Basingstoke: Palgrave Macmillan.

Walker, John, and Monica Henderson. 1991. *Understanding Crime Trends in Australia*. Canberra: AIC.

Young, Margrette, Julia Byles, and Annette Dobson. 2000. *The Effectiveness of Legal Protection in the Prevention of Domestic Violence in the Lives of Young Women*. Canberra: AIC.

Author Biographies

Stuart Ross is an Enterprise Professor of Criminology at the University of Melbourne and Research Manager for Caraniche, a forensic psychology provider in VIC. He was Director of the NCCJS at the ABS. His research focusses on family violence reform, sentencing decision-making, criminal justice population modelling, and the evaluation of criminal justice programmes.

Kenneth Polk has been affiliated with the Department of Criminology at the University of Melbourne since 1985. Although he has retired from teaching, he continues to be active with research and writing, mainly concerned with aspects of art crime. His books include *When Men Kill* (1994) and *Children as Victims of Homicide* (2001).

10

Commercial Armed Robbery

Emmeline Taylor

"A lot of banks these days have too high security" bemoans Ben, a 19-year-old convicted armed robber. And similarly, Jesse—age 22—surmises that banks are "just too high a risk … you'd never be able to get away with it". Reflecting upon these sentiments, one can note that over the past two decades, armed robbery has undergone substantial changes in target selection and modus operandi in Australia, and internationally. This is due, in part, to a range of new security measures and situational crime prevention strategies that have become more sophisticated and more widely available. This chapter provides an overview of the main shifts in target selection, weapon use, and offence characteristics. In addition, drawing on the findings from interviews with 14 incarcerated armed robbers in Australia, the chapter provides rare offender insight into how and why this crime type has dramatically shifted in profile in recent years.

Background

Armed robbery holds a particular salience in Australian national mythscapes with "the best known character in Australian history" (Hirst 2007, 31), Ned Kelly, and his associates having committed at least two-armed bank robberies in the 1870s. Kelly has emerged as a folk hero, a celebrated outlaw, representing a uniquely Australian anti-authoritarian spirit. Whether hero or

E. Taylor (✉)
University of Surrey, Guildford, UK
e-mail: emmeline.taylor@surrey.ac.uk

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_10

villain, Kelly has become a symbolic icon of Australian national identity and is "one of only a handful of historical figures Australians recognize" (Tranter and Donaghue 2010, 4). In contrast, very little is known about contemporary armed robbers. The last piece of research that explored the perspectives of armed robbers in the Australian context was published in 1989, based on interview data collected several years prior (Nugent et al. 1989). Now, over a quarter of a century old, this information is perceptibly outdated as it predates some significant changes in this crime type. Highlighting this concern, Willis (2006, 1) states in an AIC report that "discussion around offender decision-making processes is drawn from material that is now 10 or more years old. This suggests that new research is needed in this area, especially in view of advancements in security technology and possible changes in the armed robber offender profile".

With a focus on armed robbery targeted at commercial premises, this chapter provides an overview of the current profile of this crime type, highlighting key changes over time. In addition to documenting the changing nature of armed robbery and its displacement from banks and financial institutions to softer targets, the views of convicted armed robbers are drawn upon to expound on facets of their criminal behaviour including target selection and use of violence.[1] The findings from these interviews are used throughout to propel and enhance understanding regarding the shifting profile of armed robbery. The analysis is divided into three main aspects of armed robbery. These are location, use of weapons, and the value of items stolen.

Overview

Robbery is defined by the ABS (2015, glossary) as: "The unlawful taking of property, with intent to permanently deprive the owner of the property, from the immediate possession, control, custody or care of a person or organisation, accompanied by the use, and/or threatened use, of immediate force or violence". The offence is divided into the two subcategories of armed robbery—that is, instances of robbery where a weapon was used in the commission of the offence—and unarmed robbery where there was no weapon used or implied in the commission of the offence, or where weapon use was unknown or not stated. The definition of robbery recognises that both persons and organisations can be victimised. Of the 11,698 robberies recorded in Australia during 2013, 6070 were unarmed, while 5628 were committed with some types of weapon (AIC 2016).[2]

Reflecting the crime drop experienced across many Western nations, the overall victimisation rate of robbery, both armed and unarmed, has been declining since 2003, decreasing to a ten-year low of 51 per 100,000 in 2013 (AIC 2016). This trend has continued with a 16% decrease. That is 1825 fewer victims in 2014, compared to the number of victims the previous year (ABS 2015). Similarly, looking at *armed* robbery specifically, there was a 14% decrease in the number of victims—both person and non-person victims—in Australia, from 5631 in 2013 to a 5-year low of 4855 in 2014.

Location

Whereas commercial premises dominated the proportion of armed robbery locations up until 1999, since then, most armed robberies have taken place on the street or footpath (AIC 2016). In 2013, 40% of victims were robbed on the street or footpath, followed by 28% in retail locations (AIC 2016). This chapter focusses on the latter category, robbery in retail or commercial premises. As highlighted above, there is very little known about contemporary offenders and there has been a demonstrable shift in commercial robbery targets. Banks and financial institutions that once accounted for a large proportion of armed robberies in Australia (Nugent et al. 1989) are now rarely held up, making up less than two% of all robberies each year (Borzycki and Fuller 2014). Furthermore, this trend is playing out internationally. For example, the British Bankers Association (BBA) recently reported a 90% reduction in armed robberies, with the chief executive of the BBA largely attributing this decline to target hardening and situational crime prevention measures. "Anyone trying to rob a bank now faces much better CCTV, protective screens that can rise in less than a second and even special fog designed to disperse criminals" (Browne as cited in BBA 2013) Similar trends have been noted in the USA, where it has been reported that FBI figures for 2012 put the number of bank robberies nationwide at 3870, the lowest in decades (Lee 2013).

In addition to situational crime prevention measures mentioned, some commentators have attributed this to tactical displacement, whereby offenders are increasingly targeting online channels rather than bricks and mortar premises, but also "softer" commercial premises. This has been demonstrated by a corresponding increase in armed robbery in commercial targets such as liquor stores, service stations, hotels, pubs, clubs, supermarkets, and restaurants (Borzycki 2006; Willis 2006) as the victimisation rate of banks and financial institutions decreases. For example, between 1993 and 2000, the

incidence of armed robbery of service stations in Australia increased by 214% (AIC 2002). This trend continued with a further 31% increase in the number of incidents between 2004 and 2006 (Smith et al. 2009). As such, it is important to recognise that whilst armed robbery overall is in decline, some types of targets are actually undergoing an increase in victimisation as offenders refocus their energies. The sale of cigarettes and other readily exchangeable goods, the high volume of cash transactions, their often relative isolation, or longer opening hours compared to other businesses in the vicinity, result in convenience stores, fast food outlets, liquor stores, and service stations being at higher risk of victimisation. In addition, the comparative ease with which these targets can be held up has earned them the label "stop and robs" among some offenders (Petrosino and Brensilber 2003). Reflecting this, in response to a string of armed robberies in the ACT in 2015, a senior police sergeant was reported in the *Canberra Times* as stating that the offenders "weren't stupid" in their target selection. "They know if they go to the bank, there'll be screens, alarms, it's more difficult. So they just go for the easier option which is service stations, smaller style supermarkets, bottle shops, places where there's going to be a decent turnover of money that don't have the same security measures other places do" (Gorrey 2015).

Convicted offenders concur. Jesse—age 22—states that he would "never be able to get away with" robbing a bank. "They've set up a lot of plans, you know, and they've got the fly-up thing and it's just too high a risk. If you get caught for doing a bank, you'll get a lot more [longer sentence] than you would for doing a pizza shop." Ben—age 19—had shifted his attention to fast food outlets because "they make heaps of money", but they do not have the same level of security as banks. "Ah, KFC, Red Rooster; just all the main ones, like takeaway stores … Like, people go there all day, every day, and give 'em, like notes and stuff and, at the end of the week, you can get lots of money off 'em. McDonald's, like all the famous places—you know, they've got their own ads and stuff like that that get heaps of people to go there." Similarly, Billy—age 20—committed "spur of the moment" robberies and was not amenable to the planning that a bank robbery would entail. Instead, he was more interested in "the TABs and the clubs … If I want quick cash, probably, like, fast food restaurants, like Kingsley's or KFC or McDonald's or something like that".

The shift away from banks and the corresponding little planning involved in contemporary armed robbery reflects a less organised and more amateur offender. However, despite the relative lack of planning and reconnaissance associated with more recent robbery modus operandi, such target displacement can be considered a largely rational response by offenders (Taylor

2016c), supporting previous studies. For example, Morrison and O'Donnell (1996, 183) assessed their 88 incarcerated interviewees as making logical calculations on "reasonably well-founded, balanced and accurate appraisal of the odds" and similarly, other studies portray armed robbers as rational actors pursuing financial reward for relatively little time and effort (Feeney and Weir 1986; Gill 2000).

Use of Weapons

In 2013, just over half of the armed robberies involved a knife (52%), followed by "other weapons" which includes "chemical" weapons and unspecified types of weapon (20%) and firearms (18%). Collectively, bats/bars/clubs, bottles/glasses, and syringes were used in ten per cent of all armed robberies (AIC 2016). Since this includes all armed robberies, it obscures some more nuanced trends. The shift towards softer targets has also seen some changes in weapon choice. Targets that are perceived to be more "high risk" as well as more lucrative are more likely to involve weapons such as firearms. For example, although across all armed robbery offences firearms were used in less than 20% of offences, they were used in 60% of robberies in banks or financial institutions (Borzycki and Fuller 2014). There was a clear view amongst convicted armed robbers in the sample that the type of target would influence the weapon used. Liam—age 31—states: "Well, I mean if you're going to do a bank, you know, there's people that are defending it with guns, so you'd want to take a gun. Do you know what I mean? If I was to walk into a phone shop, I wouldn't be taking a gun; do you know what I mean?" Billy was of the same view and would match the target with his weapon choice: "If there's security guards, obviously they've got guns and you're going to want a gun. Do you know what I mean? … so,—yeah. If there's going to be a weapon in there, a gun, you'd want another gun—I'd want to have a gun."

The popularity of knives was due to a number of factors, including the relative ease of obtaining blades over firearms as Chris—age 36—explained: "I mean, knives obviously come up [more often] because guns are a bit harder to get at the moment." For others, knives were chosen because "they're scary looking." Billy—age 20—would "always [brandish] a knife, a gun or a machete" during an armed robbery, and outlined that generating maximum fear was the key to a swift robbery and quick escape: "Yeah; just something so, you know, you get it done quick, so you're not sitting around, fucking around, for ages; you get it done real quick." There was consensus amongst the

convicted robbers that, unless necessary to match the weapons being carried by security officers at the target, guns could actually be more cumbersome, being relatively heavy, compared to knives, as explained by Liam—age 31: "You don't want anything too heavy or too bulky or something; yeah … Usually, I'd use a knife because that's like a small arm. Guns are heavier and, you know, people tuck 'em in their belt, but they always fall out, you know—yeah; a bit of a hassle."

In addition to changes in the categories of weapon used in commercial armed robbery, the actual type of firearm used, at least in banks, has changed over time (Matthews 2002; Mouzos and Borzycki 2003). Pistols were used more often than long arms in Australian bank robberies in the early to mid-1980s, but the reverse held true for the late 1980s.

The use of syringes as weapons further illustrates the connection between weapon choice and target type. Data from the National Armed Robbery Monitoring Program (NARMP) show that although only used in a small number of offences, with an average of 4% between 2004 and 2010, syringes are used most often in robberies victimising pharmacies (Borzycki and Fuller 2014), indicating that these offences are carried out by drug-affected offenders. Chris—age 31—acquiesces: "All the armed robberies at chemists and stuff like that: that's all drug related. Either they have a debt, which is a lot of it; they have a habit; or they want to make a lot of money… All the runabouts, all the users: they'll do it just for a free hit, and that's where the idiots come from that give all the ice junkies a bad name … most of the time they aren't prepared and they go with whatever they can get: a pocket knife or a pair of scissors or a syringe."

Jesse—age 22—had used a syringe in an attempted robbery of a pizza shop. He attributed this to the relative accessibility of the weapon as well as his belief that it would be particularly intimidating for victims to be threatened with a syringe that supposedly contained infected blood: "I've used knives before. But, with the pizza shop, I didn't have a knife or anything so I —like, I do inject drugs, so I used a fit—like, a needle—because I thought—you know, I thought it would be—I'm a bit of an amateur compared to some people when it comes to armed robberies, but I thought, you know—a fit would be scary looking."

However, perhaps the most "dramatic change" (Mouzos and Borzycki 2003, 3) in weapon usage is found amongst gangs of offenders. The majority (62%) of bank robberies committed by gangs involved no weapon in the analysis period 1998–2000. This could be due to a lack of availability as Chris asserts above, or it could be the element of surprise and weight of numbers that enables gangs to intimidate and overpower their victims (Mouzos and

Borzynski 2003; Matthews 2002). Reflecting this, a number of participants in the study asserted that robberies could still be successful without a weapon if the offender exuded confidence and aggression. For example, Chris—age 36—explained: "You can certainly rob somebody without a weapon and say, "This is a robbery; give me all your money or you're dead." As long as you say it with conviction, then you'll have the desired effect." Jesse—age 22—further elucidated the physical intimidation that some robbers could achieve without a weapon: "It's all in the way you look, sort of, and the way you present yourself and your voice because you've got to intimidate them and scare them into doing what you want. You know, I didn't—I never had the right people. My brother: he's a big guy and he's, like, pretty, you know, big looking and that, so he's really good at it; yeah."

Some offenders reported not taking a weapon because they believed some companies' employees were trained to comply fully with demands in the event of a robbery; "probably nothing" Liam reported when asked what weapon he would take to do a hold-up. Pressed further about how he would coerce the handing over of cash and property he explained.

Interviewer:	*"How do you get them to hand over the money if you don't have a weapon?*
Liam:	*"Usually, like, if you—like, if I was going in in a balaclava, that's generally enough in those sort—because they're trained to do that; do you know what I mean?"*
Interviewer:	*"So they're trained to just hand over the cash?"*
Liam:	*"Yeah. A lot of businesses are like that; they're trained just to do that … usually, a balaclava is enough."*

Fear and intimidation were enough for some robbers to persuade victims to comply with their demands and awareness that, if they targeted branded stores, employees had been trained to fully comply with any demands.

The Diminishing Rewards of Armed Robbery

Corresponding to the shift in target type, the financial yield of armed robbery has become less lucrative. Demonstrating the typically low rewards gained from armed robbery in Australia, the most recent NARMP report outlined that for the 2009 and 2010 calendar years, 57% of armed robberies—for which both offender and property value information were available—resulted

in victim losses of less than AUD 500, and just 4% resulted in losses over AUD 10,000 (Borzycki and Fuller 2014). Even the most lucrative of the recent armed robberies, on average, resulted in returns that were generally small, given the risks inherent in committing armed robbery such as the risk of physical harm and a lengthy custodial sentence. The average value of property stolen per incident is much higher for armed robberies involving firearms (AUD 4630) compared with knives (AUD 1371).

Internationally, several studies have reported the financial gains of robbery to be "surprisingly low" (Matthews 2002, 33; see also Baumeister 2001; Katz 1988). And so, whilst Ben—age 19—pursued armed robbery for "money, heaps of money", he had actually set his threshold of the acceptable minimum amount at an achievable—yet very modest—"minimum of two grand". Other interviewees had similarly low hopes, given the risks involved. Jesse—age 22—was quite content with the relatively minimal rewards that a liquor store rather than a bank might yield: "Some people do say, 'Go out the back, I want the money out of the safe', but I personally would never do that. [It's] too much stuffing around, you know? Like, I'd rather just—because I don't need that much money—I don't want 20,000 or 10,000; it'd be good, but I'm only after a thousand or two, maybe 500 dollars".

Matthews (2002, 38) notes in relation to his study in England that "the gratuitous use of excessive violence as a consequence of poor planning or limited cooperation on the part of cashiers or bystanders can hardly be seen as a strategy for maximising rewards and minimising punishments". The following section turns to a consideration of offender behaviour and the rationality of contemporary commercial robbers.

Bounded Rationality and Motivation for Commercial Armed Robbery

Australian and international research indicates that a broad distinction can be made between two categories of armed robbers. The first comprises professional robbers who engage in considerable planning, target high-risk financial establishments, use firearms more frequently, and work in groups. The second category consists of amateur and opportunistic robbers who do not spend much time planning, typically do not use firearms, and work largely independently. It is important to recognise that for these offenders, the rewards from armed robberies are often low, yet they still engage in a serious and high-risk crime, bringing into question the depiction of these armed robbers

as rational agents operating according to utilitarian cost/benefit calculus. Petersilia et al. (1978) found that 25% of robbers reported that they had planned their offence in detail, 50% planned some aspect of their crime, and 25% did not plan at all. In Western Australia, interviews with violent offenders, including a number of armed robbers, portrayed careful decision makers (Harding and Blake 1989), particularly those who used firearms. This cohort, it was reported, put some effort into planning their crime and were likely to have investigated the security arrangements of their chosen target. These offenders also claimed to have given some thought to the possibility of being caught and the likely sentence if convicted. However, other research sheds a different light upon the perpetrators of armed robbery. After having interviewed 100 armed robbers in Melbourne, Kapardis (1988) found that almost 75% of the robberies were carried out within 24 h of the idea being conceived. It would appear that the shift to softer commercial targets highlights a corresponding shift in the profile of offenders, away from the professional robber, towards the opportunist, supporting Matthews' contention (2002, 22) that "contrary to popular opinion, the largest group of known commercial robbers are not the sophisticated career robbers who meticulously plan and execute their crimes but a motley group of amateurs and novices who engage in little planning and often seem unaware of the consequences of their actions".

There is a pressing need to understand this cohort of offenders better. Whilst their offences can largely be considered within the realms of bounded rationality, there appear to be other rewards on offer to acquisitive offenders aside from material gain (Taylor 2016a, b). As I have argued elsewhere (Taylor 2016c) in relation to commercial armed robbery, some of the distinctive attractions that foreground this crime include "hedonic thrills, sensory stimulation, fear arousal, power and control". The motivations, rationale, and modus operandi of recently active armed robbers are important but very under-researched area of criminological investigation.

Conclusion

It is important to recognise that the composite crime type of robbery encompasses a broad range of dramatically different behaviours executed in vastly variant locations. Crime trend data inform us that most robberies in Australia take place on a street or footpath, but commercial and retail premises comprise the second largest category in terms of location. Within these offences, there has been substantial target displacement over the past two

decades, which has instigated shifts in modus operandi and the characteristics of robbery, including the use of weapons and the value of monetary rewards. Although this chapter has drawn upon interviews with 14 incarcerated armed robbers in Australia, understanding these changes from the perspectives of armed robbers is still limited, and there is a need to further investigate how and why robbery is occurring in Australia.

Notes

1. This chapter uses qualitative data from a research study on commercial armed robbery conducted by the author (see Taylor 2016c). The empirical findings are taken from interviews with 14 individuals with a "most serious offence" (MSO) of "armed robbery", convicted within 18 months prior to the research. The interviews took place in one Australian prison between October and November 2013. Participants' records were reviewed to select those who had targeted commercial premises (rather than street robberies; although some had engaged in both). Interviews were semi-structured and explored a broad range of topics, including target selection, items stolen, perceived reasons for the onset of criminal behaviour and possible avenues for desistance. Although semi-structured, interviews largely flowed fluidly, covering themes in varied orders and with different depth of focus: from planning and reconnaissance to drugs and alcohol, from choice of weapon to family background. Unsurprisingly, participants periodically sought assurance that the information they provided would be reported anonymously and intermittent queries along the lines of "should I tell you that?" were common, but on the whole the interviewees appeared open, unreserved and truthful. Access was not provided to detailed individual criminal records, but accounts tallied with those provided by the prison officer assisting with the project. All participants were given a pseudonym taken from an online source of "popular Australian names". The age provided is the age of the individual at the time of interview. All interviews were audio-recorded with the permission of the interviewee (and prison) and fully transcribed. While the small sample size limits the ability to generalise, the strength of the study lies in gaining the expert offender perspective (from an especially "hard to reach" population) to expound on changes in this particular crime type.
2. In 2003, the AIC established the National Armed Robbery Monitoring Program (NARMP) to record trends in armed robbery in Australia.

References

ABS. 2015. *Recorded Crime: Victims, Australia, 2014. Cat. no. 4510*. Canberra: ABS.

AIC. 2016. *Australian Crime: Facts and Figures 2014*. Canberra: AIC.

AIC. 2002. *Service Stations a Target for Robbery*. Canberra: AIC.

Baumeister, Roy F. 2001. *Evil: Inside Human Violence and Cruelty*. New York, NY: Holt.

BBA. 2013. The Decline of the British Bank Robber. *BBA News*, December 27.

Borzycki, Maria. 2006. *Armed Robbery in Australia: 2004 National Armed Robbery Monitoring Program Annual Report*. Canberra: AIC.

Borzycki, Maria, and Georgina Fuller. 2014. *Armed Robbery in Australia 2009–2010: National Armed Robbery Monitoring Program Report*. Canberra: AIC.

Floyd,Feeney and Adrianne Weir. 1986. Robbers as Decision Makers. In The Reasoning Criminal, 53–71, Derek B. Cornish and Ronald V. Clarke. New York: Springer.

Gill, Martin. 2000. *Commercial Robbery: Offenders' Perspectives on Security and Crime Prevention*. London: Blackstone Press.

Gorrey, Megan. 2015. Canberra's String of Armed Robberies Triggers Police Warning. *The Canberra Times*, June 13.

Harding, Richard W., and Ann Blake. 1989. *Weapon Choice by Violent Offenders in Western Australia: A Pilot Study*. Nedlands: The University of Western Australia.

Hirst, John. 2007. *Australians: Insiders and Outsiders on the National Character since 1770*. Melbourne: Black Inc.

Kapardis, Andreas. 1988. One Hundred Convicted Armed Robbers in Melbourne: Myths and Reality. In *Armed Robbery: Proceedings of a Seminar Held 22–24 March*, ed. Dennis Challenger, 37–49. Canberra: AIC.

Katz, Jack. 1988. *Seductions of Crime: Moral and Sensual Attractions in Doing Evil*. New York: Basic Books.

Lee, Dave. 2013. Days of the 'Bank Job' Are Numbered, Report Suggests. *BBC News*, December 27.

Matthews, Roger. 2002. *Armed Robbery*. Cullompton: Willan Publishing.

Morrison, Shona A., and Ian O'Donnell. 1996. An Analysis of the Decision Making Practices of Armed Robbers. In *The Politics and Practice of Situational Crime Prevention*, ed. Ross Homel, 159–188. Monsey, NY: Criminal Justice Press.

Mouzos, Jenny, and Maria Borzycki. 2003. *An Exploratory Analysis of Armed Robbery in Australia*. Canberra: AIC.

Nugent, Stephen, Douglas Burns, Paul Wilson, and Duncan Chappell. 1989. *Armed Robbery from an Offender Perspective: Implications for Prevention*. Canberra: AIC.

Petersilia, Joan, Peter W. Greenwood, and Marvin Lavin. 1978. *Criminal Careers of Habitual Felons*. Washington, DC: Department of Justice.

Petrosino, Anthony J., and Diana Brensilber. 2003. The Motives, Methods and Decision Making of Convenience Store Robbers: Interviews with 28 Incarcerated Offenders in Massachusetts. In *Theory for Practice in Situational Crime Prevention Studies*, ed. Martha J. Smith and Derek B. Cornish, 237–263. Monsey, NY: Criminal Justice Press.

Smith, Lance, Erin Louis, and Letitia Preston. 2009. *Service Station Armed Robbery in Australia*. Canberra: AIC.

Taylor, Emmeline. 2016a. 'I Should Have Been a Security Consultant': The Good Lives Model and the Rehabilitation of Domestic Burglars. *European Journal of Criminology*. doi:10.1177/1477370816661743.

Taylor, Emmeline. 2016b. Supermarket Self-Checkouts and Retail Theft: The Curious Case of the SWIPERS. *Criminology and Criminal Justice* 14 (4): 487–502. doi:10.1177/1748895816643353 .

Taylor, Emmeline. 2016c. On the Edge of Reason? Armed Robbery, Affective Transgression, and Bounded Rationality. *Deviant Behavior*. doi:10.1080/01639625.2016.1229929.

Tranter, Bruce, and Jed Donoghue. 2010. Ned Kelly: Armoured Icon. *Journal of Sociology* 46 (2): 187–205.

Willis, Kate. 2006. *Armed Robbery: Who Commits It and Why?*. Canberra: AIC.

Author Biography

Dr. Emmeline Taylor is a Senior Lecturer in the Department of Sociology at the University of Surrey. She is a criminologist specialising in research relating to acquisitive crime such as burglary and robbery, and the societal impacts of surveillance. Taylor has published several books, including: Surveillance Schools (Palgrave, 2013); Surveillance Futures (Routledge, 2017) and The Palgrave Handbook of School Security, Surveillance and Punishment (*forthcoming*, with J. Deakin and A. Kupchik).

11

Outlaw Motorcycle Gangs

Mark Lauchs and Jarrod Gilbert

Outlaw Motorcycle Gangs (OMCG) have recently become the target of legislation and police task forces in Australia and New Zealand. In many Australian states, they are under various levels of bans based on their being a threat to the safety of the community. This activity is rhetorically based on OMCG as participants in organised crime, though much of the media coverage relates to public violence. Whatever the focus, OMCG actively pursue a lifestyle that clashes with and intimidates the public. It does, however, not follow that groups that adopt a deviant attitude are *prima facie* participants in the most extreme forms of deviance. Nor does the participation of some bikies in organised crime—which is not in dispute—mean that all OMCG members are organised criminals or that the clubs are criminal organisations.

This chapter examines OMCG in Australia and New Zealand and locates them in a global history of OMCG. It explores the historic culture and activities of these groups and the common belief that they are organised criminal groups. This chapter will explain the cultural and social origins and evolutions of the clubs, and how these have been appropriated to form an organised crime narrative. Finally, this chapter discusses the viability of the allegations of wholesale criminality ascribed to these groups.

M. Lauchs (✉)
School of Justice, Queensland University of Technology, Brisbane, Australia
e-mail: m.lauchs@qut.edu.au

J. Gilbert (✉)
University of Canterbury, Christchurch, New Zealand
e-mail: jarrod@researchsolutions.org.nz

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_11

Origins and Culture of OMCG

OMCG are a cultural phenomenon that originated in the USA and spread throughout the world, first to Western nations and gradually to all other developed regions. Men who have a more hypermasculine and misogynist view of the world than is accepted by mainstream society are part of most modern communities. These same men have increasingly found a fetish for their ideals in the large powerful American motorcycles, especially those made by Harley-Davidson. A chain of historical events created the template for a type of organisation that provided an outlet for their preferred lifestyle and an organisational structure that provided a complementary and supportive environment.

The genesis of OMCG is generally said to have occurred in the small Californian town of Hollister during the "Fourth of July" holiday weekend in 1947 (Reynolds 1967). *The San Francisco Chronicle* reported that motorcyclists "began 'taking over the town' on the evening of July 3 … and were virtually out of control"; that they "defied all traffic regulations racing full speed through the streets and intersections"; and that they steered "their machines into bars, crashing fixtures and bottles and mirrors". While most of the motorcyclists were in Hollister that weekend to attend a sanctioned American Motorcycle Association (AMA) event, a small element ran amok. OMCG such as the Booze Fighters and the Pissed Off Bastards of Bloomington were setting themselves apart from ordinary motorcycling enthusiasts and were creating a rebellious subculture. Such groups began to revel in their minority status, and they would soon identify themselves as outlaws or "1%ers"; the few unconcerned with society's rules. Frank Rooney's hyped story of the Hollister events in *Harper's Magazine* in 1951 inspired the movie *The Wild One*. The international release of the movie in 1953 began the framing of the outlaw image. Far from damaging the outlaw clubs, publicity seemed to fuel them. *Life Magazine*'s 1965 photograph essay of the Hells Angels acted as an advertisement for the free-spirited outlaw lifestyle and was compounded by a number of Hollywood films. Fiction books romanticised the biker lifestyle, while non-fiction writers sought to explore and understand the groups, although some were of dubious accuracy.

Largely made up of former servicemen, the original outlaw clubs sought to replicate the camaraderie and risky behaviour of the military lifestyle (Danner and Silverman 1986; Reilly 2009). Then, as is the case now, the clubs attracted men who felt alienated from the safe and compliant lifestyle of mainstream society.

While OMCG hatched in the conservative post-war period, the counter-cultural environment of the 1960s proved to be an incubator in which OMCG grew in numbers and began to spread around the world. At the forefront were the Hells Angels in California. Under the leadership of the Ralph "Sonny" Barger, the Hells Angels embedded the military structure of OMCG and became highly organised. Some high-profile incidents involving the club brought them national and international notoriety (Barger et al. 2001).This notoriety led to greater coverage in the media, movies, and books.

One book stood out. Thompson's (1966) *Hell's Angels: The Strange and Terrible Saga of the Outlaw Motorcycle Gangs* became an instant classic that inspired rebellious young men to form or join outlaw clubs. The Hells Angels then worked with the movie houses to mould the biker image and establish themselves as its exemplar. Virtually all OMCG around the world use the Hells Angels club structure and rules as their template. Despite large distances between their locations, these groups maintain a significant degree of uniformity in look and activity. All outlaw clubs uphold a hierarchical structure most often represented by a president, a vice-president, a sergeant at arms, and a secretary and/or a treasurer. They forbid riding Japanese motorcycles and most often prefer Harley Davidsons. They wear three-piece back patches (consisting of top and bottom "rockers" and a centre patch), which are held in the highest possible esteem and therefore became highly valued prizes during clashes between OMCG. But in a remarkable quirk of history, by the time Thompson's book reached the far-reaches of the South Pacific, the Hells Angels were already there.

In 1960, a young American with links to the Hells Angels formed a chapter of the group in Auckland, New Zealand (Gilbert 2013). It was the fourth chapter of the group and the first outside of California. In 1966, three members of the Auckland Angels arrived in Australia, where they helped establish a chapter in Sydney in 1968. The chapter was, however, not officially recognised and inaugurated until 1975. By this time, New Zealand and Australia were home to numerous OMCG that had been formed by rebellious young men (Campbell and Campbell 2010; Veno 2012). It is not clear how many clubs were formed, as only a small proportion survived either through lack of support or voluntary or forced closure or patch over to more powerful clubs. However, clubs formed throughout both countries conforming to the classic US template.

The clubs—particularly the local chapters consisting of 10–30 members—become the first priority for members. They provide blind support for each other, especially against rival clubs. Members embrace deviance and share a liking for hypermasculinity and freedom exemplified by their high-powered

motorcycles. They reinforce their deviance through appearances such as tattoos and uniforms, and behaviours such as violence, drunkenness, and various levels of debauchery (Barger et al. 2001); what Quinn and Koch (2003) call "saloon society".

OMCG members have historically exhibited a contradictory notion of freedom. While they revel in their freedom from mainstream society including commitments such as marriage (Posnasky 1988; Wolf 1991), they have a military notion of obedience and commitment to the club including strict compliance with participation in club events, and adherence to a dress code. Club members, therefore, struggle to find employment and turn to petty crime for income, but many manage the conflicting obligations of club, mainstream job, and family (Veno 2012). Despite these members playing compliant and deviant roles, Barker (2007, 2011) notes that the patterns of behaviour of OMCG members are designed to come into conflict with mainstream society, and therefore attract the attention of law enforcement. While they complain about the attention they receive from the police for their deviance, it is exactly this reaction that they are trying to provoke. As Australian veteran-biker Mihailovic (2014, 113–114) noted: "Ironically, if the Brownshirt shit-storm didn't happen, then the outlaw motorcyclist would be concerned that he had somehow failed in his outlawry. So it is all weirdly self-serving and self-perpetuating".

OMCG are honour-based groups that reflect the principles of the criminal subculture, which include notions that are often upheld by mainstream society such as honesty and reliability (Newbold 1989). Unlike members of mainstream society, bikies assume that breaches of honour require violent retribution and non-involvement of criminal justice agencies. Two primary forms of dishonour—perpetrated by other clubs—are offences against the club colours and trespassing on club territory. Conversely, honour can be obtained within one's own club by perpetrating these very same acts against opposition clubs.

Given these subcultural norms, it is little surprising that members of OMCG in Australia and New Zealand were, like their US counterparts, regularly in the media spotlight. But for most of the 1970s and 1980s, they were unwelcome deviants, whom the police observed with suspicion but not as members of criminal organisations. The primary forms of public violence involve random conflict with non-bikies but, more commonly, ongoing violence between rival clubs under the "warfare mentality" (Quinn and Forsythe 2011). These rivalries are artificial and mutually pursued, having no value beyond club prestige. Veno (2012) refers to them as "pissing competitions", akin to cats marking and defending their territory.

In the 1980s, the expansion of the clubs led to various US government agencies focussing on their illicit activity (Hopper and Moore 1983; Montgomery 1976). OMCG became recognised by US law enforcement as "the new face of organised crime" (Barker and Human 2009, 175). A similar transition took place in Australia and New Zealand a decade later. In 1996, a high-profile member of parliament in New Zealand summed up the transformation—that was believed to be taking place—saying such groups "are no longer groups of hoons who smash up the occasional pub. They have graduated into serious organised crime" (as cited in Gilbert 2013, 214). By 2005, the Organised Crime Squad in Auckland was saying that "90% of drug crime is linked to motorcycle gangs" (NZ Police Association 2014). Similarly, the ACC describes OMCG as "one of the most high profile manifestations of organised crime" (ACC 2013). But the question still remains as to the extent of members' involvement in organised crime as opposed to other criminal activity. Before we can answer this, we first need to clarify the nature of organised criminal activity.

Defining Organised Crime

There are many definitions of organised crime, and a book could be written dissecting them. Briefly, they range from being very broad to being quite specific (Courakis 2001) and appear in legislation and policy documents trying to set the boundaries of policing action, and in academic publications that are trying to define a social phenomenon (Albini and McIllwain 2012).

Traditionally, definitions emphasise involvement in illicit activities, the presence of a hierarchical structure, or the pursuit of profit and power (Von Lampe 2005) that is associated with specific crimes such drug offences, prostitution, murder-for-hire, and extortion. Most definitions require the involvement of three or more members, although some consider two members sufficient (Von Lampe 2003); the committing of serious offences (UNODC 2002); and an ongoing activity, not just ad hoc or short-term associations (Paoli 2002).

However, if we apply the characteristics strictly, they capture groups that would not normally be regarded as organised crime. One example is a group of young men who regularly steal and sell cars. While they are organised and commit ongoing crime, they are not the Mafia. There is an element of not really knowing how to define organised crime but "knowing it when one sees it".

A more successful attempt at a definition appears in Article 2 of the UN Convention against Transnational Organised Crime which defines an organised crime group as: "a structured group of three or more persons existing for a period of time and acting in concert with the aim of committing one or more *serious crimes or offences* established in accordance with this Convention in order to obtain, directly or indirectly, a financial or other material benefit" (emphasis added).The addition of serious crime raises the bar from street crime to a more sophisticated activity such as upper-level drug dealing, racketeering, and extortion. This also matches with Maltz's (1976) identification of specific types of criminality in which the organised crime milieu engages. Often these crime types are specified in legislation like in Schedule 1 of the *Vicious Lawless Association Disestablishment Act 2013(QLD)*, which includes offences relating to intimidation and extortion, production of illicit products such as drugs, child pornography, prostitution, murder, assault, weapons offences, kidnapping, rape, robbery, and dealing in stolen goods.

It is also important to discuss the meaning of "organised". Organised implies recognised positions of authority and the operation of a coordinated system. This includes division of labour (President's Commission on Organized Crime 1986) and differentiation between the structure of the group and the organised activity of those working together (Nardo 2008). For example, OMCG are clearly organised within a hierarchy and have a constitution with formal procedures. However, it does not follow that just because members commit serious criminal activity that the hierarchy of the clubs are involved in *organising* criminal activity (Barker 2007; Quinn and Koch 2003).

Given this chapter is looking specifically at OMCG and not Mafia-style groups, it will not discuss theories of organisational structure (see UNODC 2002) beyond recognising that all such groups acknowledge office holders or at least positions of authority within the group.

Increasingly, researchers and policing agencies agree that organised crime groups are moving towards more flexible structures (Bruinsma and Bernasco 2004; Edwards and Gill 2002; Morselli 2009), usually operating within a networked environment that facilitates the recruitment of "delinquent professionals" or individuals with specific expertise (Parliamentary Joint Committee on the Australian Crime Commission 2007). However, it is possible that these loose structures have always existed; that we are not seeing a rise in their prevalence, but are simply witnessing how law enforcement and academia recognise that the Mafia structure is an outlier rather than the norm in organised crime.

If OMCG are criminal organisations, then they undertake criminal activities either through the mechanism of hierarchy—if the club or chapter direct operations—or through loose networks of members working with their associates. The next issue is how this can be determined internationally and locally.

OMCG and Their Relationship with Organised Crime

Barker (2011) provides an extensive list of offences committed by OMCG in the US, but, for the purposes of this chapter, it is important to differentiate between *organised crime* offences and *barbarian culture* offences. The latter match the traditional notion of an outsider subculture—acting in a manner unacceptable to society—and include traffic offences, brawling, and minor drug and alcohol offences. Organised crimes have a different nature. They include major drug offences such as the production, supply, or trafficking of drugs; extortion; money laundering; living on the earnings of prostitution; and murder-for-hire. Quinn and Koch (2003) developed a typology of biker criminal actions. These include *spontaneous expressive acts,* that is, one or more members participating in violent crime within the saloon society rather than as part of organised crime activity; *planned aggressive acts,* that is, activity against rivals which is planned by groups within the chapter or by the senior management of the chapter or club to advance club priorities; *short-term instrumental acts,* that is, planned or spontaneous activity by members to take advantage of an opportunity such as a theft; and *ongoing instrumental enterprises;* that is, planned, long-term activity designed to produce a profit for the club. Organised crime falls under the last of these categories. The other three are mainly associated with traditional, barbaric activity, although we submit that *planned aggressive acts* may be used to support *ongoing instrumental enterprises*. For example, violence is a key characteristic of extortion or the collection of drug debts.

Wolf (1991) differentiated between *conservative* bikies who preserve the original saloon culture or what we call barbarian behaviour—uncivilised violent hypermasculinity—and *radical* bikers who are interested in profit through criminal activity. Wood (2003) hypothesised that the dynamics of individual chapters change over time, swinging between conservative and radical stances. Clubs that reach a membership of a dozen or more have a tendency to form cliques. He saw the chapters as containing cliques or

factions supporting both barbarian and radical behaviour who, like political parties, each had time in control and were regularly displaced through the politics of the chapter. The growing recognition of clubs as organised crime groups may reflect the rising influence of radicals within some chapters.

In the 1980s, the expansion of the clubs led to various government agencies focussing on their illicit activity (Hopper and Moore 1983; Montgomery 1976). OMCG became recognised by US law enforcement as "the new face of organized crime" (Barker and Human 2009, 175). Wolf (1991, 266) saw OMCG as "pre-adapted vehicles of organized crime" because they had a military-style organisation backed up by strict discipline and an exclusive culture that placed the interests of the club above those of the community. An outcome of this culture is a requirement for absolute secrecy about club matters, and a disdain for the needs of mainstream society, especially compliance with law enforcement. One could add that these characteristics were aided by the fact that these are clubs of violent young men; a primary resource of control and intimidation in organised criminal markets. Radicals can rely on the "Power of the Patch"—that is the violent reputation of OMCG members—as a tool of intimidation (Barker 2011). The brand and image are marketable commodities that increase their power (Quinn and Koch 2003). In other words, the fear generated from the traditional activity provides a tool that supports the radical organised criminal activity. Thus, clubs may not have been established as organised crime groups but many realised that their inherent strengths meant they were well suited to such a move.

Barker (2007) states that many clubs have evolved from social organisations into criminal organisations as they moved from simply facilitating criminal activity to making it their primary purpose. He proposes a continuum from social clubs at one end to gangs or criminal organisations at the other end, with "social criminal organisations" in the middle.

The best case for OMCG as organised crime groups is made by Barker (2007, 2011), who provides extensive lists of the numbers of arrests of senior and junior club members. He notes that, at the very least, "many clubs are social organisations that have a large number of members who are involved in criminal activity" (Barker 2007, 115). Barker assumes that high arrest rates for OMCG office holders are proof that criminality is directed or sanctioned by the club or chapter management. The counterargument is that office holders may still operate as individuals within loose networks of members and external associates. They, therefore, do not point to criminality of the purpose of the club's existence. However, no studies have been undertaken to determine the arrest rates for OMCG office holders in Australia and New Zealand.

It is also claimed that OMCG protect their organised crime participation through the use of proxies to conduct the frontline criminal activity. "Puppet" gangs, who have different names but take orders from an OMCG, are used to recruit new members (Barker 2007; Pierce 2015). The same potential members then commit the crimes or take responsibility for the crime away from the patched members and senior management. By committing the crimes and insulating the members they prove their loyalty to the chapter and ensure their later full membership. This provides complexity for law enforcement as it is quite difficult to prove the OMCG had anything to do with the crime, for example, methamphetamine production and supply, insulating them from prosecution. But this requires detailed research by both academics and government agencies, rather than just assertions.

The nexus between seniority and management of crime could be proven through the application of the *Racketeer Influenced and Corrupt Organization* (RICO) laws in the USA. This legislation allows the charging of individuals who direct but do not participate in the crime. A successful RICO case would support the premise of the clubs or chapters being criminal organisations. The first attempt to apply the legislation to Hells Angels in 1979 led to two mistrials (Barker 2007). However, there have been successful cases since then. The latest was trialled in January 2014, with 51 members and associates of the Outlaws in Indianapolis convicted of racketeering, mail fraud, money laundering, extortion, drug charges, wire fraud, witness tampering, and illegal gambling (FBI 2014). But the FBI failed to have any club found to be a criminal organisation under the legislation.

Barker (2007) also noted that OMCG associate with other organised crime groups, thereby implying that they share the same character. This may be true in the US. Barker (2007) points out that US OMCG are associated with both major organised crime groups, such as the Russian, Colombian, Asian, and Italian Mafia, as well as White Supremacist groups and street gangs. Again, however, this association may be undertaken by the loose networks of members rather than the club per se. The evidence of direct links in Australia and New Zealand is weak at best.

Police often claim that OMCG act like organised crime groups by fighting over territory within which to operate their racketeering (Stolz 2015). OMCG do have disputes over territories that have nothing to do with organised crime. According to Quinn and Forsythe (2011), OMCG share a history of interclub violence and war mentality. Gangs compete for territory out of a need for prestige, and to protect it as a source of new members. This competition has led to feuds such as the four-decade long rivalry between the Hells Angels and Outlaws in the USA (Quinn and Forsyth 2009), and the

blood feud between the Hells Angels and the Mongols (Barker 2011). However, these disputes have existed for decades and do not require any participation in organised crime to fuel them. Since territorial disputes are part of the original bikie psyche, they are not evidence for OMCG being criminal enterprises.

It is also possible that the internal politics of clubs or individual chapters is more nuanced, for example, barbarian cliques may support the profits that come from radical activity as it funds the arms race between competing clubs (Quinn 2001). Whatever the reality, barbarian activity is the original *raison d'être* of OMCG and the core of the attraction for people to join. If persons simply wished to participate in organised crime, they do not need to join a motorcycle gang. For a criminal entrepreneur, the only unique advantage of being an OMCG member is the *power of the patch*.

The literature leaves us with three possibilities. First, OMCG are—as perceived by law enforcement—criminal organisations. Second, there are cliques within OMCG chapters that support barbarian or radical culture. If there are cliques then there are alternative bases upon which they coexist: they alternate in power of the chapter with varying acceptance and rejection of organised criminal activity; the leadership of each chapter may shift between barbarian and radical factions; or, they complement one another with the barbarians supporting but not participating in organised crime behaviour. Finally, there may be semi-independent operators amongst the membership who run their own organised crime activity in association with outsiders (Liddick 2008).

Policing OMCG in New Zealand and Australia

The common refrain from police and politicians in both Australia and New Zealand is that OMCG are organised crime groups. This view is not supported by academic inquiry in either country. In New Zealand, certain OMCG exhibited a shift from barbarian to radical culture in the 1990s, but a number of factors—including the threat of the *Proceeds of Crime Act 1990*—caused them to revert back (Gilbert 2013). Most clubs in New Zealand today do not operate as organised criminal groups but have organised criminal elements within them; often involving members working with outsiders (Gilbert 2013). That clubs are not criminal organisations but that members of the groups engage in crime is also true for Australia (Veno 2012). Yet, the belief they organise around crime and the visibility of the OMCG means that they become a significant focus of police and political attention.

A key issue that has received very little attention is the need to recognise that the violence of clubs may have no relation to organised crime. In Australia, there have been three major acts of public violence that police have attributed to organised crime as the trigger. These include the Ballroom Blitz affray on the Gold Coast in 2006, the fatal Sydney Airport brawl in 2009, and the Broadbeach brawl on the Gold Coast in 2013. It has become clear that each of these arose from traditional territorial rivalry. The first was a retaliation over a club member changing to the Hells Angels. The second was caused by two territorial rivals accidentally being on the same domestic flight. The third was a fight over one club member associating romantically with the ex-girlfriend of a member of a rival club. While a minority of those involved in these affrays on the Gold Coast had some involvement with organised crime, none of the Sydney participants did. Public violence is dangerous and needs to be policed, but it will not be solved through techniques that are designed to fight organised crime. The causes, methods, and outcomes are very different. Thus, the legislative responses seeking to address criminal organisations will have no direct effect on the aspects of *barbarian culture* that lead to repeated affrays and put the public in danger.

In New Zealand, the government launched policy measures to target patched gangs, saying the 4000 members of such groups—of which OMCG were a minority—were responsible for high levels of crime including 34% of Class A and Class B drug offences. These claims were challenged, and it was discovered that the true figure was just 4% (Gilbert 2014). NZ Police said that it "is unfortunate that some figures required clarification" (Fisher 2014). The erroneous data are more in keeping with the rhetoric about outlaw clubs, and the widely held views about the criminality of outlaw clubs remained undisturbed given the policy was delivered with high media prominence and the clarification much less so.

In Australia, OMCG are considered such serious organised criminal groups that they have been targeted by powerful legislative measures, which have drawn concerns around the erosion of civil liberties (Law Council of Australia 2014). The most prominent example occurred in Queensland in 2013, that is, the *Vicious Lawless Association Disestablishment Act 2013* and the associated suite of legislation. These laws—along with similar laws in other states—have received a great deal of academic criticism (Ayling 2011a, b, 2013; Bartels 2010; Cash 2012) but have passed the scrutiny of the High Court. They have also been reviewed by two inquiries. The Commission of Inquiry into Organised Crime in Queensland (2015) found that, despite the legislation, and more than AUD 20 million in extra funding to target OMCG, the groups were responsible for just 0.52% of crime. Hence, it concluded that the

"seemingly blinkered focus on outlaw motorcycle gangs is concerning" (24); not least because that focus meant that law enforcement had "lost visibility of other areas of organised crime active in Queensland" (2). However, the commission ignores that bikies offend at 50 times the rate of the rest of the population and that bikies make up under 10% of those arrested out of the operations. In other words, the rest of organised crime had not been "lost" from the police focus, and there was not a "blinkered focus". Equally, the police and politicians would have the public believe that the efforts were focussed almost exclusively on OMCG rather than the non-OMCG offenders who make up 90% of the arrests. In other words, more objective research is needed based on publicised data.

Blue Vision Theory

A mistaken understanding of OMCG, then, is not just of academic interest but can lead to problematic outcomes. The question remains: how does a distorted understanding of the clubs occur? An explanation is offered in the New Zealand context by the theory of "blue vision" (Gilbert 2013). Blue vision theory argues that the dynamics that exist between police and outlaw clubs, the visibility and overt antisocial nature of the clubs, and a reliance on street-level intelligence of the identity of offenders, means that police unconsciously create a distorted view of their prominence in organised crime. Once blue vision takes hold, only evidence that supports the prevailing view is accepted and any evidence that contradicts it is rejected. Therefore, the view that OMCG are organised crime groups of grave and pressing concern is unlikely to be disturbed anytime soon.

Even if one were to accept that an OMCG culture can move between barbarian and radical culture, it is possible that certain chapters in Australia and New Zealand may be caught acting as *bone fide* organised crime groups. While such cases would further boost police views, for this to change across the whole OMCG scene would be to move away from the original traditions and activities that have created the appeal of such groups. The subcultural norms that can be traced back to Hollister in 1947 are undeniably strong. And with only the pull of organised crime to attract recruits—activities that tend to encourage a lack of visibility—it is questionable whether the outlaw clubs would survive such a transition.

Conclusion

OMCG are a social phenomenon that does not require criminal activity for their existence. However, they are a useful resource for engaging in organised crime as they provide secrecy and intimidating power that can enhance such operations. OMCG display two competing cultures: a traditional focus on hypermasculinity and interclub honour-based violence, and a radical culture that uses these resources for organised crime. Despite government and police claims that all OMCG are radical, there is no evidence that establishes this. It is more likely that individual chapters vary greatly, not only between clubs but even within clubs, so that one would find some chapters being entirely given over to crime, and others with no signs of radical activity, with the majority being spread across this continuum. Given the major policy changes and legislative responses across Australia and New Zealand which rely on assumptions of the universal criminality of OMCG, it is vital that this field receives more rigorous independent analysis to clarify better the nature of bikie culture and activities. In particular, there needs to be recognition of the fact that public violence and organised crime are separate cultural activities that need different policing responses.

References

ACC. 2013. *Outlaw Motorcycle Gangs Factsheet*. Sydney: ACC.

Albini, Joe, and Jeffrey McIllwain. 2012. *Deconstructing Organized Crime: A Historical and Theoretical Study*. Jefferson, NC: McFarland.

Ayling, Julie. 2011a. Criminalising Organisations: Towards Deliberative Law Making. *Law and Policy* 33: 149–178.

Ayling, Julie. 2011b. Pre-Emptive Strike: How Australia is Tackling Outlaw Motorcycle Gangs. *American Journal of Criminal Justice* 36: 250–264.

Ayling, Julie. 2013. Haste Makes Waste: Deliberative Improvements for Serious Crime Legislation. *Australian and New Zealand Journal of Criminology* 46: 12–31.

Barger, Ralph, Keith Zimmerman, and Kent Zimmerman. 2001. *Hell's Angel: The Life and Times of Sonny Barger and The Hell's Angels Motorcycle Club*. London: Fourth Estate.

Barker, Thomas. 2007. *Biker Gangs and Organized Crime*. Newark, NJ: LexisNexis.

Barker, Thomas. 2011. American Based Biker Gangs: International Organized Crime. *American Journal of Criminal Justice* 36: 207–215.

Barker, Thomas, and Kelly M. Human. 2009. Crimes of the Big Four Motorcycle Gangs. *Journal of Criminal Justice* 37: 174–179.

Bartels, Lorana. 2010. *The Status of Laws on Outlaw Motorcycle Gangs in Australia*. Canberra: AIC.

Bruinsma, Gerben, and Wim Bernasco. 2004. Criminal Groups and Transnational Illegal Markets. *Crime, Law and Social Change* 41: 79–94.

Campbell, Caesar, and Donna Campbell. 2010. *Enforcer: The Real Story of One of Australia's Most Feared Outlaw Bikers*. Sydney: Allen & Unwin.

Cash, Amy. 2012. First They Came for the Bikies: A Look into South Australia's anti Bikie Legislation. *Perspective* 6: 17–22.

Commission of Inquiry into Organised Crime in Queensland. 2015. *Report*. Brisbane: Queensland Government.

Courakis, Nestor. 2001. Financial Crime Today: Greece as a European Case Study. *European Journal of Criminal Policy and Research* 9: 197–219.

Danner, Terry A., and Ira J. Silverman. 1986. Characters of Incarcerated Outlaw Bikers as Compared to Nonbiker Inmates. *Journal of Crime and Justice* 9: 43–70.

Edwards, Adam, and Peter Gill. 2002. Crime as Enterprise? *Crime, Law and Social Change* 37: 202–223.

FBI. 2014. Outlaws Motorcycle Club Member Sentenced. *FBI Press Releases*, Jan 10.

Fisher, David. 2014. Ministers Acted on Inaccurate Gang Data. *The New Zealand Herald*, Nov 11.

Gilbert, Jarrod. 2013. *Patched: The History of Gangs in New Zealand*. Auckland: Auckland University Press.

Gilbert, Jarrod. 2014. Inflated Gang Figures Corrected in Cabinet—But Not in Public. *Dr Jarrod Gilbert Sociologist Blog,* Nov 8.

Hopper, Columbus B., and Johnny Moore. 1983. Hell on Wheels: The Outlaw Motorcycle Gangs. *Journal of American Culture* 6: 58–64.

Law Council of Australia. 2014. *Anti—Bikie Laws: Recent Developments*. Canberra: Law Council Australia.

Liddick, Don. 2008. Nontraditional Organized Crime: Outlaw Motorcycle Gangs. In *Organized Crime: From Trafficking to Terrorism*, eds. Frank G. Shanty, and Patit P. Mishra, 211–214. Santa Barbara, CA: ABC-Clio.

Maltz, Michael. 1976. On Defining 'Organized Crime': The Development of a Definition and a Typology. *Crime and Delinquency* 22: 338–346.

Mihailovic, Boris. 2014. *At the Altar of the Road Gods*. Sydney: Hachette.

Montgomery, Randal. 1976. The Outlaw Motorcycle Subculture. *The Canadian Journal of Criminology and Corrections* 18: 332–342.

Morselli, Carlo. 2009. Hells Angels in Springtime. *Trends in Organized Crime* 12: 145–158.

Nardo, Massimo. 2008. Organised Crime and Networking Economy: Models, Features, Dynamics and Related Approaches. *Journal of Money Laundering Control* 11: 172–178.

Newbold, Greg. 1989. Criminal Subcultures in NZ. In *Culture and Identity in NZ*, eds. David Novitz, William E. Willmott, and Bill Willmott, 260–276. Wellington: GP Books.

NZ Police Association. 2014. Need For Speed. *Police News* 47 (4): 96–97.
Paoli, Letizia. 2002. The Paradoxes of Organized Crime. *Crime, Law and Social Change* 37: 51–97.
Parliamentary Joint Committee on the Australian Crime Commission. 2007. *Inquiry into the Future Impact of Serious and Organised Crime on Australian Society*. Canberra: Commonwealth of Australia.
Pierce, Jeremy. 2015. Strong Arms of the Law. *The Courier Mail*, January 18.
Posnansky, Gary R. 1988. Communication and the Counterculture: An Ethnographic Analysis of Communication Use in the Motorcycle Gang. PhD dissertation, Florida State University.
President's Commission of Organized Crime. 1986. *The Impact: Organized Crime Today*. Washington, DC: President's Commission of Organized Crime.
Quinn, James F. 2001. Angels, Bandidos, Outlaws, and Pagans: The Evolution of Organized Crime Among the Big Four 1% Motorcycle Clubs. *Deviant Behavior* 22 (4): 379–399.
Quinn, James F., and Craig J. Forsyth. 2009. Leathers and Rolexes: The Symbolism and Values of the Motorcycle Club. *Deviant Behaviour* 30 (3): 235–265.
Quinn, James F., and Craig J. Forsyth. 2011. The Tools, Tactics and Mentality of Outlaw Biker Wars. *American Journal of Criminal Justice* 36 (3): 216–230.
Quinn, James F., and Shane D. Koch. 2003. The Nature of Criminality within One-Percent Motorcycle Clubs. *Deviant Behaviour* 24 (3): 281–305.
Reilly, Tracy. 2009. Marks of Mayhem & Murder: When a Few Bad 'Mongols' Spoil the Bunch, Should the Government Seize a Motorcycle Association's Registered Trademark? *Buffalo Intellectual Property Law Journal* 7: 1–62.
Reynolds, Frank. 1967. *Freewheelin' Frank*. London: New English Library.
Stolz, Greg. 2015. Bikie Bad Blood Simmers. *The Courier Mail*, December 27.
Thompson, Hunter S. 1966. *Hell's Angels*. New York, NY: Random House.
UNODC. 2002. *Results of a Pilot Survey of Forty Selected Organized Criminal Groups in Sixteen Countries*. Vienna: UNODC.
Veno, Arthur. 2012. *The Brotherhoods: Inside the Outlaw Motorcycle Clubs*. Sydney: Allen & Unwin.
Von Lampe, Klaus. 2003. Criminally Exploitable Ties: A Network Approach to Organized Crime. In *Transnational Organized Crime: Myth, Power, and Profit*, eds. Emilio C. Viano, 9–22. Durham, NC: Carolina Academic Press.
Von Lampe, Klaus. 2005. Making the Second Step before the First: Assessing Organized Crime. *Crime, Law and Social Change* 42: 227–259.
Wolf, Daniel R. 1991. *The Rebels: A Brotherhood of Outlaw Bikers*. Toronto: University of Toronto Press.
Wood, John. 2003. Hell's Angels and the Illusion of Counterculture. *The Journal of Popular Culture* 37 (3): 336–351.

Author Biographies

Mark Lauchs is an Associate Professor of criminology who joined the School of Justice at the Queensland University of Technology after almost two decades in the Queensland state government. He teaches policy and coordinates the undergraduate and postgraduate policy and governance courses in the School of Justice. His research focusses on corruption and organised crime, with a particular interest in outlaw motorcycle gangs.

Jarrod Gilbert is a Senior Lecturer at the University of Canterbury, New Zealand, and the lead researcher at Independent Research Solutions. He is the author of *Patched: The History of Gangs in New Zealand*, an award-winning and bestselling book. He writes a column for the *New Zealand Herald,* and he is currently writing a book on murder.

12

Samoan Youth Crime

Laumua Tunufa'i

Samoan youth continue to be overrepresented in violent crime statistics, rather than in total crime figures in New Zealand. Similarly, research findings from places such as Hawaii and Brisbane—which have high numbers of Samoan people—reveal that Samoan youth crime generally involves manifesting violence for the purposes of confirming identity and gaining respect from other rival groups. Unlike Māori young people, Samoan youths appear to launch their criminal involvement a little later in life—around adolescence—and their first crimes are usually highly violent in nature. Surprisingly though, the topic of Samoan youth offending is one that is noticeably understudied, especially in New Zealand.

This dearth of literature is further complicated by the fact that statistics on Samoan people—particularly crime statistics—are mostly aggregated under the "Pacific Islands" category, which includes other Pacific ethnic groups. While this recording practice may achieve political objectives and enhance statistical convenience, it contributes to creating gaps in the research literature. Another contributing factor relates to the dismissive labelling of Samoan youth gangs as "wannabes". Such labels provide some young people with the impetus and motivation to commit crime in order to prove their status and legitimacy (Tunufa'i 2013). As the number of Samoan young people increases significantly both in comparison to Samoan adults and young people of other

L. Tunufa'i (✉)
Criminology, Auckland University of Technology, Auckland, New Zealand
e-mail: ltunufai@aut.ac.nz

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_12

Pacific ethnic groups, it is crucial that their involvement in crime is properly analysed and understood.

This chapter aims to gauge an understanding of Samoan youth offending from the scant, fragmented, and dated literature that is available in both New Zealand and abroad. A snapshot of the demographics of the Samoan people in New Zealand precedes brief considerations of Samoan people's perspectives of justice. An analysis of the literature that deals either directly or indirectly with Samoan youth offending follows. Finally, suggestions are made for the way forward concerning future research on Samoan youth offending.

Samoan People in New Zealand

Samoan people in New Zealand total more than 144,000 people, accounting for 3.6% of New Zealand's population, and about 49% of the total Pacific[1] population in Aotearoa (Ministry for Pacific Peoples 2016; Statistics New Zealand 2016a). The Samoan population remains relatively youthful compared to the New Zealand national average. Two-thirds of people who identify as Samoan reside in the Auckland region, specifically South Auckland, while 15.5% live in the Wellington region. However, the Samoan population no longer consists predominantly of migrants. In 1986, there was a fifty–fifty split between island-born and New Zealand-born Samoans. In recent years, however, the figures changed to show 41% and 59% of Samoa-born and New Zealand-born Samoans, respectively (Statistics New Zealand 2007, 2010). The 2013 census shows that the gap is still widening, with 62.7% of Samoans being New Zealand-born (Statistics New Zealand 2016a), while the rest were born overseas, including in Australia.

In comparison with other Pacific ethnic groups,[2] the Samoan group "has a substantial impact on the characteristics of the Pacific population as a whole" (Statistics New Zealand 2010, 10). Statistics New Zealand records a total of 19 different ethnic groups under the "Pacific Islands" label. Samoa represents slightly more than 5% of the total number of Pacific groups but accounts for roughly 49% of these group's total population. It is, therefore, more than likely that wherever and whenever an overrepresentation of Pacific people or Pacific youth is reported; it is safe to conclude that such is also indicative of an overrepresentation of Samoan people or a segment thereof. This line of reasoning is used in the assessment of a very limited number of representative studies of Pacific peoples' involvement in crime in New Zealand.

Similarly, research concerning Samoan youth crime in the USA and Australia can also shed light on the involvement of Samoan youth in crime in

New Zealand for two reasons. Firstly, Samoan youth in New Zealand borrow a lot of ideas from Samoan groups in the USA. For example, gang-related Samoan youths in New Zealand closely mirror the activities and gang affiliations of Samoan youths in the USA (Faleolo 2014). Secondly, Samoan people generally adhere to a homogenous culture irrespective of nationhood.[3] This is especially true in terms of having one language, one *matai* (chief) system with its related structure of *fa'alupega* (formal salutation), and one *fa'a Samoa* (the Samoan way of life) that most Samoan people almost religiously practise in their global migration and diasporic settlement (Vakalahi and Godinet 2008). This general understanding of Samoans also impacts on their perception of law and order as well as their sense of justice.

Samoan Perspectives of Justice

The disproportionate number of Samoan people found in crime statistics both in New Zealand and abroad (Godinet and Vakalahi 2008; Vakalahi and Godinet 2008) suggests that either Samoan people are vulnerable to crime commission or that the system of justice that institutes criminal proceedings against them, too, is criminogenic (Hook 2009). Missionary George Turner ([1884] 1988, 178–179) observed about Samoans that "these heathen natives have a keen sense of justice…and are governed by well-understood laws for the prevention of theft, adultery, assault and murder, together with many other minor things". Turner's objective as a Christian missionary was to evangelise and civilise the Samoan people. However, Turner realised that his work was not necessarily arduous due to the existence of a very functional and effective civil system of justice among Samoan people.

Samoan people fought multiple colonising powers and foreign systems of justice to safeguard their traditional philosophy of law making (Herr 2015; Taulapapa and Auelua 1988). This culminated in the establishment of the separate Land and Titles Court, which had been described as "a most important, perhaps the most important, court of the Independent State of Western Samoa [because in the words of former Prime Minister Tupua Tamasese Lealofi IV] the decisions of the Land and Titles Court have far-reaching effect for they are binding even on the unborn generations" (Epati 1988, 167). In subsequent years, local legal educators have argued for the legal recognition of native customs and cultures in the insular Pacific alongside the common law. This is due to the realisation that "custom—the fundamental jural values of the community (or communities, as the case may be)—is the primary legitimate basis upon which the rules and principles of

common law must rest; and that the common law tradition itself is best understood, employed and developed when it is regarded fundamentally as a system of customary law" (Aleck 1991, 143). Similarly, Simpson (as cited in Aleck 1991, 137) argues that the common law needs to be conceived "as a system of customary law" because of its historical and future contributions towards conflict resolution, justification of punitive measures, and guidance in terms of law and order.

Whether we call it "customary law" or "sense of justice" may prove irrelevant because Samoan people, including diasporic Samoans, will always know it as *fa'a Samoa* and will take pride in the maintenance of at least some elements of it (Faleolo 2014; Vakalahi and Godinet 2008). In fact, some Samoan young people join gangs to enhance their knowledge of the Samoan language, *siva Samoa* (dance), and community fundraising activities that are conducted in accordance with *fa'a Samoa* (Faleolo 2014). One particular New Zealand-based Samoan youth gang, Mafia 1962, chose a name which reflected the year of Samoa's independence (Tunufa'i 2013). This gang functioned according to the principle of "law of private revenge" (Epati 2008; Turner [1884] 1988) or *taui ma sui,* which Epati (2008, 4) explains as to "operate by … a code of honour [and where the]… taking of revenge is a virtue in village eyes. A man who does not take revenge is not a man. The revenge-seeker cannot be negotiated with because his intent is bound up with honour. It is an absolute".

While Epati's explanation is substantively village-orientated, the essence of this justice philosophy is undoubtedly universal among Samoan communities and has more often than not been manifested patriotically by diasporic Samoan young people (Mayeda and Okamoto 2008). However, the contention that the "revenge seeker cannot be negotiated with" is perhaps one-sided, if not completely dismissive of culturally valid and respected mitigating protocols in times of conflict. For example, the Samoan expression "Tatou te lauama tau pe tatou te lauama to'oto'o?"[4] (Should we resolve our conflict through war or dialogue?) indicates that Samoan people do not always have to resort to revenge and violence to settle a dispute and therefore restore peace. It is important for Samoan young people to access comprehensive means of Samoan negotiating philosophies to broaden their cultural awareness, but it is even more salient to concentrate on the positive and developmental elements of such processes. This is especially true given that young people who are involved in gangs are more likely to be victims and perpetrators of violence, and are also more likely to engage in risky sexual behaviour and substance abuse (National Criminal Justice Reference Service 2016).

While it is unrealistic to expect Samoan young people in New Zealand to become fully conversant with Samoan traditional concepts, theories of justice, and language, significant value emanates from a genuine theoretical understanding of Samoan youth offending among concerned communities, and among state service providers. The prominence of certain Samoan historical and cultural elements in the criminal activities of Samoan young people in New Zealand is a manifestation of the latent ignorance that dominates the structural organisation of New Zealand. This ignorance results in continuing promotion of Pacific-specific or Samoan-specific services despite the fact that, in 2013, roughly 63% of Samoans were New Zealand-born. The Pacific population will reach 10% of the total New Zealand population by the year 2026 (Ministry for Pacific Peoples 2016). Given the fast growth of the New Zealand-born Samoan segment, the Samoan population will be predominantly second, third, fourth, and even fifth-generation New Zealand-born. This "much bigger story" is important because continuing to define people along ethnic lines has the potential to limit full access and participation as it promotes dependency and a subordinate citizenship status. Hence, the term "Pacific" has become tokenistic and piecemeal, and as long as it is employed in policy formation in New Zealand, it will continue to stigmatise and denigrate.

As the New Zealand-born segment of the Samoan population increases commandingly and hand-in-hand with interethnic marriages, any effort to explain youth crime within this group will be unethical and contemptuous because the cultural, educational, economic, and political exposure of these young people will be mostly "Kiwi". While the practice of justice for young people might show elements of a Samoan sense of justice and patriotism, understanding their criminal intents and involvement still needs to be assessed from a New Zealand structural perspective.

Samoan Youth and Crime

In no uncertain terms, researchers describe the involvement of Samoan youth in crime as violent and aggressive in nature (Fiaui and Hishinuma 2009; Mayeda and Okamoto 2008; Tunufa'i 2013). Based on the argument that the Samoan group's population count "has a substantial impact on the characteristics of the Pacific population as a whole" (Statistics New Zealand 2010, 10), I argue that the overrepresentation of Pacific youth in violent crime statistics as well as in other referrals related to conduct problems or offending (Hook 2009; Ministry of Social Development 2013) is, in fact, an indication of the overrepresentation of Samoan young people in crime

generally. Thus, Ioane et al.'s (2016) novel study—which compared youth offending among Pacific, Māori, and European ethnicities in New Zealand, and found that Pacific youth offenders were more than likely to commit a crime that is seriously violent in nature as their first crime—accurately describes Samoan youth involvement in crime. Pacific young offenders usually commence their offending around the age of 17, the age when a lot of young people would generally be exiting high school (Ioane et al. 2016; Ravulo 2015). Chesney-Lind and Paramore (2001) analysed data on reported juvenile robbery and violence in Honolulu, Hawaii and found that Samoan youth accounted for 40.5% of arrestees, although Samoan youth constitute only 2% of the total Hawaiian youth population (Mayeda and Okamoto 2008). This arrest rate was also high in comparison with arrestees of Indigenous Hawaiian descent, who accounted for 31.4% of arrestees and 30.9% of the total Hawaiian youth population.

Furthermore, the label of "violent" offending is used indiscriminately for Samoan female and male youth offenders (Mayeda and Okamoto 2008). In Mayeda and Okamoto's (2008, 49) study, the selection of non-Samoan participants was purposeful but vital because their "responses were used to understand the impact of external labelling and stereotyping on Samoan youth". As expected, non-Samoan respondents referred to Samoan female offenders as "more masculine in behaviour" or as acting "more manly" (52), and as girls who exhibited violent and aggressive behaviours that were identical to those displayed by their male counterparts. Similarly, Chesney-Lind and Paramore (2001) noted that, in 1991, no Samoan girl was arrested for robbery while 67% of arrestees were Indigenous Hawaiian girls. In 1997, however, 35.5% of the girls arrested for the same crime were Samoan while only 32.3% were Indigenous Hawaiian. The leap from 0 to 32.3% for Samoan female youth offending within just 6 years is nothing short of astonishing. Chesney-Lind and Paramore (2001) explain that the increase relates to the manner in which Samoan girls have mirrored a pattern of bullying that their similarly built male counterparts meted out to smaller-sized Asian and Caucasian victims. Most of the victims reported that, because of fear, they had to give into the demands of these offenders immediately. They were fearful of getting robbed or physically violated.

Conversely, the "Samoan respondents appeared to internalise such stereotypes" (Mayeda and Okamoto 2008, 51). They used their "being Samoan" as a mechanism to "suggest that violence, and the concomitant fear associated with it, was a source of cultural pride" (Mayeda and Okamoto 2008, 21). Faleolo's (2014) study of Samoan youth in some Bloods Gangs in

Auckland also found that such youth enjoyed violence due to its contribution to the creation of fear and confirmation of power. Such reasoning resonates with early foreign observations of Samoans as "characteristically an aggressive, violent people with quarrelsome personalities and a long history of conflict" (Freeman 1984, 51). Obviously, some of the participants' statements such as "I'm proud", "People look at me to be the maddest", and "That's what I like…about being Samoan" (Freeman 1984, 51) are indicative of Samoan youth intentionally but innovatively interpreting and reconfiguring ethnic and cultural factors to conjure, if not enhance, a relevant identity (Rivas-Drake et al. 2014). Arguably, the unnatural portrayal of the Samoan man as the embodiment of madness, violence, and pride was only necessary to achieve the primary objective of soliciting respect and fear from others. From Mayeda and Okamoto (2008), it cannot be deduced how many Samoan participants understood, practised, and respected *fa'a Samoa*. While it is beyond the scope of this chapter to determine whether this constitutes ethnic identity development or the content of ethnic identity (Rivas-Drake et al. 2014), the above statements indicate a fundamental commitment to an ethnic identity (Yip 2014) irrespective of such youths' countries of birth and upbringing. This is typical of the experiences of Samoan and other Pacific young people in other jurisdictions (Hook 2009; Ioane et al. 2016; Ravulo 2015).

However, an effort to draw a link between any Samoan "innate" violent aggressiveness and the Samoan identity is premature and therefore deviates from the true essence of *fa'a Samoa* as emphasised in other studies (Fiaui and Hishinuma 2009; Vakalahi and Godinet 2008), as well as a multitude of Samoan proverbs which promote Samoan-ness as respectful, hospitable, non-violent (Sunia 2002; Tui Atua 2011; Wildermuth 2012), and peaceful (Turner [1884] 1988). These themes are also expressed by Holmes and Holmes (1992, 142) in their observation that "Samoans go to extreme to avoid strife and to arrive at peaceful compromises". Most importantly, diasporic Samoan young people who genuinely search for a confirmed identity with an ethnic element deserve more support and positive role modelling, not judgment. *Fa'a Samoa* could contribute positively to the social, economic, and educational development of these Samoan young people (Fairbairn-Dunlop 2010; Fiaui and Hishinuma 2009; Vakalahi and Godinet 2008). In fact, Vakalahi and Godinet (2008) found that their participants thought it critical to uphold and participate in *fa'a Samoa* because it reminded them of the importance of maintaining family honour.

Contributing Factors

Violent offending by youth of Samoan descent does not occur in a vacuum. Multiple factors, including those that relate to family environment and dynamics, substance abuse as well as resistance to injustice, have all been identified as some of the possible forces behind Samoan youth offending. Regarding family-related factors, Kahn and Fua's (1995) study of Samoan and Tongan juvenile offending in Brisbane found that problematic Samoan youth tend to come from families that rely more on corporal punishment methods rather than verbal reasoning strategies as methods of domestic discipline. In other words, the problematic youths were merely regurgitating the violence that was perpetrated at home under the guise of discipline. Similarly, Mayeda and Pasko (2011, 127) found that some at-risk Samoan youth in Hawaii learnt violence from home where they were taught to resolve sibling quarrels through fighting each other, with the objective of learning "how to be a man". Such families would have literally "induced children to become fearless fighters, who would not acquiesce to external threats…They fight so much that they don't care who they fight with" (127–128). This is taking child discipline and corporal punishment to another level where the "erring children" become the instruments of discipline. Given the fictitious boundary between corporal punishment and aggression, it has been argued that corporal punishment ultimately legitimises aggression to such an extent that it becomes normal to exert violence towards other people (Gershoff 2002; Global Initiative to End All Corporal Punishment of Children 2016). In essence, it deprives victims of the opportunity for positive socialisation. Female victims of corporal punishment went on to "adopt a violent masculinity used … solely on other girls" (Mayeda and Pasko 2011, 134).

Ribeiro, Coelho, and Magalhaes (2016) analysed 1235 cases of child physical abuse to understand the motives behind the aggression. They found that male parents were the predominant perpetrators and that their aggression was always related to "substance abuse and a background of violent behaviour" (12). In these environments, children are victims. They are actively observant and most likely become perpetrators themselves.

The above picture is consistent with New Zealand domestic violence figures which show that in 2006, 76% of people convicted of assaulting a child were men (Families Commission 2009, 16–17). Of this number, 29% were New Zealand Europeans, 47% were Māori, and 19% were Pacific Islanders. Furthermore, 4285 men in total were prosecuted for assaulting a female, of which 29% were New Zealand Europeans, 53% were Māori, and 12% were

Pacific Islanders. Since people of Pacific origin make up only 6% of the total population of New Zealand, the above figures show a clear overrepresentation in violent crimes.

Studies on brain development show that young people are at a critical stage where the brain is highly vulnerable to addiction (Anderson 2016; Jensen 2015). Given that the majority of Samoan young people come from low socio-economic backgrounds are susceptible to substance abuse (Ministry of Social Development 2006) and are often implicated as academically deprived, their involvement in criminal activities is just a reflection of the dire realities and consequences of financial strains that they and their families experience (Vakalahi and Godinet 2008). These strains relatively easily morph into varied manifestations in areas such as education, where Samoan young people mostly appear at the lower ends of academic success (Fairbairn-Dunlop 2010; Gorinski and Frader 2006; Mayeda and Pasko 2011), but high in gang affiliation (Ioane et al. 2016; Nakhid 2009; O'Brien et al. 2013; Tunufa'i 2013; Vakalahi and Godinet 2008).

Additionally, the involvement of some Samoan youth in crime is a demonstration of their distrust of the justice system (Webb 2009), especially the police, as well as a confirmation of the legitimacy of their gang membership and activities. It is a confrontational strategy but the culprits know full well what the consequences are. They find trusting police very challenging (Ravulo 2015; Tunufa'i 2013). Historically, Samoan, Pacific, and Māori youth have experienced police practices and profiling to be discriminatory and selective (Webb 2009), which consequently led to more antagonistic relationships. Moreover, it appears that the sentiments of racially biased policing in the 1970s, which manifested itself in the Dawn Raids confrontations (Anae 2012; Shilliam 2013), is still visible in contemporary discussions of crime control policies. For example, when Prime Minister John Key announced the National-led government's addition of 255 new frontline police officers to the Counties-Manukau district (Key 2010), the implications were immediate and counterproductive. First of all, the move inadvertently confirmed the stereotype that this region—which had been identified as an area with "escalating youth gang activity and increases in violent assaults [requiring] "significant intervention" (Ministry of Social Development 2008, 8)—was the "hub" of crime in Auckland, if not New Zealand. Even more telling was the fact that the suburbs of Otara and Mangere—which were singled out as supposed hot spots of gang activity (Ministry of Social Development 2006)—should now expect heightened police monitoring from perhaps most of the 255 new frontline police. Adding such a significant number of police officers to this stigmatised region would also imply that New Zealand's crime

problem would now be resolved because the 255 new police officers should put Counties Manukau and particularly Otara and Mangere under control. Interestingly, though, the Canterbury Metro area, Waitakere area and the Auckland City District have consistently recorded higher rates of crime compared to South Auckland (Statistics New Zealand 2016b).

Similarly, the label "wannabes", which defined the first type of youth gang as a group of "young people who reinforce their membership through shared dress codes and signs" (Ministry of Social Development 2008, 20–21), produced added motivation for some young people to prove their gang membership. Furthermore, given that this group "made up the majority of the apparent youth gang population" (Ministry of Social Development 2008, 21) in the Counties Manukau youth gang study, the label leads to the over-policing of Pacific Island peoples in Otara and Mangere, and shows that the sentiments of Dawn Raids policing are still alive. Some young Samoans object to the label "wannabes". They state that with their actions such as "bashing someone on the head … showing no fear after getting some money for doing crime [is real and] the hee-hah keeps pumping in them for some time" (Tunufa'i 2013, 191–192). Since Samoan young people have already been stigmatised, more labels are, arguably, not conducive for producing positive attitudes towards law enforcement and crime control.

In the main, though, it is important for safety's sake that the public—especially youth and minority ethnic groups—regains its trust of the justice system in general and the police in particular. Paulin et al. (2003) found that roughly 73% of New Zealanders thought the police were doing and excellent or a good job. Such respondents were more likely to be Pākehā and older. Pacific peoples, on the other hand, were more likely to think of judges, rather than the police, to be doing and excellent or a good job. If this is based on close-contact experience, then it is very clear that Pacific peoples' experiences with the New Zealand police are mostly negative.

Importantly, Pacific peoples' comparably high rating of judges' performance (Paulin et al. 2003) highlights a very critical point in terms of how Pacific peoples, specifically Samoan people, understand fairness and justice. Samoan people acknowledge that justice demands facing up to the consequences of crime, and accepting of the punishments which are meted out by judges. Judges generally embody diplomacy, respect, and maturity, which resonates with Samoan notions of *ao sinasina* (which literally translates as "white hair" but means maturity) and *fai 'āiga/nu'u lelei* (good governance). Early observers of Samoan conflict resolution and punishment practices wrote of how such practices were mostly carried out justly to ensure the maintenance of peace and harmony (Schultz 1911; Turner [1884] 1988). Moreover,

justice also demands that the pathway towards consequences and punishments is equitable and just. Falling short of this expectation is an indictment on justice itself.

Conclusion

Samoan youth crime in New Zealand is a severely understudied topic. While overseas studies provide much support of the violent nature of Samoan youth crimes (Mayeda and Pasko 2011), the need for local research in this area is urgent, especially because New Zealand is home to the largest Samoan population outside of Samoa. Moreover, the fact that the Samoan population is predominantly New Zealand-born has raised calls for new ways of understanding the criminal involvement of Samoan young people rather than relying mostly on ethnic-based and ethnic-related explanations and statistics. Such categorisations may provide political convenience, but they continue to stigmatise, potentially create dependency, and are therefore tokenistic. As such, they enhance structural segregation that denies Samoan young people full access to the means that will better facilitate their successes. Similarly, governmental labelling and increased crime control activities in Otara and Mangere constitute a provocation for young potential gangsters to prove their authenticity and worth. While Samoan lotonu'u (patriotism) is evident with the inclusion of certain historical and cultural elements within the naming and activities of some Samoan youth gangs in New Zealand, such patriotism often attracts more negative public reaction rather than it promotes justice. Furthermore, Samoan family disciplinary methods need a rethink, as some Samoan young people's violence is learned at home. Finally, it is critical that the topic of Samoan youth crime in New Zealand is given more research attention so that their overrepresentation in violent offending is properly understood and reduced through better-informed policies and effective programmes.

Notes

1. 1026 people stated their ethnic identity as Pacific and not further defined (Statistics New Zealand 2016c).
2. The total Samoan population is bigger than the next two biggest ethnic groups (Cook Islands and Tongan) combined (122,867) and slightly less than half of the combined total population of the next three biggest groups (which includes Niue with 23,883).

3. Samoa and American Samoa are two separate sovereignties. American Samoa, the eastern group of islands in the Samoan archipelago, is a Territory of the USA while the independent state of Samoa encompasses all the remaining islands in the western part of the group.
4. The *lauama to'oto'o* process occurs either on the *malae* (village green) or in a *maota/laoa* (matai's guest house). It is also important to note that this was the Mau Movement's (Samoa's peaceful movement for independence) main mechanism to express their *mau* (petition) during negotiations with the political powers of the time.

References

Aleck, Jonathan. 1991. Beyond Recognition: Contemporary Jurisprudence in the Pacific Islands and the Common Law Tradition. *QUT Law Journal* 7: 137–144.

Anae, Melani. 2012. All Power to the People: Overstayers, Dawn Raids and the Polynesian Panthers. In *Tangata O Le Moana: New Zealand and the People of the Pacific*, eds. Sean Mallon, Kolokesa Māhina-Tuai, and Damon Salesa, 221–240. Wellington: Pe Papa Press.

Anderson, Jane E. 2016. Brain Development in Adolescents: New Research Implications for Physicians and Parents in Regard to Medical Decision Making. *Issues in Law and Medicine* 30 (2): 193–196.

Chesney-Lind, Meda, and Vickie V. Paramore. 2001. Are Girls Getting More Violent? *Journal of Contemporary Criminal Justice* 17 (2): 142–166.

Epati, Aeau S. 1988. Lawyers and the Customary Law Court. In *Pacific Courts and Legal Systems*, eds. Guy Powles, and Mere Pulea, 167–173. Suva: University of the South Pacific.

Epati, Aeau S. 2008. Pacific Jurisprudence: Issues and Challenges. Paper presented at Public Lecture, Victoria University of Wellington, Wellington, October.

Fairbairn-Dunlop, Tagaloatele P. 2010. He's Won, But He's Lost It. *AlterNative* 6 (2): 143–154.

Faleolo, Moses M. 2014. Hard—Hard—Solid! Life Histories of Samoans in Bloods Youth Gangs in New Zealand. PhD dissertation, Massey University.

Families Commission. 2009. *Family Violence Statistics Report: A Families Commission Report*. Wellington: Families Commission.

Fiaui, Pavela A., and Earl S. Hishinuma. 2009. Samoan Adolescents in American Samoa and Hawai'i: Comparison of Youth Violence and Youth Development Indicators. *Aggression and Violent Behavior* 14 (6): 478–487.

Freeman, Derek. 1984. *Margaret Mead and Samoa*. Bungay: Chaucer Press.

Gershoff, Elizabeth T. 2002. Corporal Punishment by Parents and Associated Child Behaviors and Experiences: A Meta-Analytic and Theoretical Review. *Psychological Bulletin* 128 (4): 539–579.

Global Initiative to End All Corporal Punishment of Children. 2016. *Corporal Punishment of Children in New Zealand*. London: Global Initiative to End All Corporal Punishment of Children.

Godinet, Meripa T., and Halaevalu F. Vakalahi. 2008. Community, Neighborhood, and Peer Influence on Samoan-American Youths. *Journal of Ethnic and Cultural Diversity in Social Work* 17 (4): 326–348.

Gorinski, Ruth, and Cath Fraser. 2006. *Literature Review on the Effective Engagement of Pasifika Parents and Communities in Education: Report to the Ministry of Education*. Wellington: Ministry of Education.

Herr, Richard. 2015. Cultural Adaptation of the Westminster Model: Some Examples from Fiji and Samoa. *Australian Parliamentary Review* 30 (1): 72–82.

Holmes, Lowell D., and Ellen R. Holmes. 1992. *Samoan Village: Then and Now, Case Studies in Cultural Anthropology*. New York, NY: Harcourt Brace College.

Hook, Gary R. 2009. The Criminalization of Maori and Pacific Islanders under the Domestic Violence Act 1995. *MAI Review* 3: 1–12.

Ioane, Julia, Ian Lambie, and Teuila Percival. 2016. A Comparison of Pacific, Maori, and European Violent Youth Offenders in New Zealand. *International Journal of Offender Therapy and Comparative Criminology* 60 (6): 657–674.

Jensen, Frances E. 2015. *The Teenage Brain: A Neuroscientist's Survival Guide to Raising Adolescents and Young Adults*. London: Harper.

Kahn, Marvin W., and Cliff Fua. 1995. Children of South Sea Island Immigrants to Australia: Factors Associated with Adjustment Problems. *International Journal of Social Psychiatry* 41 (1): 55–73.

Key, John. 2010. John Key's Full Address to the National Party Conference. *TVNZ*, July 18.

Mayeda, David T., and Scott K. Okamoto. 2008. Challenging the 'Asian Pacific American' Rubric: Social Constructions of Ethnic Identity among Samoan Youth in Hawaii. *Journal of Poverty* 6 (4): 43–62.

Mayeda, David T., and Lisa Pasko. 2011. Youth Violence and Hegemonic Masculinity among Pacific Islander and Asian American Adolescents. *Critical Criminology* 20 (2): 121–139.

Ministry for Pacific Peoples. 2016. *Pacific People in New Zealand*. Wellington: Ministry for Pacific Peoples.

Ministry of Social Development. 2006. *From Wannabes to Youth Offenders: Youth Gangs in Counties Manukau*. Wellington: Ministry of Social Development.

Ministry of Social Development. 2008. *Youth Gangs in Counties Manukau*. Wellington: Ministry of Social Development.

Ministry of Social Development. 2013. *Conduct Problems: Adolescent Report, 2013*. Wellington: Ministry of Social Development.

Nakhid, Camille. 2009. The Meaning of Family and Home for Young Pasifika People Involved in Gangs in the Suburbs of South Auckland. *Social Policy Journal of New Zealand* 33: 112–128.

National Criminal Justice Reference Service. 2016. *Special Feature: Youth Violence*. Washington, DC: Department of Justice.

O'Brien, Kate, Michael Daffern, Chi Meng Chu, and Stuart D.M. Thomas. 2013. Youth Gang Affiliation, Violence, and Criminal Activities: A Review of Motivational, Risk, and Protective Factors. *Aggression and Violent Behavior* 18 (4): 417–425.

Paulin, Judy, Wendy Searle, and Trish Knaggs. 2003. *Attitudes to Crime and Punishment: A New Zealand Study*. Wellington: Ministry of Justice.

Ravulo, Jioji. 2015. Pacific Youth Offending within an Australian Context. *Youth Justice* 16 (1): 34–48.

Ribeiro, Christina S., Luis Coelho, and Teresa Magalhaes. 2016. Comparing Corporal Punishment and Children's Exposure to Violence between Caregivers: Towards Better Diagnosis and Prevention of Intrafamilial Physical Abuse of Children. *Journal of Forensic and Legal Medicine* 38: 11–17.

Rivas-Drake, Deborah, Eleanor K. Seaton, Carol Markstrom, Stephen Quintana, Moin Syed, Richard M. Lee, Seth J. Schwartz, Adriana J. Umana-Taylor, Sabine French, and Tiffany Yip. 2014. Ethnic and Racial Identity in Adolescence: Implications for Psychosocial, Academic, and Health Outcomes. *Child Development* 85 (1): 40–57.

Schultz, Erich. 1911. The Most Important Principles of Samoan Family Law, and the Laws of Inheritance. *The Journal of the Polynesian Society* 20 (2): 43–53.

Shilliam, Robbie. 2013. The Polynesian Panthers and the Black Power Gang: Surviving Racism and Colonialism in Aotearoa New Zealand. In *Black Power Beyond Borders*, ed. Nico Slate, and Joe Trotter, 107–126. New York, NY: Palgrave Macmillan.

Statistics New Zealand. 2007. *Pacific Profiles: 2006 Samoan People in New Zealand*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2010. *Demographics of New Zealand's Pacific Population: Pacific Progress 2010*. Wellington: Ministry of Pacific Island Affairs.

Statistics New Zealand. 2016a. *2013 Census Ethnic Group Profiles: Samoan*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2016b. *2013 Census Quick Stats about Culture and Identity: Pacific Peoples Ethnic Group*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2016c. *Recorded Crime Offenders Statistics—Unique Offenders*. Wellington: Statistics New Zealand.

Sunia, Fofo I. 2002. *Measina a Samoa: Lupe O Le Foaga*. Apia: Fofo Sunia.

Taulapapa, Anesi, and Enari Auelua. 1988. The Land and Chiefly Titles Court of Western Samoa. In *Pacific Courts and Legal Systems*, eds. Guy Powles, and Mere Pulea, 107–111. Suva: University of the South Pacific.

Tui Atua, Tupua. 2011. Sufiga Ole Tuaoi: Negotiating Boundaries. Paper presented at Brigham Young University, September, in Hawai'i.

Tunufa'i, Laumua. 2013. 'E Āgatonu Ā Manu'a 'O Fesili: Investigating the Attitudes of an Auckland Samoan Population toward the New Zealand Criminal Justice System. PhD dissertation, Auckland University of Technology.

Turner, George. (1884) 1988. *Samoa: A Hundred Years ago and Long before*. Papakura: Southern Reprints.

Vakalahi, Halaevalu F., and Meripa T. Godinet. 2008. Family and Culture, and the Samoan Youth. *Journal of Family Social Work* 11 (3): 229–253.

Webb, Robert. 2009. Maori, Pacific Peoples and the Social Construction of Crime Statistics. *MAI Review* 3 (2): 1–4.

Wildermuth, Grace. 2012. Heaven and Earth: Samoan Indigenous Religion, Christianity, and the Relationship between the Samoan People and the Environment. Independent Study Project (ISP) Collection Paper 1488.

Yip, Tiffany. 2014. Ethnic Identity in Everyday Life: The Influence of Identity Development Status. *Child Development* 85 (1): 205–219.

Author Biography

Dr. Laumua Tunufa'i is a Lecturer in criminology at AUT University in NZ. He was born and raised in Samoa, studied abroad, returned to Samoa to work with young people and families, and later continued in the same line of work in NZ. In 2003, his interests turned academic. He continues to seek to understand the factors that contribute to high rates of Samoan people in NZ crime statistics.

13

Domestic Violence, Violence in Close Relationships, and Violence Against Women

Samantha Jeffries and Sharon Hayes

In Australia and New Zealand, violence against women in familial and intimate relationships is a pervasive social problem of increasing public concern. This chapter examines such violence with a particular focus on intimate partner violence (IPV) perpetrated against women by men. We provide an overview of prevalence data, physical and non-physical forms of abuse, the impacts of victimisation, legal responses, and theoretical frameworks. The intersection between IPV and child abuse is examined, as is the ongoing and disproportionate victimisation of Indigenous Australian and Māori women. Consideration is also given to IPV in LGBTQI intimate relationships.

Violence Against Women in Intimate Relationships

The United Nations defines violence against women as "any act of gender-based violence that results in, or is likely to result in, physical, sexual or psychological harm or suffering to women, including threats of such acts,

S. Jeffries (✉)
School of Criminology and Criminal Justice, Griffith University, Brisbane, Australia
e-mail: s.jeffries@griffith.edu.au

S. Hayes
School of Humanities and Social Science, University of Newcastle, Callaghan, Australia
e-mail: sharon.hayes@newcastle.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_13

coercion or arbitrary deprivation of liberty, whether occurring in public or in private life" (United Nations 1993). The most pervasive form of violence experienced by women in Australia and New Zealand is domestic or IPV, which is predominantly perpetrated by men against women in the context of intimate relationships (Henaghan and Ballantyne 2010; Ministry of Social Development 2002; Phillips and Vandenbroek 2015).

The gendered nature of violence in intimate relationships is blatantly evidenced in Australian homicide data, which consistently shows that women are significantly more likely than men to be killed by an (ex)partner and that these deaths occur against the backdrop of male IPV perpetration. For example, the NSW Domestic Violence Death Review Team (2015a) reported that 51% of all female homicide victims in NSW between 2000 and 2012 were killed in a domestic violence context, compared to 17% of male homicide victims. In-depth case analyses of intimate partner homicides recorded between 2008 and 2012 showed that every female victim was killed by a male (ex)intimate partner and had experienced ongoing violence at the perpetrators' hand prior to her death. In contrast, all of the men killed were the perpetrators of domestic violence and had been killed by their female victim. In New Zealand, analyses of homicide data between 2002 and 2006 show that a higher proportion of familial homicides involve a female victim. Of the 141 deaths over this period, 88 victims were female and 53 male, and 121 perpetrators were male and 28 female. Of the 74 intimate partner homicide events that occurred, all except two involved a male perpetrator and female victim. In the two cases where a woman killed a man, the deaths had occurred in the context of a violent altercation between them (Ministry of Social Development 2010).

It is impossible to determine the true extent of domestic and family violence. This is due to the broad definition, the close nature of the relationships in which it occurs, and the fact that many incidents go unreported to police. However, available prevalence data derived from self-report victim surveys suggests that it is widespread, and—unsurprisingly in the light of the homicide data reported above—women are the more likely victims (Phillips and Vandenbroek 2015). Australia's *Personal Safety Survey* estimated that in 2012, 17% of all Australian women aged 18 years and older had experienced IPV since the age of 15, compared to 5.3% of men. Additionally, in the 12 months prior to the survey, an estimated 1.5% of Australian women had experienced violence by a partner, compared to 0.6% of men. Violence included both actual and threatened physical and sexual abuse (Australian Bureau of Statistics 2013). Findings from the 2014 New Zealand Crime and Safety Survey show that after controlling for other factors being female was one of the best predictors for becoming a victim of IPV. Women were more

likely than men—6% compared to 4%—to be the victim of a violent interpersonal offence by an intimate partner, and were more likely than men—26% compared to 14%—to have experienced one or more incidents over their life course (Ministry of Justice 2015).

The term "domestic violence" and the dominant understandings underpinning it originally emerged from concerns expressed by both non-Indigenous and Māori feminists about the abuse of women by men in intimate relationships. Patriarchy, and thus male dominance, was and is seen by many feminist scholars as the central organising feature of IPV. However, some Indigenous Australians and Māori have indicated their preference for the term "family violence" or "whānau violence" in New Zealand. This is because the abuse of Indigenous and Māori women is better conceptualised within extended families and the wider community, rather than as a private or domestic event, or an individual level expression of patriarchy. Further, it is more aptly understood by situating it within the context of colonisation and the resulting loss, trauma, disadvantage, oppression, racism, and marginalisation (Al-Yaman et al. 2006; Olsen and Lovett 2016; Te Puni Kōkiri 2010).

Domestic, intimate partner, and family violence—these terms are used interchangeably in the literature—involve the same sorts of behaviours (Council of Australian Governments 2011). These may include emotional abuse such as victim-blaming; undermining the victim's self-esteem or self-worth; verbal abuse such as swearing, humiliation, degradation; social abuse such as social isolation; economic abuse such as controlling all money; psychological abuse such as threats and intimidation; spiritual abuse such as misusing religious or spiritual traditions to justify abuse; physical abuse such as direct assaults on the body, or food and sleep deprivation; and sexual abuse such as rape or sexual degradation. The central element is that of an ongoing pattern of behaviour aimed at controlling victims through fear and intimidation (Australian National Council to Reduce Violence against Women and their Children 2009; Ministry of Social Development 2002).

The problem of domestic and family violence amongst Australian and New Zealand Indigenous peoples is of particular concern to governments. A number of Australian government taskforces have reported on the endemic nature of such violence (State of Queensland 1999; State of Victoria 2003). Similarly, in New Zealand, the Māori Taskforce on Whānau Violence described this type of violence as being "an epidemic" (Kruger et al. 2004, 9). Although data are limited, especially in Australia, it shows that Indigenous women are more frequently victimised than non-Indigenous women.

Results from the New Zealand Crime and Safety Survey show Māori, both male and female, experienced more than a 50% higher than average

likelihood of family violence victimisation. Māori (11%) were more likely than the New Zealand average (5%) to have been victimised one or more times by an intimate partner, while Europeans were less likely than the average to be offended against (Ministry of Justice 2015).

In Australia, self-report data pertaining to domestic and family violence by Indigenous status are unavailable. Self-report figures from the National Aboriginal and Torres Strait Islander Social Survey 2008 and the Australian component of the International Violence Against Women Survey 2003 do show that Indigenous women experience a higher rate of violent victimisation, but the victim-offender relationship status remains unrecorded (Olsen and Lovett 2016; Phillips and Vandenbroek 2015).

Prevalence estimates are best derived from self-report victim survey data. Police data are not an ideal source of information due to high levels of underreporting, especially amongst Indigenous Australians and Māori (Olsen and Lovett 2016). In Australia, Indigenous women are particularly mistrustful of the police and legal system; fearful of the negative consequences; and repercussions of reporting, especially within small, interconnected communities, and concerned about the incarceration of Indigenous men (Olsen and Lovett 2016). Given the lack of Australian self-report data by Indigenous status, police data can provide the next best source of prevalence information. However, this data source is generally inadequate because family and domestic violence "flags", as recorded by police officers, have only been introduced recently, and only in a limited number of jurisdictions, that is in NSW, Victoria, Queensland, the Northern Territory, and ACT.

Despite concerns about underreporting, Indigenous women are overrepresented in police victimisation data. In NSW, for example, Fitzgerald and Weatherburn (2002) report that the rate of Indigenous female victimisation for assault related to domestic violence is over four times greater than the female average, that is, 2876 female compared to 589 male victims per 100,000.

Same-Sex and Transgender Relationships

Prevalence data on domestic violence in same-sex and transgender relationships are sparse in both Australia and New Zealand. While research in the area is beset by methodological problems, such as self-report victimisation studies of non-random or self-selected samples, as well as definitional problems, studies do show that IPV also affects those who identify as non-heterosexual or same-sex attracted; that is, those sexualities that are typically categorised as lesbian, gay, bisexual, transgender, queer, or intersex (LGBTQI). The currently limited research suggests that LGBTQI

relationships feature similar types of abuse as their heterosexual counterparts (Ball and Hayes 2010; Gainoni and Cussen 2014; Jeffries and Ball 2008).

An online self-report survey of 390 LGBTQI people in Victoria reported a higher percentage of women experiencing abuse in a same-sex intimate relationship than in opposite-sex intimate relationships; 35% compared to 29%. The types of abuse experienced included emotional, psychological, physical, verbal, sexual, financial, and social abuse (Leonard et al. 2008).

In New Zealand, research suggests that same-sex attracted women are not immune from IPV. A survey of 95 lesbian and bisexual women found that almost half reported having been abused by a same-sex intimate partner (Ministry of Social Development 2007). In a recent report on LGBTQI communities, up to 59% of the 355 survey respondents reported experiencing some form of emotional, psychological, or verbal abuse, as well as isolation and control from an intimate partner, and up to 51% reported some form of physical abuse (Dickson 2016). Respondents were asked to identify the gender of the person(s) who had perpetrated the IPV. Cisgender people—meaning those whose gender identity corresponds to their assigned sex at birth—were more frequently perpetrators than transgender people. Also, cisgender and transgender people with a masculine gender expression were more likely to be perpetrators than those with a feminine gender expression (Dickson 2016).

In contrast to heterosexual women, there is little in the way of specific community or social services support available to victims of same-sex IPV (Kay and Jeffries 2010; Vickers 1996). In addition, there are important differences between the experiences of LGBTQI and non-LGBTQI victims (Chan 2005). These variant experiences include, for example, the perpetrator threating to "out" their LGBTQI victim to family or employer as a tool of control, and the ability of female perpetrators to access the same domestic violence services as their victim. Such differences impact on how LGBTQI victims respond to the violence, including whether or not and how they seek help, what services they are able to avail themselves of, and how likely they are to remain with or return to their violent partners (Chan 2005).

Impacts

As discussed above, alarmingly high numbers of women are killed as a result of IPV. Many of those who survive will experience immediate and ongoing harm to their physical and psychological well-being. Domestic violence is, for example, reported to be the single biggest health risk to Australian women aged 15 to 44 years (Access Economics 2004).

Indigenous women are around 35 times more likely than non-Indigenous women to sustain serious physical injury and require hospitalisation as a result of domestic violence (Morgan and Chadwick 2009). For Māori women, the rate of hospitalisation for IVP—that is assault or attempted homicide—is nearly 6 times greater than for non-Māori women; 110 compared to 19 per 100,000 (Ministry of Health 2016).

While physical injuries are the most obvious, victimised women universally report that it is the psychological abuse that causes them the most pain and trauma. Psychological abuse has been linked to increased physical health problems such as chronic pain, migraines, and stomach ulcers, and is associated with negative impacts on mental health leading to anxiety, depression, substance misuse, suicidal thoughts, self-harm, suicide attempts, and suicide (Beattie 2014; Fanslow and Robinson 2004; Fergusson et al. 2005; Hayes and Jeffries 2015).

The damage caused by IPV does not stop at victims' bodies and minds. It can also result in social exclusion by draining women of resources, opportunities, and capabilities. It increases risks of financial insecurity, poverty, homelessness, social isolation, and women's ability to influence decisions that affect them (Braaf and Meyering 2011; Hayes and Jeffries 2015; Henare and Hannifin 2011; MacDonald 2012). In the case of same-sex attracted and transgender women, the threat of "outing" to family or employers also plays a role in keeping women from governing their own lives (Ball and Hayes 2010).

At a societal level, domestic and family violence generates an enormous financial burden. The total annual price tag of this violence in Australia was estimated to be around AUD 8 billion in 2002/2003. This estimate includes loss of employment and cost for victim support and healthcare services (Commonwealth of Australia 2004). In New Zealand, the economic cost is estimated at between NZD 1.2 and 5.3 billion (Snively 1995).

IPV and Child Abuse

In the past, IPV and child abuse were frequently treated as a separate issue, but there is now recognition that domestic violence is also a child protection concern. This shift owes much to a growing body of research that demonstrates the high co-occurrence of family violence and child abuse, and considers the mere exposure to family violence as abusive because of the negative impact it has on children (Australian National Council to Reduce Violence against Women and their Children 2009; Herbert and MacKenzie 2014; Jeffries 2016; Jeffries et al. 2015; Parkinson and Humphreys 1998; Richards 2011; Tomison 2000).

IPV and child abuse frequently co-occur within the same families. For example in Victoria, an investigation of actual or suspected child maltreatment cases found that child protection workers reported domestic violence in 31% of cases (Tomison 2000). More specifically, IPV was reported as present in 38% of child neglect cases, 37% of physical abuse cases, 68% of emotional abuse cases, and around 20% of sexual abuse cases (Bedi and Goddard 2007; Tomison 2000). New Zealand police report that in 70% of families where IPV is known to exist; children are also the direct victims of some form of violence (Herbert and MacKenzie 2014).

Children living with IPV are not only exposed to the violent events but may also hear the violence; see its effects such as blood, injuries, and damaged property; be used as a tool in the abuse, for example, by being forced to send threatening messages; be blamed for the violence; be used as a hostage by an abusive parent to intimidate their victim; defend a parent against the violence; and intervene to stop the violence (Parkinson and Humphreys 1998; Richards 2011). As noted by Parkinson and Humphreys (1998, 148), IPV in families "does not usually occur in a way which is separated from the lives of children". They are "frequently either present when the violence occurs, or are made aware of the violence in other ways". Thus children are living with the reality of domestic violence (Jeffries 2016).

There are significant negative effects for children who live with IPV (Carroll-Lind et al. 2011). These include—but are not limited to—feelings of sadness, anger, confusion, fear, low self-esteem, anxiety; internalised symptoms of distress such as nightmares, eating disorders, repetitive self-harm, and depression; and externalised symptoms of distress such as aggression, antisocial behaviour, poor academic achievement, social withdrawal, poor social competence, low levels of empathy, and post-traumatic stress disorder in more extreme cases. Accordingly, living with IPV is itself a form of child abuse because of the negative implications for children's well-being (Herbert and MacKenzie 2014; Jeffries 2016; Jeffries et al. 2015; Parkinson and Humphreys 1998; Richards 2011).

The crime of filicide is perhaps the most deplorable illustration of the nexus between IPV and child abuse (Jeffries et al. 2015). The NSW Domestic Violence Death Review Team (2015b) found that 75% of all children who were killed by a parent between 2000 and 2010 lost their lives in a domestic violence context. In 52% of these cases, the children had never been the direct target of abuse but were typically exposed to their father perpetrating IPV against their mother. In nearly 40% of cases, the direct abuse of the child and IPV behaviours co-occurred within the family. In nearly 50% of New Zealand child homicides, the father, step-father, or male partner of the female

caregiver was known to the police for abusing her. Arguably, the murder of children in this context is not only the ultimate act of child abuse, it is also a demonstrable manifestation of IPV (Jeffries et al. 2015).

Legal Responses

Historically, IPV was not considered a significant social issue. However, considerable lobbying and political work by Australian and New Zealand feminist, women's rights, and victims' rights groups brought the problem out of the shadows and into the public arena (Hunter 2006; Robertson et al. 2007). Over the last three decades, government discourse, legislation, and policy in the criminal and civil domains has shifted towards recognising domestic and family violence as a serious issue with far-reaching harmful consequences for women and children. Thus, we have seen, for example, the introduction of domestic violence protection order legislation and an expansion in the breadth of the relationships covered by it, such as same-sex intimates, parent-child relationships, and other broader familial relationships (Boshier 2011; Jeffries, Bond, and Field 2013); a broadening of legislative definitions of what constitutes domestic violence to include non-physical forms of abuse (Australian National Council to Reduce Violence against Women and their Children 2009; New Zealand Family Violence Clearing House 2016); recognition in legislation that domestic violence is not a "one-off" incident, but rather an ongoing pattern of behaviour engaged in by perpetrators to maintain power and control over their victims (Australian National Council to Reduce Violence against Women and their Children 2009; New Zealand Family Violence Clearing House 2016); the criminalisation of non-physical forms of IPV including harassment and stalking (Ogilvie 2000); the implementation of pro-arrest mandates (Newbold and Cross 2008; Rollings and Taylor 2008); and amendments to family law specifying domestic and family violence be taken into account when determining children's best interests (Boshier 2011; Busch and Robertson 2008; Field et al. 2016).

However, research continues to show a disjunction between law, policy, and practice. For example, studies illustrate that many police officers continue to ignore pro-arrest directives or decide to arrest the victim alongside the abuser (Larsen and Guggisberg 2009; Newbold and Cross 2008), particularly in same-sex domestic violence cases (Ball and Hayes 2010). With regard to protection orders, breaches are not always adequately responded to by police or courts (Douglas 2008; Robertson et al. 2007). In Australia, there is

inconsistency in the level of protection offered to victims across the states and territories (Jeffries et al. 2013). In the courtroom—civil, criminal, and family—women's stories of abuse are often denied or minimised by judicial officers, and victim-blaming is common. There is still a tendency to decontextualize the abuse—to construct it as a one-off incident rather than an ongoing pattern of coercive control—and domestic violence offenders are sentenced more leniently than those who perpetrate violence outside of familial contexts (Bond and Jeffries 2014; Elizabeth 2015; Field et al. 2016; Hunter 2006; Jeffries 2016). Change, therefore, appears more symbolic than instrumental, and the result is that women and their children continue to be placed at unacceptable risk of harm.

Theorising

The most common theoretical framework for analysing IPV to date is the Duluth Power and Control Wheel (Domestic Violence Intervention Project 2011), which models the tools and tactics used by perpetrators to control their victims. The underlying assumption is that of patriarchal dominance of men over women, and the gendered exercise of power and control in intimate relationships (McLeod 2003). However, McLeod (2003, 59) argues that this framework is inadequate for analysing same-sex domestic violence because it fails to acknowledge certain unique features, such as "internalised and cultural homophobia, heterosexism, lesbian or gay discourse and the difficulty lesbians and gays have in accessing family violence services". She suggests a combination of psychological and social learning theories, to explain how one partner can come to dominate and control the other. However, as we have discussed elsewhere (Hayes and Jeffries 2013), while psychological and sociological theories of this kind are useful in explaining some kinds of domestic violence, more recent research suggests there are other factors involved. For example, in our recent study involving the analysis of online discussion forums, we found that the most common reason cited by both heterosexual and non-heterosexual victims for staying in violent relationships were idealised views of romantic love (Hayes and Jeffries 2013). Romantic idealisation is a discourse learned very early by most children, but particularly by girls in Western nations. Parents, family, literature, media, and popular culture teach girls ideals that not only position women as nurturers and maintainers of relationships but also create an unrealistic archetype of romantic love towards which women should strive. The ideal positions women as nurturers and maintainers of relationships, and romantic love as an archetype that women need to achieve. While this does not explain violence in male same-sex relationships, it can be applied equally to heterosexual and female same-sex relationships (Hayes and Jeffries 2013).

Conclusion

As outlined in this chapter, the most prevalent form of violence against women in Australia and New Zealand is male-perpetrated IPV. Māori and Indigenous Australian women are especially overrepresented as victims of domestic and family violence, and this is of particular concern to each country's respective governments.

While the problem of heterosexual IPV is now recognised, less is known about abuse in LGBTQI relationships. The existing Australian and New Zealand research—limited as it may be—does suggest that these relationships are not immune, and the abuse involves behaviours not dissimilar to those evidenced in heterosexual partnerships. However, there are also differences which impact on LGBTQI victim responses.

Domestic violence has widespread negative consequences for women, their children, and society. In both Australia and New Zealand, high numbers of women and children die every year, and for those who survive, many will experience immediate and ongoing harm to their physical, psychological, social, and economic well-being. At a societal level, the economic cost to both countries is significant. While domestic and family violence is now recognised as a serious social issue with far-reaching harmful consequences, there is a persistent disjuncture between law, policy, and practice. This continues to place women and their children in a situation of increased risk of harm.

References

Australian Bureau of Statistics. 2013. *Personal Safety, Australia 2012*. Cat. no. 4906.0. Canberra: ABS.

Access Economics. 2004. *The Cost of Domestic Violence to the Australian Economy*. Canberra: Commonwealth Australia.

Al-Yaman, Fadwa, Mieke Van Doeland, and Michelle Wallis. 2006. *Family Violence among Aboriginal and Torres Strait Islander Peoples*. Canberra: AIHW.

Australian National Council to Reduce Violence against Women and their Children. 2009. *Background Paper to Time for Action: The National Council's Plan to Reduce Violence against Women and Children, 2009–2021*. Canberra: Department of Families, Housing, Community Services and Indigenous Affairs.

Ball, Matthew, and Sharon Hayes. 2010. Same-Sex Domestic Violence: Exploring the Parameters. In *Queering Paradigms*, ed. Burkhard Scherer, 161–177. London: Peter Lang.

Beattie, Susan. 2014. Patterns of Domestic and Family Homicide: A Familiar Story. Paper presented at Violence Research and Prevention Program, Griffith University, August 6, in Brisbane.

Bedi, Gillinder, and Chris Goddard. 2007. Intimate Partner Violence: What Are the Impacts on Children. *Australian Psychologist* 42 (1): 66–77.

Boshier, Peter. 2011. Family Law: Family Violence. *Family Matters* 88: 27–30.

Braaf, Rochelle, and Isobelle B. Meyering. 2011. *Seeking Security: Promoting Women's Economic Well-Being Following Domestic Violence*. Sydney: Australian Domestic and Family Violence Clearinghouse.

Busch, Ruth, and Neville Robertson. 2008. Innovative Approaches to Child Custody and Domestic Violence in New Zealand. *Journal of Aggression, Maltreatment and Trauma* 3 (1): 269–299.

Bond, Christine, and Samantha Jeffries. 2014. Similar Punishment? Comparing Sentencing Outcomes in Domestic and Non-Domestic Violence Cases. *British Journal of Criminology* 54 (5): 849–872.

Carroll-Lind, Janis, James Chapman, and Juliana Raskauskas. 2011. Children's Perceptions of Violence: The Nature, Extent and Impact of their Experiences. *Social Policy Journal of New Zealand* 37: 1–13.

Chan, Carrie. 2005. *Domestic Violence in Gay and Lesbian Relationships*. Sydney: Australian Domestic and Family Violence Clearinghouse.

Commonwealth of Australia. 2004. *The Cost of Domestic Violence to the Australian Economy*. Canberra: Commonwealth of Australia.

Council of Australian Governments. 2011. *Domestic Violence in Australia: An Overview of the Issues*. Canberra: Parliamentary Library.

Dickson, Sandra. 2016. *Building Rainbow Communities Free of Partner and Sexual Violence*. Auckland: The Hohou Te Rongo Kahukura.

Domestic Violence Intervention Project. 2011. The Duluth Model: Why It Works. http://www.theduluthmodel.org/pdf/PowerandControl.pdf.

Douglas, Heather. 2008. The Criminal Law's Response to Domestic Violence: What's Going On? *Sydney Law Review* 30: 439–469.

Elizabeth, Vivienne. 2015. From Domestic Violence to Coercive Control: Towards the Recognition of Oppressive Intimacy in the Family Court. *New Zealand Sociology* 30 (2): 26–43.

Fanslow, Janet, and Elizabeth Robinson. 2004. Violence against Women in New Zealand: Prevalence and Health Consequences. *The New Zealand Medical Journal* 117: 1–12.

Field, Rachael, Samantha Jeffries, Zoe Rathus, and Angela Lynch. 2016. Family Reports and Family Violence in Australian Family Law Proceedings: What Do We Know? *Journal of Judicial Administration* 25: 212–236.

Fergusson, David M., L. John Horwood, and Elizabeth Ridder. 2005. Partner Violence and Mental Health Outcomes in a New Zealand Birth Cohort. *Journal of Marriage and Family* 67 (5): 1103–1119.

Fitzgerald, Jackie, and Don Weatherburn. 2002. *Aboriginal Victimisation and Offending: The Picture from Police Records*. Sydney: BOCSAR.

Gainoni, Alexandra, and Tracey Cussen. 2014. *Same Sex Intimate Partner Homicide in Australia*. Canberra: AIC.

Hayes, Sharon, and Samantha Jeffries. 2013. Why Do They Keep Going Back? Exploring Women's Discursive Experiences of Intimate Partner Violence. *International Journal of Criminology and Sociology* 2: 57–71.

Hayes, Sharon, and Samantha Jeffries. 2015. *Romantic Terrorism: An Auto-Ethnography of Domestic Violence, Victimization and Survival*. London: Palgrave MacMillan.

Henaghan, Mark, and Ruth Ballantyne. 2010. Legal Responses to Violence in the Home in New Zealand. *University of New South Wales Law Journal* 33 (3): 870–894.

Henare, Heather, and Kiri Hannifin. 2011. The Cost of Domestic Violence. In *The Costs of Crime towards Fiscal Responsibility*, ed. Gabrielle Maxwell, 75–80. Wellington: VUW.

Herbert, Ruth, and Deborah MacKenzie. 2014. *The Way forward: An Integrated System for Intimate Partner Violence and Child Abuse and Neglect in New Zealand*. Wellington: The Impact Collective.

Hunter, Rosemary. 2006. Narratives of Domestic Violence. *Sydney Law Review* 28: 733–776.

Jeffries, Samantha. 2016. In the Best Interests of the Abuser: Coercive Control, Child Custody Proceedings and the 'Expert' Assessments That Guide Judicial Determinations. *Laws* 5: 14. doi:10.3390/laws5010014.

Jeffries, Samantha, and Matthew Ball. 2008. Male Same-Sex Intimate Partner Violence: A Descriptive Review and Call for Further Research. *Murdoch University Electronic Journal of Law* 15 (1): 134–179.

Jeffries, Samantha, Christine Bond, and Rachael Field. 2013. Australian Domestic Violence Protection Order Legislation: A Cross-Jurisdictional Analysis. *Current Issues in Criminal Justice* 25 (2): 627–644.

Jeffries, Samantha, Rachael Field, and Christine Bond. 2015. Protecting Australia's Children: A Cross-Jurisdictional Review of Domestic Violence Protection Order Legislation. *Psychiatry, Psychology and Law* 22 (6): 800–813.

Kay, Melissa, and Samantha Jeffries. 2010. Homophobia, Heteronormativism and Hegemonic Masculinity: Male Same-Sex Intimate Violence from the Perspective of Brisbane Service Providers. *Psychiatry, Psychology and Law* 17 (3): 412–423.

Kruger, Tāmati, Mereana Pitman, Di Grennell, Tahuaroa McDonald, Dennis Mariu, Alva Pōmare, Teina Mita, Matehaere Maihi, and Keri Lawson-Te Aho. 2004. *Transforming Whānau Violence: A Conceptual Framework: A Report from the Former Second Māori Taskforce on Whānau Violence*. Wellington: Second Māori Taskforce on Whānau Violence.

Larsen, Ann-Claire, and Marika Guggisberg. 2009. Police Officers, Women and Intimate Partner Violence: Giving Primacy to Social Context. *Australian Journal of Gender and Law* 1: 1–18.

Leonard, William, Anne Mitchell, Marianne Pitts, and Patel Sunil. 2008. *Coming forward: The Underreporting of Heterosexist Violence and Same Sex Partner Abuse in Victoria*. Melbourne: The Australian Research Centre in Sex, Health and Society.

McLeod, Shona. 2003. Working with Issues of Same Sex Domestic Violence. In *Innovative Approaches to Stopping Family Violence*, ed. Ken McMaster, and Arthur Wells, 57–72. Wellington: Steele Roberts.

Ministry of Health. 2016. Interpersonal Violence. http://www.health.govt.nz/our-work/populations/maori-health/tatau-kahukura-maori-health-statistics/nga-mana-hauora-tutohu-health-status-indicators/interpersonal-violence. Accessed 10 May.

Ministry of Justice. 2015. *2014 New Zealand Crime and Safety Survey: Main Findings*. Wellington: Ministry of Justice.

Ministry of Social Development. 2002. *Te Rito: New Zealand Family Violence Strategy*. Wellington: Ministry of Social Development.

Ministry of Social Development. 2007. *The Scale and Nature of Family Violence in New Zealand: A Review and Evaluation of Knowledge*. Wellington: Ministry of Social Development.

Ministry of Social Development. 2010. *Learning from Tragedy: Homicide within Families in New Zealand 2002–2006*. Wellington: Ministry of Social Development.

Morgan, Anthony, and Hannah Chadwick. 2009. *Key Issues in Domestic Violence*. Canberra: AIC.

New Zealand Family Violence Clearing House. 2016. Family Violence Policy and Legal Definitions. https://nzfvc.org.nz/content/family-violence-policy-and-legal-definitions. Accessed 10 May.

Newbold, Greg, and Jenny Cross. 2008. Domestic Violence and Pro-Arrest Policy. *Social Policy Journal of New Zealand* 33: 1–13.

NSW Domestic Violence Death Review Team. 2015a. *Domestic Violence Death Review Team Annual Report, 2013–2015*. Sydney: NSW Government.

NSW Domestic Violence Death Review Team. 2015b. *Domestic Violence Death Review Team Annual Report, 2012–2013*. Sydney: NSW Government.

Ogilvie, Emma. 2000. *Stalking: Legislative, Policing and Prosecution Patterns in Australia*. Canberra: AIC.

Olsen, Anna, and Ray Lovett. 2016. *Existing Knowledge, Practice and Responses to Violence against Women in Australian Indigenous Communities: State of Knowledge Paper*. Alexandria: Australia's National Research Organisation for Women's Safety.

MacDonald, Fiona. 2012. *Spotlight on Economic Abuse: A Literature and Policy Review*. Canberra: Good Shepherd Youth & Family Service and Kildonan Uniting Care.

Parkinson, Patrick, and Cathy Humphreys. 1998. Children Who Witness Domestic Violence: The Implications for Child Protection. *Child and Family Law Quarterly* 10: 147–160.

Phillips, Janet, and Penny Vandenbroek. 2015. *Domestic Violence and Sexual Violence in Australia: An Overview of the Issues*. Canberra: Department of Parliamentary Services.
Richards, Kelly. 2011. *Children's Exposure to Domestic Violence in Australia*. Canberra: AIC.
Robertson, Neville, Ruth Busch, Radha D'Souza Radha, Fiona Lam Sheung, Reynu Anand, Roma Balzer, Ariana Simpson, and Paina Dulcie. 2007. *Living on the Cutting Edge: Women's Experiences of Protection Orders*. Wellington: Ministry of Women's Affairs.
Rollings, Kiah, and Natalie Taylor. 2008. *Measuring Police Performance in Domestic and Family Violence*. Canberra: AIC.
Snively, Suzanne. 1995. The New Zealand Economic Cost of Family Violence. *Social Policy Journal of New Zealand* 4: 1–12.
State of Queensland. 1999. *The Aboriginal and Torres Strait Islander Women's Task Force on Violence Report*. Brisbane: State of Queensland.
State of Victoria 2003. *Victorian Indigenous Family Violence Task Force: Final Report*. Melbourne: Victorian Government.
Tomison, Adam. 2000. *Exploring Family Violence: Links between Child Maltreatment and Domestic Violence*. Melbourne: Australian Institute of Family Studies.
Te Puni Kōkiri. 2010. *Arotake Tūkino Whānau: Literature Review on Family Violence*. Wellington: Te Puni Kōkiri.
United Nations. 1993. *Declaration on the Elimination of Violence against Women*. United Nations: New York, NY.
Vickers, Lee. 1996. The Second Closest: Domestic Violence in Lesbian and Gay Relationships: A Western Australian Perspective. *Murdoch University Electronic Journal of Law* 3 (4). http://www.austlii.edu.au/au/journals/MurUEJL/1996/37.html.

Author Biographies

Samantha Jeffries is a Senior Lecturer in criminology at Griffith University. She has worked in governmental research and policy positions. Her research focusses on indigeneity, gender and sentencing, gender and incarceration in South East Asia, and domestic violence.

Sharon Hayes is Conjoint Fellow at the University of Newcastle. With over 25 years of experience, her research focusses on sexuality and gender studies, sex and crime, domestic violence, and social constructions of romantic love and abuse. Her research interests include the theoretical and moral underpinnings of intimate partner abuse.

14

Sexual Violence and Harassment in the Digital Era

Anastasia Powell and Nicola Henry

Accessible to literally millions of users throughout the globe, communications technologies have traversed and fused public and private life in radical ways. In particular, social networking sites, a vast array of user-generated content, and Internet-enabled smartphones produce ever-changing identities, communications, and encounters online. And yet, there is a dark side to the Internet, which has also become a breeding ground for both offensive and criminal conduct (Levmore and Nussbaum 2010). In this chapter, we focus on one such example: technology-facilitated sexual violence (henceforth TFSV) (Henry and Powell 2014, 2015a, b; 2016a, b; Powell 2010a; Powell and Henry 2014, 2016, 2017).

Our conceptualisation of TFSV includes five key dimensions where communications technologies are used in some way to facilitate or extend sexual and gender-based harm to victims: (1) technology enabled sexual assault; (2) image-based sexual abuse; (3) cyberstalking and criminal harassment; (4) online sexual harassment; and (5) gender-based harassment and hate speech (Henry and Powell 2014; Powell and Henry, 2017). In this chapter, we provide an overview of the nature and impacts of TFSV as well as of responses to TFSV. We explore the following key questions: How are

A. Powell (✉) · N. Henry
RMIT University, Melbourne, Australia
e-mail: anastasia.powell@rmit.edu.au

N. Henry
e-mail: nicola.henry@rmit.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_14

digital technologies being used to facilitate sexual violence and harassment, and how might the law appropriately respond? And what role can education and prevention strategies play to further reduce and address these harms?

Dimensions of Technology-facilitated Sexual Violence

Examining behaviours under the broad umbrella of TFSV facilitates an analysis of a set of related phenomena which form part of a continuum of sexual violence (Kelly 1998). Mapping these behaviours on a continuum enables the recognition of structural gender inequality and unequal power dynamics as key underlying factors of different forms of online sexual and gender-based violence (Henry and Powell 2014). This further allows connections to be made between so-called conventional and digital forms of sexual violence. While we argue that TFSV largely resembles more conventional forms of violence and, as such, digital technologies may be partly understood as tools of such abuse, we suggest that there are unique harms experienced by victims of TFSV. Such harms, we suggest, are not usefully understood through a dualistic notion of virtual as opposed to embodied harms since the effects are experienced by real victims with implications for their real lives (Henry and Powell 2015b). While we find it analytically useful to define and describe five different dimensions of TFSV, we also recognise that, in practice, the distinctions between these dimensions and between conventional and digital forms of sexual violence are often blurred and overlapping.

Technology Enabled Sexual Assault

Online technologies, such as mobile phones, email, social networking sites, chat rooms, and online dating sites, are increasingly being used by sexual predators as a means of procuring a rape or sexual assault. The perpetrator first befriends the victim online. They then meet in person and a sexual assault occurs either before or after they have dated or engaged in consensual acts. Currently, there is little empirical data on the prevalence of sexual assault using mobile phone apps, dating sites, and other online platforms, although their use to facilitate sexual crimes is an issue regularly identified by police, especially in relation to child exploitation (Powell and Henry 2016).

Sexual assault facilitated through digital technologies is regularly reported in the news media. For example, in 2012, the popular social networking site Skout suspended accounts of under 18-year-olds after a number of sexual assaults occurred in which adult perpetrators targeted underage victims (Perlroth 2012). Reports of sexual assault involving the location-based dating apps Tinder and Grindr are also relatively frequent. In particular, Tinder has frequently been under the spotlight for providing ways for sexual predators to contact and groom underage youths (Huynh 2015), as well as perpetrate numerous adult sexual assaults (Koubaridis 2014). In one Australian case, a woman met a man on an online dating website and swapped contact details, exchanged texts, and then met up at his flat after he had been at a work Christmas party. After chatting and drinking wine, the man grabbed the woman by the throat and then proceeded to rape her (Inman 2015). The man, who was also accused of attacking other women, appeared before the ACT Magistrates Court in January 2016. He was released on bail and is currently awaiting trial (Beech 2016). While Tinder has made changes to its terms of service in June 2016, such as discouraging users from connecting outside of the app and amending the minimum age of use to 18 years (see Tinder 2016), the nature of many sexual assaults, which is perpetrated by men known to the victim such as acquaintances or dates, suggests that such measures might not be adequate to address misuse of the app for targeting potential victims.

Sexual assault, whether facilitated by communications technology or otherwise, is already subject to criminal legislation in all common law countries. As such, the manner through which a perpetrator accesses and grooms both children and adult victims does not change the criminal nature of the contact offence itself. However, the mode of facilitation does lend itself to consideration of additional measures that social and dating services could be required to take, to more effectively address the risk of sexual assault. As reported in the media, perpetrators may use fake profiles either to misrepresent their age for the purposes of targeting young victims or in an attempt to avoid detection (Byrne 2015; Portelli 2015). These cases suggest that service providers could consider more rigorous approaches to confirm user identities linked to their profiles on such apps and sites, such as performing criminal background checks. Law enforcement personnel, educators, service providers, and others can also provide useful advice to online daters about safety measures when they meet people online.

Image-based Sexual Abuse

The non-consensual creation and distribution of sexual or intimate images are more commonly known as revenge pornography or non-consensual pornography (Citron and Franks 2014). These behaviours involve a person creating or distributing a nude or sexually explicit photograph or video of another person without their consent. It can also involve a person threatening to distribute intimate images of another person. For example, in one Australian case, a man threatened to distribute a topless photograph of his victim in order to coerce her to have sex with him after she told him she wanted to end their casual sexual relationship (Byrne 2015). Similarly, in the first social networking related conviction in Australia in 2012, a Sydney man received a six-month jail sentence after posting six nude images of his former girlfriend on Facebook (*Police v Ravshan Usmanov* [2011] NSWLC 40).

The term "revenge pornography" is inherently problematic as it fails to capture the range of perpetrator motivations which extend beyond revenge; for instance, perpetrators who distribute intimate images in order to obtain monetary benefits or boost social status, or perpetrators who use images as a means to exert further control over their partners or ex-partners (Henry and Powell 2015a). We suggest the term "image-based sexual abuse" is a more appropriate descriptor, encompassing a range of abusive behaviours involving the creation, distribution, or threat of distribution of nude or sexually explicit images (Henry and Powell 2016a).

Over and above the paradigmatic jilted ex-lover examples, image-based sexual abuse also encompasses the recording and the distribution of rape or sexual assault images (Powell 2010b). For example, in 2006, a group of teenage boys in a small Melbourne suburb filmed themselves urinating on a teenage girl, setting her hair on fire, throwing her clothes into a river, and sexually assaulting her. Afterwards, they made copies of the film and sold it as a DVD in a range of Melbourne schools for AUD 5 and later on Internet sites for up to AUD 60, with excerpts freely available on YouTube. In 2013, another high-profile case sparked national debate in New Zealand and attracted widespread international attention, involving a group of young Auckland men who allegedly intoxicated underage girls, gang raped them, and took photographs and videos of the rapes. The men, calling themselves the Roast Busters, then boasted about their exploits on a Facebook page that remained active for 2 years before being shut down (Powell and Henry 2014).

Image-based sexual abuse also involves the covert filming and distribution of an otherwise consensual sexual encounter. In what has become problematically known as the Australian Defence Force Academy Skype Scandal, two male cadets secretly broadcast consensual sex with a female cadet via Skype so that several of their peers could watch from another room. Both men were charged and convicted under the Commonwealth telecommunications legislation, and one was also charged with an act of indecency. Although the telecommunications and indecency offences attract 3- and 5-year maximum prison sentences, respectively, both offenders received 12-month good behaviour orders (Knaus and Inman 2013). While the convictions recognise that the non-consensual broadcasting of the sexual encounter was offensive and indecent, they do not adequately acknowledge the harm experienced by the victim. Furthermore, this case raises questions about whether the consent to the sexual encounter was nullified by the deception involved in broadcasting without consent. This is not dissimilar to other forms of sexual activity by deception cases in Australia and internationally, where convictions for rape have been successful despite the original consent of the victim to the sex act itself (Crowe 2011, 2014; Syrota 1995).

Finally, another form of image-based sexual abuse not captured by the narrow "revenge pornography" label concerns what is popularly known as "sextortion". Sextortion refers to where perpetrators obtain nude or sexually explicit images from their victims through requests, direct threats, or computer hacking, and who then threaten to distribute the images in order to demand the victim sends further photographs or videos. In one US case, a woman opened up an email from an unknown sender to find sexually explicit images of herself, as well as information about her job, partner, and children (Wittes et al. 2016). The perpetrator told the woman that if she did not send him a porn video of herself within one day, the images he had in his possession would be published. The perpetrator turned out to be a man by the name of Luis Mijangos, who had multiple screen identities. He was extorting over 200 women and teenage girls around the world, either masquerading as their partners or tricking them into downloading malware onto their computers so he could access all of their files, see everything they typed on their keyboards, and turn on any webcam and microphone attached to the computer without their knowledge. US federal investigators found more than 15,000 webcam captures, 900 audio recordings, and 13,000 screen captures on Mijangos' computer. In 2010, he was sentenced to 6 years imprisonment for computer hacking and wiretapping (Wittes et al. 2016).

Existing criminal offences, such as hacking, extortion, and indecency, seem ill-suited to capture the types of harms enacted on victims of image-based

sexual abuse. In response to the increasing prevalence of image-based sexual abuse, as well the growing appreciation of the significant impacts on victims, a number of jurisdictions have sought to address the gaps in law by introducing specific legislation to criminalise the non-consensual distribution of intimate or sexually explicit images. In 2014, Victoria amended the *Summary Offences Act 1966 (Vic)* in order to criminalise the malicious distribution or threat of distribution of intimate images of another person without their consent (*Crimes Amendment (Sexual Offences and Other Matters) Act 2014 (Vic)*). While broader relevant offences exist at the Commonwealth level—under the telecommunications legislation, it is an offence to use a carriage service to menace, harass, or cause offence—this law has rarely been used in relation to these types of behaviours and, to date, no specific criminal offence is in place at the federal level in Australia. Other states and territories likewise do not have specific legislation in place to respond to this growing phenomenon. As such, there is a need for greater clarity and consistency in laws addressing these harms across all Australian jurisdictions (Henry and Powell 2016b). Such legislation should, however, go beyond that of distributing images and also encapsulate the creation and threat of distribution of intimate images.

Cyberstalking and Criminal Harassment

Cyberstalking is commonly defined as an extension of conventional stalking using electronic means (Citron 2014; Reyns et al. 2012; Tokunaga and Aune 2015). Like offline stalking, cyberstalking typically involves behaviours that are unwanted, repetitive, intrusive, threatening, and harassing (Dreßing et al. 2014). While phone calls, letters, emails, and text messages continue to be used to engage in harassment or written and verbal abuse, the advent of social media and online communications has presented new tools and methods for motivated perpetrators (Southworth et al. 2007; Spitzberg and Hoobler 2002; Woodlock 2013). For example, keeping track of a partner's or ex-partner's daily movements and communications as a means of exercising control is made easier with a combination of GPS-enabled smartphones and specialist software applications for monitoring emails, messages, and the victim's Internet browser history (Southworth et al. 2007).

Laws criminalising stalking, whether in physical space or by electronic means, often require a course of conduct involving repeated behaviours that are intrusive and unwanted and that threaten to harm or cause fear of harm to victims (Spitzberg and Hoobler 2002). However, these requirements can be problematic in relation to cyberstalking. For example, single or one-off

actions, such as posting a sexually explicit image without consent, alongside identifying information and an invitation to others to contact, harass, or rape the victim, may cause considerable apprehension or fear in a victim, yet may fall short of constituting a repeated course of conduct. A one-off action from one perpetrator may encourage harassment from others, but may likewise fall short of a repeated course of conduct. Moreover, a repeated course of invasive conduct—such as repeatedly posting offensive, malicious, or personal information about a person—might be humiliating, shameful, or harassing but might not cause fear or apprehension. A key challenge concerns the barriers to reporting for victims, including that they may not know the identity of the online stalker. In addition, police may treat cyberstalking as a less serious threat than conventional forms of stalking.

Online Sexual Harassment

Online sexual harassment includes unwanted sexual remarks; humiliating comments in chat rooms, forums, and on social media sites; targeted "flaming"[1]; and intentionally emailing or posting erotic, pornographic, or sexually violent images and videos (Barak 2005). One emerging form of online sexual harassment concerns that of cyberflashing, whereby recipients are sent unsolicited sexual images—colloquially referred to as "dick pics"—with the effect of causing victims to feel offended, intimidated, harassed, and fearful (Bell 2015). One UK researcher, for instance, refers to an example from one of her research participants, who reported that after she rejected a man on an online dating site, she received a message from him with a picture of his erection while he was holding a kitchen knife (Thompson 2016).

Like the other forms of digital sexual violence discussed thus far, there are gaps in terms of law's ability to respond to online sexual harassment. In Australia, sexual harassment is defined as "unwanted or unwelcome sexual behaviour, which makes a person feel offended, humiliated or intimidated" (Australian Human Rights Commission 2012, 1). It is unlawful under Australian anti-discrimination laws, for instance, for a person to engage in unwelcome conduct of a sexual nature, or make an unwelcome sexual advance, or unwelcome request for sexual favours (s 28A *Sex Discrimination Act 1984 (Cth)*). Unlike stalking laws, there does not need to be a repeated course of conduct for the provisions to apply, yet the sexual harassment must occur in a specified area of public life, such as employment, education, the provision of goods and services, and accommodation. Digital or online sexual harassment, however, potentially involves a much wider range of harassing

behaviours in a variety of public and private contexts, including obtrusive relational pursuit, cyberbullying, sexual pressure or coercion, as well as unsolicited and unwanted sexual images. While online sexual harassment may be unlawful when perpetrated in the context of the workplace, many acts simply fall outside the scope of federal, state, and territory sexual harassment legislation because of the "private" nature of the harassment. However, in some circumstances, online sexual harassment may constitute a form of criminal harassment. For example, in Australia, under federal telecommunications legislation, it is a criminal offence to use a carriage service to menace, harass, or offend another person.

As we further demonstrate below, gender-based harassment and hate speech, as further examples of online sexual harassment, also escape criminal sanction or civil remedies in the absence of specific legislation. The lack of legislation itself can present particular challenges for law enforcement personnel in addition to the challenges concerning the investigation and jurisdiction of transnational crimes that are all too common in cybercrime more generally (Holt and Bossler 2014).

Gender-based Harassment and Hate Speech

According to psychologist Azy Barak (2005, 78), gender-based harassment includes "unwelcome verbal and visual comments and remarks that insult individuals because of their gender … [such as] posting pornographic pictures in public or in places where they deliberately insult, telling chauvinistic jokes, and making gender-related degrading remarks". Gender-based harassment can take place in online gaming, chat rooms and forums, and via email and social media sites. It includes—but is not limited to—gender-based hate speech, rape threats, reputation harming lies, impersonation, false accusations of sexual violence, doxing,[2] and virtual or simulated rape. Such behaviours may be perpetrated both by individuals acting alone and by groups of individuals acting collectively in a more organised fashion (Citron 2014). Some scholars have gone further to identify the online harassment and abuse directed at women, in particular, variously describing is as "gendertrolling" (Mantilla 2013), "misogynist e-bile" (Jane 2015), and sexist or gender-based hate speech (Lillian 2007).

Internationally, several high-profile cases illustrate the nature of gender-based harassment including UK journalist Caroline Criado-Perez who was bombarded with anonymous and abusive tweets after a 2013 campaign to have Jane Austen's image on Britain's new GBP 10 banknote; Anita

Sarkeesian who received rape and death threats and was subjected to simulated violence after crowdfunding a video series on sexism in gaming in 2012; and Zoe Quinn and Brianna Wu who were targeted with online abuse, and rape and death threats in the Gamergate controversy in 2014. These are but a few examples of the types of gender-based harassment and hate speech being perpetrated against women in the online environment.

Relatedly, digital technologies are also used for the further denigration of women and girls. For example, a number of secret men-only Facebook pages have been set up to denigrate women and girls. One recent example is the Melbourne Men's Society that had 7000 members, and another 4500 subscribers awaiting approval, prior to it being taken down. This group was started in order to rival an all-girls Facebook group, known as the Melbourne Gal Pals (MGP). It was set up six months earlier for members to share make-up tips and talk about the city (Esposito 2016). The members of the Melbourne Men's Society posted non-consensual nude and sexual images of MGP members and other women (Mannix and Zielinski 2016), as well as sexist and derogatory comments about women who had requested their images to be removed. Again, this is just but one example of gender-based harassment online. Although Facebook has updated its community standards on nudity, hate speech, self-harm, bullying, harassment, sexual violence, criminal activity, dangerous organisations, violence, and other graphic content, the sheer proliferation of online groups with rape-supportive and misogynist attitudes and behaviours demonstrates the extent of the problem and the difficulties in policing it, particularly in the absence of criminal or civil law sanctions.

Currently in Australia, while racial vilification is unlawful under federal anti-discrimination legislation, it is not unlawful to participate in gender-based hate speech, either offline or online (Weston-Scheuber 2012). Like the other dimensions discussed in this chapter, the laws have not kept pace. Furthermore, similar to image-based sexual exploitation and cyberstalking, online gender-based harassment is often not treated seriously. As Jane (2015) notes, "gendered e-bile is frequently trivialised, mocked, dismissed as a personal matter and framed as legally intractable". For example, in 2015, two women went to their local Sydney police station after receiving online rape threats, but police did not know how to prosecute the offender because the abuse was perpetrated online (Stewart 2016). The perpetrator, Zane Alchin, was later charged under the Commonwealth legislation for using a carriage service to menace, harass, or cause offence. In July 2016, he pleaded guilty and was given a 12-month good behaviour bond.

Responding to and Preventing TFSV

The harms described in this chapter are situated within a broader social and cultural context of gender inequality and discrimination. Digital abuse, harassment, and violence are thus simultaneously both extensions of conventional forms of violence, and at the same time, they produce new types of harms that must be addressed using a variety of legal and non-legal strategies.

We propose that, in addressing this complex social phenomenon, responses to TFSV must engage in proactive strategies across the micro (individual), meso (organisational), and macro (societal) levels (Henry and Powell 2014). There are, of course, situations in which victim-focussed strategies for reducing or preventing the recurrence of TFSV are necessary and appropriate. For example, specialised victim support services routinely provide safety advice for women who are at risk of violence via new technologies. However, in a context in which participation in online spaces—including social media—is an increasing core aspect of our social lives, advice to victims to simply turn off the computer or deactivate their social media account hinders women's rights to full and equal participation in society as digital citizens.

Therefore, at the micro level, we advocate for strategies aimed at reducing offender motivations which could include adapting existing sexual violence and respectful relationships education to focus on technology-mediated forms of sexual violence and harassment. Moreover, following Citron and Norton (2011) and Frankenfeld (1992), we suggest education-based initiatives be directed at fostering *digital citizenship*. In using this term, we refer to individual and organisational commitment to protect Internet users' "capability to partake freely in the internet's diverse political, social, economic, and cultural opportunities, which informs and facilitates their civic engagement" (Citron and Norton 2011, 1440). Not unlike a bystander approach to sexual violence prevention (Cares et al. 2014), a commitment to digital citizenship means not only to commit to being an ethical digital citizen oneself but also stepping up to intervene when others' free engagement in online life is threatened. At the micro level, this may include documenting and reporting hateful and harassing content or participating in counter-speech (Citron and Norton 2011).

Frameworks for addressing and preventing TFSV should not, however, be exclusively targeted to the individual but also be directed at the meso level. For example, it is important that adequate training and resources for police be provided to respond more effectively to reports of digital violence and harassment and to take these emerging harms more seriously. Internet

intermediaries also play an important role in combatting hate speech and harassing content in online communities (Citron and Norton 2011) and removing nude or sexually explicit images that have been distributed without consent. Terms of use that ban hateful, offensive, and harassing content should be clearly defined, transparently communicated, and effectively enforced by service providers. In addition, while online anonymity has been heralded as a key feature of Internet freedom, there is cause to suggest that some service providers—such as online dating services—should verify the identity of their members (Eskola 2012). Such measures both reduce the presumed licence of potential offenders to perpetrate sexually based harms without scrutiny or detection and assist in law enforcement investigations should an offender use the service to procure a sexual assault.

Finally, at the macro level, legislative frameworks that take into account the harm of TFSV can ensure accountability, provide redress and recognition for victims, and play an expressive role in condemning such behaviours. Legal measures, however, should not be seen as the sole remedy to this problem. Other society-wide strategies must also be implemented. These include the development of support resources for victims of TFSV, such as telephone hotlines, websites, and print materials; as well as the development of prevention strategies such as public education campaigns that reach potential offenders in the school and workplace environment, or through traditional and digital media. The range of proposed primary prevention strategies for addressing gender-based violence more generally must be cognizant of the problem of technology in the perpetration of both domestic and sexual violence. These prevention strategies need to address gender inequality and discrimination as part of the problem of gender-based violence, regardless of what role technology might play. Attention to harmful victim-blaming attitudes and beliefs and a redirection of responsibility onto the perpetrators of TFSV and other forms of gendered violence are part of the cultural change that is needed to support victims and to ultimately prevent these harms before they occur.

Conclusion

Technology-facilitated sexual violence is a serious and emerging issue. In response to the various challenges posed by new technologies, we advocate a number of measures to tackle and address TFSV. The first concerns recognition within the community of the serious and real impacts of digital violence, regardless of the context. Such impacts might include fears for physical

safety, social and public humiliation and embarrassment, prolonged or protracted post-traumatic stress disorder, loss of earnings, employment termination, suicidal ideation, the breakdown of relationships with others, among a whole range of other equally damaging impacts. While many of these impacts are evident in more conventional forms of sexual violence and domestic violence, it is important to recognise the unique harms of TFSV (Henry and Powell 2015b). Second, it is important to introduce clarity and consistency in law reform efforts to address these emerging digital behaviours. Although the creation of new criminal offences or civil wrongs should not be rushed into, new criminal laws do play an important role in communicating the harms of digital violence, and lawmakers can learn from lessons emerging cross-nationally to see how to best respond. Third, police training and resources are vital not only to charge and prosecute perpetrators for these varied offences—including preserving vital evidence through the use of screenshots, mobile phones, and computer forensics—but also to recognise the serious impacts of TFSV as well as provide information and referral support to victims who come forward. Finally, above all, there is an urgent need for prevention measures beyond the law that raise awareness of the problem, encourage pro-social bystander behaviours, and ultimately promote an ethical digital citizenship (Henry and Powell 2014).

Notes

1. 'Flaming' refers to the hostile or aggressive communication of strong emotions in online spaces. While not itself a gendered phenomenon per se, scholars have long noted the often sexualized and gendered character of flaming directed by men towards women (see Herring 2004; Morahan-Martin 2000).
2. 'Doxing' refers to posting identifying or private information.

References

Australian Human Rights Commission. 2012. *Working without Fear: Results of the 2012 Sexual Harassment National Telephone Survey*. Canberra: Australian Human Rights Commission.

Barak, Azy. 2005. Sexual Harassment on the Internet. *Social Science Computer Review* 23 (1): 77–92.

Beech, Alexandra. 2016. Canberra Public Servant Adrian Nathaniel Andrews Sexually Assaulted Women He Met on Dating Sites, Court Told. *ABC News,* January 13.

Bell, Sarah. 2015. Police Investigate 'First Cyber-Flashing' Case. *BBC News,* August 13.

Byrne, Elizabeth. 2015. University Student Billy Tamawiwy on Trial Accused of Rape after Establishing Fake Facebook Profile. *ABC News*, September 21.

Cares, Alison C., Mary M. Moynihan, and Victoria L. Banyard. 2014. Taking Stock of Bystander Programmes: Changing Attitudes and Behaviours Towards Sexual Violence. In *Preventing Sexual Violence: Interdisciplinary Approaches to Overcoming a Rape Culture*, eds. Nicola Henry, and Anastasia Powell, 170–188. Basingstoke: Palgrave Macmillan.

Citron, Danielle K. 2014. *Hate Crimes in Cyberspace*. Cambridge, MA: Harvard University Press.

Citron, Danielle K., and Mary Anne Franks. 2014. Criminalizing Revenge Porn. *Wake Forest Law Review* 49 (2): 345–391.

Citron, Danielle K., and Helen L. Norton. 2011. Intermediaries and Hate Speech: Fostering Digital Citizenship for Our Information Age. *Boston University Law Review* 91: 1435–1484.

Crowe, Jonathan. 2011. Consent, Power and Mistake of Fact in Queensland Rape Law. *Bond Law Review* 23 (1): 21–40.

Crowe, Jonathan. 2014. Fraud and Consent in Australian Rape Law. *Criminal Law Journal* 38 (4): 236–249.

Dreßing, Harald, Josef Bailer, Anne Anders, Henriette Wagner, and Christine Gallas. 2014. Cyberstalking in a Large Sample of Social Network Users: Prevalence, Characteristics, and Impact upon Victims. *Cyberpsychology, Behavior, and Social Networking* 17: 61–67.

Eskola, Marko. 2012. From Risk Society to Network Society: Preventing Cybercrimes in the 21st Century. *Journal of Applied Security Research* 7 (1): 122–150.

Esposito, Brad. 2016. Facebook is Struggling to Control Groups of Men Sharing Revenge Porn. *BuzzFeed News,* April 14.

Frankenfeld, Philip J. 1992. Technological Citizenship: A Normative Framework for Risk Studies. *Science, Technology and Human Values* 17 (4): 459–484.

Herring, Susan. 2004. Computer-Mediated Communication. In *Language and Woman's Place: Text and Commentaries*, ed. Robin Tolmach Lakoff, 216–222. New York, NY: Oxford University Press.

Henry, Nicola, and Anastasia Powell. 2014. The Dark Side of the Virtual World: Towards a Digital Sexual Ethics. In *Preventing Sexual Violence: Interdisciplinary Approaches to Overcoming a Rape Culture*, eds. Nicola Henry, and Anastasia Powell, 84–104. Basingstoke: Palgrave Macmillan.

Henry, Nicola, and Anastasia Powell. 2015a. Beyond the 'Sext': Technology-Facilitated Sexual Violence and Harassment against Adult Women. *Australian and New Zealand Journal of Criminology* 48 (1): 104–118.

Henry, Nicola, and Anastasia Powell. 2015b. Embodied Harms: Gender, Shame, and Technology-Facilitated Sexual Violence. *Violence Against Women* 21 (6): 758–779.

Henry, Nicola, and Anastasia Powell. 2016a. Technology-Facilitated Sexual Violence: A Literature Review of Empirical Research. *Trauma, Violence, and Abuse*. doi:10.1177/1524838016650189.

Henry, Nicola, and Anastasia Powell. 2016b. Sexual Violence in the Digital Age: The Scope and Limits of Criminal Law. *Social and Legal Studies* 25 (4): 387–418.

Holt, Thomas J., and Adam M. Bossler. 2014. An Assessment of the Current State of Cybercrime Scholarship. *Deviant Behavior* 35 (1): 20–40.

Huynh, Terence. 2015. Tinder Experiment Reveals Online Predators are Using the App to Meet Underage Girls. *Tech Geek*, January 5.

Inman, Michael. 2015. Dating Site Hookup Allegedly Led to Violent Sexual Assault, Court Hears. *The Canberra Times,* December 17.

Jane, Emma. 2015. Rape Threats and Cyberhate? Vote No to the New Digital Divide. *The Conversation,* June 22.

Kelly, Liz. 1998. *Surviving Sexual Violence*. Cambridge: Polity.

Knaus, Christopher, and Michael Inman. 2013. ADFA Skype Scandal Cadets Sentenced, Avoid Jail. *The Canberra Times*, October 23.

Koubaridis, Andrew. 2014. Tourist Sexually Assaulted in Sydney by Several Men after Meeting on Tinder. *News.com.au,* October 8.

Levmore, Saul, and Martha Nussbaum. 2010. *The Offensive Internet: Speech, Privacy and Reputation*. Cambridge: Harvard University Press.

Lillian, Donna L. 2007. A Thorn by Any Other Name: Sexist Discourse as Hate Speech. *Discourse and Society* 18 (6): 719–740.

Mannix, Liam, and Caroline Zielinski. 2016. Teenage Girls Traumatised by Revenge-Porn Network Aimed at 'Teaching Us a Lesson'. *Sydney Morning Herald*, April 19.

Mantilla, Karla. 2013. Gendertrolling: Misogyny Adapts to New Media. *Feminist Studies* 39 (2): 563–570.

Morahan-Martin, Janet. 2000. Women and the Internet: Promise and Perils. *CyberPsychology and Behavior* 3 (5): 683–691.

Perlroth, Nicole. 2012. After Rapes Involving Children, Skout, a Flirting App, Bans Minors. *New York Times,* June 12.

Portelli, Emily. 2015. Judge Warns Online Daters after Man Pretended to Be Blond to Con Woman into Sex. *Herald Sun*, February 25.

Powell, Anastasia. 2010a. Technology-Facilitated Sexual Violence: New Harms or 'New' Ways for Committing 'Old' Crimes. Paper presented at The Australian and New Zealand Critical Criminology Conference, July 1–2, in Sydney.

Powell, Anastasia. 2010b. Configuring Consent: Emerging Technologies, Unauthorized Sexual Images and Sexual Assault. *Australian and New Zealand Journal of Criminology* 43 (1): 76–90.

Powell, Anastasia, and Nicola Henry. 2014. Blurred Lines? Responding to 'Sexting' and Gender-Based Violence among Young People. *Children Australia* 39: 119–124.

Powell, Anastasia, and Nicola Henry. 2016. Policing Technology Facilitated Sexual Violence. *Policing and Society*. doi:10.1080/10439463.2016.1154964.

Powell, Anastasia, and Henry, Nicola. 2017. *Sexual Violence in a Digital Age*. Basingstoke: Palgrave Macmillan.

Reyns, Bradford W., Billy Henson, and Bonnie S. Fisher. 2012. Stalking in the twilight zone: Extent of cyberstalking victimization and offending among college students. *Deviant Behavior* 33 (1): 1–25.

Southworth, Cynthia, Jerry Finn, Dawson Shawndell, Cynthia Fraser, and Sarah Tucker. 2007. Intimate Partner Violence, Technology, and Stalking. *Violence Against Women* 13 (8): 842–856.

Spitzberg, Brian H., and Gregory Hoobler. 2002. Cyberstalking and the Technologies of Interpersonal Terrorism. *New Media and Society* 4 (1): 71–92.

Stewart, Erin. 2016. Why It's So Hard for Women to Get Justice for Online Abuse. *ABC News,* March 1.

Syrota, George. 1995. Rape: When Does Fraud Vitiate Consent? *University of Western Australia Law Review* 25: 334–345.

Tinder. 2016. Terms of Use. https://www.gotinder.com/terms. Accessed June 16.

Thompson, Laura. 2016. #DickPics Are No Joke: Cyber-Flashing, Misogyny and Online Dating. *The Conversation,* February 3.

Tokunaga, Robert S., and Krystyna S. Aune. 2015. Cyber-defense: A taxonomy of tactics for managing cyberstalking. *Journal of interpersonal violence,* online ahead of print.

Weston-Scheuber, Kylie. 2012. Gender and the Prohibition of Hate Speech. *Queensland University of Technology Law and Justice Journal* 12 (2): 132–150.

Wittes, Benjamin, Cody Poplin, Quinta Jurecic, and Clara Spera. 2016. *Sextortion: Cybersecurity, Teenagers, and Remote Sexual Assault*. Washington, DC: The Brookings Institution.

Woodlock, Delanie. 2013. The Rise of Technology-Based Stalking. *Domestic Violence Resource Centre Victoria Advocate* 2: 4–7.

Author Biographies

Anastasia Powell is Senior Research and ARC DECRA Fellow in Justice & Legal Studies at RMIT University. Her research specialises in policy and prevention concerning violence against women, including the books: *Sex, Power and Consent* (Cambridge 2010) and *Sexual Violence in a Digital Age* (Palgrave Macmillan 2017).

Nicola Henry is Vice Chancellor's Principal Research Fellow in the Centre for Global Research at RMIT University. Her research focusses on the prevalence and nature of sexual violence, and legal and non-legal responses to these harms. She has published widely in this field, including the books: *War and Rape: Law, Memory and Justice* (Routledge 2011) and *Sexual Violence in a Digital Age* (Palgrave Macmillan 2017).

15

Cybercrime in Australia

Roderic Broadhurst

The Internet's highly decentralised structure provides a transformative level of global connectivity and communication, but it also provides anonymity, a characteristic critical to the success of illegal activities. Cybercrime has evolved rapidly in parallel with the spread of the Internet, while e-commerce quickened the evolution of deep-web illicit markets such as the Silk Road online drug market (Martin 2014). The rapid evolution of cybercrime demonstrates the dictum that "crime follows opportunity" (Grabosky and Smith 1998, 13). As the scope of connectivity transcends the Internet of Things (IoT)—a network of electronic devices and their host structures—to the Internet of Everything, so will cybercrime. Vast numbers of 'software cum crimeware' tinkerers distribute a wide range of malicious content, often combining deceptive social engineering, hosting of phishing sites, and identity theft with organisational efficiency (Smith and Hutchings 2014), targeting the everyday Internet user.

The Australian Cyber Security Centre's 2015 Threat Report (ACSC 2015) highlights the emergence of cybercrime-as-a-service, introducing new business models to cybercriminals, and increasing their spread and sophistication. The FBI Cybercrime Division prosecutor Gavin Corn (Global Initiative 2014) observed enhanced networking among criminal groups: "Cybercrime wasn't even a part of organized crime before, and now it's the epitome of it" including a rapid uptake of encrypted and anonymised technology such as

R. Broadhurst (✉)
Criminology, Australian National University, Canberra, Australia
e-mail: roderic.broadhurst@anu.edu.au

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_15

re-routing systems that hide the location of Internet connections and servers allowing "anonymous payment systems like Bitcoin".

This chapter briefly reports the prevalence, definitions and scope of cybercrime including the dual role of 'weaponised' malware. It also outlines the history and role of hackers as well as online criminal networks in the dissemination of malicious software. Various forms of cybercrime are described including the use of deception or social engineering in the exploitation of computer systems. The importance of international cooperation in the suppression of cybercrime is illustrated by the coordination required in response to the proliferation of child exploitation materials (CEM). This chapter concludes with a summary of the challenges for law enforcement and the pressing need for broad partnerships in the prevention of cybercrime.

Prevalence and Scope of Cybercrime

As at November 2015, there were about 21 million Australian Internet users and 14 million Australian Facebook users, that is, 93 and 73% of the total population, respectively (Miniwatts 2015). The IoT, combined with more businesses using social media, will increase the range and scale of cybercrime threat vectors, as new vulnerabilities in social network services arise.

The Australian Cybercrime Online Reporting Network (ACORN) recorded 39,491 cybercrime incidents in 2015, its first year of operation (ACORN 2016). AFP Commander David McLean reported that, in one month alone, over 3500 people had contacted police about perceived cybercrimes. He added that these cyber threats were "typically classified as being state-sponsored or criminally-motivated" (Duffy 2015). Such incidents appear to be on the rise. Fraud and scams were the most reported type of cybercrime incidents reported to police. About two in five victims were aged between 20 and 40. Social Network Sites (SNS) were a significant vector for cybercrime offences (ACSC 2015). Annual losses were estimated to be about AUD 1 billion, mostly from credit card fraud and scams many of which originated online. Data from the ABS (2016) Personal Fraud Survey also confirm these trends, with 1.6 million Australians reportedly being a victim of personal fraud and 126,300 being victims of identity theft. Just over half of the Australian population aged 15 and over were exposed to at least one scam, and 4% of these were victimised, either due to supplying personal information, money, or both.

The estimated annual cost of global cybercrime is USD 445 billion (McAfee 2014). The most common intrusion techniques were deception and social engineering where cybercriminals trick victims into granting access to accounts. SNS users appear to take major risks when using social media, suggesting that they are unaware of the potential threats and the importance of securing their data. Online predators often collect sensitive information from SNS profiles and use the information to launch an attack. SNS users sometimes post sensitive information such as home addresses and holiday plans without understanding associated security threats.

Alarming as these estimates may appear, these events are often misleadingly described as 'attacks' by the cybersecurity industry. Many so-called attacks are SPAM-borne attempts at controlling a computer or deceiving a user. This offender–victim engagement can be described as "low value, high volume" crime (Alazab and Broadhurst 2016) usually devoid of physical harm.

However, the emergence of specific and carefully targeted forms of computer crime such as ransomware and sextortion can devastate victims. Ransomware is a common form of cybercrime undertaken by organised crime groups. The method deploys malware that covertly installs on victims' computers, encrypts their crucial private data, and then 'offers' to help fix the 'problem' after payment of a recovery or decryption service fee. Common targets are medical clinic patient records, trade secrets such as an engineering plan, and small business client lists. Offenders often use untraceable crypto-currencies such as Bitcoin for the transfer of funds. Sextortion involves threats to reveal embarrassing and sexual implicit images of the victim unless money is transferred to an overseas account.

Cybercrime and Cyberwarfare

The quickening of the interaction between cybercrime and cyber-war-like activities has also elevated cybercrime and cybersecurity as one of the key pillars of national security in the digital age. In 2016, Australian cybersecurity policy has emphasised the need for enhanced training in cyberdefence and security, infrastructure protection, and partnership with private industry (Commonwealth of Australia 2016).

Cybercrime activities also overlap with espionage cyberwarfare and cyberterrorism, severely disrupting nation states and corporations. Cyberterrorists might raise funds via scams, and states might purchase zero-day exploits to deploy during a cyberattack on another state or a crime group. The blurring of the boundaries between crime, war, and violent extremism by state and

non-state actors is a key factor in the stimulation of more sophisticated malware. These militarised versions can be dispersed into 'the wild' and enhance the malware used by criminals to intrude and to evade detection. Cybercrime has also adversely affected industrial supervisory control and data acquisition (SCADA) systems. For example, in 2010 the nuclear facility in Nantz, Iran was the subject of computer worm Stuxnet, which was apparently designed by the Israeli and US governments to exploit zero-day vulnerabilities that allowed interference with the performance of the plant's centrifuges, a crucial element in the enrichment of uranium needed in the production of nuclear arms (Sanger 2012).

These espionage-like uses of malicious software are designed to take control of computers, insert spyware, and interfere with critical infrastructure. They are crucial elements in the 'fifth domain' of modern war and conflict. They include espionage and counter-espionage, for example, the Chinese army-sponsored intrusions and theft of sensitive files owned by US defence contractors (McWorther 2013). They also include service interruptions called a Distributed Denial of Service (DDOS) on targeted Internet sites. DDOS against a state occurred in Estonia when Internet communications were rendered ineffective due to the flood of email and other traffic apparently originating from Russia (Herzog 2011). Targeting oil and energy companies, the virus Shamoon indiscriminately destroyed data on the computers at Saudi Arabia's state-owned oil company and affected business operations for several weeks (Nakashima 2012).

Definitions of Cybercrime

Cybercrimes come in a variety of forms, and there is no standard way of categorising them. Indeed, a single activity may entail a number of distinct offences across a range of offence categories and differentiate those crimes in which the computer is (a) the *instrument* used to commit the offence; (b) the *target* of the offence; or (c) *incidental* to the offence (US Department of Justice 2015, 2016).

Legal definitions have also applied these basic distinctions to the types of cyberactivity criminalised. These are often applied in conjunction with deception, dishonesty, and theft offences as illustrated by the *Criminal Code Act 1995 (Cth)* and more or less replicated in other states (Urbas 2015). Three sections of the *Criminal Code* cover the typical scope of offences: (1) unauthorised access to, or modification of, restricted data;

(2) unauthorised impairment of electronic communication; and (3) using a carriage service to menace, harass, or cause offence.

Similarly, the US *Computer Fraud and Abuse Act 1986* (CFAA) makes it illegal to knowingly cause the transmission of a programme, information, code, or command and thereby intentionally cause damage to a protected computer, intentionally or recklessly access a protected computer without authorisation and thereby cause damage or loss. The CFAA also makes it illegal to knowingly sell, buy, or trade passwords or other information used to access a computer with the intent to defraud the victims. Because the CFAA is a federal statute, the law applies to computers involved in interstate or foreign commerce or operated by or for the federal government. Most countries have now criminalised access to computers and the spreading of malware, with some prohibiting their creation and supply, such as the UK *Computer Misuse Act*.

Agencies that specifically combat malware are now commonplace and operate as Computer Emergency Response Teams (CERTs) or Computer Security Incident Response Teams that seek to coordinate national responses to vulnerabilities and wide-scale computer attacks and provide information on new threats to business, government, and universities.

Although there is no definitive list of what constitutes cybercrime or computer-related crime, a consensus has emerged about what falls within the scope of the offences that occur in cyberspace (Broadhurst and Grabosky 2005). These are as follows: telecommunications theft and illegal interception; piracy and copyright theft; cyberstalking, cyberbullying, and harassment; electronic money laundering and tax evasion; electronic vandalism; cyberterrorism; denial of service; extortion; sales and investment fraud; forgery; electronic funds transfer fraud and counterfeiting; content crime, that is, offensive materials; espionage; and resource theft, namely illegal use of personal computers or other digital devices.

Theft of personal and sensitive information, so-called identity theft, entails the use of a stolen, manipulated, or fabricated identity to facilitate the commission of a crime. It is an important predicate offence that can set in motion more serious offences such as credit card fraud and banking theft.

Malware

Malicious software or 'malware' is a term used to capture the range of programmes used to automate attacks against computer systems. The malware can take the form of viruses, worms, trojans, rootkits, adware, and spyware.[1]

They are costly for victims to remove and repair. Malware utilises 'exploits' that occur in security flaws and vulnerabilities to automate the process of intrusion into systems. The execution of the exploit activates a payload—sometimes unintentionally downloaded by a deceived victim—that enables system changes and allows control through the malware. Malware is designed and commonly used to log keystrokes by the user and thus capture passwords and account details; delete or corrupt files; access private files; delete system calls and audits; and create backdoors in the infected system for remote control by a botnet of the victim's computer. Many hacks, malware compromises, or breaches of computer systems involve the exploitation of vulnerabilities or flaws in either the computer hardware or software code. These exploits—often errors in the software code at the binary level—enable malware code to be inserted and thus compromise or control the operating system of the computer.

Macro-viruses and polymorphic viruses are becoming increasingly problematic because polymorphic engines change the code of a virus each time it propagates, which makes it difficult to identify them. The Melissa Virus and the ILOVEU virus spread via infected files shared through the Internet. Some nations have not criminalised malware creation. Laws are usually designed to deal with the connection between malware and hacking outcomes, like data loss or manipulation.

Botnets facilitate mass automation via software and have become commonplace means of dissemination malware since the mid-2000s. 'Botnets'—derived from combining the words ro*bot* and *net*work—are multiple Internet-connected computers capable of coordination. Botnet malware infects botnets via common vulnerabilities. Similar to worms and viruses, it infects other machines, but it also delivers a payload like a trojan. Offenders exploit the automation software to amplify their activities. They can use infected systems to engage in various types of attacks such as spam distribution or DDOS (Chon 2016).

Online Offenders

One of the enduring challenges of cybercrime for law enforcement is the cross-jurisdictional and celerity of the methods used. Typically, the victim resides in one country and the offender in another, while the proceeds might be deposited in a third country. A careful cybercriminal remains anonymous and disguises the source of intrusion, making tracing difficult and often inconclusive. Hence, it is very difficult to tell if a cybercrime was

implemented by a teenager operating from his bedroom, by a nation state, or by a criminal network.

The cross-border nature of cybercrime is frequently exploited by cybercriminals from safe havens, which underlines the need for cross-national and international responses to combat cybercrime (Broadhurst 2006). Cybercrime has a very low risk of detection and prosecution partly because of the limitations of cross-border policing. So, individuals choose cybercrimes over real-world offences because of easy access to technology, the Internet, and their capacity to reach millions of potential victims. Often, victims may not be aware of their victimisation, and many fail to report their victimisation due to common reasons such as the belief that police can do very little by way of response.

Hacker Culture

Cybercriminals are commonly called 'black-hats', those who contest them are referred to as 'white-hats', and those who switch across the legal and the illegal are considered 'grey-hats'. Hackers have a terrestrial existence with online and offline social connections. Hackers are those knowledgeable about computers and their systems and apply their knowledge to gain unauthorised access to a computer. They engage, learn, and act in the virtual world on web pages, forums, blogs, but also at hacker conferences and meet-ups. An individual hacker's skill, orientation, and level of knowledge can be gauged by the kind of terminology used to describe them. Highly skilled hackers are called 'crackers' or 'leets'. Novice hackers are referred to as 'lamers' and 'noobs', or 'script kiddies'.

Not all hacks are technical or code-based but can also draw on the diverse forms of deception or social engineering. The skill of hacking can be used to identify flaws in systems and can also serve legitimate purposes. The notion of ethical hacking has arisen and the need for such skills in countering cybercrime increasingly recognised. The stress on secrecy, engagement with online communities, and the use of aliases by hackers was essential. The motivations for hacks also evolved during this period. Over time, the commercial reach of computer technology had blurred differences between ethical hacking and malicious activities and has helped to create both cybersecurity services and criminal enterprises (Chon 2016). While increasingly sophisticated technics evolved, the use (or blending) of deception and 'social engineering' advanced alongside with criminals using the Internet to scam.

The birth of the hacker culture dates back to the Massachusetts Institute of Technology (MIT) in the 1960s. Students who had been tinkering with phone switches in the Tech Model Railroad Club became interested in the MIT computer lab. In the 1984 book *Hackers: Heroes of the Computer Revolution* by Steven Levy (1984), one of the first references to the term 'hackers' occurs. Levy labelled inquisitive students as 'hackers', individuals aiming to push the limits of technology. The term 'hacker' originally suggested technological exploration and ingenuity. As a saboteur-like subculture of hackers emerged the legal response followed. In 1986, the USA enacted the CFA making hacking computers a crime. The creator of the Morris worm was the first conviction under that Act in 1988 (Rid 2016). These so-called second wave hackers were often portrayed as enigmatic figures, a stereotype that is still common today. The hacker culture, frequently associated with cybercrime, began to take shape in the 1980s along with the formation of clubs, akin to loosely organised clubs, some of which include *Legion of Doom* based in the USA and *Chaos Computer Club* from Germany (Chon 2016).

Online Crime Groups and Criminals

Cybercrime can manifest in different forms, and the pathway and means for offenders to engage in specific acts of cybercrime are diverse. Interactions between offenders and between offenders and victims can take place exclusively online. However, cybercrime ultimately affects the offline world such as banks and financial institutions, businesses, and day-to-day Internet users (Chon 2016).

There is still an absence of research about offender behaviour and recruitment in cyberspace, although learning and imitation play important roles (Broadhurst and Grabosky 2005; Chon 2016). In some cases, obsessive-compulsive behaviour is evident; in others, a sense of impunity—born out of over-confidence in anonymity—is apparent. Greed may be only one of many motives, but socio-cultural forces also play a role in the genesis and sustainability of online criminal networks. These networks are diverse but little is known about their structures, longevity, and how trust is assured. Little is also known about relationships with other criminal enterprises and grey markets.

McGuire (2012) discussed the different types of organised crime present online including loosely organised communities with 'swarm' characteristics, namely groups that cross between the online and offline and structured hierarchies similar to the Mafia. Chabinsky (2010) noted that, in a larger

criminal enterprise such as a credit card fraud, several specialised functions are needed, such as coders, distributors, hackers, fraud specialists, cashers, tellers, executives, and money mules (Broadhurst et al. 2014).

Social Engineering

The 'advance fee fraud' is a simple and often well-executed scam that attempts to extract information about users such as full name, phone number, residential address, and bank accounts. This information is then used to steal the victim's identity and money. In some cases, victims are persuaded to transfer so-called advance fees. Classic examples include the unexpected inheritance (see Fig. 15.1); the philanthropist in search of a 'good Samaritan'; the business proposal; and the mysterious box full of cash (Rubinstein 2013).

Child Exploitation or Child Abuse Materials

The Internet has also helped create an ecosystem highly conducive to the dissemination of pornography. The production of child abuse or CEM existed before the Internet, but the Internet's anonymity offered a facility for

From: "Hassan"
Subject:

Before I proceed, I must first apologize for this unsolicited mail to you. I'M the Daughter of late Mr Hame, who was assistant secretary of Muammar Gaddafi who is now dead.

My father was among those GADDAFI killed as inside enemy, but before the fight I was taken by boot to Spain here in my father private house, so that I can take care of his investment here in Spain, and my father leave some amount of money for me here in one of the private security company here, and now I want to move this moneyout of this country

I have told my lawyer about it, all I need is a trust worthy person. So that when the money is transferred into his or her account, he or she can help me for visa and other papers I needed to live in that country, you have 10 of any amount transferred into your account.

If you are willing, then email my lawyer at this and his name is Barr. Martinez Luis So that he can explain to you more about this, if you want to come down here and see by yourself,

Regards,
Habbib Al Hassan

Fig. 15.1 Case example: 'The classic' advanced fee fraud

the widespread sharing and selling of such materials from photographs to the live streaming of the sexual abuse of minors. It also facilitates the trading of child pornography via networks of those attracted to children and offers opportunities for child grooming and exploiting vulnerable children (UNODC 2015). Some estimates suggest that 20,000 images of child porn are posted online each week (Holt et al. 2015). These repugnant acts and the harm caused to children and society thereby have quickly led to national laws that seek to kerb the production and distribution of such materials, varying from the erotic posing to sadistic and violent sexual acts.[2]

In 2012/2013, the Commonwealth Director of Public Prosecutions brought to trial 372 CEM cases investigated by AFP and the then Department of Immigration. In 2004, Operation Auxin brought to attention the scale and depravity of these offences to Australians and the Sweetie sting operation in 2013, which depicted an online vulnerable child avatar, netted around 1000 offenders in 3 months. Law enforcement strategies often need to use such proactive methods to identify offenders and victims (Jayawardena and Broadhurst 2007).

In Australia and many other jurisdictions, the production, possession, and distribution of child abuse materials (CAM) are serious offences. In *R v Silva* (ACTSC 2009) Justice Penfold, in defining CAM, stated: "I take a sexual pose to be a deliberately-struck attitude that draws attention to the sexual aspects of the subject's identity or personality". The *Criminal Code Act 1995 (Cth)* specifies in Sect. 473.1 that child pornography material "means a) material that depicts a person, or a representation of a person, who is, or appears to be, under 18 years of age and who: (i) is engaged in, or appears to be engaged in, a sexual pose or sexual activity (whether or not in the presence of other persons); or (ii) is in the presence of a person who is engaged in, or appears to be engaged in, a sexual pose or sexual activity".

The general scope of Commonwealth law is reflected in all the Australian states and territories, albeit that there are some differences that occur with respect to age limits. For example, in NSW and Queensland, the age threshold is set at 16; in South Australia at 17. All Australian jurisdictions include depictions of persons appearing to be underage, meaning that adult actors posing as children and computer-generated avatars fall under the definition. The law seeks to repress the creation and production of CEM and its distribution, possession, or access online. Exemptions apply to police and other investigators including medical practitioners.[3] Australian laws also criminalise the use of a carriage service for these purposes. Telecommunication operators and Internet service providers are obliged to assist law enforcement in their removal and the detection of users and distributors (Urbas 2015).

International Responses to Cybercrime

These rapid developments in the evolution of cybercrimes were met with an increase in penalties and the reach of national cybercrime laws in many states and attempts at cross-national mutual legal assistance to deal with the cross-jurisdictional nature of most cybercrime. The Council of Europe's (CoE) Cybercrime Convention was rapidly adopted for Europe from 2001 onwards, with other states—notably the USA, Japan, and Australia—signing on (UNODC 2013). Yet, a universal law for the suppression of cybercrime has not evolved and the consensus needed—especially from China and Russia—appears remote.

The CoE convention targets offences against the confidentiality, integrity, and availability of computer data and systems. It outlaws unauthorised access to computers or computer systems, malicious software, and specifically addresses DDOS. The CoE assists international cooperation on legal matters by providing for the extradition of suspects, the disclosure and preservation of computer and traffic data, real-time traffic data collection, trans-border access to stored computer data, and the interception of content data. It reinforces law enforcement cooperation at all levels and puts in place a dedicated 24/7 response network often drawing on established CERT and other cross-agency law enforcement networks.

International Cooperation

The suppression of Internet-driven CEM is a major challenge for law enforcement agencies across the globe. However, effective alliances have been formed across nations to share intelligence and prosecute the most serious offences. The Virtual Global Taskforce coordinates responses to multinational exploitation cases. It was established in 2003 to help respond to and investigate serious CEM cross-border cases. Over 1000 investigations have been completed to date. The AFP and state police are actively engaged in this work, often in collaboration with the FBI's Violent Crimes against Children unit, and agencies in Italy, the UK, Canada, and Saudi Arabia.

Many cybersecurity regulatory frameworks have emerged around the world to address the problems of cybercrime. They vary from state-centric approaches to volunteer groups or alliances that foster cross-national government, industry, and academia collaboration. Non-profit groups such as Spamhaus and VirusTotal provide critically important services. Emblematic of this movement is the US National Institute of Standards and Technology

Cybersecurity Framework that regularly updates cybersecurity best practices and has been influential in shaping the effectiveness of cybersecurity in the USA, Canada, India, and Australia (Shackelford et al. forthcoming). Other efforts have been undertaken against CEM, scams, and fraud. For example, the London Action Group tackles spam; and the PhishTank is an anti-phishing clearing house associated with OpenDNS and the Anti-Phishing Working Group (APWG). The APWG—a global consortium of industry, academia, and law enforcement—tracks the prevalence and scope of phishing attacks, coordinates responses to phishing, and advises governments and industry. These are some of the examples of the role NGOs can play in the mitigation of cybercrime and the pluralism that is essential in the partnerships needed for effective prevention.

Conclusion

Cybercrime has evolved from a *low-volume, high-value crime* committed by an individual specialist offender to a mainstream *high-volume, low-value* crime; organised and 'industrial' (Anderson et al. 2013). But it is not only the domain of organised crime groups. Networked crime groups and state or quasi-state actors also impact on the scale and sophistication of cybercrime. However, the burden of prevention and the costs of cybercrime and cybersecurity are not rationally distributed so that the costs of a cybercrime can be catastrophic for some but not for others.

The increasing linkages across the IoT such as large data collections, cloud services, smartphones, SCADA systems, autonomous vehicles, emotional recognition, and other forms of AI yield ever more information about us and our behaviour. In both the real and virtual world, anonymity is critical to successful crime. This is achieved via encryption and identity theft, the principal precursor to many crimes in cyberspace. Social engineering has also become more personalised and compelling, improving the ability to deceive users into malware self-infection.

Looking ahead, we can anticipate online underground markets will continue to expand and diversify while their disruptive effects impact on more individuals and enterprises. Constant innovation manifested as 'tinkering' plus convergence with 'old', 'new', adapted, assembled, and enhanced technologies will continue to force a cyber (malware) arms race; a game of 'cat and mouse' between law enforcement and cybercriminals.

Holt et al. (2015) suggest that cybertheft and fraud will increase over the next decade, helped by more large-scale data breaches, privilege sprawl, and

identity theft. The widespread use of mobile devices may also influence risk as our behaviour changes with our engagement with new technologies. Theoretical events such as cyberjacking of aircraft, interference with motor vehicle computer systems, and mini power outages combined with self-exciting malware could emerge as common threats.

In response to the challenges, law enforcement practices are compelled to adapt more rapidly than ever. A priority must be to increase the impact of deterrence and the potency of mutual legal assistance given the cross-border nature of cybercrimes. Mandating standards and guidelines for built-in cybersecurity of new products before release, combined with the promotion of crime prevention and cybersafety awareness, must be central to the public–private partnerships needed to suppress cybercrime.

Notes

1. *Backdoor*: Method of bypassing authentication to a computer system, usually via unknown vulnerabilities or enabled by rootkits, worms, or viruses. *Blended threats:* combine the methods noted below. *Rootkit*: Malware that hides the existence of software from detection methods and enables privileged access to a computer system. *Trojan*: Malware disguised as a normal program. *Virus*: Malware that spreads by inserting or attaching itself to other computer programs, files, or boot sector. *Worm*: Standalone self-replicating malware, using computer networks to spread.
2. The severity of CEM offences was graded in *R v Oliver, Hartrey and Baldwin* (see Urbas 2015). The Court divided indecent images of children into five categories, based on a fuller harm scale known as the COPINE scale.
3. Section 473.4 provides for other matters to be taken into account as to definitions including
   (a) standards of morality, decency and propriety generally accepted by reasonable adults.
   (b) The literary, artistic or educational merit of the material.
   (c) The general character of the material (including whether it is of medical, legal, or scientific).

References

ABS. 2016. *Personal Fraud 2014/15*. Cat. no. 4528.0. Canberra: ABS.
ACORN. 2016. Statistics Report. https://www.acorn.gov.au/resources. Accessed 8 Oct.
ACSC. 2015. *Threat Report*. Canberra: The Australian Cyber Security Centre.

Alazab, Mamoun, and Roderic Broadhurst. 2016. *Spam and Criminal Activity*. Canberra: AIC.

Anderson, Ross, Chris Barton, Rainer Böhme, Richard Clayton, Michel J.G. van Eeten, Michael Levi, Tyler Moore, and Stefan Savage. 2013. Measuring the Cost of Cybercrime. In *The Economics of Information Security and Privacy*, ed. Rainer Böhme, 265–300. Berlin: Springer.

Broadhurst, Roderic. 2006. Developments in the Global Law Enforcement of Cyber-Crime. *Policing* 29 (3): 408–433.

Broadhurst, Roderic, and Peter Grabosky. 2005. *Cybercrime: The Challenge in Asia*. Hong Kong: Hong Kong University Press.

Broadhurst, Roderic, Peter Grabosky, Mamoun Alazab, and Steve Chon. 2014. An Analysis of the Nature of Groups Engaged in Cyber Crime. *International Journal of Cyber Criminology* 8 (1): 1–20.

Chabinsky, Steven R. 2010. The Cyber Threat: Who's Doing What to Whom? Paper presented at Government Security/FOSE Conference, March 23, in Washington, DC.

Chon, Ki Hong. 2016. Cybercrime Precursors: Towards a Model of Offender Resources. PhD dissertation, Australian National University.

Commonwealth of Australia. 2016. *Australia's Cyber Security Strategy*. Canberra: Department of the Prime Minister and Cabinet.

Duffy, Conor. 2015. Law Agencies Look to Recruit Hackers as Cyber Attacks Increase. *ABC News*, June 15.

Global Initiative. 2014. GIN Interview: Gavin Corn, Federal Prosecutor in FBI's Cybercrime Taskforce. www.globalinitiative.net/gin-gavincorn.

Grabosky, Peter N., and Russell G. Smith. 1998. *Crime in the Digital Age: Controlling Telecommunications and Cyberspace Illegalities*. London: Transaction Publishers.

Herzog, Stephen. 2011. Revisiting the Estonian Cyber Attacks: Digital Threats and Multinational Responses. *Journal of Strategic Security* 4: 49–60.

Holt, Thomas J., Adam M. Bossler, and Kathryn C. Seigfried-Spellar. 2015. *Cybercrime and Digital Forensics: An Introduction*. London: Routledge.

Jayawardena, Kasun, and Roderic Broadhurst. 2007. Online Child Sex Solicitation: Exploring the Feasibility of a Research 'Sting'. *International Journal of Cyber Criminology* 1 (2): 228–248.

Levy, Stephen. 1984. *Hackers: Heroes of the Computer Revolution*. New York, NY: Anchor Press.

Martin, James. 2014. Lost on the Silk Road: Online Drug Distribution and the 'Cryptomarket'. *Criminology and Criminal Justice* 14 (3): 351–367.

McAfee. 2014. Net Losses: Estimating the Global Cost of Cybercrime. http://www.mcafee.com/us/resources/reports/rp-economic-impact-cybercrime2.pdf.

McGuire, Michael. 2012. *Organised Crime in the Digital Age*. London: John Grieve Centre for Policing and Security.

McWorther, Dan. 2013. Mandiant Exposes Apti: One of China's Espionage Units and Releases 3,000 Indicators. *Fireeye*, February 19.
Miniwatts. 2015. Internet Usage and 2015 Population in Oceania. *Internet World Stats*. http://www.internetworldstats.com/stats6.htm.
Nakashima, Ellen. 2012. When is a Cyberattack an Act of War? *Washington Post*, October 26.
Rid, Thomas. 2016. *Rise of the Machines: The Lost History of Cybernetics*. New York, NY: Scribe.
Rubinstein, Maria. 2013. Your Nigerian Inheritance is Waiting! *Securelist*, January 10.
Sanger, David E. 2012. Obama Order Sped Up Wave of Cyberattacks Against Iran. *The New York Times*, June 1.
Shackelford, Scott, Scott Russell, and Jeffrey Haut. Forthcoming. Bottoms up: A Comparison of Voluntary Cybersecurity Frameworks. *UC Davis Business Law Journal*.
Smith, Russell G., and Alice Hutchings. 2014. *Identity Crime and Misuse in Australia: Results of the 2013 Online Survey*. Canberra: AIC.
UNODC. 2013. *Comprehensive Study on Cybercrime*. UN: New York, NY.
UNODC. 2015. *Study on the Effects of New Information Technologies on the Abuse and Exploitation of Children*. UN: New York, NY.
Urbas, Gregor. 2015. *Cybercrime Legislation, Cases and Commentary*. Chattswood: Butterworths.
US Department of Justice. 2015. Major Computer Hacking Forum Dismantled. *Justice News*, July 15.
US Department of Justice. 2016. Computer Crime and Intellectual Property Section (CCIPS). https://www.justice.gov/criminal-ccips. Accessed 8 Sep.

Author Biography

Roderic Broadhurst is Professor of Criminology at ANU. His research interests include crime and modernisation, homicide, organised crime in Asia, and crime in cyberspace. Recent co-authored books include *Business and the Risk of Crime in China* (ANU Press 2011) and *Violence and the Civilizing Process in Cambodia* (Cambridge 2015).

16

Corporate and White Collar Crime

Fiona Haines

Corporate and white collar crime is ubiquitous. Its impact is felt by investors who lose their life savings in a financial collapse, governments whose revenues are reduced through non-payment of taxes, workers and community members who fall sick because of the actions of business, and now an increasing threat to the earth itself through pollution and environmental destruction wrought in large part by corporations and the economic system that sustains them. The essential character of white collar crime was well captured in the 2003 documentary *The Corporation* by the phrase "make someone else pay". The concept of business externality—defined as the collateral damage inflicted by business on governments, the public, and the environment with profits retained by those in control of the business—also reflects this understanding. The problem of white collar crime—of making someone else pay and externalising harm—is common across business activity.

This chapter focusses on understanding these relationships and dynamics in Australia. In doing so, I use the term 'white collar crime' to cover the broad spectrum of harms perpetrated by individuals and their businesses. I outline a number of recent Australian cases and highlight the critical relationship between government and business in each example. Where relevant, I explain the connections between what is happening in Australia and on the international stage. In this analysis, I explore the challenges of controlling business behaviour through law and criminalisation. I then analyse key reasons that lie

F. Haines (✉)
Criminology, University of Melbourne, Melbourne, Australia
e-mail: f.haines@unimelb.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_16

behind the chronic nature of white collar crime and offer reflections on ways forward.

Defining Corporate and White Collar Crime

The terms 'corporate crime' and 'white collar crime' are a criminological fiction. There is no one offence or class of offences that are labelled 'white collar' offences, and the boundaries of what should be considered white collar crime remain contested (Geis 2014). Since Sutherland (1983), criminologists have understood that theft, violence, and wanton destruction are not merely the preserve of those at the margins of society. Yet, they have struggled to capture the essence of this form of offending. Part of the reason for this is that Sutherland's term 'white collar' crime was designed as much to condemn the actions of corporations as "habitual criminals" (23) as it was to provide clear definitional boundaries around what is, and what is not white collar crime.

Criminological scholarship, however, has not been in vain. In particular, work that critically analyses the role business and government relationships plays in allowing much of the harm to continue unabated is important. A focus on this relationship requires us also to understand not only the harm that is generated by businesses and tolerated or aided by the state—labelled by some as state-corporate crime (Kramer et al. 2002)—but also how harms are embedded in benefits that include employment, taxes to governments, flow-on effects to local communities, and to other businesses (Haines and Sutton 2012). Although benefits may be broadly shared, their distribution is often highly skewed. This character of business activity is simultaneously desirable and undesirable, as it generates multiple ambiguities in economic benefit, moral valence, and legal or illegal orientation (Nelken 1997). Key interests may align, pressuring governments to allow a business to continue trading, claiming widespread benefits, even as it continues to perpetrate significant harm (Carson 1980). When seen in its economic and political context, the law may prove as much support for the status quo as it does in providing the means to reduce the harm. Finally, the contemporary context often requires close attention to both global and local circumstances in order to understand white collar crime in one jurisdiction. Supply chains span multiple jurisdictions, requiring a global analysis. Yet constituent businesses are shaped politically at every level, requiring close attention to local political dynamics (Connor and Haines 2013).

Financial Fraud and the Case of Storm Financial

Iconic forms of white collar crime involve financial fraud, crimes that often only appear after the company concerned has collapsed. This context is important to understand as it points to the central role confidence plays in the everyday working of a business not just where fraud is involved (Carruthers 2005; Haines 2014). Three interrelated features of business reassure the public and investors of the health of the enterprise. These are the financial accounts, the integrity of money, and the income-generating character of debt. Each of these elements—accounts, money, investment (debt)—attempts to capture and represent value. However, the figures on a balance sheet or set of accounts indicating a unit of value—that is, a dollar value of income, capital, and investment—have little meaning in themselves. They only have meaning by virtue of the confidence placed in them. This confidence is generated in part by legal frameworks and by rituals of assurance that emanate from both private and public sources such as company auditors and the Reserve Bank. Confidence is critical to financial solvency, but the line between confidence and a confidence trick—fraud—can be a fine one (Haines 2014).

Businesses and governments have an investment in ensuring confidence in commerce is maintained. The problems ensuing from a loss of confidence include a mass selling of company shares, corporate collapses, and large-scale unemployment, or, in the case of banks, a run on the banks. In the case of financial systems and money itself, a dramatic loss of confidence in the value of a particular currency risks hyperinflation. The generalised lack of confidence that arises in an economic downturn changes the perspective on optimistic business models that become viewed as little more than Ponzi schemes (Kindleberger and Aliber 2005). High levels of debt carried by collapsed businesses generate fear in the solvency of other businesses, which pushes more investors to sell their shares; thus exacerbating the problem. Yet, during the upturn, the same businesses and their business strategies can be seen as exemplars. In an upswing, money in the bank is viewed as a liability—as dead or lazy capital—and money invested in a business activity, which often involves borrowing money and going into debt, is seen as income. The sum of money and loans will, when invested, produce more money. Money squirrelled away risks losing value.

This dynamic was evident in the wake of the Global Financial Crisis (GFC) of 2007/08. It is commonly understood that the crisis had little effect on Australia. However, Australian companies such as Babcock and Brown;

the Allco Finance Group; Storm Financial; and Opes Prime were all exposed in different ways in its wake and collapsed as a result of this global loss in confidence (Sykes 2010).

A brief description of one case—that of Storm Financial—illustrates the above dynamic well. Storm Financial collapsed in the early months of 2009. At its height, it controlled AUD 4.5 billion of funds and loans, comprised of investment portfolios for around 13,000 clients. Storm received significant loans from banks such as Macquarie Bank, the Bank of Queensland, and the Commonwealth Bank. At the time of writing, the Australian Securities and Investments Commission (ASIC) is still involved in proceedings against Macquarie Bank and the Bank of Queensland in an attempt to return some funds to investors. The Commonwealth Bank has previously settled for AUD 136 million in compensation for investors.

Storm Financial developed what it considered to be a secure investment strategy involving leading Australian stocks. Clients invested in shares through an indexed fund in these stocks, which were expected to provide a solid rate of return of around 12% (Sykes 2010). So confident was Storm in its investment strategy that it encouraged clients to take out a mortgage on their family homes to put more money into the indexed fund. Clients were reassured that there was no risk to their family homes. And Storm went one step further. Rather than requiring clients to pay for the full value of their investment in the indexed fund, Storm recommended that investors take out a margin loan. When investors take out a margin loan, their investment consists partly of saved money (capital) and partly of money borrowed from a bank (loan). Hence, their investments multiply, but so do their wins and losses. Storm clients provided the capital by re-mortgaging their house, thus placing them in debt. Storm used this 'capital' from the re-mortgaging of the house to obtain the second part of the money—the loan—from banks and invested the entire sum in the stock market. Storm clients were only asked to pay additional capital into the investment if the value of their shares dipped below the value of the bank loan. As long as the stock market was rising, the returns looked good. When the stock market declined in the wake of the GFC, the losses were compounded. Storm clients had to pay for the bank loan while also paying an increased mortgage. Many small investors lost not only their savings but also their homes. Very few Storm investors made money by getting out early because it was difficult to exit Storm Financial. As is common in such cases, Storm argued it could have traded out of difficulty had the loans from the banks been forthcoming. Who gained from this

system? Fees were extracted from the investors not only by Storm Financial but by the banks that funded the margin loans. These fees were associated with setting up the portfolio, servicing the portfolio, and additional fees when any changes were made. The investors were courted by Storm Financial with lavish parties and international trips, particularly those with higher levels of debt. The (over)confidence of both Storm and the banks injected confidence and reassurance into the clients.

Who was made accountable? It was the Storm investors that lost the most. Yet, they were also the people who were made most accountable for their 'mistakes'. Some were able to stay in their homes through an agreement with the Commonwealth Bank that the bank would repossess the house when they died. There were no criminal prosecutions that emerged from the case. Civil penalty proceedings are ongoing against the owners of Storm Financial, Emmanuel and Julie Cassimatis. These proceedings began in 2011. This lack of criminal prosecution is not uncommon in Australia following such collapses (Walsh 2016).

There are several lessons to be learnt from this example. The first is the close connection between the GFC and corporate collapses in Australia in spite of the frequently held view that there was little impact. Confidence in the international system is related to confidence in Australia. Second, during the good times, taking on debt was seen as more desirable and as a smarter strategy than having money in the bank or a house with no mortgage. Debt could earn more income. The promise of benefit was significant here. Third, these types of investment schemes need to be understood within a context where governments increasingly distance themselves from responsibility for people's financial security (Ireland 2011). Government pensions are now only for the poor rather than a right of all citizens. Contemporary retirement planning requires taking financial risks and bearing the consequences should those risks turn sour. Further, there is an increased expectation on individuals that they *understand* the risks that they are taking. In criminological parlance, this is a classic case of 'responsibilization' (O'Malley 1996; Shamir 2008). The state is withdrawing its support, and individuals are disciplined, lured, and chastened into investing for their retirement, and in doing so, they become dependent on a financialised system. Finally, justice through the law has provided meagre comfort. Arguably, social and political pressure has been equally or more important where some banks have been shamed into providing limited compensation.

Tax from the Bottom of the Harbour Case to the Panama Papers

Both tax avoidance and tax evasion are also common in Australia. In this form of white collar crime, governments and the law are implicated as well as wealthy individuals and businesses. Indeed, an important first step in understanding white collar crime in the context of tax is to understand the central position the letter of the law plays. It is well understood that wealthy individuals and wealthy corporations often pay little or no tax (Braithwaite 2003; Rostain and Regan 2014). In many cases, these individuals and businesses have done nothing wrong in the eyes of the law. Tax avoidance[1]—which can be legal—can be understood as a 'game' for wealthy individuals, their lawyers, and their accountants (Clyne 1969). The courts may decide that no law is broken, but the intent of the law to ensure people pay their fair share of tax is stretched beyond breaking point. Pressure can be put on governments to reduce taxes on businesses in order to provide a climate conducive to business. In Australia, taxes on corporations have significantly declined from 45% in the 1970s and 1980s to its current 30% (Parliament of Australia 2014).

The problem is not only how the law is written but how it is interpreted by the courts. Legal interpretation lays at the heart of the Bottom of the Harbour case; one of the most high-profile historical examples of systematic tax avoidance and evasion in Australia (Sutton 1989). Here, a High Court judgement validated two tax avoidance schemes named Slutzkins and Currans. These schemes allowed individuals to avoid tax by exploiting the corporate form; arguing that the company owed tax not the individual in the case of Slutzkins; and claiming a tax deduction for lost revenue, which was achieved by watering down shares[2] in the case of Currans. The Bottom of the Harbour[3] case illustrates the close connection between individuals and the corporate form. Shuffling money in and out of the corporate form is central to the wealthy avoiding or evading tax. Separating white collar from corporate crime makes no sense here (contra Clinard and Yeager 1980).

The relationship between governments, business, and the public is equally as important. There is a close relationship between business and government, whereby governments, including the Australian government, are pressured into reducing taxes on businesses. Tax authorities are bound by the law. For them, pursuing wealthy individuals who pay very little tax is a time-consuming and challenging task. Governments require tax to fund their activities. So, when tax avoidance becomes an activity not only for the very

wealthy but also for the middle class, governments become concerned (Sutton 1989). However, an opportunity opens, since the middle class are less able to ensure the legality of their schemes. Tax avoidance slips into tax evasion, and those involved are more likely to feel the full weight of Australian Taxation Office (ATO) enforcement. Terms of imprisonment for this class of offender are not uncommon (ATO 2016).

A considerable effort has been put into getting the wealthy to pay their fair share of tax despite these challenges. The latest initiative began in 2006—first labelled as Operation Wickenby and then instituted as the Serious Financial Crime Taskforce—which has resulted in 76 individual charges and 46 terms of imprisonment for tax evasion. However, much of ATO's activity has been undertaken outside of the courts by going directly to individuals and companies to get them to pay the taxes they owe. The money recouped as part of court action is only a fraction of the AUD 2 billion that the task force has generated since its inception. The largest single payment to the ATO—AUD 242 million—was made by an unnamed high-wealth individual in 2009 after a confidential settlement (Seague 2009). In contrast, terms of imprisonment—usually between a number of months and up to seven years—were laid against individuals who were found to have evaded sums between AUD 20,000 and AUD 3 million (ATO 2016). So, even at the level of wealthy individuals, there is a difference between those at the bottom and those at the top. Often the difference is whether compliance with the letter of the law can, or cannot, be proved in court.

Recent revelations have highlighted once again the global dimension to many of these white collar crimes. A massive release of internal company documents—colloquially known as the Panama Papers—has uncovered a network of companies and individuals engaged in avoiding the scrutiny of national tax authorities. This is the latest in a series of exposés of global tax avoidance by multinational corporations and wealthy individuals (International Consortium of Investigative Journalists 2016).

The Panama Papers reveal the involvement of around 800 Australians in offshore accounts. Offshore accounts themselves are not illegal. Accounts of those involved tell a familiar story. For example, Warren Black—a former ATO employee—states on his website that his "life passion [is] getting people [legally] out of paying tax" (Black as cited in Main and Worthington 2016). The ABC reported Mr Black was not concerned with the leak, as all of his tax schemes were compliant with the law. Indeed, it is not clear how many of the revelations from the Panama Papers will end up resulting in a prosecution. However, what is clear is that a number of those exposed have been involved in various forms of criminality over a considerable period of time. Further, the

documents reveal the relatively straightforward process of setting up such an account. These offshore companies appear to have been accessible to more than just the very wealthy. The accessibility of offshore tax avoidance or evasion by an increasing number of Australians is likely to prompt the Australian government to act, as is the discovery of the wealthiest Australians being involved.

Industrial Disease and the James Hardie Case

White collar crime is not confined to 'externalities' involving money. Illness and death are also involved, often as a routine part of business activities, a reality captured by Tombs (2002) as the 'banality of violence'. Yet again, the connection between government and business that facilitates this harm needs to be understood. One prominent example in Australia is the story of asbestos. The damaging nature of asbestos in causing chronic illness and death has been understood since Roman times when slaves who rowed asbestos-laden ships died at a much higher rate than other slaves (Hills 1989). Australia mined asbestos for an extended period between 1880 and 1983 despite the growing evidence of disease and environmental pollution (Jamrozik et al. 2011). Miners were, and are, not the only victims of the material, as asbestos found its way into many building products. It remains common in already built suburban roofs and cladding. A prominent manufacturer of many of these products was James Hardie, who used two subsidiaries—Amaca and Amaba—that operated between 1937 and 1986.

Multiple problems have come to light about the activities of James Hardie, problems that illustrate well the connections between the law, tax, and the corporate form in the context of illness and death. In 2001, James Hardie made a decision to move to the Netherlands in order to reduce its payment of tax, the Netherlands having a lower rate of corporate tax than Australia. This move was undertaken to improve returns for shareholders (Parliamentary Library 2004). The growing liabilities with respect to compensation for asbestos-related diseases were known at the time and resulted in the company establishing the Medical Research and Compensation Foundation (MRCF), which was supposed to contain funds of AUD 293 million to cover all asbestos-related liabilities. It quickly became apparent that the reserves were inadequate. In December 2003, MRCF warned that it faced a serious shortfall in the funds needed to compensate asbestos-related claims.

Public outrage against the activities of James Hardie was heightened by the lobbying of Bernie Banton and his supporters. Bernie Banton worked at

James Hardie from 1968 to 1974 and contracted asbestosis in 2000. He died from mesothelioma[4] in 2007 (Bernie Banton Foundation 2016a). Bernie Banton provided a human face to the impact of a company that had placed the interests of shareholders so blatantly above those of workers. This generated considerable pressure on James Hardie to provide adequate compensation despite the fact Australian authorities had limited access to James Hardie's funds in the Netherlands or the USA, where most of the profits were being made (Comino 2014; Parliamentary Library 2004). Campaigning and public pressure eventually resulted in the development of the Asbestos Injuries Compensation Fund, whereby James Hardie pledged 35% of its profits to go into that fund.

This victory illustrates an important vulnerability of government. Where political legitimacy is at stake, governments can, and do, respond to reassure the public that they are responsive to their needs (Haines 2011). This includes acting in the interests of protestors and against the interests of business. Yet, there remains a dependence of victims on James Hardie. Due to the long-term nature of the problem, compensation will be needed for many years to come. If James Hardie profits fall, so does income into the fund. Most James Hardie profits are accrued in the USA and have, indeed, declined significantly since the GFC, thus threatening the viability of the fund (Bernie Banton Foundation 2016b).

It has proven difficult to hold key individuals to account for their decisions in the James Hardie case. There was initially some discussion about possible criminal prosecutions against key individuals. However, these were abandoned in September 2008. At the same time, civil penalty prosecutions were laid by ASIC against James Hardie's directors of both the Dutch and US arms of the company. ASIC had previously taken civil action against 10 former and current Australian directors (Edwards 2007). Despite the justifications for a civil penalty regime—being that it is easier to impose penalties and that those penalties can be significant—experience in Australia suggests that the actual penalties imposed are low and that cases can extend over many years (Comino 2014).

Conclusion

This chapter highlights the importance of relationships in understanding white collar crime. These relationships are between businesses and government; governments and citizens; and businesses and the wider community. The challenges of using law to control business activities are apparent.

The interest government and corporations have in generating confidence in business requires reassurances in the means and processes of finance. Individuals respond to these reassurances and take investment risks beyond their means. When such investments fail, the law offers little respite, as it serves to retain the status quo rather than to hold transgressors accountable. The law also enables the exploitation of the corporate form for tax reductions. The capacity of the wealthy to avoid tax is accommodated by a global stage that provides the means to hide wealth either legally or illegally. Exploiting these international opportunities also provides a justification for leaving desperately ill people without compensation.

This chapter demonstrates the interrelated elements of white collar crime. Analysing these elements separately risks misunderstanding the dynamics that animate white collar crime. Financial crises and fraud cases are related to the need for governments and business to generate confidence. Profit goals drive businesses to maximise tax avoidance and to ignore working conditions responsible for illness, death, and environmental destruction. Simultaneously, finance companies promise financial security for more than just the very wealthy. Corporations provide employment and the circulation of money supports the well-being of businesses, government, and finance companies. The embedded nature of 'harm in benefit' provides perennial leverage for business to pressure governments into reducing constraints on business activities.

Partial solutions are possible. Through protest, governments can respond to protect individuals against the worst excesses of companies as illustrated by the James Hardie case. Protests can also shape company behaviour more directly. Notwithstanding the limits of the law, legal and regulatory strategies can be effective in certain circumstances. Criminal prosecution also is worth pursuing, yet it cannot be expected to solve the highlighted problems. Criminological analyses of white collar crime would do well to ensure our prescriptions for change are resilient in the face of these dynamics that militate against their effectiveness.

Notes

1. Tax avoidance now has a negative connotation. Indeed, it is subject to Part IVA of the *Income Tax Assessment Act 1936* under a section named the 'General anti-avoidance rule'. However, the practice captured by tax avoidance, pushing the letter of law and avoiding its intent, has shifted to tax minimisation and tax planning. The change in terminology does not change the practice.

2. Watering down the value of shares is achieved by the company issuing more shares and selling them to investors. The total value of the company is then shared between more shares and the value of individual shares declines.
3. The term 'Bottom of the Harbour' came from the colloquial understanding of the disposal of these company shares by throwing them to 'the bottom of the harbour'.
4. Asbestosis is a lung disease, which results from inhaling of asbestos particles. Asbestosis manifests in severe thickening and scaring of lung tissue and a high risk of mesothelioma. Mesothelioma is the cancer of the pleura. The pleura is one of the two membranes around the lungs.

References

Australian Taxation Office. 2016. Tax Crime Prosecution Results.https://www.ato.gov.au/General/The-fight-against-tax-crime/News-and-results/Tax-crime-prosecution-results/. Accessed 29 Apr.

Bernie Banton Foundation. 2016a. 'One in a Million' Bernie. https://www.berniebanton.com.au/one-in-a-million . Accessed 29 Apr.

Bernie Banton Foundation. 2016b. James Hardie Shortfall. https://www.berniebanton.com.au/news/28-james-hardie-shortfall . Accessed 29 Apr.

Braithwaite, John. 2003. Through the Eyes of the Advisors: A Fresh Look at High Wealth Individuals. In *Taxing Democracy: Understanding Tax Avoidance and Tax Evasion*, ed. Valerie Braithwaite, 245–268. Aldershot: Ashgate.

Carruthers, Bruce G. 2005. The Sociology of Money and Credit. In *The Handbook of Economic Sociology*, eds. Neil Smelser, and Richard Swedberg, 355–378. Princeton, NJ: Princeton University Press.

Carson, William G. 1980. The Institutionalization of Ambiguity: Early British Factory Acts. In *White Collar Crime: Theory and Research*, eds. Ezra Stotland, and Gilbert Geis, 142–173. Beverly Hills, CA: Sage.

Clinard, Marshall B., and Peter C. Yeager. 1980. *Corporate Crime*. New York, NY: Free Press.

Clyne, Peter. 1969. *Adventures in Tax Avoidance*. Sydney: Rydge Publications.

Comino, Vicky. 2014. James Hardie and the Problems of the Australian Civil Penalties Regime. *University of New South Wales Law Journal* 37 (1): 195–230.

Connor, Tim, and Fiona Haines. 2013. Networked Regulation as a Solution to Human Rights Abuse in Global Supply Chains? The Case of Trade Union Rights Violations by Indonesian Sports Shoe Manufacturers. *Theoretical Criminology* 17 (2): 197–214.

Edwards, Michael. 2007. ASIC takes action against James Hardie. *ABC Lateline*, February 15.

Geis, Gilbert. 2014. White-Collar Crime. In *Controversies in White-Collar Crime*, ed. Gary Potter, 37–52. Florence: Taylor and Francis.

Haines, Fiona. 2011. *The Paradox of Regulation: What Regulation Can Achieve and What It Cannot*. Cheltenham: Edward Elgar.

Haines, Fiona. 2014. Corporate Fraud as Misplaced Confidence? Exploring Ambiguity in the Accuracy of Accounts and the Materiality of Money. *Theoretical Criminology* 18 (1): 20–37.

Haines, Fiona, and Adam Sutton. 2012. White Collar and Corporate Crime. In *Crime and Justice: A Guide to Criminology*, eds. Marinella Marmo, Willem de Lint, and Darren Palmer, 191–209. Pyrmont: Lawbook Co.

Hills, Ben. 1989. *Blue Murder: The Shocking Truth About Wittenoom's Deadly Dust*. Melbourne: Sun Books.

International Consortium of Investigative Journalists. 2016. The Panama Papers: An Introduction. https://panamapapers.icij.org/video/. Accessed 7 Aug.

Ireland, Paddy. 2011. Law and the Neoliberal Vision: Financial Property, Pension Privatisation and the Ownership Society. *Northern Ireland Legal Quarterly* 62 (1): 1–32.

Jamrozik, E., Nicholas de Klerk, and Arthur W. Musk. 2011. Asbestos-Related Disease. *Internal Medicine Journal* 41 (5): 372–380.

Kindleberger, Charles P., and Robert Aliber. 2005. *Manias, Panics, and Crashes*. Hoboken, NJ: John Wiley.

Kramer, Ronald C., Raymond J. Michalowski, and David Kauzlarich. 2002. The Origins and Development of the Concept and Theory of State-Corporate Crime. *Crime and Delinquency* 48 (2): 263–282.

Main, Lisa, and Elise Worthington. 2016. Panama Papers: Fraudsters, Former Tax Officials among Australians Identified in Mossack Fonseca Leak. *ABC News*, April 5.

Nelken, David. 1997. White-Collar Crime. In *The Oxford Handbook of Criminology*, eds. Mike Maguire, Rod Morgan, and Robert Reiner, 891–924. Oxford: Oxford University Press.

O'Malley, Pat. 1996. Risk and Responsibility. In *Foucault and Political Reason: Liberalism, Neo-liberalism and Rationalities of Government*, eds. Andrew Barry, Thomas Osborne, and Nikolaus Rose, 189–207. London: UCL Press.

Parliament of Australia. 2014. *Trends in Government Receipts: 1982/83 to 2012/13*. Canberra: Parliament House.

Parliamentary Library. 2004. *In the Shadow of the Corporate Veil: James Hardie and Asbestos Compensation*. Canberra: Commonwealth of Australia.

Rostain, Tanina, and Milton C. Regan. 2014. *Confidence Games: Lawyers, Accountants and the Tax Shelter Industry*. Cambridge, MA: MIT Press.

Seague, Chris. 2009. Tax Office Won't Prosecute Australia's Worst Tax Cheat. *Crikey*, October 20.

Shamir, Ronen. 2008. The Age of Responsibilization: On Market-Embedded Morality. *Economy and Society* 37 (1): 1–19.

Sutherland, Edwin H. 1983. *White Collar Crime*. New Haven, CT: Yale University Press.
Sutton, Adam. 1989. The Bottom of the Harbour Tax Evasion Schemes. In *Stains on a White Collar: Fourteen Studies in Corporate Crime or Corporate Harm*, eds. Peter Grabosky, and Adam Sutton, 1–14. Sydney: Federation Press.
Sykes, Trevor. 2010. *Six Months of Panic: How the Global Financial Crisis Hit Australia*. Crowes Nest: Allen & Unwin.
Tombs, Steve. 2002. Understanding Regulation? *Social and Legal Studies* 11: 113–133.
Walsh, Liam. 2016. Australian Company Collapses during GFC Have Resulted in Few Criminal Convictions. *The Courier Mail*, March 20.

Author Biography

Fiona Haines is Professor of Criminology at the University of Melbourne and Adjunct Professorial Fellow at the Australian National University. Her research covers globalisation and regulation, and corporate and white-collar crime. Her most recent co-edited book with Bettina Lange and Dania Thomas is *Regulatory Transformations: Rethinking Economy Society Interactions* (Hart 2015).

17

Corruption

Adam Graycar

In opinion polls around the world, corruption is ranked as one of the most serious issues. Corruption is estimated to cost about 5% of global GDP, about USD 3 trillion dollars per year. About USD 1 trillion is paid annually in bribes, and the kleptocrats of this world use their position to loot about USD 40 billion each year. The release of the Panama Papers in 2016 showed the trillions of dollars that bypassed taxation systems around the world.

The Corruption Perception Index (Transparency International 2016)—the most highly regarded assessment of national public sector corruption—ranks New Zealand as one of the least corrupt countries in the world. On several occasions, it has ranked first as the least corrupt out of about 170 countries and has rarely fallen below the third rank. Australia was ranked seventh in 2012, but by 2015, it had fallen to the thirteenth rank. Despite these high rankings of both countries, there do remain problems with corruption. In rich countries, corruption certainly exists, and it is very different from corruption in poor countries but nevertheless troublesome and difficult for the countries concerned.

In its early days, the first European colonial settlement in Australia was characterised by scarcity, violence, alcoholism, and exploitation. The Indigenous population was exploited, as were the many thousands of convicts who were worked very hard and flogged at the slightest indiscretion. Everything was scarce: food, clothing, tools, building materials, and for some time, the main

A. Graycar (✉)
Public Policy, Flinders University, Adelaide, Australia
e-mail: adam.graycar@flinders.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_17

currency was alcohol. Those soldiers who controlled the rum—which was mostly imported—also controlled what came in on the ships and its distribution throughout the colony. Corruption was rife. The governors of the colony were never able to exert much influence over the corrupt robber barons who controlled the rum and the goods. Two centuries on, Australia ranks as one of the least corrupt countries in the world. The explanations for this take longer than space permits here. New Zealand did not have a convict past, but its early settler-colonial days were also fast and loose, though today it substantially outranks Australia as less corrupt.

While bribery and extortion are crimes, things like nepotism, cronyism, and misuse of information are not crimes, but cause damage to our social order. Corruption can have a range of devastating effects such as inefficient public administration, distorted policy objectives, unsafe conditions, reduced protection, and weakened judicial integrity and rule of law. It can reduce tax revenue, discourage investment, hamper economic performance, and undermine national security. It can distort human services delivery, distort natural resource development, and damage the environment. Overall, it diminishes the quality of life and human development. The consequences of corruption are every bit as severe as those of other crimes that are regularly the subject of academic study.

Despite this, criminologists have not studied corruption in the way that they have studied other crimes. The criminological literature is sparse. Long-standing, the study of white collar crime is part of the criminological lexicon. Scholars such as Braithwaite and Geis (1982), Levi and Reuter (2006), Piquero and Albanese (2011), and Geis (2011) have studied both white collar crime and corruption. Zimring and Johnson (2005) have written a criminological overview, and Felson (2011) has brought his keen criminological perspective to corruption in the sweep of history. Building on Clarke's work (1995) on situational crime prevention, Graycar and Sidebottom (2012) have developed a situational approach to corruption, while Graycar and Prenzler (2013) have blended this approach with criminological theory and applied it to a range of specific infractions. Chappell and Polk (2011) have examined corruption in the art world, Siegel (2011) in the diamond trade, Smith and Jorna (2011) in the IT world, and Graycar and Felson (2010) in illegal logging.

Legal scholars go to great pains to define corruption, and very often the debate is about nuances of corruption. One criminological approach is to break the concept into small manageable components so that one can understand, prevent, and respond. In essence, corruption is about breach of trust, in which entrusted office is used for private gain. It involves unauthorised trading of entrusted authority and manifests itself in (a) doing wrong

things, (b) failing to do something one should do, or (c) doing something permissible but purposely doing it in an improper manner. Since many laws and statutes cover these issues, it makes them hard to define and to analyse. However, two points need firmly to be made. Firstly, no corruption is ever the same: the blanket term "corruption" covers many types of behaviours in many different contexts. Secondly, some places are more corrupt than others.

Analysing Corruption

New Zealand and Australia are rich countries, and the dynamics of corruption are different in rich and poor countries. In poor countries, corruption affects the daily lives of the very poorest people. It makes them pay more for access to markets and services that people in rich countries use as a normal right of citizenship. It makes politicians into billionaires because they can manipulate business and the regulation of business and use the state as their own personal plaything. Corruption in rich countries is often about distorting a supposed level playing field, about using cronyism to gain an advantage, and about distorting public administration to gain an advantage by the unauthorised trading in influence and gaining personal benefit along the way. It often involves questionable lobbying, gaming the legislative process, weakening environmental regulation, or sacrificing occupational health and safety concerns to the profits of corporations that provide funds for politicians (Graycar and Monaghan 2015).

Survey work in Australia (McAllister et al. 2012) shows that about 40% of people believe that corruption is increasing, see Table 17.1. The same survey showed that virtually no Australians reported having been asked for a bribe by a government official. Experiences of corruption are different to perceptions of corruption. This was confirmed in focus groups conducted by the author.

Table 17.1 Perception of corruption in Australia overall

In the past 3 years, to what extent has the level of corruption in Australia changed? Has it…	Per cent of respondents (N = 2020)
Increased a lot	20
Increased a little	23
Stayed the same	41
Decreased a little	5
Decreased a lot	2
Don't know	9

Source ANU Poll 2012 (McAllister et al. 2012)

This accords with the situation in many rich countries where people believe corruption is on the increase yet have rarely experienced it themselves.

When we turn to perceptions of corruption, Table 17.2 shows that people in Australia perceive the *least* corrupt organisations to be the military, the police, and the public service. This accords with global surveys in other rich countries and contrasts with perceptions in poorer countries where these three organisations are perceived to be—and are—very corrupt. The organisations perceived, in Australia, to be the *most* corrupt are the media, political parties, and trade unions.

As with other crime, one could examine cultures of corruption, processes which facilitate corruption, or corrupt events. If the unit of analysis is the event, then a clear understanding can be obtained by examining types, activities, sectors, and places (TASP), see Table 17.3.

Table 17.2 Perceptions of corruption in Australia by institution

To what extent do you see the following institutions being affected by corruption? (Australia)	Per cent of respondents (N = 2020)		
	Corrupt	Not corrupt	Difference corrupt–not corrupt
The armed forces	8	69	-61
The public service	13	51	-38
The police	16	56	-40
Political parties	37	22	+15
Trade unions	38	24	+14
The media	44	20	+24

Source ANU Poll 2012 (McAllister et al. 2012)

Table 17.3 Examples of types, activities, sectors and places (TASP) of corruption

Type	Activities	Sectors	Places
•bribery •extortion •misappropriation •self-dealing •patronage •abuse of discretion •misuse of information •creating or exploiting conflict of interest •nepotism, clientelism, and favouritism	•appointing personnel •buying things (procurement) •delivering programmes or services •making things (construction, manufacturing) •rebuilding things (after a disaster) •controlling activities (licensing, regulation, issuing of permits) •administering (justice for example)	•construction •health •tax administration •energy •environment and water •forestry •customs and immigration •legal system •disaster relief •education	•Countries •Regions •Localities •Work places

There are different *types* of corrupt behaviour such as bribery, creating or exploiting a conflict of interest, trading in influence, extortion, misappropriation, and abuse of discretion. These types can be found in various *activities* such as appointing personnel, buying things, delivering programmes or services, controlling activities through licensing and permits, and administering justice, or disaster relief, for example. They occur in different *sectors* such as health, justice, tax administration, energy, and water, and in different *places*, sometimes nation states, but sometimes a local council or a workplace like a police station or a hospital. This framework has been used to explain different forms and contexts of corruption such as corruption in sport (Masters 2015) and corruption in local government (Graycar 2015). It provides an analytical base for intervention.

Much of the corruption literature uses the nation state as the unit of analysis. If the nation state is the unit, then any interventions will necessarily be of a macro-level, legal nature. However, it does not help the analysis to say that Denmark or the Netherlands are less corrupt than Zimbabwe, Iraq, or Somalia. We can focus on corrupt societies, corrupt organisations, or corrupt individuals. But if the unit of analysis is the corrupt event, then the TASP model provides a better base of understanding. Does the corrupt event occur because there is a rotten apple in the barrel? Or is it because the barrel is rotten or is the whole warehouse full of rotten barrels?

Corruption is exceedingly difficult to measure. Although New Zealand and Australia are regarded as low corruption countries, there are often corrupt events that come to light. As with crime statistics, there is considerable underreporting. However, it is particularly pertinent for corruption. In a homicide case, there is a body or a missing person. In a motor vehicle theft or a burglary, there is something tangible that is taken and perhaps recovered and most often an insurance claim. However, in corruption, there is usually collusive and secret behaviour, and it is in the interest of neither party to make their dealings public. So, what we have are the events that come to light, and we have no way of knowing whether these are the bulk of corrupt activities or merely those that are caught, which might be just the tip of the iceberg.

Despite not knowing exactly how much corruption there is in New Zealand and Australia, there are a good number of institutions that pursue corruption. Data sets reflect perceptions of corruption from survey and focus group work and actual cases reported by anti-corruption agencies (ACAs). Bundled together, this does give us some idea of the types of corruption, the activities, sectors, and places. Although New Zealand and Australia display

the characteristics of rich country corruption, bribery is outlawed and much analysis focusses on this phenomenon.

The New Zealand *Crimes Act 1961* prohibits bribery of domestic public officials and specifies separate offences for bribery and corruption of judicial officers, ministers of the Crown, members of parliament, and law enforcement officers. It prohibits both the accepting and receiving of bribes, as well as attempting to offer a bribe to a public official. In Australia, the Commonwealth *Criminal Code Act 1995* makes it an offence for a person or body corporate to give or offer a bribe or corrupting benefit with the intention of influencing a Commonwealth public official in the exercise of their duties. Similarly, Commonwealth public officials are guilty of an offence, if they dishonestly ask for, receive, or obtain a bribe or corrupting benefit. Commonwealth public officials are prohibited from using their office, or any information gained by virtue of their office, with the intention of dishonestly obtaining a benefit or causing a detriment to another person.

Although the legislation applies at the national level, Australia as a federal system has anti-corruption legislation in each state and a set of state-level institutions that pursue corrupt behaviour. They all do it differently. New Zealand, on the other hand, is a unitary system, and there are no differences in the law in different parts of the country. By virtue of their being signatories to the OECD Convention on Combating Bribery of Foreign Public Officials in International Business Transactions, both New Zealand and Australia have criminalised the payment of bribes to foreign officials.

Responding to Corruption

There is a global architecture of corruption control, and both New Zealand and Australia play a part as signatories to the UN Convention against Corruption (UNCAC) and the OECD anti-bribery convention. Civil society is also active in corruption prevention, with Transparency International perhaps the best known civil society organisation in the field, present in both New Zealand and Australia. Some other players are global organisations such as the World Bank, various UN agencies, most notably the UN Office on Drugs and Crime, and the UN Development Programme, the Asian Development Bank, and the EU. Hence, the responses to corruption are many and varied.

Criminalisation, Investigation, Prosecution, and Sanctions

To be a signatory to the UNCAC, a country must criminalise corruption, that is, it must make it illegal for a public official to solicit or accept a bribe or behave corruptly. However, investigation, enforcement, prosecution, and imposition of sanctions can be challenging. This is more of a challenge in poorer countries where such activities may not always be pursued with sufficient independence and may not be sufficiently resourced nor rigorously implemented.

Anti-corruption Agencies

Many countries also have ACAs. Australia has ACAs in all states, but no comprehensive Commonwealth or national ACA. New Zealand has no dedicated ACA, although matters of bribery and corruption are pursued by its Serious Fraud Office (SFO).

Some ACAs work well, such as those in Singapore and Hong Kong, while in some other countries, they have become part of the problem rather than part of the solution. In some countries, there have been examples of ACAs being stacked with cronies of corrupt politicians, and the expectation is that they will turn a blind eye to malfeasance. In other countries, ACAs are used by governments to discredit opponents, often with trumped-up corruption charges. In others, when an ACA is successful, staff can be removed from office, intimidated, and even jailed, as a message to those replacing them not to do the job too well.

Interestingly, those countries at the top of the Corruption Perception Index—meaning the least corrupt ones—tend not to have national ACAs. The only country in the top 10 with a national ACA is Singapore. In general, ACAs have three main functions, namely investigation and detection, anti-corruption education of the public and civil service, and corruption prevention. The balance among these three functions varies widely and changes from time to time.

Structural Reform

Mitigation of corruption sometimes lies in structural reform, whereby the civil service is made more accountable, merit-based, formally organised, and

better paid. This needs to occur within a context of strong institutions of integrity, which includes a parliament and executive that has and is seen to have integrity; a clean and functioning judiciary; an Auditor-General; watchdog agencies like an Ombudsman or an ACA; and whistleblower protection.

Education, Integrity Building, and Mobilisation of the Public

A strong civic culture; vocal advocacy groups; civic education; information and education campaigns aimed at young children; an open media; and mobilisation of the public are all factors that contribute to this set of strategies. It is not possible here to examine all of these response types, so the main focus will be on ACAs.

Anti-corruption Agencies in New Zealand and Australia

As well as the various state ACAs in Australia, there is one Commonwealth ACA which was established in 2006: the Australian Commission for Law Enforcement Integrity (ACLEI) whose sole focus is on corruption in federal law enforcement agencies. Several Commonwealth departments have Inspectors-General, although their roles are confined to very specific operational matters such as taxation, intelligence and security, bankruptcy, and defence personnel.

Commonly, the establishment of an ACA follows some sort of corruption crisis or a crisis of confidence. Governments respond to that crisis by instituting an ACA. Expectations are usually huge, and the pressure on ACAs to deliver is enormous. Expertise and resources are not always sufficient, and unrealistic targets are set that often put the agency at risk. There have been controversies about the performance and directions of ACAs.

Three of Australia's six state ACAs were established in response to a crisis. These were the ACA of NSW established in 1988, the Queensland ACA established in 1989, and the ACA in Western Australia founded in 1996. They were also the first three to be established. When the bill to establish the NSW Independent Commission against Corruption (ICAC) was introduced into the state parliament, the Premier catalogued scandals such as government ministers jailed for bribery, a judge jailed for perverting the course of justice, a

police commissioner and a deputy commissioner who had criminal charges against them, and numerous allegations, investigations, and resignations involving senior police. He concluded his speech with the words: "No government can maintain its claim to legitimacy while there remains the cloud of suspicion and doubt that has hung over government in New South Wales" (NSW Parliament Hansard, 26 May 1988). The then Crime and Misconduct Commission was established in Queensland following the revelations by the Fitzgerald Inquiry of egregious corruption in the Queensland Police, and the complicit support offered by the state government. In Western Australia, the Western Australia Inc. Commission revealed shady deals between the state government and property developers and merchant bankers, and this led to the establishment of the state's Corruption and Crime Commission. The remaining three were established in Tasmania in 2010, and in Victoria and South Australia in 2013. They were founded for a variety of other reasons; partly, state governments were keen to demonstrate that corruption had no place and that any potential corruption activity was taken very seriously, even if there had been no corruption crisis.

The SFO was established in New Zealand in 1990 in response to the collapse of capital markets at the time. The SFO detects, investigates, and prosecutes allegations of criminal fraud. While New Zealand does not have a legally binding definition of corruption, it pursues cases in both the public and private sectors where people "improperly and unlawfully enrich themselves or those close to them, or induce others to do so, by misusing the position in which they are placed" (SFO 2016).

The New Zealand SFO deals only with serious and complex fraud and leaves other fraud matters to the police. Interestingly, it can take matters to prosecution. This is in contrast to Australian ACAs, which are often accused of being toothless in that they have no role in prosecution, and whose investigations do often not result in evidence of a sufficiently robust quality to pass on to the Director of Public Prosecutions. Table 17.4[1] compares the scope and functions of ACAs.

What we want an ACA to be is a matter for debate. In a paper entitled "Watchdogs or guard dogs: Should anti-corruption agencies have teeth?" Kuris (2015) makes the point that watchdogs bark, but rarely bite, while guard dogs are ferocious and bite. Watchdog agencies generally have fewer coercive powers than guard dog agencies, and there are differences on a range of factors such as enforcement powers, public profile, evidentiary standards, disclosure restrictions, and their investigative focus.

Table 17.4 Overview of anti-corruption agencies

Anti-corruption agency	SFO[a]	ACLEI[b]	ICAC[c]	PIC[d]	CMC[e]	ICAC[f]	IC[g]	IBAC[h]	CCC[i]
Jurisdiction	NZ	C'wlth	NSW		Qld	SA	Tas	Vic	WA
Public Service	yes	limited	yes	limited	yes	yes	yes	yes	yes
Police	no	yes	limited	yes	yes	yes	yes	yes	yes
Private Sector[j]	yes	no	yes	no	no	yes[f]	no	limited	no
Legislature	no	no	yes	no	yes	yes	yes	yes	yes
Judiciary	no	no	yes	no	yes	yes	no	yes	yes
Functions									
Investigate/Expose	no[a]	yes	yes	yes	yes	yes	yes	yes	yes
Prevent/Educate	no[a]	yes	yes	yes	yes	yes	yes	yes	yes
Powers									
Entry/Search/Seize	yes	yes	yes	yes	yes	yes	yes	yes	yes
Obtain documents	yes	yes	yes	yes	yes	yes	yes	yes	yes
Compel witnesses	yes	yes	yes	yes	yes	yes	yes	yes	yes
Hearings (Public)	no	yes	yes	yes	yes[k]	limited[f]	limited[g]	yes[k]	yes[k]
(secret/closed)	no	yes	yes	yes	yes	yes	yes	yes	yes
Controlled operations	no	yes	yes	yes	yes	yes	no	yes	yes
Integrity testing	no	yes	no	no	no	no	no	no	yes

(continued)

Table 17.4 (continued)

Anti-corruption agency	SFO[a]	ACLEI[b]	ICAC[c]	PIC[d]	CMC[e]	ICAC[f]	IC[g]	IBAC[h]	CCC[i]
Confiscation of profits	yes	yes	yes	yes	yes	no	no	yes	yes
Whistleblower protection	yes	yes	yes	yes	yes	yes	yes	yes	yes
Audio/visual /data/phone surveillance	yes[a]	yes	yes	yes	yes	yes	yes	yes	yes

[a]*Serious Fraud Office Act 1990* (NZ). The SFO investigates corruption at the direction of government and its own discretion, not via an anti-corruption legislative mandate. This also applies for its prevention/education function (TI NZ, 2013, p. 191). Police are seconded to the SFO. Constables can apply for surveillance under the *Search and Surveillance Act 2012* (NZ)
[b]*Law Enforcement Integrity Commission Act 2006* (Cth) ACLEI oversights the ACC, AFP, ACBPS, the former NCA, AUSTRAC, CrimTrac and certain bio-security functions of DAFF only
[c]*Independent Commission Against Corruption Act 1988* (NSW)
[d]*Police Integrity Commission Act 1996* (NSW)
[e]*Crime and Corruption Act 2001* (Qld)
[f]*Independent Commission Against Corruption Act 2012* (SA). The definition of corruption in the SA ICAC Act includes offences related to bribery (by another person) (s.5(1)(a)(i)) and threatening or intimidating a public official in the performance of his or her duty (s.5(1)(a)(ii)). A court order is required to make an SA ICAC hearing public (s.55)
[g]*Integrity Commission Act 2009* (Tas). The IC Act does not expressly provide for the Integrity Tribunal to hold public hearings, but under s.69 the Integrity Tribunal may conduct an inquiry in any manner it considers appropriate and may determine its procedure in conducting an inquiry
[h]*Independent Broad-based Anti-Corruption Commission Act 2011* (Vic)
[i]*Corruption and Crime Commission Act 2003* (WA)
[j]Other than former public officials
[k]IBAC, CMC & CCC can hold public hearings, but generally they are held in private

The NSW ICAC has been running two investigations, Operation Credo and Operation Spicer (ICAC NSW 2016), which involve NSW public officials and members of Parliament. Operation Credo pertains to the Australian Water Holdings Pty Ltd (AWH) and involves allegations concerning corrupt conduct. Operation Spicer pertains to the same company but involves allegations concerning soliciting, receiving, and concealing payments. Both investigations have been protracted and are—at the time of writing—a long way from legal finalisation. In Operation Credo, the ICAC is investigating allegations that persons with an interest in AWH obtained a financial benefit through adversely affecting the official functions of Sydney Water Corporation. The Commission is also investigating whether public officials and others were involved in the falsification of a Cabinet Minute relating to a public–private partnership proposal made by AWH intended to mislead the NSW Government Budget Cabinet Committee and obtain a benefit for AWH and other related matters. In Operation Spicer, the ICAC is investigating allegations that certain members of Parliament and others corruptly solicited, received, and concealed payments from various sources in return for certain members of Parliament and others favouring the interests of those responsible for the payments. It is also alleged that certain members of Parliament and others solicited and failed to disclose political donations from companies. During the process, it often seemed that all the ICAC could do was bark. However, barking often enough and loudly enough brought attention to the matters and laid the way for next steps.

At times, ACAs are criticised for their success, and pushback occurs. In 2015/2016, the NSW ICAC was accused of exceeding its mandate, and a series of court cases ensued. These related to the ICAC pursuing a case against a senior public official who was involved in a driving incident. Overreach and pushback are finely balanced and are a challenge for ACAs across the world.

Despite the differences in population, the volume of complaints is much higher in Australia than in New Zealand. The 2015 Annual Report of the SFO reported that it received 536 complaints, launched 15 investigations and 6 prosecutions. Of the investigations, five were corruption-related.

Figures 17.1 and 17.2 show complaints received by two Australian ACAs in a year, and the numbers are in the order of 12,000 in Queensland and 6000 in Western Australia. Of particular interest is that the vast majority of complaints in both jurisdictions were not about corruption but about misconduct or maladministration. Many of these complaints were about minor officials who ripped the system off or performed badly or inappropriately but not corruptly in their dealings with the public or their work colleagues. Many of the complaints were difficult to substantiate, and some were vexatious.

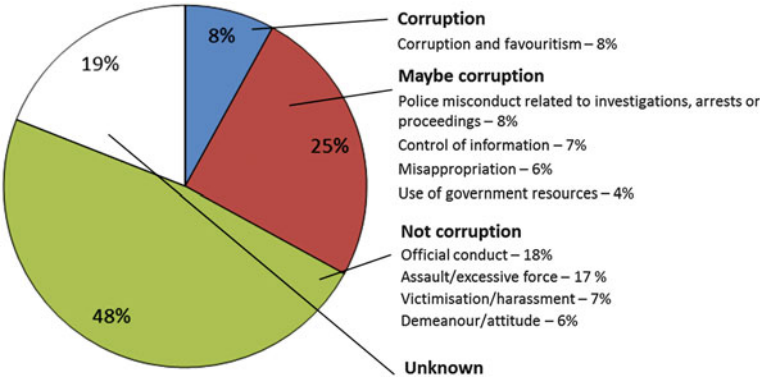


Fig. 17.1 CMC (Queensland) allegations 2011/2012 (*N* = 12,559) *Source* Author research

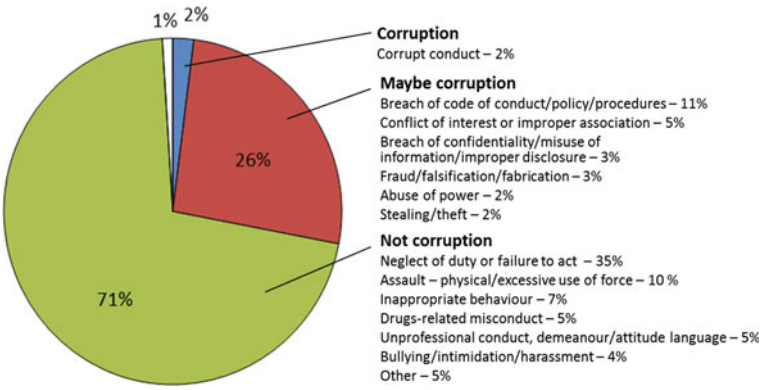


Fig. 17.2 CCC (Western Australia) allegations 2011/2012 (*N* = 5912) *Source* Author research

Figure 17.3 shows that the ICAC in NSW receives about 3000 complaints per year, and less than 1% leads to an investigation. The investigations are usually about "tigers" and the ICAC barks more than it bites. It does, however, raise a great deal of public awareness.

The UNCAC frames prevention through criminalisation. Success through criminalisation depends on the quality of enforcement and the willingness to pursue corruption. Many poorer countries lack the resources for enforcement, and the political willingness to commit resources.

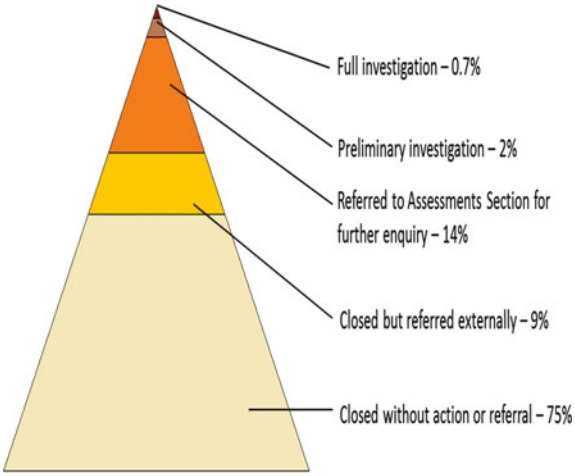


Fig. 17.3 ICAC (NSW) responses to complaints received 2011/2012 (*N* = 2978) *Source* Author research

Other Approaches

Other approaches, which might come into play here, are the macro approach of strengthening institutions and pillars of integrity, enhancing the rule of law, and valuing civil society. Australia and New Zealand are regarded as having robust institutions, a commitment to the rule of law, and freedom for civil society and the media. This is not to say that the institutions are perfect in Australia and New Zealand and that there is no need for further integrity building.

A second general approach to prevention takes its cue from situational crime prevention. Specific actions can be put into place by increasing the effort that has to be exerted for behaving corruptly; by increasing the risks of corrupt behaviour; by reducing the rewards of corrupt behaviour; and by removing excuses for corrupt behaviour. These specific actions complement the TASP framework that focusses on corrupt events and thus permits the design of specific interventions.

For example, increasing the effort that has to be exerted for behaving corruptly might include better work processes, audit systems, and banking controls. Increasing the risk might include natural surveillance, extended guardianship, reduced anonymity of public servants, and limited discretion of public servants. Reducing the rewards would include penalties, removal of targets, dismissal, and delayed promotion, while removing excuses might

Table 17.5 Suspected and observed corruption within current organisation, Victoria, as percentage of respondents (*N* = 893)

Corruption in department/agency	Opportunity	Suspected	Observed
Hiring friends or family for public service jobs	53	38	25
Conflict of interest	72	38	20
Misuse of information or material	68	32	15
Abuse of discretion	58	28	15
Hiring one's own company, or the company belonging to close associates or relatives to provide public services	33	18	9
Perverting the course of justice	16	3	2
Bribery	32	4	1
Don't know	3	6	4
Prefer not to say	0	1	4

Source Author survey

include reducing provocations, frustration, and stress; neutralising peer pressure; setting rules; and increasing public awareness.[2]

What has happened in Australia and New Zealand is that the unit for understanding and preventing corruption is not the nation state but rather the corrupt event. While there are corrupt individuals, corrupt organisations, and corrupt societies or regimes, using the event as the unit of analysis makes for realistic intervention.

Turning to practical experiences of corruption in the bureaucracy in one Australian state, Victoria, survey questions to senior public servants probed which activities were deemed to be corruptible, and ones which they had actually observed. Table 17.5 shows the responses for several corrupt behaviours and moves from respondents' belief that there is an opportunity for this behaviour to exist, to their suspicions and their actual observations.

Conclusion

New Zealand and Australia are ranked among the least corrupt nations. However, this does not mean that corrupt events do not take place. The institutional framework in both countries respects the rule of law and there is an open debate about government and other questionable behaviour. This contrasts with the situation in many poorer countries, as does the nature of corrupt activity observed. As corruption follows opportunity, analysing events within a situational prevention framework can provide a solid basis for intervention and prevention.

Notes

1. I am grateful to Dr Adam Masters who constructed this table.
2. Work is currently under way on a matrix of interventions that plots each of these interventions against TASP.

References

Braithwaite, John, and Gilbert Geis. 1982. On Theory and Action for Corporate Crime Control. *Crime and Delinquency* 28 (2): 292–314.

Chappell, Duncan, and Kenneth Polk. 2011. Corrupt Practices in the Global Trade in Art and Antiquities. In *Handbook of Global Research and Practice in Corruption*, eds. Adam Graycar, and Russell G. Smith, 241–254. Cheltenham: Edward Elgar.

Clarke, Ronald V. 1995. Situational Crime Prevention. *Crime and Justice* 19: 91–150.

Felson, Marcus. 2011. Corruption in the Broad Sweep of History. In *Handbook of Global Research and Practice of Corruption*, eds. Adam Graycar, and Russell G. Smith, 12–17. Cheltenham: Edward Elgar.

Geis, Gilbert. 2011. *White-Collar and Corporate Crime: A Documentary and Reference Guide*. Santa Barbara, CA: ABC-CLIO.

Graycar, Adam. 2015. Corruption: Classification and Analysis. *Policy and Society* 34 (2): 87–96.

Graycar, Adam, and Marcus Felson. 2010. Situational Prevention of Organised Timber Theft and Related Corruption. In *Situational Prevention of Organised Crimes*, eds. Karen Bullock, Ronald V. Clarke, and Nick Tilley, 81–92. Cullompton: Willan.

Graycar, Adam, and Olivia Monaghan. 2015. Rich Country Corruption. *International Journal of Public Administration* 38: 586–595.

Graycar, Adam, and Tim Prenzler. 2013. *Understanding and Preventing Corruption*. Basingstoke: Palgrave Macmillan.

Graycar, Adam, and Aiden Sidebottom. 2012. Corruption and Control: A Corruption Reduction Approach. *Journal of Financial Crime* 19 (4): 384–399.

ICAC NSW. 2016. Current Investigations. https://www.icac.nsw.gov.au/investigations/current-investigations. Accessed 8 Sep.

Kuris, Gabriel. 2015. Watchdogs or Guard Dogs: Should Anti-Corruption Agencies Have Teeth? *Policy and Society* 34 (2): 125–136.

Levi, Michael, and Peter Reuter. 2006. Money Laundering. *Crime and Justice* 34 (1): 289–375.

Masters, Adam. 2015. Corruption in Sport: From the Playing Field to the Field of Policy. *Policy and Society* 34 (2): 111–123.

McAllister, Ian, Juliet Pietsch, and Adam Graycar. 2012. *ANU Poll: Perceptions of Corruption and Ethical Conduct*. Canberra: ANU.

Piquero, Nicole L., and Jay Albanese. 2011. The Relationship between Corruption and Financial Crime. In *Handbook of Global Research and Practice in Corruption*, eds. Adam Graycar, and Russell G. Smith, 189–202. Cheltenham: Edward Elgar.

Siegel, Dina. 2011. Corruption and the Global Diamond Trade. In *Handbook of Global Research and Practice in Corruption*, eds. Adam Graycar, and Russell G. Smith, 224–240. Cheltenham: Edward Elgar.

SFO. 2016. What is Corruption? https://www.sfo.govt.nz/what-is-corruption. Accessed 8 Sep.

Smith, Russell G., and Penny Jorna. 2011. Corrupt Misuse of Information and Communications Technology. In *Handbook of Global Research and Practice in Corruption*, eds. Adam Graycar, and Russell G. Smith, 255–281. Cheltenham: Edward Elgar.

Transparency International. 2016. Corruption Perception Index 2015. http://www.transparency.org/cpi2015. Accessed 8 Sep.

Zimring, Franklin E., and David T. Johnson. 2005. On the Comparative Study of Corruption. *British Journal of Criminology* 45 (6): 793–809.

Author Biography

Adam Graycar is Professor of Public Policy at Flinders University. He studies corruption in rich and poor countries and works with agencies like the UN Office of Drugs and Crime and the World Bank. He was the longest serving AIC Director. Other prior posts include ANU and Dean of the School of Criminal Justice at Rutgers, the State University of New Jersey, USA.

18

Fraud Victimisation and Prevention

Tim Prenzler

Every year a tsunami of fraud breaks across the shores of Australia and New Zealand, flooding each country and leaving a tangle of wreckage in its wake. Over a million victims suffer diverse losses, and many of these cases are catastrophic. The evidence regarding dimensions and trends is complex. Australian figures suggest increasing levels of victimisation, while the figures for New Zealand indicate both decreases and increases. Increases appear to be associated with the ongoing proliferation of opportunities through technological innovations, especially through the Internet and electronic financial transactions. The chapter begins with a brief historical and international review of the fraud problem. It then reports on issues of definition and measurement in Australia and New Zealand, the main trends and dimensions of officially recorded fraud in the two countries, and some high-profile cases. The chapter concludes by describing and evaluating enforcement and prevention efforts. There is a great deal of activity in this space, although it is difficult not to conclude that authorities in both countries are largely ineffective and that much more needs to be done in both restitution to victims and primary prevention.

T. Prenzler (✉)
University of the Sunshine Coast, Sippy Downs, Australia
e-mail: tprenzler@usc.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_18

Background

'Fraud' involves obtaining a benefit, usually money or property, by deception in a way that is considered unfair and unethical or in breach of law. Fraud has a long history, going back to some of the first human records. The Biblical Book of Leviticus (19:11) states "You shall not steal, nor deal falsely, nor lie to one another". Skill in deception can provide a significant evolutionary advantage in the brutal competition to survive and prosper on planet earth. Fraud is widespread in the animal and plant worlds, deployed as a means of obtaining food, territory, sex, and offspring; with reduced risk of retaliation compared to direct forms of predation (Roach and Pease 2013). In human society, the development of writing and written agreements greatly enhanced opportunities for fraud. The growth of capitalism and world trade from the seventeenth century also facilitated fraud in contracts and advertising. One of the largest financial crashes—the so-called South Seas Bubble—in the early 1700s was associated with false claims regarding profits from company stocks (Friedrichs 2007).

Despite improvements in policing and the growth of specialist regulatory agencies in the latter part of the twentieth century, fraud remains an enormous problem internationally. Some economists have cited fraud as the primary cause of the massive Global Financial Crisis of 2007/2008 when major private and public companies in the USA exaggerated earnings and inflated investments until an inevitable bust followed the boom (Friedrichs 2010). The arrest of Bernie Madoff in 2008 marked the exposure of one of the largest frauds in world history. Madoff's 'Ponzi' scheme involved false income reports, fictitious investments, and financing of dividends from new clients. Losses may have been as high as USD 20 billion, involving tens of thousands of victims (Larson 2016). Many of the victims were ordinary American workers and retirees.

International estimates of the size of the contemporary fraud problem vary enormously. A recent global study by Gee and Button (2015) concluded that fraud entailed USD 75.6 trillion in losses to organisations in 2013, averaging 6% of expenditures. A study in the European Union, also for 2013, put the cost of fraud to individual victims at EUR 79 billion (Levi et al. 2013). In the UK, the 2014 business crime survey found that 8% of retail and wholesale premises were victims of fraud, involving 240,000 cases (Home Office 2015). The EU study by Levi et al. (2013) put the cost of payment card fraud in the UK in 2013 at EUR 1.16 billion and insurance fraud at EUR 1 billion.

The 2016 PricewaterhouseCoopers (PWC) Global Economic Crime Survey involved respondents from over 6000 companies. A major finding was that there were ongoing high rates of victimisation, with an overall slight downward trend from 43% in 2001 to 36% (PWC 2016). Most losses involved some type of fraud, with both stability and change in the categories: "Most 'traditional' frauds (such as asset misappropriation, accounting fraud, and bribery and corruption) have fallen somewhat from their 2014 levels. Other crimes—notably cybercrime, money laundering and insider trading—have either stayed at the same level or increased, with cybercrime jumping by a third (32% versus 24%) in just two years" (PWC 2016, 27).

Defining and Measuring Fraud in Australia and New Zealand

Defining and measuring fraud entail the same challenges that apply to most crimes, with the potential for overlapping categories, different counting systems—such as numbers of offences, individual victims, repeat victims—and underreporting. In Australia and New Zealand, for the purposes of statistical reporting on crime, the governments of both countries have agreed to the Australian and New Zealand Standard Offence Classification (ANZSOC) (ABS 2011). The overarching category for fraud is Division 9 'Fraud, deception and related offences'. This brings together a range of offences from criminal law and related laws in the Australian jurisdictions and New Zealand. The division includes the following primary divisions: "Obtain benefit by deception", "Forgery and counterfeiting", "Deceptive business/government practices" and "Other fraud and deception offences" (ABS 2011, 16).

Australia has diverse measures of fraud of variable quality. The ABS annual *Crime Victimisation Survey*, which covers 'personal crime' and 'household crime', and the R*ecorded Crime— Victims* report do not contain data on fraud each year, although there is an occasional report on 'personal fraud' as a component of the survey (ABS 2015, 2016a, c). The ABS series *Criminal Courts* contains the number of 'defendants proven guilty' of fraud (ABS 2016b). A major source for many years has been the AIC's annual series *Australian Crime: Facts and Figures*. These reports attempt to standardise data collected from the eight jurisdictions to provide a consistent national picture over time. *Facts and Figures* included numbers of fraud cases recorded by state and territory police agencies and the Australian Payments Clearing Association up to 2014 (AIC 2014). Subsequent reports summarised data on

'scams' from the Australian Competition and Consumer Commission (ACCC) (AIC 2016). However, plans are in train to revive the reporting of numbers recorded by police (AIC, pers. comm.). The AIC also provides occasional reports on the costs of crime, which include data on fraud, and crimes against the Commonwealth.

The ACCC annual reports *Targeting Scams* is a major annual source for Australia. The Commission reports on 'scam-related contacts' received through its online reporting facility Scamwatch (ACCC 2011, 2016). These appear to involve complaints of both attempted and successful scams, but this is not completely clear. Trend data are available for seven years, and the reports include a range of variables such as dollar losses, types of scams, and demographics of victims. Data on fraud are also provided by various other specialist agencies, such as state and federal consumer protection agencies and business regulators, including the Australian Securities and Investments Commission (ASIC).

The main source for fraud data in New Zealand is Statistics New Zealand (2015, 2016a), which reports crimes recorded by police and convicted offenders in the ANZSOC category. The New Zealand government carries out a periodic *Crime and Safety Survey* of residents. Unfortunately, the survey does not include fraud (Ministry of Justice 2014). Some data are also available from the Serious Fraud Office (SFO) and the Ministry of Business, Innovation and Employment. Neither Australia nor New Zealand has a regular business crime survey.

Dimensions and Trends

Table 18.1 shows the main criminal justice data on fraud in Australia and New Zealand from 1995/1996 to 2014/2015. Overall, the data set shows a complex and divergent picture. In Australia, there was a very moderate downward trend in cases recorded by police followed by an upsurge in the last few years. Available data on persons convicted in the criminal courts showed convictions ensued in 10% of fraud cases. New Zealand data show a quite different picture, with a large downward trend in recorded cases, amounting to an extraordinary fall of 83% from 1030 per 100,000 in 1996 to 177 in 2013, and a 25% conviction rate for the last five years on record. NZ Police were contacted for an explanation, who suggested that the downward rate most likely represents a trend away from reporting (NZ Police, pers. comm.).

Table 18.1 Recorded fraud cases Australia and New Zealand, 1995/1996 to 2014/2015

	Australia			New Zealand		
Year	Cases	Rate per 100,000	Offenders	Cases	Rate per 100,000	Offenders
1995/1996	91,495	502		38,478	1,030	3,102
1996/1997	101,256	550		36,446	963	3,091
1997/1998	109,404	588		28,374	743	3,545
1998/1999	112,209	596		23,617	615	3,910
1999/2000	112,264	590		22,951	594	3,807
2000/2001	106,141	551		23,364	601	3,576
2001/2002	109,080	560		22,297	564	3,755
2002/2003	108,940	552		23,636	586	3,583
2003/2004	102,863	516		18,876	461	3,091
2004/2005	89,198	442		13,971	337	2,489
2005/2006	101,222	495		12,869	307	2,432
2006/2007	95,605	459		13,112	310	2,297
2007/2008	93,894	442		13,422	314	2,417
2008/2009	95,032	438		14,765	343	2,416
2009/2010	87,734	398		10,989	252	2,259
2010/2011	87,099	390	11,582	8,953	204	2,081
2011/2012	99,605	438	10,138	8,329	188	2,362
2012/2013	120,778	522	10,450	7,906	177	2,046
2013/2014	126,458	539	11,128	8,594	190	2,356
2014/2015	133,918	561	11,241			1,818

Sources AIC (2014) and personal communication (27 May 2016), ABS (2016b), and Statistics New Zealand (2015, 2016a, b)

Notes For Australia, consistent offender numbers are not available prior to 2010/2011; NSW 2009/2010 to 2014/2015 for calendar year; Tasmania 'counting rules were amended in 2011/2012 from offence (transaction) based counting to victim-based counting'; Victoria fraud reporting changed to calendar year in 2014/2015. The 2015 Australian population is for September. New Zealand data are for the calendar year

The 2015 ACCC report on scams shows an upward trend in the number of scam-related contacts, from approximately 20,000 in 2009 to 105,201 in 2015 (ACCC 2016). There was an initial sharp increase in contacts that most likely occurred in response to the ACCC's campaigns, while the upward trend in recent years is roughly consistent with the increase in police numbers shown in Table 18.1. In 2015, losses associated with scams reported to the ACCC amounted to AUD 84.9 million, entailing a moderate increase from AUD 81.8 million in 2014. For 2015, the ACCC combined its own Scamwatch data with those from the Australian Cybercrime Online Reporting Network (ACORN), which indicated losses over AUD 229 million. The ACCC report for 2015 also noted that the Commission received reports of losses from investment scams that "almost doubled to over $24 million with six people

reporting individual losses of over $1 million" (ACCC 2016, 1). The top ten types of scams, in terms of losses, were as follows (27):

1. Investment schemes: $24,447,716
2. Dating & romance: $22,737,257
3. Computer prediction software & sports investment schemes: $5,534,878
4. Nigerian scams: $4,549,807
5. Inheritance scams: $4,391,630
6. ID theft involving spam or phishing: $1,816,361
7. Fake trader websites: $1,458,858
8. Unexpected prize & lottery scams: $1,337,296
9. Reclaim scams: $1,331,063
10. Job & employment: $952,742.

The ACCC report also showed an increase in the proportion of scams perpetrated by phone, from 33.4% in 2010 to 40.9% in 2015. This is perhaps surprising, given the growth of the Internet and reduced public phone number listings. At the same time, while in 2015 the category 'internet' was associated with only 8.0% of scams, 'email' delivery increased from 19.4% to 27.7%. The scams reported in 2015 appeared to be fairly evenly distributed across age categories, although persons 65 years and over reported greater losses (ACCC 2016). Available data on gender indicated that 41% of victims were female and 34% male, but males suffered higher losses.

The ABS *Crime Victimisation Survey* includes offences not officially reported or recorded. The results are markedly at odds with the figures published by police and the ACCC, although they also show an upwards trend. The most recent main finding was that in 2014/2015, 8.5% of the sample—equating to 1.6 million persons in the population aged 15 and over—said they had been victimised (ABS 2016c). This was more than 10 times the police and ACCC figures. It also represented an increase from 6.7% in the 2010/2011 survey and 5.0% in the first survey, conducted in 2007 (ABS 2008).

Further analysis of the 2014/2015 ABS survey, compared to the 2010/2011 survey, showed the following (ABS 2016c, 1–2):

> The most common fraud type was card fraud with 1.1 million persons (or 5.9% of the population aged 15 and over) experiencing card fraud, an increase from 2010–11 when the rate was 3.7%… Just under a third (31%) of persons experiencing card fraud reported experiencing two or more incidents … An estimated 126,300 persons in Australia were victims of identity theft (or 0.7%

> of the population aged 15 and over). The majority of persons who experienced identity theft experienced a single incident (103,400 or 82%). … Just over half of the Australian population aged 15 and over were exposed to at least one scam (56% or 10.4 million persons). This was an increase from 2010–11, when the proportion of persons exposed to at least one scam was 36% (6.4 million). … Nationally, 4% (449,100) of persons exposed to a scam also responded to at least one scam, either by supplying personal information, money or both, or by seeking more information in relation to the request… Three-quarters (1.2 million or 75%) of persons who experienced personal fraud incurred a financial loss. The total estimated financial loss as a result of all personal fraud incidents was $3 billion dollars. … The total estimated financial loss to card fraud in 2014–15 was $2.1 billion, which was double the total amount lost to card fraud in 2010–11 ($1.0 billion). However, the financial loss after reimbursement (out of pocket loss) decreased between 2010–11 and 2014–15, from $208.9 million to $84.8 million.

The financial costs of crime have been documented in Australia by the AIC in a set of occasional reports which include crimes against business and government. The most recent report attributed AUD 6.05 billion in losses to fraud in 2011, making up the largest category of crime costs at 26.2% of direct losses and 12.7% of all costs including responses to crime such as insurance and investigations (Smith et al. 2014). The most recent AIC report on fraud against the Australian government, based on surveys of government departments, found rates of victimisation of 40% in 2010/2011 and 2012/2013, and 43% in 2011/2012 (Jorna and Smith 2015). Estimated losses increased from AUD 119 million in 2010/2011 to AUD 207 million in 2012/2013.

In New Zealand, the SFO logged 536 complaints in 2015. However, the details of cases were not reported (SFO 2015). Complaints trended upwards from 440 in 2010/2011. Apart from the police data shown in Table 18.1, some other data are available for 2010 to 2012, generated by a Consumer Fraud Working Group in the New Zealand Ministry of Business, Innovation and Employment. The brief report claimed that there were 4,204 cases of attempted scams reported in 2012, involving 727 persons who lost money, averaging NZD 5,464 per person and totalling NZD 4 million. An increase in losses in 2012 was explained in terms of increases in investment scams (MBIE 2013, 1):

> Losses to investment-related scams such as boiler room fraud rose by 77 per cent last year. People that fall prey to investment scams can lose very large sums of money – with three people losing more than $150,000 each. … The group

> also saw a large increase in the amount lost to dating scams – more than $2.2 m in losses compared to $900,000 in 2011. … These scams can see the victims emotionally devastated and lose their life's savings. Fraudsters usually befriend vulnerable people online and later claim to urgently need large sums of money for an overseas financial emergency. Three people lost over $100,000 each last year.

High-Profile Cases

Australia and New Zealand have no shortage of high-profile, indeed spectacular, cases to illustrate the potential for bold large frauds. These, at times, involve companies that are household names and provide essential services to millions of citizens. Some of the more recent cases that attracted media attention include the following.

In 2007, the Federal Court of Australia imposed penalties and costs amounting to over AUD 40 million on Visy Board Industries for cartel activity. Visy conspired with competitors to fix prices above the market rate. The scam was estimated to have generated an extra AUD 84 billion in profits (Ransley and Prenzler 2015).

In 2011, the Australian National Audit Office published an assessment of the 'complementary medicines' market (ANAO 2011). The report found that 90% of products were not compliant with standards in safety, quality, labelling, and evidence of efficacy. The assessment applied to approximately 10,000 vitamins, minerals, and herbal and homoeopathic medications; amounting to AUD 1.2 billion worth of sales in one year alone.

In 2015, supermarket giant Coles was fined AUD 2.5 million over misleading advertising of a bread product, following prosecution by the ACCC. Coles had used the slogan 'Freshly Baked In-Store', when the bread was made and partly baked overseas and simply heated and finished off in the store; creating an appetising aroma. The scam was estimated to have contributed to AUD 15 million in bread sales over three years (Farnsworth 2015).

In 2016, action by the ACCC resulted in Reckitt Benckiser being fined AUD 1.7 million for false and misleading advertising in its Nurofen pain relief range (Carter 2015). Nurofen had promoted four 'specific pain products', which claimed to target migraines, period pain, back pain, and tension headaches. In fact, the ingredients of the four products were identical.

Michael Swann served four years and eight months in prison for fraud worth NZD 17 million after being convicted in 2008. Swann had been IT

manager for the Otago District Health Board and falsely invoiced the board for computer services. The fraud funded his taste for boats, houses, holidays, and luxury cars (Elder 2013).

A Mighty River Power engineer involved in purchasing created companies in his wife's name and bought parts from the companies at inflated prices. It was estimated the scam generated NZD 2.2 million between 2005 and 2012 (Anthony 2016).

Law Enforcement and Fraud Prevention

In May 2016, the ABC TV programme *Lateline* ran a story on online fraud. It revealed there was only one place where victims of identity theft in Australia and New Zealand could obtain free assistance; at a regional University centre called ID Care (Lateline 2016). The service included mental health referrals for both the trauma of victimisation and the trauma of dealing with authorities. The story included a case in which a retired couple in Queensland were being systematically fleeced of their retirement investments through false emails sent to their financial advisors giving instructions for the sale of shares and banking of the proceedings in an alternative account. The couple claimed that when they took the matter to the Queensland Police Service they were turned away and referred to ACORN. At the ACORN website, they filled out an online form and waited for a response. The husband summarised the response as follows: "There was no assistance, there was just nothing. It was just, 'Report this thing on ACORN'. When you do a little later, they send you an email confirming it and giving you a number and then that's it. That's all you know" (McDonald as cited in Lateline 2016).

The story of the Queensland couple appears fairly representative of the experiences of victims of fraud in Australia and New Zealand, exemplifying the major problems of under-enforcement and regulatory failure. This was evidenced in part by the fact that convictions for fraud amounted to 10% of offences recorded by police in Australia (see Table 18.1). At the national level, the ACCC is the premier agency for fighting fraud. The Commission chairs the Australasian Consumer Fraud Taskforce involving 22 agencies from Australia and New Zealand. The website of the Taskforce gives no clues as to any concrete achievements (see Scamwatch 2016). The ACCC's own 'scam disruption activities' are summarised as follows (2016, 2–3):

- educating the public on how to identify and protect themselves from scams by maintaining the Scamwatch website and through the use of social media.
- enforcement of consumer protection legislation when this is considered to be an effective tool to stop the conduct and deter others from perpetrating similar scams…
- The ACCC's Scam Disruption Project involves the use of financial intelligence to identify Australians sending funds to high risk jurisdictions… Over 3,700 letters were sent by the ACCC in 2015 encouraging recipients to contact the ACCC to discuss their situation … Of those who received the ACCC's warning letter, 75 per cent stopped sending money to those jurisdictions within six weeks…
- The ACCC's Little Black Book of Scams increased in popularity with 235,057 copies distributed in 2015.

It is clear from the upwards trend in incidents that these strategies had only a very limited effect at best. The massive scale of the under-enforcement problem can also be seen in the case disposition data reported by the ACCC in Table 18.2. "Litigation"—amounting to 0.016% of recorded contacts—was generally successful in terms of large penalties in the hundreds of thousands of dollars; as well as various "undertakings", "declarations", "injunctions", "corrective notices", and other legal outcomes. However, the overall effect was difficult to interpret, especially in terms of practical positive achievements in helping victims or reducing opportunities for fraud (ACCC 2015, 353–359).

ASIC reports present a similar profile. In 2014/2015, there was a great deal of activity but very little evidence of prevention, enforcement, or restitution (ASIC 2015). ASIC had a budget of AUD 343 million and 1844 staff. Recent complaint trends were reported in a positive frame as follows. "In 2014–15, we dealt with 9669 reports of alleged misconduct, 8% fewer than in 2013–14. This is the lowest level since 2004–05. The decline is more marked given our expanded jurisdiction over this time—to cover consumer credit in 2010

Table 18.2 ACCC, complaint actions, 2014/2015

Contacts received (phone, email and letters)	260,343
Contacts recorded in the database	165,544
Under-assessments commenced	1,062
Initial investigations commenced	584
In-depth investigations commenced	100
Litigation	27

Source ACCC (2015, 11)

(14% of reports in 2014–15) and business names in 2013 (4% of reports in 2014–15)" (ASIC 2015, 72).

The problem, however, is that there was no explanation for the downward trend related to ASIC's work. In 2014/2015, only 143 investigations were completed; and only 18 cases of "criminal litigation" were completed; with 17 convictions and 9 people imprisoned (ASIC 2015). Fines amounted to a total of AUD 40,000. Forty people were barred from serving as company directors. A mere AUD 943,418 in compensation was obtained for victims, with no information on how this was distributed.

The problem of under-regulation extends well beyond police, the ACCC, ASIC, and ACORN. The Australian Taxation Office is frequently criticised for failing to pursue suspected fraud (see Thomson 2015). The ANAO review of complementary medicines condemned the "light touch" regulatory process —largely a "self-assessment" exercise—adopted by the Therapeutic Goods Administration (ANAO 2011). We can also see that regulators are reluctant to engage in criminal prosecutions, even when deliberate conduct such as false advertising results in a clear financial benefit. There is also a chronic inability of regulators, such as corruption agencies, to deal with fraud in politics: including false promises, influence peddling through gifts and donations, and misuse of expense accounts (Prenzler 2013).

In New Zealand, the most prominent response to the fraud problem was the creation of the SFO as an independent government entity in 1990. The SFO (2015, 6) is tasked with "reducing the impact of serious financial crime". In 2015, it had 48 staff and a budget of NZD 9.5 million. The SFO has claimed success in exposing and stopping a number of major cases and bringing offenders to justice. However, the strategies adopted by the SFO appear to involve a simple investigate-and-prosecute model. A 2014 review noted "a lack of systemic or strategic future focus on financial crime" (SFO 2015, 11). While the SFO logged 536 complaints in 2015, it initiated just 15 investigations, with no data on outcomes. The SFO had adopted a performance measure that involved a survey of "complainants and victims". One question concerned whether or not, "the actions of the SFO make a difference and help deter serious financial crime" (SFO 2015, 7). In 2011/2012, 65% of respondents agreed, dropping to 38% in 2013/2014. In 2014/2015, the survey was discontinued.

In their 2015 annual report, NZ Police made the following comments on fraud (2015, 99):

> Police has seen rising demand from emerging crime types such as cybercrime, human and drug trafficking, child grooming, online radicalisation, organised crime, identity theft and other fraud offences. Much of this growing demand is not fully captured in existing crime statistics and is often relatively 'invisible' to communities. Such cases are often difficult to detect and complex to resolve–for example cyber and other online offences can span multiple jurisdictions and crime may be committed in New Zealand without offenders ever setting foot here. To stay ahead of this demand Police is developing new intelligence and investigative capabilities, reallocating resources and building effective international partnerships.

Oddly then, this is the only reference to fraud in the report, other than some lines about working with the SFO, and no data on fraud are included in the report.

The absence of systematically evaluated reports of deliberate and successful fraud reduction projects appears as a common problem beyond Australia and New Zealand. There are very few studies on successful fraud reduction in the literature. Data matching has shown significant benefits, and some studies have shown benefits from enhanced identification procedures, reporting hotlines, and auditing (Prenzler 2016). One of the more promising but underdeveloped ideas for prevention—an idea generated in part by practitioners—involves pre-emption through environmental scans that allow embryonic fraud to be identified and shut down (Hayes and Prenzler 2003).

In Australia, there is one study by Prenzler (2016) showing very large sustained reductions in fraud in the area of welfare. A long-term upward trend in prosecutions and convictions for welfare fraud was turned around over a two-year period, with a 76% drop in convictions from an average per annum of 3,674 across 2007/2008–2009/2010 to 868 per annum across 2012/2013–2014/2015. The dollar value related to convictions showed a 60% reduction from AUD 41.2 billion to AUD 16.7 billion. Centrelink claimed the reductions followed mainly from the introduction of an early intervention system—involving direct communication with clients—and a shift in investigations to larger frauds. However, cause-and-effect relationships could not be properly isolated, and it was possible that there was simply a change in policy regarding prosecutions following a legal test case that undermined the assumption of intent that had supported the previous prosecution process. Up to that point, Centrelink and the public prosecutor simply churned thousands of cases through the courts each year, two-thirds of which involved women in often difficult financial circumstances (Prenzler 2016).

Conclusion

This brief analysis of issues related to fraud presents a disturbing picture. Victimisation rates in Australia and New Zealand show divergent tracks. However, in both countries fraud remains a significant ongoing problem. Advancing technology is clearly part of the problem, especially in terms of enlarged means of reaching targets through the Internet. Despite the size of the problem, combatting fraud does not appear to be pursued with any great vigour or innovation by police and regulators to the enormous detriment of many hundreds of thousands of victims each year.

References

ABS. 2008. *Personal Fraud, 2007*. Cat. no. 4528.0. Canberra: ABS.
ABS. 2011. *Australian and New Zealand Standard Offence Classification*. Cat. no. 1234.0. Canberra: ABS.
ABS. 2015. *Recorded Crime – Victims, Australia, 2014*. Cat. no. 4510.0. Canberra: ABS.
ABS. 2016a. *Crime Victimisation, Australia, 2014–15*. Cat. no. 4530.0. Canberra: ABS.
ABS. 2016b. *Criminal Courts, Australia, 2014–15*. Cat. no. 4513.0. Canberra: ABS.
ABS. 2016c. *Personal Fraud, 2014–15*. Cat. no. 4528.0. Canberra: ABS.
ACCC. 2011. *Targeting Scams*. Canberra: ACCC.
ACCC. 2015. *Annual Report, 2014–15*. Canberra: ACCC.
ACCC. 2016. *Targeting Scams*. Canberra: ACCC.
AIC. 2014. *Australian Crime: Facts and Figures, 2013*. Canberra: AIC.
AIC. 2016. *Australian Crime: Facts and Figures, 2014*. Canberra: AIC.
ANAO. 2011. *Therapeutic Goods Regulation: Complementary Medicines*. Canberra: ANAO.
Anthony, John. 2016. Former Mighty River Power Engineer Jailed for $2.2.m Fraud. *The Nelson Mail*, May 25.
ASIC. 2015. *Annual Report, 2014–15*. Canberra: ASIC.
Carter, Lucy. 2015. Maker of Nurofen Fined 1.7 Million for Misleading Consumers. *ABC News*, April 29.
Elder, Vaughan. 2013. Swann Forfeits Assets but Not Freedom. *Otago Daily Times*, November 22.
Farnsworth, Sarah. 2015. Coles Fined $2.5 Million over Baked Bread Claims. *ABC News*, April 10.
Friedrichs, David. 2007. *Trusted Criminals*. Belmont, CA: Wadsworth.

Friedrichs, David. 2010. Mortgage Origination Fraud and the Global Economic Crisis. *Criminology and Public Policy* 9: 627–632.
Gee, Jim, and Mark Button. 2015. *The Financial Cost of Fraud*. London: PKF Littlejohn.
Hayes, Hennessey, and Tim Prenzler. 2003. *Profiling Fraudsters*. Canberra: Commonwealth Attorney-General's Department.
Office, Home. 2015. *Crime Against Businesses: Findings from the 2014 Commercial Victimisation Survey*. London: Home Office.
Jorna, Penny, and Russell G. Smith. 2015. *Fraud against the Commonwealth*. Canberra: AIC.
Larson, Erik. 2016. The Mystery Madoff Victims Who Left $2.5 Billion on the Table. *Bloomberg*, March 4.
Lateline. 2016. Identity Theft Victims' Support Services Overwhelmed as Cyber Crime Soars. *ABC News*, May 16.
Levi, Michael, Martin Innes, Peter Reuter, and Rajeev Gundur. 2013. *The Economic, Financial and Social Impacts of Organised Crime in the European Union*. Brussels: European Parliament's Special Committee on Organised Crime, Corruption and Money Laundering.
MBIE. 2013. $4 Million Lost to Scams. *Scoop*, February 25.
Ministry of Justice. 2014. *New Zealand Crime and Safety Survey (NZCASS)*. Wellington: Ministry of Justice.
NZ Police. 2015. *Annual Report 2014/2015*. Wellington: NZ Police.
Prenzler, Tim. 2013. *Ethics and Accountability in Criminal Justice*. Brisbane: Australian Academic Press.
Prenzler, Tim. 2016. Welfare Fraud Prevention in Australia: A Follow-Up Study. *Crime Prevention and Community Safety* 18 (3): 187–203.
PWC. 2016. Global Economic Crime Survey 2016. http://www.pwc.com/gx/en/economic-crime-survey/pdf/GlobalEconomicCrimeSurvey2016.pdf.
Ransley, Janet, and Tim Prenzler. 2015. White Collar Crime. In *An Introduction to Crime and Criminology*, ed. Hennessey Hayes, and Tim Prenzler, 134–152. Sydney: Pearson.
Roach, Jason, and Ken Pease. 2013. *Evolution and Crime*. London: Routledge.
Scamwatch. 2016. Australasian Consumer Fraud Taskforce. www.scamwatch.gov.au/about-scamwatch/australasian-consumer-fraud-taskforce. Accessed 8 Sep.
SFO. 2015. *Annual Report, 2015*. Auckland: SFO.
Smith, Russell, Penny Jorna, Josh Sweeney, and Georgina Fuller. 2014. *Counting the Costs of Crime in Australia*. Canberra: AIC.
Statistics New Zealand. 2015. *Annual Recorded Offences*. Wellington: Statistics New Zealand.
Statistics New Zealand. 2016a. *Adults Convicted in Court by Sentence Type*. Wellington: Statistics New Zealand.

Statistics New Zealand. 2016b. *Population Indicators*. Wellington: Statistics New Zealand.
Thomson, Phillip. 2015. Australian Taxation Office Axes 4400 Jobs in 19 months. *The Canberra Times*, April 9.

Author Biography

Tim Prenzler is Professor of Criminology in the Faculty of Arts, Business and Law at the University of the Sunshine Coast in Australia. His teaching and research areas include crime and corruption prevention, security, and policing. Recent co-authored books include *Civilian Oversight of Police* (CRC Press 2016) and *Contemporary Police Practice* (Oxford University Press 2015).

19

Rural Crime

Elaine M. Barclay

Over the past 25 years, a growing number of criminologists have turned their attention to crime in rural areas. Predominately, their research hails from Australia, the USA, Canada, and the UK, but more recent studies have been conducted in a number of other countries (see, for example, Donnermeyer et al. 2013). Overall, rural crime remains a neglected area of criminological research. This is understandable, as rates of crime are typically higher in the cities, where the population density is greater. However, the lack of rural crime research in Australia is surprising given the expanse of rural areas and the importance of agriculture and other extractive industries to the national economy. Crime is a significant threat to these industries and ultimately to rural communities and the nation as a whole. Accordingly, the focus of this chapter is crime within these rural and remote regions. The chapter includes an overview of official crime data across Australia's states and territories available at the time of writing. Analysis by offence type and geographic region revealed that rates of property and personal crime in many rural areas are actually higher than in metropolitan areas. The chapter begins by defining what is rural, and what is rural crime, and concludes with a discussion of the formal and informal responses to crime in rural places.

E.M. Barclay (✉)
Criminology, University of New England, Armidale, Australia
e-mail: ebarclay@une.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_19

What is Rural?

Australia is arguably the most rural yet most urban of all nations (Jobes et al. 2004). It has a land area of almost 7.7 million square kilometres. Nevertheless, 82% of the population live within 50 kilometres of the coastline, mostly along the East Coast between Brisbane and Melbourne and in the south-west of Western Australia (Hugo et al. 2013). In both coastal regions, the population is concentrated in urban centres, particularly in the capital cities of each state. The remaining population is scattered across a vast rural inland.

There is no clear distinction between either the conceptual or geographic boundaries of what is defined as urban or rural. The term 'rural' is generally applied to areas outside the main metropolitan cities, but this overlooks the diversity within and between rural communities (Hogg and Carrington 2006). To address this ambiguity, the ABS (2015) classified Australia into six broad regions. These are the major cities where 71% of Australia's population live; inner regional Australia where 18% live; outer regional Australia containing 9% of the population; remote Australia with 1.4% of the population; and very remote Australia where only 0.9% of the population reside. This ABS geographical code was employed to structure the analysis of rural and urban crime data conducted for this chapter.

However, such demographic definitions as produced by the ABS do not sufficiently account for the intuitive or cultural understandings of rurality that emphasise social intimacy, reciprocity, informality, and cohesion. In reality, rural can be a perspective that is contingent on person, place, and context (Hogg and Carrington 2006). As a law enforcement officer in an American study of rural policing explained: 'Rural is like pornography; I can't precisely define it but I know it when I see it' (Weisheit et al. 2006, 193).

Rural Australia has a significant role in national mythology. Idealised depictions of a wide brown land and rugged mountain ranges, sprawling cattle stations, and outback pubs have been promoted through art, literature, and popular culture. These representations often stereotype the people who live in rural places as hardworking farm families with a pioneering spirit, rugged stockmen, and tough, hard-drinking miners. Such images and constructions are influential in shaping common perceptions of rural communities, and subsequently, what are believed to be the essential qualities of national culture and identity (Hogg and Carrington 2006). At the 2007 Asian Pacific Economic Cooperation (APEC) forum held in Sydney, this was certainly evident. The delegates donned Driza-Bone® oilskin coats—which are

commonly worn by farmers—as an example of Australia's 'national dress' (Samad 2007).

The common perception of rural communities as beautiful, peaceful, and safe places to live in underlies the sea change—or 'tree change'—phenomenon that has occurred over the past 30 years, which has seen extensive population movement from metropolitan areas to coastal or inland regions (Salt 2016). While many who have relocated are retirees, most are younger, in search of lifestyle happiness; a pleasant place to live, work, and raise a family (Salt 2016). However, sometimes the myth belies the reality, and some 'tree changers' return to the city, disillusioned (Ragusa 2010).

This disenchantment is partly due to the fact that there is great diversity in rural communities; in their size, proximity to urban centres, social structure, economic base, and even in the characteristics of the people who live there. This variability is reflected in the frequency and types of crime experienced and in the ways communities respond to crime (Barclay et al. 2010; Hogg 2011; Jobes et al. 2004).

What is Rural Crime?

Rural communities experience the same types of crimes experienced in urban areas. However, there are crime and safety issues that are unique to rural environments, such as livestock theft and other crime on farms, and environmental crime. Rural police also attend traffic accidents that occur on long stretches of highway or remote backroads, or conduct searches for people lost in the outback (Jobes 2003).

The vast spaces of the outback have provided an environment for some of Australia's most serious and infamous crimes, such as the murder of seven backpackers in the Belanglo State Forest in the southern highlands of NSW in the 1990s, and the disappearance and suspected murder of British tourist Peter Falconio in central Australia in 2001 (Scott et al. 2007). The small rural village of Snowtown in South Australia was the site of one of Australia's worst serial killings. In May 1999, eight bodies were found in barrels of acid in an abandoned bank building in the Snowtown town centre (Hess and Waller 2012). These acts have been the subject of documentaries, extensive media coverage, and non-fiction texts. They have also been immortalised in fictional representations; most famously in the film *Wolf Creek*. Curiously, these representations contradict the perception of the rural idyll (Scott et al. 2007).

One type of rural crime that is rarely documented in media and popular culture is farm crime. This includes property crimes against farms and other

agricultural industries such as the theft of livestock, seed, grain, wool, eggs, fruit, nuts, vegetables, fish, and oysters. Thefts also occur of agricultural machinery, tools, equipment, fuel, chemicals, fertilisers, and fencing materials. Other types of offences include vandalism to crops or farm infrastructure, fraud, arson, biosecurity offences, animal cruelty, and the production of cannabis or methylamphetamine on farmland or in national parks.[1] Also relevant are environmental crimes, such as the illegal dumping of rubbish, chemicals or other waste on farms, the theft of water from irrigation systems, or of timber from farms or state forests.

It is important to acknowledge context when examining rural crime; the relationship between economic and social factors and illegal activity. For example, farm crime is subject to market forces. Livestock theft fluctuates according to the price of beef or lamb, water theft increases in times of drought, and fuel theft from farm storages has increased in recent years in line with the rise in the global price of oil (Barclay and Donnermeyer 2007).

To gather an understanding of the type and incidence of crimes currently experienced on Australian farms, a survey was conducted with 3160 farmers in NSW and Queensland in 2013 (Barclay 2015). Of the 1251 respondents, 74% reported they had experienced some type of crime over the 12 years between this survey and the researchers' previous survey (Barclay et al. 2001). There have been increases in thefts of livestock, fuel, and farm machinery and incidents of trespassing and illegal hunting have doubled. A current 'feral pig and goat hunting craze' has seen increasing numbers of offenders with high-powered rifles, GPS systems, and off-road vehicles travelling from cities to remote rural areas to hunt illegally on private land or in national parks. Many farmers report that along with stealing fuel and equipment, offenders fail to shut gates allowing stock to stray; they damage fences, crops, and vegetation; they are responsible for arson, vandalism, littering, and for the disturbance, theft, and shooting of stock. They often have hunting dogs that attack livestock. While some farmers were able to quietly turn intruders away without any repercussions, others experienced persistent problems and significant stress as offenders are usually armed, own savage dogs, and ignore their requests to leave (Barclay 2015).

Only half of all farm crimes reported in the survey were reported to police, and this reporting rate has not changed since 2001. Farmers fail to report crimes because they are too difficult to prove, or because they believe they are not serious events. Often too much time elapses before a theft is discovered, or there is uncertainty that a crime has actually occurred. Many farmers believe that it is a waste of time reporting crimes because there is little the police can or will do (Barclay 2015).

To prevent further victimisation, many farmers have been forced to change farm management practices, such as no longer storing fuel on the farm, or moving stock out of paddocks that are repeatedly targeted by thieves. In general, few farmers bother with property security with the exception of livestock identification and maintaining stock records securing firearms, and locking homes when unattended. However, in recent years, farmers have invested in security cameras which are placed strategically along property boundaries, at fuel storage sites, and other important areas on farms to record the actions of intruders and their vehicles. This practice can impact on the success of policing and prosecution outcomes, as CCTV footage can be presented as evidence in court (Barclay 2015).

Compared with the 2001 study findings, fewer farmers reported that they could rely on their neighbours to either call the police or let them know about any suspicious activity on their property. There is less involvement in community crime prevention programmes, and informal crime prevention groups lack community support. Again, context is important to explain this shift. There has been much social change in rural Australia, with many farmers leaving the land due to persistent drought, economic decline, the mining boom, a rise in the numbers of absentee landowners, and an increase in 'tree changers' moving into rural communities. Farmers reported that they no longer know everyone in their area, which lessens their ability to maintain informal social control to prevent crime (Barclay 2015).

Examining Data on Rural Crime

One of the main reasons that farm crime is rarely considered by criminologists is that these offences are not specifically identified within official crime data in Australia. Livestock theft is a defined category in some Australian jurisdictions, but not all. Nationally, livestock theft is incorporated under a broad category of 'other theft'. Consequently, the nature and extent of farm crime remain obscure, which ultimately limits the resources assigned to the policing and prevention of farm crime (Barclay and Donnermeyer 2007).

There is a lack of official data on crime generally in rural areas. Most police websites now provide official crime data that can be accessed as numbers of incidents; as rates of crime per 100,000 population; or as maps of crimes by local government or postcode area. This online service is continually improving. However, there are reliability problems and large gaps in the data (Carrington 2007). Furthermore, the various jurisdictions lack consistency in laws, law enforcement, crime recording, and in the organisation and

presentation of official crime data. The ABS does not publish any regional analysis of national crime data, which creates a barrier for researchers seeking to examine differences in rural and urban crime, and also for those agencies charged with responding to crime.

Carrington (2007) analysed available data in order to measure crime in Australia's states and territories by region and locality. She found rates of violent crimes were consistently higher in rural areas in comparison with metropolitan areas and rates of property crimes were lower in rural places than in the cities (Carrington 2007). For the purpose of this chapter, the author conducted a brief examination of the most recent official crime data by geographic region and found that this trend remains, although there is great variation across rural areas.

Beginning in Queensland, official crime data for the period 2013/2014 to 2014/2015 for the five police regions across the state reveal that the Northern Region recorded the highest rates of offences against the person with 1204 per 100,000 population, while the Brisbane metropolitan region recorded the lowest rate with 405 per 100,000. The highest rate of offences against property was also recorded in the Northern Region with 5272 per 100,000, and the lowest rate occurred in the Central Region with 3342 per 100,000 (Queensland Police 2016).

In South Australia, data are available for seven metropolitan and seven regional so-called Police Local Service Areas (LSAs). In 2014/2015, the Far North LSA recorded the highest recorded rates for crimes against the person with 3511 per 100,000 population, followed by the Adelaide suburb of Elizabeth with 2376 per 100,000. The lowest rates occurred in the Hills and Fleurieu Peninsular LSA situated south of Adelaide with 706 per 100,000. The Adelaide metropolitan area recorded the highest property crime rates particularly in the suburbs of Elizabeth and West Adelaide with 7824 and 6793 per 100,000, respectively, while the Far North LSA had the second highest property crime rate with 7612 per 100,000. The lowest rate was in the region of Yorke Mid North LSA with 2787 per 100,000 (South Australian Police 2016).

In Victoria, data for 2013/2014 across four police regions reveal the highest rates for offences against the person occurred in eastern rural Victoria with 1154 per 100,000, and the north-west metropolitan area with 1133 per 100,000; while the lowest rates occurred in western rural Victoria with 948 per 100,000. For property crimes, the highest rates were in both metropolitan regions with 6190 per 1000,000 in the north-west and 4467 per 100,000 in the southern metropolitan area; while the lowest rates occurred in the western region with 3696 per 100,000 (Victoria Police 2015).

In Western Australia in 2015/2016, the Perth metropolitan area recorded slightly higher rates for property crimes than did regional areas with 5439 compared to 5070 per 100,000; while regional areas recorded higher rates of crime against the person with 1801 compared to 1239 per 100,000 (Western Australia Police 2016).

BOCSAR reports that in 2014/2015, the Far West and Orana regions recorded the highest rates of property crimes. Most other regions recorded lower rates compared to state rates for property crimes, including the Sydney area. The Far West and Orana region also had the highest rates for personal crimes (BOCSAR 2016).

This data highlight the spatial variances in crime rates across rural Australia. Australia, like most of the industrialised world, has experienced a decline in crime rates over the past 16 years, particularly for property crimes. Interestingly, this decline has neither been uniform across all states and territories nor across rural and regional areas. In fact, many regional and rural areas have recorded higher crime rates than urban centres (Lee and Clancey 2016). Explanations for this trend focus on the characteristics of rural environments and the routine activities of rural communities. Offenders are encouraged by the lack of guardianship in isolated and sparsely populated rural areas, which present opportunities for crime and reduce the likelihood of detection (Barclay and Donnermeyer 2007).

To examine these trends in NSW, Weatherburn and Holmes (2013) compared crime rates between 2000 and 2012 to reveal patterns across ABS Statistical Divisions and sub-divisions. They noted a fall in rates of robbery of 70.8% in Sydney, but only a fall of 21.9% in the rural North. Burglary rates declined by 69.2% in Sydney compared with a fall of 11.5% in rural Murrumbidgee. Motor vehicle thefts declined in all ABS Statistical Divisions except for the northern divisions. The largest reduction of 76.8% occurred in both Illawarra—which is largely urban—and Sydney. Stealing from motor vehicles increased by 5.9% in Murrumbidgee and by 1.3% in the northern divisions, while rates fell by 63.7% in Sydney (Lee and Clancey 2016; Weatherburn and Holmes 2013).

This brief overview indicates that there is a persistent trend for rates of violent crimes to be higher in rural communities than in metropolitan areas. Furthermore, while the nation has experienced a decline in crime rates and particularly in rates of property crime, there has been an increase in these crimes in many rural communities often surpassing the crime rates of metropolitan areas. It is essential to note that no two communities are the same, and this is expressed in the unevenness of community experiences of crime and in the way they respond to crime.

The Community Response

One reason for the lack of data on rural crime is that crimes in rural settings are less likely to be reported to police. This is especially true in small communities where social ties are stronger and informal social controls prevail; victims and offenders are likely to know each other or have acquaintances in common. Thus, making a formal complaint is difficult. Therefore, differences in crime rates between metropolitan areas and rural localities, particularly for sexual offences, family violence, and other violent crimes are likely to be even greater than those recorded (Neame and Heenan 2004).

Barclay (2003, 2015) found farmers were reluctant to report crime. Some farmers preferred to deal with the matter themselves. For example, if they became aware of their stock on a neighbour's property, they just rounded them up and brought them home. A fear of retribution also deterred the reporting of offences, especially when the offender lived within the same small community. Some farmers will inform police about a crime but will not name a suspected offender. Concerns about social repercussions or exclusions can also prevent victims reporting a crime (Barclay 2003). Barclay et al. (2004) found that some farmers who experienced repeated thefts at the hand of a neighbour were regarded—by both the offender and the wider community—to be deserving of their victimisation because they were considered to be poor farm managers. These victims were pressured to 'keep the peace' by not accusing someone in the community of theft, else they would face exclusion from the community. Such events occur within small, highly cohesive communities that usually have the ability to manage crime through informal social control. Remarkably, this same cohesiveness can actually enable the commission of some crimes.

The Criminal Justice Response

Police in rural areas need an understanding of the values and informal social norms that influence the ways communities experience and respond to crime. Effective officers develop their own 'way of doing things' to enlist the support of local residents to access information for crime-solving and to determine enforcement priorities. Often, this requires making compromises and using discretion to enlist such assistance (Jobes 2003). Officers face many challenges working in an environment of physical and professional isolation and always being on call (Barclay et al. 2010; Scott and Jobes 2007). As the only government agency in some areas, police are often expected to undertake

numerous roles such as assisting in medical emergencies or welfare matters, supervising crime prevention and youth programmes, and managing special events. Consequently, many of the local problems become a police matter simply because other services are not available (Hogg 2011; Jobes 2003).

Hogg (2011, 361) notes that although the law is portrayed as 'a spatially invariant practice', there is a disparity in the administration of justice across Australia. The costs of delivering services in remote areas are high, and there are often limited staff and resources. Rural communities are disadvantaged by the infrequency of court sittings, which happen every three months in smaller communities; insufficient time for interviews and briefings between lawyers and their clients; a lack of privacy; few interpreter services; and ad hoc courtroom facilities that place victims and offenders in close proximity (Coverdale 2011; Harris et al. 2014; Siegel 2002, 2003). The regional centralisation of courts also results in cases being heard in district centres, far from the community where the crime occurred.

Offenders are disadvantaged by limited sentencing options within rural areas (Hogg 2011). For example, in NSW, fines, good behaviour bonds without supervision, and prison are the only sentencing options available state-wide. Bonds with supervision are limited as supervision requires staff. Sentencing offenders to attend drug and alcohol treatment programmes is difficult as these are not available in many areas. Similarly, community service orders are limited due to the lack of volunteer organisations to manage and supervise community work. As a consequence, some offenders are more likely to be sentenced to prison because of a lack of alternatives. Often, offenders are imprisoned far from home, which creates isolation and limits opportunities to maintain social and family networks (Hogg 2011). All of these factors contribute to the trend for rural offenders to be incarcerated at younger ages, and more often than their urban counterparts, and this has significant negative consequences for their life chances, as well as for their families and communities. This particularly concerns Indigenous offenders who are more likely to live in rural and remote Australia than any other culturally and linguistically distinct group (Cunneen 2007).

Indigenous Australians are significantly overrepresented both as victims and as offenders within the criminal justice system. In 2016, Indigenous adult prisoners comprised 27% of the prison population in Australia, while the total Indigenous population aged 18 and over comprised only 2% of this same age group within the general Australian population. The imprisonment rate for Indigenous peoples is 12 times higher than the non-Indigenous rate; and every year, this rate continues to rise (ABS 2016).

There is a strong relationship between remoteness and disadvantage (Schwartz 2010). The 2004 Senate Legal and Constitutional References Committee (as cited in Schwartz 2010, 10) maintained that access to justice in remote communities is 'so inadequate that remote Indigenous people cannot be said to have full civil rights'. Indigenous Australians experience significant levels of disadvantage across a range of social, economic, and health indicators, which has a direct association with crime. Importantly, these disadvantages increase with the remoteness of a community (Cunneen 2007; Snowball and Weatherburn 2006).

The question arises: How can small remote communities with limited resources address these problems that have evolved over the past 200 plus years? Furthermore, how can communities find the balance between respecting the rights of Aboriginal peoples to maintain their cultural practices but then address the social inequities that exist without interfering with these rights? These are issues that are of primary importance not only for Aboriginal communities and their surrounding non-Aboriginal communities but for Australian researchers and the criminal justice system as a whole.

One way to address geographic disadvantage is justice reinvestment, which redirects funds for prisons to community-based initiatives that aim to address the underlying causes of crime (Schwartz 2010). This approach is ideal for Indigenous communities as justice reinvestment initiatives require the participation and support of the communities in which they are implemented. Accordingly, these initiatives are culturally appropriate and meet the need for self-determination of Indigenous communities. There is a specific need to increase options for community supervision in remote communities and to increase the number of offenders on community-based orders, which will, in turn, reduce imprisonment rates (Schwartz 2010).

Conclusion

This chapter has sought to provide an overview of the idiosyncratic nature of crime and criminal justice within the social structure of rural communities. Rural areas provide a fertile ground for criminological research, and this is increasingly being recognised by criminologists. There is an urgent need for research to address the increase in rates of crime in rural areas, particularly given that rates of many property and personal crimes in metropolitan areas have declined in Australia, in line with much of the Western world. Since the economic and cultural contributions from rural areas are essential to any nation, it is imperative that this knowledge deficit is addressed. The

preservation of safety and security in rural communities is paramount not only for the welfare of the people in these communities, but also for food security, biosecurity, environmental conservation, and international trade.

Notes

1. The number of meth laboratories in rural area is increasing. The chemicals used are extremely volatile and can contaminate the soil, water, and air in close proximity to the laboratory. Offenders also dump waste in national parks and waterways, even drums of chemical waste on roadsides. Cannabis production requires unauthorised clearing and irrigation and the use of black plastic or chemical to control weeds. Feral pigs love such environments and can cause significant environmental damage in such places.

References

ABS. 2015. *Regional Population Growth, Australia, 2014–15.* Cat. no. 3218.0. Canberra: ABS.

ABS. 2016. *Corrective Services Australia, December Quarter 2016.* Cat. no. 4512.0. Canberra: ABS.

Barclay, Elaine M. 2003. The Determinants of Reporting Farm Crime in Australia. *International Journal of Comparative and Applied Criminal Justice* 27 (2): 131–151.

Barclay, Elaine M. 2015. Crime on Farms: A Survey of Farmers in NSW and Queensland 2001–2014. Final Report to NSW and Queensland Police.

Barclay, Elaine M., and Joseph F. Donnermeyer. 2007. Community and Crime. In *Crime in Rural Australia*, eds. Elaine M. Barclay, Joseph F. Donnermeyer, John Scott, and Russell Hogg, 44–56. Sydney: Federation Press.

Barclay, Elaine M., Joseph F. Donnermeyer, Brendan Doyle, and Dominic Talary. 2001. Property Crime Victimisation and Crime Prevention on Farms. Report to the NSW Attorney-General's Crime Prevention Division.

Barclay, Elaine M., Joseph F. Donnermeyer, and Patrick C. Jobes. 2004. The Dark Side of Gemeinschaft: Criminality within Rural Communities. *Crime Prevention and Community Safety* 6 (3): 7–22.

Barclay, Elaine M., Joseph F. Donnermeyer, and John G. Scott. 2010. Policing the Outback: Impacts of Isolation and Integration in an Australian Context. In *Rural Policing and Policing the Rural*, eds. Rob I. Mawby, and Richard Yarwood, 33–44. Cullumpton: Willan.

BOCSAR. 2016. *New South Wales Recorded Crime Statistics, Quarterly Update, December 2015*. Sydney: BOCSAR.

Carrington, Kerry. 2007. Crime in Rural and Regional Areas. In *Crime in Rural Australia*, eds. Elaine M. Barclay, Joseph F. Donnermeyer, John Scott, and Russell Hogg, 27–43. Sydney: Federation Press.

Coverdale, Richard. 2011. Postcode Justice: Rural and Regional Disadvantage in the Administration of the Law. http://www.deakin.edu.au/buslaw/law/news/.

Cunneen, Chris. 2007. Crime, Justice and Indigenous People. In *Crime in Rural Australia*, eds. Elaine M. Barclay, Joseph F. Donnermeyer, John Scott, and Russell Hogg, 142–153. Sydney: Federation Press.

Donnermeyer, Joseph F., John G. Scott, and Elaine M. Barclay. 2013. How Rural Criminology Informs Critical Thinking in Criminology. *International Journal for Crime, Justice and Social Democracy* 2 (3): 69–91.

Harris, Bridget, Lucida Jordan, and Lydia Phillips. 2014. Courting Justice beyond the Cityscape: Access to Justice and the Rural, Regional and Remote Magistrates Court. *Journal of Judicial Administration* 23 (3): 158–170.

Hess, Kristy, and Lisa Waller. 2012. The Snowtown We Know and Love: Small Newspapers and Heinous Crimes. *Rural Society* 21 (2): 116–125.

Hogg, Russell. 2011. Governing Crime at a Distance: Spatiality, Law and Justice. *Current Issues in Criminal Justice* 22 (3): 361–377.

Hogg, Russell, and Kerry Carrington. 2006. *Policing the Rural Crisis*. Leichardt: Federation Press.

Hugo, Graham, Helen Feist, and George Tan. 2013. Population Change in Regional Australia, 2006–11. *Australian Population and Migration Research Centre Policy Brief* 1 (3): 1–5.

Jobes, Patrick C. 2003. Human Ecology and Rural Policing: A Grounded Theoretical Analysis of How Personal Constraints and Community Characteristics Influence Strategies of Law Enforcement in Rural New South Wales, Australia. *Police Practice and Research* 4 (1): 3–19.

Jobes, Patrick C., Joseph F. Donnermeyer, Elaine M. Barclay, and Herb Weinand. 2004. A Structural Analysis of Social Disorganisation and Crime in Rural Communities in Australia. *Australia and New Zealand Journal of Criminology* 37 (1): 114–140.

Lee, Murray, and Garner Clancey. 2016. Placing Crime: The Failings of Urban-Centric Environmental Criminology. In *Locating Crime in Context and Place: Perspectives on Regional, Rural and Remote Australia*, eds. Alistair Harkness, Bridget Harris, and David Baker, 70–84. Sydney: Federation Press.

Neame, Alexandra, and Melanie Heenan. 2004. Responding to Sexual Assault in Rural Communities. *Australian Institute of Family Studies Briefing* 3: 1–24.

Queensland Police. 2016. *Queensland Police Service: Annual Statistical Review 2014/15*. Brisbane: Queensland Police.

Ragusa, Angela T. 2010. Seeking Trees or Escaping Traffic? Socio-Cultural Factors and 'Tree-Change' Migration in Australia. In *Demographic Change in Australia's Rural Landscapes*, eds. Gary W. Luck, Digby Race, and Rosemary Black, 71–99. Dordrecht: Springer.

Salt, Bernard. 2016. *Super Connected Lifestyle Locations: The Rise of the 'E-Change' Movement*. Melbourne: NBN Australia's Broadband Network.

Samad, Jewel. 2007. Pacific Rim Leaders Pose in Their Driza-Bones. *ABC News*, September 8.
Schwartz, Melanie. 2010. Building Communities, Not Prisons: Justice Reinvestment and Indigenous Over-Imprisonment. *Australian Indigenous Law Review* 14 (1): 2–17.
Scott, John, Russell Hogg, Elaine M. Barclay, and Joseph F. Donnermeyer. 2007. There's Crime out there But Not as We Know It: Rural Criminology—The Last Frontier. In *Crime in Rural Australia*, eds. Elaine M. Barclay, Joseph F. Donnermeyer, John Scott, and Russell Hogg, 1–12. Sydney: Federation Press.
Scott, John G., and Patrick Jobes. 2007. Policing in Rural Australia: The Country Cop as Law Enforcer and Local Resident. In *Crime in Rural Australia*, eds. Elaine M. Barclay, Joseph F. Donnermeyer, John Scott, and Russell Hogg, 127–137. Sydney: Federation Press.
Siegel, Natalie. 2002. Bush Court: Administering Crime Court Process and Corrective Service in Remote Aboriginal Communities. Paper presented at Crime Prevention Conference, September 12–13, in Sydney.
Siegel, Natalie. 2003. Court in the System: The Impact of the Circuiting Bush Court upon Criminal Justice Administration and Domestic Violence Prosecution in Aboriginal Communities. *Current Issues in Criminal Justice* 15 (1): 56–60.
Snowball, Lucy, and Don Weatherburn. 2006. *Indigenous Over-Representation in Prison: The Role of Offender Characteristics*. Sydney: BOCSAR.
South Australian Police. 2016. *Crime Statistics*. https://www.police.sa.gov.au/about-us/crime-statistics-map. Accessed 15 Apr.
Victoria Police. 2015. Crime Statistics 2013/2014. http://www.police.vic.gov.au/crimestats/ebooks/1314/index.html#I.
Weatherburn, Don, and Jessie Holmes. 2013. *The Great Property Crime Drop: A Regional Analysis*. BOCSAR: Crime and Justice Statistics. Sydney.
Weisheit, Ralph A., David N. Falcone, and L.Edward Wells. 2006. *Crime and Policing in Rural and Small-Town America*. Long Grove, IL: Waveland Press.
Western Australia Police. 2016. All Western Australia 2015–2016 Financial Year. https://www.police.wa.gov.au/Crime/Crime-Statistics-Portal/Crime-Statistics-Portal/Monthly-and-annual-crime-statistics. Accessed 15 Apr.

Author Biography

Elaine M. Barclay, New South Wales. is Associate Professor in Criminology at the University of New England, Armidale. She has undertaken 21 years of collaborative research in Australia, the USA, and the UK on crime on farms, crime in rural communities, rural policing, and crime and Aboriginal communities. She co-edited *Crime in Rural Australia* (Federation Press 2007).

20

Transnational Organised Crime, Border Policing, and Refugees

Michael Grewcock

Since the 1970s, combating transnational organised crime has emerged as an important element in the national security and policing strategies of developed states, reflecting what has been described as the "the internationalization of crime control" (Andreas and Nadelmann 2006, 3). Globally, we can point to some key markers in the evolution of transnational policing. These are the US-led War on Drugs; the adoption of the 2000 UN Convention on Transnational Crime and its Protocols on Human Smuggling and Trafficking; the expansion of anti-terrorism regimes, particularly under the auspices of the War on Terror; and concerted attempts by Western states to restrict irregular migration, especially by refugees from the developing world.

What is missing in much of the literature is a sense of the disjuncture between what can be understood sociologically and what is policed as transnational organised crime and an analysis of the relationship between the policing of particular forms of cross-border activity and the popular designation and acceptance of that activity as criminal. As writers such as McCoy (2003) and Andreas and Nadelmann (2006) highlight, transnational policing operates within shifting political and foreign policy boundaries and can be an important strategic device for powerful states. Reflecting on the experience of the War on Drugs in the US, Andreas and Nadelmann (2006) argue accordingly for "a more nuanced and historically grounded narrative that places greater emphasis on political forces that have evolved and changed over

M. Grewcock (✉)
University of New South Wales, Sydney, Australia
e-mail: m.grewcock@unsw.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_20

time" (7), and a focus on the "centrality of the state, rather than crime, in determining international crime control" (9).

Focussing on the role of the state in this way poses a number of challenges for criminologists, which include the following questions: How do we understand the criminality, deviance, and illegitimacy attributed to particular cross-border activities? Is it simply that such activities are illegal as a matter of law or does the border operate as a mechanism for more complex processes of criminalisation and victimisation? What are the relationships between specific prohibitions and border controls and the form and organisation of the illicit activity? Can the state responses to transnational crime be characterised as criminal, deviant, or illegitimate? If so, how?

This chapter opens a discussion of these questions. Using the example of Australia's anti-people smuggling regime, it argues that the legal and conceptual divide between the smugglers—with their so-called business model—and the smuggled, upon which the Australian approach is constructed not only distorts our understanding of the dynamics of forced migration but also our understanding of what might reasonably be understood as transnational crime. Finally, the chapter discusses how the framing of people smuggling as a manifestation of transnational organised crime serves to legitimise an abusive border policing apparatus put in place to prevent the otherwise legitimate migration of refugees.

Policing Cross-border Activities

At a national level, there are significant differences between the transnational policing regimes of developed states, such as the USA and Australia. However, there are also important symmetries, including (a) the introduction of new offences—or the elevation of existing offences—with a cross-border component into the most serious category of criminal offending; (b) the development and expansion of specialist policing agencies such as the Australian Federal Police; (c) the normalisation of multi-state cooperation and extra-territorial policing operations, usually on terms imposed or shaped by the developed states; (d) the use of policing measures, including involvement of the military that challenge established liberal conceptions of due process; (e) the adoption of militaristic nomenclature—for example, for the Australian Border Force—consistent with the notion of a policing "war"; and (f) in

relation to border controls, increasing resort to arbitrary and opaque administrative practices such as detention and deportation.

Within mainstream political discourse, these trends are underpinned by an almost hegemonic perception of transnational crime as an organic and serious threat in an era of globalisation. Within the academic literature, this is often also expressed in dystopian terms. Thus, the eminent sociologist Castells (2000, 169–209) writes of a "global criminal economy" that bypasses states and contributes to their internal disintegration. Similarly, a recent criminology handbook explained its editorial philosophy in the following terms. "Transnational organized crime is one of the most virulent plagues of the twenty-first century … a quiet pandemic that is spreading across the world with varying degrees of potency and often unnoticed mortality … a plague spreading alongside increasing globalisation—the darker side of modernity" (Allum and Gilmour 2012, 1–2).

Organised crime can pose serious risks to public safety, undermine democratic institutions, and obstruct progressive social change. There have been important studies, for example by Behan (2002, 2008), that have examined the political economy of organised crime, and that have analysed how large-scale criminal organisations integrate into mainstream economic, political, and social institutions, and engage in organised violence against opponents and radical social movements. Other studies, for example by Hernández (2013) and McCoy (2003), have identified links between policing agencies and drug cartels. Further research, for example by Kenney (2007) and Morselli (2009), has pointed to the flexibility and fluidity of criminal networks and the "criminogenic asymmetries" (Passas 2001, 22) arising from globalisation.

However, despite the burgeoning literature on the topic, transnational organised crime is not a self-evident sociological or legal category. As Mueller (2001, 13) notes, while "the term 'transnational crime' has been generally accepted as a working concept by criminologists … the concept is relatively amorphous". Moreover, the activities encompassed by the term—when it was adopted by the UN—incorporated an eclectic and shifting range of categories such as money laundering, trafficking in persons, and human smuggling, which share a cross-border character but have only recently been criminalised. Such activities are also often intertwined with lawful activities within the domains of international commerce and migration, and many have been deemed acceptable in previous periods or under different circumstances.

Transnational Organised Crime and People Smuggling

The designation of people smuggling as a form of transnational organised crime has been central to the policies recently adopted by developed states to regulate unauthorised refugee movement. While there are significant regional differences, from the 1970s onwards, three broadly similar exclusion zones have been built around the Australian border, the borders of the European Union, and the US borders; especially its border with Mexico (Grewcock 2009). In that context, people smuggling has been elevated globally to being a serious threat to border security and a driver of unauthorised movement. At the international level, this is reflected by the UN Protocol Against the Smuggling of Migrants by Land, Sea and Air (henceforth, the UN Smuggling Protocol) appended to the 2000 UN Convention Against Transnational Organised Crime. The convention is designed to target various forms of criminal association and organisation. The threshold for falling within the terms of the convention falls well short of popular perceptions of global drug cartels and Mafia-type organisations; an organised criminal group is defined as "a structured group of three or more persons, existing for a period of time and acting in concert with the aim of committing one or more serious crimes or offences" (Article 2 UN Smuggling Protocol). Smuggling is defined as "the procurement, in order to obtain, directly or indirectly, a financial or other material benefit, of the illegal entry of a person into a State Party of which the person is not a national or a permanent resident" (Article 3(a) UN Smuggling Protocol). However, those who engage smugglers—such as refugees—specifically are protected against being criminalised. (Article 5 UN Smuggling Protocol).

Read together, the two definitions provide a flexible enforcement framework within which states can target "key elements of the smuggling enterprise" such as "recruitment … transportation … corrupted officials … guides … support services … debt collection … and management" (Budapest Group 1999, 33–35). Within this framework, organised crime is broken down into individual, constituent, criminal parts; no group activities are required. As the Australian experience illustrates, those who are targeted or apprehended typically are at the lower end of the enterprise.

Australia's current anti-people smuggling laws originated in 1999[1] and are set out in parallel provisions of the *Migration Act 1958* and *Criminal Code Act 1995.* The core offence of people smuggling applies when a person organises or facilitates the bringing or coming to Australia, or the entry or proposed

entry into Australia, of another person, who is a non-citizen, and who has no lawful right to come to Australia.[2] The maximum penalty is 10 years imprisonment. Unlike the UN Smuggling Protocol, there is no requirement for a financial or material benefit, and, contrary to the principles that underpin the 1951 Convention on Refugees (UNCR)[3] and international human rights law (McAdam and Chong 2014); it does not matter if the Australian government has or may have protection obligations towards the smuggled person.[4] Moreover, an offence of aggravated people smuggling applies when at least five people are smuggled,[5] or the migrant is subjected to "cruel, inhuman or degrading treatment", or there is a reckless disregard to the dangers of death or serious harm.[6] Given that unauthorised boats typically carry well in excess of five passengers and that the journeys invariably are high-risk, virtually all people accused of people smuggling offences—regardless of whether their motives are purely humanitarian—are liable to be charged with the aggravated offence. In addition, the maximum penalty for the aggravated offence is 20 years imprisonment, with a mandatory minimum sentence of five years, or eight years in the case of a repeat offender.[7] This means that crew members, who may have played no role in the planning of the trip nor had any previous association with the organisers, fall liable to the 5-year minimum sentence.

The evolution of this exceptional legal regime[8] has been justified by the categorisation of smugglers as engaging in the most egregious criminality. Former Prime Minister Kevin Rudd's (as cited in Rodgers 2009) comments typified the tabloid-political rhetoric that continues on the issue, when he said in 2009 that "people smugglers are engaged in the world's most evil trade and they should all rot in jail because they represent the absolute scum of the earth". It has also become political orthodoxy that in keeping their association with transnational organised crime, smugglers operate according to a specific "business model [that] must be broken" (Barker 2013).

However, there is little evidence to support the contention that sophisticated or homogenous smuggling organisations are a driver of refugee movements in the region. A survey of the research literature by the Australian Parliamentary Library (Barker 2013, 40) concluded that "there is no single business model used by people smugglers, either internationally or even in the more limited context of smuggling to Australia". Rather, while some level of local organisation is required, smuggling operations appear to be initiated or shaped by desperate refugees, who, after multiple journeys, become stranded in transit states such as Indonesia, with no formal status, little prospect of resettlement, and vulnerable to persecution and exploitation. The onward journeys to Australia are the product of ad hoc planning, often requiring the

bribing of local officials, and the use of fishing vessels generally not suited to the task.

Independent analyses of prosecutions of people smugglers in Australia support these conclusions and point consistently to two features of the smuggling operations; especially those operating from Indonesia. First, is the use of crews who are recruited for specific trips and drawn typically from poor fishing and coastal communities with no ongoing connection to criminal networks. This cohort—which has included many minors detained and tried as adults (AHRC 2012)—has been most vulnerable to interception and arrest, although their prosecution for aggravated smuggling offences had little appreciable impact on the smuggling operations that peaked in the period 2010–2013 (Phillips 2015). Indeed, by August 2012, the prosecution regime was imposing such a burden on Commonwealth prosecution and state prison resources in the Northern Territory and Western Australia that the Commonwealth Attorney-General issued a direction to the Commonwealth Director of Public Prosecutions. The direction instructed that crew members no longer be prosecuted for the aggravated smuggling offence under the *Migration Act 1958* unless it involved a repeat offence, the person's role extended beyond that of a crew member, or a death occurred in relation to the smuggling venture. The direction succeeded in reducing the number of prosecutions but was revoked by the incoming Coalition Attorney-General in March 2014. (CDPP 2016). Prosecutions have continued since that time but at a much-reduced rate due to the recent decline in the numbers of boat arrivals.

The second feature apparent from the smuggling cases prosecuted to date is the primary role played by refugee communities in organising their own boat journeys. (Grewcock 2012; Schloenhardt 2011; Schloenhardt and Craig 2016; Schloenhardt and Martin 2012). All of those prosecuted for offences relating to the organisation of smuggling have been refugees, usually associated with the wider, transient refugee community from which the passengers are drawn. One such case was that of Ali Al Jenabi, an Iraqi national, convicted and sentenced to eight years imprisonment in 2004 for organising boat journeys between Indonesia and Australia that included as passengers his mother, two sisters, three brothers, and an uncle, all of whom subsequently settled in Australia as refugees. The sentencing judge accepted that Al Jenabi was motivated primarily by humanitarian considerations (*The Queen and Al Hassan Abdolamir Al Jenabi* [2004] NTSC 20302840 and 20302843). The completion of his sentence—imposed before mandatory minimum terms applied—was followed by a further 20 months in immigration detention (*Mr Al Jenabi v Commonwealth of Australia* [2011] AusHRC 45). Thereafter,

Al Jenabi (as cited in DeCrespigny 2012, 350) commented in relation to the notion of a business model: "I laugh out loud when I hear it. Do they think there are men in suits sitting around boardroom tables somewhere devising strategies?… There are no records or bank accounts. No spreadsheets or business plans. They pop up wherever people are trying to escape and disappear when they are no longer needed".

Rather than accepting at face value the rhetoric about business models, the alternative conclusion to draw from the prosecution of people smuggling offences in Australia is that the illicit networks smuggling refugees in the region represent a form of collective organisation, driven by self-preservation and humanitarian need, and distorted by the illegality and the obstacles imposed by border controls. This is not a social world where the profit motive is absent, the moral scruples of organisers impeccable, or the risks to passengers notional. However, it is a world shaped by state border policies and policing strategies rather than the smugglers themselves.

Detention, Offshore Processing, and Turn-Backs

Australia's anti-smuggling regime operates within a paradigm of exclusion, deterrence, and punishment directed at refugees seeking unauthorised entry into Australia in order to claim protection in accordance with Australia's obligations under the UN Refugee Convention. The strategic goal of obstructing refugee movement claims legitimacy through the construction of unauthorised refugees as an existential threat to Australia's borders and—by implication—the Australian community. The social reality of the refugee as someone who is persecuted or rendered stateless in their state of origin and as someone who is unable to access formal means of travel is effectively denied (Cohen 2001). The legal and moral obligations of states—such as Australia—that have signed the 1951 UNCR, to not penalise refugees for seeking unauthorised entry (Article 31 UNCR) are circumvented or ignored. Instead, successive Australian governments have perpetuated the narrative that "legitimate" refugees wait in a fictional queue for resettlement, while the so-called illegals—through their necessary association with smugglers—move in a shadowy world of criminality which justifies the use of policing measures that have been condemned extensively for generating systemic human rights abuses[9] and can be characterised as state crime (Grewcock 2009; Pickering 2005).

Central to this regime is the policy of indefinite mandatory detention of all unauthorised non-citizens, including children, that was introduced in 1992.[10]

Legally, detention is formalised as a non-punitive, administrative process that applies pending the outcome of a visa application or a removal from the country (see *Al Kateb v Godwin* (2004) 208 ALR 124). However, the detention process effectively criminalises detainees and punishes them for their use of smugglers. It has created a cohort of people subject to arbitrary incarceration by the Australian state and liable to forced transfer between detention centres in Australia or forced removal to offshore detention centres outside of Australia's legal jurisdiction. The systemic harms and structural violence inflicted upon refugees as a result of such practices (Grewcock 2009, 2015; Weber and Pickering 2011) are increasingly opaque (ALA 2016) and subsumed by a political imperative entrenched at the heart of Australian border policing policy that measures success by the government's capacity to stop unauthorised boat arrivals.

As Fig. 20.1 illustrates, the number of people arriving in unauthorised boats since the 1970s has remained relatively low and stable, subject to two periods of fluctuation between 1998 and 2002, and 2008 and 2013.

The dominant explanation for the declines after 2002 and 2013 is the impact of anti-people smuggling measures—the so-called Pacific Solution that was implemented by the Liberal National Party Coalition governments between 2001 and 2007, and the current policy that was initiated by the Labor government in 2012 and expanded by the Coalition government since

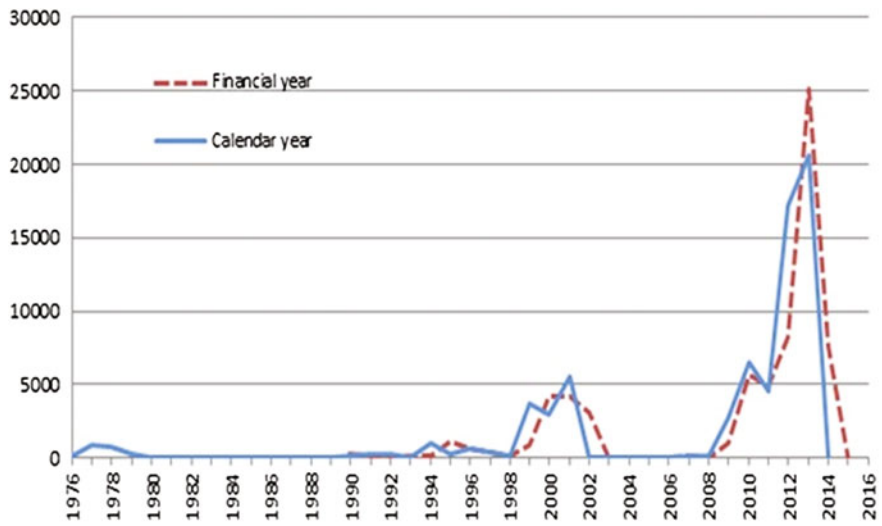


Fig. 20.1 Boat arrivals by calendar year 1976–2014 and financial year 1989/1990–2014/2015 *Source* Phillips (2015, 4)

2013. (Crock and Ghezelbash 2010; Schloenhardt and Craig 2015). Both variants of the Pacific Solution were introduced in the context of Australian election campaigns, where the two major parties, as a measure of their competence and authority, projected their resolve to put people smugglers out of business. The main measures common to both periods are the use offshore detention and processing in Australian financed and operated detention centres on Nauru and Manus Island, and military operations to intercept and remove unauthorised boats heading for Australia.

The reintroduction of offshore processing in 2012 was the culmination of the Labor government's unsuccessful attempts to secure arrangements with neighbouring states to enforce Australia's border policing policies within the region (see Grewcock 2014). Since 2007, both Labor Prime Ministers had declared repeatedly that their priority was to eliminate people smuggling, making Labor vulnerable to political attacks from the Coalition when the numbers of unauthorised arrivals increased. In June 2012, following a series of deaths—asylum seekers who drowned en route to Australia from Indonesia—the government established an Expert Panel on Asylum Seekers (EPAS) to make recommendations on how best to avoid deaths at sea (EPAS 2012). Politically, the EPAS provided a face-saving mechanism for Labor by recommending the reintroduction of offshore processing, which Labor had opposed since 2007. Within days of the EPAS report being received, legislation was passed enabling the designation of Nauru and Papua New Guinea as suitable regional processing countries on the sole grounds that it is in Australia's national interest.[11]

The framing of offshore processing as a humanitarian measure designed to save refugee lives reinforced the serious criminality attached to people smuggling and belied the institutional abuse of refugees arising from the policy. The initial reintroduction rendered anyone arriving after 13 August 2012 liable to forced transfer to an offshore centre. The policy was extended on 19 July 2013, when it was announced that refugees detained after that date would only be settled in Nauru, Papua New Guinea, or another third country.

The Coalition embraced this strategy when it won office in September 2013. It expanded the capacities of the Nauru and Manus Island centres and signed a seemingly moribund agreement with Cambodia to resettle refugees there (Gleeson 2016; Murdoch and Koziol 2016). The determination of the Coalition government to restrict resettlement to relatively poor developing countries as a means of removing any incentive to smugglers was reinforced by its refusal to accept an offer by the New Zealand government to resettle 150 refugees from Manus Island in May 2016 (Davidson 2016).

However, from September 2013, the cornerstone of the Coalition government's strategy against people smuggling was the highly secretive policy of boat interceptions and turn-backs implemented through "the military-led, border security operation" Operation Sovereign Borders (DIBP 2016, 1). Under this policy, the government purchased purpose-built lifeboats in which to return unauthorised boat passengers; it forcibly turned vessels back to Indonesia and Sri Lanka, and it embarked on a strategy that limited public disclosure about so-called operational matters. The full extent of the turn-backs is unclear from the available data (Phillips 2015; Schloenhardt and Craig 2015), but there is little evidence that irregular migration within the region has slowed fundamentally, given the Department of Immigration and Border Protection's claim in May 2016 that there were "at least 14,000 people in Indonesia ready to get onto boats" (Pezzullo 2016). Rather, the Australian government's promotion of a turn-back policy arguably has contributed to more intransigent approaches by neighbouring states that intensify the precarious circumstances of unauthorised refugees. Examples include a "boat crisis" in May 2015, when up to 10,000 Rohingya refugees from Myanmar were pushed back to sea by the Thai, Malaysian, and Indonesian authorities (Cooke 2016), and a similar episode in June 2016, when the Indonesian authorities denied entry to 44 Tamils stranded off the coast of Aceh (Topsfield and Rosa 2016). Further, "it is not possible to show a causal link between the turn-back policies and any persons who would have drowned or died had the policy not been implemented" (Schloenhardt and Craig 2015, 562).

The military dimensions of Operation Sovereign Borders also provided a rationale for the establishment of the Australian Border Force in July 2015. The creation of the new agency, which incorporated and increased the enforcement powers of Customs and the Immigration Department, enshrined higher levels of secrecy in relation to all border policing operations (McKenzie-Murray 2016). In particular, the enacting legislation included provisions that criminalise medical professionals, social workers, and other so-called entrusted persons, who record or disclose protected information such as a detainee's medical conditions or experiences of abuse without the permission of the Secretary of the Immigration Department.[12] This was an obvious but so far unsuccessful attempt to silence the growing body of medical and other evidence about the systemically abusive conditions of detention (Dudley 2016; Marr and Laughland 2014; Snow 2016), especially in relation to children (AHRC 2014; Elliott and Gunasekera 2016). It was also indicative of the growing level of state surveillance and harassment of investigative journalists and whistleblowers (Doherty 2016; Farrell 2016).

Conclusion

Since 2012, there has been a significant escalation of the military and authoritarian border policing measures deployed by the Australian government. All of these measures have been rationalised by the imperatives of an offensive against people smuggling that the Australian government seeks to extend to neighbouring states. However, the centrality of people smuggling to border policing policy, mainstream political discourse, and popular perceptions of transnational crime all serve to divert attention from the survival and humanitarian needs of refugees, the risks to irregular migrants posed by border controls, and the systemic harms caused by immigration detention. Moreover, the criminalisation of people smuggling excludes consideration of safe alternatives such as airlifts, expanded resettlement programmes, and protected rights to free movement.

At the time of writing, refugees on Nauru have held over 100 successive days of protests against their forced removal and abandonment by the Australian authorities. These people are not the victims of people smuggling; they are the collateral damage of the Australian state's criminogenic border policing and anti-smuggling strategies.

Notes

1. *Migration Legislation Amendment Act (No 1) 1999.* The current offences were amended by the *Anti-People Smuggling and Other Measures Act 2010* and the *Deterring People Smuggling Act 2011.*
2. S 233A *Migration Act 1958.*
3. See http://www.unhcr.org/protect/PROTECTION/3b66c2aa10.pdf.
4. S 228B *Migration Act 1958.*
5. S 233C *Migration Act 1958.*
6. S 233B *Migration Act 1958.*
7. S 236B *Migration Act 1958.*
8. Mandatory sentencing is rare in Australia, although the High Court has upheld the validity of the *Migration Act* provisions. See *Bonang Darius Magaming v The Queen* [2013] HCA 40.
9. For a summary of critical reports by the Australian Human Rights Commission, see https://www.humanrights.gov.au/our-work/asylum-seekers-and-refugees/projects/immigration-detention-and-human-rights. See also Grewcock (2015, 2016).
10.

S 189 *Migration Act 1958.*

11. *Migration Legislation Amendment (Regional Processing and Other Measures) Act 2012.*
12. SS 41–51 *Australian Border Force Act 2015.*

References

AHRC. 2012. *An Age of Uncertainty: Inquiry into the Treatment of Individuals Suspected of People Smuggling Offences Who Say That They Are Children*. Sydney: AHRC.

AHRC. 2014. *The Forgotten Children: National Inquiry into Children in Immigration Detention*. Sydney: AHRC.

ALA. 2016. Untold Damage: Workplace Health and Safety in Immigration. https://www.lawyersalliance.com.au/opinion/untold-damage-workplace-health-and-safety-in-immigration. Accessed 10 June.

Allum, Felia, and Stan Gilmour. 2012. Introduction. In *Routledge Handbook of Transnational Organized Crime*, eds. Felia Allum, and Stan Gilmour, 1–15. Abingdon: Routledge.

Andreas, Peter, and Ethan Nadelmann. 2006. *Policing the Globe: Criminalization and Crime Control in International Relations*. Oxford: Oxford University Press.

Barker, Cat. 2013. *The People Smugglers' Business Model*. Canberra: Parliamentary Library.

Behan, Tom. 2002. *See Naples and Die: The Camorra and Organised Crime*. London: Taurus.

Behan, Tom. 2008. *Defiance: The Story of One Man Who Stood Up to the Sicilian Mafia*. London: Taurus.

Budapest Group. 1999. *The Relationship between Organised Crime and Trafficking in Aliens*. Vienna: International Centre for Migration Policy Development.

Castells, Manuel. 2000. *End of Millennium*. Oxford: Blackwell Publishers.

CDPP. 2016. People Smuggling. https://www.cdpp.gov.au/crimes-we-prosecute/people-smuggling. Accessed 8 Sep.

Cohen, Stanley. 2001. *States of Denial: Knowing about Atrocities and Suffering*. Cambridge: Polity Press.

Cooke, Richard. 2016. Nope, Nope, Nope: Why Australia Won't Help the Rohingya. *The Monthly*, August.

Crock, Mary, and Daniel Ghezelbash. 2010. Do Loose Lips Bring Ships? The Role of Policy, Politics and Human Rights in Managing Unauthorised Boat Arrivals. *Griffith Law Review* 19: 238–287.

Davidson, Helen. 2016. Turnbull Rejects New Zealand Offer to Take 150 Refugees from Detention. *The Guardian*, April 29.

DeCrespigny, Robin. 2012. *The People Smuggler: The True Story of Ali Al Jenabi, The 'Oskar Schindler of Asia'*. Camberwell: Penguin.
DIBP. 2016. Operation Sovereign Borders. https://www.border.gov.au/about/operation-sovereign-borders. Accessed 8 Sep.
Doherty, Ben. 2016. Offshore Detention Whistleblower Loses Job after Condemning 'Atrocity' of Camp. *The Guardian*, June 21.
Dudley, Michael. 2016. Helping Professionals and Border Force Secrecy: Effective Asylum-Seeker Healthcare Requires Independence from Callous Policies. *Australasian Psychiatry* 24: 15–18.
Elliot, Elizabeth, and Hasantha Gunasekera. 2016. *The Health and Well-Being of Children in Immigration Detention*. Sydney: AHRC.
EPAS. 2012. *Report of the Expert Panel on Asylum Seekers*. Canberra: Australian Government.
Farrell, Paul. 2016. The AFP and Me: How One of My Asylum Stories Sparked a 200-Page Police Investigation. *The Guardian,* February 12.
Gleeson, Madeline. 2016. *Factsheet: Agreement between Australian and Cambodia for the Relocation of Refugees from Nauru to Cambodia*. Sydney: UNSW.
Grewcock, Michael. 2009. *Border Crimes: Australia's War on Illicit Migrants*. Sydney: Institute of Criminology Press.
Grewcock, Michael. 2012. People Smuggling and State Crime. In *Crime, Justice and Social Democracy*, eds. Kerry Carrington, Matthew Ball, Erin O'Brien, and Juan Tauri, 327–343. Houndsmill: Palgrave Macmillan.
Grewcock, Michael. 2014. Back to the Future: Australian Border Policing under Labor. *State Crime* 3 (1): 102–125.
Grewcock, Michael. 2015. Australian Border Policing and the Production of State Harm. In *The Routledge International Handbook of the Crimes of the Powerful*, ed. Gregg Barak, 331–347. London: Taylor and Francis.
Grewcock, Michael. 2016. Australian Border Policing, the Detention of Children and State Crime. In *The Routledge International Handbook of Criminology and Human Rights*, eds. Leanne Weber, Elaine Fishwick, and Marinella Marmo, 157–168. London: Taylor and Francis.
Hernández, Anabel. 2013. *Narcoland: The Mexican Drug Lords and Their Godfathers*, trans. Ian Bruce. London: Verso.
Kenney, Michael. 2007. *From Pablo to Osama*. University Park, PA: Pennsylvania State University Press.
Marr, David, and Oliver Laughland. 2014. Australia's Detention Regime Sets Out to Make Asylum Seekers Suffer, Says Chief Immigration Psychiatrist. *The Guardian*, August 5.
McAdam, Jane, and Fiona Chong. 2014. *Refugees: Why Seeking Asylum is Legal and Australia's Policies Are Not*. Sydney: UNSW Press.
McCoy, Alfred W. 2003. *The Politics of Heroin: CIA Complicity in the Global Drug Trade*. Chicago: Lawrence Hill Books.

McKenzie-Murray, Martin. 2016. Inside Border Force's Power. *The Saturday Paper*, September 5.
Morselli, Carlo. 2009. *Inside Criminal Networks*. New York, NY: Springer.
Mueller, Gerhard O.W. 2001. Transnational Crime: Definitions and Concepts. In *Combating Transnational Crime: Concepts, Activities, Responses*, eds. Phil Williams, and Dimitri Vlassis, 13–21. Abingdon: Frank Cass Publishers.
Murdoch, Lindsay, and Michael Koziol. 2016. Australia's Cambodia Resettlement Plan 'A Failure'. *Sydney Morning Herald*, April 3.
Passas, Nikos. 2001. Globalization and Transnational Crime: Effects of Criminogenic Asymmetries. In *Combating Transnational Crime: Concepts, Activities, Responses*, eds. Phil Williams, and Dimitri Vlassis, 22–56. Abingdon: Frank Cass Publishers.
Pezzullo, Michael. 2016. Estimates Hearing. https://www.border.gov.au/about/news-media/speeches-presentations/secretary-opening-statement-05052016. Accessed 5 May.
Phillips, Janet. 2015. *Boat Arrivals and Boat 'Turnbacks' in Australia Since 1976: A Quick Guide to the Statistics*. Canberra: Parliamentary Library.
Pickering, Sharon. 2005. *Refugees and State Crime*. Sydney: Federation Press.
Rodgers, Emma. 2009. Rudd Wants People Smugglers to 'Rot in Hell'. *ABC News*, April 17.
Schloenhardt, Andreas. 2011. *Migrant Smuggling and Organised Crime in Australia*. Brisbane: University of Queensland.
Schloenhardt, Andreas, and Colin Craig. 2015. 'Turning Back the Boats': Australia's Interdiction of Irregular Migrants at Sea. *International Journal of Refugee Law* 27: 536–572.
Schloenhardt, Andreas, and Colin Craig. 2016. Prosecutions of People Smugglers in Australia 2011–2014. *Sydney Law Review* 38: 49–83.
Schloenhardt, Andreas, and Charles Martin. 2012. Prosecution and Punishment of People Smugglers in Australia 2008–2011. *Federal Law Review* 40: 111–140.
Snow, Deborah. 2016. AMA President Brian Owler Lashes Department of Immigration over Health Services to Asylum Seekers. *Sydney Morning Herald*, February 21.
Topsfield, Jewel, and Amilia Rosa. 2016. Indonesian Police Fire Warning Shot as Stranded Sri Lanka Women Disembark Boat. *Sydney Morning Herald*, June 17.
Weber, Leanne, and Sharon Pickering. 2011. *Globalization and Borders: Death at the Global Frontier*. Basingstoke: Palgrave Macmillan.

Author Biography

Dr. Michael Grewcock teaches criminal law and criminology in the Faculty of Law, UNSW Sydney, Australia. He wrote *Border Crimes* (Sydney Institute of Criminology 2009) and several book chapters and articles on border policing and state crime, and he serves on the editorial boards of *State Crime* and the *Howard Journal of Crime and Justice.*

Part III

State and Non-state Responses

21

A Gallipoli Trope on Australian Peacekeeping

John Braithwaite

This essay is not a comprehensive overview of Australian peacekeeping. Rather it focusses on Gallipoli as a trope, meaning it engages with the idea of Gallipoli figuratively or metaphorically. The Gallipoli trope connects to an Anzac legend within which Simpson and his donkey loom figuratively to transmit the idea of sacrifice for the safety of others through the ages. Simpson and his donkey give up their lives to save countless lives of others carrying the wounded from the battlefield under enemy fire.

There is a lot going on in the Gallipoli trope and the 'Simpson and his donkey' trope. They commemorate loss, courage, and healing wounds of ill-conceived battle. The Anzac Day dawn service has evolved—with elements such as poems, sermons, and prayers for peace, the 'Ode of Remembrance', the *Last Post*, and the lone piper—into a beautiful national ritual of reflection. The attendance of a senior representative of the Turkish army at the Canberra War Memorial every year and the integration of remembrance for gestures of civility across the Anzac-Turkish trench lines into rituals of reconciliation are civilising tropes. At the same time, the Gallipoli trope has been infused with nonsense about invading another country as a measure of the birth of a nation. At times, there is drunken incivility while Australians are guests in other peoples' countries, including Muslim ones like Turkey—to which the Gallipoli peninsula belongs—and Malaysia, in the city of Sandakan.

J. Braithwaite (✉)
School of Regulation and Global Governance (RegNet),
Australian National University, Canberra, Australia
e-mail: john.braithwaite@anu.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_21

The image many Australians have of our peacekeeping is that we are the world's best peacekeepers, more nuanced and responsive to local voices than the US military, for example. Perhaps we are more sophisticated and locally attuned than the Americans, but not New Zealand or Pacific Island peacekeepers.[1] Yet, the Australian military has logistically superior capabilities than New Zealand or Pacific states in peace operations, and superior training in important respects. After interviewing more than 300 peacekeepers from dozens of countries, we have learnt that *many* nations believe they have the world's best peacekeeping troops and police.

One mature way of seeing Australian peacekeeping is within the tradition of the Gallipoli trope. The finest examples of Australian peacekeeping have occurred in the context of disastrously ill-conceived international interventions of which Australia was culpably a part. Rwanda was, according to many, the most shameful page in the history of the UN, but Australian army nurses played courageous healing roles in the tradition of 'Simpson and his donkey'. The US leadership of the peace operation in Somalia was ham-fisted and disastrous, but, on its patch, the Australian peacekeepers did quite a good job at the difficult challenges of keeping and widening a Somali peace.

The very first UN peace operation, undertaken in 1947, involved Australian troops separating Dutch forces from Sukarno's troops, who fought for Indonesian independence. Later, this led to a UN peace operation, and to the UN Transitional Administration in West Papua in the 1960s, as the last piece of Netherland's Indonesia was handed over to Sukarno. Australia was a collaborator in the UN's crime of the so-called Act of Free Choice that the UN Transitional Administration supervised. Yes, the Act of Free Choice was a criminal act of the UN in convening a fraudulent electoral process, and Australia was, at the behest of the US' Cold War agenda, a lead conspirator in that crime. The crime was worse than a transparently fraudulent electoral process intentionally allowed by the UN to be fraudulent. It was a process in which anyone who manifested an intent to vote for independence was subjected to violence, offered bribes to change their vote, tortured, and even killed if they did not submit (Braithwaite et al. 2010a; Hernawan 2013). That is why only one of the votes cast in the plebiscite of representatives was against integration into Indonesia. The torture and human rights abuses continue in West Papua today at a shocking level (Hernawan 2013). Australian governments, Labor and Liberal, continue to be quiescent in their condemnation of this, as do Australian foreign aid organisations, who are part of Australian failure of peacebuilding and development in the part of our region that suffers the worst poverty and the worst rights abuses, that is, the highlands of West Papua. For the most part, Australian civil society and

development agencies are intimidated into staying away by a timorous Department of Foreign Affairs and Trade that, today, repeats its errors of East Timor in West Papua, driven by fear of upsetting Indonesia. It will be many years, before Indonesia and Australia get serious about repairing the harm and reconciling the crime of the Act of Free Choice.

For all that, the history of Australian peacebuilding is as full of indomitable courage and success—that was difficult to achieve—as it has been of Gallipoli-like failure and complicity in West Papuan criminality.

Australian Redemption Stories

Now we consider four peacekeeping operations that can be read as redeeming Australia after its terrible historical start with peacebuilding in West Papua. First, we consider Cambodia, then Timor-Leste, Bougainville, and, finally, Solomon Islands. These are the four most important peacekeeping operations in terms of Australian involvement.

Cambodia

The Vietnam War became the Indo-China War when Cambodia had more bombs—2.7 million tonnes to be precise—dropped on its civilians between 1965 and 1973 than were dropped in WWII (Grabar 2013). This bombing created the genocidal Khmer Rouge regime, but this chapter is not the place to describe this chain of causalities.

Australia was the most proactive and early mover to support America's Vietnam folly. In the late 1980s and early 1990s, Foreign Ministers Bill Hayden and later Gareth Evans showed outstanding leadership in international diplomacy for a Cambodian peacekeeping operation to end the long cycles of civil war in Cambodia. Unlike West Papua, Australia sought to redeem its complicity in the war crimes of Vietnam and Cambodia by genuine, tenacious leadership for peace.

The peace operation itself was a qualified success and partial failure. It has ushered in a quarter of a century of peace, more or less, and has been part of a long-run civilising of formerly exceptional violence in Cambodia (Broadhurst et al. 2015). An election for a successor regime was conducted in a peaceful enough fashion under the supervision of UN peacekeepers, which were led by the great Australian peacekeeper General John Sanderson. But it would be an exaggeration to say that the peace operation left Cambodia in the hands of a

stabilised democracy, even a semi-democracy. Through a variety of Machiavellian manoeuvres, Hun Sen, an army general who defected from the Khmer Rouge, has ruled an autocracy continuously since 1993 while creating an appearance of electoral democracy.

Much more important is the impact of the Cambodian peace operation initiating a new paradigm of peacekeeping. Traditional peacekeeping operations had simply patrolled a border, disarmed troops, monitored a ceasefire, or kept combatants apart at a line of control. Cambodia started the UN process of learning how to do multidimensional peacebuilding that was richer. Traditional peacekeepers would be complemented by building institutions of peace and democracy, such as a rule of law through community policing, independent prosecutors, and independent judiciary; an inclusive constitution; institutions that create checks and balances against abuse of power such as an Ombudsman, an Auditor-General, an independent electoral commission, and independent regulatory agencies including a central bank; and institutions of development. This UN institutional learning, of course, has been gradual between Cambodia and the present (Howard 2008), and it still has a long way to go.

Looking back, the quantitative evidence now clearly suggests that traditional peacekeeping operations make only small contributions to enhancing long-term prospects of peace, while multidimensional peacekeeping operations that evolved from Cambodia make a very large contribution to the probability of long-term peace and democracy (Call 2012; Doyle and Sambanis 2000; 2006; Fortna 2004, 2008; Fortna and Howard 2008; Gilligan and Sergenti 2008; Nilsson 2006; Quinn et al. 2007; Riordan 2013; Sambanis 2008; Walter 2002). That is not to deny that many UN peacekeeping operations fail or partially fail. It is just to say that the coefficients for multidimensional peacekeeping in multiple regression analyses across large numbers of cases are large for war reduction.

From a parochially Australian point of view, Australia—at the turn of the century—was surrounded by what was called an 'arc of instability', with Indonesia having the highest incidence of terrorist bombings of any country up to the turning-point Bali bombing of 2002 (Braithwaite et al. 2010a), and significant armed conflict in Aceh, Ambon, East Timor, North Maluku, Poso, Kalimantan, and West Papua. There was also serious tribal warfare in the highlands of Papua New Guinea; civil war in Bougainville, Mindanao, and the Solomon Islands; recurrent coups in Fiji; and various more minor regional instabilities. Ethnic cleansing and rioting against Chinese communities are part of the history of violence in most of these places and in metropolitan Jakarta as well—from Aceh to East Timor, to Ambon to

Kalimantan to Bougainville, right around to the Solomon Islands (Braithwaite et al. 2012; Chua 2004)—just as this was part of the genocide in Cambodia. Most of these conflicts have now been calmed. Competence in Australian peacemaking, peacekeeping, and policekeeping with regional partners has made a significant contribution to this outcome. While Cambodia was too far away to be considered part of what was called our 'arc of instability', it was the place where we began the journey of learning how to respond to it.

Timor-Leste

Australia's folly in embracing the invasion of Turkey in 1915 and its complicity in the invasion and bombing of Indo-China in the 1960s and 1970s were on a larger scale than the wrongdoing Australia perpetrated against the people of East Timor. But the number of different ways that Australia wronged the unfortunate people of Timor has been larger, and the direct duplicity of Australia more egregious. Scott (2005) identified four different Australian betrayals of the people of East Timor, while Braithwaite et al. (2012) identified six.

Australia's first affliction upon East Timor was to drag it into WWII. Japan drove Australian troops from Kupang in 1942. Surviving Australian forces fled across the border into the neutral Portuguese territory of East Timor. This drew Portuguese Timor into the conflagration, with an invasion of 20,000 Japanese troops, who were harassed by the hit-and-run tactics of Australian forces and East Timorese allies. Until this happened, Japan had no intention of invading East Timor (Scott 2005), partly because Germany was anxious to not have Portugal drawn into the war on the Allied side. By the end of the war, perhaps 40,000 to 60,000 East Timorese had lost their lives (Dunn 2003) and many women had experienced sexual slavery. At the end of a guerrilla campaign, most of the resourceful Australian troops escaped back to Australia with the loss of only 40 men (Pilger 1994).

Scott (2005) describes this suffering from Australia's intentional strategy of dragging East Timor into WWII as the first Australian betrayal of its people. The second was Prime Minister Gough Whitlam's declared support for the integration of East Timor into Indonesia. He had declared his support long before a reluctant President Suharto was persuaded to deploy military force to take this course. Whitlam surely had realised that military force would be the only way the integration of East Timor could be achieved.

The third betrayal was when the UN, with prominent involvement from Australia, guaranteed the people of East Timor that they could vote for independence or autonomy within Indonesia without fear in 1999. When the predicted widespread killing broke out after the result was announced, the predominantly Australian UN personnel team was ordered back to the greater security of Dili, and then evacuated from the country. As in WWII, many young Australian individuals stepped forward with extraordinary acts of bravery in defending Timorese, defying orders to desert them, with unarmed Australian police standing between a militia member with a cocked weapon and a Timorese citizen. The dishonesty and duplicity of the Australian state and its leaders betrayed Timor, not the magnificent young people who went to do the impossible job on the ground in East Timor in 1999.

Scott (2005) nominates as the fourth betrayal that Australia knew from its intelligence interceptions that the Indonesian Army planned the slaughter and scorched-earth policy it implemented in 1999. Yet, Prime Minister John Howard failed to press the Indonesian leadership forcefully enough on this and convinced himself that Australian intelligence might prove incorrect.

A fifth betrayal—that occurred after Scott's book (2005) was published—was the coercive negotiation of oil and gas rights with Timor-Leste over the disputed aspects of the post-independence border with Australia, as discussed by Cleary (2007). Australia's dirty tricks stooped to the level of covertly breaking into the offices of the lawyer who represented Timor-Leste in order to steal legal-in-confidence documents that were the property of the government of Timor-Leste.

A related sixth betrayal that Scott did not highlight was the refusal at various stages to grant asylum to desperate Timorese who fled to Australia.

> With all this high level political manoeuvring aimed at positioning to take advantage of these rich oil reserves, Australia began to refuse asylum to East Timorese refugees so as not to cause offense to Indonesia. There was a sense in Canberra that it was time to 'put the East Timor issue to bed'. When 1,200 refugees arrived in September 1994, Australian immigration authorities took the cynical position that, because the East Timorese held Portuguese citizenship and were not facing persecution in Portugal, they were therefore not entitled to claim the protection of Australia. This was a bizarre and contradictory position, given that Australia had argued forcefully in the International Court of Justice against any claim by Portugal to speak for the East Timorese when the Portuguese challenged the legality of the Timor Gap Treaty… In 1996, one East Timorese asylum seeker appealed the Refugee Review Tribunal's adverse finding on his claim for asylum. As a consequence of the Federal Court judgment in his favour, in three other East Timorese cases the

> tribunal deemed that Portuguese nationality was inapplicable and ruled in favour of the East Timorese concerned. However, the Australian government appealed these decisions in July 1997. After deliberately dragging out the appeal process until the end of 1999, the government decided to drop its appeal in the Federal Court against the asylum seekers, opting to return to the normal refugee determination process. By this time, however, the referendum in East Timor had taken place, and this group no longer had any claim to asylum. (Wise 2006, 46)

While Prime Minister Malcolm Fraser had redeemed our crimes in Indo-China by embracing their boat people, John Howard compounded our betrayals of East Timor by pushing back their refugees. Notwithstanding this litany of betrayals, Australia's peacekeepers were mostly magnificent in Timor-Leste. First, the bravery of unarmed Australian police in standing between the innocent and the killer—insisting in the name of the UN that civilians not be killed on the UN's watch—was precisely what the UN failed to do in Srebrenica and Rwanda. General Cosgrove's INTERFET force of predominantly Australian soldiers was also courageous because they knew that, if Indonesian forces decided to take them on, they would be slaughtered due to Indonesia's superior numbers and command of the local terrain. Few peace operations in the history of the UN exposed so many peacekeepers to such a large risk. The result of that courage was quite probably the prevention of an act of genocide.

The UN peace operation that followed was one with mixed success. But, on balance, it has helped local and UN leadership secure a peaceful twenty-first century for Timor-Leste apart from a reignition of violence and return of peacekeepers between 2006 and 2008. As happened also in the Solomon Islands, the announcement effect of the arrival of the navy ships with the Australian peacekeepers in 2006 had a massive immediate impact in dampening the escalating violence. The Timor-Leste peace process has secured a rather robust democracy that enjoys high economic growth, albeit with many limitations concerning the separation of powers and enduring areas of deep poverty (Braithwaite et al. 2012).

Bougainville

The Bougainville civil war might have been prevented had Australia's Minister for External Affairs, Ceb Barnes, adopted a more careful approach at the end of the 1960s to negotiating the Bougainville copper mine that had such a disastrous impact on the environment and livelihoods of

Bougainvillians. Looking back on my days as a student activist, I feel personally complicit that I did not do enough. I was too polite when Ceb Barnes agreed to attend a debate with his critics, to which Peter Slipper—the former Speaker of the Australian House of Representatives—and I had invited him. I was not assertive enough when I subsequently lobbied opposition leaders Gough Whitlam and Bill Hayden in Bougainville when they flew to Bougainville on a fact-finding visit in 1969.

A number of things stand out about the Bougainville peacebuilding after the long independence civil war fought—over more than mine grievances—by the Bougainville Revolutionary Army from 1998 to 1996. Firstly, for the internationals, it was a *Light Intervention* (Regan 2010) that was cheap compared to many less successful peace operations. Secondly, leadership of the peace process was predominantly local, with Australia showing unusual humility—compared to its typical regional domination—in shaping the intervention. Thirdly, locals established initially small zones of peace that spread. Moreover, peacekeepers played a useful role in proactively suggesting that they could guarantee security for meetings where such progress could be negotiated by local leaders who were afraid they might be killed in a local peace negotiation. Also, Bougainville had an innovative, sequential architecture of commitment between the parties; exemplified by the statement: I will do this to consolidate the peace only after you do that (Braithwaite et al. 2010b; Regan 2010). It is a case that supports Walter's (2002) theory and data that reciprocity in step-by-step demobilisation is what delivers peace. Furthermore, in the long term, Bougainville built a restorative peace, rather than a liberal or realist peace (Braithwaite et al. 2010b). In this restorative peace, traditional reconciliation; healing led by church, youth, and women's groups; and restorative justice training by the Peace Foundation Melanesia—with some useful help from our network of restorative advocates in Australia and New Zealand—played important parts, and continue to do so. Finally, Australia's contribution to enforcing the withdrawal of the private military organisation, Sandline International—that would have exacerbated the war—was decisive and important (Dinnen et al. 1997; Dorney 1998; O'Callaghan 1999). This was also an internationally important moment in renewing the anti-mercenary norm in world affairs (Percy 2007), which—thanks to the arrest of Sandline International leaders in Bougainville—is less rampant this century than it was in the 1990s.

Boege (2006) has described Bougainville as a 'slow food' approach to peacebuilding. It was a hybrid architecture of peace (Boege et al. 2008) and a grand one; built on humble foundations. It included patience by the international leadership of New Zealand, Australia, and the UN, and most

importantly patient determination by the people of Bougainville. It was also an innovative peace operation because peacekeepers were unarmed at the request of the parties, and because of a Bougainvillean civil society that wanted an end to gun culture.

All these features make Bougainville a distinctive case from which much can be learned for the future. The fear about the Bougainville peace process is what will happen if Bougainville votes for independence in the next few years. Will the parliament of Papua New Guinea then grant Bougainville their independence, as the peace process suggests they should? Some of us fear that Port Moresby could even be so reckless as to deny the people of Bougainville the referendum on independence that was the central plank of the peace deal. Is Australia—and other regional players—doing enough to persuade Port Moresby that war could reignite if they do not honour the spirit as well as the letter of the peace agreement?

Solomon Islands

US Secretary of State Condoleezza Rice was impressed (Braithwaite et al. 2010c) with the way Australia stepped up to ensuring that the Solomon Islands did not emerge from its civil conflict—which occurred around the turn of the century—as a 'petri dish' in which terrorism could breed (Wainwright 2003). Fervently Christian, Solomon Islands was one of the least likely places for an Al Qaeda or ISIS presence to fester. Yet, Australia with its regional partners of the South Pacific Forum, made the biggest, most systematic, sustained investment in peacebuilding that it has ever made in the Solomon Islands. It was a good investment, because of the way it helped the people of the Solomon Islands to pacify violence not because of its contribution to combating terrorism. The Regional Assistance Mission to Solomon Islands (RAMSI) has now helped secure 12 years of peace and the rebuilding of many important state institutions, particularly the police.

However, the peace operation put excessive emphasis on rebuilding pillars of the state. In a sense, RAMSI went in with a World Bank template of what a successful state looks like and then set out to build it. An alternative path would have been to listen to inside voices on what social drivers of the conflict should be addressed, as had been done in Bougainville. Instead, RAMSI set out with its templates for rebuilding a so-called 'failed state', where there had never actually been a deeply developed state in the first place.

A problem was that the shadow state (Reno 1995, 1998, 2000, 2002) of business leaders—particularly international and national illegal and legal

logging interests—continued to pull the strings of the state through corruption. Most Solomon Islands politicians continued to be leaders who could be bought. In turn, most were leaders who bought support from their *wantok* (a network of family and friends whom one is obliged to) by delivering them far more than their fair share of state benefits—including contracts and even embezzled state funds—in exchange for blocks of their votes. A culture was created where the only way citizens could get anything from the state was through such political payoffs. The shadow state cast very large shadows over the pillars of formal state institutions that RAMSI sought to build. The shadow state cracked and corrupted those pillars. Illegal logging interests were a root cause of the conflict, of environmental decimation, of the destruction of village livelihoods, and of large-scale sexual abuse of children in logging camps by foreign logging workers (Herbert 2007). While the policing investment in Honiara was huge, and hugely successful—compared to other peace operations—in imprisoning most of the major militants who had fought the conflict, it touched little of the shadow state loggers' corruption, tax evasion, environmental crime, and paedophilia. This delegitimated the state. The reaction on the street was that the big fish, who pulled the strings that caused the conflict, were mostly untouched by the focus on locking up men who carried guns.

Still, peace improved police enforcement against violence in the capital city, and shiny new pillars of the institutionalised state were no small accomplishments. There was also more Australian investment in a Truth and Reconciliation Commission than there had been foreign reconciliation investment in Bougainville's *Light Intervention* (Regan 2010). Yet, there was nowhere near the depth and spread of locally led, customary reconciliation compared to Bougainville. The Truth and Reconciliation Commission report was almost entirely written by foreign consultants, who did not speak any local languages, and the report was leaked by church leaders rather than formally released by a government that did not take the report to heart.

The credit to Australia about RAMSI is that a great deal of constructive and critical research has been produced on the limitations of its overly statist and Honiara-centric approach that was neglectful of issues like rural land reform, and RAMSI's traditional metropolitan policing approach. And today, rural community policing wisdom is disseminating from Bougainville to Solomon Islands police.

Conclusion

If Australians are good at something in peacekeeping, it is learning from our mistakes. Our mistakes have been so manifold, however, that opportunities to learn have been vast. We are even good scholars of learning from our mistakes —most notable are the contributions of Howard (2008)—and we have good peacekeeping teachers about that learning, such as the widely experienced UN peacekeeping General Tim Ford who trains leaders of new UN peace operations. This ability to learn is no trivial strength. Howard's (2008) comparative study concluded that the most important predictor of success in peacekeeping and peacebuilding was to have a learning culture. Complexity theory is highly relevant to the unfolding of wars. Randomised controlled trials to evaluate standardised interventions may be less relevant than local responsiveness to 'failing fast, learning fast, adapting fast'. Institutional templates may be less useful than a diffusion of excellence for scaling up effectiveness in peacebuilding.

On the negative side, the Australian culture of peacekeeping lacks humility. We might be better than the Americans at learning local languages and listening to local voices, but all too often not so much better. We can be quite inclined to barge into places we understand little or nothing of. We can enthuse at projects like regime change in Afghanistan, Iraq, and Libya, pretending that we understand the answers to their problems. The want of humility in how we approached the challenges after the terrorist attacks of 9/11 caused us to shift resources from evidence-based peacekeeping to speculative regime-change adventurism. It turned out to make our security worse.

Perhaps because he was a novice Foreign Minister at the time, Alexander Downer did show humility and did listen to Bougainvillian voices, including Bougainvillian women. Australian peacekeepers showed wise followership to Bougainvillian and New Zealand leadership in that peace operation (Braithwaite et al. 2010b). Thinking more deeply about the lessons of that often forgotten operation of modest cost might be a good starting place for continuous improvement in Australian peacekeeping.

Notes

1. Certainly not more so than Pacific Island peacekeepers when sensing what to do in a war-torn village context. My Peacebuilding Compared data suggest that Pacific Island peacekeepers have superior capabilities at sensing, for example, that people are hanging back with unusual quiet for village life.

References

Boege, Volker. 2006. *Bougainville and the Discovery of Slowness: An Unhurried Approach to State-Building in the Pacific*. Brisbane: The Australian Centre for Peace and Conflict Studies.

Boege, Volker, Anne Brown, Kevin Clements, and Anna Nolan. 2008. *On Hybrid Political Orders and Emerging States: State Formation in the Context of 'Fragility'*. Berlin: Berghof Center for Constructive Conflict Management.

Braithwaite, John, Hilary Charlesworth, Peter Reddy, and Leah Dunn. 2010a. *Reconciliation and Architectures of Commitment: Sequencing Peace in Bougainville*. Canberra: ANU E-Press.

Braithwaite, John, Hilary Charlesworth, and Aderito Soares. 2012. *Networked Governance of Freedom and Tyranny*. Canberra: ANU E-Press.

Braithwaite, John, Michael Cookson, Valerie Braithwaite, and Leah Dunn. 2010b. *Anomie and Violence: Non-Truth and Reconciliation in Indonesian Peacebuilding*. Canberra: ANU E-Press.

Braithwaite, John, Sinclair Dinnen, Matthew Allen, Valerie Braithwaite, and Hilary Charlesworth. 2010c. *Pillars and Shadows: Statebuilding as Peacebuilding in Solomon Islands*. Canberra: ANU E-Press.

Broadhurst, Rod, Thierry Bouhours, and Brigitte Bouhours. 2015. *Violence and the Civilising Process in Cambodia*. Cambridge: Cambridge University Press.

Call, Charles T. 2012. *Why Peace Fails: The Causes and Prevention of Civil War Recurrence*. Washington, DC: Georgetown University Press.

Chua, Amy. 2004. *World on Fire: How Exporting Free Market Democracy Breeds Ethnic Hatred and Global Instability*. New York, NY: Anchor Books.

Cleary, Paul. 2007. *Shakedown: Australia's Grab for Timor Oil*. Sydney: Allen & Unwin.

Dinnen, Sinclair, Ron May, and Anthony J. Regan (eds.). 1997. *Challenging the State: The Sandline Affair in Papua New Guinea*. Canberra: ANU.

Dorney, Sean. 1998. *The Sandline Affair: Politics and Mercenaries and the Bougainville Crisis*. Sydney: ABC Books.

Doyle, Michael W., and Nicholas Sambanis. 2000. International Peacebuilding: A Theoretical and Quantitative Analysis. *American Political Science Review* 94 (4): 779–801.

Doyle, Michael W., and Nicholas Sambanis. 2006. *Making War and Building Peace: United Nations Peace Operations*. Princeton, NJ: Princeton University Press.

Dunn, James. 2003. *East Timor: A Rough Passage to Independence*. Double Bay: Longueville Books.

Fortna, Virginia Page. 2004. Does Peacekeeping Keep Peace? International Intervention and the Duration of Peace after Civil War. *International Studies Quarterly* 48: 269–292.

Fortna, Virginia Page. 2008. *Does Peacekeeping Work: Shaping Belligerents' Choices after Civil War*. Princeton, NJ: Princeton University Press.

Fortna, Virginia Page, and Lise Morje Howard. 2008. Pitfalls and Prospects in the Peacekeeping Literature. *Annual Review of Political Science* 11: 283–301.

Gilligan, Michael J., and Ernest J. Sergenti. 2008. Do UN Interventions Cause Peace? Using Matching to Improve Causal Inference. *Quarterly Journal of Political Science* 3: 89–122.

Grabar, Henry. 2013. What the US Bombing of Cambodia Tells Us about Obama's Drone Campaign. *The Atlantic*.

Herbert, Tania. 2007. *Commercial Sexual Exploitation of Children in the Solomon Islands: A Report Focusing on the Presence of the Logging Industry in a Remote Region*. Solomon Islands: Christian Care Centre.

Hernawan, Budi. 2013. From the Theatre of Torture to the Theatre of Peace: The Politics of Torture and Re-Imagining Peacebuilding in Papua, Indonesia. PhD dissertation, Australian National University.

Howard, Lise Morjé. 2008. *UN Peacekeeping in Civil Wars*. Cambridge: Cambridge University Press.

Nilsson, Desiree. 2006. *In the Shadow of Settlement: Multiple Rebel Groups and Precarious Peace*. Uppsala: Uppsala University, Department of Peace and Conflict Research.

O'Callaghan, Mary-Louise. 1999. *Enemies within: Papua New Guinea, Australia, and the Sandline Crisis. The Inside Story*. Sydney: Doubleday.

Percy, Sarah. 2007. *Mercenaries: The History of a Norm in International Relations*. Oxford: Oxford University Press.

Pilger, John. 1994. *Distant Voices*. London: Vintage Books.

Quinn, J.Michael, T.David Mason, and Mehmet Gurses. 2007. Sustaining the Peace: Determinants of Civil War Recurrence. *International Interactions* 33 (2): 167–193.

Regan, Anthony. 2010. *Light Intervention: Lessons from Bougainville*. Washington, DC: US Institute of Peace Press.

Reno, William. 1995. *Corruption and State Politics in Sierra Leone*. Cambridge: Cambridge University Press.

Reno, William. 1998. *Warlord Politics and African States*. Boulder, CO: Lynne Rienner.

Reno, William. 2000. Clandestine Economies, Violence and States in Africa. *Journal of International Affairs* 53 (2): 433–459.

Reno, William. 2002. Mafiya Troubles, Warlord Crises. In *Beyond State Crisis?*, ed. Mark R. Beissinger, and Crawford Young, 105–128. Baltimore, MD: Johns Hopkins University Press.

Riordan, Catherine. 2013. Post Conflict Governments 1975–2004: Designing Effective Assistance. PhD dissertation, University College Dublin.

Sambanis, Nicholas. 2008. Short- and Long-Term Effects of United Nations Peace Operations. *World Bank Economic Review* 22: 9–32.

Scott, David. 2005. *Last Flight out of Dili: Memories of an Accidental Activist in the Triumph of East Timor*. Melbourne: Pluto Press.
Wainwright, Elsina. 2003. *Our Failing Neighbour: Australia and the Future of the Solomon Islands*. Barton: Australian Strategic Policy Institute.
Walter, Barbara. 2002. *Committing to Peace: The Successful Settlement of Civil Wars*. Princeton, NJ: Princeton University Press.
Wise, Amanda. 2006. *Exile and Return among the East Timorese*. Philadelphia, PA: University of Pennsylvania Press.

Author Biography

John Braithwaite is a Professor and Founder of the School of Regulation and Global Governance (RegNet) at ANU. He works on restorative justice, responsive regulation, and relationships between crime and war. Since 2004, he has led the Peacebuilding Compared project which follows the most significant armed conflicts across the world since 1988.

22

Terrorism and Anti-terrorism Laws

Selda Dagistanli and Scott Poynting

This chapter deals with acts that were perpetrated after the US events of 11 September 2001 (henceforth 9/11) in Australia and have been deemed terrorist by the state, and with the state's juridical response to these. Although there were notorious, nation-shaking terror incidents in the nineteenth and twentieth centuries, and there were more than a dozen terrorist attacks in the 1970s and almost as many in the 1980s, none of these pre-9/11 events gave rise to specific anti-terrorism laws. However, the Hilton bombing in 1978 led to the formation of the Australian Federal Police and the *Australian Security and Intelligence Organisation Act 1979*, making the Australian Security and Intelligence Organisation (ASIO) a statutory body and legalising their hitherto unlawful phone-tapping. Moreover, the September 1978 arrest of Croatian militia, who trained for an armed incursion into Yugoslavia, led to the *Crimes (Foreign Incursions and Recruitment) Act 1978*.

S. Dagistanli (✉)
Western Sydney University, Penrith, Australia
e-mail: S.Dagistanli@westernsydney.edu.au

S. Poynting
School of Social Sciences and Psychology, Western Sydney University and Crime and Justice Research Centre, QUT, Penrith, Australia
e-mail: s.poynting@gmail.com

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_22

Fewer Terrorists than Terrorism Laws

There is a far greater chance in Australia of one being killed in a lightning strike than in a terrorist strike. In the 15 years since 9/11, there have been six deaths in incidents in Australia that are often considered terrorism. Three were perpetrators shot by police, two were mentally disturbed individuals, and one a 15-year-old child.

On 23 September 2014, Abdul Numan Haider, an 18-year-old Afghan-Australian, attacked two counter-terrorism police with a small knife outside Melbourne's Endeavour Hills police station, one of whom shot him dead. They had arranged the meeting to "warn" him about "radicalisation". Despite subsequent police and political pronouncements, there is no evidence that Haider was involved in a terrorist plot. There is evidence that he was maddened by repeated raids and interventions by counter-terrorism officers. His family had been concerned about his mental agitation and had urged him to see a counsellor (Lillebuen 2014).

On 15–16 December 2014, a lone gunman, former Iranian refugee and recent convert to Sunnism, Man Haron Monis, held hostage 10 customers and eight employees of the Lindt Chocolate Café in Sydney's Martin Place. Two hostages died in the siege. One was shot by Monis and one in police crossfire. Monis was shot dead by police. Prior to the siege, Monis faced charges of being an accessory to his wife's murder in April 2013, and, in October 2014, to sexually abusing a large number of women in the guise of being a spiritual healer. Barely reported in Australia is that Iran had previously warned about Monis' "psychological conditions" (Schliebs and Taylor 2014). In Australia, he had been involuntarily admitted to hospital for psychiatric treatment and had been diagnosed as schizophrenic and prescribed anti-psychotic drugs. His former lawyer, Manny Conditsis, opined that Monis was "unhinged at some point prior to taking hostages" (Feneley 2014). An Islamic State operative Monis was not, notwithstanding his declaration and his demanding that their black flag be brought to him at the café. Normally eager to claim credit for a terrorist operation, *Daesh* (ISIS) made no such statement. "Mr Monis' claimed nexus with IS did not—it seems—exist" (Gormley and Callan 2015, 43). This did not stop then Australian Prime Minister Tony Abbott from branding the incident an Islamist death cult attack, and as evincing the need to kerb civil liberties for the protection of the community (Tlozek 2015).

On 2 October 2015, 15-year-old Farhad Khalil Mohammad Jabar, an Iranian-born Iraqi immigrant of Kurdish background, shot dead civilian

police employee Curtis Cheng with a revolver outside Parramatta police headquarters in Sydney and was then himself shot dead by police. Both Police Commissioner Andrew Scipione and Prime Minister Malcolm Turnbull deemed the killing by Jabar to be an act of terrorism, and politically motivated (Scarr 2015; The Guardian 2015). Since then, four alleged co-conspirators, all young men, have been charged with acting in concert with Jabar. At the time of writing, these charges have yet to be tried.

In addition to these very few actual killings that have been dubbed terrorist, there have been some notorious failed cases, and three "terrorist plots" resulting in convictions under anti-terrorism laws. These will be discussed in the section after the following one, which details the anti-terrorism legislation under which the charges were brought.

Australia's Anti-terrorism Laws

Anti-terrorism laws pushed through parliament immediately after 9/11 were reactive; temporary emergency measures enacted in a climate of high alert amidst fears of a similar event in Australia. However, such laws are no longer extraordinary interim measures but have become entrenched in Australia's legal landscape (Hocking 2004a, b; Lynch and Williams 2006; Lynch et al. 2015; Roach 2015; Williams 2011). Provisions that would normally be reserved for wartime (Williams 2011) have been justified as pre-emptive (McCulloch and Pickering 2010). Williams (2011) argues that this new legal terrain normalises preventative approaches.

The rushed measures passed hastily after 9/11 were sweeping and pervasive, and granted extraordinary powers to police and ASIO. Furthermore, the wording of some legislation was so vague or convoluted (Carne 2003; Hocking 2004a) as to leave considerable space for wide abuse of power and due process. Fifteen years later, these extraordinary measures show no signs of abating, nor has there been any diminution in ambit or scope, or shift in their core pre-emptive elements. We argue that the ethical framework of this counter-terrorism has specific implications for racialised subjects, who have been disproportionately targeted by anti-terrorism measures. They have not been afforded the legal protections normally associated with Western liberal democracies (Hudson 2006; Razack 2008).

Australian Counter-terrorism Measures

Prior to 9/11, Australia had few laws pertaining specifically to terrorist offences. Acts of political violence, now definable as terrorism, fell under the ambit of the criminal law, and there were provisions for other offences such as the hijacking of aircraft covered by the *Crimes (Aviation) Act 1991* (Hocking 2004b). Aside from laws against various offences now covered by counter-terrorism legislation, the Northern Territory had one law—the *Criminal Code Act 1983 (NT)* part III, division 2—drafted specifically for terrorist acts.

In the first batch of post-9/11 legislation, the clear foregrounding of national security interests saw a fundamental shift in emphasis in criminal law and the role of the state; from focussing on crimes committed, court trials, and punishment to seeking to prevent crimes that have not yet occurred (McCulloch and Wilson 2016) through risk assessment and the implementation of precautionary measures. Zedner (2007, 262) conceptualises this criminal justice trend in temporal terms "pre-crime", as that which "shifts the temporal perspective to anticipate and forestall that which has not yet occurred and may never do so. In a pre-crime society, there is calculation, risk and uncertainty, surveillance, precaution, prudentialism, moral hazard, prevention and, arching over all of these, there is the pursuit of security".

By 2011, there were "54 pieces of anti-terrorism legislation" (Williams 2011, 1144–1145). By the end of 2014, there were 64 pieces of legislation (Davis et al. 2015; Lynch et al. 2015). As at mid-2016, the Turnbull government had introduced further legislation outlining a post-sentence preventative detention scheme, which will operate on the same principle as post-sentence detention for child sex offenders and perpetrators of extreme violence (see McSherry and Keyzer 2009). The legislation is expected to meet "key concerns of police and security agencies about convicted terrorists from the post-September 11 era who are due to be released in coming years" (Peatling 2016). The laws will allow convicted terrorists to be detained indefinitely after serving their sentences, subject to judicial approval. Fiona McLeod, president of the Law Council of Australia, observed that the approval or oversight of the courts would be based only on information offered to judges by government agencies (Peatling 2016).

In a separate state initiative, the NSW government has also moved to make changes to the *Terrorist (Police Powers) Act (NSW)* that will allow police to arrest, detain, and question a suspect—before they are charged—for up to 14 days with approval from a judge (Peatling 2016). These laws reflect the

original tendencies of the early counter-terrorism laws to grant enormous discretionary powers to police and security agencies.

The most extensive raft of counter-terrorism measures—48 pieces of legislation (Williams 2011)[1]—and the harshest counter-terror provisions, were introduced by the Howard government between 9/11 and its departure from office on 24 November 2007. Williams (2011, 1145) points out that during this time the "federal Parliament enacted … an average of 7.7 pieces of legislation each year … a new anti-terror statute was passed every 6.7 weeks". While the pace of counter-terrorism innovations has slowed, their political attraction is unabated. Threat and fear of terrorist attacks have been regenerated since 2014 by the rise of *Daesh*, which has been prolific in its recruitment of disenfranchised Muslim youth from around the world, especially through social media platforms.

In March 2002, the first Howard government counter-terrorism package consisted of seven major pieces of legislation—mainly in criminal law—representing the "most significant recasting between the executive, judicial and legislative arms of government" (Hocking 2004a, 320). Central to this was the *Security Legislation Amendment (Terrorism) Bill 2002 (No 2)* which sought to define what constituted a terrorist act, delineated categories of terrorist offences, enabled the proscription of terrorist organisations by the executive arm of government, and created crimes relating to membership and other specified connections with organisations so proscribed. The bill was significantly amended because of concerns about its disregard for civil rights and principles of law, and because of the extraordinary power and discretion it granted to the executive at the expense of judicial determinations and oversight, before it was enacted by mid-2002 (Hocking 2004a).

The second phase of early counter-terrorism initiatives was marked by the *ASIO Act 2003*, which granted exceptional discretionary and coercive powers to security organisations, allowing ASIO to obtain a warrant to detain for up to seven days and question for up to 24 hours any individual who may have information relating to terrorism offences but who are not suspects themselves. These non-suspects could include "family members, journalists, children between the ages of 16 and 18 and innocent bystanders" (Williams 2011, 1149). Individuals detained under the original *ASIO Act 2003* could also be questioned in eight-hour blocks and could be punished by imprisonment for five years if they refused to answer questions or gave false or misleading information. The warrant powers conferred on ASIO were—because of their controversial nature—subject to a sunset clause with an original expiry date in 2006. Come 2006, however, the sunset clause was extended for a further decade. The 2016 sunset date was further delayed by a

spate of new legislation passed in 2014. A further three pieces of national security legislation were introduced in the second half of 2014 with the *Counter-Terrorism Legislation Amendment (Foreign Fighters) Act 2014 (Cth)* effectively delaying the sunset clauses on some of the most controversial aspects of earlier counter-terrorism laws, including the issuing of control orders,[2] other preventative detention schemes and ASIO's questioning and detention warrant powers (Davis et al. 2015).

Davis et al. (2015, 652–654) separate the range of activities criminalised under counter-terrorism legislation into five categories. The first deals with the offence of actually engaging in a terrorist act under the *Criminal Code Act 1995 (Cth)*, punishable by a maximum penalty of life imprisonment. The second pertains to preparatory terrorist offences under the same Act, which makes punishable—also by a maximum of life imprisonment—the act of owning a particular object, receiving training or assisting or engaging another person in what is interpreted by police or security agencies as preparation for a terrorist act. The third category is described as terrorist organisation offences, which "criminalise directing the activities of, being a member of, recruiting for, providing training to or receiving training from, providing funding or receiving funding from, providing support or resources to and associating with a member of a terrorist organisation" (Davis et al. 2015, 653). In the third category, the definition of terrorist organisation suffers from the same general vagueness that afflicts definitions of terrorism overall (see Golder and Williams 2004) while—in a circular fashion—relying on the part of the same legislation that is equally ambiguous in scope and that criminalises direct or indirect involvement in preparatory acts regardless whether a terrorist act actually occurs. The fourth and fifth category of terrorist offences are, respectively, terrorist financing regimes as specified under the *Criminal Code Act 1995* and in the *Charter of the United Nations Act 1945 (Cth)*, and the offence of "urging violence" that relies on previous sedition laws in the *Criminal Code Act 1995*. In the provision regarding terrorist financing offences, recklessness rather than knowledge or intent is seen as sufficient for proving guilt, placing the burden of rigorous research on individuals before they provide money to a charity or similar organisation. Davis et al. (2015, 669) note that "the recklessness standard would be satisfied where the defendant is simply aware that the organisation is located in the same geographical area as a terrorist organisation or that it is an Islamic organisation".

Over a decade ago, Hocking (2004a, 322) made an extensive list of features common to subsequent counter-terrorism measures (to date then), including:

> … the expansion of executive power and discretion at the expense of judicial determination and supervision; the primacy of 'national security' imperatives; the truncation of the provision of independent legal advice; the departure from and diminution of long-standing legal and civil rights (presumption of innocence, trial by jury, freedom of association); the removal of certainty through the potential for arbitrary and discretionary application of the laws; the use of ambiguous and broadly defined key terms central to the construction of the particular criminal offence (primarily 'terrorism'); and the formalisation of a notion of guilt by association through derivative offences such as providing support to, recruitment, providing training to and membership (including 'informal membership', which is nowhere defined) of terrorist organisations.

These are equally applicable to current Australian counter-terrorism laws.

In sum, the categories of offences created by anti-terrorism legislation have been so wide in scope and so indiscriminate in their application to certain groups that human rights abuses have been inevitable. The effects are clear. Terrorism is invariably associated with disaffected Muslims, and terrorism offences have been aggressively enforced; almost exclusively on men identifying as Muslim. AFP officers admitted before a Parliamentary Committee that they were briefed to "lay as many charges as possible because we wanted to use the new legislation" (Davis et al. 2015, 656). Within this climate, alongside the pre-emption of counter-terrorism laws, such measures lend themselves to criminalising Muslims. Men and women who visibly practise Islam are at risk of being accused of and punished without trial for alleged terrorism offences by virtue of their likely association with other Muslims who may have family links to other individuals in the same geographical area as a terrorist organisation. They risk being blamed for terrorism if they have religious affiliations with organisations that have been popularly associated with terrorist sympathies. The links are often tenuous, exacerbating the risk of innocent Muslims being blamed, punished, and caught within the broad net of counter-terrorism laws.

Failed Terrorism Cases

In 2003, the first person charged under Australia's new anti-terrorism laws was 19-year-old Lebanese-background Sydneysider Zaky Mallah. He spent two years in maximum security prison awaiting trial but was acquitted of the terrorism charges in 2005. The pre-anti-terrorism laws sufficed. The young man was not a terrorist and should not have been tried as such. Like Numan

Haider, Mallah had been denied an Australian passport on security grounds, and this had compounded the young man's mental turmoil. Mallah had wished to travel to Lebanon to be married. The passport denial wrecked his plans. He placed posturing menaces online and blustered by phone that he would kill the AFP officer whom he blamed for his predicament. None of this shows serious terrorist intent or capacity.

That Mallah was charged with terrorism offences showed the enthusiasm of federal police and security services to boast that they had caught a terrorist and secured a result from the new laws. Yet, he was acquitted of the only terrorism charge, namely preparing a terrorist act by selling a videotape supposedly to be played in the event of his death as a martyr. The Director of Public Prosecutions submitted a further charge before the trial, that of threatening to cause serious harm to an undercover federal police officer who, while posing as a journalist, entrapped Mallah into boasting that he would take hostages at ASIO headquarters. That charge was proven, and Mallah was sentenced to two and a half years.

The first use of a "control order" in Australia under anti-terrorism laws was against former Melbourne taxi driver, Joseph "Jihad Jack" Terrence Thomas, who had travelled to Pakistan and Afghanistan in March 2001. In February 2006, Thomas was the first person to be convicted under the new anti-terrorism laws for receiving funds for his airfare home from a terrorist organisation. This conviction was overturned on appeal because the evidence was obtained after torture. Despite the quashing of his conviction, Thomas was immediately placed under a control order. He was later convicted for altering his passport, although no terrorism conviction against him has been sustained.

The failed London car bombing and the Glasgow airport attacks in June 2007 gave rise to the first arrest and charges in Australia under the *Anti-Terrorism Act 2005*. These charges should never have been proffered, and they failed. Five days after the Glasgow ram-raid, Dr Muhamed Haneef, a 27-year-old medical registrar at Gold Coast Hospital who had previously lived and worked in Britain, was arrested at Brisbane airport when he was bound for India to visit his new-born daughter. Upon leaving Britain, Dr Haneef had given an unexpired SIM card to a distant cousin in Merseyside. Police found it in the latter's possession in Liverpool while investigating his brother as one of the Glasgow perpetrators. The AFP falsely asserted that the SIM card had been found in the ram-raiding jeep in Glasgow, and continually failed to correct this assertion despite knowing it to be false. Other circumstantial "evidence" was leaked to the media, and Dr Haneef was widely smeared by the press as a terrorist. He was held as a terrorist in solitary

confinement for 11 days until being released on bail due to the flimsy case against him. However, he was held in immigration detention because immigration minister Kevin Andrews cancelled his visa on purported "character" grounds presumably to gain political capital from the case. The risible prosecution case saw the public prosecutor drop charges after 22 days, and Dr Haneef, his visa still cancelled, left for India. The following month, Mr Andrews' decision to revoke Dr Haneef's visa was legally quashed. In 2010, the subsequent government compensated Dr Haneef with an undisclosed sum.

Four months after the Haneef deportation, terrorism charges against Izhar Ul-Haque were also withdrawn in a case that brought condemnation to the AFP and ASIO. In 2004, the 21-year-old medical student became the first person to be charged with training with a terrorist organisation, the Lashkar-e-Taiba (LeT)—a largely Pakistan-based armed movement opposed to India's occupation of Kashmir—which the federal government had added to the list in late 2003. LeT was not on the proscription list at the time ul-Haque was alleged to have attended their camps. Ul-Haque was stopped at a Sydney railway station in November 2003 by ASIO agents who held him unlawfully and intimidated him through interrogation. Over 20 ASIO and police officers raided his family home. They had a search warrant but there was no warrant to detain and question Ul-Haque under anti-terrorism laws, and he was not made aware of his rights. The AFP later tried to coerce him into becoming an informant on terrorism suspect Faheem Lodhi, whose wife was a good friend of ul-Haque's mother. After he refused, he was charged with the terrorism offence in April 2004. Justice Adams ruled the wrongfully secured interview inadmissible and deemed ASIO officers' actions unlawful, oppressive, intimidating, and deceptive, amounting to a gross breach of powers, wrongful imprisonment, and kidnapping (Allard 2007; Macken 2007; *R v Ul-Haque* [2007] NSWSC 1251). In consequence of the inadmissibility of that evidence, the prosecution withdrew the case in November 2007.

Terrorism Convictions

The first terrorism conviction was of architect Faheem Lodhi. Lodhi was arrested in 2003 and was eventually convicted in 2006. He was alleged to have planned the bombing of various military installations—an allegation rejected by the jury—and the electricity grid. The evidence was circumstantial. The actual charge against him was acting in preparation for a terrorist

act. He was shown to have bought two maps of the electricity network, and to possess a "terrorism manual", namely notes culled from internet sites about obtaining ammonium nitrate, an explosive ingredient. That was enough to satisfy the legislative definition. The precise terrorist act did not need to be specified. Lodhi was sentenced to 20 years in prison (*R v Lodhi* [2006] NSWSC 691, 23 August 2006).

There have been three terrorist convictions since that time, each involving a purported "cell" and impracticable plots. The first concerned the so-called Benbrika group in Melbourne. Abdul Nacer Benbrika is an Algerian-born former aircraft engineer turned Muslim clergyman, who gave spiritual advice to a group of young, mainly immigrant-background Muslim men. The conviction of Benbrika and seven of these men in 2008 illustrates that the *Anti-Terrorism Act 2005* neither requires specific terrorist acts to be prepared for nor concrete plans and actual wherewithal to execute them. Members of the group were arrested in raids on 8 November 2005. The *Anti-Terrorism Bill 2005* had received royal assent only four days earlier. This legislation amended "the existing offences in the Criminal Code to clarify that it is not necessary to identify a particular terrorist act upon proving the offence". AFP Commissioner Mick Keelty (as cited in Sparrow 2008) explained the significance in this case: "The problem with the legislation was that the legislation at the time talked about 'the' terrorist act. And in the Benbrika matter there was no definite decision about 'the' terrorist act but, in our view, clearly they were planning for 'a' terrorist act. So we explained that to the previous government and that was when they recalled the Senate and changed the wording of the Act to 'a' terrorist act".

The then Chief Commissioner of Victoria Police, Christine Nixon, said at the time of the arrests that this group "had no specific target in mind" (Munro et al. 2005). They had no specific plan either, and no bomb, only a lot of talk—recorded by telephone interceptions—that would not have served to secure convictions before the change in the law. There was an actual bomb; one proffered by an ASIO agent provocateur to lure Benbrika, who was not interested.

Benbrika was convicted of directing and being a member of a terrorist organisation. The terrorist organisation was just him and the young men. He was also found guilty of possessing an item in connection with the preparation of a terrorist act. The item was a CD, and this conviction was overturned on appeal. Benbrika was sentenced to 12 years in prison. Many claims made by key prosecution witness Atik were discounted. The judge considered him to be a liar, a cheat, and a "fraudster of significant proportions" (Cooper 2015). In sentencing, Justice Bongiorno observed that "to be guilty of the

offence of membership it was not necessary that the terrorist organisation to which they belonged had gone as far as selecting a particular target". He was satisfied that there was a significant threat of a terrorist attack and that this threat—without concrete plans, targets, or weapons—was sufficient. In 2010, five of the young men were convicted of conspiring to commit a terrorist act and received prison sentences between 23 and 28 years, although the judge observed that "the evidence did not establish that any firm conclusion had been reached by the conspirators about the nature or target of their action" (Rice 2014).

The final "terrorist plot" to be instanced here is the 2009 Holsworthy Barracks case; an envisaged shooting massacre at an army base in Sydney. The plotters did not have any guns. One had been videoed walking around the perimeter of the base, without a camera, plans, or writing materials. One of the main witnesses was a police provocateur, who had incited one defendant to discuss *jihad* and to view the Holsworthy facility. In 2011, Saney Aweys, Wissam Fattal, and Nayef El Sayed were sentenced to 18 years in prison on this evidence. Their "conspiracy", said the judge, was "amateurish [and] far from sophisticated", but it did not need the capacity to succeed to lead to a conviction under the *Anti-Terrorism Act 2005*.

Since these three "plots", there have been three sets of highly publicised terrorism raids, which are yet to see a trial concluded at the time of writing. In September 2014, in the largest counter-terrorism raids in Australian history, some 800 police and security agents raided homes of Australian Muslims in Brisbane and Sydney. Just one terrorism charge eventuated. Omarjan Azari remains in remand under maximum security conditions condemned by a Supreme Court judge for the prisoner's inability to access lawyers effectively to prepare his defence (Hall 2015). He is charged with doing acts in preparation to commit a terrorist act. The alleged scenario is that someone connected with Azari was preparing to cut the throat of a random stranger in a public place, then drape the body in the ISIL flag, and post a video of it online. Another man was charged in the raids for possessing an unlicensed firearm and ammunition. He pleaded guilty and was fined AUD 500 and placed on a good behaviour bond; no terrorism charges and treatment followed. Dozens of others, however, were detained without charge in secrecy under anti-terrorism laws, pending investigation, and—failing charges—placed under control orders.

At the end of September 2014, there was a further round of counter-terrorism raids in suburban Melbourne, involving 100 police officers in seven locations. One 23-year-old man, former pizza shop worker Hassan El Sabsabi, was charged with intentionally making funds available to a terrorist

organisation knowing that organisation was a terrorist organisation and for allegedly sending about AUD 12,000 to a US citizen bound for the civil war in Syria (SBS 2014). He pleaded guilty. The Police Deputy Commissioner stressed that there was "no direct threat to community safety" (AFP 2014).

In February 2015, two young, male Muslim immigrants from Iraq and Kuwait were arrested in Sydney for acts in preparation in relation to an alleged plot involving a machete and a hunting knife. In April 2015, five men were arrested in Melbourne for allegedly plotting attacks on Anzac Day involving knifing police officers, "masterminded" by a 14-year-old in the UK. In May 2015, a 17-year-old was arrested in Melbourne for acts in preparation and possessing items—improvised explosive devices—but remained unidentified, being a minor. Since this time, every terrorism case has been against Muslims—but for one.

In August 2016, counter-terrorism officers in Victoria charged 31-year-old Phillip Galea with intentionally collecting and making documents connected with preparing for a terrorist act, and with committing acts in preparation for a terrorist act (Gough et al. 2016). Galea is affiliated with the anti-Muslim organisation Reclaim Australia and identifies with the patriot movement. He had been sentenced to one month in prison in November 2015 for possessing five tasers and 360 grammes of mercury—which can be used in making explosives—along with information on his computer about confecting explosives, and an "extensive" amount of "extreme" material linked with far-right groups (Cooper 2015). This level of indulgence would not have been extended to an angry Muslim young man, even if he was only ranting in a shopping centre or on Facebook.

Conclusion

We have shown that the fear of terrorism in Australia and the draconian laws that supposedly prevent terrorism are out of proportion to the extent of the threat. We have demonstrated how the anti-terrorism laws—always holding the potential for abuse of civil rights—have been targeted at Muslim communities in Australia, inevitably entrapping many innocent people in their web. The Australian state's dealings over terrorism have not been marked by proportionality or consistency.

Notes

1. Williams (2011, 1143) states that this number does not include numerous amendments of a "minor or technical nature" to existing legislation "that would otherwise inflate and distort the figures".
2. Division 104 of the *Criminal Code* permits members of the Australian Federal Police to apply to the court for a control order which restricts an individual's liberty, imposes prohibitions on the use or ownership of certain things, and stops them from leaving the country. These restrictions are put in place without a conviction or charge, based only on reasonable suspicion and the satisfaction of the court that the order will substantially assist in preventing a terrorist attack.

References

AFP. 2014. Melbourne Man Charged with Financing Terrorism. *Media Release,* September 30.

Allard, Tom. 2007. Terror Case Thrown Out. *Sydney Morning Herald*, November 12.

Carne, Greg. 2003. Terror and the Ambit Claim: Security Legislation Amendment (Terrorism) Act 2002 (Cth). *Public Law Review* 14 (1): 13–19.

Cooper, Adam. 2015. Reclaim Australia Member Phillip Galea Jailed for Possessing Tasers and Mercury. *The Age*, November 20.

Davis, Fergal, Nicola McGarrity, and George Williams. 2015. Australia. In *Comparative Counter-Terrorism Law*, ed. Kent Roach, 650–682. Cambridge: Cambridge University Press.

Feneley, Rick. 2014. Sydney Siege: Man Haron Monis, 'Humanitarian' and Terrorist. *Sydney Morning Herald*, December 20.

Golder, Ben, and George Williams. 2004. What Is 'Terrorism'? Problems of Legal Definition. *University of New South Wales Law Journal* 27 (2): 270–295.

Gormley, Jeremy, and Sophie Callan. 2015. Inquest into the Deaths Arising from the Lindt Café Siege: Opening Address for Second Segment. http://www.lindtinquest.justice.nsw.gov.au/Documents/Counsel%20Assisting%27s%20opening%20remarks%20made%20on%2017%20August%202015.pdf.

Gough, Deborah, Emily Woods, and Chris Vedalago. 2016. Police Charge Reclaim Australia-Linked Man after Counter-Terror Raid. *The Age*, August 7.

Hall, Louise. 2015. Judge Questions Why Terrorism Accused Omarjan Azari Is on Remand in Supermax. *Sydney Morning Herald*, August 20.

Hocking, Jenny. 2004a. Protecting Democracy by Preserving Justice: 'Even for the

Feared and Hated'. *UNSW Law Journal* 27 (2): 319–338.
Hocking, Jenny. 2004b. *Terror Laws: ASIO, Counter-Terrorism and the Threat to Democracy*. Sydney: UNSW Press.
Hudson, Barbara. 2006. Punishing Monsters, Judging Aliens: Justice at the Borders of Community. *The Australian and New Zealand Journal of Criminology* 39 (2): 232–247.
Lillebuen, Steve. 2014. Numan Haider: From Teenager to Terror Suspect. *Dominion Post*, September 25.
Lynch, Andrew, Nicola McGarrity, and George Williams. 2015. *Inside Australia's Anti-Terorism Laws and Trials*. Sydney: NewSouth Publishing.
Lynch, Andrew, and George Williams. 2006. *What Price Security? Taking Stock of Australia's Anti-Terror Law*. Sydney: UNSW Press.
Macken, Claire. 2007. Ul-Haque Case and ASIO's House of Cards. *ABC News*, November 19.
McCulloch, Jude, and Sharon Pickering. 2010. Counter-Terrorism: The Law and Policing of Pre-emption. In *Counter-Terrorism and beyond: The Culture of Law and Justice after 9/11*, ed. Nicola McGarrity, Andrew Lynch, and George Williams, 13–30. London: Routledge.
McCulloch, Jude, and Dean Wilson. 2016. *Pre-Crime: Pre-Emption, Precaution and the Future*. Abingdon: Routledge.
McSherry, Bernadette, and Patrick Keyzer. 2009. *Sex Offenders and Preventive Detention: Politics, Policy and Practice*. Sydney: Federation Press.
Munro, Ian, John Sylvester, and Tom Allard. 2005. We Have Disrupted a Large-Scale Attack. *The Age*, November 9.
Peatling, Stephanie. 2016. Malcolm Turnbull to Bring in New Laws Allowing Indefinite Jail for High-Risk Terrorists. *Sydney Morning Herald,* July 25.
Razack, Sherene. 2008. *Casting Out: The Eviction of Muslims from Western Law and Politics*. Toronto: University of Toronto Press.
Rice, Deborah. 2014. Sydney Men Lose Appeal against 2009 Terrorism Convictions. *ABC News*, December 12.
Roach, Kent (ed.). 2015. *Comparative Counter-Terrorism Law*. Cambridge: Cambridge University Press.
SBS. 2014. Vic Man Charged for Funding Terror Fighter. *SBS News*, September 30.
Scar, Lanai. 2015. Prime Minister Malcolm Turnbull Addresses Terrorism Concerns in Wake of Parramatta Shooting. *News.com.au*, October 10.
Schliebs, Mark, and Paige Taylor. 2014. Sydney Siege: Iran Claims It Warned about Mad Man Haron Monis. *The Australian*, December 18.
Sparrow, Jeff. 2008. Melbourne Terror Trial Sets a Very Scary Precedent. *Crikey*, September 18.
The Guardian. 2015. Parramatta Shooting: 15-Year-Old Killer Named as Farhad Jabar Khalil Mohammad. *The Guardian*, October 3.
Tolzek, Eric. 2015. Tony Abbott Says Islamic State 'Coming after Us' after Spate of Terror Attacks Overseas. *ABC News*, June 27.

Williams, George. 2011. A Decade of Australian Anti-Terror Laws. *Melbourne University Law Review* 35: 1136–1176.
Zedner, Lucia. 2007. Pre-Crime and Post-Criminology? *Theoretical Criminology* 11 (2): 261–281.

Author Biographies

Selda Dagistanli is a Senior Lecturer in criminology at Western Sydney University. Her research explores (racialized) gender violence, ethno-cultural and institutional cultures of abuse, multiculturalism and anti-Muslim racism, and cultural difference in law and criminal justice. Her forthcoming book is entitled *Trialling Culture, Protecting Women: Racialising Sexual Violence in Legal and Political Discourses* (Routledge).

Scott Poynting is Adjunct Professor with the Crime and Justice Research Centre at Queensland University of Technology and the School of Social Sciences and Psychology at Western Sydney University. He is co-author of *Bin Laden in the Suburbs* (Sydney Institute of Criminology 2004) and co-editor of *Counter-Terrorism and State Political Violence* (Routledge 2012).

23

New Zealand Penal Policy in the Twenty-first Century

John Pratt

Penal trends in New Zealand place this country firmly in the camp of those modern societies that punish their offenders considerably more than others. From the earliest days of its colonisation in 1840, New Zealand has always had a relatively high imprisonment rate compared to similar societies. Despite its reputation for friendliness and informality, its remoteness, its strictly controlled immigration, and its desire to distinguish itself from the Australian "convict taint", made it intolerant of those who threatened this "perfect society" that was being built in the South Pacific (Pratt 2006). However, it has experienced a particularly dramatic growth in its rate of imprisonment from the 1970s to the present: from 72 per 100,000 of the population in 1970 to 194 per 100,000 in 2014. These increases far exceed rates of the countries that New Zealand is most closely associated with, Australia and the UK, as reflected in Fig. 23.1.

What this means, as Workman (2012, 2) has observed, is that "we are [now] not in the Western European [Imprisonment] League Table [at all]. At the present time, Germany [has a rate of] 83 [per 100,000 of the population], France has 102, Australia has 130, Scotland has 151, and England has 154

This is a revised version of a paper titled "Warning! The Growth of the Prison-Industrial Complex Can Damage a Nation's Health", which was presented as a New Fellows Lecture to the Royal Society of New Zealand in 2013.

J. Pratt (✉)
Institute of Criminology, Victoria University of Wellington,
Wellington, New Zealand
e-mail: john.pratt@vuw.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_23

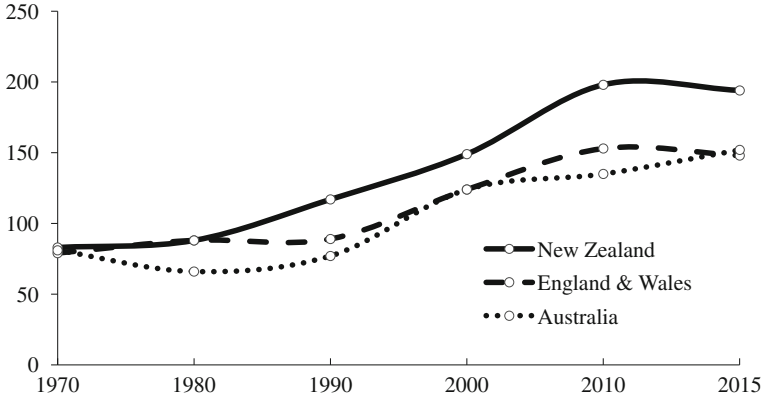


Fig. 23.1 Prison population rate for England and Wales, New Zealand, and Australia, 1970–2015, per 100,000 total national population. *Sources* ABS (2006), Home Office (2003), ICPR (2016), Ministry of Justice (2000–2015), Mukherjee et al. (1981), and Statistics New Zealand (1980–2015)

(the top of the Western European league). Over the last 20 years, we have moved out of that league into a different league. Last year, New Zealand was in the Eastern European league—joining the former Soviet bloc countries. We were sandwiched between Moldova at 183, and Slovakia at 203. The recent decline from 197 to 194 per 100,000 now puts us in the African bloc, between Gabon and Namibia".

Furthermore, these increases in imprisonment have occurred during a period when crime itself has been in significant decline in New Zealand. Figure 23.2 illustrates that this has been the case here as in most other modern societies.

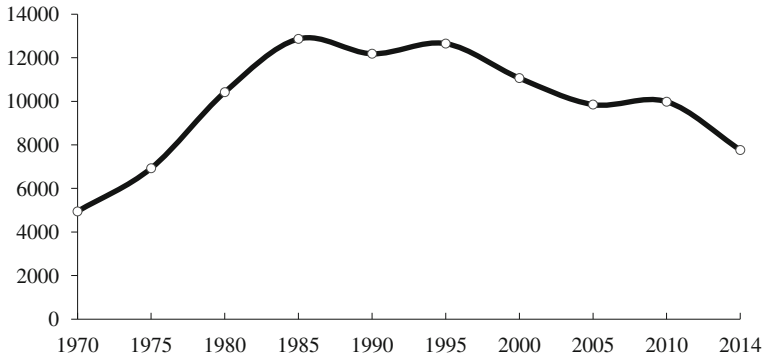


Fig. 23.2 New Zealand crime rate 1970–2014, per 100,000 total national population. *Source* New Zealand Police (2016)

Instead, increases in sentence lengths seem to have been the most immediate cause of the rise in imprisonment. Indeed, long-term prison sentences of 2 years or more, for example, increased from 650 such prisoners in 1980 to 4200 in 2009; there were 11 prisoners serving the indefinite sentence of preventive detention in 1980, 264 in 2014. Meanwhile, the number of short-term sentences of less than 2 years has remained relatively stable (Department of Corrections 2011).

In this chapter, I want to explore what the implications of this massively expanding penal industry have been for New Zealand society. Rather than this being something to be celebrated on the dubious grounds that it "keeps New Zealanders safe"—the usual justifications of politicians and law and order lobbyists for the level of penal saturation they have engineered—I want to argue instead that this has damaged the country's health and well-being.

From Military–Industrial Complex to Prison–Industrial Complex

What we can surmise from the above data is that the economic rationalism that has strictly controlled other areas of public expenditure in New Zealand since the mid-1980s has been strangely absent from the justice sector over this period, especially in relation to penal development. Indeed, this is almost certainly the only area of public expenditure that can show such sustained growth over the last 20 years. The New Zealand Treasury (2009) noted that spending on justice doubled between 1994 and 2009 in inflation-adjusted terms, with corrections absorbing 30% of this. Furthermore, prison building was projected to cost about NZD 915 million over the ensuing decade, with running costs then amounting to another NZD 150 million per year. The result of this high level of investment has meant that punishment in New Zealand has moved from being a rather marginal feature of the social landscape to one that occupies a much more central place within it.

One of the reasons for this markedly increased level of investment in punishment is that this country has been particularly vulnerable to the phenomenon of penal populism, that is, the way in which governments of both Left and Right have been in thrall to law and order lobbyists. These lobbyists claim to represent "public opinion" although, in reality, scientifically measured public opinion shows the views of the public to be far removed from the "incarceration mania" (Harcourt 2001) that informs the lobbyists' demands. But as a way of trying to rekindle their popularity and credibility with electorates who had lost faith in their ability to bring order and

prosperity, governments have regularly followed the policy agendas of these groups and introduced much more punitive legislation (Pratt 2007).

As a consequence, penal policy has taken forms that would have been unthinkable in New Zealand 30 or 40 years ago. The Report of the Penal Policy Review Committee (1981) provides a good record of the thinking of that time. Staffed by experts from the civil service, the judiciary, and academia, the committee was convened initially to examine the reasons for rising crime. However, it redefined its own purposes to examine, instead, responses to crime. Its recommendations were based on the then taken-for-granted assumption that prison should be used as little as possible because it was so expensive and achieved so little, but which at the same time was being used too much. It concluded that community sanctions should be given more scope as alternatives to prison and that the use of prison should be greatly restricted. Furthermore, the indefinite sentence of preventive detention should be abolished. That way of thinking about prisons and punishment, though, has since been dramatically reversed by a series of measures deliberately intended to increase the use of prison. This includes longer finite sentences and vastly increased use of preventive detention which was never abolished after all, a three strikes law which was introduced with the *Sentencing and Parole Reform Act 2010*, and greatly restricted use of bail. Alongside these developments that were intended to send more people to prison and hold them there for longer, prison security has greatly intensified, as if the thought of an escaped prisoner trying to find their way home—as is indeed the practice of the very few who do escape now—is now too much for the social order of this society to bear and absorb. This stands in stark contrast to the exploits of the serial prison escapee George Wilder[1] who became a popular hero as a little man taking on a big government bureaucracy in the 1960s.

As a way of capturing New Zealand's growth of prison numbers and the expanding size of the penal estate, I have borrowed the phrase "prison–industrial complex" from Simon et al. (2008), who coined it to describe contemporary penal trends in the USA. They adapted it from the outgoing speech made by US President Eisenhower in January 1961. With investment in armaments and the armed forces stripping away resources from all other sectors of American society, he warned of the dangers of this expanding "military–industrial complex": "its total influence—economic, political, even spiritual—is felt in every city, every statehouse, every office of the federal government … We must guard against such unwarranted influence, whether sought or unsought … The potential for this disastrous rise of misplaced power exists and will persist" (Eisenhower 2016).

Thereafter, Simon et al. (2008) argue that the prison–industrial complex has come to play a similar role in the USA—absorbing state resources, dominating public discourse, incorporating the private and voluntary sector as well as the state. As its vast dynamics of expansion continued, the more it failed to prevent crime and keep citizens safe, and the more this became a justification for further investment of resources in it. What I want to argue here is that in contemporary New Zealand the prison–industrial complex has replaced any military–industrial complex. Indeed, the latter has become a rather puny specimen. In contrast to its high ranking in terms of imprisonment, New Zealand ranks only 103rd in the Global Militarisation Index. However, here too, the growth of the prison–industrial complex has meant that this edifice is no longer the exclusive property of the state but involves the private and voluntary sector as well. Four new public prisons were built by the Labour-led coalition governments between 2002 and 2008, at a cost of NZD 1 billion. There were also two private prisons managed by the multi-national corporation Serco. In 2015, one of these was taken back into public ownership after allegations of corruption against staff and organised violence amongst prisoners. The voluntary sector, particularly the church, provides most of the much-needed accommodation and support for ex-prisoners.

This material expansion of penal resources has been matched by the expansion of prisons and punishment in the national media and public discourse (Bartlett 2009). These discourses have been fuelled by—but also inform—the constant changes that have taken place in penal and criminal law over the last 20 years. There have been, for example, 17 separate major amendments to the *Sentencing Act 2002*; five to the *Parole Act 2002*, and seven to the *Bail Act 2000*. Clearly, the counsel of the Penal Policy Review Committee (1981, 62) has been forgotten: "experience has shown that in penal matters major changes should be made cautiously because they seldom produce exactly the results intended for them".

The Symbolic Role of Punishment

Why should punishment have become such a central issue in New Zealand society over this period? Why has it been so vulnerable to penal populism? Why should so much have been invested in the institution of punishment at a time when crime here, as in most other societies, has been in significant decline? To address these questions, we need to understand the symbolic role and function of punishment in any society, in addition to its instrumental

responses to crime. In these respects, punishment has helped to provide high levels of social cohesion—even if in so doing, this has been at the expense of excluding those whom it targets—at a time when other more inclusionary social institutions have no longer been able to provide this.

From the mid-1980s, New Zealand experienced a dramatic economic and social restructuring, beginning with the election of the Labour government in 1984. It moved almost overnight from being one of the most highly regulated corporate states in the West to one of the pioneers of free market economics, with its accoutrements of deregulation, privatisation, user pays, much lower direct taxation but highly increased levels of indirect taxes. Rashbrooke (2013, 23) writes that "New Zealand was historically one of the developed world's more equal societies. But following the unprecedented increase in income inequality between the mid-1980s and mid-1990s, we have fallen in the rankings … amongst the OECD's thirty-four developed countries in 2010, New Zealand is ranked down at twentieth". Welfare assistance and state responsibilities for the well-being of the poor have shrunk or become more restricted, while the numbers in secure state employment have declined from 25.9% of the workforce in 1981 to 17.1% in 2013. Meanwhile, the much more precarious self-employment numbers have increased from 6.9 to 10.3% over the same period.

From being a very conservative authoritarian society (see, for example, Belich 2001), the social arrangements in New Zealand have since been greatly liberalised, bringing about marked changes in the composition of its society. The marriage rate declined from 7.3 per 1000 of the population in 1980 to 4.4 per 1000 of the population in 2014. While there has been a slight decline in divorces over this period from 22,000 in 1980 to 20,000 in 2014, this is probably accounted for by the declining numbers of people getting married and the growth of de facto relationships (although there is no available New Zealand data on the latter). As it is, the divorce *rate* increased from 0.9 per 1000 of the population in 1980 to 2.0 in 2012. The number of solo parent families increased from 12% of all families in 1981 to 17.8% in 2013. The number of one-person households increased from 16% of all households in 1981 to 23.5% in 2013.

What this points to is a greatly increased atomization of the population and the growth of much more impermanent and transient social relations. Furthermore, there has also been a sharp growth in the number of people who profess no religious convictions: from 5.0% of the population in 1981 to 39% in 2013. In addition to these great changes in personal relationships, it is also clear that social ties within local communities or workplaces have become

much weaker. Trade union membership, for example, has also declined from 69% of the workforce in 1980 to 19% in 2013.

Moreover, from colonial beginnings, New Zealand had been a society with very strictly controlled immigration, with the effect that, from colonisation in the 1840s up to the 1970s, the overwhelming majority of immigrants came from the UK. Here, too, liberalisation has brought about important changes. This is most clearly seen in the demographic consequences of Asian immigration to New Zealand. In 1986, Asian New Zealanders constituted only 1.7% of the population. By 2013, this had risen to 12.2%. This has been particularly concentrated in the major cities, with the effect that Asian New Zealanders now constitute 23.1% of the population of Auckland.

What does all this mean? How has it contributed to the growth of the prison–industrial complex? From the mid-1980s, economic liberalisation, acting in conjunction with these social and demographic changes, has provided individuals with much greater opportunities to make their own ways through life, following their own choices rather than government direction, and simultaneously taking responsibility for their own decision making. Many have prospered greatly as a result. Rather than haemorrhaging its population, to Australia especially, as had been the case around 1980, this has grown by about 50% since then from 3.1 million in 1981 to 4.6 million in 2016.

But as this has occurred, so great divisions in this formerly very egalitarian society have opened up between rich and poor. While growing income inequality has been a characteristic right across the OECD countries from the 1980s, New Zealand has the third fastest rate of increase of inequality amongst them (Fallow 2015). In real terms, this now means that the wealthiest 1% of New Zealanders together own three times as much as is owned collectively by the poorest 50% of the population (Rashbrooke 2013, 22).

In effect, then, while individuals now have much more freedom to make their journeys through life, they have to make them with none of the previous familiar landmarks of security, support, and guidance that were previously in place to assist them. The state is no longer prepared to throw lifelines in times of difficulty. The sense of unfamiliarity and insecurity this has caused has then added to the innate sense of peril. This characteristic of New Zealand's history, given its geographical isolation and vulnerability to changing patterns of overseas trade for its exports, has thus become much acuter. The role of government has simply become one of providing opportunities for individuals to prosper. It no longer provides any subsidies that help to guarantee a successful outcome for them.

In effect, many of the previous values and beliefs its citizens had shared about New Zealand society have broken down. Under these anomic conditions (Durkheim 1964), this sense of atomisation and isolation has been reflected in profound distrust with and alienation from mainstream political parties and the existing democratic process. In 1992, for example, opinion poll research indicated that only 9% of the electorate trusted the Labour Party, and 13% trusted the National Party (Pratt and Clark 2005). In reality, the promises and dreams held out by both those parties that the recourse to free market economics encouraged, had turned into nightmares for many; the stock market crash of 1987, the uncertainties of private pension schemes, the global financial crisis of 2008, and so on.

Accordingly, to try and win back credibility with a disenchanted electorate, and at the same time give some semblance that they are still at the helm of the ship of state and that they can restore cohesion, certainty and authority, both Labour and National-led coalition governments have made dalliances with law and order lobby groups—particularly the Sensible Sentencing Trust—and played up to their demands for longer sentences, and more penal power for vengeful victims.

It is this that has led to the much greater material and symbolic investment in punishment and the development of New Zealand's prison–industrial complex. In so doing, governments have positioned themselves on the side of what passes for "public opinion", even if, at times, they have been in opposition to their own advisers in the appropriate government ministries. As such, they have been prepared to be "tough on crime" when the problem was already reducing. Perhaps most remarkably and tragically in an era when government expenditure has been under such rigorous scrutiny, they have been prepared to invest in punishment with virtually no informed public discussion of this. Indeed, the fact that there has been so little discussion is another of the consequences of deregulation and privatisation. There is now no public service television network in New Zealand, where matters such as this could be subjected to detailed investigative and informed inquiry.

There was certainly no such investigation when the Labour-led coalition government committed itself to building four new prisons in the early 2000s. It was only after these were built at a cost of NZD 1 billion that the media began to scandalise about them having "underfloor heating", wall mounted televisions with remote controls and so on (see Pratt 2008). As one outraged newspaper headline put the matter: "Cells Cost Five Times More Than a Decent Home" (Kay 2006).

Having used punishment to strengthen social solidarity, the authority of the government was simultaneously weakened. Further momentum was given

to the growth of the prison–industrial complex as public discourse on punishment spiralled out of the government's control, led again by law and order lobbyists and their particular view of the world in which the New Zealand public seemed to have an unquenchable thirst for punishment.

The Social Costs of the Prison–Industrial Complex

In addition to soaking up so much of the country's economic resources, the growth of the prison–industrial complex has endangered the nation's health rather than improved it. It has intensified social divisions rather than healed them; exacerbated public anxieties about safety and security rather than calmed them. This is reflected in the ethnic distribution of imprisonment. Pākehā prisoners make up 33% of the prison population; Pacific Islanders 11%; Māori 51%; Asians 3%; and "Others" 2%.

In fact, this level of Māori overrepresentation runs through the whole criminal justice process, as Workman and McIntosh (2013) point out. Māori are 4 to 5 times more likely to be apprehended, prosecuted, and convicted than non-Māori. They are 7 times more likely to receive a custodial sentence than their Pākehā counterparts. They are 11 times more likely to be remanded in custody awaiting trial. Māori women are 5.5 times more likely to be apprehended and 10 times more likely to receive a custodial sentence than Pākehā women.

There are clear equivalences here with the US criminal justice racial imbalances, where 1 in 3 African-American males aged between 18 and 30 is under some form of penal control. Furthermore, Workman and McIntosh (2013, 128) claim that "Māori are over-represented in this way not just because they come from marginalised communities but also because they are specifically discriminated against. Human Rights Commission research shows that for the *same* behaviour, Māori are more likely to arrested, prosecuted and convicted than Pākehā".

The growth of imprisonment in Māori communities, in particular, is likely to mean that, in contrast to all the expectations of deterrence put forward by those justifying these penal excesses, prison will lose any such effect in these sectors of society. For young Māori men, incarceration has become routine rather than an exceptional event, and it is of no particular significance for those concerned, since they are likely to have relatives in prison whom they will meet there; or they will have been taught what to expect in prison from

family members who have been imprisoned themselves; or, on reception, they will become easy targets for gang members—around one in four of the total prison population—to recruit and induct.

Furthermore, the growth of the prison–industrial complex, with its attendant Indigenous overrepresentations, has simultaneously stripped resources from other areas of the social field. This is reflected in growing inequalities in New Zealand society caused by lack of government investment and resources. In 2008, 19% of children and young people were living in families having to economise on essential items, including food and health care. Hardship rates were even higher for Māori and Pacific Island children and young people; 32 and 40% respectively. Income inequalities such as these are likely to impact on schooling and education. "When housing costs lead to socially segregated communities, schools situated in low-income areas have difficulty in drawing on a full range of knowledge, skills, networks and opportunities to support their students in and out of classrooms" (Wylie 2013, 140). These inequalities are also like to impact on schools' to attract suitable teachers; to address student behaviour and attendance issues, which are compounded by the concentration of children from poor homes.

In addition, the shift from state housing provision to reliance on the private sector from the mid-1980s has also meant that Māori and Pacific Island families are much more reliant on other sectors of society on renting or boarding. At the same time, expectations of home ownership amongst Māori are falling. Only around 50% of Māori in rental households were planning to buy a house in 2011, compared to around 66% in 1995 (Cunningham and Triggs 2011).

The Importance of Social Rather than Penal Capital

Illustrations of this prison–industrial complex can be found, to varying degrees, across the main English-speaking societies. Alongside the USA, New Zealand represents a particularly clear example of this and the attendant social consequences. However, other modern societies, in the Nordic region especially, have managed to avoid being saturated with punishment in this way (Green 2008; Pratt and Eriksson 2012). Take the example of Finland especially.

As Figs. 23.3 and 23.4 illustrate, there are dramatic contrasts in the rate of imprisonment, with levels in Finland and New Zealand moving in exactly the

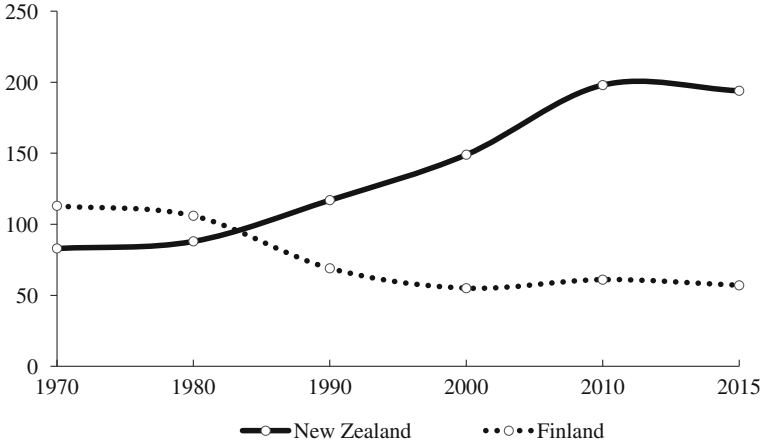


Fig. 23.3 Prison rate for New Zealand and Finland, 1970–2015, per 100,000 total national population. *Sources* Falck et al. (2003), ICPR (2016), Ministry of Justice (2000–2015), Statistics New Zealand (1980–2015), and Statistics Finland (2016a)

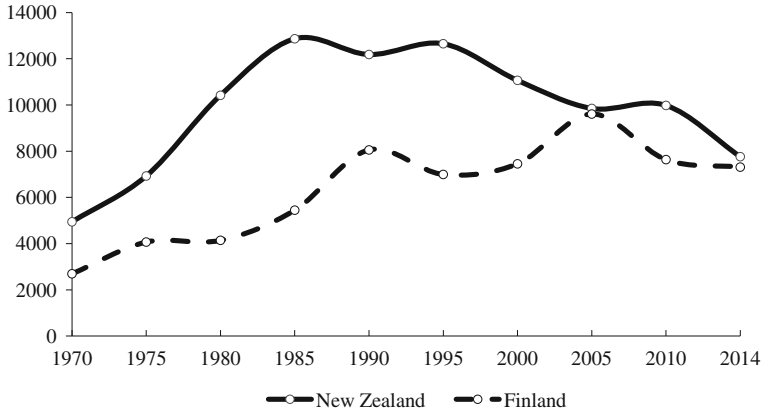


Fig. 23.4 Crime rate for New Zealand and Finland, 1970–2014, per 100,000 total national population *Sources* Falck et al. (2003), New Zealand Police (2016), and Statistics Finland (2016b)

opposite direction. This, again, has had little to do with crime levels—these follow a similar pattern in both societies, rising with the post-war baby boom, and then declining. How then do the Finns manage their lives and protect themselves with so little reliance on imprisonment? This still seems to be a comparatively safe and secure society, where fear of crime in regular surveys in the last 20 years has been found to be much lower than in New Zealand.

Finland is also a society with higher levels of trust in government and its bureaucratic organisations, some of the most generous state pensions in the world and much higher levels of expenditure on education and research—all of which would seem to be very desirable indicators of a nation's health and well-being.

What this points to is the way in which Finland and the other Nordic societies have been able to build up high levels of social capital—that is to say, the collective value of all social networks and the way in which these networks are connected together (Putnam 2000)—that build a much more inclusive form of social cohesion than may be found New Zealand. Here governments have relied much more on building up penal capital to provide cohesion and order, and with much greater exclusionary consequences.

That said, what is probably the only good feature of the global financial crisis of 2008 is that it awakened the New Zealand government (National-led coalitions) to the extraordinary growth of the prison–industrial complex in this country and the need to rein this in. The Treasury's report of 2009 thus concluded that the levels of expenditure as both a percentage of GDP and of Crown Revenue cannot continue to grow. Indeed, Finance Minister Bill English described prisons as a "moral and fiscal failure" (*Otago Daily Times*, May 24, 2011). However, this has not yet led to some sort of "road to Damascus" epiphany on the part of his government. There has certainly been a renewed emphasis on rehabilitation within prisons, to try and make the level of expenditure more useful and productive, but with virtually no extra funding. Out of NZD 1.2 billion corrections operating cost, only about NZD 10 million is spent on reintegration of prisoners upon release. Once again, the voluntary sector is expected to play a large part in this. At the same time, the emphasis has been on reducing the cost of imprisonment by recourse to privatisation, as noted earlier, and by rationalising the prison estate. This has included permanently closing or mothballing some of the smallest prisons.

However, this has not been accompanied by any significant reduction of the prison population. Indeed, the same government has been responsible for legislation likely to add to this; by means of the three strikes law for example. In February 2016, however, the prison population reached its highest ever level at 9360, and an imprisonment rate of 203 per 100,000 of the population. The hesitant steps that had been taken on the road to recovery from the ravages caused by the growth of the prison–industrial complex have been reversed, as a further corrosion of the nation's health is underway.

Conclusion

To conclude, the heavy investment that was made by successive New Zealand governments in penal control—particularly in prisons—has been remarkable for its lack of productive achievement. If governments and the supporters of these policies point to the decline in crime that has simultaneously occurred, then this decline is no different from that occurring in similar societies that have avoided such levels of penal saturation. Indeed, given the way in which the growth of the prison–industrial complex has necessitated the stripping of resources from other areas of the social field, it could even be argued that this has slowed, not quickened, the decline in New Zealand.

Notes

1. Wilder escaped three times in the 1960s, breaking into holiday homes or other premises and then leaving an apology and thank you note for the owners. In 1962 the Howard Morrison Quartet went to number one in the New Zealand hit parade with their song "George the Wild(er) New Zealand Boy", despite it being banned by the government owned National Broadcasting Corporation. The following headline was typical of the news reporting of the period "New Dash After Wilder. Police and Dogs Baffled Again" (*The Dominion*, April 11, 1963).

References

ABS. 2006. *Prisoners in Australia 2000*. Canberra: ABS.

Bartlett, Tess. 2009. The Power of Penal Populism: Public Influences on Penal and Sentencing Policy from 1999 to 2008. MA thesis, Victoria University of Wellington.

Belich, James. 2001. *Paradise Reforged: A History of the New Zealanders from the 1880s to the year 2000*. Honolulu, HI: University of Hawaii Press.

Cunningham, Chris, and Sue Triggs. 2011. *Best Outcomes for Māori: Te Hoe Nuku Roa. Summary of the Regional Results for Wave 4*. Wellington: Research Centre for Māori Health and Development.

Department of Corrections. 2011. *Offender Volumes Report 2011*. Wellington: Government Printer.

Durkheim, Émile. 1964. *The Division of Labor in Society*. New York, NY: Free Press of Glencoe.

Eisenhower, Dwight. 2016. Farewell Address, January 17, 1961. http://www.pbs.org/wgbh/americanexperience/features/primary-resources/eisenhower-farewell/. Accessed 23 Feb.
Falck, Sturla, Hanns von Hofer, and Annette Storgaard. 2003. *Nordic Criminal Statistics 1950–2000*. Stockholm: Stockholm University.
Fallow, Brian. 2015. OECD Points Finger at Rising Inequality. *New Zealand Herald*, May 30.
Green, David. 2008. *When Children Kill Children: Penal Populism and Political Culture*. Oxford: Oxford University Press.
HomeOffice. 2003. *Criminal Statistics England and Wales 2002*. London: HMSO.
Harcourt, Bernard. 2001. *Illusion of Order: The False Promise of Broken Windows Policing*. Cambridge, MA: Harvard University Press.
ICPR (Institute for Criminal Policy Research). 2016. World Prison Brief. http://www.prisonstudies.org/world-prison-brief. Accessed 25 Feb.
Kay, Martin. 2006. Cells Cost 'Five Times More Than a Decent Home'. *Dominion Post*, January 20.
Ministry of Justice. 2000–2015. *Conviction and Sentencing of Offenders in New Zealand*. Wellington: Ministry of Justice.
Mukherjee, Satyanshu, Evelyn Jacobsen, and John Walker. 1981. *Source Book of Australian Criminal and Social Statistics 1900–1980*. Canberra: AIC.
NZ Police. 2016. Crime Statistics. http://www.police.govt.nz/about-us/publications/statistics. Accessed 26 Feb.
Pratt, John. 2006. The Dark Side of Paradise. *British Journal of Criminology* 46 (4): 541–560.
Pratt, John. 2007. *Penal Populism*. London: Routledge.
Pratt, John. 2008. When Penal Populism Stops: Legitimacy, Scandal and the Power to Punish in New Zealand. *Australian and New Zealand Journal of Criminology* 41 (3): 364–383.
Pratt, John, and Marie Clark. 2005. Penal Populism in New Zealand. *Punishment and Society* 7 (3): 303–322.
Pratt, John, and Anna Eriksson. 2012. *Contrasts in Punishment: An Explanation of Anglophone Excess and Nordic Exceptionalism*. London: Routledge.
Putnam, Robert. 2000. *Bowling Alone: The Collapse and Revival of American Community*. New York, NY: Simon and Schuster.
Rashbrooke, Max (ed.). 2013. *Inequality: A New Zealand Crisis*. Wellington: Bridget Williams Books.
Penal Policy Review Committee. 1981. *Report of the Penal Policy Review Committee 1981*. Wellington: Government Printer.
Simon, Jonathan, Ian Harvey-Lopez, and Mary Frampton. 2008. *After the War on Crime: Race, Democracy and a New Reconstruction*. New York, NY: New York University Press.
Statistics Finland. 2016a. Vangit, 1974–2007chttp://www.stat.fi/til/van/2007/van_2007_2008-06-27_tau_001.html. Accessed 31 Mar.

Statistics Finland. 2016b. Criminality. http://www.stat.fi/tup/suoluk/suoluk_oikeusolot_en.html. Accessed 31 Mar.
Statistics New Zealand. 1980–2015. *New Zealand Official Yearbook.* Wellington: Statistics New Zealand.
The New Zealand Treasury. 2009. *Challenges and Choices: New Zealand's Long-Term Fiscal Statement*. Wellington: Government Printer.
Workman, Kim. 2012. Justice Matters. Paper presented at Quaker's Retreat on Penal Reform, August 18, in Wanganui.
Workman, Kim, and Tracey McIntosh. 2013. The Criminalisation of Poverty. In *Inequality: A New Zealand Crisis*, ed. Max Rashbrooke, 127–136. Wellington: Bridget Williams Books.
Wylie, Cathy. 2013. Schools and Inequality. In *Inequality: A New Zealand Crisis*, ed. Max Rashbrooke, 137–148. Wellington: Bridget Williams Books.

Author Biography

John Pratt is Professor of Criminology at VUW. He was awarded the Radzinowicz Prize in 2009 by the Editorial Board of the British Journal of Criminology; a Fellowship at the Straus Institute for Advanced Studies of Law and Justice at NYU in 2010; the Fellowship of the RSNZ in 2012 and the Society's Mason Durie Medal in 2013. His work on comparative penology and punishment has been translated into 11 languages.

24

Sentencing Theories, Practices, and Trends

James C. Oleson

Sentencing involves the imposition of a punishment by a court upon a defendant who has been found guilty of or confessed to a violation of the criminal law. In Australia and New Zealand, the most serious crimes are punished with imprisonment, not with death, as capital punishment has been abolished in both countries. Of course, criminal courts also have at their disposal a spectrum of lesser punishments: good behaviour bonds, fines, reparation, community supervision, community service, intensive supervision, home detention, and other intermediate sanctions. Although judges uniformly attempt to instil public confidence in the criminal justice system, ensure proportionality, and balance judicial discretion and individualised sentencing against parity in sentencing, the stated purposes of sentencing, aggravating and mitigating considerations, and specific procedures vary within the relevant statutes of the ten jurisdictions in Australia and New Zealand:

- Australian (federal) Commonwealth: *Crimes Act 1914 (Cth)*
- Australian Capital Territory: *Crimes (Sentencing) Act 2005 (ACT)*
- NSW: *Crimes (Sentencing Procedure) Act 1999 (NSW*)
- Northern Territory: *Sentencing Act (NT)*
- Queensland: *Penalties and Sentencing Act 1992 (Qld)*
- South Australia: *Criminal Law (Sentencing) Act 1988 (SA)*
- Tasmania: *Sentencing Act 1997 (Tas)*

J.C. Oleson (✉)
Criminology, University of Auckland, Auckland, New Zealand
e-mail: j.oleson@auckland.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_24

- Victoria: *Sentencing Act 1991 (Vic)*
- Western Australia: *Sentencing Act 1995 (WA)*
- New Zealand: *Sentencing Act 2002 (NZ)*

This chapter first outlines the cornerstone goals of sentencing: deterrence, incapacitation, rehabilitation, and retribution. The chapter notes that Australian and New Zealand judges enjoy broad discretion, but explains that broad discretion can produce disparity in sentencing. The chapter describes several mechanisms to restrict disparity by narrowing judicial discretion: mandatory sentencing including three strikes laws; sentencing guidelines; and sentencing councils. Finally, the chapter also notes ways in which sentencing practices are evolving. Some jurisdictions are exploring actuarial—so-called evidence-based—sentencing, and various forms of problem-oriented courts, such as drug courts, have been established.

Goals of Sentencing

Commentators have identified a number of sentencing objectives, but four goals comprise the cornerstones of punishment: deterrence, incapacitation, rehabilitation, and retribution (Gottfredson 1999). The first three are consequentialist theories, focussing on the reduction of future crimes; on the other hand, retribution is a non-consequentialist, retrospective theory of punishment, focussing on the punishment deserved for previous conduct.

Deterrence is based on the view that humans seek to maximise pleasure and minimise pain. In order to induce people to forego the pleasures of crime such as the taking of goods without payment or the euphoria induced by illegal drugs, the state must enforce the penalties attached to crimes (Zimring et al. 1973). The threat of punishment is thought to be enough to deter most people from committing crimes. Deterrence comes in two forms: specific and general. Specific deterrence suggests that if an offender commits a crime and is punished for it, the offender will be less likely to reoffend. General deterrence is based upon the fact that people learn vicariously and not only from directly imposed punishments and suggests that a punishment imposed upon one will also deter others.

Incapacitation is a straightforward theory: punishment can make it difficult or impossible for an offender to commit further crimes (Zimring and Hawkins 1995). Offenders can be incapacitated by spatially removing them from society via imprisonment or banishment or by physically eliminating the

capacity to offend, such as severing the hand of a thief or chemically castrating a sex offender. Capital punishment is the ultimate incapacitant as dead offenders never reoffend.

Rehabilitation is rooted in the idea of "crime as disease". If people commit crimes because of inherent defects, one way to reduce future crime is to simply correct the defect, whether that defect is physical like a chemical imbalance, psychological like criminal thinking, or social like association with criminal peers. For much of the twentieth century, rehabilitation was the dominant theory of punishment. However, after Martinson (1974) characterised rehabilitation as ineffective, rehabilitation was rejected as a legitimate basis for punishment, and it nearly disappeared in many jurisdictions (Cullen 2005).

Retribution, sometimes called "just deserts" or simply "desert", suggests that criminals should be punished because they deserve it, regardless of prospective consequences: "*Fiat justitiaruatcaelum*" (May justice be done though the heavens fall). Retribution, it is suggested, redresses the unfair advantage of society that the criminal has taken. Hegel ([1820] 1952) explains that when the criminal violates the law, his crime is the negation of the right of society. Punishment is the negation of that negation, and thus an affirmation of right, brought upon the criminal by himself. Retribution takes two forms: negative and positive. Negative retributivism requires that only the guilty may be punished, and then only to the extent they deserve, but it does not require that punishments *must* be imposed. Positive retributivism, on the other hand, requires that the guilty *must* be punished, to the full extent of their desert. The view of positive retributivism was famously articulated by Kant ([1797] 2002), who argued that even if an island society was about to disband, the last murderers lying in its prisons should be put to death. Society not only has a right to punish them, but it has a *duty* to do so. Although deterrence, incapacitation, rehabilitation, and retribution operate as the principal ends of sentencing, there *are* other goals that inform sentencing decisions. For example, Feinberg's (1965) expressive theory of punishment suggests that criminal sentences communicate moral opprobrium to offenders, relating social attitudes about criminal behaviour. In this vein, just sentences can reinforce legal norms, enhance respect for the law, and provide catharsis for crime victims. Sentences that include restitution may help to ameliorate the financial, physical, emotional, and social harms to victims of crimes by requiring the defendant to compensate the victim.

The objectives of punishment sometimes harmonise, such as incarcerating a dangerous offender to prevent him from injuring others (incapacitation), discouraging him from reoffending (specific deterrence), and discouraging

others from committing analogous crimes (general deterrence). Sometimes, however, the goals of punishment cannot be reconciled. Shaw (1932, 184) notes: "If you are to punish a man retributively, you must injure him. If you are to reform him, you must improve him. And men are not improved by injuries".

Sentencing Disparity

The independent judiciaries of Australia and New Zealand afford their judges broad discretion, permitting them to tailor individualised sentences to the characteristics of the offender and the facts of the crime in what has been called an "instinctive synthesis" (Edney and Bagaric 2007). This wide discretion, however, means that two identical defendants, possessing equivalent criminal histories and backgrounds, guilty of identical crimes, might serve different sentences. One offender might receive parole, while another does not. One offender, sentenced by a rehabilitation-oriented judge, might receive probation, while an identical offender, sentenced by a retributivist judge, might receive a prison term. Neither sentence is wrong as such, and, because both sentences fall within the statutory range, defendants typically lack recourse to challenge disparate sentences. US Judge Frankel (1973, x) condemned this type of disparity as "arbitrary, cruel, and lawless". He observed that many statutes provided judges with absolute discretion. For example, rape committed within federal jurisdiction was punishable by death or imprisonment for any term of years or life. And he warned against the potential abuses inherent in any system that confers such broad discretion. In both Australia and New Zealand, the tension between consistency and individualised sentencing is an enduring subject of interest (see Australian Law Reform Commission 2006; NZ Law Commission 2006).

Sentencing disparity becomes problematic when irrelevant or impermissible factors influence sentencing decisions. For example, research indicates that being detained before trial itself can be positively and significantly correlated with conviction, incarceration, and sentence length, even after controlling for legal and relevant non-legal variables (see Philips 2012). Disparity is an especially pernicious issue in Australia and New Zealand because Indigenous offenders are so dramatically overrepresented in prison. Although Bond, Jeffries, and Weatherburn (2011) reported that Indigenous status was associated with significantly reduced sentence lengths in lower courts in Australia, the Indigenous imprisonment rate is nevertheless 13 times higher than the non-Indigenous rate. In New Zealand, Māori constitute just 14.6% of the

general population, but 50.3% of the prison population (Oleson 2015). Whether this is a function of higher offending rates, direct discrimination, or indirect discrimination remains an unsettled question. In the ACT, Northern Territory, Queensland, and New Zealand, statutory provisions allow judges to consider a defendant's cultural background at sentencing (Anthony 2010).

Plea bargaining, sometimes called charge negotiation, is a principal source of sentencing disparity. Although judges ultimately impose criminal sentences, prosecutors enjoy wide discretion over which charges to file and which facts to prove. In exchange fora guilty plea, prosecutors may reduce the number of charges against the defendant, charge a less serious crime, or amend the summary of facts upon which the charge is based. Opponents criticise the unscrutinised nature of such negotiations, arguing that it leads prosecutors to overcharge defendants, and risks the punishment of innocent persons. It also leads to disparity. As Willis (1985, 143) observes, "the final product after allowing for the guilty plea is not the appropriate sentence according to traditional penological criteria". Defenders of plea bargaining typically cite its efficiency, such as its ability to save money, time, and to avert the traumas and hardships of criminal trials. In practice, defendants in Australia and New Zealand who accept a guilty plea generally receive a sentencing discount of approximately 25 to 33% (Edney and Bagaric 2007).

Mandatory Sentencing

Mandatory sentences, including mandatory non-parole periods, provide one mechanism to restrict judicial discretion. Beccaria ([1764] 1991) and Bentham ([1830] 2009) both advocated the approach, suggesting that once the penal law is written, the role of the judge should be limited, so as not to be swayed by personal prejudices. Certainly, mandatory penalties increase certainty, consistency, and transparency in sentencing. Mandatory penalties can either operate as fixed or as minimum sentences. Sometimes, a particular penalty is specified for a given crime, such as mandatory life imprisonment for murder in the Northern Territory, Queensland, and South Australia; or for treason in both Australia and New Zealand. More often, however, mandatory minimum sentences operate as sentencing floors. Judges typically still enjoy the discretion to impose *higher* sentences, up to the limits authorised by law, but cannot impose a sentence *below* the statutory minimum, regardless of the considerations that might prompt them to do so. The instinctive synthesis of sentencing, which might determine the judge's sentence in other cases, is trumped by law. Roth's (2014) survey of mandatory sentencing in Australia

documents statutory minima of this kind that have been enacted in the Australian Commonwealth, for example, for people smuggling; in NSW for murder of a police officer and for intoxicated one-punch fatal assaults; in the Northern Territory for sexual offences and for repeat violent offences; in Queensland such as for serious firearms offences and for repeat serious child sex offences; in Victoria such as for intentionally or recklessly causing serious harm in circumstances of gross violence; and in Western Australia such as for assault of a police officer, prison officer, or transport security officer, and for offences committed in the interest of a declared criminal organisation.

Presumptive penalties are another less rigid means of pursuing uniformity in sentencing. In New Zealand, for example, murder is punished by life imprisonment unless manifest injustice would result. In NSW, standard non-parole periods were established for a range of serious offences, although the 2011 Muldrock decision (*Muldrock v The Queen* [2011] 244 CLR 210) weakened the significance of the presumption. Presumptive and mandatory sentences are popular with politicians, who can enact "tough on crime" measures to respond to moral panics, and useful to prosecutors, who can employ them for plea bargain leverage, but they are widely criticised by scholars and jurists (see Tonry 1992) as blunt and inflexible tools capable of producing unjust outcomes.

Three Strikes Laws

Three strikes laws are a form of mandatory sentencing that focus upon criminal history, enhancing minimum sentences for recidivists. These laws present a jurisprudential puzzle, since increasing penalties on the basis of previous convictions subverts traditional legal prohibitions against double jeopardy, retroactivity, and status crimes (White 2006). That being said, habitual felon laws have a long history, extending to sixteenth century England, but they were politically reinvigorated in recent years as so-called three strikes laws.

Western Australia introduced a three strikes law for burglaries in 1996, mandating a minimum 12-month term of imprisonment for a third conviction of home burglary. Noting the disproportionate impact of the legislation on Indigenous juveniles, some judges circumvented mandatory detention by imposing conditional release orders. The legislation was tightened in September 2015, making it the strictest burglary law in Australia.

The Northern Territory introduced a kind of three strikes law for property crimes in 1997. For adults, the first conviction for property crime entailed a

minimum 14 days of imprisonment, a second conviction entailed 90 days, and a third conviction entailed 12 months. Shorter periods of detention were imposed on juveniles. The Northern Territory's minimum sentencing provisions were repealed in 2001, replaced with a law that affords greater flexibility.

New Zealand's *Habitual Criminals Act 1906* authorises the indefinite incarceration of three-time felons, but this law had fallen into disuse by the 1950s. In 2010, however, inspired by California's notorious three strikes legislation (Zimring et al. 2001), New Zealand introduced a new three-strike regime for 40 qualifying offences. Upon conviction for a qualifying non-murder offence, a first-strike warning is added to the offender's record. Upon a second strike—the final warning—the offender must serve the entire sentence imposed by the judge, without parole. Upon a third strike, the offender must serve the maximum penalty authorised by law, and the judge may only impose a lesser sentence if the failure to do so would result in manifest in justice. Although three strikes legislation was enacted as a tool to punish the "worst of the worst" (Brookbanks 2012), the defendants who have been warned under New Zealand's legislation closely resemble the general prison population. They tend to be young, male, and are disproportionately Māori and Pasifika (Oleson 2015). To date, because of the manifest injustice clause, no defendants have been sentenced to the maximum penalty under the three strikes law.

Sentencing Guidelines

Sentencing guidelines are one mechanism to limit sentencing discretion without resorting to mandatory or presumptive sentences. They assume different forms. One approach is to employ a two-dimensional grid, such as that pioneered in Minnesota in 1982 (Frase 2005), and as used by the US federal government or England and Wales. Typically, one axis identifies the range of offences, from least serious to most serious; the other axis identifies the range of criminal history or risk, from those with no criminal record to those with extensive criminal records. At the intersection of the appropriate row and column, judges will find the corresponding sentencing range. Judges may choose to depart upward or downward from the specified sentence when special circumstances are present and may be expected to do so, but as a general matter, the guideline range is presumed to be the correct sentence for the offender, given an offence of conviction and criminal history. Like mandatory sentences, grid systems enhance predictability and transparency,

but shift discretion from courts to prosecutors and, through their rigidity, can produce miscarriages of justice. They can also be complicated, leading to calculation and application errors: the US Sentencing Guidelines have 43 offence levels and six criminal history categories. The Guidelines Manual is more than 1500 pages long (Luna 2005).

A second approach, adopted most enthusiastically in NSW but also employed in Queensland, South Australia, Victoria, Western Australia, and New Zealand, relates to the issuance of advisory judgements, usually by courts of appeals, as authoritative guidance for lower courts (Buchanan 2014). Like grid sentencing, they are intended to minimise disparity while leaving room for individualised justice. Guideline judgements can be issued on the courts' own initiative or, in NSW, Queensland, South Australia, and Victoria, upon request from the Attorney-General. Sentencing guidelines relate to particular offence types such as dangerous driving, armed robbery, and so forth, but they are not fact-specific. Although they are *obiter dicta*, neither binding nor formal precedent, they can provide reliable information to trial courts. This, however, raises separation of powers questions. The constitutionality of sentencing guidelines was implicated in 2001 in *Wong v The Queen* [2001] 207 CLR 584. If the issuance of sentencing guidelines effectively binds the lower courts, the information ceases to be adjunctive to the sentencing function—the work of the courts—and becomes de facto legislation and thus the work of parliament. The majority in *Wong* concluded that numerical ranges would violate the Australian Constitution (contra also *Mistretta v United States 1989. 488 U.S. 361.*). These considerations, among others, prompted the NZ Law Commission (2006) to recommend the formation of a sentencing council rather than issuing piecemeal sentencing guidance through the Court of Appeal.

Sentencing Councils

New Zealand did not create a sentencing council upon the recommendation of the Law Commission, but sentencing councils *do* exist in four Australian states: NSW, established in 2003; South Australia, established in 2012; Tasmania, established in 2010; and Victoria, established in 2004. A Queensland Sentencing Advisory Council was established in 2010 but was abolished in 2012 (Buchanan 2014). The four sentencing councils operate as independent bodies. They monitor sentencing trends, conduct research, and disseminate guidance to Attorneys-General, judges, policymakers, and the public. They function as important conduits between the public and the

courts, simultaneously gauging public opinion and educating the community about sentencing matters.

Other, non-council, organisations serve similar functions, enhancing consistency in sentencing while ensuring individualised justice. The Judicial Commission of NSW (2016) publishes the *Sentencing Bench Book*, which provides information about principles of sentencing and procedural matters; and the Judicial College of Victoria (2016) publishes the *Victorian Sentencing Manual*, which strives to "promote consistency of approach by sentencers in the exercise of their discretion" (Part A.1). The Australian Law Reform Commission also publishes research on sentencing in Australia, and the NZ Law Commission publishes research related to sentencing in New Zealand.

Evidence-based Sentencing

Some courts are beginning to explore the possibility of what has been called evidence-based sentencing, an actuarial approach that uses risk-prediction measures to guide the imposition of sentences. Research indicates that statistical assessments generally outperform the clinical judgement of even trained experts (Meehl 1954). For this reason, risk assessment instruments have become ubiquitous in community corrections and are frequently used to determine the appropriate conditions of probation or parole. In recent years, some judges have asked whether risk instruments might also be employed at sentencing (see Kopf 2015). Might these instruments provide judges with valuable information, in the way that sentencing guidelines provide judges with relevant indicators? After all, if actuarial instruments can distinguish recidivists from those who will not reoffend, then scarce law enforcement resources can be used elsewhere, reinvested to improve justice and minimise crime. High-risk individuals might be both incapacitated for longer periods and be provided with interventions that will reduce criminal propensities, while low-risk defendants, who actually can be made worse by too much supervision (Lowenkamp and Latessa 2004), might receive non-custodial or alternative punishments. It is a promising ideal, especially to policymakers told to ensure public safety with declining resources (Oleson 2011), but critics characterise evidence-based sentencing as "the new profiling" (Starr 2015, 229) and warn of its potential to mislead, reify disparities, and criminalise poverty (see Hannah-Moffat 2015). Certainly, it advances criminal justice one step closer to the "new penology" of managing at-risk populations as envisioned by Feeley and Simon (1992).

Despite criticism from scholars and policymakers around the world, evidence-based sentencing is attracting serious attention in Australia and New Zealand. Australia has not one but two centres related to evidence-based sentencing: the Global Centre for Evidence-Based Corrections and Sentencing at Griffith University, and the Centre for Evidence-Based Sentencing at Deakin University. In February 2016, the New Zealand Minister of Justice introduced a bold new initiative in which actuarial models would draw upon Statistics New Zealand's Integrated Data Infrastructure, linking justice, tax, and social benefit information, to forecast recidivism as well as benefit-dependence outcomes during sentencing (Jones 2016). For proponents and opponents alike, the ethical implications of New Zealand's new actuarial endeavour are profound.

Problem-solving Courts

As noted above, a great deal of the current innovation in sentencing relates to guiding judicial discretion so that sentences are consistent but simultaneously tailored to the specifics of the defendant and the crime. Mandatory and presumptive sentencing, sentencing guidelines, and information from sentencing councils all attempt to strike that balance. But another, parallel, evolution in sentencing is taking place. Problem-solving courts are being established in Australia and New Zealand, as in other jurisdictions around the world.

During the late 1980s, drug trafficking strained Florida's criminal courts beyond their capacities. Dockets were choked and congested, courtrooms were plea bargaining mills, and prisons were crowded. The first drug court was developed in Dade County in 1989 to address the problem. The drug court model centred on a monitoring judge and recast legal adversaries in the roles of collaborative team members. Teams mobilised to make treatment services available. Random drug testing of volunteering participants was frequent, and drug treatment was treated as part of justice case management. Relapse was understood as an inevitable aspect of the process and to be expected. Graduated rewards and sanctions encouraged progress and inhibited misconduct. Elements of therapeutic jurisprudence (Winick and Wexler 2003) and procedural justice (Tyler 1998) were evident in the model, even if they were not deliberately incorporated. Volunteers entered the programme prior to pleading, prosecution was deferred while the defendant participated in the programme, and the prosecution was dropped if the defendant successfully completed the programme.

More than 25 years later, the drug court model has gone mainstream. It is now a movement. By 2014, there were 2968 drug courts in the USA alone (National Drug Court Resource Center 2016). More than 1000 other problem-solving courts such as mental health courts, domestic violence courts, homelessness courts, and the like, all applying the principles of therapeutic jurisprudence and procedural justice to their own specialised dockets, have also been established in the USA. Of course, the critics of drug courts have identified problems with the model, including cherry picking, net widening, and failure penalties (see Justice Policy Institute 2011); other critics have condemned drug courts' willingness to "simultaneously treat …drug use as a crime and as a disease, without coming to grips with the inherent contradictions of those two approaches" (Hoffman 2000, 1477), but these concerns have not prevented drug and problem-solving courts from flourishing. Drug court practitioners have identified ten key components that appear to be integral to success (National Association of Drug Court Professionals 2004),and drug courts have been identified as an evidence-based practice, reducing recidivism in adults from approximately 50% to approximately 38% according to a meta-analysis (Mitchell et al. 2012). The Washington State Institute for Public Policy (2013) reported that every dollar invested in drug courts saved USD3.38 in criminal justice costs.

In Australia, drug courts have been established in NSW, Queensland, South Australia, Victoria, and Western Australia (Freiberg 2000; Indermaur and Roberts 2003). These programmes have been positively evaluated, producing reductions in recidivism during and after participation (King et al. 2009). In New Zealand, two pilot Alcohol and Other Drug Treatment Courts were launched in November 2012. But there are numerous other problem-solving courts scattered across Australia and New Zealand that draw upon principles of therapeutic jurisprudence and procedural justice (Richardson et al. 2013). Both countries also operate Indigenous sentencing courts, such as Koori Courts and Rangatahi Courts, which incorporate elements of problem-solving courts, restorative justice, and therapeutic practice (King et al. 2009). Just as mandatory or presumptive sentencing, sentencing guidelines, and sentencing councils might enhance parity in the exercise of judicial discretion, so might drug courts might serve as a foundation for the incorporation of problem-solving principles into the wider criminal justice system (Freiberg 2005).

Conclusion

The imposition of a criminal sentence is one of the most solemn and difficult things a judge will ever do. In Australia and New Zealand, judges are afforded wide discretion to realise four complementary—sometimes competing—goals of punishment: deterrence, incapacitation, rehabilitation, and retribution. Engaging in "instinctive synthesis" (Edney and Bagaric 2007), judges match the facts of the offence and the characteristics of the offender to produce an individualised sentence. But the wide discretion that judges enjoy also produces disparity in sentencing: two like defendants, with identical criminal records and identical crimes, might receive very different sentences. To reduce sentencing disparity, various mechanisms have been introduced to restrict judicial discretion. Some of these mechanisms are blunt and inflexible, such as three strikes laws or other forms of mandatory minimum sentencing. Other forms, such as sentencing guidelines or information from sentencing councils, are advisory or informational in nature. And new innovations in sentencing are prompting some jurists to rethink traditional modes of adjudication. For decades, probation officers have used risk-prediction instruments in guiding their decisions, but more recently, some judges have also started to employ risk-prediction instruments in evidence-based sentencing. Judges have also incorporated principles of therapeutic jurisprudence and procedural justice into the operation of drug courts and various other problem-solving courts, transforming the adversarial courtroom into a space in which the judge draws upon prosecutors, defence counsel, and service providers to address serious social problems. Although the core work of the judge, the "instinctive synthesis", remains the same, many judges are incorporating new tools to meet the challenges of modern sentencing.

References

Anthony, Thalia. 2010. *Sentencing Indigenous Offenders*. Sydney: Indigenous Justice Clearinghouse.

Australian Law Reform Commission. 2006. *Same Crime, Same Time: Sentencing of Federal Offenders*. Sydney: Australian Law Reform Commission.

Beccaria, Cesare. (1764) 1991. *An Essay on Crimes and Punishments*, trans. Mons. De Voltaire. Birmingham, AL: Legal Classics Library.

Bentham, Jeremy. (1830) 2009. *The Rationale of Punishment*. Amherst, NY: Prometheus Books.

Bond, Christine E.W., Samantha Jeffries, and Don Weatherburn. 2011. How Much Time? Indigenous Status and the Sentenced Imprisonment Term Decision in New South Wales. *Australian and New Zealand Journal of Criminology* 44 (2): 272–290.

Brookbanks, Warren J. 2012. Punishing Recidivist Offenders in New Zealand Using Three Strikes Legislation: Sound Policy or Penal Excess? *US-China Law Review* 9: 1–19.

Buchanan, Kelly. 2014. *Sentencing Guidelines: Australia*. Washington, DC: Law Library of Congress.

Cullen, Francis T. 2005. The Twelve People Who Saved Rehabilitation: How the Science of Criminology Made a Difference. *Criminology* 43 (1): 1–42.

Edney, Richard, and Mirko Bagaric. 2007. *Australian Sentencing: Principles and Practice*. Cambridge: Cambridge University Press.

Feeley, Malcolm, and Jonathan Simon. 1992. The New Penology: Notes on the Emerging Strategy of Corrections and Its Implications. *Criminology* 30 (4): 449–474.

Feinberg, Joel. 1965. The Expressive Function of Punishment. *The Monist* 49 (3): 397–423.

Frankel, Marvin E. 1973. *Criminal Sentences: Law Without Order*. New York, NY: Hill and Wang.

Frase, Richard S. 2005. Sentencing Guidelines in Minnesota, 1978–2003. *Crime and Justice* 32: 131–219.

Freiberg, Arie. 2000. Australian Drug Courts. *Criminal Law Journal* 24: 213–235.

Freiberg, Arie. 2005. Problem-Oriented Courts: An Update. *Journal of Judicial Administration* 14: 196–219.

Gottfredson, Don M. 1999. *Effects of Judges' Sentencing Decisions on Criminal Careers*. Washington, DC: US Department of Justice.

Hannah-Moffat, Kelly. 2015. The Uncertainties of Risk Assessment: Partiality, Transparency, and Just Decisions. *Federal Sentencing Reporter* 27 (4): 244–247.

Hegel, Georg. (1820) 1952. *Philosophy of Right*, trans. T.M. Knox. Oxford: Clarendon Press.

Hoffman, Morris B. 2000. The Drug Court Scandal. *North Carolina Law Review* 78: 1437–1534.

Indermaur, David, and Lynne Roberts. 2003. Drug Courts in Australia: The First Generation. *Current Issues in Criminal Justice* 15 (2): 136–154.

Jones, Nicholas. 2016. Courts to Get High-Tech Help for Sentencing. *New Zealand Herald*, February 26.

Judicial College of Victoria. 2016. Victorian Sentencing Manual. http://www.judicialcollege.vic.edu.au/eManuals/VSM/index.htm#13888.htm. Accessed 12 Sep.

Judicial Commission of NSW. 2016. Sentencing Bench Book. https://www.judcom.nsw.gov.au/publications/benchbks/sentencing/index.html. Accessed 12 Sep.

Justice Policy Institute. 2011. *Addicted to Courts: How a Growing Dependence on Drug Courts Impacts People and Communities*. Washington, DC: Justice Policy Institute.

Kant, Immanuel. (1797) 2002. *The Philosophy of Law*, trans. W. Hastie. Union, NJ: Lawbook Exchange.

King, Michael, Arie Freiberg, Becky Batagol, and Ross Hyams. 2009. *Non-Adversarial Justice*. Sydney: Federation Press.

Kopf, Richard G. 2015. Federal Supervised Release and Actuarial Data (Including Age, Race, and Gender): The Camel's Nose and the Use of Actuarial Data at Sentencing. *Federal Sentencing Reporter* 27 (4): 207–215.

Lowenkamp, Christopher T., and Edward J. Latessa. 2004. Understanding the Risk Principle: How and Why Correctional Interventions Can Harm Low-Risk Offenders. In *Topics in Community Corrections*, ed. Dot Faust, 3–8. Washington, DC: National Institute of Corrections.

Luna, Erik. 2005. Gridland: An Allegorical Critique of Federal Sentencing. *Journal of Criminal Law and Criminology* 96 (1): 25–106.

Martinson, Robert. 1974. What Works? Questions and Answers About Prison Reform. *Public Interest* 10: 22–54.

Meehl, Paul E. 1954. *Clinical Versus Mechanical Prediction*. Minneapolis, MN: University of Minnesota Press.

Mitchell, Ojmarrh, David B. Wilson, Amy Eggers, and Doris L. MacKenzie. 2012. Drug Courts' Effects on Criminal Offending for Juveniles and Adults. *The Campbell Collaboration Systematic Reviews* 4. doi:10.4073/csr.2012.4.

National Association of Drug Court Professionals. 2004. *Defining Drug Courts: The Key Components*. Washington, DC: Bureau of Justice Assistance.

National Drug Court Resource Center. 2016. How Many Drug Courts Are There? http://www.ndcrc.org/content/how-many-drug-courts-are-there. Accessed 16 Apr.

NZ Law Commission. 2006. *Sentencing Guidelines and Parole Reform*. Wellington: NZ Law Commission.

Oleson, James C. 2011. Risk in Sentencing: Constitutionally Suspect Variables and Evidence-Based Sentencing. *SMU Law Review* 64: 1329–1404.

Oleson, James C. 2015. Habitual Criminal Legislation in New Zealand: Three Years of Three-Strikes. *Australian and New Zealand Journal of Criminology* 48 (2): 277–292.

Philips, Mary T. 2012. *A Decade of Bail Research in New York City*. New York, NY: New York City Criminal Justice Agency.

Richardson, Elizabeth, Katey Thom, and Brian McKenna. 2013. The Evolution of Problem-Solving Courts in Australia and New Zealand: A Trans-Tasman Comparative Perspective. In *Problem Solving Courts: Social Science and Legal Perspectives*, eds. Richard L. Wiener, and Eve M. Brank, 185–210. New York, NY: Springer.

Roth, Lenny. 2014. *Mandatory Sentencing Laws*. Sydney: NSW Parliamentary Research Service.

Shaw, George B. 1932. Crude Criminology. In *The Collected Works of George Bernard Shaw*, ed. George B. Shaw, vol. 22, 173–297. New York, NY: William H. Wise.

Starr, Sonja. 2015. The New Profiling: Why Punishing Based on Poverty and Identity is Unconstitutional and Wrong. *Federal Sentencing Reporter* 27 (4): 229–236.

Tonry, Michael. 1992. Mandatory Penalties. *Crime and Justice* 16: 243–273.

Tyler, Tom R. 1988. What is Procedural Justice: Criteria Used by Citizens to Assess the Fairness of Legal Procedures. *Law and Society Review* 22: 103–135.

Washington State Institute for Public Policy. 2013. *Prison, Police, and Programs: Evidence-Based Options That Reduce Crime and Save Money*. Olympia, WA: Washington State Institute for Public Policy.

White, Ahmed A. 2006. The Juridical Structure of Habitual Offender Laws and the Jurisprudence of Authoritarian Social Control. *University of Toledo Law Review* 37: 705–745.

Willis, John. 1985. Sentencing Discount for Guilty Pleas. *Australian and New Zealand Journal of Criminology* 18: 131–146.

Winick, Bruce J., and David B. Wexler (eds.). 2003. *Judging in a Therapeutic Key: Therapeutic Jurisprudence and the Courts*. Durham, NC: Carolina Academic Press.

Zimring, Franklin E., and Gordon Hawkins. 1995. *Incapacitation: Penal Confinement and the Restraint of Crime*. Oxford: Oxford University Press.

Zimring, Franklin E., Gordon Hawkins, and Sam Kamin. 2001. *Punishment and Democracy: Three Strikes and You're out in California*. Oxford: Oxford University Press.

Zimring, Franklin E., Gordon Hawkins, and James Vorenberg. 1973. *Deterrence: The Legal Threat in Crime Control*. Chicago, IL: University of Chicago Press.

Author Biography

James C. Oleson is an Associate Professor of criminology at the University of Auckland. He earned his MPhil and PhD from Cambridge University and his JD from UC Berkeley. He was a 2004/05 US Supreme Court Fellow and served five years as Chief Counsel to the Criminal Law Policy Staff of the US Courts. His first book, *Criminal Genius*, was published in 2016.

25

Indigenous Sentencing Courts in Australia

Elena Marchetti

The reasons why Indigenous[1] peoples come into contact with police, courts, and corrections are similar for both Indigenous juveniles and adults. Some scholars point to the existence of structural and institutional bias and racism within criminal justice processes (Anthony 2013; Blagg et al. 2005). Other scholars attribute the overrepresentation to higher and more serious offending behaviour (Snowball and Weatherburn 2006). A range of other complex social and economic factors, such as drug and alcohol abuse, unemployment, poor school completion and performance rates, child neglect and abuse, and the prevalence of family violence have also been identified as contributing to Indigenous peoples' sustained contact with the criminal justice system (Morgan and Louis 2010). Compounding the overrepresentation problem, particularly for Indigenous young people, is the fact that many Indigenous peoples live in remote or regional areas with little or no access to services and adequate infrastructure that can address the consequences of social and economic disadvantage (Delahunty and Putt 2006). The Royal Commission into Aboriginal Deaths in Custody (RCIADIC), which handed down its final report 25 years ago, gave considerable attention to the issue of high incarceration rates for younger Indigenous Australians, partly because of the young ages of many of the deceased whose deaths were investigated (RCIADIC 1991). The inquiry found that hostility existed between the police and Indigenous communities and that more was needed in order to address Indigenous concerns relating to

E. Marchetti (✉)
Griffith Law School, Griffith University, Brisbane, Australia
e-mail: e.marchetti@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_25

unequal power dynamics between the two groups. Evidence of joint efforts in some communities of attempts to mend the relational divide became the focus of a number of recommendations that espoused increasing Indigenous community participation and involvement in the processes of justice. Indigenous sentencing courts are, to some extent, a response to these recommendations.

Over the past 15 years, Indigenous sentencing courts have been established in all states and territories around Australia—aside from Tasmania—to try to address the mistrust Indigenous Australians have of the mainstream criminal justice system, and to attempt lessening the incongruity of the court system. Although they operate within the mainstream criminal court system, by involving Elders and community representatives, they aim to make the court process more meaningful and therefore more consequential for offenders. They have both community-building and offending-centred aims, some of which—such as reducing the overrepresentation of Indigenous people in custody—are ambitious and unlikely to be achieved in the short term.

This chapter outlines how these courts came to fruition, what evaluations and impact studies have found, and what differences, if any, exist between offending-centred outcomes of adult and children's Indigenous sentencing courts. This last section focusses on Queensland, Victoria, and Western Australia, since they are the only jurisdictions that have commissioned evaluations of both adult and children's Indigenous sentencing courts.

The Evolution of Indigenous Sentencing Courts

Sentencing hearings in which Indigenous community members participate in an informal manner have been utilised by judicial officers travelling on circuit to regional and remote areas for some time. Indigenous sentencing courts are distinguished from these less formalised practices because they were based upon certain principles and practices (Marchetti and Daly 2007). The stories of how the courts evolved and which people or agencies influenced their inception in each jurisdiction are quite varied. The first formalised version of an Indigenous sentencing court was established in June 1999 in Port Adelaide in South Australia by a magistrate called Chris Vass who realised that "Aboriginal people were getting a pretty raw deal from the justice system as a whole and they mistrusted the system" (Marchetti and Daly 2012, 467). At the time, Magistrate Vass was a member of the Judicial Aboriginal Cultural Awareness Program and the Regional Manager of the Port Adelaide Magistrates Court and associated circuit courts that were held in the Anangu Pitjantjatjara Lands (Tomaino 2004). Before establishing what became

known as the Nunga Court, Mr Vass consulted widely and for a number of years with "Aboriginal community groups, State Government agencies, the Aboriginal Legal Rights Movement, police prosecutors, solicitors and Aboriginal people" (Tomaino 2004, 2). South Australian criminal courts at all levels can now convene an Aboriginal sentencing conference—in which the judicial officer participates—prior to sentencing (Sect. 9C *Criminal Law (Sentencing) Act 1988 (SA)*), and in Port Lincoln, an Aboriginal conference can be convened out of court without the presence of a Magistrate, with the conference report being used in the sentencing hearing held after the Aboriginal conference (Courts Administration Authority of South Australia 2012).

The Nunga Court model informed the establishment of similar courts in Victoria and Queensland. Diane Fingleton, the then Chief Magistrate of Queensland, aware of the improvements that the South Australian Nunga Court was providing for Indigenous offenders and communities, initiated a proposal to establish a similar court in Brisbane. Indigenous community members, the GUMURRI Centre at Griffith University, and representatives from relevant agencies and government departments were consulted and assisted in the development of the Murri Court which commenced operation in August 2002 (Parker and Pathé 2006). The Murri Court had the support of local Elders, and it eventually expanded to other cities and towns. A Youth Murri Court was first established in Brisbane in March 2004 (Morgan and Louis 2010). Victoria was the first jurisdiction to introduce specific legislation to establish Koori Courts through the *Magistrates' Court (Koori Court) Act 2002 (Vic)*. Unlike South Australia and Queensland, the initiative germinated from the state government as a result of the Aboriginal Justice Agreement, which had been signed by various state government departments and key Koori organisations in Victoria in June 2000. The Department of Justice, via the Indigenous Issues and Criminal Law Policy units, facilitated consultation meetings with the Aboriginal Justice Forum, which is the peak body responsible for developing and implementing the Aboriginal Justice Agreement comprised of a number of key Indigenous community organisations and government representatives (Harris 2006). A Koori Court Division Reference Group was established to implement the formation of the court with representatives from the courts, government departments, the Sheriff's Office, police, legal aid, the Regional Aboriginal Justice Advisory Committee, and the local Aboriginal cooperative, but with no representation from community Elders (McAsey 2005). In Victoria, the first Koori Court was established in the Shepparton Magistrates Court in October 2002, with others to follow in both Melbourne (Broadmeadows) and regional towns.

A Children's Koori Court was established in Melbourne in October 2005, and a District Koori Court was established in Latrobe Valley in February 2009, the first at this court level.

Discussions around the possibility of introducing a court process similar to the Canadian sentencing circles, commenced in NSW in the mid to late 1990s as judicial officers became aware of what was occurring in Canada (Potas et al. 2003). However, unlike South Australia, Queensland, and Victoria, it was a peak Aboriginal group that led the charge for change in the sentencing court process in NSW. The Aboriginal Justice Advisory Council (AJAC)—which has since been replaced by a network of Aboriginal Community Justice Groups—proposed the development of a circle sentencing model to the Standing Committee of Criminal Justice System Chief Executive Officers, which then led to the establishment of a working party chaired by the AJAC with representatives from various NSW criminal justice agencies and departments. The first NSW Circle Court was trialled in Nowra in January 2002 with the support and input of Elders, an Aboriginal Project Officer funded by the Department of Justice, the Magistrate, the police prosecutor, and the Aboriginal Legal Services solicitor. Other Circle Courts were established around the state over the next five years, with a Youth Koori Court pilot established in Parramatta in February 2015. Although the ACT Galambany—formerly called Ngambra—Circle Sentencing Court mirrored the model adopted in NSW, similar to South Australia and Queensland, its establishment was initiated by an activist judicial officer (Madden 2007). The Ngambra Circle Sentencing Court was initially established for six months in May 2004, but it is still in operation. A Steering Committee, chaired by the Circle Court Magistrate and comprising representatives from Aboriginal Legal Services, the Director of Public Prosecutions, corrections, domestic violence and victim agencies, and local Indigenous groups and Elders, was established to plan and implement the operation and procedures of the Circle Sentencing Court. The presiding Magistrate of the ACT Children's Court—and at the same time, the Galambany Court—started referring young people to the Circle Sentencing Court in early 2009.

The Northern Territory and Western Australia were the last two jurisdictions to establish Indigenous sentencing courts. In both jurisdictions, they were referred to as Community Courts. The courts in both jurisdictions are currently not funded, although the Western Australia Kalgoorlie-Boulder Community Court is still operating on a needs basis. The Northern Territory Community Courts, which had expanded to 18 different locations by 2012, were not limited to Aboriginal defendants, but according to an evaluation

conducted by the Cultural & Indigenous Research Centre Australia "up until the end of June 2012, 179 of the 182 defendants in the Northern Territory Community Court were recorded as Aboriginal" (Cultural & Indigenous Research Centre Australia 2013, 153). In Western Australia, a Magistrate, who had been convening a less formalised Aboriginal sentencing court for both adults and children in Yandeyarra since September 2003, initiated discussions to establish a Community Court in Kalgoorlie-Boulder (Aquilina et al. 2009), and in the Northern Territory the pilot, which was established in Darwin, Nhulunbuy, and Tiwi Islands in April 2005, came to fruition as a result of interest and funding from the Yilli Rreung ATSIC Regional Council (Anthony 2015; Cultural & Indigenous Research Centre Australia 2013). The Northern Territory Adult Community Courts were suspended in October 2011 because the then Chief Magistrate of the Northern Territory came to the conclusion that the manner in which evidence was presented in Community Court hearings contravened a provision of the *Sentencing Act 1995 (NT)* requiring information about "Aboriginal customary law" or "views expressed by members of an Aboriginal community" to be presented by way of disclosure with reasonable notice. Additionally, the Chief Magistrate was of the view that the information presented in Community Courts fell under the prohibition contained in the *Northern Territory National Emergency Response Act 2007 (Cth)*, which disallowed cultural and customary law considerations to be taken into account in sentencing. Others have argued that neither of these laws should have impinged on the operation of the Community Courts (Anthony and Crawford 2014). The Children's Community Courts continued until 2012 when the Attorney-General "disbanded the Community Court program" (Anthony 2015, 110). Due to conflicting Native Title claim issues in Kalgoorlie-Boulder that required resolution, that court took longer to establish than expected, and, as a result, the Western Australian pilot was first established in Norseman in February 2006. Like the Community Courts in the Northern Territory—but unlike the Kalgoorlie-Boulder court which was established later—the Norseman Community Court was neither an Aboriginal-specific court nor did it receive additional funding since it had never been formally sanctioned by the Department of Premier and Cabinet (Aquilina et al. 2009). In fact, the Norseman Community Court has not operated for over five years. The Kalgoorlie-Boulder Community Court commenced for both adults and children in November 2006, and a specialised Indigenous family violence court—called the Barndimalgu Court—was established in Geraldton in August 2007. The latter is still operating despite a change in funding.

Jurisdiction and Evaluations of Indigenous Sentencing Courts

Following is an explanation of the types of offences and court practices that exist in each of the Indigenous sentencing courts. There are differences both amongst the various states and territories, which ultimately impacts on the extent to which evaluations and impact studies can be compared. Despite this, it is important to map out what different evaluations and impact studies have found to try and draw synergies and also distinctions between the findings. The final part of this section does this with findings from evaluations and impact studies of adult and children's Indigenous sentencing courts.

An Overview of the Operation and Evaluation of the Courts

There is much variation in the ways the courts operate, both within and amongst jurisdictions. However, in all courts, the offender must either have been found guilty or have pleaded guilty to the offence and must have committed an offence within the jurisdiction of that court in terms of the seriousness of the offence and location of the commission of the crime. South Australia, Queensland, and Victoria are high volume jurisdictions with South Australia reporting a total of 876 cases between 2007 and 2009 (Cultural & Indigenous Research Centre Australia 2013), Queensland reporting a total of 1105 cases between 2007 and 2008 (Morgan and Louis 2010), and Victoria reporting a total of 876 cases between 2007 and 2009 (Byles and Karp 2010). By contrast, NSW Circle Courts reported that 167 individuals had appeared before a Circle Court between the period February 2002 and June 2007 (Fitzgerald 2008). Offenders are not allowed to return to the Circle Court in NSW if they reoffend, so this tally is reflective of the number of cases as per the numbers provided for South Australia, Queensland, and Victoria.

The judicial officer presiding over the courts retains the power to sentence the offender in all jurisdictions. This means that the process does not provide Indigenous communities with a forum in which to practise self-determination, but it also means that Elders are protected from being blamed for whatever sentence is imposed (Harris 2006). Victoria, NSW, Western Australia, ACT, and Northern Territory (while Northern Territory Community Courts were in operation) limit the types of offences that can be heard in their Indigenous sentencing courts, although there is no explanation for these limits in the legislation or procedural guidelines. Sexual offences are

excluded in all five jurisdictions. A breach of a family violence intervention order or an offence arising from the same conduct is excluded in the adult jurisdiction of the Koori Court in Victoria, but not in the Children's Koori Court Division, which "has the jurisdiction to hear and summarily determine all offences other than murder, attempted murder, manslaughter, culpable driving causing death and arson causing death" (Borowski 2010, 469). The Western Australia Community Courts also exclude family violence offences although, "some family violence cases related to feuding have been heard in the court" (Aquilina et al. 2009, 21). The adult division of the Western Australia Community Court and the Barndimalgu Court operate within the Magistrates Court jurisdiction and the youth Community Court division operates as a Children's Court hearing low-level offences. Similarly, the Queensland Murri (adult and youth) Courts operate at a Magistrates Court level, hearing summary offences or indictable offences that can be dealt with summarily (Morgan and Louis 2010). When they were operating, the Northern Territory Community Court guidelines recommended the exercise of caution when dealing with cases involving violence, domestic violence, and where the victim was a child. NSW and ACT exclude certain drug offences and offenders who are addicted to illicit drugs, respectively. Certain violent offences, stalking, offences involving the use of a firearm, and offences relating to child prostitution or child pornography are also excluded in NSW.

Sixteen evaluations and impact studies have been conducted of the courts since they commenced operation. Only one of the studies—based in Victoria—specifically focussed on the children's jurisdiction of the courts (Borowski 2010, 2011), although there are two other impact studies of the adult Magistrates Koori Court Division in Victoria (Byles and Karp 2010; Harris 2006). Two of the 16 studies, one focussing on the Western Australia Kalgoorlie-Boulder Community Court and the other on the Murri Courts in Queensland, evaluated both the adult and children's jurisdictions of the courts (Aquilina et al. 2009; Morgan and Louis 2010). It is not easy to compare the findings of the evaluations and impact studies since they are mostly jurisdiction-specific and because they all identify limitations in the manner in which the data were either collected or analysed. Many have used quantitative studies of reoffending, finding little or no impact on recidivism as a result of the introduction of such courts, despite there being some evidence that they have had an impact on strengthening informal social controls within Indigenous communities (Beranger et al. 2010; Borowski 2010, 2011; Fitzgerald 2008; Morgan and Louis 2010). Specifically, the courts provide more culturally sensitive processes, increased communication, and community participation; all of which contribute to making the sentencing process more meaningful for defendants

and victims. What makes evaluations of Indigenous sentencing courts particularly difficult is that they are usually aligned with an assessment of whether or not the aims of the courts have been achieved, which according to Stobbs and MacKenzie (2009, 94) are "fairly broad [and] may appear aspirational and ambitious" often including claims relating to a reduction in reoffending or imprisonment rates. A number of researchers who have evaluated Indigenous sentencing courts regard a focus on recidivism as limited in its own right and that it should be viewed as just one measure of success (Cultural & Indigenous Research Centre Australia 2008; Harris 2006; Potas et al. 2003; Tomaino 2004).

Comparing Evaluations of Adult and Children's Indigenous Sentencing Courts

All states and territories have had a form of children's or youth Indigenous sentencing court operating alongside their adult Indigenous sentencing courts. In South Australia, their operation was only in Port Augusta and on a sporadic basis (Borowski 2010), and only Queensland, Victoria, and Western Australia have commissioned some form of evaluation or impact study of the children's or youth jurisdiction of the courts. The operation of children's Indigenous sentencing courts is similar to that of the adult jurisdiction. According to Morgan and Louis (2010, 27), it takes longer to prepare adult Murri Court matters, due to the greater number of assessments such as determining eligibility and gathering information about an offender's circumstances, and stakeholder consultations to determine "an appropriate course of action". Adult offenders require a more in-depth assessment because they have more complex and longer criminal histories and normally appear for more serious matters, placing them at greater risk of receiving a custodial sentence. The focus of the adult Murri Courts has changed over time from providing offenders with a more culturally appropriate sentencing process that engenders greater procedural justice to facilitating a more appropriate pre-sentence supervision programme and a greater involvement of service providers and Men's and Women's Murri Groups in an offender's sentence plan. This is not the case with youth Murri Courts, which have retained a focus "on providing a culturally-appropriate sentencing option for young Indigenous offenders and an opportunity for the Elders to confront the offender regarding their behaviour" (Morgan and Louis 2010, 33).

In Queensland, Victoria, and Western Australia, the offenders self-select to go through the relevant Indigenous court process. This makes using an

experimental outcome evaluation design, which randomly assigns offenders to either the Indigenous sentencing or mainstream court process, difficult (Borowski 2010; Morgan and Louis 2010). Although the Western Australia Kalgoorlie-Boulder evaluation used a comparison group of "all Aboriginal people with a case finalised in the Kalgoorlie Magistrates Court who never appeared in the Community Court during the study period" (Aquilina et al. 2009, 10), concerns were expressed about matching Community Court participants with non-participants because the "comparison groups were so different in terms of characteristics that differences in outcomes cannot with confidence be attributed to the court attended" (64). It was also recognised that for a robust comparative evaluation to be conducted, additional data were required, such as personal and environmental circumstances. In Victoria, studies of the Children's Koori Court (Borowski 2010) and of the Koori Court Division of the Magistrates Court (Byles and Karp 2010) both acknowledged the limitations of using control or comparison groups to measure reoffending outcomes, although the evaluation of the adult Koori Court Division still used a comparison group extracted from the Courtlink database. The Harris (2006) evaluation of the adult Koori Court Division used data extracted from Courtlink for analysing post-Koori Court reoffending rates but it did not use a mainstream Magistrates Court comparison group. There are problems with the way Harris (2006) calculated the recidivism rate for the evaluation of the adult Koori Court (Marchetti and Daly 2007), which makes reliance on the findings difficult. The evaluation of the Children's Koori Court Division used a "single-group post-test-only design [that was then] partially informed by the findings of previous studies and by the views of the members of the study's Research Advisory Committee" to draw conclusions about reoffending outcomes (Borowski 2010, 472). In Queensland, the study of the Murri Courts, instead, used a quasi-experimental design for its quantitative assessment of the impact of the programme, despite acknowledging that matches could be found for only 77% and 82% of adult and youth Murri Court offenders, respectively (Morgan and Louis 2010). Additional statistical analyses were conducted to address the fact that "[t]he matched group of offenders may not necessarily be representative of all offenders sentenced in the Murri Court during the evaluation period" and furthermore, it was acknowledged that "[r]estricting the control group selection process to achieve a close match on the specified selection criteria may have inadvertently resulted in differences across other variables not included in the selection process" (Morgan and Louis 2010, 20).

Some slight differences between the adult and children's jurisdiction of the Kalgoorlie-Boulder Community Court were found, such as the fact that more

community-based orders were given to young people than adults. Fines were the most common penalty imposed on adults appearing before the Community Court, although the proportion of community-based orders was also high. In terms of reoffending, Aquilina et al. (2009, 64) found that, overall, the Community Court was "not improving outcomes" for either adults or juveniles, but that further investigation was needed because "differences in the outcomes of the Community Court cannot be explained by the court alone given the differences in offender characteristics between court populations".

Borowski's (2010) study of the children's Koori Court found that the rate at which offenders failed to appear and thus breached their orders was relatively low: 11% and 13%, respectively. When compared with Indigenous youth recidivism rates of two other studies, the recidivism rate of 57–60% for the children's Koori Court was considered favourable (Borowski 2010). The Byles and Karp (2010) sentencing study of the adult Koori Court did not test for similar indicators, instead, it focussed on providing a statistical profile of offenders who appeared before the Koori Court, including the offences for which they were charged and sentencing outcomes. Unsurprisingly, this study found that the majority of Koori Court participants were male—as were the participants in the children's Koori Court—aged between 20 and 24. Offences against the person and property offences were sentenced more frequently in the Koori Court than in the mainstream Magistrates Court, while traffic offences were more frequently sentenced in the mainstream Magistrates Court (Byles and Karp 2010). When given, fines tended to be smaller in the Koori Court, while the more frequently imposed sentences in the Koori Court were community-based orders and adjourned undertakings. The greater reliance on "rehabilitative non-custodial sentencing options, may … reflect the emphasis place on delivering case-managed and 'meaningful' sentencing outcomes" (Byles and Karp 2010, 60).

Some interesting findings from the Queensland evaluation are related to appearance rates. For adult offenders referred to the Murri Court, matters involved, on average, nearly twice as many court appearances and took longer to be finalised than the comparison group appearing before a mainstream court (Morgan and Louis 2010). For juvenile offenders who were at risk of a custodial sentence and appeared before the Youth Murri Court, the average number of appearances and the length of time it took to finalise the matters was less than the comparison group. There was no difference between juvenile offenders not at risk of a custodial sentence who appeared before the Youth Murri Court and the comparison group. Generally, it appeared that Murri Court participants were more likely to appear for their hearings and were,

therefore, less likely to have a warrant issued for their arrest due to a non-appearance. However, the study advises that such findings must be interpreted with caution since it is unclear whether the results are due to "an improvement in the rate at which offenders appear in court, or reflect a change in operational practices" such as there being more leniency afforded by Magistrates for Murri Court participants or increased support for Murri Court participants in ensuring they get to court and remain on the programme (Morgan and Louis 2010, 143). Like other recidivism analyses, the Morgan and Louis (2010) study found that there was no significant difference with respect to the time until reoffending, seriousness of reoffending for the first offence or the most serious proven offence post-sentence, and the frequency of reoffending before and after the reference court date for both adult and youth Murri Court participants when compared to a comparison group. Only for juvenile offenders was there a significant difference between the regional court groups of Townsville and Rockhampton for frequency of offending in the post-sentence period when compared to the mainstream Children's Court group (Morgan and Louis 2010). The juvenile offenders from these two regional Murri Courts offended less frequently in the period post-sentence than the control group.

Conclusion

As can be seen from the above discussion, it is difficult to compare findings of evaluations and impact studies of Indigenous sentencing courts between and across jurisdictions. Differences in the operation of the courts and the level of Elder involvement make it difficult to discern how and why certain courts generate particular reoffending and sentencing outcomes. Accessing appropriate court and police data and selecting a suitable comparison group to conduct recidivism analyses is difficult and often results in the issuing of caveats when interpreting findings. In contrast, positive findings relating to community-building aims, such as increasing the participation and involvement of Indigenous community members, victims, and offenders in the sentencing process, increasing the confidence of Indigenous communities in the court process and criminal justice system, and improving relationships between the court and Indigenous peoples, are consistently apparent in evaluations of adult and children's Indigenous sentencing courts across all jurisdictions. Unfortunately, community-building goals are rarely those that drive government policy and funding, despite the fact that they were at the forefront of the reasons why the courts were established in the first place.

What this chapter illustrates is that more attention needs to be focussed on why and how the courts were initially established, and how those levers and drivers match their assessment.

Note

1. The term 'Indigenous sentencing court' is commonly used to collectively refer to courts that include the participation of Elders and community representatives in the sentencing court process. It is used to refer to courts that utilise a more culturally sensitive sentencing process for both Aboriginal and Torres Strait Islander (and in Queensland, Pacific Islander) offenders. For this reason, this chapter uses the term "Indigenous" when referring to the Aboriginal and Torres Strait Islander communities and people who are involved with the courts.

References

Anthony, Thalia. 2013. *Indigenous People, Crime and Punishment*. Oxon: Routledge.

Anthony, Thalia. 2015. Two Laws: Indigenous Justice Mechanisms in Context. *Journal of Australian Indigenous Issues* 18 (1): 99–115.

Anthony, Thalia, and Will Crawford. 2015. Northern Territory Indigenous Community Sentencing Mechanisms: An Order for Substantive Equality. *Australian Indigenous Law Review* 17 (2): 79–99.

Aquilina, Heather, Jennifer Sweeting, Helen Liedel, Vickie Hovane, Victoria Williams, and Craig Somerville. 2009. *Evaluation of the Aboriginal Sentencing Court of Kalgoorlie*. Burswood: Shelby Consulting.

Beranger, Boris, Don Weatherburn, and Steve Moffatt. 2010. *Reducing Indigenous Contact with the Court System*. Sydney: BOCSAR.

Blagg, Henry, Neil Morgan, Chris Cunneen, and Anna Ferrante. 2005. *Systemic Racism as a Factor in the Over-representation of Aboriginal People in the Victorian Criminal Justice System*. Melbourne: Human Rights Commission.

Borowski, Allan. 2010. Indigenous Participation in Sentencing Young Offenders: Findings from an Evaluation of the Children's Koori Court of Victoria. *Australian and New Zealand Journal of Criminology* 43: 465–484.

Borowski, Allan. 2011. In Courtroom 7—The Children's Koori Court at Work: Findings From an Evaluation. *International Journal of Offender Therapy and Comparative Criminology* 55 (7): 1110–1134.

Byles, Dennis, and Tal Karp. 2010. *Sentencing in the Koori Court Division of the Magistrates' Court: A Statistical Report*. Melbourne: Sentencing Advisory Council.

Courts Administration Authority of South Australia. 2012. Aboriginal Programs. http://www.courts.sa.gov.au/Community/Pages/Aboriginal-Programs.aspx#sentencing. Accessed 11 Sep.

Cultural & Indigenous Research Centre Australia. 2008. *Evaluation of Circle Sentencing Program: Report*. Sydney: NSW Attorney-General's Department.

Cultural & Indigenous Research Centre Australia. 2013. *Evaluation of Indigenous Justice Programs—Project A: Aboriginal and Torres Strait Islander Sentencing Courts and Conferences, Final Report*. Sydney: Cultural & Indigenous Research Centre Australia.

Delahunty, Brendan, and Judy Putt. 2006. *The Policing Implications of Cannabis, Amphetamine and Other Illicit Drug Use in Aboriginal and Torres Strait Islander Communities*. Canberra: National Drug Law Enforcement Research Fund.

Fitzgerald, Jacqueline. 2008. *Does Circle Sentencing Reduce Aboriginal Offending?*. Sydney: BOCSAR.

Harris, Mark. 2006. *A Sentencing Conversation: Evaluation of the Koori Courts Pilot Program October 2002–October 2004*. Melbourne: Department of Justice.

Madden, Shane. 2007. The Circle Court in the ACT: An Overview and Its Future. Paper presented at Australian Institute of Judicial Administration Indigenous Courts Conference, September 4–7, in Mildura.

Marchetti, Elena, and Kathleen Daly. 2007. Indigenous Sentencing Courts: Towards a Theoretical and Jurisprudential Model. *Sydney Law Review* 29 (3): 416–443.

Marchetti, Elena, and Kathleen Daly. 2012. Innovative Justice Processes. In *Crime and Justice: A Guide to Criminology*, eds. Marinella Marmo, Willem de Lint, and Darren Palmer, 455–481. Pyrmont: Thomson Reuters.

McAsey, Bridget. 2005. A Critical Evaluation of the Koori Court Division of the Victorian Magistrates' Court. *Deakin Law Review* 10 (2): 655–685.

Morgan, Anthony, and Erin Louis. 2010. *Evaluation of the Queensland Murri Court: Final Report*. Canberra: AIC.

Parker, Natalie, and Mark Pathé. 2006. *Report on the Review of the Murri Court*. Brisbane: Queensland Department of Justice and Attorney-General.

Potas, Ivan, Jane Smart, Georgia Brignell, Brendan Thomas, and Rowena Lawrie. 2003. *Circle Sentencing in New South Wales: A Review and Evaluation*. Sydney: Judicial Commission of NSW.

RCIADIC. 1991. *Royal Commission into Aboriginal Deaths in Custody: National Report*. Canberra: Australian Government.

Snowball, Lucy, and Don Weatherburn. 2006. *Indigenous Over-Representation in Prison: The Role of Offender Characteristics*. Sydney: BOCSAR.

Stobbs, Nigel, and Geraldine Mackenzie. 2009. Evaluating the Performance of Indigenous Sentencing Courts. *Australian Indigenous Law Review* 13 (2): 90–105.

Tomaino, John. 2004. *Information Bulletin: Aboriginal (Nunga) Courts*. Adelaide: Office of Crime Statistics and Research.

Author Biography

Elena Marchetti is a Professor in the Griffith Law School, Griffith University. She has received two prestigious ARC Fellowships and has published widely on specialty courts and intersectional race and gender analyses of legal processes. Her book *Indigenous Courts, Culture and Partner Violence* will be published in 2017.

26

Restorative Justice

Masahiro Suzuki and William Wood

What most people call restorative justice (RJ) today emerged in the late 1970s and 1980s out of a disparate and diverse set of critiques of, and alternatives to, traditional criminal justice practices in Australia, Canada, New Zealand, and the USA. There is a tendency to coalesce the development and growth of RJ into a single narrative. Its emergence was in fact decidedly less so. Rather, differing types of alternative justice practices were developed in different contexts and countries for different reasons, sharing less a single philosophy or even knowledge of other emerging practices than a shared focus on victim needs and lack of participation in the criminal justice system (Zehr 1990), problems with offender accountability and redress for victims of crime (Eglash 1977), and lack of community involvement or participation in criminal justice practices (Christie 1977).

Indeed, while New Zealand is often set forth in the literature as the first country to implement RJ systemically, none of the architects of the *Children, Young Persons, and Their Families Act 1989* (CYPFTA) had ever heard of RJ when they included Family Group Conferencing (FGC) as part of this Act (Doolan 2003). Rather, FGC was only part of a larger diversionary frame-

M. Suzuki (✉) · W. Wood
School of Criminology and Criminal Justice,
Griffith University, Brisbane, Australia
e-mail: masahiro.suzuki@griffithuni.edu.au

W. Wood
e-mail: w.wood@griffith.edu.au

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_26

work of the CYPFTA, such that its influence and notability as a 'restorative justice' paradigm was only retrospectively understood.

The history of RJ in New Zealand and Australia is far less concise and coherent as is often presented in the literature. In this chapter, we first look at some of the basic aspects of the emergence of RJ in these countries. Following these, we turn our attention to providing a current snapshot of RJ as it is used today in New Zealand and in different Australian states. We then consider some of the major studies conducted on RJ practices in Australia and New Zealand in relation to the RJ goals of victim redress, offender accountability, reintegration, and community involvement. Finally, we conclude with a discussion of possible future directions for research and practice in RJ in Australia and New Zealand.

Emergence and Development of Restorative Justice in New Zealand

In the 1980s, New Zealand experienced increasing rates of youth delinquency and incarceration, particularly among Māori youth. The CYPFTA was enacted to address these challenges and brought a number of new programmes into the New Zealand youth justice system. One of these programmes was FGC. In their initial inception, FGCs were not designed—as often claimed—to introduce the use of RJ into the youth justice system (Bradley et al. 2006). Rather, the development and implementation of FGC was twofold. It was intended to be used as a diversionary intervention for offenders in the youth justice system, as well as a care and protection strategy to be used in the child welfare system (MacRae and Zehr 2004).

In its use for youth offenders, FGC involves a face-to-face meeting that includes the victim, the offender, a trained facilitator, a police officer, and other possible participants such as victim's and offender's family members or supporters, or community members (Van Ness et al. 2001). Participants are first given opportunities to tell their own stories about the offence and to express their feelings about what has happened. Subsequently, participants discuss what the offender should do to repair the harm caused by the offence and compose an outcome plan which may include a verbal or written apology, restitution, community service, working for victims, counselling, etc. (Van Ness et al. 2001).

The FGC process for youth offending in New Zealand was, and remains, designed to work within a larger diversionary youth justice framework. Such a recognition does not detract from the importance of FGC in youth justice, but it is also not correct—as many have argued—to say that New Zealand's

youth justice system is based on RJ. Becroft (2009) notes that data from 2006, for example, found that for the approximately 30,000 youth offences in that year, only about 6% were subject to intention-to-charge FGC, with another 20% referred to Youth Court for possible referral to FGC. The large majority of youth cases received cautions or diversion.

In New Zealand, the implementation and use of conferencing for adult offenders has also developed significantly since the mid-1990s (NZ Ministry of Justice 2010). In 1995, three pilot schemes funded by the New Zealand government were implemented to divert adult offenders from courts through the use of restorative community panels (Bowen et al. 2012). Following on these pilot programmes, the use of RJ for adult offenders was expanded through legislation, including the *Sentencing Act 2002*, the *Parole Act 2002*, and the *Victims' Rights Act 2002* (NZ Ministry of Justice 2004). While RJ for adult offenders in New Zealand remains marginal compared to that for young offenders, RJ for adult offenders is, as of 2016, implemented in three stages of the New Zealand criminal justice system: pre-trial, pre-sentence, and post-sentence (Hughes 2016).

Emergence and Development of Restorative Justice in Australia

Following the inception of FGC in New Zealand, RJ youth conferencing was introduced in Wagga Wagga, NSW in 1991. Daly (2001) notes that, while the changes in the New Zealand youth justice system were influential in the initial adoption of conferencing in Australia, the manner in which conferencing was adopted differed in several ways from that found in New Zealand. FGC in New Zealand was endorsed both at the top-down level, for example, by officials and professional workers, and at the bottom-up level for example by some Māori advocates. In Australia, however, RJ was initiated at 'the mid-level administrators and professionals (including police)' (Daly 2001, 61–62). As such, unlike New Zealand where FGC was introduced as one of the diversionary strategies to reform the youth justice system, in Australia conferencing was introduced as a community policing and police cautioning strategy (Moore, Forsythe, and O'Connell 1995).

The differences between the models were more than administrative. First, as Daly and Hayes (2001) note, given the focus on community policing and cautioning, the Wagga Wagga model is facilitated by a police officer. Second,

the development of the Wagga Wagga model drew more explicitly upon the theory of reintegrative shaming put forward by John Braithwaite (1989).

Following the first implementation of conferencing in NSW, conferencing steadily evolved across other jurisdictions in Australia. South Australia was the first Australian jurisdiction that legislated conferencing for youth offenders in 1994. Subsequently, all Australian jurisdictions have legislated conferencing for youth offenders; Western Australia in 1995, Queensland in 1997, NSW in 1998; the Northern Territory in 1999; Tasmania in 2000, ACT in 2005, and Victoria in 2005 (Joudo-Larsen 2014).

As such, conferencing has become the dominant form of RJ in Australia. However, while the Wagga Wagga model was the first model of conferencing in Australia, it has not become the norm. Rather, most Australian jurisdictions introduced variations of the New Zealand model of conferencing (Daly 2001). Also, even though conferencing in Australia is mainly used as a diversionary strategy, there are jurisdictional differences in terms of its implementation, including offence types eligible for conferencing (Joudo-Larsen 2014) and length of time to complete the outcome plan (Daly and Marchetti 2012).

In contrast to New Zealand, Australia has shown a slower development in the application of RJ for adult offenders (Bolitho et al. 2012; Halsey et al. 2015). For example, while conferencing has been informally implemented or piloted for adult offenders in some jurisdictions (Strang 2001), conferencing for adult offenders was, as of 2014, only available in four jurisdictions, namely NSW, Victoria, South Australia, and Queensland (Joudo-Larsen 2014).

Research on Restorative Justice in Australia and New Zealand

The period of the last two decades has seen a significant growth in empirical research on RJ in Western countries, and Australia and New Zealand are no exceptions. Indeed, given RJ's relatively wide implementation and institutionalisation in Australia and New Zealand, these countries have produced a significant amount of research on the effects of RJ on victim redress, on offender accountability and reintegration, and on community involvement in RJ practices.

Victim Redress

As a consequence of crime, victims experience a variety of problems and needs. Victimology literature shows that one important need for victims is emotional restoration (Strang 2002). Since victim redress has been one of the primary goals of RJ since its inception (Zehr 1990), many studies have been conducted on how victims experience RJ or how RJ may or may not function to help victims to achieve a sense of redress or resolution. Some of the earlier and influential studies from New Zealand (Maxwell et al. 2004; Maxwell and Morris 1993) found that a majority of victims reported that attending a conferencing was a helpful experience for them. As with many studies of RJ in the 1980s and 1990s, however, this study did not involve a comparison group. Indeed, the lack of controlled comparisons was one of the primary drivers of one of the, to date, best-known studies on the use of RJ; the Reintegrative Shaming Experiment (RISE), which was conducted in Canberra. In RISE, property, violent, and drink driving offenders were randomly assigned either to court or conferencing. One goal of RISE was to examine the effect of conferencing and court proceedings on victims (Strang 2002). According to this study, victims in conferencing reported a greater sense of fairness, a higher restoration of feelings of security, and less fear than victims who went through the court process (Strang 2002). More recent studies in New Zealand, as well as a 10-year follow-up on RISE, have come to similar conclusions (NZ Ministry of Justice 2011b; Strang 2012).

Not all evaluative studies have found such marked differences in victim redress, however. The South Australia Juvenile Justice (SAJJ) project involved data collection on youth offenders and victims who participated in youth conferences (Daly et al. 1998). Unlike RISE, SAJJ did not involve a comparison group because its objective was to examine the difference *within* conferencing rather than differences between conferencing and court. The SAJJ findings suggested that, whereas a sense of procedural fairness was reported by most victims, a sense of 'restorativeness'—that is a mutual understanding between victims and offenders measured by indicators such as degree of young offenders' understanding of the impact of crime on victims and degree of victims' understanding of young offenders' situations—was only present in about 30% of conferences (Daly 2003). Moreover, the SAJJ project also found a significant gap in the perceived sincerity of apology between victims (30%) and offenders (60%). Based on the SAJJ findings, Daly (2002) thus noted that the oft-repeated 'nirvana story' regarding

differences between RJ and traditional youth justice practices was probably far more nuanced than previously reported.

Offender Accountability

Another aim of RJ is offender accountability, particularly towards victims, but also towards others that have been harmed or impacted (Braithwaite and Roche 2001). Research conducted by Maxwell et al. (2004) in New Zealand found that most offenders reported that they understood victims and felt sorry for their offending. Such findings are congruent with later findings from the RISE studies including a 10-year follow-up (Sherman and Strang 2015; Strang et al. 2011) where offenders who participated in conferencing were more likely to feel that their offending was wrong than those who appeared in court. Other studies also indicate that participating in RJ influenced offenders' behaviours post-conference, including high completion rates of agreement plans as well as sanctions such as community service (Maxwell et al. 2004; Maxwell and Morris 1993; Maxwell et al. 1999).

Reintegration and Reoffending

While victim redress and offender accountability are widely agreed-upon goals within RJ, the goal of reducing reoffending as a result of RJ interventions is more contested within the literature (Robinson and Shapland 2008). Reduced reoffending is nevertheless often set as a goal within administrative programme designs or aims such as the Victoria Department of Health and Human Services (2015).

Accordingly, several comparative studies between conferencing and other criminal justice approaches such as courts have been conducted in Australia and New Zealand to examine the effects of conferencing in reducing reoffending. These studies show mixed results. Along with cross-sectional studies conducted in Australia (Luke and Lind 2002; Vignaendra and Fitzgerald 2006), the findings of a longitudinal study conducted in New Zealand showed a reduction in reoffending through RJ (NZ Ministry of Justice 2011a). This study used a statistically matched control group of adult offenders who participated in conferencing to examine the long-term effect of conferencing on reoffending. It found that offenders who participated in conferencing were less likely to reoffend in the following 12 months than those who did not (NZ Ministry of Justice 2011a). Follow-up on these offenders over three years indicated a consistent outcome, although these

findings were not statistically significant (NZ Ministry of Justice 2014). However, other studies, primarily in Australia, have found no difference in reoffending (Jones 2009; Poynton 2013; Smith and Weatherburn 2012). Moreover, RISE showed that RJ was more effective in reducing reoffending among violent offenders than property offenders (Sherman et al. 2000).

The question of reoffending in Australia and New Zealand also brings up pointed problems related to arguments that RJ reflects aspects of Indigenous—particularly Māori—justice practices. Claims that FGC in New Zealand was based on Māori justice have been roundly criticised (Bradley et al. 2006; Daly 2002), and research from both Australia and New Zealand has problematized the notion that RJ may be more useful or effective for Indigenous offenders than standard Western youth or criminal justice practices (Blagg 1997; Moyle and Tauri 2016). Similar to reoffending in other groups of offenders, studies on recidivism among Indigenous offenders show mixed outcomes. Recently, the NZ Ministry of Justice conducted research on reoffending through RJ using a statistically matched comparison group (NZ Ministry of Justice n.d.). This study showed, among other things, that RJ has been effective in reducing reoffending among Māori offenders during a three-year follow-up period. However, based on RISE research, Strang and Sherman (2015) suggest that RJ may not be effective in reducing recidivism for Aboriginal offenders, although they cautioned that such outcomes may be attributed to the lack of statistical power because the sample size of Aboriginal offenders was small. This question thus warrants further research.

Community Involvement

As Christie (1977) argues, community involvement is an important feature of RJ to empower participants and the community itself. While, to our knowledge, there is less research on this aspect of RJ in Australia and New Zealand, available evidence—particularly in regard to RJ for Indigenous offenders—shows that both Indigenous participants and Indigenous Elders have reported the importance of community involvement (Cultural and Indigenous Research Centre 2008; Potas et al. 2003). However, in relation to the involvement of Indigenous communities in RJ, several caveats or problems have been raised, in particular, the suitability or effectiveness of RJ for Australian Aboriginal peoples. Cunneen (1997) argues that RJ has been established without adequate consultation with Indigenous communities and organisations despite the fact that they have different understandings of crime and justice. Blagg (1998) has similarly voiced concern that RJ may function

to recolonise Indigenous peoples through lack of attention to cultural differences and lack of attention to autonomy and self-determination.

Recent research on community involvement conducted by Rossner and Bruce (2016) shows another potential challenge in relation to community involvement. Their study of pre-sentencing RJ for adult offenders in NSW suggests that community involvement may sometimes hinder the RJ process, as many community members are 'repeat players', who attend several conferences without being briefed or oriented towards restorative goals and thus disrupt the RJ process.

Further Directions for Research and Practice in Restorative Justice

Despite the growth of empirical literature on RJ internationally, much remains unknown about when and how RJ works (Saulnier and Sivasubramaniam 2015). This may be partly because most of the extant empirical studies on RJ are outcome-oriented, seeking to ascertain effectiveness over conventional justice approaches. There are fewer studies to date focussed on the question of determining the conditions and interactions under which RJ is successful.

Further studies are needed to ascertain two distinct sets of questions. The first set of questions involves investigation of what aspects of conferencing or other RJ processes are in turn related to particular restorative outcomes. It is not yet well understood how important each aspect of the conferencing process—preparation, conference, and follow-up—is in terms of conferencing outcomes for participants (Suzuki and Wood 2017b). For example, does better preparation, all other things being equal, lead to markedly better conferencing outcomes? Such research will need to examine the entire conferencing process more closely including *before, during,* and *after* conferencing, as participants' attitudes and perceptions can change not only during the face-to-face dialogue but also through preparation and follow-up support or outcomes (Suzuki and Wood 2017b).

The second set of questions involves investigation of the interactions and dynamics of conferencing. Conferencing is a complex process, as interactions and dynamics of the process in each case can be distinct (Harris et al. 2004). For example, while some conferencing may involve active verbal and non-verbal communication, other conferencing may not (Rossner et al. 2013). To capture such dynamics *within* the process, in-depth analysis on the

RJ process is necessary. Particularly, examining the views of participants and observing what is happening in the process is crucial to understanding 'how' RJ works in terms of the interactional dynamics between participants (Hayes 2006).

Restorative justice faces other challenges in Australia and New Zealand in the near future. In particular, the institutionalisation of RJ within youth and criminal justice systems has been essential to its continued expansion (Suzuki and Wood 2017a). At the same time, this institutionalisation has not infrequently resulted in the administrative redirection or co-option of RJ programmes or practices for other goals (Suzuki and Wood 2017a; Wood and Suzuki 2016). For example, some research has found that RJ programmes tend to become offender-focussed, leading to poor experiences for victims (Morris and Maxwell 1997; Strang 2002). Other research has found problems related to poor referral and inadequate explanation of RJ processes (People and Trimboli 2007; Stewart and Smith 2004; Suzuki and Wood 2017a). Existing research suggests that RJ faces similar problems in other countries (Choi et al. 2013; Zernova 2007). As such, a primary focus for RJ in the near future must be on how to reconcile RJ ideals with its institutionalisation in ways that can better meet the needs of participants while continuing to expand in its institutional capacities within criminal and youth justice systems.

A second problem facing RJ is its uncertain relationship and benefits for Indigenous peoples. This is particularly problematic given the overrepresentation of Indigenous peoples in Australia and New Zealand in all aspects of the criminal justice system. This is a problem that has been recognised by virtually all leading RJ scholars in both countries, but with little consensus as to either the role that RJ can or *should* play in terms of such stratification, as well as the degree to which it may make things better or worse for Indigenous victims and offenders. RJ literature in the 1980s and 1990s was often naïve and unrealistic or uninformed regarding the 'indigeneity' of RJ practices such as FGC in New Zealand. Since this time, such claims have been muted in response to criticism, but what has not happened is the development of any clearer picture of whether or not RJ works better than traditional criminal justice practices in terms of victim redress, offender accountability, or reintegration, and—importantly—community involvement or ownership of justice practices. Given the claims of some RJ proponents, and considering the scope of its use in Australia and New Zealand, it is problematic that so few rigorous empirical studies exist on these questions.

Conclusion

In this chapter, we have looked at the development, implementation, and evaluation of RJ in Australia and New Zealand. The origins of RJ in Australia and New Zealand are different, and both countries have experienced distinct courses of development. Although evaluations of RJ in Australia and New Zealand to date show that RJ contributes in particular to victim redress and offender accountability, several studies also challenge its effectiveness in terms of reducing reoffending. Restorative justice also faces challenges in terms of its increasing institutionalisation and potential co-option, as well as continued questions regarding its ability to work effectively for Indigenous victims and offenders, and within these communities. Nevertheless, it is also the case that RJ has made significant transformations of youth and criminal justice practices in Australia and New Zealand since its implementation in these countries, particularly in terms of victim involvement and redress, and in this regard both countries have been at the forefront of the development and widespread use of RJ in the last three decades. Whether this remains, and indeed whether RJ can confront its current challenges effectively in Australia and New Zealand, is less certain.

References

Becroft, Andrew. 2009. Are there Lessons to Be Learned from the Youth Justice System. Addressing the Causes of Offending: What Is the Evidence? Paper presented at New Zealand Youth Justice Conference, February 26, in Wellington.

Blagg, Harry. 1997. A Just Measure of Shame? Aboriginal Youth and Conferencing in Australia. *British Journal of Criminology* 37 (4): 481–501.

Blagg, Harry. 1998. Restorative Visions and Restorative Justice Practices: Conferencing, Ceremony and Reconciliation in Australia. *Current Issues Criminal Justice* 10 (1): 5–14.

Bolitho, Jane, Jasmine Bruce, and Gail Mason (eds.). 2012. *Restorative Justice: Adults and Emerging Practice*. Sydney: Federation Press.

Bowen, Helen, Jim Boyack, and Janet Calder-Watson. 2012. Recent Developments within Restorative Justice in Aotearoa/New Zealand. In *Restorative Justice: Adults and Emerging Practice*, eds. Jane Bolitho, Jasmine Bruce, and Gail Mason, 121–141. Sydney: Federation Press.

Bradley, Trevor, Juan Tauri, and Reece Walters. 2006. Demythologising Youth Justice in Aotearoa/New Zealand. In *Comparative Youth Justice: Critical Issues*, eds. John Muncie, and Barry Goldson, 79–95. London: Sage.

Braithwaite, John. 1989. *Crime, Shame and Reintegration*. Cambridge: Cambridge University Press.

Braithwaite, John, and Declan Roche. 2001. Responsibility and Restorative Justice. In *Restorative Community Justice: Repairing Harm and Tranforming Communities*, eds. Gordon Bazemore, and Mara Schiff, 63–84. Cincinnati, OH: Anderson Publishing.

Choi, Jung Jin, Michael J. Gilbert, and Diane L. Green. 2013. Patterns of Victim Marginalization in Victim-Offender Mediation: Some Lessons Learned. *Crime, Law and Social Change* 59 (1): 113–132.

Christie, Nils. 1977. Conflicts as Property. *British Journal of Criminology* 17 (1): 1–15.

Cultural and Indigenous Research Centre. 2008. *NSW Attorney General's Department Evaluation of Circle Sentencing Program-Report*. Sydney: Cultural and Indigenous Research Centre.

Cunneen, Chris. 1997. Community Conferencing and the Fiction of Indigenous Control. *Australian and New Zealand Journal of Criminology* 30 (3): 292–311.

Daly, Kathleen. 2001. Conferencing in Australia and New Zealand: Variations, Research Findings and Prospects. In *Restorative Justice for Juveniles: Conferencing, Mediation and Circles*, eds. Allison Morris, and Gabrielle Maxwell, 59–84. Oxford: Hart Publishing.

Daly, Kathleen. 2002. Restorative Justice: The Real Story. *Punishment and Society* 4 (1): 55–79.

Daly, Kathleen. 2003. Mind the Gap: Restorative Justice in Theory and Practice. In *Restorative Justice and Criminal Justice: Competing or Reconcilable Paradigms?*, eds. Andrew von Hirsch, Julian Roberts, Anthony E. Bottoms, Kent Roach, and Mara Schiff, 219–237. Portland, OR: Hart Publishing.

Daly, Kathleen, and Hennessey Hayes. 2001. *Restorative Justice and Conferencing in Australia*. Canberra: AIC.

Daly, Kathleen, and Elena Marchetti. 2012. Innovative Justice Processes. In *Crime and Justice: A Guide to Criminology*, eds. Marinella Marmo, Willem de Lint, and Darren Palmer, 455–482. Sydney: Lawbook.

Daly, Kathleen, Michele Venables, Mary McKenna, Liz Mumford, and Jane Christie-Johnstone. 1998. *South Australia Juvenile Justice Research on Conferencing Technical Report No. 1: Project Overview and Research Instruments*. Brisbane: Griffith University.

Doolan, Mike. 2003. Restorative Practices and Family Empowerment: Both/and or Either/Or? *Court in the Act Newsletter* 21: 12–14.

Eglash, Albert. 1977. Beyond Restitution: Creative Restitution. In *Restitution in Criminal Justice: A Critical Assessment of Sanctions*, eds. Joe Hudson, and Burt Galaway, 91–100. Lexington, MA: DC Health and Company.

Halsey, Mark, Andrew Goldsmith, and David Bamford. 2015. Achieving Restorative Justice: Assessing Contrition and Forgiveness in the Adult Conference Process. *Australian and New Zealand Journal of Criminology* 48 (4): 483–497.

Harris, Nathan, Lode Walgrave, and John Braithwaite. 2004. Emotional Dynamics in Restorative Conferences. *Theoretical Criminology* 8 (2): 191–210.

Hayes, Hennessey. 2006. Apologies and Accounts in Youth Justice Conferencing: Reinterpreting Research Outcomes. *Contemporary Justice Review* 9 (4): 369–385.

Hughes, Tim. 2016. *Restorative Justice: Investment Brief*. Wellington: New Zealand Government.

Jones, Craig. 2009. Does Forum Sentencing Reduce Re-Offending? *Crime and Justice Bulletin* 129: 1–16.

Joudo-Larsen, Jacqueline. 2014. *Restorative Justice in the Australian Criminal Justice System*. Canberra: AIC.

Luke, Garth, and Bronwyn Lind. 2002. Reducing Juvenile Crime: Conferencing Versus Court. *Contemporary Issues Crime and Justice* 69: 1–19.

MacRae, Allan, and Howard Zehr. 2004. *The Little Book of Family Group Conferences: New Zealand Style*. Intercourse, PA: Good Books.

Maxwell, Gabrielle, Venezia Kingi, Jeremy Robertson, Allison Morris, Chris Cunningham, and Barb Lash. 2004. *Achieving Effective Outcomes in Youth Justice Final Report*. Wellington: NZ Ministry of Social Development.

Maxwell, Gabrielle, and Allison Morris. 1993. *Family, Victims and Culture: Youth Justice in New Zealand*. Wellington: VUW.

Maxwell, Gabrielle, Allison Morris, and Tracy Anderson. 1999. *Community Panel Adult Pre-Trial Diversion: Supplementary Evaluation*. Wellington: VUW.

Moore, David B., Lubica Forsythe, and Terry O'Connell. 1995. *A New Approach to Juvenile Justice: An Evaluation of Family Conferencing in Wagga Wagga*. Wagga Wagga: Charles Sturt University.

Morris, Allison, and Gabrielle Maxwell. 1997. Re-Forming Juvenile Justice: The New Zealand Experiment. *The Prison Journal* 77 (2): 125–134.

Moyle, Paora, and Juan Tauri. 2016. Māori, Family Group Conferencing and the Mystifications of Restorative Justice. *Victims and Offenders* 11 (1): 87–106.

NZ Ministry of Justice. 2004. *Restorative Justice: Best Practice in New Zealand*. Wellington: NZ Ministry of Justice.

NZ Ministry of Justice. 2010. *Restorative Justice in New Zealand*. Wellington: NZ Ministry of Justice.

NZ Ministry of Justice. 2011a. *Re-Offending Analysis for Restorative Justice Cases: 2008 and 2009*. Wellington: NZ Ministry of Justice.

NZ Ministry of Justice. 2011b. *Victim Satisfaction with Restorative Justice: A Summary of Findings*. Wellington: NZ Ministry of Justice.

NZ Ministry of Justice. 2014. *Reoffending Analysis for Restorative Justice Cases 2008–2011*. Wellington: NZ Ministry of Justice.

NZ Ministry of Justice. n.d. *Reoffending Analysis for Restorative Justice Cases 2008–2013: Summary Results*. Wellington: NZ Ministry of Justice.

People, Julie, and Lily Trimboli. 2007. *An Evaluation of the NSW Community Conferencing for Young Adults Pilot Program*. Sydney: BOCSAR.

Potas, Ivan, Jane Smart, Georgia Brignell, Brendan Thomas, and Rowena Lawrie. 2003. *Circle Sentencing in New South Wales: A Review and Evaluation*. Sydney: Judicial Commission of NSW.

Poynton, Suzanne. 2013. Rates of Recidivism among Offenders Referred to Forum Sentencing. *Contemporary Issues Crime and Justice* 172: 1–14.

Robinson, Gwen, and Joanna Shapland. 2008. Reducing Recidivism: A Task for Restorative Justice? *British Journal of Criminology* 48 (3): 337–358.

Rossner, Meredith, and Jasmine Bruce. 2016. Community Participation in Restorative Justice: Rituals, Reintegration, and Quasi-Professionalization. *Victims and Offenders* 11 (1): 107–125.

Rossner, Meredith, Jasmine Bruce, and Mythily Meher. 2013. *The Process and Dynamics of Restorative Justice: Research on Forum Sentencing*. Sydney: University of Western Sydney.

Saulnier, Alana, and Diane Sivasubramaniam. 2015. "Restorative Justice: Underlying Mechanisms and Future Directions". *New Criminal Law Review* 18 (4): 510–536.

Sherman, Lawrence W., and Heather Strang. 2015. Restorative Justice as a Psychological Treatment: Healing Victims, Reintegrating Offenders. In *Forensic Psychology*, eds. Davi A. Crighton, and Graham J. Towl, 385–402. West Sussex: John Wiley.

Sherman, Lawrence W., Heather Strang, and Daniel J. Woods. 2000. *Recidivism Patterns in the Canberra Reintegrative Shaming Experiments (RISE)*. Canberra: AIC.

Smith, Nadine, and Don Weatherburn. 2012. "Youth Justice Conferences versus Children's Court: A Comparison of Re-Offending". Contemporary Issues. *Crime and Justice* 160: 1–23.

Stewart, Anna Louise, and Frances Smith. 2004. Youth Justice Conferencing and Police Referrals: The Gatekeeping Role of Police in Queensland, Australia. *Journal of Criminal Justice* 32 (4): 345–357.

Strang, Heather. 2001. *Restorative Justice Programs in Australia: A Report to the Criminology Research Council*. Canberra: CRC.

Strang, Heather. 2002. *Repair or Revenge: Victims and Restorative Justice*. Oxford: Clarendon Press.

Strang, Heather. 2012. Conferencing and Victims. In *Conferencing and Restorative Justice: International Practices and Perspectives*, eds. Estella Zinsstag, and Inge Vangraechem, 83–98. Oxford: Oxford University Press.

Strang, Heather, and Lawrence Sherman. 2015. The Morality of Evidence: The Second Annual Lecture for Restorative Justice, an International Journal. *Restorative Justice* 3 (1): 6–27.

Strang, Heather, Lawrence W. Sherman, Daniel Woods, and Geoffrey C. Barnes. 2011. *Experiments in Restorative Policing: Final Report on the Canberra Reintegrative Shaming Experiments (RISE)*. Canberra: AIC.

Suzuki, Masahiro, and William R. Wood. 2017a. Co-option, Coercion and Compromise: Challenges of Restorative Justice in Victoria, Australia. *Contemporary Justice Review* 20 (2): 274–292.

Suzuki, Masahiro, and William R. Wood. 2017b. Restorative Justice Conferencing as a 'Holistic' Process: Convenor Perspectives. *Current Issues in Criminal Justice* 28 (3): 277–292.

Van Ness, Daniel, Allison Morris, and Gabrielle Maxwell. 2001. Introducing Restorative Justice. In *Restorative Justice for Juveniles: Conferencing, Mediation and Circles*, eds. Allison Morris, and Gabrielle Maxwell, 3–16. Oxford: Hart Publishing.

Victoria Department of Health and Human Services. 2015. *Youth Justice Group Conferencing: Factsheet*. Melbourne: State of Victoria.

Vignaendra, Sumitra, and Jacqueline Fitzgerald. 2006. Reoffending among Young People Cautioned by Police or Who Participated in a Youth Justice Conference. *Crime and Justice Bulletin* 103: 1–15.

Wood, William R., and Masahiro Suzuki. 2016. Four Challenges in the Future of Restorative Justice. *Victims and Offenders* 11 (1): 149–172.

Zehr, Howard. 1990. *Changing Lenses: A New Focus for Crime and Justice*. Scottdale, PA: Herald Press.

Zernova, Margarita. 2007. *Restorative Justice: Ideals and Realities*. Aldershot: Ashgate Publishing.

Author Biographies

Masahiro Suzuki is a doctoral candidate at the School of Criminology and Criminal Justice, Griffith University, Brisbane, Australia. His PhD research aims to examine the mechanism of how restorative justice conferencing works, particularly focussing on how participants' readiness affects interactional dynamics of the conferencing process.

William Wood holds a PhD in Sociology from Boston College. He is currently Senior Lecturer at the School of Criminology and Criminal Justice, Griffith University. William has researched and published in areas of restorative justice, youth justice, corrections, and crime and media.

27

Emotion and Language in Restorative Youth Justice

Hennessey Hayes

Chapter 26 of this volume by Masahiro Suzuki and William Wood reviews the development of restorative justice in Australia and New Zealand in both the youth justice and criminal justice contexts. The chapter reviews, in particular, contemporary research around meeting the stated aims of restorative justice, namely holding offenders accountable, reparation, and restoration and meeting victims' needs. In this chapter, I return to a focus on restorative justice but shift attention specifically to its use in the youth justice context and explore the extent to which the language proficiency of young offenders can impact on restorative justice aims and goals.

I first briefly sketch the development of restorative justice in Australia and then turn to developments in Queensland in more detail. Next, I move to a discussion of the ways emotion and oral language competence feature in youth justice before considering how they feature in youth justice conferences. I conclude with some remarks about how restorative justice interventions could be enhanced to improve experiences of young offenders, their victims, and other participants.

H. Hayes (✉)
School of Criminology and Criminal Justice, Griffith University, Brisbane, Australia
e-mail: h.hayes@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_27

Restorative Justice in Australia

Restorative justice responses to youthful offending appeared in Australia more than two decades ago, first being trialled in Wagga Wagga, NSW, in 1991. The first legislated restorative justice scheme appeared in South Australia in 1994 (Daly and Hayes 2002). Since the mid-2000s all Australian states and territories have had legislation in place to guide restorative justice practice in youth justice. Most jurisdictions have adopted the 'New Zealand model', where civilian staff facilitate the conference process. However, Northern Territory, Tasmania, and ACT have adopted dual models where both civilian staff and police facilitate conferences (Maxwell and Hayes 2006).

What is restorative justice? The most cited definition of restorative justice was offered by Marshall (1999, 5) who described it as "a process whereby parties with a stake in a specific offence collectively resolve how to deal with the aftermath of the offence and its implications for the future". As this definition suggests, restorative justice processes take on many and varied forms. Looking across international jurisdictions, we see that restorative justice includes such practices as sentencing circles and victim-offender mediation in North America and the UK, and conferencing in New Zealand and Australia (Raye and Roberts 2007).

In Australia, restorative justice takes the form of youth justice conferencing and is principally reserved for young offenders. However, some jurisdictions are using conferencing in response to some forms of adult offending (Halsey et al. 2015). For example, in NSW, a local court may refer eligible adult offenders to forum sentencing, where offenders, victims, supporters, and police discuss the offence and its impact, as well as what the offender can do to repair harms (Hart and Pirc 2012). In addition, the Restorative Justice Unit of the NSW Corrective Services runs post-sentence victim-offender conferences for adult offenders (Milner 2012).

What does restorative justice look like? Youth justice conferences typically progress through three phases: introduction, storytelling, and agreement negotiation. The conference convener or facilitator opens the conference with general introductions, a summary of what the conference is meant to achieve, and what participants are expected to do. Next, the young person is asked to account for their offending behaviour. In telling their story, young offenders are asked to relate how they became involved in the offence, and what they were thinking and feeling at the time. It is expected that the young person will acknowledge the harm that they have caused the victim. Indeed, young offenders have to admit to the offending to become eligible for referral to a youth justice conference.

Victims are then asked to describe how the offence has affected them. For example, victims often highlight how the offence has affected them emotionally, physically, and materially. Supporters such as parents of young offenders and partners of adult victims then offer additional comments. Thereafter, convenors return to the young person and ask how the victim's story makes them feel. It is at this point that young offenders often admit that the victim's story helped them to appreciate the full impact of their behaviour. Furthermore, some offenders at this point offer apologies to their victims.

The conference concludes with a discussion of what the young person can do to make up for the offending; to repair the harms they have caused. Convenors first ask the victim to offer suggestions before turning to the young offender. These suggestions are then discussed amongst all participants with the aim of arriving at a consensus about what the young person will do to complete the agreement or outcome plan. Common agreements include a verbal or written apology or both, a commitment not to reoffend, work for the victim or the community, or monetary restitution (Hayes 2006).

The above describes the ideal conference. That is, young offenders deliver effective and emotional accounts of their wrongdoing; they listen to and are impacted by victims' stories; they show genuine remorse through their actions and through words by offering sincere heartfelt apologies. Victims may be moved by young offenders' stories, they accept offenders' apologies, and they may offer forgiveness. However, many youth justice conferences do not achieve these ideal aims. There is a substantial gap between what conferences aim to achieve and what they achieve in practice (Daly 2002). Many conferences may be described as 'good', where there is a mutual feeling of goodwill between offenders and victims as well as reconciliation and reparation. However, a number of conferences never achieve these ideal aims. Offenders may remain belligerent and unapologetic, and victims may remain angry and unmoved by offenders' stories. In addition, there are times when restorative dialogue may move from shaming that reintegrates to shaming that censures and stigmatises (Hayes 2006).

Conversation and Emotion in Youth Justice Conferences

The description of a conference in the preceding section draws attention to the conversational nature of the conference process. Young offenders are required to tell a story about the offence, which includes details of what they

were thinking and how they were feeling before, during, and after the offending. Thus, youth justice conferences are often emotionally charged encounters. Victims, offenders, and supporters often experience a wide range of emotions, which may include negative emotions, such as fear, embarrassment, anger, betrayal, resentment, guilt, and shame. They also may experience more positive emotions, such as pride, hopefulness, and goodwill. Emotional states are often more negative in the early stages of the conference process but become more positive as the conferences progresses. For example, offenders may come to conferences feeling fearful and apprehensive about meeting victims—who most often are unknown to them—and having to tell their story about the offence. However, after having told their stories and after listening to their victims' stories, they may then feel guilt and shame—that is, shame that reintegrates—and develop sincere remorse, which may trigger the offering of sincere apologies. Finally, after negotiating ways of repairing harms they have caused, offenders may feel a sense of pride and accomplishment, as well as hopefulness for the future. In addition, victims may arrive at conferences fearful of offenders or angry with them, ashamed and guilty about the victimisation, and worried about future harms. However, as the conference progresses and they have heard offenders' stories, they may regain a sense of personal security, their anger may diminish through gestures of forgiveness, and they may begin to develop a more hopeful view of the offenders.

For these emotional states to be expressed and observed, young offenders must effectively engage in a conversation about their wrongdoing and about ways of repairing harms they have caused. As such, restorative justice processes draw heavily on the oral language abilities, that is, the everyday talking and listening skills of all parties, most notably those of young offenders, who need to listen to complex and emotionally charged accounts of the victims' perspectives and formulate their own ideas into coherent narratives that are judged to be adequate and authentic by victims and other participants in the conference (Hayes and Snow 2013).

The Importance of Oral Language Competence

Oral language competence (OLC) refers to the complex reciprocal process of sending and receiving information through listening and speaking. It encompasses the ability to process the spoken language of others, that is, to understand words, and the ways in which these are connected grammatically to convey a range of meanings. The meaning behind a speaker's language ranges from concrete and literal to abstract and sometimes subtly nuanced,

with accurate interpretation relying on social inferencing, as well as language skills. Competent language users also need to be able to draw on their own vocabulary and knowledge of grammar and social conventions to formulate their own ideas, narratives, wishes, and intentions into spoken language that can be understood by others.

OLC plays an important role in helping us to form and maintain social relationships (Snow 2009). Research has shown that as early as the primary school years, children who have language deficits but no other developmental or behavioural difficulties are rated as performing below their peers on impulse control, likeability, and prosocial behaviour (Fujiki et al. 1999). OLC also plays an important role in children's transition to literacy in the early school years. Children who enter schooling with well-developed expressive and receptive language skills will more effectively make the transition to the more unnatural medium of reading and writing. Many young people fail to make this transition in the first three years of schooling, which can result in early disengagement with education and the development of social marginalisation and antisocial behaviour. Such children are typically identified at school as a consequence of these behavioural difficulties, with underlying language and learning deficits remaining undiagnosed (Cohen 2001). Furthermore, these young people are overrepresented in youth justice statistics (Snow and Powell 2008, 2011).

The Importance of Oral Language Competence in the Restorative Justice Process

The description of the youth justice conferencing process above suggests that restorative justice processes are highly conversational and require young offenders to give coherent accounts of their wrongdoing, as well as process and understand emotional information conveyed verbally and non-verbally by victims. However, some research suggests that approximately 50 per cent of young people in the youth justice system have a clinically significant but undiagnosed language deficit (Snow and Powell 2011). Such young people experience difficulty in effectively expressing emotion and may even display *alexithymia:* a lack of emotion words (Hayes and Snow 2013). These difficulties can manifest in behaviours—such as poor eye contact, short verbal responses, and shoulder shrugs—which are likely to be interpreted by victims and other conference participants as disengagement, disinterest, or disrespect. For example, a recent study in NSW suggests that the majority of young

offenders in youth justice conferences were not able to deliver effective accounts of their wrongdoing. Bolitho (2012, 69) observed a number of youth justice conferences and noted the following: "A reality for conferencing for young offenders may be that stories are relatively impoverished in terms of detail. It may well be that the storytelling process is challenging for young offenders in an environment they may find intimidating and frightening; a victim is present, the process is court-sanctioned, and the room is filled with adults. It is also possible that young offenders have had little experience telling their stories to those that care."

Coupled with the knowledge that approximately half of young offenders in NSW suffer language deficits, this finding may suggest that many young offenders in restorative justice processes have language challenges and thus are not able to deliver effective stories or effectively describe various emotional states.

The Importance of Apology and Its Effective Delivery

Other research on restorative justice processes has shown that the most important outcome for victims of crime is the offer of a sincere apology (Strang 2002). In addition, victims who participate in a restorative justice process are more likely to recover from the negative effects of victimisation, such as a reduction in fear of the offender, reduced fear of re-victimisation, and a reduction in anger at the offender (Strang et al. 2006). These findings highlight the importance of apology for victims of crime and the need for young offenders to deliver apologies effectively, that is, to express sorrow and regret effectively through actions and words. When young offenders are unable to do this, it may be that victims remain fearful or angry with offenders; they may grow dissatisfied with the restorative justice process, and they may be less likely to fully recover from the effects of crime.

Thus, apologies are important to victims and are "seen as central to the process of restoration" (Strang and Sherman 2003, 28) and can assist both victims and offenders in recovering from the effects of crime. Forgiveness also is important. Through receiving and accepting a sincere apology and offering forgiveness, victims may move closer to emotional restoration (Strang and Sherman 2003). Nevertheless, apologies are not common in restorative justice conferences. Daly (2002) observed a number of conferences in South Australia and reported that offenders offered apologies in only 40 per cent of

cases, another third of offenders had to be urged to apologise, and a final (approximate) third offered no apologies to their victims at all. Furthermore, only 27 per cent of victims in this study believed the offender was truly sorry for what he/she had done regardless of what had been offered.

Similar findings are offered by Dhami (2012). She conducted a content analysis of the records of 57 victim-offender mediation sessions that took place between 2008 and 2010 at a UK mediation centre. Nearly 90 per cent of the offenders in these mediations were adults, yet only 36 per cent of offenders offered apologies to their victims (Dhami 2012). This shows that even adult offenders have difficulty in communicating apology or are not apologetic in restorative justice processes. Indeed, to express and communicate sorrow and remorse can be challenging, especially for those with compromised language abilities. Tavuchis' (1991) sociological analysis of the apology suggests that the act of apology and the social interaction of apologising are not facile. In fact, they are exacting moral exercises. To offer a genuine apology requires a substantial amount of emotional energy and resolve. "If the goal of apology is ultimately forgiveness as a prelude to reunion and reconciliation, then we must convince the other of our worthiness. A difficult and delicate undertaking even when the transgression is minor, it is especially onerous when the violation is deemed to be grave. The task demands close attention to the mode of expression and is complicated further by our defencelessness, and fear of rejection" (22). Tavuchis' analysis highlights again the fragile nature of apologising and the importance of effective communication. Young offenders with language deficits are likely unable to effectively express regret and sorrow and convince their victims of their worthiness.

An Illustration of Potential Language Challenges

As a way of exploring the potential difficulties young offenders experience in youth justice conferences, I return to some narrative data I collected for a qualitative project on restorative justice and reoffending, that is the Restorative Justice and Reoffending (RJR) project (Hayes et al. 2011). These data were collected from a number of young offenders who attended a youth justice conference in south-east Queensland between 2005 and 2006, and they are useful in illustrating the potential difficulties some young offenders face in restorative justice processes.

The RJR project is a programme of qualitative research, which aims to learn how young people know and understand restorative justice interventions and

how this knowledge may relate to post-intervention behaviour. Offender-focussed observational data were gathered from 68 young offenders attending 48 youth justice conferences. Additional in-depth interview data were gathered from 50 of these offenders. The interviews were conducted approximately one week following each conference to allow time for post-conference emotional states to settle (Hayes et al. 1998). The observations focussed on young offenders' behaviour during the conference as well as their verbal and non-verbal communication. The interviews explored how young offenders felt about various aspects of their conferences.

Within 24 hours following a conference, observers audio-recorded a monologue and recounted with as much detail as possible exactly what occurred during the conference. Details included how the young offenders presented at the conference, how they behaved and how they communicated, both verbally and non-verbally. These recordings were transcribed, and the transcriptions were used to complete a detailed systematic conference observation protocol.

The following is an excerpt from an observation monologue (RJR case 005a-c). It illustrates how challenging some young offenders may find having to give an effective description of the circumstances surrounding their offending. "My general observation with the storytelling phase was that [the conference convenor] had to suggest or assist these young people in telling their story. These three young male offenders appeared rather inarticulate. Lots of one word or one sentence answers and at times found it difficult to formulate an answer to questions about intent, about circumstances, about feelings, what was going through their mind at the time. A lot of answers were 'I don't know', 'I wasn't thinking' etc. and [conference convenor] would suggest possible responses to which the young people would agree."

An aim of the in-depth interviews with the young offenders in the RJR project was to determine the extent to which the things young offenders said and did during their youth justice conference reflected what they were feeling and thinking. Below are excerpts from the interview transcripts of offenders 005a and 005b in the conference observed and described above.[1] These brief narratives illustrate the limited skills some young offenders have in communicating emotions and feelings, and they are consistent with the suggestion that some young offenders are challenged by the communication demands they faced during conferences (see Figs. 27.1 and 27.2).

The excerpts above illustrate the lack of facility some young offenders have with oral communication, as well as the difficulties they have in identifying and describing their emotions—whether their own or those of others—in ways that may well be indicative of *alexithymia*. For example, when asked how

Interviewer:	Alright. What did it feel like, actually walking into a room with that many people?
005a:	***I don't know really***. Just looked in, saw them.
Interviewer:	Yeah. Okay, before you spoke how did you feel at that point?
005a:	Well, actually I was pretty scared.
Interviewer:	Okay. Alright, we'll move on from that, okay. When the victim told their story, how did it make you feel?
005a:	A little bit better. Relieved. ***Something like that***.
Interviewer:	So you can't really remember what she said but you know you felt upset by it. Okay. Did (you) want your mum to attend?
005a:	Yeah.
Interviewer:	You agreed with it? Sounds like it was hard to hear.
005a:	Yeah.
Interviewer:	Because it upset you?
005a:	Yeah.
Interviewer:	But you agreed with it?
005a:	Uhuh.
Interviewer:	So did you ever see that the victim react to what your mum was saying? Or…
005a:	No.
Interviewer:	Who were you looking at when your mum was talking?
005a:	***I was talking at my feet at the time***.
Interviewer:	At your feet. So when you look at your feet how are you normally feeling?
005a:	Well I was upset so I was looking at my feet and sort of trying not to cry.
Interviewer:	That's very honest. Thank you. I know that it is hard to talk about that stuff. Isn't it?
005a:	Not for me it isn't.

Fig. 27.1 Restorative Justice and Reoffending Project Case 005a

he felt when he walked into the room with the other conference participants, 005a answered, "I don't know really". Likewise, 005b answered the same when asked how meeting the victim made him feel. Finally, when asked how hearing the victim's story made him feel, 005b replied, "No, I don't know".

The often one word or few word answers to questions they were asked during their interviews highlight the difficulty some young offenders may have with oral communication. This was also described by researchers conducting fieldwork with young offenders (Dywer and Hayes 2011), who

Interviewer:	What about, how did you feel about meeting the victim and other people there?
005b:	Pretty sad meeting the victim.
Interviewer:	Why were you sad meeting them?
005b:	Cause he wanted to find out who actually did the thing and no one told him.
Interviewer:	How did you feel about you having to meet him [the victim]?
005b:	***I don't know really***.
Interviewer:	Okay. And at the beginning [of the conference], how were you feeling?
005b:	Normal.
Interviewer:	Didn't feel anything?
005b:	No.
Interviewer:	So can you tell me about the victim's story and how it made it you feel?
005b:	***No, I don't know***.
Interviewer:	Don't know? Didn't it make you feel anything when they were talking?
005b:	Oh, made me feel sad for him. So he had to spend a lot of money.
Interviewer:	Okay. So you felt sad for him? Did you agree with their story?
005b:	Yes.
Interviewer:	Yeah? Okay. How did you feel after hearing everyone's stories?
005b:	***I'm not sure.***

Fig. 27.2 Restorative Justice and Reoffending Project Case 005b

described young offenders' responses to interview questions as "the grunt", that is non-committal sounds or remarks made by young people presumably signalling reluctance to participate. Therefore, it should not surprise us that some young offenders, who agree to participate in qualitative interviews for research, do not deliver articulate responses to interview questions.

Conclusion

Oral language is the means through which youth justice conferences are transacted, as well as a key means by which emotions such as sorrow, remorse, regret, and accountability are conveyed. Research evidence assembled to date suggests that oral language deficits may adversely affect conference outcomes. However, there is a conspicuous lack of empirical research that has examined the impact that oral language deficits have on young offenders' abilities to communicate effectively in restorative justice conferences, as well as the extent

to which such deficits may affect overall satisfaction with conference processes and outcomes for participants. This would suggest the need for systematic empirical research on the link between OLC and restorative justice conference outcomes.

Given the likelihood that young offenders entering restorative justice conferencing processes will have clinically significant language deficits, it is important to develop valid, efficient, and systematic measures of OLC so that necessary pre-conference assessments can be made. With better knowledge of young offenders' language competence, young offenders, victims, and other conference participants may be better prepared for the conference process. Ideally, better preparation will help conference participants to develop realistic expectations around young offenders' oral language abilities and lead to more effective oral communication within the conference. If this occurs, it is highly likely that there will be higher agreement compliance rates (lower reoffending rates) by offenders and higher rates of overall satisfaction for victims.

Note

1. Offender 005C declined an interview.

References

Bolitho, Jane. 2012. Restorative Justice: The Ideals and Realities of Conferencing for Young People. *Critical Criminology* 20 (1): 61–78.

Fujiki, Martin, Bonnie Brinton, Melanie Morgan, and Craig H. Hart. 1999. Withdrawn and Sociable Behavior of Children with Language Impairment. *Language, Speech and Hearing Services in Schools* 30: 183–195.

Cohen, Nancy. 2001. *Language Impairment and Psychopathology in Infants, Children and Adolescents*. Thousand Oaks, CA: Sage.

Daly, Kathleen. 2002. Mind the Gap: Restorative Justice in Theory and Practice. In *Restorative Justice and Criminal Justice: Competing or Reconcilable Paradigms?*, eds. Andrew von Hirsch, Julian Roberts, Anthony E. Bottoms, Kent Roach, and Mara Schiff, 219–236. Oxford: Hart Publishing.

Daly, Kathleen, and Hennessey Hayes. 2002. Restorative Justice and Conferencing. In *The Cambridge Handbook of Australian Criminology*, eds. Adam Graycar, and Peter Grabosky, 294–312. Cambridge: Cambridge University Press.

Dahmi, Mandeep K. 2012. Offer and Acceptance of Apology in Victim-Offender Mediation. *Critical Criminology* 20 (1): 45–60.

Dwyer, Angela E., and Hennessey Hayes. 2011. Getting Lost in the Field: The Unpredictable Nature of Fieldwork with Young People. In *Qualitative Criminology: Stories from the Field*, eds. Lorana Bartels, and Kelly Richards, 106–115. Annandale: Hawkins Press.

Halsey, Mark, Andrew Goldsmith, and David Bamford. 2015. Achieving Restorative Justice: Assessing Contrition and Forgiveness in the Adult Conference Process. *Australian and New Zealand Journal of Criminology* 48 (4): 483–497.

Hart, Dean, and Gabriela Pirc. 2012. Forum Sentencing: Using Research and Experience to Improve Practice. In *Restorative Justice: Adults and Emerging Practice*, eds. Jane Bolitho, Jasmine Bruce, and Gail Mason, 57–79. Sydney: Institute of Criminology Press.

Hayes, Hennessey. 2006. Apologies and Accounts in Youth Justice Conferences: Reinterpreting Research Outcomes. *Contemporary Justice Review* 9 (4): 369–385.

Hayes, Hennessey, Tara McGee, and Michael Cerruto. 2011. Explaining Continuity and Change in Offending Behaviour after a Restorative Justice Conference. *Current Issues in Criminal Justice* 23 (2): 127–143.

Hayes, Hennessey, Tim Prenzler, and Richard Wortley. 1998. *Making Amends: Final Evaluation of the Queensland Community Conferencing Pilot*. Brisbane: Griffith University.

Hayes, Hennessey, and Pamela Snow. 2013. *Oral Language Competence and Restorative Justice Processes: Refining Preparation and the Measurement of Conference Outcomes*. Canberra: AIC.

Marshall, Tony F. 1999. *Restorative Justice: An Overview*. London: Home Office.

Maxwell, Gabrielle, and Hennessey Hayes. 2006. Restorative Justice. *Contemporary Justice Review* 9 (2): 127–154.

Milner, Kate. 2012. Restorative Justice and Adult Offending: Twelve Years of Post-Sentence Practice. In *Restorative Justice: Adults and Emerging Practice*, eds. Jane Bolitho, Jasmine Bruce, and Gail Mason, 80–99. Sydney: Institute of Criminology Press.

Raye, Barbara, and Ann W. Roberts. 2007. Restorative Processes. In *Handbook of Restorative Justice*, eds. Gerry Johnstone, and Daniel W. van Ness, 211–227. Cullompton: Willan Publishing.

Snow, Pamela. 2009. Child Maltreatment, Mental Health and Oral Language Competence: Inviting Speech Language Pathology to the Prevention Table. *International Journal of Speech Language Pathology* 11 (12): 95–103.

Snow, Pamela, and Martine Powell. 2008. Oral Language Competence, Social Skills, and High Risk Boys: What are Juvenile Offenders Trying to Tell Us? *Children and Society* 22: 16–28.

Snow, Pamela, and Martine Powell. 2011. Oral Language Competence in Incarcerated Young Offenders: Links with Offending Severity. *International Journal of Speech Language Pathology* 13 (6): 480–489.

Strang, Heather. 2002. *Repair or Revenge: Victims and Restorative Justice*. Melbourne: Oxford University Press.

Strang, Heather, and Lawrence W. Sherman. 2003. Repairing the Harm: Victims and Restorative Justice. *Utah Law Review* 15: 15–42.

Strang, Heather, Lawrence W. Sherman, Caroline M. Angel, Daniel J. Woods, Sarah Bennett, Dorothy Newbury-Birch, and Nova Inkpen. 2006. Victim Evaluations of Face-To-Face Restorative Justice Conferences: A Quasi-Experimental Analysis. *Journal of Social Issues* 62 (2): 281–306.

Tavuchis, Nicholas. 1991. *Mea Culpa: A Sociology of Apology and Reconciliation*. Stanford, CA: Stanford University Press.

Author Biography

Dr. Hennessey Hayes is a criminologist at Griffith University. For 20 years, his research has focussed on restorative justice, youth offending, and recidivism. It includes a major qualitative study of young offenders in youth justice conferences concentrating on what youth understand about restorative justice processes and how that knowledge affects behaviour.

28

Child Witnesses in the Criminal Courts

Kirsten Hanna and Emily Henderson

"It is well known that women in particular and small boys are liable to be untruthful and invent stories" claimed Justice Sutcliffe of the Old Bailey as recently as 1976. His statement exemplifies the fact that the courts have traditionally viewed certain groups, including children,[1] as inherently unreliable witnesses.[2] Within the academic community, the twentieth century saw dramatic swings in views on whether children's reports of past events could be trusted. Early experimental studies emphasised children's unreliability and suggestibility. However, by the century's end, a significant body of research had reached a more favourable view of children's capacities as witnesses. On the basis of that research and the studies which followed, there is now considerable consensus on the strengths and limitations of children as witnesses and how best to elicit accurate, complete, and coherent accounts of past events (Lamb 2015). Despite this knowledge, child witnesses still face significant barriers to participating effectively in the criminal courts.

While the issues facing child witnesses are manifold, this chapter focusses on two of the most serious and entrenched problems: delay and witness examination practices. We begin by defining the problems and then discussing Australian and

K. Hanna (✉)
The School of Social Sciences and Public Policy at Auckland University of Technology, Auckland, New Zealand
e-mail: Kirsten.hanna@aut.ac.nz

E. Henderson
Henderson Reeves Lawyers, Whangarei, New Zealand
e-mail: emilyhenderson@xtra.co.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_28

New Zealand innovations designed to address them. We conclude by considering how experiences in the English courts could better inform current practitioner-led innovations in Australia and New Zealand.

The Problems

We now know that children can be very effective witnesses under the right circumstances. Even very young children can retain and recall accurate accounts of past experiences (Peterson 2007); children can be highly resistant to suggestive questioning (Lamb et al. 2011); and pre-schoolers have testified effectively and credibly in court.[3] Research also shows that the accuracy and completeness of children's accounts can be diminished by, *inter alia,* the passage of time, poor questioning techniques, and stress at the time of recall (LaRooy et al. 2011).

Unfortunately, Australian and New Zealand studies from the 1980s onwards demonstrate that precisely these elements—delays, poor questioning, and stress—are the hallmarks of many children's experience of testifying in the criminal courts (see, for example, Brennan and Brennan 1988; Davies and Seymour 1998; Eastwood and Patton 2002; Hanna et al. 2010).

Modifications to trial processes from the late 1980s helped to ameliorate some courtroom stressors. In many adversarial jurisdictions, courts seek to reduce the stress of facing the defendant and the formality of the courtroom by allowing children to testify from outside the courtroom via CCTV. Alternatively, children might be screened from the defendant in court. Many courts seek to reduce the stress and humiliation of having to repeat their evidence by admitting a child's video-recorded police interview as evidence in chief at trial. Finally, they try to reduce stress and improve children's understanding of the process by means of pre-trial court education. However, the issues of long delays—before and on the day of trial—and poor questioning have resisted resolution, with some notable exceptions.

Delay

Australian and New Zealand courts have long struggled to hear legal trials quickly. In the 1990s, there was on average an eight-month delay between charges being laid and a child complainant testifying at court in New Zealand (Lash 1995). By 2008/2009, average delays had extended to 15 months (Hanna et al. 2010). Similarly, Eastwood and Patton (2002) found that

delays between children's reporting of abuse to police and trial averaged 20.8 months in Queensland, 16.4 months in NSW, and 17.5 months in Western Australia for those who testified in person at trial.

The impacts of delays are various. It is not only trial itself which can be stressful for children but the lead-up as well, as described by one Queensland child witness:"It was terrible because I was just so fretting, in the middle of the night I would wake up and go—'Dad are we going to court tomorrow?' And he'd go 'no, we don't know when' and I would have bad dreams every single night for like weeks and weeks and weeks" (13-year-old, as quoted in Eastwood and Patton 2002, 50).

Long delays not only prolong suffering, but can reduce the accuracy and completeness of memory at trial (LaRooy et al. 2011). The younger the child, the greater the risk of memory erosion. Furthermore, delays on the day of court—waiting around to testify—are a further source of stress (Plotnikoff and Woolfson 2009). Reducing delays is not only in the child's best interests but also in the interests of courts receiving the best evidence.

Questioning Techniques

While addressing delays is critical, so, too, is ensuring that the questions posed to children facilitate best evidence. It is now clear that the accuracy of children's reports of past experiences can be affected by the types of questions posed. Research shows that information retrieved from memory via open-ended, non-suggestive, free-recall questions such as *Tell me what happened* is more likely to be accurate than information retrieved via closed recognition prompts such as *Did you go to the park?* or via suggestive and leading questions including those which indicate the expected response such as *You went to the park, didn't you?* (Lamb et al. 2007). Unfortunately, analyses of New Zealand courtroom transcripts show that lawyers' cross-examination of children is characterised by high proportions of closed and leading questions (Hanna et al. 2012; Zajac and Cannan 2009). There is no reason to believe that Australian cross-examination is any different (see, for example, Brennan and Brennan 1988; Powell 2005).

If one's aim is to elicit accurate accounts of past events, then closed, suggestive, and leading questions should be avoided wherever possible. However, this is not always the aim of courtroom questioning, particularly during cross-examination where leading questions are generally permitted. That is, while the House of Lords described the *purpose* of cross-examination as "testing the veracity of a witness and the accuracy and completeness of his

[sic] story",[4] the *practice* is rather different. As one English judge put it: "It's about using cross-examination as a means of developing your case, … you want to destroy prosecution witnesses, and use every tactic allowed to make them look unreliable or contradictory" (as quoted in Henderson 2015b, 170). Manuals on the art of advocacy routinely recommend that cross-examining counsel use closed recognition prompts and leading questions in order to develop their case, that is, essentially to state that party's version of events via a series of propositions dressed up as questions. Some manuals go so far as to highlight the "value" of these questions when examining a child: "Children usually want to please adults. If you take the time to frame questions carefully, you will discover that the child witness will often be very helpful to you … [Questions] should be framed in such a way that they elicit either a 'yes' or a 'no'. A child will probably answer 'yes' to a question that suggests a yes answer and 'no' to one that suggests a no answer" (Salhany 2006, 103).

It is not only the *type* of questions that can impact on a child's ability to produce best evidence, but also their *complexity*. Again, analyses of New Zealand and Australian courtroom transcripts amply demonstrate that many questions posed to children are likely to exceed their linguistic and developmental competencies. The issues include the use of "legalese" (sophisticated legal vocabulary); figurative language; complex grammar including the passive voice, negation, multiple subordinate clauses; questions containing more than one request for information; and repeated questions (Brennan and Brennan 1988; Hanna et al. 2012; Zajac et al. 2003).

While some lawyers use complex language as a deliberate tactic (Henderson 2002), many instances may simply result from adults overestimating children's language abilities. Children can overestimate their abilities too. They may answer a question confidently, not realising that they have misunderstood it (Kramer et al. 1972; Perry et al. 1995). Others may be too embarrassed or diffident to admit to confusion. This places the onus on the questioner to ensure questions are appropriate (from a developmental point of view) from the outset, a task for which lawyers are not necessarily well equipped in the absence of specific training.

Other problematic tactics include shifting abruptly from one topic to another, focussing on peripheral details that are unlikely to be remembered well, and repeated accusations of lying (Brennan and Brennan 1988; Davies and Seymour 1998; Hanna et al. 2012; Zajac et al. 2003).

The court's inherent jurisdiction includes the power to control inappropriate cross-examination as recognised in the common law (Henderson 2016a) and in legislation across New Zealand and Australia (see Henning 2015). However, at the time of writing, neither New Zealand nor Australian

judges receive thorough training on children's language development. Even if judges could reliably recognise developmentally inappropriate language, factors inherent to the adversarial system can prevent them from fully utilising their power to control questioning.

Conventional adversarial culture tends to equate judicial neutrality with judicial inaction and, therefore, is deeply suspicious of judges who intervene to prevent questioning (Henderson et al. 2015; Henning 2015). The same culture militates against lawyers acting on any linguistic education they may receive because forensic safety is seen not as the lawyer's responsibility but a task given to the judge and other fact-finders. Lawyers' primary duty is to craft a convincing, not necessarily a truthful, narrative for the jury. Thus, where questions produce responses useful to the client, many lawyers and judges will regard them as entirely acceptable (Henderson 2002; Zydervelt et al. 2016).

In sum, the type and complexity of questions posed to children during cross-examination and to a lesser extent during evidence in chief, as well as some of the common questioning tactics, flout just about every rule in the best practice book. The difficulties are exacerbated for any children with disabilities and those from non-dominant cultural, social, and linguistic backgrounds. The implications for the quality of justice delivered by the courts are clear. Children cannot provide accurate testimony when the questions posed work against that objective.

Addressing the Problems

The problems of delay and poor questioning are so entrenched that some commentators argue that the best option is a wholesale replacement of the adversarial trial system (McDonald and Tinsley 2011; NZ Law Commission 2015). That is not going to happen soon, thus we need to focus on some suggested practical reforms which can rehabilitate the trial without radical surgery.

Delay

Unlike inappropriate language, delay is more of a practical than a philosophical problem. New Zealand's Chief Justice first ordered the fast-tracking of child witness trials in 1992 with no effect. Without greater resourcing, the courts appear to have very little ability to increase disposition rates.

However, delay *during* trial can be resolved cost-effectively. A recent judge-led New Zealand pilot required that all children testify immediately after court opens—thus usually on the second or a subsequent day of trial—reversing the tradition of children testifying on the first day and being hit by the inevitable delays while the jury is empanelled, opening statements made, and the like. The pilot evaluation suggests this measure is both practical and well received (Seymour et al. forthcoming).

As regards delay *before* trial, one initiative—short of major infrastructure investment—does seem to work. Rather than expediting the trial itself, this measure extracts the vulnerable witness from the mix by recording their cross- and re-examination separately—in addition to their pre-recorded evidence in chief—and then shelving the recordings until the trial proper.

Pre-recorded cross-examination has a long history but has been well utilised in Western Australia for over 20 years (Jackson 2012). Cross-examination occurs at an early pre-trial hearing, following an expedited disclosure process. A judge, both counsel, and the defendant attend and proceedings are video-recorded for the jury to watch at the later trial. Early fears that children would have to be recalled for questioning over late-arising evidence have not been borne out, and both defence and prosecution express significant confidence in the process (Eastwood and Patton 2002; Henderson et al. 2012; Jackson 2012).

So successful has pre-recording proven that every Australian state except NSW has followed suit (Henning 2015), and England and Wales adopted pre-recording in 2016. New Zealand and NSW alone remain behind the times, New Zealand's Court of Appeal having stymied its regular use in 2011.[5]

Pre-recording cross-examination captures evidence early, preventing memory deterioration and reducing the stress of waiting. There are other advantages. Knowing the strength of the complainant's evidence before trial enables lawyers to advise clients in relation to guilty pleas or to bargain with prosecutors to withdraw or edit the charges to reflect the evidence ahead of trial, resulting in leaner, more focussed trials. It also enables any inadmissible material to be edited before trial, reducing retrials. English practitioners find it allows for a more flexible approach to cross-examination, as breaks and judicial interventions can also be edited (Plotnikoff and Woolfson 2016). Pre-recording may not be suitable for every trial as early disclosure is sometimes impossible, but that is no reason to prevent its use where it can assist (Spencer 2012).

Courtroom Communication

The problem of lawyers' and judges' inappropriate questioning practices is less easy to solve, as it is rooted in long-standing cultural beliefs about the function of cross-examination and the role of defence counsel. Two linked initiatives, however, provide a way forward. These are the English Intermediary scheme and the English *Barker* reforms.

Intermediaries or Communication Assistants

The Registered Intermediary scheme, now over a decade old, provides expert assistance to judges and lawyers dealing with communication-impaired people. Intermediaries are government-accredited, trained and paid communication experts from various disciplines[6] who, firstly, assess potentially vulnerable witnesses' and defendants' communication needs, secondly advise the court and counsel as to how to adapt conventional questioning and trial practice to meet those needs and facilitate that person's best evidence—or best trial participation for defendants—and, finally, monitor the trial for communication glitches (Plotnikoff and Woolfson 2015).[7]

While the ideal is to train lawyers to be able to communicate with anybody, the reality is that communicating with even moderately impaired witnesses—or developmentally normal children—is far more complex than is generally believed (Henderson 2015a). Meanwhile, intermediaries have enabled seriously impaired people to access justice and to participate in their own trials at a level which was previously impossible. Working with intermediaries, moreover, appears to have a significant knock-on educative value, changing judges' and lawyers' practice in other cases.

Registered intermediaries are highly regarded by English judges and lawyers. Central to this is their strong reputation for neutrality, founded on their standing as independent officers of the court rather than as expert witnesses. Many defence and prosecution counsel now seek intermediary advice in planning their questioning with an openness previously unthinkable (Plotnikoff and Woolfson 2015).

There is now widespread interest in introducing similar schemes across Australia and New Zealand. It is possible that the courts could introduce intermediaries using their inherent jurisdiction, as did the Bailiwick of Jersey recently, and as the House of Lords did to allow intermediaries for vulnerable defendants, after the UK Parliament failed to do so.[8] However, New Zealand, NSW, Western Australia, and South Australia already have legislation

allowing some sort of intermediary assistance, although none has a fully established system yet, let alone an evaluation of its effectiveness.

In 2015, South Australia enacted a detailed scheme permitting a broad range of communication assistance including communication partners to assist people with "complex communication needs" at trial, in pre-trial pre-recording hearings, and—this time allowing suspects to use intermediaries—in investigative interviews (*Vulnerable Witness Act 2015*). They have yet to implement the Act.

For some years, NSW has had provision for interpreters for witnesses and defendants who *ordinarily* require assistance to communicate, and for support persons to act as interpreters for witnesses or defendants—however, excluding sex offence complainants—with difficulties testifying "associated with an impairment or a disability" (*Criminal Procedure Act 1986*). Unfortunately, these provisions remain unused and practice guidelines state that support people must remain silent. However, at the time of writing, NSW has initiated a two-year pilot in two courts that will assign English-style intermediaries to every child witness in certain sex offence trials (Tasmania Law Reform Institute 2016).

Western Australia also has, but rarely uses, provision for communicators to assist children, including child defendants, and vulnerable adult witnesses (*Evidence Act 1906 (WA)*) to testify (Tasmania Law Reform Institute 2016). This underutilised provision was introduced with the same Act that so successfully introduced pre-recorded cross-examination in Western Australia.

New Zealand has particularly broad provision for intermediaries and is beginning to use it. Its *Evidence Act 2006* allows "communication assistance [including] oral or written interpretation, . . . technological assistance, and any other assistance that enables or facilitates communication [to anyone with a] communication disability" or with insufficient English to testify or follow proceedings. In 2012, practitioners used this to introduce English-style intermediaries to criminal trials, a measure which is (anecdotally) spreading steadily with a fairly equal uptake for witnesses and defendants and is supported by the Court of Appeal.[9]

The challenge now in New Zealand, and in other states where practitioners seek to use legislative provisions without governmental support to develop infrastructure, is to establish consistency in the courts' approach and consistently high standards amongst communication assistants. Only NSW has such governmental support or has so far instituted formal training and accreditation. It is hoped that governments will assist with what is an outstanding tool for enabling access to justice for their most vulnerable citizens.

The *Barker* Reforms for Case Management and Cultural Change

Regardless of governmental support, the challenge of encouraging uptake of reforms and of maintaining consistency amongst practitioners applies across the board. The way practitioners have, until very recently, "cold-shouldered" intermediary provisions across Australia and New Zealand, not to mention New Zealand's original pre-recording legislation,[10] demonstrates a fundamental truth: that there is no changing trial procedures unless one first convinces the lawyers who run them. "The real need [is]—not yet more initiatives and reforms, but the cultural change that is necessary to make the new framework a reality" (Plotnikoff and Woolfson 2009, ii; see also Zydervelt et al. 2016).

Changing cross-examination practice is particularly difficult because its cultural capital is very high. The efficacy of cross-examination both as an investigative technique and as a guardian of liberty is almost an article of faith amongst lawyers. However, over the last six years, the English Court of Appeal has effected major changes in the cross-examination of children through a combination of determined leadership and the active support of the judicial training body, the Judicial College, which accredits judges to hear sexual offence cases.

Beginning with *R v Barker* in 2010,[11] the Court of Appeal has systematically considered most of the aspects of cross-examination that researchers identify as unsafe, and it has insisted that counsel eschew those practices. This extends from confusing and heavily suggestive questions (including "tag" questions such as *You saw your dad, didn't you?*) through to modifying usual practice in fulfilment of the legal duty to "put the case" where the emotionally charged questions that are usually asked (such as *Daddy wouldn't hurt you, would he?*) are deemed more likely to distress or confuse a child than to obtain reliable evidence (Henderson 2014).

The *Barker* approach seems to work. Although not a total revolution yet, there is a definite swing in attitudes and behaviour (Henderson 2015a; Plotnikoff and Woolfson 2015; The Rt Hon The Lord Judge 2013). It is notable that these reforms have taken place without any legislative change and without ministerial intervention or investment: they are entirely practitioner-led, based on the pre-existing legislative and common law tools.

At a grassroots level, the key to these judges' ability to enforce the new standards has been robust pre-trial case management (Henderson 2016b), especially their adoption of Ground Rules Hearings, that is, a pre-trial

conference for cases involving a vulnerable witness or defendant, which was developed during the Intermediary Scheme's pilot. Ground Rules Hearings occur ideally a fortnight before trial. The judge issues written directions regarding any trial modifications including of cross-examination content or technique. These directions are then robustly enforced at trial. However, judges report that little intervention is required when the rules are clear from the outset (Henderson 2016b; Plotnikoff and Woolfson 2015).

Lawyers have been running to catch the judges up. While prosecutors in sexual offence trials have had mandatory training for many years, training has recently also been required for defence advocates taking such cases (Rook 2015). Since 2013, practitioners have also been assisted by best practice guidelines—or "toolkits"—that were initially developed by leading researchers Plotnikoff and Woolfson and available on The Advocate's Gateway website.[12]

More recently, as described above, a New Zealand pilot has replicated many of the same changes entirely by judicial leadership and robust case management, and again without any additional investment or resourcing (Seymour et al. forthcoming).

In-depth education explaining the need for change, coupled with a consistent judicial insistence that those changes be made, has been the key to success. This points to something often left out of previous reform efforts, namely recognition of the centrality of lawyers and their cultural beliefs to trial practice. Practitioner-led initiatives such as the *Barker* reforms have a greater chance of success than do governmental initiatives because the initiators are part of the culture, respect it and work within it, and are in turn respected by the culture.

Conclusion

All children who testify in the criminal courts are vulnerable by virtue of their level of development at the very least; some more so than others. Of course, many adult witnesses are vulnerable too, and many of the issues raised here apply equally to them. In the interests of justice, the courts have a duty to ensure all witnesses are enabled to participate effectively in criminal proceedings and to the best of their ability. Reducing delays and improving courtroom questioning are but two of the many means of doing so.

We suggest that the four measures identified in this chapter—pre-recording for delays, along with intermediary assistance, child development education for lawyers and judges, and robust judicial trial management

to deal with poor questioning practice—can effect major changes, on a scale often considered impossible without radical systemic change. It is hoped that, as we progress, there will be cross-border information-sharing and joint training initiatives between the various jurisdictions, so that we can learn from each other how to run trials that are fairer to child witnesses and for defendants without losing the accuracy required. With that outcome, society as a whole will be the beneficiary too.

Notes

1. Children are defined as people under 18, in accordance with the UN Convention on the Rights of the Child.
2. See also *R v Parker* [1968] NZLR 325 where the court noted that "New Zealand judges almost invariably advise juries to pay particular attention to, or to scrutinize with special care, the evidence of young children and equally invariably explain the tendencies of infants to invention or distortion. We hope that this course will continue to be followed for we think it prudent."
3. See, for example, *R v Barker* (2010) EWCA Crim 4 where a rape conviction, based on the evidence of a 4-year-old, was upheld (the child was 2 when she was raped).
4. *Mechanical & General Interventions Co. Ltd v. Austin* (1935) (HL).
5. *M v R & E v R* [2011]; cf Davies and Hanna (2013).
6. Most are speech and language therapists, some are clinical psychologists, social workers or teachers.
7. Sect. 27 *Youth Justice and Criminal Evidence Act 1999*.
8. *R v Great Yarmouth Youth Court* [2011]; English Criminal Practice Directions 2013, para.3F.3-4 and 3G.3.
9. *R v Hetherington* [2015] NZCA 248.
10. Evidence Amendment Act 1989.
11. *R v Barker* [2010] EWCA Crim. 4; see also, inter alia, *R v Edwards* [2011] EWCA Crim 3028; *R v W and M* [2010] EWCA Crim. 1926; *R v Wills* [2011] EWCA Crim. 1938.
12. See http://www.theadvocatesgateway.org/toolkits and http://lexiconlimited.co.uk/toolkits/. The English and Wales Court of Appeal endorsed the toolkits in *R v Lubemba* [2014] EWCA Crim 2064.

References

Brennan, Mark, and Roslin E. Brennan. 1988. *Strange Language: Child Victims under Cross-examination*. Wagga Wagga: Riverina Murray Institute of Higher Education.

Davies, Emma, and Kirsten Hanna. 2013. Pre-Recording Testimony in New Zealand: Lawyers' and Victim Advisors' Experiences in Nine Cases. *Australian and New Zealand Journal of Criminology* 46 (2): 289–305.

Davies, Emma, and Fred W. Seymour. 1998. Questioning Child Complainants of Sexual Abuse: Analysis of Criminal Court Transcripts in New Zealand. *Psychiatry, Psychology and Law* 5 (1): 47–61.

Eastwood, Christine, and Wendy Patton. 2002. *The Experiences of Child Complainants of Sexual Abuse in the Criminal Justice System*. Canberra: AIC.

Hanna, Kirsten, Emma Davies, Charles Crothers, and Emily Henderson. 2012. Questioning Child Witnesses in New Zealand's Criminal Justice System: Is Cross-Examination Fair? *Psychiatry, Psychology and Law* 19 (4): 530–546.

Hanna, Kirsten, Emma Davies, Charles Crothers, and Clare Rotherham. 2010. *Child Witnesses in the New Zealand Criminal Courts: A Review of Practice and Implications for Policy*. Auckland: Institute of Public Policy.

Henderson, Emily. 2002. Persuading and Controlling: The Theory of Cross-Examination in Relation to Children. In *Children's Testimony: A Handbook of Psychological Research and Forensic Practice,* eds. Helen L. Westcott, Graham M. Davies, and Ray H.C. Bull, 279–293. Chichester: John Wiley & Sons.

Henderson, Emily. 2014. All the Proper Protections—The Court of Appeal Rewrites the Rules for Cross-Examination of Vulnerable Witnesses. *Criminal Law Review* 2: 93–108.

Henderson, Emily. 2015a. Communicative Competence? Judges, Advocates and Intermediaries Discuss Communication Issues in the Cross-Examination of Vulnerable Witnesses. *Criminal Law Review* 9: 659–678.

Henderson, Emily. 2015b. A Very Valuable Tool: Judges, Advocates and Intermediaries Discuss the Intermediary System in England and Wales. *International Journal of Evidence and Proof* 19 (3): 154–171.

Henderson, Emily. 2016a. Best Evidence or Best Interests? What Does the Case Law Say about the Function of Criminal Cross-examination? *The International Journal of Evidence and Proof* 20 (3): 183–199.

Henderson, Emily. 2016b. Taking Control of Cross-Examination: Judges, Advocates, and Intermediaries Discuss Judicial Management of the Cross-Examination of Vulnerable People. *Criminal Law Review* 3: 181–205.

Henderson, Emily, Kirsten Hanna, and Emma Davies. 2012. Pre-Recording Children's Evidence: The Western Australian Experience. *Criminal Law Review* 1: 3–14.

Henderson, Emily, Christopher Heffer, and Mark Kebbell. 2015. Courtroom Questioning and Discourse. In *Communication in Forensic Contexts: Integrated Approaches from Psychology, Linguistics and Law Enforcement*, eds. Gavin Oxburgh, Trond Myklebust, Tim Grant, and Rebecca Milne, 181–208. Chichester: Wiley-Blackwell.

Henning, Terese. 2015. *Obtaining the Best Evidence from Witnesses with Complex Communication Needs*, 19. Adelaide, November: Paper presented at Disability Justice Plan Symposium.

Jackson, Hal. 2012. Children's Evidence in Western Australia. In *Children and Cross-examination: Time to Change the Rules?*, eds. John Spencer, and Michael E. Lamb, 75–91. Oxford: Hart Publishing.

Kramer, Pamela E., Elissa Koff, and Zella Luria. 1972. The Development of Competence in an Exceptional Language Structure in Older Children and Young Adults. *Child Development* 43 (1): 121–130.

Lamb, Michael E. 2015. Toward Developmentally Aware Practices in the Legal System: Progress, Challenge, and Promise. *American Psychologist* 70 (8): 686–693.

Lamb, Michael E., Lindsay C. Malloy, and David J. La Rooy. 2011. Setting Realistic Expectations: Developmental Characteristics, Capacities and Limitations. In *Children's Testimony: A Handbook of Psychological Research and Forensic Practice*, eds. Michael E. Lamb, David J. La Rooy, Lindsay C. Malloy, and Carmit Katz, Chapter 2. Chichester: Wiley-Blackwell Ebook.

Lamb, Michael E., Yael Orbach, Irit Hershkowitz, Phillip W. Esplin, and Dvora Horowitz. 2007. A Structured Forensic Interview Protocol Improves the Quality and Informativeness of Investigative Interviews with Children: A Review of the Research Using the NICHD Investigative Interview Protocol. *Child Abuse and Neglect* 31: 1201–1231.

LaRooy, David J., Lindsay C. Malloy, and Michael E. Lamb. 2011. The Development of Memory in Childhood. In *Children's Testimony: A Handbook of Psychological Research and Forensic Practice*, eds. Michael E. Lamb, David J. LaRooy, Lindsay C. Malloy, and Carmit Katz, Chapter 3. Chichester: Wiley & Sons Ebook.

Lash, Barbara. 1995. *Time Taken to Process Sexual Offence Cases through the Courts*. Wellington: Ministry of Justice.

McDonald, Elisabeth, and Yvette Tinsley. 2011. *From 'Real Rape' to Real Justice: Prosecuting Rape in New Zealand*. Wellington: VUW Press.

NZ Law Commission. 2015. *The Justice Response to Victims of Sexual Violence: Criminal Trials and Alternative Processes*. Wellington: NZ Law Commission.

Perry, Nancy W., Bradley D. McAuliff, Paulette Tam, Linda Claycomb, Colleen Dostal, and Cameron Flanagan. 1995. When Lawyers Question Children: Is Justice Served? *Law and Human Behavior* 19 (6): 609–629.

Peterson, Carole. 2007. Reliability of Child Witnesses: A Decade of Research. *The Canadian Journal of Police and Security Services* 5 (3/4): 142–151.

Plotnikoff, Joyce, and Richard Woolfson. 2009. *Measuring Up? Evaluating Implementation of Government Commitments to Young Witnesses in Criminal Proceedings*. London: NSPCC.

Plotnikoff, Joyce, and Richard Woolfson. 2015. *Intermediaries in the Criminal Justice System: Improving Communication for Vulnerable Witnesses and Defendants*. Bristol: Policy Press.

Plotnikoff, Joyce, and Richard Woolfson. 2016. Worth Waiting for: The Benefits of Section 28 Pre-Trial Cross-Examination. *Archbold Review* (8), 6–9.

Powell, Martine. 2005. Improving the Reliability of Child Witness Testimony in Court: The Importance of Focusing on Question Technique. Current Issues. *Criminal Justice* 17 (1): 137–143.

Rook, Peter. 2015. Sea-Cange in Advocacy. *Counsel Magazine Online*, February Issue.

Salhany, Roger E. 2006. *Cross-Examination: The Art of the Advocate*. LexisNexis: Markham.

Seymour, Fred, Isabel Randell, Emily Henderson, and Suzanne Blackwell. Forthcoming. The Evaluation of the Whangarei Young Witness Pilot Protocol. Unpublished report, Wellington.

Spencer, John R. 2012. Conclusions. In *Children and Cross-Examination: Time to Change the Rules?*, eds. John R. Spencer, and Michael E. Lamb, 171–201. Oxford: Hart Publishing.

Institute, Tasmania Law Reform. 2016. *Facilitating Equal Access to Justice: An Intermediary/Communication Assistant Scheme for Tasmania?*. Hobart: Tasmania Law Reform Institute.

The Rt Hon The Lord Judge. 2013. The Evidence of Child Victims: The Next Stage. Paper presented at Bar Council Annual Law Reform Lecture, November 21, in London.

Zajac, Rachel, Julien Gross, and Harlene Hayne. 2003. Asked and Answered: Questioning Children in the Courtroom. *Psychiatry, Psychology and Law* 10 (1): 199–209.

Zajac, Rachel, and Paula Cannan. 2009. Cross-Examination of Sexual Assault Complainants: A Developmental Comparison. *Psychiatry Psychology and Law* 16: 36–54.

Zydervelt, Sarah, Rachel Zajac, Andy Kaladelfos, and Nina Westera. 2016. Lawyer's Strategies for Cross-Examining Rape Complainants: Have We Moved beyond the 1950s? *British Journal of Criminology*. doi:10.1093/bjc/azw023.

Author Biographies

Dr. Kirsten Hanna is a Senior Lecturer in Criminology in the School of Social Sciences and Public Policy at Auckland University of Technology. Since 2007, her research interests have concentrated on children in the criminal courts with a particular focus on the language used in courtroom questioning.

Dr. Emily Henderson is a practising barrister and solicitor in the New Zealand courts. She has published extensively on trial reform for vulnerable people. In 2012, she was awarded the NZ Law Foundation International Research Fellowship and in 2015 was awarded the International Investigative Interviewing Research Group award for academic excellence.

29

Children of Prisoners

Catherine Flynn and Anna Eriksson

With the considerable growth in prison populations globally (Walmsley 2013), and specifically in Australia (ABS 2015) and New Zealand (Gordon 2015) in recent decades, the flow-on effect on families of prisoners has increased exponentially. Not only is the direct family, that is, children, partners, and parents affected, but also extended family networks who are typically left caring for the children when parents are arrested, remanded, or sentenced (Glaze and Maruschak 2008; Trotter et al. 2015). These children have committed no crime, and yet the punitive response of the criminal justice system affects them in the most personal and often sustained ways.

The children of imprisoned parents receive negligible attention or intervention, which is highly problematic considering the well-documented experiences of these children. These experiences include isolation, behavioural difficulties at school (McCrickard and Flynn 2016; Trice and Brewster 2004), anxiety, insecurity, withdrawal, anger, and mental health concerns (Dallaire 2007),

Many of the key arguments in this chapter are found in a recently completed ARC Linkage project on Children of Prisoners (LP110100084), the results of which have been reported by the authors and their colleagues (see Trotter et al. 2015).

C. Flynn (✉)
Senior Lecturer in Social Work at Monash University, Melbourne, Australia
e-mail: catherine.flynn@monash.edu

A. Eriksson
Senior Lecturer in Criminology at Monash University, Melbourne, Australia
e-mail: anna.eriksson@monash.edu

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_29

as well as the potential for involvement in offending behaviour themselves (Murray, Farrington, and Sekol 2012). Despite these concerns and the growing nature of the problem, these children remain largely invisible and do not feature as a priority for government policy and statutory welfare bodies' concerns. This vulnerable group tends to fall outside the responsibility of criminal justice institutions. Other statutory agencies tend to only intervene when the child displays seriously concerning behaviour resulting from this trauma, rarely is intervention preventative and child focussed (Eriksson and Flynn 2015).

After providing an overview of Australian and New Zealand research on children of prisoners and relevant research findings, this chapter looks at the criminal justice responses to support this vulnerable population during the stages of parental arrest, trial, and incarceration. We conclude with a look at support services offered overseas, more specifically in the UK and Scandinavia.

Children of Prisoners in Australia and New Zealand

In Australia and New Zealand, little is known in any sustained way about the effects of parental imprisonment on children. These countries share some known commonalities, including a similar rate of imprisonment (ABS 2015; Statistics NZ 2012). Both also struggle with the effects of significant Indigenous overrepresentation throughout their criminal justice systems (Cunneen 2014; Dennison, Stewart, and Freiberg 2013). However, with no formal statistics gathered on children in either jurisdiction or internationally, current knowledge is largely based on 'guesstimates'. Our understanding of the scope and nature of this problem and our capacity to respond systematically is, therefore, limited. In Australia, responses to these children vary considerably across the states and territories (Saunders and McArthur 2013), and knowledge development has been piecemeal and fragmented. Research has largely comprised small, state-based studies, typically focussing on mothers and children. More recently, one study (Trotter et al. 2015) has examined how children across Victoria and NSW are responded to when their parents are arrested and imprisoned; two states which house 22 per cent and 28 per cent of Australia's prison population, respectively (ABS 2015). Trotter et al. (2015) conservatively estimate that, annually, across these two states, more than 15,000 children experience parental imprisonment. Findings also indicate that responses to children from all adult systems with which they

interacted were poor, with limited attention given to the specific needs or rights of these children at any point as their parents are moved through the criminal justice system. A broader survey by the Australian Institute of Health and Welfare (AIHW 2013) indicated that some 28 per cent of prisoners have at least one child. This is thought to be a considerable underestimate; however, as around 20 per cent of study respondents did not answer this question. Recent research in Queensland estimates that around 4 per cent of children will experience parental incarceration in any given year (Dennis, Stewart, and Freiberg 2013). This mirrors earlier estimates based on data from NSW (Quilty 2005), but no recent national estimates exist. Importantly, these trends hide the considerable variation and the marked risks for Indigenous children and families. In New Zealand, whilst no reliable estimates of numbers of children who experience parental imprisonment exist, the Social Policy Evaluation and Research Unit (2015) in New Zealand posits that, on any given day, there will be some 20,000 children affected. Recent research in New Zealand (Gordon 2015, 52) further found that the agencies of justice—police, courts, and prisons—with whom families had contact "aggravated poor outcomes for children in a wide range of ways", whilst there was generally poor engagement with relevant agencies of social support. It was concluded that these children have significant but untreated problems.

An examination of research trends indicates three primary areas of interest: intergenerational links in offending behaviour, children's care arrangements, and the impact of parental incarceration on children (Flynn et al. 2015). Yet, when "we then add into the mix the unintended consequences of the adult criminal justice system, what is clear are the increased risks to children's long-term well-being as well as their immediate safety" (Flynn and Field-Pimm 2014, 12). We know these unintended consequences include children witnessing traumatic arrest processes (Phillips and Zhao 2010), experiencing sudden and unanticipated separation from their parent, being displaced from home, and struggling to maintain contact with their imprisoned parent (Flynn 2014; Tudball 2000). Accurately capturing and understanding these experiences has proved difficult. "Given the practical challenges of conducting research with this often hidden and transient study population, most studies have taken a one-off approach to data gathering. Studies have usually been conducted while the parent is imprisoned, and provide a 'snap-shot' perspective" (Flynn 2008, 112). As highlighted by this quote, most research has focussed on describing what happens to children at one point in time *during* their parent's term of imprisonment, with limited attention to what goes on before or after this.

This reliance on cross-sectional surveys in prison-based research limits a broad and deep accumulation of knowledge building in key areas, notably understanding the lived experience of families in the pre- and post-prison phases. The limited research that exists simply *describes* typical parental problems pre-prison such as mental health, family violence, gambling (Mumola 2000), whilst there is an absence of research about the post-release phase, and on whether and how families reconnect. A thorough understanding of the longer-term impact of parental incarceration on their children is missing from much research to date (Travis 2005; Trotter et al. 2015).

One of the very few studies which has investigated the specific responses of law enforcement agencies and child welfare organisations prior to parental imprisonment was conducted with law enforcement officers in California (Nieto 2002). The findings indicate clear gaps in response to children. Less than half of participants advised that they would enquire about the care of any children present at the arrest of their parent. When children were not present, this was notably less (13 per cent). Children of offenders were simply not routinely considered in day-to-day policing practice. Nieto (2002) describes a reliance on individual instincts when officers respond to children. The study highlights a number of issues of concern such as the lack of awareness of parenting status or caring responsibilities of individuals being arrested; the lack of police policy around responding to children whose parents were being arrested; the absence of formal protocols between police and child protective services about these children; and poor communication between these agencies.

It was also evident from this study that the limited communication between families and the criminal justice system after arrest created a time of great uncertainty for children. These findings have been confirmed in a subsequent smaller study in Michigan (Neville 2010) and reflect recent Australian findings (Trotter et al. 2015).

Hence, accurate information on parents, carers, and children remains unclear, with limited official data gathered on either the parenting status of individuals when arrested, sentenced, or entering prison or the status or whereabouts of any of their children. In some jurisdictions, prisons do seek information about children, but this is not widespread, nor is the information gathered or used systematically (Trotter et al. 2015). What is also clear is that across Australia and New Zealand, and in many other jurisdictions, there is little coordination across the child protection and criminal justice systems to respond to these children's situations.

Criminal Justice System Responses and Support

We will now move on to discussing the responses by the criminal justice system to children of prisoners, in particular court and sentencing processes. We will focus mainly on legislation and practices from Victoria and NSW, since they have been the key locations of our research, making comparisons with other jurisdictions to highlight innovation.

Arrest

Currently in Victoria, arresting police officers are bound by a protocol with the child protective agency (Department of Human Services 2012) which provides general advice about responding to children in need of protection but does not specifically address the situation of parental arrest. In NSW, however, although no police child protection protocol exists, officers are given specific instructions as to their responsibilities to care for children present at parental arrest (NSW Police Force 2013). Whilst awaiting the arrival of alternative care, officers must engage in a range of duties, including providing direct supervision, seeking any medical attention, and meeting basic needs for food, clothing, and so on.

In the USA, by way of contrast, formal protocols for responding at all arrests where children are present have been implemented by two Californian jurisdictions. These protocols include the requirement that arresting officers ask about children and document this when arresting an adult. These developments are part of key initiatives in these areas, including the co-location of social workers in police stations for consultation and assistance with children. Similar developments have also been implemented in Connecticut, via the New Haven Child Development Community policing programme, a partnership between New Haven City, police, and the Yale Child Study Center. This project provides education about children and child-centred practice to police and is a 24-hour consultation service. It requires police to document on the arrest sheet that they inquired about children, and progress and information sharing is maintained via a weekly programme meeting. In Sweden, arresting officers must also question arrestees about the existence of and care arrangements for children. If no clear care arrangements are in place, police have a duty to inform Children's Services (Mulready-Jones 2011).

Sentencing

In Australia, the Commonwealth *Crimes Act 1914* refers to matters that courts have to consider when imposing sentences for those convicted of federal offences. When sentencing for a Commonwealth offence, the court *should* consider the probable effect that any sentence or order under consideration would have on the person's family or dependents.

In Victoria, the Magistrates courts make decisions concerning children at two important points of time: firstly, when making decisions about whether a parent is granted bail or is remanded in custody. Secondly, if the person is found guilty of the crime alleged, magistrates make decisions about sentencing, including whether to incarcerate the parent. Bail will usually be granted for all but the most serious offences unless the court believes there is a risk that the person will not come to court when the trial is set, or will offend or interfere with witnesses. The fact that the person has caring responsibilities is not a consideration referred to in the *Bail Act 1977 (Vic)*, but childcare responsibilities are considered clearly relevant to any risk of absconding or reoffending (*Memery v R 2000, 495 (VSC 2000)*; *Re Mitchell 2013, No. 75 (VSC 1974)*). The *Sentencing Act 1991 (Vic)* gives criteria for sentencing, including mitigating and aggravating circumstances. The impact of the sentence on children or other family members is not mentioned in the legislation. It is recognised that imprisonment will almost inevitably cause hardship for family members, and it would be unjust for a person with dependants to receive a lighter sentence than a childless person committing the same offence (*Markovic, Zoran v R 2010, No. 589 (VSCA 2010)*). The *Crimes Act 1914 (Cth)* requires courts to take into account "the probable effect that any sentence or order under consideration would have on any of the person's family or dependents". However, this is still said to be subject to the verification of exceptional circumstances (*DPP v Gaw, 51 (VSCA 2006)*; *Sinclair, No. 418, 51 (CCA 1990)*). Whether caring responsibilities amount to exceptional circumstances appears to be a very subjective decision.

In NSW, the *Crimes (Sentencing Procedure) Act 1999 (NSW)* includes the presence of children during an offence as an aggravating factor when sentencing. In this case, the effect of an offence on children is seen to be relevant. However, data relating to sentencing and the likely impact of parental incarceration on children suggest that, in these instances, the effects of offending on children are not seen to be relevant. Consideration of the impact of a sentence upon a third party—including family members of the defendant—is dealt with under common law in NSW. Exceptional hardship to a family

member must be verified before it can influence the type and length of the imposed sentence.

There may be evidence of such hardship in cases where—should the person be sentenced to full-time custody—"a sense of mercy or of affronted common sense imperatively demands that the [sentencing judge] should draw back" (*R v Mitchell 1974, No. 75 (VSC 1974)*). The *Crimes (Sentencing Procedure) Act 1999 (NSW)* requires certain subjective matters to be taken into account when sentencing an offender. It outlines the general principle of hardship to family and dependants, stating that, for this to be applied, hardship must be wholly, highly, or truly exceptional. The courts must identify a ground upon which the hardship to a family member or third party that is caused by the imprisonment of the offender can properly and relevantly be regarded as exceptional before it is taken into account in the sentencing of the offender. Sentencing law and guidelines in both states indicate limited consideration of children of offenders before the court, unless the situation can be shown to be 'exceptional'.

In New Zealand, Gordon's research (2009, 2011, and 2015) describes the practical challenges of child and family interaction with the adult court system. Whilst she notes significant site-based discretion over the treatment of children that is similar to the responses of the police and prisons, the research does not address the issue of sentencing guidelines or practices.

In Victoria, the Victorian Association for the Care and Resettlement of Offenders (VACRO) Family Links pilot project (Hastrich 2015), based at the Geelong Magistrates Court, has been running since 2012. Based on a crisis intervention model, the programme provides a court-based family worker. The programme targets families with dependent children, where the family member is facing serious charges that could lead to imprisonment. Referrals are taken from court-based support services as well as community-based services. A range of services can be provided, such as crisis intervention, community-based outreach, assisted referral, and brokerage support. Evaluation of the project (Hastrich 2015) indicates both significant demand for the service and the effectiveness of a court-based service as the focal point for short-term intervention. Whilst a range of other adult court-based support services exist (Magistrate's Court of Victoria 2016), addressing issues such as the specific needs of Indigenous defendants, those with mental health problems, or those needing bail assistance, Family Links is currently the only programme with a child-centred approach.

One innovative sentencing project of note was introduced in Washington State in the USA in 2010. The Family and Offender Sentencing Alternative (FOSA) targets parents of dependent children, who are found guilty of non-violent offences. This programme allows parents, who must meet other

criteria, to serve 12 months in community custody, with conditions and regular monitoring by the court, as an alternative to imprisonment. Although it is argued to be showing benefits in terms of recidivism trends and successful completion of orders (Leavell 2015), there has been no formal evaluation to date.

At the Point of Imprisonment

The incarceration of a parent is a key crisis point for families. We focus here on some international examples of responses to children and families at this time as there is a lack of local exemplars of best practice.

In Northern Ireland, a programme entitled Family Links is offered. This is a programme run by the Northern Ireland Association for the Care and Resettlement of Offenders (NIACRO) alongside prison-based probation services. NIACRO contacts all families within 24 h of receiving a referral, to offer practical and emotional support. Family Links offers information and ongoing support to families and children who require a service through home visits, benefits advice, transport, support groups, and referrals to other agencies.

In Scotland, Family Contact and Development Officers—prison officers with responsibility for working with prisoners and their families—are based in most prisons (Social Care Institute for Excellence 2016). All prisoners and families are given a leaflet at court to inform them about services available. Families Outside, in conjunction with the prison service, operates a national helpline where families can seek information about any aspect of family contact with prisoners, ranging from visits to release (Families Outside 2016).

In Sweden, a more holistic approach is evident. There, all children of offenders have a right to contact with their absent parent, and there are a range of measures in place to facilitate this. These measures include free weekly phone calls from their imprisoned parent; local municipality covering travel costs for an unlimited number of children's visits; each prison having a children's ombudsman, who has responsibility for improving the facilities and processes for children visiting the prison.

Conclusion

Recent moves towards child aware approaches and 'wrap-around' services for vulnerable families challenge the existing notion that the adult criminal justice system has little or nothing to do with children (Department of Human

Services 2016; Hunter and Price-Robertson 2014). Children are as much the recipients, albeit indirectly, of 'justice' as the adults who are arrested, sentenced, and incarcerated. Such recognition of dependent children as part of adult service systems is also beginning to take hold in other social sectors such as mental health provision, alcohol and drug services, and family violence prevention initiatives.

Although some children and families receive good services and supports, these tend to be both fragmented and haphazard, often reliant on an individual staff member's personal knowledge and good will; this does not ensure a sustained and predictable response to children. It also does not address how to prevent the long-term, negative consequences experienced by this group of children.

What is required are holistic services with a 'no wrong door' policy at each stage of the criminal justice trajectory, where potential clients could look for assistance if, and when, it is needed. A small number of examples illustrate how and when this could happen. For instance, police may ask specifically about children when arresting an alleged offender; court-based projects may provide short-term child-focussed interventions at the 'crisis' point of the hearing; and organisations may reach out to families immediately upon their family member being imprisoned. Creating an environment that involves all relevant organisations, with specific agreements and protocols to improve communication amongst service providers, would provide more predictable responses to children and families.

Whilst recognising that such action will require a significant paradigm shift for some organisations, one only needs to look to other jurisdictions to see that this is possible. The development of the 'Think Family' framework in the UK is an example of one such initiative. Similarly, heartening is the more recent model policy Safeguarding Children of Arrested Parents 2014, published by the International Association of Chiefs of Police (IACP) in the USA. This approach, spearheaded by police, is based on the understanding that parental incarceration is an adverse childhood experience, that parental arrest can have a lasting impact on children, and that coordinating and responding to children's needs at the point of parent arrest has benefits for the well-being of the child, both in the short- and long term. Coordination is vital, since "safeguarding a child's well-being is the shared responsibility of a number of partner organizations within the community, not only law enforcement" (IACP 2014, 8). Such a paradigm shift could ensure that the prison experience is at least one inheritance not passed on to the next generation.

References

ABS. 2015. *Prisoners in Australia*. Cat. no. 4517.0. Canberra: ABS.

AIHW. 2013. *The Health of Australia's Prisoners*. Cat. no. PHE 170. Canberra: AIHW.

Dallaire, Danielle. 2007. Incarcerated Mothers and Fathers: A Comparison of Risks for Children and Families. *Family Relations* 56 (5): 440–453.

Dennison, Susan, Anna Stewart, and Kate Freiberg. 2013. A Prevalence Study of Children with Imprisoned Fathers: Annual and Lifetime Estimates. *Australian Journal of Social Issues* 48 (3): 339–362.

Department of Human Services. 2012. *Protecting Children: Protocol between Department of Human Services – Child Protection and Victoria Police*. Melbourne: State Government of Victoria.

Department of Human Services. 2016. *Services Connect*. http://www.dhs.vic.gov.au/for-service-providers/for-funded-agencies/services-connect. Accessed 16 Sep.

Cunneen, Chris. 2014. Colonial Processes, Indigenous Peoples and Criminal Justice Systems. In *The Oxford Handbook of Ethnicity, Crime and Immigration*, ed. Sandra Bucerius, and Michael Tonry, 386–407. Oxford: Oxford University Press.

Eriksson, Anna, and Catherine Flynn. 2015. Introduction: Special Issue on Children of Prisoners. *Law in Context* 32: 1–3.

Families Outside. 2016. *Who We Are*. http://www.familiesoutside.org.uk/who-are-we/. Accessed 16 Sep.

Flynn, Catherine. 2008. Waiting for Mum: The Impact of Maternal Incarceration on Adolescent Children. PhD diss., Monash University.

Flynn, Catherine. 2014. Getting there and Being there: Visits to Prisons in Victoria—The Experiences of Women Prisoners and Their Children. *Probation Journal* 61 (2): 176–191.

Flynn, Catherine, and Melanie Field-Pimm. 2014. Children of Prisoners: 'Collateral Damage'? *Insight: Vulnerable Children—Better Start Better Lives* 9: 11–12.

Flynn, Catherine, Tess Bartlett, Paula Fernandez, Phillipa Evans, and Alannah Burgess. 2015. Responding to Children when Their Parents Are Incarcerated: Exploring the Responses in Victoria and New South Wales, Australia. *Law in Context* 32: 4–26.

Glaze, Lauren, and Laura M. Maruschak. 2008. *Parents in Prison and Their Minor Children*. Washington, DC: US Bureau of Justice Statistics.

Gordon, Liz. 2009. *Invisible Children: First Year Research Report 'A Study of the Children of Prisoners'*. Christchurch: Pillars Inc.

Gordon, Liz. 2011. *Causes of and Solutions to Inter-Generational Crime: The Final Report of the Study of the Children of Prisoners.* Christchurch: Pillars Inc.

Gordon. Liz. 2015. Who Cares about the Children of Prisoners in New Zealand? A Journey from Research to Practice. *Law in Context* 32: 46–60.

Hastrich, Roger. 2015. *Family Links Geelong Pilot Project Final Evaluation Report*. Melbourne: Victorian Association for the Care and Resettlement of Offenders.
Hunter, Cathryn, and Rhys Price-Robertson. 2014. *The Good Practice Guide to Child Aware Approaches*. Melbourne: Australian Institute of Family Studies.
IACP. 2014. *Safeguarding Children of Arrested Parents*. Washington, DC: US Bureau of Justice Assistance.
Leavell, Susie. 2015. Washington's Parenting Sentencing Alternative: A Strengths-Based Approach to Supervision. *Justice Strategies Blog*, February 10.
Magistrate's Court of Victoria. 2016. *Court Support Services*. https://www.magistratescourt.vic.gov.au/jurisdictions/specialist-jurisdictions/court-support-services. Accessed 16 Sep.
McCrickard, Rose, and Catherine Flynn. 2016. Responding to Children of Prisoners: The Views of Educational Professionals in Victoria. *Children Australia* 41 (1): 39–48.
Mulready-Jones, Angus. 2011. *Hidden Children. A Study into Services for Children of Incarcerated Parents in Sweden and the United States*. London: Winston Churchill Memorial Trust.
Mumola, Christopher. 2000. *Incarcerated Parents and Their Children*. Washington, DC: Bureau of Justice Statistics.
Murray, Joseph, David Farrington, and Ivana Sekol. 2012. Children's Anti-Social Behaviour, Mental Health, Drug Use, and Educational Performance after Parental Incarceration: A Systematic Review and Meta-Analysis. *Psychological Bulletin* 138: 175–210.
Neville, Kristin. 2010. Forgotten Children: Law Enforcement Agencies, Child Protective Services, and Children of Arrested Parents in Michigan. *McNair Scholars Research Journal* 2 (1): 164–179.
Nieto, Marcus. 2002. *In Danger of Falling through the Cracks: Children of Arrested Parents*. Sacramento, CA: California Research Bureau.
NSW Police Force. 2013. *NSW Police Force Handbook*. Sydney: NSW Police.
Phillips, Susan, and Jian Zhao. 2010. The Relationship between Witnessing Arrest and Elevated Symptoms of Posttraumatic Stress: Findings from a National Study of Children Involved in the Child Welfare System. *Children and Youth Services Review* 32: 1246–1254.
Quilty, Simon. 2005. The Magnitude of Experience of Parental Incarceration in Australia. *Psychiatry, Psychology and Law* 12 (1): 256–257.
Saunders, Vicky, and Morag McArthur. 2013. *Children of Prisoners: Exploring the Needs of Children and Young People Who Have a Parent Incarcerated in the Australian Capital Territory*. Canberra: SHINE for Kids and Institute for Child Protection Studies, Australian Catholic University.
Statistics NZ. 2012. *New Zealand Official Yearbook 2012*. Wellington: Statistics NZ.
Social Care Institute for Excellence. 2016. *Children of Prisoners: Maintaining Family Ties*. http://www.scie.org.uk/publications/guides/guide22/appendices/scotland.asp. Accessed 16 Sep.

Social Policy Evaluation and Research Unit. 2015. *Improving Outcomes for Children with a Parent in Prison*. Wellington: Social Policy Evaluation and Research Unit.
Travis, Jeremy. 2005. *But They Come back: Facing the Challenges of Prisoner Reentry*. Washington, DC: The Urban Institute Press.
Trice, Ashton, and JoAnne Brewster. 2004. The Effects of Maternal Incarceration on Adolescent Children. *Journal of Police and Criminal Psychology* 19: 27–35.
Trotter, Chris, Catherine Flynn, Bronwyn Naylor, Paul Collier, David Baker, Kay McCauley, and Anna Eriksson. 2015. *The Impact of Incarceration on Children's Care: A Strategic Framework for Good Care Planning*. Melbourne: Monash University.
Tudball, Nola. 2000. *Doing It Hard. A Study of the Needs of Children and Families of Prisoners in Victoria.* Melbourne: Victorian Association for the Care and Resettlement of Offenders.
Walmsley, Roy. 2013. *World Prison Population List*. London: International Centre for Prison Studies.

Author Biographies

Dr. Catherine Flynn is a Senior Lecturer in Social Work at Monash University. Reflecting her experiences as a practitioner in youth offending and young parenting, her research focusses on the intersection of social work and criminal justice. She maintains an interest in gendered experiences of social problems and is engaged in various collaborative research projects.

Dr. Anna Eriksson is a criminologist at Monash University and director of the Imprisonment Observatory. In 2012, she received a DECRA for comparative penology. Her research includes people with brain injuries, children of prisoners, and preparation for release. In 2015, Routledge published her book *Punishing the Other: The Social Construction of Immorality Revisited*.

30

Redress for Historical Institutional Abuse of Children

Kathleen Daly

The concept of institutional abuse of children as a named social problem did not exist until the 1970s. In the USA, Gil (1975) introduced the term, and a 1979 US Senate inquiry was convened on the topic. During the 1980s, judicial inquiries on physical and sexual abuse of children in residential care were held in Northern Ireland from 1984 to 1986, and Newfoundland, Canada from 1989 to 1991. Australia's first public inquiry,[1] conducted by what was then known as the Human Rights and Equal Opportunity Commission (HREOC 1997) from 1995 to 1997, gathered evidence on the separation of Aboriginal and Torres Strait Islander children from their families. Its principal focus was on government policies of forced assimilation, and secondarily on the conditions of care in facilities for children.

Over the next 20 years, other countries began to respond to allegations of abuse and neglect of children when in the care of government, church, or charitable authorities. The major responses were (and are) public inquiries; criminal prosecution of alleged offenders; civil suits lodged by survivors; and redress schemes, which area new variant of civil justice. As of January 2016, 15 jurisdictions have established redress schemes.[2] They are Australia, Austria, Belgium, Canada, Germany, Iceland, Ireland, the Netherlands, New Zealand, Norway, Scotland, the States of Jersey, Sweden, Switzerland, and the USA. Five others have undertaken (or are now undertaking) public inquiries, but do not have redress schemes. They are the Åland Islands, Denmark, England and

K. Daly (✉)
Griffith University, Brisbane, Australia
e-mail: k.daly@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_30

Wales, Finland, and Northern Ireland. In affluent democratic countries of the developed world, sustained responses to institutional abuse of children, which include monetary recompense to adult survivors, have become common.[3] This is taking place when some countries of the developing world, and in eastern and central Europe and the former Soviet Union, have increased the number of children in residential care, a consequence of conflict, environmental disasters, poverty, and poorly informed government policies (Csáky 2009).[4]

This chapter sketches responses to historical institutional abuse of children in Australia and New Zealand, with a focus mainly, but not exclusively, on redress schemes. In the first part, I define key terms and sketch the historical context of out-of-home care of children and the circumstances that gave rise to "discovering" (Daly 2014a: 16) institutional abuse of children. I then describe redress responses in Australia and New Zealand, how they compare with other countries and conclude with questions for future research. I would emphasise that institutional abuse and responses to it is a complex field. It includes researchers and practitioners from philosophy, sociology, social work, history, politics, psychology, and law; many advocacy and survivor organisations; and works created by survivors, artists, actors, and curators, including documentaries, films, museum installations, and live performance.

Key Terms and Historical Context

Three terms need to be defined. These are institutional abuse, redress, and redress scheme.

Institutional abuse is a slippery concept and has changed in meaning over time. Abuse can include physical, sexual, emotional, and cultural abuse, or it may be limited to sexual abuse alone. Abuse contexts are mainly historical, but may also be contemporary.[5] Adult survivors today range in age from about 30 to over 100; they describe abuse occurring during the 1930s to the 1990s, but typically during the 1950s to the 1970s.

An institution normally refers to closed or semi-closed settings, such as an orphanage, residential facility for children, or detention facility; but it can also include foster, kinship, or relative care. In Australia, Canada, and New Zealand—beginning in the mid-nineteenth century and throughout the next century—residential facilities held children who were voluntarily placed by parents or other family members or who were court-ordered wards of the state, including those adjudicated as delinquents. Children came from socially and economically disadvantaged families. Some were taken from their parents as part of forced assimilation policies by the Australian and Canadian

Governments or as part of migration policies established by the British Government with Australian and New Zealand Governments,[6] with support from church and charitable organisations. Other children were removed from parents, who were deemed unable to care for them, or who had neglected or abused them; still others had mental or physical disabilities at a time when institutions were believed to be the most appropriate place for them.

A recent development is that institutional abuse can be defined as occurring in both closed and open settings. The Royal Commission into Institutional Responses to Child Sexual Abuse (RCIRCSA), which began in Australia in 2013, is investigating abuse in residential and foster care *and* in open settings such as education, sport, faith-based, and other organisations for children. For ease of reference, I refer to adult survivors of abuse in closed settings as care leavers and to those in open settings as non care leavers.

It is important to distinguish the two because care leavers are more socially and economically disadvantaged than non care leavers.[7] This is because when growing up, they did not have stable caregivers or access to adequate education and health care. In addition, some children in closed settings were the subject of policies targeting them *as children* such as child migration policies and sterilisation of those with mental disabilities, or *as members of racial minority groups* such as forced assimilation policies. Merging these different groups as one group creates problems of equity in contemplating redress. Relatedly, some responses to abuse, such as the RCIRCSA, restrict it to sexual abuse only. Care leaver advocacy groups in Australia have identified a range of abuse and neglect experiences while growing up, including physical, sexual, emotional, and cultural abuse. Sexual abuse is not as important nor as frequent (Golding 2016; Penglase 2005). Thus, in Australia today and with respect to the RCIRCSA, care leavers and non care leavers differ on the aims and purposes of redress because they experienced different types of wrongs. That having been said, the RCIRCSA is unusual because few other government public inquiries or redress schemes have intended to address a diverse group of survivors who have been abused (sexually abused) in closed and open institutional settings, and with reference to both historical and contemporary abuse.

Redress means to rectify or correct and can be viewed as a type of corrective justice.[8] It refers to all the activities, processes, and outcomes that provide a compensatory mechanism for harms or wrongs against an individual or group.[9] Two types of redress mechanisms are civil litigation and redress schemes.

Redress schemes may run parallel with civil litigation and are formed in two ways. They can be *negotiated* between lawyers for the plaintiffs and

defendants, or they can be *stipulated* by an offending party—that is, a government, church, or charitable organisation—with little or no negotiation. Unlike civil litigation, redress schemes do not make findings of guilt or responsibility. As administrative processes, redress schemes typically have a lower evidentiary standard than civil litigation, and they use a variety of decision-making processes. A redress scheme is often the only feasible civil justice option when credible evidence no longer exists, too much time has passed, and defendants are deceased and thus cannot be sued. It offers victims a potentially faster and less onerous justice process. A trade-off is that money payments in redress schemes are, by and large, lower than those in civil litigation; and in accepting them, claimants typically waive their rights to sue. However, redress schemes have more elements than civil litigation. Almost all include apologies, most have services or benefits such as counselling, and some have memorials and commemorative activities.

My analysis of 19 cases in Australia and Canada as of mid-year 2010 (Daly 2014a), together with a 20th New Zealand case, shows that criminal prosecutions and civil litigation often precede and run alongside redress schemes. Of the 20 cases, 15 had criminal prosecutions that resulted in convictions, and 17 had civil litigation and settlements. Why, then, has institutional abuse of children become a matter of recent public concern and legal action?

Discovering and Responding to Institutional Abuse

Inquiries and investigations of child maltreatment or cruelty to children are not new. They began in the mid-nineteenth century in Canada and Australia (Daly 2014a; Swain 2014), with a significant New Zealand Royal Commission held in 1900 into the Stoke Industrial School (Dalley 1998). Foster care and boarding out formed the largest proportion of out-of-home care for children in the twentieth century in Australia and New Zealand; in Queensland, for example, 10 to 20 per cent of children were in residential care (Forde 1999, 38). The conditions of daily life in residential facilities in Australia (Daly 2014a; Penglase 2005) and New Zealand (Dalley 1998; Stanley 2015), as recalled by adult care leavers, are remarkably similar. Although some residential facilities were better than others, common themes were isolation and separation from family and culture, regimes of control and fear, lack of food and poor sanitary conditions, and degradation and neglect. Runaways from institutions were common and a clear sign of children's

distress. This institutional reality was largely hidden from public view and could not be seen even by social workers until the mid- to late 1980s (Daly 2014a, 86–95).

Change came with new ideas about childhood, new concepts that facilitated seeing abuse, significant cases of clergy sexual abuse, and what I term the "sexual turn" in the institutional abuse story (Daly 2014a, 92–95). A societal shift occurred in the early 1960s in affluent nations of the developed world toward a more child-centred world, a "prizing of childhood" that came with higher standards of living, lower birth rates, and better treatment of child illnesses (Corby et al. 2001, 43). Institutional abuse as a social problem built upon the rediscovery of familial child *physical* abuse in the 1960s. Concept diffusion—that is, seeing child physical abuse as widespread—occurred in the late 1960s and early 1970s (Parton 1979). The discovery of child *sexual* abuse began in the 1970s. The term *child sexual abuse* was used for the first time in published research by de Francis (1969) and Gil (1970). The next step—of seeing child sexual abuse as widespread—began in the 1970s and continued into the 1980s. Like child physical abuse, attention centred on familial sexual abuse.

Major media cases of sexual abuse of boys by Catholic clergy in open settings first arose in the USA in the mid-1980s, in Canada in the late 1980s, and in Australia and New Zealand in the early 1990s. Although the offending took place in open church settings, the admissions and criminal convictions of priests made children's reports of sexual offending in closed institutions more credible. Finally, and related to clergy abuse, the sexual turn in the abuse story transformed what had previously been authorities' concerns with too harsh corporal punishment into a recognition of "a more disturbing form of abuse" (Corby et al. 2001, 83), *sexual abuse* by male adults of boys in their care. This galvanised a belief that something needed to be done in order to address institutional abuse.

What Sparked Responses to Institutional Abuse?

In other work, I have detailed the sequence of events that sparked responses to institutional abuse in Australia and Canada (Daly 2014a) and have schematized responses for Denmark, England and Wales, Norway, and Sweden (Daly 2014b). Each country or jurisdiction has a specific signature which is formed by its policies and practices toward vulnerable groups and, in some cases, wrongs against political minority groups.

Distilling greatly, after a period of intermittent investigations and media stories, there is heightened public concern to do something about the problem. Then, a series of triggering factors precipitate sustained responses by authorities. These factors include media stories—often termed "shocking" (Sköld 2013, 14)—of survivors' memories of abuse and institutional life, a media focus on failed investigations and cover-ups by authorities, the pressure of civil litigation, and campaigns by advocacy groups. A frequent triggering factor in Australia is media stories of alleged cover-ups by police, government, and church or charitable organisations. These heighten a belief that if only authorities had acted sooner, fewer children would have been hurt or suffered.

For New Zealand, the evolution of responses to institutional abuse has not been written or published before; thus, I briefly sketch it.[10] With civil litigation lodged against three government ministries, as well as church and charitable organisations; periodic review by the UN Committee against Torture (UNCAT); and strong legal advocacy for claimants—initially by GCA Lawyers, and then by Cooper Legal—the New Zealand story has many layers.

The set of events that triggered a sustained *government* response by the Ministry of Social Development (MSD)—formerly the Department of Social Welfare (DSW)—in 2006 can be chronicled this way.[11] Softening the ground, in the mid-1970s, children alleged physical and sexual abuse and an inappropriate use of electric shock treatments in a child and adolescent unit of the Lake Alice Hospital, a psychiatric facility under the authority of the Ministry of Health (MoH). Two complaints were investigated in 1977, and the unit closed in 1978. At the same time, the Auckland Committee on Racism and Discrimination received complaints of abuse in children's facilities under the authority of DSW. These were investigated by the Human Rights Commission, and its 1982 report "raised serious questions" about procedures and practices in residential care (Dalley 1998, 302).[12] By 1990, almost all residential facilities were closed. In 1997, media reports began to emerge of the experiences of former Lake Alice residents, and the numbers grew when the Christchurch-based law firm GCA Lawyers encouraged people to come forward. Ultimately, the government legally settled the Lake Alice case with 185 former residents during 2000 and 2001. In the mid-1990s, media reports of abuse in a Ministry of Education (MoE) unit—Waimokoia Residential School—led to the state's prosecuting three former school staff members, one of whom was convicted.

In 2004, MSD began receiving civil claims alleging historic abuse at institutions under DSW authority in 1950 through to 1994. In 2006, it established the Care, Claims and Resolution Team—later called the Historic

Claims Team—to handle them. Wellington-based law firm Cooper Legal represented almost all claimants and has pushed strongly for their rights. As of 31 March 2016, MSD had received 1862 claims, of which 1030 were resolved. Of resolved cases, 817 (79 per cent) were validated and offered a payment.

Redress Activities

Redress activities include inquiries and investigations, redress schemes, and the specific elements and outcomes of redress schemes.

Inquiries and Investigations

Except for Norway,[13] Australia has the highest number of public inquiries and redress schemes of any country. There have been five major government inquiries, which have produced seven reports. The inquiries are as follows: the HREOC's inquiry conducted from 1995 to 1997; the Forde inquiry conducted in Queensland from 1998 to 1999; two Australian Senate Committee inquiries, one on Child Migrants undertaken from 2000 to 2001, and a second on Forgotten Australians in residential care conducted from 2000 to 2004, and those in foster care undertaken from 2000 to 2005;[14] and the Mullighan inquiries into sexual abuse in South Australia, and on the Aboriginal Anangu Pitjantjatjara Yankunytjatjara (APY) lands conducted from 2006 to 2008. The ongoing RCIRCSA, which began in 2013, will issue its final report(s) by December 2017, but it has already produced a plethora of case studies and reports, including one with recommendations for Redress and Civil Litigation (RCIRCSA September 2015). As of 2016, it has held more than 5000 private sessions with survivors who wish to share their story with the Commissioners, with a further 1500 to be held (RCIRCSA 2016). In addition, the Parliament of Victoria (2013) investigated abuse in non-government institutions, and the Western Australia Legislative Assembly investigated abuse of child migrants (Barnett 1996). Judicial inquiries have examined a country hostel in Western Australia (Blaxell 2012) and the police handling of sexual abuse allegations in an NSW Catholic diocese (Cunneen 2014).

Despite calls for a public inquiry into historical institutional abuse in New Zealand, one has not yet been established. However, in 2005, the Confidential Forum for Former In-Patients of Psychiatric Hospitals was established. It ran for a year and received accounts from 405 former residents,

as well as 88 family members and former staff (Department of Internal Affairs 2007). In 2008, the Confidential Listening and Assistance Service (CLAS) was established, modelled along the lines of the Confidential Forum. It ran for seven years, receiving accounts from 1103 individuals and assisting them in their requests, which were typically for counselling, access to institutional files, and referrals for legal assistance (Henwood 2015).[15]

In 2009, UNCAT began raising questions about MSD's handling of historic claims and a *60 minutes* TV show aired on survivors' experiences. In 2010, there was a High Court push for MSD to settle claims rather than fight them.

Redress Schemes

The first government redress schemes for institutional abuse were established in the 1990s in Ontario and other Canadian provinces. Ireland was next with its Residential Institutions Redress Board (RIRB) which began in December 2002 and which is scheduled to end in 2016. Australia's first government redress scheme was in Tasmania, which ran from July 2003 to February 2013. In New Zealand, MSD introduced an alternative dispute resolution process in 2008 to address a rising number of civil claims. At the end of 2013, it received cabinet approval to establish a two-path process, with one path intended to resolve abuse claims more rapidly than the standard out-of-court resolution process; and in 2015, it announced a fast-track process to resolve outstanding cases. By taking this approach, MSD intends to finalise all its cases by 2020.

Up to mid-year 2010, there were 15 redress schemes in Canada and Australia (Daly 2014a). As of January 2016, there are over 35 additional schemes in the two countries and 13 other jurisdictions.[16] Most schemes are or have been managed by governments—at times co-funded by church organisations—but some are managed by church or charitable organisations alone. As shown in Table 30.1, Australia has completed six government schemes in the four states of Tasmania, Queensland, South Australia, and Western Australia. In addition to these, seven non-government schemes are continuing,[17] and an eighth government scheme began in March 2016 (South Australia's Stolen Generations scheme). Another scheme was proposed in September 2015 (RCIRCSA's national scheme), and two others may be proposed in 2016 or 2017 (in Victoria for institutional abuse and in NSW for the Stolen Generations). Along with Canada and Norway, Australia is unusual in having a high number of redress schemes for institutional abuse of children. New Zealand currently has one scheme for historical abuse.[18]

Redress Scheme Elements and Outcomes

Redress schemes take varied forms. Some are more generous and have more elements than others. Some were created for one institution only, while others are country-wide and include hundreds of institutions and many thousands of adult survivors (Daly 2014a). I limit my analysis to a small set of variables. These are the size of the claimant group, validation rates, subjects of redress, average monetary payments, and whether counselling was provided (See Table 30.1).

Several points will aid the reader in interpreting (Table 30.1). First, some schemes have two-levels, like Queensland; or have changed over time in the capped amount, like Tasmania; or are differentiated by how the government receives the claim, like New Zealand. Thus, two rows are allocated for these schemes. Second, a scheme's money logic has two dimensions: how to decide and how much to pay. *How to decide* can either be an individualised assessment of abuse, treating eligible claimants equally, or using another formula. Individualised assessments use grids, matrices, or scoring systems to assess abuse and severity, or to assess abuse, severity, and its impact. For equality approaches, claimants receive the same amount as a flat payment or a pool of money is divided equally among eligible claimants. Other formulas include calculating payments based on the number of years a survivor spent in an institution. *How much to pay* can be open-ended, with a high maximum cap, or it can have a lower cap or be a flat payment.

As shown in columns three to five, the number applying to schemes varies from less than 200 to over 10,000 claimants. Of these, a smaller share is validated to receive a payment. Validation rates in this sample range from 64 to 90 per cent, and the average is 75 per cent. Only one scheme—South Australian Institutions—addresses sexual abuse only.

Queensland's money logic combined an equal, or flat, payment at level 1; and an individualised payment, capped at AUD33,000, at level 2. Nearly 7500 people received a flat payment of over AUD7500 when adjusted for inflation, and about 3500 people received the flat payment and an individualised payment for a total of AUD21,600. The Queensland scheme was constrained by having a fixed pool of funds; this occurred in Redress Western Australia and may be affecting recent payments in New Zealand. Except for the New Zealand cases filed in court, all the individualised approaches in Table 30.1 had, or have, a low maximum cap, which unadjusted for inflation, ranges from AUD33,000 to 60,000. Such caps can be misunderstood by survivors, who often believe they are entitled to the maximum. Averages are a

Table 30.1 Australian and New Zealand redress schemes

Case#	Case name and scheme	# of claims	Validated claims		Money logic	Based on proving	Average payment in AUD*	Counselling	Comments on estimates and outcomes
			#	%					
AU2	Queensland Institutions (level 1)	10,218	7,453	73%	flat equal	abuse and its severity (declaration)	7,662	yes	Began with pool of about AUD 100 million. All level 1 payments were distributed; the residual was then allocated to validated level 2 claimants.
	Queensland Institutions (level 2)	5,416	3,492	64%	individualised, low cap	abuse, its severity, and impact	21,644	yes	This figure combines level 1 and level 2 payments. Cap for level 2: AUD 33,000. Cap for level 1 and 2: AUD 40,000.
AU5	Tasmanian Institutions (phases 1–3)	1,873	1,454	78%	individualised, low cap	abuse, its severity, and impact	40,791	yes	Cap: AUD 60,000
	Tasmanian Institutions (phase 4)	541	382	71%	individualised, low cap	abuse, its severity, and impact	14,136	yes	Counselling reduced in phase 4 to 3 sessions. Cap: AUD 35,000
AU6	South Australian Institutions	129	91	71%	individualised, low cap	sexual abuse, its severity and impact	14,718	yes	Figures as of 30/07/2014; 79% applications resolved.

(continued)

Table 30.1 (continued)

Case#	Case name and scheme	# of claims	Validated claims		Money logic	Based on proving	Average payment in AUD*	Counselling	Comments on estimates and outcomes
			#	%					
									Average payment is of those accepting the offer. Cap: AUD 30,000 (50,000 in "exceptional cases").
AU7	Tasmanian Stolen Generations	128	84	66%	equal, other formula	no abuse had to be established	67,073	yes, on request	Began with pool of AUD 5 million. Of 23 family members who applied, 22 validated; AUD 100,000 awarded to family members for an average of 4,545 per person. Residual of AUD 4.9 million allocated equally to 84 validated members of Stolen Generations. Redress for policy wrong.
AU8	Redress Western Australia	5,768	5,210	90%	individualised, low cap	abuse, its severity, and impact	24,361	interim, but more on request	Cap: AUD 45,000

(continued)

Table 30.1 (continued)

Case#	Case name and scheme	# of claims	Validated claims		Money logic	Based on proving	Average payment in AUD*	Counselling	Comments on estimates and outcomes
			#	%					
AU9	Western Australian Country High School Hostels	105	90	86%	individualised, low cap	abuse, its severity, and impact	36,333	yes	Cap: AUD 45,000
NZ1	NZ Historic Claims (sent to MSD)	821 resolved cases	665	81%	individualised, low cap	abuse, its severity, and impact	17,743**	yes, if requested to CLAS	MSD-reported data as of 31/03/2016; 64% of applications resolved. Cap: NZD 50,000 for fast track, but can be higher if the other path is taken. Some claimants have legal representation.
	NZ Historic Claims (filed in court)	209 resolved cases	152	73%	individualised, no stated cap	abuse, its severity, and impact	19,752***	yes, if requested to CLAS	MSD-reported data as of 31/03/2016; 36% of applications resolved. Negotiated outcomes. All claimants have legal representation.

*Only this column adjusts for GDP in AUD (year 2012) except for NZ schemes. Caps and other money amounts shown on the table are not adjusted for inflation. Amounts are net of legal fees or costs

** Average NZD 19,089; used NZD/AUD exchange rate 0.92948 (2015)

*** Average NZD 21,215; used NZD/AUD exchange rate 0.92948 (2015)

preferable metric to understand and compare payments, and a realistic rule of thumb for an individualised scheme with a low maximum is that the average payment is about half the maximum.

For the individualised schemes, and except for Tasmanian Institutions (phases 1 to 3, AUD40,800) and Western Australia County Hostels (AUD36,300), adjusted payments cluster between AUD14,000 and 24,000. The scheme with the highest payment is Tasmanian Stolen Generations with AUD67,000; it used an equality-based approach of dividing a fixed pool of AUD4.9 million among 84 validated claimants. Worldwide, most schemes have maxima of AUD80,000 or less. But two have very high caps of over AUD200,000: they are Ireland's RIRB with EUR300,000 and the level 2 payment in Canada's Indian Residential Schools (the Independent Assessment Process) with CAD275,000, but up to 430,000 for proved loss of income. For these schemes, the average payment was AUD88,000 and 97,500, respectively (Daly 2016). The redress scheme proposed by the RCIRCSA is modelled on an estimated 60,000 eligible claimants and an average payment of AUD65,000.

Although victims and survivors say that it is not the money that matters in pursuing redress, in time it does come to matter because it symbolises the degree to which survivors' experiences of abuse and neglect are validated and vindicated. By validated is meant that victims' suffering is believed, acknowledged, and recognised, and by vindicated is meant that the offending party has admitted that a wrong occurred (Daly 2014a, 2016). In addition to a money payment, another frequent redress element is counselling. As shown in Table 30.1, counselling was part of almost all redress schemes, although some have been more generous than others. In New Zealand, counselling was not part of the Historic Claims process, but if it was requested during CLAS, a person could receive up to 12 counselling sessions (Henwood 2015).

Conclusion

Historical institutional abuse of children began to emerge as a significant social problem in affluent democratic nations in the 1980s. As of January 2016, 20 jurisdictions have held public inquiries, established redress schemes, or done both. This chapter has taken readers on a descriptive tour of a new interdisciplinary field of knowledge and practice, with a focus on developments in Australia and New Zealand. Among the key areas for future research are the following. For philosophy and questions of justice, what do offending institutions such as governments, churches, and charities *owe* survivors and why?

For politics, what explains a political penchant for redress *now*, why are some responses more generous than others, and what priority do citizens who are not survivors give to redress and why? For the law, can individualised approaches to assessing abuse be transformed to be more meaningful to the lived experience of institutional abuse? What other redress logics and procedures are possible? For socio-legal processes and impact, how do responses to institutional abuse affect survivors, alleged or admitted perpetrators, professional advocates and service providers, and others? Are some redress responses more effective than others? These and other questions will provide fertile ground for researchers and the development of theory in the years ahead.

Notes

1. As discussed below, there were numerous investigations of child maltreatment in Australia, dating from 1855. However, as in other countries, these focussed on too harsh discipline or corporal punishment, not on physical or sexual abuse as named social problems (Daly 2014a, 84–92).
2. Members of my research team (Victoria Meyer and Dannielle Wade) and I identified these jurisdictions in a worldwide review. My thanks and appreciation to them and to Sonja Cooper, Bronwyn Dalley, Amanda Hill, Lizzie Stanley, and Stephen Winter for their reviews of a draft of this chapter.
3. It will only be a matter of time when the social problem of institutional abuse is "discovered" in less affluent nations and countries of the developing world.
4. Collateral effects of conflict and displacement are immigration detention centres and refugee camps, which put children and adults at further risk of victimisation.
5. Although I focus here on institutional abuse of children, such abuse is not limited by age (Stanley et al. 1999).
6. About 7000 children were sent from Great Britain to Australia from 1912 to 1970 (Daly 2014a, 47), and 550 were sent to New Zealand after World War II (1948 to 1953) (Dalley 1998, 176). Canada began receiving children in 1869, but ended child migration in 1935 (Australian Senate Report 2001, 60).
7. Although we lack definitive data, we may assume that economically disadvantaged people, Indigenous peoples, and other members of racial–ethnic minority groups are a higher share of abuse victims in closed than open settings. They were (and are) more often subject to social welfare and criminal justice controls, and targets of forced assimilation policies.
8. The term redress is synonymous with reparation, but redress is more often

used in the institutional abuse field; and reparation, for international crime and violations of human rights (Torpey 2006).

9. I do not consider the relationship between corrective and distributive justice in redress scheme design (but see Winter 2014; Daly 2016).
10. A longer, more detailed New Zealand case study will be available on my website: www.griffith.edu.au/professional-page/professor-kathleen-daly/publications/.
11. I focus on government responses, not those by church and charitable organisations. Nor do I describe litigation and payouts by MoH and MoE. However, all this activity is important for grasping the totality of institutional abuse and redress in New Zealand.
12. Youth who were living in DSW facilities would be brought to the Lake Alice unit for what was called treatment (but was, in fact, punishment) when it was operating from 1972 to 1977; thus, there is crossover in the claims arising from the Lake Alice unit and MSD claims.
13. At year-end 2009, Norway had a national scheme and 30 distinct municipal schemes (Pettersen 2010, 55–57).
14. There have been other key Senate inquiries on the Australian Government's implementation of the Senate's previous inquiries on historical institutional abuse, along with a review of the Government's compensation schemes (Daly 2014a, 278–279).
15. Neither Forum could grant or recommend monetary payments. After they closed, the information provided to them was sealed.
16. The estimate includes a sample of ten Norwegian schemes, not all of them.
17. These are *Towards Healing*, *Melbourne Response*, *Anglican Church, Jewish Centre, Yeshiva Centre*, and *Salvation Army Eastern and Southern Territories*.
18. There are two others, both established in 2013: one addresses claims against MSD that occurred from 1993 to 2007; and a second, those against MoH for abuse in psychiatric hospital care before 1992 (except Lake Alice child/adolescent unit claimants).

References

Australian Senate. 2001. *Lost Innocents: Righting the Record, Report on Child Migration*. Canberra: Commonwealth of Australia.

Australian Senate. 2004. *Forgotten Australians: A Report on Australians Who Experienced Institutional or Out-of-Home Care as Children*. Canberra: Commonwealth of Australia.

Australian Senate. 2005. *Protecting Vulnerable Children: A National Challenge, Second Report on the Inquiry into Children in Institutional or Out-of-Home Care*. Canberra: Commonwealth of Australia.

Barnett, Michael. 1996. *Interim Report of the Select Committee on Child Migration*. Perth: WA Parliament Legislative Assembly.
Blaxell, Peter. 2012. *St Andrew's Hostel Katanning: How the System and Society Failed Our Children*. Perth: Government of Western Australia.
Corby, Brian, Alan Doig, and Vicky Roberts. 2001. *Public Inquiries into Abuse of Children in Residential Care*. London: Jessica Kingsley Publishers.
Csáky, Corinna. 2009. *Keeping Children out of Harmful Institutions: Why We Should Be Investing in Family Based Care*. London: Save the Children's Fund.
Cunneen, Margaret. 2014. *Special Commission of Inquiry into Matters Relating to the Police Investigation of Certain Child Sexual Abuse Allegations in the Catholic Diocese of Maitland-Newcastle*. Sydney: State of NSW.
Dalley, Bronwyn. 1998. *Family Matters: Child Welfare in Twentieth-Century New Zealand*. Auckland: Auckland University Press.
Daly, Kathleen. 2014a. *Redressing Institutional Abuse of Children*. Basingstoke: Palgrave Macmillan.
Daly, Kathleen. 2014b. Conceptualising Responses to Institutional Abuse of Children. *Current Issues in Criminal Justice* 26 (1): 5–29.
Daly, Kathleen. 2016. Money for Justice: Ex Gratia Redress for Historical Institutional Abuse. In *The Sexual Abuse of Children: Recognition and Redress*, eds. Yorick Smaal, Amanda Kaladelfos, and Mark Finnane, 160–177. Melbourne: Monash University Publishing.
Department of Internal Affairs. 2007. *Te Āiotanga: Report of the Confidential Forum for Former In-Patients of Psychiatric Hospitals*. Wellington: Department of Internal Affairs.
De Francis, Vincent. 1969. *Protecting the Child Victim of Sex Crimes Committed by Adults*. Denver, CO: American Humane Association.
Forde, Leneen. 1999. *Report of the Commission of Inquiry into Abuse of Children in Queensland Institutions*. Brisbane: Queensland Government.
Gil, David. 1970. *Violence against Children: Physical Child Abuse in the United States*. Cambridge, MA: Harvard University Press.
Gil, David. 1975. Unravelling Child Abuse. *American Journal of Orthopsychiatry* 45: 346–356.
Golding, Frank. 2016. *Mismanaging Expectations: The Dominance of Sexual Abuse at the Royal Commission*. http://frankgolding.com/mismanaging-expectations-the-dominance-of-sexual-abuse-at-the-royal-commission. Accessed 18 May.
Henwood, Judge Carolyn. 2015. *Some Memories Never Fade: Final Report of the Confidential Listening and Assistance Service*. Wellington: Department of Internal Affairs.
HREOC. 1997. *Bringing Them Home: National Inquiry into the Separation of*

Aboriginal and Torres Strait Islander Children from their Families. Sydney: HREOC.

Ministry of Social Development. 2016. *Claims Standard Data Report*. https://www.msd.govt.nz/about-msd-and-our-work/contact-us/complaints/cyf-historic-claims.html. Accessed 16 May.

Mullighan, Edward P. 2008a. *Children in State Care Commission of Inquiry: Allegations of Sexual Abuse and Death from Criminal Conduct*. Adelaide: Office of the Commissioner.

Mullighan, Edward P. 2008b. *Children on Anangu Pitjantjatjara Yankunytjatjara (APY) Lands Commission of Inquiry: Report into Sexual Abuse*. Adelaide: Office of the Commissioner.

Human Rights Commission. 1982. *Report of the Human Rights Commission on Representations by the Auckland Committee on Racism and Discrimination, Children and Young Persons Homes Administered by the Department of Social Welfare*. Wellington: Human Rights Commission.

Parliament of Victoria. 2013. *Betrayal of Trust: Inquiry into the Handling of Child Abuse by Religious and Other Non-Government Organisations*. Melbourne: Parliament House.

Parton, Nigel. 1979. The Natural History of Child Abuse: A Study in Social Problem Definition. *British Journal of Social Work* 9 (4): 431–451.

Penglase, Joanna. 2005. *Orphans of the Living: Growing Up in 'Care' in Twentieth-Century Australia*. Fremantle: Curtain University Books.

Pettersen, Karen-Sofie. 2010. *Public Redress Schemes for Former Children in Care*. Oslo: University of Oslo.

RCIRCSA. 2015. *Redress and Civil Litigation Report*. Sydney: Commonwealth of Australia.

RCIRCSA. 2016. *Private Sessions*. http://www.childabuseroyalcommission.gov.au/share-your-story/private-sessions. Accessed 18 May.

Sköld, Johanna. 2013. Historical Abuse – A Contemporary Issue: Compiling Inquiries into Abuse and Neglect of Children in Out-of-Home Care Worldwide. *Journal of Scandinavian Studies in Criminology and Crime Prevention* 14 (Sup 1): 5–23.

Stanley, Elizabeth. 2015. Responding to State Institutional Violence. *British Journal of Criminology* 55 (6): 1149–1167.

Stanley, Nicky, Jill Manthorpe, and Bridget Penhale (eds.). 1999. *Institutional Abuse: Perspectives across the Life Course*. London: Routledge.

Swain, Shurlee. 2014. *History of Australian Inquiries Reviewing Institutions Providing Care for Children*. Canberra: Australian Catholic University.

Torpey, John. 2006. *Making Whole What Has Been Smashed: On Reparations Politics*. Cambridge, MA: Harvard University Press.

UNCAT. 2013. *Sixth Periodic Reports of States Parties due in 2013: New Zealand.*

(CAT/C/NZL/6). Wellington: NZ Government.
Winter, Stephen. 2014. *Transitional Justice in Established Democracies: A Political Theory*. Basingstoke: Palgrave Macmillan.

Author Biography

Kathleen Daly is Professor of Criminology and Criminal Justice at Griffith University. A former president of ANZSOC, she received the Society's Distinguished Criminologist Award and the Christine M. Alder Book Prize for *Redressing Institutional Abuse of Children* in 2015. She is a Fellow of both the Australian Academy of the Social Sciences and the ASC.

31

Privatisation of Criminal Justice

Alice Mills

Privatisation has occurred in many elements of the criminal justice system over the last 30 years on both sides of the Tasman. This has occurred principally in policing and prisons, but there are elements in community corrections, court security, and transportation of prisoners too. Definitions of privatisation vary. In this chapter, it refers to an element of public sector operations being transferred to the private sector whilst the overall responsibility and regulatory control for the service remains with the public sector, which commissions or purchases the service (Moyle 2000). The opportunity for private sector profit is found in the ability to deliver the contracted services at a cost below the negotiated sum (Harding 1997). This chapter charts the course and context of privatisation in Australia and New Zealand, primarily in prisons although reference will also be made to community corrections, prisoner transportation, court security, and electronic monitoring. It examines key debates in prison privatisation in Australia and New Zealand and assesses the evidence for these arguments and the implications of private sector involvement in other parts of the criminal justice system.

A. Mills (✉)
University of Auckland, Auckland, New Zealand
e-mail: a.mills@auckland.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_31

The Course and Context of Prison Privatisation in Australia and New Zealand

Australia was the second developed westernised Anglophone country to use private companies to operate prisons (Harding 1997) after the USA opened its first private prison in 1986 (Biles 1997). The first privately run correctional establishment named Borallon—a 244-bed minimum and medium security prison near Brisbane—opened in January 1990. It was operated by Corrections Corporation of Australia[1] (CCA). Borallon was followed by the Arthur Gorrie Correctional Centre in 1992, and Junee prison in NSW in 1993. The latter was the first Australian prison to be designed, constructed, and managed by a private company, Australasian Correctional Management (ACM).[2] Victoria has been the most enthusiastic about prison privatisation, contracting three new prisons—Metropolitan Women's, Fulham, and Port Phillip—which were built, owned and operated by the private sector on 20-year contracts (Love et al. 2000). In 1995, a company named Group 4 secured the contract for Mount Gambier Prison in South Australia. In 2001, Western Australia opened its first privately run establishment, Acacia Prison, followed by Wandoo Reintegration Facility which opened in 2012. Both are currently run by the Serco Group plc (henceforth, Serco). According to the Steering Committee for the Review of Government Service Provision (SCRGSP 2015), nine out of 94 prisons and correctional centres in Australia were operated by private contractors in 2015. In 2014, 18.5% of prisoners in Australia were accommodated in private prisons; the highest rate of private incarceration per capita in the world (Mason 2013). In Victoria, nearly 32% of prisoners are in private hands (Steering Committee for the Review of Government Service Provision 2015).

In New Zealand, enthusiasm for private prisons has been somewhat more tempered, at least partly due to a lack of political consensus between the two main parties on prison privatisation. In 1999, ACM was granted a five-year contract to run Auckland Central Remand Prison (ACRP)—now part of Mt Eden Corrections Facility—under the National government. The Labour party has long been ideologically opposed to private prisons. Hence, the Labour government took back control of ACRP at the end of the contract. Moreover, the *Corrections Act 2004* made New Zealand the first country in the world to legislate *against* private management of prisons (Cavadino and Dignan 2005). The *Corrections Amendment Act 2009,* introduced by the subsequent National government, allowed competitive tendering for private sector prison management once again. In 2011, a 10-year contract to manage Mt Eden Corrections

Facility was awarded to Serco. However, the prison was taken back into state control in 2015. At the time of writing, only one out of 18 New Zealand prisons is run by a private company, namely Auckland South Corrections Facility (ASCF)—also known as Kohuora or Wiri prison—a 960-bed men's prison, which was financed, designed, built, and operated through a public–private partnership. The prison is operated by Serco on a 25-year contract. It holds just over 10% of the New Zealand prison population. The private consortium Next Step Partners (NSP) has recently been contracted to design, build, and maintain a new maximum security wing at Auckland Prison, also known as Paremoremo (NZ Department of Corrections 2016a).

In both Australia and New Zealand, private sector involvement in corrections has been promoted by the practical pressures of rising prison populations and the need to restrict state expenditure on prisons. Between 1984 and 1996, the Australian prison population increased from under 9500 to nearly 17,000 (Biles 1997), partly as a result of truth-in-sentencing legislation in some states. Not only burgeoning prison numbers, but overcrowding, inadequate and poorly maintained facilities, and rising costs have all increased the attractiveness of private sector involvement (Harding 1997; Roth 2004; Russell 1997). Victoria, however, did not experience an increasing prison population. Here and elsewhere, privatisation stemmed from the neoliberal desire to shrink state involvement in public services provision, and from the belief that the involvement of the market will improve the economic efficacy of public services (Andrew and Cahill 2007), thus ensuring that the 'state cake' has been re-divided to increase the profit margins of private enterprises (Russell 1997).

Key Debates in Prison Privatisation in Australia and New Zealand

Arguments for and against the private sector management of prisons are centred around a number of issues that will be discussed in the following section, including the cost-effectiveness of private prisons, their impact on industrial relations, the potential for improved prison conditions, and the moral legitimacy of private prisons.

Cost-Effectiveness and Value for Money

The main argument put forward by advocates of prison privatisation is that it can deliver substantial cost savings to the state and provide increased value for

money because private sector companies have a commercial incentive to improve cost-effectiveness and to develop efficient management practices. The privatisation of Borallon—under contract to the newly formed Queensland Corrective Services Commission (QCSC)—was recommended in order to develop a competitive correctional services market that would increase the cost-effectiveness of services and provide a benchmark against which the performance of the public sector could be measured (Kennedy 1988; Moyle 2000). Prisons procured from the private sector under Build-Own-Operate systems may be more cost-efficient than those procured by other means, as any risk that the design and construction of a new prison involves—such as time and cost overruns—is transferred to the private sector (Love et al. 2000). The NSW government commissioned Junee prison for AUD57 million, which Love et al. (2000) estimate was approximately half the amount a publicly built prison would have cost.

However, evidence regarding the cost-effectiveness of private prisons is equivocal and conflicting. In some instances, private prisons do appear to be cheaper to run than their public counterparts. The Auditor-General in NSW, for example, found that in 2002/03 the annual net cost per inmate was AUD34,145 in Junee prison compared to nearly AUD61,000 in public prisons with comparable security (Audit Office NSW 2003). In 1993, the net annual cost for a Queensland prisoner was 9.3% higher in a public prison than in a comparable private sector establishment (Love et al. 2000). In 1991, the net daily cost per offender was AUD104.69 in Borallon and AUD101.54 in Lotus Glen, a comparable state prison in far-north Queensland (Moyle 2000). In New Zealand, ACM was given NZD42,000 per ACRP prisoner per year, whilst the equivalent amount for public prisons was NZD36,000 (Swain 2004); undermining an important economic justification for the introduction of private prisons. Furthermore, it is unclear whether these figures include any state overheads, that is, the costs of tendering, contract compliance, and monitoring (Andrew and Cahill 2007), which may eat away at any savings to the public purse (Roth 2004).

Industrial Relations and Staffing

Private prison operators can make substantial savings through the deployment of fewer, less experienced, less trained, and non-unionised correctional officers (Roth 2004; Russell 1997). It is, therefore, unsurprising that privatisation has been used by state governments to disempower prison workers' unions (Biles 1997; Harding 1997), to reduce the wage bill, and to drive regime and

programme changes that have been undermined by union resistance in the past (Harding 1992). Arthur Gorrie Correctional Centre in Queensland was put out to tender by the state's Labor government, following union resistance to revised work practices and a breakdown of negotiations with the State Service Union (Prison Officer branch). This happened notwithstanding that Labor had rejected prison privatisation whilst in opposition (Harding 1992). In other instances, the very threat of privatisation has led to programme reform, substantial fiscal savings, and the restoration of management control in public sector prisons. In Western Australia, the state government reached an agreement with the Western Australia Prison Officers' Union to introduce a restructuring package of working practices which saved AUD8 million in return for a guarantee from government not to "privatise any existing WA prison or contract out existing standard duties of prison officers before December 31 1997" (Government of Western Australia 1994, para 9). In the Northern Territory, the threatened privatisation of a replacement for Alice Springs prison also persuaded the Prison Officers' Association to cooperate in the introduction of a unit management approach (Harding 1992). Comparable threats have been used in NSW to discipline prison staff unions into accepting the Way Forward model, which is designed to increase managerial flexibility and diminish the influence of the unions over staffing issues (Andrew and Cahill 2007). As Andrew et al. (2016) have noted, whilst prisoners are now viewed as stakeholders in the penal system in Australia, prison staff are increasingly viewed as costs, and their strategic position and working conditions have become marginalised in the process of, and in debates around, privatisation.

Innovation and Prison Conditions and Regimes

Additionally, if properly administered and regulated, prison privatisation has been argued to present an opportunity to introduce innovation and improve standards in prison (Harding 1994, 1997). The Māori Party in New Zealand has argued in favour of prison privatisation on grounds that it presents a chance to create better prison programmes for Māori (Radio NZ 2009).[3] In some cases, contractual arrangements have sought to encourage innovation and improve performance. The contract for ASCF in New Zealand is one such arrangement. Serco and its consortium partners receive an incentive payment if 10% fewer prisoners serving their sentence at ASCF return to prison within a two-year period after release compared to those serving their sentences in state-run facilities. Under the contract, all intellectual property

developed for ASCF may be used by Corrections so any successful innovations may be integrated into Corrections practice (NZ Department of Corrections 2016b).

The argument that privatised prisons may promote improved prison conditions, however, crucially ignores the commercial agenda of private sector companies (Moyle 2000) and the continued discord between the profit needs of private enterprises and the social needs of prisoners (Russell 1997). This is exemplified by the case of Borallon in Queensland, which was initially established to provide better training and work opportunities for prisoners. Apprenticeships were deemed too expensive to run. Instead, frustrating and monotonous contract work was introduced with a bonus system that actively discouraged participation in part-time educational programmes (Moyle 2000). In contrast, at Lotus Glen, a state-run prison, commercial activities were designed to stimulate a real working environment and to provide valuable vocational training (Moyle 2000). For Moyle (2000), this demonstrates that the central objective of Borallon's provider, CCA, was to reduce costs and increase profits, rather than a desire to equip prisoners with skills for life on the outside.

Moreover, the continued emphasis on the cost-effectiveness of a prison market ignores the impact of cost reduction measures on the quality of service delivery and on the corrective objectives of incarceration (Andrew and Cahill 2007). In the early days of prison privatisation in Australia, private prisons experienced a high incidence of suicide, self-harm, prisoner assault, staff assault, and serious disturbance compared to state prisons (Harding 1997; Moyle 2000; Russell 1997). Poor treatment of prisoners and insufficient opportunities in education and training caused an increased level of tension, which appears to have led to a high incidence of assaults and riots (Russell 1997). This situation was exacerbated by poorly trained, inexperienced staff; low levels of staff; low staff morale; and high staff turnover. These observations are supported by Rynne, Harding, and Wortley (2008) who argue that organisational changes and cost-cutting measures, which the QCSC introduced at Woolford Corrections Centre to meet the conditions of its own unrealistic bid to operate the prison, led to an institutional breakdown and ultimately a prisoner riot.

Lapses in prison security and violence and deaths in prison have also resulted in a small number of private prisons being handed over to the state, exemplifying the important criticism that when private management fails, it falls to the public sector and the taxpayer to shoulder the costs and liability of this failure. Despite receiving three default notices, CCA, the operator of Metropolitan Women's Prison in Victoria, remained noncompliant in a

number of areas including security issues, the control of illicit drugs, and the identification and management of prisoners at risk of self-harm (Haermeyer 2000). As a result, the state government took ownership and control of the prison in October 2000 at a cost of AUD21 million (Andrew et al. 2016). In New Zealand, Serco failed to meet 48% of its targets in the first year of operating Mt Eden Corrections Facility (Johnson 2012), although standards improved in subsequent years. Concerns over security breaches, prisoner welfare and violence, including organised fight clubs and the death of a prisoner—allegedly as a result of being thrown off a balcony, a practice known as 'dropping'—led to a public outcry. The Department of Corrections regained control over the prison in July 2015 (Sachdeva 2015). In December 2015, it was announced that Serco's contract would be terminated. Despite this, the government noted it would consider putting the prison back into private hands, and the then Prime Minister John Key stated that Serco would not be precluded from bidding to run other prisons in future (Sachdeva 2015).

The Moral Legitimacy of Private Prisons

Perhaps the most cited argument against the involvement of the private sector in running prisons is one of morality. As Radzinowicz (1988) argues "In a democracy grounded on the rule of law and public accountability, the enforcement of penal legislation … should be the undiluted responsibility of the state". If devolved, punishment loses its moral legitimacy (Harding 1997).

In response to this, Harding (1997) identifies two lines of argument. Firstly, the deprivation of citizens of their liberty remains solely a function of the state. This is done by an independent judiciary which represents state authority; both symbolically and practically. The administration or delivery of punishment is separate from its allocation and could be delegable as long as contractors are effectively accountable to the state, and the state remains actively accountable to its citizens (Harding 1997; Logan 1990). Secondly, the public penal system has a patchy and poor track record on delivery of punishment, and it should, therefore, be possible if not imperative to explore alternatives. For Harding (1997, 23), the moral purist argument is something of "intellectual indulgence". What should matter is the quality of the service rather than who provides it (Newbold 2016; Roth 2004).

Following Harding's first point—to ensure the legitimacy of private prisons—the distinction between the allocation of punishment and its administration must be strictly maintained. However, divisions between allocation and administration of punishment can be distorted (Harding 1994). Private prison

operators such as those at Arthur Gorrie Correctional Centre in Queensland are involved in decisions regarding security classifications and prison transfers, and private prison managers provide information that can have a direct influence on release decisions such as parole or work release. Such decisions can substantially restrict prisoners' lives or affect their progress through the system (Harding 1994). Moreover, private prison managers can allocate punishment for disciplinary offences, including solitary confinement, or loss of privileges or earnings. Under the 'binary disciplinary system' in New South Wales, South Australia, and Western Australia, disciplinary proceedings for major offences are presided over by visiting magistrates (Dugan et al. 2003), but minor charges can be heard and determined by prison staff (Corrective Services NSW 2016; Western Australia Department of Corrective Services 2016). A similar system operates in New Zealand, although misconduct reports have to be approved by a prosecutor before charges can be laid (NZ Department of Corrections 2016c). In Queensland and Victoria, all offences against prison discipline are heard and determined by senior prison staff (Dugan et al. 2003; Ombudsman Queensland 2009). The commercial interests of private companies may influence these decisions. At Borallon, Moyle (2000) found that disciplinary hearings could be affected by perceived concerns about troublesome inmates and the need to transfer them out of the prison. Moyle (2000) and others have therefore argued that charges should be brought before a state-appointed monitor, similar to the original role of the 'controller' in UK private prisons, where a senior public official dealt with all disciplinary charges laid.

Accountability, Commercial Sensitivities, and Monitoring

Despite the need for effective accountability noted by Harding (1997), measures taken to ensure transparency and the accountability of private prison providers in Australia and New Zealand have been the subject of substantial academic critique. This has occurred for a number of reasons. Firstly, private prison contracts, and information about the standards, activities and costs of private prison operators have been largely withheld from the public domain in Australia (Andrew et al. 2016). This lack of information has been primarily justified with reference to the notion of commercial confidentiality, which may allow private prison operators to shield their activities and failures. A good example of this is provided by Moyle's (2000) research at Borallon where the prison operator, CCA, strictly limited the release of policy and

technical information, and Dr Moyle was denied access to materials such as contracts and audit reports for Borallon and Arthur Gorrie (even those requested through Freedom of Information legislation) on the grounds of commercial confidentiality. The QCSC claimed that disclosing certain documents could have adverse effects on CCA's business and financial interests, acquiescing to CCA's claim that proprietary interests justified restricting access to information (Moyle 2000). Such secrecy curtails judicial scrutiny of decision-making processes in private prisons (Moyle 1994). It also means that prisoners—and their legal representatives—do not have recourse to such information when their rights are infringed, limiting their ability to hold private prisons accountable (Curran 1999). As prison privatisation has become more established in Australia and New Zealand, information is slowly becoming more available. Western Australia and New Zealand initially made all contracts publicly accessible. Western Australia also provides detailed information about the operational costs of private prisons, demonstrating that confidential commercial arrangements are unnecessary (Andrew et al. 2016). In South Australia, Victoria, and NSW, contracts were originally kept confidential for commercial reasons (Harding 1997) but are now in the public domain, although some details are heavily censored (Andrew et al. 2016).

Secondly, to ensure sufficient accountability and improve prison conditions, contracts should specify detailed outcomes so that private prison performance can be monitored against tangible measures (Harding 1997; Roth 2004). In the early days of prison privatisation, contracts in Queensland were input-based and did not specify performance measures (Andrew et al. 2016), and in the case of Junee prison in NSW, the minimum standards document was vague and non-prospective (Harding 1994). Although standards have recently become more specific with the growing use of benchmarks, key performance indicators, and service level agreements (Andrew et al. 2016), the quality and transparency of monitoring processes, which hold contractors accountable to these standards and targets, remain questionable. In New Zealand, two full-time prison monitors—employed by Corrections—are based at ASCF to examine whether Serco operates at the agreed standards, adheres to Corrections policies and procedures, and complies with legislation and international prison standards (NZ Department of Corrections 2016d). In Australia, however, prison monitors are seldom located onsite, and monitors' reports and other performance-related information are rarely made publicly available (Andrew et al. 2016). Andrew et al. (2016) therefore argue that whilst private prisons in Australia are subject to greater internal accountability within prison systems, they still lack external accountability to the general public.

Community Corrections

In community corrections in Australia and New Zealand, services not provided by the state have traditionally been the proviso of NGOs rather than involving commercial companies. NGOs and Indigenous community organisations provide both community work placements and services to offenders on probation supervision such as counselling, restorative justice, addiction treatment, and cultural programmes (Mills 2015; Musumeci 1997). Despite several decades of neo-liberal governments, which have extolled the virtues of private sector provision, Australia and New Zealand governments have not yet followed the example of England and Wales and contracted out core probation supervision services, although this was mooted in Queensland. In 1997 the separation of Queensland Corrections from QCSC, the latter of which became solely the purchaser of services, heralded the corporatisation of corrections (Macionis 1997). Following this, it was widely expected that community corrections would be market-tested (McCarthy, Lincoln, and Wilson 2000), giving rise to substantial anxieties amongst community corrections staff (Musumeci 1997). As a result of the Peach Report, which found that community corrections had been poorly managed with inadequate resourcing and IT, lack of training for new staff, and low funding to access forensic specialists (Peach 1999), the threat of market testing was removed (McCarthy et al. 2000). Arguments for and against the privatisation of prisons can similarly be applied to community corrections, particularly in relation to the application of punishment through the revocation of community orders. However, due to low levels of funding, community correctional services are less likely to be potential targets of multi-nationals that are seeking to extend their profits (McCarthy et al. 2000). When the Victoria government considered outsourcing the community work programme to private providers (Johnson 1997), the state bid was the most cost-effective, and the privatisation idea was abandoned (McCarthy et al. 2000).

Prisoner Transportation, Court Security, and Electronic Offender Monitoring

In New Zealand and in most Australian states, companies such as Serco and G4S are heavily involved in prisoner transport and courtroom security (Sarre and Prenzler 2012). In Northern Territory, South Australia, and Victoria, G4S provides services to electronically monitor offenders and suspects

(G4S 2016). In New Zealand, the privatisation of these services has been justified on costs grounds. Awarded to Chubb in 1998, the initial five-year contract for prisoner transportation and electronic offender monitoring was estimated to save NZD1million over the course of the contract (Smith 1998). The privatisation of the prisoner transport services in both jurisdictions has not been without incident. In 2008, a Mr Ward, an Indigenous man, died from heatstroke in the back of a security van operated by Global Solutions Limited in Western Australia (Sarre and Prenzler 2012). This incident highlighted the need for the state to be responsible for ensuring that private contractors meet the duty of care to prisoners (Office of the Inspector of Custodial Services 2010). In 2006, a 17-year-old New Zealander, Liam Ashley was murdered by a fellow prisoner in an escort van on the way from court to prison. However, the recommendations that followed an investigation into Liam's death were deemed too costly to implement, and Chubb sold their home detention and prisoner escort services contract to ISS Ltd (NZPA 2008). Prisoner escorts and courtroom custodial services in New Zealand are now provided by a variety of private contractors, whilst electronic offender monitoring is currently provided by 3M.

Conclusion

Despite the progress of privatisation in criminal justice over the last 30 years, solid evidence as to its benefits remains elusive. Techniques to provide internal accountability have become more sophisticated but external accountability is still lacking (Andrew et al. 2016). This raises questions about the morality of private sector involvement, particularly in prisons, if prison conditions and the treatment of offenders cannot be adequately safeguarded. In Australia and New Zealand, this is compounded by the lack of research on the effects of privatisation on offenders and criminal justice professionals in addition to the effects on the public purse. On the basis of this insufficient information, Andrew et al. (2016) conclude that no further privatisation should take place until its implications can be properly assessed.

Certainly, the possibility of increasing prison privatisation seems somewhat weaker in New Zealand than in Australia. This is largely due to continued Labour Party opposition, but also the series of scandals in the Serco-run Mt Eden Corrections Facility which have brought forth an apparent public distaste for private prisons. Despite neoliberalism characterising New Zealand politics since the 1980s, the public retains strong expectations about state roles and responsibilities (Humpage 2015), and in a recent poll, the majority

of New Zealanders believed that prisons should be run by the state (Curia 2015). In several Australian states, privatisation seems to have become accepted as 'business as usual'. However, this is not due to evidence of greater efficacy in the delivery of public services as Love et al. (2000) suggest, but rather due to a commitment to a neoliberal criminal justice market. In the pursuit of a mixed economy of criminal justice, the public sector has become commercialised and adept at bidding to operate criminal justice services, potentially at the expense of conditions and treatment of offenders. The involvement of private sector companies in criminal justice seems likely to continue on Australasian soil for some time to come. Private prison providers should not, however, remain beyond official scrutiny.

Notes

1. A consortium led by the Corrections Corporation of America, then the largest private providers of correctional services in the USA (Moyle 2000), and including Wormwald Security and John Holland Holdings. CCA was subsequently sold to Sodexo and rebranded as Australian Integrated Management Services (Andrew et al. 2016).
2. Australasian Correctional Management was a joint venture company formed by Wackenhut Corrections Corporation and ADT Australia. It is now known as GEO Group Australia.
3. Others have argued that *iwi* involvement in private prisons would be 'effectively supporting the state to lock up their own people' (Pihama 2011). *Iwi* means a Māori community or people but is often translated as 'tribe'.

References

Andrew, Jane, and Damien Cahill. 2007. *Value for Money? Neo-liberalism and New South Wales Prisons.* Accounting & Finance Working Paper 07/16. Wollongong: University of Wollongong.

Andrew, Jane, Max Baker, and Philip Roberts. 2016. *Prison Privatisation in Australia: The State of the Nation*. Sydney: The University of Sydney.

Audit Office, N.S.W. 2003. *New South Wales Auditor General's Report 2003*. Sydney: Audit Office NSW.

Biles, David. 1997. Private Prisons: Welcome or Not? *Australian Journal of Forensic Sciences* 29: 3–8.

Cavadino, Michael, and James Dignan. 2005. *Penal Systems: A Comparative Approach*. London: Sage.

Corrective Services NSW. 2016. *Custodial Corrections: Operations Procedures Manual*. http://www.correctiveservices.justice.nsw.gov.au/Pages/CorrectiveServices/related-links/open-access-information/policies-defined-gipa-act/Custodial-Corrections-OPM/operations-procedures-manual-home-page.aspx. Accessed 24 Aug.
Curia. 2015. NZ Herald DigiPoll August 2015. *Curia*, August 26.
Curran, Liz. 1999. Unlocking the Doors on Transparency and Accountability. *Current Issues in Criminal Justice* 11: 135–152.
Dugan, John, Vivienne Roche, and Ian Tucker. 2003. *The Prison Discipline Regime Review*. Melbourne: Victoria Department of Justice.
G4S. 2016. *Electronic Monitoring*. http://www.nz.g4s.com/what-we-do/care-justice-services/electronic-monitoring/. Accessed 6 Jul.
Government of Western Australia. 1994. Agreement on Prison Management with Officers' Union. *Media Statements*, May 31.
Haermeyer, Andre. 2000. Media Release: Government Takes Control of Women's Prison. *Minister for Corrections*, October 3.
Harding, Richard. 1992. *Private Prisons in Australia*. Canberra: AIC.
Harding, Richard. 1994. Models of Accountability for the Contract Management of Prisons. In *Private Prisons and Police: Recent Australian Trends*, ed. Paul Moyle, 63–90. Leichhardt: Pluto Press.
Harding, Richard. 1997. *Private Prisons and Public Accountability*. Buckingham: Open University Press.
Humpage, Louise. 2015. *Policy Change, Public Attitude and Social Citizenship: Does Neoliberalism Matter?*. Bristol: Policy Press.
Johnson, Grant. 1997. *Models for Contracting Out Community Corrections*. Paper presented at AIC Conference on Privatisation and Public Policy, June 16–17, Melbourne.
Johnson, Kirsty. 2012. Serco Failing to Meet Mt Eden Prison Targets. *Stuff*, June 12.
Kennedy, Jim. 1988. *Final Report of the Commission of Review into Corrective Services in Queensland*. Brisbane: Government of Queensland.
Logan, Charles. 1990. *Private Prisons: Cons and Pros*. New York, NY: Oxford University Press.
Love, Peter E.D., B.M. Wood, D. Picken, and B. Confoy. 2000. The Privatisation of Correctional Facilities in Australia. *Facilities* 18: 56–65.
Macionis, Stan. 1997. *Purchaser and Provider: The Queensland Experience*. Paper presented at AIC Conference on Privatisation and Public Policy, June 16–17, Melbourne.
Mason, Cody. 2013. *International Growth Trends in Prison Privatization*. Washington, DC: The Sentencing Project.
McCarthy, Carole, Robyn Lincoln, and Paul Wilson. 2000. *Privatising Community Corrections*. Gold Coast: Bond University. ePublications.
Mills, Alice. 2015. A Gentle Thaw or Continued Deep Freeze? Relationships between Voluntary and Community Organisations and the State in Criminal Justice in New Zealand. *Third Sector Review* 21: 121–142.

Moyle, Paul. 1994. Privatisation of Prisons and Police: Recent Australasian Developments. In *Private Prisons and Police: Recent Australian Trends*, ed. Paul Moyle, 15–23. Leichhardt: Pluto Press.

Moyle, Paul. 2000. *Profiting from Punishment: Private Prisons in Australia: Reform or Regression?*. Annandale: Pluto Press.

Musumeci, Angela. 1997. *Models for Contracting Out Community Corrections*. Paper presented at AIC Conference on Privatisation and Public Policy, June 16–17, Melbourne.

NZ Department of Corrections. 2016a. *Redevelopment of Auckland Prison's Maximum Security Facility*. http://www.corrections.govt.nz/news/redevelopment_of_auckland_prisons_maximum_security_facility.html. Accessed 7 Jul.

NZ Department of Corrections. 2016b. *Contract Management*. http://www.corrections.govt.nz/news/auckland_south_corrections_facility_new_mens_prison/contract_management.html. Accessed 7 Jul.

NZ Department of Corrections. 2016c. *Prisons Operations Manual*. http://www.corrections.govt.nz/resources/policy_and_legislation/Prison-Operations-Manual.html. Accessed 24 Aug.

NZ Department of Corrections. 2016d. *Prison Operations*. http://www.corrections.govt.nz/news/auckland_south_corrections_facility_new_mens_prison/prison_operations.html. Accessed 7 Jul.

NZPA. 2008. Chubb Sells Prison Escort, Home Detention Work. *Stuff*, November 7.

Newbold, Greg. 2016. *Crime, Law and Justice in New Zealand*. New York, NY: Routledge.

Office of the Inspector of Custodial Services. 2010. *Thematic Review of Court Security and Custodial Services in Western Australia*. Perth: Western Australian Office of the Inspector of Custodial Services.

Peach, Frank. 1999. *Corrections in the Balance: A Review of Corrective Services in Queensland*. Brisbane: Queensland Corrective Services Review.

Pihama, Leonie. 2011. Prison Privatisation in Aotearoa. *Kaupapa Māori*, April 1.

Queensland, Ombudsman. 2009. *Justice on the Inside: A Review of the Queensland Corrective Services' Management of Breaches of Discipline by Prisoners*. Brisbane: Queensland Ombudsman.

Radio NZ. 2009. Private Prisons Liked by Maori Party. *Radio New Zealand,* March 11.

Radzinowicz, Leon. 1988. Letters to Editor. *The Times*, September 22.

Roth, Lenny. 2004. *Privatisation of Prisons*. Sydney: NSW Parliamentary Library Research.

Russell, Stuart. 1997. Private Prisons for Private Profit. *Alternative Law Journal* 22: 7–9.

Rynne, John, Richard Harding, and Richard Wortley. 2008. Market Testing and Prison Riots: How Public Sector Commercialization Contributed to a Prison Riot. *Criminology and Public Policy* 7: 117–142.

Sachdeva, Sam. 2015. Secro Could Re-Pitch for Mt Eden Contract in 2017—John Key. *Stuff*, December 9.

Sarre, Rick, and Tim Prenzler. 2012. Issues in Courtroom Security: A Key Role for the Private Sector in Australia and New Zealand. *Security Journal* 25: 25–37.
Smith, Nick. 1998. Over $1 Million Savings in Auckland Prisoner Escort Contract. *Beehive.govt.nz*, June 17.
Steering Committee for the Review of Government Service Provision. 2015. *Report on Government Services 2015*: *Volume C: Justice.* Canberra: Productivity Commission.
Swain, Paul. 2004. Response to Stephen Franks Article, Dominion Post. *Beehive.govt.nz*, February 27.
Western Australia Department of Corrective Services. 2016. *Operational Instruction 2: Prison Charges*. Perth: Government of Western Australia.

Author Biography

Dr. Alice Mills is a Senior Lecturer in Criminology at the University of Auckland in New Zealand. She has worked at the Universities of Southampton and Cardiff in the UK. Her research focusses on third sector organisations in criminal justice, mental health in prisons, problem-solving courts, Māori youth courts, prisoner reintegration and housing for ex-prisoners.

32

Third Sector Involvement in Criminal Justice

Janet Ransley and Lorraine Mazerolle

Governments are increasingly shifting from state-dominated criminal justice systems to models where state, private, and "third sector" organisations share responsibility, and funding, for service provision. This chapter focusses on the third sector, which we define as non-government, not-for-profit bodies such as charities, and voluntary organisations. Agencies such as the Salvation Army, Mission Australia, Brotherhood of St Laurence, the Smith Family, and a host of other national, state, and local entities feature in Australia's third sector, delivering services to support a broad range of criminal justice activities.

The third sector has a long involvement in delivering services, with developed nations undergoing several transformations over the last century. The first wave of change occurred between the nineteenth and mid-twentieth centuries. While the former—marked by liberal ideas—considered individuals responsible for their own well-being, the latter transformed this responsibility to the welfare state (Braithwaite 2000). The second wave of change—sparked by economic crises in the early 1980s—led to neoliberal approaches that prized the free market, reduced the role of the state, and increased the responsibility of private organisations and individuals (Ericson et al. 2000; Mazerolle and Ransley 2005; Rose 1996). Another fiscal crisis—the Global Financial Crisis (GFC) that began in

J. Ransley (✉)
Griffith Criminology Institute, Brisbane, Australia
e-mail: j.ransley@griffith.edu.au

L. Mazerolle
School of Social Science, University of Queensland, Queensland, Australia
e-mail: l.mazerolle@uq.edu.au

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_32

2007—has driven a third wave of change. In this post-GFC era, black-and-white ideas of a public–private dichotomy have been replaced by a floating, flexible marketplace for services to communities. In this marketised environment, public, corporate, charitable, and voluntary sectors compete for funds to deliver social services, with the principal roles of government now being to set policy directions, award contracts, and monitor performance.

This chapter examines the rise of marketisation in criminal justice and the increasingly important role of third sector organisations in this market. We begin by providing a brief history around criminal justice marketisation and the roles in it for various state and non-state entities. We then focus specifically on third sector agencies, defined as non-state, non-private sector bodies such as charities, not-for-profit groups, and voluntary organisations and individuals. This is followed by a survey of the types and extent of third sector involvement in contemporary criminal justice and key current trends. We examine the advantages and disadvantages of this development, before finishing with a brief discussion of implications for the future of criminal justice.

A Brief History of Markets in Criminal Justice

Throughout the mid-twentieth century in countries like Australia, New Zealand, the UK, the USA, and Canada, governments had a virtual monopoly over the most important areas of criminal justice. Governments had established public police forces, courts, and prisons, in contrast to earlier, privately run alternatives (Braithwaite 2000). They set policy goals and were responsible for funding, employing, and administering criminal justice agencies. The safety and security of the community were conceived of as public goods and a prime responsibility of governments. During this era, limited third sector and private security services continued to exist, but their role was clearly subsidiary to that of government; they had no or few public powers or resources, and they received limited recognition for any contribution they made to public security (White 2010).

Neoliberalism transformed this position, as it did with other areas of government throughout the 1980s and 1990s. Governments sought to reduce the size of the state, decrease public expenditure, lower taxes, and share the burden of service provision (O'Malley 2001). For criminal justice, the signs of this transformation became most visible in the rise of privately run prisons and the expansion of private security. According to a 2014 report, Australia has the highest proportion of inmates in private prisons worldwide (Mason 2013). In policing, the number of private security personnel in Australia is

conservatively estimated to be twice that of public police (Sarre and Prenzler 2011). In addition to corporate-run security firms—dominated by the same global entities that run private prisons—security is also provided by in-house employees, loss control and prevention firms, privately run CCTV operators, private investigators, and the manufacturers and retailers of security hardware (Loader 2000; Sparrow 2014).

The neoliberal era also transformed justice services outside of prisons and police. Private providers are used in arbitration and mediation services operating alongside mainstream courts. They also provide welfare and treatment services in areas like substance abuse, rehabilitation, housing, employment, and services for at-risk youth. For example, private hospitals deliver in- and out-patient treatment programmes, a plethora of law companies offer mediation services, and a host of businesses provide technologies and services to the government around interventions such as electronic monitoring and GPS offender tracking. Private entities bid for government contracts to deliver a defined set of services in the criminal justice system.

By the start of the twenty-first century, the combination of public and private elements was well-established in delivering outcomes for the criminal justice system. The state continued to operate police, courts, and prison services, but these were complemented by privately run operations, especially private prisons and security services. Public service providers were diversified beyond traditional corrections and police departments to include new agencies with crime control roles such as regulators, local authorities, crime commissions, and inspectorates. Private providers were dominated by global corporations, although a plethora of smaller firms and individuals operated local services. Bayley and Shearing (2001) refer to this as the "multilateralisation" of criminal justice. Prenzler and Sarre (2012) refer to a pluralisation of policing, and by extension of criminal justice service provision more broadly. In this era, policing, prisons, and criminal justice services were now provided by complex networks of state and private agencies.

During this period of multilateralisation, the state's primary role was to set policy directions and to authorise services provided by a range of government agencies and other providers (Mazerolle and Ransley 2005). In reality, however, most services remained firmly anchored around state providers (Crawford 2006). In policing, this regulatory environment gave rise to initiatives such as third-party policing, where public police convince or coerce third parties to use their legal levers to take an active role in crime prevention (see Mazerolle and Ransley 2005, 2006), with the role of police still central. In corrections, the complex regulatory environment of the neoliberal era led to initiatives such as the establishment of sex offender registries and the use of

firearms registries as a means for monitoring and controlling activities of re-entrants into the community post-incarceration (see Braga 2008).

As the twenty-first century has progressed, the roles and responsibilities of criminal justice have become even more complicated. Increasingly, government is described as marketised (Lippert and Walby 2014; Loader and Walker 2007; Maguire 2012; Whitehead 2015). This is characterised by the domination of market logics and disciplines (Loader and Walker 2007) including a focus on contracting out of services. This has not only reduced public expenditure (Dean 2014) but has also harnessed resources and skills from other sectors. Doing more with less became especially important after the GFC of 2007–2009 when many countries significantly cut funding to criminal justice services. In the UK, for example, police budgets were cut by 20 per cent from 2010 to 2015 (Millie 2014), and similar reductions were seen in many US jurisdictions (Sherman 2011). The Australian and New Zealand economies were less affected by the crisis, and impacts on criminal justice agencies have been less severe. Nevertheless, criminal justice services have been affected by other drivers of marketisation such as a focus on improving outcomes (Sherman 2013), ensuring value for money, and increasing community responsibility for solving social problems (Maguire 2012).

As with neoliberalism, a key driver of marketisation is the notion that services can be provided more cost-effectively outside of the public sector. Additionally, contracting non-government providers is seen as a way of transferring risks away from the state, including financial investment risks and non-performance risks (Whitehead 2015). The reforms to government services of the 1980s and 1990s had boosted the requirements for governments to be accountable for their expenditure of public funds, to show that they were spent both efficiently and effectively. Yet, governments have struggled to show effective outcomes, despite rising expenditures on education, health, and criminal justice. Increasingly, the problem has come to be seen in terms of how and by whom services are delivered. Government services are seen as monolithic, bureaucratic, inflexible, and centralised, unable to adapt to local and specialised needs. Opening up service provision to the market is seen as a way of overcoming these problems. But the objective is not just to save money, but also to achieve more effective outcomes, better suited to local communities and problems. If *cost efficiency* was the driving force of neoliberal reforms in the late twentieth century, more *outcome effectiveness* is the distinctive force driving marketisation in the twenty-first century.

The rise of the evidence-based movement around the turn of the century linked neatly into the marketisation of criminal justice interventions and demand for effective outcomes. The US-commissioned *What Works in Crime*

Prevention report (Sherman et al. 1997)—also known as the *University of Maryland Report*—and the subsequent establishment of the international Campbell Collaboration in 2000 (Farrington and Petrosino 2001) were foundational events that increased a loud call for evidence-based crime and justice. At the same time, the Coalition for Evidence-Based Policy was established as a non-profit, non-partisan organisation that sought to increase government effectiveness through the use of rigorous evidence about what works in social policy, including education, poverty reduction, and crime prevention. The Crime and Justice Coordinating Group (CJCG) of the Campbell Collaboration was held up as an exemplar of the Coalition, overseeing "the preparation, maintenance and accessibility of systematic reviews of research [to synthesise] the effects of criminological and criminal justice interventions … designed to prevent or reduce crime or delinquency" (Farrington and Petrosino 2001, 39). More recently, the UK-funded What Works Centre for Crime Reduction (College of Policing 2016) and the worldwide network of societies for evidence-based policing—including the Australia and New Zealand Society of Evidence-Based Policing—advance the marketisation of effective crime and justice interventions through their advocacy of scientific evidence guiding crime reduction practice.

The Rise of the Third Sector in Criminal Justice Service Delivery

The rise of the third sector in criminal justice emerged alongside the government focus on evidenced-based policies seeking cost-effective outcomes from government-commissioned services. The conscious extension beyond the public and corporate sectors to seek charitable and voluntary third sector involvement was a deliberate strategy to meet local needs in a cost-effective, flexible manner. Both governments and large corporations were recognised as bureaucratic and inflexible. Third sector organisations, by contrast, were seen as closer to communities, more capable of assessing and meeting local needs, and more likely to be innovative and achieve better outcomes.

The involvement of the third sector in criminal justice in itself is not new. Citizen volunteers have a long history, especially in policing. Examples include special constables, night patrols, neighbourhood watch groups, volunteers-in-policing, and crime-stopper organisations (Ayling 2007). This involvement expanded with neoliberalism, to save public funds and to make communities more responsible for their own safety. Charities and welfare

agencies have been similarly active, especially since the early twentieth century that gave rise to welfarism and rehabilitation services. Many of these third sector agencies combine a service delivery function with an activist or campaigning role, publicly arguing for criminal justice reforms pertaining to decarceration, drug decriminalisation, and greater expenditure on community welfare. British examples include the Prison Reform Trust and Howard League aimed at reforming and reducing imprisonment (Tomczak 2014). In Australia and New Zealand, religious and other charities run treatment and welfare services to address addiction, homelessness, and other criminogenic factors. They also enter into public policy debates. For example, the Salvation Army plays a role in the areas of court and prison services, and alcohol and drug treatment along with public advocacy (Salvation Army 2016), and Mission Australia in substance treatments and youth support services (Mission Australia 2016).

While charitable and volunteer services have long been involved in criminal justice, marketisation has seen governments seek to increase the scope and extent of their roles (Ilcan and Basok 2004). The most comprehensive structure internationally for marketisation is seen in the UK, where successive governments have developed the Big Society initiative, the "Modernising Commissioning" Green Paper, the "Breaking the Cycle" Green Paper, and the "Transforming Rehabilitation: A Strategy for Reform" policy documents (Tomczak 2014). These initiatives focus on establishing systems to create a broader market within criminal justice services. This market is seen as extending beyond the public and large corporate entities to involve a range of smaller providers including charities and voluntary organisations, all of which compete to provide a much-expanded suite of activities in criminal justice. This has led to plans for the contractual commissioning of probation services, allowing for corporate and third sector providers to bid for offender management and treatment services, in addition to more specialised services such as those that target substance abuse, housing needs, and unemployment (Maguire 2012). In policing, the UK introduced elected Police and Crime Commissioners in 2012, whose role includes the distribution of funds that were previously allocated to police for crime reduction purposes and may now be dispersed to a range of community organisations (Maguire 2012). In each case, the government explicitly seeks to involve local agencies—whether corporate or third sector—to develop better solutions for localised problems.

Just as neoliberalism saw the development of new processes and technologies to facilitate the privatisation, deregulation, and contracting out of government services, the marketisation era has also driven the development of new technologies, processes, and instruments in support of market-based

approaches to social service delivery, including those in the criminal justice sector. Recent examples of such marketisation inventions include the Payment-By-Results (PBR) system, social impact bonds, and justice reinvestment.

PBR is a system whereby governments fund service providers for the outcomes of their services, rather than for their inputs (Fox and Albertson 2011). Tied to the more extensive commissioning of service provision, PBR is a developing tool of contemporary governments and is used to ensure cost-effective outcomes of government expenditures. In this setting, the incentives are to reduce reoffending rather than to increase the numbers of prisoners in facilities, to improve rehabilitation, and to reduce crime. The PBR system established in Britain is explicitly targeted at private and third sector providers, which are seen as more economical, innovative, and flexible than traditional public sector agencies (Maguire 2012).

Social impact bonds have been developed as a way to help fund PBR. Rather than governments funding services delivered by public, private, or third sector agencies, social impact bonds encourage the raising of private capital for this purpose. Investors—such as philanthropic trusts or individuals—fund services. If they deliver agreed outcome targets, such as reducing recidivism, they are rewarded with a specified return on their investment, funded from savings to government from reduced criminal justice spending (Neilson 2012). If they do not achieve the target, they get no return. The attractions for government of this model are clear. Funds previously spent on building and running prisons, probation, and community services can now be diverted to other demands. Payment is only required if targets are met and can be paid for from the unexpended up-front costs. The risk of failure, and public censure for failure, is transferred to the other party. Also, more flexible, local, and innovative solutions may replace bureaucratic measures that have not succeeded (Fox and Albertson 2011, 2012; Maguire 2012; Neilson 2012).

In the UK, the best-known example of PBR and social impact bonds is found in the privately operated prison at Peterborough, where a six-year pilot started in 2010. Offenders serving short sentences of less than 12 months, who would normally not receive post-release supervision, were offered pre- and post-release rehabilitation and mentoring services aimed at reducing their offending. To implement this, a philanthropic organisation, which raises funds from private, charitable, and government sources, established a social impact bond. If its intervention is found to reduce offending by 7.5 per cent or more, investors are to receive a return of up to 13 per cent, funded from savings achieved by the Ministry of Justice. The measure of success of the

intervention is total desistance from reoffending for 12 months post-release. Interim results are said to be encouraging, although the pilot is yet to be finalised (Whitehead 2015). In this Peterborough example, actual service provision is sub-contracted to a charity. It is estimated that the government will save GBP 2 billion through the reduction in offending if the initiative succeeds (Fox and Albertson 2011, 2012; Maguire 2012; Neilson 2012; Whitehead 2015). Further prison-based pilots are occurring in both public and private gaols (Neilson 2012). The UK has also trialled similar schemes in probation services. Here, private and third sector organisations that provide probation services are encouraged to bid for partnerships and assume the financial risk of meeting defined outcome objectives, which mainly pertain to reduced reoffending (Neilson 2012; Whitehead 2015). Social bonds are now being trialled outside the UK, including in New Zealand (NZ Ministry of Health 2016), and in NSW (Office of Social Impact Investment 2016).

While PBR and social impact bonds have been dominant in the UK, attention in the US has focussed on what is referred to as "justice reinvestment", which means reconfiguring investment in the criminal justice system by prioritising community prevention programmes over incarceration. Similarly to PBR and social impact bonds, it involves significant third sector contributions (Wong, Fox, and Albertson 2014). Justice reinvestment advocates argue for investment in evidence-based strategies to reduce offending that will achieve long-term savings in prison budgets. The idea was spurred by research that found a small number of neighbourhoods produced a significant proportion of people going to prison (Wood 2014). It was theorised that instead of spending more public funds building prisons, it would be better to invest in strengthening the social and economic supports available in those communities to prevent offending in the first place. Hence, the focus of justice reinvestment is on community and developmental approaches to prevent crime. As with PBR, it is assumed that many of these approaches are best developed and delivered through the third sector.

Implications of a Marketised Criminal Justice System

These marketised initiatives offer great promise. Yet, there are likely advantages and disadvantages from this recent transformation of how social interventions are delivered for the criminal justice system. Clear advantages for government include sharing the cost and financial risk of criminal justice

services, greater involvement of community organisations, and community ownership of solutions, and improved innovation and flexibility of response. For the third sector, there is the opportunity to provide more tailored and appropriate services to their client groups, to achieve significant returns on investment, and to increase their impact on communities.

There are, however, some disadvantages. These include the potential for co-option of agencies, as they are given incentives to move away from their original focus to compete for contracts. For some, this could involve a decline in their advocacy or campaigning role (Tomczak 2014), especially where government contracts restrict this, or because of an expansion of their own internal bureaucracy as they become larger and more diverse (Maguire 2012). Some third sector agencies may exploit lower paid and less trained staff, while others may find their activities become fragmented. In the UK, global security corporations have formed partnerships with voluntary sector groups in order to improve the attractiveness of their corporate bids (Tomczak 2014). Charitable organisations risk objectives of compassion and welfare being displaced as they become agents of the state, involved in administering often punitive criminal justice policies.

Through the forces of marketisation, public agencies become increasingly dispensable, facing prospects of shrinking budgets and staffing levels and loss of expertise as trained staff transfer to other sectors. Since these agencies need to step in if market interventions fail, their ability to do so may be compromised. Further, a central question—that is more pertinent to criminal justice than to some other areas of public service—is whether certain core functions *should* remain in state hands. The state's traditional monopoly of the right to use force and imprison its citizens entails fundamental obligations of due process, accountability, and care. Transferring these functions by contract may affect community perceptions of state legitimacy.

Regardless of the advantages and disadvantages, Fox and Albertson (2011) outline some of the challenges facing marketised initiatives, specifically PBR and social impact bonds. The first of these is achieving scale in any changes, that is, being able to move from small pilots to larger systemic changes. The pilots of PBR and social impact bonds are currently operating in small, local contexts. Even if they achieve their targets, transferring benefits from small pilot programmes to a wider system is notoriously hard to achieve, especially in contexts that may be very different to those of the pilot. What works in Peterborough may not work in the next suburb, let alone a different city or country.

The second challenge is proving impact. The evidence base for most criminal justice interventions is weak (Farrington and Welsh 2005). Most interventions are not evaluated at all, or if they are, the evaluations lack

scientific rigour. It is difficult to prove that specific interventions led to particular outcomes. Even defining the desired outcomes is complicated. For example, should reoffending be measured by reconvictions knowing that only a small amount of offending results in conviction? Should the success of substance treatment programmes be measured by abstinence, which is difficult to achieve, or should it be measured by socioeconomic factors such as employment (Fox and Albertson 2011)?

The third challenge for marketised criminal justice is achieving the promised fiscal returns. An important rationale for governments is achieving a certain level of savings by involving other providers and using those savings to fund contracts. This requires great accuracy in estimating economic outcomes and benefits. One of the biggest challenges in demonstrating the impact of these interventions is the lack of expertise, particularly within the third sector, around programme evaluation. Programme evaluation is typically uncoupled from programme implementation, and funds allocated to assess the effectiveness of the intervention are often inadequate. Evaluations, done under quasi- or randomised field trial conditions, remain rare in criminal justice (Farrington and Welsh 2005), which compromises the capacity to scientifically assess the relative effectiveness of the commissioned intervention.

Justice reinvestment meets some similar challenges. Austin and Coventry (2014) point out that there is no clear pathway to reducing incarceration, thereby releasing funds for reinvestment. Even if funds are available, there is no clear evidence about which programmes or policies could, in a relatively short time, improve unemployment, lack of education, dysfunctional families, drug addiction, and other causative factors that lead to high crime rates. As a result, they argue justice reinvestment has led to "equivocal and disappointing results" (Austin and Coventry 2014, 126). Wood (2014) notes further challenges for its introduction in Australia, namely the lack of fine-grained data on the specific communities from which offenders come, the lack of strong evaluation evidence on what interventions would strengthen those communities, and the geographical distribution of crime and social marginalisation in Australia, where—unlike in the US—the most disadvantaged areas are remote Indigenous communities, rather than decaying cities.

Conclusion

Third sector organisations play a significant role in the marketisation of criminal justice in the twenty-first century. In this marketised environment, public, corporate, charitable, and voluntary sectors compete for funds to

deliver social services, while the principal role of government is reduced to setting policy directions, awarding contracts, and monitoring performance. These arrangements hold the promise of being more efficient, based on assumptions that non-government agencies are less expensive than state programmes. They are also suggested to be more likely to achieve effective outcomes, because the third sector is assumed to be more flexible and innovative, and better able to assess community needs, than state agencies. But we conclude that there are three major challenges for the third sector in participating in the multilateral market economy for criminal justice services.

Firstly, third sector agencies need the skills and capacity to undertake their own quality evaluations of their delivered services. In keeping with the evidence-based movement more generally, the demands to demonstrate scientifically defensible results will pose significant challenges for third sector agencies that lack skills in programme evaluation methods. Moreover, the tendency to short-change the evaluation process in favour of allocating funds to the actual programme will significantly undermine third sector efforts to benefit from the range of incentive tools, such as PBR and social impact bonds, which dictate demonstration of quantifiable beneficial outcomes.

Secondly, unlike public and private sector entities, third sector agencies are not subject to the same level of regulatory oversight (Bottiglieri et al. 2011; Grabowski and Hirth 2003). While the oversight of the third sector is principally focussed on financial accountability, the challenges for not-for-profit agencies will likely extend into oversight of practices to ensure interventions do no harm (see Steets 2010). The challenge for governments in awarding contracts is to balance the value of third sector agencies delivering highly-valued, localised services against the capacities of these agencies to make a positive difference in often very difficult circumstances (Hudson 2009).

Finally, the roles and responsibilities of marketised services pose some challenges for initiatives that involve bilateral or even trilateral partnerships (see Ross 2012). For example, Babiak and Thibault (2009), who report on a study of cross-sector partnerships in Canada, found structural problems with governance, roles, and responsibilities caused primarily by misalignment of missions, objectives, and the values placed on competition versus collaboration among various partners (Babiak and Thibault 2009). Similarly, Eid and Sabella (2014) found that partnerships have social, political, and ethical dimensions that are driven by individual organisational goals and are conditioned by the stakeholders' socio-political and ethical practices. The challenges of aligning the various sector values and goals to achieve cost-effective outcomes for the criminal justice system are likely to grow as the marketisation of services becomes established as the preferred mode of service delivery.

References

Austin, James, and Garry Coventry. 2014. A Critical Analysis of Justice Reinvestment in the United States and Australia. *Victims and Offenders* 9: 126–148.

Ayling, Julie. 2007. Force Multiplier: People as a Policing Resource. *International Journal of Comparative and Applied Criminal Justice* 31: 73–100.

Babiak, Kathy, and Lucie Thibault. 2009. Challenges in Multiple Cross-Sector Partnerships. *Nonprofit and Voluntary Sector Quarterly* 38: 117–143.

Bayley, David H., and Clifford D. Shearing. 2001. *The New Structure of Policing: Description, Conceptualization and Research Agenda*. Washington, DC: National Institute of Justice.

Bottiglieri, William A., Steven L. Kroleski, and Kerri Conway. 2011. The Regulation of Non-Profit Organizations. *Journal of Business and Economics Research* 9 (9): 51–60.

Braga, Anthony A. 2008. Pulling Levers Focused Deterrence Strategies and the Prevention of Gun Homicide. *Journal of Criminal Justice* 36: 332–343.

Braithwaite, John. 2000. The New Regulatory State and the Transformation of Criminology. *British Journal of Criminology* 40: 222–238.

College of Policing. 2016. About the What Works Centre. http://whatworks.college.police.uk/About/Pages/default.aspx. Accessed 14 Sep.

Crawford, Adam. 2006. Networked Governance and the Post-Regulatory State? Steering, Rowing and Anchoring the Provision of Policing and Security. *Theoretical Criminology* 10: 449–479.

Dean, Mitchell. 2014. Rethinking Neoliberalism. *Journal of Sociology* 50: 150–163.

Eid, Niveen Labib, and Anton Robert Sabella. 2014. A Fresh Approach to Corporate Social Responsibility (CSR): Partnerships between Businesses and Non-Profit Sectors. *Corporate Governance* 14: 352–362.

Ericson, Richard, Dean Barry, and Aaron Doyle. 2000. The Moral Hazards of Neo-Liberalism: Lessons from the Private Insurance Industry. *Economy and Society* 29: 532–558.

Farrington, David P., and Anthony Petrosino. 2001. The Campbell Collaboration Crime and Justice Group. *The Annals of the American Academy of Political and Social Science* 578 (1): 35–49.

Farrington, David P., and Brandon C. Welsh. 2005. Randomized Experiments in Criminology: What Have We Learned in the Last Two Decades? *Journal of Experimental Criminology* 1: 9–38.

Fox, Chris, and Kevin Albertson. 2011. Payment by Results and Social Impact Bonds in the Criminal Justice Sector: New Challenges for the Concept of Evidence Based Policy? *Criminology and Criminal Justice* 11: 395–413.

Fox, Chris, and Kevin Albertson. 2012. Is Payment by Results the Most Efficient Way to Address the Challenges Faced by the Criminal Justice Sector? *Probation Journal* 59: 355–373.

Grabowski, David C., and Richard A. Hirth. 2003. Competitive Spillovers across Non-Profit and For-Profit Nursing Homes. *Journal of Health Economics* 22: 1–22.
Hudson, Mike. 2009. *Managing without Profit: Leadership, Management and Governance of Third-Sector Organisations in Australia*. Sydney: UNSW Press.
Ilcan, Suzan, and Tanya Basok. 2004. Community Government: Voluntary Agencies, Social Justice, and the Responsibilization of Citizens. *Citizenship Studies* 8: 129–144.
Lippert, Randy K., and Kevin Walby. 2014. Marketization, Knowledge Work and Visibility in 'Users Pay' Policing in Canada. *British Journal of Criminology* 54: 260–280.
Loader, Ian. 2000. Plural Policing and Democratic Governance. *Social and Legal Studies* 9: 323–345.
Loader, Ian, and Neil Walker. 2007. *Civilizing Security*. Cambridge: Cambridge University Press.
Maguire, Mike. 2012. Response 1: Big Society, the Voluntary Sector and the Marketization of Criminal Justice. *Criminology and Criminal Justice* 12: 483–494.
Mason, Cody. 2013. *International Growth Trends in Prison Privatization*. Washington, DC: The Sentencing Project.
Mazerolle, Lorraine, and Janet Ransley. 2005. *Third Party Policing*. Cambridge: Cambridge University Press.
Mazerolle, Lorraine, and Janet Ransley. 2006. The Case for Third Party Policing. In *Police Innovation: Contrasting Perspectives*, eds. David Weisburd, and Anthony A. Braga, 191–206. Cambridge: Cambridge University Press.
Millie, Andrew. 2014. What Are the Police for? Rethinking Policing Post-Austerity. In *The Future of Policing*, ed. Jennifer M. Brown, 52–63. Abingdon: Routledge.
Mission Australia. 2016. *About Mission Australia*. Accessed September 14, https://www.missionaustralia.com.au/about-us.
Neilson, Andrew. 2012. Counterblast: Putting a Price on Rehabilitation: Payment by Results and the March of the Market in Prisons and Probation. *Howard Journal of Criminal Justice* 51: 419–422.
NZ Ministry of Health. 2016. *Social Bonds: NZ Pilot*. http://www.health.govt.nz/our-work/preventative-health-wellness/social-bonds-new-zealand-pilot. Accessed 14 Sep.
Office of Social Impact Investment. 2016. *Social Benefit Bonds*. http://www.osii.nsw.gov.au/initiatives/social-benefit-bonds/. Accessed 14 Sep.
O'Malley, Pat. 2001. Risk, Crime and Prudentialism Revisited. In *Crime, Risk and Justice: The Politics of Crime Control in Liberal Democracies*, eds. Kevin Stenson, and Robert R. Sullivan, 89–103. Cullompton: Willan.
Prenzler, Tim, and Rick Sarre. 2012. Public-Private Crime Prevention Partnerships. In *Policing and Security in Practice: Challenges and Achievements*, ed. Tim Prenzler, 149–167. Basingstoke: Palgrave Macmillan.
Rose, Nikolas. 1996. The Death of the Social? Re-Figuring the Territory of Government. *Economy and Society* 25: 327–356.
Ross, Susan Rae. 2012. *Expanding the Pie: Fostering Effective Non-Profit and Corporate Partnerships*. Sterling, VA: Kumarian Press.

Salvation Army. 2016. *Our Work*. http://www.salvationarmy.org.au/en/Who-We-Are/our-work/. Accessed 14 Sep.
Sarre, Rick, and Tim Prenzler. 2011. *Private Security and Public Interest: Exploring Private Security Trends and Directions for Reform in the New Era of Plural Policing (Final Report)*. Canberra: ARC.
Sherman, Lawrence W. 2011. Al Capone, the Sword of Damocles, and the Police-Corrections Budget Ratio. *Criminology and Public Policy* 10: 195–206.
Sherman, Lawrence W. 2013. The Rise of Evidence-Based Policing: Targeting, Testing, and Tracking. *Crime and Justice* 42: 377–451.
Sherman, Lawrence W., Denise Gottfredson, Doris MacKenzie, John Eck, Peter Reuter, and Shawn Bushway. 1997. *Preventing Crime: What Works, What Doesn't, What's Promising: A Report to the United States Congress*. Washington, DC: US Department of Justice.
Sparrow, Malcolm K. 2014. *Managing the Boundary between Public and Private Policing*. Washington, DC: US Department of Justice.
Steets, Julia. 2010. *Accountability in Public Policy Partnerships*. Basingstoke: Palgrave Macmillan.
Tomczak, Philippa J. 2014. The Penal Voluntary Sector in England and Wales: Beyond Neoliberalism? *Criminology and Criminal Justice* 14: 470–486.
White, Adam. 2010. *The Politics of Private Security: Regulation, Reform and Re-Legitimation*. Basingstoke: Palgrave Macmillan.
Whitehead, Philip. 2015. Payment by Results: The Materialist Reconstruction of Criminal Justice. *International Journal of Sociology and Social policy* 35: 290–305.
Wong, Kevin, Chris Fox, and Kevin Albertson. 2014. Justice Reinvestment in an 'Age of Austerity': Developments in the United Kingdom. *Victims and Offenders* 9: 76–99.
Wood, William. 2014. Justice Reinvestment in Australia. *Victims and Offenders* 9: 100–119.

Author Biographies

Janet Ransley is a Professor at the Griffith Criminology Institute, where she leads research in policing and security. She has authored over 80 books, articles, chapters, and reports on policing, integrity, regulatory crime reduction, and Indigenous justice issues.

Lorraine Mazerolle is an Australian Research Council Laureate Fellow (2010–2015) and a Professor at the University of Queensland. She is the 2013 winner of the AEC Joan McCord Award and has authored over 100 scholarly books and articles on policing, drug law enforcement, regulatory crime control, displacement of crime, and crime prevention.

33

The Pluralisation of Policing

Trevor Bradley

In the literature on the sociology of policing, an increasingly commonplace observation is that over the latter part of the twentieth century policing has been transformed (Bayley and Shearing 1996; Stenning and Shearing 2015). The growth of private security, the renaissance of citizen-based policing, and the emergence of a range of law enforcement agencies other than the police constitute, together, a new structure of policing (Bayley and Shearing 2001). Policing is now delivered by an "assemblage of private, public and community agencies" (Jones and Lister 2015, 245) and can no longer be reduced to the activities of the public police (Crawford 2013). It is a "contested field" (Stenning and Shearing 2015, 1) where multiple providers operate independently of, in collaboration with, and in competition to police (Crawford and Lister 2004). The term "plural policing" (Jones and Newburn 2006) captures this diversity and the complexity of the new, extended policing family (Crawford and Lister 2006; Home Office 2001).

New Zealand is no exception to this global trend. The NZ Police (NZP) has acknowledged "an increasingly congested market for safety, investigation and security services" (NZP 2006, 2), while the NZP Strategic Plan includes multiple references to policing partnerships (NZP 2016). The NZP motto "Safer Communities Together" might now equally refer to its memoranda of understanding (MoU) with other providers as it does to its partnership with the

T. Bradley (✉)
Institute of Criminology, Victoria University of Wellington, Wellington, New Zealand
e-mail: trevor.bradley@vuw.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_33

community. However, politicians, the media, and the public have all but ignored this transformation. Policing is still reduced to the NZP. Consequently, there is limited understanding of the various ways in which, and by whom, policing is now delivered.

Loader (2000) conceptualises a useful map of plural policing containing five distinct, interconnected dimensions. Besides policing by government in the form of the NZP, he identifies policing below, beyond, through, and above government. This chapter focusses on two of these dimensions. Firstly, the chapter examines New Zealand's most significant source of policing *beyond* government, the private security industry, its growth since the 1970s, and key factors driving that growth. Secondly, it examines Community Patrols of New Zealand (CPNZ), New Zealand's foremost example of policing *below* government. It traces the evolution of CPNZ from a handful of local patrols to a nationwide affiliation of volunteer civilian patrols upon which a growing number of New Zealand communities rely for the visible deterrence once supplied by NZP. Since limited space prohibits the discussion of other examples, including Māori and Pacific Wardens and City Safety Officers, the chapter provides a foundation for a more comprehensive mapping of non-state policing providers. It concludes by identifying a range of normative and practical concerns associated with plural policing in New Zealand.

The Private Security Industry

Compared with the UK or the USA, private security in New Zealand has a relatively short history. Until the 1950s, the state dominated the provision of policing. The first specialised security companies appeared in the early 1950s (Bradley and Sedgwick 2009) and focussed primarily on servicing large commercial clientele. In 1974, the NZ Security Industry Association (NZSIA) identified five sectors: (1) secure transport of cash and valuables; (2) static and mobile guarding; (3) manufacture and installation of detection devices; (4) investigation; and (5) consultancy services (NZSIA 1974). In the four decades since, the industry has expanded to include secure document destruction, event security, close protection, electronics, and vehicle security (NZSA 2016).

Commercial clients remain a key focus, but, over the last two decades, private households and government agencies have become significant consumers. The diverse range of goods and services supplied reminds us that the security industry is neither monolithic nor coherent but a fluid collection of industries (Button 2002) "whose scale of operation, workings and purpose bear little relation to one another" (Zedner 2006, 269). Industry diversity is

Table 33.1 Private security growth, 1976–2015

Year	Police	Security	Ratio
1976	4805	1925	2.49 : 1 (Police to Security)
1986	5144	5374	1.04 : 1 (Security to Police)
1996	6138	7270	1.23 : 1 (security to police)
2006	7577	9830	1.29 : 1 (Security to Police)
2015	9048	24330	2.6 : 1 (Security to Police)

Source: Private Security Personnel Licensing Authority; NZP Annual Reports

also apparent in the inconsistent quality and varying degrees of professionalism within different industry sectors, with the guarding sector considered the least professional and most problematic (Bradley 2014). This diversity has also created difficulties in improving standards across the industry (Bradley 2014) (Table 33.1).

New Zealand licensing data[1] reveal that from the 1970s, when licensing was first introduced, private security experienced such rapid growth that, by the mid-1980s, it has reached parity with NZP and had outgrown them just ten years later.

In 1976, 1925 security licences were issued. By 1986, that number had grown by almost 180 per cent to 5374, while NZP grew by just 7 per cent. Between 1986 and 2006, licensed security personnel grew by a further 35 per cent, while NZP grew by 23 per cent. Between 2006 and 2015, licensed personnel more than doubled from 9830 to 24 330. It should be noted, however, that a sizeable proportion of this recent increase was produced by an extended licensing regime that, for the first time, included event security, crowd controllers, and bodyguards. While precise numbers are unknown, many personnel in these sectors are part-time or casual employees, which renders comparisons with NZP problematic (see Stenning 1994). Over the same period, the number of sworn police grew by just 14 per cent, despite unprecedented recruitment campaigns (Bradley et al. 2011; Collins 2010). Overall, licensed security personnel grew by over 1000 per cent between 1976 and 2015, while NZP grew by just under 90 per cent. Put in context of relative population size, these figures illustrate how pervasive private security has become. In June 2015, the New Zealand population stood at 459,6700, equating to around one licensed security officer per 190 citizens, and one police officer per 508 citizens. Policing *beyond* government has become so widespread that, in their everyday lives, New Zealanders, like Australians, are more likely to encounter private security personnel than the police (see Sarre and Prenzler 2011).

A variety of factors were instrumental in its growth. The enthusiastic adoption of neoliberal modes of governance largely helps explain the New Zealand

experience (Crawford and Lister 2004; Shearing 2007). Especially relevant have been the split between policy and provider (Schick 1996); the transformation of the state's role from delivering services to regulating the governing activities of others (Jones and Lister 2015); and the devolution of responsibility from state to business, individuals, and communities (Garland 2001).

However, a range of factors are also specific to the New Zealand context. Coinciding with rising crime in the 1970s, NZP began to recognise their limited capacities (Dallow 1978). In the mid-1980s, the Police Commissioner conceded that NZP could not solve the growing crime problem alone and that it required "an effective melding of public and private sector resources" (Thompson 1984, 1). While the public was urged to "take security measures both in the commercial and domestic sectors" (Thompson 1984, 1), one "adaptive response" (Garland 2001, 113) of NZP was to shed a variety of protective functions. Beginning in the mid-1980s, NZP withdrew from secure valuables transport, commercial key holding, and static and mobile guarding of commercial premises (Butterworth 2005). Police frustration with false alarms also led to the removal of monitoring panels from police stations, followed by the withdrawal of alarm response services (McDonald 1995). Their role was further reduced when, in 1995, the Assistant Commissioner announced that NZP "will not commit resources to functions … more properly performed by private enterprise" (Butterworth 2005, 250). Among others, he identified "public concerts, major sports events… and America's Cup" (NZSA 1995, 4) as specific opportunities for private security input. More recent is the local authority backlash against a shrinking police presence. In 2016, several North Island councils complained that a decrease in frontline police had forced an increased reliance on private security, with ratepayers having to foot the bill (Hendery 2016). Notably, there has never been any direct process of state privatisation in regard to policing. Rather, NZP simply withdrew, leaving the security industry and others to meet growing demand. This led to complaints by the NZ Police Association that "police are not providing the services the public need … the gap is being filled by private security" (cited in Bates 1997, 7).

In the 1980s and 1990s, rising crime, fear of crime, and the adoption of a more rigorous risk-reduction approach produced a heightened security consciousness. As recorded crime climbed, so too did news media coverage of it (McGregor 2002). Sensationalist media encouraged an increase in public anxiety, which was, in turn, exacerbated by political rhetoric on law and order (Bradley, Tauri, and Walters 2006). The result was the emergence of a "reassurance gap" (Rowe 2008, 82) and a loss of public confidence in NZP. Clearly, the security industry had a vested interest in exploiting such

anxieties (Lee 2007). Industry sales figures reveal that, as alarm systems became more affordable through a relaxation of import controls, installation numbers trebled. By the early 1990s, 30,000 were installed annually (Bradley and Sedgwick 2009). A further increase is attributed to sales teams contracted by international corporations who pursued aggressive door-to-door campaigns exploiting fears of domestic burglary in the mid-1990s (Consumers Institute 1996; Pickering 2000, 1). They installed free alarm systems if a three-year monitoring contract was purchased, costing NZD 1 per day (NZ Security 2003). By the early 2000s, monitored alarm sales had reached 80 000 per year. The collapse of large corporate sales teams in 2003 saw sales fall back to between 30 000 and 40 000 systems per year (Bradley and Sedgwick 2009), a number that remained not insignificant.

The National Survey of Crime Victims found that fear of burglary had driven 15 per cent of respondents to install a burglar alarm, and another 3 per cent to sign monitoring contracts (Young et al. 1997). The following survey showed that the number of respondents installing alarms had almost doubled and the number signing monitoring contracts more than doubled (Morris et al. 2003). More recent surveys have omitted comparable questions and longer term trend data is therefore not available.

Predicated on the desire to minimise risk, and maintain profitability, the New Zealand insurance industry also proved critical in linking fear to a heightened security consciousness. In 2003, the NZ Insurance Council claimed that "over the previous four years crime against private homes… resulted in claims of NZ$950 000 000" (NZ Security 2003, 44). Faced with rising costs, some companies simply increased premiums to maintain profitability, while others actively encouraged policyholders to update or install security measures. The financial incentive of reduced premiums was a significant boost to private security (Bradley and Sedgwick 2009).

Major changes in the retail sector and the growth of the night-time economy also created new opportunities for private security. Shopping malls and entertainment venues are almost exclusively policed by private security. Similarly, growth of the night-time economy has seen huge increases in the number of door supervisors and event security staff, all of whom now have to be licensed. Up to 15 000 people visit Wellington's entertainment precinct each weekend. While there are regular patrols by NZP, responsibility for consumer safety and maintaining order has largely been devolved to private security and its battalion of crowd controllers.

Finally, the security industry has also been a beneficiary of the transformation of New Zealand's public sector. As part of the 1980s and 1990s restructuring process, government agencies moved from an internal centralised supply of

support services to public and private suppliers on a competitive basis (Stace and Norman 1997) and have become ever more reliant on private security. Citing figures from the Ministry of Social Development, Hunt (2016) reports that, since 2014, the number of contract guards deployed in Work and Income offices has more than doubled while the bill for guards and other security systems rose from NZD 9.2 million in 2011 to NZD 20.8 million in 2015. Considerable increases in security contracting have also occurred in the education sector where its institutions are policed by private security (Bradley and Sedgwick 2009) and where, since 1999, over NZD 10 million have been spent to combat arson and vandalism (Woulfe 2008). Contract security guards have also become a regular feature of accident and emergency departments (NZ Healthcare Security Network 2007).

The Renaissance of Volunteer Citizen-Led Policing

While private security is New Zealand's most prominent example of policing *beyond* government, Community Patrols of New Zealand (CPNZ) occupies the same position in policing *below* government. Citizen-led or civilian policing refers to the involvement of volunteers in crime control initiatives, the most well-known being Neighbourhood Watch and community patrols (Crawford and Lister 2004). The latter are autonomous groups of active citizens who voluntarily police limited geographic areas with the broad aim of enhancing community safety (Leach 2003).

In New Zealand, civilian involvement dates back to the early colonial period (Fleras 1980). From the late 1980s, however, there has been a resurgence of active citizenship (Grabosky 1992) and the co-production of crime prevention and community safety (Garland 2001). CPNZ is New Zealand's most successful and enduring example of civilian policing having developed from an ad hoc collection of local patrols into a nationwide organisation with its own constitution, governance structures, and strategic plan. It provides the capable guardianship and visible deterrence once routinely supplied by NZP. Patrols enjoy direct access to police communications and, on the basis of police intelligence reports, coordinate their operations with District Command Centres. In the light of the freeze on police budgets since 2010 (Kirk 2016), CPNZ has developed into a highly valued community policing resource and a support partner frequently deployed and directed by NZP in pursuit of its Prevention First Strategy outcomes.

Community patrols emerged in the late 1980s in response to a perceived shortage of local police (see Leach 2003). Initially confined to their local, mainly provincial, communities, they have since expanded into all the main cities and into business and industrial areas. With the recent addition of Asian and Pasifika patrols, CPNZ has also become more culturally diverse (NZP 2014). Their principal contribution has always been to act as non-confrontational "eyes and ears", and to observe and report suspicious activity to NZP. However, over recent years their role has also been extended. CPNZ volunteers now monitor CCTV cameras, are supplied by NZP with lists of stolen vehicles and wanted offenders, and, when requested, provide assistance with emergency response, traffic management, event security, and crime scene management (CPNZ 2015a).

In 2001, the national body CPNZ was formed to support, train, and guide a total of 30 newly affiliated patrols and to establish and promote a collaborative relationship with NZP. Initially, NZP opposed CPNZ's involvement, concerned that local patrols could morph into vigilantism. However, just a year later, after having earned their respect (Sole 2005), CPNZ and NZP signed the first of four MoU. The first agreed that all prospective patrollers would be police-vetted, sign a declaration of confidentiality, and abide by a code of conduct. In return, NZP would help support CPNZ and train patrols (CPNZ 2012a).

Five years on, there were 80 affiliated patrols and the MoU with police was renewed (NZP 2006). It included a number of new features that reflected growing NZP confidence and investment in CPNZ, such as local patrols logging on to police communications to enable more efficient information exchange using allocated specific call signs. Each district was provided with a dedicated police liaison officer who could—in collaboration with intel staff, District Command Centres, and patrol coordinators—direct patrols to specific trouble spots. Indicating its growing significance, the 2008 CPNZ National Training Seminar (NTS) was attended by the Prime Minister, the Ministers of Police and Justice, the leader of the opposition, the Mayor of Auckland, and the Police Commissioner (CPNZ 2008).

Beginning in 2010, when affiliated patrols totaled 92, CPNZ entered a new and important phase of development. Advised by both NZP and Ministry of Justice (MoJ), CPNZ was restructured and reorganised to improve governance, transparency, accountability, professionalism, and functionality. Beyond improving the performance of its patrols through training, the principal aim was to adjust CPNZ so that it met the bureaucratic and other requirements imposed by government on contracted service providers (Grey and Sedgwick 2013). This adjustment saw its Trust Board being given responsibility for strategy and

governance, its district committees being made responsible for managing compliance and strategy implementation, and its National Council being given responsibility for management and operations. In return, the MoJ made NZD 520,000 available, the first of four separate funding allocations between 2010/11 and 2015/16 (MoJ, personal communication 20 June 2016). In addition to funding its crime prevention contribution, the MoJ was, at the same time, funding CPNZ's organisational development. By 2015, it had allocated over NZD 2.3 million which enabled the appointment of the first ever paid position, a national operations manager. A second employee, the Chief Executive of the Trust Board, was appointed in 2014 to develop a strategic plan to more clearly identify organisational objectives, deliverables, KPIs, and timeframes (CPNZ 2014c). Among others, its purpose was "to bring CPNZ to a point where Ministry of Justice accepted our goals and community work as an organisation worthy of financial support" (CPNZ 2014d, 3).

Between 2012 and 2015, key developments included improving the reliability of its database of patrol statistics, the introduction of a national training programme, and an overhaul of its organisational procedures and rules. Anticipating local resistance, the National Statistics Coordinator (CPNZ 2012b, 3) explained the need for the latter: "We have a strong obligation to our stakeholders to be seen as an organisation with professional standards". Illustrating CPNZ's willingness to sacrifice autonomy in exchange for financial support, he further pointed out that "NZP and Ministry of Justice continue to place additional requirements on CPNZ over which we have no option but to comply in return for substantial public funding".

The 2014 MoU with NZP was another major milestone. It was described as a "coming of age for the CPNZ in its support role for Police" and "strengthened our ties and common purpose" (CPNZ 2015b, 2). The MoU committed NZP to a more effective coordination of local patrols, and to improving district management, training, and information-sharing. Bringing the two parties together physically, the MoU stipulated the relocation of CPNZ Headquarters to Police National Headquarters. The MoU also includes what is effectively a "gagging clause", as NZP and CPNZ agree that "consultation would occur *beforehand* if either party is considering providing … comment to the media on a matter … *which may be controversial*" (emphasis added CPNZ 2014b, 3). In his report to the 2014 AGM, the Trust Board Chair noted that the MoJ now viewed CPNZ "as ideally placed to provide high-visibility … deterrent patrolling and being tasked with directed patrolling based on Police intelligence" (CPNZ 2014a, 4). As for NZP, the Chairman claimed: "we are now regarded by Police nationwide as a

deployable resource *available to them* to carry out appropriate tasks" (emphasis added CPNZ 2014a, 2).

Both NZP and the MoJ have invested heavily in CPNZ's growth and development. Since 2011, the MoJ has allocated almost NZD 2.5 million to CPNZ; a period during which other community services providers experienced significant budget cuts or the complete withdrawal of funding (see Grey and Sedgwick 2013). Through the various MoU, NZP, too, has made a significant investment in the form of liaison officers, access to communication and intelligence personnel, and the provision of training. NZP's commitment to CPNZ is understandable, considering the significant community policing role it now plays. Moreover, a budget freeze since 2010 has forced NZP to absorb over NZD 300 million in operating costs. Representing 72 per cent of the entire NZP operating budget, much of this financial pressure has come from increasing salary costs since 2010 (NZP 2015a). NZP have therefore increasingly sought to deploy CPNZ resources across a wider range of activities, and to more effectively utilise the free labour willingly supplied by volunteers. Measured by the time volunteers spend on patrol, the return on investment has been considerable.

There are now 150 community patrols made up of 4600 volunteer patrollers (NZP 2015b). CPNZ statistics reveal that, in 2015, volunteers spent a staggering 165 000 h on patrol. To put this into perspective, if NZP were forced to use its own staff to provide this service, it would equate to 4125 forty-hour shifts. A further 11 239 h were spent monitoring CCTV cameras, while 3097 h were spent on training and 502 h on administration. The CPNZ strategic plan outlines its intentions for yet more growth and the intention to free up more police resources by establishing 50 new patrols by June 2019, and another 100 by June 2024 (CPNZ 2014c). Increasing the number of affiliated patrols, particularly within vulnerable communities, was specifically identified by the MoJ as a deliverable in its funding contract. More recently, a new patrol—the Auckland Safety Community Patrol (ASCP)—provides an alternative form of support. Made up of people applying to join NZP, it was established to assist potential police recruits in obtaining the necessary skills to pass the entrance tests (CPNZ 2016) (Table 33.2).

Table 33.2 CPNZ annual patrol statistics, 2015

Activity	**Total**
Hours on patrol	165,641
CCTV monitoring hours	11,239
Training	3097
Administration	502
Kilometres travelled	1,094,837

Source: CPNZ (2015)

Under the direction of NZP and MoJ, CPNZ has been transformed from a flaxroots community movement into an official service provider under contract to the MoJ (MoJ personal communication 20 June 2016). Coinciding with the adoption of NZP's Prevention First Strategy (2011–2015), CPNZ has—despite retaining its own governance structures (see Leach 2003)—effectively evolved into a fully-fledged police auxiliary. Indicating a strong alignment of CPNZ and NZP's Prevention First Strategy is the recent decision to "transfer funding and on-going management of CPNZ from the Ministry of Justice to Police" (MoJ personal communication 20 June 2016). It is highly likely that NZP will look for more ways to utilise CPNZ in pursuit of its own strategic objectives. Volunteer community patrols appear to become an even more prominent feature of New Zealand's policing landscape.

Conclusion

New Zealanders have clearly taken greater responsibility for their own security by replacing a reliance on police with a "mentality of self-protection" (Sarre and Prenzler 2011, 9). Together, the two dimensions of plural policing examined have reconfigured "policing". Nevertheless, a myopic focus on the public police remains, and the expanding role played by the "extended policing family", along with a number of pressing normative and practical questions it raises, continues to be overlooked.

The growing reliance on private security has increased consumer vulnerability to misconduct and poor standards. Thus, one pressing issue involves the lack of effective industry regulation, the "passive" approach to enforcement and the inadequate protections it affords consumers (Bradley 2014). A further normative question involves the inequitable distribution of protective services. Has private security become a taken-for-granted commodity for those New Zealanders that can afford it? Do the wealthy protect themselves via market provision while the poor depend on an increasingly "stretched" public police? If so, such inequity will become all the more pronounced if the deployment of private security displaces crime onto those who do not enjoy the purchasing power of wealthier communities (Crawford and Lister 2006). One practical issue involves the absence of strategic relationships involving the public police. Over the past 30 years, all attempts to reach a formal MoU with the security industry have floundered. The result is that, in New Zealand, where they currently exist at all, police and security relations remain ad hoc and localised.

The promise of policing *below* government lies in the potential for communities to exert greater control over local policing. However, following Johnston and Shearing (2003) the decision to transfer administration of CPNZ funding to NZP will likely facilitate more effective "steering" of CPNZ patrols by NZP and in the process ensure that "community policing" remains "police property". The question of accountability also extends to CPNZ. Who is accountable if, or when, things go wrong; the "autonomous" CPNZ and its volunteers or the NZP who increasingly direct and manage their deployment? Finally, beyond the claims made by NZP and CPNZ, there is no empirical evidence of its effectiveness. While its contribution in terms of patrolling hours and distances covered is indeed impressive, these figures are not a meaningful measure of their actual crime prevention or reduction impact. Despite considerable funding allocations since 2011, CPNZ has never been formally evaluated.

This chapter has briefly examined two of the five dimensions of plural policing in New Zealand. A future priority is to more precisely map out New Zealand's reconfigured policing landscape in its entirety. Once completed, this will inform a more accurate and comprehensive understanding of plural policing in New Zealand in all its forms and thereby offer a greater contribution to the international comparative policing research.

Note

1. The official licensing data comes from two sources. The first covers the period 1976–2011. It coincides with the licensing system introduced by the *Private Security Guards & Private Investigators Act 1975*. The licensing data is derived from the annual reports of the registrar of that Act (Bradley and Sedgwick 2009). Licensing data for the period 2011–2015 was supplied by the Private Security Licensing Authority (PSPLA), an agency established by the *Private Security Personnel and Private Investigators Act (2010)*. Police numbers are derived from NZP annual reports.

References

Bates, Colin. 1997. October 10. Private Security Growing. *The Dominion Post*.

Bayley, David H., and Clifford D. Shearing. 1996. The Future of Policing. *Law & Society Review* 30 (3): 585.

Bayley, David H., and Clifford D. Shearing. 2001. *The New Structure of Policing: Description, Conceptualisation, and Research*. Washington, DC: National Institute of Justice.

Bradley, Trevor. 2014. Governing Private Security in New Zealand. *Australian and New Zealand Journal of Criminology* 49 (2): 159–178.

Bradley, Trevor, Juan Tauri, and Reece Walters. 2006. Demythologising Youth Justice in Aotearoa/New Zealand. In *Comparative Youth Justice*, eds. John Muncie, and Barry Goldson, 79–86. London: Sage.

Bradley, Trevor, and Charles Sedgwick. 2009. Policing beyond the Police: A First Cut Study of Private Security in New Zealand. *Policing and Society* 19 (4): 468–492.

Bradley, Trevor, Michael Rowe, and Charles Sedgwick. 2011. Not in My Backyard: Crime in the Neighbourhood. *Howard Journal of Criminal Justice* 50 (1): 34–51.

Butterworth, Susan. 2005. *More than Law and Order: Policing a Changing Society 1945–92*. Dunedin: University of Otago Press.

Button, Mark. 2002. *Private Policing*. Devon: Willan Publishing.

Collins, Judith. 2010. 600 More Frontline Police Confirmed. *Office of the Minister of Police Press Release*, November 11.

CPNZ. 2008. *Chairman's Welcome*. Paper presented at *Community Patrols (NZ) National Training Seminar,* June 13–15, Auckland.

CPNZ. 2012a. *Memorandum of Understanding between Community Patrols of New Zealand and New Zealand Police*. Wellington: CPNZ.

CPNZ. 2012b. The Need for Procedures and Rules. *CPNZ Newsletter* 1 (2): 2–3.

CPNZ. 2014a. *Trust Board Chair Report to the 2014 Annual General Meeting*. Paper presented at CPNZ Annual General Meeting, June 29, Nelson.

CPNZ. 2014b. *Memorandum of Understanding between Community Patrols of New Zealand and New Zealand Police*. Wellington: CPNZ.

CPNZ. 2014c. *CPNZ Strategic Plan 2014–2024*. Wellington: CPNZ.

CPNZ. 2014d. Appointment of New CEO to Help Develop Strategic Plan. *CPNZ Newsletter.* Autumn Issue: 2–4.

CPNZ. 2015a. New MOU Demonstrates Strong Relationship between Police and CPNZ. *CPNZ Newsletter*. Summer Issue: 2.

CPNZ. 2015b. *2015 Patrol Statistics*. Wellington: CPNZ.

CPNZ. 2016. Newest Patrol CPNZ Milestone. *CPNZ Newsletter*. Summer Issue: 2–4.

Consumers Institute. 1996. Unwelcome Intruders. *Consumer Magazine.* April Issue: 6–7.

Crawford, Adam. 2013. The Police, Policing and the Future of the Extended Policing Family. In *The Future of Policing*, ed. Jennifer Wood, 173–190. Abingdon: Routledge.

Crawford, Adam, and Stuart Lister. 2004. *The Extended Policing Family: Visible Patrols in Residential Areas*. York: Joseph Rowntree Foundation.

Crawford, Adam, and Stuart Lister. 2006. Additional Security Patrols in Residential Areas: Notes from the Market Place. *Policing and Society* 16 (2): 164–188.

Dallow, Graeme A. 1978. Security Industry: Police Role. *New Zealand Security Industry Association Newsletter.* April Issue: 1–6.

Fleras, Augie. 1980. *From Village Runanga to the New Zealand Maori Warden Association: A Historical Development of Maori Wardens*. Wellington: VUW.

Garland, David. 2001. *The Culture of Control: Crime and Social Order in Contemporary Society*. Oxford: Oxford University Press.
Grabosky, Peter. 1992. Law Enforcement and the Citizen: Non-Governmental Participants in Crime Prevention and Control. *Policing and Society* 2: 249–271.
Grey, Sandra, and Charles Sedgwick. 2013. Contract State and Constrained Democracy. *Policy Quarterly* 9 (3): 3–10.
Hendery, Simon. 2016. Councils Say 'Shrinking' Police Service Leaves Them to Pick Up the Bill. *The Dominion Post*, May 31.
Office, Home. 2001. *Criminal Justice: The Way ahead*. London: Home Office.
Hunt, Tom. 2016. Beneficiaries Banned from Dole Offices as MSD Security Bill Passes $20 m. *The Dominion Post,* April 17.
Johnston, Les, and Clifford Shearing. 2003. *Governing Security: Explorations in Policing and Justice*. London: Routledge.
Jones, Trevor, and Tim Newburn. 2006. *Plural Policing*. Oxon: Routledge.
Jones, Trevor, and Stuart Lister. 2015. The Policing of Public Space. Recent Developments in Plural Policing in England and Wales. *The European Journal of Policing Studies* 2 (3): 245–267.
Kirk, Stacey. 2016. It Will be Police Left in the Cold When Funding-Freeze Starts to Bite. *Stuff*, March 6.
Leach, Pamela. 2003. Citizen Policing as Civic Activism: An International Inquiry. *International Journal of the Sociology of Law* 31: 267–294.
Lee, Murray. 2007. *Inventing Fear of Crime: Criminology and the Politics of Anxiety*. Devon: Willan.
Loader, Ian. 2000. Plural Policing and Democratic Governance. *Social and Legal Studies* 9 (3): 323–345.
McDonald, Richard. 1995. Guest Editorial. *New Zealand Security Industry Association Newsletter*, July 1–10.
McGregor, Judy. 2002. Crime News: The Cutting Edge. In *What's News: Reclaiming Journalism in New Zealand*, eds. Judy McGregor, and Marge Comrie, 81–95. Palmerston North: Dunmore.
Morris, Allison, James Reilly, Sheila Berry, and Robin Ransom. 2003. *New Zealand National Survey of Crime Victims 2001*. Wellington: Ministry of Justice.
NZ Healthcare Security Network. 2007. Report. *New Zealand Healthcare Security Association Newsletter* 1 (4): 1.
NZP. 2006. *Police Act Review, Relationships*. Wellington: NZP.
NZP. 2014. Thanks to Ethnic Volunteer Army. *New Zealand Police Magazine Online* 378: 1.
NZP. 2015a. *Briefing to the Incoming Minister*. Wellington: NZP.
NZP. 2015b. CPNZ: Ready, Willing and Able. *New Zealand Police Magazine Online* 390: 1.
NZP. 2016. *Annual Report*. Wellington: NZP.
NZ Security. 2003. Criminals Cost Kiwis $20 Million a Month. *New Zealand Security*, August/September Issue: 116.

NZSA. 1995. Address by Assistant Commissioner to New Zealand Security Industry Association Annual Conference. *New Zealand Security Association News*, September Issue: 4–5.
NZSA. 2016. *About NZSA*. http://security.org.nz/. Accessed 9 Feb.
NZSIA. 1974. *Introduction*. Auckland: New Zealand Security Industry Association.
Pickering, Henry. 2000. Security Selling Upsets Elderly. *The Timaru Herald*, May 15.
Rowe, Michael. 2008. *Introduction to Policing*. London: Sage.
Sarre, Rick, and Tim Prenzler. 2011. *Private Security and Public Interest: Exploring Private Security Trends and Directions for Reform in the New Era of Plural Policing*. Sydney: Australian Security Industry Association Limited.
Schick, Allen. 1996. *Spirit of Reform: Managing the New Zealand State Sector in a Time of Change*. Wellington: State Services Commission.
Shearing, Clifford. 2007. Policing Our Future. In *Transformations of Policing*, eds. Alastair Henry, and David Smith, 249–272. Aldershot: Ashgate.
Sole, Neil. 2005. Address to New Zealand Police Association Annual Conference. *Police News* 38 (10): 4.
Stace, David, and Richard Norman. 1997. Re-Invented Government: The New Zealand Experience. *Asia Pacific Journal of Human Resources* 35 (1): 21–36.
Stenning, Philip. 1994. Private Policing: Some Recent Myths, Developments and Trends. In *Proceedings of Private Sector and Community Involvement in the Criminal Justice System Conference Held 30 November–2 December 1992*, eds. David Biles, and Julia Vernon, 145–155. Canberra: AIC.
Stenning, Philip, and Clifford Shearing. 2015. Privatisation, Pluralisation and the Globalisation of Policing. *Australian Institute of Police Management* 3 (1): 1–8.
Thompson, Kenneth. 1984. Address to Annual General Meeting of the New Zealand Security Industry Association. *New Zealand Security Industry Association News*, November Issue: 1–15.
Young, Warren, Allison Morris, Neil Cameron, and Stephen Haslett. 1997. *New Zealand National Survey of Crime Victims*. Wellington: Victimisation Survey Committee.
Zedner, Lucia. 2006. Liquid Security: Managing the Market for Crime Control. *Criminology and Criminal Justice* 6 (3): 267–288.
Woulfe, Claudia. 2008. School Security Service Abysmal. *Sunday Star Times*, July 12.

Author Biography

Dr. Trevor Bradley is a Senior Lecturer at the Institute of Criminology, Victoria University of Wellington, New Zealand. His main areas of research include plural policing and private security, crime prevention and community safety, and the politics of law and order.

34

Policing and Crime Policy

Andrew Goldsmith

In Australia, as in most countries, the police play a principal role in influencing the impact and character of the criminal justice system. This influence is mainly—though not only—operational in nature. As criminal laws are not self-executing, authorised individuals are needed to interpret and apply them. Most commonly, this role is played by the police. In this gatekeeper role, they decide whether or not someone should be arrested or issued a summons to appear in court, with what criminal offence to charge them, and very often whether or not a prosecution proceeds to a hearing or trial. The fact that police exert influence over these key steps in the criminal justice process means that they possess considerable power, not simply over individuals who are under suspicion, arrested, or charged by them, but over subsequent stages of the criminal process. Police decisions on these matters also influence the cases that lawyers and prosecutors get to handle, the cases that judges and juries hear, and the cases of those who get sentenced to non-custodial or custodial sentences. Thus, in what sometimes is called the "law in action" or the "mobilisation of law" (Allison 2015), the implementation of crime policy heavily depends on the police. This pivotal contribution to the criminal justice system poses important questions about the relationship between police and government and between police and the general public.

This chapter explores a number of key features of contemporary policing through the lens of *crime policy,* that is, policies affecting the definition and

A. Goldsmith (✉)
Flinders University, Bedford Park, Australia
e-mail: andrew.goldsmith@flinders.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_34

regulation of crime as well as the scope and priorities of police operations. As well as examining how crime policies are influenced in their formative stages by police, from problem definition to policy decision making, the chapter also looks at the critical and changing role of police in relation to policy implementation. As will become clear, police influence over policy formulation can take a variety of forms: indirect and direct, off-radar and publicly visible. This chapter also outlines some key features of contemporary Australian policing, looks at key structures governing Australian policing in terms of relationships with government and the public and examines police influence over crime policy focussing on two areas: licensing and counterterrorism. It captures the pressures from within police agencies and from outside agencies and groups—including the media and the general public—for changes to crime policies. The chapter concludes by considering how police may contribute to crime policy in the future.

The State of Australian Policing

Public policing is big business in Australia. The Report on Government Services 2016 (Productivity Commission 2016) states that, nationwide, police services in 2014/2015 had a real recurrent expenditure of more than AUD 10 billion, representing around two-thirds of all government expenditure on the justice system. The annual growth in expenditure on police services was 1.9 per cent, a rate higher than for courts, but less than corrective services at 4.3 per cent. Per person, per year, Australian state and territory governments spend between AUD 354 in Queensland and AUD 1150 in the Northern Territory, with the national average being AUD 430. Interestingly, police expenditure has continued to grow in recent years, despite a widely acknowledged decrease in the overall amount of crime nationally over the same period (AIC 2014).

In staffing terms, Australian police agencies consist of operational and non-operational support staff. Nine out of ten agency members are operational, that is, they are responsible for providing policing services to external clients, mainly members of the public. In 2014/2015, the national average was 267 operational police per 100,000 population, with variation across states and territories from around 200 in ACT to around 700 in the Northern Territory. Indigenous staff are underrepresented generally, with most states having fewer than 2 per cent. In terms of gender, the national average shows that around one in three officers is female, with female officers being strongly represented in the more junior ranks.

The Report on Government Services 2016 also provides information on public attitudes towards police. Nationally, 77.5 per cent of the public surveyed reported that they were "satisfied" or "very satisfied" with police service. Similar numbers saw the police as honest, while nearly 90 per cent indicated that they "agreed" or "strongly agreed" that the police perform their job professionally.

Incidentally, private policing—sometimes termed private security—is also big business in Australia. "In 2006, there were 52,768 personnel employed full-time in the security industry, compared with 44,898 police" (Prenzler et al. 2009, 4). In addition, there were a further 40,000 persons employed part-time. Many private security employees wear uniforms and drive marked vehicles that sometimes resemble police vehicles; some are licensed to carry arms, especially when undertaking cash escorts for banks and financial institutions. Their police-like personas can conflict with the achievement of public policing objectives where members of the public confuse private security guards for police officers, or when these firms are infiltrated by criminal elements and thus contribute to insecurity rather than to security. However, the focus in this chapter is on crime policy, a field in which public police play a much clearer and significant role. Therefore, this chapter will focus on public policing.

Police, Government, and the Public

Since colonisation, Australia's police forces have borne the signs of their English and Irish heritages. In terms of their relationship with government, if not always with the people, the police's position has been based on English common law notions that continued to exert influence well into the 1970s, but which have been supplemented and amended by statute specifically dealing with police force structures, external and internal relationships, and duties and responsibilities. As head of an agency of the executive arm of government, the police commissioner is accountable to the Minister.

The line between general policy and operational issues within policing is not always clear and has historically been subject to different interpretations by both police and governments. Nonetheless, for the most part, operational decisions by police are off-limits to political direction or interference. For example in South Australia, directions by ministers to the police commissioner must be minuted and tabled before Parliament.[1] For their part, Australian police agencies generally accept that their contributions to legislative reviews should be confined to operational aspects of policy, instead of

being aimed at general policy directions. This distinction was echoed recently in the Report of Queensland's Taskforce on Organised Crime Legislation (Queensland 2016, 5–6).

This measure of autonomy from government reflects not just a constitutional position but also a political reality of relative power. As is befitting of institutions of formal social control, police agencies are entities with real power. For practical purposes, governments sometimes need to rely on the physical presence and formal powers of police to protect their members or to ensure that certain activities, such as the holding of public meetings, can go ahead despite public resistance or intimidation. The role of English police forces during the miners' strikes in the UK in the early 1980s illustrates how governments can depend very acutely on the support of the police to enable them to implement policies that may be unpopular in some quarters of the public.

Police forces are also instruments of the criminal law. They are required by statute to uphold the law as well as to maintain the public peace. This means that what they do has a strong and direct connection to the range of criminal offences established under law. What is legislated or holds force under common law as a crime creates a mandate and a responsibility for police for enforcement. Similarly, the laws that govern police procedures—including powers of arrest, search, and seizure—establish the conditions and permissions for police action to uphold the criminal law and to maintain public order. These legal manifestations of crime policy become integral elements of the *modus operandi* of police agencies.

Therefore, police have a clear interest in how crime policy evolves, and particularly what is legislated. Their frontline responsibility for much—if not most—implementation of crime policies means that what gets implemented, and how it is resourced, will affect them directly in their operations. The content or focus of these policies will also impact upon the public reception of, and responses to, those policies. A radical expansion of police powers to deal with outlaw motorcycle gangs in Queensland a few years ago led to considerable public criticism because of the perceived draconian character of what the changes enabled the police to do (see Queensland 2016). While public and police support for the expansion of police powers and new criminal sanctions is common, some policies will be more divisive than others. These policies often arise from gestural politics—get "tough on crime" measures, sometimes referred to as *penal populism* (Pratt 2007)—reflecting political agendas and operational assessments by police rather than arising from evidence-based assessments. In such cases, police action is not required for policies to be formally adopted, rather their passive acquiescence to law and order politics suffices.

The role of *the public* in setting policies that affect the police requires further comment. While public cooperation or resistance can clearly affect what police do in practice, and thus influence how effectively or successfully policies are implemented, there is also the issue of how the public influences government and the police with respect to policy positions and decisions. Individuals or *lobby groups* may directly approach legislators to affect crime policy. The campaigns of various interest groups including victim groups, hotel industry associations, and gun lobbyists may have an impact on the criminal law and upon police practice. While direct influence will be most visible during the legislative process—for example, in the form of submissions to parliamentary committees and law reform bodies—most groups also have direct contact with police agencies, bureaucrats, and politicians through policy networks. As we will see below, this is particularly true in the case of police associations and unions, which are fundamentally concerned with the working conditions of police officers, and hence with issues such as adequacy of police powers and threats to the safety of officers in the conduct of their official duties. Therefore, they—almost necessarily—occupy a significant role as policy players and effective lobbyists in the crime policy space. On occasions, that influence will arise from being accorded representation on government-appointed review committees. For example, the Queensland Taskforce on Organised Crime Legislation (Queensland 2016) had nominees from the Queensland Police Union, the Commissioned Officers Union, and the Queensland Police Service.

As part of the public, the role of *the media* in shaping public opinion and political priority setting also requires acknowledgement. In making sense of the 2009 NSW anti-bikie laws, Morgan et al. (2010) implicate media portrayals of various events and groups in advancing the government case for these new laws. Police officers are positioned as "moral entrepreneurs" (584) for these laws, albeit their contribution is not one of direct influence. Rather, journalists reporting on alleged bikie-related crimes acted as "conduits for [the police] views" (584). In effect, the media may run or lead their own campaigns on particular issues, or their influence may be indirect, by amplifying public concerns and shaping public opinion.

Key Policy Challenges

The position taken by police on crime policy issues can vary, depending on where in the policy cycle their influence is present and measurably significant. In abstract terms, they can influence the *problem definition* phase by shaping the

terms in which the problem comes to be understood. They may play a role in the *agenda-setting* phase by raising wider attention to the problem and as one in need of a policy solution. They may contribute to the *formulation of policy solutions,* and to *decision making* over which solution should be endorsed and implemented. Police influence most commonly deals with legislative amendments of the substantive criminal law or to police procedural powers of investigation. This influence is sometimes divided or segmented. Senior police influence can often be distinguished from that of police associations which represent, rank, and file police officers primarily on industrial matters such as wages and working conditions. While both have a shared interest in crime policy as it relates to police, each respectively is a significant member of the criminal justice "sub-government policy community" (Ismaili 2006, 263). As noted already, they often play a critical role in policy *implementation*. Lastly, and less common in practice, police might play a role in the *evaluation* of implemented policies.

In practice, aside from their substantive and key role in policy implementation, police regularly influence problem definition, agenda setting, and the formulation of policy measures. As laws are common policy instruments for responding to problems defined as warranting criminalisation, it is hardly surprising that the police might be viewed by government and legislators and others as having relevant expertise and experience. Indeed, support for the police by government and legislators is often seen as synonymous with granting the police more powers and the passage of new criminal laws. As noted above, sometimes these gestures will not always be welcomed by police or the public. Where the police are given powers that they regard as unnecessary or counterproductive, or that are especially unpopular with the wider public, the scene is set for policy friction and even policy failure. While under-policing of laws may be seen as an implementation deficiency, enforcement of unpopular laws may impose unacceptable costs in terms of relationships with the community through provoking hostility or the displacement of resources from other areas of perceived policing need.

The following two examples review aspects of police influence over recent crime policy in Australia. The first, on alcohol-related violence, looks at the role played by police associations in conjunction with other interest groups in support of controversial measures in NSW to restrict hours of service of alcohol and impose other limits on how, when, and where alcohol is served. The second example deals with the position of police with respect to counterterrorism and organised crime policies. In part, what we see in this instance is the development of local and national policies reflecting international trends and legal obligations as well as specific inputs by Australian police

agencies.[2] These two policy areas illustrate where the police have played key roles in implementation of policies, and where police have been expected to take action against problems that have broader social underpinnings over which police do not have a lot of control and therefore place police—both as agencies and individuals—in often invidious and challenging positions.

Alcohol-Related Violence

The relationship between alcohol consumption and violence, while complex, is widely acknowledged as a common public problem by various government authorities, researchers, and police. In 2013, a report by the National Drug and Alcohol Research Centre stated that "alcohol-fuelled violence is on the rise despite falling consumption" (Livingston 2013). This report also noted a correlation between an increase in the number of places where alcohol can be obtained and the rate of alcohol-related problems. While findings vary, studies indicate that between half and two-thirds of violent crimes involve a perpetrator, and often a victim, significantly affected by alcohol. Therefore, police officers, as well as the agencies that employ them, have a direct interest in policies in this area.

A direct expression of such an interest has emerged in NSW, where the Police Association played an active part in promoting significant changes to the regulation of licensed premises. Often, police deal with alcohol-affected people and associated violent attacks against themselves and against members of the public. In the past, attacks on police have led to calls for action for tougher penalties, new police powers, and new criminal offences. The symbolic threat of attacks against police is a powerful one that politicians have been hard pressed to ignore. The result is, in policy terms, typically a punitive one.

A shift in police approaches to policies dealing with alcohol-related violence can be seen in NSW in relation to "one-punch" attacks. The death of 18-year-old Thomas Kelly, following an alcohol-fuelled attack against him in Kings Cross in July 2012, served to catalyse a broad coalition for changes in public policy in the area of licensing and the availability of alcohol in popular inner-city sections of Sydney. Contrary to common expectations about the "usual suspects" that would argue for policy reform in this area, what emerged was a widely based movement for significant change, with the result that the role of the NSW Police Force and Minister of Police in securing these changes was relatively muted and nuanced (Quilter 2015).

In addition, the part played by the NSW Police Association was one that actively linked itself to other emergency workers—such as doctors, paramedics, and nurses—under the banner of harm minimisation. It can be

argued that by taking this stance, it aligned itself with a more positive, complex set of policy responses that invoked a wider range of responsibilities on the part of others including owners of licensed premises and local governments. In other words, the NSW Police, but particularly the NSW Police Association, supported a definition of the problem as not just being a criminal law or law enforcement one. Instead, it contributed to a common definition that reflected public health concerns about Australian drinking culture, particularly among young people. This enabled support for a suite of reforms that *largely* lay outside the purview of criminal laws and police powers. Instead, the regulatory influence of liquor licensing authorities is visible in this suite of changes, which included restrictions on the type and amount of alcohol that can be sold on weekends, particularly after midnight, and requirements in regard to the deployment and operation of CCTV around licensed venues.

Among the groups that exerted significant influence to bring about policy change were the Foundation for Alcohol Research and Education (FARE) and the Last Drinks campaign. Last Drinks' motto is "call time on street crime", representing a coalition of emergency workers including police. Although the NSW Police Association plays a significant role within this campaign group, its explicit alliance with other professionals is an interesting evolution in the policy reform process around crime and justice issues. As noted, the alliance reflects a broader and potentially more influential base for affecting public policy on questions that clearly are not police or public order ones alone.

The alliance has continued to operate since the reforms. There was, and remains, a strong and vocal constituency opposed to restrictions on alcohol sales in popular night-time areas such as Kings Cross. Research findings—from a growing number of evaluations on the impact of these policy changes in Sydney and other cities—have led to continued campaigns for both maintaining and relaxing the restrictions. In this milieu of ongoing policy advocacy and brinkmanship, groups such as FARE and Last Drinks continue to play a prominent part. In June 2016, for example, Last Drinks issued a media release entitled "Evidence Shows, Once Again, Alcohol Laws are Working". In this release, use is made of data published by the New South Wales Bureau of Crime Statistics and Research (BOCSAR) to indicate that the suite of reforms continues to be responsible for substantial reductions in alcohol-related assaults around popular nightspots where these policies have been implemented.

Countering Violent Extremism and Counterterrorism

The events of 11 September 2001 in the USA, and the numerous terrorist attacks since, have had a profound effect upon the nature of policing and crime policy in Australia and internationally (Palmer and Whelan 2015). Among the impacts for policing have been the internationalisation of counterterrorism policy through formal treaties promoting, for example, criminalisation of various preparatory acts, greater pressures for cooperation between law enforcement and other security agencies in different countries, and a reconfiguring of how policing and security gets done at the national and subnational level. Policy responses to terrorism vary in nature, ranging from counterterrorism machinery restructures to social cohesion measures. Evidently, the police is required to work more closely both with other security agencies and with agencies that deal with the social conditions that can undermine community cohesiveness.

A lot of scholarly focus to date has been on the expansion of powers of investigation and intelligence collection, alongside the criminalisation of various acts seen to manifest or to lead to terrorism. Many legislative changes introduced as counterterrorism measures have raised questions regarding the "over-reach" of the criminal law, in essence, the reduction of liberty in the pursuit of—arguably illusory—security. Another development of growing significance for policing has evolved in relation to the policy shift from predominantly counterterrorism (CT) measures to broader concerns with countering violent extremism (CVE) and promoting social cohesion. This shift—while arguably forming part of a governmental push for community responsibilisation for dealing with terrorism (Palmer and Whelan 2015)—places an even greater role on police in the prevention of terrorism than recent CT changes have done by assigning it a key and often primary role in coordinating and implementing counter-radicalisation and counter-extremism measures. A similar reorientation of public policing has also occurred in countries such as Canada and the UK in recent years (Harris-Hogan et al. 2016).

The following Australian case illustrates the significance of this shift and the difficulties that can arise when police are expected to balance traditional responsibilities of investigation and enforcement with those of intelligence collection, monitoring, disruption, and exertion of pro-social influence. It reflects a tension within operational policing as well as within official policy. As the Australian government's Review of Australia's Counter-Terrorism Machinery (Australia 2015, 32) stated recently, the focus of government efforts is upon "diverting individuals from violent extremism". This policy

objective, while widely cited and espoused, continues to lack conceptual rigour and therefore clarity of understanding and application (Harris-Hogan et al. 2016). Using public health categories, Harris-Hogan et al. (2016) put forward a useful typology for classifying CVE measures: *primary* prevention programmes targeting problematic behaviour in a large group of people; *secondary* interventions targeting people deemed to pose specific risks of developing problematic behaviours; and *tertiary* measures of direct intervention in situations in which harmful consequences are relatively certain. We can locate policing prior to 11 September 2001 in many democracies as focussing primarily on tertiary measures, such as arrest after a terrorist crime has been committed and prosecution, with only limited secondary involvement and none at the primary level.

On 23 September 2014, 18-year-old Numan Haider was shot dead outside a suburban Melbourne police station after stabbing two police officers. The two officers had sought to meet Haider concerning his display of a *Shahada* flag at a suburban shopping centre a few days earlier, where he apparently said that he would not blow up the shopping centre that particular day. Although the Australian Security and Intelligence Organisation had monitored Haider for several months in relation to his attendance at a controversial mosque and his attempts to become a foreign fighter, the two police officers who arranged to meet Haider on 23 September were not fully apprised of the intelligence concerning Haider. This information included expressions of intent to attack police with a knife in the near future.

While the coronial report on Haider's death had not been issued at the time of writing, press reports of the hearings themselves point to some of the difficulties police face in implementing policy. At the time of the meeting, the two officers had no intention of arresting or interrogating Haider. "In what the coroner heard was a relatively new approach to young terrorism suspects, *police were simply trying to build rapport with him*" [emphasis added] (Davey 2016). The evidence of a more senior police officer—referred to at the coronial hearing as officer H—who was Acting Joint Manager of the Joint Counter Terrorism Team and overseeing the operation also confirms the operational strangeness of what police were attempting to undertake with Haider. "Officer H gave evidence that the meeting with Haider was arranged as a 'disruption' tactic, to try and put the teenager [Haider] on the right track. 'This flew in the face of traditional policing, to engage with an individual in this [manner]', he said in evidence. 'This type of scenario was quite alien to me.'" (Longbottom 2016). It is also reported that officer H had completed an advanced counterterrorism investigation programme in 2005 (Longbottom 2016).

This case points to a wider phenomenon confronting policing and crime policy in Australia, that is, the attempt to use police both for traditional law enforcement tasks (tertiary interventions) and for potentially highly intrusive forms of social intervention (secondary measures) as well as broader engagements with segments of the community (primary). It is clear from the Haider case that, on one side of the equation, some police do not find this an easy balance to strike. Therefore, the expectation that they do is likely not to be reflected in successful operational outcomes.

The fraught nature of the police role in secondary and tertiary preventative interventions is also evident from the other side of the equation; community responses to measures of this kind. A recent press report from the UK indicates that police and security agencies received less than 10 per cent of referrals to the government's *Prevent* programme from within the British Muslim community (Press Association 2015). The same report indicates substantial distrust within sectors of British Muslims on the ground that they see the CVE measures as unwarranted spying exercises by government that could expose their family members to risks of removal or punishment (Shabi 2016).

Conclusion

This chapter focusses on the relationship between public police and crime policy in Australia. The police influence on policy is not necessarily a united or predictable one. There is a pluralism of views as well as participation from the police area. While many commentators tend to view police contributions to crime policy as primarily either actively in pursuit of or acquiescent towards new criminal laws or police powers, their contributions and reactions to policy changes are not always predictable. The role of police associations in promoting harm minimisation approaches to alcohol consumption in clubs and public places is an example of a significant contribution of this kind. By contrast, and in relation to tackling organised crime, the police constituencies in both NSW and Queensland have displayed a policy preference for strengthening powers to tackle criminal organisations and proceeds of crime (Queensland 2016). The second example examines the extension of the use of police as instruments of public policy implementation into the areas of tertiary and secondary interventions in relation to countering violent extremism. The apparent limits of their effectiveness in this regard so far is a reminder that the police are only one source of, and instrument for, crime policy in contemporary societies such as Australia. Their contributions in the future to

crime policy are likely to be indirect as well as direct, to be pluralistic, and increasingly to reflect a more complex understanding of the nature of crime-related problems and of the tools and approaches relevant to their amelioration or prevention. Further case studies that might have also been examined here—for which there was not sufficient room in this chapter—include other areas where policing and crime policy intersect such as domestic violence, illicit drugs, organised crime, and internet crime.

Notes

1. See Sect. 8 *Police Act 1998 (SA)*.
2. It needs to be noticed that policy influence is not always readily visible to outside observers. Much policy influence is relatively mundane in nature and takes place through conversations between senior police, public servants, government policy advisers, and legislative drafters (see Rock 1995).

References

AIC. 2014. *Facts and Figures*. Canberra: AIC.

Allison, Christine R. 2015. Law in the Books v Law in Action: A Review of the Socio-Legal Literature. In *Behind a Veil of Ignorance?*, ed. Louis Imbeau, and Steve Jacob, 35–54. Cham: Springer.

Australia. 2015. *Review of Australia's Counter-Terrorism Machinery*. Canberra: Department of the Prime Minister and Cabinet.

Davey, Melissa. 2016. Rapid Radicalisation: The Case of Numan Haider Shocks Family and Experts Alike. *The Guardian*, March 25.

Harris-Hogan, Shane, Kate Barrelle, and Alex Zammit. 2016. What is Countering Violent Extremism? Exploring CVE Policy and Practice in Australia. *Behavioral Sciences of Terrorism and Political Aggression* 8 (1): 6–24.

Ismaili, Karim. 2006. Contextualising the Criminal Justice Policy-Making Process. *Criminal Justice Policy Review* 17: 255–269.

Livingston, Michael. 2013. Alcohol-Fuelled Violence on the Rise Despite Falling Consumption. *The Conversation*, February 26.

Longbottom, Jessica. 2016. Numan Haider: Police Unaware of Threat Posed by Teen Terror Suspect, Inquest Told. *ABC News*, March 15.

Morgan, George, Selda Dagistanli, and Greg Martin. 2010. Global Fears, Local Anxiety: Policing, Counterterrorism and Moral Panic over 'Bikie Gang Wars' in New South Wales. *Australian and New Zealand Journal of Criminology* 43 (3): 580–599.

Palmer, Darren, and Chad Whelan. 2015. Policing and Networks in the Field of Counter-Terrorism. In *Examining Political Violence: Studies of Terrorism,*

Counterterrorism and Internal War, ed. David Lowe, Austin Turk, and Dilip Das, 145–166. New York, NY: CRC Press.
Prenzler, Tim, Karen Earle, and Rick Sarre. 2009. *Private Security in Australia: Trends and Key Characteristics*. Canberra: AIC.
Press Association. 2015. Prevent Programme: 'Lacking Referrals from Muslim Community'. *The Guardian*, December 26.
Quilter, Julia. 2015. Populism and Criminal Justice Policy: An Australian Case Study of Non-Punitive Responses to Alcohol-Related Violence. *Australian and New Zealand Journal of Criminology* 48 (1): 24–52.
Pratt, John. 2007. *Penal Populism*. London: Routledge.
Queensland. 2016. *Taskforce on Organised Crime Legislation*. Brisbane: Queensland Government.
Commission, Productivity. 2016. *Report on Government Services 2016*. Canberra: Productivity Commission.
Rock, Paul. 1995. The Opening Stages of Criminal Justice Policy Making. *British Journal of Criminology* 35 (1): 1–16.
Shabi, Rachel. 2016. UK Counterterrorism Strategy Just Does Not 'Prevent'. *Al Jazeera*, February 23.

Author Biography

Andrew Goldsmith is Matthew Flinders Distinguished Professor of Criminology and Director of the Centre for Crime Policy and Research at Flinders University. His key research areas are policing, organised crime, corruption, and new technologies. His most recent book, co-authored with Mark Halsey and Andrew Groves, is entitled *Tackling Correctional Corruption* (Palgrave Macmillan 2016).

35

The Police Complaints Process

John W. Buttle and Antje Deckert

The story of how police complaints organisations evolved in New Zealand is one of tension between the struggles for greater independence of complaints processes from police influence and a strong reluctance on the part of law enforcement to allow interference with their ability to act with impunity. Often there is a political will to protect the coercive arm of the state by supporting the police resistance to independent oversight. However, there are times when this is not the case, especially when officers are involved in a controversial incident that shows the police in an undeniably bad light. Then the government, and often the police themselves, will move to protect the organisation by prosecuting individuals and promising reform. Smith (2005) describes a continuous reform cycle that is characterised by mounting public concern over police misuse of authority, followed by formal inquiries which lead to changes in the legislation governing complaints against the police. In instances where the social conditions favour the reformation of the police complaints process, small gains are made towards greater independence.

In this chapter, we first explain why independent police oversight is significant for police legitimacy, public confidence, and citizen cooperation. Thereafter, we map the historical struggle for greater independence in New Zealand's police complaints process, which involved three major reform cycles.

J.W. Buttle (✉) · A. Deckert
Auckland University of Technology, Auckland, New Zealand
e-mail: jbuttle@aut.ac.nz

A. Deckert
e-mail: adeckert@aut.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_35

Last, but not least, we critically discuss whether the current complaints organisation is, in fact, independent and how resistant it is to regulatory capture. We conclude with some thoughts on a prospective fourth reform cycle.

The Notion of Independence

The independence of processes for complaints against the police is important because research indicates that impartiality, or at least perception of such, is key in gaining and maintaining public trust in the police (Landau 1996; Prenzler and Ransley 2002; Smith 2009; Tyler 2004; Waters and Brown 2000). The concept of independence refers to the ability of complaints organisations to conduct investigations into the illegal behaviour of officers without resorting to the use of police investigators, to remove the police's ability to investigate themselves, and by doing so remove opportunities to cover up wrongdoing (Prenzler 2016). In this way, the level of independence that a complaints organisation has is a function of its distance from the police (Savage 2016); the greater the distance, the greater the independence. This sounds like a relatively easy task to achieve, but there are many difficulties involved.

While being able to examine complaints made about the police using independent investigators is certainly an advantage, funding constraints may limit the number of investigations, and the police often collude to prevent evidence of their wrongdoing from being uncovered (Sanders and Young 2008). Skolnick (2002) argues that policing is characterised by a tightly woven subculture where the threat of danger and being exposed to public scrutiny promulgates a sense of loyalty between police officers. This loyalty means that officers will keep silent about colleagues' corrupt practices (Wolfe and Piquero 2011). Officers who adhere to the "code of silence" are less likely to report colleagues who use excessive force (Micuccui and Gomme 2005) and are prone to commit perjury (Chin and Wells 1998). The code of silence is a subcultural attitude regarding how police officers must behave in order to be considered respectable and trustworthy by their colleagues (Skolnick 2002). Therefore, it is also the case that amicable relations must be fostered with the police to gain enough trust to circumvent the code of silence so that the authority can effectively resolve complaints (Keppeler et al. 1994). It is the tension between organisational freedom and cooperation that underlies the relationship between the complaints authority and the police. Prenzler (2000) uses the theory of regulatory capture to explain how the police could use subtle means to subvert the independence of complaints authorities. The mechanisms of regulatory capture are explained as the values of those in the

complaints authority being subverted through identification with the police due to numerous contacts between the two parties. Prenzler (2000) states that even with the best of intentions, institutional arrangements often generate situations where inappropriate influence can shape the outcome of investigations. Grabosky and Braithwaite (1986) suggest that the police could subvert complaints authorities by creating tasks that misdirect resources away from regulation while creating inappropriate links between the regulator and the regulated. For Maguire (1991) oversight is dependent on a certain level of familiarity with police culture, but consideration needs to be given to avoiding the dangers of becoming captured by over-familiarity with police ways of thinking. Prenzler (2000) indicates that regulatory capture can also occur through the manipulation of budgets in a way that leads to funding constraints making it hard or impossible for the complaints organisation to achieve its goals. For a police complaints authority being captured by the police is as serious as losing their mandate (Lewis 1991). As a result, oversight organisations that are exposed to high levels of regulatory capture tend to implement their mandate through the use of rhetoric which by far exceeds the level of enforcement (Grabosky and Braithwaite 1986).

In order to avoid regulatory capture, the concept of independence from the police cannot be just a matter of emphasising the need for independent investigators. Instead, due to the many factors involved, the concept of independence must be applied to the organisation as a whole (Savage 2016). All people involved in police oversight must be able to claim independence from the police to maintain the distance between the two organisations. This requires robust legislation that compels police to cooperate during investigations, and police to publicly agree with findings of investigations and adhere to pertinent recommendations made by the oversight authority. Ideally, the complaints authority would have the ability to pursue criminal prosecution or administer appropriate disciplinary measures against individual officers whose wrongdoings qualify for such actions. Furthermore, organisational transparency and good public relations enable the transfer of knowledge to the public by communicating well-defined key performance indicators and by reporting cases, which in turn facilitates public access to the authority through their internet presence, media, and local offices. Most significantly, police complaints organisations need to be organised in a proactive manner that allows for the prevention of police misconduct rather than having to deal with such behaviours after they have occurred. At this level, the independence of oversight provides a means of influencing police policy (Smith 2004). Taking these factors into account enables a more complete understanding of independence from the police that could empower

the morality of the oversight organisation to subvert police culture. Whether any of these factors were considered in the three reform cycles the New Zealand oversight authority underwent since its inception is revealed in the following sections.

First Reform Cycle

In 1886, the NZ Police dropped its colonial style of policing, and adopted a "policing by consent" model based on Sir Robert Peel's principles used in Britain (Buttle 2010; Stenning 2006). For the next 100 years, there seemed to be no need for external oversight of police behaviour, meaning that, for the vast majority of its existence, NZ Police has operated with little or no accountability to the public. This changed, however, when the policing of political dissent increased during the 1980s.

Increased policing of political dissent occurred due to public opposition to the Vietnam War, Māori asserting their right to protest against the inequities caused by colonialism and public opposition to the regime of South African apartheid which was mostly expressed in large demonstrations against the Springbok rugby team tour of New Zealand in 1981 (Gallen 2000). The demonstrations against the Springbok rugby team involved a number of violent clashes between the police and protesters with numerous accusations made about police brutality (Gallen 2000). Unlike those involved in criminal activity, protesters in general, and in this case anti-apartheid campaigners specifically, are motivated by strong moral principles. They perceive their actions to be justified; they have the ability to articulate their political arguments as well as their grievances about how they are policed in a way that garners public support (Waddington 2003). It was against this background that calls for greater oversight of police behaviour were made.

According to Gallen (2000), the NZ Police were uncomfortable with the idea of greater oversight, arguing that their work would likely be complicated by malicious complaints; that officers in difficult situations should not have to worry about being judged by people who have no understanding of their situation; that complaints would be misused to obstruct prosecutions; that police would be disadvantaged if complaints were conducted by an independent organisation; and that the existence of such an organisation would indicate a lack of confidence in the police (Gallen 2000). When a bill was introduced into the houses of parliament, the NZ Police and their political allies strongly opposed the idea of legislation allowing for greater oversight (Gallen 2000; Hansard Report 1987).

Regardless of such opposition, Ann Hercus, the then Minister of Police, sought a report on the viability of an organisation that would independently handle complaints made against NZ Police. Hansard Reports (1987) record that the Beattie Committee was convened with the idea of drafting a legal bill for submission to parliament. The argument that eventually won was that a police force that investigates its own wrongdoing was flawed, and if the NZ Police were to maintain public confidence, there would need to be an independent organisation that investigated police wrongdoing. The first reform cycle was brought to a close when the *Police Complaints Authority Act 1988* was passed.

Second Reform Cycle

The New Zealand Police Complaints Authority (PCA) was heavily influenced by its counterpart in England and Wales. It had a similar structure and inevitably suffered from the same flaws. The PCA existed to remind the police that they cannot act with impunity, but its actual ability to intervene was heavily constrained. The PCA consisted of a judge and a few staff members (Den Heyer and Beckly 2016). Hence, there was no real separation of the PCA from the criminal justice system because the person in charge was also a member of it. While the PCA had the statutory power to run its own independent investigations, it was never funded adequately to do so and relied on overseeing police investigations or on reviewing the results of inquiries carried out by the police (Gallen 2000). The NZ Police was reluctant to prioritise investigations into their own behaviour, and the backlog of cases would often be large (Borrin 2006). Having to use police officers in their investigations meant that the PCA's claim of being independent lacked substance. However, since this was the first complaints organisation external to NZ Police, this "lack of teeth" may have had an inadvertent effect. Since a number of civilian oversight committees in the USA had failed largely due to the fact that their independent investigators lacked experience of police culture and hence met resistance at every turn (Keppeler et al. 1994), it may well be that the PCA's lack of power placated NZ Police. It is hard to feel threatened by an ineffective institution (Gallen 2000). Over time, NZ Police became used to the idea that some sort of external complaints process was available. It is argued here that this normalisation process was a key step because it laid the necessary foundation for ensuing reform cycles which would see the PCA equipped with more power.

While the police were coming to terms with the existence of the PCA, the public was little impressed, particularly those members of society who were most vulnerable during interactions with the police. The controversial shooting of a young Māori man highlighted the public mistrust in the PCA and was the symbolic start of a second reform cycle. In April 2000, 23-year-old Steven Wallace allegedly struck a police car with a golf club. Later, when the police confronted him, he was shot four times, leaving him fatally wounded. The officer responsible for the shooting, Constable William Keith Abbott, was subsequently cleared by the PCA of any wrongdoing, which led to allegations that the PCA was defending the actions of the police (Peace Movement Aotearoa 2000). It was feared that the police officers, who were used by the PCA to investigate allegations of misconduct, were not impartial and lacked independence (Den Heyer and Beckly 2016).

In response to this controversy, a review of the PCA was undertaken, somewhat hastily, by the Honourable Sir Rodney Gallen, who produced a report in October 2000. Due to a dearth of domestic research, the report focussed on innovative approaches to complaints processes in other jurisdictions, especially England, Northern Ireland, Canada, and Australia. Gallen's analysis focussed mostly on the need for the police complaints process to be impartial if the public were to maintain trust in the police. He recommended using investigators who were not members of the NZ Police, and changing the name of the PCA to reflect this move towards greater independence.

It was not until late 2003 that independent investigators who were not current members of the NZ Police—but often ex-police or ex-police from overseas—were appointed to the PCA, and there is no record as to why it took so long. It could be argued that the political will to make changes based on the review was lacking, or that a change in government delayed the appointment of investigators as 2002 was an election year. However, the Gallen Report was sidelined because this second reform cycle came to a premature close when it was superseded by the next one.

Third Reform Cycle

The year of 2004 saw many policing controversies due to unanswered 111 calls, police misuse of force, and criticism over an allegedly mean-spirited focus on speeding tickets (Cleave 2005; Slade 2006; Welch 2005). While all of these events had differing levels of influence on public perception of the

police, it was the allegation against a senior police officer of having taken part in a pack rape that was the driving force behind this third reform cycle.

During the early months of 2004, Superintendent Clint Rickards was stood down as Assistant Police Commissioner and Auckland District Commander after allegations of sexual misconduct were levelled against him and two ex-police officers, namely Brad Shipton and Bob Schollum (Braunias 2006). All three were accused of pack raping Louise Nicholas when they were stationed in Rotorua in 1985. A police baton was allegedly used as an instrument of violation during a series of assaults (Welch 2005). The court trial ended in Rickards and his ex-colleagues being acquitted of raping Louise Nicholas. However, the defendants were quickly charged with the rape of another woman for which they allegedly used similar instruments of defilement. The three were acquitted again, even though Shipton's wife was found to have fabricated an alibi for her husband regarding his whereabouts at the time of the rape (Cleave et al. 2007). Moreover, Shipton and Schollum used suppression orders to hide the fact that they were already serving sentences for kidnapping and rape (O'Rouke and Gay 2007). Detective Inspector John Dewer, who had actively hidden the wrongdoing of the officers, was eventually convicted of obstruction of justice. While the seeming impunity of these officers is cause for concern, the fact that Rickards rose so high in the hierarchy of the NZ Police indicated a pervasive problem. Indeed, an investigation by Operation Austin uncovered up to a dozen other women who were allegedly victimised by the trio (Cleave and Gower 2007).

A Commission of Inquiry into Police Conduct was launched on 18 February 2004. The commission was charged with investigating how allegations of sexual assault were dealt with by NZ Police. After reviewing 313 complaints of sexual assault allegedly perpetrated by 222 police officers between 1979 and 2005, the commission found that 141 of these complaints contained enough evidence for disciplinary measures to be taken against the accused officers (Bazley 2007). These findings were indicative of a toxic rape culture in the NZ Police.

For their part, NZ Police tried to hamper this investigation. "The police hierarchy waged a ferocious behind-the-scenes battle against [the] inquiry" (Oliver 2007, 1). They successfully opposed the commission's attempt to survey members of organisations that support rape survivors, thus preventing the implication of other officers that may have been involved. NZ Police argued that a survey of groups such as Rape Crisis would be unscientific (Oliver 2007), although it is well known that rape survivors are reluctant to report this crime to the police due to feelings of shame and concerns about social standing (Stanko 1990). Since rape survivors are more likely to respond

to surveys (Walters and Bradley 2005), it is argued here that NZ Police actively tried to suppress serious allegations by removing the most effective means of measuring the actual number of rape survivors who were victimised by officers.

The commission's concept of independence was similar to that of the Gallen Report focussing on the need for investigations into misconduct by investigators from outside of the NZ Police (see Bazely 2007). However, the Bazely Report distinguished itself by also focussing on the PCA's transparency, and its accessibility to the public in order to promote a greater level of independence. In November 2007, the Independent Police Conduct Authority (IPCA) officially came into being when the *Police Complaints Authority Act 1988* became the *Independent Police Conduct Authority Act 1988*.

The Independence of the IPCA

The problem of staffing the IPCA with independent investigators has been the main focus of the reform process. They must be autonomous in their actions and have a sufficient level of investigative knowledge as well as familiarity with police culture. Therefore, serious consideration must be given to who constitutes the IPCA.

The IPCA consists of up to five members, all of whom are appointed by the Governor-General on the advice of Parliament. The chair must be a judge or retired judge who is appointed for five years. The other members are appointed for three years. They are supported by a Chief Executive, two investigation teams, a complaints management team, reviewing officers, and communications and support staff. The IPCA employs between 25 and 30 full-time staff, and a small number of part-time staff and contractors. This team is responsible for overseeing all complaints and maintaining contact with complainants until the complaints process is completed. Over the past decade, many of the IPCA management staff members had a New Zealand background in policing or the criminal justice system, whereas the IPCA's investigative staff members had national and international experience in police or other investigative work (IPCA 2008, 2015, 2016a). The number of investigative staff has increased. All of the nine investigators in 2007/08 had "extensive policing experience either in New Zealand or in other Commonwealth countries" (IPCA 2008). In 2016, the number of investigators went up to 16, of whom three are reportedly former New Zealand police officers and three former UK police officers (Warren Young, pers. comm.).

While the current staffing composition may not include as many ex-police as in 2007/2008, the relevant legislation does not prevent the IPCA from returning to such hiring practices.

While the IPCA is independent of ministries and is responsible to parliament directly, the authority is chaired by a serving or retired judge, and while the judiciary is not the police, both parties are part of the criminal justice system and the relevant legislation permits that IPCA managers and investigators may have links to the criminal justice system. In this way, the people who populate the IPCA may have less distance from the criminal justice system than the citizens they serve. This lack of distance illustrates the vulnerability of the IPCA to claims that it is not independent. Regardless of their accuracy, media reports about the alleged previous or in-office misconduct of IPCA staff tend to emphasise personnel's closeness to the criminal justice system (see Kiwis First 2014; Radio NZ 2008). This demonstrates how former criminal justice staff being part of the IPCA personnel may trigger public perceptions that the IPCA lacks independence. In terms of the IPCA's reputation, the public perception that the IPCA is independent may hence be just as important as the reality of independence.

In contrast, in the UK, the executive body of the Independent Police Complaints Commission (IPCC) is made up of people from varied backgrounds, often with human rights experience (IPCC 2017), which guarantees a greater distance between them and the police. Savage (2016) indicates many investigators used by complaints organisations can become over-empathetic with the officers they are investigating and may adopt a police mindset that erodes their ability to act independently from the police, especially those who used to be officers themselves. Firstly, this reiterates that the mere use of former law enforcement officers as investigators may call into question how independent the IPCA is. Secondly, it suggests that—depending on the staffing composition in a given year—a number of IPCA employees may have an in-cultured bias towards supporting the police, which may make the organisation vulnerable to regulatory capture (Prenzler 2000).

Despite going through three reform cycles, police are still investigating police. In New Zealand, most complaints to the IPCA are referred to the police for investigation and resolution (Den Heyer and Beckley 2016). Indeed, the UN Committee against Torture (2015) noted that the ability of the police to investigate themselves was a major impediment to the IPCA's autonomy, citing much of the problem being due to lack of funding. Only a small number of investigations are carried out by IPCA staff. During 2007/2008 the IPCA conducted independent investigations into 350 cases out of a total number of 2073 recorded complaints (IPCA 2016) that is 83

per cent of cases are referred to the police. In 2016, David Clendon (2016), Member of Parliament representing the Green Party, found that over the past four years, IPCA investigators were assigned to less than 10 per cent of cases that were accepted for investigation and over 90 per cent referred to police for investigation.

The IPCA only uses independent investigators on the most serious cases of police misconduct. However, there is evidence suggesting the IPCA has problems dealing with this small number of complaints. Early in 2016, the head of the IPCA admitted they had to decline serious investigations due to budgetary constraints. However, it was noted that there was little political interest in increasing IPCA funding (Sachdeva 2016a). This inability to independently investigate the majority of alleged police misconduct cases raises the question whether the IPCA is in fact only independent by name. This is exacerbated by the fact that budgetary constraints make oversight authorities more vulnerable to regulatory capture (Prenzler 2000).

The *Independent Police Conduct Authority Act 1988* states that where a serious crime is concerned—usually involving a fatality or serious bodily harm—the police commissioner must give written notice to the IPCA informing them of the incident within five days. Likewise, a direct complaint made to the IPCA must also be forwarded to the NZ Police. A complaint can also be made to the Ombudsman or to the Registrar of any District Court, to be forwarded to the IPCA as soon as practicable. On receiving or being notified of a complaint, the IPCA may decide to investigate the complaint itself, refer the complaint to the police for investigation by the police, oversee a police investigation, or decide not to take any action (Den Heyer and Beckley 2016). It is also possible to opt for an informal resolution where the complainant and the officer undergo restorative justice.

Both, the *Independent Police Conduct Authority Act 1988* and the *Commissions of Inquiry Act 1908* apply to the powers of the IPCA in any investigation. The police are required to provide information and assist the IPCA. If they fail to do so or attempt to hinder the investigation in any way, they are committing an offence. While the IPCA has little power when an investigation is referred to police, it can at any time take over the investigation. Therefore, the IPCA has strong legislative support for compelling police action during an investigation but very little influence to compel the police to listen to them. Rather than having the power to press charges against an officer they can only recommend an action to the police, the police do not need to comply. The same can be said of instances where the IPCA perceive a need to change police policy, the suggestion can be made but the police do not have to act. For example, after reviewing a recent case where a pursuit

ended in a car crash with the deaths of two teenagers the police refused to change their pursuit policy despite the IPCA quoting international evidence suggesting that they should (Sachdeva 2016b).

Another inadequacy regarding the IPCA is that it has no statutory mandate to conduct independent research. The IPCA publishes short briefs on investigations, annual reports, and reports on police places of detention. Although the IPCA reports on case numbers, common complaint types, and complaint rates across police districts, its annual reports lack any deeper analysis that may highlight opportunities for systemic intervention. For example, analyses may reveal how to prevent the occurrence of the most common complaint type. In this case, an evidence-based intervention may also contribute to easing the IPCA's overall workload. While the IPCA has initiated and undertaken a small number of specialised studies, with a statutory mandate to instigate and undertake misconduct-prevention research, government would be obliged to fund such research activities adequately.

The IPCA is a Wellington-based operation with no regional offices to speak of, which makes physical accessibility a problem, a problem which, in contemporary times, can be solved in part by the internet. However, even in 2005, the only web presence that the PCA had was a physical address given out on the website of the Ministry of Justice. This lack of online presence made public access very difficult. Nowadays, the IPCA has its own website making it easier for complainants to find the IPCA. The IPCA's website also facilitates transparency by making annual reports and case reports available to the public. The *Independent Police Conduct Authority Act 1988* allows for the reporting of their findings and the IPCA claims on its website "the Authority reports publicly on *all* independent investigations" (IPCA 2016c, emphasis added). However, a perception of "secrecy" (Bilby 2016) remains because the IPCA conducted 70 independent investigations in the reporting year 2014/2015 but published only 37 public reports (IPCA 2016d). It is at the discretion of the IPCA as to which reports are published. The problem is that any lack of reporting can be construed as part of a cover-up. A recent example of how this can occur involves the so-called Roast Busters 2 (Bilby 2016) case where adolescent schoolboys plied young girls with alcohol, photographed the hardly conscious girls with genitalia dangling in their faces, and then posted the photographs on the internet. The IPCA praised detectives for conducting an exemplary investigation while at the same time refusing to publish their report on the matter (Bilby 2016). Given that the IPCA only oversaw the police investigation in this matter and the circumstances of this incident, it is not surprising when journalists draw conclusions about IPCA and police

colluding to cover up wrongdoing. While the IPCA may have concerns about breaches of privacy, blackening sensitive passages from the report may have served to improve perceptions of independence and transparency in this case.

Conclusion

Smith's (2005) notion of reform cycles—which involve firstly an incident that concerns the public, secondly a call for a commission of inquiry, and thirdly reforms of the police complaints process consistent with the commission's recommendations—very much reflects the New Zealand experience. Indeed, New Zealand's system for making complaints against the police has progressed very much in this way and is now, despite resistance, more independent, transparent, and accessible than when it was first conceived. However, there is a long way to go before the IPCA's claims of independence can be accepted. In order to strengthen the IPCA against regulatory capture (Prenzler 2000), the IPCA needs to be sufficiently funded to increase the number of independent investigations. Furthermore, from the top to the bottom and at all times, the IPCA staff needs more human rights activists and less members with links to the criminal justice system. Regarding transparency as one aspect of organisational independence, the IPCA has now its own website and demonstrates greater transparency than its predecessor, but more (ideally all) cases need to be made available to public scrutiny and annual reports need to be more substantial and analytical. The potential of autonomous research needs to be fully realised. The IPCA, NZ Police, and the New Zealand public would benefit from the statutory requirement that the IPCA is to research trends in police misconduct, identify patterns and issues that need addressing, and thus affect change in policy to *prevent* police misconduct. There is also a need for greater statutory power to compel NZ Police to change policies and to allow the IPCA to press charges against officers. While New Zealand has started down the path to a truly independent IPCA, there is still a way to travel before this goal is realised.

References

Bazley, Margaret. 2007. *Report of the Commission of Inquiry into Police Conduct*. Wellington: Commission of Inquiry into Police Conduct.

Bilby, Lynley. 2016. Report into Police Handling of Roast Busters Case to Stay Secret. *New Zealand Herald*, February 17.

Borrin, Ian. 2006. *PCA Statement of Intent 2006/2007*. Wellington: PCA.
Braunias, Steve. 2006. Crimes and Misdemeanours. *Sunday Star Times,* April 2.
Buttle, John W. 2010. The Case Against Arming the Police. *Rethinking Crime and Punishment (RECAP) Newsletter*, 82.
Cleave, Louisa. 2005. Top Officer Quits Police Inquiry. *New Zealand Herald*, September, 5.
Cleave, Louisa, and Patrick Gower. 2007. Police Rapists Another 12 Alleged Victims. *New Zealand Herald,* August 10.
Cleave, Louisa, Patrick Gower, Phil Taylor, and Juliet Rowan. 2007. Police Sex Case: Brad Shipton—Leader of the Pack. *New Zealand Herald*, March 3.
Chin, Gabriel, and Scott Wells. 1998. The 'Blue Wall of Silence' as Evidence of Bias and Motive to Lie: A New Approach to Police Perjury. *University of Pittsburgh Law Review* 59: 233–258.
Heyer, Den, Garth, and Alan Beckley. 2016. Police Independent Oversight in Australia and New Zealand. In *Civilian Oversight of Police: Advancing Accountability in Law Enforcement*, eds. Tim Prenzler, and Garth den Heyer, 130–143. Boca Raton, FL: CRC Press.
Gallen, Rodney. 2000. *Review of the Police Complaints Authority*. Wellington: Ministry of Justice.
Grabosky, Peter, and John Braithwaite. 1986. *Of Manners Gentle: Enforcement Strategies of Australian Business Regulatory Agencies*. Melbourne: Oxford University Press.
Report, Hansard. 1987. *Police Complaints Authority and Miscellaneous Amendments Bill: Report of Justice and Law Reform Committee*. Wellington: New Zealand Parliament.
IPCA. 2016a. *Investigators*. http://www.ipca.govt.nz/Site/about/people/People-investigators.aspx. Accessed 28 Sep.
IPCA. 2016b. *Accountability publications*. http://www.ipca.govt.nz/Site/publications/Accountability/Archive.aspx. Accessed 28 Sep.
IPCA. 2016c. *Independence*. http://www.ipca.govt.nz/Site/about/Independence.aspx. Accessed 28 Sep.
IPCA. 2016d. *Reports on Investigations*. http://www.ipca.govt.nz/Site/publications/Reports-on-investigations/Default.aspx. Accessed 28 Sep.
IPCA. 2015. *Annual Report 2014/15*. Wellington: IPCA.
IPCA. 2008. *Annual Report 2007/2008*. Wellington: IPCA.
Keppeler, Victor E., Richard D. Sludder, and Geoffrey P. Alpert. 1994. *Forces of Deviance: Understanding the Dark Side of Policing*. Prospect Heights, IL: Waveland.
Landau, Tammy. 1996. When Police Investigate Police: A View from Complainants. *Canadian Journal of Criminology* 38 (3): 291–315.
Lewis, Clare. 1991. Police Complaints in Metropolitan Toronto. In *Complaints against the Police: The Trend to External Review*, ed. Andrew Goldsmith, 153–175. Oxford: Clarendon Press.

Maguire, Mike. 1991. Complaints against the Police: The British Experience. In *Complaints against the Police: The Trend to External Review*, ed. Andrew Goldsmith, 171–210. Oxford: Clarendon Press.

Micucci, Anthony J., and Ian M. Gomme. 2005. American Police and the Subcultural Support for the Use of Excessive Force. *Journal of Criminal Justice* 33 (5): 487–500.

Clendon, David. 2016. Police Investigating Complaints against Themselves. *Green Party Press Release*, March 6.

Oliver, Paula. 2007. Revealed: How Police Fought against Bazley. *New Zealand Herald*, April 5.

O'Rourke, Simon., and Edward Gay. 2007. No Chance of Retrial for Rickards after Dewar Verdict: Legal Experts. *The New Zealand Herald*, August 9.

Peace Movement Aotearoa. 2000. The Shooting of Steven Wallace. *Peace Movement Aotearoa*, May 9.

Prenzler, Tim. 2000. Civilian Oversight of Police: A Test of Capture Theory. *British Journal of Criminology* 40: 659–674.

Prenzler, Tim. 2016. Scandal, Inquiry, and Reform: The Evolving Locus of Responsibility for Police Integrity. In *Civilian Oversight of Police: Advancing Accountability in Law Enforcement*, eds. Tim Prenzler, and Garth den Heyer, 3–27. Boca Raton, FL: CRC Press.

Prenzler, Tim, and Janet Ransley. 2002. *Police Reform: Building Integrity*. Sydney: Hawkins Press.

Radio NZ. 2008. Police Watchdog Confirms Appointee Was Investigated. *Radio NZ*, September 22.

Sachdeva, Sam. 2016a. Police Watchdog IPCA Skips Investigations due to Financial Pressure. *Stuff*, February 10.

Sachdeva, Sam. 2016b. Police Dismiss Independent Watchdog Calls to Change Policy on Fleeing Drivers. *Stuff*, February 10.

Sanders, Andrew, and Richard Young. 2008. Police Powers. In *Handbook of Policing*, ed. Tim Newburn, 281–312. Cullompton: Willan Publishing.

Savage, Stephen P. 2016. Independent Minded: The Role and Status of 'Independence' in the Investigation of Police Complaints. In *Advancing Accountability in Law Enforcement*, eds. Tim Prenzler, and Garth den Heyer, 29–46. Boca Raton, FL: CRC Press.

Skolnick, Jerome. 2002. Corruption and the Blue Code of Silence. *Police Practice and Research* 3 (1): 7–19.

Slade, Maria. 2006. Women Who Run with the Wolves: Did the Jury Get It Wrong? *Investigate* 6 (64): 28–33.

Smith, Graham. 2004. Rethinking Police Complaints. *British Journal of Criminology* 44: 15–33.

Smith, Graham. 2005. A Most Enduring Problem: Police Complaints Reform in England and Wales. *Journal of Social Policy* 35 (1): 121–141.

Smith, Graham. 2009. Why Don't More People Complain against the Police? *European Journal of Criminology* 6 (3): 249–266.
Stanko, Elizabeth. 1990. *Everyday Violence*. London: Harper Collins.
Stenning, Philip. 2006. Emerging Principles for Policing in New Zealand: A Review of the Historical Background. Paper presented at *Securing the Future: Networked Policing in New Zealand, Victoria University of Wellington, Wellington, November 22.*
Tyler, Tom R. 2004. Enhancing Police Legitimacy. *The Annals of the American Academy of Political and Social Science* 593 (1): 84–99.
UN Committee against Torture. 2015. *Concluding Observations on the Sixth Periodic Report of New Zealand*. UN 1,292th and 1,295th meetings held on April 21–22.
Waddington, P.A.J. 2003. Policing Public Order and Political Contention. In *A Handbook of Policing*, ed. Tim Newburn, 394–421. Collumpton: Willan.
Walters, Reece, and Trevor Bradley. 2005. *Introduction to Criminological Thought*. Auckland: Pearson Education.
Waters, Ian, and Katie Brown. 2000. "Police Complaints and the Complainants' Experience. *British Journal of Criminology* 40: 617–638.
Welch, Denis. 2005. "Who You Gonna Call?" *New Zealand Listener,* March 5.
Wolfe, Scott E., and Alex R. Piquero. 2011. Organizational Justice and Police Misconduct. *Criminal Justice and Behaviour* 38 (4): 332–353.

Author Biographies

Dr John Buttle is a Senior Lecturer of criminology at AUT. His main research focus in on understanding the police, more specifically, police misconduct. Work spans a number of jurisdictions including the USA, UK, New Zealand, and Indonesia. He has written on the use and misuse of force, the adoption of lethal and non-lethal weapons, and police corruption.

Dr Antje Deckert is a Senior Lecturer in criminology at AUT. Her research concerns desistance narratives and criminological discourse, particularly its interactions with Indigenous peoples and epistemologies. She is currently serving her second term as NZ Vice President of ANZSOC and will be Visiting International Professor at Brock University, Canada in 2017.

Part IV

Crime and Justice Through Different Theoretical Lenses

36

Strain Theory and Crime

Li Eriksson and Lisa Broidy

Anomie and strain theories are useful for understanding how the problems facing communities and individuals can translate into inflated crime rates and propel criminal behaviour. Theoretical explanations that emphasise crime and deviance as the outcome of anomie or strain have shown great endurance since their introduction during the early and mid-twentieth century and are common frames for contemporary criminological research at the structural (anomie) and individual (strain) levels. The international criminological literature provides support for these explanations. At the macro-level, research shows that variation in economic factors such as income inequality and financial deprivation, key markers of anomie explain differences in aggregate levels of property and violent crime across geographic regions (Pratt and Godsey 2003; Savolainen 2000). Numerous studies across a range of cultural settings also support the criminogenic influence of individual-level strains such as physical and sexual victimisation (Baron 2004; Moon et al. 2009), relationship and family problems (Froggio and Agnew 2007; Lin and Mieczkowski 2011), economic strain and relative deprivation (Baron 2007),

L. Eriksson (✉)
The School of Criminology and Criminal Justice at Griffith University, Queensland, Australia
e-mail: l.eriksson@griffith.edu.au

L. Broidy
The University of New Mexico and Adjunct professor, Griffith University, Queensland, Albuquerque, New Mexico, USA
e-mail: l.broidy@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_36

work-related stress (Gibson, Swatt, and Jolicoeur 2001), and discrimination (Santoro and Broidy 2014).

Despite the plethora of international research supporting anomie and strain theories, comparatively few studies have examined the impact of anomie and strain on crime and delinquency within an Australian or New Zealand context, with the notable exception of cross-national tests of Institutional Anomie Theory (IAT) (Hughes et al. 2015). Applying anomie and strain theories to crime and delinquency rates and behaviours within Australia and New Zealand can further advance our understanding of the region's crime problems.

In this chapter, we detail the historical and contemporary theoretical development of anomie and strain theories. Then, using General Strain Theory (GST) as an example, we detail the specific utility of strain theories for understanding crime and delinquency in Australia and New Zealand. With a focus on adolescent offending and gender differences in offending, we review the international and local literature to show the relevance of GST for explaining these issues in the Australia and New Zealand context. Lastly, we provide a research agenda outlining the steps necessary to further anomie and strain research within this region.

From Traditional Strain Theory to GST and IAT

Robert Merton (1938) set the foundation for both anomie and strain theories. He proposed that variation in levels and sources of anomie explain variation in crime rates across structural contexts, and he positioned crime and delinquency as individual-level responses to strains resulting from anomic structural conditions. Merton drew intellectual inspiration from the work by nineteenth-century sociologist Emile Durkheim ([1893] 1984, [1897] 1951), who proposed that anomie is a response to rapid social and cultural change, which creates both broad social upheaval that leaves societies ill-equipped to regulate deviant behaviour and individual feelings of dissatisfaction that increase inclinations towards deviance.

Merton extended Durkheim's theorising by distinguishing between culturally defined goals and the social definitions, regulations, and controls that are in place to achieve these goals. Merton argued that strain—and, by extension, rates of deviance—will be highest in societies that emphasise monetary wealth but fail to provide equal access to high-quality education and job opportunities that facilitate access to wealth. Crime is one adaptation to such strains, which he suggested would be concentrated among the lower classes, where material strains are most acute. Other early versions of strain

theory built on this theme. Cohen (1955) recognises that lower-class boys are unable to achieve the same societal status as middle-class boys. This is particularly problematic for those lower-class boys who value status, for whom delinquent subcultures become a solution, as these subcultures serve as alternatives to middle-class norms and values and legitimise hostility and aggression towards the middle-class. Cloward and Ohlin (1960) also link strain to delinquent subcultures. Like Merton, though, the salient strains they identify are linked to cultural and structural barriers that restrict material and financial success among the lower classes.

Traditional strain theories remained prominent until the late 1960s, when studies began challenging the association between social class and crime (see, for example, Hirschi 1969; Tittle, Villemez, and Smith 1978) and critiquing the lack of empirical support for the discrepancy between goals and means as a cause of strain (see, for example, Hirschi 1969; Liska 1971). As a result of these critiques and a disciplinary shift towards more individual and psychologically based explanations of crime, anomie and strain theories fell out of favour (Messner and Rosenfeld 2007).

In the 1990s, we saw a resurgence of anomie and strain theories, with two contemporary revisions, GST and IAT, aimed at addressing the criticisms lodged against earlier versions. GST, a social psychological theory developed by Agnew (1992, 2001), conceptualises crime as a means of coping with strain and negative emotions. Agnew proposed that people experience a broad range of strains, not just material ones. These strains are generally linked to (1) the inability to achieve positively valued goals; (2) the removal of positively valued stimuli; and (3) the presentation of negatively valued stimuli. Agnew further argued that strain is not universally criminogenic and is only likely to lead to crime when high in magnitude or frequency, or unjustly inflicted. Another novel feature of GST is the focus on negative emotions. According to GST, experiences of strain trigger a range of negative emotions —such as anger, disappointment, and fear—that necessitate a coping response. The emotion most likely to lead to criminal coping is anger, as it magnifies perceptions of unjust treatment, creates a desire for retaliation, negatively affects problem-solving abilities, and physically and mentally prepares individuals for action. Whether an individual turns to legitimate or illegitimate coping strategies is also influenced by factors such as personal characteristics, peer associations, levels of social control in the immediate and broader environment and perceived access to legitimate coping resources.

In contrast to GST, which was originally developed as a theory of delinquency and was applied to more serious forms of crime only later, Messner and Rosenfeld's (2007) macro-level IAT specifically applies to serious crime,

such as lethal violence and large-scale white-collar crime. Messner and Rosenfeld's (2007) starting point is Merton's proposal that deviance and crime result from a disjunction between pervasive cultural emphases on financial success and the unequal availability of legitimate opportunities to acquire wealth. Similar to Merton, Messner and Rosenfeld (2007) argue that this leads to widespread acceptance of the principle that the ends justify the means. However, they argue that anomic pressures do not result solely from the disjunction between financial goals and means. Also important is the effectiveness of the usual social control and social support functions of *non-economic* social institutions at countering messages that prioritise money and other material goals. Messner and Rosenfeld (2007) argue that a disproportionate cultural emphasis on financial success devalues the conceptual and practical significance of social institutions such as family, schools, religion, politics, and law. Thus, crime reduction is only possible when the goals associated with these institutions, such as raising a family, have as much social value to financial success and when policies enabling these alternative non-financial goals are made available through institutional reform.

Applications and Tests of Anomie and Strain Theories

There is an extensive body of literature assessing the theoretical and empirical applicability of anomie and strain theories using data from industrialised and developing regions (see Botchkovar and Broidy 2013; Broidy 2001). In particular, three areas have received substantive attention within the research literature: cross-national variation in homicide rates (see, for example, Savolainen 2000), adolescent involvement in crime and delinquency (see, for example, Rebellon et al. 2009), and gender differences in offending (see, for example, Santoro and Broidy 2014). While data from Australia and New Zealand feature in IAT studies focussing on cross-national homicide rates, criminologists have not explicitly tested the applicability of GST to local crime problems. Here, we focus on GST. We argue that this theoretical frame can shed light on some of the criminogenic mechanisms that influence adolescent delinquency as well as gender differences in offending in the Australia and New Zealand context. In this section, we outline the theoretical propositions, examine international research findings, and identify Australian and New Zealand indicators for the applicability of GST to adolescent delinquency and gender differences in offending, respectively.

Adolescent Delinquency

GST was originally proposed as a theory focussing on the delinquent and criminal behaviour of adolescents and young adults (Agnew 1992), though it has since been expanded to explain more serious offending committed by adult populations (see, for example, Agnew 2010; Eriksson and Mazerolle 2013). GST provides insight into one of the most pertinent age-related empirical questions within criminology, namely why offending peaks in adolescence. Agnew (1997, 2006) argues that, compared to adults and children, adolescents are more likely to experience criminogenic strains, such as exposure to adverse social environments and conflicts with parents and teachers. Another source of strain is the 'maturity gap' experienced by adolescents whose perception of themselves as autonomous individuals does not align with the legal and social privileges afforded them by society. Agnew notes that, partly due to their underdeveloped cognitive appraisal skills, adolescents are more likely than adults to interpret experiences as adverse and thus more likely to become angry or frustrated. Additionally, the adolescent context increases exposure to negative role models such as delinquent peers, reduces exposure to social control such as parental supervision, and limits social support resulting from a reluctance to discuss their problems and to ask for support from parents or conventional peers. This context, coupled with underdeveloped problem-solving skills, makes adolescents significantly less equipped than adults to cope with strain in legitimate ways.

International research provides support for many of the factors proposed by GST to impact on adolescent offending. Studies have linked a range of strains experienced in adolescence with delinquent outcomes including physical and emotional victimisation (Baker et al. 2010; Hay et al. 2010), conflict and negative relations with adults (Moon et al. 2009; Paternoster and Mazerolle 1994), desire for autonomy (Chen 2010), and financial stress and unemployment (Baron 2004, 2008). Research has also found an association between persistent or increased exposure to stressful life events and participation in delinquency (Hoffmann and Cerbone 1999).

International research also supports the mediating role of negative emotions as proposed by GST. Specifically, studies consistently find support for a mediating effect of anger or frustration on delinquency (Broidy 2001; Rebellon et al. 2009). At the same time, other emotions such as sadness and anxiety appear to correlate with other maladaptive coping strategies such as internalising behaviour—for example, self-harm and disordered eating—among adolescents (Hay and Meldrum 2010).

Various indicators suggest that GST would make a valuable contribution to the theoretical landscape around adolescent delinquency within the Australian and New Zealand context, with evidence of adolescent exposure to a range of economic, social, and familial strains. For example, unemployment rates are consistently higher for youths than for adults, with more than 15 per cent of job-seeking youths aged 15 to 19 unemployed (ABS 2015; Statistics New Zealand 2015), and domestic studies have established an association between unemployment and youth participation in crime (Chapman et al. 2002; Fergusson, McLeod, and Horwood 2014). Further, certain sections of the youth population are more disadvantaged than others, with Indigenous people facing particularly high unemployment rates (ABS 2015; Statistics New Zealand 2015). GST offers a framework for making sense of how these structural conditions might impact on delinquency, especially for youth from those populations that experience these strains most acutely.

Non-economic forms of strain—albeit not explicitly conceptualised as such—have also been linked to adolescent delinquency in Australia and New Zealand, including exposure to harsh parenting (Australian Institute of Family Studies 2015) and peer victimisation such as bullying (McGee et al. 2011). The domestic literature also provides indications of youths facing a 'maturity gap'. One example is the significant increase of Australian youths aged 15 to 20 who are financially dependent on their parents (Schneider 2000) at the age when they should be establishing their independence and autonomy. Further, Australian longitudinal research shows that early onset of puberty is predictive of aggression and delinquency during adolescence (Najman et al. 2009), implicating strains associated with the adolescent maturity gap in adolescent offending patterns.

Less clear from existing domestic research is the impact of emotions on delinquency. Nevertheless, some research indicates that emotions may play a central role in offender perceptions of, and reactions to, situations. Much of this research comes from the restorative justice field, with emphasis on the role of emotions such as guilt and shame on desistance from crime (Braithwaite 1989; Hayes and Daly 2003; Rossner 2013). This field of research can provide valuable insights into the role of emotions on reoffending, although the focus is often the emotional responses to criminal justice processing as opposed to the emotions that presage offending behaviours.

Gender

The role of gender was first articulated within strain theories towards the end of the 1990s. Broidy and Agnew (1997; see also Agnew 2006) proposed that GST can address two fundamental questions about gender and crime, namely why males are overrepresented as offenders and why some females engage in crime. In particular, Broidy and Agnew (1997) note that exposure to strain differs in both type and salience for males and females. Males are more likely to experience certain strains conducive to crime such as harsh discipline and victimisation, which are often of high magnitude and associated with low social control and perceived injustice. Males are also more likely to pursue status and masculinity goals so that strains which constrain access to these goals are particularly salient for them. Conversely, females are more acutely impacted by interpersonal strains and are more likely to experience sexual abuse and gender discrimination, which can help explain why some females do engage in crime albeit to a lesser extent than males.

Broidy and Agnew (1997; see also Agnew, 2006) further underscore differences across gender in emotional and behavioural responses to strain, criminogenic influences, and availability of protective resources. For example, while anger is a common response for both males and females, experiences of anger are qualitatively different across gender. Male anger is more often characterised by moral outrage resulting from external attributions of blame, while female anger is often accompanied by emotions such as fear and anxiety resulting from internal attributions of blame. Behavioural responses to strain also differ. For example, while male behavioural coping often takes the form of external venting of their frustrations such as physical and verbal aggression, females are more likely to engage in emotional self-destructive coping strategies such as eating disorders and drug use. Broidy and Agnew note that these emotional and behavioural differences likely result from pervasive gender stereotypes and different socialisation processes for males and females, such as violence being a means for males to demonstrate masculinity. Similarly, females are exposed to greater social control and experience higher levels of social support compared with males, factors that decrease the likelihood of criminal coping.

As hypothesised, international research has generally found that males and females experience similar *amounts* but different *types* of strain (Broidy 2001; Piquero and Sealock 2004). Data from the National Longitudinal Study of Adolescent Health indicate that, while females more commonly experience strain such as suicidal behaviour by friends and family, males more commonly

report violent victimisation as a source of strain (Kaufman 2009). Similarly, examining riot participation among African–Americans during the 1960s, Santoro and Broidy (2014) found that males were more likely to experience police mistreatment and racial discrimination in the workplace compared with females. At the same time, research links certain types of strains such as gender discrimination, violence in intimate relationships, and sexual abuse to female offending (Eitle 2002; Katz 2000), although limited GST research has compared these experiences across gender.

Several studies have also examined gendered emotional and behavioural responses to strain. While males and females are equally likely to experience anger in response to strain, females are more likely to experience other emotions such as depression, anxiety, and guilt (Broidy 2001; Hay 2003; Jang and Johnson 2005). There is also research to suggest that males and females cope differently with experiences of strain and negative emotions. As suggested by Broidy and Agnew (1997), females, in general, are less likely to turn to illegitimate and maladaptive coping than males (Broidy 2001), and their coping, as noted, is more often self-directed. That said these differences appear to reflect the broader differences in strain exposure, strain type, and strain salience and not gender-specific responses. Indeed, where strain experiences overlap, so too do behavioural responses (Hay et al. 2010).

There is ample evidence within the trans-Tasman literature to show that males and females are exposed to a wide number of strains, many of which are gendered. For example, data from the Australian Personal Safety Survey shows that while males are overrepresented in the overall violence victimisation statistics, females more commonly experience certain types of violence, such as sexual assault and intimate partner violence (ABS 2014). Likewise, although discrimination based on sex is prohibited in Australia through the *Sex Discrimination Act 1984* and in New Zealand through the *Human Rights Act 1993*, females still face significant barriers to gender equality, including lower workforce participation rate, higher commitment to unpaid care work, and gender pay gaps (Workplace Gender Equality Agency 2016).

While scholars have not explicitly tested the role of strain in criminal conduct using a GST lens within an Australian and New Zealand context, some research has examined gendered experiences of, and responses to, adversity. For example, examining serious fraud in Australia and New Zealand, Goldstraw, Smith, and Sakurai (2005) found that male offenders who committed serious fraud were more commonly motivated by financial strain while maintaining interpersonal relations was a more common motivation among female offenders. Motivational differences may reflect underlying strains and these differences across gender are also apparent for other

forms of crime such as acts intended to cause injury. For example, nearly one-third of young males in Australia who engaged in stalking behaviour were motivated by feelings of rejection following relationship separation, compared with less than one-tenth of young female stalkers (Purcell et al. 2010). Instead, the primary motivations for young female perpetrators included bullying and retaliation. Findings such as these add value to the international GST literature, particularly given the emphasis afforded to partner separation as a source of strain for males who kill their intimate partners (Eriksson and Mazerolle 2013).

Although research in Australia and New Zealand has not examined gendered emotions and coping from a GST perspective specifically, scholarly findings from this region can also add value internationally. Australian research shows that while anger *intensity* is similar across gender, females experience anger more *frequently* than males (Brebner 2003), highlighting differences in conceptual and operational definitions of anger. Importantly, domestic research also distinguishes between gender role identification and biological sex. Milovchevich et al. (2001) show that while the latter does not influence anger intensity and expression in reaction to a hypothetical theft victimisation scenario, gender role identification does. They find that individuals who identify with masculine gender roles experience anger more strongly and express anger outwardly to a greater extent than individuals who identify with feminine, androgynous, or undifferentiated gender roles (Milovchevich et al. 2001). Adding to this, further domestic research suggests that the detection of men's emotional distress is constrained by traditional notions of masculinity, and so are consequently the availability and cultural acceptance of legitimate coping mechanisms to deal with such distress. These findings are consistent with GST and help explain why men sometimes hide their emotional distress from others, and tend to cope in socially inappropriate ways, such as physical aggression, instead of seeking support (Brownhill et al. 2005).

Conclusion

Given the scholarship in the anomie and strain field internationally, it seems clear that applications of anomie and strain theories contribute to our understanding of crime within the Australian and New Zealand context. A brief overview of domestic research suggests the applicability of GST to crime and delinquency and speaks to the utility of explicitly testing these mechanisms in Australia and New Zealand. Although we do not review the relevant macro-level research here, there is a similar reason to think strain and

anomie processes are at play in shaping differences in crime rates over time, across communities, and across groups in Australia and New Zealand. Specifically, these frameworks might help advance our understanding of offending within Indigenous communities and populations, a particularly important area of research and policy in the Australia and New Zealand context that is addressed in detail elsewhere in this volume. At the same time, given cross-cultural differences in anomie and strain mechanisms (Horton et al. 2012; Pratt and Godsey 2003), it is important not to adopt a blanket approach by assuming that what is observed in one cultural context is applicable to all contexts.

There is no question that anomie and strain processes are at play in the region, but it remains unclear whether and how they link to variation in crime rates and offending behaviours. Beyond its theoretical value, the articulation of these links has practical value given their implication for macro-level policy and individual-level intervention. Without the relevant research, we cannot speculate on the specific policy and practice implications, and so we encourage scholars to aim their research agendas at identifying the key criminogenic strains that operate in the region and at the specific mechanisms that link them to offending outcomes. Such work can provide invaluable guidance for where to target limited policy and intervention resources.

References

ABS. 2014. *Personal Safety, Australia, 2012*. Cat. no. 4906.0. Canberra: ABS.

ABS. 2015. *Labour Force Australia December 2015*. Cat. no. 6202.0. Canberra: ABS.

Agnew, Robert. 1992. Foundation for a General Strain Theory of Crime and Delinquency. *Criminology* 30 (1): 47–87.

Agnew, Robert. 1997. Stability and Change in Crime over the Life Course: A Strain Theory Explanation. In *Developmental Theories of Crime and Delinquency*, ed. Terence P. Thornberry, 101–132. New Brunswick, NJ: Transaction Publishers.

Agnew, Robert. 2001. Building on the Foundation of General Strain Theory: Specifying the Types of Strain Most Likely to Lead to Crime and Delinquency. *Journal of Research in Crime and Delinquency* 38 (4): 319–361.

Agnew, Robert. 2006. *Pressured into Crime: An Overview of General Strain Theory*. Los Angeles, CA: Roxbury Publishing Company.

Agnew, Robert. 2010. A General Strain Theory of Terrorism. *Theoretical Criminology* 14 (2): 131–153.

Australian Institute of Family Studies. 2015. *The Longitudinal Study of Australian Children Annual Statistical Report 2014*. Melbourne: Australian Institute of Family Studies.

Baker, Charlene K., Earl S. Hishinuma, Janice Y. Chang, and David C. Nixon. 2010. The Relationship among Exposure to Stressful Life Events, Drug Use, and Violence Perpetration in a Sample of Native Hawaiian, Samoan, and Filipino Adolescents. *Journal of Interpersonal Violence* 25 (3): 379–399.

Baron, Stephen W. 2004. General Strain, Street Youth and Crime: A Test of Agnew's Revised Theory. *Criminology* 42 (2): 457–483.

Baron, Stephen W. 2007. Street Youth, Gender, Financial Strain, and Crime: Exploring Broidy and Agnew's Extension to General Strain Theory. *Deviant Behavior* 28 (3): 273–302.

Baron, Stephen W. 2008. Street Youth, Unemployment, and Crime: Is it That Simple? Using General Strain Theory to Untangle the Relationship. *Canadian Journal of Criminology and Criminal Justice* 50 (4): 399–434.

Botchkovar, Ekaterina, and Lisa Broidy. 2013. Accumulated Strain, Negative Emotions, and Crime: A Test of General Strain Theory in Russia. *Crime and Delinquency* 59 (6): 837–860.

Braithwaite, John. 1989. *Crime, Shame, and Reintegration*. Cambridge, NY: Cambridge University Press.

Brebner, John. 2003. Gender and Emotions. *Personality and Individual Differences* 34 (3): 387–394.

Broidy, Lisa. 2001. A Test of General Strain Theory. *Criminology* 39 (1): 9–33.

Broidy, Lisa, and Robert Agnew. 1997. Gender and Crime: A General Strain Theory Perspective. *Journal of Research in Crime and Delinquency* 34 (3): 275–306.

Brownhill, Suzanne, Kay Wilhelm, Lesley Barclay, and Virginia Schmied. 2005. 'Big Build': Hidden Depression in Men. *Australian and New Zealand Journal of Psychiatry* 39 (10): 921–931.

Chapman, Bruce, Don Weatherburn, Cezary A. Kapuscinski, Marilyn Chilvers, and Sandra Roussel. 2002. *Unemployment Duration, Schooling and Property Crime*. Sydney: BOCSAR.

Chen, Xiaojin. 2010. Desire for Autonomy and Adolescent Delinquency: A Latent Growth Curve Analysis. *Criminal Justice and Behavior* 37 (9): 989–1004.

Cloward, Richard, and Lloyd Ohlin. 1960. *Delinquency and Opportunity*. New York, NY: The Free Press.

Cohen, Albert K. 1955. *Delinquent Boys*. New York, NY: The Free Press.

Durkheim, Émile. (1893) 1984. *The Division of Labor in Society*. Translated by Wilfred D. Halls. New York, NY: The Free Press.

Durkheim, Émile. 1897/1951. *Suicide*: *A Study in Sociology*. Translated by John A. Spaulding and George Simpson. New York, NY: The Free Press.

Eitle, David J. 2002. Exploring a Source of Deviance-Producing Strain for Females: Perceived Discrimination and General Strain Theory. *Journal of Criminal Justice* 30 (5): 429–442.

Eriksson, Li, and Paul Mazerolle. 2013. A General Strain Theory of Intimate Partner Homicide. *Aggression and Violent Behavior* 18 (5): 462–470.

Fergusson, David M., Geraldine F. McLeod, and L. John Horwood. 2014. Unemployment and Psychosocial Outcomes to Age 30: A Fixed-Effects Regression Analysis. *Australian and New Zealand Journal of Psychiatry* 48 (8): 735–742.

Froggio, Giacinto, and Robert Agnew. 2007. The Relationship between Crime and 'Objective' versus 'Subjective' Strains. *Journal of Criminal Justice* 35 (1): 81–87.

Gibson, Chris L., Marc L. Swatt, and Jason R. Jolicoeur. 2001. Assessing the Generality of General Strain Theory: The Relationship among Occupational Stress Experienced by Male Police Officers and Domestic Forms of Violence. *Journal of Crime and Justice* 24 (2): 29–57.

Goldstraw, Janice, Russell G. Smith, and Yuka Sakurai. 2005. *Gender and Serious Fraud in Australia and New Zealand*. Canberra: AIC.

Hay, Carter. 2003. Family Strain, Gender, and Delinquency. *Sociological Perspectives* 46: 107–136.

Hay, Carter, and Ryan Meldrum. 2010. Bullying Victimization and Adolescent Self-Harm: Testing Hypotheses from General Strain Theory. *Journal of Youth and Adolescence* 39 (5): 446–459.

Hay, Carter, Ryan Meldrum, and Karen Mann. 2010. Traditional Bullying, Cyber Bullying, and Deviance: A General Strain Theory Approach. *Journal of Contemporary Criminal Justice* 26 (2): 130–147.

Hayes, Hennessey, and Kathleen Daly. 2003. Youth Justice Conferencing and Reoffending. *Justice Quarterly* 20 (4): 725–764.

Hirschi, Trevor. 1969. *Causes of Delinquency*. Berkeley, CA: University of California Press.

Hoffmann, John P., and Felicia G. Cerbone. 1999. Stressful Life Events and Delinquency Escalation in Early Adolescence. *Criminology* 37 (2): 343–374.

Horton, Randall, Stephen K. Rice, Nicole Leeper Piquero, and Alex R. Piquero. 2012. On the Variability of Anger Cross-Culturally: An Assessment of General Strain Theory's Primary Mediator. *Deviant Behavior* 33 (4): 260–281.

Hughes, Lorine A., Lonnie M. Schaible, and Benjamin R. Gibbs. 2015. Economic Dominance, the "American Dream", and Homicide: A Cross-National Test of Institutional Anomie Theory. *Sociological Inquiry* 85 (1): 100–128.

Jang, Sung J., and Byron R. Johnson. 2005. Gender, Religiosity, and Reactions to Strain among African Americans. *The Sociological Quarterly* 46 (2): 323–357.

Katz, Rebecca S. 2000. Explaining Girls' and Women's Crime and Desistance in the Context of Their Victimization Experiences. *Violence against Women* 6 (6): 633–660.

Kaufman, Joanne M. 2009. Gendered Responses to Serious Strain: The Argument for a General Strain Theory of Deviance. *Justice Quarterly* 26 (3): 410–444.

Lin, Wen-Hsu, and Thomas Mieczkowski. 2011. Subjective Strains, Conditioning Factors, and Juvenile Delinquency: General Strain Theory in Taiwan. *Asian Journal of Criminology* 6 (1): 69–87.

Liska, Allen E. 1971. Aspirations, Expectations, and Delinquency: Stress and Additive Models. *The Sociological Quarterly* 12 (1): 99–107.

McGee, Tara R., James G. Scott, John J. McGrath, Gail M. Williams, Michael O'Callaghan, William Bor, and Jake M. Najman. 2011. Young Adult Problem Behaviour Outcomes of Adolescent Bullying. *Journal of Aggression, Conflict and Peace Research* 3 (2): 110–114.

Merton, Robert. 1938. Social Structure and Anomie. *American Sociological Review* 3: 672–682.

Messner, Steven, and Richard Rosenfeld. 2007. *Crime and the American Dream*. Belmont, CA: Thomson/Wadsworth.

Milovchevich, Darryl, Kevin Howells, Neil Drew, and Andrew Day. 2001. Sex and Gender Role Differences in Anger: An Australian Community Study. *Personality and Individual Differences* 31 (2): 117–127.

Moon, Byongook, Merry Morash, Cynthia P. McCluskey, and Hye-Won Hwang. 2009. A Comprehensive Test of General Strain Theory: Key Strains, Situational- and Trait-Based Negative Emotions, Conditioning Factors, and Delinquency. *Journal of Research in Crime and Delinquency* 46 (2): 182–212.

Najman, Jake M., Mohammad R. Hayatbakhsh, Tara R. McGee, William Bor, Michael J. O'Callaghan, and Gail M. Williams. 2009. The Impact of Puberty on Aggression/Delinquency: Adolescence to Young Adulthood. *Australian and New Zealand Journal of Criminology* 42 (3): 369–386.

Paternoster, Raymond, and Paul Mazerolle. 1994. General Strain Theory and Delinquency: A Replication and Extension. *Journal of Research in Crime and Delinquency* 31 (3): 235–263.

Piquero, Nicole L., and Miriam D. Sealock. 2004. Gender and General Strain Theory: A Preliminary Test of Broidy and Agnew's Gender/GST Hypotheses. *Justice Quarterly* 21 (1): 125–158.

Pratt, Travis C., and Timothy W. Godsey. 2003. Social Support, Inequality, and Homicide: A Cross-National Test of an Integrated Theoretical Model. *Criminology* 41 (3): 611–643.

Purcell, Rosemary, Michele Pathé, and Paul Mullen. 2010. Gender Differences in Stalking Behaviour among Juveniles. *The Journal of Forensic Psychiatry and Psychology* 21 (4): 555–568.

Rebellon, Cesar, Nicole L. Piquero, Alex R. Piquero, and Sherod Thaxton. 2009. Do Frustrated Economic Expectations and Objective Economic Inequity Promote Crime? A Randomized Experiment Testing Agnew's General Strain Theory. *European Journal of Criminology* 6 (1): 47–71.

Rossner, Meredith. 2013. *Just Emotions: Rituals of Restorative Justice*. Oxford: Oxford University Press.

Santoro, Wayne A., and Lisa Broidy. 2014. Gendered Rioting: A General Strain Theoretical Approach. *Social Forces* 93 (1): 329–354.

Savolainen, Jukka. 2000. Inequality, Welfare State, and Homicide: Further Support for the Institutional Anomie Theory. *Criminology* 38 (4): 1021–1042.

Schneider, Judy. 2000. The Increasing Financial Dependency of Young People on Their Parents. *Journal of Youth Studies* 3 (1): 5–20.
Statistics New Zealand. 2015. *Household Labour Force Survey, Tables for December 2015 Quarter*. Wellington: Statistics New Zealand.
Tittle, Charles R., Wayne J. Villemez, and Douglas A. Smith. 1978. The Myth of Social Class and Criminality: An Empirical Assessment of the Empirical Evidence. *American Sociological Review* 43 (5): 643–656.
Workplace Gender Equality Agency. 2016. *International Gender Equality Statistics*. Sydney: Commonwealth Government of Australia.

Author Biographies

Dr Li Eriksson is a Lecturer in the School of Criminology and Criminal Justice at Griffith University and a Member of the Griffith Criminology Institute and the Violence Research and Prevention Program. Her research interests include antisocial behaviour, lethal and non-lethal violence, gender differences in offending behaviour, and criminological theory.

Lisa Broidy is a Professor of Sociology at the University of New Mexico and Adjunct Professor in the School of Criminology and Criminal Justice at Griffith University. Her research focusses on the aetiology of crime with particular attention to the influence of gender, life course transitions, institutional contact, and strains on offending.

37

Developmental and Life-Course Criminology

Paul Mazerolle and Tara Renae McGee

Among the many evolutions in the field of criminology over the past 30 years has been the rise and expansion of developmental and life-course criminology. As Cullen observed in his 2010 American Society of Criminology Edwin Sutherland address (Cullen 2011), developmental and life-course criminology is increasingly becoming a dominant component of criminology and is a mainstream anchor for the field. His observation is perceptive because it recognises how the field has evolved over time to advance beyond "adolescent limited criminology" (Cullen 2011, 289) to accommodate new research and new ways of understanding crime and criminal behaviour over the life-course. Indeed, whilst the current state of developmental and life-course criminology has taken on increasing coherence and status across the field, it was not always the case.

It is important to understand what has prompted or fostered the rise of developmental and life-course criminology across the field. What have been the precursors of this movement? What has sustained the development of this movement and has developmental and life-course criminology expanded

P. Mazerolle (✉) · T.R. McGee
Griffith Criminology Institute, Griffith University, 176 Messines Ridge Road, Mt Gravatt, Brisbane, Queensland, Australia
e-mail: p.mazerolle@griffith.edu.au

T.R. McGee
e-mail: tr.mcgee@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_37

beyond geographic borders? How has developmental and life-course criminology expanded in an Australian and New Zealand context, and what, if anything, is distinctive about these developments?

It is important to acknowledge that the rise of developmental and life-course criminology is linked with a number of general trends and developments in the field of criminology over the past 30 years. These developments include the increasing interest, focus, and debate about the nature of the age–crime curve; the rise of the criminal career approach (Blumstein et al. 1986); the increasing emphasis on and findings emerging from longitudinal studies; and the increasing integration with knowledge emerging from developmental psychology.

This chapter explores the rise of developmental and life-course criminology with specific reference to the context in Australia and New Zealand. The chapter begins with a description of developmental and life criminology, its origins and dimensions. This is followed by a description of the significant longitudinal studies undertaken in Australia and New Zealand for advancing knowledge about developmental and life-course dimensions of offending. A number of key results emerging from studies from Australia and New Zealand are presented. The chapter concludes with a discussion about both the distinctiveness and the challenges of developmental and life-course criminology in the Australian and New Zealand context as well as opportunities and directions for the future.

Background

The rise of developmental and life-course criminology is linked with a number of general trends and developments in the field of criminology over the past 30 years. The late 1980s bore witness to new ways of thinking about the study of crime and criminal behaviour with the focus on a criminal career perspective (Blumstein et al. 1986), the emergence of studying crime as social events through the life-course (Hagan and Palloni 1988), as well as the emergence of developmental approaches for studying criminal behaviour, in particular, within-individual change and continuity over time (Loeber and LeBlanc 1990).

The movement towards developmental and life-course criminology has been fostered by a series of vigorous debates about the interpretation of various criminological facts as well as debates about the nature of theory and the research designs necessary to test theories of crime causation (Gottfredson and Hirschi 1986; Hirschi and Gottfredson 1983). These debates have explored the age–crime curve and its interpretation, as well as the importance

and necessity of employing longitudinal research designs to study offending behaviour. It is one of the best documented and also one of the most contentious of all criminological findings. One point that most researchers agree on is that there is a relationship between age and crime, with crime rates declining as offenders age (Laub and Sampson 1991; Piquero et al. 2003). Points of disagreement arise in the explanation of this phenomenon.

Studying Criminal Offending

Departing from earlier, somewhat static, approaches for understanding criminal behaviour, developmental criminology provides a framework to examine developmental transitions and phases as people age. The approach enables examination or how individuals interact with their social environments and how individuals change over time. Developmental criminology represents a significant departure from previous approaches in criminology that focussed on 'between' as opposed to 'within' individual change.

Developmental theories have emerged since the early 1990s offering dynamic—as opposed to static—explanations of behaviour. Dynamic approaches identify how processes causing criminal behaviour can change over time. Developmental theories recognise how behaviour is shaped over the life-course, including the processes that impact the initiation, escalation, and ultimate termination of criminal offending. Many developmental theoretical explanations recognise the progression of offending behaviour over time, the reciprocal consequences of offending, as well as how important life events, such as marriage, systematically shape the likelihood of the persistence or cessation of offending.

The emergence of life-course criminology coincided with the development of the criminal career paradigm as well as the increasing emphasis on developmental criminology. First developed by the work of Giele and Elder (1998), the life-course approach has emerged as the foremost perspective for understanding criminal offending across the lifespan. As Hagan and Palloni (1988) observe, the life-course approach situates the study of criminal offending within a wider social context of social events through the life-course. It provides a wider platform for observing processes of continuity, change, and interaction through time beyond other perspectives.

The life-course perspective within criminology focusses on the examination of criminal behaviour within these contexts. It requires longitudinal data, that is, data collected over time for each individual in a particular group. This allows for the examination of changes over time, the impact of critical life

events, the importance of the social environment, as well as pathways, transitions and turning points (Piquero and Mazerolle 2000).

The Criminal Career Approach

The rise of developmental and life-course approaches for understanding criminal offending owes much to the criminal career approach developed by Blumstein et al. (1986). Indeed, the criminal career perspective has shaped and informed literally hundreds of research papers over the past 30 years. A *criminal career* is defined as "the longitudinal sequence of offences committed by an individual offender" (Farrington 1992, 521). The criminal career approach examines dimensions of offending behaviour and aims to categorise such meaningful dimensions into concepts that foster empirical assessment and understanding. Describing the sequence of offences during some part of an individual's lifetime provides a means of structuring and observing the longitudinal sequence of criminal events associated with an individual. The criminal career approach differentiates individual patterns into three broad phases, including the onset or initiation of offending, the active offending phase, as well as the desistance or termination phase.

Embracing a longitudinal perspective, the criminal career paradigm recognises that individuals start their criminal activity at some age, engage in crime at some individual crime rate, commit a mixture of crimes, and eventually stop (Piquero et al. 2003). Therefore, the approach emphasises the need to investigate issues relating to *onset*—why people start offending; *persistence*—why people continue offending; and *desistance*—why people stop offending. This approach also encompasses the investigation of the length of the criminal career (Piquero et al. 2004). Given the focus on onset, persistence, and desistance of offending, as well as other dimensions—such as seriousness and escalation—there is a range of evidence regarding these concepts and such evidence has been informative for developmental research and life-course approaches for understanding criminal offending internationally and in Australia and New Zealand.

Longitudinal Studies

For a relatively small population and a small proportion of the world's criminologists, Australia and New Zealand host a small number of highly regarded and distinctive studies that are materially shaping knowledge about

developmental and life-course components of offending behaviour. Whilst these studies, in the main, have not been developed specifically to only address issues of developmental changes in offending across the life course, they nonetheless have scope and scale to contribute to building a knowledge base of relevance to the wider world. A short description of the seminal studies in Australia and New Zealand are included below.

The Christchurch Health and Development Study

The Christchurch Health and Development Study is a prospective longitudinal study of a birth cohort of 1265 children born in Christchurch, New Zealand in 1977. The cohort was studied at birth, at four months, at one year, and then at annual intervals to age 16. Four additional waves of data collection took place when the cohort was aged 18, 21, 30 and 35 (University of Otago 2016). The cohort has been studied 23 times (Fergusson et al. 2015).

Sources of information have included parents, teachers, hospital records, police data, and interviews with the children in the study cohort. Data collected in this study have been used to investigate several issues including social circumstances, health, development, and the general well-being of the cohort. While the study was not designed exclusively to examine criminal offending across the life course, it has nonetheless been used to address a number of important issues regarding developmental aspects of criminal offending across the life course.

Recently, Fergusson et al. (2015) identified some of the key findings of the study in relation to offending across the life course. Their paper described how results from the Christchurch study showed that conduct problems in childhood were significantly related to criminal offending in late adolescence and early adulthood, how conduct disorder and opposition defiant disorder were linked to adult offending, the significant linkages between low self-control in childhood and later violent offending in adulthood, as well as the existence of a number of offender trajectories, ascertained through the use of semiparametric group-based modelling, that are broadly consistent with the theoretical expectations of Moffitt (1993) and Patterson (Patterson et al. 1989).

The Dunedin Multidisciplinary Health and Development Study

The Dunedin Multidisciplinary Health and Development Research Unit has conducted a long-running cohort study of approximately 1000 babies, both

male and female, born in Dunedin, New Zealand, in 1972/73. The study participants have been assessed at birth, at age three, then every two years up to age 15, and again at age 18, 21, 26, 32, and 38 years. The researchers plan to follow-up the study members again at age 44/45 and beyond. Recent assessments have included a broad range of studies in the psychosocial, behavioural medicine, and biomedical research areas (Dunedin Multidisciplinary Health and Development Research Unit 2016).

The most important contribution for developmental and life-course criminology that has arisen from the Dunedin study was the development of the dual taxonomy of life-course persistent and adolescence-limited offender typologies (Moffitt 1993, 1997, 2006). This particular theory has received much attention internationally through theoretical debate and empirical testing. Also of particular note is their examination of the development of female antisocial behaviour (Moffitt et al. 2001), that identified that males and females share many of the same risk factors.

The Australian Temperament Project

The Australian Temperament Project (ATP) was a collaboration between Crime Prevention Victoria run by the Victorian Department of Justice and the Australian Institute of Family Studies (Smart et al. 2004). The ATP began in 1983 and the original sample of 2443 included children born in urban and rural Victoria between September 1982 and January 1983 (Vassallo et al. 2002). The participants were selected by the ABS to give a representative sample of the population of Victoria (Prior et al. 2000). Since then, there have been a further 15 waves of data collection, the most recent in 2010/11 when the study participants were aged 27/28 years (Vassallo and Sanson 2013). The ATP includes a broad range of measures relating to child development, for example, temperament, behaviour problems, personality, and antisocial behaviour. It also includes socio-economic, family, and parenting variables (Vassallo et al. 2002). There is also a new component that is following the development of the third generation.

There have been a number of key findings in relation to the antisocial behaviour of the sample. Similar to the Dunedin study, the authors found that the precursors of antisocial behaviour are similar for both males and females (Vassallo et al. 2002). Only 10 per cent of those considered 'at risk' in childhood were persistently antisocial in adolescence (Smart et al. 2003). Ages 12 to 14 seem to be the time of important turning points for the resilient individuals to diverge from the persistent group. During adolescence, the

temperament of the resilient individuals improved, they were in better family environments, and were better adjusted and attached to their schools (Smart et al. 2003). More recent reports based on the data have identified that most adolescents do not engage in high levels of antisocial behaviour, and for those who do, it is often only for a short time (Vassallo and Sanson 2013).

The Mater–University Study of Pregnancy and Its Outcomes

The MUSP project was conceived in the late 1970s and developed by a multidisciplinary group of researchers from the University of Queensland in Brisbane, Australia. These researchers saw a need for research that examined the broader social factors and characteristics of mothers that contribute to the outcome of pregnancy (Keeping et al. 1989). The available hospital records did not record the social and psychological variables required for research of this nature. As a result, the MUSP study was commenced in Brisbane in 1981 and the first phase of data collection took three years. Since then, there have been follow-ups of the mother and the study child at birth, and when the study child was aged six months, five years, 14 years, 21 years, 27 years (mothers only), and 30 years (study child only). From the age of 14, the participating children provided self-reports. Prior to that, the mother was the informant for the child. Data collection is currently underway to study the third generation, the 'children of the children'. Although this study was originally designed to be a study of maternal and child health, the broad range of variables collected allowed for the investigation of the development of antisocial behaviour over the life-course.

Key developmental and life-course criminology papers from this study have identified the importance of timing of pubertal onset (Najman et al. 2009), young adult outcomes of childhood, and adolescent antisocial behaviour (Bor et al. 2010), and the impact of snares on the continuity of antisocial behaviour (McGee et al. 2015). Further background information for the study, as well as the demographic characteristics of participants, can be accessed elsewhere (Keeping et al. 1989; Najman et al. 2005).

The International Youth Development Study

The International Youth Development Study (IYDS) focusses on the development of healthy and problem behaviours and is comprised of samples from the Australian state of Victoria and Washington state in the USA. The Australian component began in 2002 when they recruited 927 Grade 5

students from public and private schools in Victoria using a two-stage cluster sampling approach to ensure representativeness. These students were again surveyed in Grades 6, 7, 9, 10, and 11, during their first year of post-secondary school and their third year of post-secondary school. For more details on the study, see McMorris et al. (2007) and Scholes-Balog et al. (2013). Their recent research on the causes of delinquency (Hemphill et al. 2015) involved within-individual analyses of this longitudinal data, and comparing these results to the more typical between-individual analyses. The authors found that between-individual correlations were greater in magnitude than within-individual correlations, highlighting the importance for developmental and life-course criminology researchers to examine both within- and between-individual differences over time.

Growing up in Australia and New Zealand

Both Australia and New Zealand have large prospective longitudinal studies that are funded by their respective governments. The Growing up in Australia study (also known as the Longitudinal Study of Australian Children) began in 2004 with an accelerated design of two cohorts: an infant cohort (n = 5112) aged 3–15 months and a child cohort (n = 4991) aged 4–5 years. Since then, the families have been followed-up every two years with interviews and direct observations. The oldest children were aged 16–17 at the 2016 follow-up. The Growing up in New Zealand study began earlier in the child's life at the antenatal stage. The first wave of data was collected in 2010. Since then, the families have been followed up with a range of telephone and face-to-face computer-assisted interviews. In 2016, the children were aged 6 and data were collected with an online interview where the focus was on the transition to school. While neither of these studies has a particular focus on crime or offending, the data collected allow the examination of the development of what can be broadly defined as antisocial behaviour. The study designs also allow the exploration of a broad range of individual, familial, and broader social factors related to human development.

Distinctiveness

As described above, a number of excellent longitudinal studies have been produced in Australia and New Zealand and each study, to varying degrees, has contributed to the knowledge base informing developmental and

life-course criminology both locally and internationally. At the same time, the overwhelming majority of these studies have not been produced with a view to informing knowledge regarding developmental and life-course criminal offending dimensions or issues. In other words, other priorities related to health and various social conditions and circumstances have informed these studies, their design, and their funding. In sum, there appears to be an important opportunity for the future with respect to designing and developing a distinctive, internationally regarded, and leading study into the developmental and life-course dimensions of offending in the Australian and New Zealand context.

Regarding the current state of affairs, it does appear that there is a range of distinctive features and considerations regarding developmental and life-course criminology in the Australian and New Zealand context.

It is reasonable to observe that Australia and New Zealand have produced some extraordinary birth cohort and longitudinal studies that are internationally regarded and respected. However, as a community of scholars, the region has access to only a limited number of scholars committed to this area of scholarly interest. It is fair to observe that these studies and the results they have generated have given rise to important papers on a range of topics of relevance to developmental and life-course criminology. However, much more work could be done in future. In other words, a distinctive feature is that the community of developmental and life-course scholars is disproportionate to the number of quality of longitudinal studies available. In short, we simply need to mobilise a much-expanded community of committed and interested researchers to grasp the opportunities to build further knowledge about developmental and life-course dimensions offending.

Moreover, it is important to observe that there is a range of distinctive features associated with the Australian and New Zealand contexts that are worth examining. At one level, this relates to the overall sub-group context. For example, the context for First Nations communities is very distinctive and worthy of further examination in terms of developmental antecedents and life events that shape offending pathways and trajectories. The overrepresentation in terms of disadvantage, health, education, and marginalisation is substantial as is the overrepresentation in juvenile and criminal justice system involvement. What is currently known about First Nations overrepresentation in the justice system and the various precursors and pathways is in need of substantial expansion.

A related subgroup context is the gendered nature of offending. Whilst relevant to New Zealand, this issue is especially acute in the Australian context. Australia was largely a convict settlement by the British and

established itself with male/female population differential of 9 to 1. Australia, in particular, is a heavily male-dominated society. Thus, the implications for understanding—gendered differentiated offending pathways; differences between Australian and New Zealand; and comparisons of Australia and New Zealand to other parts of the world—are worthy of further examination.

The small population size of Australia and New Zealand is distinctive. With a smaller population, there should be distinctive opportunities to mobilise new communities of scholars and, at the same time, to influence new communities of practice. The importance of this relates to the opportunity for researchers to engage with practitioners to access official data, to augment developmental and life-course research designs, and also for informing prevention opportunities across the life-course. The implications for policy and practice are significant when considering the range of new knowledge that can emerge from well-designed studies of developmental dimensions of crime across the life-course. Scholars and practitioners are well placed to learn from each other and to mobilise in partnership to build knowledge with a distinctive purpose not only to inform knowledge but to shape practice.

Challenges and Future Considerations

A key challenge relates to funding. To further expand the role and focus of developmental and life-course criminology requires a concerted effort to develop a new and large-scale longitudinal study, which will require a major funding investment over time. The issue of the funding of social science research on a large project scale and with a sustained funding element is a substantial challenge in the Australian and New Zealand context. At present, there is a range of competing challenges for accessing federal grant monies, thus illustrating the need to seek out diverse grant partners to fund this essential work.

A final challenge relates to the ongoing importance of situating research emerging from Australia and New Zealand into a relevant international context. Developmental and life-course researchers in Australia and New Zealand must continue to make their work relevant to the world. A study into linkages between onset age and violent offending in adulthood in Canberra is not necessarily significant on its own unless it is situated in relevant theoretically informed contexts and questions drawn from extant literature. The key observation is that research in Australia and New Zealand has the very great potential to matter to the existing body of international knowledge, but only if the local research community does the hard work in framing their research appropriately.

Conclusion

So what does the future hold for developmental and life-course criminology? At one level, the future appears to be positive. Each year, criminology and criminal justice programmes expand and increasing amounts of industry and state government funding appear available to support crime and justice-related research. In short, there appears to be demand and an appetite for rigorous criminology research in Australia and New Zealand. Within that context, we can expect to see an expansion of young scholars engaging with developmental and life-course criminology, and its dimensions and key concepts. That means an expansion of students and young scholars seeking the necessary quantitative skills to study and examine offending continuity and change across the life-course. Armed with the necessary quantitative, conceptual, and theoretical training, there is little doubt that scholarship emerging for Australia and New Zealand will be well placed to contribute to and shape the main debates and dialogues about developmental and life-course criminology across the world. Bring on the future!

References

Blumstein, Alfred, Jacqueline Cohen, Jeffrey Roth, and Christy Visher. 1986. *Criminal Careers and 'Career Criminals'*. Washington, DC: National Academy Press.

Bor, William, Tara Renae McGee, Mohammad R. Hayatbakhsh, Angela Dean, and Jake M. Najman. 2010. Do Antisocial Females Exhibit Poor Outcomes in Adulthood? An Australian Cohort Study. *Australian and New Zealand Journal of Psychiatry* 44 (7): 648–657.

Cullen, Francis T. 2011. Beyond Adolescence-Limited Criminology: Choosing Our Future—The American Society of Criminology 2010 Sutherland Address. *Criminology* 49 (2): 287–330.

Dunedin Multidisciplinary Health and Development Research Unit. 2016. Studies. http://dunedinstudy.otago.ac.nz/studies. Accessed 7 May.

Farrington, David P. 1992. Criminal Career Research in the United Kingdom. *British Journal of Criminology* 32 (4): 521–536.

Fergusson, David M., Joseph M. Boden, and L. John Horwood. 2015. From Evidence to Policy: Findings from the Christchurch Health and Development Study. *Australian and New Zealand Journal of Criminology* 48 (3): 386–408.

Giele, Janet Z., and Glen H. Elder. 1998. Life Course Research: Development of a Field. In *Methods of Life Course Research: Qualitative and Quantitative Approaches*, ed. Janet Z. Giele, and Glen H. Elder, 5–27. Thousand Oaks, CA: Sage.

Gottfredson, Michael R., and Travis Hirschi. 1986. The True Value of Lambda Would Appear to Be Zero: An Essay on Career Criminals, Criminal Careers and Selective Incapacitation, Cohort Studies and Related Topics. *Criminology* 24: 213–234.

Hagan, John, and Alberto Palloni. 1988. Crimes as Social Events in the Life Course: Reconceiving a Criminological Controversy. *Criminology* 26 (1): 87–100.

Hemphill, Sheryl A., Jessica A. Heerde, Todd Herrenkohl, and David P. Farrington. 2015. Within-Individual versus Between-Individual Predictors of Antisocial Behaviour: A Longitudinal Study of Young People in Victoria, Australia. *Australian and New Zealand Journal of Criminology* 48 (3): 429–445.

Hirschi, Travis, and Michael R. Gottfredson. 1983. Age and the Explanation of Crime. *American Journal of Sociology* 89 (3): 552–584.

Keeping, J.D., Jake M. Najman, J. Morrison, J.S. Western, M.J. Andersen, and Gail M. Williams. 1989. A Prospective Longitudinal Study of Social, Psychological and Obstetric Factors in Pregnancy: Response Rates and Demographic Characteristics of the 8556 Respondents. *British Journal of Obstetrics and Gynaecology* 96: 289–297.

Laub, John H., and Robert J. Sampson. 1991. The Sutherland-Glueck Debate: On the Sociology of Criminological Knowledge. *American Journal of Sociology* 96 (6): 1402–1440.

Loeber, Rolf, and Marc Le Blanc. 1990. Toward a Developmental Criminology. In *Crime and Justice: A Review of Research*, ed. Michael Tonry, and Norval Morris, 375–473. Chicago, IL: Chicago University Press.

McGee, Tara Renae, Mohammad R. Hayatbakhsh, William Bor, Rosemary Aird, Angela Dean, and Jake M. Najman. 2015. The Impact of Snares on the Continuity of Adolescent-Onset Antisocial Behaviour: A Test of Moffitt's Developmental Taxonomy. *Australian and New Zealand Journal of Criminology* 48 (3): 345–366.

McMorris, Barbara J., Sheryl. A. Hemphill, G. C. Patton, John W. Toumbourou, and Richard F. Catalano. 2007. Prevalence of Substance Use and Delinquent Behavior in Adolescents from Victoria, Australia and Washington, USA. *Health, Education and Behavior* 34: 634–650.

Moffitt, Terrie E. 1993. Adolescence-Limited and Life-Course-Persistent Antisocial Behavior: A Developmental Taxonomy. *Psychological Review* 100 (4): 674–701.

Moffitt, Terrie E. 1997. Adolescence-Limited and Life-Course-Persistent Offending: A Complementary Pair of Developmental Theories. In *Developmental Theories of Crime and Delinquency*, ed. Terence P. Thornberry, 11–54. New Brunswick, NJ: Transaction Publishers.

Moffitt, Terrie E. 2006. Life-Course Persistent versus Adolescence-Limited Antisocial Behavior. In *Developmental Psychopathology*, ed. Dante Cicchetti, and Donald J. Cohen, 570–598. New York, NY: Wiley.

Moffitt, Terrie E., Avshalom Caspi, Michael Rutter, and Phil A. Silva. 2001. *Sex Differences in Antisocial Behaviour: Conduct Disorder, Delinquency, and Violence in the Dunedin Longitudinal Study*. New York, NY: Cambridge University Press.

Najman, Jake M., William Bor, Michael O'Callaghan, Gail M. Williams, R. Aird, and G. Shuttlewood. 2005. Cohort Profile: The Mater-University of Queensland Study of Pregnancy (Musp). *International Journal of Epidemiology* 34: 992–997.

Najman, Jake M., Mohammad R. Hayatbakhsh, Tara R. McGee, William Bor, Michael J. O'Callaghan, and Gail M. Williams. 2009. The Impact of Puberty on Aggression/Delinquency: Adolescence to Young Adulthood. *Australian and New Zealand Journal of Criminology* 42 (3): 369–386.

Patterson, Gerald R., B. DeBaryshe, and E. Ramsey. 1989. A Developmental Perspective on Antisocial Behavior. *American Psychologist* 44: 329–335.

Piquero, Alex R., Robert Brame, and Donald Lynam. 2004. Studying Criminal Career Length through Early Adulthood among Serious Offenders. *Crime and Delinquency* 50 (3): 412–435.

Piquero, Alex R., David P. Farrington, and Alfred Blumstein. 2003. The Criminal Career Paradigm. In *Crime and Justice: A Review of the Research*, ed. Michael Tonry, 359–506. Chicago, IL: University of Chicago Press.

Piquero, Alex R., and Paul Mazerolle (eds.). 2000. *Life-Course Criminology: Contemporary and Classic Readings*. Belmont, CA: Wadsworth Thomson Learning.

Prior, Margot, Ann Sanson, Diana Smart, and Frank Oberklaid. 2000. *Pathways from Infancy to Adolescence: Australian Temperament Project 1983–2000*. Melbourne: Australian Institute of Family Studies.

Scholes-Balog, Kirsty E., A. Sheryl, Sophie Reid Hemphill, George Patton, and John Toumbourou. 2013. Predicting Early Initiation of Alcohol Use: A Prospective Study of Australian Children. *Substance Use and Misuse* 48 (4): 343–352.

Smart, Diana, Suzanne Vassallo, Ann Sanson, and Inez Dussuyer. 2004. *Patterns of Antisocial Behaviour from Early to Late Adolescence*. Canberra: AIC.

Smart, Diana, Suzanne Vassallo, Ann Sanson, Nick Richardson, Inez Dussuyer, Bill McKendry, John Toumbourou, M. R. Prior, and Frank Oberklaid. 2003. *Patterns and Precursors of Adolescent Antisocial Behaviour: Types, Resiliency and Environmental Influences: The Second Report*. Melbourne: Australian Institute of Family Studies and Crime Prevention Victoria.

University of Otago. 2016. Christchurch Health & Development Study. http://www.otago.ac.nz/christchurch/research/healthdevelopment/. Accessed May 7.

Vassallo, Suzanne, and Ann Sanson. 2013. *The Australian Temperament Project: The First 30 Years*. Melbourne: Australian Institute of Family Studies.

Vassallo, Suzanne, Diana Smart, Ann Sanson, Inez Dussuyer, Bill McKendry, John Toumbourou, M. R. Prior, and Frank Oberklaid. 2002. *Patterns and Precursors of Adolescent Antisocial Behaviour: The First Report*. Melbourne: Australian Institute of Family Studies and Crime Prevention Victoria.

Author Biographies

Paul Mazerolle is Pro Vice Chancellor of Arts, Education and Law and the Director of the Violence Research and Prevention program at Griffith University. His research examines processes that shape offending behaviour across the life course.

Tara Renae McGee is an Associate Professor in the School of Criminology and Criminal Justice at Griffith University. She has previously been an ARC DECRA Research Fellow and in 2017–2018 is the President of ANZSOC. Her research focusses on testing the key postulates of developmental and life-course theories of crime.

38

Left Realist Criminology

David Brown

Left realism as a movement in criminology emerged in the UK in the early 1980s, promoted by a group of prominent figures within critical criminology. It was a reaction both to the success of the Thatcher government in turning law and order into a potent political issue for the right and to the perceived abstentionism of what they termed "left idealism". The key slogan of left realism was "taking crime seriously", signifying an attempt to build a left wing—or socialist politics—around crime issues. This involved an acknowledgement of the damaging effects of much conventionally defined crime and its intra-class nature.

The cornerstone of left realism was the conduct of local crime victim surveys, often administered in conjunction with local councils. These surveys sought to reveal the ways in which crime and other forms of problematic and harmful behaviour were constructed and perceived in working class neighbourhoods. Male violence against women and children was a particular focus, along with a political strategy of attempting to bring policing under localised forms of democratic control. British left realism contributed to a reorientation of crime politics within critical criminology and the wider political sphere but never established itself as a distinctive theoretical approach. It faltered, and a number of its leading exponents turned to cultural criminology. More recently, a resuscitation by way of an *ultra*-realism has been attempted.

D. Brown (✉)
Emeritus Professor, Law, UNSW, New South Wales, Australia
e-mail: d.brown@unsw.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_38

In the Australian context, left realism was only ever a minor and relatively short-lived stream in a much wider critical criminology movement which, while derivative of UK developments, nevertheless had a number of specific Australian characteristics. Left realism did not have an explicit presence in New Zealand criminology. The term "right realism" was coined by British left realists to characterise the work of various US neo-conservative criminologists, but it was not adopted by those so described. Nor was the term widely used in the USA, Australia, and New Zealand. An understanding of left realism in the Australian context requires that it be situated within the far broader context of critical criminology, not explicitly covered elsewhere in this collection.

The Emergence of Left Realism in the UK

Left realism emerged as a tendency within British criminology promoted by a number of leading critical criminologists including most notably Jock Young, Ian Taylor, Roger Matthews, Richard Kinsey, and John Lea.[1] Their publications and activities, often organised around the conduct of local crime victim surveys,[2] were an attempt to develop a political criminology and political programme on the left, which took crime seriously. While there were somewhat similar moves in the USA (Currie 1985), these were not conducted under a left realist banner.

Hogg (1987, 138–139; 1988, 28–29)[3] usefully summarised the central tenets of left realism as follows:

(1) *Crime is a major social problem, especially personal violence and property crime, and it is a problem of growing proportions.*
(2) *Official crime statistics considerably understate the problem due to the levels of unreported crime, which is in a large part the result of public alienation and frustration with the ineffectiveness of criminal justice agencies, especially the police.*
(3) *Most personal crime—robbery, assault, burglary, et cetera—is intra-class and disproportionately afflicts the poor and their neighbourhoods, thus compounding the inequalities and exploitation they already experience.*
(4) *The police are both extremely inefficient at dealing with inner city crime and endemically hostile and discriminatory with regard to the inner city populace, especially youth and ethnic minorities.*
(5) *The mutual antagonism between police and local communities sets in train a vicious circle of non-cooperation whereby alienated communities do not report crimes to the police, and do not pass on much-needed information to them.*

This forces police into more proactive and discriminatory strategies of crime control—such as systematic stop and search, and targeting of whole social categories of people thought to be crime-prone. Which in turn alienates the community even further, who respond by further withholding cooperation, and so it goes on.

(6) *The inner city working class communities are deeply concerned about local crime, want effective policies to control it and see the police as central to crime control.*

(7) *Effective policing requires that the police concentrate on those crimes that the public sees as most serious, that they relinquish those heavy proactive policing methods that alienate their most important resource, the local community itself, and that they are placed under local democratic control through elected local police authorities.*

Crime Victim Surveys

The use of local crime victim surveys provided a basis for a better understanding of how local inner city working class communities viewed crime, victimisation, policing, fear of crime, crime prevention, and other issues. It also highlighted victims', women's, and feminist concerns over routine and largely hidden male domestic and sexual violence (Walklate 1992). Thus, it provided a new evidential base from which to formulate criminal justice and other social policy and from which to attempt to have these adopted by the various levels of local and national government. There were, however, a range of problems, including the focus on inner city residents that omitted the suburbs and rural areas. Also, the surveys tended to skew results towards certain forms of personal victimisation as against more dispersed effects on whole groups such as forms of corporate fraud, price fixing, tax avoidance, insider trading, false advertising, corruption in obtaining development approvals, industrial pollution, and negligence—in short—the crimes of the powerful (Brown and Hogg 1992a; Pearce and Tombs 1992).

The "Square of Crime"

One of the more enduring legacies of left realist criminology is the "square of crime". The four points at each corner of the square are police and other agencies of social control, the public, the offender, and the victim. Crime is an

outcome of the relationship and understandings between the four points (Young 1991, 1992a; for a summary see White, Haines, and Asquith 2012). Thus "the relationship between the four corners of the square determine crime rates" (Young 1992b, 47). Changes in any of these relationships will affect crime rates, which cannot be simply explained in terms of crime control agencies (Young 1991). A notable omission from the square of crime is the criminologist.

A Political Reorientation not a Paradigm

British left realism was essentially a political reorientation within criminology, not a new paradigm. Despite claims to be based on a realist philosophy following the work of Bhaskar (1978, 1989), this theoretical foundation was never really explicated, and claims to a distinctive realist methodology (Matthews 2014) have not been sustained. Left realist momentum seemed to stall in the mid-to-late 1990s when "Blairite" criminal justice policies came into disrepute, and later leading left realists such as Jock Young moved on to cultural criminology (Ferrell, Hayward, and Young 2015; Young 2007). Matthews (2014) has attempted an update, which Loader (2015, 429) describes as "a clear and vivid effort to introduce a new generation of students and scholars to realism and spell out why it still matters today" but as "rather less successful as a contribution to the theoretical renewal of that tradition".

"Ultra-Realism"

An attempt to resuscitate and reorient left realism in the direction of "depth" or "ultra-realism" has emerged more recently in the UK (Hall 2012; Hall and Winlow 2012, 2015). The search is for the "deep dynamics" beyond the reach of positivism and empiricism. Ultra-realism is about "identifying and analysing the human drives and activities behind the abstract forces that structure the capitalist system" (Hall and Winlow 2015, 130). This task requires a paradigm shift to "a new sociological and criminological paradigm founded … on universal notions of harm and ultra-realist representations of the operational actualities and consequences of the subject's disavowed drives and desires, which activate the abstract structures, forces, and processes that are the dynamic foundations of our lives in the liberal-capitalist system" (Hall and Winlow 2015, 137).

While ultra-realism is theoretically sophisticated and involves a far more extensive psycho-social approach to the underlying subjective and psychic

features of consumer capitalist society, it seems unlikely to become a major new paradigm. Limitations include the opacity of its Zizekian and Lacanian foundations; the emphasis on totality and "universal" notions of harm, which open the door wide to essentialism; and a tendency to sweeping "one true way" sectarian argumentation and critique, which declares all hitherto existing theories and approaches flawed.

US Plain Left Realism

The most sustained programmatic and radical examination of US criminal justice is to be found in the work of Elliott Currie (1985, 1991, 1992, 1998, 2006, 2010), who conducted his work not as "Left Realism with capital letters [but what he describes as a] 'plain' left realism" (Currie 2010, 113). Currie (2010, 115) sees "plain left realism [as] social democratic in its core analyses and implications [that] macro-level social policies from the left undertaken within the context of a capitalist economy can make a very large difference in reducing crime and, hence, the victimisation of communities". He argues that: "this 'social democratic' sense of both the necessity and the possibility of making large social and economic changes that could matter a great deal for crime is a fundamental and distinctive quality of left realism with small letters. It implies, also, a compelling moral imperative to do our best to tackle the macro-conditions that are ultimately most important in shaping the level of violence a society suffers. But that doesn't rule out the potential virtue of less sweeping interventions." (116)[4]

Right Realism

Right realism is a term with little currency, occasionally used by some left realists to describe what was more usually referred to as new right, neo-conservative, or just conservative criminology. White, Haines, and Asquith (2012, 192) note that "new right criminology refers to a particular political orientation, rather than to a systematic, coherent theory in its own right". They outline the broad social context behind the emergence of new right criminology, identify its main currents as right-wing libertarianism and conservatism, and argue that the "fundamental ideas of New Right criminology are based on two themes: placing responsibility for crime squarely on the individual, and reasserting the importance of punishment in responding to

crime" (170). From within the libertarian right, Tame (1991) offers a more diverse set of groupings: natural rights libertarians, economic liberals, traditionalist conservatives, and the "new realists". He suggests that their "primary analytical, and normative orientation, is to the concepts of freedom, justice and responsibility" (127). Few of the writers cited by Tame are criminologists, save for James Q. Wilson.

James Q. Wilson is arguably the most influential conservative criminologist, being an advisor on crime to President Reagan. His *Thinking about Crime* (1975), *Crime and Human Nature* (1985) with Herrnstein, and the article with George Kelling on "broken windows" and policing (Wilson and Kelling 1982) that gave birth to the "zero tolerance policing" slogan and strategy were, and are, all widely cited and read, and hugely influential politically. Wilson (1975, xv) attacked the search for "root causes" of crime: "I have yet to see a root cause"; denied that poverty caused crime, seeing it rather as a result of a breakdown of socialisation and consequent inadequate social control over "self-indulgent impulses"; denounced judicial leniency and insufficient punishment and defended the efficacy of deterrence; and concluded by highlighting the centrality of wickedness as part of human nature. "Wicked people exist. Nothing avails except to set them apart from innocent people" (235–236). Charles Murray is another influential conservative criminologist whose books on the growing underclass (1996), and whose claim that prison works and should be expanded (1997) were influential in the UK, as was his work with Herrnstein, *The Bell Curve*, which located crime in human nature and genetics (Herrnstein and Murray 1994).

Right Realism in Australia

Right realism has never been a term with any resonance in the Australian context. By and large, Australian criminologists—even within mainstream criminology—have been centrist, liberal, or to the left politically. Very few, if any, Australian criminologists openly identify as being on the right, let alone as exponents of right realism. Theories and approaches such as social control theory, rational choice theory, and experimental criminology, which some UK and US criminologists have seen as characteristic of new right, neo-positivist, neo-classical, neo-conservative, or right realist criminology, have been explored in Australian criminology. But few, if any, Australian criminologists have self-identified in these terms or have adopted a campaigning right-wing politics in the manner of James Q. Wilson or Charles

Murray. Enthusiasm for neo-conservative slogans and policies such as broken windows, zero tolerance policing, truth in sentencing, and mandatory sentencing has, in the Australian context, emanated not from criminologists but from politicians, specific media outlets, and talk-back radio hosts.

A very small number of Australian criminologists have taken what can be seen as right-wing political positions on specific issues, for example, Mirko Bagaric's defence of torture (Bagaric and Clarke 2007). But this is neither tied to a consistent right-wing politics nor is it carried uniformly into his work on sentencing. A larger number of Australian criminologists might be characterised as positivist, and among some of these, there is a heavy investment in quantitative methods, claims to a neutral "scientific" expertise, and a lack of interest in underlying causes of crime and in anything that cannot be demonstrated by quantitative research methodology. However, the policy implications arising from this work tend to be generally liberal and non-punitive in political orientation. It is difficult to see how characterising any of this work as right realist adds much to our understanding that the broader notions of conservative, mainstream, positivist, or administrative criminology do not capture.

Left Realism in Australia

As Brown and Hogg (1992a, 160; 1992b, 216) note in a review of a left realism and radical criminology, "little if any Australian radical criminology has been carried out explicitly under a left realist banner". The strongest realist resonances are to be found in the political interventions of the Campaign for Criminal Justice group (CCJ) in NSW in the late 1980s and early 1990s. The group comprised mainly left-wing lawyers, academics, youth workers, and criminal justice system workers. In a series of bulletins, the CCJ (1988) analysed the criminal justice policies of the two major political parties in NSW and argued that limited gains in terms of crime prevention and public safety could be expected from the familiar law and order policy mantra of more police, more powers, and heavier sentences. They proposed that all new government policy be accompanied by crime impact statements; that crime-related social impact becomes a factor built into all urban planning processes; and that the development of local safety strategies be based on local crime victim surveys with community participation as a key principle involving local organisations and groups.[5] The CCJ emerged in NSW as the Liberal/National Party Coalition opposition enjoyed success in exploiting law

and order in the lead up to the March 1988 state election. The incoming Greiner government embarked on a radical free market deregulatory programme, backed up by an expanded law and order budget. It significantly increased penalties resulting in a 30 per cent increase in the NSW prison population in the first two years of government (Brown et al. 2015) and intensified penal discipline (Brown 1988, 1990, 1991).

The CCJ programme involved an explicit left realist style acknowledgement that crime is a serious problem and was, at that point, increasing, and that certain forms of violence such as that against women and children were "pervasive and largely hidden" (Brown and Hogg 1992a, 160–161). Brown and Hogg (1992a, 160) argue that this stance was not adopted in opposition to "left idealism" but as a break from "the dominant civil libertarian tendency in Australian left legal circles". The CCJ perspectives were injected into public and political debates, and had, in the early 1990s, some effect on the Labor Party crime prevention policy and on some local councils that embarked on crime prevention programmes initiated by CCJ members (Hogg and Brown 1998). An administrative and political structure for crime prevention was included in NSW Labor Party policy and implemented after the Australian Labor Party won government under Bob Carr in 1995. McNamara (1992) discusses the various arguments and prospects for alternative strategies and community crime prevention from a left realist perspective in the Australian context at this time. A period of government sponsorship of community and situational crime prevention projects through the Crime Prevention Division of the NSW Attorney-General's Department followed the 1995 election of the Labor Party government, but the momentum dissipated as the government adopted a policy of not being outflanked by the right on law and order.

Brown and Hogg offer "critical though sympathetic" (Hogg 1988, 24) and "qualified support for the realist concern with specific and realisable policies for crime prevention and control and the conditions for their implementation by reform governments and other organisations and movements here and now" (Brown and Hogg 1992a, 137). Their qualification is a major one: that the realist "appropriation of the unifying category of 'crime' around which to formulate policies and politics which express the true interests of the working class continues elements of the essentialism of past radical criminologies" (Brown and Hogg 1992a, 137). They conclude that "major differences in context lead us to argue that the specific problems and tasks facing Australian criminology are not necessarily advanced by the promotion of a left realist/left idealist dichotomy or an explicitly 'left realist' paradigm or current" (Brown and Hogg 1992a, 163). It is important, then, to identify both those differ-

ences in context and the key distinctive characteristics of Australian critical criminology which emerged in Australia in the 1970s in opposition to "mainstream" criminology, seen as being positivist in approach and correctionalist in orientation.[6]

Australian Critical Criminology

The strength and breadth of critical criminology in Australia and its international connections can be seen in edited collections (see Anthony and Cunneen 2008; Carrington and Hogg 2002; DeKeseredy and Dragiewicz 2012) and in overviews and assessments (see Brown 2002; Brown and Hogg 1992a, 1992b; White et al. 2012). Brown and Hogg (1992a, 1992b) point to a number of key components shaping Australian critical criminology in the 1970s and 1980s. These include abolitionism derived from the NSW prison movement, the refusal to treat the notion of crime as unproblematic, and a powerful current of feminist scholarship, activism, and policy around a range of issues, especially violence against women.

Stubbs (1998, 7–8) provides a useful list of the key components of critical criminology:

- *transgressing mainstream criminology;*
- *challenging official definitions and statistics of crime and crime control;*
- *rejection of positivist methodologies;*
- *rejection of correctionalism;*
- *disavowal of the criminologist as 'neutral scientific expert'*
- *a critical posture towards agents, systems and institutions of social control;*
- *preference for sociological theories over individualistic theories;*
- *emphasising the effects of social power and inequality as underlying offending, victimization and criminalization;*
- *drawing on a wider body of social theory;*
- *engaging with normative questions;*
- *recognizing that research and knowledge are political;*
- *a desire for social and political change, social justice and human rights;*
- *political engagement, alliances with social movements and 'turning cases into issues';*
- *valuing the 'view from below'; and*
- *reflexivity concerning research and criminology.*

The Engaged Character of Australian Critical Criminology

While Australian critical criminology has drawn on international theory and developments, its components have given it a distinctively "engaged and reformist" character (Brown (2002, 96). While not marked by major theoretical advances, "theoretical exposition has nearly always been connected to specific criminal justice campaigns, often waged in conjunction with the various criminal justice social movements and groups" (Brown 2002, 97). Examples include the prison movement; sexual assault and domestic violence; police verbal, corruption, violence, and killings; white collar crime and business regulation; industrial injury and disease; deaths in custody; mandatory sentencing; juvenile justice; Indigenous justice and penal overrepresentation; private prisons and policing; crime prevention; hate crime; and more recently green criminology, border/migration criminology, and state crime (Brown 1992; White, Haines, and Asquith 2012).

One consequence of the location of Australian academic criminology largely within law schools was that it oriented critical criminology to "practical arenas of struggle around a whole array of criminal justice issues" and struggles, through the network of community legal centres (Brown 1992, 99–100). In addition, it led to a more politicised and criminology-informed criminal law teaching and scholarship (Bronnit and McSherry 2010; Brown et al. 2015). Further, "there has been much crossover and interaction between academic life and activism, working in 'the system', in law reform commissions, on inquiries and as media commentators. Such crossover and interaction militate against rigid divisions between critical and administrative criminology" (Brown 2002, 100).

An example of the engaged character of Australian critical criminology can be seen in the fact that one of the leading more theoretically oriented works of Australian criminology, John Braithwaite's (1989) *Crime, Shame and Reintegration*, widely cited and influential internationally, was applied in a range of developments in juvenile justice and in concrete schemes of youth justice conferencing in NSW, ACT, and other Australian states. The same link between theory and practice can be seen in Braithwaite's subsequent work on republican theory, restorative justice, corporate crime and regulation, and "peacemaking criminology". Indeed, Matthews (2014, 115) claims Braithwaite as a "cultural realist".

The engaged character of Australian critical criminology meant there was (and is) less need for a "taking crime seriously" reorientation, as many

Australian critical criminologists were already heavily involved in a wide range of criminal justice campaigns, in forging alliances with social movements, in formulating policy, and in engaging with government. This work came from a range of perspectives, backgrounds, and inflexions, but by and large avoided both the anti-statism of the UK left critics of left realism, and the unhelpful and sectarian left realist dichotomy of left idealism/left realism (Cottee 2002). It also moderated the tendency to construct a unified and monolithic administrative criminology as an all-purpose opposition.

Conclusion

The argument above has been that the left realist concern for a criminology that recognises the damaging effects of crime and of other social harms and that seeks to use that recognition to inform a practical criminal justice as well as social, economic, and cultural politics around crime and harm issues in the here and now is better seen as a current within a broader critical criminology rather than a singular paradigm or approach. The suggestion is that this is largely the position in Australian critical criminology for a range of reasons connected with its distinctive traditions, predominantly its engaged character and connection with social movements. "Taking crime seriously" has and continues to be central to Australian critical criminology (Hogg and Brown 1998; Indermaur et al. 2002; contra Weatherburn 2002).

Australian critical criminology has played a leading role in opening new fields, such as green criminology, border/migration criminology, and state crime. In the main, it has largely avoided what Brown (2002, 104) calls the "undesirable features of the critical criminology of the last three decades" in which he includes "an at times denunciatory and sectarian style and approach; the attempt to establish a hegemony for a particular approach at the expense of … dismissing other approaches … the tendency for 'critical' to become a … code word for a set of exclusionary practices and for a moral posture of critical intellectual seer; and a tendency to assume that critical theory had a universal applicability, over and above context, outside time and place".

This reflexivity can usefully be applied to the "obligation felt by radical Australian criminologists to authorise their work by reference to key conceptual frameworks lifted from other national contexts" (Brown and Hogg 1992a, 163). As Connell (2007, 66) in *Southern Theory* later pointed out, these other contexts and theories are invariably those of the metropolitan Global North, with the Global South relegated to the periphery with the status of a "data mine" for metropolitan theory. Carrington, Hogg, and Sozzo

(2016, 1) have extended Connell's argument to criminology, arguing for the "development of a more transnational criminology that is inclusive of the experiences and perspectives of the Global South, that adopts methods and concepts that bridge global divides and that embraces the democratisation of knowledge production as a political aspiration".

Australian critical criminology has shown itself to be pluralist, reflexive, and vibrant. It evinces an openness, which is a precondition for what Carlen (forthcoming) calls an "imaginative criminology that is well designed to be a bridge between critical criminology and a critical politics of criminal justice policy". For as Carlen (forthcoming) points out, "there is increasingly recognition by critical alternative criminologies that the fundamental unifying objective of criminological work is not the competitive theorising of criminal justice but the democratic achievement of social justice". That objective "calls less and less for ever newer and newer 'brand name' criminologies (Carlen 1998) and more and more urgently for new forms of democratic governance committed to justice (both social and legal) as fairness, and to the building of state forms in which such an ameliorative distributive justice might be achieved" (Carlen forthcoming). Such an aspiration is not a million miles away from left realism.

Notes

1. See generally: Jones, Maclean, and Young (1986); Kinsey, Lea, and Young (1986); Lea (1987); Lea and Young (1984); Matthews and Young (1986, 1992); Taylor (1981); Young (1975; 1979; 1986, 1987, 1991, 1992a); Young and Matthews (1992).
2. For references to the numerous publications on the various surveys, see Brown and Hogg (1992a, 1992b).
3. See also Brown and Hogg (1992a; 1992b); White, Haines, and Asquith (2012).
4. See ibid, 118 for the 'fundamental principles' of 'plain left realism'; and see also: DeKeseredy and Schwartz (2006); DeKeseredy (2011).
5. For a fuller account see Brown and Hogg (1992a, 1992b).
6. For the origins and some assessments of Australian mainstream criminology see Carson and O'Malley (1989), Brown and Hogg (1992a, 1992b), and Finnane (2012).

References

Anthony, Thalia, and Chris Cunneen (eds.). 2008. *The Critical Criminology Companion*. Sydney: Federation Press.

Bagaric, Mirko, and Julie Clarke. 2007. *Torture*. Albany, NY: State University of New York Press.

Bhaskar, Roy. 1978. *A Realist Theory of Science*. Brighton: Harvester.

Bhaskar, Roy. 1989. *Reclaiming Reality*. London: Verso.

Braithwaite, John. 1989. *Crime, Shame and Reintegration*. Cambridge: Cambridge University Press.

Bronnit, Simon, and Bernadette McSherry. 2010. *Principles of Criminal Law*. Sydney: Thomson Reuters.

Brown, David. 1988. Post Election Blues: Law and Order in NSW Inc. *Legal Service Bulletin* 13 (3): 99–104.

Brown, David. 1990. Putting the Value back in Punishment. *Legal Service Bulletin* 15 (6): 177–185.

Brown, David. 1991. The State of the Prisons under the Greiner Government: Definitions of Value. *Journal for Social Justice Studies* 4: 27–60.

Brown, David. 2002. Losing My Religion: Reflections on Critical Criminology in Australia. In *Critical Criminology*, eds. Kerry Carrington, and Russell Hogg, 73–113. Cullompton: Willan.

Brown, David, and Russell Hogg. 1992a. Law and Order Politics – Left Realism and Radical Criminology: A View from 'Down-Under'. In *Issues in Realist Criminology*, eds. Roger Matthews, and Jock Young, 138–176. London: Sage.

Brown, David, and Russell Hogg. 1992b. Essentialism, Radical Criminology and Left Realism. *Australian and New Zealand Journal of Criminology* 25 (3): 195–230.

Brown, David, David Farrier, Luke McNamara, Alex Steel, Michael Grewcock, Julia Quilter, and Melanie Schwartz. 2015. *Criminal Laws*. Sydney: Federation Press.

Campaign for Criminal Justice. 1988. *Bulletin No. 1 and 2.* Sydney: CCJ.

Carlen, Pat. 1998. *Imaginary Penalities*. Cullompton: Willan.

Carlen, Pat. Forthcoming. Alternative Criminologies. In *Alternative Criminologies*, edited by Leandro Ayres Franca and Pat Carlen. Brazil: Iea Editora.

Carson, Kit, and Pat O'Malley. 1989. The Institutional Foundations of Contemporary Australian Criminology. *Australian and New Zealand Journal of Sociology* 25 (3): 333–355.

Carrington, Kerry, and Russell Hogg. 2002. *Critical Criminology: Issues Debates, Challenges*. Cullompton: Willan.

Carrington, Kerry, Russell Hogg, and Maximo Sozzo. 2016. Southern Criminology. *British Journal of Criminology* 56: 1–20.

Connell, Raewyn. 2007. *Southern Theory: Social Science and the Global Dynamics of Knowledge*. Sydney: Allen and Unwin.

Cottee, Simon. 2002. Folk Devils and Moral Panics: 'Left Idealism' Reconsidered. *Theoretical Criminology* 6 (4): 387–410.

Currie, Elliott. 1985. *Confronting Crime*. New York, NY: Pantheon.

Currie, Elliott. 1991. The Politics of Crime: The American Experience. In *The Politics of Crime Control*, eds. Kevin Stenson, and David Cowell, 33–61. London: Sage.

Currie, Elliott. 1992. Retreatism, Minimalism, Realism: Three Styles of Reasoning on Crime and Drugs in the United States. In *Realist Criminology: Crime Control and Policing in the 1990s*, eds. John Lowman, and Brian MacLean, 88–114. Toronto: University of Toronto Press.

Currie, Elliott. 1998. *Crime and Punishment in America*. New York, NY: Metropolitan Books.

Currie, Elliott. 2006. Inequality, Community, and Crime. In *The Essential Criminology Reader*, eds. Stuart Henry, and Mark Lanier, 299–306. Boulder, CO: Westview Press.

Currie, Elliott. 2010. Plain Left Realism: An Appreciation and Some Thoughts for the Future. *Crime, Law and Social Change* 54: 111–124.

DeKeseredy, Walter. 2011. *Contemporary Critical Criminology*. London: Routledge.

DeKeseredy, Walter, and Mollie Dragiewicz. 2012. *Routledge Handbook of Critical Criminology*. London: Routledge.

DeKeseredy, Walter, and Martin Schwartz. 2006. Left Realist Theory. In *The Essential Criminology Reader*, eds. Stuart Henry, and Mark Lanier, 307–316. Boulder, CO: Westview Press.

Ferrell, Jeff, Keith Haywood, and Jock Young. 2015. *Cultural Criminology*. London: Sage.

Finnane, Mark. 2012. The Origins of Criminology in Australia. *Australian and New Zealand Journal of Criminology* 45 (2): 157–178.

Hall, Steve. 2012. *Theorizing Crime and Deviance: A New Perspective*. London: Sage.

Hall, Steve, and Simon Winlow (eds.). 2012. *New Directions in Criminological Theory*. London: Verso.

Hall, Steve, and Simon Winlow. 2015. *Revitalising Criminological Theory: Towards a New Ultra-Realism*. London: Routledge.

Herrnstein, Richard, and Charles Murray. 1994. *The Bell Curve*. New York, NY: Free Press.

Hogg, Russell. 1987. Review Essay: Left Realism and Criminology, What Is To Be Done about Law and Order. *Australian Journal of Law and Society* 4: 128–147.

Hogg, Russell. 1988. Taking Crime Seriously: Left Realism and Australian Criminology. In *Understanding Crime and Criminal Justice*, eds. Mark Findlay, and Russell Hogg, 24–51. Sydney: Law Book Co.

Hogg, Russell, and David Brown. 1998. *Rethinking Law and Order*. Sydney: Pluto Press.

Indermaur, David, David Brown, Sandra Egger, and Russell Hogg. 2002. Shadow Boxing with an Imaginary Enemy: A Response to 'Law and Order Blues'. *Australian and New Zealand Journal of Criminology* 35 (2): 145–158.

Jones, Trevor, Brian Maclean, and Jock Young. 1986. *The Islington Crime Survey*. Aldershot: Gower.

Kinsey, Richard, John Lea, and Jock Young. 1986. *Losing the Fight against Crime*. Oxford: Basil Blackwell.

Lea, John. 1987. In Defence of Realism. *Contemporary Crises* II: 357–370.

Lea, John, Roger Matthews, and Jock Young. 1987. *Law and Order: Five Years on*. London: Middlesex Polytechnic Centre for Criminology.

Lea, John, and Jock Young. 1984. *What Is to Be Done about Law and Order?*. London: Penguin.

Loader, Ian. 2015. Book Review: Realist Criminology, by Roger Matthews. *British Journal of Criminology* 55 (2): 428–429.

Matthews, Roger. 2014. *Realist Criminology*. London: Palgrave Macmillan.

Matthews, Roger, and Jock Young (eds.). 1986. *Confronting Crime*. London: Sage.

Matthews, Roger, and Jock Young (eds.). 1992. *Issues in Realist Criminology*. London: Sage.

McNamara, Luke. 1992. Retrieving the Law and Order Issue from the Right: Alternative Strategies and Community Crime Prevention. *Law in Context* 10 (1): 80–122.

Murray, Charles. 1996. *Charles Murray and the Underclass: The Developing Debate*. London: IES Health and Welfare Unit.

Murray, Charles. 1997. *Does Prison Work?*. London: IES Health and Welfare Unit.

Pearce, Frank, and Steve Tombs. 1992. Realism and Corporate Crime. In *Issues in Realist Criminology*, eds. Roger Matthews, and Jock Young, 70–101. London: Sage.

Stubbs, Julie. 1998. Critical Criminological Research. In *The Critical Criminology Companion*, eds. Thalia Anthony, and Chris Cunneen, 6–17. Sydney: Federation Press.

Tame, Chris. 1991. Freedom, Responsibility and Justice: The Criminology of the 'New Right'. In *The Politics of Crime Control*, eds. Kevin Stenson, and David Cowell, 127–145. London: Sage.

Taylor, Ian. 1981. *Law and Order: Arguments for Socialism*. London: MacMillan.

Walklate, Sandra. 1992. Appreciating the Victim: Conventional, Realist or Critical Victimology? In *Issues in Realist Criminology*, eds. Roger Matthews, and Jock Young, 102–118. London: Sage.

Weatherburn, Don. 2002. Law and Order Blues. *Australian and New Zealand Journal of Criminology* 35 (2): 127–144.

White, Rob, Fiona Haines, and Nicole Asquith. 2012. *Crime and Criminology*. Melbourne: Oxford University Press.

Wilson, James Q. 1975. *Thinking about Crime*. New York, NY: Random House.

Wilson, James Q., and George Kelling. 1982. 'Broken Windows': The Police and Neighbourhood Safety. *Atlantic Monthly*, March: 46–53.
Wilson, James Q., and Richard J. Herrnstein. 1985. *Crime and Human Nature*. New York, NY: Simon and Schuster.
Young, Jock. 1975. Working Class Criminology. In *Critical Criminology*, eds. Ian Taylor, Paul Walton, and Jock Young, 63–94. London: Routledge.
Young, Jock. 1979. Left Idealism, Reformism and beyond: From New Criminology to Marxism. In *Capitalism and the Rule of Law*, ed. Bob Fine, 1–28. London: Hutchinson.
Young, Jock. 1986. The Failure of Criminology: The Need for a Radical Realism. In *Confronting Crime*, eds. Roger Matthews, and Jock Young, 9–30. London: Sage.
Young, Jock. 1987. The Tasks of a Realist Criminology. *Contemporary Crises* II: 337–356.
Young, Jock. 1991. Left Realism and the Priorities of Crime Control. In *The Politics of Crime Control*, eds. Keven Stenson, and David Cowell, 146–160. London: Sage.
Young, Jock. 1992a. The Ten Principles of Realism. In *Issues in Realist Criminology*, eds. Roger Matthews, and Jock Young, 24–68. London: Sage.
Young, Jock. 1992b. Realist Research as a Basis for Local Criminal Justice Policy. In *Realist Criminology: Crime Control and Policing in the 1990s*, eds. John Lowman, and Brian MacLean, 33–72. Toronto: University of Toronto Press.
Young, Jock. 2007. *The Vertigo of Late Modernity*. London: Sage.
Young, Jock, and Roger Matthews. 1992. *Rethinking Criminology: The Realist Debate*. London: Sage.

Author Biography

David Brown is Emeritus Professor in the Law Faculty at UNSW. He is a co-author of Criminal Laws, the leading student text in criminal law in NSW universities. He has widely published across the areas of criminal law, criminal justice, criminology, and penology in Australia and internationally and has served as a part-time NSW Law Reform Commissioner.

39

Feminist Criminology

Kathryn Henne

Feminist critiques of criminology's embedded male-centred biases emerged as early as the 1970s and 1980s.[1] Criminologists in Australia and New Zealand[2] were notable contributors (see Daly 1989; Hancock 1980; Naffine 1987; Wundersitz, Naffine, and Gale 1988). They documented shortcomings of mainstream criminology, particularly its limited engagement with women's encounters with crime and justice systems, and elaborated how criminological theories and empirical approaches perpetuated an androcentric vantage point that privileged masculine perspectives (Cain 1990; Carlen 1992). Feminist criminology in the 1990s shifted beyond questions focussed primarily on women as a social group to include systematic analyses of gender, power, and social difference. By the mid-2000s, feminist criminology was a mature subfield of criminology, as evidenced by the establishment of a dedicated journal.

Feminist criminology is often commended for its empirical sophistication. However, there are notable criticisms. Specifically, scholars acknowledge its tendency to prioritise critiques of gender-blind theories and analyses (Carrington 2008) and its lack of theoretical engagement with broader developments in feminist scholarship (Haney 2000). Critics and proponents alike sometimes overlook the diversity of feminist criminology. To characterise feminist criminology—or feminism more generally—as a uniform subfield of intellectual thought is a misnomer (see Naffine 1996). Scholars in Australia and New Zealand acknowledge the variety of feminist perspectives

K. Henne (✉)
ANU School of Regulation and Global Governance, Canberra, Australia
e-mail: kathryn.henne@anu.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_39

that have and could inform criminological enquiry (see, for example, Daly 2010; Henne and Troshynski 2013). Moreover, they concede that "theory based singularly on gender [cannot] explain how women of colour, rural women, Indigenous women, and women from impoverished backgrounds are uniquely susceptible to policing, criminalization and imprisonment" (Carrington, Hogg, and Sozzo 2016, 10).

Recognising the plurality of feminist criminological perspectives is important, as is consideration of their points of convergence and departure. This chapter reflects on core tenets of feminist criminology in a way that acknowledges their multiplicity and shared concerns. It outlines distinct features of feminist criminology in Australia and New Zealand, attending to earlier concerns as well as new developments. In doing so, the chapter points out foundational tensions underpinning feminist criminology—namely its traditional embrace of empiricism over wider theoretical engagement—and how different researchers negotiate those strains. It addresses how the resulting frictions can be both restrictive and productive. This review considers research conducted in both Australia and New Zealand and the growing focus on transnational connections within the region to ground its discussion. Overall, it summarises how scholars in Australia and New Zealand approach the feminist criminological mandate to transgress and transform its parent discipline (Cain 1990).

Feminist Foundations

The foundations of feminist criminology highlight a diversity of approaches. Feminist criminologists uphold different epistemological commitments, which Gelsthorpe (2002) usefully describes as *empiricism*, that is, a concern for understanding reality; *standpointism,* meaning to generate knowledge from marginalised viewpoints; and *deconstruction*, which is breaking down existing categories of knowledge. All three commitments inform feminist criminology in Australia and New Zealand. Although these commitments can appear as damning critiques of each other, the history of the subfield reveals that the tensions between them can yield productive reconsiderations of feminism's contribution to criminology.

The origins of feminist criminology in Australia and New Zealand can be traced, at least in print form, to the early 1980s, with the publication of Hancock's (1980) gendered analysis of juvenile justice and the anthology, Mukherjee and Scutt's (1981) *Women and Crime*. The first Australian feminist criminological monograph, *Female Crime: The Construction of Women in*

Criminology (Naffine 1987), articulated core concerns of the subfield. In particular, Naffine (1987, 11) drew attention to how criminology's preoccupation with the delinquent "rogue male" prompted a narrow understanding of women; that is, it mainly provided insight into women and their experiences vis-à-vis their relationships to men. Moreover, as Naffine (1996) later wrote, a core aim of incorporating feminism within criminology was not only to refute critically and expand upon limited constructions of crime and delinquency but also to instil values of reflexivity. This commitment to reflexivity was twofold: in relation to how researchers conceived the women they studied and in relation to researchers' positionality in generating knowledge. Specifically, Naffine (1996, 4) argued for a feminist criminology that is introspective and incorporates "precisely the same sort of critical scrutiny it has applied to others". She warned against the credulous embrace of empiricism, an attribute characteristic of mainstream criminology and its masculinist assumptions.

Naffine's warning yielded a difficult friction for scholars to grapple with, at least in the formative years of feminist criminology. Feminist responses to the male dominance in the field included research that generated knowledge about women in their own right, not simply through the lens of their relationships with men or through the lens of narrow criminological theories. Many scholars developed and carried out a number of studies aimed at comparing men's and women's encounters with various aspects and mechanisms of the criminal justice system.[3] While Naffine (1996) and others criticised many of these studies for failing to contest or rethink core tenets of criminology, others—such as Alder (1995)—argued that they were a necessary precondition for more sophisticated feminist analyses. In addition, having empirical evidence—even with its limitations—provided a platform to raise awareness of women's experiences with crime and the criminal justice system, and to garner wider criminological support. For example, using data from the first national survey of crime victims in Australia, researchers were able to provide one of the first general pictures of women's victimisation, explicitly inviting feminist scholars to conduct further and more nuanced analyses (Braithwaite and Biles 1980). Early feminist criminological scholarship thus made some important inroads. It moved aspects of women's encounters with crime and violence into mainstream and public discourses, particularly in relation to victimisation.

Criticisms of foundational feminist criminological studies sparked the development of new approaches to the study of crime and deviance. Critics suggested that, by using criminology's accepted methods, concepts, and measures, some foundational feminist criminological scholarship actually

threatened to uphold and reify the discipline's embedded androcentric values. In short, they argued for a rejection of positivism. As Carrington (2008) explains, feminist standpoint theory offered an alternative mode of enquiry. Standpoint theory relies on generating knowledge from the subject position of women and marginalised persons so as to glean more robust understandings of power and differing social realities (Hartsock 1997).

Feminist standpoint theory posited a different set of epistemological commitments than androcentric criminology. It was not as a corrective lens for criminology. Rather, it was a condemnation of the discipline. Standpointism, however, became the subject of critique for failing the account for the diversity of persons who occupy the category of women (Carrington 2008). Despite calling for radical alternatives, accounts informed by standpoint theory still tended to privilege Eurocentric, cisgender[4], and middle-class perspectives as sources of knowledge. They often negated cultural, sexual, socio-economic, and ethnic differences (Carrington 2008), all of which were important to the growing recognition of burgeoning multicultural communities in Australia and New Zealand.

By the early 1990s, a number of deconstructive analyses offered different modes of querying criminology's categorical assumptions (see Howe 1994; Threadgold 1993; Young 1996). They took aim at breaking down foundational categories, seeing them as part of a broader field of power relationships not necessarily bound to a particular notion of gender. These streams of feminist scholarship, according to Daly (2010), maintained poststructuralist sensibilities. They interrogated how various discourses shaped narrations of women's bodies and experiences. Significantly for feminist criminology, deconstruction facilitated a broader scope of enquiry including law, juridical artefacts, popular culture, masculinity, images, and other cultural considerations that inform understandings of crime, deviance, and victimisation. Young (1996), for instance, unpacked crime as an object by demonstrating that despite criminological attempts to know crime as an act, crime is better understood as imagined through texts and images. She argued that criminology comes to understand crime at the level of representation, not enactment. Her work illuminated how crime is a discursive object of enquiry. Although offering new modes of problematising power and social difference, deconstructive approaches had their shortcomings. They included a methodological reliance on close readings of individual case studies and a tendency of privileging law for social change (Carrington 2008). Moreover, deconstruction did not necessarily translate into changes to prevailing discourses.

Early Australian feminist criminology has other notable blind spots. Key among them is a lack of critical engagement with questions of indigeneity and

how intersectional forms of marginalisation become implicated in the criminalisation of women and girls (Carrington and Hogg 2012). Carrington and Hogg (2012) attribute this oversight to embedded Eurocentric beliefs about women as a social group. In relation to New Zealand, their observation also has value, especially in light of longstanding criticisms that Pākehā feminism misinterprets Māori women's values, knowledge, and experiences (see Irwin 1992; Te Awekotuku 1991). These criticisms provide important insights into the epistemological tensions of feminist criminology. According to Young (1992, 291), the subfield has a history of struggling to articulate "what might be distinctively *feminist* about feminist criminology" and to develop "a paradigm that can encompass more than a series of oppositions". Further, there is a general tendency to overlook other feminist approaches for sources of innovation. For example, it is important to note that Australian and New Zealand-based feminists in other fields were explicitly grappling with the multifaceted challenge of engaging difference, even though feminist criminology was slower to do so (see, for example, Behrendt 1993; Ram 1993). The precise reasons for this are, at best, speculative. However, it is clear that feminist criminology's preoccupation with correcting the androcentric biases of its parent discipline has hampered interdisciplinary dialogues with other feminist approaches.

Although a series of critiques marks the history of feminist criminology, there are a number of notable contributions and successes. This reflection on the foundations of feminist criminology in Australia and New Zealand demonstrates Daly and Chesney-Lind's (1988) important point that feminism—as a project—is far from a unified endeavour. Rather, it is fragmented and often contested.

Contemporary Issues

As an established subfield, feminist criminology illustrates the benefits of making "richer contextual analysis" the norm "rather than the exception" (Flavin 2001, 273). It also provides important guidance in seeking to understand the relationships between gendered discourses and lived encounters with crime and violence. Criminologists in Australia and New Zealand continue to make notable contributions to topics central to feminist political mobilisation, such as concerns around violence against women. In fact, feminist criminology has ensured that the diversity of victims' experiences and interests receive critical scholarly attention. Research on rape survivors shows that state investment in improving legal and procedural

responses alone does not yield better outcomes for victims. The presumed progression from "victim to survivor" is not linear. Rather, it can include instances of re-victimisation stemming from interactions with the justice system and even with support services (Jordan 2001, 2013). With regard to violence against women in a broader sense, feminist criminology highlights the importance of paying critical empirical attention to differences among women and to historical and contextual conditions (Cook and Bessant 1997). Accordingly, feminist criminological work advances arguments for why and how violence prevention strategies require more than short-term interventions focussing on individuals. They should be multi-level responses that attend to structural, normative, and local influences (Carmody and Carrington 2000). Research in this vein demonstrates how the criminal justice system is itself made up of multifaceted gendered spaces. This recognition has led to "more sobering appraisal[s] of what, in fact, criminal law and justice system practices can do to achieve women's and feminist goals" (Daly and Stubbs 2006, 23).

This body of feminist research raises questions about intersectionality, that is, how forms of discrimination and oppression arise out of interlocking systems of power such as—but not necessarily limited to—gender, race, and class. In other words, women of colour endure fundamentally different forms of oppression than their White counterparts, even though they share a common identification as women. Although feminist criminologists have called for a stronger commitment to intersectional analysis, this push, as Daly (2010, 237) points out, is "more an aspiration for the future than a research practice today". That said, many feminist criminologists in Australia and New Zealand actively pursue its incorporation (see Cunneen and Stubbs 1997; Daly and Stubbs 2006; Ham 2016; Henne and Troshynski 2013; Pickering and Ham 2014; Stubbs 2011). For instance, Cunneen and Stubbs' (1997) analysis of the high victimisation rate of Filipino women in Australia highlights the value of intersectionality. They demonstrate how class differences, hegemonic White Australian masculinity, orientalist myths about Asian women's sensibilities, and globalisation all inform this high rate. Further, they point to how violence can ensue when Filipino women do not act in accordance with their socially prescribed gender roles, sometimes leading to their deaths at the hands of partners.

Studies of Indigenous communities depict a different intersectional contour. Stubbs (2011) condemns the fact that there is limited research on Aboriginal women's victimisation, offending, and criminalisation, even though they are grossly overrepresented in the Australian criminal justice system. Specifically, she states that this pattern reflects "enduring and repeated failures to pay sufficient regard to Aboriginal women," suggesting the

need for intersectional analyses with Indigenous women "fully involved in shaping the meanings that emerge" (Stubbs 2011, 59). Although there is ongoing research into how courts represent and assess Indigenous women's experiences and circumstances (Behrendt and Anthony 2016), Stubbs' call remains largely unheeded. Further scrutiny of cases in which battered Indigenous women are charged with homicide for killing abusers does reveal important insights. It shows that widespread forms of marginalisation become interpreted as "indicators of personal deficits", thereby discounting the potential influence of structural conditions and displacing responsibility primarily onto individuals (Stubbs and Tolmie 2008, 138). Considering broader trends in criminal sentencing, Anthony (2013) documents how judicial discretion comes to reflect ingrained and essentialist White beliefs about Indigenous difference. In particular, law reifies Indigenous culture and crimes by Indigenous people as threatening. She concludes that better outcomes are only possible if Indigenous communities have more power over dispute resolution and reconciliation. Even then, that inclusion is just a small step towards recognising differences among Indigenous communities, which vary in terms of culture and access to resources, and towards confronting the legacies of colonialism and occupation.

Beyond examinations of women's experiences of crime and justice systems, studies of masculinity bring attention to other gendered dynamics. Recent work acknowledges that addressing masculinity in relation to crime, although important, can materialise as "one-dimensional" (Salter 2016, 463). Reflecting on how violence prevention campaigns render masculinity as a determining factor of violence against women, Salter (2016) contends that they prioritise gender inequality as a social determinant. Casting masculinity in this limited way perpetuates essentialist notions of gender that discount how interconnected inequalities, politics, and societal change can contribute to crime and violence. This point aligns with earlier research on juvenile justice by Cunneen and White (1995). They outline an agenda for studying hegemonic masculinity, and how it contributes to the normalising and devaluing of certain forms of behaviour, which, in turn, have a notable bearing on crime and delinquency. In fact, Cunneen and White (1995, 72) explicitly call for further analysis of "the complex positioning of individuals with respect to gender, class, ethnicity and 'race'". Although intersectionality is still not the predominant analytical approach to criminological studies of masculinity, existing research does reveal how official analyses overlook the higher rates of violence in rural Australia, and how frontier masculinities coalesce with other structural conditions to underpin them (Carrington and Scott 2008).

Feminist criminology in Australia and New Zealand is increasingly attentive to globalised dilemmas. The securitization of national borders contributes to criminological concerns linked to transnational movements such as trafficking and migration. Australian feminist criminologists have studied the plight of non-citizens —primarily those who are women, asylum seekers, and detainees—and the conditions informing border patrol (see Pickering 2010; Segrave et al. 2009; Weber and Pickering 2011). This scholarship illuminates the politics and consequences of criminalising certain kinds of migrants—namely asylum seekers and migrants who come to Australia by boat—and of related carceral practices such as the mandatory detention of these particular groups. With more women dying while crossing the physical barriers of countries, there are gendered implications linked to "social practices within families, and within countries of origin and transit, as well as the practices of smuggling markets" (Pickering and Cochrane 2013, 27).

Migration's impact is not limited to formal engagement with authorities. Keeping in mind that many residents of Australia and New Zealand are foreign-born, it is important to consider the diversity of cultural influences informing practices and understandings of law, crime, and delinquency. Mayeda and Vijaykumar's (2015) research with young women of Asian and Middle Eastern heritage living in Auckland serves as a case in point. Their findings demonstrate how societal pressures (that is, to assimilate) combine with familial desires (which are often to maintain tradition) in ways that influence beliefs around gender and intimate partner violence (IPV). In addition to "balancing a space between mainstream western culture and their parents' traditional cultures" and navigating "the typical tensions that accompany early romantic relationships", participants have "vague understandings of what constitutes IPV" (216–217). "Personal backgrounds where gender inequality and IPV have been taught across multiple settings, and cultural values … make discussion of intimate relationships extremely difficult" (216–217). The researchers resist the orientalist tendency to characterise their "ethnic communities as violently patriarchal" (217), stating that doing so would misrepresent the diversity of participants' experiences and reflections while affirming racist beliefs. Their point exemplifies the feminist criminological prescription of reflexivity and the challenges manifest in following through on the ethical demands of that commitment.

With regard to other transnational concerns, feminist criminology has contributed significantly to research on sex trafficking, with research in Australia and New Zealand being distinguished by its critical analysis and empirical focus. This scholarship points to the limits and consequences of anti-trafficking frameworks in practice (Segrave et al. 2009), and how

migratory and crime-control systems struggle to distinguish sex work from trafficking (Pickering and Ham 2014). Further, it unearths tacit assumptions about sex work and how the boundaries of legality and illegality come to inform sex workers' everyday lives. Ham (2016), for instance, documents how narrow perceptions of the migrant sex worker misrepresent the myriad experiences that women who are assumed to be migrant sex workers can have. In doing so, Ham's study embraces a hybrid of feminist criminological traditions: an empiricism informed by standpoint perspectives and deconstructive elements. Armstrong's (2017) research on sex workers in New Zealand, where sex work was decriminalised in 2003, strikes a similar epistemological balance in documenting the adjoining shifts in the policing of street-based sex workers. In sum, many contemporary analyses attempt to reconcile the three distinct approaches that shaped the foundations of feminist criminology.

In the light of globalised changes, feminist scholars in the region acknowledge the potential limitations of intersectionality, calling for theoretical innovation and refinement (Henne and Troshynski 2013). Henne and Troshynski (2013) contend that unpacking complex dynamics of difference —especially against the backdrop of transnationalism—requires adapting intersectionality. Doing so, they argue, has the potential to advance feminist criminological agendas aimed at disrupting and changing criminology. Carrington et al. (2016, 10) reiterate their point by describing intersectionality as a possible "theoretical antidote to feminism's metropolitanism [one that] is a significant advance on essentialist feminist frameworks that privileged a unified mono-cultural, trans-historical conception of gender". In other words, it has the potential to undermine criminology's metropolitan disposition and to more aptly unveil the postcolonial dimensions of crime, victimisation, and criminological knowledge production.

Contemporary calls to embrace transnational frameworks retain feminist criminology's foundational concerns around inequality, although new challenges abound. With more people regularly interacting online, using social media networks, and engaging with the Internet of Things[5], criminology cannot ignore the digital domains of everyday life. Feminist criminologists bring attention to online interactions as sites of sexual victimisation and gender-based violence (see Henry and Powell 2015; Milivojevic and McGovern 2014). Salter (2013) argues that digital spaces are not simply sites of domination; they also offer room to challenge and rearticulate popularised narratives of sexual assault. Sometimes these discussions influence mainstream media outlets and formal proceedings. In doing so, they reveal that presumed distinctions between virtual and real domains are not as clear as they may

appear at first blush. Feminist criminology, which has a strong history of asking questions around distinctions between private and public, is well equipped to interrogate them as constitutive relationships.

Conclusion

This chapter highlights the productive tensions underpinning feminist criminology in Australia and New Zealand and how they manifest in contemporary scholarship. Similar tensions animate feminist politics and scholarship in other domains. Writing on New Zealand, Larner and Spoonley (1995) provide an important reminder about how such tensions enable dialogic movement. Critical of Pākehā feminism for its racist disavowal of postcolonial legacies (see Irwin 1992; Te Awekotuku 1991), Māori scholars promoted the importance of mana wāhine, which is often understood as Māori feminist discourses. In calling for spaces that cultivate and value Māori women's knowledge, they also shifted other feminist discourses in New Zealand (Simmonds 2011). In the move for greater inclusion, fissures remain, but they come to inform feminist scholarship and praxis.

With the growing awareness of globalised social problems, it is perhaps no surprise that feminist criminology in Australia and New Zealand increasingly embraces transnational, intersectional, and postcolonial perspectives, but also maintains commitments to capturing lived experience. While recent calls for a "Southern criminology" emphasise the need to rethink the epistemological and geopolitical dimensions of research, it is important to note that critical Indigenous scholars have made similar appeals for years (see Simmonds 2011; Watson 2015). Yet, they are rarely acknowledged or cited in feminist criminological work. This disjuncture is symptomatic of the hegemonic challenges of pursuing Southern theory in a scholarly world dominated by Northern ontologies. It poses a core challenge for feminist criminology: that is, to do more than extend its study of marginalised peoples as subjects, but also to recognise and incorporate other knowledges in ways that value the producers of those knowledges. Such endeavours would greatly enhance emergent efforts by feminist criminologists to unveil the embedded ways White privilege shapes criminological enquiry (see Henne and Shah 2015).

The critical turn to questions of difference opens spaces for new and productive fissures within feminist criminology and to engage other interdisciplinary perspectives. In relation to multiculturalism, for instance, Pacific studies scholars offer historical, analytical, and empirical insights that can inform criminological analyses of Pasifika peoples and of the distinct

dimensions of their transnational communities and histories (see Diaz and Kauanui 2001; Teaiwa and Slatter 2013; Wood 2003). In a distinctly different vein, the growth of queer criminology shares critical elements of feminist criminology in that it aims to redress and change criminology. Specifically, it attends to the discipline's limited attention to the LGBTQI experiences and destabilises taken-for-granted, identity-based categories, theories, and methodological approaches (see Ball et al. 2016). As queer theoretical engagements with questions of gender attest (Butler 1993), queer criminology has the potential to unsettle tenets of feminist criminology in ways that may prompt alternative approaches to studying relationships between gender, sexuality, and interlocking systems of oppression.

Distinct from other feminist camps, feminist criminology offers a subfield of scholarship that showcases the tensions of empiricism, standpoint theory, deconstruction, and intersectionality. Such tensions can contribute to irreconcilable forms of conflict, but they also enable productive shifts. Although once criticised for not engaging widely with feminist theorising in other fields, feminist criminology is well positioned to deliver important insights as feminist intellectual thought—as well as many other disciplines—begins to pose new questions about materialism and about lived experience beyond the analytic scope of deconstruction. Despite expressed concerns about divisions within criminology (Bosworth and Boyle 2011), feminist criminology illustrates how such fissures can support robust critical enquiry that is attentive to inequality and the grounded realities of crime, violence, and victimisation.

Notes

1. While Carol Smart's (1976) book *Women, Crime and Criminology* is a classic foundational text in the field, there is published work questioning the lack of women in criminological analysis that predates the 1970s (see Heidensohn 1968).
2. I use New Zealand here for consistency, although Aotearoa is widely used and recognised as the Māori name for the country.
3. Naffine (1996) provides an overview of these studies in chapter one, later explaining how they fail to engage with theories that could reinvigorate the field.
4. The term cisgender refers to people whose gender identity matches their assigned biological sex. As intersex advocates note, this term is limited, because it assumes the existence of binary sexes and fails to account for bodies that do not appear male or female.

5. The Internet of Things is a term used to capture the global network that supports the collection and exchange of data. It is made up of smart devices, buildings, motor vehicles, and other data collecting and transmitting objects.

References

Alder, Christine. 1995. Feminist Criminology in Australia. In *International Feminist Perspectives in Criminology: Engendering a Discipline*, eds. Nicole H. Rafter, and Frances Heidensohn, 17–38. Buckingham: Open University Press.

Anthony, Thalia. 2013. *Indigenous People, Crime and Punishment*. London: Routledge.

Armstrong, Lynzi. 2017. From Law Enforcement to Protection? Interactions between Sex Workers and Police in a Decriminalized Street-Based Sex Industry. *British Journal of Criminology* 57: 570–588.

Ball, Matthew, Thomas Crofts, and Angela Dwyer (eds.). 2016. *Queering Criminology*. Basingstoke: Palgrave Macmillan.

Behrendt, Larissa. 1993. Aboriginal Women and the White Lies of the Feminist Movement: Implications for Aboriginal Women in Rights Discourse. *Australian Feminist Law Journal* 1: 27–44.

Behrendt, Larissa, and Thalia Anthony. 2016. *Where are Indigenous Women in the Sentencing of Indigenous Offenders?* http://cfsites1.uts.edu.au/find/projects/detail.cfm?ProjectId=2014002725. Accessed 22 Sep.

Bosworth, Mary, and Carolyn Hoyle (eds.). 2011. *What Is Criminology?*. Oxford: Oxford University Press.

Braithwaite, John, and David Biles. 1980. Women as Victims of Crime. *The Australian Quarterly* 52: 329–339.

Butler, Judith. 1993. *Bodies That Matter: On the Discursive Limits of 'Sex'*. New York, NY: Routledge.

Cain, Maureen. 1990. Towards Transgression: New Directions in Feminist Criminology. *International Journal of the Sociology of Law* 18: 1–18.

Carlen, Pat. 1992. Criminal Women and Criminal Justice: The Limits to, and Potential of, Feminist and Left Realist Perspectives. In *Issues in Realist Criminology*, eds. Roger Matthews, and Jock Young, 51–69. London: Sage.

Carmody, Moira, and Kerry Carrington. 2000. Preventing Sexual Violence? *Australian and New Zealand Journal of Criminology* 33: 341–361.

Carrington, Kerry. 2008. Critical Reflections on Feminist Criminologies. In *The Critical Criminology Companion*, eds. Thalia Anthony, and Chris Cunneen, 82–93. Sydney: Federation Press.

Carrington, Kerry, and Russell Hogg. 2012. History of Critical Criminology in Australia. In *The Routledge Handbook of Critical Criminology*, eds. Walter S. DeKeseredy, and Molly Dragiewicz, 46–60. London: Routledge.

Carrington, Kerry, Russell Hogg, and Máximo Sozzo. 2016. Southern Criminology. *British Journal of Criminology* 56: 1–20.

Carrington, Kerry, and John Scott. 2008. Masculinity, Rurality and Violence. *British Journal of Criminology* 48: 641–666.

Cook, Sandra, and Judith Bessant, (eds.). 1997. *Women's Encounters with Violence: Australian Experiences*.

Cunneen, Chris, and Julie Stubbs. 1997. *Gender, 'Race' and International Relations: Violence against Filipino Women in Australia*. Sydney: Institute of Criminology.

Cunneen, Chris, and Rob White. 1995. Masculinity and Juvenile Justice. *Australian and New Zealand Journal of Criminology* 29: 69–73.

Daly, Kathleen. 1989. Criminal Justice Ideologies and Practices in Different Voices: Some Feminist Questions About Justice. *International Journal of the Sociology of Law* 17: 1–18.

Daly, Kathleen. 2010. Feminist Perspectives in Criminology: A Review with Gen Y in Mind. In *The Sage Handbook of Criminological Theory*, eds. Eugene McLaughlin, and Tim Newburn, 225–246. London: Sage.

Daly, Kathleen, and Meda Chesney-Lind. 1988. Feminism and Criminology. *Justice Quarterly* 5: 497–538.

Daly, Kathleen, and Julie Stubbs. 2006. Feminist Engagement with Restorative Justice. *Theoretical Criminology* 10: 9–28.

Diaz, Vincente, and J. Kehaulani Kauanui. 2001. Native Pacific Cultural Studies on the Edge. *The Contemporary Pacific* 13: 315–341.

Flavin, Jeanne. 2001. Feminism for the Mainstream Criminologist: An Invitation. *Journal of Criminal Justice* 29: 271–285.

Gelsthorpe, Loraine. 2002. Feminism and Criminology. In *The Oxford Handbook of Criminology*, eds. Mike Maguire, Rod Morgan, and Robert Reiner, 112–143. Oxford: Oxford University Press.

Ham, Julie. 2016. *Sex Work, Immigration and Social Difference*. London: Routledge.

Hancock, Linda. 1980. The Myth That Females Are Treated More Leniently than Males in the Juvenile Justice System. *Australian and New Zealand Journal of Sociology* 16: 4–14.

Haney, Lynne A. 2000. Feminist State Theory: Applications to Jurisprudence, Criminology, and the Welfare State. *Annual Review of Sociology* 26: 641–666.

Hartsock, Nancy. 1997. The Feminist Standpoint: Developing the Ground for a Specifically Feminist Historical Materialism. In *The Second Wave: A Reader in Feminist Theory*, ed. Linda Nicholson, 216–240. New York, NY: Routledge.

Heidensohn, Frances. 1968. The Deviance of Women: A Critique and an Enquiry. *British Journal of Sociology* 19: 160–175.

Henne, Kathryn, and Rita Shah. 2015. Unveiling White Logic in Criminological Research: An Intertextual Analysis. *Contemporary Justice Review* 18: 105–120.

Henne, Kathryn, and Emily Troshynski. 2013. Mapping the Margins of Intersectionality: Criminological Possibilities in a Transnational World. *Theoretical Criminology* 17: 455–473.

Henry, Nicola, and Anastasia Powell. 2015. Beyond the Sext: Technology-Facilitated Sexual Violence and Harassment against Adult Women. *Australian and New Zealand Journal of Criminology* 48: 104–118.

Howe, Adrian. 1994. *Punish and Critique: Towards a Feminist Analysis of Penality*. New York, NY: Routledge.

Irwin, Kathie. 1992. Towards Theories of Māori Feminism. In *Feminist Voices: Women's Studies Texts for Aotearoa/New Zealand*, eds. Rosemary Du Plessis, Phillida Bunkle, Kathie Irwin, Alison Laurie, and Sue Middleton, 1–21. Oxford: Oxford University Press.

Jan, Jordan. 2013. From Victim to Survivor – And from Survivor to Victim: Reconceptualising the Survivor Journey. *Sexual Abuse in Australia and New Zealand* 5: 48–57.

Jan, Jordan. 2001. Worlds Apart? Women, Rape and the Reporting Process. *British Journal of Criminology* 41: 679–706.

Larner, Wendy, and Paul Spoonley. 1995. Aotearoa/New Zealand. In *Unsettling Settler Societies: Articulations of Gender, Race, Ethnicity and Class*, eds. Daiva Stasiulis, and Nira Yuval-Davis, 39–65. London: Sage.

Mayeda, David T., and Raagini Vijaykumar. 2015. Intersections of Culture, Migration and Intimate Partner Violence as Told by Migrant Youth. *International Journal of Criminology and Sociology* 4: 208–219.

Sanja, Milivojevic, and Alice McGovern. 2014. The Death of Jill Meagher: Crime and Punishment on Social Media. *International Journal for Crime, Justice and Social Democracy* 3: 22–39.

Mukherjee, Satyanshu K., and Jocelynne A. Scutt. 1981. *Women and Crime*. North Ryde: Allen and Unwin.

Naffine, Ngaire. 1987. *Female Crime: The Construction of Women in Criminology*. North Ryde: Allen and Unwin.

Naffine, Ngaire. 1996. *Feminism and Criminology*. Cambridge: Polity Press.

Pickering, Sharon. 2010. *Women, Borders and Violence: Current Issues in Asylum, Forced Migration, and Trafficking*. New York, NY: Springer.

Pickering, Sharon, and Brandy Cochrane. 2013. Irregular Border-Crossing Deaths and Gender: Where, How and Why Women Die Crossing Borders. *Theoretical Criminology* 17: 27–48.

Pickering, Sharon, and Julie Ham. 2014. Hot Pants at the Border: Sorting Sex Work from Trafficking. *British Journal of Criminology* 54: 2–19.

Salter, Michael. 2013. Justice and Revenge in Online Counter-Politics: Emerging Responses to Sexual Violence in the Age of Social Media. *Crime, Media, Culture* 9: 225–242.

Salter, Michael. 2016. 'Real Men Don't Hit Women': Constructing Masculinity in the Prevention of Violence against Women. *Australian and New Zealand Journal of Criminology* 49: 463–479.

Segrave, Marie, Sanja Milivojevic, and Sharon Pickering. 2009. *Sex Trafficking: International Context and Response*. London: Routledge.

Simmonds, Naomi. 2011. Mana Wahine: Decolonising Politics. *Women's Studies Journal* 25: 11–25.

Smart, Carol. 1976. *Women, Crime and Criminology: A Feminist Critique*. London: Routledge.

Stubbs, Julie. 2011. Indigenous Women in Australian Criminal Justice: Over-Represented but Rarely Acknowledged. *Australian Indigenous Law Review* 15: 47–63.

Stubbs, Julie, and Julia Tolmie. 2008. Battered Women Charged with Homicide: Advancing the Interests of Indigenous Women. *Australian and New Zealand Journal of Criminology* 41: 138–161.

Ram, Kalpana. 1993. 'Too Traditional Once Again': Some Post-Structuralists on the Aspirations of the Immigrant/Third World Female Subject. *Australian Feminist Studies* 17: 5–28.

Teaiwa, Teresia K., and Claire N. Slatter. 2013. Samting Nating: Pacific Waves at the Margins of Feminist Security Studies. *International Studies Perspectives* 14: 447–450.

Te Awekotuku, Ngahuia. 1991. *Mana Wahine Māori: Selected Writings on Māori Women's Art, Culture and Politics*. Auckland: New Woman Press.

Threadgold, Terry. 1993. Critical Theory, Feminisms, the Judiciary and Rape. *Australian Feminist Law Journal* 1: 7–25.

Watson, Irene. 2015. *Aboriginal Peoples, Colonialism and International Law: Raw Law*. London: Routledge.

Weber, Leanne, and Sharon Pickering. 2011. *Globalisation and Borders: Death at the Global Frontier*. Basingstoke: Palgrave Macmillan.

Wood, Houston. 2003. Cultural Studies for Oceania. *The Contemporary Pacific* 15: 340–374.

Wundersitz, Joy, Ngaire Naffine, and Fay Gale. 1988. Chivalry, Justice or Paternalism? The Female Offender in the Juvenile Justice System. *Australian and New Zealand Journal of Sociology* 24: 359–376.

Young, Alison. 1992. A Review of Feminist Perspectives in Criminology. *Journal of Law and Society* 19: 289–292.

Young, Alison. 1996. *Imagining Crime: Textual Outlaws and Criminal Conversations*. London: Sage.

Author Biography

Dr. Kathryn Henne is an Australian Research Council Discovery Early Career Research Fellow at ANU's School of Regulation and Global Governance. She has published widely on feminist approaches to the study of surveillance, deviance, and transnational criminology. She is the author of *Testing for Athlete Citizenship: Regulating Doping and Sex in Sport* (Rutgers University Press 2015).

40

Convict Criminology

Greg Newbold

Convict criminology is a concept that emerged in the USA in the 1990s and has since expanded to include Canada, New Zealand, and the UK. Currently, there are no active members in Australia. The convict criminology group is not a unified body in itself. Rather, it is a collection of individuals united by a general philosophy that the discipline of criminology benefits from the educated input of those with experience in the realities of crime and incarceration either as inmates, prison workers, or official visitors. The primary coordinator of the group is Steve Richards, a former federal prison inmate, who recently retired from the University of Wisconsin.

Members of the convict criminology group are engaged in a variety of activities, including publishing books and articles informed—but not always dominated—by an auto-ethnographic perspective; presenting papers at conferences, in particular at the annual ASC conference; providing advice and assistance to government authorities on matters relating to corrections and crime control policy; mentoring prisoners currently involved in tertiary education; providing guidance to released prisoners pursuing PhD degrees; and helping those who have attained PhDs to find work in universities (Aresti and Darke forthcoming; Newbold and Ross 2013; Newbold et al. 2014; Ross and Richards 2003; Ross et al. 2011). All of the leading and founding members of the convict criminology group are themselves full-time academics currently working in universities.

G. Newbold (✉)
The University of Canterbury, Canterbury, New Zealand
e-mail: greg.newbold@canterbury.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_40

Origins of Convict Criminology

The use of the auto-ethnographic approach in criminology has been rare in the past, but it is by no means unknown. It was used by Columbia University criminologist Tannenbaum (1938), who coined the term "dramatisation of evil" and authored the influential book *Crime and the Community*. He was a former labour organiser, who spent a year in prison for union-related activities. Similarly McCleary (1978), who developed a distinguished career at the University of California, Berkeley, served time in US federal and state prisons, and wrote his auto-ethnographic book, *Dangerous Men,* while he was on parole in Minnesota.

The founding father of convict criminology is John Irwin. Irwin was a former heroin addict, who served a seven-and-a-half-year sentence for armed robbery in Soledad, California, during the 1950s. Irwin commenced academic study in prison, and was, after his release in 1957, assisted by academic heavyweights such as Herbert Blumer, Donald Cressey, Erving Goffman, David Matza, and Lewis Yablonsky. Irwin got his PhD from Berkeley in 1969 and taught at the University of San Francisco for 27 years until his retirement in 1994. During that time, he wrote seven books and dozens of scholarly articles and was the recipient of numerous prestigious awards. Throughout his life, Irwin championed humanitarian correctional policies and assisted inmates released from prison through Project Rebound, which he founded in 1967. Irwin successfully combined academic life with heuristic experience to promote prison reform through high-quality academic research and activism. He died in 2010 at the age of 80 (Newbold et al. 2010).

Convict criminology was John Irwin's brainchild. In 1987, echoing his early mentor Matza (1969), he began arguing for greater use of the auto-ethnographic method in criminology in order to give meaning and context to statistics and official declarations. Two years later, at the ASC conference in Reno, he spoke to me—a former maximum security inmate and newly appointed lecturer at the University of Canterbury in New Zealand—about the need for an organisation of educated ex-convicts to produce experience-based research that might influence sentencing practices and correctional policies. He discussed the idea regularly from that time forth.

At about the same time, a group of scholarly Canadian activists—Bob Gaucher, Howard Davidson, and Liz Elliot—was thinking along the same lines. Disappointed at the lack of convict input to the International Conference on Penal Abolition III held in Montreal in 1987, they launched the *Journal of Prisoners on Prisons* in 1988. This peer-reviewed periodical is

dedicated to publishing scholarly work by prisoners and ex-prisoners and has formed a close association with the convict criminology group.

Convict criminology itself actually materialised as an entity sometime later. In 1997, Chuck Terry, a former burglar and drug addict with a background of more than 12 years in various US penitentiaries, contacted John Irwin. Terry had started his tertiary education while doing time in Oregon State Penitentiary. When he contacted Irwin, he was out of prison, and halfway through a PhD at the University of California, Irvine. Terry introduced Irwin to Alan Mobley, who served 10 years in federal prisons for cocaine trafficking and was also finishing a doctorate at Irvine. Through these contacts, Irwin was also introduced to several other ex-convicts with PhD degrees, including Ed Tromhauser, who had served several sentences for robbery, and former marijuana dealers Rick Jones and Steve Richards. Irwin was excited about his dream coming to fruition, that is, the formation of a team of academically trained ex-felons who could produce experience-based research on issues surrounding prisons and law enforcement.

Terry spoke to his programme chair, Joan Petersilia, about the dearth of recent research on the realities of prison life, and Petersilia encouraged Terry, with the assistance of John Irwin, to organise a special convict-based session at the 1997 ASC conference in San Diego. The session was titled "Convicts Critique Criminology: The Last Seminar" and was deemed a great success, featuring presentations by Mobley, Richards, and Tromhauser. This was the first time that a group of academically trained ex-convicts had ever come together in a scholarly forum, and things moved quickly from there. Following a discussion over dinner that evening, a decision was made to produce an edited book with chapters written by former convicts and prison workers. In the spring of 1998, Steve Richards and Jeff Ross—a US academic who had been employed for almost four years in the psychiatric unit of a Canadian prison—worked together to solicit and edit papers from 19 contributors—not all of them former criminals—from the USA and New Zealand. The book was launched under the title *Convict Criminology* in 2003 with a foreword by Todd Clear and a preface by John Irwin. It remains one of the group's most memorable works.

It was Richards and Ross who coined the term "convict criminology" and who have been the group's principal organisers and promoters. The first session titled "Convict Criminology" was held at the ASC conference in Toronto in 1999, by which time the group had been joined by former prisoners Rick Jones, Dan Murphy, and me. By 2012, convict criminologists had participated in more than 30 sessions at international criminology and sociology conferences. Members had also published a large number of books,

refereed journal articles, and book chapters, and continue to do so (see Jones et al. 2009; Newbold et al. 2014; Richards and Lenza 2012). Designated convict criminology sessions have become regular features of the annual ASC conference, and members usually present at other conferences such as those of the Academy of Criminal Justice Sciences.

Convict criminology has been critiqued by some for being "soft science" and for relying on personal opinion over robust research (see Bosworth 2004; Lilly 2009). In her presidential address to the ASC in 2014, Belknap (2015) criticised the group for "criminological activism" and for a number of other perceived shortcomings including its primarily white, male constitution. The Belknap paper received a vigorous rebuttal from convict criminology members Aresti and Darke (forthcoming). However, the concession has been made that some members tend to become preoccupied with personal grievances, to proselytise and emote, and to publish material of mediocre quality in low-impact journals (Newbold and Ross 2013). Before he died, John Irwin had warned the group about such tendencies.

The Internationalisation of Convict Criminology

For the most part, aside from my own contributions, convict criminology remained mostly an American initiative, concerned principally with issues related to the USA. However, convict criminology was never intended to be restricted to the USA. From the start, its members looked to broaden their horizons. I have noted that Jeff Ross—one of the group's founders—is a Canadian but works at the University of Baltimore, and the group's close relationship with the Canadian *Journal of Prisoners on Prisons.* In 2012, the relationship was strengthened with the journal dedicating a special issue devoted to the work of convict criminology.

However, it was the publication of Ross and Richards' (2003) edited volume *Convict Criminology* that raised the group's flag internationally and established its perspective and credentials. In the summer of 2004, shortly after the book's publication, Ross was invited by British academic Shadd Maruna to give a lecture to a class of prison governors at Cambridge University. The lecture was received with interest and enthusiasm and thus introduced convict criminology to the UK.

In 2006, convict criminology member Rick Jones received a Fulbright scholarship to teach criminology at the University of Tampere in Finland. There, he met Ikponwosa Ekunwe, a.k.a. "Silver", a Nigerian-born ex-convict, who was completing a doctorate on prisons in Finland. Ekunwe

was attracted to the convict criminology ethos and used it to frame his dissertation. Subsequently, in 2011, Ekunwe organised a conference in Tampere titled "Global perspectives on re-entry" (Ross et al. 2014). More recently, in 2013, the convict criminology approach was incorporated into a series of articles in a special issue of the journal *EuroVista: Probation and Community Justice* on probation in Europe, with six of its articles written by US-based convict criminologists.

The spread of convict criminology within the UK happened about the same time. In much the same way as Ekunwe had done in Finland, Andy Aresti, a British ex-convict, began introducing convict criminology principles into his PhD, which was presented in 2010. Later, along with British academics Rod Earle and Sacha Darke, a panel titled "Putting Prison in Its Place" was convened at the 2011 BSC conference. It was through discussion during this session that the idea of establishing a convict criminology group in the UK was raised. An appeal for interest was launched, which led to the establishment of a group called British Convict Criminology in January 2012. By the time of the 2012 BSC conference that July, the group had formed an advisory panel and had forged links with convict criminology in America. Following the lead of their American cousins, the British convict criminology group soon began publishing auto-ethnographic papers, promoting the voices of penal reform groups and former prisoners, utilising prisoners as peer researchers (Aresti 2012), and developing discussions with state crime control agencies such as HM Prison Service and the Ministry of Justice. Through the Open University, the British convict criminology group is now also attempting to make contacts with prisoners and ex-prisoners engaged in higher education. At the time of writing, British convict criminology was healthy and continuing to progress in parallel fashion to US convict criminology. However, due to increasing difficulties relating to international travel for convicted felons, discussed towards the end of this chapter, the two groups are destined to remain largely independent of one another.

Convict Criminology in Australia and New Zealand

Among the convict criminology's founders, I am the only non-American who has been active presenting papers not only in New Zealand, Canada, and the USA but also in Australia and Japan. My convict experience dates back to 1971 when—while studying anthropology at Auckland University—I was

convicted of cultivating cannabis and sentenced to three months in a "boot camp" style detention centre. Four years later, in 1975, I was sentenced to seven-and-a-half years for selling heroin. While in maximum security, I wrote my MA thesis "The Social Organization of Prisons". After release in 1980, I studied for my PhD, which was conferred in 1987 with a dissertation called "The Maximum Security Prison in New Zealand". I commenced work as a lecturer in sociology at the University of Canterbury in 1988.

Today, I am a professor of sociology at Canterbury University. I was involved with convict criminology from the start, having discussed the idea with John Irwin as a young lecturer in 1989. I have presented at the first convict criminology panel in Toronto 10 years later, have contributed a chapter to the seminal text *Convict Criminology* (Ross and Richards 2003), have presented papers at 10 ASC conferences, and have participated in convict criminology sessions at the ASC since 1999. In addition, I have collaborated with other convict criminology colleagues in six peer-reviewed journal articles and ten book chapters. I have authored eight books, more than 80 peer-reviewed journal articles and book chapters, numerous news media articles and book reviews, and I have delivered around 200 addresses to academic and public sector conferences and community organisations in New Zealand, Australia, the USA, Canada, and Japan. Hence, New Zealand media often contact me on matters related to crime and justice.

The demand for convict criminology expertise by policy-makers and private enterprises is considerable, as is evidenced by my consultancy work. I have participated in, or contributed to, a number of committees such as the Penal Advisory Committee in 1991; the working party to establish a prison Ombudsman in 1993/1994; and the government-appointed committee that assessed the tenders for New Zealand's first private prison in 1995/1996. I was also contracted by the private companies Kalyx Services and G4S to assist in developing their respective bids for a private prison management contracts in New Zealand in 2010 and 2011. Furthermore, I have written 15 commissioned consultancy reports for government authorities and have given sworn expert evidence and written legal opinions for 26 judicial hearings in New Zealand and Australia.

Unlike the work of many convict criminologists (Newbold and Ross 2013), much of my own work is not dedicated to improving prison conditions or reducing prison populations, but to providing information about crime and prisons through my own experiences and personal knowledge, backed by research. Since my release, I have maintained contact with many of the men I have met and befriended in prison, many of whom have ongoing criminal involvement, and I continue to write to—and sometimes visit—

about 20 men and women serving time in New Zealand, Australia, and the USA. A number of these have completed—or are currently involved in—postgraduate university studies and have requested my advice while providing me with vital information about contemporary prison practices and events. In this way, I am able to maintain a degree of currency about what is actually happening in prisons and with some of the major changes that have taken place since my own incarceration in the 1970s. This has aided me in writing my two most recent books *The Problem of Prisons* (2007), and *Crime, Law and Justice in New Zealand* (2016); both works which look at the social, political, and economic factors that have influenced New Zealand's crime and justice landscape.

One of John Irwin's visions for convict criminology was that members should be active in assisting others to break away from criminal involvement in order to make successes of their lives. Convict criminology has been particularly effective in assisting prisoners with education and academic careers. However, not everyone is suited to university education, and some may need different types of help. In Christchurch, the Salisbury St Foundation (SSF)—a halfway house offering 24-hour semi-custodial care—assists selected long-term inmates towards release on parole. Operating since 1979, and fully funded by the Department of Corrections since 1996, SSF has proven remarkably effective in helping recidivists of serious violent offences and sex offences reintegrate to society. For the past 27 years, I have—as a part of my commitment to convict criminology ideals—served on the SSF Board of Trustees, providing governance and sponsorship to the organisation and its residents (Newbold and Hough 2009).

The Expansion of Convict Criminology in New Zealand

Since its inception, convict criminology has attempted to grow beyond North America in order to widen its compass. This is proving more difficult than it may seem. Although British convict criminology has established a *bona fide* group in the UK, expansion into New Zealand has been less successful. The principal reason for this is that the prison population—although high per capita and rising rapidly—is still quite small with only about 9400 inmates in total. One of my students, Glennis Dennehy, was formerly married to an associate of the outlaw motorcycle clubs Highway 61. The high levels of domestic violence and abuse she witnessed and experienced during these years

led her to write an MA thesis based on interviews with female gang associates. Her thesis was subsequently published in book form with the title *The Girls in the Gang* (Dennehy and Newbold 2001). Although the book was a best-seller, Dennehy did not pursue a PhD but accepted a job offer with the Ministry of Social Development where she puts her experience and skills to practical use.

Another New Zealander working in the tradition of convict criminology is Jarrod Gilbert. Gilbert (2013) has no criminal record himself, but, in 2002, he embarked on a PhD under my supervision and spent the next nine years in close association with some of New Zealand's major gangs—including the Mongrel Mob and the Hells Angels—interviewing and socialising regularly with gang leaders. He became intimately acquainted with gang history, ethos, and world view; and his PhD was finally accepted in 2011. This led to the publication of the bestselling and award-winning book *Patched*. Gilbert is now employed as a lecturer at Canterbury University, where he teaches a course on gangs. He provides media comments on gang history and culture, is in high demand as a public speaker, and often acknowledged as New Zealand's leading authority on gangs. Gilbert's academic career has only just begun, but he is establishing a sound research and publishing record and can be considered an emerging light in the field of ethnographic criminology.

Another recent PhD graduate with a criminal history is Rawiri Waretini-Karena, whose chapter on colonial legislation appears in this volume. Waretini-Karena was a state ward from the age of five and spent 12 years in social welfare and foster homes. As a young man, he was convicted of murder and served a life sentence in New Zealand prisons. After gaining parole, he attended the Waikato Institute of Technology (Wintec) where he received a Bachelor in Applied Social Sciences in Māori counselling and an MA in commercial music. In 2014, he was awarded a PhD in Indigenous Studies from Te Whare Wānanga o Awanuiārangi (Waretini-Karena, pers. comm.). He now teaches at Wintec in Hamilton. Although Waretini-Karena is not a trained criminologist, his work on Māori social issues and mental health borders on the criminological field.

One who is likely to follow the convict criminology path and who has already made contact with the convict criminology group is Dan Luff. Luff is currently an inmate at Auckland Prison where he is serving a life sentence with a 17-year non-parole period for fatally shooting a police officer and wounding another in 2002 when he was 17 years old. Luff earned a BA in 2015 through distance learning at Massey University and is currently achieving high grades in the papers component of a BA (Hons) in psychology. I mentor him informally, and we have co-authored a journal article together

(see Luff and Newbold 2014). Luff will not have his first parole board appearance until 2019 but hopes to eventually complete a PhD and embark on an academic career.

The Expansion of Convict Criminology in Australia

To date, convict criminology has not made significant inroads in Australia, although it has the potential to do so with a prison population of 36 000, which is four times that of New Zealand. While none has joined the convict criminology group, there is a small number of Australians who have served long sentences and then proceeded to graduate level.

One of these graduates is Arthur Bolkas, a 60-year-old former high school dux and head prefect, who went on a robbery spree in the late 1970s and eventually served half of an 11-year sentence before being paroled. Released in 1983, Bolkas studied for an MA in Criminology at the University of Melbourne and, having converted to Christianity in prison, has earned a fairly high profile in Australia as a consultant criminologist, motivational speaker and correctional worker.

The final Australian candidate with convict criminology potential is Kris Slade. Slade is a 36-year-old inmate at the South Queensland Correctional Centre, where he is serving a life sentence with a 15-year non-parole period for stabbing his girlfriend to death in 2000. Since entering prison Slade has taken a university education, having received a BS in psychology from the University of Southern Queensland and a master of forensic mental health from Griffith University. He is currently enrolled in a master of criminology and criminal justice. After he gains parole, he hopes to join the convict criminology group and to complete a PhD with a view to an academic career (Slade, pers. comm.).

Another Australian graduate is Anu Singh. In 1997, when she was a final-year law student at ANU, Singh killed her boyfriend with poison in Canberra. Convicted of manslaughter and sentenced to 10-year imprisonment, she was released after serving her 4-year non-parole period. While in prison, Singh completed her law degree. After release, she studied for an MA in Criminology at the University of Sydney, followed by a PhD. Her doctoral thesis on female offenders was self-published as an electronic book (Singh 2016). In January 2016, Singh contacted Steve Richards, primary coordinator of the convict criminology group, to introduce herself and express her hope of

contributing to the session "Women of Convict Criminology" at the 2016 ASC conference in New Orleans, via Skype. Accordingly, a presentation by Singh is scheduled for the 2016 ASC meetings. The next section illuminates why Singh has to resort to Skype instead of attending the conference in person.

Current Problems Facing the Expansion of Convict Criminology

There are serious practical barriers to the internationalisation of convict criminology and the development of criminological careers for ex-felons. The hub of criminology worldwide is the USA, in particular, the ASC, whose annual conference attracts as many as 4000 participants from 30 different countries. For any young academic contemplating career advancement in criminology, it is almost essential to attend one of the big international meetings, most of which are held in the USA. For years, the USA has had a blanket ban on entry for persons with criminal histories but in the past, this could be waived if a strong case was made. In 1989, based on my post-release record and letters of support from prominent New Zealand officials, I obtained such a waiver to attend the ASC conference in Reno. Subsequently, he was granted a 10-year multiple-entry visa and travelled to US conferences on 11 difference occasions.

However, by the time my last extended visa expired in 2009, things had radically changed. The growing terrorist threat, combined with the emerging refugee crisis, had made waivers far more difficult to get. Instead of renewing a visa by registered mail, as before, applicants now have to travel to the US consulate in Auckland to be interviewed and to present required documentation personally. Criminal record printouts supplied by the Ministry of Justice are no longer acceptable. The US consulate now demands that applicants produce authenticated copies of all court appearance records, no matter when they occurred. If a waiver is granted, it only lasts 12 months, after which the entire process has to be repeated. Often, delays occur in the processing of applications. For example, when I applied in June 2012 for permission to enter the USA to present at the ASC conference in Washington that November, the visa arrived as late as January 2013, which meant I had to cancel the trip. In February 2015, I again applied for permission to enter the USA for the November ASC conference. Eight months later, the US consulate approved the visa, that is, just three weeks before the conference

started, making it too late to offer a paper, or arrange appropriate accommodation. A further application was lodged in February 2016, which was approved in June, but unfortunately, this was after the deadline for 2016 ASC paper submissions.

The complex issues surrounding visas are bad news for current and future aspirants to post-imprisonment academic careers. Although I sustained my drug convictions over 40 years ago and I have had no criminal convictions since, planning for US conferences remains almost impossible. For a person with a serious felony record, the chances of being granted a waiver are slim. Singh's alternative solution of presenting her paper via Skype is a poor substitute for the social interaction and exchange of ideas that an in-person presentation allows.

Australia, too, is now pretty much out of bounds to anyone with more than a one-year prison sentence. This includes entering the country in transit. As I write, all non-Australian citizens who reside in Australia and have been sentenced to imprisonment for a year or more at sometime during their life are being arrested and deported. With the threat of international terrorism growing by the year, it is difficult to see any relaxation in the near future. Thus, the career opportunities of convict criminologists outside the USA have become severely impaired.

Conclusion

Since the convict criminology group developed in the USA in the late 1990s, it has grown in size and generated an extensive list of conference presentations, journal articles, book chapters, and books. The group has been highly active in assisting current and discharged prisoners into university-level study and into academic appointments post-release, as well as assisting those not contemplating scholarly careers. The group has also been active in making research- and experience-based submissions to government policy-making bodies, and its members have assisted various state-sponsored policy committees.

Although convict criminology has expanded successfully into Canada and the UK, its activities in Australia and New Zealand have hitherto been largely restricted to my own. However, there are a small number of former and current inmates and non-convicted allies who are doing the kind of work envisaged by convict criminology's founders.

The biggest challenge facing aspiring convict-academics today is the tougher rules surrounding international travel. Nations with sophisticated and

highly regarded criminology programmes, such as the USA and Australia, increasingly tighten non-immigrant visa restrictions and block entry of persons with criminal histories. This situation makes the international status of convict criminology uncertain and the current prospects of aspiring criminologists with felony records highly insecure.

References

Aresti, Andy. 2010. *Doing Time after Time: A Hermeneutic Phenomenological Understanding of Reformed Ex-Prisoners' Experiences of Self-Change and Identity Negotiation*. PhD diss.: University of London.

Aresti, Andy. 2012. Developing a Convict Criminology Group in the UK. *Journal of Prisoners on Prisons* 21: 148–165.

Aresti, Andy, and Sacha Darke. Forthcoming. Practicing Convict Criminology: Lessons Learned from British Academic Activism. *Critical Criminology*.

Belknap, Joan. 2015. The 2014 American Society of Criminology Presidential Address, Activist Criminology: Criminologists' Responsibility to Advocate for Social and Legal Justice. *Criminology* 53 (1): 1–22.

Bosworth, Mary. 2004. Book Review of Convict Criminology. *British Journal of Criminology* 44: 988–990.

Dennehy, Glennis, and Greg Newbold. 2001. *The Girls in the Gang*. Auckland: Reed.

Gilbert, Jarrod. 2013. *Patched: The History of Patched Gangs in New Zealand*. Auckland: Auckland University Press.

Jones, Richard, Stephen Richards, and Dan Murphy. 2009. The First Dime: A Decade of Convict Criminology. *The Prison Journal* 89: 151–171.

Lilly, Robert J. 2009. Book Review of Prison Inc: A Convict Exposes Life inside a Private Prison. *Criminal Justice Review* 34: 460–462.

Luff, Daniel, and Greg Newbold. 2014. Risk Assessment in New Zealand Prisons: Questioning Experiential Outcomes. *Journal of Prisoners on Prisons* 23 (1): 56–66.

Matza, David. 1969. *Becoming Deviant*. Englewood Cliffs, NJ: Prentice Hall.

McCleary, Richard. 1978. *Dangerous Men*. Beverly Hills, CA: Sage.

Newbold, Greg. 1978. *The Social Organization of Prisons*. Unpublished MA thesis in anthropology, University of Auckland.

Newbold, Greg. 1986. *The Maximum Security Prison in New Zealand*. Unpublished PhD thesis in sociology, University of Auckland.

Newbold, Greg. 2007. *The Problem of Prisons: Corrections Reform in New Zealand since 1840*. Wellington: Dunmore.

Newbold, Greg. 2016. *Crime, Law and Justice in New Zealand*. New York, NY: Routledge.

Newbold, Greg, and Donna Hough. 2009. *The Salisbury Street Foundation*. Christchurch: The Salisbury Street Foundation.
Newbold, Greg, and Jeffrey Ross. 2013. Convict Criminology at the Crossroads. *The Prison Journal* 93 (1): 3–10.
Newbold, Greg, Jeffrey Ross, and Stephen Richards. 2010. Convict Criminology. In *Encyclopedia of Criminological Theory*, eds. Francis Cullen, and Pamela Wilcox, 207–212. Thousand Oaks, CA: Sage.
Newbold, Greg, Jeffrey Ross, Richard Jones, Stephen Richards, and Mike Lenza. 2014. Prison Research from the Inside: The Role of Convict Autoethnography. *Qualitative Inquiry* 20 (4): 439–448.
Richards, Stephen, and Mike Lenza. 2012. Editors' Introduction: The First Nickel and Dime of Convict Criminology. *The Journal of Prisoners on Prisons* 21: 4–22.
Ross, Jeffrey, Sacha Darke, Andreas Aresti, Greg Newbold, and Rod Earle. 2014. Developing Convict Criminology beyond North America. *International Criminal Justice Review* 24 (2): 121–133.
Ross, Jeffrey, and Stephen Richards (eds.). 2003. *Convict Criminology*. Belmont, CA: Thomson/Wadsworth.
Ross, Jeffrey, Stephen Richards, Greg Newbold, Richard Jones, Michael Lenza, Daniel Murphy, Richard Hogan, and David Curry. 2011. Knocking on the Ivory Tower's Door: The Experience of Ex-Convicts Applying for Tenure-Track University Positions. *Journal of Criminal Justice Education* 22 (2): 267–285.
Singh, Anu. 2016. *Offending Women*. ePub. http://www.lulu.com/shop/anu-singh/offending-women/ebook/product-22214372.html.
Tannenbaum, Frank. 1938. *Crime and the Community*. Boston, MA: Ginn and Company.

Author Biography

Greg Newbold is a Professor in sociology at the University of Canterbury, NZ. He is a former maximum security prison inmate, who served 7.5 years for selling heroin in the 1970s. He completed his MA in prison and a PhD in 1987 post-release. Dr Newbold has published widely with his most recent book being *Crime, Law and Justice in New Zealand* (Routledge 2016).

41

Green Criminology

Rob White and Sarah Wright Monod

The primary lens for analysis of environmental crime is green criminology, a relatively new area of substantial and theoretical endeavour within the field of criminology (Hall 2015; Lynch and Stretesky 2014; South and Brisman 2013; White and Heckenberg 2014). Green criminology refers to the study of *environmental harms,* which may incorporate wider definitions of crime than are provided by strictly legal definitions; *environmental laws* including enforcement, prosecution, and sentencing practices; and *environmental regulation,* that is, systems of criminal, civil, and administrative law designed to manage, protect, and preserve specified environments and species, and to manage the negative consequences of particular industrial processes (White 2008a, 2011).

This chapter begins by providing a conceptual background to the study of environmental harm, which involves a brief summary of conventional, ecological, and green criminological approaches to environmental harm. The second section provides examples of environmental crime occurring in Australia and in New Zealand. The third and final section considers the criminological concept of *ecocide* and how it relates to policies to do with abatement of climate change.

R. White (✉)
The University of Tasmania, Hobart, Tasmania, Australia
e-mail: R.D.White@utas.edu.au

S.W. Monod
Victoria University of Wellington, Wellington, New Zealand
e-mail: sarah.wright@vuw.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_41

Conceptualising Environmental Harm

A standard approach to the study of crime considers such variables as *offences*, meaning what crimes or harms are inflicted, and how they are inflicted; *offenders,* asking who commits crime and why; *victims,* examining who or what suffers as a result of an offence, and how; and *responses* such as policing, penalties, and prevention. However, the study of environmental crime is complicated by different conceptions of harm, which can give rise to quite different understandings and interpretations of the nature and dynamics of the crime. For instance, environmental harm can be conceptualised in relation to legal, ecological, and eco-justice criteria.

Conventional Criminological Conceptions

Over the past few decades, various legal and law enforcement responses have emerged to deal with issues such as pollution and the illegal disposal of toxic waste. Additionally, national-level environmental protection agencies have developed to oversee individual and corporate engagements with the natural environment. Recent years have also seen a major growth in international agreements relating to environmental issues such as the Convention for Prevention of Maritime Pollution by Dumping Wastes and Other Matters, the Convention on International Trade in Endangered Species of Wildlife Fauna and Flora (CITES), and the Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal (Forni 2010).

Conventional criminological conceptions of environmental harm tend to be based upon legal conceptions of harm as informed by such laws, rules, and international conventions. The key issue is one of *legality* and the division of activities into legal and illegal categories. From this perspective, environmental crimes include three key offences. Firstly, the *illegal taking of flora and fauna*, such as illegal, unregulated, and unreported fishing, illegal logging and trade in timber, and illegal trade in wildlife. Secondly, *pollution offences,* which relates to issues such as illegal dumping, through to air, water, and land pollution associated with industry. Lastly, the *transportation of banned substances* which refers to the illegal transport of radioactive materials and the illegal transfer of hazardous waste.

What makes these activities problematic is that they are breaking the law. Many of these kinds of offences are also *transnational.* This is reflected in a number of international agreements that have been developed to respond to and prevent such harms.

Ecological Conceptions of Harm

A different kind of approach to environmental harm has *ecology* as its focus. The UN Environment Programme provides a classic illustration of this approach (UN Environmental Programme 2007). In this framework, harm is conceived in terms of ecological well-being and holistic understandings of interrelationships between species and environments. The key issues are ecological sustainability and the division of social practices into benign and destructive.

In succinct terms, an ecological perspective, as demonstrated by the UN Environment Programme, sees the world in terms of three areas of harm, risk, or threat: firstly, *the problem of climate change* where the concern is to investigate activities that contribute to global warming such as the replacement of forests with cropland; secondly, *the problem of biodiversity* where the concern is to stem the tide of species extinction and the overall reduction in species through application of certain forms of human production including use of genetically modified organisms; and, thirdly, *the problem of waste and pollution* where the concern is to stop activities that defile the environment leading to such phenomena as the diminishment of clean water.

As with the earlier conventional criminological approach, ecological understandings recognise that harms to the environment spill over national borders. The position taken is that, regardless of legal status, action must be taken now to prevent harms associated with global warming, threats to biodiversity, and further pollution and waste generation. The imperative is ecological, not legal, and the goal is human survival.

Green Criminological Conceptions

The advent of green criminology was signalled by work undertaken in the 1990s that highlighted environmental issues as being of significance to criminology (South and Brisman 2013; White and Heckenberg 2014). A growing band of criminologists have formed an increasingly international network of researchers, scholars, and activists whose brief is to think critically about environmentally related issues.

A green criminological perspective argues that environmental harm is best seen in terms of *justice*, based upon notions of human, ecological, and animal rights, and egalitarian concerns. The key issue is weighing up different kinds of harm and violation of rights within a broad eco-justice framework, and stretching the boundaries of conventional criminology to include other kinds of harm than those already deemed illegal.

Within green criminology, three broad approaches to justice have been identified, each with its specific conceptions of what is harmful (White 2008a, 2013). The first approach is *environment rights and environmental justice* in which environmental rights are seen as an extension of human or social rights so as to enhance the quality of human life now and into the future. *The victim is humans.* The second approach is *ecological citizenship and ecological justice* in which ecological citizenship acknowledges that human beings are merely one component of complex ecosystems that should be preserved for their own sake via the notion of the rights of the environment. *The victim is specific ecosystems*. The third approach is *animal rights and species justice* in which environmental harm is constructed in relation to the place of nonhuman animals within environments and with their intrinsic right to not suffer abuse, whether this be one-on-one harm, institutionalised harm, or harm arising from human actions that affect climates and environments on a global scale and that contributes to the degradation of habitat to the extent that threatens biodiversity loss. *The victim is nonhuman animals and plants*. Acknowledging victim status is crucial to understanding the ways in which environmental harm affects both the human and nonhuman realm as well as to assessing insecurity and potential risks.

There are important areas of overlap and synergy between these conceptual approaches to environmental issues. Activity such as illegal fishing, for example, is of concern to the conventional criminologist as it would be to the marine scientist and the green criminologist. But the latter two professionals would also be concerned with harms associated with fish farms such as the spread of infections and the use of carcinogenic substances to ward off fungi among penned fish populations. Indeed, the distinction between sustainable and unsustainable is increasingly important in terms of how harm is being framed and conceived. Yet, the notions of legal/illegal and sustainable/unsustainable need to be interrogated themselves from the point of view of eco-justice. This takes us into the realm of eco-philosophy where the value of living and non-living entities may be considered (White 2013).

Though a relatively new perspective, green criminology is already expanding its ambit. One emerging subfield is that of a green *cultural* criminology (Brisman and South 2014) which is primarily concerned with harms to the environment but adopts its analytical lens from cultural criminology (Ferrell et al. 2008). Its aims are to unpack the ways by which environmental crime, harm, and disaster are constructed and represented in the news media and in popular culture forms; to place more attention on patterns of consumption that are both products of and productive of the notion of nature as a commodity; and to be concerned with contests over space and with how acts of transgression and

resistance on the streets and in day-to-day living oppose environmental harm (Brisman and South 2014).

These are quite divergent aims, but they share a common focus, that is, to expose and deconstruct how we—the public at large—engage with environmental harm; how we come to know about it; how we are caught up in it; and how we resist it in everyday life. It is a fascinating lens by which to do criminological work. This lens not only needs more attention by researchers but also the creative use of critical frameworks that lend themselves specifically to understanding practices in the domain of "the cultural". Thus far, researchers are finding value in concepts such as moral panic (Brisman and South 2014). But considerable insights could be drawn from media studies and policy studies.[1] Green criminology could also benefit from emerging perspectives situated under the criminological umbrella such as visual criminology and narrative criminology.

Environmental Crime in Australia and New Zealand

In both Australia and New Zealand, environmental crimes are activities that are deemed to be *illegal* since they are defined as such in law, and are aimed at protecting specific environments, human health and well-being, and particular species. According to the Australian Crime Commission (ACC) (2016), the most common environmental crimes fall into four categories. These are *biodiversity crime* such as illegal trade in endangered species of flora and fauna; *natural resource-related crime* such as illegal fishing or logging; *illegal movement and disposal of hazardous wastes* such as illegal movement of nuclear waste or dumping of oil; and *banned substances crime* such as illegal trade in ozone-depleting substances.

Specific examples of environmental crime are provided below. These range from illegal wildlife trafficking through to transportation of banned goods. The examples presented are from the New Zealand context, but similar types of crimes are committed in Australia.

Gecko Thefts

In 2011, two German men were sentenced to four-and-a-half months in jail after admitting to travelling to New Zealand to steal rare native geckos (Department of Conservation 2011). Their conviction came after an

investigation involving the Department of Conservation, NZ Police, NZ Customs Service, and the Wildlife Enforcement Group. New Zealand geckos are a collectable item attracting high prices on the European black market.

Illegal Sawmilling

There have been several prosecutions relating to unlawful sawmilling in New Zealand. In 2012, a Whakatane man was ordered to pay NZD 30,000 for illegally milling 17 m^3 of Rimu and Matai trees (MPI 2012a). In 2013, a Raetihi saw miller was fined NZD 15,000 and ordered to pay NZD 6000 in investigation costs for illegal mining and transporting native Tawa trees (MPI 2013). Any harvesting and milling of indigenous timber requires adherence to a Sustainable Forest Management Plan which is overseen by the Ministry for Primary Industries (MPI).

Over-Fishing Practices

Recently, practices in the fishing industry have come under the spotlight. A report, released in May 2016, claimed that the total amount of fish caught in New Zealand waters between 1950 and 2010 was 2.7 times more than official data indicated it was, meaning an estimated 24.7 million tonnes had been unaccounted for (Simmons et al. 2016). It was argued that the discrepancy stemmed from unreported catches and from fish discarded at sea, by commercial fishing practices. It was also argued that there was a striking absence of effective monitoring of the industry (Simmons et al. 2016).

Oil Dumping

In August 2013, the New Zealand marine authority Maritime New Zealand (MNZ) charged fishing company Sanford Ltd. with the illegal discharge of oil in New Zealand's Exclusive Economic Zone from its charter vessel *Pacinui*, for failing to report the discharge and for failing to notify a pollution incident (MNZ 2013). The charges against Sanford were withdrawn in November 2013 after an agreement was reached between MNZ, Sanford, and the *Pacinui*'s owners, Juahm Industries Company Ltd. Juahm pleaded guilty to two of the three charges and was fined USD 37,000. Incidentally, Sanford was convicted in a US federal court in January 2013 of dumping oil in waters

off American Samoa and fined USD 2.3 million (National Business Review 2013).

Biosecurity Breaches

New Zealand's geographical isolation, as well as its economic dependence on its agricultural sector and the tourist dollar, has given rise to some of the most stringent biosecurity laws in the world (Yeh et al. 2013). In 2015, convictions for a range of breaches of the *Biosecurity Act 1996* were secured. These include the case of a "hobby chicken farmer" who was fined NZD 45,000 for purchasing live eggs via eBay from vendors in the UK. The eggs had been sent to a friend of the farmer in the UK where they were repackaged and falsely declared as chocolate eggs on a UK customs form (MPI 2015a). A North Canterbury man was sentenced to 180-hour community work for importing corn seeds from the USA concealed in hand-sewn pincushions (MPI 2015c). Further, a Christchurch business specialising in the biosecurity clearance of sea containers was fined NZD 16,750 for failing to have a container of imported goods opened and checked by an accredited person (MPI 2015b).

Overlap with Crime Types

Organisations such as the United Nations Office on Drugs and Crime, the European Union, and INTERPOL have all signalled the cross-connections between environmental crime and other crimes such as corruption, money laundering, human trafficking, and murder (INTERPOL 2013, 2015; UN Office on Drugs and Crime 2013). Criminologists have also pointed out the linkages between illicit markets involving trade in wildlife and drugs (South and Wyatt 2011), and a recent Europol report highlighted that those involved in high-level drug trafficking in Brazil, Colombia, and Mexico have established a notable role in the illegal supply of endangered species (Europol 2011). Wildlife and pollution crimes pay well, and this has not been lost on organised criminal networks of many different persuasions. There are also links between political terrorist groups and engagement in environmental crime (Boister and Currie 2014).

The phenomenon of convergence crime or cross-over crime is also relevant to Australia and New Zealand. Australia is primarily an export country when it comes to illegal wildlife trade, with reptiles, birds, and native plants at the top of the list. New Zealand is the primary destination country for the Australian trade (Alacs and Georges 2008; Wyatt 2013). Meanwhile, New

Zealand, which has its own unique endemic species, imports illegal wildlife at a rate that is over 10 times that of Australia although it exports considerably less (Wyatt 2013). Research specifically on environmental crimes, such as wildlife poaching and trafficking, has pointed to a great variation in who participates in this criminal activity, and how they do so (Ayling 2013; Gibbs et al. 2015; Warchol et al. 2003). Interestingly, traditional medicines are also regularly smuggled into Australia and New Zealand, presumably from China and Hong Kong (Wyatt 2013). It has been noted that the "use of wildlife products is deeply rooted in Asian cultural heritage" and that the "ethnic communities of Chinese, Thai, Vietnamese and other communities from Asian countries in the USA, Europe, Africa, and Central America have globalised the consumption of protected wildlife products, and also the sourcing of wildlife products for Asian markets" (Akella and Allan 2014, 2). This is relevant to Australia and New Zealand, given that these countries likewise have diaspora populations from China and other parts of Asia, which could account for the demand for similar illegal products (Wyatt 2013).

At the country level, the securitisation of natural resources such as oil and gas may involve the government itself engaging in illegal activity. This happened in regard to the East Timor Gap Treaty and disputes over the border between newly independent Timor-Leste and Australia. Australian officials installed, under the guise of an aid project to help renovate the Palace of Government in the capital city, listening devices that provided information to the Australian government that gave them decided advantage in the negotiations (Cannane et al. 2015). Both *moral corruption*, which involves the undermining of trust and respect for established governmental processes and institutional practices, and *direct corruption*, which involves direct breaches of criminal laws, are therefore of considerable interest to green criminology, especially when they are associated with escalated levels of environmental harm or perpetration of social and ecological injustice.

Law Enforcement

At the mundane level of environmental law enforcement, the kinds of crimes gaining regulatory attention include air, water and land pollution offences; illegal land clearance; illegal dumping and burning of industrial waste; and managing and monitoring of contaminated sites. These kinds of offences and activities are the main focus of agencies such as environmental protection authorities and are subject to a wide range of international, federal, and state laws (Bricknell 2010). Most agencies adopt the narrow conventional

criminological perspective on environmental harm as does the ACC (2016) and many informed commentators (see, for example, Bricknell 2010; Pink and White 2016). However, from a green criminology perspective, consideration also has to be given to actions and omissions that cause environmental harm regardless of legality. Certainly, in the Australian context, a focus on natural resource extraction industries such as mining, logging, fishing, oil, gas, and agribusiness reveals instances of relatively unrestrained exploitation of nature, often with the collusion of state authorities. The latter can take the form of light-handed regulation, for example, when forest industries are regulated—essentially by themselves—in places like Tasmania (Gale 2011; Hollander 2006), or by turning a proverbial blind eye as is claimed to have occurred in the case of tonnes of unreported and discarded fish in New Zealand (Simmons et al. 2016). It can involve corruption of government ministers in allocating mining leases, and government resistance to court decisions that find mine extensions do not satisfy ecological and other criteria; both of which have happened in New South Wales (ABC News 2015a, b).

Legal Environmental Harms

In the New Zealand context, it is the impact of farming practices—particularly intensified farming practices—that is a key issue insofar as the economy is heavily dependent on natural resource-based exports (White 2008b). Intensified farming refers to an increase in the outputs of farming per unit of an area by increasing inputs such as the use of fertiliser, feed, and water in addition to an increase in the livestock. Foote et al. (2015) suggest that intensified farming has resulted from a substantial increase in global dairy prices over the last few decades. Dairy is New Zealand's biggest export product, and dairy products now fetch 460 per cent more profit than they did in 1990. Farmers have capitalised upon this trend and substantially increased the number of cows they have per unit of land (MPI 2012b).

A number of harms to the environment result from intensified farming. Foote, Joy, and Death (2015) identify five of these: freshwater contamination resulting from farm run-off, which means excess nitrogen and faecal matter enter the waterways; a degradation in soil quality resulting from the use of synthetic fertilisers; an increase in soil compaction caused by high stock numbers and year-round grazing; greenhouse gas emissions by way of methane released in cow burps; and a negative slant on New Zealand's clean-green image which stems from these effects should they attract public attention. Indeed, the term "dirty dairy", which is sometimes used to describe

the industry, is at conspicuous odds with this image (Holland 2014). The New Zealand government has attempted to deal with a few of these issues but has routinely given into the demands of the powerful farming sector. In 2003, for example, the government attempted to introduce a levy for farmers which would provide funds for research into understanding the impact of agriculture on carbon emissions. The so-called fart tax was furiously opposed by farming communities who claimed that they were being unfairly targeted and that it should be the taxpayer who funded the research (BBC 2003; Haggerty and Campbell 2012). The levy was never implemented.

Intensified farming practices also result in other justice-related issues, including the destruction of habitats due to the transformation of land for pasture (White 2008b); the routine removal of bobby calves[2] from their mothers (Langford 2015); the use of coal in milk processing plants (Holland 2014); and the importing of palm kernel expeller (PKE)—a product left over in the palm oil production process—as feed (Foote et al. 2015). In fact, New Zealand is the largest global importer of PKE (Foote et al. 2015). Around 2.4 million tonnes of PKE was imported in 2015 (Indexmundi 2016).

The Crime of Ecocide

Issues of national interest and national security are important at the country level for nations such as Australia and New Zealand, and particularly in regard to biosecurity matters. The importation of non-endemic species of plants and animals poses threats to existing species, as do events such as oil spills and the illegal taking of fish, logs, and endangered species. For green criminology, what happens at the global level is also highly relevant to planetary well-being.

For instance, climate change is the most important international issue facing humanity today in the long term. Global warming is transforming the biophysical world in ways that are rapidly reshaping social and ecological futures (Stocker et al. 2013). The impacts of global warming have been associated with the advent of varying types of natural disaster, which are projected to increase in intensity and frequency in the foreseeable future. These include such phenomena as floods, cyclones, and extreme heat spells.

The destruction of the environment in ways that adversely affect humans, ecosystems, and nonhuman species can be conceptualised criminologically as a specific type of crime—ecocide. Ecocide describes an attempt to criminalise human activities that destroy and diminish the well-being and health of ecosystems and species within these, including humans (Higgins 2012). A key feature of this crime is that it occurs in the context of foreknowledge and intent.

For instance, ecocide arising from global warming is, while marked by uncertainty in regard to specific rates and types of ecological change, founded upon scientific knowledge that profound change is unavoidable unless carbon emissions as the key source of global warming is not radically reduced immediately.

Placed within the larger global context of climate change, the scale and impact of government-backed industrial projects fit neatly with the concept of ecocide. For example, in 2014, the Australian Environment Minister approved the Carmichael (Queensland) coal mining project—Australia's largest ever—that was supposedly subject to the absolute strictest of conditions. Left out of these conditions was any mention of the mine's impact on atmospheric carbon levels. One commentator pointed out: "When Carmichael coal is exported to India and burned, it will release 100 million tonnes of carbon dioxide each year for the mine's lifetime of more than half a century. This is about one-fifth of Australia's annual total from all sources, way beyond any single enterprise in our history" (Boyer 2014, 13). Meanwhile, the former Prime Minister of Australia, Tony Abbott, took an opportunity to extol the virtues of coal in October 2014: "Coal is good for humanity, coal is good for prosperity, coal is an essential part of our economic future, here in Australia, and right around the world" (Abbott as quoted in Massola et al. 2014). This statement was made literally just a few weeks before the Intergovernmental Panel on Climate Change released its 2014 report that stated: "Total anthropogenic greenhouse gas emissions have continued to increase over 1970 to 2010 with larger absolute increases between 2000 and 2010, despite a growing number of climate change mitigation policies … *Increased use of coal* has *reversed* the long-standing trend of gradual decarbonization (i.e. reducing the carbon intensity of energy) of the world's energy supply" (Pachauri and Meyer 2014, 5, emphasis added). Political judgement, in this case, is thus decidedly skewed in favour of dirty industry, and away from the science that tells us coal is, in fact, bad for humanity.

Establishment of the crime of ecocide is premised upon the idea of earth stewardship. Paradigms of trusteeship and stewardship are very different to those based upon private property and individualised conceptions of ownership. As Walters (2011, 266) points out: "Ownership implies that you can use land but don't have responsibility to others to care for it." Conversely, the earth can be seen to be "held in trust" with humans responsible for providing the requisite stewardship. Threats to nature's rights can be conceptualised, in essence, as a crime of ecocide, and thus be open to sanction.

Climate change will be associated with varying types and levels of criminality, such as water crimes, and phenomena such as people smuggling linked to climate-induced migration. It may well be that security (for a few people) will be built upon a platform of *state-level wrongdoing* such as appropriation of

other people's lands and resources; *corporate wrongdoing* such as continued high-level emissions of carbon; and *organised criminal wrongdoing* such as illegal trafficking of species, people, and arms. Study of environmental crime and the plundering of the natural environment cannot be extricated from wider social, economic, and political processes and structures (White 2014). Accordingly, it requires critical sociological analysis of the present era as much as the continued development of a distinctive green criminology.

Conclusion

This chapter has provided a brief overview of green criminology as a theoretical perspective, and of environmental crime as a specific type of crime. Green criminology provides a distinctive lens through which to explore and explain environmental harm, one that includes reference to activities that transgress the rights and well-being of humans, specific ecosystems, and animal and plant species regardless of legality. In the face of the social and ecological consequences flowing from global warming, green criminology also points to the horizon issues of climate change that are rapidly approaching and that urgently demand action now.

Notes

1. See, for example, Buettner's (2010) analysis of the impact of media logics on how the issue of climate change is communicated, and Jones, Shanahan, and McBeth's (2014) outline for investigating policy narratives.
2. Dairy cows need to give birth at least twice a year in order to produce milk. The calves they give birth to are deemed to be surplus to dairy farmers as they are not required to produce milk. These bobby calves are removed from their mothers within 12 h of birth and later destroyed (RNZPA 2016).

References

ABC News. 2015a. ICAC: Former NSW Ministers Eddie Obeid and Ian Macdonald to Be Prosecuted after Corruption Findings. *ABC News*, November 20.

ABC News. 2015b. Bulga Residents Say Fight is Not over Despite Approval of Mine Expansion. *ABC News*, November 27.

Akella, Anita, and Allan Crawford. 2014. *Dismantling Wildlife Crime: Executive Summary*. Washington, DC: World Wildlife Fund.

Alacs, Erika, and Arthur Georges. 2008. Wildlife Across Our Borders: A Review of the Illegal Trade in Australia. *Australian Journal of Forensic Sciences* 40 (2): 147–160.
Australian Crime Commission. 2016. Environmental. https://www.acic.gov.au/about-crime/crime-types/environmental . Accessed 29 Sep.
Ayling, Julie. 2013. What Sustains Wildlife Crime? Rhino Horn Trading and the Resilience of Criminal Networks. *Journal of International Wildlife Law and Policy* 16 (1): 57–80.
BBC News. 2003. NZ Flatulence Tax Outrages Farmers. *BBC News*, June 20.
Boister, Neil, and Robert Currie (eds.). 2014. *Routledge Handbook of Transnational Criminal Law*. London: Routledge.
Boyer, Paul. 2014. Keeping Up Appearances is Really a Complicated Business. *The Mercury*, August 12.
Bricknell, Samantha. 2010. *Environmental Crime in Australia*. Canberra: AIC.
Brisman, Avi, and Nigel South. 2014. *Green Cultural Criminology: Constructions of Environmental Harm, Consumerism and Resistance to Ecocide*. London: Routledge.
Buettner, Angi. 2010. Climate Change in the Media: Climate Denial, Ian Pilmer and the Staging of Public Debate. *New Zealand Journal of Media Studies* 12 (1): 79–97.
Cannane, Steve, Sashka Koloff, and Brigid Andersen. 2015. 'Matter of Death and Life': Espionage in East Timor and Australia's Diplomatic Bungle. *ABC News*, November 25.
Department of Conservation. 2011. Germans Plead Guilty to Hunting Rare Geckos. *Department of Conservation Media Releases*, May 6.
Europol. 2011. *Octa: EU Organised Crime Threat Assessment*. The Hague: Europol.
Ferrell, Jeff, Keith Hayward, and Jock Young. 2008. *Cultural Criminology: An Invitation*. Los Angeles, CA: Sage.
Foote, Kyleisha J., Michael K. Joy, and Russell G. Death. 2015. New Zealand Dairy Farming: Milking Our Environment for All Its Worth. *Environmental Management* 56: 709–720.
Forni, Olmo. 2010. Mapping Environmental Crimes. *Freedom from Fear Magazine* 6: 34–37.
Gale, Fred (ed.). 2011. *Pulp Friction in Tasmania: A Review of the Environmental Assessment of Gunns' Proposed Pulp Mill*. Launceston: Pencil Pine Press.
Gibbs, Carole, Edmund McGarrell, and Brandon Sullivan. 2015. Intelligence-Led Policing and Transnational Environmental Crime: A Process Evaluation. *European Journal of Criminology* 12 (2): 242–259.
Haggerty, Julia, and Hugh Campbell. 2012. Farming and the Environment: Biodiversity and Greenhouse Gas Changes. *Te Ara – The Encyclopaedia of New Zealand,* http://www.teara.govt.nz/en/cartoon/17915/the-fart-tax.
Hall, Matthew. 2015. *Exploring Green Crime: Introducing the Legal, Social & Criminological Contexts of Environmental Harm*. London: Palgrave.
Higgins, Polly. 2012. *Earth is Our Business: Changing the Rules of the Game*. London: Shepheard-Walwyn.

Holland, Phil. 2014. The Dirty Dairying Campaign and the Clean Streams Accord. *Lincoln Planning Review* 6 (1/2): 63–69.
Hollander, Robyn. 2006. Light-Handed Regulation: The Case of the Tasmanian Forest Practices System. *Australasian Journal of Environmental Management* 13 (1): 17–27.
Indexmundi. 2016. *New Zealand Palm Kernel Meal Imports by Year*. http://www.indexmundi.com/agriculture/?country=nz&commodity=palm-kernel-meal&graph=imports. Accessed 31 May.
INTERPOL. 2013. *INTERPOL Meeting Aims to Strengthen Cooperation on Environmental Crime Activities*. Lyon: INTERPOL.
INTERPOL. 2015. *Environmental Crime and Its Convergence with Other Serious Crimes*. Lyon: INTERPOL.
Jones, Michael, Elizabeth A. Shanahan, and Mark K. McBeth. 2014. *The Science of Stories: Applications of the Narrative Policy Framework in Public Policy Analysis*. New York: Palgrave Macmillan.
Langford, Amelia. 2015. Is There a 'Dark Side' to NZ Dairy? *Radio New Zealand,* December 11.
Lynch, Michael, and Paul Stretesky. 2014. *Exploring Green Criminology: Toward a Green Criminological Revolution*. Surrey: Ashgate.
Massola, James, Peter Ker, and Lisa Cox. 2014. Coal is 'Good for Humanity', Says Tony Abbott at Mine Opening. *Sydney Morning Herald*, October 13.
MNZ. 2013. Charges Laid over Discharge of Oil into the Sea. *MNZ Media Releases*, August 23.
MPI. 2012a. Significant Fine for Illegal Milling of Native Timber. *MPI Media Releases*, December 11.
MPI. 2012b. *Pastoral Inputs Trends in New Zealand: A Snapshot*. Wellington: MPI.
MPI. 2013. Sawmiller Fined for Illegal Milling. *MPI Media Releases,* August 22.
MPI. 2015a. EBay Egg Importer Fined $45,000. *MPI Media Releases*, June 3.
MPI. 2015b. Big Fine for Biosecurity Breach. *MPI Media Releases,* August 3.
MPI. 2015c. Seed Smuggler Cops 180 Hours Community Work. *MPI Media Releases*, September 18.
National Business Review. 2013. Sanford Fined $2.3 m for Dumping Oil Waste at Sea. *National Business Review*, January 12.
Pachauri, Rajendra K., and Leo Meyer (eds.). 2014. *Climate Change 2014 Synthesis Report, Approved Summary for Policymakers*. Geneva: Intergovernmental Panel on Climate Change.
Pink, Grant, and Rob White (eds.). 2016. *Environmental Crime and Collaborative State Intervention*. Basingstoke: Palgrave Macmillan.
RNZPA. 2016. What Happens to Bobby Calves? *RSPCA Australia Knowledgebase*, February 16.
Simmons, Glenn, Graeme Bremner, Hugh Whittaker, Philip Clarke, Lydia Teh, Krystn Zylich, Dirk Zeller, Daniel Pauly, Christina Stringer, Barry Torkington,

and Nigel Haworth. 2016. *Reconstruction of Marine Fisheries Catches for New Zealand (1950–2010)*. Vancouver: The University of British Columbia.
South, Nigel, and Avi Brisman (eds.). 2013. *The Routledge International Handbook of Green Criminology*. London: Routledge.
South, Nigel, and Tanya Wyatt. 2011. Comparing Illicit Trades in Wildlife and Drugs: An Exploratory Study. *Deviant Behavior* 32: 538–561.
Stocker, Thomas F., Dahe Quin, Gian-Kasper Platner, Melinda M.B. Tignor, Simon K. Allen, Judith Boschung, Yu. Alexander Nauels, Vincent Bex Xia, and Pauline M. Midgley. 2013. *Working Group I Contribution to the IPCC Fifth Assessment Report Climate Change 2013: The Physical Science Basis, Summary for Policymakers*. Geneva: Intergovernmental Panel on Climate Change.
UN Environment Programme. 2007. *Global Environment Outlook*. New York, NY: UN Environment Programme.
UN Office on Drugs and Crime. 2013. *Transnational Organized Crime in East Asia and the Pacific: A Threat Assessment*. Vienna: UN Office on Drugs and Crime.
Walters, Reece. 2011. Enlarging Our Vision of Rights: The Most Significant Human Rights Event in Recent Times? *Alternative Law Journal* 36 (4): 263–268.
Warchol, Greg, Linda Zupan, and Willie Clack. 2003. Transnational Criminality: An Analysis of the Illegal Wildlife Market in Southern Africa. *International Criminal Justice Review* 13: 1–27.
White, Rob. 2008a. *Crimes against Nature: Environmental Criminology and Ecological Justice*. Cullompton: Willan Publishing.
White, Rob. 2008b. The Transnational Context of Local Environmental Harm. *New Zealand Sociology* 23 (7): 119–134.
White, Rob. 2011. *Transnational Environmental Crime: Toward an Eco-Global Criminology*. London: Routledge.
White, Rob. 2013. *Environmental Harm: An Eco-Justice Perspective*. Bristol: Policy Press.
White, Rob. 2014. Environmental Insecurity and Fortress Mentality. *International Affairs* 90 (4): 835–851.
White, Rob, and Diane Heckenberg. 2014. *Green Criminology: An Introduction to the Study of Environmental Harm*. London: Routledge.
Wyatt, Tanya. 2013. *A Comparative Analysis of Wildlife Trafficking in Australia, New Zealand, and the United Kingdom*. Canberra: ANU.
Yeh, Jung-Yong, Ji-Hye Lee, Jee-Yong Park, Yun-Sang Cho, and In-Soo Cho. 2013. Countering the Livestock-Targeted Bioterrorism Threat and Responding with an Animal Health Safeguarding System. *Transboundary and Emerging Diseases* 60: 289–297.

Author Biographies

Rob White is Professor of Criminology at the University of Tasmania. He has published extensively in the areas of juvenile justice and green criminology. His most recent co-edited book is entitled Environmental Crime and Social Conflict (Routledge 2015).

Dr. Sarah Wright Monod is a Lecturer at the Institute of Criminology at Victoria University of Wellington. She conducts research on crime and the media, moral panics, youth offending, and harms against the environment.

42

Narrative Criminology

Mark Halsey

In the original issue of the *Narrative Study of Lives*, the editors pose the following questions: "What is a good story? … How do we derive concepts from stories and then use these concepts to understand people? What—precisely—would have to be added to transform story material from the journalistic or literary to the academic and theoretically enriching?" (Josselson and Lieblich 1993, xi). And, in work leading to their collection, Josselson and Lieblich (1993, ix) arrived at one central conclusion: namely, that "Listening to people talk in their own terms about what had been significant in their lives seemed … far more valuable than studying preconceived psychometric scales or contrived experiments".

The idea that people's stories matter, and that each story contains a narrative structure that creates a particular impression of "the self" and the world, is occupying an increasingly important place in criminological work. Maruna (1997, 61) notes the "long tradition of using life-history data" in criminology, citing the highly influential research of Shaw (1929). More recently, the detailed life stories told by such authors as Mailer (1979) regarding double murderer Gary Gilmore and, ultimately, his death by firing squad in Utah, and by scholars such as Bourgois (2012) in his ethnography of crack cocaine dealers in East Harlem, and Contreras (2012) in his immersion in the world of guns and drug-running in the Bronx, all attest to the undeniable value of placing offenders' words prominently on the page. In Australia, recourse to

M. Halsey (✉)
Flinders University, Adelaide, Australia
e-mail: mark.halsey@flinders.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_42

offender narratives has gained good momentum (Dennison et al. 2014; Fitzgerald and Cherney 2016; Hall and Rossmanith 2016; Halsey and Deegan 2015). But even with the considerable weight and rigour of recent narrative-based criminological research (Gadd and Farrall 2004; King 2013; Maruna 2000; Presser 2009; Sandberg 2010; Stevens 2012; Ugelvik 2012; Vaughan 2007), there remains no shortage of commentators who oppose or are highly sceptical of offender-based accounts of criminal behaviour.

My aim in this chapter is, firstly, to comment briefly on the key facets of narrative criminology and, secondly, to outline a few modestly pitched strategies for encouraging "good story telling" within custodial settings.

Narrative and Discourse

Copes and Hochstetler (2010, 51) identify and provide a convincing rebuttal of the five most common criticisms associated with using offender narratives, especially those obtained in prison settings. These criticisms encompass the oversampling and "recruit[ment] of unsuccessful offenders, the ulterior motives of inmates, [the] difficulty in establishing rapport, [ongoing] impression management by inmates, and difficulty in recall". In my research with juvenile and adult prisoners (see further below), each of these issues has impressed in particular ways on the "quality" of interviewing and stories told. I have, for example, encountered the occasional non-responsive interviewee; the prisoner who agreed to be interviewed but who, in the interview proper, evinced a body language and tone that suggested they would rather be any place else, even back in their cell. I have also been in situations where interviewees appear to have been affected by medication or illicit drugs, such that their frame of mind was cloudy and their demeanour heavily subdued. Equally, I have met potential participants who play the "hard man" by subscribing wholly and solely to the prisoner code of saying little, presumably in the hope of bolstering or maintaining their credibility and place in the prison hierarchy. This happens especially when interviews are done within sight of other prisoners who, quite naturally, wonder what "their guy" is talking to an outsider about. I have spoken also with many recidivists, suggesting there might be some truth to the charge of oversampling "unsuccessful offenders". And I have encountered prisoners who say they only sign up for interviews because there is a monetary component.

However, of the roughly 350 interviews I have conducted with prisoners and ex-prisoners since 2003, all these issues have arisen on a small *minority* of occasions. If I was pressed, I would say roughly 5–10% of my interviews fall

into the category of "less than satisfactory". Even in these instances, there is typically something salvageable. Very often, due to the longitudinal nature of the research, I have been able to meet again with participants who, on these subsequent occasions, are incredibly committed to the interview process and whose demeanour is fundamentally different—in a positive way—from previous meetings. This can be put down to any number of issues, from a change in medication to news of a successful parole application, to being given more privileges within custody, to being transferred to a better facility, or simply because it is a new day. Of course, this trend can play out in the opposite direction, such that interviewees who were exceptionally engaged in previous interviews appear "drugged" or distracted in subsequent conversations. In short, the vagaries interviewees bring to the table, and, dare I say, which *interviewers* bring as well, are many and varied. And their impact on the type and quality of stories told resists neat qualification and quantification.

Generally, I concur with the view that "the credibility of prison samples is extremely consequential for all who study crime no matter their methodology. [Indeed], much of what we know of serious offenders has been garnered from them" (Copes and Hochstetler 2010, 64). What this really means is that we should not take the verbal exchanges between interlocutors at face value. This is precisely where narrative criminology comes to the fore. As Presser and Sandberg (2015, 13–14) write: "Narrative criminologists can relate narrative forms (e.g., tragedy, comedy) to criminal behaviour. They can consider how linguistic moves within self-stories, such as passive versus agentive structures, function to assert license to harm or conversely to deny responsibility for harm. They can study the role of metaphors … nominalization … nodal points … symbolic boundary drawing … and floating signifiers … in constructing the excusable harm and blameworthy victim". In simpler terms, narrative criminology helps elucidate the type of story being told and why *that* story is the one relayed. Importantly, narrative approaches to understanding crime also attempt to mine the subtext of the text. It can, following Foucault (1980), entertain notions of the *unsaid* and how this structures what is explicit or made manifest in conversation. As Foucault (1972, 27) writes: "The question posed by language analysis … is always: according to what rules has a particular statement been made, and consequently according to what rules could other statements be made? The description of the events of discourse poses a quite different question: how is it that one particular statement appeared rather than another?"

The concept of *discourse* is important for narrative criminology for two main reasons. First, it raises questions of (whose) *power* and (whose) *knowledge* influences whether people's stories are given "truth" status or not.

In Foucault's terms, it makes us question the relationship between *statements,* that is, pronouncements or truths that fit the accepted order of things, and *chatter,* that is, unsubstantiated or unscientific musings. Second, the concept of discourse grounds narrative analysis in the institutional—schools, prisons, universities—and other physical locations—homes, neighbourhoods, and offices—in which interlocutors are located.

The implications of this are far-reaching. In the context of interviewing, it means paying close attention not just to what is said but why certain remarks occur and recur, why particular views are either emphasised or downplayed, and why certain events are labelled as central or peripheral to the shaping of one's past or future. For narrative criminology, working out what motivates people to commit crime or to desist from such behaviour becomes far more than just asking them to talk about these things on record. Instead, it requires exchanges between interviewer and interviewee to be conceived as complex personal performances where any compulsion or inclination to speak freely is constrained by memory, feelings of shame, or the need to suppress particular events because they are too traumatic to speak about. On very specific matters—such as the *modus operandi* of criminal behaviour or corrupt prison staff—comments are heavily tempered in accordance with perceived likelihood of repercussions from peers or prison administrators. But, as Sandberg (2010, 448) reminds us, within the narrative criminological frame, "discerning the 'truth' is not always important. Whether true or false, the multitude of stories people tell reflect and help us understand the complex nature of values, identities, cultures, and communities. Thus, 'truth' may not be the best measure of interesting and theoretically relevant data". And, to extend this idea, the stories people do *not* tell due to self-censoring are likely to be as important as those they volunteer.

Returning again to Foucault, all of this demonstrates why it is essential to grapple with words and the institutional contexts within which they are spoken. It is important to view any verbal or written exchange between interlocutors as occurring within one or another *apparatus*, that is, a discursive space that brings with it a particular kind of relationship between power—the processes that subtly and not so subtly render or subject some citizens—and knowledge; what counts as truth or can be spoken of. Foucault (1980, 194) defines an apparatus as a "heterogeneous ensemble consisting of discourses, institutions, architectural forms, regulatory decisions, laws, administrative measures, scientific statements, philosophical, moral and philanthropic propositions—in short, the said as much as the unsaid". All these background elements leave their mark on the psyche in form of orientation to self, others, and the world; on the body in form of injury, scars, modes of dress, and

rituals; and together shape the speaking subject. Pool (as quoted in Holstein and Gubrium 1995, 14) captures this idea by observing: "The social milieu in which communication takes place modifies not only what a person dares to say but even what he [sic] thinks he chooses to say. And these variations in expression cannot be viewed as mere deviations from some underlying 'true' opinion, for there is no neutral, non-social, uninfluenced situation to provide that baseline".

By this reckoning, there is an infinitely complex array of factors that converge to produce the seemingly simple event called the interview, and by extension the interview transcript. It is an even more complex task to do justice, analytically, to the emotive and corporeal aspects of such an exchange; something that often gets "lost in translation" unless permission to use and reproduce audio or visual data has been obtained, which is rarely granted for prison-based research. Interviews can—in fact, inevitably do—contain *multiple* narratives: about crime, about childhood, experiences of schooling, of close and broken friendships, of success and failure, and about incarceration and release. An interview is, therefore, a kind of meta-narrative. It has its own beginning, middle, and end, but it is filled with many other smaller snapshots or loosely structured accounts of events. As Presser (2010, 443) remarks: "you and I have no all-purpose, once-and-for-all story. Rather, stories are always made *for* (and on) occasions of use, and they are subsequently *remade* for occasions of presentation".

Recent Research and Narrative-Based Interviewing

To date, most of the criminological work on narrative analysis has occurred in relation to desistance from crime (King 2013; Maruna 1997, 2000; O'Sullivan et al. 2015; Vaughan 2007; Ward and Marshall 2007). Maruna (2000) set the scene in the Liverpool Desistance Study with his detailed content and psycho-social analysis of the life stories of 30 people who viewed themselves as having desisted from crime and 20 who conceived themselves as persistent offenders. He examined the phrasing participants used when speaking of their past, their future, of employment, family, and of their attitude towards "giving back" to society through such acts as parenting, teaching, and volunteering. Although there was wide variation among interviewees, Maruna (2000, 88) determined that the stories told by desisters differed from "active offenders in three fundamental ways: 1. an establishment

of the core beliefs that characterise the person's 'true self'; 2. an optimistic perception (some might say useful 'illusion') of personal control over one's destiny; and 3. the desire to be productive and give something back to society, particularly the next generation". The narrative structure of those who had "made good" followed a *redemption* rather than a *resignation* script with such stories telling of the eventual recovery of an essentially good but damaged self, of establishing an internal locus of control—I manage the world, the world does not manage me—and of practical and ongoing demonstrations of being redeemed through helping others. What Maruna showed is that desistance is, besides being a very complex and multi-layered process involving primary and secondary elements, not just about the physical act of non-offending. Instead, it is as much about the story wrapped around the process of *becoming* an ex-offender and of leaving that label behind. Indeed, some (see, for example, McNeill 2014, personal conversation) have suggested that the sorting of an internally consistent redemption story probably *precedes* the physical aspect of desisting from crime. Again, this points to the power of story and its relationship to the life course.

Other narrative criminological work has examined the neutralisation of criminal behaviour and harm to victims (Ugelvik 2012); identity reconstruction processes in therapeutic settings (Stevens 2012); the relative truth value of offenders' accounts (Sandberg 2010); the lived experience of imprisonment and the (im)possibility of rehabilitation (Hall and Rossmanith 2016); and narrative approaches to understanding drug addiction and recovery, sex offender reintegration, violent offending, and tax evasion (Presser and Sandberg 2015). I do not intend here to unpack all this work. Suffice to say that its contribution to understanding the psycho-social dimensions of crime and why people struggle to desist from offending, catch the "wave" of a redemption script or get trapped in the defeating elements of a resignation script are invaluable (Halsey and Deegan 2015; Maruna 2000). Instead, I draw on several excerpts from my own interviews[1] to suggest how to maximise the prospect of generating a rich narrative.

When done well, interviews permit important insights into people's lives and, by default, their milieus and those of society more broadly. They can help put the "meat on the bones" of concepts like ethnicity, class, gender, and they can vindicate key theories such as strain, differential association, and labelling, or push scholars to rethink these theories. While not always the case, the most likely vehicle for eliciting rich narrative material is the semi-structured or in-depth interview. The more heavily structured the interview, the less room the interviewee has to tell their story in their own words, using their own sense of time, place, and significance of events.

In prison settings, where space and time tend not to be of either interlocutors' choosing, the degrees of depth are often not as great as one would like. It is not uncommon for interviews to be abruptly ended by an officer due to a shift changeover, lock-down, or misunderstanding about who has booked what room for what duration. These interruptions can occur at any time, and little regard tends to be given to the sensitive juncture or nature of the interview in progress.

In recognition of these circumstances, my first concern is to establish a level of rapport with each interviewee as quickly as possible (Crewe 2011). Off-tape banter can make the difference between a good or mediocre interview. I try to state clearly and simply who I am, what my project is about, and how—pending various factors—participation might help draw attention to or even cause a small change in particular areas such as offender reintegration. However, I do not over-promise in terms of likely outcomes and caution that participation in an interview is unlikely to improve participants' lives in the immediate or short term. But I do say that the collective nature of the project may garner some attention; that the effect of the whole of the interview cohort is likely to be greater than the sum of its parts.

In addition to putting participants at ease, I try to establish respect for them as a *person,* not as a prisoner. My main intention is to position each interviewee as a figure of authority over their own lives and myself as a novice or student of *their* story. I also say something about prisons and prisoners' concerns as being generally out-of-sight and out-of-mind. Speaking on the record in a safe fashion is one of the few means for getting prisoners stories into the public realm. Most interviewees see at least some sense in this approach. Some, on the other hand, are just happy to talk, irrespective of any off-tape banter. Very few, though, decide against participation, and not one has withdrawn from the research process. Another important part of pre-interview chatter is to ask how the participant is being treated in confinement and, by extension, how their treatment or conditions compare against other custodial facilities they may have been incarcerated in. This usually gets a conversation going, and it is a topic most prisoners are happy to talk about without raising their ire or getting too sensitive too soon.

In the interview proper, one of the requisite techniques for eliciting good narrative is to *be flexible in relation to where the interview goes*; irrespective of how one might have imagined the exchange playing out. The following is an example of being prepared to "start again" so as to pay heed to the complexity of the interviewee's life that became apparent in the opening moments (Fig. 42.1).

The first question I wanted to ask you … [is]: What is your first memory of anything to do with police or prisons or courts? …

My first memory to do with police, I would say, would be back in NSW in around the mid-90s, about 1995. … I was about 15, [and] I had a violent outburst at the time with my District Officer. Yeah, so I am actually a Ward of the State of NSW, or was until the age of 18 so I was appointed what's called a "D.O.", a District Officer.

Sorry to interrupt you, but I'm going to do this interview in a different way. … There's no way I'm going to do justice to your story in an hour or so with you, in terms of the complexity of your life and what's gone on, I understand that. I think what we should do is, let me build the interview around your life from where you were born, how you grew up, where your parents were, what happened to you in terms of all that. … Is that better?

Yeah, I think starting again would be a lot better, so we can put everything into place and whatever. So, yeah, I was born in 1979 in [names town and exact time and date of birth]. … When I was three months old, my father tried to kill me. He was an alcoholic. … I don't know the full circumstances to it, but I do know that he picked me up by my feet and smashed my head against a wall. He fractured my skull. That has given me severe brain damage to the frontal lobe part of my brain. It affects my cognitive thinking, my impulse control and my emotion, so I get very angry very quickly if things are slightly off. … It doesn't matter if it is a person's actions or tone of voice, I fire up pretty quickly – it's just a defensive mechanism for me that I have no control over. I have a synthetic plate in the right-hand side of my head due to the frontal lobotomy. … I'm blind in my right eye because of it, totally. It's called optic atrophy.

Fig. 42.1 Interview excerpt, flexibility

This information set the scene for the rest of the interview with Tyler's story heavily structured by childhood trauma and the life-long effects of an acquired brain injury. All subsequent mention of key events—expulsion from school, escaping from boys' homes, police stand-offs, taking the life of another—had recourse to these early events. Knowing of this trauma very early on in the

interview permitted a different interpretive lens to underpin the remainder of the conversation.

With interviewing underway, a key strategy for *maintaining narrative flow* is to refrain from any sign of having morally judged what an interviewee is saying. Standpoint epistemology (Fawcett and Hearn 2004) plays a big part in helping to ensure that the interview is conducted through the milieu and associated thresholds of normality and strangeness evinced by each interviewee. In the case below, I was fortunate enough to have already interviewed Jason's mother, and so was cognisant of the torrid circumstances she herself had endured (Fig. 42.2).

In isolation, it would be all-too-easy to conceive of Jason's mother as wholly negligent in relation to the care of her son. But the larger truth is that she knew the dangers of scoring and getting high on the street with strangers. And she knew this was what her son would do if she tried to enforce a strict blanket prohibition approach to his drug use. More tellingly, though, she knew that his desire to use heroin was as much a function of needing to quell the trauma he had been exposed to in his childhood—courtesy of the violent males she had associated with—as any curiosity about drug use per se. *Context changes everything*. It brings nuance to situations that seem, at first blush, cut and dried. But even without context, when one is running "blindly"—for instance, due to not having interviewed a significant other of the interviewee—it is

Once you started on heroin, I'm guessing … it's pretty hard to stop?

Yeah. It wasn't like a heavy addiction. Like I started off smoking it through a foil [pipe] and then banging it up. Like all I remember was I seen my mum whacking up in front of me and I remember I asked her one day, I said, "Fucking let me have a shot of that," and she goes, "No, what are you on about? You're not going to touch this shit. I'm not going to let you touch it," and like I turned around and I said to her, … "Well, if you're not going to let me do it here I'm just going to go down the road and … I can get my own shit." … And then she turned around and she goes, "If you're going to do it front of anybody, you do it in front of me." It was like it was a green ticket, you know, kind of like to say, "Yeah, well, here you go." And I remember having a shot with her and my aunties … and it was like only five units at the start. … Yeah, it was there and then where it all began. … I would have been 14 years old.

Fig. 42.2 Interview excerpt, maintaining narrative flow

essential to maintain the sense that the story being told is legitimate and right and has its own moral coherency, no matter how "monstrous" or otherworldly it may seem.

There is, though, a fine line between keeping the narrative going—by not judging or unnecessarily interrupting the interviewee—versus having to press at appropriate points for more information, even if this risks coming across to the interviewee as doubting the veracity of their words. The case of Mick, aged 22, provides an example. A third generation prisoner, Mick grew up under the care of his paternal grandmother. He stole his first car at age 11, was expelled from school at age 13, and at age 14 received a 10-year sentence for a string of violent crimes. He served 6 years and, shortly after his release at 20 years of age, committed a series of armed robberies and was sentenced to more than two decades in prison, which, on appeal, was reduced to 16 years with a minimum of 8 years to serve. At least nine other of Mick's family members have been incarcerated, meaning the familial context, to which he briefly returned on release, was acutely fragmented. At the interview, he spoke of what he knew best, that is, the effects of imprisonment (Fig 42.3).

At this juncture, it would have been possible to let his narrative rest. But the process of interviewing is a two-way street. As Presser and Sandberg (2015, 14) write: "Narrative is generally coproduced by the research participant and the researcher, if not during the interview then certainly in the process of analyzing data later". In this sense, as an interviewer, I know *the narrative has to be constructed* and that it needs ideally to inform the realms of scholarship and, if possible, policy. This requires more than the collection of yes and no answers to the question, say, of whether rehabilitation opportunities exist in sufficient quantity and quality in custody. Accordingly, pushing Mick a little further enabled greater insight into the intricacies of

Being in gaol always makes you worse.

Whether it's a juvenile or an adult facility?

Either way. … People say that the longer you are in gaol the longer the rehabilitation you get, but there's no rehabilitation in gaol. … Where's the rehabilitation in gaol?

And you're saying that even in relation to juvenile [custody] as well?

Yeah.

Fig. 42.3 Interview excerpt, recognising a 'dead end'

I know what you're saying but I want to get this on tape, I mean, they'll say that during your five or six years we threw education at you, you could do this program, you could get this skill, you could train for this job or whatever. … You know that they'll say all that, right? … But I want to know what you say?

But what are they preparing you for? The adult system? You're still stuck between four walls, you're still going to be institutionalised by the time you get out. I mean, if you're uncomfortable living in the outside world, where are you going to go? Back where you're comfortable. And to be honest, I am more comfortable in gaol than on the outside, you know what I mean? I will be sitting with my missus and I can't even watch a movie, but in here I just fit right in. Out there I get anxiety attacks and all that. … My missus sits there and asks me what I'm thinking about and I'll say, "Nothing". But she'll know that something's wrong. … I mean, who the fuck sits on the outside thinking about gaol? … In here, no matter what you're in here for, they're going to give you a drug habit. … I mean, they lock you away for 10 years and you get a drug habit. … They know there's drugs in here. … They're going to give you a drug habit, make you more institutionalised than what you were in the first place, and wreck you for when you get out. You'll end up dead on the streets from a heroin overdose … or you're going to end up back in here where you feel comfortable, because you can't live out there, you can't survive out there because you've just done 10 years in gaol.

I think that is a really good way of putting it and I've spoken to a lot of guys and the best way I can put it is that people get really good at living in prison and they don't get really good at living in the community. … In terms of [your time in juvenile detention], what is it that they should have done in your view? …

Well, they need to try to set you up for the outside instead of saying, "Here you go, have 10 years". And then you get out and they expect you to go and work and you don't even know how to work. I've been in since I was 14. How am I going to know how to work? Youse haven't taught me anything. All youse have done is chuck me in gaol and told me to sit there and do my time.

Fig. 42.4 Interview excerpt, the co-production of interview narrative

imprisonment for young people, and, more particularly, into the lived experience of institutionalisation (Fig. 42.4).

For narrative criminology, the task is to discern what to make of this type of text. Is it indicative of a resignation script? Is it suggestive of someone trying to neutralise and justify their own decisions? Or might it be indicative of the reality of custodial life and of serious pitfalls in opportunities to engage in concrete forms of rehabilitation? Perhaps elements of each hold true. To get a more reliable, richer picture it would be necessary to place this exchange in the wider context of the entire interview and the overall themes and disparities generated. And, subsequently, to extend or test the resonance of Mick's perspective it would be important to locate his remarks against those made by other interviewees. In the narrative sense, though, it matters less whether his words are true than that he spoke them at all, and the fact that they likely structure his time and outlook in confinement.

Conclusion

The endgame of narrative criminology is not to validate or denounce one interviewee's viewpoint over another. Instead, the challenge is to ask why, when people tell their story, they use or repeat particular phrases to the exclusion of all other possibilities. As Foucault has shown, "who speaks?" is an infinitely complex question. And the answer can never be concomitant with the proper names of Tyler, Mick, or Jason. To get to the heart of the narrative, one has to ask how the unsaid organises what it is possible to say. Class, gender, ethnicity, educational attainment, peer expectations, financial inducements, familial conflict, (im)possibility of release from custody, threat of segregation, fear of being branded a "rat", unresolved trauma and loss are all devices which play into the conscious and unconscious sorting and sifting of the array of responses which could theoretically arise in response to questioning. As Fraser (2004, 180) comments: "Storytelling is such an important activity because narratives help people to organise their experiences into meaningful episodes that call upon cultural modes of reasoning and representation". From a critical perspective, the task is to become cognizant of these cultural modes and to understand how and why they reflect so closely the prevailing hegemony or, more to the point, how they depart from and might challenge such hegemonies.

Note

1. Excerpts in this chapter a drawn from the *Generations Through Prison: A Critical Exploration of the Causes, Experiences and Consequences of Intergenerational Incarceration* project, funded by the Australian Research Council (FT120100284).

References

Bourgois, Philippe. 2012. *In Search of Respect: Selling Crack in the Barrio*. Cambridge: Cambridge University Press.

Contreras, Randol. 2012. *The Stickup Kids: Race, Drugs, Violence and the American Dream*. Oakland, CA: UC Press.

Copes, Heath, and Andy Hochstetler. 2010. Interviewing the Incarcerated: Pitfalls and Promises. In *Offenders on Offending*, ed. Wim Bernasco, 49–67. London: Routledge.

Crewe, Ben. 2011. Depth, Weight, Tightness: Revisiting the Pains of Imprisonment. *Punishment and Society* 13: 509–529.

Dennison, Susan, Holly Smallbone, Anna Stewart, Kate Freiberg, and Rosie Teague. 2014. 'My Life is Separated': An Examination of the Challenges and Barriers to Parenting for Indigenous Fathers in Prison. *British Journal of Criminology* 54: 1089–1108.

Fawcett, Barbara, and Jeff Hearn. 2004. Researching Others: Epistemology, Experience, Standpoints and Participation. *International Journal of Social Research Methodology* 7: 201–218.

Fitzgerald, Robin, and Adrian Cherney. 2016. Work and Training in Prison as a Form of Imagined Desistance. In *Experiencing Imprisonment: Research on the Experience of Living and Working in Carceral Institutions*, ed. Carla Reeves, 248–262. London: Routledge.

Foucault, Michel. 1972. *The Archaeology of Knowledge*. New York, NY: Pantheon.

Foucault, Michel. 1980. The Confession of the Flesh. In *Power/Knowledge*, ed. Colin Gordon, 194–228. Brighton: The Harvester Press.

Fraser, Heather. 2004. Doing Narrative Research: Analysing Personal Stories Line by Line. *Qualitative Social Work* 3: 179–201.

Gadd, David, and Stephen Farrall. 2004. Criminal Careers, Desistance and Subjectivity: Interpreting Men's Narratives of Change. *Theoretical Criminology* 8: 123–156.

Hall, Maggie, and Kate Rossmanith. 2016. Imposed Stories: Prisoner Self-Narratives in the Criminal Justice System. *International Journal for Crime, Justice and Social Democracy* 5: 38–51.

Halsey, Mark, and Simone Deegan. 2015. *Young Offenders: Crime, Prison and Struggles for Desistance*. London: Palgrave.

Holstein, James, and Jaber Gubrium. 1995. *The Active Interview*. New York, NY: Sage.

Josselson, Ruthellen, and Amia Lieblich. 1993. A Narrative Introduction. In *The Narrative Study of Lives*, eds. Ruthellen Josselson and Amia Lieblich, ix–xv. London: Sage.

King, Sam. 2013. Early Desistance Narratives: A Qualitative Analysis of Probationers' Transitions towards Desistance. *Punishment and Society* 15: 147–165.

Mailer, Norman. 1979. *The Executioner's Song*. New York, NY: Vintage.

Maruna, Shadd. 1997. Going Straight: Desistance from Crime and Life Narratives of Reform. In *The Narrative Study of Lives*, eds. Amia Lieblich, and Ruthellen Josselson, 59–93. London: Sage.

Maruna, Shadd. 2000. *Making Good: How Ex-Convicts Reform and Rebuild Their Lives*. Washington, DC: American Psychological Association.

McNeill, Fergus. 2014. In Conversation. Paper presented at *Desistance—Sketching the Future: An International Conference, Sheffield University, September 15–17*.

O'Sullivan, Kevin, Richard Kemp, and David Bright. 2015. Identity, Self-Story and Desistance from Crime. *Journal of Forensic Practice* 17: 219–230.

Presser, Lois. 2009. The Narratives of Offenders. *Theoretical Criminology* 13: 177–200.

Presser, Lois. 2010. Collecting and Analysing the Stories of Offenders. *Journal of Criminal Justice Education* 21 (4): 431–446.

Presser, Lois, and Sveinung Sandberg (eds.). 2015. *Narrative Criminology: Understanding Stories of Crime*. New York, NY: NYU Press.

Sandberg, Sveinung. 2010. What Can 'Lies' Tell Us about Life? Notes towards a Framework of Narrative Criminology. *Journal of Criminal Justice Education* 21: 447–465.

Shaw, Clifford. 1929. *Delinquency Areas*. Chicago: University of Chicago Press.

Stevens, Alisa. 2012. 'I Am the Person now I Was always Meant to Be': Identity Reconstruction and Narrative Reframing in Therapeutic Community Prisons. *Criminology and Criminal Justice* 12: 527–547.

Ugelvik, Thomas. 2012. Prisoners and Their Victims: Techniques of Neutralization, Techniques of the Self. *Ethnography* 13: 259–277.

Vaughan, Barry. 2007. The Internal Narrative of Desistance. *British Journal of Criminology* 47: 390–404.

Ward, Tony, and Bill Marshall. 2007. Narrative Identity and Offender Rehabilitation. *International Journal of Offender Therapy and Comparative Criminology* 51: 279–297.

Author Biography

Mark Halsey is a Professor of Criminology in the Centre for Crime Policy and Research, Flinders University. He has conducted several ARC-funded projects involving interviews with (ex)prisoners and their attempts to desist from serious crime.

43

Victims, Legal Consciousness, and Legal Mobilisation

Robyn L. Holder

That victims construct crime is not a new conceptual proposition. The interpretation the victim places on the event has been presented as a moral one; whether as a crusade, panic, or censure.[1] To speak of the event as "a wrong" is cast as moralising or hyper-moral. The impetus to turn to criminal justice institutions for redress then becomes the peculiar action of a private individual. Absent from these pictures is law and consciousness of it. This chapter asks what law is to people victimised by crime and how these meanings inform legal mobilisation. It suggests that by connecting with legal authority about everyday victimisation, victims do more than construct it as a wrong: they *make* law.

Making the victimisation event into a law problem is not an obvious choice for members of the public. The law is at once "strange and familiar", accessible, and remote (Ewick and Silbey 1998, 16). This chapter first re-focusses on law and its different representations to then push it to the margins by foregrounding legal consciousness. The understandings of law that "give meaning to people's experiences and actions" act as a counterweight to law-centric visions (Ewick and Silbey 1998, 734). Through re-examining literature on reporting crime, the chapter explores the spaces between meaning-making and the actions people take. Taking "seriously the idea that ordinary people can be legal actors" (Marshall and Barclay 2003, 617) attends to what law offers and how people interpret its relationship to their situated selves, an assessment made by victims in part through the institutions of police, prosecution, and criminal courts.

R.L. Holder (✉)
Griffith University, Queensland, Australia
e-mail: r.holder@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_43

Finally, the mobilisation of criminal law is discussed as a practice influenced by cultural as well as legal schemas and as emerging from people's membership of a social and political community of citizens.

Law at the Centre

Law projects different images within and to that community of citizens.[2] Law's "own story" emphasises its centrality to liberal democracy through the rule of law and its separation from that which is everyday and unremarkable (Ewick and Silbey 1998, 83). It is a formal presence and formal entity, comprising lofty adherence to rule and principle and to immanent rationality. The authoritative discourse of legal text, legal doctrine, and of professional legal actors such as judges, lawyers, and legal academics is posed as a reality of continuity, form, truth, and internal cohesion where the law is its own master. Within this view, the law is foundational to the consensus basis of a sovereign order.[3] Here, the law is command and its subjects are ordered, sanctioned, and ruled.

From this perspective, the impact of law and legal practices is uni-directional but works in different ways. Ordinary people[4]—citizens, complainants, defendants, and litigants—are acted upon. If approaching law, they do so cautiously. They are submissive before it. The law is taken to transcend individuals and moments, and justness is presumed. From this perspective, a key task is to improve access to the law for it to do its work. If the law, legal procedure, and law's institutions are experienced in some frustration by citizens, this does not weaken their authority. If approached by law, ordinary people are most often portrayed as resisting, evading, and recasting law and legality (Merry 1990). They are said to be "against the law" and may be mulish, resentful, or defiant (Ewick and Silbey 1998, 47–48). A task here is to restrain law.

However, viewing the law as self-governing detaches it from its context. This is particularly so for criminal law. A law-centric and state-centric position accentuates the threat and control of sanction and renders ordinary people as external and passive. Critics of legal centralism argue for an examination of how people "understand and use law" (Merry 1990, 5). Such enquiries may then answer "what kind of criminal law, serving what ends and expressing what values, is appropriate for … citizens of a particular kind of polity." This question makes a very direct connection between "the law [and] those whom it claims to bind as citizens" (Duff 2010, 3–5). It is an invitation to look away from law's centre and towards the everyday.

Looking Away from Law: The Everyday and Legal Consciousness

In everyday civic worlds, ordinary people act, react, interact, and connect, they ignore, interpret, and reconstruct, and they negotiate, manipulate, manage, mobilise, and plan in a complex reality that is material and imagined (De Certeau 1984). The everyday is riven with competing narratives (Holmes 2009; Sarat and Kearns 1993). Multiple, often overlapping, realities jostle, whether common "intimate intrusions" of sexual and physical abuse (Stanko 1985) or the "everywhere" of racial discrimination (Coles as cited in Bumiller 1988, 70). The everyday comprises places, spaces, and occasions where rules and laws are evaded, reinvented, and discounted, as it is where they are made, remade, and respected as habits[5] of legality. Indeed, the consciousness of boundaries, standards, possibilities, and mitigations does not require the formal institutions of the state. These are submerged frames and guides to social practices and interactions.

As one of these frames, the "discourse of law" provides language for meaning-making and "shaping our taken-for-granted understandings of the social world" (Albiston 2006, 56). Ewick and Silbey (1998) suggest three approaches to the notion of legal consciousness. One takes the beliefs, attitudes and actions of individuals and social groups together to "determine the form and texture of social life" (35). Liberal political and legal theory stress the consensus forged around ideals of fairness and equal treatment, and the law's capacity to balance between ideals. A second approach conceptualises law and legal consciousness as epiphenomena because "a particular social and economic structure is understood to produce a corresponding or appropriate legal order, including legal subjects" (37). An aspect of this perspective concentrates on the legitimating functions of law within the social order. Finally, legal consciousness is identified as a cultural practice. It is conceived as "part of a reciprocal process in which the meanings [are] given by individuals to their world, and law and legal institutions as part of that world, become repeated, patterned and stabilised, and those institutionalised structures become part of the meaning systems employed by individuals" (39). Here, human action and structural constraint are integrated and law is *produced*.

Legal consciousness studies examine the manner in which "legal life and everyday social life are mutually conditioning and constraining" (Hunt 1996, 179). These constitutive theorists emphasise that "bottom-up" engagement with law and legal institutions is influential on law's meaning. In this

imagining, the law is more of a servant. The perspective argues that understandings of legality are constructed and mediated through signs, signals, and storytelling in a socialised discourse (Bruner 2002). These narratives encode and position people, places, and events. However, they tell many complex and contradictory stories; stories which interact with other schemas: that of political consciousness (McCann 1994), injustice frames (Marshall 2003), workplace ideology (Hoffman 2003), legal imaginations (Daly 2003), legal norms (Zemans 1982), and local cultures (Greenhouse et al. 1994). Legal consciousness works hand-in-hand with rights consciousness (Blackstone et al. 2009). The consciousness of rules and rights influences when, if, and how people will turn away from or towards law.

Law in Social Context

Stylised concepts of law emphasise its role and functions differently (see Table 43.1). The state-centric view accentuates the instrumental functions of law. It is "authoritative rules backed by coercive force, exercised by a legitimately constituted (democratic) nation-state" (Morgan and Yeung 2007, 4). In this view, the law is a threat. According to Morgan and Yeung (2007), as an umpire, law shapes behaviour as well as giving expression to community standards. Constitutive theorists suggest these versions of law in a social context are insufficient. They emphasise law and legality as things created and acted upon. They are manifestations of social bonds and of the collective.

Table 43.1 Law in social context. *Source* Adapted from Morgan and Yeung (2007, 6). Text added by the author is shaded. Permission to adapt the original is gratefully acknowledged

Law's role	Law's image		
	Law as threat	Law as umpire	Law as servant
Law's *facilitative* role: law as an instrument for shaping social behaviour	Proscribing conduct and threatening sanctions for violation to deter that conduct	Creating and policing the boundaries of a space for free and secure interaction between participants	Enabling cooperation through defining and re-defining standards and norms
Law's *expressive* role: law institutionalising values	Legitimating coercion	Reflecting shared or agreed morality of the community of players	Enabling articulation and deliberation on values and priorities
Law's *constitutive* role: law and society as mutually constitutive	Legality comprising of social practices	Mediating indeterminacy of lived experiences	Imagining the real

They signal boundaries and ways to do things that are devised by people in their diverse social contexts. Thus, a stylised concept of law as servant incorporates ideas about legal consciousness (Ewick and Silbey 1998), mediated practices (Crespi 1992), law's imaginative capacity (Geertz 1983), and law's discursive and definitional capability (Sarat et al. 1998).

Thinking About Victimisation

The perception and experience of victimisation, unfairness, disadvantage, and discrimination enlivens all aspects of the conceptual frameworks of law in its social context. These injustices lie deep within legal consciousness literature. They invite questioning and act to sharpen definition to legality and rights (Shklar 1990). However, neighbour problems, abusive partners, employment issues, and stranger transgressions as everyday experiences are not automatically scripted as law problems or even as problematic.[6]

Actual victimisation is not determinative of an assessment of disadvantage, harm, or injury (Clare and Morgan 2009). The formation of a consciousness of victimisation is itself rooted in internal psychological and cognitive processes that constantly interpret, reinterpret, construct, and reconstruct the bounds of what is normal and understandable or even permissible and expected. Considerations of what is culturally acceptable and unacceptable, and therefore constitutes wrongful or unjust behaviour, are historically and socially situated. There are also different perceptions of what actually happened (Baumeister et al. 1990); different situational and social contexts (Greenberg et al.1982; Vidmar and Schuller 1987); differential impacts of race, gender, and relationship (Kaukinen 2004); and the disorienting effects of victimisation itself (Herman 1997). Diverse cultural and structural conditions reveal enormous variety in the manner and style of handling interpersonal, group, or social problems, disputes, and victimisations (Black 1984; Menkel-Meadow 2004; Miller and Sarat 1981). Victimisation then is only part of a puzzle.

Consciousness of Law

The complex interaction between victimisation and consciousness of it as problematic becomes clearer in studies of victim decision-making. These show that the decision by a citizen to mobilise law is not a simple or singular reaction to a problem or event. Problem perception and labelling are generally a

prerequisite for legal mobilisation (Ruback et al. 1984; Zemans 1982). Therefore, the consciousness of wrong or harm can be considered on a continuum from experience to perception and finally recognition. Victimisation needs also for the wrong done to the individual (or group) to be understood as a social wrong. Legal consciousness is soaked in contingency.

People who have experienced victimisation draw on all these frames to make contextual evaluations. Most common are assessments of containment. Victims may say that an incident was not serious or too trivial or unimportant.[7] Gender, nature of the offence, and other characteristics all affect non-reporting (Clare and Morgan 2009). For those affected by violent crime, especially domestic violence, the most common reason for not reporting is privacy concerns, fear of reprisal, and a desire to protect offenders.[8] Crime surveys also expose victim-based assessments of the receptivity, efficacy, and sensitivity of justice agencies, and of police in particular, as influencing non-reporting. The International Crime Victim Survey found that a significant and substantial proportion of respondents felt that police could not or would not do anything, a factor that was at a higher level in main cities (Van Dijk et al. 2007). Between 25 and 40% of victims say they dealt with the incident themselves.[9] People may "lump it", manage themselves, or simply seek advice and take no further action (Genn 1999).

Deciding whether or whom to tell about an incident is perhaps one of the most elementary help-seeking decisions for victims of any type of crime to make. As an active behaviour, help-seeking is a form of communication "directed towards obtaining support, advice, or assistance in times of distress" (Gourash 1978, 414). It constitutes single and multiple sets of actions and is generally divided between informal networks and formal helping agents (Pescosolido 1992). Actions can proceed through discrete stages but may not be linear (Willis and Gibbons 2009). Seeking help is highly related to the nature of the problem and event, the characteristics of the help seeker, and the availability and perceived efficacy of resources. It is deeply influenced by socio-economic context (Kaukinen 2002, 2004). There is a clear pathway from seeking help in family and friendship networks to formal helping agents such as legal institutions (Blackstone et al. 2009).

Defining something as a problem; considering whether and how to deal with it; if and what rule is inveighed; and contemplating the availability and salience of law's resources, are all thought processes that draw on diverse cultural, social and situational "motives for action" (Yngvesson 1993, 9). Across different countries with similar and dissimilar legal systems, so widespread is non-reporting that "legal inaction [is] the dominant pattern in

empirical legal life" (Black 1973, 133). The law may infuse the frames that victims draw on in problem definition but it is remote as a resource.

Legal Mobilisation

Something must happen to bring forward law as a possibility following victimisation. The law in legal consciousness could be lost, if it was not for legal mobilisation (Mezey 2001). How then to understand the puzzle of its seemingly tenuous relationship to those who may need it. Theorists pose a range of ideas about legal mobilisation: that it is about facilitating governmental social control (Black 1973), about invoking legal norms (Lempert 1976) and about involving the identification of redressable injustice (Sen 2009). Others say that legal mobilisation is about dispute transformation (Felstiner et al. 1981), about citizen participation (Zemans 1983), about rational choice (Gottfredson and Gottfredson 1988) and a part of strategic action (McCann 1994) as presented in Table 43.2.

These theories of legal mobilisation are intimately connected to ideas about the law in social context. Law-centric and state-centric perspectives presuppose remedy as the primary objective. Constitutive theorists foreground law's reliance on human action to come to life. Their approach emphasises the heterogeneity of peoples situated in various ways to each other and to sources of power, and, in consequence, its contingent salience and availability. The law is, at best, a "structural opportunity" (McCann 1994, 239), albeit one impregnated with deep ambivalence.

What about those who do step into that ambivalent space? Reporting to law enforcement as the first step in the mobilisation of a criminal legal response is a selective, largely voluntary, and self-motivated endeavour. Police and the court system may form part of a community's helping agents; may be viewed as a necessary authoritative decision maker, or may even be seen the only available resource. Across comparable countries, the decision to report an incident of crime to a formal authority, such as police, is made by about half or less than half of all crime victims (Skogan 1984).[10] Property crime is commonly reported—usually for insurance purposes—but interpersonal offences are less so.[11] Reporting patterns differ over time. Reports to police of sexual assault and other forms of assault have increased in the USA since 1973 (Baumer and Lauritsen 2010),[12] while in the UK, the proportion of people who had contact with police has fallen (Jansson 2008). The action of individuals and groups in bringing "the problem" to authorities is foundational to the functioning of the system. Absent the activation of law by victims, it is lifeless.

Table 43.2 Theories of legal mobilisation

Theorist	Mobilisation concept	Mobilisers	Motivation	Features
Black (1973)	Law as governmental social control	Entrepreneurial and rational pursuit of own ends	Self-help informed by moral standards of citizenry	Law as last resort. More likely use of law where greater relational distance between persons, event seriousness, community and institutional context, features of parties and social context
Lempert (1976)	Legal norms as regulatory	Aligning to social norms	Avoidance of future disputes or problems; reaction to problems dependent on citizen perception	Mechanism for transferring disputes from one arena to another Mobilisation influenced by third parties
Felstiner et al. (1981)	Dispute transformation (naming, blaming, claiming)	Individualistic	Search for remedy	Process reveals uncertainty in dispute transformation
Zemans (1982, 1983)	Form of political participation	Subjective and constrained, rationalist, evaluating burdens and benefits	Assertion of perceived rights. Salience of rights on one hand and sense of justification in asserting them	Legal and social norms act alongside situational factors; analogous to other help-seeking and resource use behaviour
McCann (1994)	Constitutive and strategic assertion of rights	Interpretive; conscious of self and context	Structural opportunity not dictating action	Law limited, partial and contingent but also structures meaning. Law as one resource for social change

(continued)

Table 43.2 (continued)

Theorist	Mobilisation concept	Mobilisers	Motivation	Features
Gottfredson and Gottfredson (1988)	Situation demanding of official recognition & action	Rational choice	Desire for officially sanctioned retribution, by general sense of social obligation, hope of restitution, perceived solution to immediate crisis, or practical concern	Law as authoritative resource for outcome focused though discretionary action. Outcomes dependent on activities and decisions of official legal actors
Sen (2009)	Identification of redressable injustice	Different and competing positions accepted	The possibility and pull of justice discursively defined and comprehensively realised	Objective is the reduction of injustice and the importance of inclusive public reasoning. Acceptance of partiality

Reasoning Legal Mobilisation

What reasons do people give for turning to law? Researchers have examined barriers and inhibitions and more recently turned to consider incentives and pathways. Felson et al. (2002, 619) consider reporting behaviour in the USA to be "rational in the sense that victims are attempting to achieve something they value, whether it be something practical or something they think they ought to do out of civic duty or a sense of justice".

The orientation towards "something of value" opens out the reasoning for legal mobilisation to accommodate both instrumental and non-instrumental concerns. Population surveys reveal clusters of motives around normative reasoning, a sense of civic duty, and desire to protect oneself and others. Of those who reported crime to police in the UK, 43% did so because they felt that crime should be reported, and 37% reported because they wanted to see the offender punished (Allen et al. 2006). In the USA, victims of rape and sexual assault, aggravated assault, and serious violent crime express a higher degree of concern to protect others than do victims of other violent offences such as robbery or simple assault (Hart and Rennison 2003). These findings are similar to those of the International Crime Victim Survey showing a quarter of victims of violence offences reported to police because they felt they should, and a third because it was serious (Johnson 2005; Van Dijk et al. 2007; Van Kesteren et al. 2000). Small-scale studies show complex reasoning of justice goals for three objects of concern: victim, offender, and the community (Holder 2016).

The patterns of empirical variation to legal mobilisation, discussed here through victim decision-making, show victims of crime making contingent choices about which of the resources available in the community will assist them with their purpose(s) and goal(s). They use, develop, ignore, and create "networks of action" (Blumer 1969, 19). They seek guidance from a range of personal and social supports. They do so according to different circumstances and with different expectations. Victims make judgments about whether and whom to access, why, and when. They use their discretionary authority as citizens, become legal actors, and bring the law to life.

Legal Consciousness, Mobilisation, and Justice

The theoretical and empirical discussion in this chapter presents people's interpretation of events and problems as deeply socially and politically situated. The meanings they make about victimisation are influenced by the discourse of law and its embedded principles. These ideas shape and guide,

but do not direct action. Perceiving victimisation and injustice; seeing the availability of law; making assessments about law's salience, efficacy, and relevance; and moving into the possibilities created by law, all comprise part of the puzzle of legal mobilisation.

A conception of victimised citizens as an agent in determining the frame and, at least in part, responses and resolutions to an incident, event, or problem centralises their role in civil society. So crucial are their actions that the uninvolved or disengaged could be described as free riders.[13] Acting to invoke the law and become a legal actor is but one option open to them. In aggregate, these actions draw attention *through the law* to the boundaries set by public policy. Victims *enact* law and "create the possibility of change" (Marshall and Barclay 2003, 618). They give flesh and meaning to the flat letter of the law as an articulation of justice. The discursive movement between peoples, laws, and law's institutions fashion and re-fashion social as well as political contexts. Legal mobilisation by people and groups as victims constitutes participation in local governance.

Notes

1. Paul Rock aligns this terminology with radical criminology and the tendency to dismiss the experience of crime (Rock 2007).
2. A 'political community' is understood to comprise numerous communit*ies* where individuals hold multiple and shifting identities. A political community is also commonly understood to be bounded in a number of (contested) ways.
3. The conception of law that emphasises the role of sovereign authority is associated primarily with Jeremy Bentham and John Austin.
4. Cultural theorist Nancy Thumim uses the term to distinguish between those who have power, status, resources and knowledge, and those who don't (Thumim 2006).
5. David Schwartz's work on Pierre Bourdieu's sociology describes 'habits' as frames or schemata that guide rather than mechanical actions (Schwartz 1997).
6. These everyday problems may form a frequent part of the daily work of lawyers and courts. The point I make is that, from the point of view of the victimised, these common problems are not automatically or frequently defined as legal problems.
7. These containment assessments are found in the international crime survey across 20 countries (Van Dijk et al. 2007). Similar findings are contained in Australia's crime and safety surveys (and see Johnson 2005, discussing the Australian component of the ICVS), in New Zealand (Mayhew and Reilly 2008) and the UK (Kershaw et al. 2008).

8. In Australia 42% of victims of domestic violence said that they dealt with the incident themselves, and 27% said they did not regard it as serious (ABS 1995, 29–31). In the UK, 41% of women and 68% of men who had experienced domestic violence in the previous year did not report to police because they thought the matter too trivial, or that it was a private family matter (Kershaw et al. 2008; Walby et al. 2004). In New Zealand, 56% of victims of a 'partner offence' dealt with the matter themselves, 45% felt the incident was too trivial to report, and 20% felt that police would not have bothered (Mayhew and Reilly 2008). For the USA, see Felson et al. (2002).
9. Found in similar proportions in Australia (ABS 2005), across countries in an international survey (Van Dijk et al. 2007), and in New Zealand (Mayhew and Reilly 2008).
10. More recent analysis suggests the proportions are lower. In the UK, about 42% of all crime is reported (Kershaw et al. 2008). In the USA, only 40% of non-lethal violence and 32% of property crimes were reported to police between 1973 and 2005 (Baumer and Lauritsen 2010). In New Zealand, just 36% of crimes are reported to police (Mayhew and Reilly 2008).
11. In Australia, 75% of victims of a break-in will report to police, while 55% of victims of assault will do so (ABS 2016). In the UK, 93% of victims of thefts from vehicles and 76% of burglaries report to police, while only 34% of assault without injury report (Kershaw, Nicholas, and Walker 2008). In the USA, 46% of all violent victimisations and 40% of all property crimes are reported (Baumer and Lauritsen 2010).
12. These increases were observed for violence against women as well as men, and stranger and non-stranger violence, as well as for victims from all ethnic categories. The changes are also discussed in Baumer et al. (2003).
13. I thank Professor Veronica Taylor for this insight.

References

ABS. 1995. *Personal Safety Survey, Australia*. Canberra: ABS.

ABS. 2005. *Crime and Safety, Australia, Apr 2005.* Cat. no. 4509.0. Canberra: ABS.

ABS. 2016. *Crime Victimisation, Australia, 2014/15.* Cat. no. 4530.0. Canberra: ABS.

Albiston, Catherine. 2006. Legal Consciousness and Workplace Rights. In *The New Civil Rights Research: A Constitutive Approach*, eds. Benjamin Fleury-Steiner and Laura Neilson, 55–76. Burlington, VT: Ashgate.

Allen, Jonathan, Suzanne Edmonds, Alison Patterson, and Dominic Smith. 2006. *Policing and the Criminal Justice System—Public Confidence and Perceptions: Findings from the 2004/2005 British Crime Survey*. London: Home Office.

Baumeister, Roy, Arlene Stillwell, and Sara Wotman. 1990. Victim and Perpetrator Accounts of Interpersonal Conflict: Autobiographical Narratives about Anger. *Journal of Personality and Social Psychology* 59 (5): 994–1005.

Baumer, Eric, and Janet Lauritsen. 2010. Reporting Crime to the Police, 1973–2005: A Multivariate Analysis of Long-Term Trends in the National Crime Survey (NCS) and National Crime Victimization Survey (NCVS). *Criminology* 48 (1): 131–185.

Baumer, Eric, Richard B. Felson, and Steven F. Messner. 2003. Changes in Police Notification for Rape, 1973–2000. *Criminology* 41 (3): 841–872.

Black, Donald. 1973. The Mobilization of Law. *The Journal of Legal Studies* 2 (1): 125–149.

Black, Donald. 1984. *Towards a General Theory of Social Control*. Orlando, FL: Academic Press.

Blackstone, Amy, Christopher Uggen, and Heather McLaughlin. 2009. Legal Consciousness and Responses to Sexual Harassment. *Law and Society Review* 43 (3): 631–668.

Blumer, Herbert. 1969. *Symbolic Interactionism: Perspective & Method*. Berkeley, CA: UC Press.

Bruner, Jerome. 2002. *Making Stories: Law, Literature, Life*. New York, NY: Farrar, Straus, and Giroux.

Bumiller, Kristin. 1988. *The Civil Rights Society: The Social Construction of Victims*. Baltimore, ML: John Hopkins University Press.

Clare, Joe, and Frank Morgan. 2009. *Factors Affecting Perceived Criminality: Evidence from Victims of Assault*. Canberra: AIC.

Crespi, Franco. 1992. *Social Action and Power*. Oxford: Blackwell.

Daly, Kathleen. 2003. Mind the Gap: Restorative Justice in Theory and Practice. In *Restorative Justice and Criminal Justice: Competing or Reconcilable Paradigms?* eds. Andrew Von Hirsch, Julian Roberts, and Anthony Bottoms, 219–236. Oxford: Hart.

De Certeau, Michel. 1984. *The Practice of Everyday* Life, trans. S. Rendall. Berkeley, CA: UC Press.

Duff, R. Antony. 2010. Towards a Theory of Criminal Law. *Aristotelian Society Supplementary* 84 (1): 1–28.

Ewick, Patricia, and Suan Silbey. 1998. *The Common Place of Law*. Chicago, IL: University of Chicago Press.

Felson, Richard, Steven Messner, Anthony Hoskin, and Glenn Deane. 2002. Reasons for Reporting and Not Reporting Domestic Violence to the Police. *Criminology* 40 (3): 617–648.

Felstiner, William, Richard Abel, and Austin Sarat. 1981. Emergence and Transformation of Disputes: Naming, Blaming, Claiming. *Law and Society Review* 15: 631–654.

Geertz, Clifford. 1983. *Local Knowledge*. New York, NY: Basic Books.

Genn, Helen. 1999. *Paths to Justice: What People Do and Think about Going to Law*. Oxford: Hart.

Gottfredson, Michael, and Don Gottfredson. 1988. *Decision Making in Criminal Justice: Toward the Rational Exercise of Discretion*. New York, NY: Plenum Press.

Gourash, Nancy. 1978. Help-Seeking: A Review of the Literature. *American Journal of Community Psychology* 6 (5): 413–423.

Greenberg, Martin, Barry R. Ruback, and David Westcott. 1982. Decision Making by Crime Victims: A Multi-Method Approach. *Law and Society Review* 17 (1): 47–84.

Greenhouse, Carol, Barbara Yngvesson, and David Engel. 1994. *Law and Community in Three American Towns*. New York, NY: Cornell University Press.

Hart, Timothy, and Callie Rennison. 2003. *Reporting Crime to the Police, 1992–2000*. Washington, DC: Bureau of Justice Statistics.

Herman, Judith. 1997. *Trauma and Recovery: The Aftermath of Violence—From Domestic Abuse to Political Terror*. New York, NY: Basic Books.

Hoffman, Elizabeth. 2003. Legal Consciousness and Dispute Resolution: Different Disputing Behaviour at Two Similar Taxicab Companies. *Law and Social Inquiry* 28: 691–718.

Holder, Robyn. 2016. Untangling the Meanings of Justice: A Longitudinal Mixed Method Study. *Journal of Mixed Methods Research*. doi:10.1177/1558689816653308.

Holmes, Mary. 2009. *Gender and Everyday Life*. Abingdon: Routledge.

Hunt, Alan. 1996. Law, Community, and Everyday Life: Yngvesson's Virtuous Citizens and Disruptive Subjects. *Law and Social Inquiry* 21 (1): 173–184.

Jansson, Krista. 2008. *British Crime Survey: Measuring Crime for 25 Years*. London: Home Office.

Johnson, Holly. 2005. *Crime Victimisation in Australia: Results of the 2004 International Crime Victimisation Survey*. Canberra: AIC.

Kaukinen, Catherine. 2002. The Help-Seeking Decisions of Violent-Crime Victims: An Examination of the Direct and Conditional Effects of Gender and the Victim-Offender Relationship. *Journal of Interpersonal Violence* 17 (4): 432–456.

Kaukinen, Catherine. 2004. The Help-Seeking Strategies of Female Violent-Crime Victims: The Direct and Conditional Effects of Race and the Victim-Offender Relationship. *Journal of Interpersonal Violence* 19 (9): 967–990.

Kershaw, Chris, Sian Nicholas, and Alison Walker. 2008. *Crime in England and Wales 2007/08: Findings from the British Crime Survey and Police Recorded Crime*. London: Home Office.

Lempert, Richard. 1976. Mobilizing Private Law: An Introductory Essay. *Law and Society Review* 11: 173–189.

Marshall, Anna-Maria. 2003. Injustice Frames, Legality, and the Everyday Construction of Sexual Harassment. *Law and Social Inquiry* 28 (3): 659–689.

Marshall, Anna-Maria, and Scott Barclay. 2003. In Their Own Words: How Ordinary People Construct the Legal World. *Law and Social Inquiry* 28 (3): 617–628.

Mayhew, Pat, and James Reilly. 2008. *Victims' Experiences and Needs: Findings from the New Zealand Crime and Safety Survey 2006*. Auckland: Ministry of Justice.

McCann, Michael. 1994. *Rights at Work: Pay Equity Reform and the Politics of Legal Mobilization*. Chicago, IL: University of Chicago Press.

Menkel-Meadow, Carrie. 2004. From Legal Disputes to Conflict Resolution and Human Problem-Solving: Legal Dispute Resolution in a Multidisciplinary Context. *Journal of Legal Education* 54 (1): 7–29.

Merry, Sally. 1990. *Getting Justice and Getting Even: Legal Consciousness among Working-Class Americans*. Chicago, IL: University of Chicago Press.

Mezey, Naomi. 2001. Out of the Ordinary: Law, Power, Culture, and the Commonplace. *Law and Social Inquiry* 26 (1): 145–168.

Miller, Richard, and Austin Sarat. 1981. Grievances, Claims, and Disputes: Assessing the Adversary Culture. *Law and Society Review* 15: 525–566.

Morgan, Bronwen, and Karen Yeung. 2007. *An Introduction to Law and Regulation: Text and Materials*. Cambridge: Cambridge University Press.

Pescosolido, Bernice. 1992. Beyond Rational Choice: The Social Dynamics of How People Seek Help. *American Journal of Sociology* 97 (4): 1096–1138.

Rock, Paul. 2007. Theoretical Perspectives on Victimisation. In *Handbook of Victims and Victimology*, ed. Sandra Walklate, 37–61. Cullumpton: Willan.

Ruback, R. Barry, Martin Greenberg, and David Westcott. 1984. Social Influence and Crime-Victim Decision Making. *Journal of Social Issues* 40 (1): 51–76.

Sarat, Austin, and Thomas Kearns. 1993. *Law in Everyday Life*. Ann Arbor, MI: The University of Michigan Press.

Sarat, Austin, Marianne Constable, David Engel, Valerie Hans, and Susan Lawrence. 1998. *Crossing Boundaries: Traditions and Transformations in Law and Society Research*. Evanston, IL: Northwestern University Press.

Schwartz, David. 1997. *Culture and Power: The Sociology of Pierre Bourdieu*. Chicago, IL: University of Chicago Press.

Sen, Amartya. 2009. *The Idea of Justice*. Cambridge, MA: Harvard University Press.

Shklar, Judith. 1990. *The Faces of Injustice*. New Haven, MI: Yale University Press.

Skogan, Wesley. 1984. Reporting Crimes to the Police: The Status of World Research. *Journal of Research in Crime and Delinquency* 21 (2): 113–137.

Stanko, Elizabeth. 1985. *Intimate Intrusions: Women's Experiences of Male Violence*. London: Routledge.

Thumim, Nancy. 2006. Mediated Self-Representations: 'Ordinary People' in 'Communities'. In *Returning (to) Communities: Theory, Culture and Political Practice of the Communal*, eds. Stefan Herbrechter and Michael Higgins, 255–274. Amsterdam: Rodopi B.V.

Van Dijk, Jan, John Van Kesteren, and Paul Smit. 2007. *Criminal Victimisation in International Perspective: Key Findings from the 2004/2005 ICVS and EU ICS*. The Hague: Ministry of Justice.

Van, Kesteren, Pat Mayhew John, and Paul Nieuwbeerta. 2000. *Criminal Victimisation in Seventeen Industrialized Countries: Key Findings from the 2000 International Crime Victims Survey*. The Hague: Ministry of Justice.

Vidmar, Neil, and Regina Schuller. 1987. Individual Differences and the Pursuit of Legal Rights. *Law and Human Behaviour* 11 (4): 299–317.

Walby, Sylvia, Jonathan Allen, and Jon Simmons. 2004. *Domestic Violence, Sexual Assault and Stalking: Findings from the British Crime Survey*. London: Home Office.

Willis, Thomas, and Frederick Gibbons. 2009. Commentary: Using Psychological Theory in Help-Seeking Research. *Clinical Psychology: Science and Practice* 16 (4): 440–444.

Yngvesson, Barbara. 1993. *Virtuous Citizens, Disruptive Subjects: Order and Complaint in a New England Court*. New York, NY: Routledge.

Zemans, Frances. 1982. Framework for Analysis of Legal Mobilization: A Decision-Making Model. *Law and Social Inquiry* 7 (4): 989–1071.

Zemans, Frances. 1983. Legal Mobilization: The Neglected Role of the Law in the Political System. *The American Political Science Review* 77 (3): 690–703.

Author Biography

Robyn Holder is a Research Fellow at Griffith University. Her research focusses on justice theory, participatory justice, victims' rights (nationally and internationally), and law and society. She completed her PhD at the Regulatory Institutions Network at ANU in 2013 after over 20 years experience in research, public policy, and law reform in Australia and the UK.

Part V

Indigenous Perspectives on Crime and Justice

44

Indigenous Peoples and Criminal Justice in Australia

Chris Cunneen and Amanda Porter

The impact of Anglo-Australian criminal justice systems on Indigenous communities demands attention to a broad range of political, socio-economic, cultural, and historical contexts, as well as more mundane matters related to the day-to-day operation of criminal justice agencies. The political context requires us to understand the parameters in which Indigenous communities function. This includes the nature of Indigenous political demands for self-determination and the impact of state and federal policy frameworks that governments impose on Indigenous communities. The socio-economic context requires us to consider the position of Indigenous peoples in Australian society, in particular, the consequences of disadvantage that many communities face, and the impact that this position has on the relationship with crime and criminal justice. The cultural context requires attention to the nature of social relationships and cultural concerns within Indigenous communities, including Indigenous law and culture, and local mechanisms for dealing with disputes. The historical context raises fundamental questions of sovereignty, legitimacy, power, and resistance.

In this chapter, we can only hope to touch on some of the more salient points. The following discussion is divided into four parts. The first part

C. Cunneen (✉)
University of NSW, Sydney, New South Wales, Australia
e-mail: c.cunneen@unsw.edu.au

A. Porter
University of Technology Sydney, Ultimo, New South Wales, Australia
e-mail: Amanda.Porter@uts.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_44

contextualises crime and criminal justice in Australian colonial history. The second part looks at the discrete issues of overrepresentation, policing, deaths in custody, and access to justice in the context of neo-colonialism. The third part addresses contemporary Indigenous experiences of criminal justice reform and resistance. Finally, the conclusion reflects on the possibilities of an Indigenous criminology.

Colonial History

The place of Australia's Indigenous peoples within English law was determined during the early part of the nineteenth century, at least to the satisfaction of the British. Although the object of some debate, various judgements confirmed that Aboriginal people were subject to colonial criminal courts. The dominant view was that Aboriginal people had not attained either the numbers or the status of "civilised nations" that could be recognised as sovereign states governed by their own laws. Upon settlement and possession of the land, there was only one sovereign, the King of England, and only one law, English law. Aboriginal people in the colony became the subjects of the King. The Privy Council was to confirm the doctrine of settlement and terra nullius in *Cooper v Stuart* in 1889. According to the dominant view, Aboriginal people were without sovereignty and their land had been peacefully annexed to the British dominions.

However, the positioning of Aboriginal people as British subjects, and later as Australian citizens, was always—and remains—deeply ambiguous and contested. In many parts of Australia, the police and courts were not simply enforcing the criminal law. They were extending the reach of British jurisdiction over resisting Indigenous peoples. For Aboriginal people, the first contact they may have had with the criminal justice system was with the police acting as a paramilitary force of dispossession, dispensing summary justice, and—on some occasions—involved in the indiscriminate massacre of clan and tribal groups. There was never any doubt, at the time, that Indigenous peoples and colonisers were indeed at war; in parts of south-eastern Australia during the late eighteenth and early nineteenth century; in Tasmania during the 1820s and early 1830s; and in Queensland and Western Australia during the mid to latter half of the nineteenth century (Cunneen 2001). The War of Extermination, as it was sometimes referred to, meant that the rule of law as a constraint on arbitrary power and as a guarantee of equality before the law was suspended in relation to the murder of Aboriginal people. Indigenous peoples were simultaneously placed inside the legal space of English law, but outside its protection.

The place of Indigenous peoples in Australia was to change again from the end of the nineteenth century and during the course of the twentieth century with a shift in government policy towards "protection". Protection legislation saw many Indigenous individuals and communities—particularly those seen as unable to demonstrate the level of "civilisation" required to exercise citizenship rights—spatially segregated on reserves and missions. Reserves and missions administered their own penal regimes outside of—and essentially parallel to—existing formal criminal justice systems. Other processes of racialized justice abounded through curfews and segregation (Cunneen 2001), while child removal policies created further generations of institutionalised Indigenous peoples (NISATSIC 1997). These policies and practices reflected various racial assumptions. Some built on "science" like eugenics. Others reflected popular prejudices about the social, cultural, and biological inferiority of Indigenous people.

Numerous legislative controls and eligibility restrictions existed on movement, residence, education, healthcare, employment, voting, workers compensation, welfare, and social security entitlements. For example, many Aboriginal people were disqualified from receiving entitlements, including old age, invalid and widow's pensions, child endowment, and maternity allowances. Discriminatory restrictions on social security benefits were not completely lifted until 1966 (Chesterman and Galligan 1997).[1] Various governments put in place controls over the employment, working conditions, and wages of Indigenous workers. These controls allowed for the non-payment or underpayment of wages to some Aboriginal workers—which amounted to forced labour and bordered on a type of slavery—and the diversion of wages into Aboriginal trust funds and savings accounts, which were then rorted[2] through various negligent and corrupt practices (Senate Standing Committee on Legal and Constitutional Affairs 2006).

Given the depth of contemporary Indigenous detriment across all social, educational, health, and economic indicators (SCRGSP 2014), and the active role played by the state in controlling Aboriginal people's lives, the outcome of this colonial process was one of *immiseration* (Senate Standing Committee on Legal and Constitutional Affairs 2006). Contemporary problems of overcrowded housing, low incomes, chronic health issues, lower life expectancies, poor educational outcomes, child protection concerns—precisely the factors known to be associated with higher levels of violence and offending—can be related in various degrees to state control of Indigenous lives (Cunneen and Tauri 2016). In other words, contrary to some criminological interpretations (see, for example, Weatherburn 2014), the outcomes of colonialism have a direct bearing on the contemporary situation of Indigenous peoples in the criminal justice system.

Neo-Colonialism

Neo-colonialism refers to the ongoing processes and outcomes of colonial control which exist within a framework of formal equality (Cunneen 2001). Criminalisation is a key process that disrupts Indigenous communities and maintains extensive state control.

Overrepresentation

The imprisonment of Indigenous peoples has been increasing since the 1980s and is, in recent decades, growing more rapidly than non-Indigenous imprisonment rates. On 30 June 2015, there were 9264 Indigenous peoples in Australian prisons or 27% of the total prison population. Indigenous peoples were imprisoned at a rate 13 times greater than their non-Indigenous counterparts (ABS 2015). In the decade between 2005 and 2015, Indigenous imprisonment rates had risen by 30%, while at the same time the non-Indigenous imprisonment rate rose by 12% (ABS 2015). Thus, while the use of imprisonment has increased for all people, the increase is more pronounced for Indigenous people. Criminal victimisation rates for Indigenous peoples are also much higher than the rates found in the general population, particularly for Indigenous women who—compared to non-Indigenous women—are 10 times more likely to be a victim of homicide, 45 times more likely to be a victim of domestic violence, and twice as likely to be the victim of sexual assault (ATSISJC 2006).

The causes of overrepresentation are complex, and there is a need for a multifaceted conceptualisation of Aboriginal overrepresentation which goes beyond single causal explanations such as poverty, racism. An adequate explanation involves analysing interconnecting issues. Such issues include historical and structural conditions of colonisation, social and economic marginalisation, and institutional marginalisation. At the same time, the analysis needs to consider the impact of specific—and sometimes quite localised—practices of the criminal justice system and its related agencies (Cunneen 2001). The structural conditions of poverty create fertile ground for the crimes of the powerless. But, as we noted above, these conditions did not magically appear; they were created under the particular conditions of colonialism. The recent increases in Indigenous imprisonment have also occurred within particular political contexts of more punitive approaches to law and order, including restricted access to bail, longer sentences, and increasing risk aversion in relation to probation and parole (Cunneen et al. 2013).

Deaths in Custody

The Royal Commission into Aboriginal Deaths in Custody (RCADIC) was established in 1987 after a political campaign waged by Indigenous organisations and the families of Indigenous peoples who had died in custody. At the time, it was unclear how many deaths had occurred in custody or indeed how many Indigenous people were held in police custody or prison. In the end, the Royal Commission investigated 99 deaths of Indigenous people, most of whom had died in police custody (Johnston 1991). The RCADIC found that the high number of Indigenous deaths in custody was directly relative to the overrepresentation of Indigenous peoples in custody. The RCADIC found that the failure by custodial authorities to exercise a proper duty of care was a major issue. There was little understanding of the duty of care owed by custodial authorities. There were many system defects in relation to exercising care and many failures to exercise proper care. In many cases, both the custody and the failure to offer proper care were directly related to the person's Aboriginality. In many cases, assumptions were made that a seriously ill person was drunk, which, for example, led to the deaths of Mark Quayle and Charles Kulla Kulla. In these cases, assumptions were made that stereotyped Aboriginal people as alcohol-dependent. The failure to exercise a proper duty of care contributed to, or caused, the death in custody by failing to properly assess the health of the person in custody (Cunneen 2001).

More recent deaths of Indigenous people in custody continue to illustrate the problems of racism, ill-treatment, and the failure to exercise a duty of care. For example, the role of the police in the deaths of Cedric Trigger in 2010 and Kwememtyaye Briscoe in 2012—both of which occurred in Alice Springs Watchhouse—was heavily criticised by the coroner particularly in relation to the multiple failings that allowed the deaths to occur (Cunneen forthcoming).

Policing

To a significant degree, police determine who enters the criminal justice system, and how individuals enter it, particularly for summary offences. The use of discretion is a central part of police work, and police must continually decide whether to intervene and how to intervene. The available evidence shows that police discretionary decisions work against the interests of Indigenous people. For example, in the case of juveniles, various studies—conducted over the last two decades—have found that Indigenous young people do not receive the benefit of a diversionary police caution to the same

extent as non-Indigenous young people (Cunneen et al. 2015). Further, Indigenous young people are more likely to be proceeded against by way of arrest and bail, and to be held in police custody, and are less likely to be summoned before the court than non-Indigenous youth. The process of summons is a less punitive way of intervening and does not involve the consideration of bail and its consequences such as bail refusal or punitive bail conditions (Cunneen et al. 2015).

The differential policing of Indigenous peoples in public places has been raised as an issue since at least the late 1960s (Cunneen 2001). The problem was reiterated in the investigations by the RCADIC where the majority of deaths involved the use of custody for minor offences. More recently, the Law Reform Commission of Western Australia found that police use of move-on powers[3] in Perth was being issued to Aboriginal people in inappropriate circumstances. The commission found that "in some cases, Aboriginal people are being targeted by the police for congregating in large groups in public areas even though no one is doing anything wrong" (Law Reform Commission of Western Australia 2006, 206).

Problems with racist abuse by police officers towards Indigenous people also continue. The South Australian Police Ombudsman recently commented on the inadequate disciplinary sanctions imposed on officers where racial abuse against Indigenous people was found proven. The use of force is also an ongoing issue (Grant 2015). Independent inquiries in Queensland and NSW found that Indigenous people were more likely to be subjected to both the use of tasers and OC spray than other members of the public (Cunneen forthcoming).

Access to Justice

The existing barriers that prevent Indigenous people from accessing justice are well documented (Productivity Commission 2014). Socio-economic disadvantage and related issues are particularly relevant to accessing legal assistance. For example—compared with non-Indigenous peoples—Indigenous peoples experience lower levels of English literacy and numeracy, higher levels of hearing loss, higher levels of disability, higher levels of psychological distress, higher rates of self-harm, the effects of childhood removal, higher levels of drug and alcohol addiction, and geographic isolation. All these factors are likely to inhibit Indigenous access to justice. In addition, funding for Aboriginal Legal Services and Family Violence Prevention Legal Services has not kept pace with service delivery and has led to cuts in frontline services,

law reform, and advocacy work (Productivity Commission 2014). Failure to access justice to resolve legal problems leads to a range of adverse legal and social outcomes.

In terms of neo-colonialism, the overrepresentation, the criminalisation, and policing of Indigenous peoples, and the lack of access to justice procedures reproduce social, economic, and political marginalisation. These various forms of marginalisation were themselves initially created through the processes of colonisation.

Contemporary Indigenous Experiences

There has been extensive documentation of the suffering of Indigenous people under the imposed criminal justice system. The most comprehensive works to date have been the RCADIC (Johnston 1991) and the National Inquiry into Racist Violence (Human Rights and Equal Opportunity Commission 1991). Both examined the reasons for Indigenous overrepresentation within the mainstream criminal justice system. The findings and recommendations of these national reports provided the blueprint for the past 25 years of Australian criminal justice reform. The nature of this reform has been two-pronged and has included efforts targeted at both addressing the underlying causes of crime and altering the practices and institutions of the criminal justice system (Cunneen 2006). However, despite these and other reform efforts, incarceration rates for Indigenous Australians remain at unacceptably high levels.

The following section outlines key reform efforts and reflects on some of the challenges in realising meaningful change in criminal justice law and policy. Our examination of reform efforts is intentionally broad and considers both formal state-initiated reform efforts and alternative community-initiated reform efforts.

Circle Sentencing and Indigenous Courts

One feature of recent reform efforts has included the development of Indigenous sentencing courts and circle sentencing. Indigenous sentencing courts involve the participation of Indigenous community members in the sentencing of Indigenous offenders and other efforts aimed at improving the cultural appropriateness of sentencing. Some Indigenous sentencing courts operate informally, while others are governed through legislative frameworks

such as the *Magistrates' Court (Koori Court) Act 2002 (Vic)* which added Section 4D to the *Magistrates' Court Act 1989 (Vic)* to establish the Koori Court Division, and the *Statutes Amendment (Intervention Programs and Sentencing Procedures) Act 2003 (SA)* which led to amendments to the *Criminal Law* (*Sentencing) Act 1988 (SA)* and, later, the creation of the *Intervention Orders (Prevention of Abuse) Act 2009 (SA)*.

At present, Indigenous sentencing courts exist in various locations within several Australian jurisdictions: South Australia, NSW, Victoria, Queensland, and Western Australia. By way of example, the Nowra Circle Court is made up of four Elders from the local community. They oversee the sentencing of Indigenous young people who have elected to take part in the programme. Established in February 2002, sessions of the Nowra Circle Court are held in the South Coast Aboriginal Cultural Centre and are presided over by a magistrate, who travels there as part of a circuit.

Generally speaking, Indigenous sentencing courts have been evaluated in positive terms (Marchetti 2015; Marchetti and Daly 2004). Research suggests that offenders find Indigenous courts more challenging and confronting than mainstream courts (Marchetti 2015). Similarly, sentencing courts play a role in improving communication and understanding between judicial officials, offenders, and the Indigenous community (Marchetti and Daly 2007). Other benefits include improving a sense of inclusiveness; transparency and accountability in sentencing outcomes for Indigenous offenders; and providing the opportunity for community input over the sentencing process. Shortcomings of Indigenous courts include their limited reach in terms of both jurisdiction and eligibility; the relatively small proportion of Indigenous offenders sentenced before such courts; and, more generally, questions regarding the meaningfulness of Indigenous agency and oversight over court sentencing processes (Cunneen and Tauri 2016).

State Police Reform

Another key feature of reform has centred on changing the policies and practices of the state police. While the precise content and scope of police reform varies considerably across jurisdictions, in general terms, reform efforts have included the recruitment of Indigenous personnel and commitments to improve the cultural competency of non-Indigenous police.

The first of these features has involved the recruitment of Aboriginal and Torres Strait Islander personnel, either as sworn police officers or as unsworn community liaison officers. Indigenous people are underrepresented amongst

both sworn police officers and more generally as employees of the state and territory police departments. Evidence suggests a high attrition rate, difficulties in recruiting and retaining Indigenous police officers; female Aboriginal police officers in particular (NSW Ombudsman 2005). In addition to issues in recruitment and retention of Indigenous police, research suggests that police working culture is hard to change at an institutional level (Chan 1997; Wood 1997). Chan (1997) highlighted the entrenched and highly institutionalised nature of racism within the working culture and socialisation processes of the state police. The study concluded that police racism can only be explained as a "deep phenomenon" (222) embedded within police culture. It cannot be explained merely by identifying individual police officers who are racially prejudiced.

The second feature of police reform has focussed on educating police officers in cultural competency. Cross-cultural advisory units exist in every police force in Australia, overseeing the education and training of police officers in cross-cultural issues including communication (Chan 1997). The rationale was that educating police officers about Aboriginal culture and cultural competency would effectively redress the ignorance underlying racist attitudes and discriminatory practices. Limitations of cultural competency have been threefold. Psychological research emphasises the deeply embedded and persistent nature of racial prejudices, race–crime associations, and unconscious bias (Eberhardt et al. 2004). At an interpersonal level, despite the best intentions of training and education programmes, eradicating racial stereotypes is an arduous task (Wortley and Homel 1995). At a systemic level, cross-cultural training assumes that ignorance lies at the heart of the problem and is unlikely to touch biases that arise at both the operational and institutional levels of the state police. For example, an emphasis on training ignores policies—such as zero tolerance policing towards certain behaviours—and specific criminal laws such as paperless arrest laws in the Northern Territory that police officers enforce.

Indigenous Resistance and Resilience

The last two decades have also seen significant resistance to injustices before the criminal justice system in the form of protest, strategic litigation, class action, and artistic-creative means. One high-profile example is the resistance and advocacy work by the Aboriginal community of Palm Island, who have headed a fierce campaign for justice since a high-profile death in custody in 2004. The most recent of these efforts, which have included protests and

strategic litigation, includes the recent launching of a class action against the Queensland Government on the grounds of racial discrimination for its response to events in Palm Island in 2004. Another example is the national campaign for justice for the death in custody of Ms Dhu, a 22-year-old Yamatji woman, who died while in police custody on a warrant for unpaid fines. The campaign includes National Days of Action, public forums, and advocacy work; all organised by Ms Dhu's family in conjunction with Deaths in Custody Watch Committee and the Aboriginal Legal Service of Western Australia.

In addition to these and many other examples of Indigenous resistance, the creative work of Indigenous musicians, artists, and filmmakers has also played an important role in advocating for criminal justice reform. Criminologists have begun to document the important contribution of Indigenous artists in adding voices and perspectives to criminological discourses on criminal justice and reform (Cunneen 2010). However, the contribution of "outsider criminologists" within criminology has not been fully recognised (Porter 2016b). Examples of notable Indigenous "outsider criminologists" include Richard Frankland, a playwright whose works include an award-winning documentary on the interpersonal, systemic, and structural racism that underlies the circumstances of the death of Malcolm Smith (Frankland 1992); and Kev Carmody, a songwriter whose music addresses issues of policing, colonialism, and crimes of the powerful. Notable titles include "Though Shalt Not Steal", "Rivers of Tears", "Black Deaths in Custody", and "Eulogy".

Indigenous Security

Another feature of reform has included initiatives such as night patrols, street beats, and alternative forms of self-policing. Indigenous patrols are locally run initiatives with formal agendas that focus on keeping young people safe and on preventing contact between Aboriginal young people and the state police. Patrols operate in a diverse range of urban, rural, and remote settings across some Australian jurisdictions (Blagg 2003). Blagg (2008) estimated that approximately 130 such patrols operate in Australia; with around two-thirds of these being located in rural and remote parts of Western Australia and the Northern Territory.

The core features of patrol work include independence from state police, a consensual basis of operations, and a connection to the local Indigenous community (Porter 2016a). Indigenous night patrols are distinctive from formal reform efforts that sought to alter the state police, in that a key part of

their agenda is to minimise Aboriginal people's contact with the criminal justice system. Importantly, patrols function independently of the state police and are—at least in theory—connected in some way to the local Aboriginal community within which they operate. In practice, they operate with varying levels of community input or involvement from the Aboriginal community. As this implies, patrols do not fall neatly in either the governmental or autonomous reform efforts and occupy what scholars have termed third or hybrid spaces (Blagg 2008; Cunneen 2001).

Despite variation and diversity amongst initiatives, broad unity can be seen at the level of key functions, which in NSW includes providing transport, maximising safety, the mentoring of Indigenous young people, preventing harmful behaviour, and maximising the safety of young people who "fall through the cracks" of the system (Porter 2016a). Research suggests that the everyday activities of patrols extend beyond Western concepts of policing, crime prevention, and social work and that they provide a much more encompassing cultural service for Indigenous youth (Porter 2016a). It is perhaps, for this reason, that—with few exceptions (Blagg 2003, 2008; Cunneen 2001; Langton 1992)—the contribution of Indigenous patrols has largely escaped the attention of criminologists.

Community Justice Initiatives

There exists a diverse range of community justice initiatives that currently operate in Aboriginal and Torres Strait Islander communities across Australia. Though making an important contribution to a diverse range of issues facing the local community—be it mentoring, healing, police–community relations, or confronting stereotypes—community justice mechanisms have, just like night patrols, largely escaped the attention of criminologists and policy-makers.

Community justice initiatives are locally community-controlled programmes and services focussing on a range of justice and sovereignty issues, designed and delivered by local Aboriginal corporations and personnel. While not all of these initiatives operate with an explicit or exclusive focus on community safety and wellbeing, they are holistic programmes and services targeting a range of issues specifically identified as priorities for the local communities. Four examples follow. Firstly, the Tribal Warrior Association, a not-for-profit community organisation, operates a range of initiatives including mentoring programmes, training programmes, and other cultural activities in Redfern, Sydney (Phillips 2016). One of its initiatives is Shane Phillips's Clean Slate

Without Prejudice (CSWP), a boxing programme based at the National Centre for Indigenous Excellence, aimed at providing an opportunity for Indigenous young people and local police officers to exercise and socialise in an informal setting. Secondly, the Gamarada Community Healing and Leadership Program convenes workshops at the Redfern Community Centre, Sydney, providing training sessions in cultural strength and therapeutic change (Zulumovski 2016). Thirdly, Uncle Alfred's Men's Group is a volunteer service based in Townsville, North Queensland, for young men caught up in the juvenile justice system. Lastly, Tirkandi Inaburra Cultural and Development Centre is a retreat programme in Coleambally, NSW, allowing young Aboriginal boys to engage in educational, sport, life skill, and cultural activities.

Conclusion

There is a growing recognition of the Eurocentric focus in criminological studies and the importance of moving towards a post-colonial or counter-colonial criminology (Agozino 2003; Cunneen and Rowe 2014; Cunneen and Tauri 2016; Deckert 2014). Historically, criminology as a discipline has not always raised questions or developed theoretical frameworks, which are necessarily fitting when applied to Indigenous criminal justice issues. The work of radical and critical criminology changed the criminological gaze to include activities such as state crimes, genocide, and the forced removal of children from their families. However, some criminologists have raised concerns about the cultural "baggage" of even the most "critical" schools within criminology—including radical criminology and critical criminology—when applied to Indigenous issues (Blagg 2008; Carrington et al. 2016; Cunneen and Rowe 2014; Cunneen and Tauri 2016; Porter 2016b).

As begins to emerge from the above discussion, criminology has long neglected the contribution of Indigenous peoples, communities, and initiatives to the Australian polity. Criminology has been slow to recognise the contribution of Indigenous night patrols, Indigenous justice mechanisms, and other examples of Indigenous governance.

Criminology has been similarly slow to recognise the relevance of Indigenous knowledge to matters of scholarship, policy, and reform on criminal justice matters. These epistemological challenges impact on a range of matters including research ethics, relationships with communities, the use of engaging methodologies, and the focus of research and its outcomes. There is also an alarming failure by mainstream criminology to engage with

Indigenous scholarship. For example, one of the earliest academic papers to appear on the subject of night patrols was written by Langton (1992), who saw their potential for providing an effective alternative to state intervention. Criminologists did not take up the topic for at least a decade. Similarly, few contemporary criminologists engage with the work of the Aboriginal and Torres Strait Islander Social Justice Commissioners, despite the fact that comprehensive scholarship has been produced on a range of topics including justice reinvestment, violence against Indigenous women, post-release, and prison issues. Finally, the writings and creative works of Indigenous "outsider criminologists" have barely made an indent into the criminological consciousness. In the light of renewed calls to "democratise the toolbox of criminology" (Carrington et al. 2016, 1), the inclusion of Indigenous methodologies—involving the incorporation of Indigenous standpoints, perspectives, methodologies, vocabularies, and priorities in a way that is more cognizant of the standpoint of the researcher—seems imperative in this regard. When we seek out and listen to these voices—many of which have been largely silenced in both political debate and academic scholarship—they have some important things to say about criminal justice.

Notes

1. And were re-introduced in the Northern Territory Intervention in 2007 (Cunneen and Tauri 2016).
2. To 'rort the system' is an Australian and New Zealand expression for 'taking wrongful advantage of the system'.
3. Police move-on powers exist in most Australian jurisdictions. The powers enable police to issue a direction to individuals or groups "to move away from a certain public place for a certain period of time, in circumstances where they are about to commit an offence, are creating an obstruction, or are causing anxiety to those around them" (Walsh and Taylor 2007, 151).

References

ABS. 2015. *Prisoners in Australia, 2015*. Cat. no. 4517.0. Canberra: ABS.

Agozino, Biko. 2003. *Counter-Colonial Criminology: A Critique of Imperialist Reason*. London: Pluto Press.

ATSISJC. 2006. *Ending Family Violence and Abuse in Aboriginal and Torres Strait Islander Communities*. Sydney: AHRC.

Blagg, Harry. 2003. *An Overview of Night Patrol Services in Australia*. Canberra: Department of Justice and Attorney-General.

Blagg, Harry. 2008. *Crime, Aboriginality and the Decolonisation of Justice*. Leichhardt: Hawkins Press.

Carrington, Kerry, Russell Hogg, and Maximo Sozzo. 2016. Southern Criminology. *British Journal of Criminology* 56 (1): 1–20.

Chan, Janet B.L. 1997. *Changing Police Culture: Policing in a Multicultural Society*. Melbourne: Cambridge University Press.

Chesterman, John, and Brian Galligan. 1997. *Citizens without Rights*. Melbourne: Cambridge University Press.

Cunneen, Chris. 2001. *Conflict, Crime and Politics*. Sydney: Allen & Unwin.

Cunneen, Chris. 2006. Racism, Discrimination and the Over-Representation of Indigenous People in the Criminal Justice System: Some Conceptual and Explanatory Issues. *Current Issues in Criminal Justice* 17: 329–346.

Cunneen, Chris. 2010. Framing the Crimes of Colonialism: Critical Images of Aboriginal Art and Law. In *Framing Crime: Cultural Criminology and the Image,* eds. Keith Haywood and Mike Presdee, 115–137. London: Routledge.

Cunneen, Chris. Forthcoming. Police Violence: The Case of Indigenous Australians. In *The Wiley Handbook on Violence and Aggression*, ed. Peter Sturmey. Hoboken, NJ: Wiley.

Cunneen, Chris, Eileen Baldry, David Brown, Mark Brown, Melanie Schwartz, and Alex Steel. 2013. *Penal Culture and Hyperincarceration*. Farnham: Ashgate.

Cunneen, Chris, and Simone Rowe. 2014. Changing Narratives: Colonised Peoples, Criminology and Social Work. *International Journal for Crime, Justice and Social Democracy* 3 (1): 49–67.

Cunneen, Chris, and Juan Tauri. 2016. *Indigenous Criminology*. Bristol: Policy Press.

Cunneen, Chris, Rob White, and Kelly Richards. 2015. *Juvenile Justice. Youth and Crime in Australia*. Melbourne: Oxford University Press.

Deckert, Antje. 2014. Neo-Colonial Criminology: Quantifying Silence. *African Journal of Criminology and Justice Studies* 8 (1): 39–63.

Eberhardt, Jennifer L., Phillip A. Goff, Valerie J. Purdie, and Paul G. Davies. 2004. Seeing Black: Race, Crime and Visual Processing. *Journal of Personality and Social Psychology* 87 (6): 876–893.

Frankland, Richard. 1992. *Who Killed Malcolm Smith?* DVD. Melbourne: Film Australia.

Grant, Michael. 2015. *Police Ombudsman Annual Report 2015*. Adelaide: Office of the Police Ombudsman.

Human Rights and Equal Opportunity Commission. 1991. *National Inquiry into Racist Violence: Report of National Inquiry into Racist Violence*. Sydey: Human Rights and Equal Opportunity Commission.

Johnston, Elliott. 1991. *National Report of the Royal Commission into Aboriginal Deaths in Custody*. Canberra: RCIADC.

Langton, Marcia. 1992. *Aborigines and Policing: Aboriginal Solutions from Northern Territory Communities*. Canberra: Australian Aboriginal Studies.

Law Reform Commission of Western Australia. 2006. *Aboriginal Customary Laws, Final Report*. Perth: Law Reform Commission of Western Australia.

Marchetti, Elena. 2015. An Australian Indigenous-Focused Justice Response to Intimate Partner Violence: Offenders' Perceptions of the Sentencing Process. *British Journal of Criminology* 55 (1): 88–106.

Marchetti, Elena, and Kathleen Daly. 2004. *Indigenous Courts and Justice Practices in Australia*. Canberra: AIC.

Marchetti, Elena, and Kathleen, Daly. 2007. Indigenous sentencing courts: Towards a theoretical and jurisprudential model. *Sydney Law Review* 29 (3), Sept 2007, 415–443.

NISATSIC. 1997. *Bringing Them Home*. Sydney: Australian Human Rights Commission.

Ombudsman, N.S.W. 2005. *Working with Local Aboriginal Communities: Audit of the Implementation of the NSW Police Aboriginal Strategic Direction (2003–2006)*. Sydney: NSW Ombudsman.

Phillips, Shane. 2016. Clean Slate Without Prejudice. http://tribalwarrior.org/training-and-mentoring/clean-slate-without-prejudice/. Accessed 1 Aug 2016.

Porter, Amanda. 2016a. Decolonizing Policing: Indigenous Patrols, Counter-Policing and Safety. *Theoretical Criminology*. doi:10.1177/1362480615625763.

Porter, Amanda. 2016b. Outsider Criminology: Lessons for Criminology from beyond the Ivory Tower. Paper presented at National Centre for Indigenous Studies, ANU, March 30, in Sydney.

Commission, Productivity. 2014. *Access to Justice Arrangements*. Canberra: Australian Government.

SCRGSP. 2014. *Overcoming Indigenous Disadvantage: Key Indicators 2014*. Canberra: Productivity Commission.

Senate Standing Committee on Legal and Constitutional Affairs. 2006. *Unfinished Business: Indigenous Stolen Wages*. Canberra: Commonwealth of Australia.

Walsh, Tamara, and Monica Taylor. 2007. 'You're Not Welcome Here': Police Move-On Powers and Discrimination Law. *University of New South Wales Law Journal* 30 (1): 151–173.

Weatherburn, Don. 2014. *Arresting Incarceration: Pathways out of Indigenous Imprisonment*. Canberra: Aboriginal Studies Press.

Wood, James R.T. 1997. *Final Report*. Sydney: The Royal Commission into the NSW Police.

Wortley, Richard, and Ross Homel. 1995. Police Prejudice as a Function of Training and Outgroup Contact: A Longitudinal Investigation. *Law and Human Behavior* 19 (3): 305–317.

Zulumovski, Ken. 2016. Gamarada Indigenous Healing & Life Training—Community Empowerment. http://www.gamarada.org.au/. Accessed 1 Aug 2016.

Author Biographies

Chris Cunneen is Professor of Criminology at UNSW and Adjunct Professor at James Cook University. He has published widely on Indigenous legal issues, juvenile justice, penalty, and restorative justice. Recent books include *Justice Reinvestment* (Palgrave Macmillan 2016) and *Indigenous Criminology* (Policy Press 2016).

Amanda Porter is a Postdoctoral Fellow at Jumbunna Indigenous House of Learning, the University of Technology Sydney. Her research investigates the relationships between Aboriginal and Torres Strait Islander communities and the state police. She is a descendant of the Brinja clan of the Yuin people in South Coast New South Wales.

45

Māori Experiences of Colonisation and Māori Criminology

Robert Webb

The criminal justice system in Aotearoa is an area of ongoing social concern. For the indigenous Māori population, the contemporary situation is similar to that of many other Indigenous peoples, with Māori at 15% of the general population experiencing disproportionate levels of contact with the criminal justice system as offenders and experiencing high levels of victimisation. In explaining this situation, a number of discernible discourses have constructed Māori as a population in need of active state intervention, a common theme that has remained entrenched from the colonial period to the present. However, Indigenous perspectives have remained largely absent from, and on the fringes of, criminological theorising. Explaining why this situation has developed, and finding solutions to address it, poses a number of challenges. To understand this situation more fully requires an examination of the historical, social, economic, and political complexities that shape the distinctive social position and cultural world of Māori and non-Māori in Aotearoa.

The chapter will provide a summation of some key ideas, themes, and examples from different analyses of Māori experiences of justice. The first part of this chapter provides a brief historical discussion of the development of the justice system as part of the expansion of colonial assimilation policies in the nineteenth century and growing overrepresentation from the twentieth century. The next section explores the significant research, most of which was

R. Webb (✉)
School of Social Sciences, University of Auckland, Auckland, New Zealand
e-mail: robert.webb@auckland.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_45

conducted in the 1980s, into Māori and the criminal justice system. This is followed by an overview of several criminal justice responses, and the key understandings and concerns regarding victimisation for Māori. The final section outlines some distinct elements of Māori criminology.

Colonial Period

Māori, as the Indigenous peoples of Aotearoa, record a 1000-year history of settlement. The British, prior to any large-scale political relationship, had acknowledged Māori tribal organisation and political structures in He Whakaputanga o te Rangatiratanga o Nu Tireni: The Declaration of Independence of 1835. Written by the official British Resident at that time, the document recognised the independence and collective authority held by Northern rangatira as chiefs of iwi (tribes). The signing of Te Tiriti of Waitangi (The Treaty of Waitangi) in 1840 by various iwi nationally with the British colonial leaders affirmed Māori political authority and rights over their lands and territories including those of sovereignty and tino rangatiratanga. The guarantees recognised Māori control and ownership of resources under the structures of iwi, hapū (subtribe), and whānau (extended family). This marked the onset of colonisation, and the Treaty of Waitangi formed the basis of Crown settlement and sovereignty. A rapid erosion of the rights and guarantees followed, as the British and then colonial settler state set about extending control over larger areas of the country (Mutu 2011). The Waitangi Tribunal (2014, 526–527) conducted an extensive analysis of this period and concluded that the rangatira who signed Te Tiriti in 1840 did not cede sovereignty to the British and that the authority to make and enforce law over their people or their territories was retained.

Māori justice and social control historically operated at the community level, both prior to and after colonisation. Māori justice and understandings of wrongdoing were intertwined with social organisation and beliefs. Communally based and structured by kinship relations or whakapapa (genealogical links), the social and political organisation was maintained within politically autonomous tribal groupings and was subject to a range of elements central to tikanga. Tika refers to right and proper, and pono is to be true and honest. Whanaungatanga and kin relationships emphasise responsibility and reciprocity and reinforce the commitment and responsibilities of whānau members to each other. Māori values are structured around these principles of collective responsibility. Māori social structures and spiritual beliefs determine what is considered to be hara or wrongdoing. Behaviour

that transgresses tikanga, the breaching of tapu, or the disruption to community harmony, is considered wrongdoing. Dispute resolution is guided by a variety of principles that emphasise Māori communal and spiritual values. Dispute resolution is understood in communal rather than individual terms and could involve community members or elders to oversee the process of muru. It could involve a person of rank related to both parties, or disputes could be adjusted between the parties themselves, involving a greater or smaller group of kin (Walker 1990).

Encountering Māori justice practices during nineteenth-century colonisation of the country, the British set about transforming them into processes consistent with English legal philosophy. Māori practices were increasingly replaced with British-derived ones. The establishment of the settler state, racial assimilation policies progressively undermined and disrupted traditional tribal practices and authority. A rūnanga or locally based committee system was developed to recognise Māori authority over justice for tribal members. As part of an amalgamation policy, the ultimate aim was to encourage Māori to discard their own cultural practices and to accept British authority and legal concepts instead (Ward 1995).

Under the *Resident Magistrates Ordinance 1847*, Māori chiefs were appointed as assessors for magistrates in court hearings held in Māori areas. When the rūnanga were empowered, they were given limited control over local matters in Māori districts. The *Native District Circuit Courts Act 1858* also allowed Māori assessors to enforce bylaws for minor issues on their own. In this manner, the colonial government expanded its authority over the country, in both Māori and European areas.

The suppression of Māori justice and political independence can be understood in the wider political and social context of expanding settler colonial power. The New Zealand Land Wars involved military force and violent invasion into Māori districts tribal lands, as settler demand for land increased (Belich 1996). The settler government implemented legislation to justify actions against Māori who resisted state control. This legislation included the *Suppression of Rebellion Act 1863*, which punished any Māori deemed to be in rebellion against the Crown through the confiscation of land. The *Land Settlement Act 1863* also allowed the confiscation of Māori land in any district where Māori were deemed by the state to be in rebellion. The *Māori Prisoners Trials Act 1879* allowed the government to break the Māori resistance in Parihaka through imprisonment of Māori without trial. Indeed, Smandych (2013) draws attention to the legal system as a central settler state institution for colonisation and the dispossession of Indigenous peoples.

Racial assimilation policies included the establishment of Native Schools, with instruction in English. In 1877, the Wi Parata court decision by Justice Prendergast declared the Treaty a nullity, with this decision denying the validity of Treaty and Māori rights for nearly a century until the formation of the Waitangi Tribunal in 1975.

This consolidation of colonial control and the active marginalisation of Māori justice allowed for the implementation of British legal concepts by the end of the nineteenth century. With the growing consolidation of British legal control and the establishment of colonial government over the country, forms of punishment were applied to Māori as well as Pākehā. These included the growing use of the prison as a form of punishment for Europeans and also Māori, and the silencing of Māori justice practices by the state (Pratt 1996).

The consequences of colonisation went wider than the justice system. By the end of the nineteenth century, large parts of Māori traditional lands were in state or settler control, and Māori were marginalised to rural remnants of their former territories.

Overrepresentation in the Twentieth Century

The legacy of this colonial history is the ongoing social marginalisation of Māori, including extensive criminalisation and social control by the neo-colonial state. From the latter half of the twentieth century, as Māori urbanised, the number of Māori entering into criminal justice processes from arrests and convictions showed incremental increases. The contemporary situation is similar to that of other Indigenous peoples who have experienced widespread dispossession in Anglo-settler countries. Māori continue to be disproportionately recorded in criminal justice processes, with high rates of apprehensions and convictions, resulting in various responses including community sanctions and incarceration. Māori constitute approximately 50% of male and 60% of female prisoners, with these figures described as the mass incarceration of Māori (Workman 2011). Criminal justice interventions also disproportionately affect Māori children and young people. Those aged 10–16 years accounted for 62% of Youth Court prosecutions, and despite changes to youth justice processes involving restorative justice and family group conferencing, Māori youth still predominate in those sentenced to youth justice institutions (Youth Court 2015).

Māori Critiques of the Justice System

Māori have actively sought to have tino rangatiratanga recognised. In the 1970s and 1980s, protests increasingly challenged the state's history of marginalising Māori political authority, the destruction of the tribal economic base through land alienation, and the weakening of Māori culture through assimilation policies (Poata-Smith 1996). Māori challenged the state's inability to address the social problems in communities, and large national summits like the Hui Taumata Māori Economic Summit in 1984 promoted Māori self-determination in the development and control of Indigenous solutions.

In this context, Moana Jackson's (1988) significant report recorded Māori concerns over justice. It forms an enduring critique of the criminal justice system in Aotearoa. The report, *Māori and the Criminal Justice System: He Whaipānga Hou,* is a history of the state's criminal justice responses to Māori. The report examined why Māori became offenders and the interactions and responses from the New Zealand criminal justice system. The approach was to examine from Māori knowledge frameworks, the consequences, and causes of offending. The study widely consulted with Māori communities, justice officials, policy makers, and inmates. The report found that Māori justice practices had been marginalised through colonial practices that imposed British law onto Māori. Māori practices and philosophies were denigrated and suppressed to the point where they no longer operated in Māori communities. The marginalisation of Māori political authority through colonisation subjected Māori to a legal and justice system that reflected Pākehā values and defined Māori rights according to this imposed system. This British-derived conception of law denied the validity of Māori rights and customs and rejected the relevancy of Māori justice for Māori people. Understandings of Māori justice had become redefined and denigrated from a Pākehā worldview that hid behind the rhetoric of 'justice for all'. The justice system reflected an imposed European cultural system, and, as Māori values were excluded, it was institutionally racist and biased. This was one reason why criminal justice responses remained ineffective for dealing with Māori offenders, as they were alienated from the system's cultural values.

Consistently, research into Māori criminal behaviour has lacked attention to Māori experiences of justice. Most theoretical analyses did not take into account Māori experiences of colonisation and assumed that Māori offending could be explained in the same manner as offending by other groups. Māori offenders, like other offenders in the criminal justice system, were more likely to have experienced poor education, difficulties in family upbringing, unemployment, and

other factors which increased the likelihood of offending behaviour. However, Jackson (1988) saw that for Māori, unlike other offenders, these factors had arisen as a consequence of colonisation, and from a history of social and political policies that had created ongoing disadvantage and marginalisation. Māori social deprivations were the result of state policies that actively sought to suppress Māori culture and economic and political autonomy. Jackson (1988, 26) noted that the 'monocultural basis of Pākehā research into Māori offending has prevented a recognition of these socio-cultural dynamics and the appropriate mechanisms needed to understand them. This has resulted in a raft of 'explanations' of Māori crime which reflect considerable monocultural and theoretical bias but effectively explain very little. Thus, the Māori offender has merely been defined as an urban misfit, a cultural maladept, an educational retard, or the victim of behavioural labelling, while the socio-cultural forces underlying such descriptions have been largely unrecognised.'

This report continues to inform critical understandings of the New Zealand criminal justice system, and the ways indigenous values could inform practices and approaches. These can largely be put into two different categories of explanation. In the first category, traditional Māori philosophies are combined with the existing (non-Māori) theoretical frameworks. These are used to inform the responses to Māori offending that exist within the criminal justice system. In this category, the main justifications for integrating Māori philosophies are to make the criminal justice system more culturally inclusive for Māori. The second category of explanations that use Māori justice philosophies follows an approach which suggests the existing system cannot be reformed to meet Māori needs. Instead, self-determination could inform a Māori justice system, based upon Māori concepts and control.

Wikiriwhi's (1998) analysis, for example, can be placed into the first category of explanations. When discussing Māori offenders with alcohol or drug problems, he referred to the importance of traditional Māori health concepts. The model he described was based upon the four-sided Māori health construct Whare Tapa Whā. In this Māori health model, health has four interrelated components: taha wairua (spiritual well-being), taha hinengaro (mental well-being), taha tinana (physical well-being), and taha whānau (extended family or social well-being) components. Wikiriwhi (1998) noted that treatments were often limited by Pākehā frameworks that did not understand Māori perspectives of health. For treatments to be effective for Māori, Wikiriwhi argued that they had to reflect Māori cultural understandings of health using the Whare Tapa Whā model. However, while criticising the limitations of Pākehā frameworks for treating Māori offenders, Wikiriwhi's broader analysis of Māori offending is still situated within psychological understandings of

offending behaviour. Māori offending is explained as resulting from cognitive problems in the individual, which required treatment as a response.

The co-option of Māori values in state justice practices has led some Māori to reject the possibility of integrating Māori philosophies within the current system. Moana Jackson (1995, 34) summarises the concern with grafting Māori processes onto a state-controlled system: 'No matter how well intentioned and sincere such efforts, it is respectfully suggested that they will merely maintain the co-option and redefinition of Māori values and authority which underpins so much of the colonial will to control. A 'cultural justice system' controlled by the Crown is another colonising artefact.'

Criminal Justice Reforms

This section is a broad introduction to some features of criminal justice reforms over recent decades. In the late 1990s, studies into Māori experiences of policing, and into the police attitudes to Māori identified issues of racism that generated mistrust between Māori communities and the police (Maxwell and Smith 1998; Te Whaiti and Roguski 1998). Bias in police contact with Māori has been explored in quantitative studies into the higher apprehension rates for Māori (Fergusson et al. 1993; Fergusson et al. 2003).

The NZ Police organisation has, since the 1990s, followed a wider inter-agency responsiveness policy to address Māori community concerns. Since this period, this has involved the creation of designated Iwi Liaison Officers' roles across the country to support iwi crime prevention initiatives, and the establishment of a Māori and ethnic services team in National Police Headquarters. The responsiveness strategy has increased the number of Māori staff to around 11% of police staff nationally.

Youth Justice and Family Group Conferencing

Reviews of the state include the 1988 report *Puao-Te-Ata-Tu* (Ministerial Advisory Committee 1988) which identified Māori perspectives on the Department of Social Welfare. Compiled under the guidance of John Rangihau, the report raised concerns over the state institutionalisation of young Māori, and the failure to meaningfully engage with Māori communities over care. In particular, the state's delivery of programmes for Māori was criticised for being culturally inappropriate and ineffective. Concerns were raised over the New Zealand State's continued exclusion of Māori from

decision-making about their lives. Institutional decisions on education, justice, and social welfare had historically been made with little consultation with Māori. The report concluded that the Department of Social Welfare was institutionally racist and that the delivery of services to Māori reflected the dominance of Pākehā values in society. This had caused disruption to Māori social structures, creating social problems rather than addressing them.

As a response, changing interventions were introduced in the youth justice system including family group conferencing and restorative justice, with these expanding as general responses to youth offending after the introduction of the *Children Young Persons and Their Families Act 1989* (CYPFA). The aim of the Act was to divert youth offenders away from the formal justice system, using a 'family group conference' involving the offender's family attending a meeting together with the victim and their family, and social welfare staff guiding the process. Outwardly, the conferences incorporate traditional Māori justice practices. Māori justice practices seek to restore the harmony or balance between parties. The conferences were designed to heal the damage caused by an offender's behaviour, with the support of the offender and the victim's family. This healing approach, consistent with Māori traditional norms, was aimed at reintegrating the offender back into the community. Conferencing would, therefore, cognizant of the possibilities of labelling, help restore balance to the community without further stigmatising the offender, thereby reducing further offending.

There are some criticisms of blending Māori concepts into state justice practices. For example, Tauri (1998) notes that family group conferencing is a largely non-Māori forum that uses only some Māori cultural practices. He argues that CYPFA itself was influenced by Jackson's report criticising ethnocentrism in justice and incorporated Māori components in part due to submissions on the Act by Māori organisations. Family group conferencing was largely non-traditional in practice. Some aspects of Māori custom were applied to a practice largely administered by officials rather than community members in non-Māori venues.

In response to criticisms of criminal justice practices that have challenged the legitimacy of the state's authority, the New Zealand state has incorporated some Māori values and practices into criminal justice from the 1980s, particularly through family group conferencing. The indigenisation of the New Zealand justice system was not altering the underlying philosophies or structures of the system. Instead, more Māori elements were being employed in the justice system. Where Māori concepts were incorporated, they were included to give the semblance that state practices could address Māori needs. In this analysis, state authority continues to be maintained through an indigenized

system that exerts another form of social control over Māori. Indeed, Tauri (2014) notes that using *some* traditional concepts in conferencing has not made the justice system empowering or culturally appropriate for Māori.

More targeted alternatives for Māori and Pasifika youth were established from 2008 onwards, with the Rangatahi Youth Courts being held in communities on marae across 13 sites nationally. Ngā Kooti Rangatahi incorporate Māori protocols and language into the process as part of the Youth Court hearing. These relatively recent court alternatives have stated aims to involve Māori communities in a culturally focussed justice forum (Davies 2012; Taumaunu 2014).

Corrections

In the 1990s, the Department of Corrections introduced rehabilitation programmes for Māori and aimed to deliver treatments with Māori service providers. Māori tikanga was incorporated into psychological treatments and Māori therapeutic programmes. The development of Māori Focus Units in prisons started in 1997. These units offer cultural instruction and te reo (Māori language) courses, with a rationale of changing offender's behaviour through cultural instruction that focusses upon cultural identity. Within Māori focus units, cognitive therapeutic programmes have also been developed with Māori cultural components. Mihaere's (2015) study of the development of cultural programmes in prisons involved extensive interviews and analysis of the operational rationale that informed programmes. The research found that cultural rehabilitation programmes were still dominated by institutional and correctional philosophies, and these had an individualistic focus on offenders. The overall conclusion was that Māori philosophies and operational control were yet to be fully realised in these penal-based correctional programmes.

Another development for Māori offenders in prison is Whare Oranga Ake Units, or Kaupapa Māori Rehabilitation Units, being opened in 2011 on a limited basis. These 16-bed units are designed for inmates in the final stages of sentences as pre-release rehabilitation initiatives.

Victimisation

Crime and safety surveys record Māori victimisation at higher than average levels. The 2014 survey by the Ministry of Justice (2015) found that in a period of a year, 33% were victims of at least one crime, and 9% experienced

repeat victimisation of five or more offences. This report also recorded that 36% of Māori women had experienced victimisation, and 30% of Māori men. The factors these surveys associated with increased victimisation risk for Māori included being female, living in Auckland or main urban areas, the younger Māori population age, no partner, and being financially stressed and socio-economically deprived (Cunningham et al. 2009).

Research into Māori conceptions of victimisation shows an understanding that takes into account external factors beyond legal definitions of criminal acts and includes the social, political, economic, and cultural circumstances of people. Cram et al. (1999) examined conceptions of victimisation from Māori worldviews. They found that dominant criminal justice definitions of crime did not adequately explain the harm or hara that was caused by transgressions. The criminal justice definition of 'victim' was also seen as problematic, as the term emphasises individual experience, rather than looking at both the transgressed and transgressor and the related harm and impacts on those linked by whakapapa. Many Māori were not aware of the state support or responses. The research identified that Māori preferred Kaupapa Māori support services, which were developed for Māori. These were identified as important to address harm, and support the healing process. Mainstream services needed to become more culturally relevant and accessible to Māori.

A different understanding of victimisation includes the analysis of the harm that has arisen from the state's extensive interventions, confinement, and institutionalisation of Māori lives over generations. This has produced trapped lives that are a source of ongoing social harm (Andrae et al. 2016). Stanley (2016) refers to the 'structural dimensions' of victimisation, in a study of historic care and protection institutions in Aotearoa. Based on interviews with those previously institutionalised in the system, the study found Māori children were subject to an excessive remit of adult control and confinement in both the welfare and criminal justice systems. Māori children were identified as being vulnerable to high levels of violence and harm in these institutions. This study identified widespread and historic abuse of children in state care and concluded that the violation of Māori children represented differential treatment on the grounds of 'race' as well as class and gender victimisation of children.

Drawing upon the work of Native American scholars and the theory of intergenerational trauma, other analyses have sought to explore the collective experiences of social harm for Indigenous peoples that persist from colonisation to the contemporary period (Wirihana and Smith 2014). Intergenerational trauma theory focusses upon the unresolved psychological and emotional harm that accumulates in Indigenous communities across the generations.

In Aotearoa, the theory has been used to explain the ongoing impacts and consequences for Māori communities and well-being, that result in violence and abuse, imprisonment, and mental health issues (Pihama et al. 2014).

An example of this approach is the research study by George et al. (2014) into the life histories of incarcerated Māori women, which documented the complex interrelationship between victimisation and offending. Imprisonment had become a normalised and collective experience for many of the women, with life histories that spoke of emotional and psychological harm. This study also explored using therapeutic responses, to identify the origins and consequences of trauma, and to focus on healing for the women and their whānau.

Māori Criminology

Research into criminological topics and publications has identified the need to produce critical research into the ongoing disproportionate impact of criminal justice systems on Indigenous peoples and their communities (Deckert 2014). Indigenous criminology includes widening the research lens to include Indigenous experiences of justice and recognising the need for criminological theory to grow beyond the limitations of an administrative crime control fixation. Tauri (2012) makes this point in examining the dominance of authoritarian criminology that is bound up with a crime control focus on Indigenous populations. He identifies that this approach confines criminological inquiry to issues the state deems important and to state definitions of what constitutes crime, giving little attention to the ways coloniality, institutional racism and systemic violence have operated in the control and marginalisation of Indigenous peoples. This administrative criminological approach in New Zealand and other neocolonial societies informs and gives prominence to state-centred and controlled responses.

The idea of Māori self-determination and supporting communities in justice alternatives as part of a decolonisation agenda extends beyond the implementation of rehabilitation programmes for Māori within the bounds of the existing system.

A Māori criminology points to theorisation that engages with Māori experiences and conceptualisations of wrongdoing and social harm. This includes the analyses of the socially harmful transgressions and the related social structural conditions, the redefinition and denial of Treaty rights in state policies, or other actions that continue to impact on Māori and other

communities (Mikaere 2011). Māori criminology is directed towards 'de-colonisation' with the aim to empower justice in communities, and guided through mātauranga Māori frameworks.

Conclusion

Critical Indigenous and non-Indigenous scholars have recognised the need for moving criminological theory beyond the limitations of an administrative 'crime control' fixation and the failures of criminological theoretical instruments to take into account or respond to the social reality of Māori. In short, a Māori criminology brings attention to various interrelated elements of offending, the collective experiences of social harm, and examines the role of the state and the criminal justice system in creating overrepresentation and social marginalisation.

References

Andrae, Dominic, Tracey McIntosh, and Stan Coster. 2016. Marginalised: An Insider's View of the State, State Policies in New Zealand and Gang Formation. *Critical Criminology*. doi:10.1007/s10612-016-9325-8.

Belich, James. 1996. *Making Peoples*. Auckland: Penguin Books.

Cram, Fiona, Leonie Pihama, and Matawiki Karehana. 1999. *Meeting the Needs of Māori Victims of Crime: A Report to Te Puni Kokiri and the Ministry of Justice*. Auckland: University of Auckland.

Cunningham, Chris, Sue Triggs, and Sally Faisandier. 2009. *Analysis of the Māori Experience: Findings from the New Zealand Crime and Safety Survey 2006*. Wellington: Ministry of Justice.

Davies, Lisa. 2012. *Of the Early Outcomes of Ngā Kooti Rangatahi Report to the Ministry of Justice*. Wellington: Ministry of Justice.

Deckert, Antje. 2014. Neo-Colonial Criminology: Quantifying Silence. *African Journal of Criminology and Justice Studies* 8 (1): 39–63.

Fergusson, David M., L. John Horwood, and Michael Lynskey. 1993. Ethnicity and Bias in Police Contact Statistics. *Australian and New Zealand Journal of Criminology* 26 (3): 193–206.

Fergusson, David M., L. John Horwood, and Nicola Swain-Campbell. 2003. Ethnicity and Criminal Convictions: Results of a 21-Year Longitudinal Study. *Australian and New Zealand Journal of Criminology* 36 (3): 354–367.

George, Lily, Elaine Ngamu, Maria Sidwell, Mal Hauraki, Nikki Martin-Fletcher, Lucy Ripia, Rangi Davis, Poihaere Ratima, and Hiki Wihongi. 2014. Narratives of Suffering and Hope. *MAI Journal* 3 (3): 183–196.

Jackson, Moana. 1988. *The Maori and the Criminal Justice System: He Whaipaanga Hou: A New Perspective, Part 2*. Wellington: Department of Justice.

Jackson, Moana. 1995. Justice and Political Power: Reasserting Māori Legal Processes. In *Legal Pluralism and the Colonial Legacy*, ed. Kayleen M. Hazlehurst, 243–263. Aldershot: Avebury.

Maxwell, Gabrielle, and Catherine Smith. 1998. *Police Perceptions of Maori—A Report to the New Zealand Police and the Ministry of Maori Development Te Puni Kokiri*. Wellington: Victoria Link.

Mihaere, Riki. 2015. A Kaupapa Māori Analysis of the Use of Māori Cultural Identity in the Prison System. PhD dissertation, Victoria University of Wellington.

Mikaere, Ani. 2011. *Colonising Myths—Māori Realities: He Rukuruku Whakaaro*. Wellington: Huia.

Ministerial Advisory Committee. 1988. *Puao-Te-Ata-Tu A Māori Perspective for the Department of Social Welfare*. Wellington: Department of Social Welfare.

Ministry of Justice. 2015. *2014 New Zealand Crime and Safety Survey*. Wellington: Ministry of Justice.

Mutu, Margaret. 2011. *The State of Maori Rights*. Wellington: Huia.

Pihama, Leonie, Paul Reynold, Cherryl Smith, John Reid, Linda Tuhiwai Smith, and Rihi Te Nana. 2014. Positioning Historical Trauma Theory Within Aotearoa New Zealand. *Alternative* 10 (3): 248–262.

Poata-Smith, Evan. 1996. He Pokeke Uenuku, Tu Ai: The Evolution of Contemporary Māori Protest. In *Nga Patai: Racism and Ethnic Relations in Aotearoa/New Zealand*, eds. Paul Spoonley, David Pearson, and Cluny Macpherson, 97–116. Palmerston North: Dunmore Press.

Pratt, John. 1996. Colonization, Power and Silence: A History of Indigenous Justice in New Zealand Society. In *Restorative Justice: International Perspectives*, eds. Burt Galaway, and Joe Hudson, 137–155. Monsey, NY: Criminal Justice Press.

Smandych, Russell. 2013. Colonialism, Settler Colonialism, and Law: Settler Revolutions and the Dispossession of Indigenous Peoples through Law in the Long Nineteenth Century. *Settler Colonial Studies* 3 (1): 82–101.

Stanley, Elizabeth. 2016. *The Road to Hell: State Violence against Children in Postwar New Zealand*. Auckland: Auckland University Press.

Taumaunu, Heemi. 2014. Rangatahi Courts of Aotearoa New Zealand: An Update. *Māori Law Review* November Issue: 1–23.

Tauri, Juan. 1998. Family Group Conferencing: A Case-Study of the Indigenisation of New Zealand's Justice System. *Current Issues in Criminal Justice* 10 (2): 168–182.

Tauri, Juan. 2012. Indigenous Critique of Authoritarian Criminology. In *Crime, Justice and Social Democracy: International Perspectives*, eds. Kerry Carrington,

Matthew Ball, Erin O'Brien, and Juan Tauri, 217–233. London: Palgrave Macmillan.
Tauri, Juan. 2014. An Indigenous, Critical Commentary on the Globalisation of Restorative Justice. *British Journal of Community Justice* 12 (2): 35–55.
Te Whaiti, Pania and Mike Roguski. 1998. *Māori Perceptions of the Police*. Wellington: He Parakeke.
Tribunal, Waitangi. 2014. *He Whakaputanga me te Tiriti, The Declaration and the Treaty: The Report on Stage 1 of the Te Paparahi o Te Raki Inquiry*. Lower Hutt: Legislation Direct.
Walker, Ranginui. 1990. *Ka Whawhai Tonu Mātou: Struggle Without End*. Auckland: Penguin.
Ward, Alan. 1995. *A Show of Justice: Racial Amalgamation in Nineteenth Century New Zealand*. Auckland: Auckland University Press.
Wikiriwhi, Sunny. 1998. *Intervention Strategies for Māori Offenders with Alcohol and Drug Abuse Problems within Community Corrections' Māori and the Criminal Justice System, He Whaipānga Hou Ten Years On, 1988–1998*. Wellington: Ngā Kaiwhakamārama i ngā Ture.
Wirihana, Rebecca, and Cherryl Smith. 2014. Historical Trauma, Healing and Well-Being in Maori Communities. *MAI Journal* 3 (3): 197–210.
Workman, Kim. 2011. Redemption Denied: Aspects of Māori Over-Representation in the Criminal Justice System. Paper presented at Justice in the Round Conference, April 18–20, in Waikato University, Hamilton.
Youth Court. 2015. Latest Statistics Māori Over-Representation in Youth Court. *Rangatahi Courts Newsletter* 6: 11.

Author Biography

Dr. Robert Webb is a Senior Lecturer in criminology at the University of Auckland. Dr. Webb's research interests include indigenous criminology, state criminal justice policies and Māori offenders, and Māori social issues.

46

Colonial Law, Dominant Discourses, and Intergenerational Trauma

Rawiri Waretini-Karena

A study of European history reveals that European monarchies and the Catholic Church established the Doctrine of Discovery as a legal tenet of international law. Colonial legislation was used as a guideline for engaging with Indigenous cultures across the globe. Economic enterprise from the acquisition of Indigenous land, assets, and resources are fundamental elements behind the Doctrine of Discovery. Western European perceptions of superiority used religion and colonial legislation from Papal Bull decrees of the Pope to justify genocide, theft, displacement, and the alienation of Indigenous peoples from their land, culture, language, identity, and heritage. These historical settings are prominent underpinnings bringing to the fore the complex nature of the British Empire before they engaged with Māori.

This chapter examines colonial legislation and the historical climates that contributed to its creation. It then explores how Māori instituted their authority to make laws in Aotearoa, examines circumstances that led to the founding of Te Wakaminenga in 1808 and the signing of He Wakaputanga Declaration of Independence in 1835, and explores the historical climate and circumstances of Te Wakaminenga and the British leading up the signing of *Te Tiriti o Waitangi 1840*. In the following part, this chapter examines the imposition of colonial legislation and its impact on Māori. The historical grievances from breaches to *Te Tiriti o Waitangi* engineered the loss of land, language, culture, heritage, and cultural identity. While these were visible features, invisible features included the intergenerational ripple effects of

R. Waretini-Karena (✉)
Waikato Institute of Technology, Hamilton, New Zealand
e-mail: Rawiri.Waretini-Karena@wintec.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_46

historical trauma, manifesting in the form of Māori deficit statistics such as intergenerational poverty, crime, poor mental health, domestic violence, drug and alcohol addictions, family dysfunction, and suicide. This chapter concludes with challenging the authenticity of the New Zealand Governments ascendency and legitimacy for implementing colonial legislation.

The History of Colonial Legislation

The conception of colonial legislation has significant impacts on Māori and Indigenous cultures across the globe. Colonial ideology lent an impression of legality and justification to prejudicial practices that are discriminatory and undermining at a political, economic, and sociological level. The history of colonial legislation has its founding influences in the Doctrine of Discovery. The underlying themes and philosophies behind current colonial legislation have roots firmly embedded in this ideology. Churchill (1993) discusses the role of the European monarchies and the Catholic Church's contribution to the impacts of the historical intergenerational trauma of Māori and Indigenous peoples resulting from the Doctrine of Discovery. Jackson (2012) stated that the Doctrine of Discovery was promoted as a legal authority for claiming the land of Indigenous peoples. This process of colonisation stemming from the 1300s through to the twenty-first century based its assumptions on Western ideologies of superiority. European powers used religion as a tool to justify enslavement, murder, and genocide on a global scale that devastated Indigenous cultures, creating intergenerational ripple effects that are still evident in the twenty-first century. Although many European countries participated in the practice of colonisation, such practices did not necessarily correspond with international law. Churchill (1993, 33) argues that "history is replete with philosophical, theological and juridical arguments of one people's alleged entitlement to the homeland of others, only to be rebuffed by the community of nations as lacking both moral force and sound legal principle". He further challenges dominant assumptions: "Recognition of the legal and moral rights by which a nation occupies its land base is a fundamental issue of its existence. Typically such claims to sovereign and propriety interest in national territories rest on its citizenry being composed of direct descendants of peoples who have dwelt within the geographical area claimed since time immemorial. But when the dominating population is comprised either of immigrants ('settlers') who can offer no such assertion of aboriginal lineage to justify their presence or ownership of property in the usual sense, the issue is vastly more complicated" (33).

Further investigation into how the Doctrine of Discovery was established brings to the fore disparaging ideologies of Western countries that, to this day, have never been held accountable for what Jackson (2012) argues are crimes against humanity. From the fourteenth century, in an era that was termed "the age of discovery", other European countries were eager to undertake similar exploits such as those pursued by Christopher Columbus. The European powers sent ambassadors out into the "New World" where they began encountering Indigenous cultures. These "ambassadors" also encountered emissaries from other European powers, and each was competing for trade with the Indigenous cultures. "European powers realized that a formal code of judicial standards to legitimate what they required, lent to a patina of civilized legality to the actions of the European Crowns" (Churchill 1993, 34).

The purpose of developing judicial standards was to resolve disputes between European Crown entities, as each jockeyed for position in disputes over gaining wealth through ownership of Indigenous land in the "New Worlds". Churchill (1993, 35) maintained that: "In order for any such regulatory code to be considered effectively binding by all Old World parties, it was vital that it be sanctioned by the Catholic Church. A series of Papal Bulls begun by Pope Innocent IV during the late 13th century was used to define the proper [lawful] relationship between Christians and 'Infidels' in worldly matters such as property rights". Papal Bulls are official decrees of the Pope. They have been the exclusive letter format of the Vatican since the fourteenth century. Churchill (1993, 35) affirmed that efforts of legal scholars Franciscus de Victoria and Matias de Pas—along with the Spanish articulation of the Discovery Doctrine and endorsed by the Pope—articulated these primary tenets of international law:

1. *Outright ownership of land accrued to the Crown represented by a given Christian (European) discoverer only when the land discovered proved to be uninhabited (Papal Bull territorium res nullius).*
2. *Title to inhabited lands discovered by Crown representatives was recognized as belonging inherently to the Indigenous people encountered, but rights to acquire land from, and to trade with the natives of the region accrued exclusively to the discovering Crown (Papal Bull vis-à-vis).*
3. *In exchange for this right the discovering power committed itself to proselytizing the Christian Gospel among the Natives.*
4. *Acquisition of land title from Indigenous peoples could only occur with their consent by an agreement usually involving purchase rather than through force of arms.*

The Doctrine of Discovery, at face value, appeared to have merit. However, in its application, the doctrine initiated a mandate followed by all European Crowns. The World Council of Churches (2012) stated that Papal Bull decrees such as Romanus Pontifex 1455 "called for non-Christian peoples to be invaded, captured, vanquished, subdued, reduced to perpetual slavery and to have their possessions and property seized by Christian monarchs". It also conveyed that "in 1493 Pope Alexander VI called for non-Christian 'barbarous nations' to be subjugated and proselytized for the 'propagation of the Christian empire' [and that the] Doctrine mandated Christian European countries to attack, enslave and kill the Indigenous Peoples they encountered to acquire all of their assets. The Doctrine remains the law in various ways in almost all settler [colonial] societies around the world today".

In the aftermath of the Doctrine of Discovery, hundreds of millions of Indigenous people lost their lives, were enslaved, had their land invaded, were dislocated from their tribal settings, were stripped of their identity, were assimilated into a foreign culture and, to this day, are continually discriminated and oppressed in one form or another, in the land of their forefathers.

Prejudicial Policies

One legacy stemming from the Doctrine of Discovery comes from the policy-making practices of the House of Commons Select Committee on Aborigines. According to Armitage (1995), the House of Commons Select Committee on Aborigines was established in England in 1837. Its role was synonymous with all assimilation policies developed by them and then distributed throughout the Commonwealth including Australia, Canada, and New Zealand. Armitage (1995, 189) states that "in Australia these policies were introduced through the *Protection of 'Aborigines' statutes* which were passed in the period between 1869 and 1909; in Canada they were introduced within the framework of the *Indian Act 1876*, and its successors; and in New Zealand they were introduced in legislation establishing the Native Department in 1861 and the *Native Schools Act 1867*. Settlers, confident of their racial and cultural superiority, introduced these paternalistic policies in the 'best interests' of aboriginal peoples". These policies generated displacement, dislocation, and trauma for the Indigenous cultures from Australia, Canada, and New Zealand. The impact of these colonial legislative policies created stolen generations in Australia. They created residential schools in Canada, from which more than 3,200 Indigenous children disappeared

without a trace (Truth and Reconciliation Commission of Canada 2015). They also created assimilation processes in New Zealand.

Māori Iore and Tikanga Authority

Mātauranga Māori establishes from where and how Māori gain their authority to make their own laws. Mātauranga Māori, as an epistemology, emanates from the disciplines of Māori studies, education, history, and sociology. Mātauranga Māori is based primarily on a branch of sociology which examines how social groups, such as Māori, see and understand their world. Mannheim (1940, 2–3) states that "in order to understand how Māori see their world it is important to first understand their epistemology, their way of knowing the world, or their universal world-view".

Mātauranga Māori has its own sociology, psychology, and infrastructure. It also highlights that these structures are elements that depict a way of knowing and perceiving the world according to Māori world view. McCarthy (1996, 17) argues that "knowledge is best conceived and studied as culture". She defines knowledge and culture as a set of ideas pertaining to what they accept as real. Wiri (2001) argues that Mātauranga Māori can be divided into two categories. The first category is Mātauranga-ā-waha (oral knowledge) such as whakapapa (genealogy), waiata (song), ngeri (chant with no actions), and tauparapara (chant particular to a hapū). The second category is Mātauranga-ā-ringa (empirical knowledge) such as whakairo (carving), tā moko (tattooing), hangā whare (house building), kowhaiwhai and raranga (Māori border patterns and weaving), tāniko (needlework), hangārau (technology), whakatere waka (navigation), rongoā (Māori medicine), and many others.

The concept of whakapapa is an idea that connects Māori to their land through lines of descent. This practice established the mana (authority) their tupuna (ancestor) had over their respective rohe (landmarks) during their lives. It was recognised as a form of birthright which cannot be extinguished or handed to another. This would be considered an extinguishment of one's whakapapa that connects to tupuna, to the whenua (land), and forms the basis of one's Māori identity.

Buck (1929, 37) made a distinction between hekenga-ā-rangi (cosmogonic whakapapa) and anthropogenic whakapapa or hekenga-ā-nuku (human genealogies): "Māori history was told in a whakapapa or genealogical order from the creation of the universe to the time of founding ancestors to the living descendants of those ancestors. Therefore, whakapapa is subjective and history is retold from the perspective of the living person reciting that history".

Stafford (1967, 33) conveyed that "one purpose of whakapapa is to connect human beings with each other and with the gods". The basis behind the telling of whakapapa provides a clear understanding that Ngāpuhi held supreme authority in their northern region. Sadler (2010, 175–176) argued that "Ngāpuhi comes from Ranginui and Papa-tū-ā-nuku [father sky and mother earth]. We are more than just the Indigenous peoples of this land" and went on to explain "that is why we say we cleave to the land, right from the beginning of the world itself. Why? Because of our genealogical lines of descent. The laws and practices that we created were to guide us so that we can traverse this life that our ancestors lived in and set an example for us".

The overall consensus from the points made in this section ascertains that whakapapa connected Māori to their land through lines of descent. What is central to the points made is that whakapapa is an essential element of Māori identity that bestows upon them their mana to make Māori lore (law) through tikanga that existed in New Zealand prior to colonisation. The concept of whakapapa or genealogy was at the core of all authority founded in the Māori world. This form of law governed whānau, hapū, and iwi for many generations prior to the advent of colonial legislation.

Historical Relationship Between Māori and Pākehā

The relationship between Māori and Pākehā began with whalers, sealers, and traders, whose numbers increased from the late 1700s through to the early 1800s (Huygens et al. 2012). These arrivals breached both Māori and British laws. Northern hapū felt an increasing sense of outrage as visiting whalers and sealers practised "black birding" (a form of kidnapping to replenish the number of sailors aboard) and then either sold victims or dumped them in other countries to fend for themselves. Other lawlessness included murder, arson, and enslavement with no consequences. The British Crown made a number of efforts to control their subjects who were not abiding by Māori or British law. Tahere (2010) conveyed that, in 1814, the NSW Governor made missionary Thomas Kendall a magistrate in order to arrest British ships and their crews for outrageous abuse towards Māori. Warrants were also issued to Hongi Hika, Waikato, and Ruatara (who were both esteemed Ngāpuhi Chiefs) to act as assistants in this capacity. The British Parliament also passed the *Inter Alia Acts 1814–1828*; these were South Seas Bills to punish British crew members for their violent offending, as it fell within the ambit of

admiralty law on the high seas. However, each of these efforts was eventually abandoned as not applying in another's domain.

Te Wakaminenga

Chief Te Pahi visited Governor Philip King in NSW in 1805 to discuss some of the issues that Māori were having with the increasing number of European settlers and the lawlessness resulting from it. Governor King promised to take steps to control the situation. Nothing resulted from that meeting so Te Pahi decided to become proactive, "began making moves, had hui with other hapū around the place which were the initial steps towards what we now know as Te Wakaminenga [the gathering] … northern rangatira responded to Te Pahi's diplomatic efforts and to the growing body of information from around the world with the beginnings of Te Wakaminenga assemblies in 1807–1808" (Alderidge 2010, 185).

Initial Kaupapa Māori Research

Ngāpuhi were amongst the first tribe to become familiar with the non-Māori world through European visitors, as well as through their own travels abroad. It is estimated that by 1840, 1,000 Te Wakaminenga members travelled overseas to 69 other countries. Each traveller that returned held wananga (seminars) to share the things they learnt about trade in other countries. "Te Wakaminenga was a process by which our people could discuss their anger at the early contact … Te Wakaminenga was also about finding a solution to some of the problems they were experiencing with Pākehā … Te Wakaminenga was a way to do this, and help the rangatira move forward" (Huygens et al. 2012, 40).

The significance of kotahitanga (unity) became a poignant factor for Te Wakaminenga in creating a united front for engaging with Europeans for trade. This provided a clear rationale for interdependent hapū to work together. Te Wakaminenga established an additional level of rangatiratanga (chieftainship authority) that operated parallel to the authority of hapū within their land. This collective authority was clearly apparent in a letter written to King William, wherein the rangatira used the phrasing "Ko matou" which was translated by Alderidge to mean "we, collectively". "From the time of Cook, Māori had been subject to acts of violence by visiting Europeans. The British Government knew that such violations of Indigenous people were occurring in the South Pacific and implemented several Acts of Parliament to

try and control the situation … The measures taken by both the British and New South Wales governments to deal to this behaviour were largely ineffective. That is why the Rangatira in their 1831 letter asked the King to deal to those who should be troublesome and vicious Pākehā" (Huygens et al. 2012, 164).

The impetus for forming and implementing Te Wakaminenga had two distinct roles. The first was to take advantage of any opportunities in trade and technology, and the second was to maintain authority by creating political alliances to collaboratively protect mana and to apply tikanga under the customary Māori law.

The Imposition of Colonial Legislation

In 1834, the Te Wakaminenga flag was acknowledged as an international instrument that allowed Māori to sail through international waters in peace. On 28 October 1835, the He Wakaputanga Declaration of Independence was signed. It was also recognised by the British Empire in 1836. The declaration stated that New Zealand was a Māori state recognised under the mantle of Te Wakaminenga (The United Confederation of Chiefs).

Te Tiriti o Waitangi, signed in 1840, set the scene for the establishment of a partnership between the British Empire and Te Wakaminenga. The British Empire recognised the sovereign authority of Te Wakaminenga and sought an audience with them. Colenso (as cited in Huygens et al. 2012, 184), who was Captain Hobson's scribe, gave a verbatim report of the first part of Captain Hobson's address to the hapū and rangatira assembled at Waitangi on 5 February 1840. Hobson spoke English while Henry Williams interpreted into Māori:

> Her Majesty Victoria, Queen of Great Britain and Ireland, wishing to do good to the chiefs and people of New Zealand and for the welfare of her subjects living amongst you, has sent me to this place as governor. But, as the law of England gives no civil powers to Her Majesty out of her dominions, her efforts to do you good will be futile unless you consent. Her Majesty has commanded me to explain these things to you, that you may understand them. The people of Great Britain are, thank God! free; and, as long as they do not transgress the laws they can go where they please, and their sovereign has no power to restrain them. You have sold them lands here and encouraged them to come here. Her Majesty, always ready to protect her subjects, is also ready to restrain them. Her Majesty the Queen asks you to sign this treaty, and give her that power which shall enable her to restrain them.

In essence, Hobson was seeking authority from the rangatira to restrain his own people. This was a central component at the crux of the British Crown and Māori relationship. Rangatira very quickly understood the significance of Hobson's words as stemming from Te Pahi's visit to Governor King in 1805, the relationship between Hone Hika and King George IV, and the letter sent to King William IV in 1831. The latter had cemented the relationship between the British Empire and Te Wakaminenga as it led to the arrival of Busby in 1833, his role in choosing an internationally recognised trading flag in 1834, and his contribution to the declaration of sovereignty on 28 October 1835. In the light of these sequential historical events, it seems inconceivable that rangatira could have viewed Hobson's words from any other position.

The idea of Te Wakaminenga was that Hobson would sit amongst them so that they would make laws together. They later came to understand that what Hobson promised and what he did were two different things.

The ensuing colonial legislation of the nineteenth century created intergenerational ripples that continue to affect Māori. The intergenerational ripple effects stem from previous New Zealand Governments and their focus on systematically destroying traditional Māori societies. Bedggood (1978, 286) argues that the "penetration of the capitalist mode of production and the destruction of the Māori occurred at three levels, economic, political and ideological". The immediate impact of the capitalist mode of production was designed to challenge the ideological dominance of the Māori chiefs in the reproduction of Māori society. Bedggood (1978) further explains that although ethnocide weakened the ideological resistance of Māori society to the capitalist market allowing rapid adaptation, it was not sufficient to convert land and labour power into a commodity form required by the capitalist mode of production.

The *Native Lands Act 1862,* the *Native Reserves Act 1864,* and the *New Zealand Settlement Acts* were created for the purpose of confiscating Māori land. Rashbrooke (2013, 4) contextualises these acts by stating: "Central to this story is the appropriation and alienation of almost 95% of Māori land from the nineteenth century well into the twentieth century … Settlements to date have produced compensation of about 1.48 billion—an amount that has to be considered against the impact of the almost total loss of an economic base over more than a century".

The *Tohunga Suppression Act 1907* is another legislative instrument that had a detrimental impact on Māori. This act made it illegal for traditional

Māori teachers, healers, and experts to train their people in customary practices affecting tikanga, protocols, and traditional knowledge. This impacted Māori who grew up without traditional ways of knowing or being, and without traditional ways of engaging with others, due to not being grounded in their cultural origins. The ripple effect of the *Tohunga Suppression Act 1907* left future generations vulnerable to both a Māori and colonial society as they struggled to fit into both worlds. This legislative act contributed to urban Māori who moved from rural sectors into the city away from the traditional knowledge of the marae (communal meeting place). The impact of not being grounded in traditional knowledge and history created dysfunctional urban Māori families. These urban Māori families slipped through education gaps and were then subjected to a social "welfare" system that pipelined them to prisons. Statistics show that while Māori constitute 15% of the general population, over 50% of the male prison population are Māori, Māori women make up 66% of the female prison population (Hemopo 2016), and around 20% of young Māori offenders continue with criminal behaviour into adulthood. Violent crime increased from 10.3% in 2002/2003 to 11.6% in 2004/2005. However, dishonesty offences made up 60% of all crimes committed by Māori offenders. While there is a direct correlation between colonisation, legislative policies, and Māori deficit statistics alongside Māori experiences of historical trauma, little acknowledgement is given by the New Zealand government as to how historical legislative policies *that they created* contribute to Māori crime and prison statistics. The intergenerational ripple effects of colonial legislation contribute to Māori deficit statistics in crime, health, mental well-being, suicides, unemployment, domestic violence, drug and alcohol addictions, as these are symptomatic outcomes of poverty, intergenerational destitution, psychological despair, and trauma.

Historical intergenerational trauma, according to Walters (2012), can be defined as an event or series of events perpetrated against a group of people, and their environment, namely people who share a specific group identity with genocidal or ethnocidal intent to systematically eradicate them as a people or eradicate their way of life. Colonial legislation contributed to the historical intergenerational trauma of Māori due to colonial practices such as the Waikato invasion in 1863. Māori lost their lives defending their homes, land, and families from colonial invaders who came from around the world, to support the New Zealand government in confiscating millions of acres of land. Many wealthy Waikato farmers are descendants of beneficiary soldiers who were given land as a result of the Waikato invasion.

Māori traditionally consider land as an ancestor as opposed to a commodity. Warfare and legal confiscations saw Māori dislocated and alienated from their ancestral lands creating despair and an intergenerational depression. Walters (2012) conveys how trauma can be measured moving from one generation to the next through epigenetic research. Walters et al. (2011, 185) further convey that "there is growing consensus that environmental influences contribute to health disparities by influencing biological processes and responses at key developmental periods throughout the life and across generations". Legislative policies contributed to Māori experiences of trauma by subjecting Māori to becoming impoverished in the land of their ancestors, economically, physically, and psychologically. Assimilation policies such as the *Native Schools Act 1863* and the *Tohunga Suppression Act 1907* subjected Māori to a loss of traditional ways of existing, the near extinction of their native language, and the marginalisation of their cultural knowledge, heritage, and identity. Smith (2013, 228) argues that "New Zealand has no excuse for the systematic inequalities that have become entrenched and given moral legitimacy over the last 25 years. It makes no sense. If inequality is not addressed and instead becomes more stubbornly inter-generational, marked by race, region and the realities of poverty, then we as a nation have failed ourselves".

Conclusion

It is argued that, to this day, the New Zealand government has failed to legally acquire the right of domestic authority. The *Te Tiriti o Waitangi 1840* document created a relationship between the British Empire and Māori, not between the New Zealand government and Māori. The New Zealand Governments are not signatories to *Te Tiriti o Waitangi*. In fact, under the Māori version of *Te Tiriti o Waitangi*, the British Empire was given jurisdiction to restrain lawless Pākehā.

The British Government handed over power to a settler parliament in 1852 without consulting Māori as their actual signatory partner in the *Te Tiriti o Waitangi* relationship. The British gave their authority to a third-party interloper who gained power by coming through the backdoor, not having been part of the negotiation process that took place on 6 February 1840. The British Empire, without consulting Māori, left Māori at the mercy of a settler parliament that was hungry for Māori land, resources, and assets. The British Empire also failed to implement protection strategies that would safeguard the promise of protecting taonga (assets, resources, and self-determination), which they made in Article Two of *Te Tiriti o Waitangi*.

The New Zealand government, albeit not a signatory to *Te Tiriti o Waitangi*, maintains the dominant view that it is the legitimate authority. It claims to have obtained this authority from the British Empire by means of delegation. However, when the British Empire gained its jurisdiction from Māori, as recognised independent sovereigns of an independent state, the agreement never entailed the right to delegate authority to a third party.

The *New Zealand Constitution Act 1986* replaced the *New Zealand Constitution Act 1852*. It repealed section 71 of its predecessor which gave Māori the right to govern themselves. This version also repealed the *Statute of Westminster Adoption Act 1947* stopping the UK from passing laws. This, in effect, removed Queen Elizabeth as the New Zealand Head of State. The New Zealand Government then registered a corporation with the US Securities and Exchange Commission (2016) calling it, Her Majesty the Queen in Right of New Zealand. Colonial legislation instituted a US Corporation functioning as the New Zealand Government. This US Corporation, that is, making laws and decisions as the New Zealand Crown, in spite of this, has no connection to the original *Te Tiriti o Waitangi* document that was signed in 1840. Until these issues are addressed, and Māori tino rangatiratanga (self-determination) is restored as originally envisioned in *Te Tiriti o Waitangi 1840*, New Zealand will not move forward as a country.

References

Alderidge, Nuki. 2010. *Nuki Alderidge Evidence. In Waitangi Tribunal Hearings: Paparahi o te Raki Hearing Transcripts Week 2. WAI 1040, 4.1.2*. Wellington: Waitangi Tribunal.

Armitage, Andrew. 1995. *Comparing the Policy of Aboriginal Assimilation in Australia Canada and New Zealand*. Canada: UBC Press.

Bedggood, David. 1978. New Zealand's Semi-Colonial Development: A Marxist View. *Journal of Sociology* 14 (3): 285–289.

Buck, Peter. 1929. The Coming of the Māori. Wellington: Māori Purposes Fund Board.

Churchill, Winston. 1993. *Struggle for the Land: Indigenous Resistance to Genocide, Ecocide, and Expropriation in Contemporary North America*. Monroe, ME: Courage Press.

Hemopo, Tom. 2016. *Waitangi Claim 2540*. Wellington: Waitangi Tribunal.

Huygens, Ingrid, Takawai Murphy, and Susan Healy. 2012. *Ngāpuhi Speaks*. Whangarei: Network Waitangi Whangārei.

Jackson, Moana. 2012. *The Doctrine of Discovery.* Paper presented at UN Permanent Forum II, May 7, in New York.

Mannheim, Karl. 1940. *Ideology and Utopia: An Introduction to the Sociology of Knowledge*. London: Routledge.
McCarthy, E. Doyle. 1996. *Knowledge as Culture: The New Sociology of Knowledge*. London: Routledge.
Rashbrooke, Max. 2013. Inequality and New Zealand. In *Inequality: A New Zealand Crisis*, ed. Max Rashbrooke, 22–23. Wellington: Bridget Williams Books.
Sadler, Hone. 2010. *Hone Sadler Evidence. In Te Paparahi o te Raki Waitangi Tribunal Hearing Transcripts Week 1. WAI 1040, 4.1.1*. Wellington: Waitangi Tribunal.
Smith, Linda T. 2013. The Future is Now. In *Inequality: A New Zealand Crisis*, ed. Max Rashbrooke, 228–235. Wellington: Bridget Williams Books.
Stafford, Donald M. 1967. *Te Arawa: A History of the Arawa People*. Auckland: Reed.
Tahere, Pairama. 2010. *Amended Brief of Pairama Tahere. WAI 1040, B2(2)*. Wellington: Waitangi Tribunal.
The US Securities and Exchange Commission. 2016. Her Majesty the Queen in Right of New Zealand. https://www.sec.gov/cgi-bin/browse-edgar?action=getcompany&CIK=0000216105&owner=exclude&count=40. Accessed Sept 29.
The Truth and Reconciliation Commission of Canada. 2015. *The Final Report of the Truth and Reconciliation Commission of Canada*, vol. 4. Montreal: McGill-Queens University Press.
Walters, Karina 2012. Embodiment of Historical Trauma and Micro-Aggression Distress. Paper presented at GSSW Speaker Series, March 5, University of Denver.
Walters, Karina, Selina A. Mohammed, Teresa Evans-Cambell, Ramona E. Beltrán, David H. Chae, and Bonnie Duran. 2011. Bodies Don't Just Tell Stories, They Tell Histories: Embodiment of Historical Trauma Among American Indians and Alaskan Natives. *Du Bois Review* 8 (1): 179–189.
Wiri, Rapata. 2001. The Prophecies of the Great Canyon of Toi: A History of Te Whāiti-nui-a-Toi in the Western Urewera Mountains of New Zealand. PhD dissertation, University of Auckland.
World Council of Churches. 2012. *Statement on the Doctrine of Discovery and Its Enduring Impact on Indigenous Peoples*. Bossey: World Council of Churches Executive Committee.

Author Biography

Dr. Rawiri Waretini-Karena (Ngāti Maahanga, Ngāti Koata, Ngāti Kahu, Ngāpuhi) teaches bicultural counselling, social work, and mental health at the Waikato Institute of Technology. He is an adjunct faculty member at Te Whare Wānanga o Awanuiārangi and also a former inmate who served 10.7 years of a life sentence in the 1980s. His PhD focussed on transforming Māori experiences of historical intergenerational trauma.

47

Rangatahi Courts

Khylee Quince

The indigenous experience of Western law has been, and continues to be, problematic, with particularly devastating impacts in the field of criminal justice. In all colonial settler states including Australia, New Zealand, the USA and Canada, Indigenous peoples are overrepresented as offenders and victims of crime and underrepresented as law makers, enforcement agents, judges, lawyers and decision makers.

In New Zealand, the pattern in respect of offending reads across disaggregation by age, gender and offence type. With only 15% of the overall population, Māori constitute half of all convictions and half of all men and 63% of all women in prison, a pattern that has steadily worsened over the past three decades. Within 5 years of release from prison, 77% of Māori were reconvicted, with 58% back in prison (Nadesu 2009). In relation to youth offending, Māori make up 58% of apprehensions and 61% of Youth Court appearances. In four Youth Courts, Māori constitute 100% of appearances and 70% in a further 20 Youth Courts around the country (Taumaunu 2015)[1]. In addition to discrimination in terms of its application, the law fails to reflect Māori values, processes and objectives in addressing offending

I would like to dedicate this chapter to the late Matiu Dickson of Te Piringa, Faculty of Law at the University of Waikato. Matiu was an early support of the Rangatahi Court initiative and a long-term champion for the rights of rangatahi Maori. Moe mai ra e te rangatira.

K. Quince (✉)
School of Law, Auckland University of Technology, Auckland, New Zealand
e-mail: khylee.quince@aut.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_47

behaviours (Quince 2007). Until we have overall control of the process, the laws and values it embeds and the outcomes available to address offending behaviours, no initiative can be truly labelled an Indigenous court. This is not to say, however, that we have not made some inroads into the challenge of reimagining the role of law and legal processes in tackling the insidious stain of negative Māori engagement in criminal justice. Whilst a fully separate justice system remains the "golden ticket" for some Māori, we should not ignore positive developments that improve the ways in which Māori engage with justice processes, and are responded to in these processes.

While there has been little significant tackling of the "Māori offending problem" in the adult criminal jurisdiction, the youth justice jurisdiction has led the way in an ongoing direct and reflexive inquiry into best practice to address harmful social behaviours by rangatahi Māori. The youth justice framework is underpinned by the Children, Young Persons and their Families Act 1989 (CYPFA), which establishes a specialised youth court, and is predicated upon a balancing of the needs of young offenders, with their taking responsibility for the harm they have caused. The system considers young offenders within the context of their families, whānau, hapū and iwi, and places responsibility for addressing the offending with the young person's family group in a Family Group Conference (FGC).

The FGC is the primary decision-making process for young offenders aged 14 to 16—for all offences other than homicide—ensuring that decisions as to how to address offending behaviours are made by families, victims and appropriate agencies.[2] The aim of the FGC is to encourage the young person to take responsibility for the offending and for the group to come up with a plan that balances the core focus of the New Zealand youth justice system, which is to balance accountability for the young person's offending, whilst addressing the needs underlying their offending behaviours. The FGC and the implementation of an agreed plan constitute the adjudication and punishment stages of criminal justice for young offenders in New Zealand. The Youth Court and its personnel are ancillary to the conference, not the other way around; the role of the Court being largely administrative—to oversee the arraignment of offenders, the facilitation of a conference and the acceptance and monitoring of a conference plan. Ideally, a young offender may only physically appear in the Youth Court for the initial arraignment and for a discharge upon completion of an agreed FGC plan some months later.

In practice, New Zealand's youth justice system has been overwhelmingly successful at providing a diversionary response to youth offending, which tends to be adolescent-limited, meaning that most young people only offend during these years and "age out" by their late teens. Most young people who

appear in Youth Court are referred to an FGC, their family shows up in support, a plan is formed and implemented, and the young person never appears again. Whilst undoubtedly well-meaning in its attempt to be culturally responsive to Māori youth, by referring to Māori social and familial structures, the CYPFA missed the mark in appreciating the cultural dislocation and socio-economic marginalisation suffered by Māori over the past century and a half.

The statistics that illustrate Māori experience and engagement in criminal justice are part of a larger narrative around colonisation, dispossession, suppression of culture, under-education and poverty. Offending behaviours are a by-product of this history and of the complex intersection of colonisation and its effects. So whilst pre-contact Māori may have had whānau, hapū and iwi to call upon to collectively address the harm caused by an individual group member, this is sadly not the case for many contemporary rangatahi Māori. Over a third of all Māori children are born to solo parents, many of them raised by solo parents themselves (Families Commission 2010). The modern Māori whānau bears little resemblance to the romanticised multi-generational support structure of the past. "While the statutory definitions [of whānau, hapū, and iwi] are not prescriptive … they may be seen to eulogise certain stereotypes of Māori social ordering, in assuming that modern Māori maintain core tikanga values of collectivity and live within a whānau, hapū or iwi context" (Cleland and Quince 2014, 180).

Appreciation of the broader context of Māori experience with law and justice explains why the youth justice system has been less successful for young Māori offenders. A system that is based on placing offending responsibility within the context of the community and family assumes that the young person has such a support network around them to call upon and that they have the economic, social and cultural capital necessary to effectively navigate themselves out of more punitive legal responses to wrongdoing. The fact that many Māori youths do not have such resources at their disposal poses a particular challenge to the system. It calls into question the role of the state in ensuring equality between those who engage in justice processes, and also in enabling participant self-determination.

Development

The context described above provides the backdrop to the development of the Rangatahi Courts initiative in 2008 as part of the government's 10 year Youth Crime Action Plan to reduce offending by children and young people,

two decades after the implementation of the ground-breaking CYPFA. The fundamental youth justice principles of that statute require that any measures, which deal with offending by children or young persons, should be designed to strengthen the family, whānau, hapū, iwi, and family group of the child or young person concerned; and to foster the ability of families, whānau, hapū, iwi, and family groups to develop their own means of dealing with offending by their children and young persons (s 208 CYPFA).

Hence, there has always been the legislative will to promote and assist the capacity of communities and family groups to deal with young people who engage in offending behaviours, although it could be argued that this particular principle has been largely overlooked in the practice of youth justice in New Zealand to date. The establishment, development and operation of the Rangatahi Courts could be seen to be breathing life into a dormant provision.

Whilst I have argued that it is overstating the case to call the Rangatahi Courts Indigenous courts, it would be correct to characterise this development as a significant step in addressing concerns about the lack of cultural responsivity to Māori as regular clientele of the criminal justice system. Indeed, Principal Youth Court Judge Andrew Becroft similarly asserts that while it is not a wholly separate system or Indigenous court, the Rangatahi Court is "a seminal moment in the evolutionary path towards developing a more culturally appropriate response for dealing with Maori offenders" (Taumaunu 2013, 2). Although a number of court processes in recent years could claim to have adapted some surface features to incorporate Māori language or protocol, the Rangatahi Courts can rightly assert that they have gone further than those processes in embedding a Māori approach to address offending behaviours and to reintegrate wrongdoers.

Rationale

The development and operation of the Rangatahi Courts can be understood as having reference to a number of rationales. There is clear evidence that the system instituted by CYPFA has been very successful for the majority of youth offenders, although the profile of persistent youth offenders has remained static over the 26 years since its implementation. Fifteen per cent of those referred to Youth Court continues to offend into adulthood. Young Māori males constitute the majority of this group (Becroft 2009). The lack of success of the system to date for early onset Māori offenders is one justification for a response that is better tailored to addressing their needs, identities and the context of their offending.

From a theoretical perspective, the process and practice of the Rangatahi Courts fit within the therapeutic jurisprudence tradition of reimagining the law to allow its processes and personnel to assist in the addressing of social problems that underlie offending behaviours (Wexler 1990). Such an approach aims to address the anti-therapeutic consequences of legal method and processes, which are particularly acute for Indigenous offenders (Quince 2015).

There are synergies here with the philosophy of transformative justice. This is a movement that grew from the realisation that restorative justice had limited appeal or effectiveness for people who had not come to justice from a functional space, as there was nothing in their lives they wished to be "re-stored" to. On the contrary, if the law, its processes, and people could assist in the addressing of problems underlying offending behaviours, then criminal justice could be transformative by effecting a positive change in people's lives.

From a Māori perspective, there are other rationalisations. The Rangatahi Courts initiative is an example of a flax-roots empowerment strategy, having regard to Indigenous models of well-being.[3] One such model, te whare tapa whā, is provided by Māori psychiatrist Mason Durie, who references the metaphor of a four-sided house. Each wall of the house represents a dimension of well-being: te taha whanau (extended family well-being), te taha hinengaro (mental well-being), te taha tinana (physical well-being) and te taha wairua (spiritual well-being). Centring the court on a marae is the gateway to opening up the Māori world. The marae is the heart of a Māori community and represents a repository of knowledge, precedent and whakapapa (genealogy) (Quince 2007). It is a forum that has its own mana and authority. This is an environment in which balance is articulated, where the spiritual aspects of life are physically portrayed in whakairo (carving) as a series of guidelines for the actions of humans. It is an environment in which the inherent tapu (sacredness) of the gods can be acknowledged, in which human mana can be restored and the healing of an ailing wairua (spirit/soul) can begin (Quince 2007).

Another lens through which the Rangatahi Courts might be viewed is the cultural deprivation thesis of critical criminology. The thesis explains offending behaviours within the context of cultural dislocation and a disrupted identity. Developmental psychologists also refer to acculturative dissonance—within the context of general social exclusion and marginalisation—exposing children and young people to the risk of offending behaviours (Bynner 2001). Social exclusion theory links the combination of factors including unemployment, poor skills, low incomes, poor housing, high crime environments, bad health and family breakdown to an

interdependent relationship between disrupted cultural identity, poverty, and ongoing capability deprivation (Quince 2015). The relationship between these factors is complex and mutually reinforcing, requiring a directive approach from state agencies to build capabilities and solutions. For Māori and other colonised Indigenous peoples, a complicating factor is theorising and responding to marginalisation and the disruption of our cultural identity as a collective group experience.

It is a challenge to tackle these complex issues without falling into the trap of the deficit paradigm that views Māori as defective people who suffer many and varied ailments or social problems. That is not who we are, nor who we aspire to be. As outlined above, tikanga Māori provides the tools for a pro-social identity, and a framework for functional living—centring on well-being associated with belonging and connection—to both people and territory. To this end, locating the Youth Court monitoring process on the marae serves to connect offenders to a positive Māori identity through language, customs, process and people, centred upon the physical location of the marae.

In addition to the physical environment, the marae as a forum necessarily involves the tangata whenua (local people), their reo me ona tikanga (their language and customs). In practice, this means that orthodox court customs and protocols must either bend to the marae, or at least be integrated following consultation and negotiation. In practice, this means that, unlike the orthodox uniformity in court processes, each marae forum reflects the protocols of the community in which it is located. Principal Youth Court Judge Andrew Becroft recently referred to the Rangatahi Courts as an example of a collaborative community justice process (Becroft 2016).

A final rationale—underpinning the inception of the Rangatahi Court—are the duties and obligations owed between the Crown and Māori as partners to the Treaty of Waitangi, a relationship that has been largely overlooked to date in criminal justice. The relevant aspects of the Treaty are contained in Article 2, which provides for Māori tino rangatiratanga (absolute chieftainship) over lands, villages and all of our treasures; and in Article 3, which grants Māori the same rights and duties of citizenship as non-Maori. Criminal justice in New Zealand has traditionally focussed on a narrow conception of equality, whereby all citizens are treated the same under the law; irrespective of substantive difference or inequality amongst citizens. Arguably, the rhetoric of community responsibilization in our youth justice system embodies a measure of self-determination that reflects the promise of Article 2. The problem is that self-determination is of little worth to people who do not have substantive equality, who are not even on the same playing field, let alone a

level one. In the youth justice context then, the challenge is to ameliorate inequality in the lives of rangatahi Māori, so that they are able to participate more effectively in a system that allows for some freedom or self-determination in responding to offending behaviours and the issues underlying those behaviours.

Cunneen and Hoyle (2010, 161) have made this argument in respect of restorative justice processes, in particular, their inability "to articulate a relationship to law and a broader theory of state power", and also their tendency to mask hidden injuries of class, race and gender. Placing this critique in the context of the Rangatahi Courts, one might argue that moving justice processes away from the orthodox context of the courtroom sweeps the "Māori offending problem" away from a very public forum to a much more private one. In doing so, one could argue that there is a loss of public discourse or political traction to effect change. However, unlike private restorative justice processes, the Rangatahi Court approach is a partnership between Māori communities and the Crown, where more effective data collation and sharing occurs, so that macro-level patterns in respect of offending, its underlying causes and offender needs are recorded and shared within the state sector and non-government organisations.

Implementation

The Rangatahi Court was established in 2008, under the leadership mantle of National Rangatahi Court Liaison Judge Heemi Taumaunu, ostensibly as a response to the embedded pattern of Māori overrepresentation in rates of apprehension and recidivism.[4] The kaupapa (purpose) of the court is encapsulated in the whakatauki (proverb) from which the court takes its name: "Ka pu te ruha, ka hao te rangatahi" (The old net is cast aside, the new net goes fishing). The dual meaning of the term rangatahi as both "youth" and "new net" reflects the belief in the ability of young people to turn away from offending and engage in pro-social behaviours to guide them to a healthy future. Taumaunu (as cited in Kaipuke Consultants 2012, 8–9) has claimed, on many occasions, that the purpose of the Court is to address "a lack of self-esteem, a confused sense of self-identity and a strong sense of resentment" amongst Māori youth.

There are currently 15 Rangatahi Court sites in operation around New Zealand. The marae at which the courts sit is a combination of traditional tribal marae and urban non-tribal marae. The latter are largely a product of the urban drift of Māori in the post-war period. The judges who preside over

the courts are all Māori; some with whakapapa (bloodline connections) to the area.

The court operates as an intensive monitoring process, overseeing the implementation of plans agreed upon at an FGC. Once a plan is agreed upon, it is accepted by the Youth Court and monitored for the duration necessary for the young person to complete the plan. It is at this stage, following the screening in the Youth Court, that a young person can elect to have the monitoring process transferred to the Rangatahi Court so that all subsequent appearances will be conducted on the marae. The intensive monitoring of the plan is a deliberate strategy to ensure that the plan is not derailed by minor issues, as often occurs when the implementation of a plan is left in the hands of the parties. Anecdotally, it would seem that without an intensive monitoring approach, many plans are not completed due to matters outside of the young person's control, such as parental or caregiver assistance and encouragement, or transport to complete community service as agreed in a plan. One of the core objectives of the process, therefore, is to plug the gaps posed by practical barriers and aspirational outcomes (Quince 2015).

The process of a Rangatahi Court sitting is a blend of protocol derived from tikanga Māori and Western law. The initial encounter is governed by the tikanga of the pōwhiri (welcoming ceremony) where the hau kainga (local people) welcome the manuhiri (visitors), including the young people, their families and other supporters (if any), police, youth advocates, lay advocates and agency representatives. All visitors are called onto the marae, and welcomed into the whare nui (main house), having left their footwear on the porch outside.

As it is a sitting of the Youth Court, the marae is set up to replicate some of the features of a courtroom, with the judge and registrar at the front, and relevant personnel—such as police, agency representatives, and legal counsel—at tables in front of the judge. The young person, their family and other supporters face the judge. They may be accompanied by a lay advocate. The employment of lay advocates has been particularly successful in the Rangatahi Court, in assisting whānau to navigate the court process. The lay advocate facilitates communication between the family, the court and relevant agencies or information givers.[5] Lay advocates come from a variety of backgrounds, including social work, teaching or community advocacy.

In addition to overseeing the successful completion of the FGC plan and addressing issues that may derail this along the way, one of the objectives of the Rangatahi Court process is to use this time to integrate the young person into the marae community and provide support for the fostering of a positive Maori identity, including personal knowledge of whakapapa (genealogy),

te reo and tikanga Maori (Maori language and custom). Each young person is tasked with learning and then reciting their pepeha (an introduction to themselves in Māori terms) by identifying themselves with their own territory via landmarks such as mountain, river and waka (canoe); and their people such as tribe, subtribe and chiefs. Most young people appearing in the Rangatahi Court do not possess this knowledge, nor have they recited it in public. At each appearance, they are encouraged to perform their pepeha prior to reporting their progress on the FGC plan. Whilst most rely upon written notes for the first one or two appearances, there is a clearly identifiable growth in confidence over time; reflected in both the performance and the positive body language of the rangatahi.

Evaluation and Critique

The Rangatahi Courts were subject to a Ministry of Justice commissioned evaluation in 2012 (Kaipuke Consultants 2012). The evaluation indicated positive outcomes for offenders and their whānau. In particular, the evaluation identified the following factors as critical to the success of the initiative: utilisation of a strengths-based approach; increased attendance of fathers compared to court hearings; youth feeling welcomed and respected; self-identity and cultural identity of youth strengthened; cultural relevance of the marae and its inherent cultural processes; and the role of kaumātua (elders) and lay advocates, in establishing and maintaining a relationship of respect and lines of communication with families, the court and stakeholders.

In quantitative terms, by the end of 2015, young people who appeared in the Rangatahi Courts were 11% less likely to reoffend (District Court 2015).

It would remiss to present this initiative as one without controversy in the Māori community. For Māori, the marae is the last bastion of our privacy and integrity—the one place beyond the reach of the Crown, where we can be who we are without interference. Salmond (1976, 33–34) has referred to the marae as "a Māori public place" for those with whakapapa or community links, outsiders requiring access and visitor privileges from the group. Ceding any control or power over the marae would traditionally be seen as fatal to a tribal people, and this is no less true today than it ever was.

Māori scholar Moana Jackson (1995) observes that, over the past century, various justice initiatives have been located on marae, and that these may be characterised as part of the colonising ethic or continued domination of Māori by consent. Tauri (1999) agrees labelling similar processes as "window-dressing", whereby the Crown allows Māori some restricted form of autonomy,

whilst maintaining its overall hegemony. These comments may be placed in the context of my earlier Treaty of Waitangi analysis, having regard to the agreement made between Māori and the Crown as treaty partners in 1840.[6]

Tauri (1999, 157–158) might also place the Rangatahi Courts within the phenomenon of "indigenisation"; a core state strategy in engagement with Māori since the 1990s, where Māori culture, practices and people are co-opted to fit a state agenda in the delivery of services. It is arguable, however, that these Courts differ from earlier indigenisation strategies in terms of the nature and extent of the commitment to "Māori content" in the process, and the consultation with and consent gained from the hapū and iwi groups involved. No Rangatahi Courts have been imposed on a marae community without consent, and, in fact, the latest partnership in the Tūwharetoa tribal territory involved competition amongst local marae for the mana of being a Rangatahi Court host facility and community.

In addition to the view that this could be characterised as a sort of cession of sovereignty, there is concern that taking young people with low self-esteem and an uncertain cultural identity onto the marae could backfire. To outsiders, the marae is a challenging place—steeped in tradition, custom, language, and protocol. There is a potential danger that having culturally disconnected rangatahi Māori associate their first cultural encounter on the marae with a court could be damaging. Jackson (1987) foreshadowed just such a push some three decades ago. It is, therefore, imperative that the Rangatahi Court process be cognisant of the risk of further alienating young offenders, by forging processes that appropriately meet the needs of the marae community, without further damaging tenuous cultural identities for the youth involved.

Undoubtedly for the marae communities, the reticence to cede control is tempered by a collective concern over the loss of connection with the young people in their midst, and the very serious harms both caused and suffered by them. The competing cultural imperatives of manaakitanga and whanaungatanga (the responsibilities to care and provide for kin and peoples in one's sphere of influence) weigh heavily upon Māori. The loss of language, culture and the disintegration of tribal and whānau life is evident in the ageing population of hau kainga (community members whose role is to keep our home fires burning, and our cultural traditions alive). As stated in a recent Rangatahi Courts hui (gathering), "the rangatahi of today are the rangatira of tomorrow".[7] Marae and Māori communities bereft of young people cannot claim to be Māori communities at all. It is these obligations and also these concerns that have provided the impetus for marae communities to agree to host Rangatahi Courts.

Conclusion

One of the core lessons in the transition from a focus on family to broader community responsibility in the Rangatahi Courts has been the expansion and development of a contemporary understanding of the concepts of whānau, hapū and iwi. Our traditional understanding of whānau has focussed on whakapapa to provide social organisation, support and knowledge that connects people to each other and to the territory. Our journey through colonisation has wreaked havoc upon these structures and knowledge, leaving many Māori in a position that prevents them from engaging successfully in processes predicated on self-reliance, capital and on resources of those closest to them. The various communities that have embraced the Rangatahi Courts are assuming the responsibility for creating a community of care around young people and their whānau in their midst. In doing so, they are implementing the vision reflected in the traditional whakatauki (proverb) "Tangata ako ana i te whare, te turanga ki te marae, tau ana". (A person who is taught at home will stand collected on the marae.) In a modern sense, we might view this vision as one whereby instilling proper values and modelling of behaviours allows a young person to have the foundation for a functional life within their family and also society.

Notes

1. The Youth Courts with a high percentage of Maori youth apprehensions and appearances tend to be in rural districts with a high Maori population.
2. The majority of youth offenders apprehended are diverted away from any formal legal response, so that the Youth Court only deals with 20 per cent of youth apprehensions. Of the 80 per cent diverted, they may be subject to a less serious response, such as police diversion or a warning.
3. The term flax-roots is commonly used in New Zealand to refer to community-led initiatives or strategies referencing harakeke, the flax bush, which is a common metaphor for family and community health and well-being. A flax-roots strategy is also viewed as reflecting a Māori preference for localised bottom-up rather than top-down governance.
4. The Rangatahi Court is a judge-led initiative, within the current scope of the CYPFA. It was not implemented as a result of any new legislative or policy direction from Parliament, rather it is a targeted approach for Māori offenders within the statutory remit of s208(c) of CYPFA, which states that measures for dealing with offending should be designed "to strengthen the family, whanau,

hapu and iwi" and "foster the ability of whanau, hapu and iwi to develop their own means of dealing with offending by their children and young persons".

5. Information givers may include relevant health or education experts, who can provide background context in respect of the young person in question. For example, a school guidance counsellor may give information as to a school's dealings with the young person, or a speech therapist may describe the young person's difficulties in communicating or processing information.
6. The Treaty of Waitangi was negotiated between the British Crown and over 500 Māori rangatira (chiefs) over a period of months in 1840. The terms of the Treaty and their meaning (across several text versions) remain the subject of debate. The Treaty is viewed as a cession of sovereignty from the perspective of the Crown, preserving limited rights of resource ownership and self determination and promising equal citizenship. For Māori, however, the reverse is asserted; that sovereignty is protected, in return for a limited cession of self-rule for the incoming colonial settlers.
7. Rangatahi Court kaumatua (elder) speaking at the Australasian Institute of Judicial Administration Awards 2016, Orakei Marae, 30 May 2016.

References

Becroft, Andrew. 2009. Youth Offending: Introductory Notes. Paper presented at IPS Criminal Justice Forum, August 13, in Wellington.

Becroft, Andrew. 2016. My Farewell to Youth Justice: 'Over and Out'. *Court in the Act* 73: 1–3.

Bynner, John. 2001. Childhood Risks and Protective Factors in Social Exclusion. *Children and Society* 15 (5): 285–301.

Cleland, Alison, and Khylee Quince. 2014. *Youth Justice in Aotearoa New Zealand: Law, Policy and Critique*. Wellington: LexisNexis.

Cunneen, Chris, and Carolyn Hoyle. 2010. *Debating Restorative Justice*. Oxford: Hart Publishing.

District Courts of New Zealand. 2015. *Annual Report 2015*. Wellington: Ministry of Justice.

Families Commission. 2010. *Economic Wellbeing of Sole-Parent Families*. Wellington: Families Commission.

Jackson, Moana. 1987. *He Whaipaanga Hou: Maori and the Criminal Justice System*. Wellington: Ministry of Justice.

Jackson, Moana. 1995. Justice and Political Power: Reasserting Maori Legal Processes. In *Legal Pluralism and the Colonial Legacy*, ed. Kayleen Hazlehurst, 243–264. Avebury: Aldershot.

KaipukeConsultants. 2012. *Evaluation of the Early Outcomes of Nga Kooti Rangatahi*. Wellington: Ministry of Justice.

Nadesu, Arul. 2009. *Reconviction Patterns of Released Prisoners: A 60 Months Follow-Up Analysis*. Wellington: Department of Corrections.

Quince, Khylee. 2007. Maori and the Criminal Justice System in New Zealand. In *Criminal Justice in New Zealand*, eds. Julia Tolmie, and Warren Brookbanks, 333–358. Wellington: LexisNexis.

Quince, Khylee. 2015. Therapeutic Jurisprudence and Maori. In *Therapeutic Jurisprudence: New Zealand Perspectives*, ed. Warren Brookbanks, 347–363. Wellington: Thomson Reuters.

Salmond, Anne. 1976. *Hui: A Study of Maori Ceremonial Gatherings*. Birkenhead: Heinemann Reed Books.

Taumaunu, Heemi. 2013. Editorial. *Rangatahi Courts Newsletter Issue* 3: 1–2.

Taumaunu, Heemi. 2015. Latest Statistics: Māori Overrepresentation in Youth Court. *Rangatahi Courts Newsletter* 6: 11.

Tauri, Juan. 1998. Family Group Conferencing: A Case Study of the Indigenisation of New Zealand's Justice System. *Current Issues in Criminal Justice* 10: 168–182.

Tauri, Juan. 1999. Exploring Recent Innovations in New Zealand's Criminal Justice System: Empowering Maori or Biculturalising the State? *Australian and New Zealand Journal of Criminology* 32 (2): 153–167.

Wexler, David. 1990. *Therapeutic Jurisprudence: The Law as a Therapeutic Agent*. Durham: Carolina Academic Press.

Author Biography

Khylee Quince is a member of the Ngāpuhi and Ngāti Porou iwi (tribes). She is a Senior Lecturer at the School of Law at Auckland University of Technology. Her teaching and research interests include criminal law and justice, youth justice, solution-focussed courts, and alternative dispute resolution.

48

Māori and Prison

Tracey McIntosh and Kim Workman

The crisis of Māori imprisonment is sustained and embedded. In any 1 year, around 55.7% of prisoners are Māori (Statistics New Zealand 2016). Historically, New Zealand has always had a high imprisonment rate. This willingness to imprison large numbers of the population has continued apace, although there has been a significant change in *whom* we imprison. Pratt (2006, 542) has noted how contemporary imprisonment in New Zealand is shaped by its "ethnic toxicity". In 1936, Māori prisoners were 11.1% of the total prison population; by 1944, that percentage had increased to 26.4%. Today, Māori make up 15% of New Zealand's population but, as already noted, represent nearly 56% of New Zealand's prison population (Statistics New Zealand 2016).

While it has been established that Māori are more likely to be imprisoned than non-Māori, the disparities are even greater in some age groups. For example, in 2009, 3% of 25-year-old Māori men were in prison, which is over seven times the rate of 25-year-old Pākehā men. In the same year, 19- and 28-year-old Māori men had imprisonment rates nearly 10 times that of Pākehā men of the same age (National Health Committee 2010). While ethnicity data that look at the security classifications of prisoners—maximum, high, medium, low, etc.—are not publically available, the authors' own

T. McIntosh (✉)
Sociology and Criminology, University of Auckland, Auckland, New Zealand
e-mail: t.mcintosh@auckland.ac.nz

K. Workman
VUW, Wellington, New Zealand
e-mail: kim.workman@rethinking.org.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_48

observations over a significant period of time shows that the disproportionality is marked at the highest categories. Given that the experience of prison differs markedly depending on one's security classification, the fact that Māori are disproportionately represented in higher classifications has implications in terms of the degree of institutionalisation that they are likely to experience and their ability to integrate on release.

The ongoing carceralisation of Indigenous communities has resulted in a profound un-freedom for Māori (McIntosh and Radojkovic 2011). Prisons are seen as a natural attribute of the social landscape, and it is difficult to imagine a world without them. While they remain unproblematised and largely invisible both as an institution and as experience, they are, however, not invisible from headlines, not invisible as a metaphor of society gone wrong, not invisible as a "solution" to problems and not invisible as the most overt manifestation of state power and as architectures of control. But they are invisible as receptacles of confined experience, as institutions of stone, concrete, wire, but most importantly as holders of flesh and blood. Prisons are peopled. In Aotearoa, they are largely holders of Māori flesh and blood. More specifically, they are the holders of particular veins of Māori society. If it was simply a Māori issue, then we would expect to see Māori prisoners coming from all socio-economic categories and reflecting the broader Māori population. Yet, the Māori prison population overwhelmingly comes from communities that live under conditions of scarcity and deprivation. Moreover, it is difficult to not recognise the significance of gang membership in terms of the prison population. While gang members do not comprise the majority of the prison population, gang members, particularly Māori, are overrepresented. Two-thirds of all gang members belong to the two largest ethnic gangs in New Zealand, the Mongrel Mob or Black Power (Taonui and Newbold 2011). If we include those that associated with gang members through familial ties and relationships, then the numbers are significant.

There are competing narrative flows that, on the one hand, profess knowledge of the overrepresentation of Māori in prison—which is probably the most widely known social statistic in New Zealand—and, on the other hand, continue to disavow the damage that high incarceration incurs for whānau and communities. This ability to simultaneously reveal and conceal the nature of the experience of prison in Māori life-worlds shows the power of a discourse that renders the prison a natural part of the social environment for marginalised and criminalised groups.

Disproportionality

Mass incarceration in New Zealand is *Māori* incarceration. Mass incarceration can be said to occur when the rates of incarceration impact negatively on sectors of society who share similar ethnic and socioeconomic characteristics; characteristics which create the conditions for cumulative and intergenerational disadvantage. Mass incarceration impacts not only those who are behind the wire but also the whānau and communities they come from. American criminologist Elliott Currie notes that "short of major wars, mass incarceration has been the most thoroughly implemented social program of our time" (Currie as cited in Davis 2003, 11).

The causes of disproportionality within the criminal justice system are complex. Some contend that higher Māori offending is the product of certain developmental pathways. They argue that Māori are particularly vulnerable to adverse early-life family and environmental factors which may contribute to subsequent offending behaviour. Such factors are closely linked to socio-economic status, marginalisation and structural and institutional racism (Department of Corrections 2007; Quince 2007; Webb 2011; Workman and McIntosh 2013). Former Police Commissioner Peter Doone (2000) suggested that factors leading to criminal behaviour include family instability and violence, lack of social ties or antisocial peers, lack of vocational skills or employment prospects, drug and alcohol abuse, poor self-management, aggressiveness, truancy and poor educational outcomes, living in overcrowded housing and disconnection from cultural institutions such as whānau, hapū and iwi. Many whānau may lack the means to access the support needed to address these risk factors or to respond to the offending once it occurs.

To better understand the "statistical gulf" (Quince 2007, 12) that exists between Māori and Pākehā, Māori researchers insist that they must be interpreted in the broader context of colonisation, dispossession of land, Māori urbanisation, the imposition of the Western system of common law, cultural assimilation and the undermining of tikanga and traditional forms of Māori social control (Andrae et al. 2016; Jackson 1998; Quince 2007; Tauri 2014). The Māori experience of colonisation is paralleled by struggles of Indigenous peoples in other settler states which have also been systematically brutalised and marginalised by state policies and practices, and where they continue to be overrepresented in prison populations (Webb 2011).

Māori Men Prisoners

Māori men make up well over 50.4% of the sentenced prisoner population (Statistics New Zealand 2016). Like prison populations all over the world, most prisoners come from backgrounds that have been characterised by deprivation and scarcity. The age profile of Māori men prisoners is younger than the non-Māori prisoner population, but as sentences become longer we can expect some ageing in this profile. In 2012, 41% were under 30 years. However, the highest proportion of prisoners by age group were those aged 40–49, who made up 21% of the male prisoners. Thirteen per cent of prisoners were 50 years of age or over (Statistics New Zealand 2013). Formal educational qualifications were low, with less than 25% having completed a high school qualification, though a higher proportion reports some form of vocational qualification. Over 50% were in paid employment prior to conviction. The majority had very low incomes, whether they were in paid employment or not (Abbott et al. 2005). Many Māori men enter prison with poor health. Forty-seven per cent have a diagnosed chronic disease with the most common diagnosed disease being asthma with a prevalence of 21%. Māori men were much more likely than non-Māori males to have a history of head injury (Ministry of Health 2008).

The average sentence for male prisoners is approximately 4 years. In 2014, the most serious offences that sentenced prisoners were imprisoned for were acts intended to cause injury, and sexual assault and related offences. However, it is important to note that this varies considerably across age groups. For example, only 9% of those under 20 years were imprisoned for sexual or related offences, while 50% of prisoners over 50 years were imprisoned for the same offences (Statistics New Zealand 2015).

Gang members do not comprise the majority of the male prison population, but Māori gang members are overrepresented in prisons. In 2008, 18% of all prisoners were gang members (Taonui and Newbold 2011). Two-thirds of all gang members in prison belong to either the Mongrel Mob or Black Power and constitute 11.7% of all male prisoners (Taonui and Newbold 2011). However, it is likely that if gang-associated whānau members were counted, they would make up a much higher number. It would be difficult to contend that the integration of prisoners is well done for any group in New Zealand, but it is clear that the stigmatisation and marginalisation of whole sectors of Māori communities means that the effects of prison are likely to be more keenly felt within that community. Moreover, the Māori prison identity has a collective element that means that the rejection of mainstream

values can be seen as an act of dissent and resistance. It is important to appreciate that gang affiliation—as a "patched" member, as an associate, or as a family member—has contributed strongly to the contemporary Māori prison identity. Carr and Tam (2013) note that it was during the 1980s that the traditional prison culture became dominated by gang prison culture. While gang affiliation in the general population is small, its presence within the criminal justice system and specifically the prison system is marked.

Prisons and other places of confinement, particularly youth justice reform institutions, have been seen as important spaces for gang formation. The pathways from institutional care, where the state is the parent, to prison is a well-trodden one for Māori men and women prisoners, who have had lives shaped and informed by state institutions and state confinement. This must be situated in "wider historical and socio-economic memories, whereby being poor, Māori, deprived and disconnected are located in the loss of ethnic and cultural identity and the impact of colonisation" (Andrae et al. 2016, 7).

Māori Women Prisoners

As Davis (2003, 79) notes, many men "experience a perilous continuity" in the way that they are treated in school, in the streets, by police and in prison. For incarcerated women, "the continuity of treatment from the free world to the universe of prison is even more complicated since they also confront forms of structural violence in prison that they have confronted in their homes and intimate relationships". The international evidence strongly suggests that a distinguishing feature of incarcerated women—one which sets them apart from both the general female population and the male prison population—is their common histories of victimisation (Kruttschnitt and Gartner 2003). In New Zealand, female prisoners are also likely to have histories of abuse and trauma (Kingi 1999), although official statistics are sparse. Kingi notes, however, that the 1989 Roper Committee Report on New Zealand Prisons refers to claims by prison staff that 80% of female prisoners had been abused sexually prior to incarceration (Kingi 1999). In a study of young female prisoners' relationships with older female prisoners, Goldingay (2007) gained access to her study participants' files. This revealed that four out of the nine young girls had suffered severe parental abuse or neglect.

Women in prison tend to share a number of characteristics. They are a disadvantaged and marginalised population and one that is disproportionately drawn from the most deprived and marginalised sections of society. They often have histories of poorer physical and mental health and issues associated

with alcohol and drug misuse. Incarcerated women are also disproportionately likely to come from economically disadvantaged backgrounds, be poorly educated, un- or under-employed, and recipients of state benefits (Bentley 2014). Over the past 15 years, New Zealand has sent greater numbers of women to prison. Produced by Te Puni Kokiri in 2000, a report on programmes and services to reduce Māori youth offending titled *Whanake Rangatahi* also found that there had been a noticeable increase in Māori female prisoners aged 17–19 since 1996 (Becroft 2005). Bentley (2014) notes that these increases have occurred despite the fact that women's offending rates have been stable and even in decline for some offences. She argues that more women are "going to prison for minor crimes, first time offences and breaches to community based orders that are unattainable, unrealistic and are not tailored to the gendered needs of women" (44). The cost of not having access to gender-specific programmes means that women leave prison with their issues and needs unaddressed, and with the increased burden of being labelled an ex-prisoner. The failure of effective reintegration strategies and the burden of complying with onerous release conditions produce a cycle of criminality (or breach of parole conditions) that is ongoing and damaging (Bentley 2014). A recent study on women's experiences of reoffending and rehabilitation asserts that "common situational factors influencing women's offending include relationship dysfunction, substance abuse, financial distress and social isolation. These issues were often intertwined and would compound in multiple ways leading to reoffending. For those leaving prison, accommodation and financial difficulties combined with the stress of providing financial and emotional support to family members, with the reappearance of antisocial associates leading to stress, frustration and eventually return to crime. For others, traumatic events such as deaths, abusive relationships, and child custody issues lead to emotional instability and substance abuse also leading back to crime (Bevan and Wehipeihana 2015, 33).

Māori women in prison are a socially submerged population. Moreover, the disproportionality of Māori in the criminal justice system is particularly pronounced for Māori women, who are even more overrepresented than Māori men in apprehensions, convictions, and imprisonments (Morris and Reilly 2003). These women come out of communities where they are members of whānau, have iwi and hapū connections, and have intimate and complex ties that link them to places, histories, and to people. They are likely to have experienced multiple forms of social harm and may have gone on to perpetrate social harm on others. Moreover, their experience and knowledge of incarceration usually significantly predate their own confinement (McIntosh 2011).

'Cultural' Responses to Disproportionality

Mihaere (2015) looks at the responses by Department of Corrections to over 30 years of Māori overrepresentation in the criminal justice system. Notions of Māori cultural identity have informed policy and programme development focussed on meeting the perceived cultural identity needs of Māori prisoners. They draw on the assumption that offending and recidivism are partly attributable to a compromised or failed Māori identity. These programmes are meant to not only introduce Māori prisoners to tikanga Māori that will not only reduce rates of recidivism but also enhance prison environments for Māori and better support rehabilitation efforts (Mihaere 2015).

The Risk, Needs, Responsivity (RNR) model, which first emerged out of Canada in the 1980s, became the primary mode of addressing offender behaviour in New Zealand. The developers of RNR took the view that there was no need to acknowledge variances in racial background amongst offenders because race was not regarded as a major factor in offending behaviour (Bonta et al. 1997). Race and other markers of difference were explicitly excluded in the design of RNR, and offender attributes were presented as "universals" (Spivakovsky 2013, 22).

The exclusion of ethnicity from the RNR model presented the Department of Corrections in New Zealand with a problem. Presenting cognitive behavioural therapy as a culturally neutral intervention was inconsistent with their stated commitment to biculturalism. To respond to this, they developed a bicultural therapy model to deliver a more culturally appropriate service to Māori. The co-option of Māori culture, collectively bound into a narrow behavioural model and redefined as Māori Criminogenic Needs (MaCRN), transformed Māori culture from being a protective factor to being a psycho-social factor associated with an individual's offending.

Following a claim to the Waitangi Tribunal (2005), the use of the MaCRN was discontinued, and a new tool—the Specialist Māori Cultural Assessment (SMCA)—was introduced. The co-option of Māori culture continued in this way. It identified culture as the property or element that is *particular* to Māori offenders and sets them apart from Pākehā offenders. In doing so, it excluded consideration of such factors as the colonisation experience, over-policing of marginalised communities, stop-and-search processes and systemic discrimination as contributing to Māori overrepresentation.

Despite research that showed that the RNR model was flawed in its capacity to address Indigenous populations (Day 2003), New Zealand's belief in the efficacy of the model meant that Indigenous initiatives that should have

been developed within a kaupapa Māori paradigm were subsumed within a Western framework.

Kaupapa Māori and the Use of Māori Cultural Identity in Prison

What has emerged over the last 20 years is a corrections-led approach to the reduction of Māori reoffending, which has been largely ineffective and alien to Māori thinking. In the case of the RNR model, the pairing of tikanga Māori with Western cognitive behavioural approaches has not made any significant difference to Māori overrepresentation. Moreover, it has been resisted by Māori. Mihaere (2015, 167–168) summarises the situation:

> Despite the strength of conviction regarding the potential benefits that might be gained as a result of strengthening the Māori cultural identity status of Māori people, this should not be interpreted that Māori cultural identity can be linked with reducing offending behaviour. On the contrary, there was almost universal accord … that the cause of Māori offending was the social, political and cultural devastation that has resulted from generations of enforced marginalisation of Māori people by Pākehā throughout colonisation. Against that backdrop, the idea that Māori cultural identity loss should form the criminal justice system's fundamental response to Māori offending while the wider social environment that sees Māori continuing to scratch out a marginal existence at the socio-economic fringes of New Zealand society elicited responses of contempt.

Mihaere (2015) proposes that, if Māori cultural identity policies and programmes were framed in a Māori worldview, Māori could develop and deliver a more systematic kaupapa Māori approach.

The approach taken by the Department of Corrections has failed to make any impact on Māori overrepresentation in prisons. Mihaere (2015) is of the view that four things would need to occur for that to happen. Firstly, that the Department of Corrections develop a more systematic approach to cultural identity and kaupapa Māori interventions in prison. Secondly, that it cease to use Māori cultural identity as a tool to attempt to satisfy Treaty obligations. Thirdly, that the management of prisons be given over to kaupapa Māori principles, with prisoner empowerment as an end goal. Finally, that Māori with an interest in criminal justice responses direct all their energies to the process of decarceration and community responses to crime.

Conclusion

One aspect of prison systems that appears to have been largely overlooked is the fact that the impact of incarceration is not purely limited to the individual who is imprisoned. Rather, there are collateral effects and consequences which spread from the individual outwards to whānau and community. There is also evidence to suggest that once set in motion, these reverberations can persist over time, increase in resonance, and then feed back upon themselves, generating long-lasting and potentially intergenerational effects.

As Indigenous criminologists and allied researchers, we have a contribution to make in ensuring that those with institutional knowledge gained under conditions of incarceration are supported in telling their stories; identifying that which needs to be changed, and articulating a way forward that would reduce social harm within our communities. Part of a social harm reduction programme is ensuring that victims do not become perpetrators. A prison identity is neither an ascribed identity nor a natural identity conferred by descent. It is an identity that emerges out of structural violence (Galtung 1970), and, like the structures of society, it is amenable to positive change.

References

Abbott, Max, Brian McKenna, and Lynn Gilles. 2005. Gambling and Problem Gambling among Recently Sentenced Male Prisoners in Four New Zealand Prisons. *Journal of Gambling Studies* 21 (4): 537–558.

Andrae, Dominic, Tracey McIntosh, and Stan Coster. 2016. Marginalised: An Insider's View of the State, State Policies in New Zealand and Gang Formation. *Critical Criminology*. doi:10.1007/s10612-016-9325-8.

Becroft, Andrew. 2005. Māori Youth Offending. Paper presented at Ngakia Kia Puawai Conference, Nelson, November 8–10, in New Zealand.

Bentley, Hannah. 2014. The Cycle of Female Prisoner (Re)Integration: Pathways, Criminal Justice and Imprisonment. MA dissertation, Victoria University of Wellington.

Bevan, Marianne, and Nan Wehipeihana. 2015. *Women's Experiences of Re-Offending and Rehabilitation*. Wellington: Department of Corrections.

Bonta, James, Carol LaPrairie, and Suzanne Wallace-Capretta. 1997. Risk Prediction and Re-Offending: Aboriginal and Non-Aboriginal Offenders. *Canadian Journal of Criminology* 39 (2): 127–144.

Carr, Julia, and Harry Tam. 2013. Changing the Lens: Positive Developments from New Zealand. *The International Association of Youth and Family Judges and Magistrates Chronicle* 1: 14–19.

Davis, Angela. 2003. *Are Prisons Obsolete?*. New York: Seven Stories Press.
Day, Andrew. 2003. Reducing the Risk of Re-Offending in Australian Indigenous Offenders: What Works for Whom? *Journal of Offender Rehabilitation* 37 (2): 1–16.
Department of Corrections. 2007. *Over-Representation of Māori in the Criminal Justice System: An Exploratory Report*. Wellington: Department of Corrections.
Doone, Peter. 2000. *Reporting on Combating and Preventing Māori Crime*. Wellington: Department of the Prime Minister and Cabinet.
Galtung, Johan. 1970. Feudal Systems, Structural Violence and the Structural Theory of Revolution. *Revista Latinoamericana de Ciencia Politica* 1 (1): 25–79.
Goldingay, Sophie. 2007. Tail Mums: The Status of Adult Female Prisoners among Young Female Prisoners in Christchurch Women's Prison. *Social Policy Journal of New Zealand* 31: 56–73.
Jackson, Moana. 1988. *The Māori and the Criminal Justice System, A New Perspective: He Whaipaanga Hou*. Wellington: Department of Justice.
Kingi, Venezia. 1999. *The Children of Women in Prison.* PhD dissertation, Victoria University of Wellington.
Kruttschnitt, Candace, and Rosemary Gartner. 2003. Women Imprisonment. *Crime and Justice* 30: 1–81.
McIntosh, Tracey. 2011. Marginalisation: A Case Study: Confinement. In *Māori and Social Issues*, eds. Tracey McIntosh, and Malcolm Mulholland, 263–282. Wellington: Huia Publishers.
McIntosh, Tracey, and Leon Radojkovic. 2011. Exploring the Nature of the Intergenerational Transfer of Inequalities Experienced by Young Māori in the Criminal Justice System. In *Indigenising Knowledge for Current and Future Generations*, ed. Deidre Brown, 38–49. Auckland: Ngā Pae o te Māramatanga.
Mihaere, Riki. 2015. *A Kaupapa Māori Analysis of the Use of Māori Cultural Identity in the Prison System*. PhD dissertation, Victoria University of Wellington.
Ministry of Health. 2008. *The Health Status of Māori Male Prisoners*. Wellington: Ministry of Health.
Morris, Allison, and James Reilly. 2003. *The 2001 New Zealand National Survey of Crime Victims*. Wellington: Ministry of Justice.
National Health Committee. 2010. *Health in Justice: Kia piki te ora, kia tika! Improving the Health of Prisoners and their Families and Whānau: He Whakapiki i te Ora o ngā Mauhere me ō Rātou Whānau*. Wellington: Ministry of Health.
Pratt, John. 2006. The Dark Side of Paradise: Explaining New Zealand's History of High Imprisonment. *British Journal of Criminology* 46: 541–560.
Quince, Khylee. 2007. Maori and the Criminal Justice System in New Zealand. In *Criminal Justice in New Zealand*, eds. Julia Tolmie, and Warren Brookbanks, 333–358. Wellington: LexisNexis.
Spivakovsky, Claire. 2013. *Racialised Correctional Governance: The Mutual Constructions of Race and Criminal Justice*. Surrey: Ashgate.

Statistics New Zealand. 2013. *New Zealand Yearbook: Crime and Justice*. Wellington: Statistics New Zealand.
Statistics New Zealand. 2015. *Annual Sentenced Prisoner Throughput for the Latest Calendar Years Tables*. Wellington: Statistics New Zealand.
Statistics New Zealand. 2016. *Remand and Sentenced Prisoner Tables*. Wellington: Statistics New Zealand.
Taonui, Rawiri, and Greg Newbold. 2011. Māori Gangs. In *Māori and Social Issues*, eds. Tracey McIntosh, and Malcolm Mulholland, 29–34. Wellington: Huia Publishers.
Tauri, Juan. 2014. Criminal Justice as a Colonial Project in Contemporary Settler Colonialism. *African Journal of Criminology and Justice Studies* 8 (1): 20–37.
Tribunal, Waitangi. 2005. *Wai 1024, The Offender Assessment Policies Report*. Wellington: Ministry of Justice.
Webb, Robert. 2011. Incarceration. In *Māori and Social Issues*, eds. Tracey McIntosh, and Malcolm Mulholland, 249–262. Wellington: Huia Publishers.
Workman, Kim, and Tracey McIntosh. 2013. Crime, Imprisonment and Poverty. In *Inequality: A New Zealand Crisis*, ed. Max Rashbrooke, 120–133. Wellington: Bridget Williams Books.

Author Biographies

Tracey McIntosh (Ngāi Tūhoe) is the Professor of Indigenous Studies at the University of Auckland. Her research focusses on incarceration, specifically the incarceration of Indigenous peoples, inequality, poverty, and justice. She is engaged in community work and served as co-director of Ngā Pae o te Māramatanga, NZ's Māori Centre of Research Excellence.

Kim Workman (Ngāti Kahungunu and Rangitāne) is Adjunct Research Associate at VUW. After a long public service career which included Head of Prison Service, he advocated for criminal justice reforms and launched Rethinking Crime and Punishment. He received the 2015 J.D. has been awarded an honorary Stout Fellowship to write a book on Māori and the criminal justice system and has been awarded an honorary degree of Doctor of Literature by VUW.

49

Crime and Māori in the Media

Simone Bull

We cannot avoid noticing that crime and deviance are topics that occupy much of the attention of the media. Whether in print, radio, television, blogs, tweets, or discussion boards, we are constantly plied with events and circumstances that are carefully labelled as atrocious, offensive, threatening, or shocking. This is largely our own fault since we have chosen to consume from those media that present these stories. We could have chosen to purchase, turn to, click on, and produce only stories about matters factual or uplifting. But we chose not to. Consequently, we, as a society, have used the media to shape our perceptions of crime. Even those of us who have studied criminology to an advanced level cannot honestly state that we are immune to the images and associations clamouring for our attention. The resulting *representation* of crime in the media is highly skewed, and for Māori, it is actively damaging.

Manufacturing Consent

It is easy to conceive that powerful figures in society might wish to control the information presented to the masses. We should certainly consider the possibility that the media are presenting a *misrepresentation* of crime; that what we are told and shown is deliberately misleading, designed to further the interests of a person or group, and ultimately control public opinion (Herman

S. Bull (✉)
NZ Police, Wellington, New Zealand
e-mail: Simone.Bull@police.govt.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_49

and Chomsky 1988). Numerous commentators have shown us how this is achieved, for example, in the aftermath of 9/11 when governments manufactured public consent to go to war against Afghanistan by mobilising and manipulating public opinion and by neutralising critical narratives.

There are several models of how the media select, structure, and shape content, none more compelling than the propaganda model of Herman and Chomsky (1988). First, the dominant mass media outlets are large competing companies. So, they must prioritise market share over any other consideration. Second, the news media must appeal to advertisers who are their main source of income. Third, large bureaucracies, like police, subsidise the mass media by generating compelling material for them at little or no cost.[1] Fourth, negative responses to news items can be expensive to the media, either due to loss of advertising revenue or due to the costs of court action. For that reason, potential backlash deters some kinds of reporting.

French philosopher Jean Baudrillard (1995, 1996) was not content to characterise media depictions as representations or misrepresentations. He developed a concept of *simulacra*: narratives that arise spontaneously from associations of "signs" within the media which bear little or no relationship to the real world and yet have a degree of popular acceptance. For Baudrillard, when simulacra begin to precede representations and misrepresentations—that is when they have more currency and credibility—society drifts into a state of hyper-reality.[2]

The Hyper-Reality of Overrepresentation

From the 1880s to around 1950, crime rates in New Zealand were low and relatively static. From 1950, the crime rate continuously grew until the early 1990s. For nearly 25 years now, the crime rate in New Zealand has been falling (Workman 2012). By contrast, imprisonment in New Zealand continues to rise. In 1980, we had fewer than 3,000 inmates at any given time. Twenty years later, the number was nearly 5,000 (Criminal Justice Policy Group 1998). Nowadays, we have over 10,000 people in prison (Department of Corrections 2016a). Even taking population growth into account, our imprisonment rate has more than doubled over the past 35 years; reaching 194 per 100,000 people (Workman 2012).

Workman (2012, 4) points out that "there is no relationship anywhere in the world between the imprisonment rate and the crime rate. The

imprisonment rate is not a measure of crime. It is a measure of the consumption of punishment." Somehow, despite an apparent reduction in crime, New Zealand has increased its appetite for punishment.

Moreover, the burden of punishment is falling more and more upon Māori. In 1950, around 18% of inmates identified as Māori. In 1970, the figure was 37% (Williams 2001). Today, 51% of the people in prison are Māori, while Māori make up only around 15% of the population (Department of Corrections 2016b). This appalling statistic is often ingeniously referred to as "overrepresentation" in policy circles. Do Māori really commit more crime? We simply cannot say. Approximately 1.9 million crimes were identified in 2013 by the New Zealand Crime and Safety Survey (NZCASS).[3] Of these, 589,000 were reported to NZ Police (Ministry of Justice 2014). Once an event is reported to the police, they must decide whether to record it as a crime. Roughly, 360,000 crimes were recorded by NZ Police in 2013 (Statistics New Zealand 2016a). Around 158,000 of these were resolved. That is just 8% of the total. Though nearly 78,000 of the 171,841 apprehensions involved people who identified as Māori (Statistics New Zealand 2016b), "it would be very unwise to extrapolate from the little knowledge we have about the people who are known to the criminal justice system to the much greater number of those who are unknown" (Bottomley and Pease 1986, 19).

From time to time, the way in which statistics are captured and reported changes, as does the picture they paint. For example, when official crime statistics recently switched from reporting numbers of apprehensions to numbers of individuals apprehended, Māori overrepresentation dropped. This is due to the fact that a higher proportion of Māori than non-Māori offenders are apprehended repeatedly in any given year. Integrating traffic offences into crime data added to this drop because Māori are not overrepresented in traffic offences to the same degree as other offences.

The quality of ethnicity data in the justice sector is also suspect. Once someone is apprehended, their ethnicity can be formally recorded. An ethnicity is recorded for 98% of NZ Police apprehensions (Statistics New Zealand 2016b). Although self-identification of ethnicity is the standard, we do not know whether the standard is adhered to. Further, NZ Police statistics only record one ethnicity per person. By contrast, the census allows people to identify multiple ethnicities (Statistics New Zealand 2005).

The census is often viewed as the most authoritative source of data on the ethnicity of the general population. However, census data undercounts the Māori population and therefore makes the supposed overrepresentation worse because dividing by an erroneously low total Māori population generates an

erroneously high proportion. The 2013 post-enumeration survey revealed a net undercount of the Māori ethnic population[4] by 6.1% (Statistics New Zealand 2014).

In short, the so-called Māori crime rate is a highly unreliable construct. Nonetheless, Māori have become firmly associated with crime. How did this come about?

The Foundations of the Simulacrum

The 1950s heralded the beginning of a steady upward trend in crime rates around the world. They also mark an important turning point in the association of crime, Māori, and imprisonment in the media.

The rural-to-urban migration of most of the Māori population after WWII brought Māori and Pākehā into widespread contact for the first time since the early to mid-nineteenth century (King 1997). Māori became visible. Their skin colour, hairstyles, speech, mannerisms, names, and culture made them distinct. The decolonisation process (Said 1994) encouraged many Māori to celebrate their distinctness, including members of adult gangs who were even more visible on account of their ostentatious dress and facial tattoos (Newbold 2000). When Māori became more visibly distinct, being Māori was bound to have other connotations attached to it. As it turned out, those connotations were almost entirely negative.

Māori in the Marketplace of Signs

For Baudrillard (1995, 1996), the media are traders in signs; that is, traders in images, buzzwords, slogans, clichés, and memes. A popular sign or combination of signs increases in value, acquires credibility, significance, and frequency of use. New signs are continually brought into being, and new associations between signs are tested and assimilated, while the old are recycled or discarded.

Crime reporting in New Zealand media appears to have changed dramatically over time. In nineteenth century, New Zealand, the ideal of the crime-free society, was thought to be threatened by "undesirable" immigrants, strangers, and outsiders, but not Māori (Pratt 1992). Vagrants were the *cause célèbre* of the times. Arresting and convicting them was a high priority for the authorities and the newspapers (Fairburn 1985; Fairburn and Haslett 1987).

But, in the 1950s and 1960s, things were very different. Over two or three decades, Māori and Pacific Island men came to be perceived as the principal threats to law and order, as rapists and gang members. In this "racialisation" of crime, crime stories came to stress—and later to seek out—the Māori origin of the offender (Jones 1998; Spoonley 1993, 1994).

Then came the economic decline of the early 1970s, which introduced the first major mass unemployment in the postwar period, particularly in low-skilled jobs where Māori were a large proportion of the workforce (Belich 2001). Racial tensions intensified. In Auckland and Wellington, those areas with large numbers of Māori residents became identified as problem areas with high crime rates and other undesirable characteristics. This had national implications, since, in New Zealand, crime from any one part of the country receives a lot of media coverage throughout the rest of the country (Allison 1989; Robinson 1984). It is this racial discourse of crime, not that of the vagrant or some other "other", that persisted throughout the rest of the twentieth century and remains strong today.

How did this racialisation of crime happen? One mechanism was the labelling of offenders as Māori, Pacific Islander, or Polynesian, but omitting the ethnicity of everyone else. Another was to cover Māori news only when it involved crime. A third was to give prominence to stories involving political protests and ethnic gangs. Visual motifs such as facial tattoos became shorthand for criminal tendencies. And crime statistics themselves have been uncritically repeated so often as to become dogma.

Race-Labelling of Crime News

In the 1950s, stress on the Māori character of those involved in crime was a feature of all but one daily newspaper (Thompson 1953, 1954a, b, 1955). Even in that case, the terms "half-caste" and "quarter-caste" were widely and almost exclusively used in crime reports. The practice of race-labelling Māori crime news and respective headlines was widespread and limited in its use to Māori. Jones (1998) found that metropolitan dailies were largely avoiding the labelling of Māori in crime and accident reports by 1955, but the national weekly *Truth* continued to favour this practice. During a month-long survey of crime reports appearing in the *Dominion* and *Evening Post*, Kernot (1990) noted that it was only non-Pākehā who were racially identified, and that minority group labels were often used in the reporting of criminal cases. Spoonley (1990) found that labels such as Māori, Pacific Islander, or Polynesian were used three to four times more than labels such as Pākehā.

This was particularly true for violent and sexual offending, reinforcing the belief that Māori and Pacific Island peoples were responsible for such crimes. Abel (1997) studied television news coverage of Waitangi Day commemorations, examining three weeks of news chosen randomly from broadcasts in the first half of 1990. She found that Māori presence was most likely to be either in the areas of crime and deviance, or part of an official welcome to an overseas dignitary.

The Prominence of Stories Involving Protests and Ethnic Gangs

Abel (1997) also showed that a predetermined news frame existed, a frame which set out to portray Waitangi Day protesters as a potential threat to law and order, and to the state. Likewise, the images of people involved in the 1975 Land March and the 1982 occupation of Bastion Point were those of the troublemaker and deviant, not of the freedom fighter. Even as these events have been reinterpreted in recent years, those images have been overtaken by media stories of supposed terrorists in the Urewera mountains[5] (for details refer Keenan 2008).

In the 1970s and early 1980s, rising levels of violence and disorder were thought to be partly associated with adult gangs. Kelsey and Young (1982) concluded that the media had sensationalised the adult gang situation and, in so doing, had whipped up a frenzy about gangs. Large ethnic gangs with high numbers of Māori members—such as the Mongrel Mob and Black Power—became strongly associated in the public mind with crime (Winter 1998). Following six violent incidents in Auckland during the early 1970s, four of which took place in the inner city and involved Māori or Pacific Island peoples, public demands were made for more police with increased powers. Hysterical newspaper editorials and outbursts from politicians led to the establishment of Task Force policing in the summer of 1972/1973 to patrol the inner city. The Task Force more than tripled the usual number of Māori and Pacific Island peoples arrested for drunkenness (Auckland Committee on Racism and Discrimination 1974).

The public image of these gangs was severely compromised again by some of the more notorious offences they were credited with, for example, the rape of a passerby at a national gang convention in Auckland in 1986 (Newbold 2000).

For a brief period in the mid-1980s, Rastafarians or “dreads” stole the

limelight from gangs. The dreads arose out of defunct Black Power gangs and took up residence in the small rural township of Ruatoria on the East Coast of the North Island, where unemployment was high and marijuana plots were common. There were only about ten hardcore members (Woods and Quinn 1999), but, before long, Ruatoria was catapulted into the headlines as the new arson capital of the country. Stock thefts, fence cutting, and the wilful decapitation of one of their own were also newsworthy, as was the NZ Police response and ensuing tensions. While in jail for abducting a police officer, the ring leader had his face fully tattooed, thereby establishing full facial tattoos as a local dreads custom (Woods and Quinn 1999) and gripping the imagination of local youth (McLeod 1988).

Tattoos (Moko)

In New Zealand, tattoos are a sign whose meaning has changed over time from a taken-for-granted feature of everyday life to the hallmark of a chief or warrior, to a heathen and backward practice, to be almost extinguished. In recent years, Māori facial and body tattoos have been undergoing a revival (Te Awekotuku and Nikora 2007).

Traditionally, Māori men wore elaborate facial tattoos while women wore simpler, elegant designs mostly on the chin and lips. Extensive body tattoos were also normal; for both genders. This body art was a favoured subject of nineteenth century European photographers and painters, whose portraits fuelled the imaginations of the buying public. However, the process of Europeanisation, including aggressive efforts by Christian missionaries to stamp out the practice, meant that by the 1920s tattooing was much less common (Te Awekotuku and Nikora 2007).

Gang members were among the first to reacquire full facial tattoos, often while they were in prison. "Gang members acted as a 'bridge', a connecting link between traditional and contemporary expressions of moko" (Te Awekotuku and Nikora 2007, 164). But the facial tattoos of gang members often blended customary designs with gang insignia or antisocial messages. Therefore, the modern revival of customary tattoos is tainted by the perception that tattoos are a motif of criminality, an element of gang culture and imprisonment (Te Awekotuku and Nikora 2007).

Official Statistics

Widespread concern about Māori representation in crime statistics emerged in earnest in the 1970s (Williams 2001). Over time, these statistics have become accepted as facts and are cited as such in the media, even though, as demonstrated above, they cover only a small proportion of crimes and questionable counts of Māori.

In practice, official statistics are a self-perpetuating sign in their own right, a media creation. The media's ability to manipulate crime statistics has been known for over a century. In the 1890s, "muckraking" journalist Lincoln Steffens famously created a "crime wave" in New York City by sensationalising routine police reports and forcing his competitors to do likewise (Steffens 1931).

The public has a choice whether to report crime; NZ Police decides whether or not to record it. NZ Police must also decide how much resourcing to put into solving it. So, there is considerable scope for reinforcement. If the public are more likely to report a Māori offender, and police are consistent in their follow-up, then the chances of a Māori offender being apprehended are greater. There are good reasons to believe that this is happening.

Consequences of the Māori–Crime Nexus

Some of the consequences of the Māori–crime nexus include implicit attitudes, dazzling figures of crime, and "seeing black", which are discussed in this section.

Implicit Attitudes

Implicit associations play an important role in shaping our attitudes, beliefs, and behaviour. Without even realising what is happening, we quickly make connections in our minds between pairs of ideas that are familiar to us. We do this based on our past interactions with people, stories we have heard, movies we have watched, and so on. Conversely, when we encounter pairs of ideas that are not familiar to us, we take much longer to connect them. Implicit Association Tests (IATs) have been developed for measuring these associations. Over a period of more than 3 years, drop-in respondents at an IAT demonstration website hosted in the USA completed hundreds of thousands of race attitude IATs. Based on self-identification, both "White" and "Black"

respondents showed a strong explicit preference for their own group. But on an implicit measure, both groups preferred White names and faces over Black ones, albeit strongly for White respondents and weakly for Black respondents (Nosek et al. 2001). These associations are difficult to overcome because these mental sets, which are formed through previous experience, can hinder problem-solving without us even realising it. This is known as the *Einstellung* effect (attitude effect).

Dazzling Figures of Crime

While most crime goes unreported, some crimes, some offenders, and some victims receive intense scrutiny. "Errors in criminal records are not only those of exclusion and incompleteness but of inclusion and superfluity… Wherever there are dark figures [of crime], we must expect to find dazzling figures in accordance with the amplification of deviance thesis of Cohen (1985) and Hall et al. (1978) and the hyperrealism thesis of the simulacrum by Baudrillard (1996)" (Agozino 2005, 216).

In the late 1960s and early 1970s, more crime was detected and more arrests were made among Polynesians because repeated news coverage of racial crime issues intensified public beliefs that Polynesians were responsible for a disproportionate amount of crime (Duncan 1972). Polynesians may even have seen themselves as criminal and committed more crime. Archer and Archer (1970) found that Māori shared the same racial stereotypes held by Pākehā, even those that were unflattering or hurtful to themselves. Paradoxically, the internalisation of negative images may have helped form Māori identities (Fleras and Spoonley 1999). Participants in Te Whaiti and Roguski's (1998) research talked about the stereotyped criminalisation of Māori. The majority thought that skin colour and ethnicity contributed to Māori being inappropriately labelled criminal, treated as such and that Māori youth were vulnerable to internalising this.

The media are part of the phenomenon of labelling, "building up diffuse public anxieties that precede further rounds of deviancy amplification" (Jones 1998, 68). "A social perception of increasing gang or street crime, apparently disproportionately committed by Māori offenders, will lead to an increased allocation of police resources to those areas of activity. Such a concentration leads to a greater number of arrests of mainly Māori people which in turn will maintain the perception of Māori criminality" (Jackson 1988, 121).

Seeing Black

Bottomley and Pease (1986) believed that White people in England and Wales had a lower threshold of reporting to the police when victimised by a Black person. This led to a higher rate of reporting offences against Whites by Blacks and gave the impression of offences being committed by Black people in a disproportionately large number of cases.

In a US study (Oliver 1999), viewers watched a news story about a murder that featured a "Wanted" poster of either an African American or a Caucasian suspect. Immediately after viewing and again 3 months later, participants reviewed a series of photographs, indicating the extent to which they believed each one to be the same suspect pictured in the newscast. Over time, participants who had seen the Caucasian suspect in the news story were increasingly likely to believe they had seen an African American. It could be expected that the same phenomenon occurs in New Zealand for people who are visibly Māori.

Countering the Simulacrum

The power of the simulacrum cannot readily be negated. Our ability to manage cognitive dissonance is proof against any amount of reasoning. Many New Zealanders will question the "Māoriness" of people who self-identify as Māori but do not fit the phenotype (see, for example, Hokowhitu and Scherer 2008). But, when those Māori offend, I feel the persistence of race-crime labelling tells us they are all too ready to believe that it is the 25% Māori descent of the so-called "quarter-caste" who committed the crime. Countering the simulacrum requires us to create an equally unacceptable alternative in which some other group is associated with crime or, preferably, promote more positive associations for Māori. There may be several ways to do this.

Changing the Crime Statistics

Official statistics have become a mainstay of crime news. Therefore, they are helping to sustain the Māori–crime nexus. Roberts (1994) has argued that official crime statistics are so detrimental to minority ethnic groups that they should not be broken down by ethnicity if used at all. However, in an increasingly open data environment, stopping the long-established collection

and publication of crime and justice statistics by ethnicity is probably unpalatable. If we can turn the Māori crime rate around, however, that sign would start to work *for* Māori rather than *against* Māori.

Acquiring New Mental Sets

We can form positive associations about Māori in the media and in our minds; free of crime statistics. For people in frontline policing roles, on the courtroom bench, and working in prisons, that will be difficult, but not impossible. Race IAT results can be improved, at least for members of the majority group and in the short term, by repeated exposure to the positive pairing of ideas (Dasgupta and Greenwald 2001, Pinkston 2015). If we create opportunities for this exposure to happen, our unconscious associations will change how they influence our attitudes and behaviour without us even realising it.

Remove Modern Tattoos

Visible tattoos sustain the Māori "overrepresentation" hyper-reality, especially gang insignia and antisocial messages. They can also be a major barrier to employment. Visible tattoo removal has been available in prisons at times in the past. The service stopped after the costs of providing it and the types of offenders using it became newsworthy. One beneficiary of such a scheme said of his tattoo: "It's a label and you're forever labelled that. It wasn't until I started getting laser treatment and it disappeared, people treated you differently" (Mussen 2015). But why wait until someone makes it all the way to prison to remove their tattoos? If it can be done in the community, it has the potential to stop deviancy amplification in the first place.

Conclusion

This chapter argues that Māori and crime have been strongly associated with each other in the media since the 1950s. Although this simulacrum was built on inadequate evidence and antiquated racism, it has proven remarkably persistent. This Māori–crime nexus has meant that simply identifying an offender as Māori is enough to condemn them in the media. Consumers tend to assume they are offenders, they are guilty, and ought to be imprisoned. The existence of the simulacrum partly explains why Māori imprisonment has

increased despite numerous government policy initiatives (Williams 2001). No amount of tinkering with the criminal justice system will improve the results for Māori if those results are driven by media representations. We cannot just replace the simulacrum with another, nor can we reverse it overnight, but some of the signs associated with Māori and crime, such as facial tattooing, can be addressed.

At the very least, we can strengthen our own positive associations with Māori. Try waka ama (outrigger canoe paddling), sing the national anthem in Māori, go to a war exhibition[6], or watch the news on Māori TV. "This is your last chance. After this, there is no turning back. You take the blue pill—the story ends, you wake up in your bed and believe whatever you want to believe. You take the red pill—you stay in Wonderland and I show you how deep the rabbit hole goes" (Wachowski and Wachowski 1999).

Notes

1. Of course, this is a two-way relationship. Sometimes it is desirable for police to use media channels to inform the public, or to get information from the public.
2. Baudrillard envisages a fourth phase in which the real ceases to exist altogether. Since neither crime nor Māori are going to disappear, we need not concern ourselves with that here.
3. NZCASS excludes offences against everyone aged under 15 years, among others.
4. As opposed to the Māori descent population, which is larger.
5. Operation 8 was a National Security Operation undertaken in 2006. The investigation included interception warrants obtained under the *Crimes Act* (for serious violence offences about to occur) and then under the *Terrorism Suppression Act* (for participating in a terrorist group). When the Operation was terminated in October 2007, it gained prominence in the media and was dubbed "The Terror Raids". However, when the application was made to the Solicitor-General to lay charges under the *Terrorism Suppression Act*, the application was declined and only *Arms Act* charges were laid. In the end, charges were withdrawn for all but four of the people involved, two of whom were sentenced to two and a half years in prison and two who were later sentenced to 9 months home detention.
6. Māori were outstanding contributors to New Zealand's war efforts. Sir Apirana Ngata explicitly characterised Māori participation in WWI as "the price of citizenship". In WWII, the 28th (Māori) Battalion was the most decorated NZ Battalion, which came to be a source of great pride to the wider New Zealand community (Ministry of Culture and Heritage 2016).

References

Abel, Sue. 1997. *Shaping the News: Waitangi Day on Television*. Auckland: Auckland University Press.

Agozino, Biko. 2005. *Counter-Colonial Criminology: A Critique of Imperialist Reason*. London: Pluto Press.

Allison, Peter. 1989. Stranger than Fiction: The Way the Media and the Cops Paint a Picture of Violent Crime. *Metro Magazine* 9: 98–104.

Archer, Dane, and Mary Archer. 1970. Race, Identity, and the Māori People. *Journal of the Polynesian Society* 79 (2): 201–218.

Archer, Dane, and Mary Archer. 1971. Māoris in Cities. *Race and Class* 13 (2): 179–185.

Auckland Committee on Racism and Discrimination. 1974. *Task Force: An Exercise in Oppression*. Auckland: Auckland Committee on Racism and Discrimination.

Baudrillard, Jean. 1995. *Simulacra and Simulation*, trans. S. Glaser. Ann Arbor, MI: University of Michigan Press.

Baudrillard, Jean. 1996. *Perfect Crime*. London: Verso.

Belich, James. 2001. *Paradise Reforged: A History of the New Zealanders from the 1880s to the Year 2000*. Auckland: Penguin Press.

Bottomley, A.Keith, and Kenneth Pease. 1986. *Crime and Punishment: Interpreting the Data*. Milton Keynes: Open University Press.

Cohen, Stanley. 1985. *Visions of Social Control*. Cambridge: Polity Press.

Criminal Justice Policy Group. 1998. *The Use of Imprisonment in New Zealand*. Wellington: Ministry of Justice.

Dasgupta, Nilanjana, and Anthony G. Greenwald. 2001. On the Malleability of Automatic Attitudes: Combating Automatic Prejudice with Images of Admired and Disliked Individuals. *Journal of Personality and Social Psychology* 81 (5): 800–814.

Department of Corrections. 2015. *Annual Report 2014/15*. Wellington: Department of Corrections.

Department of Corrections. 2016a. *Briefing to the Incoming Minister, December 2016*. Wellington: Department of Corrections.

Department of Corrections. 2016b. *Prison Facts and Statistics, March 2016*. Wellington: Department of Corrections.

Duncan, Leith S.W. 1972. Racial Considerations in Polynesian Crime. In *Racial Issues in New Zealand*, ed. Graham M. Vaughan, 39–40. Auckland: Akarana Press.

Fairburn, Miles. 1985. Vagrants, 'Folk Devils', and Nineteenth Century New Zealand as a Bondless Society. *Historical Studies* 21 (85): 495–514.

Fairburn, Miles, and Stephen Haslett. 1987. Violent Crime in Old and New Societies: A Case Study Based on New Zealand 1853–1940. *Journal of Social History* 20: 89–126.

Fleras, Augie, and Paul Spoonley. 1999. *Recalling Aotearoa: Indigenous Politics and Ethnic Relations in New Zealand*. Auckland: Oxford University Press.

Hall, Stuart, Chas Critcher, Tony Jefferson, John Clarke, and Brian Roberts. 1978. *Policing the Crisis: Mugging, the State, and Law and Order*. London: MacMillan.

Herman, Edward S., and Noam Chomsky. 1988. *Manufacturing Consent: The Political Economy of the Mass Media*. New York: Pantheon Books.

Hokowhitu, Brendan, and Jay Scherer. 2008. The Māori All Blacks and the Decentering of the White Subject: Hyperrace, Sport, and the Cultural Logic of Late Capitalism. *Sociology of Sport Journal* 25: 243–262.

Jackson, Moana. 1988. *The Māori and the Criminal Justice System: He Whaipaanga Hou—A New Perspective, Part 2*. Wellington: Department of Justice.

Jones, Lloyd D. 1998. Images of Māori in the Pakeha Press: Pakeha Representations of Māori in the Popular Print Media 1935–1965. MA dissertation, University of Auckland.

Keenan, Danny (ed.). 2008. *Terror in Our Midst? Searching for Terror in Aotearoa New Zealand*. Wellington: Huia Publishers.

Kelsey, Jane, and Warren Young. 1982. *The Gangs: Moral Panic as Social Control*. Wellington: Victoria University of Wellington.

Kernot, Bernard. 1990. Race-Tagging: The Misuse of Labels and the Press Council. In *Between the Lines: Racism and the New Zealand Media*, eds. Paul Spoonley and Walter Hirsh, 53–55. Auckland: Heinemann Reed.

King, Michael. 1997. *Nga Iwi o te Motu: One Thousand Years of Māori History*. Auckland: Reed Publishing.

McLeod, Rosemary. 1988. The Williams of Ruatoria: Living on the Edge of the Rational World. *North & South* 10: 64–79.

Ministry of Culture and Heritage. 2016. *Māori and the Second World War*. http://www.nzhistory.net.nz/war/maori-in-second-world-war. Accessed 27 Sept.

Ministry of Justice. 2014. *The New Zealand Crime and Safety Survey: Main Findings Report*. Wellington: Ministry of Justice.

Mussen, Deirdre. 2015. Hundreds of Prisoners Get Tattoos Removed by Laser Treatment. *Sunday Star Times*, December 6.

Newbold, Greg. 2000. *Crime in New Zealand*. Palmerston North: Dunmore Press Limited.

Nosek, Brian A., Mahzarin R. Banaji, and Anthony G. Greenwald. 2001. Harvesting Implicit Group Attitudes and Beliefs from a Demonstration Web Site. *Group Dynamics: Theory, Research and Practice* 6 (1): 101–115.

Oliver, Mary Beth. 1999. Caucasian Viewers' Memory of Black and White Criminal Suspects in the News. *Journal of Communication* 49 (3): 46–60.

Pinkston, Kevin. 2015. The Black-White Malleability Gap in Implicit Racial Evaluations: A Nationally Representative Study. *The Journal of Social Psychology* 155 (3): 189–203.

Pratt, John. 1992. *Punishment in a Perfect Society: The New Zealand Penal System 1840–1939*. Wellington: Victoria University Press.
Roberts, Julian V. 1994. Crime and Race Statistics: Toward a Canadian Solution. *Canadian Journal of Criminology* 36 (2): 175–185.
Robinson, Jan. 1984. Canterbury's Rowdy Women: Whores, Madonnas and Female Criminality. *New Zealand Women's Studies Journal* 1 (1): 6–25.
Said, Edward. 1994. *Culture and Imperialism*. New York: Alfred A. Knopf.
Spoonley, Paul. 1990. Racism, Race Relations and the Media. In *Between the Lines: Racism and the New Zealand Media*, eds. Paul Spoonley and Walter Hirsh, 26–37. Auckland: Heinemann Reed
Spoonley, Paul. 1993. *Racism and Ethnicity*. Oxford: Oxford University Press.
Spoonley, Paul. 1994. The Political Economy of Racism. In *Studies in New Zealand Social Problems*, ed. Paul F. Green, 128–144. Palmerston North: Dunmore Press.
Statistics New Zealand. 2005. *Statistical Standard for Ethnicity 2005*. Wellington: Statistics New Zealand.
Statistics New Zealand. 2014. *Post-Enumeration Survey: 2013*. Wellington: Statistics New Zealand.
Statistics New Zealand. 2016a. *Annual Recorded Offences for the Latest Calendar Years*. Wellington: Statistics New Zealand.
Statistics New Zealand. 2016b. *Annual Apprehensions for the Latest Calendar Years*. Wellington: Statistics New Zealand.
Steffens, Lincoln. 1931. *The Autobiography of Lincoln Steffens*. California: Heyday.
Te Awekotuku, Ngahuia, and Linda W. Nikora. 2007. *Mau Moko: The World of Māori Tattoo*. Auckland: Penguin Group.
Pania, Te Whaiti, and Michael Roguski. 1998. *Māori Perceptions of the Police*. Wellington: Victoria University of Wellington.
Thompson, Richard H.T. 1953. Māori Affairs and the New Zealand Press (Part One). *Journal of the Polynesian Society* 62 (4): 366–383.
Thompson, Richard H.T. 1954a. Māori Affairs and the New Zealand Press (Part Two). *Journal of the Polynesian Society* 63 (1): 1–6.
Thompson, Richard H.T. 1954b. Māori Affairs and the New Zealand Press (Part Three). *Journal of the Polynesian Society* 63 (3): 216–227.
Thompson, Richard H.T. 1955. Māori Affairs and the New Zealand Press (Part Four). *Journal of the Polynesian Society* 64 (1): 22–34.
Wachowski, Andrew P., and Laurence Wachowski (directors). 1999. *The Matrix*. DVD. Australia: Roadshow Entertainment.
Williams, Charlotte. 2001. *The Too Hard Basket: Māori and Criminal Justice Since 1980*. Wellington: Victoria University Institute of Policy Studies.
Winter, Pahmi. 1998. 'Pulling the Teams out of the Dark Room': The Politicisation of the Mongrel Mob. In *Gangs and Youth Subcultures: International Explorations*, eds. Kayleen Hazlehurst and Cameron Hazlehurst, 245–266. New Brunswick, NJ: Transaction Publishing.

Woods, John, and Peter J. Quinn. 1999. *Highway 35: Travels Around East Cape*. Auckland: Reed Books.
Workman, Kim. 2012. Justice Matters. Paper presented at Quaker's Retreat on Penal Reform, August 18, in Wanganui.

Author Biography

Dr. Simone Bull is of Ngāti Porou and Geordie descent. Her Ph.D. sought to characterise and explain patterns in recorded longitudinal Māori criminal justice data. She co-authored Media and Ethnic Minorities and has, for the past 10 years, been working in government agencies and as an independent consultant in strategy and policy roles with a particular interest in Māori and the criminal justice system.

50

Doing Research With The Aboriginal Domain as a Non-indigenous Criminologist

Harry Blagg

This chapter is concerned with the relationship between mainstream criminology and what anthropologists call the 'Aboriginal domain', defined by John von Sturmer as "places where the dominant social life or culture is Aboriginal, where the system of knowledge is Aboriginal, where the major language is Aboriginal; in short where the resident Aboriginal population constitutes the public" (Von Sturmer 1984, 219).[1] The Aboriginal domain is not static and unchanging. Its shape, density, and texture, and its relationship to the mainstream are undergoing a historic shift. The Australian High Court ruling in *Mabo and others v Queensland (No 2) (1992)* is the game changer here: consigning the legal fiction of terra nullius to the garbage bin of history (the one labelled non-recyclables only). The Aboriginal domain increasingly rests on Native Title and with it a greater say in what occurs 'on-country', but, alas, not yet the power to veto unwelcome extraction projects or full powers to leverage off the title to develop Indigenous enterprises. Nonetheless, the very fact that an admittedly restricted form of First Peoples' title to land is now doctrine in Australia raises the likelihood that forms of

I would like to acknowledge the contribution of Indigenous groups in Western Australia to the ongoing research informing this chapter. Thanks are due to the anonymous reviewers for their valuable suggestions and comments and to research colleagues Thalia Anthony and Tamara Tulich for their staunch support.

H. Blagg (✉)
Director of the Centre for Indigenous Peoples and Community Research, University of Western Australia, Perth, Australia
e-mail: harry.blagg@uwa.edu.au

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_50

Indigenous 'place-based sovereignty' (Blagg and Anthony 2014) will become enacted. This will see Indigenous entities directly engaged in developing their own forms of policing (based on the Night Patrol model), developing their own diversionary practices (based 'on-country'), and sitting with, rather than beneath, the White judiciary in courts. In 2011, I (Blagg 2011) wrote about working *in* the Aboriginal domain. This language is no longer acceptable. Research must be in partnership *with* the Aboriginal domain. This requires that we begin a decolonising process that shifts power relationships between researchers and Indigenous communities, opens up the research process to Indigenous scrutiny, and privileges Indigenous priorities. Criminologists need to work *with* not *on* Indigenous communities to challenge the priorities and methods of government and create a fresh research agenda focussed on strengthening Indigenous domain.

Challenging the Accredited Version

The overwhelming majority of criminologists working in Australia, either in the academy or in policy and practice, share a genuine concern, even a sense of outrage, at the massive over-incarceration of Indigenous Australians in custody and the high rates of Indigenous victimisation. Most criminologists would agree on the need for more resources to deal with the 'underlying causes', better diversionary strategies, early intervention, community policing, alcohol reduction strategies, and so on. An admittedly smaller number, however, are also concerned that the mentalities of the discipline itself may be complicit in some way in legitimising the status quo: not out of overt racism, but through adherence to perspectives and methods that misrepresent the causes of Indigenous overrepresentation and thereby lead to counterproductive policies and practices. Unsurprisingly, Smith (1999, 6) informs us, research "is the dirtiest word in the Indigenous vocabulary".

Strategies and solutions, lifted from the growing international smorgasbord of 'world best practice' or 'whatever-is-trending-in-the-US works' literature and imposed from above onto the Indigenous domain, may, unwittingly, perpetuate rather than reduce the problem. But the tendency to import and impose ideas that 'worked' in Duluth (US) or Peterborough (UK) onto the Australian context is also nurtured by a colonial mindset unable to rid itself of the belief that only Euro-American knowledge is 'real' knowledge and anything else is a mere anecdote. For example, the Duluth model of domestic violence intervention adopts a 'blame and shame' behaviour modification approach, focussing only on the perpetrator's role in violence. It has been

adopted as best practice in Australia despite the concerns expressed by Indigenous women that (a) Indigenous men are not shamed by the White justice system and (b) intervention strategies need to involve the whole family and community rather than focus solely on the perpetrator (Blagg et al. 2015). Within the colonial imaginary, research on truancy and crime amongst second-generation Vietnamese in Milwaukee is seamlessly transportable to Indigenous non-participation in schools in Tenant Creek.

While we may gesture approvingly in the direction of Indigenous 'culture' as an exotic adornment that gives street 'cred' to our work, for example, by organising a few 'consultations' with Indigenous people, the 'real' labour takes place somewhere else (usually on our computer screens), and there is very little Indigenous people themselves can contribute to the manufacturing phase. Indigenous knowledge and Indigenous forms of seeing and knowing the world are not granted the same status and respect. Comaroff and Comaroff (2012) observe how information from the 'Global South' only achieves the accredited status of 'knowledge' once it has been processed in the academies of the 'Global North'. Until then it remains chaotic, random, and subjective: 'raw material' from which we alone can construct our testable theories and perspectives. The terms 'Global North' and 'Global South' do not refer to fixed geographical territories. Rather, they represent the divide between economically rich and culturally dominant societies such as the USA, Canada, Australia, Western Europe, and some parts of Asia and economically poor and culturally subaltern societies in South America, Africa, and parts of Asia. Indigenous peoples often form a 'Global South' in the geographic North because they have been subject to the kinds of exploitation and dispossession typical of colonialism.

Research that does not fit in with accredited modes of knowing and seeing the world—which, in the Australian context, means restricting our approach to variations of what Jock Young (2011) called 'administrative criminology' and varieties of routine activities and rational choice theories—is marginalised. Deckert (2014) confirmed what many working in the antipodean criminology space suspected: the number of publications on the topic of Indigenous overrepresentation in top-ranked criminology and criminal justice journals is low in proportion to the scale of the problem and the coverage given to other marginal communities with fewer problems. Deckert concludes that the dearth of publications in this crucial area contributes to the marginalisation—I would add *silencing*—of Indigenous voices. Similarly, the flagship Australian and New Zealand Society of Criminology (ANZSOC) conference recycles the same key global 'keynote' speakers one would see on the British, European, and American circuits. American speakers in particular

may 'do' the ANZSOC conference as part of an international 'Hello Wherever' tour, where they offer the same paper on some universalist theme of situational and social crime prevention, crime and gender, cultural criminology, international human rights, the punitive turn, border criminologies, and so on. These speakers, brilliant though they may be, usually have nothing positive to contribute to our understanding of the most pressing issue facing the criminal justice system in Australia: its tortured relationship with its Indigenous Other. Further, the fixation with quantitative research also works to the detriment of Indigenous peoples. It tends to militate against forms of theoretical research that interrogate the big picture, integrates or challenges disciplinary boundaries, creates new methodologies, and visualises new directions.

Winds of Change

There are winds of change blowing through the academy. Many of criminology's feeder disciplines are now attempting to decolonise theory and practice and acknowledge their complicity in sustaining White colonial privilege. From a position of unquestioned hegemony, the Euro-American canon is now being challenged by forms of counter-knowledge that question the Global North's monopoly on knowledge. Postcolonial scholarship, critical race theories, Indigenous and Whiteness studies are having an impact on the ways researchers view their position, focussing particularly on the ways White privilege insidiously shapes law and policy, as well as research priorities and methods, and engenders systemic forms of racism. Writing from within a postcolonial framework, for example, Chakrabarty (2002) challenges us to 'provincialize' the epistemologies of the Anglosphere. This entails viewing Europe as but one region, and one site of knowledge production, amongst many: Euro-modernity can no longer claim to hold the copyright on how to live in an increasingly more multi-vocal and multi-polar world.

Decolonising criminology begins with acknowledging the colonial roots of a discipline that is historically concerned largely with making the Other the same, of folding the margins into the mainstream through various techniques of discipline and punishment, treatment and confinement, measurement and classification (Agozino 2003). Criminology is not a 'neutral' science. It is, from an Indigenous perspective, unambiguously aligned with White power and privilege, giving 'scientific' credibility to a justice and correctional system that has stripped Indigenous peoples of their land and made them refugees in their own country (Agozino 2010).

The need to decolonise institutional knowledge has become an increasingly vocal demand globally. However, there are dangers that, like many meta-narratives, the decolonising construct can be misappropriated and co-opted. Tuck and Yang (2012, 3) maintain that the term is not an endlessly plastic 'metaphor': "When we write about decolonization, we are not offering it as a metaphor; it is not an approximation of other experiences of oppression. Decolonization is not a swappable term for other things we want to do to improve our societies and schools. Decolonization doesn't have a synonym".

They maintain that when 'metaphor' infiltrates decolonisation, it "recenters whiteness, it resettles theory, it extends innocence to the settler" (Tuck and Yang 2012, 3). This is similar to the 'All Lives Matter' response to 'Black Lives Matter' (developed in response to police killings of Black people in the USA) that elided the degree of Black suffering at the hands of an occupying and structurally racist police force.

Settler colonisation, Wolfe (2006) suggests, differs from other forms of colonisation in that it required the elimination rather than the simple exploitation of the Native. Genocide was one eliminatory option, but more frequently elimination meant severing the link between Indigenous peoples and the land the settler desired by transporting them elsewhere. This required "particularized modes of control—prisons, ghettos, minoritizing, schooling, policing—to ensure the ascendancy of a nation and its white elite" (Tuck and Yang 2012, 4). Fanon (1990) observed that the colony was a world divided into two: the boundaries marked by police stations and gaols. The criminal justice system was at all levels instrumental in inscribing White rule and apartheid, and legitimating White sovereign power. It is only in recent years that Australians have begun to recognise that Aboriginal people possessed, and still practise, a distinct form of law(s) that has not been eradicated through White occupation. Criminology, however, tends to work from the premise that there is only one legitimate system of laws, discipline, and penalty at work on the continent (Blagg 2016; Law Reform Commission of Western Australia 2006). Cunneen (2011, 334) suggests that the "historical and structural conditions of colonisation" have largely framed relationships between criminal justice systems and Aboriginal Australians.

Seeing Aboriginal People

Māori academic Smith (1999, 30) argues that "(white) research is linked to colonialism and oppression and must be decolonized". She goes on to say that:

> It galls us that Western researchers and intellectuals can assume to know all that it is possible to know of us, on the basis of their brief encounters with some of us. It appals us that the West can desire, extract and claim ownership of our ways of knowing, our imagery, the things we create and produce, then simultaneously reject the people who created and developed those ideas and seek to deny them further opportunities to be creators of their own culture and own nations. It angers us when practices linked to the last century, and the centuries before that, are still employed to deny the validity of Indigenous peoples' claims to existence.

Australian criminology is not particularly deficient methodologically in comparison with other societies. Quite the contrary; Australian criminology has, to use the popular term, 'punched above its weight' on the global stage. That may paradoxically be where the problem lies. The 'boxing ring' itself may be part of the problem. Maybe we need a different venue, agree on some different rules, and ditch the boxing gloves. This is a difficult task for Australian criminologists who tend to view success in terms of acceptance within the global criminological community.

Much Australian criminology is wedded to Euro-American forms of knowledge and method that render Indigenous peoples invisible, even when they are the assumed subjects of criminological research. The unsettling truth is that despite volumes of research, mainstream criminology still cannot *see* Indigenous peoples and the Indigenous domain free from invasive and insidious stereotypes, and a belief that 'data' that is largely an artefact of White interventions, decisions, and recording practices, unproblematically reflects the reality of Indigenous offending. Devoid of input from the Indigenous people, whose life experiences are (mis)represented in these statistics, they tell a simple story of repeat offending and criminality. It has been asserted that Indigenous people are jailed more often because they commit more crime. Those of us who question this 'fact' are condemned for imposing 'normative' judgements onto statistical realities, as though the latter were somehow value-free and devoid of agency. To give one historical example: remote Western Australia towns such as Fitzroy Crossing, Derby, and Halls Creeks had, in the early 1990s, high rates of Indigenous detention in police lock-ups (where most custodial deaths then took place). Fitzroy Crossing, for example, recorded liquor related detentions at around 80–100 per week. The town's population was around 1200. This fell suddenly and dramatically when the 'prisoner meal allowance' stopped being paid to police sergeants to provide meals for detainees. Had drink-related offending mysteriously ceased, or was there no longer a financial incentive to incarcerate Indigenous bodies?

Imaginative Geography

What we see when we imagine the Aboriginal domain might usefully be described as an "imaginative geography" (Said 2003, 49)—a visual construct based on unsubstantiated myths and rumours about 'the Other'—that is instrumental in creating regimes of truth that guide policy and practice. Imaginaries of the Other have real outcomes and consequences (Blunt and McEwan 2003). Further, these imaginaries also play their part in defining Europe and Europeanness. The latter became the reference point for the normal and civilised. The Other becomes its dark, savage opposite, reinforcing what Fanon (1990) called the Manichean divide between coloniser and colonised.

Geographies of difference and distance fold together to nurture and sustain a particular range of stereotypes in the Australian context, through the demarcation between mainstream Australia and the semi-mythical space of the 'outback' or 'bush': the space of the Other that has only been tentatively assimilated into the 'imagined community' of the nation state. The mainstream White discourse runs that the problems of Aboriginal communities in outback Australia are a function of their lack of integration into White society. In the case of the 2007 Northern Territory 'intervention', for example, the Howard Government was able to successfully embroider an imaginary of the Indigenous 'outback' as a 'war zone' of 'failed states' where 'petrol barons' sold children for sex and where Indigenous men set fire to their wives on a regular basis, to legitimate a neo-colonial takeover of Indigenous lands (Altman 2007; Anthony and Blagg 2013). It was a turn made possible and palatable because settler-colonial Australians of all political persuasions share a number of almost unconscious beliefs that insinuate themselves into so-called debates about the Indigenous domain. One of which is that Indigenous communities are hopelessly dysfunctional and incapable of self-determination.

This critique is not intended as a rejection of Western criminology. There is nothing inherently 'wrong' with Euro-American criminology other than its claims to universality and its neglect of alternative epistemologies and ontologies. The task, therefore, is not one of dismantling it—an impossible task, given the extent to which we live within it, think within it, write within it—but one of remaining open to the possibility that "another knowledge is possible" (Santos 2007). That 'other knowledge' in Australia is Indigenous knowledge.

Indigenous Knowledge

Indigenous knowledge resists a simple description; it is not free-floating like Western knowledge. Janke (1998, 21) maintains that "Indigenous Knowledge is collectively owned, socially based and evolving continuously" and that "Indigenous Cultural and Intellectual Property Rights [refers to] Indigenous Australians' rights to their heritage, and that heritage consists of: The intangible and tangible aspects of the whole body of cultural practices, resources and knowledge systems developed, nurtured and refined by Indigenous people and passed on by them as part of expressing their cultural identity".

Indigenous knowledge, then, refers to systems of knowledge rooted in Indigenous peoples' identities as first peoples, with a unique system of laws and cultures. Western knowledge has, since colonisation, been antagonistic towards Indigenous knowledge systems.

Criminology is not alone in requiring a decolonising process. A number of disciplines, from sociology through to psychology and social work, are acknowledging the degree to which their disciplines are historically embedded within discourses of European coloniality and modernity. As a 'rendezvous discipline', criminology operates at the intersection of sociology, law, political science, psychology, economics, anthropology, and so on: all of which are disciplines of Euro-modernity, evolved to understand emerging spheres of social life (the economy, the state, civil society, etc.). Because if dealt with the 'pre-modern', non-European world, anthropology has been something of an exception, it "incorporated both colonial relations and postcolonial developments relatively early into its research field" (Rodriguez et al. 2010, 11). However, it has itself been accused of complicity in colonial and imperial domination as an essentially "western, intellectual—and ideological—project" (Harrison 1991, 3).

Decolonising Knowledge

Decolonisation is a long-term project that seeks to identify and transform the 'logic of coloniality' underpinning Western theories and methods (Mignolo 2011). Other disciplines are beginning to acknowledge their role in the colonial project and are seeking to decolonise theory and practice. In relation to social work, for example, Gray et al. (2013, 7) argue that:

> Decolonizing Social Work requires that the profession acknowledge its complicity and ceases its participation in colonizing projects, openly condemns the past and continuing effects of colonialism, collaborates with Indigenous Peoples to engage in decolonizing activities against public and private colonizing projects, and seeks to remove the often subtle vestiges of colonization from theory and practice. [A decolonising social work also] recognizes and credits the strengths and contributions of Indigenous knowledges, traditions and practices, and supports Indigenous Peoples' cultural survival and Indigenous rights. It means recognizing that the cultural knowledges and practices of Indigenous Peoples serve as an important counterweight to Western ways of thinking and behaving.

In an important intervention in the field of psychology, Dudgeon and Walker (2014, 278) note: "Psychology colonises both directly through the imposition of universalising, individualistic constructions of human behaviour and indirectly through the negation of Aboriginal knowledges and practices. Both globally and in Australia, Indigenous peoples and communities have been objectified, marginalised, racialized, and otherwise oppressed through the dominant lens of psychology".

The distinctive experience of Indigenous people, as a colonised people, has been hidden by a tendency to view them as simply another marginalised, disadvantaged, minority group, resulting in the obliteration of their unique histories, claims, and identities as colonised peoples. Many researchers embarking on research fieldwork in the Aboriginal domain find themselves dislocated and disoriented, involving both ontological and existential uncertainty. There is often a massive disconnect between what we teach in the classroom and experience in the field.

Embarking on fieldwork in the Kimberley in the 1990s, I found the knapsack of perspectives, theories, and methods I lugged around with me from the Western academy more hindrance than help. Furthermore, I found that the information I was given by government agencies was inadequate, partial, and frequently incorrect (to put it mildly). The official narrative corresponded to an 'imagined geography' in which everything was broken and hopeless. However, on closer scrutiny, I found that these communities were developing their own programs, based on traditional forms of authority. We just could not *see* them as they did not conform to the definitions of a 'programme' run according to our frames of knowledge. Initiatives such as Night Patrols, Indigenous healing camps (increasingly taking place 'on-country'), Elders committees, Aboriginal women's centres, and cultural health programmes have struggled to receive recognition because they have

emerged organically from within the Indigenous domain and operate according to Indigenous rather than mainstream frames of reference.

A decolonising approach is less interested in understanding *them* than interrogating the mechanisms through which *we* sideline and deny the relevance of these ideas, strategies, and initiatives that Indigenous people themselves are interested in pursuing. In discussions with Indigenous people, we too often start out with a drop box menu of issues selected by us in advance, then we assume that 'participation' in the process signals consent and a shared consensus that these are indeed the 'issues'. Then we guide the process through subtle, and not so subtle, linguistic turns towards presumed confirmation of the outcomes we seek.

Guidelines for Ethical Research

How then do we position ourselves as non-Indigenous researchers wanting to do research with Indigenous peoples? This question is by no means restricted to criminology as a discipline as it covers all instances where non-Indigenous people wish to undertake research in the Aboriginal domain, but it is one criminology is in urgent need of addressing. We have a number of guides and signposts to point us in the right direction. The Australian Institute of Aboriginal and Torres Strait Islander Studies (2012, 2), in its *Guidelines for Ethical Research in Australian Indigenous Studies*, makes this important point: "It is essential that Indigenous people are full participants in research projects that concern them, share an understanding of the aims and methods of the research, and share the results of this work. At every stage, research with and about Indigenous peoples must be founded on a process of meaningful engagement and reciprocity between the researcher and Indigenous people. It should also be recognised that there is no sharp distinction between researchers and Indigenous people. Indigenous people are also researchers, and all participants must be regarded as equal partners in a research engagement".

There are also now a number of locally generated documents and guidelines we can access when we are considering research in Aboriginal domains: some of which have been developed in recent years by Indigenous representative bodies, as well as local Traditional Owner groups whose rights and interests have been recognised through Native Title determinations. The Kimberley Land Council (2016), for example, has the following:

Research must observe the following aims:

- *Respect Kimberley Aboriginal peoples' values and customary obligations;*
- *Respect Kimberley Aboriginal peoples' right to self determination;*
- *Acknowledge Kimberley Aboriginal peoples' rights to natural and cultural resources;*
- *Recognise the rights of Kimberley Aboriginal people to their Aboriginal cultural and intellectual property; and*
- *Ensure that Kimberley Aboriginal people benefit from research conducted on their land and in their communities*.

Another important point of reference to guide research practice is the 'free, prior, and informed consent' (FPIC) principle in the *UN Declaration on the Rights of Indigenous Peoples (UNDRIP)*. Article 10 UNDRIP states: "Indigenous peoples shall not be forcibly removed from their lands or territories. No relocation shall take place without the *free, prior and informed consent* of the indigenous peoples concerned and after agreement on just and fair compensation and, where possible, with the option of return" (emphasis added).

FPIC has been employed across a range of issues by Indigenous peoples globally, for example, an alliance of Forest Peoples describe FPIC thus: "'Free prior and informed consent' (FPIC), is the principle that a community has the right to give or withhold its consent to proposed projects that may affect the lands they customarily own, occupy or otherwise use" (Forest Peoples Programme 2016).

FPIC offers criminological research a simple set of guidelines: research with the Aboriginal domain must be based on agreement, and the consent of the groups effected. To ensure this is the case, first find out if the research conforms to the needs of the community you want to partner with and then negotiate a methodology, also, make sure your research project reflects and respect gender and moiety differences; ensure you visit communities at the right time of year (avoid 'law season' and the wet if you work in the North); remember that communities have other business that will take priority (a funeral for example); pay a translator; get regular feedback, and act on it; Aboriginal people are the best source of knowledge about themselves and their communities; allow communities an opportunity to comment on progress at various stages of the project, use plain language, video, and social media.

The Kimberley Land Council (2016) offers this advice to researchers wanting to establish a research agreement: "The researcher should clearly

define and explain the purpose and nature of the study and the research aims, methods and outcomes. The researcher should also explain the methods of collecting information including how and where the information is to be kept. It is important that the Aboriginal community has input into the design and methodology of the research project and control the research process. If necessary, the researcher may be required to modify the research proposal following discussions with the community".

A Brief Research Case Study

Foetal Alcohol Spectrum Disorders (FASD) is a non-diagnostic umbrella term encompassing a spectrum of disorders caused by prenatal alcohol exposure. People with FASD may experience a range of cognitive, social, and behavioural difficulties, including difficulties with memory, impulse control, and linking actions to consequences (Douglas 2010). A person with FASD may, therefore, be disadvantaged in police interviews and unable, rather than wilfully unwilling, to comply with court orders (Koren 2004).

Rates of FASD in some parts of the West Kimberley are comparable to the highest identified internationally (Fitzpatrick et al. 2015). A diagnosis of FASD amplifies the chances of Indigenous youth being caught up in the justice system in Western Australia, including indefinite detention in prison if found unfit to stand trial under Western Australia's draconian *Mentally Impaired Accused Act 1996*. The idea for the research came from Indigenous organisations and service providers—including the Aboriginal Legal Service—who voiced concerns about the number of Indigenous children with FASD being lost in the criminal justice system. This concern was then endorsed by mainstream agencies, the police, and the judiciary.

To ensure our research was in alignment with the aspirations of Indigenous people in the West Kimberley, we formed partnerships with three prominent Indigenous-led and Indigenous-managed agencies: Nindilingarri Cultural Health in Fitzroy Crossing, Garl Garl Walbu Alcohol Association Aboriginal Corporation in Derby, and Life Without Barriers in Broome.

The FASD problem could not, Indigenous organisations and Elders said, be uncoupled from the history of colonial settlement and the multiple traumas resulting from dispossession, nor could solving the problem be isolated from the broader task of decolonising relationships between Indigenous people and the settler mainstream. The decolonising process would involve expanding the role of Indigenous-owned and place-based processes and

services embedded in Indigenous knowledge, rather than more of the same community-based services embedded in mainstream knowledge.

Through discussions with Aboriginal groups and looking at the international literature, we arrived at a model of reform for the youth justice system. The potential game changer that could provide the basis for a new Indigenous youth justice paradigm emerges not from Western epistemology alone but at the point of intersection between Indigenous and non-Indigenous knowledge. Indigenous 'place' or 'country' should be the heart—in both a figurative and metaphorical sense—of this nascent sphere.

Indigenous place can become a fulcrum upon which a new, decolonised justice system can be leveraged into being. Innovative justice approaches would play a role. For example, Aboriginal or Koori Courts where Elders sit with judges; problem-solving courts and triaging approaches along the lines of the Neighbourhood Justice Centre in Melbourne; and diversionary models run by Indigenous organisations. The decolonising turn would involve placing 'country' at the centre. On-country programmes such as the successful *Yiriman* project in the Kimberley take young people 'on-country' to "grow stories in them" (Blagg et al. 2015, 45). This would be a good place to stabilise young people with FASD as an alternative to the mainstream justice system.

Conclusion

Aboriginal domain rests on country. In the post-Mabo era, Indigenous peoples' re-occupation of country has economic, spiritual, and healing benefits. It is, as Kwaymullina (2015, 7) suggests, "much more than a place". Decolonising criminology requires that we form a fresh relationship with Indigenous people as a necessary step in order to heal the harms created by the White man's justice system.

Note

1. I intend to employ the terms Indigenous or First Peoples rather than Aboriginal because I am not referring to Torres Strait communities in this piece. The term Aboriginal is only used when referencing an entity (such as the Aboriginal Legal Service) or accepted terminology (such as the Aboriginal domain).

References

Agozino, Biko. 2003. *Counter-Colonial Criminology: A Critique of Imperialist Reason*. New York: Pluto Press.

Agozino, Biko. 2010. What Is Criminology? A Control Freak Discipline! *African Journal of Criminology and Justice Studies* 4 (1): i–xx.

Altman, John, and Melinda Hinkson (eds.). 2007. *Coercive Reconciliation: Stabilise, Normalise, Exit Aboriginal Australia*. Melbourne: Arena.

Anthony, Thalia, and Harry Blagg. 2013. STOP in the Name of Who's Law? Driving and the Regulation of Contested Space in Central Australia. *Social and Legal Studies* 22 (1): 43–66.

Australian Institute of Aboriginal and Torres Strait Islander Studies. 2012. *Guidelines for Ethical Research in Australian Indigenous Studies*. Canberra: Australian Institute of Aboriginal and Torres Strait Islander Studies.

Blagg, Harry. 2011. Journeys Outside the Comfort Zone: Doing Research in the Aboriginal Domain. In *Qualitative Criminology: Stories from the Field*, eds. Lorana Bartels and Kelly Richards, 140–152. Sydney: Federation Press.

Blagg, Harry. 2016. *Crime, Aboriginality and the Decolonisation of Justice*. Sydney: Federation Press.

Blagg, Harry, and Thalia Anthony. 2014. 'If Those Old Women Catch You, You're Going to Cop It': Night Patrols, Indigenous Women, and Place Based Sovereignty in Outback Australia. *African Journal of Criminology and Justice Studies* 8 (1): 103–124.

Blagg, Harry, Nicole Bluett-Boyd, and Emma Williams. 2015a. *Innovative Models in Addressing Violence against Indigenous Women: State of Knowledge Paper*. Sydney: ANROWS.

Blagg, Harry, Tamara Tulich, and Zoe Bush. 2015b. Diversionary Pathways for Indigenous Youth with FASD in Western Australia: Decolonising Alternatives. *Alternative Law Journal* 40 (4): 257–260.

Blunt, Alison, and Cheryl McEwan. 2003. *Postcolonial Geographies*. London: Bloomsbury.

Boaventura, de Sousa Santos. 2007. *Another Knowledge Is Possible: Beyond Northern Epistemologies*. London: Verso.

Chakrabarty, Dipesh. 2002. *Provincializing Europe: Postcolonial Thought and Historical Difference*. Princeton, NJ: Princeton University Press.

Comaroff, Jean, and John L. Comaroff. 2012. *Theory from the South or, How Euro-America is Evolving toward Africa*. Boulder, CO: Paradigm Press.

Cunneen, Chris. 2011. Postcolonial Perspectives for Criminology. In *What Is Criminology?* eds. Mary Bosworth and Carolyn Hoyle, 249–266. Oxford: Oxford University Press.

Deckert, Antje. 2014. Neo-Colonial Criminology: Quantifying Silence. *African Journal of Criminology and Justice Studies* 8 (1): 39–60.

Douglas, Heather. 2010. The Sentencing Response to Defendants with Foetal Alcohol Spectrum Disorder. *Criminal Law Journal* 34 (4): 221–239.

Dudgeon, Pat, and Roz Walker. 2014. Decolonising Australian Psychology: Discourses, Strategies, and Practice. *Journal of Social and Political Psychology* 3 (1): 276–297.

Fanon, Frantz. 1990. *The Wretched of the Earth*. Harmondsworth: Penguin.

Fitzpatrick, James P., Jane Latimer, Maureen Carter, June Oscar, Manuela Loureiro Ferreira, Heather Carmichael Olson, Barbara R. Lucas, Robyn Doney, Claire Salter, Julianne Try, Genevieve Hawkes, Emily Fitzpatrick, Marmingee Hand, Rochelle E. Watkins, Alexandra L.C. Martiniuk, Carol Bower, John Boulton, and Elizabeth J. Elliott. 2015. Prevalence of Fetal Alcohol Syndrome in a Population-Based Sample of Children Living in Remote Australia: The Lililwan Project. *Journal of Paediatrics and Child Health* 51 (4): 450–457.

Forest Peoples Programme. 2016. Free, Prior and Informed Consent (FPIC). http://www.forestpeoples.org/guiding-principles/free-prior-and-informed-consent-fpic. Accessed 19 June.

Gray, Mel, John Coates, Michael Yellow Bird, and Tiani Hetherington (eds.). 2013. *Decolonizing Social Work*. Surrey: Ashgate.

Harrison, Faye (ed.). 1991. *Decolonizing Anthropology: Moving Further toward an Anthropology for Liberation*. Washington, DC: American Anthropological Association.

Janke, Terri. 1998. *Culture Our Future: Report on Australian Indigenous Cultural and Intellectual Property Rights*. Sydney: Michael Frankel.

John, Von Sturmer. 1984. The Different Domains. In *Aborigines and Uranium, Consolidated Report on the Social Impact of Uranium Mining on the Aborigines of the Northern Territory*, ed. Australian Institute of Aboriginal Studies, 218–237. Canberra: Australian Government Publishing Service.

Kimberley Land Council. 2016. Kimberley Land Council. http://www.klc.org.au/. Accessed 19 June.

Koren, Gideon. 2004. Hypothetical Framework: FASD and Criminality—Causation or Association? The Limits of Evidence Based Knowledge. *Journal of FAS International* 2 (2): 1–5.

Kwaymullina, Ambelin. 2005. Seeing the Light: Aboriginal Law, Learning and Sustainable Living in Country. *Indigenous Law Bulletin* 6 (11): 12–15.

Law Reform Commission of Western Australia. 2006. *Aboriginal Customary Law Discussion Paper*. Perth: Law Reform Commission.

Mignolo, Walter. 2011. *The Darker Side of Western Modernity: Global Futures, Decolonial Options*. Durham, NC: Duke University Press.

Rodriguez, Encarnacion G., Manuela Boatca, and Sergio Costa (eds.). 2010. *Decolonizing European Sociology: Transdisciplinary Approaches*. Surrey: Ashgate.

Said, Edward. 2003. *Orientalism*. Harmondsworth: Penguin.

Smith, Linda T. 1999. *Decolonizing Methodologies: Research and Indigenous Peoples*. New York: Zed Books.

Tuck, Eve, and K. Wayne Yang. 2012. Decolonization is not a Metaphor. *Indigeneity, Education and Society* 1 (1): 1–40.
Wolfe, Patrick. 2006. Settler Colonialism and the Elimination of the Native. *Journal of Genocide Research* 8 (4): 387–409.
Young, Jock. 2011. *The Criminological Imagination*. Cambridge: Polity Press.

Author Biography

Harry Blagg is Professor of Criminology and Director of the Centre for Indigenous Peoples and Community Research at UWA. He specialises in research in the Indigenous justice space and is presently engaged in three key research studies: diversionary strategies for Indigenous youth with FASD; Indigenous women and family violence; and Indigenous Night Patrols.

51

Imagining an Indigenous Criminological Future

Juan Marcellus Tauri

Fundamental to many Indigenous knowledge systems—with regard the transfer of knowledge—is the use of storytelling to impart knowledge (Sium and Ritskes 2013; Summers 2013). And so I begin by sharing with you two stories to set the tone for the discussion to follow. I offer them up in order to contextualise the main argument made in this chapter, namely that criminology, especially Australasian criminology, has little to offer Indigenous peoples, and that, as such, we, as Indigenous scholars, should consider either organising our own school within the discipline or remove ourselves entirely from it. The first story "Playing the Race Card" took place at the 2012 ANZSOC conference; the second "Owning the Indigenous Life-World" during question time at a symposium on restorative justice.

Playing the Race Card

During question time of a presentation by a doctoral candidate at the 2012 ANZSOC conference in Auckland (on comparisons of European Romani and Māori youth and criminal justice), an Australian-based criminologist prefaced his question by stating that "I don't really know much about Māori and New Zealand" and continued on regardless to argue that the two communities could not be compared because Māori had parliamentary representation and were, therefore, not truly marginalised. The comment, and the decision of the

J.M. Tauri (✉)
University of Wollongong, Wollongong, Australia
e-mail: marcellos2006@hotmail.com

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_51

criminologist to speak regardless of his acknowledged lack of knowledge, is highly problematic in two ways. Firstly, because of the inaccuracy of his statement, and, secondly, because the way in which his comment was made—he clearly did not expect it to be contested. Regardless of his expectations, I decided to challenge his perspective. I pointed out that it was too simplistic to equate political representation with empowerment or self-determination. Just because we have political representation of a kind does not mean that Māori are not disenfranchised as a result of colonialism, or continue to be marginalised by the nefarious practices of the settler-colonial state. The criminologist in question later responded to my challenge by accusing me in front of friends and colleagues of "playing the race card", meaning that he felt disempowered because I had challenged him for speaking as a non-Indigenous scholar on an Indigenous issue. In fact, I had challenged him solely on the fact that what he said was uninformed, and because, regardless of his professed ignorance, he still chose to speak as an "authority" on Indigenous issues.

Owning the Indigenous Life-World

Fast forward a year, we arrive at question time for a panel discussion on restorative justice (RJ) where I had just spoken about links between Indigenous culture and the RJ industry. During question time, two members of the audience took exception to criticism of the tendency of RJ advocates and entrepreneurs to use Indigenous artefacts to sell their products on the globalised crime control market (see Tauri 2015a, b for further discussion of this issue). In response to my commentary, the two prominent criminologists asked: "Who really owns culture; do you (Māori) have intellectual property rights over your culture?" and "When I was in New Zealand I found out that the word Māori means 'other person'. So, being an outsider, I can call myself Māori".

These comments well illustrate the Eurocentrism never far below the surface of certain forms of the discipline of criminology. They are classic examples of the institutionalised racism that Indigenous scholars, like me, regularly experience when working in the academy (for discussion of this highly problematic aspect of some in the academy in Australia, New Zealand, Canada, and the US, see Aguirre (2000), Housee (2001), Johnson-Bailey and Cervero (2008), Monture (2009), Moreton-Robinson (2002), Smith et al. (2006), Stanley (2006), Takara (2006), Tauri (2014), and Ward and Weems (2010)). Of the two vignettes, the second is the most troubling. The scholar who made this statement was purposely taking one translation of the term

Māori—most likely from a Pākehā translation from sometime in the mid-nineteenth century—using it to self-identify as Māori in order to justify utilising whatever cultural artefacts of Māori he chose to. The three criminologists belong to a group of Western academics who have been utilising Indigenous cultural artefacts as and how they wish. Other members of this group regularly comment on the "Indigenous experience" without actually engaging directly with us on this issue (Tauri 2012), or dismiss our experiences of racist policing, and biased sentencing, by using methods and methodologies that are unlikely ever to uncover these experiences (see Deckert 2016).

The incidents reported above are, perhaps, best described as *micro-aggressions*, meaning small, but nonetheless annoying, incidents that remind you of the colonialist, classist foundations of the discipline. However small, micro-aggressions like this support *macro-aggressions* such as the control-freak discipline of criminology, an academic endeavour born of the racist dispossession of African and Indigenous peoples during colonisation (Agozino 2003). Many Australasian criminologists treat Indigenous peoples as fodder for the development of their individual academic careers, and, ever since the managerialisation of the academy, as an easy way of sourcing government contracts and research grants. For decades, researchers (see, for example, Agozino 2003) have revealed how academia commodifies the Indigenous world because it is "different" and erotic and therefore extremely marketable. The techniques used have also been well identified in the literature, which includes the appropriation of Indigenous terms and language, or specific, boutique cultural practices (Tauri 2014).

The Eurocentrism of Australasian Criminology

Lately, I have been asked by Indigenous colleagues if we should develop an Indigenous Criminology. The most common rationale for this suggestion is so that Indigenous scholars can aid the discipline in enhancing its performance on Indigenous issues. This question is based on a number of untested assumptions: first, that an Indigenous component of the discipline is actually desired by the Western academy, and, second, being "inside the tent" is an effective way of ensuring that Indigenous issues will be taken seriously. Speaking from a critical Indigenous-focussed perspective, which is informed by years of engagement with the wider discipline, I say that some tents you simply do not want to be sitting in, especially, when they evince a paternalism that permeates so many of the discipline's interactions with Indigenous

peoples. These attitudes are, and remain, very much evident in the comments made by the three criminologists discussed in the two stories above.

Of late, the behaviour of members of the Eurocentric academy has me thinking that we are, perhaps, better off leaving the tent altogether and setting up shop on our own. My glacial drift to this position has been propelled recently by the behaviour of a group of criminologists, some residing in New Zealand and Australia, who seem incapable of moving past the paternalism that characterised Western criminology through the colonial, assimilation, integration and now the supposedly "postcolonial" era (see Tauri 2012, 2015a, b). Their behaviour underlines many of the concerns held by the Indigenous academy, most particularly their preference for responding to the critical Indigenous voice by demonising any Indigenous scholars who dare to express a different point of view or to analyse their work through a critical Indigenous lens (Tauri 2014). When you merge these issues with the inability of many of the discipline to develop respectful, collaborative ways of engaging with the Indigenous research participants (Deckert 2014, 2016), then one must come to the conclusion that beneath the thin lacquer of liberalism and scientism lurks the same paternalistic odour that has permeated the discipline since it arose to support colonialism throughout Africa and other parts of the "New World" (Agozino 2003, 2004).

Disciplining Indigenous Knowledge

Speaking of the rise of counter-hegemonic responses to the Eurocentric dominance of history, Lyotard argued that these counter-hegemonies "all partake of a similar attitude toward what one could call 'rationalist terrorism' in matters of history and political decisions" (quoted in Noonan 2003, 58). In Lyotard's estimation, terror flows from the attempt to deduce politics from a purportedly rational and universal standpoint. Any epistemological standpoint that is not derived from the rationalist, scientific paradigm is illegitimate for the purposes of policy-making and informing the practice of criminal justice. One such science of morality was—and still is—criminology, whose birth we can pinpoint during this intellectual epoch (Foucault 1977).

"Traditional" criminology continues to thrive on the behaviours and attitudes that fuelled its conception—emotionality, incontinence, and contamination (Guarino-Ghezzi 2002; Messerschmidt 1986). As Ruggiero (2000, 1) claims, traditional "criminology makes filth, sewers, and excrement, in brief, that 'inferno' delimited by imaginary geographies, its main terrain of analysis and development." For Ruggiero—and likewise Agozino (2003,

2004) and Jackson (1988)—criminology, in support of criminal justice, was from its inception *a discipline of social control*. As Agozino (2007, 2) further argues "criminology was developed primarily as a tool of imperialist domination and it continues to operate largely as a repressive technology". And perhaps more pertinent to the central thesis of this chapter, Agozino (2010) describes contemporary criminology as a control freak that is hell-bent on being of utility to the state. As such it is overly dependent on the state's largesse (financial support and ideological affirmation) for self- and group-worth. On this point, and many others (see Tauri 2012), Biko Agozino and I agree, but to extrapolate: the discipline is a control freak in terms of the limited nature of the inquiry of many of its adherents, wedded as they are to the conceptual, policy, and legal frameworks of the state, and to its largesse in the form of research grants and such like. And lastly, it demonstrates its control-freak tendencies through its active policing of criminological knowledge, or perhaps more accurately, through its members seemingly inherent ability to ignore *other* perspectives, most notably in the Australasian context, especially those emanating from Indigenous scholars and communities (Deckert 2016) (for examples of the inability to "see" the Indigenous perspective, literature, research and such, see Marie (2010) and Weatherburn (2010, 2014); for a critique of this work and this approach to researching Indigenous peoples, see Tauri (2012) and Tauri and Webb (2012)).

Critical (Indigenous) Criminology in Australasia? "Forget About It!"

The period 1980 to the early 2000s can be described as the "Golden Age" of critical Indigenous-centred research of Australian criminology (Tauri 2012). The commentaries and works of Indigenous scholars like Dodson (1999, 2007) were ably supported by a small group of non-Indigenous allies such as Cunneen (1994) and Blagg (1997), amongst others. In comparison, the research record of the New Zealand criminology community on Indigenous issues is so poor and sparse that one would be hard pressed to describe it as having even begun to move beyond the twentieth century. While the author, Jackson (1988), Webb (2012), and McIntosh (2011a, b) have been increasingly active, little research and literature have been generated by the non-Indigenous criminologists on the "Māori problem" that involves *direct engagement with Māori individuals, whanau, or communities*. Very little, if any, research has been carried out by the non-Indigenous criminology community

in New Zealand that is not informed by the colonialist theoretical and conceptual frameworks that pathologise Māori as individuals (see Newbold 1992, 2000) or our cultural and epistemological context (see Marie 2010).

Are Australasian Criminologists Reluctant Imperialists?

In a thought-provoking piece on the support her discipline gave to the colonial context, James (1998) refers to anthropologists as "reluctant imperialists", meaning that their eventual support for the colonising enterprise was unplanned or unintentional. Arguably, in wanting to "do good" by Indigenous peoples, anthropologists had inadvertently provided empirical support to the colonial enterprise of dispossession. I am reluctant to say the same to criminologists who choose to work in cahoots with the neocolonial state, and who repeatedly avoid direct engagement with Indigenous peoples and our scholarship, yet speak as experts on "the Aboriginal/Indigenous problem". Some Australasian criminologists might consider this position a little harsh. They might even attempt to argue that we should consider the contemporary situation facing the academy, the pressure of increasing class sizes, the continued retrenchment of teaching resources, and the impact of the managerialist movement and the commercialisation of the academy over the past 20 years—all of which have resulted in significant expectation that academics will chase grant and contract funding. Undoubtedly, the recent hegemony of academic managerialism has had a demonstrable impact on the academy in New Zealand and Australia, especially as the primary source of external research grants for the social sciences is government (Tauri 2009). And so perhaps we should not be too harsh on our hard-done-by criminologists if all they are doing is chasing the easy money, which is, in the Australian and New Zealand context, research that is financed by the system that overly criminalises Indigenous peoples.

However, what are we to make of the continued control-freak tendencies of Australasian criminology, especially its more authoritarian adaptations? It is far too easy to dismiss the recurrent focus on the individual native, someone divorced from their social, historical, and structural context, as is often the case in the work of adherents such as Marie (2010) and Weatherburn (2010, 2014) who dismiss outright the validity of Indigenous forms of knowledge and do so without demonstrating any meaningful engagement with Indigenous scholarship on social harm (see Cunneen and Tauri 2016; Tauri 2012; Tauri and Webb 2012 for a full critique of this work). No, instead, these actions cannot be easily dismissed as "accidental", unintentional incidents of cultural

imperialism. These actions should be considered neocolonial formulations of cultural imperialism, actions that have their antecedents in the technologies of social control utilised by colonial powers to subjugate Indigenous peoples (Tauri 2014).

The tendency of many Australian and New Zealand criminologists to ignore or misrepresent the Indigenous experience of crime control whilst being blind to the imperialistic tendencies of their own endeavours is a well-run path of a discipline that is focussed on the "other" to turn a critical gaze on itself or the powerful in Western society, as "criminologists have routinely buried their heads in the snow of Europe and North America with hardly any serious attempt to understand the hieroglyphics of African (or any First Nation) reality except when they perceive threats to European comforts in the form of human trafficking, terrorism, piracy, dictatorships or the drugs trade" (Agozino 2010, i).

The key to understanding Australasian criminology's tendency towards paternalistic scholarship is that it is still very much an imperialist enterprise. Agozino describes imperialism as the exemplary form of all criminality since "every criminal act implies the violation of the spaces of others and attempts to colonise the spaces of the other" (Agozino 2010, ii–iii). In a similar vein, we might present much of the Australasian criminological musings on Indigenous peoples as imperialistic, due to the continued violation of the geographical and intellectual space of Indigenes, often without our permission, guidance, or willing participation. Non-Indigenous criminologists who consistently represent themselves as experts on the Indigenous context to the institutions of colonial power, namely government, police, social welfare, and the Western academy in general without meaningfully engaging with Indigenous peoples, are guilty of contributing to the marginalisation of Indigenous peoples not only within the discipline but also in wider society (Deckert, 2014, 2016; Tauri 2012).

Controlling "Dangerous Knowledge" and Containing Unruly Natives

To understand Marie and Weatherburn's apparent aversion to so-called non-scientific perspectives on Indigenous crime and related issues, one has to engage in what might be referred to as "the criminological knowledge wars". In his last significant offering, *The Criminological Imagination*, the late Jock Young (2011, 176–177) describes the rational fear felt by the positivist criminologist of the rising voice of "other criminologies", especially those that

use "non-scientific" methods to gather, analyse, and report social data. Young contends that the defenders of positivism "fully [recognise] that science necessitates objective, fixed, measurable, categories and to describe crime, deviance or any other human behaviour otherwise—however much it actually corresponds to reality—is a threat to the scientific enterprise".

Like Young, Sibley (1995) recognises that elementary to the dominance of certain "knowledges" in the political and policy sphere (and might we add academic institutions?) is controlling competing paradigms in order to defend "regions of knowledge" (Sibley 1995, xvi, as reported in Young 2011). The authority to influence the political process of policy-making requires a dual process of producing knowledge and facts about the social world that are of utility to the policy sector, whilst simultaneously attempting to contain competing narratives. In other words, "unruly" natives lest they start speaking for themselves and muddy the waters of criminological knowledge with their unscientifically derived rhetoric about "their experiences".

Broadhurst (2002) makes claims similar to Marie (2010) and Weatherburn (2010, 2014), writing that the criminological attention has moved from individual pathology to the role of the settler-colonial state and the effects of colonial and neocolonial policy, and that, in turn, this shift in analysis resulted in ineffective policies and interventions for reducing Indigenous overrepresentation. However, in doing so, Broadhurst (2002) lends what I allege is an exaggerated authority to the impact of non-administrative criminological perspectives, especially when he writes that "it has become necessary to shift the criminological imagination away from the previous focus on judicial bias or racism as the cause of excessive Indigenous imprisonment" (258). And, much like Marie's (2010) commentary on the New Zealand situation, for Broadhurst (2002, 258), blame for the inability of the justice system to solve the "Indigenous problem" lies with critical liberals whose efforts have "not led to more effective measures of crime control within Aboriginal communities or to sustained reductions in the rate of criminalisation and incarceration".

From this description of Indigenous experiences of Australasian crime control, one would suppose that, suddenly, prisons were empty and police no longer patrolled Indigenous communities incessantly. You could easily form the impression that Aboriginal/Māori offenders are diverted into adjudication processes dominated by Indigenous peoples, receive predominantly non-custodial sentences when sentenced, and, if they receive such a sentence, end up spending their sentence in an "Indigenous cultural unit". And, upon release, they go back to communities that will benefit from the extensive

infrastructural, social, and economic investment directed at them by government.

Of course, this is not the situation at all. Yes, unquestionably the actions of the "legal-welfare establishment" have led to the establishment of a range of diversionary policies and strategies and to the introduction of restorative-centred justice processes, Aboriginal Liaison Officers, Iwi Liaison Officers, prison-based cultural units like the Māori Focus Units in New Zealand, and so forth. Similarly, in the wake of the Royal Commission into Aboriginal Deaths in Custody in 1991, police services throughout Australia added "cultural sensitivity" to their training requirements and created liaison officer (non-sworn) positions. However, despite all of this activity, the impression of the "failure" of liberal policy discourse and of the critical focus on structure and institutions—as given by Marie, Broadhurst, and Weatherburn—is a gross exaggeration. At no time, during the period in which Indigenous overrepresentation has been a significant issue for the policy industry—around the early 1980s in both Australia and New Zealand—has the liberal perspective dominated crime control policy in either jurisdiction. Furthermore, if we accept the alternative argument that the vast majority of crime control expenditure in Australia and New Zealand since 1980 has in fact been on imported crime control policies and interventions and not on "Indigenous-inspired" ones,[1] then where is the evidence that the Western response to the "Indigenous problem" has in fact made significant inroads into reducing Indigenous overrepresentation?

As an Indigenous criminologist, I get the distinct impression that the exaggeration is purposeful; how can it be otherwise when even a basic analysis of government expenditure on crime control shows that the vast majority of funding goes to Eurocentric, conservative, mostly imported interventions (Tauri and Webb 2012). Perhaps it is much easier to exaggerate the extent of "our failure" to decrease Indigenous crime than to acknowledge that, if any blame is to be placed, it should be placed both on the sources of crime control funding that are dominated by the Eurocentric theorising of Australasian criminology, and on its adherents' preference for individualised treatment, policing, and adjudication processes devoid of meaningful historical, cultural, and social context.

Unless Australasian criminology as a whole can divorce itself from its authoritarian, colonial history, then it has very little to offer the Indigenous academy or Indigenous peoples. In much the same way that Smart (1990) argued that criminology is limited by its obsession with crime to offer anything meaningful to feminist scholarship, so, too, is Australasian criminology's obsession with pathologising Indigenes and with supporting the settler-colonial state, making it of questionable value to Indigenous peoples (Tauri 2009).

Toward an Indigenous Criminology?

What's in a name? Given the history of criminology's role in the continued subjugation of Indigenous peoples, I would argue everything. Recently, along with my colleague Chris Cunneen, I published a book titled *Indigenous Criminology* (2016). In the book, we discuss what we believe are useful principles upon which to construct an Indigenous variant of the discipline. A full discussion of what an Indigenous criminology will look like is a story that needs to and will be told in another publication. However, we can say with certainty that it will not, or should not, be primarily concerned with being of utility to the policy industry. The fact that so much of what passes for Australasian criminology is tethered firmly to the government teat—whether in a direct contractual relationship, or the fact that it fails to ask critical questions of the institutions of social control—belies the oft-made claim by its adherents to being "objective" in either a political or epistemological sense. It is no such thing. It is very much a political animal, one that preys on the bodies—physically, theoretically, and epistemologically speaking—of Indigenous peoples. It gorges on the wairua (spirit/soul), the very essence of Indigenous peoples and their culture, in the name of "science", self-aggrandisement, and financial procurement on behalf of the academic institutions to which they belong. In comparison, an Indigenous criminology, counter-colonial criminology, or anti-authoritarian criminology, call it what you like, will be, by nature, *political.* It will be undertaken *with* Indigenes, on their terms, and seek to privilege their voice and experience. An Indigenous criminology will be unaffected by the criticisms of criminologists such as Weatherburn and his concern that Australasian criminology and crime control policy regarding Indigenes have been too heavily focussed on institutions and structures and not enough on individual indices. The individual has a place in the Indigenous theoretical and research framework, as do other "units of measure", such as the family, community, gender, and class, but pride of place must go to the institutions of oppression (Jackson 1988). As Agozino (2010, viii) states in relation to the African context: "Since most of the crimes committed against Africa by imperialism are not crimes by isolated individuals but were structural wrongs orchestrated institutionally, the focus of African criminology is or should be on what is to be done about the unjust social institutions that have been used to facilitate genocidal policies for centuries".

Therefore, following Agozino's (2007, 3) sage advice, an Indigenous criminology would turn away from the historically uncritical replication of

Western criminological knowledge-rejecting theories, research methods, crime control policies, and interventions "that maximise the exploitation and repression of the masses". The emphasis of our criminological endeavour shall be academic activism, with an unflinching focus on state crimes in the historical and contemporary context of colonialism/neocolonialism, on seeking reparations for both physical and cultural genocide, on the rapacious behaviour of globalised crime control corporations who seek to profit from Indigenous knowledge, "instead of following the Imperialist obsession with crimes of the poor" (Agozino 2007, 3).

We desperately need an Indigenous school of critical social inquiry to offset the disempowering tendencies of the emergent globalising of contemporary crime control policy, the second phase of jurisdictional colonisation, if you will (Tauri 2014). Again, we turn to Agozino (2007, 3) who speaks of both our fears and our need for self-determination in the criminological realm when he argues that "criminologists in the Third World would make a greater impact by being sceptical of Western theories of punishment instead of agreeing with the Western scholars who, according to Cohen (1988) arrogantly boast that there is nothing to learn from the Third World and that all that needs to be done is to apply the woefully failed theories of imperialist criminology to the rest of the world".

There are those within Australasian criminology we can work with and we trust to behave ethically towards ourselves and our communities. However, we should not forget that we owe the wider discipline of criminology nothing, especially as its practitioners have given us very little, except more prison, more brutal policing, and more traumas. In response, I expect some of its practitioners will talk about how we would be better off being part of a public criminology, as opposed to becoming a boutique sub-school of the discipline. I am also certain that some of them will like nothing more than for us to add an Indigenous element to the discipline, thus correcting the discipline from within. Unfortunately, given the pervasiveness of the paternalistic, colonising attitudes of the wider discipline, I fear this approach will end up as little more than the criminological equivalent of the state's indigenisation of youth justice, where we "add a bit of colour" to the same tired old epistemologies and methodologies, as opposed to the discipline taking a long hard look at itself.

Being part of an "indigenisation programme" will, in reality, allow many of its practitioners to point to the Indigenous elements as evidence of their willingness and capability to be inclusive, instead of turning their attention to the significant overhaul that is required to strip it of the bias and obstructive prejudice that currently pervades Australasian criminology. Sadly, given the repetitiveness of the often disrespectful behaviour of members of the academy

that I and other Indigenous scholars have experienced over recent years, it is apparent that the wider discipline is not our friend, and nor is it ever likely to be. So I am pessimistic. I am rapidly coming to the conclusion that it might be better for us to walk away, and set up our own tent.

Note

1. During the now defunct Effective Interventions initiative (2006–2007), officials from the Ministry of Māori Development were informed by crime control agencies that Māori initiatives, including "counselling" programmes that derive from non-Māori theoretical sources, received less than 10 per cent of the sectors spend on therapeutic and other forms of intervention (Tauri 2011).

References

Agozino, Biko. 2003. *Counter-Colonial Criminology: A Critique of Imperialist Reason*. London: Pluto Press.

Agozino, Biko. 2004. Imperialism, Crime and Criminology: Towards the Decolonisation of Criminology. *Crime, Law and Social Change* 41: 343–358.

Agozino, Biko. 2007. Power: An African Fractal Theory of Chaos, Crime, Violence and Healing. Paper presented at the Salises Annual Conference, March 26, in University of West Indies, Trinidad and Tobago.

Agozino, Biko. 2010. What is Criminology? A Control Freak Discipline! *African Journal of Criminology and Justice Studies* 4 (1): i–xx.

Aguirre, Adalberto. 2000. *Women and Minority Faculty in the Academic Workplace: Recruitment, Retention, and Academic Culture*. San Francisco, CA: Jossey-Bass.

Blagg, Harry. 1997. A Just Measure of Shame? Aboriginal Youth and Conferencing in Australia. *British Journal of Criminology* 37 (4): 481–501.

Broadhurst, Rod. 2002. Crime and Indigenous People. In *Cambridge Handbook of Criminology*, eds. Adam Graycar and Paul Grabosky, 256–280. Cambridge: Cambridge University Press.

Cohen, Stanley. 1988. *Against Criminology*. New York: Broadway Play.

Cunneen, Chris. 1994. Enforcing Genocide? Aboriginal Young People and the Police. In *The Police and Young People in Australia*, eds. Rob White and Christina Alder, 128–158. Melbourne: Cambridge University Press.

Cunneen, Chris, and Juan Tauri. (2016). *Indigenous Criminology*. Bristol: Policy Press.

Deckert, Antje. 2014. Neo-Colonial Criminology: Quantifying Silence. *African Journal of Criminology and Justice Studies* 8 (1): 39–60.

Deckert, Antje. 2016. Criminologists, Duct Tape, and Indigenous People: Quantifying the Use of Silencing Research Methods. *International Journal of Comparative and Applied Criminal Justice* 40 (1): 43–62.

Dodson, Mick. 1999. Indigenous Australians, Human Rights and Social Justice. Paper presented at Australia Centre University of Potsdam and the Australian Embassy, November 13, in Berlin.

Dodson, Mick. 2007. Bully in the Playground: A New Stolen Generation? In *Coercive Reconciliation: Stabilise, Normalise, Exit Aboriginal Australia*, eds. John Altman and Melinda Hinkson, 85–97. Melbourne: Arena.

Foucault, Michel. 1977. *Discipline and Punish*. New York: Vintage.

Guarino-Ghezzi, Susan. 2002. Criminology as Moral Philosophy: An Essay on Richard Quinney's Bearing Witness to Crime and Social Justice. *Contemporary Justice Review* 5 (4): 399–402.

Housee, Shirin. 2001. Insiders and/or Outsiders: Black Female Voices From the Academy. In *Identity and Difference in Higher Education: Outsiders within*, eds. Pauline Anderson and Jenny Williams, 79–92. Aldershot: Ashgate.

Jackson, Moana. 1988. *Māori and the Criminal Justice System: He Whaipaanga Hou: A New Perspective*. Wellington: Department of Justice.

James, Wendy. 1998. The Anthropologist as Reluctant Imperialist. In *Anthropology and the Colonial Encounter*, ed. Talal Asad, 41–69. Amherst, NY: Humanity.

Johnson-Bailey, Juanita, and Ronald Cervero. 2008. Different Worlds and Divergent Paths: Academic Careers Defined by Race and Gender. *Harvard Educational Review* 78: 311–332.

Marie, Danette. 2010. Māori and Criminal Offending: A Critical Appraisal. *The Australian and New Zealand Journal of Criminology* 43 (2): 283–300.

McIntosh, Tracey. 2011a. Marginalisation: A Case Study: Confinement. In *Māori and Social Issues*, eds. Tracey McIntosh and Malcolm Mulholland, 263–283. Wellington: Huia.

McIntosh, Tracey. 2011b. Prison as the Norm: Researching the Legacies of Inequality. Paper presented at European Sociological Association: Social Relations in Turbulent Times, September 7–10, in University of Geneva, Geneva.

Messerschmidt, James. 1986. *Capitalism, Patriarchy, and Crime: Towards a Socialist Feminist Criminology*. Totowa, NJ: Rowman and Littlefield.

Monture, Patricia. 2009. Doing Academia Differently: Confronting Whiteness in the University. In *Racism in the Canadian University: Demanding Social Justice, Inclusion and Equity*, eds. Frank Henry and Carol Tator, 76–105. Toronto: Toronto University Press.

Moreton-Robinson, Eileen. 2002. *Talkin' Up to the White Woman: Indigenous Women and Feminism*. Brisbane: University of Queensland Press.

Newbold, Greg. 1992. *Crime and Deviance*. Oxford: Oxford University Press.

Newbold, Greg. 2000. *Crime in New Zealand*. Palmerston North: Dunmore.

Noonan, Jeff. 2003. *Critical Humanism and the Politics of Difference*. Montreal: McGill-Queens University Press.

Ruggiero, Vincenzo. 2000. *Crime and Markets: Essays in Anti-Criminology*. Oxford: Oxford University Press.

Sibley, David. 1995. *Geographies of Exclusion*. London: Routledge.

Sium, Aman, and Eric Ritskes. 2013. Speaking to Truth to Power: Indigenous Storytelling as an Act of Living Resistance. *Decolonisation: Indigeneity, Education and Society* 2 (1): i–x.

Smart, Carol. 1990. Feminist Approaches to Criminology, or, Post-Modern Women Meets Atavistic Man. In *Feminist Perspectives in Criminology*, eds. Alison Morris and Loraine Gelsthorpe, 70–84. Milton Keynes: Open University Press.

Smith, William, Tara Yosso, and Daniel Solorzano. 2006. Challenging Racial Battle Fatigue on Historically White Campuses: A Critical Race Examination of Race-Related Stress. In *Faculty of Colour Teaching in Predominantly White Colleges and Universities*, ed. Christina Stanley, 299–327. Bolton, MA: Anker.

Stanley, Christine. 2006. Colouring the Academic Landscape: Faculty of Colour Breaking the Silence in Predominantly White Colleges and Universities. *American Educational Research Journal* 43: 701–736.

Summers, Krystal. 2013. (Re)Positioning the Indigenous Academic Researcher: A Journey of Critical Reflexive Understanding of Storytelling. *International Journal of Critical Indigenous Studies* 6 (1): 1–13.

Takara, Kathryn. 2006. A View from the Academic Edge: One Black Woman Who Is Dancing as Fast as She Can. *Du Bois Review* 3 (2): 463–470.

Tauri, Juan. 2009. An Indigenous Commentary on the Standardisation of Restorative Justice. *Indigenous Policy Journal* 20 (3): 1–25.

Tauri, Juan. 2011. Crime Control Policy and First Nations: A Critical Commentary on Current Trends and Issues in Settler Societies. Paper presented at Aboriginal Justice Conference, March 8–10, in Penticton, British Columbia.

Tauri, Juan. 2012. Indigenous Critique of Authoritarian Criminology. In *Crime, Justice and Social Democracy: International Perspectives*, eds. Kerry Carrington, Matt Ball, Erin O'Brien, and Juan Tauri, 217–233. London: Palgrave Macmillan.

Tauri, Juan. 2014. Settler Colonialism, Criminal Justice and Indigenous Peoples. *African Journal of Criminology and Justice Studies* 8 (1): 20–37.

Tauri, Juan. 2015a. A Comment on the Epistemic Violence of White Academic Privilege, Part 1. *The Indigenous Criminologist*, November 11.

Tauri, Juan. 2015b. A Comment on the Epistemic Violence of White Academic Privilege—Part 2. *The Indigenous Criminologist*, January 8.

Tauri, Juan, and Robert Webb. 2012. A Critical Appraisal of Responses to Māori Offending. *The International Indigenous Policy Journal* 3 (4): 1–16.

Ward, Adah, and Mary Weems. 2010. Speak Truth and Shame the Devil: An Ethnodrama in Response to Racism in the Academy. *Qualitative Inquiry* 16: 310–313.

Weatherburn, Don. 2010. Guest Editorial: Indigenous Violence. *Australian and New Zealand Journal of Criminology* 3 (2): 197–198.

Weatherburn, Don. 2014. *Arresting Incarceration: Pathways out of Indigenous Imprisonment*. Canberra: Aboriginal Studies Press.
Webb, Robert. 2012. Culture and Crime Control in New Zealand. In *Crime, Justice and Social Democracy Conference Proceedings of an International Conference Held in Brisbane, Australia, 26–28 September 2011*, ed. Juan Tauri, 73–87. Brisbane: QUT.
Young, Jock. 2011. *The Criminological Imagination*. Cambridge: Polity Press.

Author Biography

Dr. Juan Tauri is a Ngāti Porou criminologist and social activist. His research spans a range of criminological and sociological issues, including critical analysis of state policy-making and its impact on Indigenous peoples in settler-colonial societies, Indigenous experiences of family violence, the globalisation of crime policy, and Indigenous responses to social harm.

Part VI

Crime Prevention Policies

52

Australian Gun Laws

Philip Alpers

By 1996, Australia had suffered a spate of 13 public mass shootings which claimed 112 lives and ended only on 28 April, when 35 innocents were shot dead in the Port Arthur massacre. The next day, public health and law practitioners ignited a wildfire campaign for gun control which was agreed and adopted by all sides of politics in just 12 remarkable days. In the 20 years which followed, more than a million guns were destroyed. Mass shootings simply ceased, and the risk of an Australian dying by gunshot dropped by more than half. Although cause and effect remain in dispute, the world's most comprehensive suite of legislation to reduce gun death and injury is now widely cited as an example of best practice.

This chapter shows how and why, along with almost all colonies of European empires, Australia adopted three legislative pillars of gun control; licensing gun owners; registering each of their firearms; and treating private gun ownership as a conditional privilege, not a right. I describe the patchwork of laws and loopholes which permitted one small jurisdiction to undermine the best efforts of seven others until the day it suffered 35 gun deaths in a single massacre. I describe the remarkable two weeks in which law campaigners, the public, and all sides of politics united to replace a jumble of legislation across eight jurisdictions with a single, comprehensive national agreement, but I also recall the hard years of policy slog which made that

P. Alpers (✉)
University of Sydney, Sydney, Australia
e-mail: philip.alpers@sydney.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_52

possible. I outline the provisions of the National Firearms Agreement, its effects, and the legislative backsliding which continues to this day. Perhaps most importantly, I present evidence of the public safety impacts of those laws, now cited around the world. Finally, I credit officials and police with leading two decades of national attitude adjustment to guns and gun owners, reminiscent of the 1980s turnaround in drink-driving enforcement.

A Brief History of Australian Gun Laws

In 1807, NSW Governor William Bligh ordered "all Persons who have Arms … to be registered in a book to be kept by the Magistrate" (Bligh 1807). The next 100 years brought a patchwork of legislative provisions, many of which followed the British pattern that privileged the landed gentry and punished the poacher.

As early twentieth-century fears of revolution spread in Europe, and soldiers returned with guns from foreign wars, the focus shifted to crime control, social control, and a state monopoly on armed violence. In the years 1921–1932, all Australian states and territories enacted their first substantial gun control laws (Harding 1981,1–2). Firearm owners were obliged to be licensed, while handguns such as concealable pistols and revolvers—the weapons of choice for criminals—were widely registered to their owners. In Western Australia, the *Firearms and Guns Act 1931 (WA)* led the way by including long guns such as rifles and shotguns in its universal licensing and registration scheme for all firearms (Robbins 1997).

Fifty years later, in 1981, five out of eight Australian states and territories still did not register long guns. Gun owner licensing was notable for its diversity and, in some cases, its laxity. While Tasmania and Queensland required neither licensing nor registration, Victoria, NSW, and ACT licensed gun owners to possess multiple, uncounted rifles and shotguns with no requirement to register each firearm (Harding 1981). In Victoria, a three-year programme to register long guns—undertaken between 1984 and 1987—was approaching 60% compliance (Newgreen 1987) when it was overtaken by events.

Pressure for Reform

In 1987, abruptly and for no apparent reason, Australia suffered its worst-ever spate of multiple gun homicides. Five shooting incidents claimed most of the lives in that year. During these, 29 victims were killed, 15 of whom died in

the Queen Street and Hoddle Street public massacres in downtown Melbourne (Alpers 2016a). Beneath these headlines, the steady drumbeat of less publicised firearm fatalities continued, most of them domestic killings and gun suicides. With 694 Australians dead by gunshot that year, 1987 remains the nation's worst for fatal shootings in recent history (Alpers and Rossetti 2016a). In the same year, news from the UK of 16 shot dead by a licensed gun owner with a lawfully held assault rifle in Hungerford, Berkshire, reminded Australians that they were not alone in suffering US-style gun massacres for the first time. Although Britain quickly banned self-loading rifles and shotguns through a revision of its *Firearms Act 1968*, Australia struggled to do anything similar. In December that year, with public concern at its peak, Prime Minister Bob Hawke convened a National Gun Summit to discuss firearm control. One result was the National Committee on Violence, which observed that "as a community we have witnessed tragedies that were unthinkable a generation ago" (National Committee on Violence 1990, L). Despite the perceived urgency, there was entrenched opposition to stronger regulation, in particular from Tasmania and Queensland (Unsworth 1996). State leaders failed to agree on the need for uniform gun laws, or for a ban on the military-style, semi-automatic firearms which gun dealers had been marketing for years as "assault weapons". With tragic prescience, NSW Premier Barrie Unsworth declared that "it will take a massacre in Tasmania before we get gun law reform in Australia" (Byrne 1996).

Public feeling—voiced through state-based coalitions for gun control—gradually brought together hundreds of groups to support stronger, nationally uniform firearm legislation. From across the political spectrum police unions, public health, medical and law societies, women's groups, senior citizens' associations, rural counsellors, churches, Country Women's Associations, the War Widows' Guild, and many others began to lend all-party political support to tighter regulation of firearms (Chapman 1998; Peters 2013).

As pressure mounted, ACT introduced registration for rifles and shotguns through its *Firearms Act*. Queensland opened a similar register in 1992 (Cantor and Slater 1995), and Tasmania began to licence firearm owners—but not to register their long guns—in 1993 (Warner 1999). NSW Labor adopted tough new gun laws, only to see them reversed by the coalition of Liberal and National government in 1988 (Chapman 1998).

Mass killings continued, with another 28 victims shot dead in five multiple homicides between 1988 and 1993 (Alpers 2016a). Despite mounting public concern, the opposition to firearm law reform was ferocious. Australia's gun

lobby—long accustomed to stacking firearm consultative committees and holding sway in legislative bodies—lobbied hard against suggested public health measures. Chief among these was the common call to broker uniform gun laws across the nation (Chappell et al. 1988).

Across the country's patchwork quilt of eight states and territories, each with its distinct legislation and an either inaccurate or non-existent police firearm register, officials could only guess at the number of guns in most jurisdictions. In 1988, the best national estimate was "at least 3.5 million" firearms in a population of 16 million (Chappell et al. 1988, 1). At the peak of their success, arms traders had imported as many as 245,000 guns in a single year (Harding 1981). Rapid-fire, semi-automatic, military-style assault rifles, and shotguns were trending in the gun press and could be acquired with minimal paperwork in several states, notably Tasmania.

A person barred from legally acquiring a firearm in one state could easily buy it in another. Gun owners were rarely sanctioned for insecure storage, with one researcher reporting that "safe keeping requirements are almost never enforced until firearms have been lost, most usually through theft and burglary" (Fine 1988, 22). Another study found that as many as 23% of Australian gun owners reported their primary motive for gun ownership as "protection" (Harding 1988, 4). A key demand of law reformers was that self-defence be declared an unacceptable reason for owning or carrying a firearm. Despite arguments harking back to the Magna Carta and the *UK Bill of Rights 1689*, legal scholars and the courts firmly rejected any right to bear arms in modern Australia, where case law considers firearm possession to be at best a conditional privilege (*Carnes v Essenberg and Ors. QCA 339 (1999)*; Griffith 1996).

By early 1996, despite a decade of persistent public pressure for gun control, Australia's firearm lobby appeared to have weathered the storm. Uniform national gun laws and the registration of all firearms had been successfully blocked, despite having been (a) recommended by eleven national and state expert reviews, law reform commissions, and parliamentary committees (Peters 2013); (b) on the agenda of 20 out of 29 police ministers' national conferences since 1980 (Daily Telegraph 1996; Millett 1996); (c) supported by 80–90% of respondents in all major state and national opinion polls (Chapman 1998); and (d) overwhelmingly favoured in newspaper editorials and mass media coverage.

On 13 March 1996, Australians heard the news that 16 small children and their teacher had been massacred by a licensed handgun owner at Dunblane Primary School in Scotland. One week later, Jean Lennon was shot dead by

her former husband outside the Family Court at Parramatta near Sydney. Once again, easy access to guns peaked as a social concern, but the worst was still five weeks away.

Massacre as Catalyst

On 28 April 1996, a single "pathetic social misfit" (Cox 1996) killed 20 innocents with his first 29 bullets, all in the space of 90 s at Port Arthur, Tasmania. The killer was empowered to achieve his final toll of 35 people dead and 18 seriously wounded by firing military-style, semi-automatic rifles. Tasmania was one of the few remaining places in the Western world where an unlicensed man could obtain such a weapon and had easily done so.

Australia's reaction was immediate and strident: Port Arthur was the last straw. From a basement room at the Sydney School of Public Health, widening coalitions for gun control ignited a wildfire campaign for law reform. The nation's newly elected Prime Minister was John Howard, its most conservative leader in decades. If any constituency might be forgiven for assuming the legal status quo, it was the rural and gun-owning rump of the Liberal-National Coalition which had swept him to power. Yet, less than two weeks after Port Arthur, in his first major act of leadership and one of his most popular, Howard's government delivered a nationwide bipartisan gun law reform. After decades of forcing politicians into repeated consultation, electoral weakness, and delay, Australia's gun lobby was outpaced, outflanked, and outwitted by a leader with both the mandate and the personal conviction to move decisively within 12 remarkable days.

From what sounded like a policy pressure-cooker in Canberra, Australians heard a dozen variations on John Howard's (cited in O'Loughlin 2002) interview mantra, repeated ever since: "We do not want the American disease imported into Australia. Guns have become a blight on American society".

Buoyed by raging media support and 90–95% public approval ratings, the Prime Minister was prepared to threaten recalcitrant state and territory governments with a national referendum to strip them of legislative power over firearms. With multi-partisan support from the opposition Labor party, his rural coalition partner the Nationals and others, Howard arrived on 10 May 1996 at a decisive meeting of the Australasian Police Ministers' Council (APMC), holding most cards in the deck. The result became known as the National Firearms Agreement, or NFA (Australasian Police Ministers' Council 1996).

The NFA

The wording of the NFA delivered no major surprise. Instead, the resolutions of that day's Special Firearms Meeting of the APMC enshrined a decade of recommendations to and from the National Committee on Violence established nearly 10 years earlier, reinforced in whole or in part by each expert review, law reform commission, parliamentary committee report, and the Coalition for Gun Control either before or after. The stunning news of that day's announcement was simply that the NFA had been agreed by all parties. Every state and territory in Australia was now bound to reform its firearm legislation, some from the bottom up. In summary, the 1996 APMC resolutions required that all jurisdictions:

1) Ban the sale, transfer, possession, manufacture, and importation of all automatic and most semi-automatic rifles, shotguns, and their parts, including magazines. Only in exceptional circumstances might semi-automatic long guns be used by civilians in occupational categories licensed for a specified purpose, such as for the extermination of feral animals.
2) Ban competitive shooting involving the same firearms.
3) Immediately establish integrated licence and firearm registration systems to ensure nationwide compatibility, then link all databases through the National Exchange of Police Information (NEPI) to ensure effective nationwide registration of all firearms.
4) Exclude personal protection as a genuine reason for possessing or using a firearm.
5) Prohibit private gun sales, with all transfers to be processed by licensed firearm dealers.
6) Require all applicants for a firearm licence to show one or more genuine reasons for owning, possessing, or using each gun. Examples of a genuine reason include regular attendance at an approved gun club, practising mainstream shooting disciplines such as those seen at Commonwealth and Olympic Games; proof of permission from a landowner for recreational shooting or hunting; proof of occupation as a primary producer, security employee, or professional shooter; established, *bona fide* collection of lawful firearms with historical interest; or limited, authorised purposes such as using firearms in film production.

7) Over and above the genuine reason test, applicants for a licence to possess firearms in categories deemed to pose additional risk were also obliged to demonstrate a genuine need for that particular type of gun. For example, for a purpose not achievable by other means, a primary producer may be licensed to possess a single, limited-magazine-size semi-automatic rifle or a pump-action shotgun, possibly with restrictions on its place of use.
8) A person judged to be a *bona fide* collector may be licensed to keep inoperable, non-prohibited post-WWII firearms without live ammunition, and fireable guns manufactured before 1946.
9) The NFA also stipulated a minimum firearm licensing age of 18; required a "fit and proper person" test decided by police; proof of identity; accredited, nationally uniform safety training; a photographic licence limiting its owner to certain firearm categories and ammunition; a minimum 28-day waiting period for licensing or firearm acquisition; and a maximum licence period of 5 years.
10) Each licence applicant has to comply with safe storage requirements by keeping firearms and ammunition in separate fixed, locked receptacles; submits to the inspection of storage by authorities, and is subject to immediate withdrawal of licence and confiscation of firearms for failure to comply.
11) A firearm licence may also be refused or cancelled following a conviction involving violence; an apprehended violence, domestic violence, or restraining order; reliable evidence of mental or physical unsuitability to possess a firearm; and for not notifying a change of address.

Law and Evidence Defeat the Backlash

As the implications of the NFA took hold, the Australian gun debate displayed its intensity gap. A great majority of voters—according to consistent polling in the 90–98% range of approval for tightened gun laws—seemed motivated merely by passive concern. On the other side stood a minority opposition of firearm enthusiasts, who called themselves single-issue voters and loudly threatened electoral retribution. At one rural meeting in a country town, John Howard became the first Australian Prime Minister to be photographed wearing a bulletproof vest (Chapman 1998).

In Melbourne, three weeks after the APMC decision, Australia saw its largest ever pro-gun rally. Banners and placards brought the strong country protest to the streets of the city. Police estimated the crowd at 60,000 (Sunday Telegraph 1996). In contrast, pro-gun-control rallies were much smaller (Chapman 1998).

Shooters' groups and politicians made a series of attempts to confuse, delay, and water down the provisions of the NFA, but each was defeated by the evidence. A common claim that "licensed gun owners are not the problem" was deflated by the fact that most victims of gun massacres had been killed by a licensed gun owner firing a lawfully held firearm (Alpers 2016a). Likewise, .22-calibre rabbit rifles—so-called bunny guns—that were supposedly deserving of exemption were shown to be the firearm type most commonly used in multiple homicides (Alpers 1998). A last-minute compromise to "crimp" shotgun magazines—in order to limit their multi-shot potential—failed when it became clear that such modifications were easily circumvented. By late July 1996, 10 weeks after the NFA was announced, Queensland, Western Australia, and the Northern Territory gave up the fight and fell into line (Ansley 1996).

By January 1997, all eight governments had commenced the national, mandatory buyback of banned firearms. A total of 659,940 newly prohibited semi-automatic and pump-action rifles and shotguns were purchased from their civilian owners at market value, funded by a one-off levy on federal income tax, and destroyed (Reuter and Mouzos 2003). Ten months after it began, the main Australian Firearms Buyback campaign was over (Chapman 1998). By 1 October 1997, criminal penalties including imprisonment and heavy fines applied to possession of any prohibited weapon in all states and territories (Alpers 2016b).

During a second firearm buyback in 2003, 68,727 handguns—pistols and revolvers—were collected and destroyed (Bricknell 2012; Hudson 2004). Tens of thousands of gun owners also voluntarily surrendered additional, non-prohibited firearms without compensation. In the 20 years from 1996–2015, at least one million privately owned firearms—one-third of the estimated national stockpile—are known to have been seized or surrendered and then melted down (Alpers and Rossetti 2016c).

Two Decades Without a Gun Massacre

In the 18 years which preceded gun law reform, Australia saw 13 mass shootings with five or more victims in which a total of 112 people died. In the 20 years that followed, no mass shootings occurred (Alpers 2016a).

In the same two decades after gun law reform, the rate of fatal shootings which claimed fewer than five victims—that is, the vast majority of gun deaths—also showed a downward trend. But to complicate matters, that trend had been apparent for several years before the new firearm legislation was introduced Fig. 52.1.

In the period immediately following the Port Arthur massacre, the risk of an Australian dying by gunshot fell by more than half. 20 years later, that risk shows no sign of increasing, and Australia's rate of gun homicide remains 23 times lower than that of the USA (Alpers and Rossetti 2016e).

Another sequel to gun law reform was the decline in firearm-related fatalities in categories few could have predicted. Of all gun deaths in Australia, 80% have nothing to do with crime. We tend to focus on gun homicides, which constitute only 15% of firearm-related deaths, while in reality gun suicides constitute 77% of gun-related deaths. Unintentional shootings and shootings with undetermined cause make up the remainder (Alpers and Rossetti 2016f). In the years after Port Arthur, suicide by firearm showed a

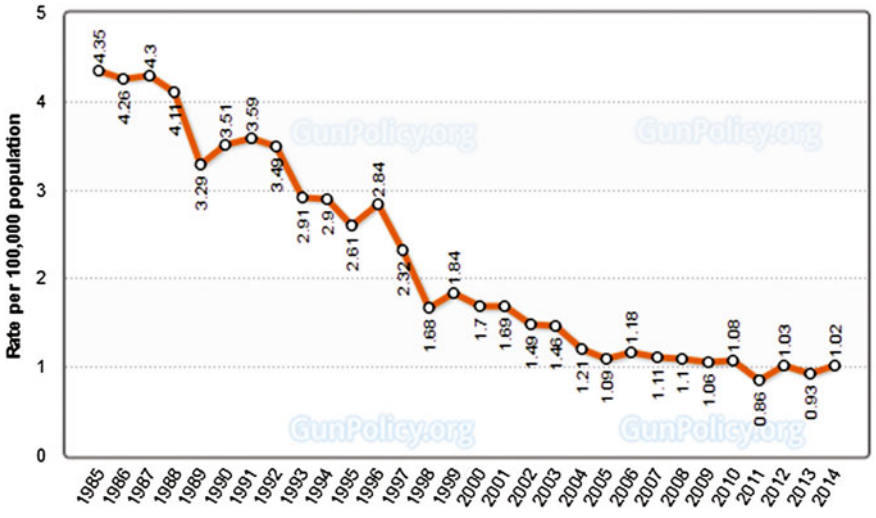


Fig. 52.1 Australia: Rate of all gun deaths per 100,000 people. *Source* Alpers and Rossetti (2016d)

significant decline. Here, law reform designed to reduce rare mass gun homicides was followed by a decreasing rate of much more common gun suicide. In addition, rates of *non-gun* homicide and suicide fell during the same period.

Clearly, any analysis of these results must recognise an array of confounding factors. Researchers have used several methods to measure the effects of Australia's firearm legislation, with conflicting results. Leigh and Neill (2010, 1) found that "the buyback led to a drop in the firearm suicide rates of almost 80%" for an estimated saving of 200 deaths by gunshot and USD 500 million in costs each year. Chapman et al. (2006, 1) concluded that "the rates per 100,000 of total firearm deaths, firearm homicides and firearm suicides all at least doubled their existing rates of decline after the revised gun laws". In a countervailing study, Baker and McPhedran (2006, 9) interpreted essentially the same empirical findings to conclude the opposite, namely that "the gun buy-back and restrictive legislative changes had no influence on firearm homicide in Australia". Lee and Suardi (2010, 2) found that Australia's new gun laws "did not have any large effects on reducing firearm homicide or suicide rates".

Shortly after the 20-year anniversary of the Port Arthur shooting, and with many more years of data, the most recent research by Chapman et al. (2016, 2) found that "there was a more rapid decline in firearm deaths between 1997 and 2013 compared with before 1997, but also a decline in total non-firearm suicide and homicide deaths of a greater magnitude. Because of this, it is not possible to determine whether the change in firearm deaths can be attributed to the gun law reforms". This study also concluded that "implementation of a ban on rapid-fire firearms was associated with reductions in mass shootings and total firearm deaths". No study has found evidence of substitution of other lethal means, for example, murderers moving to other methods. The same applies to suicide.

Conclusion

The Australian experience, catalysed by 35 deaths in a single shooting spree, marked a national sea change in attitudes, both to firearms and to those who own them. In the 20 years since stringent gun control laws were introduced, no mass shootings have occurred. While two federal gun buyback campaigns attracted most of the attention, other provisions of the NFA also promise long-term value. Universal registration makes gun owners personally accountable for all firearms in their possession and was followed by a

reduction in gun thefts of more than 50% (Bricknell 2011). Proof of genuine reason to own each firearm imposes an obligation to justify each purchase and limits the size of private arsenals, while rejection of self-defence as a genuine reason avoids an array of risks to public safety. Mandatory removal of firearms protects those at risk from violence and self-harm. After recognising the practicality of these laws for crime prevention, police have since led two decades of national attitude adjustment reminiscent of the 1980s turnaround in drink-driving enforcement (Alpers 2016b).

That said, no Australian jurisdiction fully complies with the NFA (Rath and Griffith 1999). Although the most important provisions of the legislation still stand, ceaseless pressure from shooters and their political allies has to some degree wound back the 1996 gun laws in each state and territory (Lee 2016). Despite the removal of semi-automatic firearms and their rapid-fire lethality, Australia's vibrant shooting community seems undiminished. Legitimate reasons for gun ownership remain untouched, especially in farming, agriculture, pest control, and sports shooting. Although one million rapid-fire long guns and handguns were destroyed, more than one million firearms have since been imported, most of them single-shot rifles and shotguns (Alpers 2016c). Accounting for population increase, Australia's per capita rate of gun ownership remains 25% lower than it was in 1996, while the proportion of households with a firearm has fallen by 75% since 1988 (Alpers and Rossetti 2016g). This seeming contradiction is explained by those who already own firearms buying more, while those who own no firearms become more numerous.

Despite two decades of continuous application of the most comprehensive mesh of gun control laws in the world, Australia's public health intervention to reduce firearm injury remains a target of resistance and denial, local subversion, and international controversy. Despite this, few Australians fail to admire their country's determined rejection of an American-style gun culture.

Notes

In February 2017, the Law, Crime and Community Safety Council of the Attorney-General's Department of Australia agreed to an updated National Firearms Agreement (NFA). This amalgamates the 1996 NFA and the 2002 National Handgun Agreement into a single point of reference for firearm regulation in Australia. The updated NFA (2017) reinforces the previous agreements without substantial change. It can be found at https://www.ag.gov.au/LegalSystem/Firearms/Pages/default.aspx

References

Alpers, Philip. 1998. 'Harmless'. 22 Calibre Rabbit Rifles Kill More People than Any Other Type of Gun. *GunPolicy.org*, March 1.

Alpers, Philip. 2016a. Mass Gun Killings in Australia and New Zealand, 1987–2015. *GunPolicy.org*, January 11.

Alpers, Philip. 2016b. Australia's Gun Numbers Climb: Men Who Own Several Buy More than Ever Before. *The Conversation*, April 28.

Alpers, Philip. 2016c. Firearm Imports, Australia: Non-Air Modern Firearms for Civilian Possession, 1988–2015 (ABS). *GunPolicy.org*, April 28.

Alpers, Philip, and Amélie Rossetti. 2016a. Guns in Australia: Total Number of Gun Deaths. *GunPolicy.org*, June 20.

Alpers, Philip, and Amélie Rossetti. 2016b. Australia: Restricted Firearms and Ammunition. *GunPolicy.org*, June 20.

Alpers, Philip, and Amélie Rossetti. 2016c. Australian Firearm Amnesty Buyback and Destruction Totals. *GunPolicy.org*, May 3.

Alpers, Philip, and Amélie Rossetti. 2016d. Australia: Rate of All Gun Deaths per 100,000 People. *GunPolicy.org*, June 20.

Alpers, Philip, and Amélie Rossetti. 2016e. Compare Australia: Rate of Gun Homicide per 100,000 People. *GunPolicy.org*, June 20.

Alpers, Philip, and Amélie Rossetti. 2016f. Australia: Number of Gun Suicides. *GunPolicy.org*, June 20.

Alpers, Philip, and Amélie Rossetti. 2016g. Australia: Proportion of Households with Firearms. *GunPolicy.org*, June 20.

Ansley, Greg. 1996. Gun Law Rebels Cave into Howard. *New Zealand Herald*, July 23.

Australasian Police Ministers' Council. 1996. Special Firearms Meeting, Canberra 10 May 1996: Resolutions. http://bit.ly/28VbwoO.

Baker, Jeanine, and Samara McPhedran. 2006. Gun Laws and Sudden Death: Did the Australian Firearms Legislation of 1996 Make a Difference? *British Journal of Criminology* 47 (3): 455–469.

Bligh, William. 1807. General Orders. *Sydney Gazette and New South Wales Advertiser,* February 22.

Bricknell, Samantha. 2011. *Firearm Theft in Australia, 2008–2009*. Canberra: AIC.

Bricknell, Samantha. 2012. *Firearm Trafficking and Serious and Organised Crime Gangs*. Canberra: AIC.

Byrne, Alex. 1996. Unsworth Gloomy on Summit. *Sydney Morning Herald*, May 3.

Cantor, Christopher H., and Penelope J. Slater. 1995. The Impact of Firearm Control Legislation on Suicide in Queensland: Preliminary Findings. *Medical Journal of Australia* 162 (11): 583–585.

Chapman, Simon. 1998. *Over Our Dead Bodies: Port Arthur and Australia's Fight for Gun Control*. Sydney: Pluto Press.

Chapman, Simon, Philip Alpers, Kingsley Agho, and Mike Jones. 2006. Australia's 1996 Gun Law Reforms: Faster Falls in Firearm Deaths, Firearm Suicides, and a Decade without Mass Shootings. *Injury Prevention* 12 (6): 365–372.

Chapman, Simon, Philip Alpers, and Mike Jones. 2016. Association Between Gun Law Reforms and Intentional Firearm Deaths in Australia, 1979–2013. *The Journal of the American Medical Association* 316 (3): 291–299.

Chappell, Duncan, Peter Grabosky, Paul Wilson, and Satyanshu Mukherjee. 1988. *Firearms and Violence in Australia: Specific Gun Control Proposals*. Canberra: AIC.

Cox, William. 1996. Cox, C. J. 1996 'Comments on Passing Sentence - Mental Illness' State of Tasmania v Martin Bryant. Hobart: Supreme Court of the State of Tasmania. 22 November. Relevant Contents. *GunPolicy.org*, November 22.

Daily Telegraph. 1996. Success, or Lethal Shame. *Daily Telegraph*, May 10.

Fine, David. 1988. *Gun Laws: Proposals for Reform*. Sydney: Federation Press.

Griffith, Gareth. 1996. *A Right to Bear Arms in New South Wales? Briefing Paper*. Sydney: NSW Parliamentary Library Research Service.

Harding, Richard W. 1981. *Firearms and Violence in Australian Life: An Examination of Gun Ownership and Use in Australia*. Nedlands: University of Western Australia Press.

Harding, Richard W. 1988. *Everything You Need to Know About Gun Control in Australia: Briefing Paper Prepared for the Australian Bankers' Association*. Perth: University of Western Australia.

Hudson, Phillip. 2004. Victoria Leads Way in Gun Buyback. *The Age*, August 8.

Lee, Samantha. 2016. Australia's Stringent Gun Laws are Under Attack. *Sydney Morning Herald*, April 28.

Lee, Wang-Sheng, and Sandy Suardi. 2010. The Australian Firearms Buyback and Its Effect on Gun Deaths. *Contemporary Economic Policy* 28 (1): 65–79.

Leigh, Andrew, and Christine Neill. 2010. Do Gun Buybacks Save Lives? Evidence from Panel Data. *American Law and Economics Review* 12 (2): 509–557.

Millett, Michael. 1996: Howard's Gun Gamble. *Sydney Morning Herald*, May 11.

National Committee on Violence. 1990. *Violence: Directions for Australia*. Canberra: AIC.

Newgreen, Lex. 1987. *Firearms Registration System. Report to Metropolitan Coordinator Victoria Police*. Melbourne: Victoria Police.

O'Loughlin, Toni. 2002. Plan to Fight American Gun Disease. *Sydney Morning Herald*, April 19.

Peters, Rebecca. 2013. Rational Firearm Regulation: Evidence-Based Gun Laws in Australia. In *Reducing Gun Violence in America: Informing Policy with Evidence and Analysis*, eds. Daniel W. Webster, and Jon S. Vernick, 195–204. Baltimore, ML: Johns Hopkins University Press.

Rath, Abigail, and Gareth Griffith. 1999. *Firearms Regulation: An Update*. Sydney: NSW Parliamentary Library.

Reuter, Peter, and Jenny Mouzos. 2003. Australia: A Massive Buyback of Low-Risk Guns. In *Evaluating Gun Policy: Effects on Crime and Violence*, eds. Jens Ludwig, and Philip Cook, 121–156. Washington, DC: Brookings Institution.

Robbins, Supt Steve. 1997. *Firearm Registration in Australia: Western Australia Police. Affidavit in the Court of Appeal of Alberta on Behalf of the Department of Justice, Canada.* Ottawa: Department of Justice.

Sunday Telegraph. 1996. Thousands March against Gun Laws. *Sunday Telegraph*, June 2.

Unsworth, Barrie. 1996. Failure on Guns an Affront. *Sydney Morning Herald*, May 10.

Warner, Kate. 1999. Firearm Deaths and Firearm Crime After Gun Licensing in Tasmania. Paper presented at *The Third National Outlook Symposium on Crime in Australia, Canberra*, March 22–23.

Author Biography

Philip Alpers is an Adjunct Associate Professor at the University of Sydney and Founding Director of GunPolicy.org, a global project of the Sydney School of Public Health which compares gun law, armed violence, and firearm injury prevention across 350 jurisdictions. He is a policy analyst of public health effects of armed violence and firearm injury prevention.

53

Alcohol Policies

Joseph M. Boden

While the fact that alcohol is linked to crime is intuitively evident, epidemiologists and social scientists have firmly established consistent linkages between high levels of alcohol consumption and increased risk of crime and violence (Rehm et al. 2009). These linkages have been observed across all societies in which alcohol is consumed, although there are regional and national differences in the strength of these linkages (WHO 2011).

Given the linkages between alcohol and crime, there is a long history of countries adopting laws and policies intended to reduce the burden of violence and criminal offending stemming from alcohol misuse. Many of these policies, such as the prohibition on alcohol in the USA in the early twentieth century, were clearly social experiments that failed for a variety of reasons. However, recent years have seen increased understanding of the social, psychological, and epidemiological issues associated with problematic alcohol consumption, as well as a clearer understanding of the role of evaluation processes in the development of law and public policy. Because of this, more recent attempts to reduce the overall burden of crime and violent behaviour associated with alcohol misuse have been more successful (Babor et al. 2010).

The purpose of this chapter is to provide an overview and critical review of public policy developments in Australia and New Zealand with respect to alcohol consumption, and in particular laws and policies designed to reduce violence and criminal offending stemming from alcohol misuse. The review

J.M. Boden (✉)
University of Otago, Christchurch, Christchurch, New Zealand
e-mail: joseph.boden@otago.ac.nz

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_53

also examines the extent to which there is evidence for the effectiveness of these policies. Four areas of policy are examined: policies intended to reduce alcohol consumption; policies intended to reduce the risk of alcohol-related crime; policies designed to influence attitudes towards alcohol; and policies designed to provide treatment for problem drinkers. The concluding section of this chapter discusses priorities for further development of law and policy in Australia and New Zealand, in order to increase the gains already made in addressing the deleterious effects of alcohol misuse. It should be noted that, for the purposes of the present discussion, the research cited in this chapter focusses only on alcohol consumption from legal outlets.

Policies to Reduce Consumption

Insofar as alcohol plays a direct causal role in increasing the risk of criminal offending (Boden et al. 2013), it seems logical to suggest that the adoption of policies intended to reduce alcohol consumption should also have the effect of reducing the overall level of alcohol-related crime. The goal of reducing consumption at the national and local level has been traditionally approached by a suite of measures which have had varying levels of success (Babor et al. 2010). For the purposes of this chapter, some of the more prominent policies are examined, namely reduction of supply, increasing price via taxes and related mechanisms, and drink-driving interdiction.

Reduction of Supply

One key feature of many comprehensive alcohol control policies is that these are designed to restrict and reduce the supply of alcohol to communities. It has been well established that communities that have a higher density of liquor outlets have higher rates of crime, and in particular alcohol-related crime (Livingston et al. 2007). One way to address this issue is through restrictions on the number of licences to sell alcohol that is issued in a community and selective approval of licence requests aimed at ensuring low densities of licensed premises.

In Australia, the reduction of supply via licensing restrictions has been established for a number of years at the state and territory level (Howard et al. 2014). For example, the Queensland *Liquor Act 1992* established a set of laws concerning the types of liquor licences that were available. The liquor licence application process ensured that communities were notified of all applications,

and it provided an opportunity for commentary, feedback, and possible objections to the granting of licences by members of the community.

The practical effect of licensing laws in Australia has had somewhat less to do with restricting the number of trading outlets but rather more to do with placing conditions on licences that restrict the hours of trade and with specifying the conditions under which trading occurs (Howard et al. 2014). One policy that has been implemented in order to address alcohol-related crime is a so-called lockout policy which restricts entry to licenced premises—in particular premises with late-night licences—after a certain hour. Howard et al. (2014) reported that there was mixed evidence for the success of such policies, with evidence of significantly reduced alcohol-related crime in Newcastle, NSW, but a lack of evidence in other areas. Similarly, Palk et al. (2010) reported some reduction of crime in the Gold Coast following implementation of a lockout policy, but the reduction was not statistically significant.

Other policies attached to licences that have been widely adopted in Australia include mandatory Responsible Service of Alcohol (RSA) training for staff and security at licenced premises, and server liability measures (Howard et al. 2014). The provision of RSA training is intended to reduce harm by increasing the knowledge and confidence of hospitality staff in dealing with intoxicated patrons. In 2014, RSA training and oversight was undertaken at the national level, superseding traditional state oversight. Server liability measures are punitive approaches, which often involving heavy fines or a loss of licence for some period, that address breaches of alcohol laws by establishments. These infractions include serving intoxicated patrons, selling alcohol outside permitted hours, and serving underage drinkers. While these formed parts of the comprehensive National Alcohol Strategy in Australia (Australian Government 2006), research and evaluation are needed to learn the extent to which these programmes are effective and to identify what can be done to improve programme outcomes.

A recent advance in this area in Australia has been the introduction of risk-based licencing (RBL) in the ACT in 2010 (Matthews and Legrand 2014). This policy bases the fee to obtain an alcohol licence on the likely risk of alcohol-related harm occurring due to the trading practices observed at any given establishment. The funds derived from RBL are used to provide extra police resources in high-risk areas. Matthews and Legrand (2014) reported that, over a two-year period, there were significant reductions in police-reported alcohol-related offences across ACT, though the extent of these reductions varied by region.

In New Zealand, developments in alcohol policy to restrict supply have lagged considerably behind those in Australia. There is, of course, a comprehensive licensing regime that has many of the same features as those in Australia, but authority for these has been largely devolved to local councils for development and implementation—Local Alcohol Policies (LAP)—as a result of revisions to the *Sale and Supply of Alcohol Act 2012*. In many cases, the development of LAP has been met with significant resistance from the food and beverage sector and the hospitality sector (Otago Daily Times 2014). Particular aspects of policy development that have shown some promise in Australia have also been poorly taken up in New Zealand. For example, there has, to this point, been limited use of lockout policies in New Zealand cities with the hospitality industry taking a strong stance against such measures (Chapman 2013).

Increasing Cost via Taxes or Related Mechanisms

One of the key drivers of alcohol consumption levels is its relative cost (McCullough 2012). Babor et al. (2010) argued that a critical component of alcohol harm-reduction strategies is increasing the cost of alcohol via taxation mechanisms. As alcohol is already taxed and regulated by the state, it would seem a straightforward matter to increase the tax in order to discourage high levels of consumption. Indeed, a systematic review of the literature by Elder et al. (2010) discovered that nearly all studies found an inverse relationship between the price of alcohol and rates of consumption, as well as the price of alcohol and alcohol-related problems. The review concluded that the evidence for alcohol excise taxes is consistent and strong and that alcohol law and policy reforms should adopt these as one key component of any comprehensive strategy to reduce alcohol-related harm. Similar approaches have been used in a range of Western countries to address the public health risk posed by tobacco consumption with a great degree of success (WHO 2008).

One way of approaching the taxation issue with regard to alcohol is the use of unit-based or minimum pricing, in which the price of a beverage is proportional to its alcohol content (Stockwell et al. 2015). Under such a scheme, beverages with lower levels of alcohol content are less costly than beverages with higher levels of alcohol content, which should have the effect of reducing overall alcohol consumption. In particular, consumption should drop amongst heavier drinkers, and amongst young people, who are at particularly high risk of alcohol-related harm. Research from the UK suggests that the adoption of a unit price of GBP 0.50 would reduce alcohol consumption by

6.7%, which would have considerable impact at the population level (Booth et al. 2008).

Recently, a raft of submissions and proposals has suggested to increase the tax on alcohol in Australia or to institute a unit-based pricing scheme in place of the current scheme which is based on the sales price of the beverage (Howard et al. 2014). The 2016 Australian federal budget did indeed contain a tax increase on wine, but this was limited in scope and appeared to some to be aimed at providing economic aid to Australian winemakers rather than reducing alcohol consumption (Chung 2016).

In New Zealand, there has been little impetus for adoption of higher alcohol taxes or a move to a unit-based taxation scheme despite recommendations by the NZ Law Commission (2010) that such a scheme be adopted in the interest of reducing consumption at the population level.

Drink-Driving Interdiction

A further suite of laws and policies that have the effect of reducing alcohol-related harm is the strengthening of drink-driving laws and the provision of police breath-testing checkpoints. Law changes to improve road safety outcomes with regard to alcohol have been largely successful. For example, reductions in the allowed blood alcohol content (BAC) from 0.08 to 0.05 mg/l in all Australian states have shown an 8–13% reduction in fatal motor vehicle collisions (Fell and Voas 2014). This data is congruent with that observed throughout the developed world where lower allowed BAC levels and increased interdiction have operated together to significantly reduce both drink-driving and accidents (Babor et al. 2010).

A critical aspect of this approach is lowering the allowed BAC to a level below which drivers are likely to be significantly impaired. Evidence shows, for example, that the association between BAC and impairment is exponential, such that the difference in impairment between drivers at 0.08 mg/l and drivers at 0.05 mg/l is almost as great as the difference in impairment between drivers at 0.05 mg/l and drivers at 0.00 mg/l (Bloomberg et al. 2005). In the wake of this and other research, Australia was one of the first countries to lower the allowed BAC for most drivers to 0.05 mg/l, and Victoria and NSW were some of the first locations to use random breath-testing extensively (Babor et al. 2010). In New Zealand, by way of contrast, an allowed BAC of 0.08 mg/l for drivers over the age of 20 remained in place until 2014, when it was lowered to 0.05 mg/l. The allowed BAC for drivers aged 20 and under is 0.00 mg/l.

In addition to reducing the road toll, some researchers have suggested that drink-driving countermeasures have also helped to reduce the overall level of alcohol consumption in countries where they have been introduced, which would provide an additional layer of benefit in adopting these laws. For example, Apsler et al. (1999) found that implementation of a 0.08 mg/l limit in several of the USA's states during the early 1980s showed evidence of reduced alcohol consumption at the population level. It is for these reasons that Babor et al. (2010) have argued that drink-driving countermeasures should play a key role in any comprehensive suite of measures intended to address the problem of alcohol-related harm.

Reduction of Risk

As noted above, despite policies intended to reduce supply, there will always be intoxicated individuals and there will always be intoxicated individuals who commit crimes. Therefore, any suite of policies designed to reduce alcohol-related crime should also include policies that restrict opportunities for crime in specific locations and situations, and that increase the chances of identifying and apprehending individuals who commit crimes while intoxicated.

One potential approach to the issue has been developed by police in both Australia and New Zealand, which has been to optimise staffing and patrol patterns of frontline policing to ensure stronger and more visible police presence in places where alcohol-related assaults and other crimes are likely to occur (Howard et al. 2014; Liu et al. 2016; NZ Police 2010). A second approach undertaken by police has been to investigate and enforce compliance with liquor laws at licenced premises. Finally, police have also begun to work in partnership with communities and businesses to develop collaborative partnerships aimed at reducing alcohol-related crime. These collaborative partnerships have not only employed increased police visibility, but have also paired these with awareness raising in media, and information letters to licensees. An example of this in the Australian context is the study by Navarro et al. (2013) which examined an intervention in a matched-paired randomised controlled trial of 20 rural communities in NSW.

The difficulty with these approaches is that while they make intuitive sense, there is in fact little evidence to support their effectiveness. Liu et al. (2016) critically reviewed a range of Australian studies and reported that there was little evidence to suggest the effectiveness of either the frontline policing approach or the compliance enforcement approach in terms of reducing

alcohol-related assaults and other outcomes. On the other hand, the collaborative partnership approach has shown more promise in some areas, possibly due to the fact that there are multiple facets to these interventions. Homel et al. (1997) also point out that such approaches are time- and effort-intensive. Their study of a collaborative project to reduce alcohol-related crime in Surfer's Paradise showed that the benefits of the programme waned after a few years, likely due to a reversion to less intensive practices.

An approach related to these initiatives—that has been used in various locations in Australia and New Zealand—is the establishment of alcohol-free zones, which is intended to increase control over unruly drinkers in areas in which these individuals are likely to congregate. Some bans are permanent, like the alcohol ban in the area surrounding the University of Canterbury in Christchurch, whereas others are event-based or time-restricted in nature. A review of the research on the effectiveness of such bans by Pennay and Room (2012), consisting primarily of data from Australia and New Zealand, found that there was little evidence to suggest the bans are effective in reducing alcohol-related crime.

Changing Attitudes

In trying to understand alcohol consumption behaviour at the population level, researchers have frequently surmised that a culture or population has a certain set of attitudes and expectations for behaviour with regard to alcohol and that these vary across cultures (WHO 2011). In order to change consumption patterns and reduce alcohol-related crime, it, therefore, becomes important to change attitudes about alcohol. This is the key logic behind public awareness and information campaigns, and educational programmes aimed at curbing alcohol-related harm (Babor et al. 2010). Several approaches have been developed in various parts of the world to attempt to shape attitudes towards alcohol consumption, with some being used in both Australia and New Zealand. The question then arises as to whether there is any evidence for their success.

Babor et al. (2010) argue that an important policy development in terms of shaping attitudes is a restriction of advertising, marketing, and promotion of alcohol. There is considerable evidence to suggest that advertising and alcohol advertising in particular affect alcohol consumption, with increased levels of advertising having small but detectable effects in increasing consumption (Gallet 2007). Amongst young people, these effects have been examined in more detail. Alcohol advertisements tend to increase liking for a beverage

amongst young people as well as a desire to emulate characters portrayed in advertisements (Austin et al. 2006). These, in turn, increase both intention to purchase alcohol and intention to drink (Chen et al. 2005).

Based on this evidence, there have been a number of attempts to restrict alcohol advertising. Some of these have been in the form of voluntary codes of practice amongst the alcohol industry, but these have had little or no effect in reducing consumption (Babor et al. 2010). There is, however, some evidence that partial bans and restrictions at the state and national level on alcohol advertising have had a small positive effect in reducing alcohol consumption. However, the evidence is mixed because of the kinds and degrees of liquor ban that this research examined varied widely.

In Australia, alcohol advertising, marketing, promotion, and product-naming are subject to the Alcohol Beverages Advertising Control (ABAC) scheme (Jones and Gordon 2013), a quasi-regulatory system. The system for regulating alcohol advertising in New Zealand is similar to that in Australia. Jones and Gordon (2013) note that, in contrast to the Australian regulations, the New Zealand regulations on advertising are more comprehensive.

Despite these controls, there has been little evidence pertaining to code compliance in Australia and New Zealand and limited evidence that has examined the efficacy of these approaches. Two Australian studies have examined young people's interpretation of various alcohol advertisements, and both found that young people perceived the ads as presenting a favourable and encouraging view of alcohol consumption by young people, contrary to the ABAC code (Jones and Gordon 2013).

A further suite of policy approaches is related to persuasion and education aimed primarily at young people and those in vulnerable groups such as pregnant women. These include media information campaigns, warning labels on alcohol, low-risk drinking guidelines, and alcohol education programmes. Examples of these are commonly found in both Australia and New Zealand—in fact too many to effectively canvass them in this chapter—and they are often designed to form part of a comprehensive approach to reducing alcohol-related harm. The difficulty with these programmes, as Babor et al. (2010) point out, is that there is very little evidence to suggest their effectiveness. Advertising-based programmes are no match for the pro-alcohol advertising undertaken by the industry, and educational and related programmes do not work particularly well unless they are individually tailored and comprehensive in nature.

Treatment of Problem Drinkers

The final policy initiative covered in this chapter examines the provision of treatment for problem drinkers. Given that a large proportion of alcohol-related crimes are committed by individuals who have an alcohol use disorder (AUD); treating AUDs should result in lower levels of alcohol-related crime.

The question then arises, how effective such treatment is in reducing crime. A report by the WHO (2009) reviewed the evidence and suggested that brief interventions with problem drinkers were associated with lower levels of violent behaviour as well as fewer binge drinking episodes. Australian data has shown a high level of effectiveness of cognitive behavioural therapy in reducing both alcohol-related violence and harmful alcohol consumption (Victorian Alcohol and Drug Association 2011). The existing evidence (McHugh et al. 2010) suggests generally that treatment may be highly efficacious in reducing problematic alcohol use as well as violent and criminal behaviour stemming from problematic alcohol use.

In the Australian and New Zealand contexts, efforts have been made to involve general practitioners in increasing the extent to which they ask patients about their alcohol use, employ effective screening tests to detect problem drinking such as the Alcohol Use Disorders Identification Test (AUDIT) (Bohn et al. 1995), and refer patients for treatment where appropriate and necessary (Tam et al. 2013). These efforts are currently underway and are accompanied by current research examining factors that may improve practices in alcohol screening by general practitioners.

An issue arising from treatment of AUDs is that, while they may be effective in reducing problem drinking and alcohol-related crime at the individual level, the population-level effects of such interventions are likely to be quite small (Babor et al. 2010). Therefore, while they may be a key component of any suite of harm-reduction policies, they are unlikely to be effective if used as a stand-alone approach.

Comparison of Australian and New Zealand Policies

The overview of policies intended to reduce alcohol-related crime in Australia and New Zealand presented above leads to several general conclusions about the state of harm-reduction policy in both countries.

First, it is clear that both countries have employed a similar suite of policies, with varying levels of success. While there is good evidence for the efficacy of policies designed to reduce consumption, both countries tend to rely on approaches that involve enforcement of licencing laws and drink-driving interdiction, rather than a broader-based approach that includes increased taxes, or minimum unit pricing. Both countries have persisted in using approaches such as alcohol-free zones, which may appeal to citizens and voters as an apparent 'good idea', but for which there is no evidence of efficacy in reducing alcohol-related crime. Neither country has shown a particular interest in raising the minimum age of purchase, which is recommended by Babor et al. (2010) as an important component of alcohol harm-reduction policies and has, in New Zealand, been recommended by the NZ Law Commission.

A second issue is that while there is considerable similarity between the approaches taken by the two countries, New Zealand is lagging considerably behind Australia in the development, implementation, and evaluation of policies designed to reduce alcohol-related crime. For example, in Australia, the required maximum BAC for drivers was set to 0.05 mg/l over 30 years ago, whereas New Zealand did not adopt this measure until late 2014, despite a mountain of evidence suggesting a large degree of impairment between 0.05 and 0.08 mg/l. In addition, despite an NZ Law Commission report (2010) that generally accepted the recommendations made by Babor et al. (2010), the changes to alcohol legislation in New Zealand in 2012 contained precious few actual reforms. One major feature of this 'reform' was to turn over responsibility for licensing policies to local councils, which immediately resulted in councils being sued by the hospitality and alcohol industries for trying to harm their businesses by reducing consumption. Finally, New Zealand also lags behind Australia in evaluating policy changes on the alcohol front. For the purposes of this chapter, it proved possible to find an extensive literature describing the measures taken in Australia and evaluating their effectiveness, whereas a similar literature for New Zealand does not exist.

Conclusion

A key priority for both Australian and New Zealand policy makers should be the development and implementation of policies that have been shown to be effective and to rigorously evaluate those that have no evidence base. The suite of policies recommended by Babor et al. (2010) would be a good starting point. This means to reduce consumption by increasing taxes or (preferably)

by minimum unit pricing, to restrict alcohol availability through licensing regulations, to raise the minimum age of purchase, to develop comprehensive drink-driving interdiction, and to regulate marketing and advertisement. In addition, because much of the violence and crime stemming from alcohol is committed by problem drinkers, increasing treatment opportunities and provision for treatment is also a necessity.

The history of policy approaches to reducing alcohol-related crime and the reduction of harm arising from alcohol misuse in Australia and New Zealand seems to show an attempt at a balancing act. The balance between the adoption of policies that will effectively address problematic alcohol use and its consequences, and the economic and political pressure exerted by the hospitality and alcohol industries, has, thus far, not managed to make exceptional progress in reducing harm. It can only be hoped that real evidence-based reforms will be adopted in both countries in order to address comprehensively this long-standing issue.

References

Apsler, Robert, A.R., Char, Wayne M. Harding, and Terry M. Klein. 1999. *The Effects of 0.08 Laws*. Washington, DC: US Department of Transportation.

Austin, Erica W., Meng-Jinn Chen, and Joel W. Grube. 2006. How Does Alcohol Advertising Influence Underage Drinking? The Role of Desirability, Identification, and Skepticism. *Journal of Adolescent Health* 38: 376–384.

Australian Government. 2006. *National Alcohol Strategy 2006–2011*. Canberra: Department of Health.

Babor, Thomas F., Raul Caetano, Sally Casswell, Griffith Edwards, Norman Giesbrecht, Kathryn Graham, Joel Grube, Linda Hill, Harold Holder, Ross Homel, Michael Livingston, Esa Osterberg, Jürgen Rehm, Robin Room, and Ingeborg Rossow. 2010. *Alcohol: No Ordinary Commodity*. Oxford: Oxford University Press.

Blomberg, Richard D., Raymond C. Peck, Herbert Moskowitz, Marcelline Burns, and Dary Fiorentino. 2005. *Crash Risk of Alcohol Involved Driving: A Case-Control Study*. Stamford, CT: Dunlap & Associates.

Boden, Joseph M., David M. Fergusson, and L. John Horwood. 2013. Alcohol Misuse and Criminal Offending: Findings from a 30-Year Longitudinal Study. *Drug and Alcohol Dependence* 128 (1/2): 30–36.

Bohn, Michael J., Thomas F. Babor, and Henry R. Kranzler. 1995. The Alcohol Use Disorders Identification Test (AUDIT): Validation of a Screening Instrument for Use in Medical Settings. *Journal of Studies on Alcohol* 56 (4): 423–432.

Booth, Andrew, Petra Meier, Tim Stockwell, Anthea Sutton, Ruth Wong AnnaWilkinson, Alan Brennan, Darargh O'Reilly, Robin Purshouse, and Karl Taylor. 2008. *Independent Review of the Effects of Alcohol Pricing and Promotion: Part A Project Report for the Department of Health*. Sheffield: The University of Sheffield.

Chapman, Katie. 2013. Fears of No-Fun City as Police Seek 3am Close. *Waikato Times*, August 8.

Chen, Meng-Jinn, Joel Grube, Melina Bersamin, Elizabeth Waiters, and Deborah B. Keefe. 2005. Alcohol Advertising: What Makes it Attractive to Youth? *Journal of Health Communication* 10: 553–565.

Chung, Frank. 2016. Tax Changes to Stop the Flood of Cheap Wine. *News.com.au*, May 4.

Elder, Randy W., Briana Lawrence, Aneeqah Ferguson, Timothy S. Naimi, Robert D. Brewer, Sajal K. Chattopadhyay, Traci L. Toomey, Jonathan E. Fielding, and The Task Force on Community Preventive Services. 2010. The Effectiveness of Tax Policy Interventions for Reducing Excessive Alcohol Consumption and Related Harms. *American Journal of Preventive Medicine* 38 (2): 217–229.

Fell, James C., and Robert B. Voas. 2014. The Effectiveness of a 0.05 Blood Alcohol Concentration (BAC) Limit for Driving in the United States. *Addiction* 109 (6): 869–874.

Gallet, Craig. 2007. The Demand for Alcohol: A Meta-Analysis of Elasticities. *Australian Journal of Agricultural and Resource Economics* 51: 121–136.

Homel, Ross, Marg Hauritz, and Richard Wortley. 1997. Preventing Alcohol-Related Crime Through Community Action: The Surfers Paradise Safety Action Project. In *Policing for Prevention: Reducing Crime, Public Intoxication and Injury*, eds. Ross Homel, Marg Hauritz, Richard Wortley, Gillian McIlwain, and Russell Carvolth, 35–90. Monsey, NY: Criminal Justice Press.

Howard, Steven J., Ross Gordon, and Sandra C. Jones. 2014. Australian Alcohol Policy 2001–2013 and Implications for Public Health. *BioMedCentral Public Health* 14: 848. doi:10.1186/1471-2458-14-848.

Jones, Sandra C., and Ross Gordon. 2013. Regulation of Alcohol Advertising: Policy Options for Australia. *Evidence Base* 2: 1–37.

Liu, Timothy, Jason Ferris, Angela Higginson, and Anthony Lynham. 2016. Systematic Review of Australian Policing Interventions to Reduce Alcohol-Related Violence: A Maxillofacial Perspective. *Addictive Behaviors Reports* 4: 1–12.

Livingston, Michael, Tanya Chikritzhs, and Robin Room. 2007. Changing the Density of Alcohol Outlets to Reduce Alcohol-Related Problems. *Drug Alcohol Review* 26 (5): 557–566.

Matthews, Rebecca, and Tim Legrand. 2014. Risk-Based Licensing and Alcohol-Related Offences in the Australian Capital Territory. In *Stemming the Tide of Alcohol: Liquor Licensing and the Public Interest*, eds. Elizabeth Manton, Robin Room, and Michael Thorn, n.p. Melbourne: Foundation for Alcohol Research and Education.

McCullough, Cathering. 2012. Fixing the Cost of Alcohol. *Matters of Substance* (May Issue): 18–19.

McHugh, R.Kathryn, Bridget A. Hearon, and Michael W. Otto. 2010. Cognitive-Behavioral Therapy for Substance Use Disorders. *The Psychiatric Clinics of North America* 33 (3): 511–525.

Navarro, Hector J., Anthony Shakeshaft, Christopher M. Doran, and Dennis J. Petrie. 2013. Does Increasing Community and Liquor Licensees' Awareness, Police Activity, and Feedback Reduce Alcohol-Related Violent Crime? A Benefit-Cost Analysis. *International Journal of Environmental Research and Public Health* 10 (11): 5490–5506.

NZ Law Commission. 2010. *Alcohol in Our Lives: Curbing the Harm*. Wellington: NZ Law Commission.

NZPolice. 2010. *Framework for Preventing and Reducing Alcohol-Related Offending and Victimisation 2010–2014*. Wellington: Ministry of Justice.

Otago Daily Times. 2014. Dunedin's Local Alcohol Policy. *Otago Daily Times*, August 19.

Palk, Galvan R., Jeremy D. Davey, and James E. Freeman. 2010. The Impact of a Lockout Policy on Levels of Alcohol-Related Incidents in and around Licensed Premises. *Police Practice and Research* 11 (1): 5–15.

Pennay, Amy, and Robin Room. 2012. Prohibiting Public Drinking in Urban Public Spaces: A Review of the Evidence. *Drugs: Education, Prevention and Policy* 19 (2): 91–101.

Rehm, Jürgen, Colin Mathers, Svetlana Popova, Montarat Thavorncharoensap, Yot Teerawattananon, and Jazadeep Patra. 2009. Global Burden of Disease and Injury and Economic Cost Attributable to Alcohol Use and Alcohol-Use Disorders. *Lancet* 373 (9682): 2223–2233.

Stockwell, Tim, Jinhui Zhao, Miesha Marzell, Paul J. Gruenewald, Scott Macdonald, William R. Ponicki, and Gina Martin. 2015. Relationships between Minimum Alcohol Pricing and Crime during the Partial Privatization of a Canadian Government Alcohol Monopoly. *Journal of Studies on Alcohol and Drugs* 76 (4): 628–634.

Tam, Chun W.M., Nicholas Zwar, and Roslyn Markham. 2013. Australian General Practitioner Perceptions of the Detection and Screening of At-Risk Drinking, and the Role of the AUDIT-C: A Qualitative Study. *BioMedCentral Family Practice* 14: 121. doi:10.1186/1471-2296-14-121.

Victorian Alcohol and Drug Association, and Drug Association. 2011. *Position Paper: Preventing Alcohol Related Violence*. Melbourne: Victorian Alcohol and Drug Association.

WHO. 2008. *WHO Report on the Global Tobacco Epidemic, 2008*. Geneva: WHO.
WHO. 2009. *Preventing Violence by Reducing the Availability and Harmful Use of Alcohol*. Geneva: WHO.
WHO. 2011. *Global Status Report on Alcohol and Health*. Geneva: WHO.

Author Biography

Joseph M. Boden is an Associate Professor at the University of Otago in NZ and Deputy Director of the Christchurch Health and Development Study. His research focusses on psychiatric epidemiology, developmental processes, statistical methods, and alcohol use disorder epidemiology. He has published over 100 journal articles and book chapters.

54

Developmental Prevention

Ross Homel and Kate Freiberg

In 2016, the Australian Prime Minister, Malcolm Turnbull, announced a Royal Commission that was tasked to investigate the failings in the child protection and youth detention systems of the Northern Territory government. This followed highly disturbing footage on the national television programme *Four Corners* of the neglect, abuse, and arguably torture of young Aboriginal offenders held in youth detention facilities in a territory with the highest rates of youth supervision and detention in Australia (AIHW 2016). Such abuse is consistent with that experienced over many decades by orphaned, maltreated, disadvantaged, and Aboriginal children in various forms of statutory residential care across Australia (see Fletcher and Jorgensen 2006). Historically, whether the "crime" was being poor, abused, black, or a car thief, being in the "care" of the state was a sentence that condemned many children to experiences of violence and neglect that amplified the "dynamic cascades" of environmental adversity and maladaptive resistance that blighted their lives (Dodge and McCourt 2010, 279).

While the Royal Commission will explore the matters found in its terms of reference, the burden of this chapter is that there is a much better way that Australia, and every other country, could organise to address the interconnected problems of youth crime and child maltreatment, and much else

R. Homel (✉) · K. Freiberg
Griffith University, Queensland, Australia
e-mail: r.homel@griffith.edu.au

K. Freiberg
e-mail: k.freiberg@griffith.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_54

besides. This approach, *developmental prevention*, involves in making common cause with institutions of care and with civil society to tackle the conditions that give rise to child maltreatment, antisocial behaviour, and crime *before* these problems arise, or before they become entrenched. When children and young people get into trouble with the law, criminal justice responses are viewed as a last resort. The developmental perspective dictates an emphasis on "recovery pathways" involving support, evidence-based rehabilitation, and, eventually, full participation in society.

The Idea of Developmental Prevention

In Australia, the developmental approach gained prominence with the publication of *Pathways to Prevention: Developmental and Early Intervention Approaches to Crime in Australia* by the Commonwealth Attorney-General's Department in 1999. The report was written by the Developmental Crime Prevention Consortium, an interdisciplinary group that the first author of this chapter had the privilege of leading.[1] The report succeeded in moving the ideas of early intervention and early prevention into mainstream policy thinking, but (ironically) had less impact on criminal justice than on a range of allied fields including mental health, substance abuse prevention, and child protection.

The emphasis of developmental prevention is on providing, usually early in life or in childhood, enlightened support to individuals, families, and communities that help to close the gap between the resources they need to foster the positive healthy development of children and the resources actually available to them. Developmental prevention, therefore, begins with the reality of social inequality and social exclusion, recognising in particular that crime and other social and health problems are increasingly geographically concentrated (Australian Social Inclusion Board 2011; Vinson 2007). In other words, children and young people from the most deprived communities are now more than ever, but always have been, overrepresented in out-of-home care and in the youth justice system (Vinson and Homel 1975).

In sharp contrast to most approaches to crime prevention, developmental prevention is not primarily concerned with social control, and it is certainly not focussed on punishment (Cullen 1994). Rather, it is concerned with empowering caregivers (Freiberg et al. 2014) and strengthening the developmental system: the web of institutions, relationships, and primary care settings that shape and are shaped by children, young people, and parents (France et al. 2010; Lerner and Overton 2008). The kinds of resources that

are required to strengthen the developmental system and achieve substantial, measurable reductions in problem conditions, and behaviours such as crime must be informed by research in prevention science and human development (Sloboda and Petras 2014), as well as by a nuanced understanding of the needs and the social and cultural contexts of the people who will be the recipients of services (France and Homel 2006; Homel et al. 2006).

What rescues this highly ambitious enterprise from the wilderness of good intentions and the 100-year history of failure in community crime prevention (Wickes forthcoming) is the emergence over the past few decades of a body of persuasive scientific evidence—based on approximately 50 model programmes—that demonstrates that developmental prevention approaches, when well designed and rigorously implemented, are capable of effecting substantial and long-term reductions in crime, substance abuse, child maltreatment, and a host of interrelated problems, particularly amongst socially disadvantaged populations (Developmental Crime Prevention Consortium 1999; Manning et al. 2010; Olds 2007; Piquero et al. 2016; Schweinhart 2013). This body of "classic" developmental prevention innovations has helped inspire an international movement for preventive and early childhood initiatives, particularly through investments in education and health. High profile international documents include the World Declaration on Education for All (Inter-Agency Commission 1990), the Dakar Framework for Action (UNESCO 2000), the Millennium Development Goals (UN 2010), and the WHO report on the social determinants of health (Commission on Social Determinants of Health 2008). As Shonkoff et al. (2012, e465) observe, by 2006, 30 low- and middle-income countries had established national Early Childhood Development policies, "buttressed by increasing evidence of the effectiveness of early childhood interventions on a range of health and developmental outcomes".

One of the most widely used sources for information on evidence-based developmental prevention programmes is Blueprints for Healthy Youth Development (Blueprints 2016; Mihalic and Elliott 2015). Programmes vary greatly according to problem focus, such as antisocial behaviour and alcohol abuse; targeted age range such as preschool, prenatal, and university students; and the context for intervention such as home, community, school, and workplace. What unites the Blueprints programmes and those in other registries of evidence-based interventions is their careful design and focus on key risk and protective factors (Farrington 2007); evaluations using high-quality randomised or quasi-experimental designs; and effects that are sustained for at least 12 months after the programme intervention ends.

In the following sections, we explore in some detail three influential evidence-based programmes, then consider the value of the evidence generated by this approach, and the suitability of these model programmes as a foundation for large-scale investments that will produce breakthrough benefits for disadvantaged children. We conclude by touching on the need for new forms of locally generated evidence and for enhanced prevention delivery systems that produce substantial, large-scale, and sustained reductions in youth crime and antisocial behaviour.

Examples of Influential Developmental Prevention Programmes

The HighScope Perry Preschool programme is undoubtedly one of the most influential and successful evidence-based developmental crime prevention initiatives ever conducted. It began more than 50 years ago as a short-term evaluation of the effects of an innovative preschool curriculum on the cognitive and language performance of 58 three- and four-year-old African-American children, compared with 65 controls, growing up in poverty in Ypsilanti, Michigan. The origins of this programme are instructive, especially since some criminologists tend to view developmental crime prevention or treatment as tantamount to "evidence-based oppression" (Goddard and Myers 2016, 1). The Perry Preschool was the idea of school system administrator David Weikart, who was shocked to discover how many poor African-American children were doing badly in school, were being labelled as "retarded", and were being assigned to special education classes. Since school officials did not share his enthusiasm for system reform, he invented an innovative new kind of preschool.

The project was well designed, well implemented, and rigorously evaluated, but the main reason it has been so influential is because the authors continued to follow up the programme sample and the randomised controls, expanding the range of outcome measures over a 40-year period to include school achievement, commitment to schooling, childhood antisocial behaviour, high school graduation, adult employment and earnings, and youth and adult crime and incarceration. The outcomes at all follow-up points across all these domains favoured the programme group, with the study presenting "strong evidence of a lifetime effect of the HighScope Perry Preschool program in preventing total arrests and arrests for violent, property, and drug crimes and subsequent prison or jail sentences" (Schweinhart 2013, 397). The HighScope

early childhood educational model, which is "an open framework of educational ideas and practices based on the natural development of young children" (Schweinhart 2013, 394), was the foundation for both the daily classroom activities and weekly home visits for 90 min to each mother and child. Both these programme strands contributed to long-term reductions in crime and improvements in social and economic well-being by encouraging and empowering parents, and by enabling children to make choices, solve problems, and engage in activities that promoted cognitive development, social adjustment, and capacity for self-regulation (Heckman et al. 2013). The point is that the intervention made it possible for a small group of infants to flourish in a manner that resembled, at least in some degree, the development of children raised in more privileged circumstances.

A second famous early prevention programme is the Nurse Family Partnership (NFP) model (Olds 2007). This programme was implemented in the western suburbs of Sydney in the mid-2000s (Kemp et al. 2011) and is currently being implemented in Victoria and Tasmania and in four Indigenous communities across Australia (Department of Health and Ageing 2012). Olds' (2007) research has shown that for teenaged first-time mothers from very disadvantaged backgrounds, regular prenatal and post-natal home visits by trained health professionals can, under some circumstances, have long-term benefits not only to the mothers but also to their children. Although many elements of this intervention can be found in child health systems around the world, what is distinctive about the approach is the fact that the programme is explicitly grounded in theories of human ecology, self-efficacy, and human attachment. Of great importance, the nurse home visitors systematically assess and rigorously address risk factors associated with poor birth outcomes, child abuse and neglect, welfare dependence, and poor maternal life course.

Evaluation of the original NFP programme in Elmira, New York, using a randomised controlled trial methodology, showed a decrease in recorded child physical abuse and neglect during the first 2 years of life. In a 15-year follow-up, both mothers and children had fewer arrests than control groups where the mothers were not visited. In fact, the children had less than half as many arrests as children of mothers in the control group, smoked and drank less, and had fewer sexual partners (Olds et al. 1998). When the children in the study reached 19 years of age, female participants were three times less likely to be arrested, and five times less likely to be convicted, when compared to the control group, but there were few programme effects for boys (Eckenrode et al. 2010). Summarising outcomes from the NFP trials in Elmira, Denver, and Memphis, Olds (2007) concluded that the benefits of

the programme were greatest for families who needed the services the most, namely, unmarried women with low incomes and their children. Across all the studies, there was a wide range of positive outcomes for mothers and children—particularly girls—including less domestic violence and much lower rates of child maltreatment.

A third "light on the hill" is Communities That Care (CTC), a community-based prevention system that was developed in the 1980s by the Social Development Research Group at the University of Washington (Hawkins and Catalano 1992). CTC has been implemented widely in the USA, including through the Center for Substance Abuse Prevention in the US Government, and also operates in many countries in Europe, in Australia, and elsewhere (Toumbourou et al. 2015). CTC involves the formation of collaborative partnerships among community stakeholders to spearhead adoption and evidence-based interventions that have been shown to reduce risk and enhance protective factors for adolescent behaviour problems including antisocial behaviour, crime, and substance abuse. Provided are training and materials that mobilise and empower coalitions of diverse community stakeholders to prevent adolescent drug use and delinquency by using prevention science. Community coalitions use the CTC Youth Survey to assess levels of empirically identified risk and protective factors for these behaviours in the community and the CTC Prevention Strategies Guide in order to choose and implement tested preventive interventions to address those risk factors that are highly evident in the community (Glaser et al. 2005). New programmes are put in place in appropriate collaborating organisations after staff are trained to provide the new programmes. Implementation of these programmes is monitored by the CTC coalition.

CTC is now accumulating impressive evidence for population-level impacts in the USA (Hawkins et al. 2009). In Pennsylvania, for example, there was a 10.8% reduction in delinquency that could be attributed to a range of universal evidence-based adolescent-oriented programmes implemented by CTC community collaborations. The reduction was measured relative to the normative increase in delinquency expected across the high school years and in comparison with "business-as-usual" communities (Feinberg et al. 2010). The comparable figures for reductions in associations with antisocial peers, improvements in academic grades, and improved school opportunities and commitment to school were 10.8%, 33.2%, and 16.4%, respectively. These community-level impacts make CTC especially important since it could be seen as having "rescued" the best of the popular but unproven community crime prevention tradition. It does this by incorporating modern epidemiological techniques and public health models based on

risk and protective factors and evidence-based programmes while retaining an emphasis on community mobilisation and the strengthening of local organisations (Hawkins et al. 2014). In some respects, CTC has therefore reconciled the research-to-practice and community-centred traditions in community prevention, a goal that was also central to the Pathways to Prevention Project (Flaspohler et al. 2008; Homel and McGee 2012).

Assessing the Evidence from Flagship Developmental Prevention Programmes

Developmental prevention clearly can work very well and work with the most deprived and difficult children and families with long-term and substantial effects on crime, violence, substance abuse, child maltreatment, educational achievement, attachment to school, and participation in mainstream society. The three model programmes discussed in the previous section collectively illustrate the importance placed within this paradigm on evidence-based practices to influence selected risk and protective factors, within a broad ecological model that directs resources to children, parents, families, schools, and local communities and strengthens relations between these levels of organisation. The model programmes differed in terms of the ages at which interventions took place, illustrating that it would not be wise to put all one's eggs into the basket of preschool, primary school, or adolescence. Nurse-Family Partnerships focus on the period from conception to infancy, although the actual participants are young mothers, not the children, while CTC mostly focusses on the middle and high school years. This illustrates the principle that it is "never too early, never too late" (Homel and Thomsen forthcoming).

However, not all programmes had consistent effects on all outcomes, with some benefits not emerging clearly until some years after the intervention had ceased. Local context can clearly constrain long-term outcomes, overall effects can be modest except in selected subgroups where sample sizes are often too small to permit definitive conclusions, and benefits are often "over-sold" by programme proponents (Lynch 2016). Moreover, the spectacular impacts observed in some of the historically earliest prevention initiatives such as the Perry Preschool programme are not generally observed in contemporary innovations, probably because the comparison or business-as-usual groups benefit from improved health, developmental, and educational services. Lynch points out, for example, that the standards in teacher-to-child ratios set

by the Australian Children's Education and Care Quality Authority exceed those used in the intervention groups in some of the pioneering US studies.

The quality comparison group problem is also illustrated in the recent Building Blocks Study in the UK (Robling et al. 2016), which found mostly non-significant results in an evaluation of the Family Nurse Partnership (FNP) programme using an independent randomised controlled design. Commenting on this study, Olds (2016, 106) stated that the Building Blocks Study "results need to be understood in the context of usual care after FNP was added to local services". In other words, "usual care" was of a quality comparable to the conditions created through the FNP. On the other hand, the Miller Early Childhood Sustained Home Visiting trial (MECSH) of nurse–home partnerships in Sydney (Kemp et al. 2011), which was embedded within the broader child and family services system, examined about 20 outcomes at age two most of which were in a positive direction although small in magnitude. The authors stressed that given the good fit of the NFP model with the Australian health system, large-scale and long-term trials should be a priority, particularly in the most deprived geographical areas. In this regard, the significant implementation challenges identified in the formative evaluation of the NFP trial in Indigenous communities (Department of Health and Ageing 2012) are instructive.

The Need for New Forms of Evidence and Better Large-Scale Prevention Delivery Systems

On the basis of the kinds of challenges posed by the outcomes of early prevention initiatives discussed above, Shonkoff and Fisher (2013) have concluded that flagship programmes like the Perry Preschool programme should be viewed primarily through a historical lens and their seminal contribution appreciated as *proof of concept* rather than as evidence of the value of current investments. In the Perry Preschool study, for example, a third of the intervention group had at least one arrest for a violent offence, reinforcing the need for "more effective strategies to produce larger effects" (1637). Shonkoff and Fisher (2013) acknowledge the great value of quality improvement and system building—including enhanced data management practices and better-coordinated services—but are sceptical that these will be sufficient to produce the breakthrough impacts for children growing up under the burden of poverty. They propose an expanded definition of evidence and the need for greater innovation, translating the wealth of new findings from child

development research and prevention science into new types of preventive innovations. They observe that, in a policy environment that increasingly emphasises evidence-based programmes, there is little funding or encouragement for the development and testing of new ideas.

It was the extreme paucity of evidence for the long-term effects on children of routinely delivered family support services—historically one of the most widely used strategies to improve conditions in disadvantaged communities across Australia—that led us to construct and analyse the Pathways to Prevention Child Longitudinal Database, a 10-year repository of data on nearly 5000 children. Homel et al. (2015) used a matched groups design and multilevel modelling to show that relatively low levels of family support were strongly associated with improvements in teacher-rated classroom behaviour, especially for children of parents who initially reported low levels of parenting efficacy. Low-intensity family support also improved children's social relationships and capacity for self-regulation. These results underline the potential of family support in disadvantaged areas to prevent youth offending and highlight Shonkoff and Fisher's (2013) point that we need to move away from sole reliance on "the canon" of model programmes. Given the steady improvement in social, health, and education systems in Australia and New Zealand, it is likely that many other routine services for children and families, such as playgroups, have long-term crime prevention benefits that are currently unknown (Homel et al. 2017).

New forms of evidence will, however, not be enough on their own. Homel et al. (2017) argue that "to achieve sustained reductions in crime, violence or injuries on a large scale, that of whole populations or whole communities, it is necessary to transform prevention delivery systems so that they conform in their practices, on a continuing basis, with scientific evidence". We have distilled the lessons from 12 years of research and practice in the Pathways to Prevention Project to formulate a set of principles, summarised in the acronym CREATE —for implementing population-level community-based developmental prevention—*C*ollaborative, *R*elationships-driven, *E*arly in the pathway, *A*ccountable, *T*raining-focused, *E*vidence-driven (Homel et al. 2015).

CREATE is being used to develop a *prevention support system* for the Communities for Children (CfC) programme[2], a *prevention delivery system* that is operated by the Department of Social Services in 52 communities across Australia. The aim is to build the capabilities of schools and community agencies to transcend system silos; foster ethical practices and respectful relationships; and deliver goal-directed, quantitatively evaluated, evidence-based resources that address the needs of families with complex needs, promote child well-being, and prevent antisocial and criminal

behaviours. The Prevention Support System combines extensive web-based interactive resources for schools and community agencies serving children in CfC communities[3] with systems and processes established by project personnel called "collective impact facilitators" who build the skills and knowledge of community coalitions to use the electronic resources and implement the CREATE principles effectively.

Conclusion

The programmes described in this chapter have all been developed in pursuit of science-based developmental prevention strategies that genuinely empower children, parents, and schools in disadvantaged communities, and that help cement the proposition in public policy that institutions of care are fundamentally more important in preventing crime than institutions of regulation. The bottom line is to reduce the traffic along the pathways from poverty to prison.

Notes

1. The Developmental Crime Prevention Consortium comprised (at the time the Pathways report was prepared) the convenor Ross Homel (Griffith University), Judy Cashmore (NSW Child Protection Council), Linda Gilmore, Ian O'Connor, John Western and Jake Najman (University of Queensland), Jacqueline Goodnow and Alan Hayes (Macquarie University), Jeanette Lawrence (University of Melbourne), Marie Leech (Uniya: Jesuit Social Justice Centre) and Tony Vinson (University of NSW). The project was funded by the Commonwealth Department of the Attorney General through its National Crime Prevention Program.
2. The CfC project is funded through an Australian Research Council Linkage grant LP130100142 (2014–2016). Pathways to Prevention has been funded through ARC grants since 1999, most recently through DP0984675 (2009–2013).
3. Many of these electronic resources are gradually being made available through http://www.RealWell.org.au.

References

AIHW. 2016. *Youth Justice in Australia 2014–15. Cat. no. AUS198.* Canberra: AIHW.

Australian Social Inclusion Board. 2011. *Breaking Cycles of Disadvantage*. Canberra: Commonwealth of Australia.

Blueprints. 2016. About us. http://www.blueprintsprograms.com/about. Accessed 30 May.

Commission on Social Determinants of Health. 2008. *Closing the Gap in a Generation: Health Equity Through Action on the Social Determinants of Health Final Report of the Commission on Social Determinants of Health*. Geneva: WHO.

Cullen, Francis T. 1994. Social Support as an Organizing Concept for Criminology: Presidential Address to the Academy of Criminal Justice Sciences. *Justice Quarterly* 11: 527–559.

Department of Health and Ageing. 2012. *Stage 1 Evaluation of the Australian Nurse Family Partnership Program, Final Report*. Canberra: Ernst & Young Australia.

Developmental Crime Prevention Consortium. 1999. *Pathways to Prevention: Developmental and Early Intervention Approaches to Crime in Australia*. Canberra: Australian Government Publishing Service.

Dodge, Kenneth A., and Sandra N. McCourt. 2010. Translating Models of Antisocial Behavioral Development Into Efficacious Intervention Policy to Prevent Adolescent Violence. *Developmental Psychobiology* 52: 277–285.

Eckenrode, John, Mary Campa, Dennis W. Luckey, Charles R. Henderson, Robert Cole, Harriet Kitzman, Elizabeth Anson, Kimberly Sidora-Arcoleo, Jane Powers, and David Olds. 2010. Long Term Effects of Prenatal and Infancy Nurse Home Visitation on the Life Course of Youths: 19 Year Follow-Up of a Randomized Trial. *Archives of Pediatrics and Adolescent Medicine* 164 (1): 9–15.

Farrington, David P. 2007. Childhood Risk Factors and Risk-Focussed Prevention. In *The Oxford Handbook of Criminology*, eds. Mike Maguire, Rod Morgan, and Robert Reiner, 602–640. Oxford: Oxford University Press.

Feinberg, Mark E., Jones Damon, Mark T. Greenberg, D. Wayne Osgood, and Daniel Bontempo. 2010. Effects of the Communities That Care Model in Pennsylvania on Change in Adolescent Risk and Problem Behaviors. *Prevention Science* 11: 163–171.

Flaspohler, Paul, Jennifer Duffy, Abraham Wandersman, Lindsey Stillman, and Melissa A. Maras. 2008. Unpacking Prevention Capacity: An Intersection of Research-to-Practice Models and Community-Centered Models. *American Journal of Community Psychology* 41: 182–196.

Fletcher, Al, and Cheryl Jorgensen. 2006. *Brutal: Surviving Westbrook Boys Home*. Sydney: New Holland Publishers.

France, Alan, Kate Freiberg, and Ross Homel. 2010. Beyond Risk Factors: Towards a Holistic Prevention Paradigm for Children and Young People. *British Journal of Social Work* 40 (4): 1192–1210.

France, Alan, and Ross Homel. 2006. Societal Access Routes and Developmental Pathways: Putting Social Structure and Young People's Voice into the Analysis Pathways into and out of Crime. *Australian and New Zealand of Criminology* 39 (3): 287–294.

Freiberg, Kate, Ross Homel, and Sara Branch. 2014. The Parent Empowerment and Efficacy Measure (PEEM): A Tool for Strengthening the Accountability and Effectiveness of Family Support Services. *Australian Social Work* 67 (3): 405–418.

Glaser, Renita R., M. Lee Van Horn, Michael W. Arthur, J. David Hawkins, and Richard F. Catalano. 2005. Measurement Properties of the Communities That Care Youth Survey Across Demographic Groups. *Journal of Quantitative Criminology* 21 (1): 73–102.

Goddard, Tim, and Randolph R. Myers. 2016. Against Evidence-Based Oppression: Marginalized Youth and the Politics of Risk-Based Assessment and Intervention. *Theoretical Criminology*. doi:10.1177/1362480616645172.

Hawkins, J. David, and Richard F. Catalano. 1992. *Communities That Care: Action for Drug Abuse Prevention*. San Francisco, CA: Jossey-Bass Publishers.

Hawkins, J. David, Sabrina Oesterle, Eric C. Brown, Robert D. Abbott, and Richard F. Catalano. 2014. Youth Problem Behaviors 8 Years After Implementing the Communities That Care Prevention System: A Community-Randomized Trial. *Journal of the American Medical Association Pediatrics* 168 (2): 122–129.

Hawkins, J. David, Sabrina Oesterle, Eric C. Brown, Michael W. Arthur, Robert D. Abbott, Abigail A. Fagan, and Richard F. Catalano. 2009. Results of a Type 2 Translational Research Trial to Prevent Adolescent Drug Use and Delinquency: A Test of Communities That Care. *Archives of Pediatric Adolescent Medicine* 163 (9): 789–798.

Heckman, James, Rodrigo Pinto, and Peter Savelyev. 2013. Understanding the Mechanisms Through Which an Influential Early Childhood Program Boosted Adult Outcomes. *American Economic Review* 103 (6): 2052–2086.

Homel, Ross, Brian Bumbarger, Kate Freiberg, and Sara Branch. 2017. Sustaining Crime Prevention at Scale: Transforming Delivery Systems Through Prevention Science. In *Preventing Crime and Violence: Volume 3 of Advances in Prevention Science*, eds. Brent Teasdale and Mindy S. Bradley, chapter 29 (pp. 351–376). New York: Springer.

Homel, Ross, Kate Freiberg, and Sara Branch. 2015a. CREATE-ing Capacity to Take Developmental Crime Prevention to Scale: A Community-Based Approach within a National Framework. *Australian and New Zealand Journal of Criminology* 48 (3): 367–385.

Homel, Ross, Kate Freiberg, Sara Branch, and Huong Le. 2015b. *Preventing the Onset of Youth Offending: The Impact of the Pathways to Prevention Project on Child Behaviour and Wellbeing*. Canberra: AIC.

Homel, Ross, Kate Freiberg, Cherie Lamb, Marie Leech, Anne Hampshire, Ian Hay, Gordon Elias, Angela Carr, Matthew Manning, Rosie Teague, and Samantha Batchelor. 2006. *The Pathways to Prevention Project: The First Five Years, 1999–2004*. Sydney: Griffith University & Mission Australia.

Homel, Ross, and Tara R. McGee. 2012. Community Approaches to Crime and Violence Prevention: Building Prevention Capacity. In *The Future of Criminology*, eds. Rolf Loeber, and Brandon Welsh, 172–177. New York, NY: Oxford University Press.

Homel, Ross, and Lisa Thomsen. Forthcoming. Developmental Crime Prevention. In *Handbook of Crime Prevention and Community Safety,* 2nd edition, eds. Nick Tilley and Aiden Sidebottom. London: Taylor & Francis.

Inter-Agency Commission. 1990. *World Declaration on Education for All and Framework for Action to Meet Basic Learning Needs*. New York, NY: Inter-Agency Commission for the World Conference on Education for All.

Kemp, Lynn, Elizabeth Harris, Catherine McMahon, Stephen Matthey, Graham Vimpani, Teresa Anderson, Virginia Schmied, Henna Aslam, and Siggi Zapart. 2011. Child and Family Outcomes of a Long-Term Nurse Home Visitation Programme: A Randomised Controlled Trial. *Archive of Diseases in Childhood* 96: 533–540.

Lerner, Richard M., and Willis F. Overton. 2008. Exemplifying the Integrations of the Relational Developmental System: Synthesizing Theory, Research, and Application to Promote Positive Development and Social Justice. *Journal of Adolescent Research* 23: 245–255.

Lynch, John. 2016. Do We Believe in Magic? What Can Early Interventions Achieve in 21st Century Australia? and How Will We Know? Paper presented at Australian Institute of Family Studies Conference, July 6–8, in Melbourne.

Manning, Matthew, Ross Homel, and Christine Smith. 2010. A Meta-Analysis of the Effects of Early Developmental Prevention Programs in At-Risk Populations on Non-Health Outcomes in Adolescence. *Children and Youth Services Review* 32: 506–519.

Mihalic, Sharon F., and Delbert S. Elliott. 2015. Evidence-Based Programs Registry: Blueprints for Healthy Youth Development. *Evaluation and Program Planning* 48: 124–131.

Olds, David. 2007. Preventing Crime with Prenatal and Infancy Support of Parents. *Victims and Offenders* 2 (2): 205–225.

Olds, David. 2016. Building Evidence to Improve Maternal and Child Health. *The Lancet* 387: 105–107.

Olds, David, Lisa M. Pettitt, JoAnn Robinson, Charles Henderson, John Eckenrode, Harriet Kitzman, Bob Cole, and Jane Powers. 1998. Reducing Risks for Antisocial Behavior with a Program of Prenatal and Early Childhood Home Visitation. *Journal of Community Psychology* 26 (1): 65–83.

Piquero, Alex R., Wesley G. Jennings, Brie Diamond, David P. Farrington, Richard E. Tremblay, Brandon C. Welsh, and Jennifer M. Reingle Gonzalez. 2016. A Meta-Analysis Update on the Effects of Early Family/Parent Training Programs on Antisocial Behavior and Delinquency. *Journal of Experimental Criminology* 12: 229–248.

Robling, Michael, Marie-Jet Bekkers, Kerry Bell, Christopher C. Butler, Rebecca Cannings-John, and Sue Channon. 2016. Effectiveness of a Nurse-Led Intensive Home-Visitation Programme for First-Time Teenage Mothers (Building Blocks): A Pragmatic Randomised Controlled Trial. *Lancet* 387: 146–155.

Schweinhart, Lawrence J. 2013. Long-Term Follow-Up of a Preschool Experiment. *Journal of Experimental Criminology* 9: 389–409.

Shonkoff, Jack P., and Philip A. Fisher. 2013. Rethinking evidence-based practice and two-generation programs to create the future of early childhood policy. *Development and Psychopathology*, 25, 1635–1653.

Shonkoff, Jack P., Linda Richter, Jacques van der Gaag, and Zulfiqar A. Bhutta. 2012. An Integrated Scientific Framework for Child Survival and Early Childhood Development. *Pediatrics* 129 (2): e460–e472.

Sloboda, Zili, and Hanno Petras (eds.). 2014. *Defining Prevention Science: Volume 1 of Advances in Prevention Science*. New York, NY: Springer.

Toumbourou, John W., Rachael K. Leung, Ross Homel, Kate Freiberg, Lata Satyen, and Sheryl A. Hemphill. 2015. Violence Prevention and Early Intervention: What Works? In *Preventing Violence in Australia: Policy, Practice and Solutions,* eds. Andrew Day and Ephrem Fernandez, 45–62. Sydney: Federation Press.

UN. 2010. *Millennium Development Goals Report: United Nations Summit on the Millennium Development Goals*. New York, NY: UN.

UNESCO. 2000. *The Dakar Framework for Action: Education for All: Meeting Our Collective Commitments: Including Six Regional Frameworks for Action*. Paris: UNESCO.

Vinson, Tony. 2007. *Dropping Off the Edge: The Distribution of Disadvantage in Australia*. Melbourne: Jesuit Social Services Australia.

Vinson, Tony, and Ross Homel. 1975. Crime and Disadvantage: The Coincidence of Medical and Social Problems in an Australian City. *The British Journal of Criminology* 15: 21–31.

Wickes, Rebecca. Forthcoming. Social Disorganization Theory: Its History and Relevance to Crime Prevention. In *Preventing Crime and Violence: Volume 3 of Advances in Prevention Science*, eds. Brent Teasdale and Mindy S. Bradley. New York, NY: Springer.

Author Biographies

Ross Homel AO is a Professor of Criminology based at Griffith University. He has won many awards for his research on the prevention of crime, violence, and injuries, and the promotion of positive development and well-being for children and young people in socially disadvantaged communities, such as the ASC's 2010 Sellin-Glueck Award.

Kate Freiberg is a Senior Research Fellow at Griffith University. She is a developmental psychologist whose work focusses on the theory and practice of applying preventive interventions in community settings. She has developed a number of interactive resources designed to measure and promote the development of children's well-being.

55

Rehabilitation Programmes in Australian Prisons

Karen Heseltine and Andrew Day

Offenders convicted of breaching the community's legal code may be sanctioned to a variety of undertakings, including imprisonment, community-based orders, or diversion programmes. The aim of any legal sanction is to reduce the likelihood of recidivism through offender rehabilitation and the promotion of community safety. In general, more serious and repeat offenders are more likely to be sentenced to imprisonment.

Dominant theories of crime and its causation in a particular era have strongly influenced the role of prisons. Traditionally, prisons have been places where punishment is administered as a form of retribution for an offence. In Australia, the establishment of the British Penal Colony in NSW in 1788 saw the commencement of the prison system underpinned by principles of deportation. Over time, however, there has been a greater understanding, both theoretically and empirically, of the ineffectiveness of imprisonment in reducing recidivism (Chen and Shapiro 2007).

Today, prisons must be able to provide appropriate housing for prisoners of varying levels of risk of recidivism, violence and harm to self, and diverse demographic characteristics, while ensuring the prisoner's human rights are

K. Heseltine (✉)
Forensic and Clinical Psychologist, Adelaide, South Australia, Australia
e-mail: Karen.Heseltine@SAClinPsych.com.au

A. Day
Professor at James Cook University, Townsville, Queensland, Australia
e-mail: andrew.day@jcu.edu.au

© The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_55

maintained and the public is protected. Offender rehabilitation options in prison commonly include educational or vocational training, substance abuse treatment and associated pharmacotherapy programmes, offending behaviour programmes, and transition programmes nearing the end of a sentence to enhance community integration.

In this chapter, we provide an overview of offender rehabilitation programmes in Australian prisons. We will begin by looking at the rates of imprisonment in Australia and how these have changed over time. Ideas about effective rehabilitation in prisons are explored, specifically how they are underpinned by the contemporary "What Works" approach to offender rehabilitation. Offender treatment programmes offered in Australian prisons are described, with a focus on programme effectiveness. Future directions in Australian prisons as a rehabilitative option will conclude the chapter.

Imprisonment in Australia

The role of prison in contemporary society is multifaceted. Administrators are charged with the responsibility to protect the public through the incapacitation and social exclusion of offenders and to provide a safe working environment for prison staff, while punishing and rehabilitating prisoners and helping them to reintegrate back into the community. They are tasked to achieve these goals in a context of significant budgetary pressure. It has been reported, for example, that AUD 356 million was spent on administering the 143 correctional facilities throughout the country[1] in 2011/2012 (Smith et al. 2014). This represented nearly 85% of correctional service total recurrent expenditure and equated to an average daily cost of AUD 224 to the taxpayer for every adult prisoner.

The rate of adult imprisonment in Australia has risen substantially in recent years, with the total number of people in prison now well over 30,000. This equates to a national imprisonment rate of 196 prisoners per 100,000 adult population (ABS 2015), although there are substantial regional variations. For example, the Northern Territory has the highest rate of imprisonment, at 885 per 100,000, whilst Tasmania has the lowest at 130 per 100,000. This increasing use of imprisonment by Australian courts (ABS 2015) has meant that correctional administrations across the country often experience significant pressure on bed space and many prisons are overcrowded.

There is little sign that the increase in the prison population will abate, especially in the light of statistics that many prisoners will be reincarcerated

Table 55.1 Prisoners in Australia, profile June 2015

Prisoners	NSW	VIC	QLD	SA	WA	TAS	NT	ACT	Australia
Average daily number	11,797	6219	7318	2732	5555	519	1593	396	33,789
Rate per 100,000 adults	200	134	198	204	278	130	885	131	196
Previously imprisoned (%)	55	51	66	49	60	61	72	75	
Male	93	93	90	94	91	94	91	96	
ATSI (%)*	24	8	32	23	38	15	84	19	

*ATSI—Aboriginal and/or Torres Strait Islander cultural background
Source Adapted from ABS (2015)

following their release. Table 55.1 shows how the current rate of reimprisonment is approaching or is greater than 50% in all States, with 75% of prisoners in ACT reimprisoned. It is in this context that the successful rehabilitation of offenders is likely to be critical to the sustainability of the system. However, efforts to rehabilitate are not always welcomed, and community support for more punitive sanctions appears to be as strong as ever. Recent high-profile offences, committed by ex-prisoners who were thought to have been successfully rehabilitated (see Harper, Mullen, and McSherry 2015), have fuelled new debates over the effectiveness of current programmes and arguments as to where the balance between punishment and rehabilitation should be struck. We have seen this translate into the implementation of a number of public policies over recent years that are regarded by many as counter-rehabilitative (Day et al. 2014). These include the introduction of preventative detention and community notification schemes for serious offenders, as well as the reintroduction of "boot camps" for young offenders.

The overrepresentation in Australian prisons of people who identify as Aboriginal or Torres Strait Islander is also evident in the statistics presented in Table 55.1 This is a group that makes up around three per cent of the general population, but 27% of the adult prison population (ABS 2015).

Rehabilitating Prisoners

Historically, prisons have been places that have been designed to administer punishment. This has been seen as both as a form of retribution for the offence and as a deterrence to others from engaging in similar behaviour.

The establishment of the British Penal Colony in NSW in 1788 saw the introduction of a highly punitive prison system, underpinned by the practice of deportation. And yet, even in the early days of colonisation, efforts were made to rehabilitate, drawing on the work of social reformers of eighteenth-century Britain, notably Quakers such as John Howard and Elizabeth Fry. They were among the first to try to change prisons from institutions of deep despair and cruel punishment to places that were humane and had the potential to reform prisoners' lives. Elizabeth Fry, for example, worked as a volunteer, making clothes for the babies of women prisoners at Newgate prison in London. This led to the setting up of a school inside the prison, which was then expanded to helping the women learn to read, write, and sew. Prison authorities soon noticed a great improvement in both the morale and behaviour of the prisoners and, as a result, prison reform soon followed.

The history of offender rehabilitation in Australia can be traced as far back as 1840 when Captain Alexander Maconochie was the prison governor of Norfolk Island. Maconochie almost single-handedly revolutionised the criminal justice system by introducing the idea of indeterminate rather than fixed sentences, implementing a system of rewards in which prisoners could earn marks that counted towards their early release, and advocating for a system of aftercare and community resettlement. His ideas subsequently informed the development of rehabilitation and parole systems in Western nations (see Morris 2002).

These days, a much wider range of programmes is available to prisoners. All programmes intend to improve their chances of desisting from crime following release from custody. These include educational and vocational training programmes and an array of transitional support—end of sentence pre-release or community reintegration—programmes, which have emerged in the light of the difficulties that many prisoners experience in obtaining and maintaining paid employment or settling back into the community after a period of incarceration. Given that prisoner employment training programmes have the potential to be offered to large numbers of prisoners, while simultaneously generating income for correctional services, they have become a reasonably attractive option for correctional administrators (Christofferson 2014). However, evidence relating to the impact of these programmes on reoffending is weak. A recent review concluded that existing outcome-focussed research in this area has largely failed to provide the type of evidence that policymakers need in order to decide which programmes to fund, scale up, or discontinue (Newton et al. 2016).

Whom Should We Treat?

Over the last 30 years there has been an increasing acceptance of research evidence which clearly shows that well-planned and targeted interventions can be effective in reducing rates of reoffending (see Andrews and Bonta 2010). Imprisonment is used as a sanction for a wide range of offences, although the most common offences are acts to cause injury, illicit drug offences, and sexual offences, see Table 55.2. Hence, it is unsurprising that violent offenders, sexual offenders, and those with a history of substance use are identified as key groups for rehabilitation, and that specialist programmes in each of these areas are now routinely offered across Australia.

It is not sufficient, however, to determine rehabilitation needs simply on the basis of an offence type. One of the most important types of assessment that occurs in the correctional setting is the assessment of the risk of reoffending (see Olver and Wong forthcoming). Risk or need assessment tools, such as the Level of Service Inventory (Andrews and Bonta 1995), are now routinely used in Australian prisons to classify sentenced prisoners and identify which should be prioritised for treatment (Gordon 2015). These tools ensure that the wide range of factors that are known to be associated with future offending are properly considered, as well as offering a structured approach that can help to reduce the possible biases of individual practitioners. They are often supplemented with specialist risk assessment tools designed to determine the treatment needs of both violent (Wong and Gordon 2006) and sexual offenders (Hanson and Morton-Bourgon 2009). The practice of offering intensive rehabilitation programmes to those

Table 55.2 Prisoners in Australia by offence types

	NSW	VIC	QLD	SA	WA	TAS	NT	ACT	Australia
Violent offences* (%)	33	29	33	34	34	36	58	37	34
Sexual offences (%)	11	13	11	14	10	10	10	12	11
Illicit drug offences (%)	16	13	12	11	13	4	6	4	13
Other** (%)	40	44	44	42	43	51	26	46	42

*Violent offences = homicide and related offences; acts intended to cause injury; dangerous or negligent acts endangering persons; and abduction, harassment and other offences against the person

**Other offences = robbery, extortion and related offences; unlawful entry with intent/burglary, break and enter; theft and related offences; fraud, deception and related offences; prohibited and regulated weapons and explosives offence; property damage and environmental pollution;, public order offences; traffic and vehicle regulatory offences; and offences against justice procedures, government security and government operations

Source Adapted from ABS (2015)

offenders who have been assessed as being at moderate or high risk of reoffending is now well established. It is based on substantial evidence that this type of differentiated case management significantly improves the ability of programmes to reduce recidivism (Lowenkamp, Latessa, and Holsinger 2006).

What Factors Should We Target in Our Rehabilitation Efforts?

It makes sense for interventions to seek to influence those factors about the person that are causally linked to their offending. These are often labelled *criminogenic needs* and identified as important targets for rehabilitation (Andrews and Bonta 2010). Of course, a prisoner may present with a range of different needs, but it is generally only those needs that can be shown to increase directly the propensity to offend that are considered relevant to rehabilitation efforts. For example, feelings of anxiety or distress would not be routinely addressed, unless identified as causally implicated in the offending behaviour. A list of criminogenic needs would typically include the following five needs: antisocial or pro-crime attitudes and values; criminal friends and associates; substance abuse; features of antisocial personality such as a lack of empathy, high anger, and hostility; and impulsivity, that is, not thinking about the consequences of behaviour. In practice, however, most rehabilitation programmes focus on changing two sets of criminogenic need: *pro-criminal attitudes* that are embedded in thoughts, values, and sentiments that support criminal conduct; and *personality traits* such as low self-control, hostility, pleasure or thrill seeking, and a lack of empathy.

How Should We Deliver Programmes?

There has been much less consideration of how rehabilitation should actually be delivered, although usually, this occurs in small groups of between 6 and 12 prisoners. Davies (forthcoming) has argued that the presence of other prisoners can offer new perspectives to an individuals' viewpoint or interpretation, and thereby harness mutual support for change. He also suggests that feedback from other prisoners may be more powerful than that given by staff members. Group-based interventions also provide consistency across programmes, which can assist evaluation efforts (Hollin and Palmer 2006).

In terms of the actual approach to intervention, we can chart the rise of offender treatment according to the broad traditions of psychodynamic psychotherapy, behaviour modification, behaviour therapy, and, more recently, the cognitive-behavioural and cognitive therapies that have come to dominate practice over the last decade (Tafrate and Mitchell 2014).

The earliest therapeutic work in the psychoanalytic tradition viewed delinquent behaviour as the product of a failure in psychological development that could be addressed through the development of insight. Significant contributions were made by figures such as Melanie Klein, who developed a wide range of group and milieu therapies for offenders including group counselling, psychodrama, reality therapy, transactional analysis, and democratic therapeutic communities. These treatments were widely implemented across the UK and the USA, and some of their ideas and practices are still very much alive in Australian prisons today (Davey, Day, and Balfour 2014).

The 1980s saw the replacement of psychotherapy with more behavioural methods such as token economies, contingency management programmes, and "time out". These were widely used, although today there is more awareness of the problems that surface in implementing behavioural approaches in prison settings such as managing the many arising issues around fairness. Nonetheless, there are good grounds to implement standardised incentive models in prisons. The development of concept-based or hierarchical prison therapeutic communities for the treatment of substance use represents an example of how this might operate. The therapeutic communities set up at Marngoneet Correctional Centre in Victoria, Alexander Maconochie Centre in ACT, and the Compulsory Drug Treatment Centre in NSW are, in many ways, leading examples of this. Nonetheless, by far the most common approach used in Australian offender rehabilitation programmes is cognitive-behavioural therapy, which has been established as the most effective method of treatment currently available. This is mainly as a result of a meta-analysis of 58 treatment outcome studies published by Landenberger and Lipsey (2005). They reported an average recidivism rate of 30% for treated groups, compared with 40% for control groups, equating to a reduction in recidivism of 25% when cognitive-behavioural approaches are used. Such findings underpin the direction of correctional administrators, nationally and internationally, to integrate rehabilitation programmes into prisons.

Australian Prison Rehabilitation Programmes for Offenders

There has been significant investment in recent years by all Australian correctional administrations in developing the policy, staff training, monitoring, and evaluation processes required to deliver rehabilitation programmes to moderate and high-risk prisoners (Heseltine et al. 2011). Treatment programmes for violent, sexually violent, and substance-using offenders are now widely available across Australia, although these programmes do vary across the states and prison locations. These are briefly described below.

Violent Offender Treatment

Violent offender rehabilitation programmes aim to reduce the risk of reoffending in offenders who have a known history of aggressive and violent behaviour. Low and Day (2015) have noted that these programmes typically aim to promote a better understanding of violent offending and its consequences; identify and challenge cognitive distortions associated with violence; improve arousal management, emotional regulation, and coping; enhance perspective-taking, problem-solving, interpersonal, and conflict resolution skills; and develop individualised relapse prevention plans. Heseltine et al. (2010) also note the importance of education and role modelling of new prosocial behaviours to replace those which are antisocial and aggressive.

Three reasonably distinctive types of violent offender treatment have been described in the published literature (Polaschek and Collie 2004), anger management programmes, cognitive skills and cognitive self-change programmes, and multimodal or multifaceted programmes.

Anger management programmes were, until relatively recently, the most common violent offender treatment. Despite their proven efficacy when used in mental health settings (Beck and Fernandez 1998), evaluations of their effectiveness with offending populations have produced mixed results (Dowden, Blanchette, and Serin 1999; Heseltine et al. 2010; Howells et al. 2005).

Cognitive skills and cognitive self-change programmes typically focus more on changing violent offender cognition rather than angry emotion. These programmes aim to help offenders acquire new capacities for thinking about and solving problems, as well as helping them to recognise and change the thought patterns and processes that are conducive to violent crime (McGuire 2008; Polaschek and Collie 2004). Evaluations of these programmes have also

produced mixed outcomes, with several studies reporting post-programme reductions in recidivism (Landenberger and Lipsey 2005; Lipsey et al. 2007; McGuire et al. 2008), although these do not appear to be sustained over time (Cann et al. 2005; Falshaw et al. 2004). As with anger management programmes, cognitive skills programmes are probably unlikely, by themselves, to meet the needs of serious high-risk violent offenders who hold well-rehearsed, entrenched beliefs and attitudes about aggression and violence. They are also based on a relatively narrow approach to treatment which may be insufficient for those who present with multiple treatment needs (Polaschek and Collie 2004).

A third programme type—which is multimodal or multifaceted—is increasingly regarded as the treatment of choice for violent offenders. These programmes are designed to address a range of treatment needs, based on the assumption that many factors are involved in the causation and maintenance of violent behaviour, and that greater reductions in violence will be achieved by targeting a large number of psychological and behavioural factors such as social skills, cognition, anger management, and substance abuse (Polaschek 2006). Programmes of this type are typically more intensive than both anger management and cognitive skills programmes. They can involve over 300 h of face-to-face treatment, allowing for greater individualisation of therapeutic targets and more time to achieve these, including by post-treatment maintenance programmes. These programmes have been shown to achieve socially significant—although modest—reductions in violent reoffending. For example, an evaluation of a Canadian prison-based violence prevention programme showed that programme completers had lower rates of violent reoffending than both non-completers and an untreated comparison group, 8.5%, 24.5%, and 21.8%, respectively (Cortoni et al. 2006).

Sexual Offender Treatment

The treatment of sex offenders has undergone a variety of developments over the past 20 years, partly in response to accumulating empirical evidence about what is effective and what is not, and partly driven by the increasing numbers of high-risk offenders in involuntary treatment programmes, particularly in the USA. The treatment literature on sexual offenders is concerned with four distinct debates. The first debate revolves around the distinction between child molesters and rapists, with some commentators arguing for specialist programmes for these two groups (Polaschek and King 2002). The second debate focusses on the treatment of categorical deniers or

those sexual offenders who continue to maintain innocence despite being convicted of a sexual offence with specialist denier programmes that have been developed (Marshall et al. 2001). The third debate is concerned with programme effectiveness, with several meta-analyses reporting conflicting findings on whether treatment reduces recidivism (Mpofu et al. 2016; Schmucker and Losel 2015). Finally, some discuss interventions that address non-criminogenic human needs (Ward and Maruna 2007) which are sometimes offered to enhance programme effectiveness.

Over time, three specific treatment models have emerged and continue to guide practice. The first is Relapse Prevention, an approach that evolved in the 1980s, which was based on models developed for addictive behaviours, promoting the development of strategies to avoid and manage high-risk situations. Then appeared the Risk-Need-Responsivity approach (Andrews and Bonta 2010), recommending that interventions should (a) be delivered to those offenders of relatively higher risk, (b) only target criminogenic needs, and (c) be tailored to the individual characteristics of the offender in order to maximise treatment response. Finally, the Good Lives Model emerged in response to the perceived limitations of the Risk-Need-Responsivity model. These days, the Good Lives approach is more commonly presented as complementary, extending the assessment and treatment process in a way that is more sensitive to the values and characteristics of individual offenders.

Meagan Donaldson, a senior psychologist in custody-based sex offender programmes, recently described the programmes that are offered by Corrective Services NSW as part of evidence she gave at the Royal Commission into Institutional Responses to Child Sexual Abuse (2016). She noted that all of the custody-based treatment programmes are based on a cognitive-behavioural therapy model, with treatment provided in a group format, in a specific wing where psychologists, specially trained custodial staff, and service and programme officers work. This enables prisoners to practise their relationship skills, communication skills, and how they cope with conflict outside of the programme room. There is a Custody-Based Intensive Treatment programme, for moderate-high to high-risk offenders, and a CORE Moderate programme, for those who have been assessed as being at moderate risk of sexual offending. In addition, the Self-Regulation Programme for Sexual Offenders is a moderate-to-high intensity programme for men who have an intellectual disability or a cognitive impairment that might impact on their participation in one of the other programmes. Finally, in NSW and in other Australian jurisdictions, there is recognition of the specialist programme needs of sex offenders who categorically deny their offence and programmes have been developed specifically for this group of sex offenders.

Substance Abuse Treatment

Casey and Day (2014) have suggested that current approaches to treating substance misuse in prisoner populations can be broadly divided into four categories: harm reduction programmes, psycho-educational programmes, therapeutic programmes, and prison-based therapeutic communities. Harm reduction programmes seek to enhance awareness of high-risk behaviours such as overdose, blood-borne infection, and other disease transmissions, and aim to raise awareness of physiological effects of substance use including pharmacotherapy. Psycho-educational programmes seek to improve the individual's understanding and awareness of the link between substance misuse and offending and enhance motivation to enter more intensive programmes. Therapeutic programmes consider issues such as understanding substance use and offending, developing mechanisms to cope with cravings and withdrawal, developing alternative behaviours, managing emotions, enhancing problem-solving and communication, and developing relapse

The CDTCC is a dedicated drug treatment prison which was set up following the passing of specialist legislation in 2004. By law, the Centre is required to work towards four objectives:

- Provide a comprehensive program of compulsory treatment & rehabilitation under judicial supervision
- Treat drug dependency, eliminate drug use while in the program, and reduce likelihood of relapse on release
- Prevent and reduce crime in relation to drug dependency
- Promote reintegration into the community

The prison houses male prisoners, sentenced to 18mths-3yrs (+ parole period), who have two convictions in the past 5 years and long-term drug dependence with drug-related offending. Prisoners with a serious mental health condition, sexual or serious violent offences, firearms offences or drug trafficking are excluded, although a lack of motivation is not an exclusionary criteria.

Treatment is undertaken in three discrete stages, with each typically lasting for six months:

- Stage 1: Closed detention (70 beds)
- Stage 2: Semi-open detention where prisoners have access to community-based interventions (e.g., employment, adult education, vocational training) during the day, but return to the prison overnight.
- Stage 3: Housing in community accommodation approved by the Drug Court and with intensive supervision.

The initial findings of an evaluation are promising. Prisoners demonstrate positive change on a range of different medium term outcome measures, although comparisons between their recidivism rates and those who attend mainstream programs have yet to be published.

Fig. 55.1 The compulsory drug treatment correctional Centre (CDTCC)

prevention plans. In prison-based therapeutic communities—the most intensive form of programme—participants are separated from the prison culture and immersed in a dedicated therapeutic environment. A description of the latter type of programme, the Compulsory Drug Treatment Centre in NSW is outlined in Fig. 55.1 below (see Casey and Day 2013).

Conclusion

Australian prison-based rehabilitation has come a long way in recent years. The community can now reasonably expect that any person who is imprisoned for a serious crime and at significant risk of reoffending will attend an intensive rehabilitation programme. In all Australian states and territories, this is now a requirement for prisoners who wish to be considered eligible for early release on parole. There are still some obvious gaps in service delivery, with programmes for women prisoners being less well developed and not as commonly offered. Relatively little is known about the role that rehabilitation programmes have to play in reducing risk in prisoners who identify as Aboriginal or Torres Strait Islander or if there is a need for more culturally specific approaches (Day 2013). Also, prisoners who are remanded to custody pending trial typically receive very little support even though remand periods may stretch into months at a time.

There are a number of questions about the target groups for particular programmes including the development of specialist programmes for domestic and family violence offenders, for offenders who display both serious violent and sexually abusive behaviour, and for the new groups of offenders who commit non-contact offences involving sexually exploitative materials, for example, the distribution of child pornography. There is also increasing interest in how prison-based treatment programmes might integrate better with the wide range of social support and training initiatives that are available to support the reintegration of prisoners back into their families and communities after release.

However, it is important to note that although Australian rehabilitation programmes are now well established and professionally delivered, relatively little is known about their effectiveness. Very few local and methodologically rigorous outcome evaluations have been conducted, so that there is a continuing reliance on the international research literature to inform service development. This is an area that has received the attention of Australian correctional administrators, although progress has been slow. The change that has been evident in the past decade, however, suggests that prison-based

rehabilitation programmes will continue to develop and evidence will accumulate that further establishes the role that they have to play in protecting the community.

Note

1. NSW has the highest number of correctional facilities. Four jurisdictions have introduced private prisons, and most jurisdictions have facilities designed to house women and mentally ill prisoners.

References

ABS. 2015. *Prisoners in Australia 2015*. Cat. no. 4517.0. Canberra: ABS.

Andrews, Don, and James Bonta. 1995. *The Level of Service Inventory-Revised*. Toronto: Multi-Health Systems.

Andrews, Don, and James Bonta. 2010. *The Psychology of Criminal Conduct*. New Providence, NJ: LexisNexis.

Beck, Richard, and Ephrem Fernandez. 1998. Cognitive-Behavioral Therapy in the Treatment of Anger: A Meta-Analysis. *Cognitive Therapy and Research* 22: 63–74.

Cann, Jenny, Louise Falshaw, and Caroline Friendship. 2005. Understanding 'What Works': Accredited Cognitive Skills Programs for Young Offenders. *Youth Justice* 5: 165–179.

Casey, Sharon, and Andrew Day. 2013. Outcomes from Compulsory Treatment for Drug Using Offenders. Paper presented at Reintegration Puzzle Conference, August 21–23, in Aucklan.

Casey, Sharon, and Andrew Day. 2014. Prison Substance Misuse Programs and Offender Rehabilitation. *Psychology, Psychiatry and Law* 21: 360–369.

Chen, Keith M., and Jesse M. Shapiro. 2007. Do Harsher Prison Conditions Reduce Recidivism? A Discontinuity-Based Approach. *American Law and Economics Review* 9: 1–29.

Christofferson, Sarah. 2014. Prison-Based Employment Interventions: Effects on Recidivism. *Practice* 2 (1): 28–31.

Cortoni, Franca, Kevin Nunes, and Mark Latendresse. 2006. *An Examination of the Effectiveness of the Violence Prevention Program*. Ottawa: Correctional Services of Canada.

Davey, Linda, Andrew Day, and Michael Balfour. 2014. Performing Desistance: How Might Theories of Desistance from Crime Help Us to Understand the Possibilities of Prison Theatre? *International Journal of Offender Rehabilitation and Comparative Criminology* 59 (8): 798–809.

Davies, Jason. Forthcoming. An Examination of Individual Versus Group Treatment in Correctional Settings. In *The Handbook of Correctional Psychology*, eds. Devon Pollascheck, Andrew Day, and Clive Hollin. Chichester: Wiley.

Day, Andrew. 2013. Culturally Responsive CBT in Forensic Settings. In *Forensic CBT: A Practitioner's Guide*, eds. Raymond Tafrate, and Damon Mitchell, 377–390. Chichester: Wiley.

Day, Andrew, Ed Carson, Nadi Boni, and Gaynor Hobbs. 2014. The Management of Sex Offenders in the Community: From Policy to Practice. *Australian Journal of Social Issues* 49 (3): 249–264.

Dowden, Craig, Kelley Blanchette, and Ralph Serin. 1999. *Anger Management Programming for Federal Male Inmates: An Effective Intervention*. Ottawa: Correctional Service of Canada.

Falshaw, Louise, Caroline Friendship, Rosie Travers, and Francis Nugent. 2004. Searching for 'What Works': HM Prison Service Accredited Cognitive Skills Programs. *British Journal of Forensic Practice* 6 (2): 3–13.

Gordon, Heidi, Sally Kelty, and Roberta Julian. 2015. An Evaluation of the Level of Service/Case Management Inventory in an Australian Community Corrections Environment. *Psychiatry, Psychology and Law* 22: 247–258.

Hanson, Karl, and Kelley Morton-Bourgon. 2009. The Accuracy of Recidivism Risk Assessments for Sexual Offenders: A Meta-Analysis of 118 Prediction Studies. *Psychological Assessment* 21: 1–21.

Harper, David, Paul Mullen, and Bernadette McSherry. 2015. *Complex Adult Victim Sex Offender Management Review: Advice on the Legislative and Governance Models Under the Serious Sex Offenders (Detention and Supervision) Act 2009 (Vic)*. Melbourne: Government of Victoria.

Heseltine, Karen, Kevin Howells, and Andrew Day. 2010. Brief Anger Interventions with Offenders May Be Ineffective: A Replication and Extension. *Behaviour Research and Therapy* 48: 246–250.

Heseltine, Karen, Rick Sarre, and Andrew Day. 2011. *Prison-Based Correctional Rehabilitation: An Overview of Intensive Interventions for Moderate to High-Risk Offenders*. Canberra: AIC.

Hollin, Clive, and Emma Palmer (eds.). 2006. *Offending Behaviour Programs: Development, Application, and Controversies*. Chichester: Wiley.

Howells, Kevin, Andrew Day, Paul Williamson, Susan Bubner, Sue Jauncey, Ann Parker, and Karen Heseltine. 2005. Brief Anger Management Programs with Offenders: Outcomes and Predictors of Change. *Journal of Forensic Psychiatry and Psychology* 16: 296–311.

Landenberger, Nana, and Mark Lipsey. 2005. The Positive Effects of Cognitive-Behavioral Programs for Offenders: A Meta-Analysis of Factors Associated with Effective Treatment. *Journal of Experimental Criminology* 1: 451–476.

Lipsey, Mark, Nana Landenberger, and Sandra Wilson. 2007. Effects of Cognitive-Behavioral Programs for Criminal Offenders. *Campbell Systematic Reviews* 6: 1–27.

Low, Kyra, and Andrew Day. 2015. Toward a Clinically Meaningful Taxonomy of Violent Offenders: The Role of Anger and Thinking Styles. *Journal of Interpersonal Violence*. doi:10.1177/0886260515586365.

Lowenkamp, Christopher, Edward Latessa, and Alexander Holsinger. 2006. The Risk Principle in Action: What Have We Learned from 13,676 Offenders and 97 Correctional Programs? *Crime and Delinquency* 52 (1): 77–93.

Marshall, William, David Thornton, Liam Marshall, Yolanda Fernandez, and Ruth Mann. 2001. Treatment of Sexual Offenders Who Are in Categorical Denial: A Pilot Project. *Sexual Abuse A Journal of Research and Treatment* 13 (3): 205–215.

McGuire, James. 2008. A Review of Effective Interventions for Reducing Aggression and Violence. *Biological Sciences* 363: 2577–2597.

McGuire, James, Charlotte Bilby, Clive Hollin RuthHatcher, Juliet Hounsome, and Emma Palmer. 2008. Evaluation of Structured Cognitive-Behavioural Treatment Programs in Reducing Criminal Recidivism. *Journal of Experimental Criminology* 4: 21–40.

Morris, Norval. 2002. *Maconochie's Gentlemen: The Story of Norfolk Island and the Roots of Modern Prison Reform*. Oxford: Oxford University Press.

Mpofu, Elias, James Athanasou, Christine Rafe, and Scott Belshaw. 2016. Cognitive-Behavioral Therapy Efficacy for Reducing Recidivism Rates of Moderate- and High-Risk Sexual Offenders: A Scoping Systematic Literature Review. *International Journal of Offender Therapy and Comparative Criminology*. doi:10.1177/0306624X16644501.

Newton, Danielle, Andrew Day, Giles Margaret, Wodak Joanne, Joe Graffam, and Eileen Baldry. 2016. The Impact of Vocational Education and Training Programs on Recidivism: A Systematic Review of Current Experimental Evidence. *International Journal of Offender Therapy and Comparative Criminology*. doi:10.1177/0306624X16645083.

Olver, Mark, and Stephen Wong. Forthcoming. "Offender Risk and Need Assessment: Theory, Research, and Applications." In *The Handbook of Correctional Psychology*, eds. Devon Pollaschek, Anrew Day, and Clive Hollin. Chichester: Wiley.

Polaschek, Devon. 2006. Violent Offender Programs: Concept, Theory, and Practice. In *Offending Behaviour Programs: Development, Application, and Controversies*, eds. Clive Hollin, and Emma Palmer, 113–154. Chichester: Wiley.

Polaschek, Devon, and Rachael Collie. 2004. Rehabilitating Serious Violent Adult Offenders: An Empirical and Theoretical Stocktake. *Psychology, Crime and Law* 10: 321–334.

Polaschek, Devon, and Lucy King. 2002. Rehabilitating Rapists: Reconsidering the Issues. *Australian Psychologist* 37: 215–221.

Royal Commission into Institutional Responses to Child Sexual Abuse. 2016. *Public Hearing Criminal Justice Roundtable: Day 2 – Adult Sex Offender Treatment Programs*. Sydney: Royal Commission into Institutional Responses to Child Sexual Abuse.

Schmucker, Martin, and Friedrich Losel. 2015. Evaluation of the Effects of Sexual Offender Treatment: A Systematic Review and Meta-Analysis. *Journal of Experimental Criminology* 11 (4): 597–630.

Smith, Russell, Penny Jorna, John Sweeny, and Georgina Fuller. 2014. *Counting the Cost of Crime in Australia: A 2011 Estimate*. Canberra: AIC.

Tafrate, Raymond, and Damon Mitchell. 2014. *Forensic CBT: A Handbook for Clinical Practice*. Chichester: Wiley.

Ward, Tony, and Shadd Maruna. 2007. *Rehabilitation*. London: Routledge.

Wong, Stephen, and Audrey Gordon. 2006. The Validity and Reliability of the Violence Risk Scale: A Treatment-Friendly Violence Risk Assessment Tool. *Psychology, Public Policy, and Law* 12: 279–309.

Author Biographies

Karen Heseltine is a Forensic and Clinical Psychologist in South Australia. Before commencing full-time private practice, she was employed as Researcher at the University of South Australia, with a specific interest in offender rehabilitation in Australia and internationally.

Andrew Day is a Professor in the Australian Aboriginal and Torres Strait Islander Centre at James Cook University. Before joining academia, he was employed as a clinical psychologist in South Australia and the UK, having gained his Doctorate in Clinical Psychology from the University of Birmingham and his Masters in Applied Criminological Psychology from the University of London.

56

Criminal Profiling

Geoff Dean and Sarah Yule

The term criminal profiling (CP) is much abused and poorly understood by the general public. In the popular imagination, thanks to megahit movies such as *Silence of the Lambs* and TV series such as *Millennium*, *Profiler*, *Cracker,* and *Elementary*, a profiler is inevitably portrayed as possessing some sort of magical or psychic ability to read the clues in catching criminals and bringing them to justice. As is often the case, reality is far removed from such myth-creating fictional accounts. However, Hollywood aside, CP in the law enforcement and academic fields is still a term with a maligned history.

In this chapter, we trace the practice-based origins of CP in the FBI and its uptake by law enforcement in Australia. We explain the difference between the method of CP and its end product, the criminal profile. This also serves to clarify some of the most common definitional anomalies. We then examine the research literature published *about* CP, which splits into two distinct camps of knowledge. While inductive empiricists are concerned with the validity of CP, abductive clinicians focus on the accuracy of CP. We argue that a failure to acknowledge the different epistemological groundings of these two knowledge camps leads to too many fruitless debates. To conclude, we consider the future of CP in Australia.

G. Dean (✉)
Griffith Criminology Institute, Griffith University, Queensland, Australia
e-mail: geoff.dean@griffith.edu.au

S. Yule
Criminal Psychology Unit, New South Wales Police Force, Sydney, Australia

© The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2_56

The "Real" Practice of Profiling

CP is a generic term for any form of behavioural analysis in the investigative context and is often described in the literature using similar but slightly different terms such as criminal personality profiling, behavioural profiling, psychological profiling, or behavioural crime analysis. This use of several terms for CP causes confusion because a criminal profile is, in fact, just one of many behavioural techniques that can be applied. In part to address this confusion, the FBI reengineered their original CP model to become known as Criminal Investigative Analysis (CIA).

CP came into prominence in the 1970s through the pioneering work of FBI agents with their well-known organised/disorganised typology applied to serial killers. Initially, CP was facilitated through the Behavioral Science Unit at the FBI Academy in Quantico, Virginia, which later developed into Behavioral Analysis Units with various crime specialisations. Other international approaches dominating the literature include the statistical approach emerging primarily out of the UK and termed Investigative Psychology (Canter 2004), and clinical or personality psychology perspectives largely associated with individual psychiatrist practitioners (Copson et al. 1997).

Analysing behaviours that relate to personality features, interpersonal interactions, criminality, and potential mental health considerations undoubtedly relate to psychological theories. From a forensic psychology practitioner perspective, broad expertise for investigations is based upon empirical and clinical knowledge of offender behaviours, supported by relevant literature and offender data. It is primarily applied to more behaviourally complex major crimes such as sexual assaults and homicides and utilises extensive clinical experience of offender personality assessment, mental health, risk assessment, and treatment perspectives. The empirical basis underlying this approach necessarily combines with the need for case-by-case qualitative interpretation of each crime's behavioural features, based on each unique victim–offender interaction (Yule 2008, 2014), which can be seen to satisfy or draw parallels with epistemological perspectives of abductive reasoning combined with narrative, context-driven inferences (Verde and Nurra 2010).

Given this perspective, an updated formulation of the original FBI definition of the investigative scope and applicability of CP is used in this chapter as the reference point from which to evaluate its later expanded variant forms and usage in the research literature.

This updating of the original definition (Douglas et al. 1986) seeks to make explicit some of the more salient factors implied or implicit in the

earlier understandings of the applicable limits of CP that have often been overlooked or not stated by researchers when critiquing CP.

Not all crimes are suitable for profiling. Some early authors focussed these techniques on cases "where available evidence indicates possible mental deficiency or aberration on the part of the perpetrator" (Ault and Reese 1980, 25). In some cases, these behaviours may reflect sexual deviance, mental illness, or other psychopathology, but many cases—which can still benefit from CP—do not. For example, terrorism provides challenges for profiling since most offenders lack significant psychological dysfunctionality to "profile" how they are different from a non-terrorist (Dean 2007a).

Crimes where there are minimal behaviours, or very common behaviours for that crime type, such as robbery, are often unsuitable for profiling because the basic nature of these criminal acts would not yield probable characteristics that would sufficiently distinguish one offender from another. Other behavioural techniques can, however, be useful for these crimes such as behavioural linkage analysis (Woodhams and Toye 2007). The crimes suitable for profiles specifically should, therefore, be reasonably complex to provide sufficient behavioural evidence for analysis.

Moreover, not all crime features directly reflect the offender's original intent, as victim reactions and situational variables impact upon offender behaviours (see Hazelwood and Burgess 2009; Salfati and Bateman 2005; Yule 2014). For example, "staging" (Douglas and Munn 1992)—that is offenders deliberately altering aspects of the crime to distort and misdirect an investigation—is a contextual variable that might warrant consideration.

Relating to homicides, FBI profilers later acknowledged their original organised/disorganised dichotomous typology was more of a continuum, allowing for "mixed" cases that they attributed to "unanticipated events" that often arise in the commission of a crime (Douglas et al. 2006).

The rapist typologies, which these FBI profilers developed, provided a different framework for the assessment of sexually assaultive behaviours, one that was based on previous literature and their own qualitative case research but similarly acknowledged the variances of human behaviour and the likely mixed features in most cases (Hazelwood 2009).

Hence, in the light of these comments, a reformulated definition of CP is offered here: CP is a generic term used to describe an abductive process of inferring the likely personality, behavioural, and socio-demographic characteristics of an unknown offender. This profile is based on a crime scene analysis of evaluating minute details of the crime, the victim, and other available evidence (forensic, situational, contextual, and cultural factors) and of any other crimes presumed to be linked to the offender, *where the*

behavioural complexity of the crime is sufficient for interpretation. The goal is to assist with generating or prioritising a suspect pool of likely offenders and to progress an investigation in a reasoned and empirically grounded manner in the absence of other compelling leads. The resulting profile is not and should not be used as evidence in court. The italicised clause in this reformulated definition highlights the fact that CP is only useful where the *behavioural complexity* of the crime enables a profiler to draw valid inferences which have the potential to "separate out" likely offenders from a suspect pool. This clause should be included in any variant definition of CP.

All, too often, this complexity requirement is not included in current definitions of what the CP process entails. For example, Snook et al. (2007, 437) define CP as "the practice of inferring personality, behavioral, and demographic characteristics of criminals based on crime scene evidence". Moreover, a common practice in the "offender homology" camp is comparing quite disparate crime types using readily obtainable variables such as age, socio-demographics, and prior criminal convictions for evidence of homology; that is, offenders exhibiting similar behaviour possess similar characteristics. Absent homology is then used to argue that *all* typology-based profiling approaches are invalid and inherently unreliable. However, the homology approach compares apples with oranges. "How valid are findings likely to be that are derived from a study examining homology among [robbers, which are then compared] … to the mechanisms and features said to characterize individuals who perpetrate serial sadistic sexual murders?" (Kocsis and Palermo 2015, 323).

It is worth reminding the reader at this juncture that theory is not reality. A theory, no matter how well formed or statistically sophisticated, seeks to map out the various parameters and contours of probabilities. Theories are representations of reality *as we know it* since the very act of observing reality also influences it.

History of CP in the Australian Context

The history of CP in Australia has taken a similar trajectory to the dominant international approaches, including aspects of the FBI's CIA. Two Australian police officers undertook the original FBI Fellowship that was discontinued in the early 1990s, after which graduates of this programme developed the independent International Criminal Investigative Analysis Fellowship (ICIAF) to train police participants (Davis and Bennett 2006). Some non-police practitioners in Australia have also trained in this model. However, the ICIAF

is reportedly not the only provider of CIA training (Devery 2010). CIA forms a significant component of the history of profiling in Australia in several jurisdictions that have pursued this avenue in the past. However, the noted differing jurisdictional needs have been relevant to some agencies progressing other models. Public information indicates that Queensland Police maintains use of the crime behaviours database Violent Crime Linkage Analysis System (ViCLAS), which assists in the analytical support and crime linkage that their behavioural specialists provide. Other states such as Victoria and NSW have continued with a significant focus on psychological expertise in addition to being trained in international approaches (Davis and Bennett 2006; Yule 2008).

It is difficult to ascertain exact numbers of current practitioners involved in variants of CP across Australia, especially as some may not be involved exclusively in these practices. Dedicated positions within law enforcement organisations are few in number. Most professionals in the field work for external providers. They are specifically trained police analysts, forensic psychologists, forensic psychiatrists, and forensic criminologists.

In practice, the offender typologies have contributed the most relevant components of the FBI model of CIA for the Australian context (Davis and Bennett 2006; Yule 2014), which supports jurisdictions focussing research on their own crime behaviour patterns to provide the necessary empirical basis for expert behavioural opinions assisting investigations. This has more practical benefit to investigations than focussing—as a substantial proportion of the CP literature has to date—on trying to fit one model into all jurisdictions in seemingly competitive debates that fail to recognise the differing policing needs of each jurisdiction (Yule 2014).

Figure 56.1 represents a timeline of various Australian researchers[1] who have either undertaken empirical research studies or written about various related aspects of the umbrella concept of CP. This timeline illustrates the *most prominent* researchers surveyed via academic databases. It is not intended to be exhaustive of all academic work on CP by Australian researchers or practitioners.

As can be seen, Australian research interest in CP started to develop in the mid- to late 1990s with the first academic works[2] being primarily those of Wilson (see Pinto and Wilson 1990; Wilson and Soothill 1996) and Kocsis (see Wilson, Lincoln, and Koscis 1997). Only a very small number of Australian researchers write on various aspects of CP. In fact, only Kocsis, Petherick, Dean, and Wilson have produced three or more published works on CP as first authors, while Irwin, Lincoln, and Cooksey have produced three or more published works as second or third authors.

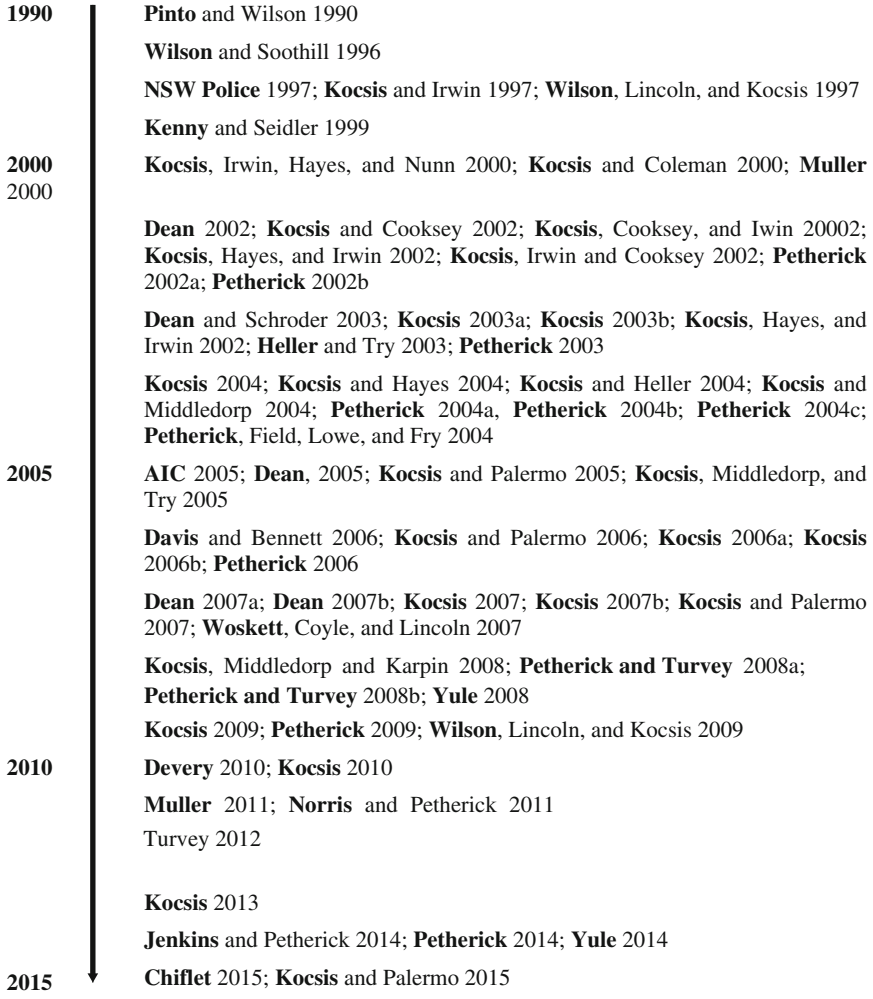


Fig. 56.1 Historical timeline of 'criminal profiling' researchers in Australia

Furthermore, Kocsis is the only one who has engaged in a series of ongoing quasi-experimental research studies using original datasets focussed on seeking to determine the validity and accuracy of profiling, as well as the skill-base of self-designated profilers. Most others have produced literature reviews or commentary on aspects of CP. Figure 56.1 shows that Kocsis has gone on to become the most prolific Australian CP researcher.

Petherick, in particular, has focussed almost exclusively on one offshoot model of CP, namely Behavioural Evidence Analysis (BEA) as developed by Turvey (2012).

The extent of CP literature does not necessarily relate to findings of practical relevance for practitioners or criminal investigations. Dean is the only Australian researcher who has focussed on developing an Investigative Knowledge Application using a multi-model design—the Cross+Check system—that incorporates different CP approaches along with broader information drawn from *police or security* including crime scene data, and from *descriptive and diagnostic research* provided by forensics, behavioural psychology, sociocultural studies, and empirical data.

Competing Camps of Knowledge

Over the last two decades, the CP field has seen the emergence of two distinct, yet apparently conflicting bodies of research knowledge about the utility of CP. One has come to be known as "offender homology research" and the other as "profiler accuracy research" (Kocsis and Palermo 2015). These competing camps of thought—while primarily emanating from North America and the UK—are also mirrored in the Australian context. Each camp has its adherents, some with manifest "political party" zealotry. As a result, the CP field is fragmented along party lines. Heated debates on key issues are often presented as polemic polar opposites such as validity versus accuracy[3]; homology assumption versus empirical evidence[4]; idiographic versus nomothetic methods[5]; inductive versus deductive approaches[6]; clinical versus statistical orientations[7]; behavioural consistency versus behavioural coherence[8]; "cowboys" versus certified practitioners[9]; and art versus science.[10] The topic most hotly debated is the issue of validity versus accuracy. All of these disputed issues are extensively covered in the extant literature, particularly the ever-vexing question of practice standards for those who claim the label criminal profiler. Given the limitations of space, these contested issues are not covered in detail[11] in this review, although some will be briefly touched on throughout the chapter.

Definitional Anomalies

One of the major difficulties with trying to reconcile the research "evidence bases" amassed by these two opposing schools of thought revolves around definitional confusion. For instance, a "criminal profile" is viewed as a discrete stand-alone method based solely on typology-driven trait data, while "criminal profiling" is considered a broad encompassing umbrella term for a variety

of behavioural methods and methodologies. In the investigative context, a criminal profile is largely accepted as the generation of the likely characteristics of an unknown offender from analysis of the behaviours in the crime (Hazelwood and Douglas 1980). Literature debating the merits of CP may, therefore, be generalising limitations or perceived "failings" of a criminal profile to other, or all, behavioural analysis techniques when "criminal profiling" is used as an umbrella term (Yule 2014).

This definitional quagmire could also be viewed as an outcome of what marketing companies call "branding". Marketers make minor changes to a product, so they can create mostly artificial distinctions to justify calling the original product by a different name. The history of CP includes some copycat variants with different labels claiming more scientific rigour, or being more empirical, evidence-based, or forensically driven.

The reader is encouraged, when researching CP, to play the game of "spot the difference in terminology" before asking whether these models differ enough to make a real difference or if they are essentially the same thing dressed up with different labels and a whole lot of statistical techniques or forensic sounding words to "differentiate" them from the original FBI conception of CP.

Epistemological Starting Points

It is suggested that much of the real differences in CP debates can be traced back to the epistemological roots from which critiques are made. When different starting points of knowledge are used for discussion without acknowledging this essential difference, the debates often degenerate into debacles where the "privileging" of one type of epistemological knowledge over another takes place. For instance, as Verde and Nurra (2010, 834) point out:

> In this perspective (Aristotelian-Galilean scientific method, as developed by Bacon), those models that make use of the inductive statistical method and are based on the availability of a control group are defined as scientific … From this point of view, clinical methods are relegated to the limbo of the unscientific. In our opinion, however, this is a grave mistake—in the first place, because the FBI's "artistic" and clinical methods are in reality also based on empirical knowledge (albeit of a particular nature), and second because even scientific methods are based on generalizations that can only be defined as clinical or rather abductive …

If experiential knowledge is the epistemological starting point for CP, as reflected in clinical judgements and investigative expertise, then a different form of knowledge is being called on to interpret and make sense of crime scene data, which is no less valid or unscientific than statistical inferences. For example, CP can utilise the tacit experiential knowledge in the heads of experienced police investigators, and then, the "Cross+Check" (C+C) system—a low-tech, computer-based, human-reasoning knowledge management system for conducting investigations designed by Dean (see Dean 2007b; Dean and Schroder 2003)—is such a case in point. The purpose of the C+C system is to systematically generate logically derived inferences for analysis and for prioritising investigative leads and strategies in order to find evidence and manage the overall investigation. To achieve this aim, the C+C system utilises a variety of different sources such as police or security, and descriptive and diagnostic research. Then, the tacit knowledge expertise of an individual law enforcement officer or security personnel is used to infer and reason through investigative leads and strategies to assist in solving a case. The C+C system is, as an Experiential Knowledge Reasoning System (EKRS), applicable to reactive and proactive investigations and can be used successfully with single as well as serial crimes.

From an epistemological perspective, the best that a criminal profile can deliver is a *plausible* and *coherent* account of what *may* have taken place at a crime scene and provide a description of an offender who *may* have particular characteristics and features which make him or her more *likely* to be the *true* culprit of the crime. In essence, a properly produced profile should be valid insofar as it conforms to logically deduced conclusions in relation to the stated premises used as the basis to construct the said profile. It is an entirely different matter to what extent the profile is a true or accurate representation of the actual offender. Truth or accuracy in profiling can only be established after an unknown offender is caught, prosecuted, and found guilty. Up to then, a profile can only be *more or less* valid.

So, whatever epistemological starting point is chosen to either do or critique CP—be it statistical inferences, experiential inferences, or a combination of both—how to operationalise CP is where theory and reality collide.

The Future of CP in Australia

Prescriptive approaches to CP—be they the FBI version, Investigative Psychology (IP), or Behavioral Evidence Analysis (BEA)—will not, in and of themselves, provide sufficient analytical dexterity to account for behavioural

and cognitive variability across offenders, reflected in crime variables, as well as contextual factors associated with each individual victim and situation. An integrating framework—like the C+C system developed by Dean (2007b)—can complement and stand alongside sound individualised case assessment by appropriately qualified experts.

For CP to move beyond a fragmented field of competitive brands to a mature, evidence-based practice it will need to be modelled on or replicate something like the Structured Professional Judgement (SPJ) framework, which is used in traditional forensic psychology applications. An SPJ approach enhances the reliability of purely clinical observations (Yule 2008).

SPJ is utilised in offender recidivism risk assessment, for example, where actuarial measures provide an empirical foundation to support assessed clinical factors and situationally dependent variables of each individual case more reliably than unstructured clinical opinion alone (Hanson and Morton-Bourgon 2009; Hart and Boer 2009; Rettenberger and Hucker 2011). This methodological framework ensures that psychologists adequately document the evidence, data, and empirical literature that contribute to each conclusion or opinion. It also provides guidelines for ethical professional practice and clear parameters for appropriate services.

Australian practitioners and researchers should have a vested interest in achieving such a practice priority of ensuring an empirically based approach underlies the professional advice they give to investigative teams. For instance, Yule (2014) has produced Australian research examining behavioural patterns, particularly in sexual offences. This research demonstrates the benefits of incorporating components of multiple international contributions within a psychological perspective appropriate for this jurisdiction. This includes, to a certain extent, the data-driven empirical perspective from the UK model and the offender-typologies approach from the US model.

Conclusion

Is CP art or science? The impact of situational variables warrants the clinical component that accompanies empirically based reasoning in SPJ methodologies but human behaviour cannot be completely prescriptive. The important point to take heed of from this state-of-the-art review is that the CP literature's obsession with competing schools of thought misses opportunities to advance knowledge in this field. As is the case with most two-sided debates, there are aspects of validity and relevance on both sides, so that rarely either

one is right. Hence, advancing knowledge lies in reconciling differences, where possible, in pursuit of a more integrative framework for CP practice.

Some disputes primarily serve academic career advancement instead of advancing knowledge for police practitioners who try to identify the telltale signs of psychologically dysfunctional offenders. If academic and practitioner goals align to enhance CP practice, the field can make more substantial and meaningful contributions to criminal investigations.

Finally, we are mindful of a quote attributed to Albert Einstein that "Not everything that counts can be counted, and not everything that can be counted counts". We postulate a CP research maxim along similar lines; that *not everything that is meaningful can be measured at a crime scene.* This does not imply one should not try to quantify as much as possible—be it in form of experiential knowledge of seasoned police officers or data sets of academic researchers—but rather to acknowledge that *certainty* is rarely possible where the inner working of a human mind is concerned.

It would be a wise path to follow the range of possible quantification; to measure what can be measured with an accepted degree of statistical significant certainty; to measure quantifiable uncertainty within known boundaries or base rates; and to acknowledge the unquantifiable uncertainties of life where we can never really know the unknowable by expressing them in terms of probabilities. Figuring out where the divergent CP practices fit on this scale is where art (experience) and science (evidence) meet *and* divide, for better or worse.

Notes

1. Given the limitations of space for this chapter, only the major works of the key researchers and authors in Fig. 56.1 will be noted in the reference list. If a reader wishes to have the full bibliographic details for a particular researcher/author, then please email the first author of this chapter to obtain a complete list of referenced works.
2. Note: On the timeline the first author is in **bold** type to allow easy of tracking of their influence over time.
3. Kocsis (2006b) provides original research data; Snook et al. (2007) reinterpret Kocsis' data; Kocsis et al. (2008) publish a rebuttal to the reinterpretation; Snook et al. (2010) rejoin; Koscis (2010) reply.
4. In chronological order of debate: Alison et al. (2002), Kocsis (2006a), Turvey (2012), Chifflet (2015); Kocsis and Palermo (2015).
5. See Petherick and Turvey (2008a), Muller (2011), and Chifflet (2015).

6. See Muller (2000), Petherick (2002), Kocsis and Palermo (2006), Verde and Nurra (2010).
7. Muller (2000); Snook et al. (2008); Dern et al. (2009) replying to the latter; and Snook et al. (2009) in response.
8. See Verde and Nurra (2010) and Chifflet (2015).
9. In chronological order of debate: Baeza et al. (2000); Davis and Bennett (2006); Snook et al. (2007); Woskett et al. (2007); Yule (2008)
10. See Muller (2000); Snook et al. (2007); Devery (2010); Verde and Nurra (2010).
11. The reader can follow up on the nuances of these contested issues by consulting the works noted in the list to make up their own mind on the merits of the arguments put forward.

References

AIC. 2005. *The Use of Profiling in Bushfire Arson*. Canberra: AIC.

Alison, Laurence J., Craig Bennell, Annette Mokros, and Desmond Ormerod. 2002. The Personality Paradox in Offender Profiling: A Theoretical Review of the Processes Involved in Deriving Background Characteristics from Crime Scene Actions. *Psychology, Public Policy, and Law* 8: 115–153.

Ault, Richard, and James T. Reese. 1980. A Psychological Assessment of Crime-Profiling. *FBI Law Enforcement Bulletin* 49 (3): 22–25.

Baeza, James, William J. Chisum, Timothy M. Chamberlin, Michael McGrath, and Brett Turvey. 2000. Academy of Behavioral Profiling: Criminal Profiling Guidelines. *Journal of Behavioral Profiling* 1 (1): 1–7.

Canter, David. 2004. Offender Profiling and Investigative Psychology. *Journal of Investigative Psychology and Offender Profiling* 1 (1): 1–15.

Chifflet, Pascale. 2015. Questioning the Validity of Criminal Profiling: An Evidence-Based Approach. *Australian and New Zealand Journal of Criminology* 48 (2): 238–255.

Copson, Gordon, Richard Badcock, James Boon, and Paul Britton. 1997. Editorial: Articulating a Systematic Approach to Clinical Crime Profiling. *Criminal Behaviour and Mental Health* 7: 13–17.

Davis, Michael, and Deb Bennett. 2006. Criminal Investigative Analysis in the Australian Context. *InPsych* October Issue. Art. 2.

Dean, Geoff. 2002. Investigative Thinking. In *Criminal Profiling*, ed. Laurent Montet, 64–69. Paris: PUF.

Dean, Geoff. 2005. The 'Cross+Check' System: Integrating Profiling Approaches for Police and Security Investigations. *Journal of Police and Criminal Psychology* 20 (2): 20–43.

Dean, Geoff. 2007a. Offender Profiling in a Terrorism Context. In *Criminal Profiling: International Theory, Practice and Research*, ed. Richard Kocsis, 169–188. Totowa, NJ: Humana Press.

Dean, Geoff. 2007b. 'Cross+Check' System: Experiential Knowledge Reasoning Application. In *Knowledge Management in Policing and Law Enforcement: Foundations, Structures, Applications*, eds. Geoff Dean, and Petter Gottschalk, 129–163. Oxford: Oxford University Press.

Dean, Geoff, and Detlef Schroder. 2003. 'Cross+Check' als Alternatives Model für die Analyse von Kriminalfällen. *Polizei Heute* 32 (2): 47–49.

Dern, Harald, Christ Dern, Alexander Horn, and Ursula Horn. 2009. The Fire Behind the Smoke: A Reply to Snook and Colleagues. *Criminal Justice and Behavior* 36: 1085–1090.

Devery, Christopher. 2010. Criminal Profiling and Criminal Investigation. *Journal of Contemporary Criminal Justice* 26 (4): 393–409.

Douglas, James E., Ann W. Burgess, Andrew G. Burgess, and Robert K. Ressler. 2006. *Crime Classification Manual*. London: Simon & Schuster.

Douglas, James E., and Chris Munn. 1992. Violent Crime Analysis: Modus Operandi, Signature and Staging. *FBI Law Enforcement Bulletin* 61 (2): 1–10.

Douglas, James E., Robert K. Ressler, Ann W. Burgess, and Charles R. Hartman. 1986. Criminal Profiling from Crime Scene Analysis. *Behavioral Sciences and the Law* 4: 401–421.

Hanson, Karl R., and Kelly E. Morton-Bourgon. 2009. The Accuracy of Recidivism Risk Assessments for Sexual Offenders: A Meta-Analysis of 118 Prediction Studies. *Psychological Assessment* 21 (1): 1–21.

Hart, Stephen, and Douglas Boer. 2009. Structured Professional Judgement Guidelines for Sexual Violence Risk Assessment: The Sexual Violence Risk-20 (SVR-20) and Risk for Sexual Violence Protocol (RSVP). In *Handbook of Violence Risk Assessment*, eds. Randy K. Otto, and Kevin S. Douglas, 269–294. Oxford: Routledge.

Hazelwood, Robert R. 2009. Analyzing the Rape and Profiling the Offender. In *Practical Aspects of Rape Investigation: A Multidisciplinary Approach*, eds. Robert R. Hazelwood, and Ann W. Burgess, 97–122. Boca Raton, FL: CRC Press.

Hazelwood, Robert R., and Ann W. Burgess. 2009. *Practical Aspects of Rape Investigation: A Multidisciplinary Approach*. Boca Raton, FL: CRC Press.

Hazelwood, Robert R., and James E. Douglas. 1980. The Lust Murderer. *FBI Law Enforcement Bulletin* (April Issue): 11–15.

Jenkins, Andrew, and Wayne A. Petherick. 2014. Serial Rape. In *Profiling and Serial Crime: Theoretical and Practical Issues*, ed. Wayne A. Petherick, 319–340. Boston, MA: Andersen Press.

Kenny, James, and Paul Seidler. 1999. *Profiling Australian Juvenile Sex Offenders: Offenders and Offence Characteristics*. Sydney: NSW Department of Juvenile Justice.

Kocsis, Richard N. 2006. Validities and Abilities in Criminal Profiling: The Dilemma for David Canter's Investigative Psychology. *International Journal of Offender Therapy and Comparative Criminology* 50: 458–477.

Kocsis, Richard N. 2010. Criminal Profiling Works and Everyone Agrees. *Journal of Forensic Psychology Practice* 10: 224–237.

Kocsis, Richard N. 2013. The Criminal Profiling Reality: What is Actually behind the Smoke and Mirrors? *Journal of Forensic Psychology Practice* 13: 79–91.

Kocsis, Richard N., and Andrew F. Hayes. 2004. Believing is Seeing? Investigating the Perceived Accuracy of Criminal Psychological Profiles. *International Journal of Offender Therapy and Comparative Criminology* 48 (2): 149–160.

Kocsis, Richard N., and George Z. Heller. 2004. Believing is Seeing II: Beliefs and Perceptions of Criminal Psychological Profiles. *International Journal of Offender Therapy and Comparative Criminology* 48 (3): 313–329.

Kocsis, Richard N., and James T. Middledorp. 2004. Believing is Seeing III: Perceptions of Content in Criminal Psychological Profiles. *International Journal of Offender Therapy and Comparative Criminology* 48 (4): 477–494.

Kocsis, Richard N., James T. Middledorp, and Anthony Karpin. 2008. Taking Stock of Accuracy in Criminal Profiling: The Theoretical Quandary for Investigative Psychology. *Journal of Forensic Psychology Practice* 8 (3): 244–261.

Kocsis, Richard N., and George B. Palermo. 2005. Ten Major Problems with Criminal Profiling. *American Journal of Forensic Psychiatry* 26 (2): 1–26.

Kocsis, Richard N., and George B. Palermo. 2006. Contemporary Problems in Criminal Profiling. In *Criminal Profiling: International Theory, Research and Practice*, ed. Richard N. Kocsis, 327–345. Totowa, NJ: Humana Press.

Kocsis, Richard N., and George B. Palermo. 2015. Disentangling Criminal Profiling: Accuracy, Homology, and the Myth of Trait-Based Profiling. *International Journal of Offender Therapy and Comparative Criminology* 59 (3): 313–332.

Muller, Damon A. 2000. Criminal Profiling: Real Science or Just Wishful Thinking? *Homicide Studies* 4: 234–264.

Muller, Damon A. 2011. Qualitative Approaches to Criminal Profiling as Ways of Reducing Uncertainty in Criminal Investigations. *Policing* 5: 33–40.

Norris, George, and Wayne A. Petherick. 2010. Criminal Profiling in the Courtroom: Behavioural Advice or Bad Character Evidence? *Cambrian Law Review* 41: 39–54.

Police, N.S.W. 1997. An Introduction to Criminal Profiling. *Policing Issues and Practice Journal* 5 (4): 31–35.

Palermo, George B., and Richard N. Kocsis. 2005. *Offender Profiling: An Introduction to the Sociopsychological Analysis of Violent Crime*. Springfield, IL: Charles C. Thomas.

Petherick, Wayne A. 2002. The Fallacy of Accuracy in Criminal Profiling. *Journal of Behavioural Profiling* 1 (3): 109–122.

Petherick, Wayne A. 2003. Comparing Applied Profiling Methods: What's in a Name? *Journal of Law and Social Challenges* 5: 173–188.

Petherick, Wayne A., and Brett E. Turvey. 2008a. Criminal Profiling, the Scientific Method and Logic. In *Criminal Profiling: An Introduction to Behavioural Evidence Analysis*, ed. Brett E. Turvey, 43–74. Boston, MA: Academic Press.

Petherick, Wayne A., and Brett E. Turvey. 2008b. Behavioural Evidence Analysis: An Ideo-Deductive Method of Criminal Profiling. In *Criminal Profiling: An Introduction to Behavioural Evidence Analysis*, ed. Brett E. Turvey, 133–153. Boston, MA: Academic Press.

Pinto, Susan, and Paul Wilson. 1990. *Serial Murder*. Canberra: AIC.

Rettenberger, Martin, and Stephen Hucker. 2011. Structured Professional Guidelines: International Applications. In *International Perspectives on the Assessment and Treatment of Sexual Offenders: Theory, Practice and Research*, eds. Douglas P. Boer, Reinhard Eher, Leam A. Craig, Michael H. Miner, and Friedemann Pfafflin, 85–110. Chichester: Wiley.

Salfati, Gabrielle C., and Alicia L. Bateman. 2005. Serial Homicide: An Investigation of Behavioural Consistency. *Journal of Investigative Psychology and Offender Profiling* 2 (2): 121–144.

Snook, Brent, Richard M. Cullen, Craig Bennell, Paul J. Taylor, and Paul Gendreau. 2008. The Criminal Profiling Illusion: What's behind the Smoke and Mirrors? *Criminal Justice and Behaviour* 35 (10): 1257–1276.

Snook, Brent, Joseph Eastwood, Paul Gendreau, and Craig Bennell. 2010. The Importance of Knowledge Cumulation and the Search for Hidden Agendas: A Reply to Kocsis, Middledorp and Karpin, 2008. *Journal of Forensic Psychology Practice* 10 (3): 214–223.

Snook, Brent, Joseph Eastwood, Paul Gendreau, Claire Goggin, and Richard M. Cullen. 2007. Taking Stock of Criminal Profiling: A Narrative Review and Meta-Analysis. *Criminal Justice and Behaviour* 34 (4): 437–453.

Snook, Brent, Paul J. Taylor, Paul Gendreau, and Craig Bennell. 2009. On the Need for Scientific Experimentation in the Criminal Profiling Field: A Reply to Dern and Colleagues. *Criminal Justice and Behavior* 36: 1091–1094.

Turvey, Brett E. 2012. *Criminal Profiling: An Introduction to Behavioral Evidence Analysis*. London: Elsevier.

Verde, Alfredo, and Antonio Nurra. 2010. Criminal Profiling as a Plotting Activity Based on Abductive Processes. *International Journal of Offender Therapy and Comparative Criminology* 54 (5): 829–849.

Wilson, Paul, Robyn Lincoln, and Richard N. Kocsis. 1997. Validity, Utility and Ethics of Profiling for Serial Violent and Sexual Offenders. *Psychiatry, Psychology and Law* 4: 1–12.

Wilson, Paul, and Kim Soothill. 1996. Psychological Profiling: Red, Green or Amber? *Police Journal* 69: 12–20.

Woodhams, Jessica, and Kirsty Toye. 2007. An Empirical Test of the Assumptions of Case Linkage and Offender Profiling with Serial Commercial Robberies. *Psychology, Public Policy, and Law* 13 (1): 59–85.

Woskett, Jessica, Ian R. Coyle, and Robyn Lincoln. 2007. The Probity of Profiling: Opinions of Australian Lawyers on the Utility of Criminal Profiling in Court. *Psychiatry, Psychology and Law* 14 (2): 306–314.
Yule, Sarah. 2008. 'Offender Profiling': Realities and Ethics in the Development of Investigative Psychology Practices. *InPsych* 30 (6): 32–33.
Yule, Sarah. 2014. *Serial Sex Crimes in Australia: A Comparative Analysis of Profiling Patterns*. QUT: PhD diss.

Author Biographies

Geoff Dean is a Professor of Criminology at Griffith University. His research focusses on countering violent extremism, organised crime, knowledge-managed policing, and criminal profiling. He consults globally with police and security organisations. His latest book is entitled *Neurocognitive Risk Assessment for the Early Detection of Violent Extremists*.

Sarah Yule is a senior forensic psychologist with 20 years of practice and research experience. She has worked in offender treatment and was awarded a Churchill Fellowship in 2008. She was the first Australian psychologist to support police investigations full-time, has consulted on hundreds of criminal investigations, and has trained more than 10,000 police officers.

Conclusion

What Lies Ahead for Australian and New Zealand Criminology?

Rick Sarre and Antje Deckert

We have had the honour and pleasure of commissioning, and then selecting, reading, and editing the contributions of over 70 authors from both sides of the Tasman. In the process, we have made three key inaugural observations.

The first observation is that, over the last 50 years, and certainly in no small part due to the impetus of ANZSOC, Australian and New Zealand criminologists have produced a bountiful array of research findings, emanating from both governmental and non-governmental sectors, that can and do inform criminological theory and criminal justice policy not only in the South Pacific region but across the globe. Our 'academy' is comprised of trained criminologists as well as psychologists, sociologists, political scientists, lawyers, statisticians, historians, and scholars from many other academic disciplines who continue to commission good research, interpret and evaluate existing data, and suggest preferred policy responses. We have developed significant crime datasets, and the *Australian and New Zealand Journal of Criminology* has been growing in both quality and size.

The second observation is that the criminological quest involves far more than simply setting out a critique of the machinery of criminal justice. This critique is important because the justice system is very expensive and not always useful in controlling or preventing crime. Indeed, it often exacerbates it. Nevertheless, Australian and New Zealand criminologists have a long record of accomplishment of reaching beyond the institutions of police, prosecutions, courts, and corrections, and it is towards these broader horizons that the contributors of this Handbook have now taken us.

The third observation is that the criminological quest remains an important one because crime causes our society not only direct harm in the form of

© The Editor(s) (if applicable) and The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2

financial losses, hospitalisations, and emotional trauma, but it also costs us indirectly through the processes of criminal justice that have been put in place to deal with crime and the operatives who are tasked with, amongst other things, attending to victims' needs and with managing offenders. On both sides of the Tasman, we are seeing these criminal justice costs trending upwards. Although this upward spiral is, in the end, unsustainable, it is currently sustained by a penal culture that John Pratt has placed under the spotlight in chap. 23. He concludes that New Zealand's long-standing and heavy investment in prisons has failed to produce the desired outcome of reduced (re)incarceration despite simultaneously declining crime rates. In October 2016—not long after Pratt submitted the final version of his chapter contribution—the New Zealand government announced that it plans to spend an extra NZD 2.5 billion over the next five years to accommodate an additional 1,800 prison beds (Jones and Young 2016). According to Pratt's substantiated rationale, this will inevitably lead to a further stripping of resources from social service providers that contribute to the strengthening New Zealand's social capital through education, social housing, and mental health care. We concur with his argument that this is likely to quicken the decline of the country's health and well-being. Australia's penal directions are equally vexed (see, for example, Tubex et al. 2015).

But what are the prescient observations that have been made by some of the authors in this Handbook and what dare we, as editors, foreshadow from our 'bigger picture' perspective? There is a consensus amongst authors that if our societies ignore evaluative data or respond inappropriately with strategies and policies that do not align with sound criminological theory, the criminal justice enterprise will become even more expensive. The chapters in this Handbook remind us repeatedly that strong theoretical underpinnings, solid empirical and qualitative evaluative work, and clear and concise recommendations are the necessary hallmarks of good criminology, and also of crime and justice policy developments that yield positive outcomes in the form of a reduction in recidivism, a reduction in physical and emotional trauma, and a reduction in criminal justice costs.

Let us continue the theme of corrections. One perspective that criminologists need to pay attention to, if they seek to contribute to the development of crime policies that work, is the perspective of the experts on the receiving end of criminal justice. Research that takes offender voices seriously, considers them as data in their own right, and analyses how perpetrator narratives influence offending behaviour are now being recognised as indispensable in the criminological quest (Presser and Sandberg 2015). Such approaches have gained more traction over the past five decades. The contributions by Mark Halsey (chap. 42) and Emmeline Taylor (chap. 10) demonstrate that we may

be able to glean changes in certain offending patterns from statistical data, but only with the assistance of offenders are we able to interpret them accurately.

Within the prison industrial complex, prison-based rehabilitation programmes seek to address persistent reoffending behaviours. Karen Heseltine and Andrew Day's chap. 55 highlights both the strength of these programmes and the challenges their proponents face in the Australian context. While there is evidence of good programming within prisons, this segment of criminal justice remains chronically underfunded, and the little funding that is available is often exhausted on specific target groups such as high-risk violent and sexual offenders, while only limited progress is made towards addressing the needs of female and Indigenous prisoners (Heseltine et al. 2011). Across the Tasman, the NZ Department of Corrections (2016) has invested in specific prison-based rehabilitation programmes for Indigenous offenders that seek to introduce prisoners to Māori tikanga. However, as Tracey McIntosh and Kim Workman (chapter 48) explain, such efforts draw on the unverified assumption that (re)offending is, in whole or in part, caused by a failed or compromised Māori identity. It thus represents a co-option of Māori culture that has achieved very little in reducing recidivism and reincarceration rates.

While the accurate interpretation of research findings is vital, Judy McGregor (chapter 6) reminds us that the importance of communicating research findings properly and succinctly cannot be overstated. It is crucial for researchers to ensure that their work is reported in an easily comprehensible fashion, lest a hostile media sideline it.

Policy makers who are keen to implement strategies and practices designed to prevent crime from happening will be drawn to chapters devoted to specific measures that have had a demonstrable prophylactic effect on crime activities. For example, developmental criminology, explained and explored by Ross Homel and Kate Freiberg (chapter 54), has revealed that strategies which involve specialists interceding with protective factors (positive interactions) at crucial developmental transition points in young people's lives can reduce the probability of them breaking the law. The reinforcement of these effects depends on a community's capacity to agree on goals for a child's well-being and to mobilise efforts to meet them.

A trend that is charted in this Handbook specifically for Australia and New Zealand, but which has also gained researchers' attention as a worldwide trend, is the diversification in policing and the outsourcing of criminal justice tasks to private businesses and volunteer organisations. As we are told by Trevor Bradley (chapter 33), policing is now increasingly performed by non-governmental participants, with private security operatives being the most prominent emerging category. Today, citizens participating in everyday life

are far more likely to be directed, challenged, or searched by a private security officer than by a sworn police officer. Allied to this trend is what has been referred to as 'third party policing', a term that acknowledges the role played by businesses, property owners, and inspectors working for government and non-government agencies to engage in 'policing' activities that are not associated with police. Janet Ransley and Lorraine Mazerolle (chapter 32) discuss such partnerships that have been particularly successful in reducing crime. These trends are likely to continue apace. Criminologists are bound to pay increased attention, for example, to the development and evaluation of social impact bonds that are currently being trialled in New Zealand (NZ Ministry of Health 2016) and in NSW (Office of Social Impact Investment 2016). As long as the 'age of neoliberalism' lasts, we have to consider investigations into these and other facets of criminal justice pluralisation a growth area of criminological research.

A further growth area is Restorative Justice. The New Zealand government has renewed its commitment to restorative justice in 2016 by increasing designated funding by NZD 16.2 million over the next four years (National Party 2016) as have some Australian jurisdictions, for example, the ACT (CityNews 2015). If this is any indication of a pattern for continued government investments, restorative justice processes will remain a central part of the trans-Tasman research agenda. On the global stage of restorative justice, Australia and New Zealand have long occupied central positions. New Zealand has been hailed as the first country to implement restorative justice processes in its specific youth offending legislation in 1989, while Australian criminologist John Braithwaite (1989) was the first to identify reintegrative shaming as the key mechanism that underpins successful restorative justice practices. Since 1989, a number of Australian and New Zealand criminologists have paid attention to the development and evaluation of restorative justice processes and, as we are nearing three decades of relevant research, we keep witnessing new phenomena being unearthed. Authors who took us on 'restorative paths' in this Handbook were John Braithwaite at the international level (chapter 21), Masahiro Suzuki and William Wood at the local level (chapter 26), and Hennessey Hayes at the individual level (chapter 27). It was also William Wood (2015) who has recently warned us that the—often romanticised—mechanisms of restorative justice will achieve little on a broader scale as long as entrenched structural injustices prevail. He argues that structural injustices will continue to contribute to criminality and disproportionate incarceration rates. Moreover, they prevent the socially marginalised from participating in restorative justice processes and from establishing pro-social community structures into which ex-offenders could be successfully restored.

Similarly, Elena Marchetti (chapter 25) and Khylee Quince (chapter 47) acknowledge that persistent structural injustices make it difficult to evaluate achievements of Indigenous courts if their successes are measured only in terms of recidivism rates. Both authors present valuable insights into the ways that therapeutic justice processes can be of benefit to those who come before these specialist courts, and, although evidence of lower recidivism rates remains debated in Australia (see chapter 25), evaluations in New Zealand have demonstrated that "young people who appeared in the Rangatahi Courts were 11 percent less likely to reoffend" (chapter 47). Like restorative justice practices, specialist courts will continue to play key roles in both New Zealand and Australia, and thus research into their operations and outcomes will remain valuable.

The rapid internationalisation of criminality is evident in the chapters dedicated to cybercrime (Roderic Broadhurst, chapter 15), terrorism (Selda Dagistanli and Scott Poynting, chapter 22), transnational crime (Michael Grewcock, chapter 20), sexual offending (Anastasia Powell and Nicola Henry, chapter 14), and fraud (Tim Prenzler, chapter 18). Certainly, this internationalisation of criminality is only going to progress in a globalised, hyper-connected world, and it might be good advice for aspiring criminologists to consider taking a few computer sciences classes alongside their criminological studies. As cybercriminal activities are likely to expand, we can predict that cyberworld-based responses to offending are likely to materialise and grow too. For example, shortcomings in responses to rural crime—which currently fail to match responses to urban crime due to lack of adequate infrastructures—may, in future, be remedied through cyber-court sessions and cyber-community supervision that use virtual reality technologies and software to simulate the real-world equivalents. Hence, we concur with Fiona Dowsley and Tim Hart who aptly argue (in chapter 5): "As new digital landscapes open up to both criminality and the practice of justice and regulation, so criminologists must follow, taking advantage of new tools and techniques."

What can we make of gender differences in offending and victimisation? The Handbook addresses these issues, moving beyond both the orthodox male/female dichotomy and the more recent LGBT distinction (see, for example, Crofts et al. 2013). Samantha Jeffries and Sharon Hayes (chapter 13) and Kathryn Henne (chapter 39) consider gendered differences by LGBTQI+ and challenge us to ponder how this increased awareness of differentiations in gender and sexuality will influence future criminological research. For example, will we see further gendered or sexually oriented theoretical strands emerge or will such perspectives remain under the 'continuum-umbrella' of queer criminology? One could possibly conceive an Intersex Criminology or a Bisexual

Criminology. After all, critical criminology has, over the past 50 years, seen a number of sub-strands emerge, as the theoretical and historical sections of this Handbook evidence. Amplified gender differentiations may also become more relevant at the policy level. For example, notwithstanding that New Zealand and Australian jurisdictions have specified decision-making guidelines for inmate placements and protective measures, transgender and intersex inmates continue to be placed in either a men's or women's prison (Blight 2000; NZ Department of Corrections 2016). Social movements, like "No Pride in Prisons" in New Zealand, consider current correctional policies as inadequate to accommodate the needs of transgender and intersex prisoners, and as unable to protect them from the risks they are exposed to. Future criminological research may aid in finding solutions that are more suitable for these communities.

Many of the Handbook's authors remind us that too little of our work, with some exceptions, finds its way into the public psyche. Indeed, only a limited number of modern criminological recommendations arrive intact in the corridors of power, for political masters who are tasked with expediency usually do little more than reflect public ignorance and supply the public with what they (ostensibly) want (see Ayling 2013). For example, the Newman government in Queensland abandoned drug courts despite their continued successful operation in other jurisdictions; anti-association laws have been passed in numerous Australian jurisdictions without any evidence that they will kerb organised crime; the AIC—for 40 years the link between theoretical research in crime and justice and policy making in Australia—is being rolled into a criminal intelligence and crime-fighting body; mandatory sentencing still persists in some jurisdictions despite any evidence that it is effective; boot camps, critically lampooned 'three strikes' laws, and curfews are still included in speeches by prospective political candidates if they sense that a 'law and order' agenda will garner them more votes (Sarre 2011; Weatherburn 2004). The content of this Handbook reminds us of the great importance of ensuring that our research provides information for these spokespersons, and, moreover, that the lessons we provide must not only be persuasive but easily comprehensible. Most criminologists imagine the creation and sustaining of healthier and more inclusive and equitable societies. It is up to us to champion respect and concern for all of our fellow citizens no matter what their life circumstances. This challenge is never easy, but it is particularly important that we meet the challenge when conservative political voices forthrightly and continuously pronounce the virtues of unbridled outsourcing of criminal justice and social services. Depending on whether these services are provided by private companies with profit objectives or by private operatives within the volunteer sector has a significant influence on their interest to reduce and

prevent offending behaviours. Private (self-)interest may also impact on which and how many research resources criminologists will have access to in future.

On the subject of research resources, we can also justifiably ask: What role does the allocation of funding play in setting research agendas? While contemporary New Zealand criminologists face only restrictions set by ethics boards in the design of their research agendas, change might just be around the corner. The NZ Families Commission, an independent Crown entity set up in 2004 to promote family interests to government and the wider community, has been mandated by the *Family Commission Act 2003* to "identify evidence and research that will assist in determining or achieving the Government's policies and priorities in the social sector". The Families Commission has since reinvented itself as New Zealand's Social Policy Evaluation and Research Unit (Superu) which aims "to increase the use of evidence by people across the social sector so that they can make better decisions" (Superu 2016a). In 2015, Superu "started to work on a project to identify a set of research priorities for the social sector" (Superu 2016b) and has, amongst other things, also funded and published family-related criminological research, for example, on children with an incarcerated parent (Superu 2015). It remains to be seen whether Superu's social policy agenda-setting role will have an enduring and direct impact on the distribution of social sciences research funding and thus any influence on the research agendas of academic criminologists on the eastern side of the Tasman.

What this Handbook shows is that Australians and New Zealanders are blessed with a great variety of criminological perspectives that inform our work. In our diversity, we find our strength. Narrative criminology and convict criminology remind us that offenders are human beings first. Developmental perspectives urge us to place more importance on the early years of children's development to prevent the cycles of crime, victimisation, and incarceration. Indigenous criminology challenges common assumptions about what our academic discipline was set up to achieve. Feminist criminology reminds us not to ignore the female voice in its various timbres. Left realist criminology asks us to contribute actively to a democratic achievement of social justice. Green criminology reminds us that without a flourishing environment every quest we undertake in addressing criminality is ultimately irrelevant. The list could go on. Regrettably, we could not include all theoretical perspectives that underpin Australian and New Zealand criminology into this collection as, for example, the emergent Southern Criminology whose architects are in the process of launching their very own Handbook (Gurd 2016). In the near future, we are likely to see further theoretical perspectives gain a foothold in Australia and New Zealand. One of these

might be Revolutionary Criminology, which is currently being developed in the US (Williams 2016). In sum, what we can note here is that Australian and New Zealand criminology forms a vibrant and varied community that continues to expand topically, theoretically, and methodologically. It contributes strongly to knowledge advances internationally as much as it incorporates pertinent overseas research findings into its own developments.

So, where does the future of our quest lie? The work presented in this Handbook reinforces the need for our research to focus on factors that assist in establishing more self-secure communities in protective environments; communities in which individuals experience less crime and thus fear crime less. Those pursuing the criminological quest on both sides of the Tasman today are able to provide the sort of information that governments, communities, and private organisations must have access to in order to achieve this ideal. We have amassed an already large and continuously growing body of criminological literature and datasets, seeking to inform policies that will best deliver the required safety and security for a palatable price. While Australia has established dedicated agencies to link criminological research with relevant policy, such links remain wanting in New Zealand (see Gluckman 2011, 2013).

Contributors to this Handbook have told readers that with the right resources we can assist young families to cope with the vicissitudes of life; we can divert young people from careers in crime; we can bring stability to dysfunctional families; we can alleviate victimisation; we can do our policing better; we can protect women, children, and men from abusive intimate partners; we can turn lives around. However, that will only happen if our research is funded properly; if we acknowledge our successes, failures, and limitations equally; if we collaborate with the relevant experts and communities; and if we clearly and succinctly communicate our research findings to both the media and relevant decision makers. In such an environment, one that is supported by sufficient political will, the modern-day criminological quest in the trans-Tasman academies can continue with confidence.

References

Ayling, Julie. 2013. Haste Makes Waste: Deliberative Improvements for Serious Crime Legislation. *Australian and New Zealand Journal of Criminology* 46 (1): 12–31.

Blight, Jake. 2000. *Transgender Inmates*. Canberra: AIC.

Braithwaite, John. 1989. *Crime, Shame and Reintegration*. Cambridge: Cambridge University Press.

CityNews. 2015. Simon to Expand Restorative Justice. *CityNews*, July 16.
Crofts, Penny, Phil Hubbard, and Jason Prior. 2013. Policing, Planning and Sex: Governing Bodies, Spatially. *Australian and New Zealand Journal of Criminology* 46 (1): 51–69.
Gluckman, Peter. 2011. *Towards Better Use of Evidence and Policy Formation: A Discussion Paper*. Wellington: Office of the Prime Minister's Science Advisory Committee.
Gluckman, Peter. 2013. *The Role of Evidence and Policy Formation and Implementation: A Report from the Prime Minister's Chief Science Advisor*. Wellington: Office of the Prime Minister's Science Advisory Committee.
Gurd, Amy. 2016. Reminder–Call for Book Chapter Proposals: Palgrave Handbook of Criminology and the Global South. *QUT Blog*, March 22.
Heseltine, Karen, Rick Sarre, and Andrew Day. 2011. *Prison-Based Correctional Rehabilitation: An Overview of Intensive Interventions for Moderate to High-Risk Offenders*. Canberra: AIC.
Jones, Nicholas, and Audrey Young. 2016. Tax Cuts Could Be Affected by $2.5b Plan for More Prison Beds. *New Zealand Herald*, October 18.
National Party. 2016. $16.2m Boost for Restorative Justice. *Media Releases,* June 29.
NZ Department of Corrections. 2016. Transgender and Intersex Prisoner. In *Prisons Operation Manual*, edited by NZ Department of Corrections, M.0305. Wellington: NZ Department of Corrections.
NZ Ministry of Health. 2016. Social Bonds: NZ Pilot. Accessed September 14, http://www.health.govt.nz/our-work/preventative-health-wellness/social-bonds-new-zealand-pilot.
Office of Social Impact Investment. 2016. Social Benefit Bonds. Accessed September 14, http://www.osii.nsw.gov.au/initiatives/social-benefit-bonds/.
Presser, Lois, and Sveinung Sandberg (eds.). 2015. *Narrative Criminology: Understanding Stories of Crime*. New York, NY: New York University Press.
Sarre, Rick. 2011. We Get the Crime We Deserve: Exploring the Political Disconnect in Crime Policy. *James Cook University Law Journal* 18: 144–161.
Superu. 2015. *Improving Outcomes for Children with a Parent in Prison*. Wellington: Superu.
Superu. 2016a. About Us. Accessed November 1, http://www.Superu.govt.nz/about-us/our-role.
Superu. 2016b. Social Sector Research Priorities. Access November 1, http://www.Superu.govt.nz/priorities.
Tubex, Hilde, David Brown, Arie Freiberg, Rick Sarre, and Karen Gelb. 2015. Penal Diversity within Australia. *Punishment and Society* 17 (3): 345–373.

Weatherburn, Don. 2004. *Law and Order in Australia: Rhetoric and Reality*. Sydney: Federation Press.

Williams, Jason. 2016. A Historical and Contemporary Analysis of Punishment Discourses: Neoliberal Penology in the Age of Colorblindness. Paper presented at *ASC Annual Meeting, New Orleans, November 16–19*.

Wood, William. 2015. Why Restorative Justice Will Not Reduce Incarceration. *British Journal of Criminology* 55: 883–900.

Explanation of commonly used Māori language terms

Māori language terms in this book are not italicised because te reo Māori is an official language of New Zealand and therefore not considered 'foreign' in the context of this book. However, we accept that not all readers are familiar with the language and have therefore translated terms in the chapters using brackets. The following terms are more commonly used throughout this book, and some conceptualisations require a deeper explanation than one word can deliver. Therefore, the following translations have been adopted from Moorfield, John C. 2011. *Te Aka Māori – English, English – Māori Dictionary*. Auckland: Pearson.

Aotearoa New Zealand

hapū subtribe

iwi tribe

kaupapa Māori is a philosophy based on the canon of the knowledge, skills, attitudes, and values of Māori society. It incorporates Māori approaches, topics, customary practices, institutions, agendas, principles, and ideologies

Kooti Rangatahi Youth court

mana refers to the prestige, authority, control, power, influence, status, spiritual power, and charisma of a person, place, event, or object. Mana is enduring and indestructible. Mana is inherited at birth and reveals divine will. Mana gives a person the authority to lead and to organise communal activities and to make social and political decisions. Mana can increase with success and decrease with failure. However, people can never be sources of mana; they can only be agents of mana because mana remains a divine gift. Almost every activity in Māori life links to the maintenance and enhancement of mana. Mana goes hand in hand with tapu, and both affect each other

Māori Indigenous person of New Zealand

© The Editor(s) (if applicable) and The Author(s) 2017

A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2

marae The open area in front of a communal meeting house (the wharenui)—sometimes this includes the complex of buildings surrounding it—where formal ceremonies, greetings, and discussions take place

muru is part of a broader social process founded on reciprocity and retribution. It is a form of utu, the maintenance of balance. It is a form of ritual compensation, whereby justice is restored through the confiscation and redistribution of wealth. A muru is sought to redress a transgression to return the affected party back to their original position in society. Muru involves the taking of the offending party's goods. Reasons for a muru include intentional or unintentional acts such as threats to marriage, life-threatening accidents, violations of tapu, and defeat in war. It only occurs among relatives or between neighbouring villages as collective punishment. Before a muru is implemented, the parties would discuss in great detail what would be taken

Pākehā New Zealander of European descent. The term has no negative connotation

rangatahi youth or adolescent

rangatira tribal chief(s)

rūnanga council, tribal council, assembly, board, boardroom, iwi authority—assemblies called to discuss issues of concern to iwi or the community

tangata whenua local people, indigenous people, people who were born where their ancestors have lived and where their placenta are buried

tapu When a person, place, or object is tapu, it underlies a restriction or prohibition because of its link to the divine. Links to the divine move individuals, places, or objects from the profane to the sacred sphere and make them 'untouchable', that is, they are disqualified from common use. Violation of tapu is thought to result in divine retribution. Tapu is thus a means of regulating social relations and human interactions with the environment to ensure prosperity of society. Tapu can be intrinsic or can be extended through contact with something tapu. Tapu can be lifted through song, prayer, or ceremonies such as sharing food or use of water. People are tapu and individuals are responsible for preserving their own tapu and respecting others. Certain circumstances make people more tapu, for example, pregnant women, warriors, carvers, and dead bodies. The tapu of plants is lifted through prayer before and after harvesting. When tapu is removed, things become noa (common)

Te Puni Kōkiri Ministry of Māori Development

te reo Māori language

Te Tiriti of Waitangi The Treaty of Waitangi

tikanga correct procedure, custom, habit, lore, method, manner, rule, way, code, meaning, plan, practice, convention, protocol; the customary system of values and practices that have developed over time and are deeply embedded in the Māori social context

tino rangatiratanga self-determination and self-governance

whakapapa genealogy or genealogical links

whānau extended family

whanaungatanga relationship, kinship, sense of connection, a relationship through shared experiences and working together which provides a sense of belonging. Whanaungatanga develops as a result of kinship rights and obligations, and also to others to whom one develops a close reciprocal relationship

Index

A

Abbott, Tony 332, 627
Abolitionism 579
Aboriginal children 815. *See also* Indigenous children
Aboriginal communities 759, 776. *See also* Indigenous communities
Aboriginal Community Justice Groups 382
Aboriginal domain 753, 754, 759, 761–763, 765
Aboriginal Justice Advisory Council 382
Aboriginal Justice Agreement 381
Aboriginal Justice Forum 381
Aboriginal Legal Rights Movement 381
Aboriginal Legal Services 382, 672
Aboriginal Liaison Officers 777
Aboriginal offender(s) 399, 815. *See also* Indigenous offender(s)
Aboriginal people(s) 86, 294, 380, 381, 399, 668, 669, 672, 677, 757, 763. *See also* Indigenous people(s)
Aboriginal and Torres Strait Islander Social Justice Commissioner 679
Aboriginal women 592, 761
Abortion 95
ABS 66, 67, 70, 74, 76, 670, 832, 835
Abuse
  clergy, 453
  cultural 450, 451
  economic 193
  emotional 193, 195, 197, 450, 451, 730
  parental 729
  physical 182, 193, 195, 197, 453, 651, 819
  psychological 193, 196
  sexual 131, 139, 140, 192, 193, 197, 205, 208–210, 230, 326, 450, 453–455, 457, 462, 550, 840
  social 195
  spiritual 193
  verbal 193, 195, 210
Abusive relationships 730

© The Editor(s) (if applicable) and The Author(s) 2017
A. Deckert and R. Sarre (eds.), *The Palgrave Handbook of Australian and New Zealand Criminology, Crime and Justice*, DOI 10.1007/978-3-319-55747-2

AIC 8–13, 34, 35, 37–47, 51, 53, 55, 56, 66, 67, 70, 71, 73, 74, 83, 148–151, 156, 271–273, 272, 275, 512, 852
Acacia Prison 468
Academia 164, 231, 232, 771
Access to justice 294, 428, 668, 672, 673
Accountability
  offender, 393, 394, 396, 398, 401, 402
Accounting fraud 271
Acculturative dissonance 715
Act of Free Choice 318, 319
Activism 579, 580, 604, 606, 779
Acts intended to cause injury 117, 118, 551, 728, 835
Adaptation 544, 705, 774
Addiction 38, 183, 476, 488, 492, 638, 641, 672, 698, 706. *See also* Substance abuse
Addiction treatment 476. *See also* Drug treatment
Administrative
  boundaries, 76
  criminology 33, 47, 581, 755
Adolescence 175, 547, 548, 561, 562, 821
Adultery 177
Advance fee fraud 229
Adversarial
  culture, 425
  trial 425
Advertisement
  misleading, 276
Advertising 270, 276, 279, 573, 738, 807, 808
Advocacy
  group(s), 28, 258, 451, 454
  work 673, 675, 676
AFP 37, 38, 78, 222, 230, 231, 261, 337–340, 342
African-American 355, 550, 818
African criminology 778
Age 5, 8, 10, 11, 13, 25, 33, 76, 89–91, 137–139, 147, 150–154, 156, 180, 192, 207, 223, 230, 274, 293, 450, 462, 504, 547, 548, 558–563, 566, 604, 610, 640, 642, 692, 699, 711, 725, 728, 773, 793, 805, 810, 811, 817, 819, 822, 850
Age-crime curve 558
Ageing 142, 720, 728, 819, 822
Age out 712
Aggravated assault 121, 658
Aggression 54, 153, 182, 197, 545, 548, 549, 551, 771, 839
Agozino, Biko 678, 745, 756, 771–773, 775, 778, 779
AIHW 37, 66, 68, 70, 71, 73, 74, 439, 815
Alcohol
  abuse, 379, 727, 817
  addiction 672, 698, 706
  consumption 517, 521, 801, 802, 804–809
  laws 518, 803, 804
  marketing 141
  misuse 730, 801, 802, 811
Alcohol Beverages Advertising Control 808
Alcohol-related crime 802, 803, 806, 807, 809–811
Alcohol Use Disorders Identification Test (AUDIT) 809
Alexithymia 411, 414
Alice Springs
  prison, 471
  watchhouse 671
All Blacks 88
All Lives Matter 757
Al-Qaeda 325
Alternative justice 393
Alternatives to prison 350
American Society of Criminology. *See* ASC
Analysis

content, 91
language 635
longitudinal 69
narrative 636, 637
psychosocial 562
regional 290
sociological 413, 628
transactional 837
Androcentric 587, 590, 591
Anger
management, 838, 839
Animal
cruelty, 288
rights 620
Anomic conditions 354
Anomie 543–546, 551, 552
Anthropology 607, 760
Anti-apartheid 528
Anti-authoritarian criminology 778
Anti-corruption 35, 38, 255–261
Anti-discrimination 211, 213
Anti-Phishing Working Group 232
Antisocial
behaviour, 27, 73, 411, 562–564, 816–818, 820
personality 836
Anti-terrorism
laws, 331, 333, 337–339, 341, 342
legislation 104, 333, 334, 337. *See also* Counter-terrorism
Anti-Terrorism Act 2005 340, 341
Anxiety 25, 105, 131, 140, 196, 197, 437, 500, 547, 549, 550, 643, 679, 836
Anzac Day 317, 342
ANZSOC 3, 8, 20, 21, 24, 28, 35, 36, 51, 271, 272, 755, 756, 769
Apartheid 528, 757
Apology(s) 359, 394, 397, 409, 412, 413
Apparatus (Foucault) 300, 636
Appropriation of land 628
Arbitrary detention 99, 121
Armed robbery(s) 68, 147, 148
Arrest
parental, 438, 441, 445
rate(s) 166, 180
Arson 288, 385, 502, 702, 743
Arthur Gorrie Correctional Centre 468, 471, 474
Asbestos 244, 245, 247
Asbestos Injuries Compensation Fund 245
ASC 603–606, 608, 612
Asian and Pacific Conference of Administrators 51–62
Assault
aggravated, 121, 658
common 88, 127n
physical 121, 124, 125, 135, 137, 139
prisoner 472
serious 136, 164, 196, 368
sexual 12, 117, 120, 123–126, 138, 206, 215, 531, 550, 580, 655, 670, 728
staff 472
Assimilation
cultural, 687, 727
forced 449, 450, 451, 462
policy(s) 449, 450, 462, 683, 685–687, 700
Asthma 728
Asylum seeker(s) 322
Attitudes towards police 513
Attorney-General 8, 9, 14, 39, 46, 96, 304, 370, 383
Auckland Central Remand Prison 468
Auckland Committee on Racism and Discrimination 454, 742
Auckland Safety Community Patrol 505
Auckland South Corrections Facility 469

Auditor-General 258, 320, 470
Australasian Correctional Management 468, 478n2
Australasian Police Minister's Council 791
Australian Aboriginal people(s). *See* Aboriginal people(s); Indigenous people(s)
Australian Bureau of Statistics. *See* ABS
Australian Children's Education and Care Quality Authority 822
Australian Commission for Law Enforcement Integrity (ACLEI) 38, 258, 261
Australian Competition and Consumer Commission 102, 272
Australian Consumer Fraud Taskforce 277
Australian Crime Commission Amendment (Criminology Research) Bill 2016 (Cth) 34
Australian Criminal Intelligence Commission. *See* ACIC
Australian Cybercrime Online Reporting Network (ACORN) 222, 273
Australian Cyber Security Centre 102
Australian Defence Force Academy Skype Scandal 209
Australian Federal Police 300, 331
Australian Institute of Aboriginal and Torres Strait Islander Studies 762
Australian Institute of Criminology. *See* AIC
Australian Institute of Family Studies 38
Australian Institute of Health and Welfare. *See* AIHW
Australian Law Reform Commission 9, 366, 371
Australian National Audit Office 276
Australian National Offence Index (NOI) 122, 127
Australian and New Zealand Journal of Criminology 8, 28
Australian and New Zealand Society of Criminology. *See* ANZSOC
Australia and New Zealand Society of Evidence-Based Policing 487
Australian and New Zealand Standard Offence Classification 67, 271
Australian Payments Clearing Association 271
Australian Personal Safety Survey 550. *See also* Personal Safety Survey
Australian Press Council 90
Australian Public Service Commission 38
Australian Securities and Investments Commission (ASIC) 240, 245, 272, 278, 279
Australian Security and Intelligence Organisation (ASIO) 104, 520
Australian Security and Intelligence Organisation (ASIO) Act 2003 335
Australian Taxation Office 279
Australian Temperament Project 562
Authoritarian criminology 693
Auto-ethnographic 603, 604, 607

B

Baby boom 357
Backpackers 287
Bagaric, Mirko 366, 367, 374, 577
Bail 28, 83, 84, 95–97, 207, 339, 350, 421, 442, 443, 670, 672
Bail Act 2000 84, 351
Bali bombings 320
Ballroom Blitz 169

Bank robbery(s) 150
Banned substances
transportation of, 618
Banton, Bernie 244, 245
Barbarian culture 165, 169
Barger, Ralph 'Sonny' 161, 162
Barker reforms 427, 429, 430
Barndimalgu Court 383, 385
Barry, John 5, 39
Bartholomew, Allan 8, 13
Bastion Point 742
Baudrillard, Jean 738, 740, 745, 748
Bayley, Adrian 90, 485, 497
Bazely report 532
Beattie Committee 529
Becroft, Andrew 395, 714, 716, 730
Behavioural Evidence Analysis 852, 855
Behavioural profiling. *See* Criminal profiling
Behavioural psychology 848
Behaviour crime analysis. *See* Criminal profiling
Behaviour therapy 837, 855
Belanglo State Forest 287
Benbrinka group 340
Benckiser, Reckitt 276
Best practice 26, 425, 430, 444, 712, 754, 755, 787
The Better Angels of Our Nature 142
Bias
in-cultured, 533
data output 122
operational 120, 121
recording 122
Biculturalism 86, 731
Bicultural therapy model 731
Big data 76, 77
Bikie gang(s) 87, 131
Bikies 159, 162, 165, 170
Binge drinking 131, 809
Biodiversity 619, 620, 621
Biomedical 562
Biosecurity 288, 295, 623, 626
Biosecurity Act 1996 623
Birth rate(s) 453
Bisexual 194, 195
Bitcoin 222, 223
Black-hats 227
Black Lives Matter 757
Black Power 726, 742, 743
Bligh, William 788
Blood alcohol content 805, 810
Bloods 152, 168, 180, 197, 726
Blue Vision Theory 170
Boat arrivals 306
BOCSAR 37, 136, 141, 291, 518
Bodyguard(s) 499
Body language 634, 719
Bolkas, Arthur 611
Bombing 87, 319, 320, 321, 338, 339
Boot camp(s) 833
Borallon 468, 470, 472, 474, 475
Border(s)
criminologies, 580, 581
national 594, 619
patrol 320
policing 320
Botnet 226
Bottom of the Harbour case 242
Bougainville 319–321, 323–326
Boys' home(s) 640
Brain development 183
Brain injury 640
Braithwaite, John 21, 55, 242, 252, 318, 320, 321, 323–325, 327, 396, 398, 483, 484, 527, 548, 580, 589
Break and enter 117, 118, 124, 835
Bribery 252, 254–258, 265, 271
Briscoe, Kwememtyaye 671
British Empire 697, 704, 705, 707, 708

British Penal Colony 831, 834
Broadbeach brawl 169
Broken windows 576
Brotherhood of St Laurence 483
Bullying 95, 180, 213, 548, 551
Bunny guns 794
Bureau of Crime and Statistics NSW. *See* BOCSAR
Burglary 6, 98, 117, 118, 120, 122, 125, 255, 291, 368, 501835
Business crime survey 270, 272
Business model of people smuggling 300, 303
By-product data 69

C
Cambodia 52, 307, 319–321
Cambridge Institute of Criminology 6
Campaign for Criminal Justice 577
Campbell Collaboration 487
Cannabis 73, 121, 288, 295, 608
Capitalism 270
Capital punishment 18, 44, 363, 365. *See also* Death penalty
Carbon emissions 626
Carceralisation 726
Carcinogenic substances 620
Card fraud 270, 274, 275
Care, Claims and Resolution Team 454
Care leavers 451, 452
Carmichael Coal Mining Project 627
Carr, Bob 578, 729
Carroll, Raymond 97
Case Management System 68
CCTV 90, 149, 289, 422, 485, 503, 505, 518. *See also* Security cameras
Censure 489, 649
Census data 739
Centre for Evidence-Based Sentencing 364, 371, 372, 374
Centrelink 280
Centre for Social Research & Evaluation 66
Chand, Akshay 84
Change
  cultural, 215, 429, 544
  social 87, 289, 301, 590, 656
Charter of the United Nations Act 1945 (Cth) 336
Child
  abuse, 45, 86, 191, 196–198, 229, 819
  abuse materials 229–230
  development 430, 562
  exploitation 206, 229
  exploitation materials 222
  maltreatment 197, 452, 462, 815–817, 820, 821
  pornography 89, 164, 230, 385, 842
  prostitution 385
  protection 38, 71, 196, 197, 440, 441, 669, 815, 816, 824
  protective agency(s) 441
  protective services 440, 506
  removal 669
  sex offender(s) 334
  welfare 394, 440
  witnesses 21, 421, 431
Childcare responsibility(s) 442
Childhood 445, 453, 561–563, 637, 640, 641, 672, 816–819, 822
Childhood removal 672
Children
  Indigenous, 700, 764
  of prisoners 19, 437–445
Children's Koori Court 382, 387, 388
Children's Ombudsman 444
Children's services 441
Children Young Persons and their Families Act 1989 690, 712
A Child's Guide to Crime 19
Christchurch Health and Development Study 27, 561

Christie's Law 84
Clifford, William 10
Circle
  court(s), 382, 384, 674
  sentencing 382, 673
  sentencing court 382
Cisgender 195, 590, 597
Citizen-based policing 497
Citizenship
  ecological, 620
City Safety Officer(s) 498
Civil
  justice, 14, 449
  litigation 451, 452, 454, 455
Civilisation 54, 669
Civilising process 142
Class 5, 169, 238, 243, 571, 573, 578, 592, 606, 638, 644, 675, 676, 692, 717, 774, 778
Class action 676
Clean Slate Without Prejudice 677
Clergy abuse 453
Clifford, Bill 53–55
Climate change 617, 619, 626–628
Club structure 161
Coalition for Evidence-Based Policy 487
Code of silence 526
Cognitive behavioural therapy 809, 837
Cognitive development 819
Cognitive therapy(s) 837
Cold War 318
Colonial
  criminal courts, 610
  history 668–669
  legislation 610, 697, 698, 700, 702, 704–706, 708
Colonisation 193, 347, 353, 513, 670, 673, 684–688, 692–694, 698, 702, 706, 713, 721, 727, 729, 731, 732, 740, 757, 760, 771, 779, 834
Colony 53, 252, 668, 757, 831, 834
Columbus, Christopher 699
Comancheros 88
Commercial confidentiality 475
Commercial fishing 622
Commission of Inquiry into Organised Crime in Queensland 169
Commission of Inquiry into Police Conduct 531
Commissions of Inquiry Act 1908 534
Commodity 506, 620, 705, 707
Common crimes 114, 117–119, 122, 123, 125, 126
Communications technology(s) 205, 207
Communities that Care (CTC) 820, 821
Communities for Children (CFC) 823, 824
Community
  cohesiveness, 519
  corrections 100, 371, 467, 476
  court(s) 382–385, 387, 388
  crime prevention programmes 289
  integration 832
  involvement 393, 394, 396, 399–401
  justice 382, 607, 677, 716
  notification 833
  order(s) 101
  participation 385, 577
  patrols 498, 502, 503, 505, 506
  policing 24, 326, 395, 441, 505, 507, 754
  representative(s) 380
  safety 65, 342, 502, 797, 831
  service 293, 363, 394, 398, 489, 505, 718
  supervision 294, 363
  work 293, 476, 504, 623
Community-based corrections 63
Community-building 380, 389

Compensation 18, 120, 240, 241, 244–246, 279, 463, 705, 763, 794
Complaints
  against the police, 525, 526, 536
  authority 454, 500, 526, 527, 529, 532, 534
Complexity theory 327
Compulsory Drug Treatment Centre 841, 842
Computer crime 102
Computer Emergency Response Teams (CERTs) 225, 231
Computer Fraud and Abuse Act 1986 225
Computer hacking 209
Computer Security Incident Response Teams (CSIRTs) 225
Conduct disorder 561
Conferencing
  for adult offenders, 395, 396, 408
Confidential Forum for Former In-Patients of Psychiatric Hospitals 455
Confidential Listening and Assistance Service (CLAS) 456
Confidentiality 46, 75, 231, 475, 503
  commercial 227
Conflict
  familial, 192, 644
Conflict resolution 178, 184, 838
Consent
  public, 208, 210, 738, 763
Conservative criminology 572, 575
Conspiracy 341
Constitution 45, 140, 294, 320, 370, 502, 606, 669, 708
Consultant 25, 27, 49, 64, 139, 326, 311, 717, 719
Consultation 74, 381, 386, 399, 441, 504, 690, 716, 720, 755, 791
Consumer Fraud Working Group 275
Consumer protection 272, 278
Consumption 517, 521, 320, 624, 801, 802
Context
  social, 214, 289, 450, 559, 575, 652–656, 667, 685, 774, 777
Contracting out 486, 488
Cronulla riots 140
Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal 618
Convention on International Trade in Endangered Species of Wildlife Fauna and Flora 618
Convention for Prevention of Maritime Pollution by Dumping Wastes and Other Matters 618
Convention on the Rights of the Child 431
Convict criminology 603–614
Co-offender(s) 122
Coping strategies 545, 547
Copyright 225, 756
CORE Moderate Programme 840
Coroner 520, 671
Corporal punishment 182, 453, 462
Corporate crime 12, 238, 580
Correctional officer(s) 58, 470
Corrections Act 2004 468
Corrections Amendment Act 2009 468
Corrections Corporation Australia 468
Corrective justice 408, 451
Corruption 35, 38, 251–259, 261–263, 265, 271, 279, 326, 351, 573, 580, 623–625
Corruption and Crime Commission 259, 261
Corruption Perception Index 251
Cost/Benefit 155
Cost efficiency 486
Cost-effectiveness 469, 470, 472
Cost(s)

of investigation, 275, 280, 354, 534, 622
Council of Europe's (CoE) Cybercrime Convention 231
Counselling 394, 452, 456–461, 476, 610, 780, 837
Counter-colonial criminology 678
Counter-espionage 224, 225
Counterfeiting 225, 271
Counter-radicalisation 280, 332, 519
Counter-rehabilitative 388, 832, 833
Counter-terrorism 38, 88, 332–337, 341, 342, 512, 516, 519, 520
Counter-Terrorism Legislation Amendment (Foreign Fighters) Act 2014 (Cth) 104, 336
Counting rules 67, 68, 122, 123, 273
Court of Appeal 97, 370, 426, 428, 429, 431
Court data 69, 71, 77
Courtroom
security, 295, 368, 476, 477, 748
stressors 422
ad hoc 293
Court security 467, 476
Cover-up(s) 454, 535
Coward's punch 100
CRC 41, 45, 48
CREATE 823, 824
Credit card fraud 222, 225, 229
Crime and the Community (1938) 604
Crime category(s) 123
Crime control
policies, 183, 185, 302, 487, 574, 604, 693, 776–779
international 13, 299, 300, 487, 501, 607
Crime convergence 84, 232, 588, 623
Crime data 72, 76, 115, 122, 124, 285, 286, 289, 290, 739
Crime as disease 365
Crime information 85
Crime and Justice Research Centre 23
Crime news 81–86
Crime policy 21, 138, 511, 513–516, 521, 522
Crime prevention 10, 12, 13, 37, 73, 89, 100, 140, 147, 149, 233, 252, 264, 289, 293, 485, 502, 504, 562, 573, 577, 578, 580, 677, 689, 756, 797, 816–818, 820, 823, 824. *See also* Prevention of crime
Crime rate 83, 114, 131, 132, 136–138, 141, 142, 290–292, 348, 357, 492, 543, 544, 552, 559, 560, 738, 740, 741, 747
Crime reporting 114, 740
Crime(s)
against business, 73, 74, 275
against humanity 699
against older persons 45
conceptions of 48, 300, 618–620, 627, 692
definition of 34, 114, 119, 123, 148, 259, 261, 336, 408, 518, 689, 692, 822, 849, 850
fear of 44, 65, 71, 105, 114, 120, 138, 210, 292, 319, 335, 342, 357, 412, 413, 500, 501, 573, 644, 654
misperceptions 83, 114
perceptions of 113, 114, 253–255, 286, 302, 400, 491, 533, 536, 545, 548, 595, 653, 697, 737
police-recorded 67, 69, 72
prevalence of 66, 71, 73, 75, 82, 123–126, 136, 164, 192, 194, 206, 210, 222, 232, 379, 728
reporting of 81, 104, 113, 272, 292, 359, 423, 535, 741, 746
underreported 72, 120, 124, 126, 194, 255, 271
victimless 118
Crimes Act 1961 (New Zealand) 256

Crimes (Aviation) Act 1991 334
Crimes (Criminal Organisations Control) Act 2009 103
Crimes (Criminal Organisations Control) Act 2012 103
Crimes (Foreign Incursions and Recruitment) Act 1978 331
Crime scene analysis 849
Crime scene management 503
Crime and Safety Survey 73, 74, 77, 113, 114, 192, 193, 272, 287, 659, 691, 739
Crime, Shame and Reintegration (1989) 580
Crime-solving 292
Crime statistic(s) 37, 68, 72, 113, 114, 121, 126, 132, 138, 141, 175, 177, 179, 255, 280, 572, 741, 744, 746, 747
Crime Statistics Act 2014 (Vic) 37
Crime-stopper 487
Crime survey(s) 23, 270, 272, 654, 659
Crime of Torture Act 1989 88–91
Crime trend analysis 118
Crime trend(s) 12, 37, 114, 118, 132, 138, 155
Crime Victimisation Survey 74, 124, 132, 135–139, 271, 274
Crime wave 744
Crime-ware 221
Criminal
  law, 4, 5, 6, 9, 20, 22, 56, 101, 105, 106, 119, 141, 216, 271, 334, 335, 351, 363, 381, 511, 514–516, 518, 519, 521, 580, 592, 624, 650, 668, 674, 675
  organisation(s) 104, 106, 159, 162, 165–169, 301, 368, 521
  profiling 847, 528, 853, 854
  subculture 162
  trajectories 69
Criminal career(s) 76, 558–560
Criminal Code Act 1995 (Cth) 224, 230, 256, 302, 336
Criminal conviction 453, 613, 850
  prior 850
Criminalisation 89, 237, 257, 263, 300, 309, 488, 516, 519, 592, 670, 673, 686, 745
Criminal justice
  administration, 14, 66
  reform 9, 10, 39, 488, 668, 673, 676, 689
Criminogenic
  factor(s), 488
  strain 547, 552
The Criminological Imagination 775, 776
Criminological research institutions 37
Criminology
  administrative, 33, 47, 577, 580, 581, 755
  authoritarian 693
  critical 571, 572, 579–582, 678, 715, 868
  cultural 571, 574, 620, 756
  developmental 27, 29, 559, 865
  mainstream 576, 579, 582, 587, 589, 678, 753, 758
Criminology Research Act 1971 (Cth) 34, 39, 41
Criminology Research Council. *See* CRC
Criminology Research Fund 9
Critical race theory(s) 581
Cronyism 252, 253
Cross+Check 853, 855
Cross-border policing 227
Cross-examination 423–430
Cryptowall 3.0 102
Cultural
  abuse, 450, 451
  artefacts 771
  assimilation 687, 727

awareness 178, 380
change 215, 429, 544
competency 674, 675
criminology 571, 574, 620, 756
deprivation thesis 715
identity 691, 697, 716, 719, 720, 729, 732, 760
practice(s) 294, 651, 685, 690, 760, 771
programme(s) 476, 691
responsivity 714, 731
Culture
of control, 85
gun 325, 797
hacker 227–228
national 286
Current Issues in Criminal Justice 12
Customary law 178, 383
Cyberbullying 212, 225
Cybercrime 47, 75, 77, 95, 102, 212, 221–229, 231–233, 271, 273, 280
Cybercrime Act 2001 (Cth) 102
Cybercrime Convention 231
Cyberdefence 223
Cyberflashing 211
Cyberfraud 89
Cyberjacking 233
Cybersecurity 223, 227, 231–233
Cybersecurity Framework 232
Cyber Security Strategy 102
Cyberspace 225, 228, 232
Cyberstalking 205, 210, 211, 213, 225
Cyberterrorism 223, 225
Cybertheft 232
Cyberwarfare 223
Cycle of criminality 730

D

Daesh. *See* ISIS
Daily Telegraph 84, 790
Dairy 625, 628
Dangerous Men (1978) 604
Dark figure 125, 126, 745
Data
analysis, 76, 138
audio 637
big 76
by-product 69, 713
court 69, 71, 77, 115
death 71, 385, 796
matching 280
open 746
output 122, 124
police 85, 123, 132, 136
sources 66, 69, 75, 77, 115, 126
survey 71, 72, 77, 132, 192, 222, 255
victimisation 123
visual 637
warehousing 68
Dawn raids 183, 184
Dealing in stolen goods 164
Death data 71
Death penalty 142. *See also* Capital punishment
Deaths
in custody, 67, 98, 355, 379, 580, 668, 671, 675, 676
in prison 472
Decarceration 488, 732
Deception 209, 222–224, 227, 270, 271, 835
Declaration of Independence 697, 704
Decolonisation 693, 694, 740, 757, 760
Decolonising 754, 756, 757, 760, 761, 762, 764, 765
Deconstruction 588, 590, 597
Decriminalisation 488
Decriminalise 595
Deep-web 221
Defence lawyer(s) 105, 430
Deficit paradigm 716
Definition of crime 119, 123

Degradation 193, 452, 620, 625
Delay
before trial, 426
during trial 426
Delinquency 394, 487, 544, 546–548, 551, 564, 589, 593, 594, 820
Democracy 320, 323, 473, 650
Demography 131, 142
Demonisation 87
Department of Conservation 621, 622
Department of Corrections 68, 121, 349, 469, 473–475, 609, 691, 727, 731, 732, 739
Department of Foreign Affairs and Trade 319
Department of Immigration and Border Protection 308
Department of Social Services 823
Department of Social Welfare 689, 690
Dependence
economic, 623
Deportation 301, 339, 831, 834
Depression 196, 197, 550, 707
Deregulation 352, 354, 488
Desistance 69, 156, 490, 548, 560, 637, 638
Detainees 306, 594, 758
Detention facility(s) 450
Deterrence
general, 364, 366
Specific 364, 365
Developmental
criminology, 27, 29, 557–559
prevention 816, 817, 821, 824
psychology 558
Developmental and life-course criminology 557, 558, 563, 565–567
Deviance 20, 25, 26, 87, 89, 119, 159, 161, 162, 300, 543, 544, 546, 589, 590, 737, 742, 745, 776, 849
Deviancy amplification 745, 747
Director of Public Prosecutions 96, 230, 259, 304, 382
Disability 75, 428, 672, 840
Disaggregation 711
Disciplinary
hearing(s), 474
measure(s) 527, 531
offence(s) 6, 672
Disconnection 727
Discourse
gendered, 591
policy 777
political 301, 309
racial 741
Discretion
judicial, 99, 363, 364, 367, 372–374, 593
Discrimination
gender, 549, 550
Dislocation 700, 713, 715
Disparity
ethnic, 121
Disparity in sentencing 364, 374. *See also* Sentencing disparity
Displacement 148, 149, 155, 462, 516, 697
Dispossession 668, 685, 686, 713, 727, 755, 764, 771, 774
Dispute resolution 456, 593, 685
Dissent 528, 729
Distributed Denial of Service (DDOS) 224, 226, 231
District Koori Court 382
Diversion 115, 395, 669, 721, 831. *See also* Diversionary intervention
Diversity 89, 286, 287, 497–499, 587, 588, 590, 591, 594, 619, 677, 788, 869
Division of labour 164

Doctrine of Discovery 697–700
Doctrine of Settlement 668
Domestic violence 88, 124, 131, 134, 140, 141, 182, 193–200, 373, 382, 385, 580, 609, 654, 660, 670, 698, 706, 820
Domestic violence courts 199, 373
Domestic Violence Death Review Team 192
Double jeopardy 97, 98
Dress code 184
Drink-driving 788, 797, 802, 805, 806, 810, 811
Drinking culture 518
Drivers of Crime 19
Driving offence(s) 98
Drug(s)
  addiction, 492, 638
  cartel(s) 301
  court(s) 364, 372–374
  trade 623
  trafficking 102, 103, 280, 372, 623, 775, 841
  treatment 372, 373, 488, 837, 841, 842
  use 73, 74, 77, 142, 373, 549, 641, 820, 841
Drug Use Monitoring in Australia (DUMA) 74, 77
Due process 300, 333, 491
Duluth Power and Control Wheel 199. *See also* Duluth model
Dunedin Multidisciplinary Health and Development Study 561
Durie, Mason 715
Durkheim, Emile 354, 544
Duty of care 477, 671

E

Early intervention 319, 280, 754, 816
East Timor 319–323, 624
Ecocide 617, 626, 627
Eco-justice 618, 619, 620
Ecological rights 619
Ecology 619, 819
E-commerce 221
Economic abuse 193
Economy 141, 142, 285, 301, 478, 493, 501, 575, 625
Eco-philosophy 620
E-crime 142
Education 5, 10, 12, 24, 25, 33, 35, 36, 183, 206, 211, 214, 215, 233, 254, 257, 258, 261, 356, 358, 411, 422, 425, 430, 441, 451, 454, 472, 486, 487, 492, 518, 544, 565, 603, 605, 607, 609, 611, 643, 669, 675, 687, 690, 701, 706, 713, 722, 808, 817, 818, 822, 823, 838, 841
Educational programme(s) 472, 807, 841
Einstellung effect 745
Elders 380–382, 384, 386, 390, 399, 674, 685, 719, 761, 764, 765
Election campaign 307
Electronic monitoring 44, 467, 485. *See also* Electronic offender monitoring
Emotional
  abuse, 193, 197
  harm 692
  restoration 397, 412
Emotion(s) 83, 142, 195, 197, 216, 232, 276, 407, 409–411, 414, 416, 545, 547–549, 550, 551, 640, 838, 841
Empiricism 574, 588, 589, 595, 597
Employment 35, 162, 196, 211, 216, 238, 246, 272, 274, 275, 352, 485, 492, 637, 653, 669, 718, 727, 728, 747, 818, 834, 841
Empowerment 95, 715, 732, 770
Endangered species 618, 621, 623, 626
Enforcement priorities 292

English, Bill 358
Environmental
  conservation, 295
  crime 44, 47, 288, 326, 617, 618, 620, 621, 623, 624, 628
  harm 617–625
  law(s) 617, 624
  protection 618, 624
  regulation 253, 617
Epigenetic(s) 707
Epistemology 641, 701, 765
Equality
  before the law, 668
  gender 35, 550
Espionage 102, 223–225
Ethnic
  cleansing, 320
  crime 87
  disparity 121
  gangs 726, 741, 742
  identity 181, 185, 729
  minorities 87, 462, 572, 752
Ethnography 633
EU. *See* European Union
Eugenics 669
Eurocentric 590, 591, 678, 772, 777
Eurocentrism 770, 771
European Union 270, 302, 623
Europol 623
EuroVista: Probation and Community Justice 607
Event security 498, 499, 501, 503
Evidence Act 2006 428
Evidence-based sentencing 364, 371, 372, 374
Evidence in chief 422, 425
Evidentiary rules 95
Evidentiary standard 135, 259, 452
Excessive force 526
Exclusive Economic Zone 622
Execution 226
Experiential knowledge 855, 857
Experimental criminology 576
Expert Advisory Group on Family Violence 20
Expert Panel on Asylum Seekers 307
Ex-prisoner(s) 351, 605, 607, 634, 730, 833
Extortion 115, 116, 163–165, 167, 209, 225, 252, 254, 255, 835
Extremism 223, 519, 521, 862

F

Fa'a Samoa 177, 178, 181
Facebook 89, 90, 208, 213, 222, 342
Fairness
  procedural, 397
Fair trial 99
Falconio, Peter 287
False advertising 279, 573
False income reports 270
Family 9, 20, 38, 71, 84, 91, 120, 124, 156, 162, 181, 182, 194–196, 198–200, 240, 287, 293, 326, 332, 335, 437, 442–444, 452, 483, 497, 506, 521, 543, 546, 549, 562, 637, 642, 654, 660, 676, 684, 686–689, 698, 712–715, 718, 721, 727, 729, 730, 755, 778, 791, 819, 821–823
Family Contact Development Officer 444
Family links 337, 443, 444
Family support 823
Family violence 72, 131, 140, 141, 193, 194, 196, 198–200, 292, 379, 383, 385, 440, 445, 842
Family Violence Death Review Committee 20
Family Violence Prevention Legal Services 672
Farm crime 287–289
Farming practices 625, 626
'Fart tax' 626

FBI 149, 167, 221, 231, 847–851, 854, 855
Fear of crime 114, 138, 357, 500, 573
Federal Bureau of Investigation. *See* FBI
Female Crime: The Construction of Women in Criminology 588
Feminist
  criminology, 587–598, 869
  critique 587
  scholarship 579, 587, 590, 596, 777
Fictitious investments 270
Fight club(s) 473
Filicide 197
Financial collapse 237, 240
Financial transactions 102, 269
Findlay, Mark 13
Finnane, Mark 3, 5, 8, 10, 84
Firearm(s)
  buyback, 794
  offence(s) 98
  registration 792
  registry(s) 792
Firearms and Guns Act 1931 (WA) 788
First Nations 13, 23, 565, 589, 775. *See also* Indigenous people(s)
Fish farms 620
Fish populations 620
Fitzgerald Inquiry 259
Flax-roots 21, 715, 721
Foetal alcohol spectrum disorder(s) 764
Food security 295
Forde Inquiry 455
Foreign aid 318
Forensic(s)
  criminologist(s), 851
  psychology 848, 856
Forgery 271
Forgiveness 409, 410, 412, 413
Forgotten Australians 455
Forum sentencing 408
Foster care 451, 452, 455
Foundation for Alcohol Research and Education (FARE) 518
Four Corners 574, 815
Fraser, Malcolm 323
Fraud
  advance fee, 229
  against the Commonwealth 68, 272
  card 270, 274, 275
  credit card 222, 225, 229
  welfare 280
Free market 483, 578
Free market economy 352, 354
Freedom fighter 742
Freedom of association 105, 337
Freedom of speech 105
Frequency of reoffending 389
Frontline
  police, 183, 500
  policing 747, 806
Fuel theft 288

G

Gallen report 530, 532
Gallipoli 317–319
Gamarada Community Healing and Leadership Program 678
Gambling 38, 167, 440
Gang(s)
  activity, 183
  affiliation(s) 177, 183, 729
  associates 610, 728
  membership 183, 184, 726
Gay 194, 199, 531
Gender
  differences in offending, 544, 546, 867
  discrimination 549, 550
  equality 35, 550
  inequality 131, 206, 214, 215, 593, 594

pay gap 550
Gender-based
harassment, 205, 212, 213
violence 191, 206, 215, 595
General deterrence 364, 366
General strain theory 544–551
Genetically modified organisms (GMO) 619
Genocide 321, 323, 678, 697, 698, 757, 779
Geo-Coded National Address File (G-NAF) 76
Geographical code 286
Geographical isolation 354, 623
Geography
imaginative, 759
Gilbert, Jarrod 26, 85, 161, 163, 168, 170, 610
Gilmore, Gary 633
Girls' home(s) 182
The Girls in the Gang 610
Glasgow airport attacks 338
Global Centre for Evidence-Based Corrections and Sentencing 372
Global Economic Crime Survey 271
Global financial crisis 239, 270, 354, 358, 483
Global Media Monitoring Project 88
Global Militarisation Index 351
Global North 581, 755, 756
Global Solutions Limited 477
Global South 581, 582, 755
Global warming 619, 626–628
Globalisation 13, 89, 301, 592
GMO. *See* Genetically modified organisms
Good behaviour bond(s) 213, 293, 341, 363
Good Lives approach 840
Government services 486, 488
Governor-General 532
GPS offender tracking 485
Graffiti 117, 118
Green Cultural Criminology 620
Greenhouse gas emissions 625, 627
Grey figure 123
Grey-hats 227
Grid sentencing 370
Group 4 468
Group counselling 837
Growing Up in Australia 564
Growing Up in New Zealand 564
Guidelines for Ethical Research in Australian Indigenous Studies (2012) 762
Guilt 65, 336, 337, 410, 452, 548, 550
Guilty plea 367, 426
GUMURRI Centre 381
Gun
culture, 325, 797
lobbyists 515
Guardianship 264, 291, 502

H

Habitual criminal(s) 238, 369
Habitual Criminals Act 1906 369
Hacker(s) 222, 227–229
Hacker culture 227, 228
Hackers: Heroes of the Computer Revolution 228
Haider, Abdul Numan 332
Hanan, Ralph 18, 28
Harassment 198, 205, 206, 210–215, 225, 308
Harding, Richard 55
Hardship 356, 367, 442, 443
Harm
conceptions of, 300, 618, 619
emotional 692
environmental 617–621, 625, 628
institutionalised 620
psychological 191, 693
Harm reduction 733, 809, 841
alcohol 804, 810
Harm to self 831. *See also* Self-harm
Hate crime 20, 580

Hawkins, Gordon 8, 13
Hazardous waste 618, 621
He Wakaputanga 697, 704. *See also* Declaration of Independence
He Whaipaanga Hou: The Māori and the Criminal Justice System 18
Head injury 728
Healing 317, 318, 324, 677, 678, 690, 692, 693, 715, 761, 765
Health 13, 14, 20, 27, 38, 46, 56, 61, 66, 71, 73, 74, 76, 87, 196, 239, 253–255, 277, 294, 349, 355, 358, 398, 437, 439, 440, 443, 445, 454, 486, 490, 518, 520, 549, 561, 563, 565, 607, 610, 611, 621, 626, 671, 688, 698, 706, 707, 715, 717, 721, 722, 728, 729, 761, 764, 787, 789–791, 797, 804, 816, 817, 819–822, 838, 841, 848
Health care 196, 451, 502, 669
Hegemony 581, 644, 720, 756, 774
Hells Angels 88, 103, 160, 161, 167–169, 610
Helpline 444
Herald Sun 89
Heterosexism 199
High risk
  crime, 154
  targets 151
HighScope Perry Preschool 818
Hijacking 334
Hilton bombing 331
Historic Claims Team 456, 460, 461
Hoddle Street massacre 789
Holsworthy barracks case 341
Home detention 363, 477, 748
Home Office 24, 34, 46, 270, 497
Home visits 444, 819, 822
Homelessness 38, 196, 373, 488
Homelessness courts 373
Homicide(s) 44, 67, 71, 83, 98, 101, 113, 132, 134, 140, 141, 192, 196, 198, 255, 593, 712, 788, 789, 794–796, 835, 848, 849
  rate(s) 134, 135, 546
Homophobia 199
Hood, Roger 7
Hospitalisation 196
Hostage(s) 197, 332, 338
Hot spot targeting 121
Hot spots 121, 183
House of Commons Select Committee on Aborigines 700
Household crime 124–126
Household victimisation survey(s) 72
Housing 126, 140, 356, 485, 488, 669, 715, 727, 831, 841, 864
Howard government 335, 759
Howard, John 323, 335, 488, 791, 793, 834
Howard League 488
Hui Taumata Māori Economic Summit 687
Human ecology 819
Human rights
  abuse(s), 305, 318, 337
  violation(s) 121
Human Rights Act 1993 536, 550
Human Rights and Equal Opportunity Commission (HREOC) 449, 673
Human Rights and Equal Opportunity Commission Inquiry into Racist Violence 140
Human Rights Commission 211, 355, 454
Human trafficking 44, 68, 623, 775
Humanitarian 13, 303–305, 307, 309, 604
Humiliation 193, 216, 422

Hypermasculinity 161, 165, 171
Hyper-reality 738, 747

I
ICAC 38, 258, 261–264
ID theft 274. *See also* Identity theft
Identity
  cultural, 691, 697, 716, 719, 720, 729, 731, 732, 760
  ethnic 181, 185
  fraud 43
  national 148
  prison 728, 729, 733
  prosocial 411, 838
  theft 102, 222, 225, 232, 233, 274, 275, 277, 280
Ideology
  colonial, 652, 698
Illegal
  dumping, 288, 618, 624
  fishing 620, 621
  hunting 288
  logging 252, 326, 618
  sawmilling 622
  taking of flora and fauna 618
  trade of endangered species 621, 623
Imaginative geography 759, 772
Immigration 230, 254, 304, 308, 309, 322, 339, 347, 353, 462
Impartiality 526
Imperialism 775, 778
Implicit Association Test (IAT) 744
Imprisonment
  effects of, 23, 642
  ineffectiveness of 831
  parental 438, 439
  rate(s) 58, 59, 293, 294, 347, 358, 366, 386, 670, 725, 738, 739, 832
Impulsivity 836
Impunity 228, 525, 529, 531
Incapacitation 99, 364, 365, 374, 832
Incentive models 837
Income inequality 352, 356, 543
Indefinite sentence(s) 349, 350
Independent Commission Against Corruption. *See* ICAC
Independent Police Conduct Authority Act 1988 532, 534, 535
Indian Act 1876 700
Indigeneity 81, 86, 126, 401, 590
Indigenisation 690, 720, 779
Indigenous
  children, 439, 700, 764
  communities 294, 379, 384, 385, 389, 399, 476, 492, 552, 592, 593, 667, 670, 692, 726, 754, 759, 776, 819, 822
  community organisation(s) 381
  courts 386, 673, 674, 712, 714
  criminologist(s) 733, 753, 773, 775, 777
  criminology 668, 693, 771, 773, 778
  culture 593, 697–700
  healing camps 761
  issues 18, 381, 678, 770, 771
  justice 29, 580, 678
  juvenile(s) 368, 379
  knowledge 678, 755, 760, 761, 765, 769, 772, 779
  land 697, 699, 759
  law 667
  men 755, 759
  methodology(s) 679
  offender(s) 93, 293, 381, 386, 399, 673, 674, 715, 758
  other 756
  perspective 683, 756
  policy 35, 38
  population 83, 251, 293, 693, 731
  priorities 754
  scholars 596, 679, 694, 769–773, 780
  sentencing courts 379–390
  staff 512

studies 762
victims 402
victimisation 754
voices 755, 772
women 193, 194, 196, 588, 593, 670, 679, 755
young people 379, 672, 674, 677, 678
youth 677, 764
Indigenous artefacts 770
Indigenous Australian(s) 10, 191, 193, 194, 200, 293, 294, 379, 380, 673, 754. *See also* Australian Aboriginal people(s); Indigenous people(s)
Inequality 20, 131, 206, 214, 215, 352, 353, 543, 579, 593–595, 597, 707, 716, 717, 816
Infanticide 89
Inferiority 669
Information Sharing Project 68
Inheritance scams 274
Injustice
ecological, 624
gender 549
social 549
Insider trading 271, 573
Institute of Criminology (VUW) 6, 14, 17, 18, 22, 27, 29, 53, 55
Institutional
abuse of children, 449, 450, 461
anomie theory 544
bias 379
breakdown 472
care 729
racism 693, 727
Institutionalisation 401, 402, 644, 689, 692, 726
Institutionalised racism 770
Integrated Data Infrastructure 68, 71, 372
Integrated Offender Management System 68
Intellectual property rights 760, 770
Intensive supervision 841
Interagency 62, 817
INTERFET 323
Intergenerational
disadvantage, 727, 733
trauma 692, 698, 706
links in offending behaviour 439
Intergovernmental Panel on Climate Change 627
Intermediary scheme 427, 430
International Crime Victimisation Survey 74
International Association of Chiefs of Police (IACP) 445
International Covenant on Civil and Political Rights 99
International Crime Victim Survey 654, 658
International human rights law 303
International law 5, 6, 10, 99, 697–699
International trade 295, 618
International Violence against Women Survey 72, 194
International Youth Development Study 563–564
Internationalisation 519, 606, 612
Internet 83, 89–91, 102, 114, 205, 208, 210, 214, 215, 221, 222, 224, 226–231, 269, 274, 281, 340, 522, 527
Internet of Everything 221
Internet of Things 595, 598
Interpersonal violence 124
INTERPOL 623
Intersectionalism 592, 593, 595–597
Intersex 194, 597
Interventions
group-based, 836
Interviewee(s) 156, 634, 636, 638, 639, 641, 642
Interviewing 318, 610, 634, 636, 637, 641, 642

Intimate partner violence 550, 594
Intimate relationships
violence in, 192, 550
Intimidation 153, 164, 166, 193, 514
Investigative journalism 91, 243, 308
Investigative psychology. *See* Criminal profiling
Involuntary treatment 839
ISIL 341. *See also* ISIS
ISIS 325, 332. *See also* Islamic State
Islamic state 332
Isolation 150, 193, 195, 196, 292, 293, 353, 354, 437, 452, 623, 641, 672, 730
Iwi Liaison Officers 689, 777

J
Jabar, Farhad Khalil Mohammad 332
Jackson, Moana 18, 21, 687–690, 719, 720, 745, 773, 778
James Hardie 244–246
Jihad 338, 341
Journal of Prisoners on Prison 604, 606
Judicial
bias, 776
discretion 99, 363, 364, 367, 372, 593
neutrality 425
scrutiny 475
Judicial Aboriginal Cultural Awareness Program 380
Junee Prison 468, 470, 475
Jury 97, 337, 339, 425, 426
Just deserts 365
Justice
access, 427, 673
ecological 620
environmental 620
reform 9, 10, 28, 39, 488, 668, 673, 676, 689, 729
reinvestment 294, 489, 490, 492, 679
Justice Sector Unique Identification Code 1998 69
Justice access 427, 673
Justness
presumed, 650
JustSpeak 28
Juvenile delinquency 44, 99, 182, 388, 389
Juvenile justice 23, 68, 70, 397, 580, 588, 593, 678. *See also* Youth justice
Juvenile Justice National Minimum Dataset 70
Juvenile offender(s) 99, 388, 389

K
Kalgoorie-Boulder Community Court 382, 383
Kant, Immanuel 365
Kaupapa Māori 691, 692, 703, 732. *See also* Māori worldview
Kaupapa Māori Rehabilitation Units 691
Kaupapa Māori support services 692
Kelling, George 576
Kelly, Ned 148
Kelly, Thomas 101, 517
Key, John 183, 473
Key performance indicator(s) 475, 527
Khmer Rouge 319, 320
Kidnapping 84, 89, 116, 123, 133, 164, 339, 531, 702
Kimberly Land Council 762, 763
King-hit 100
Kings Cross 517, 518
Kinsey, Richard 572
Kirby, Michael 11
Kiwi (identity) 179

Koori Court Division Reference Group 381
Koori courts 373, 381, 382, 385, 387, 388, 674, 765
Kulla Kulla, Charles 671

L
Labelling 87, 119, 175, 180, 185, 276, 638, 653, 688, 690, 719, 741, 745, 746
Labor Party 578
Lake Alice Hospital 454
Land alienation 687
Land March 742
Land Settlement Act 1863 685
Language
  analysis, 635
  competence 417
  deficit 411–413, 417
  inappropriate 425
  proficiency 407
Lashkar-e-Taiba 339
Last Drinks campaign 518
Late-night economy 141
Law and order 17, 27, 28, 81, 83, 91, 96, 177, 178, 349, 354, 355, 500, 514, 577, 578, 741
Law Council of Australia 99, 100, 104, 169, 334
Law enforcement 6, 10, 35, 38, 68, 78, 83, 102, 126, 162–164, 166, 168, 170, 184, 207, 212, 215, 226, 230–233, 261, 277, 286, 289, 371, 440, 518, 519, 533, 605, 618, 624, 847, 851, 855
Law Enforcement System (LES) 68
Law making 177, 659
Law reform 9, 11, 37, 44, 45, 95–97, 371, 428, 515, 580, 672, 673, 757, 789–792, 795, 796
Law Reform Commission 11, 96, 366, 757, 790, 792
Leading questions 423, 424
Lea, John 572
Learning deficits 411
Left idealism 571, 578, 581
Left realism 571, 572, 574, 575, 577, 581, 582
Legal
  action, 452
  authority 649, 698
  consciousness 649, 651–655, 658
  doctrine 650
  mobilisation 649, 654–659
  practice 7, 650
  procedure 650
  system(s) 67, 97, 194, 254, 654, 685
  theory 651
Legality 243, 305, 322, 595, 618, 625, 628, 650–653, 698, 699
Legislation
  colonial, 610, 697, 698, 702, 704–706, 708
Legislative reform 141
Legitimacy 175, 183, 245, 259, 300, 305, 469, 473, 491, 525, 667, 690, 698, 707
Lesbian 194, 195, 199
Level of Service Inventory 835
LGBTQI 191, 194, 195, 200, 597
Liaison officer(s) 503, 505, 674
Liberalism 772
Licensing restrictions
  alcohol, 802
Life course 20, 193, 557, 558–567, 638
Life-course criminology 557–559, 563–567
Life-history 633
Life imprisonment 336
Life story(s) 633, 637
Lifestyle 159, 160, 287
Lindt Chocolate Cafe 332
Liquor Act 1992 802
Liquor ban 808

Liquor licensing authorities 518
Liquor store(s) 149, 150, 154
Literacy 411, 672
Little Black Book of Scams 278
Liverpool Desistance Study 637
Livestock theft 287–289
Lobby groups 354, 515
Lobbying 28, 39, 198, 244, 253
Lockout policy 803
Lodhi, Faheem 339, 340
Lombroso, Cesare 33
London Action Group 232
London bombings 87
Longitudinal
  analysis, 69
  data 559, 564
  research 559
  study(s) 398, 561, 564, 566
Long-term prison sentence(s) 349
Lotonu'u (patriotism) 185
Lottery scams 274
Lotus Glen 470, 472

M

Mabo 753, 765
Macro-aggressions 771
Mafia 163, 164, 167, 178, 228, 302
Mafia 1962 178
MAI Journal 20
Mainstream criminology 576, 579, 587, 589, 678, 753, 758
Mainstream media 85, 595
Making a Murderer 91
Mallah, Zaky 337, 338
Malware 209, 222–226, 232, 233
Mana 596, 701, 702, 704, 715, 720, 873
Mandatory non-parole period(s) 367
Mandatory sentencing 98–101, 104, 364, 367, 368, 577, 580, 868
Manslaughter 101, 134, 385, 611
Māori
  advocates, 395, 430, 462, 469, 490, 718, 719, 770
  community(s) 689, 715, 719
  counselling 394, 476, 610, 780
  crime rate 740, 747
  criminality 730, 743, 745, 775
  criminology 683, 684
  culture 687, 688, 720, 731, 865
  customs 687, 716
  engagement 712, 713
  identity 701, 702, 716, 718, 728, 729, 731, 732, 865
  imprisonment 355, 356, 685, 693, 725, 740, 743, 747, 776
  justice 611, 683–693, 712–717, 719, 727, 730, 732, 739, 748, 769, 772, 776, 777
  language 86, 691, 697, 707, 716, 719, 720, 771, 873
  law 366, 529, 592, 611, 684, 687, 697, 701–704, 711–713, 715, 717, 718, 727, 741, 742
  lore (law) 702
  media, in the 453, 498, 527, 595, 610, 741, 744, 745, 747
  men 355, 692, 725, 728–730, 743
  philosophies 687–691, 698
  population 369, 683, 692, 706, 717, 720, 721, 725, 726, 728, 730, 731, 739
  prison population 121, 355, 356, 369, 611, 706, 725, 726, 728
  protocols 691, 706, 716
  rights 18, 121, 355, 395, 684, 686, 687, 716, 770
  service providers 961, 764
  urbanisation 727
  values 354, 591, 684, 685, 687–389, 711–713, 729

women 88, 126, 191, 199, 200, 355, 531, 591, 595, 692, 693, 706, 711, 729, 730
worldview 687, 732. *See also* Kaupapa Māori
young people 87, 126, 175, 356, 686, 712–715, 717–221
youth 394–399, 401, 686, 689–691, 711–714, 717–720, 729, 730, 745, 769, 779. *See also* Rangatahi Māori
Māori and the Criminal Justice System He Whaipānga Hou (1988), 687
Māori Criminogenic Needs (MaCRN) 731
Māori Focus Units 691, 777
Māori Party 471
Māori Prisoners Trials Act 1879 685
Māori Taskforce on Whānau Violence 193
Māori tikanga 691, 865. *See also* Tikanga Māori
Māori TV 748
Māori Warden(s) 498
Māori-crime nexus 744, 746, 747
Māoriness 746
Marceau, Christie 84
Marginalisation 20, 21, 411, 492, 565, 591, 593, 670, 673, 686–688, 693, 694, 707, 713, 715, 716, 727, 732, 775
Marijuana 605, 743
Marketisation 484, 486–489, 491–493
Marriage 162, 179, 352, 559
Maritime New Zealand 622
Martyr 338
Masculine 160, 180, 195, 551, 587
Masculinity 143, 549, 551, 590, 592, 593
Mass incarceration 21, 727
Mass media 86, 738, 790
Mass shooting 787, 795, 796
Mass unemployment 741
Mātauranga Māori 694, 701
Mater University Study of Pregnancy 563
Matthews, Roger 152–155, 572, 574, 580, 803
Maturity 184, 547, 548
Maturity gap 547, 548
Maximum security 341, 469, 604, 608. *See also* Supermax
Maximum security prison 337, 608
Mayhew, Patricia 34, 46, 47
Meagher, Jill 89–91
Media
Māori in the, 20, 717, 730, 737–748
narratives 89, 738
representations 86
Mediation service(s) 485
Medical Research and Compensation Foundation 244
Medication 276, 634, 635
Mental health courts 373
Mental health
in prison, 20
Mentally Impaired Accused Act 1996 764
Merton, Robert 544–546
Methamphetamine 167
Methodology 72, 74, 82, 125, 136, 574, 577, 635, 763, 764, 819
Methylamphetamine 288
Metropolitan Women's Prison 472
Micro-aggressions 771
Middle-class 19, 545, 590
Mighty River Power 227
Migration Act 1958 302, 304
Migration
climate-induced, 627
forced 300
Military 160–162, 166, 254, 300, 307–309, 318, 321, 324, 339, 350, 685, 789–791
Military lifestyle 160
Military-industrial complex 350, 351

Millennium Development Goals 817
Miner(s) 244, 286, 514
Ministry for Primary Industries 622
Ministry of Health (MoH) 196, 454, 728
Ministry of Māori Development 18, 780
Ministry of Social Development (MSD) 179, 183, 184, 193, 195, 454, 502, 610
Minority group(s) 10, 451, 453, 741, 761
Misappropriation 271
Misconduct
  police, 527, 534, 536
Misleading advertisement 160, 807, 808, 811
Misrepresentation
  of crime, 737
Mission Australia 483, 488
Mobilisation of law 511
Model Criminal Code Officers Committee 97
Modus operandi 147, 150, 155, 514, 636
Moko 701, 743. *See also* Tattoo(s)
Money laundering 44, 45, 165, 225, 271, 301
Mongrel Mob 610, 728, 742
Monis, Man Haron 332
Moral panic 81, 87, 88, 368, 621
Morgan, Irene 56
Morgan, Neil 55, 56
Morris, Norval 5
Motor vehicle theft 117, 120, 124, 255, 291
Mount Gambier Prison 468
Move-on-powers 679
Mt Eden Corrections Facility 468, 473, 477
Mullighan Inquiries 455
Multilateralisation 485
Multinational corporations 243
Multi-Purpose Household Survey 124
Murder 81, 88–90, 97, 98, 101, 118
Murder-for-hire 163, 165
Murray, Charles 576
Murri Court(s) 381, 386–389
Muru 685
Muslim(s) 317, 335, 337, 340–342, 520

N

Narrative Criminology 621, 633–644
Narrative Study of Lives 633
Narrative(s) 89, 159, 299, 305, 393, 410, 411, 413, 414, 425, 595, 621, 628, 633–639, 641–644, 651, 652, 713, 726, 738, 757, 761, 776, 848, 864, 869
National
  crime data, 124, 290
  culture 286
  dress 287
  identity 148
  monitoring programme(s) 67
  security 102, 104, 105, 223, 252, 299, 334, 336, 337, 626
National Criminal Courts Statistics Unit 67
National Aboriginal and Torres Strait Islander Social Survey 73, 194
National Alcohol Strategy 803
National Armed Robbery Monitoring Program (NARMP) 152, 153, 156
National Centre for Indigenous Excellence 678
National Committee on Violence 12, 789, 792
National Corrective Services Statistics Unit (NCSSU) 67
National Crime Recording Standard 67, 68

National Crime Statistics Unit 67
National Drug and Alcohol Research Centre 517
National Drug Strategy Household Survey 73, 74, 77
National Firearms Agreement 788, 791, 797
National Gun Summit 789
National Homicide Monitoring Program 71, 132, 134–135
National Information Development Plan for Crime and Justice Statistics 74
National Inquiry into Racist Violence 673
National Institute of Standards and Technology (NIST) 231–232
National Longitudinal Study of Adolescent Health 549
National Rangatahi Court Liaison 717
National Recording Standard for Crime 68
National Security Information (Criminal and Civil Proceedings) Act 2014 (Cth) 105
National Survey of Crime Victims 24, 501, 589
National Uniform Crime Statistics Committee 67
Native Department 700
Native District Circuit Courts Act 1858 685
Native Lands Act 1862 705
Native Reserves Act 1864 705
Native schools 686
Native Schools Act 1867 700
Native Title 383, 753, 762
Nauru Island 307, 309
Need assessment tool(s) 835
Neglect 45, 197, 285, 379, 449, 451, 452, 461, 678, 729, 759, 815, 819
Neighbourhood 114, 487, 490, 502, 571, 572, 636, 765
Neighbourhood watch 487, 502
Neo-colonialism 668, 670, 673
Neoliberalism 27, 477, 484, 486–488, 866
Nepotism 252, 254
Neutralisation 638
New crimes 66
New right criminology 575
New Zealand Crime and Safety Survey (NZCASS) 114, 192, 193, 739
New Zealand Criminology Symposium 21, 29
New Zealand Herald 82, 85
New Zealand Land Wars 685
New Zealand Ombudsman 22
New Zealand Police Complaints Authority 529
New Zealand Press Association (NZPA) 82, 477, 628
New Zealand Settlement Acts 705
New Zealand Treasury 349
New Zealand-born 176, 179, 185
New Zealand Constitution Act 1986 708
News media 22, 81, 84, 86, 91, 131, 207, 500, 608, 620, 738
Newspaper(s) 82, 90, 113, 354, 740–742, 790
Next Step Partners 469
Ngā Kooti Rangatahi 691. *See also* Rangatahi courts
Ngambra Circle Sentencing Court 382
NGO(s) 20, 232, 476
Nicholas, Louise 531
Nigerian scams 274
Night patrols 487, 676–679, 754, 761
Night-time economy 501
9/11 87, 327, 331–335, 738
No wrong door policy 445

Non-care leavers 451
Non-custodial sentence(s) 776
Nonhuman animals 620
Non-Indigenous allies 773
Non-parole period 98, 367, 368, 610, 611
Non-reporting 654
Norms, subcultural 162, 170
Norseman Community Court 383
Nowra Circle Court 674
Nuclear waste 621
Nunga Court 381
Nurse Family Partnership 819, 821
NZ Customs Service 622
NZ Insurance Council 501
NZ Law Commission 23, 366, 370, 371, 425, 805, 810
NZ Police 24, 26, 27, 68, 85, 114, 117, 118, 163, 169, 272, 279, 497, 500, 528–532, 534, 536, 622, 689, 739, 743, 744, 806
NZ Security Industry Association (NZSIA) 498

O
Obstruction of justice 531
Occupational health 253
OCSAR 37
OC spray 672
OECD anti-bribery convention 256
OECD Convention on Combating Bribery of Foreign Public Officials in International Business Transactions. *See* OECD anti-bribery convention
Offender(s)
  accountability, 393, 394, 396, 398, 401, 402
  homology 850, 853
  rehabilitation 45, 364–366, 374, 485, 489, 638, 691, 832–835, 838
  trajectory(s) 445
Offender(s) (*cont.*)
  treatment 53, 142, 293, 478, 832, 837–839
  repeat 122, 368, 831
Official data 119, 440
Offshore account(s) 243
Offshore detention centre(s) 306
Ombudsman
  childrens, 444
On-country 753, 754, 761, 765
1%ers 160
One-punch attack(s) 101, 131, 517
One-punch death(s) 95, 100
Online dating 206, 207, 211, 215
Onset offending 548, 560, 563, 566, 684, 714
Operation
  Austin, 531
  Auxin 230
  Credo 262
  Sovereign Borders 308
  Spicer 262
  Wickenby 243
Operational bias 120, 121
Opposition defiant disorder 561
Oppression 193, 592, 597, 757, 778, 818
Organisational freedom 526
Organised crime 75, 104, 159, 163–171, 223, 228, 232, 299–303, 515, 516, 521, 522
Organised Crime Squad 163
Outback 286, 287, 759
Outcome effectiveness 486
Outlaw club(s) 160, 161, 169
Outlaw motorcycle gangs 95, 103, 159, 161, 170, 514
Outlaws 160, 167, 231
Out-of-home care 450, 816
Outreach 443
Outsider 119, 165, 168, 634, 676, 679, 719, 740, 770
Outsider criminologist(s) 676
Outsider subculture 165

Overcrowded housing 669. *See also* Overcrowding
Overcrowding 62, 469
Overdose 841
Over-fishing 622
Over-policing 126, 184, 731
Overrepresentation 74, 81, 83, 121, 138, 176, 179, 183, 185, 355, 356, 379, 380, 438, 565, 668, 670, 671, 673, 683, 686, 694, 717, 726, 731, 732, 738, 739, 747, 754, 776, 777, 833
Oversampling 634
Oversight
  civilian, 529
  police 527, 528

P
Pacific Islands 175, 176
Pacific people(s) 126, 176, 179, 184
Pacific solution 306
Paedophilia 326
Pākehā 86, 184, 355, 591, 596, 686, 687, 690, 704, 707, 727, 731, 740, 745
Palm oil 626
Panama Papers 242, 251
Paramilitary 668
Paremoremo 668
Parental
  abuse, 729
  arrest 438, 441, 445
  imprisonment 438–440
  supervision 547
Parenting 440, 448, 548, 637, 823
Parole
  application, 635
  board 56, 611
  conditions 371, 730
Parole Act 2002 351, 395
Pasifika
  people(s), 596
  youth 691
Patch(es) 161, 166, 168, 318
Patch over 161
Paternalism 771, 772
Paternalistic 700, 772, 775, 779
Pathways to Prevention Child Longitudinal Database 823
Pathways to Prevention Project 578, 821
Patriarchy 193
Patriotism 179, 185
Pay gap 550
Payment-By-Results 489
Peacebuilding 318–320, 324, 325, 327
Peace Foundation Melanesia 324
Peacekeeper(s) 318–320, 323–325, 327
Peacekeeping 12, 317–321, 327
Peacemaking criminology 580
Peace operation 318–320, 323–327
Peach report 476
Peel, Robert 528
Penal
  policy, 18, 22, 84, 347, 350, 351
  populism 349, 351, 514
  reform 5, 18, 607
Penal Policy Review Committee 351
Penology 371
People smuggling 99, 300, 302, 303, 305, 307–309, 368, 627. *See also* Human trafficking
Periodic detention 18
Perjury 97, 526
Persistence 559, 746
Personal crime 271, 285, 572
Personal Fraud Survey 73, 222
Personality traits 836
Personal Record Number 69
Personal Safety Survey 72, 73, 136, 192, 550
Petty crime 162
Pharmacotherapy 832, 841
Pharmacy(s) 152
Phenotype 746

Phishing 221, 232, 274
PhishTank 232
Physical abuse 182, 193, 195, 197, 453, 651, 819
Piracy 225, 775
Plain left realism 575, 582
Plea bargaining 367, 372
Plural policing 497, 498, 506
Pluralisation
  of policing, 485, 497–507
Police and Crime Commissioner(s) 488
Police
  association, 500, 515, 517, 521
  attitudes 689
  brutality 528
  cautioning 395
  commissioner 259, 500, 503, 513, 531, 534, 727
  communications 502, 503
  complaints process 525, 536
  culture 527, 528, 675
  custody 74, 671, 672, 676
  data 132, 134, 136, 194, 275, 389, 561
  expenditure 512
  image 84
  intelligence 502
  legitimacy 525
  misconduct 527
  officer(s) 24, 88, 183, 194, 339, 342, 368, 394, 441, 499, 513, 516
  policy 440, 534
  powers 334, 514, 515, 517, 518, 521
  practice 183, 515
  public 85, 522
  records 133
  reform 21, 674, 675
  rural 44, 287
  statistics 67, 114, 117, 125, 739
  union 84, 86, 515, 789
  verbal 580
  website(s) 277
Police–community relations 677
Police Complaints Authority Act 1988 529, 532
Police Integrity Commission 38, 261
Police Local Service Areas 290
Policing
  areas, 121
  below government 502, 507
  beyond government 499, 502
  border 277, 300, 305
  by consent 528
  citizen based 497
  cross-border 300
  frontline 83, 121, 183, 184, 500, 514, 747, 806
  governmental 204
  plural 232, 485, 498, 506
  practice 440
  priorities 124
  proactive 118, 230, 573
  public 532
  racially biased 183
  sociology of 497
  strategy(s) 395
  transnational 300
Policy
  implementation, 512, 516, 521
  maker(s) 21, 65, 66, 69, 77, 126, 608, 677, 687, 810, 865
  trade 223
Political
  criminology, 572
  dissent 528
  mobilisation 591
  representation 770
  violence 334
Pollution
  air, 618, 624
  land 618, 624
  water 618, 624
Ponzi scheme(s) 270
Popular culture 199, 286, 620
Population density 285

Pornography
revenge, 208, 209
Port Arthur massacre 787, 795
Positivism 33, 574, 590, 776
Postcolonial 595, 596, 756, 760, 772
Post-release 440, 489, 490, 612, 613, 679
Poststructuralist 590
Post-traumatic stress disorder (PTSD) 197, 216
Poverty 7, 196, 318, 323, 371, 450, 487, 576, 670, 698, 706, 707, 713, 716, 818, 822
Power and Control Wheel. *See* Duluth Power and Control Wheel
Power and knowledge 753, 756
Power of the Patch 166, 168
Pre-crime 95, 334
Pregnancy 563
Pre-interview 639
Pre-prison 440
Presumption of innocence 96, 98
Prevent programme 521
Preventative detention 336, 833
Prevention First Strategy 502, 506
Prevention of crime 33, 53. *See also* Crime prevention
Preventive detention 349, 350
Price fixing 573
Prison
administration, 473
conditions 469, 471, 472, 475, 477, 608
culture 729, 842
hierarchy 634
identity 728, 729, 733
movement 579, 580
population 59, 97, 121, 140, 141, 293, 348, 355, 356, 358, 367, 369, 437, 438, 469, 608, 609, 611, 670, 706, 725–729, 832, 833
privatisation 467–469, 471, 472, 475, 477
reform 488, 604, 834
security 350, 472
staff 60–62, 471, 474, 636, 729, 832
Prison Fellowship 18
Prison Officers Association 471
Prison Officers Union 471
Prison Reform Trust 488
Prisoner
assault, 472
census 67
employment training 834
escort service(s) 477
riot 472
welfare 440, 473, 485
Prison-industrial complex 351, 353, 355, 356, 358, 359
Private
incarceration, 468
policing 513
prison(s) 63, 351, 468–470, 472–475, 477, 478, 484, 485, 580, 608
property 627
sector 24, 35, 36, 40, 46, 48, 259, 356, 467–470, 472, 473, 476–478, 493, 500
security 484, 497–502, 506, 507, 513
Privatisation 352354, 358, 467, 478, 488, 500
Privileges
loss of, 474
Privy Council 668
Proactive policing 118
Pro-arrest 198
Probation 36, 366, 371, 374, 444, 476, 488, 490, 607, 670
Probation service(s) 36, 488, 490
Problem-solving court(s) 372–373
Problem-solving skills 547

Procedural fairness 397
Procedural justice 372–374, 386
Proceeds of Crime Act 1990 168
Pro-crime attitudes 836
Productivity Commission 100, 512, 672, 673
Profiling, police 183
Profiling. *See* Criminal profiling
Profit 163, 165, 168, 237, 245, 246, 253, 270, 276, 305, 467, 469, 472, 576, 501, 625, 779
Programme evaluation 492, 493
Pro-gun 794
Prohibition 99, 104, 105, 300, 368, 383, 641, 801
Propaganda model 738
Property crime(s) 44, 120, 125, 132, 290, 291, 368, 655
Property damage 115–117, 124, 125, 835
Proportionality 99, 342, 363
Prosecution 6, 11, 23, 35, 69, 75, 97, 167, 227, 241, 243, 246, 257, 259, 276, 280, 289, 304, 305, 339, 340, 372, 424, 426, 427, 449, 511, 520, 527, 617, 649
Prosocial behaviour 411
Prostitution 23, 163–165, 385
Protection legislation 278, 669
Protection order(s) 198
Protest 246, 528, 675, 794
Provocation 95, 185, 265
Psychiatric treatment 332
Psychodrama 837
Psychological
  abuse, 193, 196
  criminology 20
  harm 191, 693
  profiling. *See* Criminal profiling
Psychology 8, 27, 450, 558, 610, 611, 701, 760, 761, 848, 855, 856
Psychosocial 562
Psychotherapy 837
Puao-Te-Ata-Tu (1988) 689
Public
  access, 91, 527, 535
  concern(s) 124, 138, 191, 452, 454, 515, 525, 789
  confidence 11, 86, 363, 500, 525, 529
  consent 738
  criminology 27, 29
  discourse 29, 126, 351, 355, 589, 717
  expenditure 349, 484, 486
  health 518, 520, 787, 789, 791, 797, 804, 820
  inquiry(s) 449, 455
  interest defence 104
  opinion 349, 354, 371, 515, 737, 738
  order 115–118, 116, 514, 518, 532, 835
  order offence(s) 115–118, 835
  peace 514
  police 85, 484, 485, 497, 506, 521
  policies 833
  policing 512, 513, 519
  policy 131, 373, 488, 517, 521, 659, 801, 824
  safety 139, 301, 371, 577, 797
  security 484
  violence 101, 159, 162, 169, 171
Public sector criminology 39, 47
Punishment
  corporal, 182, 453, 462
Punitive trend 140
Punitive turn 756
Puppet gangs 167

Q

Quantitative research 76, 577, 756
Quasipolice 95
Quayle, Mark 671
Queen Elizabeth 708

Queen Street massacre 789
Queensland Corrective Services Commission 470
Queer criminology 597
Questioning techniques 422, 423–425

R
Race 12, 33, 168, 232, 392, 592, 593, 653, 675, 692, 707, 717, 731, 741, 744, 746, 747, 756, 769, 770
Race Attitude IAT 744
Race-labelling 741
Racial discourse 741
Racial stereotypes 675, 745
Racialisation 88, 741
Racialised 333
Racism 12, 33, 87, 193, 345, 379, 454, 670, 671, 675, 676, 689, 693, 727, 742, 747, 754, 756, 770, 776
Racist
  abuse, 672
  attitudes 675
  belief(s) 594
  disavowal 596
  dispossession 771
  institutionally 687, 690
  justice system 19
  paternalism 771
  police 757
  policing 771
  violence 140, 673
Racketeer Influenced and Corrupt Organization (RICO) 167
Racketeering 164, 167
Radical bikers 165
Radical criminology 577, 659, 678
Radicalisation 280, 332, 519
Radioactive material 618
Radzinowicz, Leon 6, 120, 473
Random drug testing 372
Rangatahi courts 20, 373, 711, 713–717, 719–721
Rangatahi Māori 711–713, 717, 720
Ransomware 102, 223
Rape 23, 89, 164, 193, 206–209, 211–213, 366, 431, 531, 532, 591
Rape crisis 531
Rape survivor 531, 532
Rastafarians 742
Rate
  reporting, 72, 120, 288
Rational choice 576, 655, 657, 755
Rational choice theory 576
RCIADC 12
Reality therapy 837
Recidivism 76, 372, 373, 385–389, 399, 419, 444, 489, 717, 731, 831, 836, 837, 839, 840, 841, 856
Recidivism rate(s) 387, 388, 837
Recidivist(s) 131, 368, 371, 609, 634
Reclaim Australia 342
Reclaim scams 274
Reconciliation 317, 324, 326, 409, 593, 701
Recorded Crime Victim Statistics (RCVS) 118
Recorded offences 114, 117, 118
Recorded Offender Statistics (RCOS) 118
Recording bias 122, 134
Redemption 319, 638
Redfern riots 86
Redress 215, 393, 394, 396–398, 401, 402, 449–452, 455–459, 461–463, 597, 649, 675
Redress for victims 393. *See also* Victim redress
Redress schemes 449, 450, 451
Redress Western Australia 459
Reflexivity 579, 581, 589, 594
Reform cycle 525, 526, 528–531, 533, 536

Refugees 299, 300, 302–309, 322, 323, 332, 462, 612, 756
Regional Aboriginal Justice Advisory Committee 381
Regional analysis 290
Regional Assistance Mission to Solomon Islands 325
Regulatory
agencies, 320
capture 526, 527, 533, 534, 536
control 467
Rehabilitation 358, 364–366, 374, 485, 488, 489, 638, 642, 644, 691, 693, 730, 731, 816, 831–838, 841–843
Reimprisonment
rate of, 833
Reintegration 18, 20, 358, 394, 396, 468, 580, 638, 639, 730, 834, 841, 842
Reintegrative shaming 396, 397
Reintegrative Shaming Experiment (RISE) 397
Relapse prevention 838, 840
Relationship dysfunction 730
Release conditions 730
Remand prisoner(s) 59, 70, 96, 141
Remorse 409, 410, 413, 416
Remote Australia 286, 293
Remoteness 294, 347
Rendezvous discipline 760
Reoffending
risk of, 842
Reparation 10, 51, 55, 56, 58, 336, 339, 341, 342, 363, 400, 407, 417, 463, 487, 779
Repeat offender(s) 122, 303, 831
Repeat victimisation 136, 692
Report on Government Services in Australia 70
Reporting rate 72, 288
Representation
of crime, 83, 89, 122, 737
Research ethics 46, 678
Research participants 211, 772
Reserve Bank 239
Resident Magistrates Ordinance 1847 685
Residential care 449, 450, 454, 455, 815
Residential school(s) 454, 461, 700
Resignation 259, 638, 644
Resilience 675
Resistance 182, 471, 504, 514, 515, 525, 529, 536, 621, 625, 667, 668, 675, 676, 685, 705, 729, 797, 804, 815
Responsibilization 241, 716
Responsible Service of Alcohol (RSA) training 803
Restitution 278, 365, 394, 409
Restoration
emotional, 397, 412
process of 412
Restorative community panels 395
Restorative justice 18, 20, 21, 23, 26, 44, 324, 373, 393, 401, 402, 407, 408, 410–413, 416, 417, 476, 534, 548, 686, 690, 715, 717, 769, 770
Restorative Justice and Reoffending (RJR) project 413
Restorativeness 397
Rethinking Crime and Punishment 28
Retribution 83, 120, 162, 292, 364, 365, 374, 793, 831, 833
Revenge 208, 209
Revenge pornography 208, 209. *See also* Pornography
Review of Australia's Counter-Terrorism Machinery 519
Review of Crime and Justice Statistics 74
Rice, Condoleezza 325, 341
Richards, Steve 603, 605, 606, 608, 611

Rickards, Clint 531
Right realism 572, 575, 576
Right to contact 444
Rights
  animal, 619, 620
  ecological 619
  human 14, 25, 62, 100, 105, 121, 140, 211, 303, 305, 309, 318, 337, 449, 463, 533, 536, 550, 673, 756, 831
  social 620
  species 620
  violation of 619
Risk assessment 334, 371, 835, 848, 856
Risk factors 562, 727, 819, 820
Risk, Needs, Responsivity (RNR) model 731, 840
Roast Busters 208, 536
Robbery 6, 68, 115–117, 124, 127, 132, 133, 135, 136, 138, 143, 147–156, 164, 180, 291, 370, 572, 604, 605, 611, 658, 835, 849. *See also* Armed robbery
Romantic idealisation 199
Roper Committee Report on New Zealand Prisons (1989) 729
Routine activities 291, 755
Royal Commission into Aboriginal Deaths in Custody. *See* RCIADC
Royal Commission into Family Violence 140
Royal Commission into Institutional Responses to Child Sexual Abuse (RCIRCSA) 451, 455, 456, 461
Ruatoria 743
Rule of law 99, 252, 264, 265, 320, 473, 650, 668
Rural crime 44, 285, 287, 288, 292
Rural police 287
Rwanda 318, 323

S
Safeguarding Children of Arrested Parents 445
Safer Communities Together 497
Sale and Supply of Alcohol Act 2012 804
Salisbury St Foundation (SSF) 609
Saloon society 162, 165
Salvation Army 463, 483, 488
Samoan language 178
Samoan youth gangs 21, 175, 185
Sanderson, John 319
Sandline International 324
Sanford Ltd. 622
Sanitary conditions 452
Scam Disruption Project 278
Scams
  Nigerian, 274
  inheritance 274
  lottery 274
  phishing 274
  reclaim 274
  romance 102
Scamwatch 272, 273, 277, 278
Scandinavia 132, 438
Schollum, Bob 531
School(s) 4–10, 14, 21, 30, 55, 180, 208, 215, 356, 379, 411, 437, 452, 454, 460, 461, 535, 546, 563, 564, 580, 611, 636, 637, 640, 642, 678, 686, 700, 707, 722, 728, 729, 755, 757, 769, 779, 790, 791, 817, 818, 820–824, 834, 853, 856
Scientific knowledge 627
Scientism 772
Sea change 287, 796
Search warrant 339
Security cameras 289. *See also* CCTV
Security
  industry, 498, 500, 501, 513
  private 229, 484, 497–502, 506, 513

Security (*cont.*)
public 484
technology 148
Security Legislation Amendment (Terrorism) Bill 2002 335
Segregation 185, 644, 669
Self-change programmes 838
Self-defence 790, 797
Self-determination 294, 384, 400, 687, 688, 693, 707, 708, 713, 716, 759, 770, 779
Self-harm 196, 197, 213, 472, 473, 547, 672, 797
Self-policing 676
Self-protection 72, 73, 506
Self-regulation 819, 823, 840
Self-report survey(s) 27, 72, 119, 195
Sensationalism 81, 83
Sensible Sentencing Trust 28, 84, 354
Sentence length 349, 366
Sentence plan 223, 382
Sentencing
circles, 382, 408
councils 141, 364, 370, 373, 374
discount 367
disparity 366, 367, 374
guidelines 364, 369–372, 374
law(s) 95, 98–100, 443
Sentencing Act 2002 351, 364, 395
Sentencing Bench Book 371
Sentencing Manual 370, 371
Sentencing and Parole Reform Act 2010 350
Separation of powers 99, 323, 370, 449, 476, 529
Serco 351, 468, 469, 471, 473, 475–477
Serial killer(s) 848
Serial killings 287
Serious and Organised Crime (Control) Act 2008 103
Serious bodily harm 534
Serious Financial Crime Taskforce 279
Serious Fraud Office 257, 261, 272
Settler-colonial state(s) 770, 776, 777
Severity scale 122
Sex Discrimination Act 1984 550
Sex offences 98, 368, 609. *See also* Sexual offence(s); Sex crime(s)
Sex offender registry(s) 485
Sex offender reintegration 638
Sex trafficking 594
Sex work 595
Sexting 95
Sextortion 209, 223
Sexual
abuse, 131, 139, 140, 192, 193, 197, 205, 208–210, 230, 326, 449–451, 453–455, 457, 458, 462, 550, 840
assault 12, 115–117, 120, 121, 123, 124, 126, 133, 135, 137, 138, 140, 206–208, 215, 531, 550, 580, 595, 655, 670, 728, 848
exploitation 213
harassment 205, 211
slavery 321
violence 38, 44, 113, 125, 142, 205, 206, 212–216, 218, 573
Sexuality 597
SFO. *See* Serious Fraud Office
Shadow state 325, 326
Shame 410, 531, 548, 580, 636, 754
Shipton, Brad 531
Short-term prison sentence(s) 613
Silence of the Lambs 847
Silencing 25, 686, 755
Silk Road 221
Simulacra 738
Situational crime prevention 147, 149, 252, 264, 578
Slade, Kris 530, 611
Slavery 321, 669, 700

Sleep deprivation 193
Smith Family 483
Snowtown 287
Social
  abuse, 193, 195
  bonds 490, 652
  change 87, 289, 301, 590, 656
  cohesion 87, 352, 358, 519
  control 142, 289, 292, 385, 514, 545–547, 549, 573, 576, 579, 655, 656, 684, 686, 691, 727, 773, 775, 778, 788, 816
  conventions 411
  disorder 72–74
  drivers 325
  engineering 221–223, 227, 229, 232
  environment(s) 547, 560, 726, 732
  event(s) 558, 559
  exclusion 196, 715, 816, 832
  harm 365, 581, 692–694, 730, 733, 774
  inequality 816
  inequities 294
  institution(s) 301, 352, 546, 778
  interaction 413, 613
  intervention 521
  isolation 193, 730
  learning 199
  media 77, 81, 84, 89–91, 113, 211, 214, 222, 223, 335
  movement(s) 301, 579–581
  needs 472
  networking 89, 205–208
  norms 86, 656
  policy 487, 573
  practices 594, 619, 651
  privileges 64, 474, 547, 635, 719, 754
  problem(s) 9, 47, 53, 86, 125, 139, 179, 194, 239, 277, 288, 327, 373, 393, 401
  relationships 411, 667
  repercussions 292
  rights 620
  security 669
  support 439, 546, 547, 549, 658, 842
  work 308, 431, 441, 453, 677, 718, 760, 761
Social control theory 142
Social crime prevention 756
Social determinants of health 817
Social exclusion theory 715
Social harm reduction 733
Social impact bonds 489–491, 493
Social Network Sites 222
Social Policy Evaluation and Research Unit 439
Social psychological theory 545. *See also* Social psychology
Socialisation 182, 549, 576, 675
Socio-economic(s) 89, 183, 562, 590, 654, 667, 672, 692, 713, 726, 727, 729, 732
Sociological analysis 413, 628
Sociology of policing 497
Soft on crime 84
Solitary confinement 474
Solomon Islands 52, 319–321, 323, 325, 326
Somalia 255, 318
South Auckland 184
South Australia Juvenile Justice (SAJJ) project 397
South Australia Office of Crime Statistics and Research. *See* OCSAR
South Seas Bubble 270
Southern criminology 596
Southern Theory (2007) 581, 596
Sovereignty 667, 668, 677, 684, 705, 720, 722, 754
SPAM 223, 226, 231, 232, 274
Spamhaus 231
Specialist Māori Cultural Assessment (SMCA) 731

Spiritual abuse 193
Spiritual beliefs 684
Springbok rugby team tour 528
Spyware 224, 225
Square of crime 573, 574
Staff assault 472
Staff turnover 472
Stalking 102, 142, 198, 205, 210, 211, 385, 551
Standardisation 122
Standing Committee of Criminal Justice System Chief Executive Officers 382
Standpoint epistemology 641
Standpoint theory 590, 597. *See also* Standpointism
Standpointism 588, 590
State control 669, 670, 685, 689
State crime 20, 305, 580, 607, 678, 779
State housing 126, 356
State Service Union (Prison Officer Branch) 471
State-centric 231, 650, 652
State-corporate crime 238
Stateless 305
Statistical linkage techniques 69
Statistics New Zealand 66, 68, 70, 74, 76, 78
Steering Committee for the Review of Government Service Provision 468
Stereotype(s) 183, 228, 286
Stigmatisation 728
Stock market 240
Stock market crash 354
Stockholm Prize in Criminology 34
Stoke Industrial School 452
Stolen generation(s) 456, 461, 700
Storm Financial 239–241
Storytelling 408, 412, 414, 644, 652, 769
Strain 183
Strain theory 544
Street crime 131, 164, 518, 745
Street gangs 167
Street violence 131
Structural racism 676. *See also* Institutional racism
Structural violence 729, 733
Structured Professional Judgement. *See* Criminal profiling
Subcultural norms 162
Subculture(s) 160, 162, 165, 228, 526
Substance abuse 62, 178, 182, 183, 485, 488, 730, 816, 820, 821, 832, 836, 839, 841. *See also* Alcohol abuse; Drug abuse
Suburb(s) 76, 208, 290, 491
Suggestive questioning 422
Suicide 196, 472, 698, 795, 796
Suicide by firearm 795
Superiority 697, 700
Supermax 341. *See also* Maximum security
Suppression of Rebellion Act 1863 685
Supreme Court 5, 39, 53, 99, 104, 341
Suppression order(s) 531
Survey data 71, 72, 74, 77, 132, 194
Survey research 35
Survival 309, 619, 761
Survivor(s) 88, 450, 454, 461, 531, 592
Sustainability 228, 619, 833
Swann, Michael 276
Sweetie sting operation 230
Sworn police 499, 674, 675
Sydney Airport brawl 169
Sydney Institute of Criminology 3, 7, 12, 13
Syringes 151, 152

T

Tā moko 701. *See also* Tattoos
Tabloid 81, 83, 303
Targeting Scams 272
Taser(s) 342, 672

Tattoo(s) 103, 747. *See also* Moko; Tā moko
Tax avoidance 242–244, 246, 573
Tax evasion 225, 242, 243, 326, 638
Taylor, Ian 572, 582
Te Puni Kōkiri 18, 19, 193, 730. *See also* Ministry of Māori Development
Te Tiriti o Waitangi 1840 684, 697, 704, 707, 708. *See also* Treaty of Waitangi
Te Wakaminenga 697, 703–705
Te Whare Tapa Whā 715
Telecommunications legislation 210
Television 44, 83, 84, 91, 113, 354, 737, 742, 815
Terra nullius 668, 753
Terrorism 12, 47, 75, 77, 82, 87, 88, 102, 325, 332–342, 519, 520, 613, 772, 775, 849
Terrorist (Police Powers) Act (NSW) 334
Terrorist(s)
  attack(s), 341, 343
  cell 340, 634
  groups 748
  organisation 336, 337, 339–342
Testimony 131, 425
Theft
  fuel, 160, 168, 288, 289
  livestock 287–289, 625
Therapeutic communities 837, 841, 842
Therapeutic Goods Administration 279
Therapeutic jurisprudence 372–374, 715
Third sector 75, 483, 484, 487–493
Three strikes 20, 350, 364, 368, 369, 374
Tier 1 statistics 70
Tikanga Māori 691, 701, 702, 704, 706, 713, 716, 718, 719, 727, 731, 732. *See also* Māori tikanga
Timor-Leste 319, 321–323, 624
Tino rangatiratanga 684, 687, 708, 716. *See also* Sovereignty
Tirkandi Inaburra Cultural and Development Centre 678
Tohunga Suppression Act 1907 705, 707
Tongan 182, 185
Torres Strait Islander 73, 74, 194, 200, 390, 449, 674, 677, 679, 762, 833, 842
Torture 99, 318, 338, 454, 533, 577, 756, 815
Tough on crime 100, 354, 368, 514
Trade
  drug, 625
  wildlife 618, 621, 623
Trade union(s) 254, 353
Traditional owner(s) 762
Trafficking
  drug, 117, 127, 165, 280, 301, 372, 605, 623, 841
  human 44, 68, 280, 299, 301, 372, 621, 623, 775
  sex 594, 595
  wildlife 621, 623, 624
Traffic management 503
Traffic offence(s) 165, 388, 739
Trajectories
  criminal, 69, 561, 565
Trajectory studies 76
Transformative justice 715
Transgender 194-196
Transition programme(s) 832
Transition(s) 69, 556, 559
Transnational crime 75, 212, 299-301, 309
Transparency International 251, 256
Transportation (penal) 22, 618
Transportation of prisoners 467
Trauma
  intergenerational, 439, 645n1, 692, 698, 706
Treason 367

Treatment 18, 53, 61, 62, 109, 142, 293, 303, 332, 341, 372, 373, 443, 463, 472, 476-478, 485, 492, 545, 639, 651, 671, 688, 689, 691, 729, 747, 756, 777, 809, 811, 817, 818, 832, 835, 838-842
Treaty of Waitangi 684, 716, 720, 722
Tree change 287
Trends and Issues in Criminal Justice 45
Trespassing 162, 288
Trial
  delay, 99, 422, 423, 425, 426, 430
  without 90, 337, 341, 425, 428-431, 685, 764
Tribal Warrior Association 677
Trigger, Cedric 671
Truancy 727, 755
Truth and Reconciliation Commission 326, 701
Truth in sentencing 469, 577
Truth-in-sentencing legislation 469
Turn-Back policy 308
Turnbull, Malcolm 333, 815
Turning point(s) 560, 562

U
Ultra-realism 571, 574–575
UN Centre for Social Development and Humanitarian Affairs 13
UN Committee against Torture (UNCAT) 454, 456, 533
UN Committee on the Rights of the Child 99
UN Convention against Corruption (UNCAC) 256, 257, 263
UN Convention against Transnational Organised Crime 302
UN Convention on Refugees 303
UN Convention on Transnational Crime 299
UN Crime Prevention and Criminal Justice Programme 10
UN Declaration on the Rights of Indigenous Peoples 18
UN Development Programme 256
UN Environment Program 619
UN Interregional Crime Research Institute 13
UN model criminal justice statistics system 66
UN Office on Drugs and Crime 623
UN Protocol Against the Smuggling of Migrants by Land, Sea and Air 302
UN Standard Minimum Rules for the Treatment of Prisoners 61
UN Transitional Administration in West Papua 318
Unconscious bias 675
Under-policing 126, 516
Underreporting 120, 124, 126, 194, 255, 271
Unemployment 142, 239, 379, 488, 492, 548, 687, 706, 715, 741, 743
Unique identifier(s) 69
University of Maryland Report 487
Urban crime 286, 290
Urban drift 717
Urban Māori 706
Urbanisation 727
Urewera 742
Use of force 21, 530, 672

V
Van Diemen's Land 4
Vandalism 44, 117, 225, 288, 502
Vass, Chris 380
Verbal abuse 193, 195, 210

Vicious Lawless Association Disestablishment (VLAD) Act 2013 103, 164, 169
Victim-blaming 193, 199, 215
Victim groups 515
Victim needs 393
Victim redress 394, 396–398, 401, 402. *See also* Redress for victims
Victim status 620
Victim survey(s) 192, 194, 572, 573, 577, 654, 658
Victimisation
  data, 123
  disproportionate 191
  rate(s) 125, 127, 133, 135–139, 149, 281, 592, 670
  risk of 83, 150
  survey(s) 23, 72, 74, 124–126, 132, 135–139, 143, 271, 274
Victimless crime(s) 118
Victim–offender interaction 848
Victim–offender mediation 408, 413
Victim's Rights Act 2002 395
Violence
  against women, 72–73, 142, 191–194, 196, 198, 571, 578, 579, 591–593
  family 20, 72, 131, 140, 141, 193, 194, 196, 198–200, 292, 379, 383, 385, 440, 445, 672, 842
  structural 729, 733
Violent crime 44, 45, 114, 131–143, 165, 175, 183, 231, 290–292, 517, 543, 642, 654, 658, 706, 838
Violent Crime Linkage Analysis System (ViCLAS) 851
Violent Crimes against Children (VCAC) unit 231
Violent death 83
Violent offending 180, 182, 185, 561, 566, 638, 702, 838
Virtual Global Taskforce 231
VirusTotal 231
Visual Criminology 621
Visy Board Industries 276
Vocational training 472, 832, 841
Voluntary sector 351, 358, 484, 491, 492
Volunteers-in-policing 487
Voting 669
Vulnerable Witness Act 2015 428

W

Wagga Wagga 395, 396, 408
Waitangi Day 742
Waitangi Tribunal 684, 686, 731
Wallace, Steven 530
Wandoo Reintegration Facility 468
``Wannabes" 175, 184
Waretini-Karena, Rawiri 610
War of Extermination 668
War on Drugs 121, 299
War on Terror 299
Washington Post 90
Watchdog(s) 258, 259
Water Holdings Pty Ltd. 262
Way Forward model 471
Weapon use 147, 148, 151, 152
Welfare
  child, 38, 394, 440
  dependence 819
  fraud 280
  prisoner 293, 438, 439, 473
  state 293, 352, 483
Welfarism 488
West Papua 318–320
Western Australia County Hostels 461
Western Samoa 52, 53, 177
Whakapapa 684, 692, 701, 702, 715, 718, 719, 721. *See also* Genealogy
Whanake Rangatahi 730
Whānau violence 193
Whare Oranga Ake Units 691
What works approach 832

What Works Centre for Crime Reduction 487
What Works in Crime Prevention 485
Whistleblower 258, 261, 308
White collar crime 43, 44, 86, 237–239, 242–246, 252, 546, 580
White privilege 596
White supremacist 167
White-hats 227
Whiteness studies 756
Whitlam, Gough 9, 321, 324
Wilder, George 350, 359
Wildlife trafficking 621
Wilson, James Q. 576
Wilson, Paul 4, 8, 10, 11
Wiretapping 209
Witness
  examination, 421
  tampering 167
  unreliable 424
Wolf Creek 287
Women 4, 12, 19, 20, 88, 99, 126, 136–138, 142, 143, 191–196, 198–200, 212–214, 280, 321, 327, 332, 421, 531, 571, 578, 579, 587, 595, 609, 670, 692, 693, 711, 729, 730, 743, 808, 820, 834, 842
Women and Crime 19, 588
Women's Safety Survey (WSS) 72
Woolford Corrections Centre 472
Working class 571, 573
World Bank 256, 325
World Declaration on Education for All 817
World trade 270
World War Two 131, 319, 321, 322, 740, 793. *See also* WWII
Wraparound service(s) 444
Wrongful imprisonment 339

Y

Young people 27, 87, 126, 175, 178–181, 183–185, 322, 356, 379, 382, 388, 411, 413, 414, 416, 518, 644, 671, 672, 674, 676–678, 686, 712–715, 717–721, 765, 804, 807, 808, 816
Young, Jock 87, 572, 574, 755, 775
Young, Warren 22, 23, 88, 532
Youth Court 385, 395, 431, 686, 691, 711–714, 716, 718, 721
Youth
  crime, 20, 114, 175, 176, 179, 185, 713, 815, 818
  development 817
  gang 183, 184
  justice 23, 38, 394, 395, 398, 401, 407, 686, 689, 690, 714, 716, 717, 729, 765, 779, 816
  offending 175, 176, 179, 180, 182, 394, 690, 711, 712, 730, 823, 866
  violence 20, 140
Youth crime action plan 713
Youth justice conferencing 408, 411, 580
Youth justice reform institutions 729
Youth justice statistics 411
Youth Koori court(s) 382
Youth Murri Court 386–389
Youth support service(s) 488
YouTube 90, 208

Z

Zero tolerance policing 576, 577, 675